

THE LIVING ARCHIVE

PART ONE OF NINETEEN

The Congress Record

Part One — How to Judge a Government

An audit of what Congress governments did with power in India, from 1947 to the present day. This first part sets the rules. What counts as a blunder. Where the evidence comes from. And how to tell a charge that holds from one that somebody invented.

This book argues one side. It chooses like a prosecutor and checks like an auditor. Every claim carries a grade, and Chapter Six is about the accusations that are false.

WRITTEN AND RESEARCHED BY

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INDIA · 1947 TO THE PRESENT

MISTERLOVE.IN

BEFORE WE BEGIN

Why I Wrote This

There are two ways to write an angry book. One of them works.

The Indian National Congress held power at the centre of India for about fifty-four of the seventy-nine years since independence. No other party comes close. For long stretches it also ran most of the states at the same time. That means something simple and quite hard to sit with: for most of the life of independent India, if something was decided, Congress decided it.

That is not an accusation. It is arithmetic. But it does mean that a serious account of what has gone wrong in India has to spend most of its time looking at what Congress did, because for most of the period there was nobody else in the room.

Books about this already exist. Most of them are useless, and they are useless in one of two ways.

The first kind is written by people who admire the party. These books explain. Every failure becomes a difficult situation. Every disaster becomes a lesson learned. The Emergency becomes a period. Nobody decided anything; things simply happened, and then the country moved on. You finish the book knowing more dates and understanding nothing.

The second kind is written by people who hate the party. These are worse, and I want to be precise about why. They are worse because they mix true things with invented things, and they do it in the same paragraph, in the same tone, with the same confidence. So a reader who checks one claim and finds it made up throws the whole book away. And the book deserved to be thrown away. But the true parts of it did not.

That is the problem this series is built to solve. The record of what Congress governments actually did is bad enough. It does not need help. Every made-up story added to it is not a bonus. It is a subtraction, because it hands the party an easy escape from all the real ones.

So this is a book of one-sided selection and honest evidence. Those two things are not in conflict, and confusing them is the mistake almost everyone makes.

Think about how a court works. The prosecutor is not neutral. The prosecutor's whole job is to build the strongest case against the accused, and nobody thinks this is dishonest. What would be dishonest is inventing a witness. Choosing what to put in front of the court is the job. Making things up ends the career.

I am doing the first thing. I am not doing the second.

You should know where I stand, because it could pull the writing. I am an Indian. I am not neutral about this material and I am not going to pretend to be. I think the record I am about to lay out is a serious one and that most Indians have never seen it collected in one place in language they can actually read. That is why I am writing it.

But an author who wants a particular answer is an author who will cut corners to reach it. So I have built the corners into the structure, where I cannot quietly skip them. Every serious charge in this series gets a grade telling you how solid the evidence is. Every argument gets the other side stated at its strongest, in its own words, before it loses. Chapter Nine of this part is a list of what would prove me wrong. And one full chapter here — Chapter Six — is given over to accusations against Congress that are false, because I would rather kill those myself than have a reader find them and stop believing me.

One more promise, and I want it on the record early. This series is about Congress. Part Eighteen compares them with the government that has held power since 2014, and that comparison is measured on the same ruler in both directions. A second series will audit that government the way this one audits Congress, using the same method and the same grades. If I never write it, you are entitled to conclude something about me.

HOW TO READ THIS BOOK

The Six Boxes

Coloured boxes run through every part of this series. Each colour does one job. You will meet all six in the next few pages, so here they are first, with a real example of each rather than a description.

A **Word Box** appears the first time a hard word turns up. It explains the word right there, on the spot. You never have to hold a term you do not understand and hope it gets explained later.

WORD BOX

Exchequer: the government's money. All of it, in one pot — what it collects in taxes and what it spends. When you read that something “cost the exchequer” a sum, it means the government either lost that money or never collected it.

Why it matters here: most of the big scandals in this series are arguments about whether money was lost from this pot, and if so, how much.

An **In Real Terms** box takes a number too big to picture and turns it into something with a body. A number you cannot picture is decoration. It sits on the page looking serious and tells you nothing.

IN REAL TERMS

Congress has been in power at the centre for roughly fifty-four of seventy-nine years. Put it another way. If independent India were a person of seventy-nine, they would have had the same employer for fifty-four years, three other employers for the rest, and would have spent about two-thirds of their working life under one management.

A **How We Actually Know This** box shows you the evidence. Not the conclusion — the actual thing. The register, the audit, the court file. And then it tells you what that evidence cannot show, because every source is blind to something.

HOW WE ACTUALLY KNOW THIS

Much of what we know about the Emergency of 1975 to 1977 comes from one source: a commission of inquiry led by Justice J.C. Shah, a former Chief Justice of India, appointed in 1977. It held around a hundred sittings and went through roughly forty-eight thousand papers. It reported in three volumes, the last on 6 August 1978.

What it cannot show: it questioned officials and ministers who knew they were being questioned. People being investigated shade their answers. The Commission recorded what it was told, under oath, by people with reasons to shape it.

An **Argument** box appears where serious people genuinely disagree. Each side gets its strongest case, in its own words, not a weak version I built so I could knock it over. Then a verdict tells you where things actually stand.

THE ARGUMENT — IS A ONE-SIDED BOOK WORTH READING?

You are holding a book that says on its own cover that it argues one side. Should you trust anything in it?

NO — BALANCE IS THE POINT

An account that has decided its answer will find its answer. It will include the damning file and skip the ordinary one. Even if every individual fact checks out, the shape of the thing is a lie, because the shape is made of what was left out. You cannot audit a book for absences.

YES — HIDDEN BIAS IS WORSE

Every account selects. The pretence of neutrality just hides the selecting. A book that announces its side lets you correct for it, the way you correct for a defence lawyer. And the alternative on offer is not a neutral book. It is a book with the same bias, undeclared.

Where things stand: both are right about something. The first side is right that selection cannot be audited. The second is right that undeclared selection is worse than declared selection. Neither of them rescues a book that invents evidence, which is why the grades in Chapter Five matter more than this argument does.

What would settle it: nothing settles it in general. It is settled case by case, by checking. This book is built to be checkable and that is the only defence it has.

Why people care so much: because in Indian politics “biased” has become the standard way of not answering a charge. Calling a source biased is cheaper than showing the source is wrong.

A **Hidden Assumption** box is the signature of this series and the hardest thing in it to write. It is not a warning or a note about limits. It digs out a belief sitting underneath an argument that *both sides accept without discussing it*. Those beliefs do most of the work and nobody examines them.

THE HIDDEN ASSUMPTION

Everybody in this argument — the people defending Congress and the people attacking it — agrees on one thing without ever saying it out loud. They agree that **“Congress” is one continuous thing.**

It is not obviously one thing. The party of 1952 was a mass movement that had just won independence, run by people who had been to prison for it. The party of 1975 suspended the constitution and jailed its opponents. The party of 2014 was a family office with a national footprint. They share a name, a symbol, and for most of that stretch a family. Beyond that, the connection is a matter of argument, not fact.

Watch how convenient the assumption is for everyone. It lets me carry every sin across eight decades and pile them on today’s party. It lets today’s party disown any particular sin as a different era. Both moves use the same unexamined premise, in opposite directions.

I have made a choice here, and you should see it as a choice. I am treating Congress as one continuous actor, because the family, the culture and many of the same instincts do carry across. But it is a choice, and where it does real work in an argument, I will say so.

Finally, every chapter ends with a **Remember This** box. It is the chapter in the plainest words I can manage. If you read only these boxes across all nineteen parts, you would still have the whole argument.

REMEMBER THIS

Congress governed India for most of its independent life. A serious account of what went wrong has to look mostly at them, because for most of the time there was nobody else deciding.

This book **selects like a prosecutor and checks like an auditor.** One-sided choosing is legitimate. Invented evidence is not, and it is also stupid, because it rescues the accused.

The true record is bad enough. Every made-up story added to it is a subtraction, not a bonus.

Part One

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CHAPTER ONE

What This Book Is, and What It Is Not

*There is a way to attack a government that works, and a way that feels better and achieves nothing.
Almost everybody picks the second one.*

1.1 — The prosecutor and the liar

I imagine two people who both want the same man convicted.

The first is a prosecutor. She reads every file. She picks the six documents that damage him most and leaves the forty that are boring. She questions the witnesses who saw the worst of it. She does not call the witnesses who saw him being pleasant. When the defence produces something awkward for her, she deals with it, because she knows the judge will read it anyway.

The second is a liar. He cannot be bothered with files. He tells a story he heard. He adds a detail because it makes the story land better. He is not worried about the defence, because he has never really imagined the defence as a thing that will happen.

Both of them are one-sided. Only one of them is doing something legitimate, and here is the thing that matters most: **only one of them is effective.**

The prosecutor wins cases. The liar loses them, and worse, he loses them in a way that helps the accused. Every invented detail that gets exposed makes the true details look invented too. By the end, the man walks out and the real evidence walks out with him.

Indian political argument runs almost entirely on the second model. You have seen it yourself. Somebody forwards you a list of twenty terrible things a party did. You check one out of curiosity. It turns out to be nonsense. You now believe none of the other nineteen, and four of them were true and provable.

WORD BOX

Prosecution brief: the written case a prosecutor builds against an accused person. It gathers the evidence that supports the charge and organises it into an argument.

It is not supposed to be balanced. Balance is the court's job, once both sides have made their strongest case. What a brief is supposed to be is *true in every particular*, because the other side will check.

Why it matters here: this book is a prosecution brief. That tells you what to expect from it and what you are entitled to demand of it.

So the rule for these nineteen parts is short. **I choose what goes in. I do not get to invent what goes in.**

1.2 — What “one-sided” is allowed to mean

Being one-sided is allowed to mean three things in this series.

It is allowed to mean that I am looking for failures. When Congress did something well — and they did, more than once, and those moments are in this book — I note it and move on. I do not build a chapter around it. A prosecutor does not spend the afternoon on the accused's charity work.

It is allowed to mean that the questions are hostile. “Why did this happen?” is a neutral question. “Who decided this, what did they know when they decided it, and what happened to them afterwards?” is a hostile one. I ask the hostile one. It is a better question and it gets better answers.

It is allowed to mean that I give the reader my view at the end of an argument, when the evidence supports a view.

Being one-sided is **not** allowed to mean four other things, and these are the ones that destroy books.

It cannot mean stating something I have not checked. It cannot mean quoting somebody without the date, the place and the actual words. It cannot mean presenting an allegation as a finding. And it cannot mean building a weak version of the other side so that I can knock it down.

That last one is worth pausing on, because it is the instruction people find hardest to accept. If you cannot make the other side sound reasonable, you do not yet understand the other side. You are arguing with a puppet you made. And a reader who has actually heard the real argument will spot the puppet immediately and stop reading.

IN REAL TERMS

Think of it as building a wall you want to be unclimbable. Every true brick makes it higher. Every false brick makes a hole, and a hole is not a small problem in a wall — it is the only part anyone will use.

Nineteen parts of this series will contain roughly two hundred separate charges. If one hundred and ninety-nine are solid and one is invented, the conversation about this book will be about the one. It always is.

1.3 — The other side of this book

This series is about Congress. It stops there on purpose, and you are entitled to be suspicious of that.

Here is the suspicion, stated fairly: a book that audits one party and not the other is not an audit. It is campaign material with footnotes. The author gets the reputation of a serious researcher and delivers the product of a partisan.

That suspicion is reasonable and I am going to answer it with structure rather than with a promise, because promises are cheap.

Part Eighteen of this series compares the Congress record with the record of the government that has held power since 2014. That comparison uses the same measuring stick in both directions. Where the present government did something Congress could have done and did not, it says so plainly. Where the present government carried on a Congress policy under a new name, it says that too. Where it has not moved at all on something, that goes in as well. If Part Eighteen reads like an advertisement, it will have destroyed the seventeen parts in front of it, and I will have wasted a year.

A second series will then audit the government of 2014 onwards the way this one audits Congress, with the same grades and the same rules.

THE ARGUMENT — DOES AUDITING ONE PARTY FIRST MAKE THIS PROPAGANDA?

Everything in this book could be true and it could still be propaganda, if the choice of target is doing the political work. So: is it?

YES, THE ORDER IS THE MESSAGE

Publishing nineteen parts against one party while the other waits its turn is not a neutral scheduling decision. It lands during that other party's time in office and it serves them. "I will get to them later" is what everybody says, and later is a place nothing arrives. The author gets full credit now for a balance he has only promised.

NO, THE RECORD IS ASYMMETRIC

Fifty-four years of central power against about twelve produces vastly more material, and material that has finished being contested. Court cases have closed. Commissions have reported. Files have been declassified. Auditing a government still in office is a different job with different evidence, and mixing the two would produce a worse book about both.

Where things stand: the second side is right that the evidence is asymmetric and that this is a real reason to start here. The first side is right that the reason is also convenient, and that convenient reasons deserve suspicion. Both can be true. They are both true here.

What would settle it: the second series existing. Nothing else. Not this paragraph, not my intentions, not the fact that I have written this box.

Why people care so much: because in India the demand "what about the other one?" is now the standard reply to any criticism of any party, by everyone, in every direction. It works because it is often a fair point and always an easy one.

1.4 — What the nineteen parts cover

A short map, so you know what you have agreed to read.

Parts Two and Three take the first years, from 1947 to 1959 — partition, the princely states, Kashmir, and the early changes to the constitution. Part Four takes the economic system that was built between 1950 and 1991 and never really examined, which is the single most expensive item in this series and has no scandal attached to it at all. Part Five is about which Indian states were made rich and which were made poor by decisions taken in Delhi.

Parts Six and Seven cover China, Tibet, the war of 1962, and the wars and the governing of Kashmir. Part Eight covers Indira Gandhi's rise. Part Nine is the Emergency. Part Ten is Punjab from 1978 to 1993, and Part Eleven is November 1984.

Part Twelve is Rajiv Gandhi's five years. Part Thirteen covers the parts of India these accounts always skip — the North East, the tribal belt, the corridor where the Naxal insurgency runs. Part Fourteen is 1991 to 1996: economic reform and the demolition of the Babri Masjid, in the same five years, under the same Prime Minister.

Parts Fifteen and Sixteen are the ten years from 2004 to 2014. Part Seventeen collects what was said — the statements, with dates and full wording. Part Eighteen is the comparison. Part Nineteen is the honest final accounting, including everything I could not prove.

HOW WE ACTUALLY KNOW THIS

The raw material for this series is mostly boring and mostly official. Reports of the Comptroller and Auditor General. Reports of commissions of inquiry. Judgments of the Supreme Court and the High Courts. Debates recorded in Parliament. Census and survey tables. Replies given to questions in Parliament, which are useful precisely because they are grudging.

Then a second layer: memoirs by people who were in the room, and contemporary journalism.

What this mix is bad at: it is heavily weighted towards what the state wrote down. The experience of people who were not officials survives thinly, and much of it was collected decades later, from memory. That gap is not neutral. It runs in a consistent direction, and Chapter Four is about it.

That is the whole apparatus. It is not glamorous and it is not secret. Almost everything in the nineteen parts ahead was sitting in a published document that anybody could have read, which raises a question worth carrying with you: if the record is this available, why does almost nobody know what is in it?

Part of the answer is that it is written in a way designed to be unreadable. That is the problem this whole project exists to solve.

REMEMBER THIS

There are two ways to attack a government. The **prosecutor** selects hard and checks everything. The **liar** selects hard and checks nothing. Only the first one wins.

One-sided **selection** is legitimate and this book does it openly. One-sided **evidence** is not, and it is also self-defeating, because a single exposed invention discredits every true charge standing next to it.

The other side of the ledger is promised in Part Eighteen and in a second series. **Judge that promise when it comes due, not now.**

CHAPTER TWO

What Counts as a Blunder

The word gets used for six different things. Keeping them separate is most of the work, and almost nobody does it.

2.1 — Six things called by one name

Somebody says “Congress made a blunder”. What have they actually said? Six quite different things hide under that one word.

One. A decision that was wrong on the information available at the time. Somebody in the room said so. The warning is on the file. It was ignored. This is the strongest kind of charge and it is rarer than you would think.

Two. A decision that was reasonable at the time and turned out badly. This happens to every government that has ever existed. It is not a blunder. Calling it one is the fastest way to look unserious.

Three. A cost that built up slowly with nobody deciding anything. No meeting, no file, no villain. A rule stays in place for forty years and quietly moves a large amount of money from one part of the country to another. These are usually the most expensive items and they get the least attention, because there is nobody to be angry at.

Four. A promise that was made and not kept. Not a mistake — a broken commitment. Different thing, different test. You need the promise in writing and the outcome measured.

Five. A crime. Somebody took money, or ordered something illegal, or covered something up. This is not an error of judgment and should never be filed as one.

Six. A thing that was done on purpose, worked exactly as intended, and was monstrous. This is the category people find hardest, because the language of “blunder” and “mistake” quietly does the accused a favour. Some of what is in this series belongs here.

WORD BOX

Culpable: deserving blame. In everyday use it means you could have known better and should have.

The test has two halves and both must be met. Could a reasonable person in that chair, with the papers that were actually on that desk, have seen the problem? And did they have the power to act on it? If either answer is no, it is a misfortune, not a fault.

Why it matters here: nearly every argument about Indian history is really an argument about these two questions, conducted without either side naming them.

2.2 — Wrong at the time, wrong only later

This distinction decides more arguments than any other in this series, so here is a concrete way to hold it.

In 1950 India chose an economic model built around state planning, public ownership of heavy industry, and government permission for private businesses to expand. Part Four takes this apart in detail. For now, the question is only how to judge it.

The defence is straightforward. In 1950, this was not a strange choice. It was close to the international consensus. The Soviet Union appeared to be industrialising at extraordinary speed. Britain had just nationalised coal, rail and steel. Newly independent countries everywhere were doing versions of the same thing. And India's own experience of an unregulated market was two centuries of colonial extraction ending in a famine that killed millions. The people making these choices were not fools and they were not thieves.

That defence is genuinely strong and I am not going to pretend otherwise. But watch what it covers and what it does not.

It covers 1950. Perhaps it covers 1955. It does not cover 1975, by which point the results were in, the comparisons were available, and the people who benefited from the system had grown powerful enough to defend it. Somewhere in that stretch, a defensible choice became an indefensible refusal to look at the evidence.

The interesting question is never “was it wrong”. It is “when did it become wrong, and who was in the room when the warnings arrived”.

THE ARGUMENT — WAS THE LICENCE SYSTEM A BLUNDER OR A FAIR BET THAT FAILED?

From roughly 1951 to 1991, an Indian company generally needed government permission to start, to expand, to change what it made, or to import machinery. India grew slowly for four decades. Was this a mistake, or bad luck?

A FAIR BET THAT FAILED

The information available in 1950 pointed this way. Every serious economist of the period, in India and outside it, thought a poor agricultural country needed a planned push into heavy industry, because private capital was too thin and too timid to build steel plants. The bet did produce real things: dams, steel, engineering, universities, a technical workforce. It was tried honestly and it underperformed. That is not a blunder, that is a wager.

A BLUNDER, AND INCREASINGLY SO

The bet may have been fair in 1950. By 1965 the evidence was arriving and it was ignored. Other countries starting from similar poverty were pulling ahead on a different model, in plain sight. Indian officials wrote critical assessments internally. The response was not correction but extension — more controls, more nationalisation, tighter permissions. A wager you refuse to settle for forty years is no longer a wager.

Where things stand: the disagreement is not about 1950. Almost nobody serious argues that the original choice was wicked or stupid. It is about the twenty-five years after the results started coming in. That is where the defence gets thin and the defence's own advocates tend to change the subject to 1950.

What would settle it: in principle, the internal record — who wrote what warning, when, and what happened to them afterwards. A good deal of this is available. Part Four uses it.

Why people care so much: because this is the argument about whether India's poverty in 1990 was inherited from the British or manufactured after 1947. Both answers assign a very large debt to somebody.

2.3 — The cost with no scandal attached

Here is the strangest fact about writing this series.

The most expensive things Congress governments did were not the scandals. They were rules. Ordinary, technical, dull rules, passed without controversy, defended by nobody in particular, left running for decades.

A scandal has a shape people can hold. There is a person, a sum of money, and a moment. A rule has none of that. It has a file number and a slow effect, and by the time the effect is visible the person who signed it has retired.

Part Five of this series is built entirely around one such rule. Between 1952 and 1993 the central government subsidised the transport of coal, iron ore, steel and cement, so that a factory anywhere in India could buy them at roughly the same price as a factory sitting next to the mine. It sounded fair. It was called equalisation. What it actually did was take the one advantage the mineral-rich states had and hand it to everybody else. Eastern India sat on the resources and watched the industry that should have grown around them get built two thousand kilometres away, for forty-one years.

No minister took a bribe. No commission reported. There is no photograph.

IN REAL TERMS

Picture a village with the only well. The village council announces that from now on, water will be delivered to every village in the district at the same price, and the cost of the lorries will be shared by all.

It sounds like fairness. It is fairness, in a way. But the village with the well had exactly one thing going for it, and that thing has just been converted into a public utility. Nobody stole anything. Nobody meant any harm. Forty years later that village is the poorest in the district and nobody can point to the day it happened.

2.4 — A crime is not a mistake, and cruelty is not either

Language does quiet work here and I want to name it, because I will be watching my own words for the rest of this series.

When a newspaper writes that “riots broke out”, it has said something specific without appearing to. Riots that break out have no organiser. They are weather. If it later turns out that lists of addresses were distributed and transport was arranged, the word “riot” has already done its job of hiding that.

“Excesses” is another. It suggests somebody doing a legitimate thing slightly too enthusiastically. When it is applied to men being sterilised against their will to meet a district target, it is not a description. It is a defence, smuggled in as a noun.

I will use plain words for these things. Where the plain word is contested, I will say that it is contested and tell you who contests it and why. What I will not do is pick the soft word and pretend I have made no choice.

THE HIDDEN ASSUMPTION

Both sides of almost every argument in this book share a belief that neither side states: **that the government was trying to do the thing it said it was trying to do.**

Watch how it works. The critic says the poverty programme failed to reduce poverty. The defender says poverty is hard to reduce. They are arguing furiously, and they have both quietly agreed that the purpose of the programme was to reduce poverty.

Suppose it was not. Suppose the purpose was to be seen announcing a poverty programme, and the money moving through it to particular hands was not a leak in the system but a feature of it. Then “it failed” is the wrong verdict. It succeeded. You were measuring the wrong thing, and so was the person arguing with you.

I am not claiming this is always true. I am claiming that neither side ever tests it, because the test is uncomfortable for both. The critic loses the pleasure of calling them incompetent. The defender loses the excuse that the problem was hard.

Throughout this series, when a programme fails for thirty years and is renewed every year, I will ask which of the two readings fits better. Sometimes the answer is genuinely incompetence. Sometimes it is not.

Keep the six categories from the start of this chapter somewhere you can reach them. Almost every argument you will ever have about Indian politics is two people using the same word for two different things and getting angrier as they go.

REMEMBER THIS

Six different things get called a blunder: **wrong at the time; reasonable but unlucky; a slow cost nobody decided; a broken promise; a crime; and a cruelty that worked as intended.** Mixing them up is how arguments go nowhere.

The real question is almost never “was it wrong”. It is **when did it become wrong, and who was in the room when the warnings came in.**

The most expensive decisions in this series have no villain, no bribe and no photograph. **They are rules that ran for forty years.**

CHAPTER THREE

The Problem With “They Should Have Done Otherwise”

Every charge in this book contains a hidden claim about a world that never happened. That claim needs evidence too.

3.1 — You cannot run history twice

Every accusation against a government has two halves. People argue about the first half and forget the second one exists.

The first half is what happened. That part can be checked. Files, figures, judgments, records.

The second half is the claim that something better was available. When you say a government blundered, you are saying there was another road, that it could have been seen from where they stood, and that taking it would have produced a better result. Three separate claims, none of them checkable in the ordinary way, all of them smuggled in with the word “blunder”.

This is not a reason to give up. It is a reason to be explicit. A charge that names its alternative is a serious charge. A charge that does not is just disappointment with extra confidence.

WORD BOX

Counterfactual: a statement about what would have happened if things had gone differently. “If the train had been on time, I would have made the meeting.”

You use these constantly and you are usually right, because you know how trains and meetings work. They get shaky when the system is large and the gap in time is long. “If India had opened its economy in 1965, it would be as rich as South Korea” is a counterfactual about sixty years and a billion people, and nobody can run the experiment.

Why it matters here: it is hiding inside every sentence in this book that contains the word “should”.

3.2 — What a real alternative needs

For an alternative to count in this series, it has to pass three tests. If it fails any of them, I have to soften the charge, and I will say so.

Test one: somebody actually proposed it, at the time. Not afterwards. A road that only became visible in 1995 was not available in 1962, and blaming people for missing it is a cheap way to feel clever. If a named person wrote it down at the time and was overruled, the charge is real. Much of the time, somebody did.

Test two: it was politically possible. A Prime Minister with a small majority and a hostile coalition partner cannot do everything a Prime Minister with four hundred seats can. This cuts both ways, and it is worth noticing which way. Congress spent long stretches with enormous majorities. “We could not have done it” is a much weaker defence when you hold three-quarters of Parliament, and I will hold them to that.

Test three: somebody comparable did it and it worked. Not a rich country. Not a small one. A place with roughly similar problems at roughly the same time. This is the strongest kind of evidence available for a road not taken, and it is why comparison matters so much in the chapters ahead.

3.3 — The four honest comparisons

There are four ways to test an alternative in this series without pretending to run history twice. Each has a weakness. Used together they are strong.

Other countries at the same starting line. In 1950, a number of countries were about as poor as India and had similar problems. Where they are now is evidence about what was possible. The weakness is that no two countries are alike, and someone can always name a difference. Watch for whether the difference named actually explains the gap, or is just a difference.

Other Indian states. This is much stronger, and it is badly under-used. Indian states shared a constitution, a currency, a central bank, a foreign policy and a legal system. When two of them diverge sharply, the explanation has to be something local, and the list of candidates is short. Part Five and the state ledger that runs through this series live here.

Before and after inside one place. A rule changes on a date. What happened to the same population afterwards? The weakness is that other things also changed. The strength is that the population is the same people.

What the government itself predicted. This is the most underrated of the four and it is nearly unanswerable. When a government announces a programme it usually states a target, and those statements are in the record. You are then not comparing reality with your opinion. You are comparing reality with their own stated expectation. Nobody can complain that the standard is unfair, because they set it.

HOW WE ACTUALLY KNOW THIS

The fourth method leaves a particularly good paper trail in India, because of how the system works. A programme is announced with a target. Money is allocated in a budget document. The Comptroller and Auditor General later checks what was spent against what was allocated. Parliamentary committees take evidence and publish reports. Ministers answer written questions with figures.

None of these documents was created to embarrass anybody. That is exactly why they are useful. A record kept for the machine's own purposes has no stake in the argument you are having with it forty years later.

What it cannot show: money spent is not the same as work done. A road can be paid for and never built. The audit tells you the cheque cleared, not that anyone drove on it.

Where I can find a physical check on the outcome, I use it, and where I cannot, I say so.

3.4 — The trap that catches everyone

The trap is hindsight, and it is worth understanding properly because it is not what people think it is.

Hindsight is not knowing how things turned out. That is unavoidable. Hindsight is **forgetting that you know**, and then feeling that the outcome was obvious at the time. It converts a genuinely difficult decision into an idiotic one, and it makes the person judging feel considerably cleverer than they are.

The test I use throughout this series is simple. Before I criticise a decision, I try to write down what was on the desk. What was known, what was rumoured, what was unknown, and who was saying what. If the case still holds once the desk is reconstructed, the case is real. Several charges I expected to make did not survive that test, and Chapter Nine lists them.

But there is a mirror version of this trap and it is used far more often, so guard against it in the other direction too. It is the claim that *nobody could have known*. That claim is checkable, and it is frequently false. Somebody usually did know. The interesting question is what happened to them.

THE HIDDEN ASSUMPTION

Underneath every “they should have done X” sits a belief that neither side examines: **that there was a menu.**

The critic and the defender both picture a room where options were laid out and the wrong one was chosen. They disagree about which option was right. They agree completely that choosing was happening.

Sometimes it was not. Governments inherit commitments, treaties, staff, budget lines and voters, and much of what looks like a decision is a thing that had already effectively been decided by a chain of earlier commitments nobody now remembers making. The meeting happens. Papers are circulated. But the room has one live option in it and everyone present can feel that.

This cuts against me more often than it cuts for me, so I want it stated in my own book rather than left for someone else to point out. Where I can show a live choice — a warning on the file, a minister overruled, a note recording an alternative — the charge is strong. Where I cannot, I am describing a current, not a decision, and I will use the weaker word.

The uncomfortable follow-up, which I will return to in Part Nineteen: if a great deal of government is current rather than choice, then a very large part of what every country argues about is theatre. That is not a comfortable conclusion for a nineteen-part book of blame.

So the standard for the rest of this series is set here, and it is deliberately hard to meet. Before I call something a blunder, I owe you the road not taken, the person who pointed at it, and some evidence that walking down it was possible. Where I have all three, the charge is heavy. Where I have two, it is a criticism. Where I have one, it is an observation, and I will use the smaller word.

REMEMBER THIS

Every accusation contains a hidden claim about a world that never happened. **A charge that names its alternative is serious. A charge that does not is disappointment with confidence.**

An alternative counts here only if **somebody proposed it at the time, it was politically possible, and somebody comparable did it.** Congress held huge majorities for long stretches, which makes “we could not have” a weak defence in their case.

The strongest test in this book is the government’s own stated target. **Nobody can call the standard unfair when they set it themselves.**

CHAPTER FOUR

Where the Evidence Comes From

Six kinds of source hold up this series. Each is good at one thing and blind to another. The blindness is the part worth learning.

4.1 — The six sources

Anybody can assert. What separates a book you can use from a book you cannot is whether it tells you where each thing came from. So here is the whole toolbox, in order of how much weight I put on it.

Audit reports. India has an office whose only job is to check what the government did with money. It reports to Parliament, not to the government. Its reports are dry, numbered and specific.

WORD BOX

Comptroller and Auditor General, usually shortened to CAG: the constitutional auditor of India. Its job is to examine government spending and report to Parliament on whether the money went where it was supposed to go, and whether the rules were followed.

The important part is who it answers to. The CAG is not part of the government it audits and cannot easily be removed by it. That independence is exactly why its reports have started so many political fights.

Why it matters here: several of the largest charges in this series began as a paragraph in a CAG report, and Chapter Seven is about how easily those paragraphs get misread.

Commissions of inquiry. When something goes badly wrong, a government may appoint a judge to investigate it. The judge takes evidence, questions officials and publishes findings.

Court judgments. The strongest single kind of evidence in this book, because a court has heard both sides, tested the evidence, and taken responsibility for a conclusion in public.

Parliamentary records. Debates, questions and answers, committee reports. Grudging, precise, and produced under an obligation not to lie.

Official statistics and files. Censuses, surveys, budget papers, and material released years later under the right-to-information law or through declassification.

Memoirs and journalism. The people who were in the room, and the people who were outside the door at the time. The most vivid and the least reliable.

4.2 — What each one is blind to

Now the part that most books skip.

An audit is blind to whether the work was done. It follows money. If the money left correctly and arrived correctly, the audit is satisfied. Whether the road exists is a different question, and the CAG usually cannot answer it.

A commission of inquiry is blind to whatever it was not asked about. Its terms of reference are written by the government that appointed it. This is the quietest and most effective way to control an investigation: you do not have to interfere with a judge if you have already decided the question. Watch the terms of reference before you read the findings, always.

A court is blind to everything outside the specific charge. A criminal court asks one question: did the prosecution prove this offence against this person beyond reasonable doubt? It does not ask whether the policy was a disgrace. An acquittal answers the narrow question and is routinely reported as answering the wide one.

Parliamentary answers are blind by design. A minister answers what was asked, in the narrowest reading available. The skill of reading them is noticing the question that was not asked, or was asked and slid past.

Statistics are blind to what nobody counted. This is the largest blindness in the book and Chapter Seven returns to it. Whole categories of Indian suffering have no number, not because they are small but because no office was ever given the job of counting them.

Memoirs are blind to the author. Everybody is the reasonable person in their own account. Memoirs are best used for a specific and limited purpose: what was known in the room, and when. They are almost worthless for who was to blame.

IN REAL TERMS

Think of six people describing a house fire.

The accountant can tell you exactly what the insurance paid, and nothing about the flames. The judge can tell you whether one named person lit it, and nothing about the wiring. The auditor can tell you the fire extinguisher was purchased, but not whether it worked. The clerk can tell you what the fire brigade was asked, but not what it was not asked. The statistician can tell you how many houses burned in districts where somebody was counting. And the neighbour, who saw everything, was also in a dispute with the owner about a wall.

You do not pick one. You put all six together and you watch where they disagree, because the disagreement is usually where something is buried.

4.3 — The commission that was recalled

One episode teaches more about Indian official evidence than any general explanation, so here it is in full.

In 1977, after the Emergency ended and the government that imposed it lost power, the incoming government appointed a Commission of Inquiry under Justice J.C. Shah, a former Chief Justice of India, to examine what had been done during those twenty-one months.

The Commission worked. It held around a hundred sittings. It examined roughly forty-eight thousand papers. It produced three volumes running to about five hundred and twenty-five pages. The first interim report, in March 1978, covered how the Emergency was declared and how the press was silenced. The second covered police action, including the demolitions and firing at Turkman Gate in Delhi. The final report, on 6 August 1978, covered prisons, torture, and the forced sterilisation programme.

Its central finding was not vague. The laws allowing detention without trial had not been misapplied by accident. They had been used deliberately against political opponents. The Commission recorded that decisions to arrest and release people were taken on political grounds to favour the ruling party, and that using the police that way is a certain route to destroying the rule of law. It also found that most senior civil servants carried out orders they themselves believed were improper.

Then two things happened. Special courts were set up in 1979 to try Emergency cases, but the government that created them fell in July of that year. When the previous Prime Minister returned to power in January 1980, the Supreme Court found those special courts had not been properly constituted. No trials followed.

And the report itself began to disappear. Copies were withdrawn. It vanished from the shops where official publications were sold. For years afterwards, researchers looking for it were told that no complete copy survived in India, and that the surviving sets were in a library in Australia and another in London. A former Member of Parliament, Era Sezhiyan, eventually reassembled and republished the full text from his own collection, under a title that tells you the whole story: *Shah Commission Report: Lost and Regained*.

The journalist Kuldip Nayar, who had checked the archive while the earlier government was still in office and been assured the records were intact, later found the National Archives reporting that it held nothing — although the Commission had stated on its final day that it was depositing everything there.

HOW WE ACTUALLY KNOW THIS

The physical evidence for that last paragraph is unusual, and worth naming precisely. It is an absence. There is a body that said it deposited records, an archive that says it received none, and a set of published volumes that stopped being obtainable in the country that produced them.

Three independent things point the same way here: the recollection of a journalist who checked before and after, the experience of researchers who could not find copies, and the fact that surviving sets turned up in foreign libraries rather than Indian ones.

What it cannot show: an absence does not name the hand. No document orders the destruction, and I have not seen one. What can be said with confidence is that the report became unobtainable in India after a particular government returned to power, and that this was not an accident of shelving.

4.4 — When the missing record is the finding

That episode establishes a rule I will use for the rest of this series, and it is one of the most useful ideas in this whole book.

When a government had the power to count something and chose not to, the absence is a finding, not a gap.

States count what they intend to manage. A census, a register, a survey — each one exists because somebody decided the number mattered. So when a state that counts crop yields by district and cattle by village has no figure at all for how many people died in a particular week, that is not an oversight. Somebody decided.

You will meet this repeatedly. Deaths in a police operation with no tally. Sterilisations recorded as totals with no record of consent. A displacement with no register of the displaced. In each case, ask a question the official history does not: who would have been embarrassed by the number, and did they have the power to prevent it existing?

THE HIDDEN ASSUMPTION

Everyone who argues about Indian history — every side, every time — assumes something about the documents: **that a record is a record of what happened.**

It is not. A record is a record of **what an institution wrote down about itself, for its own purposes, at the time.** Those are different things and the gap between them is not random.

Consider what leaves a trace. Money leaves a trace, because money has to be accounted for. Orders leave a trace, because subordinates want cover. Anything the machine had to do in order to keep functioning leaves a trace.

Now consider what does not. A conversation. A verbal instruction. A thing everybody understood without being told. A death in a place with no registrar. In one case in this series, we know how many people arrived at a refugee camp mainly because arrivals had to be fed, and feeding required a count. The record of their survival exists as a by-product of a ration ledger.

So the archive is not a neutral window. It is systematically better lit on the side of the state, and systematically dark on the side of everyone the state was doing things to. Both the defenders and the critics quote it as though it were a window, and both are wrong in the same direction — because the material that survives is the material the institution produced about itself.

This weighs against my own book too, and I would rather say it here than have it said to me. Where my evidence is entirely the state's account of its own conduct, I will mark it, and you should discount it accordingly.

One question hangs over all of this, and it is worth settling before the series starts leaning on commission reports in part after part.

THE ARGUMENT — ARE COMMISSIONS OF INQUIRY EVIDENCE, OR THEATRE?

India has appointed a great many judge-led inquiries into disasters, killings and scandals. Very few have led to anybody being punished. So what are they worth?

THEATRE, MOSTLY

Their real function is to absorb public anger and convert it into waiting. A commission is appointed while feeling is high, reports years later when nobody is watching, and its findings carry no force at all — a government may simply decline to act on them, and routinely does. Several have reported after the officials they criticised had already retired with full honours. Judged by what changed afterwards, they are a machine for the passage of time.

EVIDENCE, WHATEVER THEIR EFFECT

That confuses two different things. A commission can fail completely as a remedy and still succeed as a record. It has powers no journalist has: it summons officials, takes evidence on oath, and compels the production of files. That nobody was punished is a finding about the political system, not about the quality of the document. Half the solid material in this series exists only because somebody with the power to compel asked a question.

Where things stand: the second side is right, and this book depends on it being right. But the first side identifies something the second does not answer: a body appointed by a government, with its questions written by that government, reporting to that government, is not independent in the way a court is. The correct weight is high for what it found and low for what it was permitted to look for.

What would settle it: comparing what commissions concluded with what later court proceedings and released files established, across many cases. Where both exist, they agree more often than the cynical view predicts.

Why people care so much: because appointing an inquiry is the cheapest thing a government under pressure can do, and everybody involved knows it. The demand for one and the granting of one are frequently the same negotiation.

The working rule for this series, then. A commission finding is strong evidence of what happened and weak evidence of what mattered, because the second question was settled when the terms of reference were drafted.

REMEMBER THIS

Six sources: **audits, commissions, courts, parliament, statistics, memoirs**. Each is good at one thing and blind to another, and the blindness is the part that matters.

A commission is controlled not by pressuring the judge but by **writing the questions**. Read the terms of reference before the findings, every time.

When a state that counts everything has no count of something, somebody decided that. The missing number is a finding, not a gap.

CHAPTER FIVE

The Grades

Every serious charge in nineteen parts carries a label saying how solid it is. Here is the label, and why it is the most important thing in the book.

5.1 — Six levels

The single most common failure in political writing is treating all accusations as the same weight. A conviction and a rumour appear in the same paragraph, in the same font, joined by the word “and”.

So every load-bearing claim in this series carries one of six grades, printed in the text where you can see it.

GRADE	WHAT IT MEANS	HOW MUCH WEIGHT
Convicted	A court tried somebody for this and convicted them.	Highest available.
Court-found	A court made the finding, but no conviction followed, or the matter is still live.	Very high, with the caveat stated.
Commission-found	A judge-led inquiry found it. The commission is named.	High, subject to its terms of reference.
Audited	The CAG, a parliamentary committee or a comparable body flagged it. Never tested in court.	Moderate. Establishes a problem, not a crime.
Alleged	Publicly alleged, never tested, no finding either way.	Low. Reported as an allegation and nothing more.
Fabricated	Positively shown to be false.	None. Goes in Chapter Six, not the charge sheet.

Two rules govern the grades and I will hold to both.

First, **the grade appears next to the claim**, not hidden in an appendix nobody reads. If a thing is only alleged, you will see the word “alleged” at the moment you meet it.

Second, **the grade can move, and when it moves the whole journey goes in.** Charges do not sit still. A thing can be audited in one year, prosecuted in the next, and thrown out in the year after that. Reporting only the stage that suits me would be exactly the dishonesty this book is built to avoid.

WORD BOX

Acquittal: a court's decision that the prosecution did not prove its case against a particular person, to the standard criminal law requires.

Notice what it does not say. It does not say nothing happened. It does not say the policy was fine. It says: *this specific charge, against this specific person, was not proved to this specific standard.* A great deal of confusion in Indian public argument comes from treating the narrow verdict as a wide one.

Why it matters here: the largest financial scandal in this series ends in an acquittal, and both sides describe that acquittal wrongly.

5.2 — The worked example: one allocation, five verdicts

In 2008 the government of the day allocated licences and radio spectrum for mobile telephone services. Spectrum is the invisible thing your phone uses to talk to a tower. There is a limited amount of it, the government owns it, and it is worth an enormous amount of money.

The licences were given out on a first-come, first-served basis at prices set years earlier, rather than being auctioned. What followed is the single best illustration in modern India of why grades are necessary, because the same set of facts has now produced five different institutional answers.

In November 2010, the CAG estimated the loss to the exchequer at about ₹1.76 lakh crore. This is the number everybody remembers and it is an **AUDITED** figure, not a judicial one.

The investigating agency itself disagreed with that number. When the CBI filed its charges, it put the loss at about ₹30,984 crore — roughly a sixth of the auditor's figure. Same event, same files, two official arms of the same state, and a gap of more than one lakh crore rupees between them. That gap is not fraud on anybody's part. It is a difference of *method*, and Chapter Seven explains what the two methods were.

In February 2012, the Supreme Court cancelled all 122 licences that had been issued. That is a **COURT-FOUND** outcome and it is a heavy one. A court does not cancel a hundred and twenty-two licences because the paperwork was untidy.

In December 2017, a special court acquitted all seventeen accused, including the former telecommunications minister. That is also **COURT-FOUND**, and it points the other way.

In March 2024, after six years and around thirty hearings, the Delhi High Court granted the CBI permission to appeal against those acquittals, saying that there were contradictions in the trial court's judgment that required deeper examination and a fresh look at the whole body of evidence. The matter is live.

And separately, when one of the companies involved asked for its licence fee back on the grounds that its promoters had been acquitted, the Supreme Court refused. A bench presided over by Justice D.Y. Chandrachud held that the acquittal did not entitle the company to a refund, and used the words fraud and sham transactions about how the licence had been obtained.

THE ARGUMENT — WHAT DOES THAT ACQUITTAL ACTUALLY MEAN?

Both political camps in India describe the 2017 acquittal, and both descriptions are wrong. Here are the two serious versions.

THE ACQUITTAL SETTLES IT

A criminal court heard the case in full and found the prosecution had not proved it. That is what courts are for. Everything else — the auditor's estimate, the newspaper coverage, the political campaign built on it — was noise around a case that collapsed when it was finally tested by someone whose job is testing it.

THE ACQUITTAL SETTLES VERY LITTLE

An acquittal answers one narrow question: was this offence proved against these people beyond reasonable doubt. It is silent on whether the allocation was a disgrace. And the surrounding record does not point the same way: the Supreme Court cancelled every licence, a later bench used the word fraud about how one was obtained, and a High Court has said the acquittal judgment contains contradictions needing deeper examination.

Where things stand: the second side is right about what an acquittal is. But the first side is right that no individual has been proved guilty of a crime here, and that matters enormously to the individuals concerned. The honest summary is: *the policy is condemned by the record, and the criminal charges against named people are not proved and are under appeal*. Those two sentences are both true and most people will only quote one.

What would settle it: the appeal. It was admitted in 2024 and has not been decided.

Why people care so much: because ₹1.76 lakh crore became the number that ended a government. If it was never a real loss, one side has an enormous grievance. If it was, the other side does. Neither camp can accept a verdict that leaves them with only half of what they want.

Five institutional answers, one set of facts. Now notice what a partisan writer does with this. He picks the one that suits him and stops. The party's critics quote the auditor's figure and the licence cancellation, and go quiet after 2017. The party's defenders quote the acquittal, and go quiet before 2012 and after 2024.

You are going to get all five, every time, in this series. Not because I am being fair-minded, but because the full arc is more damaging than any single piece of it. It shows a system in which an allocation can be judicially cancelled in its entirety and nobody is responsible for it.

REMEMBER THIS

Six grades: **convicted, court-found, commission-found, audited, alleged, fabricated**. Every serious claim in this series carries one, printed where you can see it.

Charges **move** up and down over the years, and the whole journey goes in. Quoting only the stage that suits the writer is the standard trick and it is the one this book is built to refuse.

An acquittal answers a narrow question, not a wide one. In the spectrum case, the policy is condemned by the record and no individual is proved guilty. Both sentences are true. Almost nobody quotes both.

CHAPTER SIX

What Was Made Up

A chapter of a book attacking Congress, spent demolishing attacks on Congress. It is the most useful chapter here, and by the end you will see why.

6.1 — Why an angry book needs this chapter

You have been sent these stories. Everyone in India has. They arrive as forwarded messages, as videos with dramatic music, as confident paragraphs under a photograph.

Most people sorting them do it by feel. If a story fits what you already believe, it goes in the true pile. That method has an obvious flaw, and there is a better one, which is the whole point of this chapter: **check the ones you want to be true first**. Those are the ones your judgment is worst at.

Here is the argument for spending a chapter on this in a book whose purpose is to prosecute.

The false stories about Congress are, right now, the most effective protection Congress has. Not their spokesmen. Not their history. The lies told about them.

Every time somebody repeats an invented story and it gets exposed, the party gets a free win. They get to stand up, correct the record, and say — accurately — that their opponents make things up. And the person watching learns a lesson that is much broader than the single story: that accusations against this party are the sort of thing that turns out to be false.

The Emergency was real. November 1984 was real. The forced sterilisations were real. Those things do not need a single invented story standing next to them, and every invented story standing next to them does them damage.

6.2 — The case that was invented

Start with the most serious, because it is the one that circulates hardest.

There is a widely forwarded claim that Rahul Gandhi faced a rape case. It refers to a real legal proceeding, which is why it survives. The proceeding was a fabrication and a court said so in unusually strong terms.

A petition was filed by Kishore Samrite, at the time a former Member of the Legislative Assembly from a rival party, alleging that a young woman had been confined and assaulted. The Allahabad High Court dismissed it. The petitioner then took the matter to the Supreme Court, complaining about the manner of the dismissal.

In 2012, a Supreme Court bench of Justices B.S. Chauhan and Swatanter Kumar went through the entire body of evidence rather than disposing of it on procedure. It concluded that the petition was based on falsehood and driven by malice and political vendetta, and that the allegation had no substance and not an iota of evidence behind it. The court imposed a cost of ₹10 lakh on the petitioner. Half was directed to Gandhi. The other half was directed to the family of the young woman named in the petition, whose reputation the case had also damaged. Investigators had been unable to locate that family at all.

Grade: **FABRICATED**. Not unproven. Not doubtful. Judicially demolished, with costs, by a bench that read the whole file specifically in order to say so.

HOW WE ACTUALLY KNOW THIS

The evidence here is a reported Supreme Court judgment. That is close to the strongest kind of document available for a claim like this, and it is strong for a particular reason: the court did not have to do it.

The easy route was to dismiss the appeal on a technicality. Instead the bench went into the merits, examined the material, and recorded findings about the petition's origin and motive. Courts do that when they want something on the record.

A second thing worth noticing. The costs were split, and half went to the family of the woman named. A court awarding money to somebody who was not even a party, on the grounds that a false case damaged her too, is telling you what it thought of the petition.

What it cannot show: a court can find a case unproved and malicious. It cannot prove a negative about the world. The finding here is as strong as a finding of falsity gets, and I am stating it as exactly that.

One further trap, and it catches careful people. That name is a very common one in India. Searching it returns unrelated criminal proceedings involving entirely different private individuals who happen to share it. Those results then get screenshotted and circulated as though they were about the politician. If you are checking a claim about a well-known name, check that the document in front of you is about the person you think it is about.

6.3 — The surname that was invented

The second story is older and has spread further. It holds that Indira Gandhi's husband Feroze was really a Muslim named Feroze Khan, and that the family disguised itself behind a borrowed surname.

The record here is documentary and it is dull, which is what makes it useful. He was born Feroze Jehangir Ghandy on 12 September 1912, at the Tehmulji Nariman Hospital in Bombay. His father, Jehangir Faredoon Ghandy, was a marine engineer working for the firm Killick Nixon. His mother was Ratimai, born Commissariat. The family were Parsis who had moved to Bombay from Bharuch in Gujarat. He was not related to Mohandas Gandhi. He changed the spelling of his own surname from Ghandy to Gandhi during the freedom movement, in tribute. When he died in 1960 he was cremated, and his ashes were placed in the Parsi cemetery in Allahabad.

Grade: **FABRICATED.**

It is worth understanding why this particular invention has such a long life. It does something no true charge can do. It converts a political argument into a question of secret identity, and it offers the listener the pleasure of having seen through a disguise. Real evidence cannot compete with that feeling, which is precisely why the feeling should make you suspicious.

WORD BOX

Parsi: a member of a small Indian community descended from Zoroastrians who came from Persia, mostly over a thousand years ago, and settled largely in Gujarat and Bombay.

Zoroastrianism is its own religion, older than both Christianity and Islam, and it is not a branch of either. Parsi names often sound Persian, which is where the confusion in this story starts and, for some who repeat it, where it conveniently stays.

Why it matters here: the entire force of the Feroze Khan story depends on the listener not knowing this one fact about a community of a few tens of thousands of people.

6.4 — The contested one

Not everything in this category is a clean fake. Some claims are real events wrapped in a disputed description, and those need a different treatment.

In 2019 the Prime Minister said that Rajiv Gandhi had used the aircraft carrier INS Viraat as a personal transport for a family holiday, citing a magazine article from 1988.

The trip happened. What it was is contested, and the contest is unusually well documented, because the officers involved are alive and spoke.

Vice Admiral Vinod Pasricha, who was commanding the ship at the time, said the claim was wrong. Admiral L. Ramdas, then the Southern Naval Commander and later Chief of the Naval Staff, said the Prime Minister of the day was travelling on official business, to chair a meeting of the Islands Development Authority, and that no foreigners were aboard and no parties were held. Wajahat Habibullah, who was the administrator of the islands then, supported that account. One other retired officer, Commander V.K. Jaitly, publicly took the opposite view.

Grade: **ALLEGED**, with the official record against it. The voyage is not in dispute. The characterisation is, and the weight of first-hand testimony runs against the version that circulates.

This one goes in the book, in Part Twelve, with both sides exactly as stated. It will not carry weight, and it should not, because there is a great deal about that decade that is documented far better.

THE ARGUMENT — SHOULD A BOOK REPEAT A LIE IN ORDER TO KILL IT?

This chapter has just restated three false or contested claims in order to knock them down. There is a real case that doing so is a mistake.

DON'T REPEAT IT

People remember claims and forget corrections. Weeks later the reader retains “there was something about a case” and has lost the part where a court called it a fabrication. Repetition is what gives a false claim its power, and a debunking is still a repetition, delivered to a new audience with the author’s credibility attached.

REPEAT IT AND KILL IT

The claims are already everywhere. The reader has already met them. Silence does not un-send a forwarded message; it just leaves the reader with the false version and no correction. And a book that quietly avoids the famous accusations looks like it is dodging them, which costs it more than the repetition does.

Where things stand: both effects are real. The first side is describing something well established about how memory works. The second is describing the actual situation, which is that these stories are not obscure and cannot be starved of oxygen by one author's silence.

What would settle it: knowing whether readers of this chapter later repeat the claims or the corrections. That is measurable in principle and I have not measured it.

Why people care so much: because everyone arguing about political misinformation is really arguing about whether ordinary people can be trusted with a correction. Both sides here are polite about it. Neither says it out loud.

6.5 — Why the lies are the party's best asset

Put the three cases side by side and the pattern is visible.

Each of the fabricated stories is about identity or private life. None is about a policy, a file, a budget line or a decision. That is not a coincidence. Invented stories go where evidence cannot follow — into secret parentage, private conduct, hidden motive — because those are the places where nobody can produce the document that ends the argument.

Which means the invented stories are competing with the real ones for the same limited attention. Every hour spent on a surname is an hour not spent on the Shah Commission. And the party knows this perfectly well. Answering a fabrication is the easiest day's work a spokesman ever has.

So the discipline of this chapter is not decency. It is strategy. If you want a charge to stick, you have to hand your opponent nothing to knock down. Every false brick is a hole, and the hole is the only part anyone will use.

REMEMBER THIS

Three widely forwarded stories, checked: the rape case was **judicially demolished with costs** in 2012; the Feroze Khan surname story is **documentably false**; the warship trip is real but its description is **contested, with the first-hand testimony against the popular version**.

Fabrications cluster around **identity and private life**, never around files and budgets, because those are the places no document can settle.

The lies told about Congress are the best protection Congress has. Each one gives them an easy correction to make and teaches the listener that charges against them turn out to be false. Check the stories you want to be true first.

Check the stories you want to be true first. That is where your judgment is worst.

CHAPTER SEVEN

How Numbers Lie

Nobody in this argument invents figures. They do not have to. There are three easier ways, and all three are legal.

7.1 — Lakh, crore, and the size of a human head

Start with something that sounds too basic to matter and is in fact the root of the whole problem.

A human being cannot picture a large number. Not “finds it difficult” — cannot. Past a few thousand, the picture in your head stops changing. A crowd of ten thousand and a crowd of ten lakh produce the same mental image, which is roughly “a lot of people”.

This is not stupidity and it is not a lack of education. It is how the equipment works. And every large figure in political argument is aimed straight at this weakness.

WORD BOX

Lakh: one hundred thousand. Written 1,00,000. **Crore:** ten million, or one hundred lakh. Written 1,00,00,000.

So a **lakh crore** is one lakh multiplied by one crore. That is a one followed by twelve zeros. In the international system it is called a trillion.

Why it matters here: the difference between “crore” and “lakh crore” is a factor of one hundred thousand, and in speech it is one extra word. Political argument in India runs on figures whose scale most listeners cannot hold, delivered at speed by people who know that.

The defence against this is mechanical, and you can apply it to any figure you meet, in this book or anywhere else. Divide it by the number of people it concerns. A national total means nothing to anybody. The same total per person means something instantly, because you already know what money is worth to a person.

IN REAL TERMS

Take the most famous number in this book: ₹1.76 lakh crore, the auditor's estimate in the spectrum case.

India had roughly 121 crore people at the time. Divide one by the other and you get about **₹1,450 for every man, woman and child in the country**. A family of five, ₹7,250.

Now the number has a body. You can picture what ₹7,250 was to a household in 2010 — a month's earnings for a great many of them. That is what "1.76 lakh crore" means, and it is why the figure ended a government.

Hold on to that conversion, because the next section is about whether the ₹1,450 was ever actually in anybody's pocket.

7.2 — Money that was lost, and money that was never made

Here is the first of the three legal ways to mislead with a figure.

In the spectrum case, two arms of the same state produced two numbers about the same event. The auditor said about ₹1.76 lakh crore. The investigating agency, filing actual criminal charges, said about ₹30,984 crore. That is a gap of more than one lakh crore rupees, and neither body was lying.

They were answering different questions.

The auditor asked: *what could this have raised, if it had been sold the way such things are sold when the state is trying to get the best price?* To answer that, you need a benchmark, and the benchmark available was what comparable spectrum fetched later, when it was auctioned. Apply that price backwards across everything that was given away cheaply, and you get an enormous figure.

The agency asked a narrower question: *what specific sums can we trace, tie to specific transactions, and prove in a courtroom?* That produces a much smaller number, because most of the auditor's figure is not a sum that moved. It is the gap between what happened and what might have happened.

WORD BOX

Presumptive loss, also called notional loss: not money that was taken, but money that could have been earned and was not.

If you own a shop and rent it to your cousin for ₹5,000 a month when the market rate is ₹20,000, nobody stole ₹15,000 from you. But you are ₹15,000 a month worse off than you could have been, every month, by your own choice.

Why it matters here: it is a completely legitimate way for an auditor to measure a decision, and a completely illegitimate way to describe a theft. The word “loss” is doing two different jobs and the speaker rarely tells you which.

Both camps then used this gap exactly as you would expect. The party’s opponents quoted the large number as though it described a robbery. The party’s defenders quoted the small number as though the large one had been made up.

The honest position is unglamorous. The presumptive figure is a real measure of a real decision — the state gave away a scarce public asset far below what it later proved to be worth, and the subsequent auctions demonstrated that beyond argument. It is not a measure of money in somebody’s pocket. Both of those sentences are true, and there is no version of this story that lets either side keep only the half it likes.

7.3 — Lines that move, and series that get rebased

The second technique is subtler and it works on the honest and dishonest alike.

When a government says poverty fell, it is comparing the number of people below a line. That line is set by a committee, using assumptions about what a person needs. Change the assumptions and the number of poor people changes, without a single person’s life changing at all.

India has redrawn that line more than once. Each redrawing had a defensible technical reason. Each also produced a figure that could be quoted for or against a government, depending on which pair of years you chose.

The same problem affects the national income figures. The method for calculating them has been revised several times, with new base years and new data sources. Each revision was defended by professionals for professional reasons. Each also made some earlier period look better or worse than it had looked the day before.

The rule I use for this series is straightforward. **Where a comparison depends on which method was used, I say which method, and I say what happens under the other one.** Where the answer flips depending on the method, that is the finding, and it goes in as one.

HOW WE ACTUALLY KNOW THIS

The most reliable Indian numbers in this series share a family resemblance. They are counts that some office had to make in order to do its own job, where the count itself had no political stake at the moment it was made.

Crop procurement records exist because grain had to be paid for. Ration registers exist because people had to be fed. Electoral rolls exist because votes had to be counted. Court records exist because cases had to be listed. None of these was created to settle an argument, which is exactly why they can.

The least reliable numbers are the opposite: figures produced specifically to describe how well a programme is going, by the body running the programme, in a document intended to be read by the people funding it.

What this cannot show: routine records are honest about what they measure and silent about everything else. A ration register tells you who was fed. It does not tell you who was turned away, and it never will.

7.4 — The third technique, and the biggest

The third way to mislead with numbers is not to have any.

Chapter Four set the rule: when a state that counts everything has no count of something, somebody decided that. Here is the arithmetic consequence.

An argument between two people who both have figures is a real argument. It can be settled. An argument where one side has a figure and the other side has testimony is not a fair fight, and the side with the figure wins by default, regardless of whether they are right.

This shapes the whole of Indian public memory. The things that got counted — spending, output, votes, procurement — are argued about endlessly and precisely. The things that did not get counted are argued about with adjectives.

THE HIDDEN ASSUMPTION

Both sides of every numerical fight in Indian politics share one belief and never state it: **that the number is measuring the thing they are arguing about.**

Watch a spectrum argument. One camp says ₹1.76 lakh crore. The other says ₹30,984 crore. They fight about the size. Neither asks what either figure is a measurement of — and they are measurements of two entirely different things, one hypothetical and one transactional. The fight is conducted as though the disagreement were about arithmetic. It is about definition, and definition is never on the agenda.

The same thing happens with poverty. Two people argue about whether poverty fell from thirty-seven per cent to twenty-two per cent. Both accept, without discussion, that “poverty” is a thing with a percentage. It is a line drawn by a committee. Move the line four rupees and tens of millions of people cross it without eating differently.

Here is why this matters more than it looks. A number that everybody accepts as the measure becomes the target. Once “the poverty figure” is the thing governments are judged on, the cheapest way to succeed is to affect the figure rather than the condition. And the cheapest way to affect the figure is to argue about the line.

I am going to use numbers throughout this series because the alternative is adjectives. But when I put a figure in front of you, the question I want you to ask is not “is it big” — it is **what is this counting, and who chose what it counts.**

None of this is an argument for distrusting figures. It is an argument for asking two small questions before you let one move you. What is it a count of, and did anybody have an interest in the counting. Most political numbers survive both questions comfortably. The ones that do not tend to be the famous ones.

REMEMBER THIS

Past a few thousand, **you cannot picture a number.** Every large figure in politics is aimed at that limitation. Convert it into people, wages or weeks before you let it persuade you.

Presumptive loss is not theft, and it is not nothing either. It measures a decision, not a transfer. Both camps quote the half that suits them.

The three legal ways to mislead: **use the wrong kind of loss, move the line, or have no number at all.** The third is the biggest, because a side with testimony always loses to a side with a figure.

CHAPTER EIGHT

The Shape of the Charge

Two hundred items across nineteen parts, and they fall into four families. Knowing the families tells you what to watch for.

8.1 — Four families of failure

A list is not an argument. Two hundred separate charges, delivered one after another, produce a reader who is exhausted rather than convinced.

So here is the structure underneath the list. Everything in this series belongs to one of four families, and each family has its own kind of evidence and its own kind of defence.

8.2 — The first family: the rules themselves

This is the family that gets the least attention and does the most lasting damage, because it changes not what a government did but what any future government is able to do.

It includes the amendments to the constitution, particularly those affecting speech and the courts. It includes the repeated dismissal of elected state governments by the centre. It includes the Emergency, which is the largest item in this series and the only occasion on which the constitution was effectively suspended. It includes the treatment of the judiciary, and the practice of appointing and superseding judges with an eye to their views.

WORD BOX

Article 356: the part of the Indian constitution that lets the central government dismiss an elected state government and rule that state directly. It is usually called President's Rule.

It was written for a genuine emergency — a state where government has actually broken down. Whether it was used that way is one of the central questions of this series. The count is not in dispute and it is large.

Why it matters here: this single provision is the instrument that connects Delhi to every state chapter in the book, and it explains why a national party's failures show up as local disasters.

The defence for this family is always the same and it is always about necessity. The country was fragile. The situation was urgent. The alternative was worse. That defence has to be tested case by case, and the test is whether the emergency described was actually happening. Sometimes it was.

8.3 — The second family: the economy

The largest family by cost and the smallest by drama. It covers the planning system, the permissions regime, the neglect of agriculture in the first two decades, the food crises that followed, the nationalisations, and the four decades during which India grew slowly while comparable countries did not.

It also covers the geography of it, which is Part Five: how central rules decided which Indian states became rich and which were hollowed out.

The defence here is the strongest defence in the whole series, and Chapter Two has already stated it. It deserves to be taken seriously and it will be.

8.4 — The third family: the blood

The hardest chapters to write and the ones where language has to be watched most carefully.

It covers the handling of partition and its aftermath. The war of 1962 and what was known before it. Punjab from 1978 to 1993. November 1984. The North East, including an episode in 1966 that almost no Indian outside that region has heard of. The Naxal

corridor. The security failures that preceded major terrorist attacks. And the communal violence that recurs across the whole period, under governments of every description.

The evidence here is a mixture of commission reports, court judgments, and the testimony of people who were there. It is the family where the missing-count rule from Chapter Four applies most often and most painfully.

8.5 — The fourth family: the money

The family everybody thinks the book is about, and the one I rank last in importance.

It covers the procurement scandals, the allocations, the commissions on defence contracts, the games, the housing, the spectrum, the coal. These are real and several are serious. But a bribe on a contract, however large, is a smaller event than a rule that keeps four states poor for forty years, and this series will keep saying so.

It matters for a different reason than the money. A scandal tells you what the internal culture permitted, who was protected afterwards, and whether the system that was supposed to catch it worked. Those are the questions I will ask of this family, rather than adding up the totals.

THE ARGUMENT — IS THE FAMILY AT THE TOP A CAUSE OR A SYMPTOM?

Congress has been led by members of one family for most of its independent-era history. Everyone agrees on the fact. What it explains is genuinely disputed.

IT IS THE CAUSE

A party organised around a household selects for loyalty rather than for judgment. People who are right at the wrong moment do not rise. Internal correction becomes impossible, because the one person who cannot be removed is the one whose errors matter most. On this reading, the Emergency, the succession, and the long refusal to change economic course all trace to the same structural fact: there was no mechanism by which the leadership could be told it was wrong.

IT IS A SYMPTOM

Look across India. Dynastic succession runs through nearly every major party and almost every state, including parties founded specifically in opposition to Congress. If the pattern is that general, it is not a peculiarity of one family — it reflects how Indian political parties actually work: weak internal institutions, personal networks doing the job of party machinery, and enormous costs of entry for anyone without a name. Blaming one family for a nationwide structure is comfortable and mistaken.

Where things stand: the second side is right that dynasty is general in Indian politics and that this needs explaining rather than assuming. The first side is right that generality does not make it harmless, and that the specific question is whether a party retained any mechanism for removing a leader who was failing. That question is answerable from the record, party by party, and is largely unexamined.

What would settle it: tracking what happened to senior Congress figures who publicly disagreed with the leadership, decade by decade, and comparing that with other parties. The material exists. Nobody has assembled it.

Why people care so much: because “dynasty” is now the shortest available argument in Indian politics, usable without any knowledge of any policy. That makes it valuable to one side and infuriating to the other, and it means the actual question underneath rarely gets asked.

8.6 — The ledger that runs underneath

One thread runs through every part from Part Five onwards, and I want to flag it here because it is the part of this series I expect to be most useful to a reader.

Most accounts of national politics stay national. They discuss a policy as though it happened to India in general. It did not. It happened to particular places, and the places did not receive it equally.

So from Part Five, every part carries a running ledger: which states were affected by the material in that part, and how. Bihar and Odisha appear early and often. Punjab appears as both a beneficiary and a casualty, in that order. Uttar Pradesh appears as the largest state in the country slipping quietly from the middle of the income table towards the bottom of it. The North East appears in places where the national account has a blank.

By Part Nineteen that ledger is a single table, and it answers a question the national story cannot: **if you live where you live, what did this cost you?**

REMEMBER THIS

Four families: **the rules, the economy, the blood, the money**. Each has its own evidence and its own defence.

The money family is the one people expect and the **least** important. A bribe is a smaller event than a rule that keeps four states poor for forty years. Scandals matter for what they reveal about the culture, not for the totals.

A running **state ledger** travels through the whole series, because policies do not happen to a country. They happen to places, and unequally.

CHAPTER NINE

What Would Prove Me Wrong

The defence, at full strength, in its own words. If you are going to stop reading this book, this is the chapter that should make you.

9.1 — Four arguments for the defence

A book that cannot state the case against itself is not a book, it is an advertisement. So here are the four strongest arguments a serious defender of the Congress record would make. Not the weak versions. The ones that give me trouble.

One. It held.

In 1947 India was not a country in any ordinary sense. It was several hundred princely states in various stages of joining or refusing, a partition in progress with millions moving in both directions, more than a dozen major languages, and a population that was overwhelmingly poor and largely unable to read. No democracy that poor had ever survived anywhere. Nothing in the record of the world suggested it would work.

It worked. The country stayed one country. Elections kept happening. Power changed hands when votes said it should — including, crucially, in 1977, when the government that had suspended the constitution held an election and lost it and left. Most of the countries that became independent in that same decade did not manage that once. India's neighbour had its first military coup in 1958 and several more afterwards.

The defender's point is not that this excuses anything. It is that a book listing failures over seventy-nine years has quietly taken the survival of Indian democracy as the background against which failures are measured, when that survival is the single most improbable political achievement of the century, and it happened on Congress's watch.

Two. The comparisons are rigged.

Every argument that India grew too slowly rests on a comparison, and the comparison is usually South Korea, Taiwan or Singapore. A defender would say: look at what you have chosen. Populations a fraction of India's. Far greater ethnic and linguistic

uniformity. Long periods of authoritarian rule in which unpopular decisions could simply be imposed. Enormous strategic aid and security guarantees from the United States for reasons that had nothing to do with economics.

Choose the comparison honestly — large, poor, plural, post-colonial and democratic — and the list of countries India can be compared with is very short, and India does not obviously come last on it.

Three. You are prosecuting three different parties as one.

The front matter of this book already conceded that treating Congress as one continuous actor is a choice. A defender would press much harder on it. The party that won independence, the party that imposed the Emergency, the party that liberalised the economy in 1991 and the party of the last decade have different leaderships, different memberships, different ideas and, in some cases, opposed ones. Convicting a name is not the same as convicting an organisation.

Four. The instruments used to convict them are instruments they built.

This is the argument I find hardest and I want to give it its full weight.

Almost every source in Chapter Four exists because Congress governments created it or left it alone. The auditor's independence is constitutional and was not stripped when its reports became inconvenient. The commissions of inquiry that produced the most damaging findings were appointed under a law those governments passed. The Supreme Court struck down their legislation, repeatedly, and the legislation stayed struck down. The press that exposed the defence-contract scandal of the 1980s was not shut, and the newspaper that led the exposure was not closed.

A defender would say: you are able to write this book because they did not build the kind of state in which this book is impossible. That is not nothing. Look around the region and count how many neighbours produced a comparable set of institutions and then submitted to them.

And the honest counter, which I will make in the relevant parts, is that this argument has one enormous hole in it, and the hole is twenty-one months long. During the Emergency, exactly this list of institutions was suspended, curtailed or bypassed — the press was censored, the courts were packed and overruled by amendment, and the election was postponed. The defence rests on a record of restraint that was itself broken, deliberately, by the same party, when it became inconvenient.

9.2 — The tests I have set myself

Those four arguments are why this series carries obligations rather than intentions. Four of them, stated here so you can hold me to them across nineteen parts.

Every serious charge carries a grade. If you find a claim in this series with no grade and no source, that is a defect and you should treat it as one.

Every Argument box gives the other side its genuinely strongest case. Not the version I find easy to beat. If a defender of Congress reads one of those boxes and does not recognise their own argument in it, I have failed at that box.

Where the defence wins, I say the defence wins. There are items I expected to include which did not survive contact with the record, and there will be more.

The second series happens. Part Eighteen compares, and a separate series audits the government of 2014 onwards on the same terms.

9.3 — What I would have to retract

Here is what would actually falsify the argument of this series, as distinct from irritating me.

If it turned out that the pattern of failures had no pattern — that the items are simply what any government accumulates over fifty-four years, at roughly the rate any comparable government accumulates them — then the series would be a long list rather than an argument, and I would have to say so.

If the state-by-state ledger showed no relationship between central decisions and state outcomes — if the poor states were poor for reasons that have nothing to do with anything decided in Delhi — then Part Five collapses and a good deal of the rest weakens with it.

If the internal record showed that the warnings I expect to find were not there — that nobody in the room said “this will not work”, and the alternatives really were invisible at the time — then Chapter Three’s tests turn most of these charges from blunders into misfortunes.

I do not expect any of those. But I have written them down before starting, which is the only way that sentence means anything.

THE HIDDEN ASSUMPTION

Now the one turned on this book, and it is the most serious problem with the entire project.

Everyone who reads a book like this — and everyone who writes one — assumes that **a list of failures is a judgment of a government.**

It is not. A list of failures is a list of failures. To be a judgment it would need a denominator: how many decisions were taken in total, of which these were the bad ones.

Fifty-four years of governing a country of this size means a very large number of decisions. Budgets passed, appointments made, treaties signed, famines that did not happen, epidemics that were contained, elections conducted, railways run. Almost all of it was ordinary and none of it is in this book, because ordinary is not what a prosecution brief collects.

So when you finish nineteen parts, you will have an accurate picture of the worst of a record and no picture at all of its size. Those feel identical from the inside. That is the thing to guard against, and I cannot guard against it for you, because the structure of what I am writing produces the effect automatically.

Notice what this does not rescue. It does not make any individual charge weaker. The Emergency is not smaller because other things also happened. What it does is prevent a specific move — the move from “here are two hundred failures” to “therefore this was the worst possible government”. That second sentence needs a comparison this book does not contain and is not built to contain.

The most honest description of what you are holding: **this is a complete account of one side of a ledger, and there is no version of it that is also the other side.** Part Eighteen is the closest I get, and it is not close enough. I would rather tell you that now than have it be the thing you work out on your own in Part Fifteen.

That is the case against this book, made as well as I can make it. I do not think it wins. I think the four defences are real, that the fourth is genuinely strong, and that none of them touches the specific charges in Parts Nine, Ten and Eleven, which are not arguments about growth rates or comparisons but about what was done to people by a state that had decided to do it.

But you now have the material to disagree with me, which is the point of the chapter. A reader who finishes this series still holding the four arguments above has not been badly served. A reader who never encountered them has.

REMEMBER THIS

Four serious arguments for the defence: **the country held together and stayed a democracy; the usual comparisons are rigged; three different parties are being convicted as one; and the instruments used to convict them are instruments they built and submitted to.**

The fourth is the strongest, and it has a hole twenty-one months long. **During the Emergency, exactly those institutions were suspended by exactly that party.**

A list of failures has no denominator. This book gives you an accurate picture of the worst of a record and no picture of its size. Those feel the same from the inside, and that is my problem to declare and yours to remember.

CHAPTER TEN

An Honest List of What We Do Not Know

Every part of this series ends here. Two lists: what is genuinely unknown, and what is solid enough to build on. The first list is usually more interesting.

10.1 — Why this chapter exists in every part

Most writing about politics has one setting: confident. Everything is asserted at the same volume, whether it rests on a Supreme Court judgment or on something the author feels.

So the last chapter of every part in this series is a separation. What do we actually know, and what are we guessing at? For this first part, the lists are mostly about the series itself — what nineteen parts will and will not be able to establish.

10.2 — Genuinely unknown

Whether the alternatives were visible at the time, in most cases. Chapter Three set this as the test for turning a bad outcome into a blunder. Meeting it requires the internal record — who warned whom, and when. Some of that record is public. A great deal of it is not. India has never had a systematic declassification programme for cabinet papers of the kind that exists in Britain or the United States, and the thirty-year convention is honoured unevenly.

Why it is unknown: because releasing it is discretionary, and every government of every party has found the discretion useful.

How many people died in several of the events in this series. Not roughly. At all. In more than one case the range between the lowest credible figure and the highest is a factor of three or more, and the gap is not caused by the difficulty of counting.

Why it is unknown: because a count was not taken by bodies that count everything else. Chapter Four's rule applies. This is a finding, and the relevant parts treat it as one.

What was in the evidence the Shah Commission gathered. The reports have been reconstructed and republished. The roughly forty-eight thousand papers behind them, and the verbatim record of around a hundred sittings, are a different matter, and the archive that was supposed to hold them has said it does not.

Why it is unknown: the honest answer is that nobody has produced a document explaining it, and I am not going to invent one.

What the freight equalisation policy actually cost the eastern states. That it hurt them is not seriously disputed. Putting a number on it requires imagining the industrial map that would otherwise have formed, and that map does not exist anywhere except in models whose assumptions decide their own answers.

Why it is unknown: because it is a counterfactual, and Chapter Three explained why those cannot be measured directly.

Whether the family at the top of the party is a cause or a symptom. Chapter Eight's argument box laid out both cases. The evidence that would settle it — what happened to senior figures who disagreed, across decades, compared with other parties — has never been assembled by anyone.

Why it is unknown: because nobody has done the work, which is a much better reason than most.

Whether named individuals committed crimes in the spectrum case. Acquitted in 2017, under appeal since 2024, undecided.

Why it is unknown: because the courts have not finished, and until they do, the honest word is the one on the grade.

10.3 — Solid

The electoral record. Who won, where, with how many votes, in every general election since 1951. This is as solid as anything in Indian public life gets, because it was produced by an independent body under adversarial conditions with every party watching.

The legal machinery of the Emergency. What was proclaimed, when, under which article, which amendments followed, which detentions were authorised under which law. All of it is in the gazette and the statute book. There is no dispute about the mechanics, only about the justification.

The number of times elected state governments were dismissed by the centre. Each instance is a formal act with a date and a document.

That the freight equalisation policy existed from 1952 to 1993 and did what it did. It was a stated policy, not a secret one. Its intended effect was published; its unintended effect is a matter of argument and the policy itself is not.

That the Supreme Court cancelled all 122 spectrum licences in February 2012. A judgment.

That the petition alleging a rape by Rahul Gandhi was fabricated. A reported judgment of the Supreme Court in 2012, with costs awarded, after the bench examined the merits specifically in order to record the finding.

That Feroze Gandhi was born into a Parsi family as Feroze Jehangir Ghandy. Birth records, family details, burial arrangements, and a large published biography.

What Congress promised. Manifestos, budget speeches, programme targets and answers given in Parliament. This is the most under-used solid material in Indian political argument, and Chapter Three explained why: nobody can call the standard unfair when the government set it.

10.4 — The difference that matters most

Look again at the two lists and you will see that “unknown” is doing two completely different jobs.

Some things are unknown because they are hard. A counterfactual industrial map is hard. Nobody is hiding it; it does not exist and cannot.

Other things are unknown because somebody decided. A missing death toll in a state with a functioning registry. An archive that was supposed to receive records and did not. A cabinet paper that could be released and is not.

Those two kinds of not-knowing look identical on the page. They are opposites. The first is a limit of the world. The second is a finding about the people who arranged it, and in this series it will be treated as one every single time.

REMEMBER THIS

Genuinely unknown: **whether the alternatives were visible in most cases; several death tolls; what the Shah Commission's underlying evidence contained; what freight equalisation cost; whether dynasty is cause or symptom; whether named individuals committed crimes in the spectrum case.**

Solid: **the electoral record; the legal mechanics of the Emergency; the count of dismissed state governments; the existence and design of freight equalisation; the licence cancellation; the two fabrications in Chapter Six; and everything Congress promised in its own words.**

Some things are unknown because they are hard. Others are unknown because somebody decided. Those look the same on the page and they are opposites. Telling them apart is most of what this series is for.

REFERENCE

The Ground This Series Covers

A skeleton of the whole nineteen parts, so you can place anything you read against it. Dates only; the arguments are in the parts.

YEARS	WHAT HAPPENED	PART
1947–1950	Independence and partition. The princely states are absorbed. Kashmir accedes and the fighting is referred to the United Nations. The constitution is written and adopted.	2
1950–1959	The First Amendment restricts speech. Land reform begins. The first general elections. The elected Kerala government is dismissed by the centre.	3
1951–1991	The planning and licensing system operates. Freight equalisation runs from 1952 to 1993.	4, 5
1954–1962	The agreement on Tibet. The border dispute develops. War with China in 1962.	6
1947–1989	Wars with Pakistan in 1947–48, 1965 and 1971. The Simla agreement. The governing of Kashmir up to the insurgency.	7
1966–1975	Indira Gandhi's rise. The party splits. Banks are nationalised. The judiciary is confronted.	8
1975–1977	The Emergency. Censorship, detention without trial, the forced sterilisation programme, the postponed election.	9
1978–1993	Punjab: the rise of militancy, Operation Blue Star in 1984, and the decade that followed.	10
Nov 1984	The killing of Sikhs in Delhi and elsewhere after the assassination, and the four decades of impunity that followed.	11
1984–1989	Rajiv Gandhi's government. Shah Bano. The Babri locks. Bofors. Sri Lanka. The 1987 Kashmir election.	12
1958–present	The North East, the tribal belt and the Naxal corridor — the geography these accounts usually skip.	13
1991–1996	Economic liberalisation and the demolition of the Babri Masjid, under one government.	14
2004–2009	The first UPA government. The nuclear deal. The terror wave and Mumbai in 2008.	15

YEARS	WHAT HAPPENED	PART
2009–2014	The second UPA government. Spectrum, coal, the games, and what the courts later found.	16
1947–present	What was said: the statements, with dates and full wording.	17
2014–2026	The comparison, measured on the same ruler in both directions.	18
—	The final accounting: what held, what did not, and everything I could not prove.	19

Part Two starts here. It opens in August 1947, with a government three days old, a border announced after the transfer of power, and several hundred princely states that had not yet decided whether they were joining anything.

REFERENCE

Glossary

Every hard word used in this part, in plain English.

WORD	WHAT IT MEANS
Acquittal	A court's decision that a charge was not proved against a particular person to the standard the law requires. It does not mean nothing happened.
Article 356	The part of the constitution allowing the central government to dismiss an elected state government and rule the state directly. Usually called President's Rule.
CAG	Comptroller and Auditor General. The constitutional auditor of India, who checks government spending and reports to Parliament rather than to the government.
Chargesheet	The formal document in which an investigating agency sets out the charges it intends to prove against named people.
Commission of inquiry	An investigation, usually led by a judge, appointed by a government to examine a particular event. Its powers and its questions are set by the government that appoints it.
Counterfactual	A claim about what would have happened if things had gone differently. Hidden inside every sentence containing the word "should".
Crore	Ten million. One hundred lakh.
Culpable	Deserving blame. Requires both that a reasonable person could have known better, and that they had the power to act.
Exchequer	The government's money, taken as one pot: what it collects and what it spends.
Lakh	One hundred thousand.
Lakh crore	One lakh multiplied by one crore. A one followed by twelve zeros. Called a trillion elsewhere.
Leave to appeal	Formal permission from a higher court to challenge a decision. Granting it is not a verdict; it means the challenge is arguable.
Parsi	A member of a small Indian community descended from Zoroastrians who came from Persia. Zoroastrianism is its own religion, not a branch of Islam.

WORD	WHAT IT MEANS
Presumptive loss	Money that could have been earned and was not, rather than money that was taken. Also called notional loss. A legitimate way to measure a decision and an illegitimate way to describe a theft.
Prosecution brief	The written case against an accused person. Not required to be balanced. Required to be true in every particular.
Spectrum	The invisible radio frequencies mobile phones use to reach towers. Limited in quantity, owned by the state, and extremely valuable.
Terms of reference	The written list of questions a commission of inquiry is appointed to answer. The quietest way to control an investigation is to write these carefully.

ABOUT

About the Author

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I write long-form research on Indian history, society, belief and public life, and publish it at misterlove.in under the name The Living Archive. Before this series I completed a fourteen-part history of Punjab, running to around nine hundred and fifty pages, and a sixteen-part study of the rules societies place on women. This is the third series.

I am not a historian by training and I do not claim to be one. What I do is take material that exists in scattered, difficult and expensive places and rebuild it as something an ordinary reader can actually get through, without removing any of the argument. That job has a name in older English: an archivist who explains. It is not the same job as original research and I try never to blur the two.

I am working towards doctoral research. This series is not part of it.

THE RULES OF THIS PROJECT

The Living Archive

Everything published under this name follows three rules.

Plain language, undiminished content. The words are made as simple as I can make them. The argument is not simplified with them. Where those two pull against each other, the passage gets longer rather than thinner.

Show the evidence, and show what it cannot prove. Every serious claim names what it rests on. Every source is described honestly, including what it is blind to.

Give every side its strongest case. Where people who know the material disagree, both positions appear at full strength, and I say when the evidence does not settle it.

PLEASE READ THIS

A Word on Sources

This part carries no footnotes. It is a synthesis of the published record — judgments, commission reports, audits, parliamentary material, contemporary journalism and published biography — and not new primary research. Where a specific document does the work, I have named it in the text, so you can find it without a reference list.

What this archive is good at, and bad at. Government material is abundant, well indexed and easy to reach. Court judgments are published. Audit reports are online. Parliamentary answers are searchable. Against that, the record of what ordinary people experienced is thin, and much of what exists was collected decades after the events, from memory, by people who had to seek it out. That imbalance is not neutral, and Chapter Four is about the direction it runs in.

Where a claim rests only on an institution's account of its own conduct, I flag it in the text. You should discount those claims and I would rather tell you which they are than hope you do not notice.

Corrections. If something here is wrong, write to me. Later editions will say what was changed and who caught it. That is not a courtesy; a book that argues one side has no standing to complain about being checked.

Lovepreet Singh

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NEXT

What Comes Next

Part Two — The Inheritance, 1947 to 1950

Part Two takes the first thousand days. It asks:

- What was actually handed over in August 1947, and how much of the state that took delivery was already in place?
- Who decided how the princely states would be brought in, and what was promised to each of them that was later not honoured?
- Why was the fighting in Kashmir referred to the United Nations, who advised it, who opposed it, and what did the people making that decision expect to happen?
- What did the ceasefire line freeze into place, and was there a point at which it could have been settled differently?
- Was the government of a country three days old capable of protecting the people moving across the new border, and did anyone in that government believe at the time that it was?
- Which of the early constitutional choices were genuinely open, and which had already been made by the colonial administration and simply inherited?

Questions, not topics. If any of them is answered badly, you will be able to tell.

END OF PART ONE OF NINETEEN · THE CONGRESS RECORD · THE LIVING ARCHIVE · MISTERLOVE.IN

THE LIVING ARCHIVE

PART TWO OF NINETEEN

The Congress Record

Part Two — The Inheritance, 1947–1950

The first thousand days. What was actually handed over in August 1947, what the new government did with it, and the decisions taken in those three years that have never since been undone.

This part covers mass killing in which every community was both victim and perpetrator. Where a figure is disputed you get the range and the method behind each end of it. Where no count was ever taken, that silence is treated as a finding.

WRITTEN AND RESEARCHED BY

Lovepreet Singh

INDIA · AUGUST 1947 TO JANUARY 1950

MISTERLOVE.IN

BEFORE WE BEGIN

Where We Left Off

Part One built the tools. This part is the first time they get used on anything.

Part One was about method, and it made four commitments that this part now has to keep.

The first was that this series **selects like a prosecutor and checks like an auditor**. The choosing is one-sided and says so. The evidence is not. That distinction is the whole spine of the project, and the reason for it was strategic rather than polite: the true record of Congress in power is damaging enough on its own, and every invented story added to it hands the party an easy escape from all the real ones.

The second was the **grading scale**. Every serious claim carries a label — convicted, court-found, commission-found, audited, alleged, or fabricated — printed where you can see it. You will meet all six in this part, including a case where a government's own commission found something and the government then made the finding disappear.

The third was that **a charge needs an alternative**. Saying a government blundered means claiming there was another road, that it could be seen from where they stood, and that somebody could have taken it. Where I have all three, the charge is heavy. Where I have fewer, I use a smaller word.

The fourth was the rule that will do more work in this part than anywhere else in the series: **when a state that counts everything has no count of something, somebody decided that**. The missing number is a finding, not a gap. This part contains one of the largest missing numbers in the history of the Indian Union, and a commissioned report that went missing along with it.

Part One also declared where I stand and I will do it again here, more narrowly, because this part is where it bites. My previous work was a fourteen-part history of Punjab. That means I arrive at the chapters on 1947 with attachments, and Punjab in 1947 is a place where every community on the ground was both victim and killer. If I find myself writing one of them as only the first thing, I have stopped doing history. Watch for it. I will flag it where I catch it myself.

HOW TO READ THIS BOOK

The Six Boxes

Six coloured boxes run through every part of this series. Each does one job. Here they are with live examples from the material ahead, so you learn the notation before you need it.

A **Word Box** explains a hard word the moment it first appears.

WORD BOX

Paramountcy: the arrangement under which the British Crown controlled the foreign affairs and defence of India's princely states while leaving their rulers in charge internally. The states were not British territory. They were tied to Britain by treaty.

When the British left, paramountcy *lapsed* — it simply ended, and it was not automatically transferred to India or Pakistan. In law, every one of those states became free-standing on 15 August 1947.

Why it matters here: roughly two-fifths of the land area of British India was not British India. Chapters Five to Eight are about what happened to it.

An **In Real Terms** box turns a number too big to picture into something with a body.

IN REAL TERMS

Estimates of how many people were displaced by Partition run from about 12 million to about 20 million.

Take the lower figure. That is roughly the entire population of a large modern country picking up what it can carry and walking, in about eighteen months, in two directions at once, along roads that were also being used by the people going the other way.

If you lined up 14 million people in single file, a metre apart, the line would go round the Earth's equator about a third of the way. They were not in a line. They were in columns of tens of thousands, on foot, in monsoon heat, being attacked.

A **How We Actually Know This** box shows the physical evidence and then says what it cannot prove.

HOW WE ACTUALLY KNOW THIS

Much of what is known about refugee movement in 1947 and 1948 survives because refugees had to be fed and housed. Camp registers, ration issues, railway movement orders and resettlement claims all exist as administrative by-products.

This means the arrivals are far better recorded than the departures, and the survivors far better recorded than the dead. A person who reached a camp entered the record by the act of surviving. A person killed on the road entered nothing.

What it cannot show: the size of the gap between those two groups. That is the central measurement problem of this entire part, and Chapter Three is about it.

An **Argument** box appears where serious people disagree. Each side gets its strongest case, not a weak version built to be knocked over.

THE ARGUMENT — WAS PARTITION ITSELF A CONGRESS FAILURE?

Everything in this part follows from the division of the country. So before anything else: was accepting it a blunder?

YES, AND A LARGE ONE

Congress accepted a plan in June 1947 that it had rejected in principle for years, under a deadline set by a departing power that had no authority to impose one. It accepted a compressed timetable — independence brought forward by nearly a year — with no boundary agreed, no population transfer planned and no force in place to protect anybody. The leadership was exhausted and wanted power. That is a reason, not a justification.

NO, THE ALTERNATIVES WERE WORSE

By 1946 the country was already killing itself. Calcutta in August 1946 left about four thousand dead. The alternative on the table was a weak centre with permanent communal vetoes, which would have produced either paralysis or the same violence spread over decades. And Congress did not control the timetable; the British did, and the British were leaving whether or not anybody was ready.

Where things stand: the second side is right that the choice was genuinely constrained and that Congress did not set the date. The first side is right that the specific decisions taken inside those constraints — the speed, the silence about the border, the absence of any plan for movement — were Indian decisions as well as British ones. This series is about the second set.

What would settle it: nothing. It is the largest counterfactual in modern Indian history and Part One explained why those cannot be measured.

Why people care so much: because whoever is blamed for Partition is blamed for everything downstream of it, which is most of the last seventy-nine years, including two nuclear weapons programmes.

A **Hidden Assumption** box digs out a belief sitting underneath an argument that *both sides accept without discussing*.

THE HIDDEN ASSUMPTION

Everybody arguing about 1947 — every side, every country — treats **Partition as one event**.

It was at least three, with different agents and different timing. There was a *constitutional division*, agreed in June and enacted in July, which created two dominions. There was a *boundary award*, drawn by one exhausted Englishman in about five weeks and published two days after independence. And there was a *wave of killing and expulsion*, which began well before either, in Calcutta in 1946, and continued into 1948.

Running the three together is enormously convenient, and it is convenient in every direction. It lets a British account say the violence was inherent to the place. It lets an Indian account say the violence followed from the division. It lets a Pakistani account say the division followed from the violence. Each is choosing a causal order, and the merging of the three events is what hides the choosing.

Keep them apart while you read this part. When you see a claim about “Partition”, ask which of the three it is about. Most of the arguing dissolves.

And every chapter closes with a **Remember This** box: the chapter in the plainest words available. A reader who read only those boxes would still have the whole argument.

REMEMBER THIS

Part One built the method: **one-sided selection, honest evidence, a grade on every claim, and an alternative named before anything is called a blunder.**

The rule that matters most here: **when a state that counts everything has no count of something, somebody decided that.**

“Partition” is three separate things wearing one name — a constitutional division, a boundary award, and a wave of killing. Keep them apart and most of the shouting stops.

Part Two

Contents

1. What Was Actually Handed Over

A machine, not a country · the services, the army, the treasury · what was inherited and what was built · the men who stayed

2. The Line Nobody Was Shown

Five weeks to draw a border · finished on the 12th, published on the 17th · who decided the delay · what the four days cost

3. The Crossing

The columns and the trains · a toll between two hundred thousand and two million · why the spread is about method · the count that was never attempted

4. What Happened to the Refugees

Camps, claims and resettlement · the west settled and the east left waiting · evacuee property · the first entry in the state ledger

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8. Kashmir: The Letter of 1 January

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9. Writing the Rules

An assembly nobody directly elected · what was copied from 1935 · detention without trial in the first year · Articles 356 and 370 · the promises entered into the record

10. An Honest List of What We Do Not Know

Genuinely unknown, and why · solid, and why it is solid · the three files that would settle most of it

CHAPTER ONE

What Was Actually Handed Over

On 15 August 1947 something changed hands. Almost every argument about what followed depends on being precise about what that something was.

1.1 — A machine, not a country

Picture the handover as most people picture it. A flag comes down, another goes up, and a country that was being held by somebody else is returned to the people who live in it.

That picture is wrong in a way that matters for everything in this series.

What changed hands was not a country. It was an **administrative machine** that had been built over about ninety years to govern a conquered population, and a map that machine had drawn. On the morning of 16 August the machine was still there. The same offices, the same files, the same ranks, the same laws, largely the same men. What had changed was who gave it instructions.

And it was less than the map suggested. British India — the territory the British actually ruled — was not the whole of the subcontinent. Roughly two-fifths of the land area was princely states, tied to the Crown by treaty but not governed by it. Chapters Five to Eight are about them. Set them aside for now and look at what Congress inherited directly.

WORD BOX

Dominion: a self-governing country inside the British Commonwealth, with the British monarch still as formal head of state.

India and Pakistan both became dominions in August 1947, not republics. India remained one until 26 January 1950, when the constitution came into force. In the meantime the head of state was still the King, represented by a Governor-General, and the working constitution was still a British statute.

Why it matters here: for the first two and a half years of independence, India was governed under law written in London for the purpose of managing India.

1.2 — What came with the building

The inheritance had five main pieces, and all five turn up later in this series.

A civil service. A small, elite, extremely capable administrative corps that ran districts, collected revenue and reported upwards. By 1947 about half of its officers were Indian. Sardar Patel fought to keep it, against people in his own party who wanted it dissolved as a colonial instrument, and he won. That decision is one of the strongest defences available to the Congress record and it belongs on the page.

An army. Professional, disciplined, and — this is the part that mattered in 1947 — accustomed to staying out of politics. It was split between the two dominions in a matter of weeks, which is itself an administrative feat. Unlike almost every comparable country, India's army never took power. That is not an accident and it is not luck.

A revenue and police system. Designed to extract money and maintain order in a population assumed to be hostile. It worked well at both.

A legal code. Criminal law, civil procedure, and a body of emergency and preventive powers written for a government that expected to be resisted.

A working constitution. The Government of India Act of 1935, kept on as the interim constitution until January 1950. Chapter Nine is about how much of it survived into the permanent one.

1.3 — What did not come with the building

Now the other column, because a fair account needs both.

There was no experience of running a foreign policy, because there had not been one. No experience of running a central bank in a sovereign state. No industrial base to speak of relative to the size of the population. A literacy rate somewhere around one adult in six. And a set of famine and epidemic vulnerabilities that had killed millions within living memory.

Against that, the new government had one asset that is easy to undervalue because it cannot be counted: legitimacy. The people taking charge had spent decades in a mass movement and many of them had spent years in prison for it. When they told the country to do something, an unusual number of people did it.

IN REAL TERMS

Picture inheriting a large, well-built factory. The machines work. The foremen know their jobs. The accounts are in order.

Now notice three things. The factory was built to make one product, and you want it to make a different one. Most of the people who designed it have gone home, and the ones who stayed learned their trade making the old product. And there is no manual for conversion, because nobody has ever converted a factory this size before.

That is the position in August 1947, and it explains both the achievements and the failures in this part. The machine did what machines do. It kept running in the direction it was pointed.

1.4 — The men who stayed

One consequence of keeping the machine deserves stating plainly, because it runs through the next eighteen parts.

An officer who had spent 1942 suppressing the Quit India movement was, in 1948, a District Magistrate in independent India. He had not changed. His powers had not changed. His training had not changed. What had changed was that the instructions now came from the people he had previously been arresting.

This is not a criticism of those officers, most of whom served the new state loyally and some of whom served it heroically. It is a statement about capability. A government that inherits an apparatus built for control will find that the apparatus is very good at control, and that reaching for it is the path of least resistance. When you read, in Chapter Nine, that independent India passed a law allowing detention without trial in its first year, remember that it did not have to invent the idea. It had the drafting on a shelf.

THE HIDDEN ASSUMPTION

Everyone arguing about 1947 — admirers and critics alike — assumes that **what changed hands was a country**.

The admirer's version: a great nation recovered its freedom, and the difficulties afterwards were the difficulties of a young country finding its feet. The critic's version: a country was handed to people who mismanaged it. Both are arguing about the quality of the management. Both have quietly agreed on what was being managed.

But "India" as a single political unit governed from one capital was itself a British product, assembled by conquest and treaty over about a century, and it did not exist in that form before. What changed hands in August 1947 was the *apparatus* — a service, an army, a revenue system, a body of law — together with a claim over territory that had never once, in its history, been a single self-governing state.

Why this is not a debating point. If you inherit a country, your job is to govern it. If you inherit an apparatus plus a claim, your job is to *make* the country, and that is a different job with different methods. It involves persuading or compelling several hundred separate polities to join. It involves deciding what to do about the ones that decline. Chapters Five to Eight are about exactly that work, and they are usually written as though it were housekeeping.

The assumption cuts both ways, which is how you can tell it is doing real work. It lets the defender describe coercion as administration. It lets the critic describe an unprecedented state-building operation as ordinary governing that went badly. Neither has to argue for the frame, because neither has noticed choosing it.

Hold that distinction as you read. This part is not the story of a country being governed badly or well. It is the story of a country being assembled, at speed, by an apparatus designed for something else, while several million people were on the roads.

REMEMBER THIS

What changed hands in August 1947 was **an administrative machine and a claim**, not a finished country. The machine was built to govern a population assumed to be hostile, and it was very good at that.

The inheritance was real and mostly kept: **a civil service, an apolitical army, a revenue system, a legal code, and a British statute serving as the constitution until 1950**. Keeping the first two was a Congress decision and a good one.

A government that inherits an apparatus built for control does not have to invent the tools of control. It finds the drafting on a shelf. Chapter Nine is what happened next.

CHAPTER TWO

The Line Nobody Was Shown

The border was finished on 12 August and published on 17 August. Millions of people spent the days between them guessing which country they were in.

2.1 — Five weeks

Sir Cyril Radcliffe arrived in Delhi on 8 July 1947. He was a British lawyer of great reputation and no relevant experience. He had never been to India. That was considered a qualification, on the reasoning that a man who knew nothing could not be partial.

He was given the job of chairing two boundary commissions — one for Punjab, one for Bengal — and dividing two of the most densely populated provinces on Earth. Each commission had four other members, two nominated by Congress and two by the Muslim League, and each was a judge. In practice those four deadlocked on every question, which left the decisions to the chairman.

He had about five weeks.

WORD BOX

Boundary award: the formal published decision of a boundary commission, fixing exactly where a new border runs.

The word “award” is borrowed from arbitration. It means a decision the parties have agreed in advance to accept, whether or not they like it. Congress and the Muslim League both gave that undertaking before the work began, which is why neither could reject the result afterwards, and both complained bitterly about it anyway.

Why it matters here: because everyone had pre-agreed to accept it, the only real lever left was *when* it was published.

2.2 — Finished on the twelfth

Here is the sequence, and it is not disputed by anybody.

Radcliffe finished the work on **12 August 1947**. He submitted the sealed award to the Viceroy on **13 August**. Mountbatten did not publish it. He went to Karachi for the Pakistani independence celebrations on the 14th, and spoke to the Indian Constituent Assembly on the 15th as India's first Governor-General, and said nothing about it in either place. On **16 August** he distributed copies to the Indian and Pakistani leaderships in a meeting. Both sides objected furiously to parts of it, and both agreed to let it stand. It was published on **17 August 1947**.

So for the five days across which two countries came into existence, nobody living near the border knew which one they were in.

IN REAL TERMS

Imagine your town is going to be in one of two new countries and the decision has already been made, written down, and locked in a drawer four hundred miles away. You are told it will be announced in a few days. You are also being told, by people around you, that men from the other community are arming.

You have two choices. Wait for the announcement, which might place you on the wrong side with everything you own. Or act now on your guess.

Several million people made that calculation in the same week. That is what the delay actually was: not an administrative detail, but a period in which the only information available about the most important question in your life was rumour.

2.3 — Who decided the delay, and why it matters

This is where a careless prosecution brief would overreach, so let me be exact.

The decision to withhold the award was **Mountbatten's**. He was the Viceroy, it was his to publish, and he held it. The reasons given at the time were that announcing a border before the transfer of power would create chaos on the day, might wreck the independence ceremonies in both capitals, and would leave Britain announcing a contested line while it was still responsible for order.

V.P. Menon, an Indian official and one of the most important figures in this whole part, advised him that releasing it before 15 August without consulting the two leaderships was a bad idea.

And on 16 August, with the award in front of them, the Indian and Pakistani leaders agreed to publish it as it stood rather than fight over it in public.

So the honest verdict is not “Congress hid the border”. It is narrower and it still holds: **the timing was a British decision, taken on Indian advice, and accepted by Indian leaders who had the document in their hands the day before it was published and did not demand it go out immediately.** Nobody in that room appears to have argued that people on the ground needed to know first.

THE ARGUMENT — WAS HOLDING THE AWARD UNTIL THE 17TH DEFENSIBLE?

Almost everything terrible in the next chapter happened in places whose future was unknown to the people living in them. So: was the delay a mistake, or the least bad option?

DEFENSIBLE

The killing in Punjab was already under way before 12 August and had been building for months; it did not need a map to start. Publishing a contested line while the British were still legally responsible for order, with the Punjab Boundary Force already visibly failing, would have handed both sides a grievance and a target on the same day. And the four days changed nothing that mattered: the same line, the same people, four days later.

A SERIOUS FAILURE

Publication was the one lever left after both parties had pre-agreed to accept the result. Used differently — announced in July, with the award drawn earlier and movement organised around it — it could have converted a panic into a process. Instead the most consequential fact in millions of lives was withheld precisely during the days when knowing it might have let people leave in order rather than in flight. The reasons given are all about ceremonies and appearances.

Where things stand: the first side is right that the violence was not caused by the delay and had other causes running back to 1946. The second is right that the delay removed the only instrument that might have organised the movement, and that the stated reasons for it are strikingly small next to what was at stake. Both are compatible: the delay did not start the killing and it did make the flight less orderly.

What would settle it: a comparison with an area where the boundary was known in advance and movement happened anyway. Nobody has assembled one, and the material to do it exists in district records.

Why people care so much: because if the delay mattered, responsibility sits with a departing British Viceroy, which is comfortable in Delhi and Islamabad alike. If it did not, responsibility shifts to whoever organised the killing, which is uncomfortable everywhere.

Before leaving the timing, it is worth pausing on how firmly any of this can be established, because the rest of the part leans on documents of very uneven quality.

HOW WE ACTUALLY KNOW THIS

The chronology in this chapter is unusually secure, and it is worth knowing why. It rests on dated official papers rather than on recollection: the award itself carries its completion date, the transfer-of-power records show when it went to the Viceroy, and the meeting of 16 August is minuted. British, Indian and Pakistani accounts, which disagree about almost everything else in 1947, do not disagree about these dates.

When sources with opposing interests agree on a fact, the fact is usually safe. That is one of the few reliable tests available to anybody reading history without access to archives.

What it cannot show: what was said in the room. Minutes record decisions, not arguments. Whether anybody present on 16 August urged immediate publication, and was overruled, is exactly the sort of thing that minutes are designed not to preserve.

2.4 — What the line did

One detail from the award tells you what kind of document it was.

The Ferozepur area contained the headworks of canals that watered a large stretch of what became Pakistani Punjab. Radcliffe's preliminary thinking had placed parts of it on the Pakistani side. The final award placed the headworks in India. The reasoning available for that change is about not cutting an irrigation system in half and about the needs of the princely state of Bikaner, which depended on those flows.

Whatever the reasoning, note what the boundary was doing. It was not only sorting people by religion. It was cutting a canal network, a railway system, a jute economy and a wheat economy, and every cut it made created a bilateral dispute that had to be managed afterwards by two governments that did not trust each other. Water in particular does not accept a line on a map. Part Seven of this series returns to it, and it is still unresolved today.

REMEMBER THIS

One British lawyer with no experience of India divided two provinces in about **five weeks**, with four Indian judges deadlocking beside him so every real decision was his.

The award was **finished on 12 August, handed to the leaders on the 16th, published on the 17th**. The withholding was Mountbatten's decision, taken on Indian advice, and Indian leaders held the document a day before publication without demanding it go out.

The delay did not start the killing. It did remove the one thing that might have turned flight into movement. Both sentences are true.

CHAPTER THREE

The Crossing

Somewhere between two hundred thousand and two million people were killed. That range is not a failure of scholarship. It is a finding about what nobody wanted to know.

3.1 — What happened

The pattern was consistent enough across hundreds of miles to be described in one paragraph, which is itself a fact worth noticing.

A village or a district would receive news, usually rumour, of killings elsewhere. Men would arm. Members of the minority community would be given a period to leave, or would not. Columns of refugees formed, sometimes tens of thousands strong, moving on foot. The columns were attacked on the road. Trains carrying refugees were stopped and boarded. Women were killed by their own families to prevent capture, and abducted in very large numbers by attackers. Property changed hands within days and was occupied by the incoming refugees moving the other way.

Every community did this. Muslims did it to Hindus and Sikhs; Hindus and Sikhs did it to Muslims. In Punjab, where the killing was worst, all three were both. This is the point at which I said in the front matter that I would watch myself, so let me be blunt about it: any account of Punjab in 1947 that reads as though one community was principally acting and the others principally suffering is a political document, not a historical one, whichever community it favours.

WORD BOX

Communal: in Indian usage, relating to conflict between religious communities.

“Communal violence” means violence between Hindus, Muslims, Sikhs or others as groups.

Notice what the word does. It names the participants and says nothing about organisation. A phrase like “communal violence broke out” describes an event with no author — like weather. Part One warned about exactly this kind of word, and this part is where it earns the warning.

Why it matters here: where evidence shows organisation — lists, transport, coordinated timing, participation by men in uniform — this series will say organisation, and where it does not, it will not.

3.2 — The numbers, and the size of the disagreement

Now the arithmetic, which is where most accounts go soft.

Published estimates of the death toll range from about **200,000 to about 2 million**. Displacement estimates run from about **12 million to about 20 million**. As many as **100,000 women** are estimated to have been raped or abducted.

The death range is a factor of ten. Part One said that a spread that wide is almost always a difference of *method* rather than of data quality, so here are the actual positions, which are more informative than the range.

ESTIMATE	SOURCE AND APPROACH
~180,000	A contemporary British official estimate, built from administrative reports reaching the government.
~500,000	A contemporary Indian estimate, split roughly evenly between Muslims and non-Muslims.
200,000–360,000	The range one scholarly review considers closest to the truth, while noting that a wider “consensus” figure of around 500,000 circulates.
400,000 ±100,000	A demographic estimate, reasoning from population data rather than reports.
~1,000,000	A widely cited figure from oral-history-based work, again split roughly evenly.
up to 2,000,000	The upper end of the published range.

Look at what separates them. The low figures come from **reports that reached an administration**. The high figures come from **demography and testimony**. The low figures count deaths somebody wrote down. The high figures try to count deaths that happened.

In a collapse where the administration itself had split in two, where district officers were fleeing alongside everybody else, and where whole villages emptied with no survivor left to report anything, the reporting method has an obvious and predictable bias. It undercounts precisely where the violence was worst, because the worst places produced no reporter.

HOW WE ACTUALLY KNOW THIS

The demographic approach works differently and is worth understanding, because it is the strongest tool available here. You take the census of 1941, project forward what the population of a district should have been by 1951, count what was actually there in 1951, and subtract. What is left is people who died, were never born, or moved.

Its strength is that it needs no witness. A village that was wiped out completely still leaves a hole in the 1951 count.

What it cannot show: it cannot separate the dead from the migrated. Somebody missing from a district in 1951 might be in a camp four hundred miles away. Untangling those requires assumptions about migration, and those assumptions are where the estimates diverge. It also inherits every flaw of the 1941 census, which was taken in a politically charged atmosphere where community numbers were themselves contested.

3.3 — Delhi, September 1947

One episode deserves separating out, because it happened where the government was sitting.

In September 1947 the violence reached Delhi itself. Muslim neighbourhoods in the capital were attacked, large areas emptied, and a substantial part of the city's Muslim population either fled to Pakistan or took shelter in camps inside the city, including in the Purana Qila and at Humayun's Tomb. Property changed hands within weeks, much of it occupied by refugees arriving from the west.

Two things about this are worth holding.

The first is that **the government acted, personally and visibly**. An emergency committee was formed. Nehru went into the streets himself. Gandhi came to Delhi and fasted, in January 1948, explicitly to stop the killing and to force the payment of money owed to Pakistan, and it worked. Whatever else is in this chapter, the leadership of independent India did not treat the massacre of Muslims in its own capital as somebody else's problem, and several of them risked their lives over it. Gandhi was assassinated for it within days.

The second is that **the police and the administration in the capital did not stop it, and were in places part of it.** This is the pattern that recurs at every point in this series where large-scale communal killing happens in an Indian city — 1984, 1992, 2002. The apparatus does not fail randomly. It fails in one direction, and the direction is the same each time.

Delhi in September 1947 is therefore the first entry in a much longer argument, and it is the entry where the political leadership's own conduct is at its best. That combination — leaders acting, machinery not — is the thing to watch for.

3.4 — The count that was never attempted

Now the finding, and it is the central one of this chapter.

No government on either side ever attempted a count. Not in 1948, when the camps were full of people who could have been asked. Not in 1951, when a census was taken anyway and the questions could have been added. Not since.

Apply the rule from Part One. This was not a state that could not count. It counted crop yields by district. It counted cattle. It counted refugees precisely enough to feed them, because feeding required a number. Within four years it conducted a full national census. The capacity was there and it was used constantly.

So the absence is a decision, and the interesting question is who benefited from it.

The answer is uncomfortable, because it is everybody. A firm number would have had a shape. It would have shown which districts, which weeks, and which direction the killing ran hardest. It would have converted “communal violence” into a map, and a map has authors on it. Two new governments, each needing a founding story and neither able to survive a founding story in which its own majority community was a principal killer, had a shared interest in the number not existing.

THE HIDDEN ASSUMPTION

Every account of 1947, in India, Pakistan and Britain, shares a premise that none of them argues for: **that the violence was something that happened rather than something that was done.**

Look at the standard vocabulary. Riots. Communal frenzy. Bloodshed. Carnage. Madness. The subcontinent “descended into” violence. Passions “were inflamed”. Every one of these is a weather word. Weather has no author, no planning meeting and no chain of command.

But the events described were not weather. Columns were ambushed at chosen points. Trains were stopped where stopping them worked. Attacks in different places began within days of each other. Armed bands moved between districts. In some areas men in uniform were among the attackers, and in others local officials were part of the arrangement. Organisation of that kind leaves evidence and some of it survives.

Here is why both sides accept the weather frame. If it was weather, no Indian government has to explain why its own police stood by, and no Pakistani government has to either. The British get to describe an ungovernable place. And — this is the part that keeps it in place — the descendants of the victims get an account in which their community was set upon by something inhuman, rather than by identifiable neighbours who were subsequently allocated their land.

I am not claiming every death in 1947 was organised. Much of it was panic, and panic is real. I am claiming that **nobody has ever tried to establish the proportion**, that establishing it was possible in 1948 and is nearly impossible now, and that the vocabulary everyone uses makes the question feel as though it has already been answered.

One more consequence of the missing count, and it runs through the rest of this series. Because there is no agreed number, there is no agreed proportion, and because there is no proportion, every community can hold, sincerely and without contradiction, that it suffered most. Seventy-nine years later that belief is load-bearing in the politics of three countries.

REMEMBER THIS

The death toll estimates run from **about 200,000 to about 2 million**, and the spread is a difference of **method**: low figures count deaths that were reported to an administration, high figures use demography and testimony to count deaths that happened.

The reporting method fails hardest exactly where the violence was worst, because **the worst places produced no reporter**.

No government ever attempted a count, in a state that counted cattle and ran a full census within four years. Both new countries needed a founding story that a real number would have damaged.

CHAPTER FOUR

What Happened to the Refugees

Two migrations, one government, and two completely different outcomes. The difference is the first entry in this series' state ledger.

4.1 — The problem in front of them

By the end of 1947 the government of India was holding several million people who had arrived with nothing and could not go home. Setting aside for a moment how they got there, the administrative task was enormous and largely unprecedented: shelter, food, water, sanitation, disease control, and then some way of turning camps into lives.

A great deal of this was done well and it should be said plainly, because it is one of the strongest items on the credit side of the whole Congress record. Camps were established at speed. Rations moved. Epidemics that could have killed as many as the violence did not do so. A Ministry of Rehabilitation was created and given real money and real powers.

The charge in this chapter is not that the government failed to act. It is that it acted very differently in two places, and that the difference tracked something other than need.

4.2 — The exchange nobody calls an exchange

In the west, the movement was roughly two-directional and roughly simultaneous. Non-Muslims came east out of West Punjab; Muslims went west out of East Punjab and the neighbouring areas. This produced something administratively enormous and morally very strange: **vacated property on both sides, in similar quantities, at the same time.**

That gave the Indian state a resource. A Sikh farming family arriving from Lyallpur with a claim to land they had left behind could be allocated land left behind by a Muslim family that had gone the other way. It required a colossal paper operation — claims, verification, valuation, allotment — and India built one.

WORD BOX

Standard acre: land measured by what it produces rather than by how big it is. Defined as the area yielding a fixed quantity of grain. Ten poor acres might count as four standard acres; four excellent acres might count as six.

It was invented for exactly this problem. A refugee's claim was for land in a country India no longer controlled, and the land available to hand over was somewhere else with different soil and different water. Measuring both in standard acres let one office compare a claim it could not inspect with a field it could actually give away.

Why it matters here: it is a genuinely elegant piece of administration, and it worked because there was property to allocate. Where there was none, none of this machinery could run.

4.3 — And in the east, nothing to allocate

Bengal was different in three ways, and the three compound.

The movement was not simultaneous. In Punjab the exchange happened in months. In Bengal it happened over decades — a flow that continued through the 1950s and 1960s and revived at intervals afterwards. A government can plan for a wave. A trickle that never stops defeats planning, and it also defeats sympathy, because there is never a moment at which the emergency is visibly happening.

The movement was not balanced. Large numbers of Hindus left East Bengal. Muslims did not leave West Bengal in comparable numbers. So the vacated-property machinery that made Punjab resettlement possible had almost nothing to work with.

And the migrants were different. A high proportion of those leaving East Bengal in the first phase were from professional and landholding families, and later phases were overwhelmingly poor and rural, including large numbers from lower castes. The first group could resettle themselves. The second could not, and arrived after the political attention had moved on.

The outcome is not seriously disputed. Punjab's refugees were, broadly, resettled within about a decade. Bengal's were still being moved around the country long afterwards — to camps in central India, and to schemes far from Bengal that many of them left and walked back from. That story runs well past the boundaries of this part and it does not have a happy ending.

IN REAL TERMS

Two families lose everything in the same year and apply to the same government.

The first is in Punjab. Within a few years it holds an allotment: less land than before, worse land than before, but land, with a paper title. The children go to school where they now live.

The second is in Bengal. There is no allotment because there is nothing to allot. It is given a place in a camp with a dole. Ten years later it is still receiving the dole, or has been offered land eight hundred miles away in a language nobody in the family speaks.

Same catastrophe, same government, same decade. The difference is not effort or sympathy. It is that one problem had a solution lying on the ground and the other did not — and that the government did not replace the missing solution with anything of comparable weight.

That last clause is where the charge actually lives, so it is worth stating carefully before hearing the defence. Nobody is claiming the Indian state could have conjured land in West Bengal that did not exist. The claim is that a government which built an entire ministry, a claims bureaucracy and a novel unit of measurement for one problem did not build anything comparable for the other, and that the gap between the two efforts widened for twenty years while the second problem was still arriving.

THE ARGUMENT — WHY WERE THE TWO MIGRATIONS HANDLED SO DIFFERENTLY?

Nobody disputes the outcome gap. The disagreement is about what caused it.

STRUCTURE, NOT INTENT

The instrument that solved Punjab was vacated property, and Bengal had almost none because the exchange there was one-way. Punjab's flow also ended, allowing a finite operation to be planned and closed; Bengal's did not, so every plan was overtaken. Add that Bengal's inflow was still arriving when the money and the political attention had gone, and you have the whole gap without needing anybody to have wanted it.

CHOICE, DRESSED AS STRUCTURE

The absence of the easy instrument explains why Punjab's method could not be copied. It does not explain the failure to fund an alternative for two decades, nor the decision to move poor and largely lower-caste refugees to distant states rather than settle them in Bengal, nor that the western operation got a minister, a machinery and urgency while the eastern one got a dole. The constraint was real. The response to the constraint was a choice, made repeatedly.

Where things stand: the first side wins on the initial gap and loses on its persistence. Nothing structural required the eastern operation to still be unresolved twenty years later. This is exactly the distinction Part One drew between a cost nobody decided and a decision taken repeatedly, and the honest reading is that it starts as the first and becomes the second.

What would settle it: the per-refugee spending figures for the two operations, year by year, which exist in budget and ministry records and have never been laid side by side in public.

Why people care so much: because it is the founding grievance of a still-live regional politics, and because the caste composition of the later eastern migration makes the neglect look like more than an accident of geography.

The reason that argument can be had at all is that one of the two operations left a great deal of paper and the other left very little, which is itself part of the story.

HOW WE ACTUALLY KNOW THIS

The evidence for the western operation is exceptionally good, for a reason that should now be familiar: it was a property transfer, and property transfers generate paper. Claim files, verification records, allotment orders and valuation registers all survive, because a state handing out land needs to know what it handed to whom.

The eastern operation generated much less, and what it generated is different in kind: camp rolls and relief payments rather than titles. A dole leaves a thinner and shorter record than a deed.

What it cannot show: the people who never entered either system. A family that crossed, was absorbed by relatives, and never filed a claim appears in no file at all. The records describe the state's dealings with refugees, not the refugees.

4.4 — The first entry in the ledger

From here on, every part of this series carries a running record of which states were affected by the material in it and how. This chapter opens it.

WHERE	WHAT HAPPENED, 1947–1950
East Punjab	Received several million refugees and lost a comparable Muslim population. Resettled largely through allotment of vacated land, using the standard-acre system. Lost its canal headworks relationships, its capital and much of its irrigated west.
West Bengal	Received a continuing inflow with almost no vacated property to allocate. Camp populations persisted for decades. Later refugees were dispersed to distant states.
Delhi	Population transformed within months. Large-scale killing in September 1947. Property transfers on a scale that reshaped the city permanently.
Assam and the east	Absorbed migration with no settlement machinery, beginning a demographic argument that is still the central fact of the state's politics. Part Thirteen returns to it.
Hyderabad state	Annexed in September 1948. Mass killing followed, with no count published for sixty-four years. Chapter Six.
Jammu and Kashmir	Invaded, acceded, partly occupied, and frozen along a ceasefire line that still runs. Chapters Seven and Eight.

REMEMBER THIS

The refugee operation in the west **worked**, and that belongs on the credit side. It worked because a two-way exchange left vacated property to allocate, and India built a genuinely clever machinery to allocate it.

In the east there was **no vacated property, no end point, and later arrivals who were poor and largely lower-caste**. The same government produced a camp and a dole instead of a settlement.

The initial gap was structural. Its survival for twenty years was a decision, taken again every year.

CHAPTER FIVE

Five Hundred and Sixty-Odd

On 15 August 1947 several hundred states became legally independent. Within about two years they had all gone. How that was done is the least examined success in Indian history.

5.1 — The problem, stated honestly

When the British left, paramountcy lapsed. That was not an oversight; it was written into the statute. Every princely state was legally free to join India, join Pakistan, or stand alone.

The number of them is usually given as 565. It is also given as 562, and as 584, and the disagreement is not sloppiness — it depends on whether you count tiny estates as states. Note this, because it is a small worked example of something this series meets constantly: **a number everybody repeats can be a definitional choice wearing the clothes of a count.**

Their sizes ranged from a few square miles to territories larger than most European countries. Some had their own currencies, armies and railways. Almost none had anything resembling representative government.

If even a modest fraction had held out, the map of India would be unrecognisable. Almost none did. That is a genuine and enormous achievement, and it belongs to Sardar Patel, who ran the States Department created in July 1947, and to V.P. Menon, the civil servant who did most of the actual negotiating.

WORD BOX

Instrument of Accession: the short legal document by which a princely ruler joined India or Pakistan.

What it transferred was deliberately narrow: three subjects only — defence, external affairs, and communications. Everything else stayed with the ruler. Alongside it came a **standstill agreement**, which kept existing arrangements running while details were settled.

The narrowness was the selling point. A ruler was being asked to give up very little on paper. In practice, integration went much further within a few years, through separate agreements that merged states, ended internal autonomy and pensioned off the rulers.

Why it matters here: Kashmir's accession is legally identical to the others. Its politics is not, and Chapter Seven is about why.

5.2 — What was promised

The rulers did not sign for nothing. They were guaranteed personal privileges, retention of private property, and a **privy purse** — an annual, tax-free payment from the Indian state, written into the constitution itself.

Hold that fact. In 1971 the privy purses were abolished, by a Congress government, by constitutional amendment, after an earlier attempt was struck down by the Supreme Court. Part Eight of this series deals with it. Whatever you think of hereditary payments to former autocrats — and there is a good case against them — the guarantee given in 1947 was a term of the bargain that produced the country, and it was withdrawn unilaterally twenty-four years later by the same party that gave it.

This is a forward promise and I am recording it here so it can be paid off later: **Part Eight will return to this and say whether the withdrawal was justified.**

5.3 — Junagadh, and the principle India chose

Junagadh was a small state on the Kathiawar coast. Its ruler was Muslim; the overwhelming majority of its people were not. In August 1947 it acceded to Pakistan, with which it shared no land border.

India rejected the accession. The argument advanced was clear and it was about people: **a ruler cannot hand over a population against its wishes, and where the ruler's religion differs from the majority's, the majority's wishes must govern.** India moved troops to the borders, the state's administration collapsed, the ruler left for Pakistan, and a plebiscite in February 1948 returned an overwhelming vote for India. Now hold that principle in your hand, because Chapter Seven puts it under strain.

THE ARGUMENT — WHICH PRINCIPLE GOVERNS ACCESSION: THE RULER'S SIGNATURE, OR THE PEOPLE'S WISHES?

Three states did not resolve cleanly in 1947: Junagadh, Hyderabad and Kashmir. India's position in each is on the record, and so is Pakistan's.

INDIA'S POSITION

In Junagadh and Hyderabad, both with Muslim rulers and Hindu-majority populations, India argued that the population's wishes must govern and that a ruler could not sign away people who did not want to go. In Kashmir, with a Hindu ruler and a Muslim-majority population, India argued that the ruler's signature was legally decisive and the accession complete — while also offering a plebiscite to confirm it.

PAKISTAN'S POSITION

Exactly the mirror image. In Junagadh and Hyderabad, Pakistan argued the ruler's signature or the ruler's choice of independence was decisive. In Kashmir it argued the population's wishes must govern and the accession was invalid, obtained under duress while an invasion was in progress.

Where things stand: neither state applied a consistent principle, and each applied precisely the principle that delivered the territory it wanted, in each of the three cases. That is a finding about both, not about one. What distinguishes them is that India held the stronger legal ground in Kashmir — a signed instrument, identical in form to hundreds of others — and the stronger moral ground in Junagadh, and it used whichever was to hand.

What would settle it: nothing, because it is not a factual dispute. Both sets of arguments are on the record and both are internally inconsistent. What can be settled is whether anyone at the time noticed the inconsistency, and the answer is that they did: it was raised in the Security Council in 1948, in those terms.

Why people care so much: because a consistent principle applied in 1947 would have given Kashmir to one country and Hyderabad to the other, and neither country can accept that trade even now.

Notice what that argument box does not contain. It contains two governments, three territories and a legal principle, and it does not contain a single person who lived in any of the three places. That absence is not an accident of how I wrote it. It is how the entire dispute has always been conducted, and it points at something underneath.

THE HIDDEN ASSUMPTION

Every account of the princely states — celebratory Indian, resentful Pakistani, wistful royalist — accepts one thing without argument: **that the accession was a decision made by a state.**

It was a decision made by *one man*, in each case, who had inherited his position, ruled without a legislature worth the name, and was in most cases negotiating for his own pension and his own palace at the same time as for his people's citizenship.

Once you see it, the whole vocabulary changes. "Hyderabad chose independence" means a Nizam chose it. "Kashmir acceded to India" means a Maharaja signed. Across several hundred states covering roughly two-fifths of the land area and tens of millions of people, the population was asked in **one** case, Junagadh, and only after the ruler's decision had already been overturned by force.

Why nobody wants to notice. If accession is a ruler's act, India's integration is a triumph of statecraft. If accession is a population's right, then India's own Junagadh argument applies everywhere — including to states whose people were never asked and whose rulers signed for reasons of their own. Pakistan cannot press this either, because the same standard demolishes its case on Junagadh and Hyderabad.

So both sides argue about which ruler was coerced, and neither asks why a ruler's signature was the operative instrument at all, in a country that had just spent thirty years arguing that people should govern themselves.

That assumption is easier to see once you know how much of this episode is documented and how little of the important part is.

HOW WE ACTUALLY KNOW THIS

The instruments of accession are published documents. So are the merger agreements that followed, and the schedules of privy purses, which had to be listed because they were payments from public funds and Parliament had to vote them.

This means the terms of the bargain are not a matter of interpretation. Anybody can read what was signed and what was guaranteed, which is why the 1971 abolition is a hard fact rather than a contested memory.

What it cannot show: what was said. V.P. Menon's negotiations were conducted largely in person, ruler by ruler, and the assurances given in those rooms — about status, about protection, about what integration would eventually mean — survive mainly in his own later account and in the rulers' complaints. One party to each conversation wrote the history of it.

Set against the rest of this series, this chapter is unusual: it is mostly a credit entry. A near-impossible administrative task was carried out at speed, largely without force, by two men who deserve the reputation they have. The charges here are narrow ones — an inconsistent principle, a population never consulted, and a guarantee later withdrawn — and they sit inside an achievement.

REMEMBER THIS

Several hundred states became legally independent in August 1947 and almost all had joined India within about two years. That was **a genuine achievement**, and it belongs to Patel and to V.P. Menon.

Accession transferred only **defence, external affairs and communications**. Rulers kept privileges, property and a constitutionally guaranteed privy purse — **which a Congress government abolished in 1971**. Part Eight owes you a verdict on that.

India and Pakistan each argued whichever principle delivered the territory it wanted, in all three contested cases. And in a country founded on self-rule, the population was consulted exactly once.

CHAPTER SIX

Hyderabad, and the Report

A Prime Minister sent three men to find out what had happened. They found out. Then the finding disappeared for sixty-four years.

6.1 — The state that chose neither

Hyderabad was the largest of the princely states — a territory in the middle of the Indian peninsula, with its own army, currency and railway, covering land that is now spread across three Indian states. Its ruler, the Nizam, was Muslim. The great majority of his subjects were Hindu.

He chose independence. He signed a standstill agreement with India in November 1947 and played for time.

Two things were happening inside his state at once, and both belong in any honest account.

The first was the **Razakars** — an armed militia loyal to the Nizam's cause, led by Qasim Razvi, which used violence against Hindus, against Communists, and against anyone advocating accession to India. Their conduct is not in serious dispute and it was ugly.

The second was a **Communist-led peasant uprising** in Telangana, directed against landlords and against the Nizam's administration, which had taken over large stretches of countryside. The state was losing control of itself from two directions.

6.2 — Operation Polo

On 13 September 1948, the Indian Army entered Hyderabad. Resistance ended within five days. The Nizam surrendered and was retained as ceremonial head of state.

The operation was officially described as a **police action**. Part One flagged this kind of word and this is the clearest example in the series so far: a police action is what a state does inside its own territory to restore order. Calling it that settles, by vocabulary alone, the entire legal question of whether Hyderabad was a foreign state being

invaded or Indian territory being brought to order. That question was genuinely contested at the time. The word decided it before the argument started, and it is still the word in most Indian textbooks.

I will use “annexation” and “military action” in this series and I am telling you that is also a choice.

WORD BOX

Police action: a phrase for the use of armed force framed as internal law enforcement rather than as war.

The practical difference is legal, not military. War is something you conduct against another state, with laws attached. A police action is something you conduct inside your own borders, and no international law of armed conflict applies to it.

Why it matters here: five days of army operations against an entity with its own army and currency were classified, by name, as a matter of domestic order. That classification also affected what had to be reported afterwards.

6.3 — And then, what happened afterwards

The fighting ended on 18 September 1948. What followed was worse than the fighting.

Across the districts of the state, and particularly in the areas that are now in Maharashtra and Karnataka, there was large-scale killing of Muslims. It included looting, arson, mass rape, forcible conversion, and the seizure of homes and land.

The Prime Minister announced, on the Indian victory, that not a single communal incident had marred it.

He then, to his considerable credit, commissioned an inquiry.

6.4 — Three men, nine districts, three weeks

The committee was led by **Pandit Sunderlal**, a Congress figure of long standing, with **Qazi Abdul Ghaffar** and **Maulana Abdulla Misri**. It was appointed by Nehru. It was, deliberately, not a body of officials.

They travelled from 29 November to 21 December 1948. They went through nine of the state’s sixteen districts. They visited 21 towns and 23 large villages. They held 31 public meetings and 27 private ones, with Muslims and Hindus both.

Their conclusion, in their own framing, was a floor rather than an estimate: at a very conservative estimate, at least **27,000 to 40,000** people had lost their lives during and after the military action. In the four worst districts — Osmanabad, Gulbarga, Bidar and Nanded — they put the figure at not less than 18,000, and possibly more. In four others they put it at at least 5,000.

They also recorded that Indian troops had in places participated, and in places incited others.

HOW WE ACTUALLY KNOW THIS

This is the strongest kind of evidence available for an event of this sort, and it is worth being precise about why.

It was commissioned by the head of the government whose army was implicated, which removes the usual objection that a hostile party produced it. Its members included a senior Congress figure, which removes the objection that it came from opponents. It was based on travel through the affected districts within weeks of the events, not on later recollection. And its authors framed their own number as a conservative floor, which is the opposite of how a partisan document is written.

What it cannot show: they reached nine districts of sixteen. They were told those were the worst affected, but they were told that by the authorities, and Part One's rule about terms of reference applies to itineraries too. Their figure covers what they could reach and verify in three weeks. It is a floor, and they said so.

6.5 — Where it went

The report was delivered. It was never published. No official explanation for that was given, then or since.

Elements of it surfaced in 1988. The full document became publicly available only in **2013** — sixty-four years after it was written, and largely through the persistence of individual scholars rather than any act of state.

Apply Part One's rule, and then apply it again. The absence of a published death toll after Hyderabad is a decision. The suppression of a report that *contained* one, commissioned by the Prime Minister himself, is a second and much heavier decision, because in this case the state did not merely fail to count. It counted, wrote the number down, and then removed the number.

THE ARGUMENT — HOW MANY PEOPLE WERE KILLED AFTER OPERATION POLO?

The range in circulation is very wide and the two ends have completely different standing. This is a live test of the grading scale.

THE COMMITTEE'S FLOOR: 27,000–40,000

Produced by a body appointed by the Prime Minister, on the ground within weeks, covering nine districts, and explicitly framed by its own authors as a conservative minimum. It is the only systematic contemporary attempt that exists. Grade: commission-found.

THE HIGHER FIGURES: UP TO 200,000

Larger estimates have circulated for decades, attributed to contemporary observers and repeated by several serious writers. They are not baseless, and they are consistent with a committee figure that covered only nine districts of sixteen and called itself a floor. But no systematic method behind them has been published. Grade: alleged.

Where things stand: the honest position is that the true number is *at least* 27,000 to 40,000 and cannot be stated with any confidence above that. Anyone quoting 200,000 as an established fact is overstating what is known. Anyone quoting 27,000 as a ceiling is misreading a document that describes itself as a floor.

What would settle it: district-level population and revenue records for 1948 and 1949, and the seven districts the committee never reached. Much of this material exists in state archives in Telangana, Maharashtra and Karnataka and has never been systematically examined.

Why people care so much: because the low figure makes this a bad aftermath to a justified action, and the high figure makes it the largest single massacre in the history of the Indian Union, carried out under a government whose founding claim was that it was different from what came before.

One further claim requires care. It has been written, notably by Perry Anderson and repeated by others, that Nehru suppressed the report deliberately, that Patel urged the cancellation of an ambassadorial appointment for one of its authors, and that Indira Gandhi later blocked publication as injurious to the national interest. These accounts come from serious writers. They are not, so far as I can establish, supported by a

released document. Grade: **ALLEGED**. What is **SOLID** is narrower and quite bad enough — the report existed, it was commissioned at the highest level, it was not published, no reason was ever given, and it took sixty-four years to reach the public.

REMEMBER THIS

Hyderabad's ruler was Muslim, his people mostly Hindu, and his militia — the **Razakars** — was genuinely violent. That part of the case for acting is real and goes in.

After the army entered in September 1948, mass killing of Muslims followed. A committee **appointed by Nehru himself** put the toll, as a conservative floor, at **27,000 to 40,000** across nine of sixteen districts.

The report was never published and no reason was ever given. It reached the public in **2013. This is not a state that failed to count. It counted, and then removed the count.**

CHAPTER SEVEN

Kashmir: Twelve Weeks

Between the middle of October 1947 and the first days of January 1948, decisions were taken that have governed three countries ever since. Almost all of them were taken in a hurry.

7.1 — A ruler who chose neither

Jammu and Kashmir was the mirror image of Hyderabad. Its ruler, Maharaja Hari Singh, was Hindu. The majority of his subjects were Muslim. It bordered both new countries.

He did what the Nizam did: he played for time. He offered standstill agreements to both dominions. Pakistan signed one. India did not sign, and asked for talks.

Meanwhile his own state had a functioning political opposition, which is worth noting because it is often left out. The National Conference, led by Sheikh Abdullah, was a mass movement that had spent years agitating against the Maharaja's rule. It was Muslim-led, secular in its stated politics, and hostile to the Muslim League. Its position later mattered enormously.

7.2 — October

In the third week of October 1947, armed tribesmen from Pakistan's North-West Frontier Province crossed into the state in large numbers and advanced towards Srinagar. They looted and killed on the way, which slowed them down and is one reason they never reached the capital.

Pakistan denied involvement. Considerable evidence assembled since points to Pakistani state facilitation — transport, supplies and safe passage on a scale that raiders could not have arranged for themselves. Grade: **ALLEGED** in 1947 and treated by most specialists since as established, though Pakistan has never accepted it.

With his own forces collapsing, the Maharaja asked India for military help. India's answer was that troops could not be sent to what was legally a foreign state. On **26 October 1947** he signed an Instrument of Accession — the same three-subject document several hundred other rulers had signed. Indian troops were airlifted into Srinagar the next day and stopped the advance.

Mountbatten, accepting the accession on India's behalf, wrote that once law and order had been restored and the soil cleared of the invader, the question of the state's accession should be settled by reference to the people. That sentence has been fought over ever since.

THE ARGUMENT — WAS THE ACCESSION VALID?

Everything downstream depends on this and both cases are serious. Here they are at full strength.

VALID, AND STRAIGHTFORWARDLY SO

The document is legally identical in form to the instruments signed by hundreds of other rulers, all of which are accepted without question. It was signed by the recognised sovereign of the state, who under the lapse of paramountcy held exactly this power. India refused to send troops until it was signed, which is the opposite of coercion — it is a state declining to act without legal authority. And the largest popular movement in the state, the National Conference, supported accession to India.

INVALID, OR AT BEST INCOMPLETE

It was signed by a hereditary autocrat with an invading army days from his capital, in circumstances where he had no alternative — the textbook definition of duress. It was signed by a Hindu ruler over a Muslim-majority population, which is the exact situation in which India itself had argued, in Junagadh weeks earlier, that the ruler's signature does not govern. And India's own acceptance letter said the question should be settled by reference to the people, which concedes that the signature alone was not the end of it.

Where things stand: on the narrow legal question the first side is stronger, and the instrument is hard to distinguish from the others. On the question of consistency the second side is stronger and India has no good answer to it, as Chapter Five showed. And the acceptance letter is a real problem for the maximal Indian position, because India wrote it. The most defensible summary: *legally sound, procedurally coerced, and qualified by India's own words at the moment of acceptance.*

What would settle it: nothing now. The plebiscite envisaged in 1948 was never held, and Chapter Eight explains why it became impossible almost immediately.

Why people care so much: because two countries have fought several wars over it, both have nuclear weapons, and each has built a national story in which its own claim is not merely stronger but obvious.

7.3 — Jammu, and the second missing count

While the fighting for the Valley was going on, something else was happening in the Jammu region to the south.

Between October and November 1947, large numbers of Muslims in Jammu province were killed or driven into West Punjab. Estimates run from about **20,000 to about 100,000** killed. In the same period, in Rajouri and in Mirpur, large numbers of Hindus and Sikhs were killed by the raiders and their allies.

Both of those events are real. Neither has ever been officially counted by anybody.

This is the second time in this part that a state which counted crops did not count bodies, and the pattern is now clear enough to state as a rule of this series: **India in these years counted what it intended to administer and did not count what it intended to move past.**

IN REAL TERMS

Take the middle of the Jammu range — say 50,000 people, which is between the published bounds and should be treated as a guess, not a figure.

Fifty thousand is a mid-sized town. It is roughly the crowd at a full cricket stadium. Killed over about six weeks, that is more than a thousand people a day, every day, for the length of a school term, in one province of one princely state, during weeks that are recorded in most histories as the background to a legal dispute about a signature.

The reason you are being given a guess rather than a number is the point of this section.

One factual question sits underneath both sides of that argument and deserves its own treatment, because a great deal of the Indian case depends on it and it is not the sort of thing that comes with a document.

HOW WE ACTUALLY KNOW THIS

The claim that Pakistan facilitated the October invasion rests on a particular kind of evidence, and it is worth seeing the shape of it. Not a confession, and not a captured order. Instead: the logistics. Several thousand armed men moved several hundred miles with fuel, transport and supplies, through territory administered by a state, along one road, without being stopped. Later scholarship has added contemporary British official reporting and the recollections of participants.

That is circumstantial, and circumstantial evidence of this type is strong for a specific reason. The question is not whether somebody helped, but whether an operation of that size could have happened without help. Very few things about 1947 are as well established as the answer.

What it cannot show: how high the decision went, or when. Facilitation by frontier officials, by parts of the army, and by the government in Karachi are three different claims, and the evidence for them is not equally strong. Pakistan has never released the relevant papers.

Twelve weeks, then. An invasion, an accession, an airlift, a war, and tens of thousands of deaths that nobody wrote down. What happened next was that India took the whole thing to New York, and Chapter Eight is about why that did not work.

REMEMBER THIS

Kashmir was **Hyderabad in reverse**: a Hindu ruler over a Muslim-majority population, playing for time, overtaken by force.

The accession of **26 October 1947** was legally the same document hundreds of rulers signed, and was signed under invasion. India's own acceptance letter said the question should later be settled by reference to the people.

Between 20,000 and 100,000 Muslims were killed in Jammu in those same weeks, and Hindus and Sikhs were killed at Rajouri and Mirpur. Nobody has ever counted either.

CHAPTER EIGHT

Kashmir: The Letter of 1 January

India took the dispute to the United Nations expecting an order. It received a process. The difference between those two things is the whole chapter.

8.1 — Why he went

By December 1947 the military position had stabilised and stopped. Indian troops had halted the advance and recovered ground, but could not push far before winter closed the passes. Negotiations between Nehru and Liaquat Ali Khan, with British mediation, had produced nothing.

Nehru had initially resisted taking the matter to the United Nations. He changed his mind, and on **1 January 1948** India wrote to the Security Council.

The reasoning was not stupid, and a fair account has to say so. India held a signed accession and believed it had an open-and-shut case: a member state was facilitating an armed invasion of Indian territory. Presented with that, the Council would surely order Pakistan out. The alternative was a winter of stalemate followed by a wider war with a country India was not certain it could defeat quickly, at a moment when its army had just been divided and its treasury was empty.

8.2 — What Article 35 could actually deliver

The letter was filed under Article 35 of the UN Charter, which sits in Chapter VI.

WORD BOX

Chapter VI and Chapter VII are the two halves of the Security Council’s toolkit.

Chapter VI is “pacific settlement of disputes”. Under it the Council *recommends*. Its resolutions are not binding and cannot be enforced. Article 35 lets any member bring to the Council’s attention a situation whose continuance is likely to endanger international peace.

Chapter VII is “action with respect to threats to the peace”. Under it the Council can *order*, and can authorise sanctions and force.

Why it matters here: India filed a complaint of armed aggression into the half of the Charter that produces recommendations, not orders. Everything that followed was shaped by that choice of door.

Two consequences followed almost immediately, and both were foreseeable.

The Council treated the matter as a dispute with two parties, not a complaint with an accused. India had gone in as a victim naming an aggressor. It came out as one of two disputants. On 20 January 1948 the Council passed Resolution 39, establishing a commission to investigate — a body made up of one member chosen by India, one by Pakistan, and a third chosen by those two. That structure is not the structure of a judgment. It is the structure of a mediation, and it was set up within three weeks.

And India’s own offer became a condition. India had told the Council that although it held a valid accession, it was prepared to hold a plebiscite to confirm the people’s wishes. That was intended as evidence of good faith. It was received as a commitment, and Resolution 47 of 21 April 1948 built a sequence around it: Pakistan withdraws its irregulars, India reduces its forces, then a plebiscite under UN administration.

8.3 — Why the sequence never ran

The sequence was never completed, and the reason is structural rather than mysterious.

Step one required Pakistan to withdraw forces it had officially denied sending. Step two required India to reduce troops in territory it held, before any vote. Each side’s step one was the other side’s precondition, and neither would move first. Both had good reasons not to trust the other, and both were correct not to.

Fighting continued through 1948. A ceasefire took effect on **1 January 1949**. In July 1949 a line was formally defined, with UN military observers to watch it.

That line is the single most consequential thing in this chapter. It was drawn where the armies happened to be standing when the shooting stopped. It was not drawn by reference to who lived where, or to any principle at all. It has moved only marginally in seventy-seven years and it is still, under a different name, the line today.

THE ARGUMENT — WAS GOING TO THE UNITED NATIONS A BLUNDER?

This is one of the most repeated charges against Nehru. It deserves a serious hearing on both sides.

YES — IT INTERNATIONALISED A DOMESTIC MATTER

India held a signed accession and a battlefield position that was improving. Taking it to the Council converted a matter India could describe as internal into a permanent international dispute with an equal party on the other side. It filed under a chapter that produces recommendations, so it got no order. It volunteered a plebiscite that became a condition binding India rather than Pakistan. And it froze the map at the moment India was gaining, ending any prospect of clearing the territory by force.

NO — THE ALTERNATIVES WERE WORSE

Winter had already stopped the advance; the map froze because of the passes, not the Council. Fighting on into 1948 meant a general war with Pakistan against an army India had just finished dividing, with no reserves, no money, four million refugees to feed and several hundred princely states still unresolved. The ceasefire the UN process delivered came at a time when India held the Valley — the thing it most wanted. And the plebiscite never happened, so as a binding commitment it cost India nothing except an argument it has had to have ever since.

Where things stand: the second side is right that the military option was far weaker than the charge assumes, and right that India ended up holding the territory it cared most about. The first side is right about the specific errors of instrument — the choice of Chapter VI, and volunteering the plebiscite before the Council had done anything for India. Those were avoidable and were criticised at the time. The strongest honest form of the charge is not “he should not have gone” but “*he went badly prepared, and gave away his best card on the first day.*”

What would settle it: the internal record of the decision — who advised what, and whether the Chapter VI point was raised before the letter went. Some of this is in published papers; the full file is not open.

Why people care so much: because it is the founding grievance of Indian foreign-policy criticism, and because it is the one moment where a single Nehru decision can plausibly be linked to seventy-seven years of consequences.

Before leaving that argument, notice what both sides of it take for granted. Both are arguing about whether a legal manoeuvre was well or badly executed. Neither asks whether the legal manoeuvre was ever the thing that decided anything.

THE HIDDEN ASSUMPTION

Every participant in the Kashmir argument — Indian, Pakistani, Kashmiri, and the various outsiders — proceeds from a premise none of them defends: **that the legal question is the operative one.**

Watch how completely this holds. India argues the accession was validly executed. Pakistan argues it was obtained under duress and is void. Kashmiri nationalists argue neither party had the right to dispose of them. Everybody is arguing about which document, which signature, which principle. Seventy-seven years of argument about the paperwork.

But the territory has not been determined by any of that for a single day. It was determined in October 1947 by how far raiders got before Indian aircraft arrived, and then in January 1949 by where two armies were standing when they stopped. The line has held not because anyone won the legal argument but because neither side could move it at an acceptable cost.

Why nobody drops the legal frame, even though everybody can see this. Because the alternative statement — “we hold it because we hold it” — is unsayable by a democracy to its own people, and unsayable by either state to the population living there. The legal argument is not how the outcome was produced. It is how the outcome is made speakable.

This one weighs on my own book. I have spent this chapter carefully assessing an instrument of accession, and if the assumption is right, the assessment is a well-conducted analysis of something that never governed anything. I think it is worth doing anyway, because the paperwork determines what each state *can say*, and what a state can say constrains what it can later concede. But I want it on the page that I have written a legal chapter about a military fact.

One practical consequence of the freeze deserves recording, because it recurs. The ceasefire line cut roads, canals, grazing routes and families, exactly as the Radcliffe line had done four hundred miles to the south, and for the same reason: a line drawn by where fighting stopped has no relationship to how a place actually works. Every one of those cuts became a permanent administrative problem for somebody, and the people it fell on had no part in any of the arguments in this chapter.

REMEMBER THIS

India filed under **Article 35, in Chapter VI** — the half of the Charter that recommends rather than orders. It went in naming an aggressor and came out as one of two parties to a dispute, with a mediation commission set up in three weeks.

India's **offer** of a plebiscite, made as evidence of good faith, was converted into a condition. The sequence never ran because each side's first step was the other's precondition.

The line was drawn where the armies were standing on 1 January 1949, by no principle at all, and it is still there. The strongest form of the charge is not that he went, but that he went badly prepared and gave away his best card on day one.

CHAPTER NINE

Writing the Rules

India gave itself a constitution in January 1950. Within weeks it passed a law allowing imprisonment without trial. Both facts are in the same story and neither is a surprise.

9.1 — Who wrote it

The Constituent Assembly that produced the Indian constitution is rightly admired. It contained formidable people, it argued seriously in public, and it produced a document that has outlasted almost every constitution written anywhere in the same decade.

It was also not directly elected by the people of India, and this is left out of most accounts.

Its members were chosen by the provincial legislative assemblies. Those assemblies had been elected in 1946 on a franchise restricted by property, tax and education qualifications, which admitted somewhere around a quarter to a third of the adult population. So the body that wrote a constitution founded on universal adult suffrage was itself selected, indirectly, by an electorate that excluded most adults.

This is not a scandal and I am not presenting it as one. There was no practical alternative in 1946 and the Assembly's own decision to adopt universal suffrage immediately, in one step, in a country with that literacy rate, was genuinely brave and was opposed by serious people. But it does bear on a claim that gets made a lot — that the constitution expressed the will of the Indian people. It expressed the judgment of a remarkable elite, acting in good faith, on their behalf.

9.2 — What was copied

Now the part that matters most for the rest of this series.

The constitution was not written on a blank sheet. Its structural base was the **Government of India Act 1935** — the colonial statute that had been serving as the interim constitution. Large stretches of the machinery came across: the federal structure, the division of legislative subjects, the office of Governor, the financial provisions, the emergency architecture.

Three inheritances deserve naming individually because each becomes a weapon later in this series.

The provision for central takeover of a province. Under section 93 of the 1935 Act, a Governor could assume to himself the powers of a provincial government where administration could not be carried on in accordance with the Act. That is the direct ancestor of **Article 356**. It was designed by a colonial power to override elected Indian provincial ministries, and it was used for that. It was carried into the constitution of independent India substantially intact.

The emergency provisions. A structure allowing the centre to suspend the normal working of the federation. Part Nine of this series is about what happened when they were used to their limit in 1975.

Preventive detention. Not merely permitted but written into the constitution itself, at Article 22, as an express exception to the protections granted in the same article.

WORD BOX

Preventive detention: imprisoning somebody not for something they have done but to stop them doing something in future. No charge, no trial, no conviction.

Ordinary criminal law is punitive: you are arrested for an act, tried, and convicted or released. Preventive detention runs on a prediction about the future, made by an official, and there is nothing for a court to test in the ordinary way, because no offence is alleged.

Why it matters here: most democracies allow something like it in wartime. India wrote it into its permanent peacetime constitution and used it in its first year.

9.3 — The first year

The constitution came into force on 26 January 1950. The **Preventive Detention Act** was passed in February 1950 — weeks later.

It was challenged almost at once. In *A.K. Gopalan v. State of Madras*, decided in 1950, the Supreme Court largely upheld it, reading the constitution's protections narrowly and treating each fundamental right as a separate compartment rather than as a connected scheme. That reading stood for two decades before being overturned.

The people first detained under it included Communists — that is, political opponents.

THE ARGUMENT — DID INDIA NEED DETENTION WITHOUT TRIAL IN 1950?

This is not a case where one side is obviously posturing. Both have real weight.

YES, AND REFUSING WOULD HAVE BEEN RECKLESS

Look at the actual year. An armed Communist insurrection was running in Telangana. Partition violence was still producing organised armed groups. A war in Kashmir had just been fought to a ceasefire. Gandhi had been assassinated by an organised conspiracy in January 1948. Several million refugees were living in camps. A state with a functioning criminal law but no capacity to run thousands of contested trials, in that year, needed a holding power, and the elected representatives of the country said so openly and voted for it.

NO, AND THE TIMING IS THE TELL

Every emergency argument is made in an emergency; that is what the word means. The test is what happens when the emergency ends, and this power never ended — it has been renewed, replaced and re-enacted in different forms continuously ever since, through decades containing no insurrection. And these were people who had themselves been detained without trial by the British, who knew exactly what the power felt like from the inside, and who wrote it into the permanent constitution rather than into a temporary statute with an expiry date.

Where things stand: the first side wins on 1950 and loses on everything after it. The circumstances were genuinely extreme and the case for a temporary power is respectable. What the first side cannot explain is the choice to put it in the constitution itself rather than in a law with a sunset clause — a choice that required no emergency and had no cost in 1950.

What would settle it: the Constituent Assembly debates, which are published in full, record who argued for a time limit and who resisted one. Anyone can read them. Almost nobody has.

Why people care so much: because every Indian government since has used this power, and because the party that wrote it into the constitution is the party that, twenty-five years later, used its descendants to jail its opponents wholesale.

9.4 — Article 370, and the promise attached to it

One more provision belongs here because Chapter Eight left it hanging.

Article 370 gave Jammu and Kashmir a special constitutional position: its own constitution, and a limit on Parliament's power to legislate for it without the state's concurrence. It was placed in the part of the constitution headed "Temporary, Transitional and Special Provisions". The word temporary is in the document.

Two things follow and both are load-bearing for later parts. First, the arrangement was presented as provisional pending a final settlement — which is consistent with the plebiscite language of 1947 and 1948 and inconsistent with treating the accession as having closed the question. Second, it was hollowed out gradually over the following decades by a long series of orders and amendments, most of them made by Congress governments, until relatively little of the original autonomy remained well before it was formally removed in 2019.

Recording that as a forward promise: **Part Seven of this series traces the hollowing-out year by year, and Part Eighteen deals with the removal.**

THE HIDDEN ASSUMPTION

Everyone who argues about the Indian constitution — those who admire it and those who think it too centralising — shares a premise: **that it was designed**. That a group of people sat down, decided what kind of state they wanted, and built it.

Much of it was not designed. It was *edited*. The base text was a colonial statute, and the parts that survived the edit least changed are precisely the parts concerned with control: the takeover of provinces, the emergency architecture, detention without trial.

Here is why that is more than a technical point. The freedom movement told itself for thirty years that the problem was the British. Not the district magistrate's powers — the fact that a foreigner held them. Not the detention law — the fact that it was used against nationalists. If the problem is *who holds the instrument*, then independence solves it completely, and keeping the instrument is not merely acceptable but sensible, because now it is in the right hands.

If the problem was the instrument, independence solved nothing about it, and the freedom movement's own framing had made that conclusion nearly unthinkable to the people best placed to reach it.

The test is what happened next, and it runs the length of this series. The powers were kept. The powers were used. Article 356 was used against elected state governments dozens of times. Detention without trial never lapsed. In 1975 the emergency architecture was used to suspend the constitution itself, by the party that wrote it.

Both sides of the ordinary argument miss this in the same way. The admirer credits the framers with designing a durable democracy. The critic blames them for designing an over-mighty centre. Neither notices that on the specific question of coercive power, **the framers largely did not design at all. They inherited, and left it running.**

That is a heavy charge to lay at the door of people who cannot answer it, so it is worth being clear about how much of their thinking is actually recoverable.

HOW WE ACTUALLY KNOW THIS

For this chapter the evidence is close to ideal, and almost nobody uses it. The Constituent Assembly debates were recorded verbatim and are published in full. You can read who proposed preventive detention, who objected, what the objections were, and how the vote went. The same is true of the parliamentary debates on the Preventive Detention Act weeks later.

There is no need to infer intent here. The framers said what they thought, at length, on the record, knowing it would be published.

What it cannot show: what was settled outside the chamber. A great deal of the constitution was worked out in committee and in private negotiation, and the floor debate is sometimes the ratification of a decision already taken rather than the making of one. Where the debate is thin on a major provision, that is often the sign.

9.5 — Promises entered into the record

Part One committed this series to naming forward promises where they are made, so that later parts can be checked against them. Four were made in the period covered by this part, and all four come due later.

The privy purses and the guarantees to the rulers, written into the constitution as the price of accession. Withdrawn in 1971. Part Eight owes a verdict.

The plebiscite in Kashmir, offered by India to the Security Council in January 1948 and never held. Part Seven owes an account of when and why the offer stopped being live.

Article 370 as a temporary provision. Temporary is the constitution's own word. Part Seven owes the year-by-year record of what happened to it, and Part Eighteen owes the 2019 removal.

Detention without trial as an emergency measure. Justified in 1950 by circumstances everybody could see. Part Nine owes the account of what it became in 1975.

Write these down. A series that makes promises and does not pay them is doing the thing it accuses others of.

REMEMBER THIS

The Constituent Assembly was **indirectly chosen by assemblies elected on a restricted franchise**. It then granted universal adult suffrage in one step, which was brave. But it did not express the will of the people; it acted on their behalf.

The constitution's base text was the **Government of India Act 1935**, and what survived least changed was the machinery of control: central takeover of provinces, the emergency provisions, and **preventive detention written into the constitution itself**.

The Preventive Detention Act was passed **weeks after** the constitution came into force, and was used against political opponents in year one. **The emergency justified a power. It did not justify making it permanent, and that part cost nothing to get right.**

CHAPTER TEN

An Honest List of What We Do Not Know

This part contains more missing numbers than any other in the series. That is not a weakness of the research. It is the finding.

10.1 — Genuinely unknown

Five things in this part cannot be established, and in four of the five cases the reason they cannot be established is more interesting than the gap.

How many people died in the Partition violence. The published range runs from about 200,000 to about 2 million. The low end counts what reached an administration; the high end reasons from demography and testimony.

Why it is unknown: nobody tried. Not in 1948 with the camps full, not in the 1951 census, not since. Two new states each needed a founding account that a real number would have damaged.

How many were killed in Jammu in October and November 1947. Published estimates for Muslims killed run from about 20,000 to about 100,000, a factor of five. Killings of Hindus and Sikhs at Rajouri and Mirpur in the same weeks have no published figure at all.

Why it is unknown: the territory was a war zone under a princely administration that was collapsing, and afterwards it belonged to a dispute that both governments wanted to argue in terms of law rather than blood.

How many were killed after the Hyderabad action, above the committee's floor. The Sunderlal committee reached nine districts of sixteen and described its own 27,000 to 40,000 as a conservative minimum. What the other seven districts contained has never been established.

Why it is unknown: the committee had three weeks and was directed to the districts the authorities named. Then the report was suppressed, so no follow-up was ever commissioned.

Why the Sunderlal report was suppressed. No document explaining the decision has been released. Serious writers have attributed it to Nehru, to Patel's urging, and later to Indira Gandhi's refusal to publish. Grade: **ALLEGED**. I am not going to convert that into a finding by repeating it confidently.

Why it is unknown: because the papers have not been released, which is itself the second-order version of the same decision.

What proportion of the 1947 violence was organised. The evidence that some of it was organised is strong: coordinated timing, ambushes at chosen points, armed bands moving between districts, participation in places by men in uniform. The proportion is unknown.

Why it is unknown: establishing it required contemporaneous investigation, and there was none. This one is now close to unrecoverable, and it is the single most consequential thing this part cannot tell you.

10.2 — Solid

The documentary chronology. The award finished on 12 August, submitted on the 13th, circulated on the 16th, published on the 17th. The accession signed on 26 October 1947, the airlift on the 27th. India's letter to the Security Council on 1 January 1948. Resolution 39 on 20 January, Resolution 47 on 21 April. Ceasefire on 1 January 1949. The constitution in force on 26 January 1950. None of this is in dispute anywhere.

The legal texts. What the Instrument of Accession transferred, and that Kashmir's was in the same form as the others. That Article 22 authorises preventive detention. That Article 356 descends from section 93 of the Government of India Act 1935. That Article 370 sits under a heading containing the word "temporary". These are readable by anybody and they settle several arguments that are still conducted as though they were open.

That India filed under Article 35, in Chapter VI. A matter of record, and it determined that the Council could recommend and not order.

The Sunderlal committee's existence, appointment and finding. Commissioned by Nehru. Three named members. On the ground from 29 November to 21 December 1948, across nine districts, 21 towns and 23 large villages. Conservative floor of 27,000 to 40,000 dead. Not published until 2013. Grade: **COMMISSION-FOUND**, and it is the strongest single document in this part.

The integration of the princely states. Substantially complete within about two years, achieved mainly by negotiation. This is solid and it is a credit item.

The asymmetry between the two refugee operations. Not disputed by anybody, including by those who explain it as structural rather than chosen.

Who wrote the constitution. The Assembly's composition, and the franchise of the 1946 elections that produced the bodies which chose it, are matters of record.

10.3 — The three files

Most of section 10.1 could be closed by three sets of papers that exist and are not open.

The full record of the meeting of 16 August 1947, at which the boundary award was put in front of the Indian and Pakistani leaderships. It would establish whether anybody in that room argued for immediate publication.

The Sunderlal committee's underlying material and the decision not to publish. Sixty-four years of suppression is documented. The reasoning is not.

The internal advice preceding the letter of 1 January 1948. Whether the distinction between Chapter VI and Chapter VII was put to Nehru before the letter went, and by whom, is the difference between an error and an oversight.

None of these is a national security matter in 2026. All three are older than most of the people they would embarrass, and every one of those people is dead.

REMEMBER THIS

Genuinely unknown: **the Partition toll, the Jammu toll, the Hyderabad toll above the committee's floor, why the report was suppressed, and how much of the violence was organised.**

Solid: **the documentary chronology, the legal texts, the Chapter VI filing, the Sunderlal committee's finding, the integration of the states, the refugee asymmetry, and the composition of the Constituent Assembly.**

Three closed files would settle most of the first list. None of them is a security matter now, and everybody they could embarrass is dead.

REFERENCE

Timeline, 1946–1950

Dates only. The arguments are in the chapters.

DATE	WHAT HAPPENED
Aug 1946	Killing in Calcutta leaves roughly four thousand dead and about a hundred thousand homeless. The violence of Partition begins before the decision to partition.
Mar 1947	Mountbatten arrives with a mandate to end British rule by June 1948.
3 Jun 1947	The partition plan is announced. Independence is brought forward to 15 August 1947.
8 Jul 1947	Radcliffe reaches Delhi. He has about five weeks and has never been to India.
Jul 1947	The States Department is created under Patel, with V.P. Menon as secretary. The Punjab Boundary Force deploys, around 55,000 strong.
18 Jul 1947	The Indian Independence Act is passed. Paramountcy will lapse; princely states become legally free.
12–13 Aug	Radcliffe completes the award and submits it sealed to the Viceroy.
14–15 Aug	Pakistan and India become independent dominions. The border is not published.
16 Aug	The award is shown to both leaderships. Both object. Both agree to let it stand.
17 Aug 1947	The award is published. People near the border learn which country they are in.
Aug–Nov 1947	Mass killing and migration across Punjab and Bengal, and in Delhi. Between 200,000 and 2 million dead; 12 to 20 million displaced. No count is attempted.
Sept 1947	Junagadh's accession to Pakistan is rejected by India on the principle that the population's wishes govern.
Oct–Nov 1947	Killings in Jammu province: between 20,000 and 100,000 Muslims. Hindus and Sikhs killed at Rajouri and Mirpur. Neither counted.
22 Oct 1947	Armed tribesmen from Pakistan's frontier enter Jammu and Kashmir and advance on Srinagar.
26 Oct 1947	The Maharaja signs the Instrument of Accession. India airlifts troops to Srinagar the next day.

DATE	WHAT HAPPENED
Nov 1947	India signs a standstill agreement with Hyderabad. The Nizam plays for time.
1 Jan 1948	India writes to the UN Security Council under Article 35, in Chapter VI.
20 Jan 1948	Resolution 39 sets up a commission — a mediation body, not an enforcement one.
30 Jan 1948	Gandhi is assassinated by an organised conspiracy.
Feb 1948	A plebiscite in Junagadh returns an overwhelming vote for India. It is the only time any princely population is asked.
21 Apr 1948	Resolution 47 sets a sequence: Pakistan withdraws, India reduces, then a plebiscite. It is never completed.
13–18 Sep 1948	Operation Polo. The Indian Army enters Hyderabad; resistance ends in five days.
Sept–Oct 1948	Mass killing of Muslims across Hyderabad state. Nehru states publicly that no communal incident marred the operation.
29 Nov–21 Dec 1948	The Sunderlal committee travels through nine of sixteen districts.
1 Jan 1949	Ceasefire in Kashmir. The line stands where the armies stopped.
1949	The Sunderlal report is delivered. It is not published. It becomes public in 2013.
Jul 1949	The ceasefire line is formally defined, with UN observers to watch it.
26 Nov 1949	The Constituent Assembly adopts the constitution.
26 Jan 1950	The constitution comes into force. India becomes a republic.
Feb 1950	The Preventive Detention Act is passed, weeks later. Communists are among the first detained.

Part Three starts here. It opens in 1951, with a government holding a constitution fifteen months old and preparing to amend its guarantee of free speech.

REFERENCE

Glossary

Every hard word used in this part, in plain English.

WORD	WHAT IT MEANS
Article 22	The part of the Indian constitution which, alongside protections for arrested people, expressly permits preventive detention.
Article 356	The provision allowing the centre to dismiss an elected state government. Descended from section 93 of the Government of India Act 1935.
Article 370	The provision giving Jammu and Kashmir a special constitutional position, placed under a heading including the word “temporary”.
Boundary award	The published decision of a boundary commission fixing a border. Borrowed from arbitration: the parties agree in advance to accept it.
Chapter VI	The half of the UN Charter dealing with peaceful settlement. The Security Council can recommend, not order.
Chapter VII	The half dealing with threats to peace. Here the Council can order, and authorise sanctions or force.
Communal	In Indian usage, relating to conflict between religious communities. Names the participants and says nothing about organisation.
Dominion	A self-governing country within the Commonwealth with the British monarch as formal head of state. India was one until January 1950.
Evacuee property	Land and buildings left behind by people who migrated at Partition, taken over by the state and used to compensate incoming refugees.
Instrument of Accession	The document by which a princely ruler joined India or Pakistan, transferring three subjects only: defence, external affairs and communications.
Paramountcy	British control of the princely states’ defence and foreign affairs by treaty. It lapsed in 1947 rather than transferring.
Plebiscite	A direct vote of a population on a single question, such as which country to join.
Police action	Armed force framed as internal law enforcement rather than war. The classification is legal, not military.

WORD	WHAT IT MEANS
Preventive detention	Imprisonment to stop somebody doing something in future. No charge, no trial, no conviction.
Privy purse	The annual tax-free payment guaranteed to former princely rulers, written into the constitution and abolished in 1971.
Razakars	The armed militia loyal to the Nizam of Hyderabad, which used violence against Hindus, Communists and supporters of accession to India.
Standard acre	Land measured by what it yields rather than its area, used to match refugee claims against available land.
Standstill agreement	A holding arrangement keeping existing administrative ties running while accession terms were settled.

ABOUT

About the Author

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EDUCATION	BCom, Chandigarh University · MBA (Business Strategy and Analysis), Panjab University
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I write long-form research on Indian history, society, belief and public life, and publish it at misterlove.in under the name The Living Archive. Before this series I completed a fourteen-part history of Punjab, running to around nine hundred and fifty pages, and a sixteen-part study of the rules societies place on women.

I am not a historian by training and I do not claim to be one. What I do is take material that exists in scattered, difficult and expensive places and rebuild it as something an ordinary reader can get through, without removing any of the argument. That is not the same job as original research and I try never to blur the two.

This part was harder to write than the last one and I want to say why. Everything in Chapters Three, Six and Seven is somebody's family. I have tried to keep the same standard of evidence pointing in every direction, and where I could not establish something I have said so rather than reaching for the estimate that suited the argument. If I have failed at that anywhere, it will be in Punjab, and I would like to be told.

THE RULES OF THIS PROJECT

The Living Archive

Everything published under this name follows three rules.

Plain language, undiminished content. The words are as simple as I can make them. The argument is not simplified with them. Where the two pull against each other, the passage gets longer rather than thinner.

Show the evidence, and show what it cannot prove. Every serious claim names what it rests on, and every source is described honestly, including what it is blind to.

Give every side its strongest case. Where people who know the material disagree, both positions appear at full strength, and I say when the evidence does not settle it.

PLEASE READ THIS

A Word on Sources

This part carries no footnotes. It is a synthesis of the published record — the Sunderlal committee report, UN Security Council documents and resolutions, the Government of India Act 1935 and the Constitution of India, the Constituent Assembly debates, contemporary and scholarly estimates of the Partition toll, and published biography and history. Where a specific document does the work, it is named in the text so you can find it.

What this archive is good at, and bad at. For this period the legal and diplomatic record is excellent: texts, dates, resolutions and debates are all published and easy to reach. The human record is the opposite. Deaths were not counted, camps recorded arrivals rather than losses, and most testimony was collected decades later by private projects rather than by any state. That imbalance runs in one direction and every chapter here is shaped by it.

Where a claim rests only on an institution's account of its own conduct, or on a serious writer's assertion without a released document behind it, I have graded it in the text. The suppression of the Sunderlal report is the clearest case: the suppression is solid, the reasons for it are alleged.

Corrections. If something here is wrong, write to me. Later editions will say what was changed and who caught it. A book that argues one side has no standing to complain about being checked.

Lovepreet Singh

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NEXT

What Comes Next

Part Three — The Constitution Amended, 1950 to 1959

Part Three takes the first decade of the republic. It asks:

- Why did a government amend its own brand-new guarantee of free speech within fifteen months of adopting it, and who was it aimed at?
- What was the Ninth Schedule created to protect, what ended up inside it over the following decades, and was the drift foreseeable in 1951?
- The first general election was the largest ever held anywhere on Earth. How was it actually run, what did it cost, and what did the government learn about its own reach?
- Land reform was legislated across most of India in this decade. What happened between the statute and the field, and which states were the exceptions?
- On what grounds was the elected government of Kerala dismissed in 1959, and did those grounds meet the test written into Article 356?
- By 1959, who inside Congress was still able to tell the leadership it was wrong, and what had happened to the ones who tried?

Questions, not topics. If any of them is answered badly, you will be able to tell.

END OF PART TWO OF NINETEEN · THE CONGRESS RECORD · THE LIVING ARCHIVE · MISTERLOVE.IN

THE LIVING ARCHIVE

PART THREE OF NINETEEN

The Congress Record

Part Three — The Constitution Amended, 1950–1959

The first decade of the republic. A brand-new constitution, amended within fifteen months. The largest election ever held. Land reform that passed everywhere and happened almost nowhere. And the first elected state government dismissed from Delhi.

The decade's achievements were real and several were extraordinary. This part gives them their weight and then asks what was being built alongside them, because the instruments assembled here are the ones used in 1975.

WRITTEN AND RESEARCHED BY

Lovepreet Singh

INDIA · 1950 TO 1959

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BEFORE WE BEGIN

Where We Left Off

Part Two ended with a constitution coming into force. This part is about what was done to it almost immediately.

Part Two covered the first thousand days: Partition, the refugees, the princely states, Hyderabad, Kashmir, and the writing of the constitution. Four things from it carry directly into this part.

What changed hands in 1947 was an apparatus, not a country. A civil service, an army, a revenue system and a body of law, all built to govern a population assumed to be hostile. The new government kept it, which was sensible, and then found — as anyone would — that reaching for it was always the easiest thing to do.

The constitution was substantially edited rather than designed. Its base text was the Government of India Act 1935, and what survived the edit least changed was the machinery of control: central takeover of provinces, the emergency architecture, and preventive detention written into the document itself. Chapter Seven of this part is the first time one of those instruments is used against an elected government.

When a state that counts everything has no count of something, somebody decided that. Part Two applied this to the Partition dead, to Jammu, and to Hyderabad, where a committee appointed by the Prime Minister found a floor of twenty-seven to forty thousand killed and the report was not published for sixty-four years. In this part the rule applies to something less dramatic and equally revealing: land records.

Four forward promises were entered into the record — the privy purses, the Kashmir plebiscite, Article 370 as a temporary provision, and detention without trial as an emergency measure. None of them comes due here. All four are still on the books.

One more thing before we start. This is the decade in which the Congress record is at its strongest, and a prosecution brief that cannot say so is not worth reading. The first general election alone was an administrative achievement with no equal anywhere in the world at that time, and it was carried out by a government that could have found a hundred reasons to postpone it. That goes in first, in Chapter Three, at full weight.

HOW TO READ THIS BOOK

The Six Boxes

Six coloured boxes run through the series, each doing one job. Here they are again with examples from the decade ahead.

A **Word Box** explains a hard word the moment it first appears.

WORD BOX

Zamindar: a landholder who collected revenue from the peasants working the land and passed a share to the state, keeping the rest. Not a farmer. An intermediary between the cultivator and the government.

The system was built up under British administration as a way of collecting revenue without having to deal with millions of individual cultivators. Over time the intermediaries became a landed class with legal rights in land they did not work.

Why it matters here: abolishing them was the single largest promise Congress made in this decade, and Chapter Four is about the distance between the law and the field.

An **In Real Terms** box turns a number too big to picture into something with a body.

IN REAL TERMS

The first general election had 173 million registered voters out of a population of about 361 million. Roughly 85 out of every 100 of them could not read.

So the ballot could not carry names. Each candidate was given a symbol and his own separate ballot box, and the voter dropped a paper in the box carrying the symbol he wanted. That is why Indian parties still have symbols today — a plough, a lamp, a hand — and why those symbols are fought over in court.

A design decision taken in 1951, because most voters could not read a name, is still visible on every ballot paper seventy-five years later.

A **How We Actually Know This** box shows the physical evidence and then says what it cannot prove.

HOW WE ACTUALLY KNOW THIS

This part rests on an unusually good class of source: things said on the record by people who knew they were being recorded. Parliamentary debates on every amendment. Supreme Court judgments with reasons attached. Election Commission returns. Five-Year Plan documents with stated targets.

The strength of this material is that none of it was written to be evidence in an argument seventy years later. A plan target was written to be met.

What it cannot show: what was decided before the debate. A parliamentary speech is often the ratification of a decision already taken in a party meeting for which no record exists, and where a major provision passes with a thin debate, that is usually the sign.

An **Argument** box appears where serious people disagree, each side at its strongest.

THE ARGUMENT — WAS THIS A DECADE OF CONSTRUCTION OR OF DRIFT?

Before the detail, the overall verdict, because the two readings of the 1950s are genuinely far apart.

CONSTRUCTION

In ten years India held two national elections on universal suffrage, built an election commission, reorganised its entire internal map without civil war, abolished a landed intermediary class in law, reformed the personal law of the majority community over ferocious resistance, and set up the institutions — planning, atomic energy, higher technical education — that everything since has run on. Compare any other country that became independent in that decade.

DRIFT

Compare instead against what was promised and funded. Land reform passed almost everywhere and transferred very little. Food output did not keep pace and the decade ended with imports rising. Literacy moved slowly from a very low base. And the constitutional instruments assembled in these years — the amendment used to override courts, the schedule immune from review, the dismissal of an elected government — are precisely the ones that produce 1975. The construction was real and so was the wiring.

Where things stand: both are describing the same decade accurately and neither cancels the other. The honest reading is that the achievements were largely in *building institutions* and the failures largely in *changing what happened in villages*, and that the gap between those two is the story of the next forty years.

What would settle it: nothing global. It is settled item by item, which is what the ten chapters do.

Why people care so much: because the 1950s is the period every side wants. It is the founding decade for those who admire Congress and the origin story for those who blame it, and both readings are available from the same record.

A **Hidden Assumption** box digs out a belief sitting underneath an argument that *both sides accept without discussing*.

THE HIDDEN ASSUMPTION

Everyone who argues about this decade — admirers and critics — treats the constitution as **a constraint on the government**.

That is what a constitution is for, and it is how the argument is always framed: did the government respect it, or work around it? Both sides agree on the shape of the question.

But look at the mechanics of what actually happened. A court read the constitution in a way the government disliked. The government amended the constitution. The amendment was upheld. Total elapsed time: about a year.

For a document to constrain a government, amending it has to be harder than obeying it. In India through this period it was not, because one party held a large enough majority to amend at will. So the constitution functioned as a constraint on *everybody except the people who could change it* — which is to say, on everybody except the government.

Keep this in view. It is not an argument that the amendments were wrong. Several were defensible and one was necessary. It is an observation that the question “was this constitutional?” had, in these years, a different meaning from the one it has in ordinary usage.

And every chapter closes with a **Remember This** box: the chapter in the plainest words available.

REMEMBER THIS

Part Two established that the constitution was **edited from a colonial statute**, and that the machinery of control survived the edit nearly intact. This part is about the first decade in which that machinery was used.

The achievements of the 1950s were **real and large**, and this part gives them their weight before it gives them their bill.

A constitution constrains a government only if amending it is harder than obeying it. For most of this decade it was not.

Part Three

Contents

1. Fifteen Months

Two newspapers and two judgments · what was added to Article 19 · the parliament that had never faced a voter · the precedent that outlived the argument

2. The Ninth Schedule

A box built for land reform · thirteen laws become two hundred and fifty · what got in that had nothing to do with land · the review that came twenty-two years late

3. The Largest Election Ever Held

173 million voters, 85 in 100 unable to read · symbols and separate boxes · 68 phases · forty-five per cent of the vote and three-quarters of the seats

4. Land Reform: the Law and the Field

Abolition on paper · ceilings, exemptions and the personal cultivation clause · why the record was the obstacle · which states were the exceptions and what they had in common

5. The Hindu Code

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6. Redrawing the Map

A death by fasting in 1952 · the commission and its rules · what was granted in the south and refused in the north · the argument nobody had

7. Kerala, 1959

A communist government and its two bills · the Liberation Struggle · the Prime Minister's hesitation and the party president's insistence · the first political use of Article 356

8. Who Could Still Say No

Patel's death · the Tandon episode · one man as prime minister and party president · what replaced the people who could disagree

9. What Was Promised and What Arrived

The plans and their own targets · food, literacy, work · the state ledger for the decade · scoring by their own standard

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CHAPTER ONE

Fifteen Months

The constitution came into force in January 1950. Its guarantee of free speech was rewritten in June 1951. The reason was two small magazines.

1.1 — Two newspapers and two judgments

In 1950 the government of Madras banned the entry and circulation of a journal called *Cross Roads*, edited by Romesh Thapar. It was a left-wing publication and it had been criticising the Madras government's treatment of communist prisoners. The ban was imposed under a state public order law.

At about the same time, the government of Delhi imposed pre-censorship on a weekly called *Organiser* — a publication of the Hindu right — requiring it to submit material before printing. That order was made under a public safety law inherited from East Punjab.

Both went to the Supreme Court. In *Romesh Thappar v. State of Madras*, decided on 26 May 1950, and in *Brij Bhushan v. State of Delhi*, the Court struck both down. Its reasoning was narrow and textual: the constitution as written permitted restrictions on speech only on the specific grounds it listed, and general disturbance of public order was not among them.

Notice the shape of this. One publication was communist, one was Hindu nationalist, and they were on opposite sides of everything. The Court protected both, on the same reasoning, within weeks. That is a court doing exactly what a court is for.

Around the same period two other lines of cases were causing the government trouble. State laws abolishing zamindari were being challenged and in places struck down, on the ground that they took property without adequate compensation. And in *State of Madras v. Champakam Dorairajan*, the Court struck down caste-based quotas in educational admissions as discriminatory.

So by early 1951 the government faced a constitution that was blocking it on three fronts at once: speech, land, and affirmative action.

1.2 — What the amendment actually did

Jawaharlal Nehru moved the First Amendment on 10 May 1951. It came into effect on 18 June 1951.

It did four things, and an honest account has to separate them because they are not equally objectionable.

It rewrote Article 19(2), the clause governing restrictions on speech, adding three new grounds: **public order**, **friendly relations with foreign States**, and **incitement to an offence**.

It inserted the word “reasonable”. This is the part almost always left out, and it cuts for the defence. The original clause simply permitted laws on the listed grounds. The amended clause permits only *reasonable* restrictions — which means every restriction is now testable in court for reasonableness. In one respect the amendment expanded what the state could restrict and in another it gave the courts a tool they had not previously had.

It added Article 15(4), permitting special provision for socially and educationally backward classes — the constitutional basis of reservation in education, undoing *Champakam Dorairajan*.

It added Articles 31A and 31B and created the Ninth Schedule, shielding land reform laws from challenge. Chapter Two is about that.

WORD BOX

Public order: in Indian constitutional law, the general peace and tranquillity of the community — a broader idea than “security of the State”.

The difference matters enormously and it is not obvious. “Security of the State” means something that threatens the state’s existence: rebellion, war, insurrection. “Public order” covers anything that disturbs ordinary community peace, which can include a speech that makes a crowd angry, or a magazine that offends people.

Why it matters here: the Court in 1950 held that disturbing public order was not a permitted ground for restricting speech. The amendment made it one. Almost every speech restriction in India since has been justified under those two words.

1.3 — Who passed it

Now the fact that decides how heavy this charge is.

The First Amendment was passed before India's first general election.

The body that passed it was the Provisional Parliament — the Constituent Assembly, continuing to sit as a legislature until elections could be held. Its members had been chosen indirectly, by provincial assemblies elected in 1946 on a franchise restricted by property, tax and education, admitting somewhere around a quarter to a third of adults.

The first general election ran from 25 October 1951 to 21 February 1952. The amendment was law by 18 June 1951.

So a constitutional guarantee of free speech, adopted in the name of the people of India, was narrowed four months before the people of India voted for the first time, by a chamber none of them had elected.

This was not a secret and it was not unopposed. Syama Prasad Mookerjee, Acharya Kripalani, H.V. Kamath and others argued against it on the floor. B.R. Ambedkar supported it. Nehru told Parliament that the free press was poisoning the minds of the younger generation and degrading their mental integrity and moral standards. Everybody said what they thought and it is all in the record.

THE ARGUMENT — WAS THE FIRST AMENDMENT JUSTIFIED?

This is fought over in India today more than it was in 1951, and both sides have real material.

IT WAS NECESSARY

The situation was not theoretical. Communal organisations and communist insurgents were both active and both used publications to organise. A constitution that permitted no restriction on speech that produced disorder, in a country that had just lost hundreds of thousands of people to organised communal violence, was a genuine gap and the Court had confirmed it. The amendment also added the word “reasonable”, making every restriction reviewable — a net gain for liberty that the critics never mention. And it restored the ability to legislate for backward classes and to abolish zamindari, both of which the Court had blocked.

IT WAS AN OVERREACTION WITH PERMANENT COSTS

Two magazines with small circulations produced an amendment to the constitution within a year. “Public order” and “friendly relations with foreign States” are extraordinarily wide, and every subsequent speech restriction in India has sheltered under them. The land reform and backward-classes provisions could have been enacted separately; bundling them with speech meant that opposing the speech clause meant opposing land reform, which is a drafting choice with a purpose. And it was passed by a chamber that had never faced an electorate, four months before one existed.

Where things stand: the first side wins on the land and backward-classes provisions, which were defensible responses to real judicial obstacles, and wins a point on “reasonable” that critics consistently ignore. The second side wins on the speech grounds and on the timing. The bundling is the strongest single element of the charge, because it was avoidable, deliberate, and made honest opposition nearly impossible.

What would settle it: nothing about 1951. But a testable question does follow: are the powers created here used mainly against organised violence, or mainly against criticism? Seventy-five years of prosecutions under public-order provisions are on the record and would answer it. Nobody has assembled that count.

Why people care so much: because the party that later governed under emergency censorship wrote the clause, and because the party that now benefits from those same clauses was, in 1951, the publisher being censored.

1.4 — The precedent, which outlived the argument

All of the above is the surface of the chapter. Underneath it is something more consequential and much less discussed.

What the First Amendment established was not a rule about speech. It established a **method**: when a court reads the constitution in a way the government finds inconvenient, the government amends the constitution.

The Supreme Court upheld the amendment in *Shankari Prasad* later that year, holding that Parliament’s power to amend was not limited by the fundamental rights. That reading stood for over two decades. It is the reason the story of the next twenty-five

years of Indian constitutional history is a story of amendments — and why it culminates, in Part Nine, in an amendment that placed the Prime Minister's own election beyond judicial reach.

THE HIDDEN ASSUMPTION

Everyone arguing about the First Amendment — then and now — assumes **that the fight was about speech.**

One side says the restrictions were needed. The other says they were excessive. Both are arguing about how much speech should be permitted, and both treat that as the question the amendment answered.

It is not what the amendment produced. The durable product was a *procedure*: a demonstration that a judicial reading of the constitution could be reversed by legislation, quickly, by a government with the numbers. Speech was the occasion. The procedure was the output, and the procedure had no subject matter — it worked equally well on property, on elections, and eventually on the courts themselves.

You can see the assumption doing its work in how the argument is conducted today. Both camps in India debate whether Nehru was right about *Cross Roads* and *Organiser*. Neither asks whether a constitution that can be edited in thirteen months by the government it exists to constrain is functioning as a constitution at all — because answering that would embarrass every party that has ever held a majority, which is to say all of them.

This is why the chapter is placed first. Nothing else in this part is as consequential, and it is the only item in the decade that directly explains 1975.

One more thing to hold on to. Nothing in this chapter required bad faith. A government facing an insurgency, a communal aftermath and a blocked land reform, holding a huge majority and a sincere belief in its own purposes, will amend a constitution that gets in its way. That is not a moral failure. It is what a majority does when amending is cheap, and the framers had made it cheap.

REMEMBER THIS

Two small magazines — one communist, one Hindu nationalist — won free-speech cases in 1950. Within a year the constitution was amended to add **public order, friendly relations with foreign States, and incitement to an offence** as grounds for restricting speech.

The amendment also **inserted the word “reasonable”**, making restrictions reviewable. Critics never mention it. It is the defence’s best point and it is real.

It was passed by a chamber **nobody had elected**, four months before India’s first general election. And its durable product was not a rule about speech but **a method: when a court blocks you, amend the constitution.**

CHAPTER TWO

The Ninth Schedule

A locked box was built to protect thirteen land reform laws from the courts. Two hundred and fifty laws are in it now, and most of them are not about land.

2.1 — What it was built for

The problem was genuine. State governments were passing laws to abolish zamindari and redistribute land. Landholders were challenging them in court on the ground that the compensation offered was inadequate, and the constitution as drafted gave them a right to property with teeth.

Every case took years. Some succeeded. The whole programme was at risk of being litigated into paralysis by exactly the people it was designed to dispossess, which is a real and recognisable problem and not a paranoid one.

The First Amendment's answer was Article 31B and the Ninth Schedule. The mechanism is simple and worth understanding precisely, because its simplicity is the problem.

WORD BOX

The Ninth Schedule: a list at the back of the Indian constitution. Any law placed on that list cannot be struck down on the ground that it violates fundamental rights.

It is not a category or a test. It is a list. A law does not get in by being about land, or by being important, or by passing any standard. It gets in because Parliament puts it in, by amendment.

Why it matters here: a device with no subject-matter limit will not stay inside its subject matter, and this one did not.

Thirteen laws were placed in it in 1951. All thirteen concerned land.

2.2 — Thirteen becomes two hundred and fifty

The schedule now contains more than two hundred and fifty entries.

Some are still land laws, and the growth of that category is defensible: every state passed its own tenancy and ceiling legislation, and each needed the same shelter. But the schedule also came to hold reservation laws, laws on the requisition of industries, laws on mines and coal, laws regulating trade in particular commodities, and provisions with no connection to agrarian reform of any kind.

The important thing is not any individual entry. Reasonable people can defend most of them one at a time. The important thing is the **drift**: an instrument created for one narrow and urgent purpose became a general-purpose way of making a law unchallengeable, and no government of any party has ever proposed emptying it.

IN REAL TERMS

Think of a hospital that installs a locked cabinet for one drug that keeps being stolen. Sensible. Nobody objects.

Then a second drug goes in, because the same argument applies. Then a category of drugs. Then bandages, because there was space. Then the paperwork, because it was easier than filing it. Twenty years later the cabinet is where things go when somebody does not want them looked at, and the original theft has long since stopped mattering.

Nobody made that decision. Each individual addition was defended on its own terms and most were reasonable. The cabinet was the decision, and it was taken in year one.

One useful feature of this particular abuse is that it is completely open to inspection, which is unusual in this series.

HOW WE ACTUALLY KNOW THIS

The Ninth Schedule is not a secret list. It is printed at the back of the Constitution of India, and every entry names the Act it protects and carries the amendment that inserted it. Anybody with a copy of the constitution can read the whole thing in an afternoon and see exactly what is in there and when each item arrived.

That means no inference is required for anything in this chapter. The growth from thirteen entries to more than two hundred and fifty is a matter of counting, and the drift away from land is a matter of reading the titles.

What it cannot show: why each entry was added. A schedule lists laws; it does not record the argument that put them there. For that you would need the parliamentary debate on each amending Act, which exists but has never been assembled into one account.

2.3 — The review that came twenty-two years late

The schedule was effectively unreviewable from 1951, when *Shankari Prasad* held that Parliament’s amending power was not limited by fundamental rights.

That changed in 1973, in *Kesavananda Bharati*, where the Supreme Court held that Parliament may amend the constitution but may not damage its basic structure. And in 2007, in *I.R. Coelho*, the Court held that laws placed in the Ninth Schedule after the date of the *Kesavananda* judgment are open to review if they damage that basic structure.

Read those dates carefully. The shelter was created in 1951. The first real limit on it arrived in 1973, twenty-two years later. The rule making post-1973 entries reviewable arrived in 2007, fifty-six years later. Everything placed in the schedule before April 1973 remains beyond challenge on fundamental rights grounds to this day.

THE ARGUMENT — WAS THE NINTH SCHEDULE A LEGITIMATE DEVICE?

This one divides people who agree about almost everything else, which is usually a sign of a real question.

LEGITIMATE, AND NECESSARY

An elected legislature had decided to end a landed intermediary class. Unelected judges, applying a property right written into a constitution largely inherited from a colonial statute, were blocking it case by case at the suit of the people being dispossessed. A democracy in which the losers of an election can litigate a mandate to death is not obviously more legitimate than one that clears the obstruction. The schedule was a blunt tool for a real blockage.

ILLEGITIMATE IN DESIGN, NOT IN MOTIVE

The motive is not in dispute; the design is. A general power to place any law beyond fundamental rights review, with no subject limit and no expiry, cannot be justified by the urgency of one programme. If land reform needed protection, the protection could have been written for land reform. It was not, and the result was predictable and predicted: within a generation the schedule held laws that had nothing to do with the emergency that created it.

Where things stand: the second side is stronger, and the reason is that the first side's case is entirely about 1951 while the schedule is still operating in 2026. The blockage was real; the remedy was permanent and unlimited. That mismatch is the finding, and it is the same shape as Part Two's finding about preventive detention: an emergency justified a power, and nobody was asked to justify making it permanent.

What would settle it: a subject-by-subject audit of what is actually in the schedule now and when each entry was added. It is a public document. Anybody could do it in a week and nobody has published one.

Why people care so much: because the schedule now shelters reservation laws as well as land laws, which means attacking it threatens a settlement that has nothing to do with zamindari, and defending it means defending a device with no principle in it.

One last observation before leaving this chapter, and it will recur throughout the series. The Ninth Schedule and preventive detention have the same structure: an urgent problem, a general instrument, no expiry date, and decades of use for purposes the original argument never touched. When you meet the third and fourth examples in later parts, this is the pattern to recognise.

REMEMBER THIS

The Ninth Schedule is **a list, not a test**. Anything Parliament puts in it cannot be struck down for violating fundamental rights, and there is no subject-matter limit on what can go in.

It held **thirteen land laws in 1951** and holds **more than two hundred and fifty entries** now, many with no connection to land.

The first real limit came in **1973** and the rule opening later entries to review came in **2007**. **Everything placed there before April 1973 is still beyond challenge.**

CHAPTER THREE

The Largest Election Ever Held

A hundred and seventy-three million voters, most of whom could not read, in sixty-eight phases, in a country four years old. It worked. This is the credit chapter and it is earned.

3.1 — The problem nobody had solved

No country had ever done this. That is not a patriotic flourish, it is a plain statement of the position in 1951.

India had a population of about 361 million. Under universal adult suffrage every citizen over 21 could vote, which made about **173 million** registered voters, excluding Jammu and Kashmir. Roughly **85 out of every 100** of them could not read or write.

The list of things that did not exist is longer than the list of things that did. There was no electoral roll. There were no constituencies, because they depended on census data that only arrived in 1951. There was no election commission with any operating experience. There was no established way to let a person who cannot read choose between candidates whose names are printed on paper.

And every serious person in the world expected it to fail. The prevailing view, in political science and in most foreign commentary, was that democracy required literacy, prosperity and a middle class, and that a country with none of those would produce either chaos or a strongman.

3.2 — How it was actually done

The solutions were mostly practical and some were inspired.

Symbols and separate boxes. Each candidate was assigned a symbol and given his own ballot box, marked with his name and symbol. The voter took a blank paper and put it in the box he wanted. No reading required at any stage. This is why Indian parties have symbols to this day.

Scale. Around 224,000 polling booths were built. 16,500 clerks were hired on six-month contracts to type and collate the rolls. About 380,000 reams of paper were used printing them.

Time. The election ran in 68 phases, from 25 October 1951 to 21 February 1952, because of weather and terrain. Voting began in the hills of Himachal before the snow. The hill districts of Uttar Pradesh voted in February, after the thaw.

A person. Sukumar Sen, a mathematician and civil servant, was the first Chief Election Commissioner and ran the whole thing. He is one of the most consequential Indians of the century and most Indians have never heard of him.

HOW WE ACTUALLY KNOW THIS

The election record is the single most reliable body of evidence in this entire series, and it is worth understanding why, because the reason is structural rather than a matter of anybody's honesty.

Election returns are produced under adversarial conditions. Every candidate has agents watching the count. Every party has an interest in catching the other side. The figures are published constituency by constituency and challenged in court where disputed. A number produced that way is about as good as public information gets.

What it cannot show: it records votes cast, not opinions held. Turnout was around 45 per cent, so the record is silent about the majority of the electorate. And it says nothing about the conditions in which votes were cast — pressure, patronage and local coercion leave no trace in a total.

3.3 — What happened

Congress won 364 of the 489 seats in the Lok Sabha, with about **45 per cent** of votes cast. The Communist Party of India won 16 and became the largest opposition party. Turnout was around 45 per cent.

Nehru campaigned across roughly 40,000 kilometres and is estimated to have been seen by around 35 million people — about a tenth of the country.

Power was not seized. Nobody cancelled anything. A poor, illiterate, recently partitioned country held a free election on universal suffrage and accepted the result, and then did it again in 1957. Whatever else is in these nineteen parts, that happened, and it happened under this party.

3.4 — Forty-five and seventy-four

Now the arithmetic that shapes everything after it.

Congress took about 45 per cent of the vote and about 74 per cent of the seats.

That gap is not fraud and nobody has ever suggested it was. It is what happens under first-past-the-post when one party is organised nationally and the opposition is fragmented. Fifty-five per cent of voters chose somebody else, and they chose about a dozen different somebodies, so in constituency after constituency the Congress candidate came first with 40 per cent while four opponents split the remaining 60.

IN REAL TERMS

Picture a village of a hundred voters choosing one representative. Forty-five want the Congress candidate. Fifty-five want somebody else — but they are split between a socialist, a communist, a Hindu nationalist, a local landlord and an independent, roughly eleven each.

Congress wins with 45. That is the correct result under the rules, and it happens in every village at once.

Now scale it up. Across 489 seats it produces a three-quarters majority for a party that most voters did not vote for. And a three-quarters majority is the number needed to amend the constitution.

The system that produces this has a name, and it is worth being exact about it because the whole of Indian political arithmetic runs on it.

WORD BOX

First-past-the-post: a voting system where each area elects one representative, and whoever gets the most votes wins — even if that is well under half.

India inherited it from Britain and adopted it with little argument. Its effect depends entirely on how the opposition is arranged. Against one united opponent it is roughly fair. Against five divided opponents it converts a plurality into a landslide.

Why it matters here: the constitution can be amended with a two-thirds majority of Parliament. Under this system, 45 per cent of votes delivered more than that. The rule for changing the rules was reachable on a minority of the vote.

Now the thing that both admirers and critics of Congress dominance step past without noticing.

THE HIDDEN ASSUMPTION

Everybody who writes about Congress dominance — whether celebrating it or resenting it — assumes **that a majority of seats reflects a majority of the country.**

The admiring version: India chose Congress overwhelmingly, again and again, and that mandate legitimised what the party did with it. The resentful version: Indians were fooled, or bought, or captured, into voting one way for decades. Both are explanations of a national majority. Neither examines whether one existed.

It did not, on these numbers. Congress never won 50 per cent of the vote in a general election. Not once, in the whole period of its dominance. The famous majorities are seat majorities produced by a voting system operating on a fragmented opposition.

Why this matters more than a technicality. The seat share is what permitted constitutional amendment, and constitutional amendment is what Chapter One showed to be the decisive instrument of the period. So the electoral system converted a plurality into the power to rewrite the rules — and the argument about whether Congress “had a mandate” for the amendments has always been conducted as though the answer depended on the vote share, when in fact it never did.

The assumption protects both sides, which is why neither drops it. It lets the party’s defenders describe four decades of amendment as democratic will. It lets the party’s critics describe the same period as a nation deceived, which is more flattering to the critics than the truth — that most Indians did not vote for Congress and it governed anyway, entirely lawfully, because that is what the rules produced.

Which raises a question about the voting system itself. It was adopted almost without debate, and it has done more to shape Indian politics than most things that were argued about for years.

THE ARGUMENT — DID FIRST-PAST-THE-POST SERVE INDIA WELL?

The system was inherited from Britain and adopted with relatively little debate. It has consequences nobody chose.

IT WAS THE RIGHT CHOICE

It produces stable single-party governments, which a country that had just been partitioned and was integrating several hundred states urgently needed.

Proportional representation in a society divided by language, caste and religion would have produced dozens of small identity-based parties and permanent unstable coalitions — exactly the arrangement Congress had rejected in 1946 as a recipe for paralysis. It is also simple enough to administer for 173 million mostly illiterate voters, which mattered more than elegance.

IT HANDED ONE PARTY THE CONSTITUTION

Stability is a benefit and it was purchased at a price nobody costed. The system gave a party with 45 per cent of the vote the two-thirds majority required to amend the constitution, and Chapter One shows what was done with that within months. A system that converts a minority of votes into a power to rewrite the rules has removed the main external check on a governing party, and it did so in the exact decade when the party had no functioning internal check either.

Where things stand: both are right about different things and they do not meet. The first side is right about governability and about administration in 1951. The second is right that the amendment threshold and the seat-conversion effect interacted in a way nobody appears to have considered. What is notable is how little that interaction was discussed at the time, by anybody.

What would settle it: a comparison with the post-colonial democracies that adopted proportional systems. The sample is small and messy, and the honest answer is that it does not clearly favour either side.

Why people care so much: because every party that has since won a large seat majority on a minority of votes has used the same argument Congress used, and every party in opposition has made the same complaint.

3.5 — And again in 1957

The second general election was held in 1957 and it matters for a reason the first one cannot establish on its own.

A country can hold one election and still not be a democracy. Plenty have. What distinguishes a democracy is the second election, and the third, held on time, with the same rules, by a government that could have found reasons to delay.

India held its second in 1957. Congress returned with a similar seat majority on a similar share of the vote — again under half. Nobody suggested postponing. The election commission that had been improvised in 1951 was now an institution.

Two results from that election run directly into later chapters of this part. The first is that the pattern of Chapter Three’s arithmetic was confirmed rather than being a one-off: a stable three-quarters of the seats, resting on a stable minority of votes, for a second consecutive term. The second is that in one newly created state the voters returned a communist government, and Chapter Seven is about what happened to it.

Hold the number 45 per cent. It recurs. In 1957 and 1962 Congress again took under half the vote and around three-quarters of the seats. The dominance was real, the mandate was legal, and it was never a majority of Indians.

REMEMBER THIS

India held the largest election in the world in 1951–52: **173 million voters, 85 in 100 unable to read, 224,000 booths, 68 phases**. Symbols and separate ballot boxes solved the literacy problem and are still on Indian ballots.

It worked, and it was repeated in 1957. **This is a credit item of the first order** and no honest account of Congress omits it.

Congress won **about 45 per cent of the vote and about 74 per cent of the seats**. It never once crossed half the vote. The seat majority is what made constitutional amendment easy, and the vote share is why “mandate” is the wrong word.

CHAPTER FOUR

Land Reform: the Law and the Field

Almost every state passed it. Almost nowhere did it happen. The reason is not the one everybody gives.

4.1 — What was promised

Land was the whole of Indian politics in 1950. Around seven in ten Indians depended on agriculture, most of them worked land they did not own, and the rent they paid to somebody who did no farming was the largest single transfer of wealth in the country.

Congress had been promising to end this since the 1930s. The promise had three parts and they are not the same thing.

Abolish the intermediaries. Remove the zamindar between the cultivator and the state.

Protect the tenant. Give security of tenure and fair, fixed rents to people farming somebody else's land.

Cap holdings and redistribute. Set a ceiling on how much land one person could own, take the surplus, and give it to the landless.

4.2 — What actually happened, in order

The first part **worked**, and it should be said clearly because this chapter is otherwise a charge sheet.

Intermediary tenures were abolished across most of India in the first half of the 1950s. It was legislated, litigated, protected by the Ninth Schedule, and carried through. A landed class with rights over tens of millions of cultivators was removed from the revenue chain. That is a large thing to have done in five years and very few countries have done it without a revolution.

The second and third parts did not work, and the gap between them is the subject of this chapter.

Ceiling laws were passed almost everywhere. The quantity of land that actually changed hands under them, across the whole country over decades, was a small fraction of cultivated area — small enough that in most states the ceiling programme did not measurably alter who owned what.

4.3 — The three escape hatches

The usual explanation is that landlords were powerful and evaded the law. That is true and it is not enough, because it does not explain *how*. Here is how, in the order of importance.

Personal cultivation. Almost every tenancy law let a landowner resume land for his own cultivation. The intent was to protect a small owner who wanted to farm his own field. The effect was that a landowner facing a tenancy law declared he would cultivate personally, evicted the tenant, and either farmed through wage labour or through an unrecorded arrangement with the same man. Eviction was the most common single outcome of tenancy legislation in the 1950s.

The ceiling on the individual. Ceilings were generally set on the individual, not the household. A man holding four times the ceiling divided his land on paper among a wife, sons, daughters, a nephew and a temple trust, and held exactly the same fields the following morning. Later laws moved to family ceilings. By then the transfers had happened, and they were legal.

Exemptions. Orchards, plantations, mechanised farms, religious and charitable endowments, and various categories of “efficiently managed” holdings were exempted, in patterns that varied by state and tracked local political strength closely.

WORD BOX

Benami: literally “without a name”. A transaction where property is put in one person’s name but really belongs to another.

A benami transfer is not the same as a fake sale. The land genuinely moves in the register; the register simply does not describe who controls it. That is what makes it so hard to undo: there is nothing false on the paper.

Why it matters here: ceiling laws operate on the register. If the register can be rearranged faster than the law can be enforced, the law is measuring something that no longer corresponds to the field.

4.4 — The obstacle nobody names

Now the thing that actually decided the outcome, and it is not a person.

You cannot redistribute land you cannot identify.

A land reform runs on records: who owns which plot, how big it is, who is cultivating it, and on what terms. In much of India those records were decades out of date, in some regions had never been made at all, and in most places recorded owners but not tenants. Tenancy was very often oral — an arrangement between two men in a village, witnessed by everybody and written down by nobody.

An oral tenant has no document. When his landlord declares personal cultivation, the tenant has nothing to produce. When a ceiling officer arrives, there is nothing on the paper suggesting the land is being farmed by anyone other than its owner. He is not defeated in a hearing. He is invisible to the process that was designed to protect him.

Updating land records is dull, slow, expensive administrative work with no political constituency and no ribbon to cut. It was not done. And in the states where it *was* done, tenancy reform worked.

HOW WE ACTUALLY KNOW THIS

The evidence for the failure is unusually good because it comes from the government's own machinery. Successive Five-Year Plan documents state ceiling targets. Later plan documents and official committee reports state how much surplus land was actually declared, taken and distributed. The two sets of numbers are published and they do not match.

This is the strongest form of evidence available in this series, and Part One explained why: the standard is the government's own. Nobody can object that the test is unfair when the target was set by the people being tested.

What it cannot show: distributed land is not the same as land somebody is farming. A pattern that recurs is allotment on paper to a landless family who never obtained possession, because possession required a confrontation the state did not turn up for. The distribution figure is therefore an upper bound on the real transfer, not a measurement of it.

4.5 — The exceptions, and what they had in common

Three places did substantially better than the rest of India, and the pattern is the most useful thing in this chapter.

Jammu and Kashmir. The Big Landed Estates Abolition Act of 1950 transferred land to tillers without compensation to the owners. It was the most radical land reform in India and it happened in the state that spends the rest of this series being discussed as a security problem.

Kerala. Legislated first by the communist government of 1957, which is what Chapter Seven is about, and completed in 1969.

West Bengal. Not in this decade — the effective work came later, through a programme that registered sharecroppers rather than trying to move land.

What do the three have in common? Not better drafting. Not a more determined central government; two of them were opposing the centre. What they had was **an organised political movement of the cultivators themselves** — communist parties in two cases, a mass movement behind Sheikh Abdullah in the third — with an interest in identifying tenants and the local presence to do it.

Land reform worked where somebody with power wanted the tenant to be visible. It failed where it depended on a district officer with a rusting register and no reason to make trouble.

THE ARGUMENT — WHY DID LAND REFORM FAIL?

Everyone agrees it failed. The explanations point at very different culprits and imply very different lessons.

IT WAS SABOTAGED FROM BELOW

Land is a state subject. Delhi legislated the framework and the states wrote and administered the actual laws, and state Congress parties were substantially composed of the landowning castes who stood to lose. The exemptions, the personal-cultivation clauses and the individual rather than family ceilings were not drafting accidents; they were written by the people they protected. The central leadership wanted reform and could not reach into the districts.

IT WAS NEVER SERIOUSLY ATTEMPTED

The centre had instruments and chose not to use them. It amended the constitution to shield land laws from courts, which shows what it could do when it wanted something. It never made the far duller investment — record updating and survey — that would have made the laws operable, and never tied central funds to state performance. A government that will amend a constitution for a programme but not fund its plumbing has told you which part it cared about.

Where things stand: both are largely true and the second is the heavier charge, because it is about what the centre controlled. The first explains why the laws were weak; the second explains why weak laws were never repaired across twenty years of central dominance. Note also what the first side implies and rarely states: that the party could not deliver its central promise because of who its own state members were.

What would settle it: a state-by-state comparison of land-record modernisation spending against surplus land actually distributed. The data exists in plan and budget documents. It has not been assembled.

Why people care so much: because if land reform had worked, rural India in 1990 would have looked entirely different, and every argument since about poverty, caste and migration would be an argument about something else.

Both of those explanations point at people. There is a third possibility that points at nothing so satisfying, and it is the one the three successful states quietly demonstrate.

THE HIDDEN ASSUMPTION

Every account of Indian land reform — the sympathetic ones and the contemptuous ones — assumes **that the obstacle was the landlord.**

The sympathetic version: a good law was defeated by powerful vested interests. The hostile version: the law was written by those interests in the first place. Both are stories about landlords resisting, and both take for granted that resistance was the binding constraint.

Look at what the three successes actually did differently. They did not defeat landlords by having stronger law or more determined officials. They made **tenants visible** — by registration, by survey, by a local organisation that knew who was farming what and

had a reason to write it down. Once a tenant is on paper, the landlord's advantages shrink dramatically, because the escape hatches in section 4.3 all operate on a register nobody is checking.

So the binding constraint was informational, not political. And that reframes the whole failure. Fighting landlords is a confrontation, which requires courage and produces enemies. Updating a land register is clerical work, which requires money and produces nothing anybody can attend a ceremony for. A government that had the first kind of courage — it amended the constitution against the propertied classes — declined the second kind of work entirely.

Both sides of the standard argument avoid this, and for the same reason. It replaces a story about heroes and villains with a story about filing, and neither the party's defenders nor its critics get anything they want out of that.

Watch for this shape again. It is the same finding as Part Two's refugee chapter: the state was capable of an enormous claims-and-allotment operation in Punjab when property was there to be allotted, and did not build the equivalent machinery when the problem was harder and less visible.

One number to carry out of this chapter. Around seven Indians in ten depended on agriculture in 1950, and the central promise made to them was the one that was not kept. Everything in Parts Four and Five about poverty, migration and the shape of the Indian economy is downstream of a register that was never updated.

REMEMBER THIS

Abolishing the intermediaries worked and was a genuinely large achievement. **Tenancy protection and ceilings did not**, and transferred a small fraction of cultivated land.

Three escape hatches did the damage: **personal cultivation, ceilings on individuals rather than families**, and **exemptions**. All three operate on the land register.

The binding obstacle was not the landlord. It was the record. You cannot redistribute what you cannot identify, and the three places that succeeded are the three that made tenants visible.

CHAPTER FIVE

The Hindu Code

The largest social reform of the decade, carried against furious opposition. It applied to about four Indians in five, and the constitution had promised it would eventually apply to everyone.

5.1 — What was being changed

Personal law is the law governing marriage, divorce, inheritance, adoption and guardianship. In India it is not one law. It runs by religious community, and it did so under the British because the colonial state chose not to interfere with it.

Hindu personal law as it stood in 1950 gave a widow limited rights, gave daughters almost no share in ancestral property, permitted a man to have more than one wife, and made divorce effectively unavailable. The proposal was to replace it with a single codified law: monogamy, divorce available to both spouses, and inheritance rights for daughters and widows.

The person who drafted and drove it was **B.R. Ambedkar**, then Law Minister.

5.2 — The resistance, and the resignation

The opposition was ferocious and it did not come only from outside Congress. It came from inside the party, from religious organisations, and from the President of India, Rajendra Prasad, who raised objections at the highest level to a bill his government was sponsoring.

The argument against it had two forms. One was religious: personal law derives from scripture and a secular legislature has no business rewriting it. The other was political and more effective: this will cost us the election.

The bill stalled. In 1951 it was effectively abandoned before the general election, and **Ambedkar resigned from the cabinet**. It is one of the most significant resignations in Indian political history and it happened over this.

Nehru's conduct here is genuinely mixed and both halves belong on the page. He supported the reform throughout and returned to it after the election with a large majority, which took political courage. He also let it drop in 1951 when it became inconvenient, which is why Ambedkar left.

5.3 — Four acts

After the 1952 election the code was broken into pieces and passed separately. Splitting it was a tactical decision and it worked.

ACT	YEAR	WHAT IT DID
Hindu Marriage Act	1955	Required monogamy. Made divorce available to both husband and wife on stated grounds. Set conditions for a valid marriage.
Hindu Succession Act	1956	Gave daughters and widows rights of inheritance in a man's own property. Left ancestral coparcenary property largely untouched.
Hindu Minority and Guardianship Act	1956	Codified guardianship of children, retaining the father as natural guardian ahead of the mother.
Hindu Adoptions and Maintenance Act	1956	Allowed women to adopt in their own right and codified maintenance obligations.

This was a serious reform and it changed the legal position of a very large number of women. It was also less than it is usually described as being. The Succession Act's exclusion of ancestral coparcenary property meant that in the parts of India where family property was held that way, a daughter's new right applied to a fraction of what the family actually owned. **Equal rights in ancestral property came in 2005** — forty-nine years later, under a different government.

5.4 — Who counted as Hindu

Here is the detail that generates the most heat and is most often skipped.

The four acts define “Hindu” to include **Buddhists, Jains and Sikhs**. Members of those communities are governed by Hindu personal law unless a separate law says otherwise.

Muslim, Christian, Parsi and Jewish personal law was left untouched.

Both halves of that sentence have produced lasting grievance, in opposite directions and from opposite communities, and both grievances are intelligible.

For Sikhs, Buddhists and Jains, being legislated as Hindu for the purposes of marriage and inheritance is a statement about identity made by a legislature, and it was made without their asking. This is a live complaint and it recurs in the Punjab material later in this series.

For those arguing the other way, the point is that a secular state reformed the personal law of one religious community — with the honourable intention of improving women's rights — and left the personal law of the others as it found it, so the reform's benefits stopped at a religious boundary.

WORD BOX

Uniform civil code: a single law of marriage, divorce, inheritance and adoption applying to all citizens regardless of religion.

It appears in the Indian constitution at **Article 44**, which says the State shall endeavour to secure one. Article 44 sits among the Directive Principles — the part of the constitution that states goals rather than creating enforceable rights. A government that does nothing about it breaks no law.

Why it matters here: the Hindu Code was presented at the time as the first instalment of exactly this. The remaining instalments were not delivered, by any government, in seventy years.

So the question underneath this chapter is not whether the Hindu Code was a good law. It plainly was, on the whole, for the people it covered. The question is what it means that it stopped where it stopped.

THE ARGUMENT — WAS REFORMING ONLY HINDU LAW RIGHT?

This is among the most contested questions in Indian public life and it is not a proxy for anything. Both cases are serious.

RIGHT, AND THE ONLY THING THAT WAS POSSIBLE

Reform has to start somewhere, and a government reforms the community it can reach — its own leadership was overwhelmingly Hindu and the political cost fell on itself. Imposing a code on a minority that had just lost a partition and was terrified about its place in the new country would have been read as coercion and would have failed anyway. Millions of Hindu women got rights they did not have. Refusing to help them because you could not simultaneously help everyone is not a principle, it is an excuse.

IT ENTRENCHED EXACTLY WHAT IT SHOULD HAVE DISSOLVED

The constitution said the aim was one law for all citizens. What was delivered was a reformed law for one community, a frozen law for the others, and a legislative definition placing three religions inside a fourth. That is not a step towards a uniform code; it is the creation of a permanent two-track system, in which a woman's rights depend on her religion and the state has taken a public position that it will legislate for some communities and not others. Seventy years without a second instalment is evidence about what the first one really was.

Where things stand: the first side is right about 1955 and the second is right about everything after it. What makes this a genuine charge against Congress rather than a hard trade-off is the seventy years, not the sequencing: the “first step” framing was the government's own, and no Congress government at any point afterwards, including with very large majorities, took a second step or formally abandoned the goal. A promise that is neither kept nor withdrawn is a third thing, and Part One said this series would name it.

What would settle it: whether any serious attempt was made and blocked. Cabinet papers and party records would show it. What is publicly visible is a long silence rather than a defeat.

Why people care so much: because the question has been fully captured by the argument about Muslim personal law, in which one side's advocacy is widely believed to be about uniformity and the other side's resistance is widely believed to be about protection, and almost nobody on either side is discussing women's rights, which is what the 1950s argument was about.

One last thing about this chapter, because it is easy to lose. The people who fought for the Hindu Code were fighting for the property and marriage rights of women, against opposition from their own side, at real political cost, and they won most of it.

Whatever the argument above concludes, that happened, and it is the single most substantial thing any Indian government did for women in the twentieth century.

REMEMBER THIS

The Hindu Code gave women **monogamy, divorce and inheritance rights**, was drafted by **Ambedkar**, stalled in 1951 — **he resigned over it** — and passed as four acts in 1955 and 1956.

It defined “Hindu” to include **Buddhists, Jains and Sikhs**, and left Muslim, Christian and Parsi law untouched. Both of those produced lasting grievances, in opposite directions.

It was presented as the **first instalment** of the uniform code promised in Article 44. **No second instalment has been delivered in seventy years, and the goal has never been formally abandoned either.**

CHAPTER SIX

Redrawing the Map

India reorganised its entire internal boundary system in one decade without a civil war. It also applied its stated principle everywhere except one place, and that exception took another ten years and a great deal of blood.

6.1 — A death by fasting

The provinces India inherited were not designed. They were the residue of conquest — territories acquired at different times, administered together for administrative convenience, containing populations who did not share a language and often could not communicate with the officials serving them.

Congress had promised linguistic reorganisation since the 1920s, and had itself been organised into linguistic provincial committees since 1920, which is worth noting: the party ran on linguistic units while telling the country it should not.

After independence the leadership changed its mind. A committee in 1948 and 1949 advised against reorganising on language, on the ground that the country had just been divided on one identity and did not need to be divided again on another. That fear was not silly and it should be taken seriously.

The Telugu-speaking areas of Madras state did not accept it. In 1952 **Potti Sriramulu** began a fast demanding a Telugu state. He died on 15 December 1952, on the fifty-eighth day. Rioting followed across the Telugu districts. Andhra State was announced within days and created on 1 October 1953.

Note what that sequence establishes, because it governs the rest of the decade: **the government's position changed when somebody died**. Every subsequent linguistic movement in India learned that lesson and several of them applied it.

6.2 — The commission and the Act

Having conceded the principle once, the government could not hold the line elsewhere. A States Reorganisation Commission was appointed in 1953 under Fazl Ali, with K.M. Panikkar and H.N. Kunzru. It reported in 1955. The States Reorganisation Act followed, taking effect on **1 November 1956**.

It was an enormous operation: boundaries redrawn across the whole country, administrations split and merged, capitals assigned, staff reallocated. Kerala was created. Mysore was enlarged. The map of southern and central India was substantially rebuilt.

And it was done without a civil war, which given what had happened in 1947 was not a foregone conclusion. This belongs on the credit side and it belongs there heavily.

IN REAL TERMS

Imagine redrawing the internal borders of a country of 360 million people, in nine years, by argument, while the memory of a partition that killed hundreds of thousands is eight years old.

Now imagine doing it while every group that gets what it wants proves to every group that did not that agitation works.

That is the actual difficulty of the 1950s map, and the reason the achievement is larger than it looks: not that the boundaries were drawn well, but that the process did not detonate.

6.3 — Two refusals

Two demands were refused, and the two refusals sit very differently.

Bombay. The Commission recommended keeping a bilingual Bombay state rather than separating Marathi and Gujarati areas. The agitation that followed was large and was met with police firing in which large numbers of people were killed in Bombay city in 1956. The state was divided anyway on 1 May 1960, into Maharashtra and Gujarat. So the refusal here was overturned within four years, at a cost in lives that the eventual outcome shows was avoidable.

Punjab. The demand for a Punjabi-speaking state — the Punjabi Suba — was refused by the Commission and by the government. The reasoning was that the demand was not really about language: that its support was concentrated in one religious community and its opponents in another, and that granting it would mean creating a state on religious lines under a linguistic name.

That reasoning was not invented. The demand did have a religious dimension, its principal vehicle was a party defined by religion, and there was a real fear of what conceding it would signal so soon after 1947.

But hold the reasoning up against what the same government did everywhere else. Language was the operative principle across the whole country. In Punjab and only in Punjab, the government looked behind the linguistic claim to the identity of the people making it, and refused on that basis. Whether or not that judgment was correct, it was an exception to a rule the same government had just applied nationally, and it was made against the only major religious minority whose demand was territorial.

The Punjabi Suba was granted in **1966**, after a decade of agitation, imprisonments and a fast, and after a war in which the region's strategic importance had been demonstrated. What was refused as communal in 1955 was granted as reasonable in 1966, by a Congress government, with no acknowledgement that anything had changed except the pressure. Part Ten of this series takes the consequences.

HOW WE ACTUALLY KNOW THIS

The reorganisation is documented about as well as any Indian policy decision of the period. The Commission's report is published and gives its reasoning demand by demand, including the Punjab reasoning in its own words. The Act is a statute. The agitations left police records, casualty figures and court cases.

That means the inconsistency described above does not have to be inferred from outcomes. It can be read directly: the same document applies one test in one place and a different test in another, and explains why.

What it cannot show: what the government privately expected. A commission report is a justification, and justifications are written after decisions. Whether the Punjab refusal was a considered judgment about communalism or a political calculation dressed as one is exactly the sort of question the published record is designed not to answer.

Before drawing the conclusion, one term needs unpacking, because the whole decade turns on it and it is far less solid than it sounds.

WORD BOX

Linguistic state: a state whose boundaries are drawn so that most people inside it share a mother tongue.

The idea sounds like it describes something found rather than made. But it needs a prior decision about which speech forms count as the same language. Indian census officials made those decisions, and where they drew the line between a language and a dialect determined which groups were large enough to claim a state at all.

Why it matters here: a Punjabi-speaker and a Hindi-speaker in 1950s Punjab could often understand each other perfectly well. Whether they were speaking two languages or one was a question answered by an administrative category, and a state depended on the answer.

Which points at something both sides of the reorganisation argument have always taken for granted.

THE HIDDEN ASSUMPTION

Everyone in the reorganisation argument — those who demanded linguistic states and those who feared them — assumes **that language groups are natural units that a map can either match or fail to match.**

The demand's supporters say: these people share a language, so they should share a government. Its opponents say: organising politics around language will harden those identities. Both sides treat the language groups themselves as pre-existing facts about the world.

They are partly artefacts. Where one language stops and another starts is not a natural boundary; it is a decision, and in India it was largely made by administrators. Census officials chose which speech forms were counted as separate languages and which as dialects of a larger one. Printing and school textbooks standardised particular variants

and made others sound rustic. Scripts were assigned. Every one of those choices determined which groups were large enough to make a territorial claim and which disappeared into somebody else's total.

This matters concretely rather than philosophically. A community whose speech was classified as a dialect had no linguistic claim to make. A community whose speech was classified as a language did. So the census category — an administrative artefact, created by a colonial state and continued by an independent one — determined who got a state.

And it is why the Punjab refusal is so revealing. There the government departed from the linguistic test and looked at who was asking. Everywhere else it applied the linguistic test and did not have to look, because the categories had already done the sorting invisibly. The exception is visible precisely because the rule was doing the same work quietly.

The reorganisation is therefore a genuinely double-sided item, and this series will keep meeting that shape. A large, difficult and dangerous operation was carried out competently and peacefully. Inside it, one demand was refused by a test used nowhere else, and the refusal was reversed eleven years later without anybody explaining what had changed. Both halves are true and the second does not cancel the first.

REMEMBER THIS

The government opposed linguistic states, then conceded Andhra **after Potti Sriramulu died on the fifty-eighth day of a fast**. Every later movement learned what that sequence taught.

The **1956 reorganisation was done without a civil war**, which was not guaranteed, and belongs on the credit side heavily.

Two refusals: **Bombay, overturned in 1960 after killings**, and **Punjab, where the government looked behind the linguistic claim at the religion of the claimants** — the one place it did — and granted the same demand in 1966 anyway.

CHAPTER SEVEN

Kerala, 1959

The first time an elected state government was dismissed from Delhi. Every dismissal since has stood on this one, and the Prime Minister did not want to do it.

7.1 — The government

Kerala was created on 1 November 1956 by the reorganisation described in the last chapter. It held its first election in 1957 and produced a result nobody in Delhi had planned for: a communist government, led by **E.M.S. Namboodiripad**, who took office on 5 April 1957.

It was among the first communist governments anywhere in the world to come to power by election rather than by revolution. That fact was not lost on anybody, in Delhi or in Washington.

The government moved quickly on two fronts, and both are important.

The Agrarian Relations Bill did what Chapter Four said almost nobody did: it went at tenancy seriously, giving rights to tillers and restricting the eviction routes that had defeated tenancy reform everywhere else. It threatened the position of a landholding class that included the leadership of several powerful community organisations.

The Education Bill regulated privately managed schools. Its central provision was that teachers in aided private schools would be paid directly by the government rather than by the school's managers. The stated purpose was to stop managers from underpaying teachers and extracting money from appointments. The effect was to remove a large source of patronage and control from the bodies that ran most of Kerala's schools — principally the Nair Service Society and the Catholic Church.

7.2 — The Liberation Struggle

Opposition organised, and it was genuinely large. The **Vimochana Samaram**, or Liberation Struggle, ran through 1958 and 1959. A Liberation Committee was formed on 1 May 1959 under **Mannath Padmanabhan**, an octogenarian leader of the Nair Service Society. The Catholic Church joined. The Congress party in Kerala joined and worked with both.

There were strikes, school closures, mass processions and confrontations with police. Around twenty people were killed in police firing. Hundreds were injured and thousands were arrested.

An honest account has to hold two things at once here. This was a real mass movement with real grievances — the Education Bill did concentrate power, and a state government that responds to protest with fatal police firing has a problem it cannot blame on anybody else. It was also, openly and by design, an attempt to remove an elected government that had two and a half years of its term left, mounted by parties that had lost the election.

7.3 — Delhi

The record of what happened in Delhi is unusually clear and it does not flatter anybody.

Indira Gandhi was the president of the Congress party. She visited Kerala on 28 April 1959 and expressed concern about law and order. On 21 June 1959 she made the position explicit: the agitation, she said, had nothing to do with the Education Bill. That is a statement that the objective was the government itself.

Nehru was reluctant. He went to Trivandrum on 22 June 1959, the day after that statement. He described what he found as an atmosphere of near hysteria and thick walls of group hatred. He proposed a middle course: that Namboodiripad resign and hold fresh elections, which would test the claim that the government had lost its support and would avoid using Article 356 at all. Namboodiripad refused.

According to V.R. Krishna Iyer, then a minister in that government and later a Supreme Court judge, Namboodiripad sent him to Delhi to tell Nehru what the Congress party was doing in Kerala. Nehru asked whether this was really what Congress was up to, and called his daughter in to hear it. She listened, and nothing changed.

On **31 July 1959**, on the advice of the Union Cabinet, President Rajendra Prasad invoked Article 356. The government was dismissed and the assembly dissolved, after twenty-seven months in office.

WORD BOX

The Article 356 test: the constitution permits the centre to take over a state where the President is satisfied that *the government of the State cannot be carried on in accordance with the provisions of this Constitution*.

Read that carefully. It is not “there is disorder”. It is not “the government has become unpopular”. It is a test about whether constitutional government has become impossible.

Why it matters here: a mass agitation organised by opposition parties, met by police action, is a state governing under difficulty. Whether it is a state that cannot be governed constitutionally is the whole question, and it was answered in the affirmative for the first time in 1959.

So the question is not whether Kerala was in trouble. It plainly was. The question is whether the trouble was the kind the constitution describes, and who was entitled to decide that.

THE ARGUMENT — WAS THE KERALA DISMISSAL JUSTIFIED?

This is the founding case of Indian federalism’s central dispute, and the defence is stronger than its critics allow.

JUSTIFIED

Twenty people were dead in police firing. Schools were shut, administration had partly stopped, and communal organisations on both sides were mobilised in a state that had been a single unit for under three years. A government facing that had been offered the constitutional way out — resign and test your support at an election — and refused it. At some point continued deadlock with deaths in the streets is exactly the situation the provision exists for, and the President acted on the advice of a Cabinet, not on one person’s whim.

NOT JUSTIFIED, AND THE PRECEDENT PROVES IT

The disorder was manufactured by the parties that had lost the election, one of which was the party governing at the centre and taking the decision. The party president had stated publicly that the agitation was not about the bill it claimed to be about. The Supreme Court had upheld the Education Bill's constitutionality. If a government can be removed because its opponents make the state ungovernable, then Article 356 is not a safeguard against constitutional breakdown; it is a tool that rewards whoever is willing to organise one. And the way to test lost support is an election, which was two and a half years away and which the centre could not wait for.

Where things stand: the second side is stronger, and the strongest single fact for it is not any of the above. It is that the party which organised the agitation was the party that assessed whether the state had become ungovernable. Nothing in the constitution contemplates the same actor doing both, and no procedure was ever built to separate them. Note also that the first side's best point survives: the deaths were real and the Congress government of Kerala did not cause the police to fire.

What would settle it: the Cabinet papers and the Governor's reports on which the decision was formally based. They would show whether the constitutional test was applied or recited. They have not been released.

Why people care so much: because the count of what followed is not in dispute. Article 356 was used against elected state governments on dozens of occasions in the decades after this, overwhelmingly against governments the centre opposed, and every one of them was standing on 1959.

7.4 — What this established

Three things, and they compound.

That a sustained agitation can substitute for an election. Whatever the merits in Kerala, the operational lesson was available to everybody: if you cannot win a state, you may be able to make it ungovernable and have the centre remove the winner.

That the centre judges its own case. The decision to dismiss a state government is taken by a Cabinet drawn from a party that is usually the state government's principal opponent. No mechanism was ever created to handle that conflict, and none exists today beyond the courts, which only began seriously reviewing these decisions in 1994.

That the provision from Part Two had a use. Article 356 descends from section 93 of the Government of India Act 1935, written so a colonial Governor could override elected Indian ministries. Part Two noted it was carried into the constitution substantially intact. Chapter Seven is the first time an independent Indian government used it the way its author intended.

One claim I am not going to assert. There is a body of writing, including recent work drawing on declassified British files, arguing that American and British intelligence services were involved in funding and coordinating the Kerala agitation. Serious people take it seriously. I have not seen a released document that establishes it, so the grade here is **ALLEGED**, and the charge in this chapter does not need it. Everything above is on the public record and is quite sufficient.

REMEMBER THIS

Kerala elected a communist government in 1957. It passed a **serious tenancy law** and an **education law** that removed patronage from powerful school managers, and was dismissed on **31 July 1959** after twenty-seven months.

Nehru was reluctant and proposed fresh elections instead. **Indira Gandhi, as Congress president, stated publicly that the agitation had nothing to do with the bill it was about.**

The decisive objection is structural: **the party that organised the agitation assessed whether the state had become ungovernable.** Every later use of Article 356 stands on this one.

CHAPTER EIGHT

Who Could Still Say No

By 1954 there was nobody inside the Congress party who could tell the Prime Minister he was wrong and survive it. This is how that happened, and it took four years.

8.1 — December 1950

Sardar Vallabhbhai Patel died on 15 December 1950.

Part Two gave him the credit he is owed for the integration of the princely states. What matters here is different: what his existence did to the internal working of the government.

Patel was Deputy Prime Minister and Home Minister. He was also the most powerful figure in the party organisation, with an independent base among provincial Congress committees that did not depend on Nehru. He and Nehru disagreed frequently and substantially — on economic policy, on the handling of Muslims after Partition, on Kashmir, on the pace of change. Neither could simply overrule the other.

That is not a personal detail. It is a structural fact about the government of India between 1947 and 1950. There were two centres, and a decision had to survive both.

8.2 — The Tandon episode

The clearest illustration came within months of Patel's death.

In September 1950 the Congress presidency fell vacant. **Purushottam Das Tandon**, a conservative figure from Uttar Pradesh, stood against Acharya Kripalani. Patel supported Tandon. Nehru made his opposition clear. Tandon won.

For a year the party had a president whose views on several major questions differed from the Prime Minister's. Then, in 1951, Nehru resigned from the Congress Working Committee and made it plain that he would not continue as Prime Minister on these terms.

The party chose the Prime Minister. Tandon resigned in September 1951, and **Nehru became president of the Congress party while remaining Prime Minister**. He held both offices until 1954.

Notice what that combination means in practice. The party organisation exists, among other things, to select and if necessary replace the parliamentary leadership. When the parliamentary leader is also the head of the organisation, the mechanism for replacing him runs through him.

IN REAL TERMS

Think of a company with a chief executive and a board. The board's whole purpose is to be able to remove the chief executive. It does not need to do so often; the possibility is what makes it work.

Now make the chief executive the chairman of the board. Nothing visible changes. Meetings still happen, minutes are still taken, and for years the company may run better, because decisions get made faster and nobody is briefing against anybody.

The change shows up only when the chief executive is wrong about something important. Then there is no mechanism, and the discovery that there is no mechanism happens at exactly the moment you need one.

India's version of that moment is 1962, and Part Six is about it.

8.3 — The others who left

Tandon was not the only one. Read the decade as a list of departures and it acquires a shape.

Ambedkar resigned from the cabinet in 1951, over the Hindu Code among other things, as Chapter Five described.

Kripalani, a former Congress president, left the party and founded his own.

Rajendra Prasad, as President of India, opposed the Hindu Code Bill and lost, and the office he held was in any case largely ceremonial.

By around 1954, the set of people who could publicly disagree with Nehru and remain inside the leadership was very small, and none of them had an independent base of the kind Patel had held.

It is worth being fair about what this was and was not. Nehru did not purge anybody. There were no arrests, no expulsions, no rigged internal ballots. He won an argument, and he was extremely popular, and he was in most respects a genuinely liberal man who took criticism in Parliament seriously and answered it at length. The concentration described here happened through ordinary politics, which is precisely why it is worth noticing: it did not require anybody to behave badly.

HOW WE ACTUALLY KNOW THIS

Party-internal history is the weakest evidence in this series and it is right to say so before leaning on it. The sources are memoirs, letters, and later recollections by people with positions to defend, and there is no equivalent of an election return or a court judgment.

What can be established firmly are the *facts of office*: who held which post, when, and when they stopped. Tandon's election in 1950 and his resignation in 1951, Nehru holding both offices from 1951 to 1954, Ambedkar's resignation, Kripalani's departure. Those are matters of record.

What it cannot show: motive, and the content of conversations. Whether Nehru intended to concentrate authority or simply refused to work with a president he thought unsuitable is not recoverable, and anybody who tells you confidently which it was is reading a memoir written by somebody with an interest.

What can be said with confidence is narrower than the usual story and more useful. Between 1950 and 1954 four people who could publicly disagree with the Prime Minister ceased to be in a position to do so, and no comparable figure replaced any of them. That much is a matter of dates.

Which raises a question about where the restraint in a political system actually lives.

THE HIDDEN ASSUMPTION

Everyone arguing about the health of Indian democracy in this period — those who say the institutions held, and those who say they were hollowed — shares one belief: **that the check on power is institutional.**

Both sides look at the same list. Parliament, the courts, the press, the federal structure, the party's internal machinery. One side says these worked; the other says they were bypassed. Nobody asks whether they were doing the work in the first place.

Look at what actually restrained the government in this decade. Not Parliament, where the governing party held three-quarters of the seats. Not the courts, which could be and were overridden by amendment within a year. Not the federal structure, which Chapter Seven shows collapsing the first time it was tested. What restrained the government was **a small number of individuals with independent standing** — Patel, who could not be sacked; Ambedkar, whose departure cost something; Prasad, who could make an argument in public from the presidency; Tandon, who had a party base of his own.

Every one of them was gone or neutralised by 1954, through death, resignation and ordinary political defeat. Nothing institutional took over the function, because nothing institutional had been performing it.

This is why the 1950s look so reassuring and the 1960s and 1970s do not. Nobody dismantled anything. The restraint in the system was personal, it was never converted into a mechanism, and personal restraint has a mortality rate.

The assumption is comfortable for both camps, which is why it survives. The party's defenders get to point at institutions that formally existed. The party's critics get a story about institutions being destroyed later, which locates the fault in one person in one decade. The harder reading is that the institutions were never load-bearing, and that the thing everybody credits or blames was a set of biographies.

Hold this chapter alongside Chapter Three. The electoral system delivered a three-quarters seat majority on 45 per cent of the vote. This chapter describes the internal check disappearing over the same four years. Neither on its own is alarming. Together they mean that by about 1954 there was no reliable mechanism, inside the party or outside it, for telling the government of India that it was wrong.

And there is one more reason this chapter matters more than its evidence base deserves. Every later part of this series contains a moment where somebody inside the government knew a decision was wrong. Part Six has officers who wrote it down before 1962. Part Nine has ministers who signed the Emergency proclamation without

reading it. The question in each case is the same: what happened to the person who objected. This chapter is where the answer stops being “he was overruled” and starts being “there was nobody left whose objection had weight.”

REMEMBER THIS

Patel died in December 1950. Until then the government had two centres and a decision had to survive both.

In 1951 Nehru forced out a Congress president he had not wanted and **took the party presidency himself while remaining Prime Minister**, holding both until 1954. Ambedkar resigned, Kripalani left, Prasad lost his argument.

Nobody was purged. It happened through ordinary politics, which is the point. The restraint in the system was personal, never converted into a mechanism, and personal restraint has a mortality rate.

CHAPTER NINE

What Was Promised and What Arrived

Part One promised that this series would judge governments against their own stated targets, because nobody can call that standard unfair. Here is the decade, scored that way.

9.1 — The method, restated

The strongest test available in this series is not my opinion of what a government should have done. It is the government's own statement of what it intended to do, compared with what happened.

For this decade those statements are unusually explicit, because the Indian state ran on plans. A Five-Year Plan is a document that says: this is the target, this is the money, this is the date. That is a standard nobody can complain about.

The economic assessment proper belongs to Part Four, which takes the whole planning system from 1950 to 1991 and does it with the figures. This chapter scores the promises made in *this* part, in the areas its nine chapters covered.

WORD BOX

Five-Year Plan: a document setting out what the government intended to build over five years, how much it would spend, and what it expected the result to be. India ran on these from 1951.

A plan is not a budget. A budget says what money is allocated. A plan says what the money is supposed to produce — so many tonnes of steel, so many acres irrigated, so many children in school. That makes it a statement of intent with numbers attached.

Why it matters here: it is the single most useful class of document in this series, because it converts a political promise into a testable claim, written down by the people who will be tested.

With that in hand, the decade can be scored without any appeal to my judgment at all.

9.2 — The scorecard

WHAT WAS PROMISED	WHAT ARRIVED	SCORE
A constitution guaranteeing free speech	Amended within fifteen months, before the first election, to add public order and friendly relations with foreign States as grounds for restriction. The word “reasonable” was added at the same time.	Partly kept
Elections on universal adult suffrage	Held in 1951–52 and again in 1957, on time, freely, and accepted. The largest electoral exercise ever conducted anywhere.	Kept in full
Abolition of the landed intermediaries	Done across most of India within five years.	Kept in full
Security of tenure for tenants and a ceiling on holdings	Legislated almost everywhere; a small fraction of land actually transferred. Eviction was the commonest outcome of tenancy law.	Broken
Equal rights for women in marriage and property	Four acts in 1955–56, applying to Hindus, Buddhists, Jains and Sikhs. Ancestral coparcenary property excluded until 2005.	Partly kept
A uniform civil code (Article 44)	Nothing, in seventy years, and never formally abandoned.	Broken
Reorganisation of states on language	Carried out in 1956 across most of the country without civil war. Refused in Punjab on grounds applied nowhere else, and granted there in 1966.	Kept, unevenly
A federal structure with elected state governments	The first elected state government removed by the centre in 1959, in a state where the centre’s own party had organised the agitation.	Broken

9.3 — One promise from Part Two, tracked

Part Two recorded four forward promises. None of them comes due in this decade, but one of them can already be watched.

Detention without trial was justified in 1950 by circumstances everybody could see: an armed insurrection in Telangana, organised communal violence still in living memory, an assassination, and several million people in camps. The argument in Part Two’s Chapter Nine was not that the power was unreasonable in 1950. It was that the test of an emergency power is what happens when the emergency ends.

By the end of this decade the Telangana insurrection was over, the refugee emergency in the west was largely settled, the country had held two general elections and reorganised its entire internal map. The power did not lapse. It was renewed, in one form and then another, continuously.

That is not yet the charge. It becomes the charge in Part Nine. What this decade establishes is the pattern: the conditions cited to justify an exceptional power disappeared, and nobody was ever asked to justify the power again in their absence — because a renewal debate is about whether to remove something, which is a much easier vote to win than a debate about whether to create it.

9.4 — Two numbers for the decade

Two figures give the shape of what was happening underneath all of this, and both are from the censuses of 1951 and 1961.

Literacy rose from roughly 18 per cent of the population to roughly 28 per cent. That is a real improvement and it is a slow one: after a decade of independence, roughly seven Indians in ten still could not read.

Population rose from about 361 million to about 439 million — an increase of about 78 million people in ten years, which is more people added than lived in most countries on Earth at the time.

Those two numbers together explain a great deal of what follows in this series. Every target in every plan was chasing a denominator that was growing faster than anybody had budgeted for.

IN REAL TERMS

Imagine running a school that starts the year with a thousand children and one hundred teachers. Over the year you hire twenty more teachers — a serious effort, more than most schools manage.

But two hundred and twenty new children arrive. At the end of the year your class sizes are worse than when you began, and every parent can see it. You did more than your predecessor and the visible result is deterioration.

That is the arithmetic underneath Indian governance from 1951 onwards, and it is why performance and perception diverge so sharply. A government can improve the absolute number of schools, hospitals and jobs every single year and still be losing.

9.5 — The state ledger for the decade

Part Two opened a running record of which states were affected by the material in each part. Here is the entry for the 1950s.

WHERE	WHAT HAPPENED, 1950–1959
Jammu and Kashmir	The most radical land reform in India, transferring land to tillers without compensation, in 1950. Almost never mentioned in accounts of the state.
Andhra / Telugu districts	A death by fasting in 1952 produced the first linguistic state in 1953, and taught every later movement what worked.
Kerala	Created 1956. Elected a communist government 1957. Passed serious tenancy and education laws. Dismissed by the centre in 1959.
Punjab	The Punjabi Suba refused on grounds applied nowhere else in the country. Granted in 1966, after a decade of agitation. Part Ten takes the consequences.
Bombay State	Kept bilingual against the demand, with killings in the city in 1956, and divided anyway in 1960.
Uttar Pradesh and Bihar	Intermediary abolition carried through; tenancy protection and ceilings substantially defeated by resumption for personal cultivation and by land records that were never updated.
West Bengal	Refugee inflow continuing with no settlement machinery, as Part Two described. Effective land reform did not begin until decades later.

Two things stand out from that table and both recur throughout the series. First, the places that did best on land are the places with an organised movement of cultivators, not the places with the best relationship with Delhi. Second, the two large northern states that were Congress's own political heartland are the two where its central promise failed most completely.

REMEMBER THIS

Scored against **its own stated promises**: elections and intermediary abolition kept in full; free speech and women's rights partly kept; tenancy reform, the uniform civil code, and the federal structure broken.

Literacy went from about **18 per cent to about 28 per cent**. Population went from about **361 million to about 439 million**. Every plan target was chasing a denominator growing faster than budgeted.

Congress's central promise failed worst in Congress's own heartland, and succeeded where cultivators were organised independently of it.

CHAPTER TEN

An Honest List of What We Do Not Know

A decade that counted more than any before it, and still did not count the things that would have settled its own arguments.

10.1 — Genuinely unknown

Six things in this part cannot be established, and the reasons divide neatly into the two categories Part One set out: hard, and decided.

How much land actually changed hands, as opposed to being recorded as changing hands. Official figures exist for surplus land declared, taken and distributed. What they cannot tell you is how much distributed land the allottee ever obtained possession of.

Why it is unknown: nobody followed up. Verifying possession requires visiting the field, and the programme was administered by measuring paper. This is the *decided* category, and it is the same decision as the one in section 4.4.

How many tenants were evicted under the personal-cultivation clauses. Eviction was the commonest single outcome of tenancy legislation in this decade. There is no national count.

Why it is unknown: most of the tenants were oral tenants, which means they did not exist on paper before the eviction either. A person who is invisible to the record cannot be counted leaving it. This is the sharpest illustration in the series so far of a state's blindness being systematic rather than random.

What was decided before the debates. The Constituent Assembly and parliamentary debates are complete and published. What is missing is the Congress parliamentary party meetings and the Working Committee discussions where positions were settled.

Why it is unknown: party records are private and have not been opened.

Whether the Punjab refusal was a judgment or a calculation. The States Reorganisation Commission gave reasons for refusing the Punjabi Suba and those reasons are on the record. Whether they were the operative reasons is a different question.

Why it is unknown: a published justification is written after a decision, and this is exactly the sort of thing it is designed not to reveal.

What was in the Kerala file. The dismissal of 31 July 1959 was formally based on the Governor's reports and Cabinet advice. Those documents would show whether the Article 356 test was applied or recited.

Why it is unknown: they have not been released, sixty-seven years later. Everyone involved is dead.

Whether foreign intelligence services were involved in the Kerala agitation. There is a serious literature arguing they were, including work drawing on declassified British material.

Why it is unknown: the relevant archives are foreign and partly closed. Grade: **ALLEGED**. The charge in Chapter Seven does not rest on it and would not be strengthened by it.

10.2 — Solid

Every date, text and vote in this part. The First Amendment moved on 10 May 1951 and in force on 18 June 1951. The election held from 25 October 1951 to 21 February 1952. The four Hindu law acts of 1955 and 1956. The States Reorganisation Act in force on 1 November 1956. The Kerala dismissal on 31 July 1959. All statute and record.

What the First Amendment changed. The three new grounds, the insertion of “reasonable”, Article 15(4), Articles 31A and 31B, the Ninth Schedule with its original thirteen entries. Readable by anybody.

That it was passed by a chamber that had never faced an electorate. A matter of dates.

The election figures. 173 million registered voters, 489 seats, Congress with 364 of them on about 45 per cent of the vote, turnout around 45 per cent. Produced under adversarial conditions with every party watching, which is why they are the best numbers in this series.

That the Ninth Schedule has grown from thirteen entries to more than two hundred and fifty, and that entries made before April 1973 remain immune from fundamental rights challenge. The schedule is a published part of the constitution.

The intermediary abolition. Legislated and carried through across most of India in the first half of the decade. A credit item and not disputed.

That the Hindu Code applied to Buddhists, Jains and Sikhs and not to Muslims, Christians or Parsis. It is in the definition clause of each act.

Who held which office, and when. Patel's death in December 1950, Tandon's election in 1950 and resignation in 1951, Nehru holding both offices from 1951 to 1954, Ambedkar's resignation in 1951. Record.

10.3 — What a decade of counting did not count

One pattern is worth naming before this part closes, because it will not be the last time.

The 1950s were a decade of extraordinary counting. A census in 1951 and another in 1961. An electoral roll of 173 million built from nothing. Plan documents full of targets and outturns. Crop statistics, industrial statistics, price indices. The Indian state got very good at measurement very quickly.

And in the middle of all that, it did not count the tenants. Not before the reform, not during, and not after.

Part One's rule was that when a state which counts everything has no count of something, somebody decided that. In Part Two the rule applied to bodies. Here it applies to something duller and, over fifty years, probably larger in its effects: **a state that could locate 173 million voters could not locate the people farming its land, because locating them was the one measurement that would have obliged it to act.**

REMEMBER THIS

Genuinely unknown: **how much land really changed hands, how many tenants were evicted, what was settled in party meetings, whether the Punjab reasons were the real reasons, what was in the Kerala file, and whether foreign services were involved there.**

Solid: **every date and text, the contents of the First Amendment, the election figures, the growth of the Ninth Schedule, the intermediary abolition, the definition clause of the Hindu Code, and who held which office when.**

A state that found 173 million voters could not find its tenants. Counting them was the one measurement that would have created an obligation.

REFERENCE

Timeline, 1950–1959

Dates only. The arguments are in the chapters.

DATE	WHAT HAPPENED
26 Jan 1950	The constitution comes into force. India becomes a republic.
Feb 1950	The Preventive Detention Act is passed, weeks later.
1950	Jammu and Kashmir passes the Big Landed Estates Abolition Act — the most radical land reform in India.
26 May 1950	<i>Romesh Thappar v. State of Madras</i> . The Supreme Court strikes down a ban on the journal <i>Cross Roads</i> .
1950	<i>Brij Bhushan v. State of Delhi</i> . Pre-censorship of <i>Organiser</i> struck down.
Sept 1950	Tandon is elected Congress president with Patel's backing, against Nehru's preference.
15 Dec 1950	Sardar Patel dies. The government loses its second centre.
1951	<i>Champakam Dorairajan</i> . Caste-based quotas in education struck down.
10 May 1951	Nehru moves the First Amendment.
18 Jun 1951	The First Amendment comes into force. Three new grounds for restricting speech; the word “reasonable” added; Articles 15(4), 31A and 31B; the Ninth Schedule with thirteen entries.
1951	<i>Shankari Prasad</i> . The Supreme Court upholds the amendment, holding Parliament's amending power unlimited by fundamental rights.
Sept–Oct 1951	The Hindu Code Bill is abandoned before the election. Ambedkar resigns from the cabinet. Tandon resigns; Nehru becomes Congress president while remaining Prime Minister.
25 Oct 1951 – 21 Feb 1952	The first general election. 173 million registered voters, 489 seats, 68 phases. Congress wins 364 seats on about 45 per cent of the vote.
15 Dec 1952	Potti Sriramulu dies on the fifty-eighth day of a fast for a Telugu state.
1 Oct 1953	Andhra State is created. The States Reorganisation Commission is appointed.

DATE	WHAT HAPPENED
1954	Nehru gives up the Congress presidency, having held both offices for three years.
1955	The States Reorganisation Commission reports. The Punjabi Suba demand is refused. The Hindu Marriage Act is passed.
1956	The Hindu Succession, Minority and Guardianship, and Adoptions and Maintenance Acts are passed. Killings in Bombay during the Samyukta Maharashtra agitation.
1 Nov 1956	The States Reorganisation Act takes effect. Kerala is created.
1957	The second general election. Congress returns with a similar seat majority on under half the vote.
5 Apr 1957	E.M.S. Namboodiripad takes office in Kerala at the head of the first elected communist government in India.
1957	Kerala's Agrarian Relations Bill and Education Bill.
1958–59	The Liberation Struggle in Kerala. Around twenty killed in police firing.
28 Apr 1959	Indira Gandhi, as Congress president, visits Kerala and raises law and order.
21–22 Jun 1959	Indira Gandhi states the agitation is not about the Education Bill. Nehru visits Trivandrum the next day and proposes fresh elections instead. Namboodiripad refuses.
31 Jul 1959	Article 356 is invoked. Kerala's government is dismissed after twenty-seven months. The first of dozens.
1 May 1960	Bombay State is divided into Maharashtra and Gujarat — the refusal of 1955 reversed within four years.

Part Four starts here. It steps back from the decade and takes the whole economic system — from the First Plan in 1951 to the reforms of 1991 — as one object, because that is the only way its cost can be seen.

REFERENCE

Glossary

Every hard word used in this part, in plain English.

WORD	WHAT IT MEANS
Article 15(4)	The clause, added in 1951, permitting special provision for socially and educationally backward classes. The constitutional basis of reservation in education.
Article 31B	The clause protecting any law placed in the Ninth Schedule from challenge on fundamental rights grounds.
Article 356	The provision allowing the centre to dismiss an elected state government, on the test that the government of the State cannot be carried on in accordance with the constitution. Descended from section 93 of the Government of India Act 1935.
Article 44	The Directive Principle stating that the State shall endeavour to secure a uniform civil code. A goal, not an enforceable right.
Benami	Literally “without a name”. Property held in one person’s name but really belonging to another. Nothing on the paper is false, which is why it is hard to undo.
Ceiling	A legal maximum on how much land one holder may own, with the surplus taken for redistribution.
Coparcenary property	Ancestral property held jointly by male descendants under Hindu law. Excluded from daughters’ inheritance rights until 2005.
Directive Principles	The part of the Indian constitution stating goals for the State. Not enforceable in court; a government that ignores them breaks no law.
First-past-the-post	An electoral system in which the candidate with the most votes in a constituency wins, even without a majority.
Five-Year Plan	A document stating what the government intended to build over five years, what it would spend, and what the result should be. A promise with numbers attached, written by the people who will be measured against it.
Linguistic state	A state whose boundaries are drawn so most people inside it share a mother tongue. Depends on a prior administrative decision about which speech forms count as the same language.
Ninth Schedule	A list at the back of the constitution. Laws placed on it cannot be struck down for violating fundamental rights. A list, not a test.

WORD	WHAT IT MEANS
Personal cultivation	The clause in tenancy laws allowing an owner to take back land to farm himself. The commonest route to evicting a tenant.
Preventive detention	Imprisonment to stop somebody doing something in future. No charge, no trial, no conviction. Written into the Indian constitution at Article 22 and legislated in 1950.
Public order	The general peace of the community — a wider idea than security of the State, and the ground under which most Indian speech restrictions since 1951 have been justified.
Provisional Parliament	The Constituent Assembly continuing as a legislature until the first general election. It passed the First Amendment.
Uniform civil code	A single law of marriage, divorce and inheritance for all citizens regardless of religion. Promised in Article 44; not delivered.
Zamindar	A landholder who collected revenue from cultivators and passed a share to the state. An intermediary, not a farmer.

ABOUT

About the Author

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EDUCATION	BCom, Chandigarh University · MBA (Business Strategy and Analysis), Panjab University
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I write long-form research on Indian history, society, belief and public life, and publish it at misterlove.in under the name The Living Archive. Before this series I completed a fourteen-part history of Punjab and a sixteen-part study of the rules societies place on women.

I am not a historian by training and I do not claim to be one. What I do is take material that exists in scattered, difficult and expensive places and rebuild it as something an ordinary reader can get through, without removing any of the argument.

A note about Chapter Six. The refusal of the Punjabi Suba is a subject I have written about before at length and I hold views about it. I have tried in this part to state the government's reasoning as its own authors stated it, and to make the charge narrow and checkable: not that the refusal was wrong, but that it applied a test used nowhere else in the country. If I have overreached, that is where it will be.

THE RULES OF THIS PROJECT

The Living Archive

Everything published under this name follows three rules.

Plain language, undiminished content. The words are as simple as I can make them. The argument is not simplified with them.

Show the evidence, and show what it cannot prove. Every serious claim names what it rests on, and every source is described honestly, including what it is blind to.

Give every side its strongest case. Where people who know the material disagree, both positions appear at full strength, and I say when the evidence does not settle it.

PLEASE READ THIS

A Word on Sources

This part carries no footnotes. It is a synthesis of the published record — the Constitution of India and its amendments, reported judgments of the Supreme Court, Election Commission returns, the States Reorganisation Commission report, the four Hindu law acts, Five-Year Plan documents, and published history and biography. Where a specific document does the work, it is named in the text.

What this archive is good at, and bad at. For this decade the formal record is outstanding: statutes, judgments, debates and election returns are all published, complete and easy to reach, which is why so much of this part is graded solid. Two things are missing. The first is the internal life of the governing party, where the sources are memoirs written by interested parties. The second is what happened in villages, where the land reform record measures paper rather than possession, and where the people the reform was for did not appear in the record at all.

Where a claim rests only on an institution's account of its own conduct, or on a serious writer's assertion with no released document behind it, it is graded in the text. The foreign-involvement claim about Kerala is the clearest case, and Chapter Seven does not rest on it.

Corrections. If something here is wrong, write to me. Later editions will say what was changed and who caught it.

Lovepreet Singh

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NEXT

What Comes Next

Part Four — The Economic Model, 1950 to 1991

Part Four leaves the chronology and takes forty-one years as a single object, because that is the only way the largest item in this series can be seen. It asks:

- What did a business actually have to do to get permission to exist, expand, or change what it made — and who decided?
- Agriculture was given the money in the First Plan and then not in the Second. What was the reasoning, who argued against it, and what did the food position look like five years later?
- Which internal warnings arrived, in which years, and what happened to the people who wrote them? Part One's test for a blunder turns entirely on this.
- Countries starting from comparable poverty in 1950 did not all end up in the same place in 1990. Which comparisons are fair, and what do the fair ones show?
- Who did the system actually benefit? A permission regime creates a market in permissions, and somebody was on both sides of it.
- If the model was failing by the mid-1960s, why did it take until 1991 to change — and what was the mechanism that kept it running?

Questions, not topics. If any of them is answered badly, you will be able to tell.

END OF PART THREE OF NINETEEN · THE CONGRESS RECORD · THE LIVING ARCHIVE ·
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THE LIVING ARCHIVE

PART FOUR OF NINETEEN

The Congress Record

Part Four — The Economic Model, 1950–1991

Forty-one years taken as one object. What the permission system actually was, who wrote the warnings and when, who it really benefited, and why it took a near-bankruptcy to end it.

This is the largest item in the series and it has no scandal attached to it. Nobody took a bribe to write the Second Plan. That is exactly why it is worth eight decades of everybody's attention and has never had it.

WRITTEN AND RESEARCHED BY

Lovepreet Singh

INDIA · 1950 TO 1991

MISTERLOVE.IN

BEFORE WE BEGIN

Where We Left Off

Three parts of chronology. Now one part that steps out of it, because forty-one years of a single system cannot be seen a decade at a time.

Part Three covered the first decade of the republic: a constitution amended within fifteen months, the largest election ever held, land reform that passed everywhere and happened almost nowhere, the Hindu Code, the redrawing of the map, and the first elected state government dismissed from Delhi.

Four things from it carry into this part.

A minority of votes produced the power to change the rules. Congress never crossed half the vote in a general election, and first-past-the-post converted about 45 per cent of votes into about three-quarters of the seats — which is more than the two-thirds needed to amend the constitution.

The internal check disappeared between 1950 and 1954. Patel died, Tandon was forced out, Ambedkar resigned, Kripalani left. Nothing institutional replaced them, because nothing institutional had been doing the work. Chapter Four of this part is what that meant when the warnings started arriving.

The strongest test in this series is a government's own stated target. Nobody can call the standard unfair when they set it. This part is built on that test more than any other, because the Five-Year Plans state targets in numbers and the outturns are published.

The binding obstacle to land reform was the record, not the landlord. Part Three found that a state which located 173 million voters could not locate its tenants. Hold that finding. It has a twin in this part.

One thing about the shape of this part before we start. It leaves the chronology. Parts Two and Three moved year by year; this one takes 1950 to 1991 as a single object, because the licence system is not visible in any single decade. It looks reasonable in 1955, defensible in 1965, questionable in 1975 and indefensible in 1985, and the only way to see that arc is to stand back from it.

HOW TO READ THIS BOOK

The Six Boxes

Six coloured boxes run through the series, each doing one job. Here they are with examples from the material ahead.

A **Word Box** explains a hard word the moment it first appears.

WORD BOX

Import substitution: a policy of making things at home instead of buying them from abroad, by taxing or banning the imported version until a domestic producer exists.

The logic is not stupid. A country that buys everything from abroad never learns to make anything, and needs foreign currency it may not have. Protect an industry while it grows, and eventually it can stand on its own.

The difficulty is the word “eventually”. A producer protected from competition has every reason to stay protected and no reason to become efficient, and he is a much better-organised lobby than the millions of consumers paying more.

Why it matters here: this was the strategy for forty years, and the question the chapters ask is not whether it was reasonable in 1950 but what happened when it stopped working.

An **In Real Terms** box turns a number too big to picture into something with a body.

IN REAL TERMS

India’s economy grew at about 3.5 per cent a year from 1950 to 1980. Population grew at over 2 per cent. So income per person grew at somewhere around 1.3 per cent a year.

At 1.3 per cent, an income takes about **fifty-four years** to double. A man who started work in 1950 would reach the end of his working life with his household about half as well off again as when he began.

At 7 per cent — the rate of several comparable countries in the same decades — income doubles in about **ten years**. The same working life covers four doublings.

That is the whole of this part in one comparison. Not a difference in percentage points. A difference between one doubling and four, inside one lifetime.

A **How We Actually Know This** box shows the physical evidence and then says what it cannot prove.

HOW WE ACTUALLY KNOW THIS

The best evidence in this part comes from committees the government appointed to investigate itself. The Monopolies Inquiry Commission of 1965. The Hazari committee on industrial licensing. The Industrial Licensing Policy Inquiry Committee under Subimal Dutt, which reported in 1969.

These are strong sources for a specific reason: they were commissioned by the government running the system, staffed by people inside the establishment, and reported findings that embarrassed it. A hostile critic's estimate can be dismissed. A committee your own finance minister appointed cannot.

What they cannot show: what happened to their recommendations. A committee reports; it does not implement. Tracing whether a finding changed anything requires following the policy afterwards, which is Chapter Four's job and is much harder than reading the report.

An **Argument** box appears where serious people disagree, each side at its strongest.

THE ARGUMENT — WAS THERE AN ALTERNATIVE AVAILABLE IN 1950?

Part One set the rule: a charge needs an alternative that somebody proposed at the time, that was politically possible, and that somebody comparable actually did. Apply it to the founding choice.

NO, AND HINDSIGHT IS DOING THE WORK

In 1950 the export-led model did not exist as a template. The countries later held up as counter-examples had not yet done it, and when they did they did it under conditions India did not have: military governments that could impose unpopular decisions, small homogeneous populations, and enormous American aid and guaranteed market access granted for Cold War reasons. India chose non-alignment and got neither. Judging 1950 against a model that was demonstrated in the 1970s is exactly the hindsight trap.

YES, AND THE OBJECTION IS ABOUT THE LATER DECADES

Nobody serious argues the 1950 choice was wicked or stupid, and this series does not. The charge is about what happened after the evidence arrived. By 1967 the government's own committees were reporting that the system was concentrating economic power rather than dispersing it. By the mid-1970s comparable countries were visibly pulling ahead. The response was not correction but extension: more controls, more nationalisation, tighter permissions. A bet you refuse to settle for a further twenty-five years has stopped being a bet.

Where things stand: both sides are right about different periods and they largely agree. The first owns 1950 to about 1962. The second owns 1967 onwards. The genuinely contested ground is the five years between, and this part spends most of its time there.

What would settle it: the internal record — which warnings arrived in which year, and what happened to the people who wrote them. A good deal of it is public. Chapter Four uses it.

Why people care so much: because this is the argument about whether India's poverty in 1990 was inherited from the British or manufactured after 1947, and both answers assign an enormous debt to somebody.

A **Hidden Assumption** box digs out a belief sitting underneath an argument that *both sides accept without discussing*.

THE HIDDEN ASSUMPTION

Everyone who argues about the Indian economy before 1991 — defenders and critics alike — assumes **that the country was too poor to invest**.

The defenders' version: you cannot build industry without capital, and a country with an income of a few hundred rupees a head has none, so slow growth was arithmetic rather than policy. The critics' version is the mirror image: the state absorbed the little capital there was.

India's gross domestic savings rose from around 9.6 per cent of national income in the 1950s to somewhere in the range of 20 to 25 per cent by the 1970s and 1980s. That is not the profile of a country that could not save. By the later part of this period India was saving at rates comparable to countries growing three times as fast.

So the question was never how much was put in. It was what came out. A rupee saved and invested in a plant that runs at half its capacity, making something at twice the world price, for a market that cannot afford it, has been spent, not invested.

This changes what the whole argument is about. If the constraint was capital, the story is a tragedy about poverty. If the constraint was the **return on capital**, the story is about allocation — about who decided where the money went and on what basis — and that is a story with decisions in it, and people who made them.

Both camps prefer the first version. It lets the defenders say nothing could have been done, and it lets the critics blame an abstraction called socialism rather than doing the work of finding out where specific rupees went.

And every chapter closes with a **Remember This** box: the chapter in the plainest words available.

One last note on how to read this part. It is long on argument boxes and short on villains, and that is deliberate. There is no bribe at the centre of this story and no moment where somebody knowingly did the wrong thing for gain. That is exactly what makes it the largest item in the series and the least discussed.

REMEMBER THIS

This part leaves the chronology and takes **forty-one years as one object**, because the system looks reasonable in 1955 and indefensible in 1985 and the arc is invisible a decade at a time.

Growth of about **3.5 per cent** against population growth over 2 per cent gave income per head about **1.3 per cent** a year — one doubling in a working life, against four in comparable countries.

India was not too poor to invest. Savings rose to around a fifth of national income. The question was never how much went in. It was what came out.

Part Four

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What was chosen in 1950 and why it was reasonable · Mahalanobis and the Second Plan · the third thing that was actually built · the case for the defence, at full strength

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CHAPTER ONE

The Bet

In 1950 a group of serious people made a serious decision for serious reasons. Almost everything in this part follows from what they built instead of what they intended.

1.1 — What was chosen

The problem in front of the government in 1950 was not complicated to state. India was poor, it made almost nothing, and it had very little foreign currency with which to buy what it could not make.

The answer was a plan. India would build, at state expense, the industries that make other industries possible — steel, heavy machinery, power, chemicals, cement. Private business would continue, but inside a framework where the state decided what got built, where, and how much.

The intellectual architecture came largely from **P.C. Mahalanobis**, a statistician, and it shaped the Second Five-Year Plan from 1956. Its logic is worth stating properly rather than caricatured, because it is coherent.

A poor country can spend its scarce investment on consumer goods, which makes people better off now. Or it can spend it on the machines that make machines, which makes nobody better off now but raises how much the country can build in twenty years. Mahalanobis argued for the second. Accept a generation of scarcity and you buy the capacity to grow permanently afterwards.

That is not a foolish argument. It is a recognisable argument about deferred gratification, made at national scale, by people who genuinely expected the payment to come due.

1.2 — Why it was reasonable at the time

Four things made this look like the sensible course in 1950, and a prosecution brief that hides them is not worth reading.

The intellectual consensus pointed this way. Not just in India. Planning was mainstream development economics. The Soviet Union appeared to have industrialised from peasant poverty in one generation, and the figures showing what that had actually cost were not available.

Britain was doing a version of it. Coal, rail, steel and health had just been nationalised by a Labour government. This was not an exotic choice.

The available example of an unregulated market was two centuries of colonial extraction, ending in a famine in Bengal within living memory. The people making these choices had watched it.

Private capital was genuinely thin. There were large Indian business houses, but not on a scale that could build a steel plant and a heavy engineering complex simultaneously, and they had shown limited appetite for trying.

And the First Five-Year Plan, from 1951 to 1956, largely worked. It concentrated on agriculture and irrigation and it exceeded its own growth target. That is a fact and it belongs here, because it is the reason confidence was so high going into the Second.

1.3 — The third thing that got built

Now the observation this chapter exists for.

India did not build a planned economy. It did not build a market economy. It built a third thing, and confusing it with either of the other two is why most arguments about it go nowhere.

In a genuinely planned economy — the Soviet model — the state *owns* the factories and *directs* production. It decides how much steel to make and instructs the plants to make it. The state is the producer.

In a market economy, private firms decide what to make, and succeed or fail according to whether anybody buys it.

India built neither. It left most production in private hands, and then required **permission** for the decisions those private hands would otherwise make. What to produce, how much, where, with what machinery, using how much foreign currency — each of these became something you applied for.

The state was not the producer and it was not a referee. It was a **gatekeeper**, and this is a genuinely different arrangement with genuinely different consequences.

WORD BOX

Licence Raj: the popular name for the system of industrial permissions that ran in India from 1951 to the early 1990s. “Raj” here means rule or regime.

The term is used loosely and often as an insult, which obscures what it actually described. It was not state ownership; most of the firms were private. It was a requirement that private firms obtain official permission for the ordinary decisions of running a business.

Why it matters here: nearly every argument about this period is conducted as though the choice were state versus market. The thing that existed was neither, and Chapter Six shows that it produced outcomes that neither of those systems would have produced.

Once you see this clearly, the whole chapter’s argument follows, and it points at something both camps have always agreed on without discussing it.

THE HIDDEN ASSUMPTION

Every argument about India's economy before 1991 — from the left and from the right — assumes **that the choice was between planning and markets.**

The left says: planning was correct for a poor country and the reformers dismantled it. The right says: planning failed and markets were the answer. They disagree completely about which was better and agree entirely that those were the options.

India had neither. Under real planning, the state owns the plant and bears the loss when the plant is wrong — the decision-maker and the loser are the same body, which is a harsh but coherent arrangement. Under a market, the firm decides and bears its own loss. Both systems, whatever else is true of them, put the decision and the consequence in the same place.

A **permission system separates them.** The official who grants or refuses a licence bears no consequence for being wrong. The firm bears the consequence but did not make the decision. Nobody in the arrangement both chooses and pays.

That single structural fact predicts almost everything in the chapters ahead. It predicts why capacity was licensed and never built, why plants ran below capacity for decades without anybody being answerable, why the highest-return activity in the Indian economy became obtaining permission rather than producing anything, and why the system survived thirty years of evidence that it was not working.

It also explains why the standard argument is so sterile. Defending “planning” defends something India did not have. Attacking “socialism” attacks something India did not have. Both sides are arguing about a system neither of them lived under, and the actual system — the file, the queue, the sanctioned capacity — is discussed by almost nobody, because it is boring and has no ideology attached to it.

Everything in the next eight chapters is an elaboration of that one point. The system was a gatekeeper rather than a producer or a referee, and a gatekeeper is the only one of the three that can be wrong at no cost to itself.

REMEMBER THIS

The 1950 choice was **reasonable on the information available**: it was mainstream economics, Britain was doing a version of it, the available example of markets was colonial extraction, and private capital really was thin.

The First Plan concentrated on agriculture and **exceeded its own target**, which is why confidence going into the Second was so high.

India built **neither planning nor markets but a permission system**. Under both of the others, whoever decides also pays. Under this one, nobody does both — and that single fact predicts most of what follows.

CHAPTER TWO

How a Permission Actually Worked

Not the theory. The desk, the file, the queue, and the man in Delhi with a rubber stamp. This is what forty-one years of Indian economic life actually consisted of.

2.1 — The Act

The legal foundation was the **Industries (Development and Regulation) Act of 1951**. It brought a long list of industries under central control and required a licence to establish a new undertaking in any of them.

The Industrial Policy Resolution of 1956 then divided industry into three groups: those reserved exclusively for the state, those where the state would lead and private firms might participate, and everything else. The list reserved for the state was long and included most of what a growing economy needs.

Over the following two decades the framework was extended. The Monopolies and Restrictive Trade Practices Act of 1969 added a further layer of clearance for large business houses. The Foreign Exchange Regulation Act of 1973 tightened control over foreign currency and foreign-owned companies, and led some international firms to leave India rather than dilute their shareholdings.

2.2 — What you actually had to obtain

Abstractions are useless here, so here is the concrete version. Suppose it is 1975 and you want to make bicycles.

You need a **licence to set up the undertaking at all**. The licence specifies your *capacity* — the number of bicycles you may make in a year. Making more than your licensed capacity is an offence, even if people want to buy them.

You need permission for **where** the factory goes. Location was a policy instrument, used to push industry towards backward areas, so your commercial judgment about proximity to suppliers and markets is subordinate to somebody else's regional policy.

You need a separate **capital goods licence** to import machinery, which requires establishing that no Indian machine will do — and if an Indian producer says his machine will do, it generally will do, whatever you think of it.

You need an **allocation of foreign exchange** to pay for anything imported, from the machine to the components to the specialised steel. Foreign currency was rationed by the state and applied for.

If you want to **change what you make** — bicycles this year, mopeds next — that is a new product and needs new permission.

If you want to **expand**, that is an amendment to your licensed capacity, and is applied for.

If you are a large business house, you additionally need **M RTP clearance**, which is another authority with another queue.

And from the mid-1970s, if the business fails, you need **permission to close it**. Firms above a size threshold required prior government approval to retrench workers or shut down. A permission to exist and a permission to stop existing, from the same government, and in practice the second was harder to get than the first.

IN REAL TERMS

Imagine you want to open a tea stall. You apply for permission to open it, and the permission specifies that you may sell four hundred cups a day. On a hot afternoon the queue is longer. You may not serve them; four hundred is what you are licensed for.

You want a bigger kettle. The kettle is imported, so you apply for permission to import a kettle, and you must first prove that no Indian kettle will do. An Indian kettle-maker writes in to say his kettle will do. It is a worse kettle. You get the worse kettle.

You want to sell samosas as well. Samosas are a different product; that is a fresh application.

Now notice where your energy goes. Not into better tea. Into the application, the follow-up, the man who knows the officer, the second application. The tea is almost incidental to the business, and the business is the file.

2.3 — What this did to time

The most-cited feature of the system is delay, and delay is usually described as an inconvenience. It was worse than that, and the reason is worth understanding.

Applications took years. A businessman who saw an opportunity in 1972 might have permission to pursue it in 1976, by which time the opportunity had a different shape or belonged to somebody else.

But the deeper effect was on **what kind of business could survive at all**. An enterprise that must wait four years for permission needs capital to survive four years of waiting, and needs someone in Delhi who can move the file. A large established house has both. A new entrant with a better idea and no money has neither.

So the system selected. Not for good ideas or efficient production, but for **staying power and access**. Over forty years, selecting for those two things every day, an economy becomes composed of firms that are good at them.

HOW WE ACTUALLY KNOW THIS

Everything in section 2.2 is statutory. The Industries (Development and Regulation) Act, the Industrial Policy Resolution of 1956, the MRTP Act, the Foreign Exchange Regulation Act and the industrial disputes provisions on closure are all published law, and the licensing procedures were published as rules.

This is the highest grade of evidence available anywhere in this series. There is no need to rely on anybody's recollection of how difficult it was; the requirements are on the statute book and anyone can read them.

What it cannot show: how the system was actually administered. A statute tells you what was required, not how long it took, what was asked for informally, or which applications moved and which sat. For that you need the committee reports in Chapter Four, and they are the only systematic evidence that exists.

Before drawing the conclusion, the defence deserves its strongest hearing, because there is a version of it that survives everything in this chapter.

THE ARGUMENT — WOULD INDIAN INDUSTRY EXIST AT ALL WITHOUT THE PROTECTION?

Chapter Two has described the system as an obstacle course. Its defenders say the obstacle course is why there is anything to obstruct.

PROTECTION BUILT IT

In 1950 India made almost nothing. An Indian firm attempting to make steel, machine tools or chemicals would have been undercut immediately by established foreign producers with decades of scale behind them, and would never have reached the size at which it could compete. Protection bought the time. By 1991 India had a broad industrial base, a large engineering workforce and companies that went on to compete internationally — and every one of them was raised behind that wall. You cannot admire Indian industry today and condemn the thing that let it survive its childhood.

PROTECTION IS NOT THE SAME AS PERMISSION

The argument for protecting an infant industry from foreign competition is respectable and this series does not dispute it. But that is a case for tariffs, not for licences. A tariff shields a domestic industry from outside while leaving Indian firms competing furiously with each other, which is what forces improvement. India did both: it shut out foreign competitors and then licensed how many domestic ones there could be. The second removed the only remaining pressure to get better, and it is not required by the first.

Where things stand: the second side is stronger, and the distinction it draws is the most useful one in this part. Every country that industrialised late used protection of some kind, including the ones in Chapter Five's comparison table. What distinguishes India is not the wall against foreigners but the licence controlling competition *inside* it. The countries that grew fastest protected their industries and made them fight each other; India protected its industries and told them how many there could be.

What would settle it: comparing sectors where Indian firms faced many domestic competitors with sectors where licensing left two or three. Some of this has been done and it points the same way, but not systematically.

Why people care so much: because “we needed protection” and “we needed licensing” have been treated as one argument in India for seventy years, and separating them costs one side its best defence.

2.4 — The scarce thing

Every economy has something scarce, and the scarce thing is what everybody competes for.

In a market economy the scarce thing is customers. Firms compete by trying to be chosen by buyers, which is why they spend their effort on price and quality.

In India between 1951 and 1991 the scarce thing was **permission**. Capacity was licensed, so it could not be competed into existence. Foreign exchange was allocated, so it could not be earned into your hands. Imports were restricted, so a foreign competitor could not take your customers.

Once a licence was granted, the holder faced a market with limited supply, restricted imports and licensed competitors. Being chosen by a buyer was not the problem. Being chosen by an official was.

That is the single most important sentence in this part, and Chapter Six is about who understood it best.

REMEMBER THIS

A firm needed permission to **exist, expand, relocate, change product, import a machine, obtain foreign currency** — and from the mid-1970s, permission to **close**.

Delay was not merely inconvenient. It **selected** for firms with the capital to wait years and the contacts to move a file, and against anyone with a better idea and no money.

The scarce thing was permission, not customers. Being chosen by a buyer was not the problem. Being chosen by an official was.

CHAPTER THREE

The Farm That Was Not Funded

Seven Indians in ten lived off the land. The plan that mattered most gave the money to something else, and within a decade the country was buying its bread from a foreign government with conditions attached.

3.1 — The First Plan, which worked

The First Five-Year Plan, from 1951 to 1956, put its weight on agriculture and irrigation. Big dams, canals, community development. It was unglamorous and it exceeded its own growth target.

Some of that was luck — the monsoons were kind, and a country coming off the disruption of Partition had recovery growth available. But the emphasis was right for the country it was aimed at, and it delivered.

3.2 — The Second Plan, which turned away

From 1956 the weight moved decisively to heavy industry. Steel plants, machine tools, capital goods. Agriculture's share of plan investment fell.

The reasoning was the Mahalanobis argument from Chapter One, and it had an agricultural component that is often left out: the planners did not think farming was unimportant. They thought it did not need capital. Their view was that Indian agriculture could be improved by better organisation — cooperatives, extension services, land reform — rather than by investment, because the binding constraint was social rather than technical.

Two of the three parts of that answer had already failed. Part Three showed what happened to land reform. Cooperatives were pushed and mostly did not take. The extension services worked in places and not in others.

So agriculture got a diagnosis that assumed it needed no money, and a set of remedies that did not work, at the moment the population began growing at over 2 per cent a year.

WORD BOX

Foodgrain buffer stock: grain the government buys and stores so that it can release supplies when harvests fail and prices spike.

A country with a buffer stock can survive a bad monsoon by opening its own godowns. A country without one has to buy on the world market at exactly the moment its need is visible to every seller — or accept whatever a donor offers, on whatever terms.

Why it matters here: India in the mid-1960s had no meaningful buffer, and the terms it then accepted are the subject of section 3.4.

3.3 — What happened to food

Output rose through the 1950s and early 1960s. It did not rise fast enough.

The reason is arithmetic. Population was growing at over 2 per cent a year, which meant food output had to grow faster than 2 per cent every year merely to hold the position, and faster still to improve it. Indian agricultural output growth in this period was not reliably above that line, and it depended on the monsoon, which is not a policy.

Then came the droughts of the mid-1960s, two bad years close together, and the position went from tight to critical.

3.4 — Ship to mouth

WORD BOX

PL-480: an American law, Public Law 480, under which the United States sold surplus grain to poor countries and accepted payment in the buyer's own currency rather than in dollars.

For India this was genuinely valuable. Dollars were the scarcest thing the country had, and buying food with rupees meant the dollars could go on machinery instead.

It also meant that a large share of what Indians ate arrived by decision of a foreign government, which could slow the flow at any time without doing anything a lawyer could object to.

Why it matters here: this is the difference between a purchase and a dependency, and India crossed it somewhere in the early 1960s without noticing.

India bought grain from the United States under a programme known as PL-480, which allowed purchase in rupees rather than scarce dollars. Through the 1960s the quantities became very large. The phrase used at the time was that the country lived “from ship to mouth” — grain going from the dock into distribution with no stock in between.

Then the terms changed. During the food crisis of the mid-1960s the American President moved to releasing shipments in small tranches rather than committing to a year’s supply — a practice described afterwards as keeping India on a short tether. Continuation was linked to India’s positions on matters including its agricultural policy and its criticism of American conduct in Vietnam.

Whatever one thinks about the rights of that, its meaning for India was unambiguous. A country that cannot feed itself does not have an independent foreign policy, whatever its constitution says. Non-alignment, which was the central plank of Indian external policy, was being conducted by a government whose people ate at the discretion of one of the two blocs it was declining to align with.

IN REAL TERMS

Picture a household that spends every rupee it earns and keeps nothing in reserve. It is not poor exactly; it eats every day.

Then a month comes when the earnings do not arrive. The household goes to a neighbour, who lends generously — and then, the following month, mentions that he has views about how the household is being run, and about the household’s friendship with a man he dislikes.

Nothing has been threatened. Nothing needs to be. The conversation has changed permanently, and it changed the moment the reserve ran out.

That is what the absence of a buffer stock meant in 1966. Not hunger alone. A permanent alteration in what India could say.

Which raises the question this chapter has been circling, and it is not a simple one.

THE ARGUMENT — WAS AGRICULTURE DELIBERATELY STARVED?

Everyone agrees the Second Plan moved resources to industry. What that means is contested.

NOT STARVED — DIFFERENTLY DIAGNOSED

The planners did not think agriculture unimportant; they thought it did not need capital. On the evidence available in 1956 that was a defensible reading: Indian yields were far below what the same land produced elsewhere with the same technology, which pointed at organisation rather than investment. And the technology that eventually transformed Indian yields — the high-yielding seed varieties — did not exist in usable form in 1956. You cannot fund a solution that has not been invented.

STARVED, AND THE WARNING SIGNS WERE ANNUAL

The diagnosis may have been defensible in 1956. It was not defensible after the first bad harvest, or the second. Food output relative to population is measured every single year and published, and the line was visible from the early 1960s. What the government did during those years was continue the industrial emphasis and cover the gap with imported grain — which is to say, it treated a structural problem as a series of emergencies, for about a decade, until the emergencies became a crisis with a foreign government's hand on the tap.

Where things stand: the second side is stronger and the first side's best point survives inside it. The 1956 diagnosis was reasonable; the failure was in not revising it when the annual figures said it was wrong. Note that this is the same shape as the finding in Chapter One's argument box: the original bet is defensible, and the charge is about the refusal to settle it.

What would settle it: the internal record of the Planning Commission and the Ministry of Food through 1960 to 1965 — who raised the food position, in which year, and what was said back. Some of this is published in plan documents and parliamentary answers; the internal papers are not open.

Why people care so much: because if agriculture was starved, then the humiliation of 1966 and everything that followed from it — including a devaluation forced from outside — was self-inflicted, and the whole planning framework carries the blame rather than the weather.

One last point, and it will matter in Chapter Seven. The response to this crisis, when it finally came, was not more planning. It was a technology programme — new seed, fertiliser, water and a guaranteed price — that largely bypassed the permission system altogether. That contrast is the most useful natural experiment in this whole part.

REMEMBER THIS

The First Plan put its money on **agriculture and irrigation** and beat its target. The Second moved the weight to **heavy industry**, on a diagnosis that farming needed organisation rather than capital.

Two of the three organisational remedies — land reform and cooperatives — had already failed. Population was growing at over **2 per cent**, so output had to beat that line every year just to stand still, and it did not reliably do so.

By the mid-1960s India lived **ship to mouth** on American grain, released in small tranches with conditions attached. **A country that cannot feed itself does not have an independent foreign policy, whatever its constitution says.**

CHAPTER FOUR

The Warnings

Part One said a bad outcome only becomes a blunder if somebody saw it at the time. Somebody did. Three committees, appointed by the government, reporting to the government, in five years.

4.1 — The test, and why this chapter decides the part

Chapter One conceded the 1950 decision. Chapter Three conceded that the 1956 agricultural diagnosis was defensible on the information then available. Both concessions were real and both have the same structure: *you cannot blame people for not knowing what nobody knew.*

That defence has a precise expiry date, and this chapter establishes it. If the correct diagnosis was produced, in writing, by people the government itself appointed, and nothing followed, then everything after that date is not a mistake. It is a refusal.

4.2 — 1965: the Monopolies Inquiry Commission

The first was the Monopolies Inquiry Commission, which reported in 1965. It examined the concentration of economic power in India and proposed measures to limit it.

Note the framing, because it matters. This was a body looking at whether wealth was becoming concentrated — a socialist’s question, asked by a socialist government, in the terms that government would have chosen. And it found that concentration was happening.

That is important because it means what follows cannot be dismissed as an argument imported from outside. The critique of the licence system in the 1960s did not come from free-market economists. It came from the people running the system, using their own criteria, and finding that the system was failing by its own stated purpose.

4.3 — 1967: Hazari

The Planning Commission then appointed a committee under **R.K. Hazari** to review the working of industrial licensing under the 1951 Act.

Its conclusion was that the licensing system had produced disproportionate growth for some of the large business houses; that big business had succeeded in turning the policy to its own purposes; and that the granting of licences had become biased in favour of the large houses.

Read that once more and hold what it says. The instrument created to prevent the concentration of economic power was **producing** the concentration of economic power. Not failing to prevent it. Producing it.

4.4 — 1969: Dutt

The government then appointed the Industrial Licensing Policy Inquiry Committee under **Subimal Dutt**, a senior civil servant and diplomat. It reported in 1969. Its members included H.K. Paranjape and S. Mohan Kumaramangalam — the latter a figure of the left, not a critic of state control.

Its findings were specific and they are the most damaging documents in this part.

Large houses obtained licences and did not implement them. The committee identified companies doing this. Taking out a licence you never intend to use is not a failure to invest; it is an investment — in keeping the field empty.

This pre-emption forestalled others from entering production. The committee said so directly. A licence held and unused is a wall around a market.

No specific instructions had ever been given to licensing authorities to prevent concentration or monopoly. The system's stated purpose had never been translated into an instruction to the people operating it.

Large houses had penetrated areas reserved for the public sector, and obtained licences for non-essential items and for items that should have gone to the small and medium sector.

The objectives of the 1956 Industrial Policy Resolution had not been fulfilled. That is the government's own committee, on the government's own founding economic document, thirteen years in.

HOW WE ACTUALLY KNOW THIS

These are published reports of committees appointed by the Government of India. The Dutt committee's report is a public document and can be read today.

This is the strongest possible evidential position for a charge of this kind, and it is worth being explicit about why. The usual defence against economic criticism of this period is that it comes from people with an ideological objection to state action. That defence cannot touch these documents. The commissioning authority was the government running the system. The members were establishment figures, in one case a prominent man of the left. The criteria applied were the government's own stated objectives.

What it cannot show: what happened to the reports inside the machine. Who read them, what was argued, and why the response took the form it did are not in the reports themselves, and the Cabinet and party papers that would answer it are not open.

4.5 — What was done about it

Now the part that makes this a chapter rather than a footnote.

The response to a finding that the permission system was concentrating economic power was the **Monopolies and Restrictive Trade Practices Act of 1969**: a further layer of permission, requiring large houses to obtain an additional clearance from an additional authority.

The licensing system itself was not dismantled. It was not substantially loosened. The diagnosis — that requiring permission to produce had created a market in permissions which the largest players were best equipped to win — was accepted, and the remedy was another permission.

Four years later, the Foreign Exchange Regulation Act of 1973 tightened control again.

You have seen this shape twice already in this series. In Part Two, an emergency justified detention without trial and the power was made permanent rather than temporary. In Part Three, a blockage justified the Ninth Schedule and the schedule acquired no limit. Here, a control fails and the response is more control. In each case the instrument's failure is treated as evidence that there was not enough of it.

THE HIDDEN ASSUMPTION

Everyone who argues about India's economic failure — the people who blame socialism and the people who defend it — assumes **that the failure was intellectual**. That people believed wrong things, and that if they had believed the right things they would have done differently.

The right's version: they were captured by a bad idea. The left's version: the idea was sound and the critics misunderstand it. Both are arguments about beliefs, conducted as though the decisive question were what was in people's heads.

But the correct diagnosis existed. It was produced in 1965, refined in 1967, and set out in detail in 1969, by three bodies the government itself appointed, using the government's own criteria, in language nobody had to translate. Nobody needed to be persuaded of anything. It was on the file.

So the operative question is not what anybody believed. It is: **what happens to a correct diagnosis inside an organisation?**

Part Three answered that for this particular organisation, four years before the first of these reports. Between 1950 and 1954 every figure with an independent base who could tell the leadership it was wrong had died, resigned or been defeated, and nothing institutional replaced them. A finding that contradicts the leadership needs somebody with standing to carry it, and by 1965 there was nobody in the Congress party whose objection had weight.

That is why this chapter matters more than any economic argument in the part. The failure was not that India chose planning. It was that India built a machine with no way of being told it was wrong, and then ran that machine for forty years. The economics is downstream of the politics, and the politics happened in Part Three.

Both camps avoid this, because it is not an argument either can win. It offers the right no vindication of markets and the left no defence of planning. It says the system's defect was that correct information could not travel upwards — which is a criticism of a *structure*, and structures have no ideology to attack.

One clarification before leaving this chapter, because it is the most likely place for this part to be misread. Nothing here says the people running the system were stupid or dishonest. Several of them commissioned the reports that condemned their own policy, which is not the behaviour of people avoiding the truth. The finding is narrower and worse: they produced the correct diagnosis and could not act on it, because the organisation had no route by which a finding that contradicted the leadership could travel.

REMEMBER THIS

Three committees — **1965, 1967 and 1969** — all appointed by the government, all finding that the licensing system was **producing** the concentration of economic power it existed to prevent.

Dutt found that large houses **took out licences they never used, to keep others out**, and that licensing authorities had never been instructed to prevent concentration at all.

The response was **another permission** — the MRTP Act. **The correct diagnosis was on the file by 1969.** Everything after that is not a mistake.

CHAPTER FIVE

The Comparison

Most comparisons made in this argument are rigged, and they are rigged by both sides. Here is the honest set, and the honest set is worse.

5.1 — The comparison everybody makes, and why it is weak

The standard charge is: look at South Korea. In 1950 they were as poor as us or poorer. Now look.

The defence's answer to this is strong and this chapter is going to concede it in full.

South Korea and Taiwan were **small** — populations a fraction of India's, which makes almost every administrative problem different in kind rather than degree. They were **ethnically and linguistically uniform**, so they had no equivalent of the reorganisation described in Part Three. They spent much of the period under **authoritarian government**, which means unpopular decisions could simply be imposed. They received **enormous American aid and guaranteed access to the American market**, granted for Cold War reasons that had nothing to do with economics. Their land reforms were carried out under military occupation, which is a method not available to a democracy.

India had none of these. It chose non-alignment and got no bloc patron. It was enormous, plural and democratic, which meant every decision had to survive an election.

So: point conceded. The South Korea comparison is not a clean test, and a prosecution brief that leans on it is leaning on the weakest available support.

WORD BOX

Compound growth: growth that builds on itself, because each year's increase is calculated on the total including all the previous years' increases.

This is why small differences in a growth rate matter enormously over long periods and matter almost not at all in any single year. At 3.5 per cent an economy doubles in about twenty years. At 7 per cent it doubles in about ten. Over forty years the first has doubled twice and the second four times — which means the second is four times the size of the first, from the same start.

Why it matters here: nobody experiences a growth rate. People experience a year, and in any single year the difference between 3.5 and 7 per cent is almost invisible. The cost only becomes visible when it is far too late to have prevented it.

5.2 — The honest comparison set

A fair comparison needs countries that were **large, poor, plural and post-colonial**. That set is small but it is not empty, and here is what happened in it over roughly the same decades.

COUNTRY	APPROXIMATE ANNUAL GROWTH	WHY THE COMPARISON IS FAIR OR NOT
India	about 3.5%	—
Pakistan	about 5%	Identical starting date, same colonial inheritance, same partition, comparable poverty, comparable plurality. The closest comparison that exists anywhere.
Indonesia	about 6%	Large, poor, plural, post-colonial, thousands of islands and hundreds of languages. Fair, with the caveat of oil.
Thailand	about 7%	Smaller and never formally colonised. Partly fair.
Taiwan	about 8%	Small, uniform, authoritarian, American-backed. Not a fair test.
South Korea	about 9%	The same objections, more strongly. Not a fair test.

Now look at what happens when you throw out the unfair comparisons.

India still comes last.

Pakistan is the comparison that ought to be uncomfortable, and it is almost never made, by anybody, in either country. Same starting line, same year, same inherited administration, same partition, comparable poverty. Pakistan spent much of the period under military rule and produced political outcomes India did not, which is a point in India's favour that this series will make elsewhere. But on the narrow economic question over these decades, it grew faster.

Removing the rigged comparisons does not rescue the record. It makes the charge harder to answer, because every objection available against South Korea fails against Pakistan.

IN REAL TERMS

Two brothers inherit neighbouring shops on the same day in 1947. Both shops are in poor condition. Both brothers work hard.

Over thirty years the first brother's takings grow by about 3.5 per cent a year, the second's by about 5 per cent. It does not sound like much of a gap; on any given day you could not tell the shops apart.

After thirty years the second shop is taking about **fifty per cent more** than the first, from the same street, the same customers and the same start. Neither brother did anything dramatic. The difference is entirely in a rate that was never visible on any single day.

That is why this part exists, and why it is placed early. Almost nothing in this series is as expensive as a growth rate, and almost nothing is as difficult to notice while it is happening.

5.3 — The savings puzzle

Here is the fact that removes the last available defence.

India's gross domestic savings rose from around **9.6 per cent** of national income in the 1950s to somewhere in the region of **20 to 25 per cent** by the 1970s and 1980s.

That is a remarkable achievement in a poor country and it deserves saying. Indian households saved. The rate reached levels comparable to countries that were growing at two and three times India's speed.

Which forecloses the most common defence of this period — that a poor country simply lacks the capital to grow. India had the capital. It went in.

What it bought was plants running below capacity, protected products made at above world prices, and licensed monopolies with no reason to improve. The money was not missing. The **return** on it was.

And that turns the whole subject from an argument about resources into an argument about allocation — which means an argument about who decided, on what basis, with what consequence for being wrong. Chapter One's hidden assumption said nobody in a permission system both chooses and pays. This is the bill for that.

THE ARGUMENT — IS THE COMPARISON WITH OTHER COUNTRIES FAIR AT ALL?

Comparison is the only tool available for a counterfactual, and it is a contested tool. Both positions are serious.

THE COMPARISONS PROVE VERY LITTLE

No two countries are alike, and every difference you can name may be the one doing the work. India was uniquely large, uniquely plural and uniquely democratic among poor countries in this period, and democracy is expensive: it means you cannot suppress consumption, cannot move populations, cannot impose costs on a region that votes. Comparing India with places that did all three is comparing outcomes achieved under different rules. And India's political record over the same decades — no coup, no famine on the colonial scale, an unbroken sequence of elections — does not appear in any growth table.

THE COMPARISONS ARE ALL WE HAVE, AND THEY SURVIVE

Every objection above is answerable by choosing the comparison better, and the answer survives the choosing. Drop the small, uniform and authoritarian cases. Keep only the large, poor, plural, post-colonial ones. India is still last. Pakistan in particular defeats the democracy objection from the other direction: it was less democratic and grew faster, so if democracy explains India's rate then democracy is a cost worth naming and defending openly rather than mentioning only when the figures are bad.

Where things stand: the second side wins the narrow point and the first side is right about what the narrow point does not cover. Growth tables do not price an unbroken democracy, and a full account of the period would. But that is an argument for saying what democracy cost, not for declining to measure it — and no Indian government has ever made the argument in that form, because it means telling the electorate that its slower growth was partly the price of its vote.

What would settle it: a comparison across all large poor democracies in the period. The sample is very small, which is itself the finding: there were almost no others, which makes India's case genuinely close to unique and genuinely hard to test.

Why people care so much: because if the comparisons hold, roughly forty years of Indian poverty were avoidable, and the number of people involved is in the hundreds of millions.

All of which rests on a class of figure that deserves inspection before this much weight is put on it.

HOW WE ACTUALLY KNOW THIS

Growth rates come from national accounts — the estimate a government makes of everything produced in a year. India's have been compiled since the 1950s and revised several times, with new base years and improved methods.

They are good enough for this chapter's purpose for a specific reason: the argument here does not turn on a decimal point. A gap between 3.5 and 5 per cent, sustained for thirty years, survives every plausible revision to either figure. If the argument needed 3.5 rather than 3.8, it would not be worth making.

What they cannot show: anything about who received the growth. National accounts are a total. A country can grow steadily while a majority of its people do not, and India's poverty rate stayed somewhere between 40 and 50 per cent through most of this period — a fact that sits alongside the growth figures rather than being explained by them. They are also weakest exactly where most Indians worked: output in small farms and unregistered workshops is estimated rather than counted.

With those limits stated, the comparison in this chapter is about as solid as economic history gets, and it goes one way.

REMEMBER THIS

The **South Korea comparison is weak** and this part concedes it: small, uniform, authoritarian, American-backed. That objection is real.

Use only the fair comparisons — **large, poor, plural, post-colonial** — and India is still last. **Pakistan is the closest comparison that exists** and it grew faster.

India was not short of capital. Savings rose to around a fifth of national income. What was missing was the return, and a return is a question about allocation, which means a question about who decided.

CHAPTER SIX

Who It Actually Benefited

A system built to restrain large business was the best thing that ever happened to large business, and the government's own committee said so in 1969.

6.1 — A permission is an asset

Start with a piece of arithmetic that most descriptions of this period miss.

If making bicycles requires a licence, then a bicycle licence is worth money. Not because it lets you make bicycles — anybody can make bicycles — but because it stops other people making them.

The value of the licence is **the value of everybody else's exclusion**. And that value goes up the more attractive the market is, which means the better the opportunity, the more valuable it is to hold the permission and the more it costs anybody else to enter.

This is not a subtle effect and it does not require anybody to be corrupt. It follows from the design.

6.2 — Pre-emption

Once you see that a licence is an asset, one behaviour becomes obviously rational, and the Dutt committee found it happening.

Apply for licences you have no intention of using.

Chapter Four quoted the finding: large houses obtained licences and did not implement them, and this pre-emption of capacity forestalled others from entering the field. In the language of the committee, the practice was against the objective of rapid industrial growth.

Consider what a large house got for the cost of an application. It did not have to build the plant. It did not have to raise the capital, hire the workers, or take the risk. It simply had to hold the paper — and for as long as it held it, the licensed capacity for that product was accounted for, and a rival applying to make the same thing could be told the capacity already existed.

The state had, without intending to, created a cheap and legal way of buying a market and never entering it.

IN REAL TERMS

Imagine a town where the council decides how many bakeries there may be, and settles on three. Applications open.

You are the richest man in town. You do not particularly want to run a bakery. But you apply for all three permissions, and you get them, because you have the lawyers and the contacts and the patience for the process.

You then open one bakery, badly, and sit on the other two permissions.

Nobody in that town will ever eat better bread. Not because you baked well, and not because the council was corrupt, but because the council created a thing that was worth owning and you owned it. And you did it entirely within the rules, which is why nobody can point at a moment when the wrong was done.

6.3 — The market in files

The second consequence is the one everybody knows about, and it is worth putting in its proper place — which is second, not first.

When permission is the scarce thing, permission acquires a price. Sometimes that price was paid in money. Often it was paid in more durable currencies: political contributions, jobs for relatives, favours held in reserve.

The government examined this too. A committee on the prevention of corruption reported in the mid-1960s and connected corruption directly to the system of licences, permits and controls — the machinery, not the men. It led to the creation of a central vigilance body.

The important analytical point, which is easy to miss in the moralising this subject attracts, is the direction of causation. A system that makes permission valuable will produce a market in permission. You can prosecute individual officials indefinitely and the market will persist, because the thing being traded is created by the rules rather than by the character of the people administering them.

WORD BOX

Rent-seeking: spending effort to capture a bigger share of existing wealth rather than to create new wealth.

A firm that invents a cheaper process has created something; the wealth did not exist before. A firm that spends the same money persuading an official to refuse its rival's licence has moved wealth from one pocket to another and produced nothing.

Both are rational for the firm. Only one is useful to anybody else. Which of the two a business pursues depends on which pays better, and that depends entirely on how the rules are arranged.

Why it matters here: the licence system made the second reliably more profitable than the first, for forty years, and businesses responded exactly as anybody would.

6.4 — Who was on both sides

Which produces the arrangement that this chapter exists to name.

By the late 1960s the licence system had three groups of people with a stake in its continuation, and they were not the groups anybody would have predicted in 1951.

The officials who issued the permissions, whose importance was entirely a function of the permissions existing.

The politicians, for whom a discretionary permission is the most useful thing in politics: it can be granted, withheld, delayed, and remembered.

And **the large business houses** — the very people the system was built to restrain — for whom it was a barrier around their markets, paid for by the state and enforced by law.

Between them, these three groups contained everybody with the organisation and the access to change the policy. The people harmed by it were the firms that were never founded, the products never made, and the consumers who paid more. None of those is a constituency. A business that does not exist cannot lobby.

THE HIDDEN ASSUMPTION

Everyone arguing about the licence system assumes **that it restrained big business.**

Its defenders say: it prevented private monopoly and kept the commanding heights in public hands. Its critics say: it strangled enterprise and held Indian business back. Both are describing a state pressing down on capital. They disagree only about whether the pressing was justified.

It did the opposite, and the government's own inquiry established this in 1969. A permission requirement is a **barrier to entry**, and a barrier to entry is worth far more to whoever is already inside than to the authority that erected it. Every rule making it harder to start a bicycle factory is a gift to whoever already has a bicycle factory.

So the system's real distribution of benefit ran opposite to its stated purpose. It restrained the entrant, not the incumbent. It protected the largest houses from competition more effectively than any of them could have managed privately, and it did it with the moral authority of a socialist state and at no cost to the beneficiaries.

This is why the assumption survives so comfortably. It flatters everybody. It lets the left remember a state standing up to capital. It lets the right remember heroic entrepreneurs strangled by bureaucrats. What it hides is that the biggest houses of that era and the officials regulating them were, on this specific question, on the same side — and that the losers were people who never appeared in the argument because they never got to exist.

Watch for this shape in later parts. Whenever a regulation's stated purpose is to restrain the powerful, ask who bears the cost of complying with it, and whether that cost is larger for the powerful or for whoever is trying to become powerful.

Which leads to the accusation most commonly made about this period, and the one most often made carelessly.

THE ARGUMENT — DID THE SYSTEM CREATE CORRUPTION, OR REVEAL IT?

India's reputation for administrative corruption dates substantially from this period. What that means is disputed.

THE SYSTEM CREATED IT

Corruption requires something worth buying. A permission regime manufactures thousands of valuable, discretionary, individually-granted decisions, each of which is worth more to the applicant than the official earns in a year. No moral instruction can survive that arithmetic at scale. Change the rules and the market disappears, which is broadly what happened to industrial licensing corruption after the permissions were abolished.

THE SYSTEM REVEALED IT

Corruption existed before 1951 and persists in sectors that were never licensed — land records, policing, contracts, admissions. Blaming the licence system is convenient because it locates the problem in a policy that has since been abolished, rather than in enduring features of Indian administration: low official pay, weak accountability, and social norms about obligation to kin and community that do not switch off at an office door.

Where things stand: both are right and they are describing different layers. The second side is right that the underlying propensity was not created in 1951. The first is right that the licence system multiplied the opportunities enormously and concentrated them at exactly the level — a single officer's discretion over a decision worth crores — where the temptation is largest. The test the second side has to answer is what happened to industrial licensing corruption specifically after 1991, and the honest answer is that it substantially went away, while corruption in land, contracts and policing did not.

What would settle it: sector-by-sector measurement before and after delicensing. Partial evidence exists; nobody has assembled it systematically.

Why people care so much: because one account says the problem was a policy and can be fixed by policy, and the other says it is a property of Indian public life, and those two beliefs imply completely different politics.

Set this chapter beside Chapter Four and the shape of the whole part is visible. The government appointed committees which found the system producing the opposite of its purpose. The committees were right. And the three groups with the organisation to

change the policy were the three groups the policy was making better off. That is not a conspiracy and nobody had to arrange it. It is what happens when the people harmed by an arrangement are firms that were never founded.

REMEMBER THIS

A licence is an asset, and its value is the value of everybody else's exclusion. That follows from the design and requires nobody to be corrupt.

The Dutt committee found large houses **taking out licences they never used** — buying a market and never entering it, legally, for the price of an application.

Three groups had a stake in the system continuing: **officials, politicians, and the largest business houses**. The losers were firms that were never founded, and **a business that does not exist cannot lobby**.

CHAPTER SEVEN

The One Thing That Worked

In the middle of forty years of failure, one programme succeeded completely. Understanding why is worth more than all the rest of this part.

7.1 — What was actually done

By 1965 the food position described in Chapter Three had become intolerable. What followed was the most successful thing any Indian government did to the economy in the whole period covered by this part.

It had four components and none of them was a plan target.

Seed. New wheat varieties, bred in Mexico, which produced far more grain per acre if given enough water and fertiliser. India imported them in enormous quantity — the largest seed import anywhere up to that time — and Indian scientists adapted them to local conditions.

Fertiliser and water. The new seeds only work with heavy inputs. Fertiliser supply was expanded and subsidised, and tube-well irrigation spread rapidly with subsidised power and credit.

A guaranteed price. A minimum support price was established, along with the machinery to announce it, and a state agency to buy grain at that price and hold it. A farmer adopting an unfamiliar seed was taking a risk with his family's food, and the guaranteed price removed the downside of that risk.

Credit. Someone had to pay for the seed, the fertiliser and the pump before the harvest came in.

Within about seven years India was self-sufficient in wheat. The ship-to-mouth dependence described in Chapter Three ended, and it has not returned.

7.2 — Why it worked when nothing else did

Now the question that matters, and the answer is not “because the state acted”.

The state acted constantly through this period. It acted in steel, in machine tools, in textiles, in chemicals. What was different here?

No farmer had to apply for permission to plant the new seed.

Read the four components again with Chapter Two in mind. Every one of them is the state acting as a **supplier** or a **buyer**. It supplied seed, fertiliser, water, power and credit. It bought grain at a guaranteed price. At no point did it decide which farmer might grow how much wheat, or require an application, or specify a licensed capacity.

The decision stayed with the person who bore the consequence. A farmer who adopted the package and made it work kept the gain. A farmer who did not, did not. Millions of separate people made millions of separate decisions with their own land at stake, and the state's job was to make the good decision possible rather than to make it on their behalf.

That is the exact inverse of the permission system. And it is the only part of the Indian economy in these forty years that performed like the countries in Chapter Five's comparison table.

HOW WE ACTUALLY KNOW THIS

Agricultural output is among the best-measured things in India, for an unglamorous reason: the state buys grain, and anything the state buys must be weighed and paid for.

Procurement records, support prices, area under high-yielding varieties, fertiliser offtake and stock levels are all published, annually, by agencies whose job was operational rather than promotional. The wheat transformation is visible in several independent series that were collected for different purposes and agree with each other.

What it cannot show: what happened to people. Output per acre is not income per household, and neither is a measure of who ate. A district can double its wheat and contain more malnourished children than before if the gains go to owners and the losers are labourers. The production series is excellent and it is silent on distribution, which is why Chapter Seven's success and India's persistent malnutrition are both true at once.

The technical term for what was imported deserves unpacking, because the whole geography of the programme follows from what these seeds require.

WORD BOX

High-yielding variety: a crop bred to produce far more grain per plant than traditional varieties — mainly by growing a shorter, stiffer stalk that puts its energy into grain rather than straw, and does not fall over under a heavy head.

The catch is that the extra grain has to come from somewhere. These varieties need much more water and much more fertiliser than the seeds they replaced. Given both, they transform a harvest. Given neither, they can do worse than what the farmer was already growing.

Why it matters here: that requirement decided the geography of the whole programme, and therefore which parts of India would be prosperous for the next fifty years.

7.3 — The districts that were chosen

The programme was not applied evenly across India, and it could not have been.

The new seeds needed assured water. That meant the effort concentrated where irrigation already existed or could be created quickly: Punjab, Haryana and western Uttar Pradesh above all, and later parts of the coastal south.

The choice was technically correct. Putting water-hungry seed into rain-fed districts would have produced failure and discredited the whole programme in its first season.

It also decided, in a few years, which parts of India would be prosperous for the next half-century. A national programme that could only be delivered in some districts was, unavoidably, a decision about which districts. Part Five of this series is about exactly this — how central decisions made some Indian states rich and others poor — and this is one of the three or four largest entries in it.

7.4 — What was mortgaged

The bill came later and it is still being paid.

The package tied farmers to a specific crop pattern — wheat and, in the paddy areas, rice — because those were the crops the guaranteed price covered. Once the procurement machinery, the credit and the whole rural economy were built around two crops, switching became individually irrational even where it was collectively necessary.

Those crops are thirsty. Free or near-free electricity for pumping, introduced as an input subsidy and impossible to withdraw afterwards, made pumping groundwater effectively costless to the farmer while it remained very costly to the aquifer.

The result, over fifty years, is a groundwater position in Punjab and Haryana that is among the most serious resource problems in India, and a crop pattern that nobody now defends and no government has been able to change.

None of this makes the Green Revolution a mistake. A country facing famine and foreign leverage over its food supply took the option available and it worked. But the way it was paid for — a permanent input subsidy and a permanent procurement guarantee, neither of which any government has since been able to withdraw — is the same pattern this series keeps meeting: an emergency instrument that acquires a constituency and never expires.

THE ARGUMENT — WAS THE GREEN REVOLUTION A TRIUMPH OR A MORTGAGE?

Fifty years on, the same programme is cited as India's greatest policy success and as the origin of its worst resource crisis. Both cases are serious.

A TRIUMPH, AND THE ALTERNATIVE WAS FAMINE

India in 1966 faced genuine hunger and a foreign government's hand on its grain supply. Within seven years that was over permanently, and it has never returned despite the population roughly tripling since. Whatever the later costs, they are the costs of a country that has food. Judging the decision by problems that only exist because it succeeded is the clearest possible case of the hindsight trap Part One warned about.

A MORTGAGE, AND THE TERMS WERE NEVER EXAMINED

Nobody disputes the emergency or the achievement. The objection is to what was signed alongside it: a procurement guarantee and an input subsidy, both permanent, neither reviewed. Those two commitments locked a whole region into two thirsty crops and made pumping groundwater free to the farmer while it remained very costly to the aquifer. Fifty years later no government of any party has been able to withdraw either, and Punjab's water position is among the most serious in India. An emergency measure that acquires a constituency and never expires is the exact pattern this series keeps finding.

Where things stand: the first side wins on the decision and the second wins on the design. Adopting the technology was right and urgent. Paying for it with permanent, universal, undated subsidies was a choice, and cheaper alternatives — time-limited support, or payment tied to output rather than to water and power — were available in principle. What makes this a charge rather than a trade-off is the fifty years of not revisiting it.

What would settle it: whether any government seriously attempted to restructure the support and was defeated, or whether none tried. The record suggests very few attempts and no sustained one.

Why people care so much: because the region that benefited most is now paying most, which makes every proposal to change the arrangement look like a punishment aimed at the people who fed the country.

Both of those positions, though, share something they never state.

THE HIDDEN ASSUMPTION

Both sides of the Indian economic argument claim the Green Revolution, and both do it by assuming **that it shows what state action can achieve.**

The left's version: here is proof that a determined state can transform an economy, and the reformers who dismantled state capacity forgot it. The right's version: it worked because it was about technology and prices rather than planning, which proves markets. Both are arguing about how much state there should be.

Neither is looking at the specific thing that was different. The state in this programme was **a supplier and a buyer, not a gatekeeper.** It did not decide who could farm, how much they could produce, or what capacity they were licensed for. It removed constraints — seed, water, fertiliser, credit, price risk — and left the decision with the person whose land it was.

That distinction is not on either side's map, and it explains something both sides find awkward. The same government, in the same years, with the same ideology and often the same ministers, produced the best economic outcome of the period in agriculture

and the worst in industry. If the variable were the amount of state, that could not happen. The variable was not the amount. It was **where the state stood relative to the decision**.

Which suggests the useful question about any government programme is not “how interventionist is it” but “does it add a permission, or remove a constraint?” Those two things wear the same clothes in a budget document and behave in opposite directions in the world.

Carry that question into Part Five, where it does most of its work. The programme that succeeded removed constraints, and it removed them in some districts and not others, and that is why Part Five is about a map.

REMEMBER THIS

Four components: **seed, fertiliser and water, a guaranteed price, and credit**. Within about seven years India was self-sufficient in wheat and the ship-to-mouth dependence ended for good.

It worked because **no farmer had to apply for permission to plant**. The state was a supplier and a buyer, not a gatekeeper, and the decision stayed with the person who bore the consequence.

It also **chose which districts would be rich** for the next fifty years, and it was paid for with a permanent subsidy and a permanent procurement guarantee that **nobody has since been able to withdraw**.

CHAPTER EIGHT

The Two Moments

Twice before 1991 the direction could have changed. The first attempt was punished so severely that it settled the question for twenty years. The second happened without anybody announcing it.

8.1 — June 1966

Indira Gandhi had been Prime Minister for a few months. The food crisis was at its worst, foreign exchange had run down, and aid donors — principally the United States and the World Bank — were pressing for a change in economic direction as a condition of resuming support.

On **6 June 1966** the rupee was devalued, from about 4.76 to the American dollar to 7.50. That is a cut of over a third in the external value of the currency, and it was accompanied by promises of import liberalisation.

WORD BOX

Overvalued currency: a currency whose official exchange rate is set higher than what it would fetch if freely traded.

An overvalued rupee makes foreign goods look cheap to Indians and Indian goods look expensive to foreigners. That sounds pleasant and is not: it means imports are attractive exactly when you cannot afford them, and exports are uncompetitive exactly when you need to earn foreign currency.

Why it matters here: India held an overvalued rate for years because devaluing is politically painful and doing nothing is not — until the reserves run out, at which point the choice is made for you. That happened in 1966 and again in 1991.

The economics of it were defensible. An overvalued currency makes imports artificially cheap and exports artificially expensive, which is precisely the wrong arrangement for a country short of foreign exchange. Devaluation makes exports competitive and imports dear, which is what a country in that position needs.

Politically it was a catastrophe, and the reasons were not economic.

It was seen as capitulation — a national humiliation performed under foreign instruction, by a new Prime Minister widely regarded as weak, at the direction of the country whose grain shipments were already being released month by month. The aid that was expected did not arrive in the volumes anticipated. The immediate effect on prices was felt long before any export benefit.

Congress lost heavily in the general election that followed in 1967, losing power in a large number of states for the first time.

8.2 — What was learned from it

Here is why this moment matters more than the devaluation itself.

The lesson taken from 1966, by the government and by the political class generally, was not that the devaluation had been badly executed or badly explained. It was that **opening the economy is politically fatal and is done at the instruction of foreigners.**

What followed was a sharp turn in the opposite direction. Banks were nationalised in 1969. The MRTP Act arrived the same year, adding the permission layer described in Chapter Four. The Foreign Exchange Regulation Act followed in 1973 and tightened control over foreign companies and foreign currency; several international firms left India rather than comply. Privy purses were abolished. The rhetoric moved decisively left and so did the policy.

It is worth being careful about the causation here. The turn after 1966 was not only a reaction to the devaluation; there was a genuine political struggle inside Congress in these years, and the leftward move served a purpose in that struggle that had nothing to do with economics. Part Eight of this series takes that story properly.

But the effect on the economic argument is not in serious doubt. After 1966, any Indian politician proposing to open the economy was proposing something that had been tried once, had failed visibly, and had been widely understood as surrender. **The single attempt at liberalisation before 1991 discredited liberalisation for a generation.**

THE ARGUMENT — WAS THE 1966 DEVALUATION A MISTAKE?

This is argued about in India to this day and the two cases run past each other, because they are about different things.

ECONOMICALLY RIGHT, POLITICALLY MISHANDLED

The currency was overvalued and everybody serious knew it. Devaluation was correct and overdue, and the reason it failed to deliver was not the devaluation but the two failed monsoons either side of it, which wrecked output and prices at exactly the wrong moment. It was also undersold: no serious attempt was made to explain to the country why a weaker rupee was in its interest, so the only available interpretation was the one the opposition offered.

WRONG IN THE CIRCUMSTANCES, WHATEVER THE THEORY

A devaluation works by making exports competitive. India in 1966 had almost nothing to export, because forty years of import substitution had built an industry aimed entirely at the domestic market behind a tariff wall. So the benefit could not arrive quickly, while the cost — dearer imports of food, oil and machinery, in a famine year — arrived immediately. Doing the right thing at a moment when its benefits cannot appear and its costs are maximal is not merely bad timing; it is a policy error, and it burned the option for twenty-five years.

Where things stand: the second side is stronger and it contains the first side's point. The devaluation was right in isolation and wrong in sequence: the export capacity that would have made it work had been prevented from existing by the previous fifteen years of policy. That is a genuinely important finding, because it means the failure of 1966 was not evidence against opening the economy — it was evidence about what the closed economy had done to India's ability to open.

What would settle it: export performance in the following three to five years, controlled for the monsoon. The data exists and the answer is contested among economists rather than settled.

Why people care so much: because the political reading of 1966 — that opening the economy is surrender to foreigners — is still live in Indian politics, and it was formed in these months.

8.3 — The second moment, which nobody announced

The other thing that happened before 1991 is much less discussed and it complicates the standard story considerably.

Indian growth accelerated in the 1980s, from around 3.5 per cent to somewhere in the region of 5.5 per cent — before the reforms of 1991, and under Congress governments led by Indira Gandhi after 1980 and then Rajiv Gandhi.

There was no announcement and no doctrine. What happened was a series of unglamorous relaxations: some industries were delicensed, capacity limits were loosened, restrictions on expansion by existing firms were eased, imports of components and technology became somewhat freer, and a computer policy in 1984 opened the door for what became the software industry.

This belongs on the credit side and it is routinely omitted by both camps. The reformers omit it because it complicates the story that everything began in 1991. The defenders of the old model omit it because the acceleration came from loosening the model.

But it has a second half, and Chapter Nine is about that half. The growth of the 1980s was financed in part by external borrowing, and the borrowing is what turned the shock of 1990 into a crisis. The decade got its growth partly on credit, and the bill fell due in a single summer.

IN REAL TERMS

A household that has lived carefully for thirty years starts spending more freely. The house looks better. The children eat better. This is real: the family genuinely is better off, and anyone visiting can see it.

Some of it is a pay rise. Some of it is an overdraft. From the inside, and from the street, the two are indistinguishable — the difference only shows up when the bank calls.

India in the 1980s had both. The delicensing was a pay rise and it was real. The external borrowing was an overdraft. The bank called in June 1991.

Two moments, then, and they teach opposite lessons that the country learned in the wrong order. In 1966 the right economic decision was taken at the worst possible moment and was punished, which taught a generation that the decision itself was

wrong. In the 1980s a series of small right decisions were taken quietly and worked, and almost nobody noticed, because nothing was announced and no argument was won.

REMEMBER THIS

The rupee was devalued in **June 1966** — economically defensible, politically catastrophic, and followed by heavy Congress losses in 1967.

The lesson taken was that **opening the economy is fatal and foreign-directed**. What followed was bank nationalisation, the MRTP Act and FERA. One failed attempt discredited liberalisation for twenty-five years.

Growth accelerated in the 1980s, before 1991, under Congress, through quiet delicensing. That is a credit item both camps omit — and it was financed partly by borrowing, which is what made 1991 a crisis rather than a shock.

CHAPTER NINE

Why It Took Until 1991

The correct diagnosis was on the file in 1969. The system ended twenty-two years later. What changed in between was not the argument.

9.1 — The constituency

Chapter Six named the three groups with a stake in the permission system continuing: the officials who issued permissions, the politicians for whom a discretionary permission is the most useful object in politics, and the large houses for whom it was a state-funded wall around their markets.

Add two more that the 1970s created.

Organised labour in the public sector and in protected industry. Employment in a licensed firm behind a tariff wall was secure and comparatively well paid, and after the mid-1970s a firm above a certain size could not retrench or close without permission. That is a genuine benefit to the people holding those jobs, and they were organised.

Farmers in the procurement system. Chapter Seven's guaranteed price created a large, geographically concentrated group with a direct interest in a permanent arrangement.

Now count who was left. The people paying for the system were consumers paying above world prices, workers in the unorganised sector who had none of the protections, and firms that were never founded. Not one of those is a constituency. They have no association, no strike, no delegation, and in the third case no existence.

So the system was not sustained by belief. By 1980 there was very little belief left; the people running it could read the growth figures. It was sustained by **the ordinary arithmetic of who could organise.**

9.2 — What actually happened in 1991

The end, when it came, was not an argument being won.

Three things hit at once. The Gulf War pushed oil prices up sharply and India imports oil. The Soviet Union — India's largest trading partner, with bilateral trade of over five billion dollars a year — collapsed, and with it a large share of Indian exports. And non-resident Indians, watching both, withdrew their deposits.

Underneath those shocks sat the structural position: after forty years of building for the domestic market behind a tariff wall, India had a small export base and therefore no reliable way of earning the foreign currency it needed. That is the same finding as Chapter Eight's verdict on 1966, arriving twenty-five years later with interest.

Foreign exchange reserves stood at about **1.2 billion dollars in January 1991** and had roughly halved by June — enough for something in the region of two to three weeks of essential imports. The International Monetary Fund suspended its programme and the World Bank stopped disbursing. India was weeks from defaulting on its external obligations.

In May 1991, under a caretaker government, twenty tonnes of gold were flown to Zurich as collateral. In July, a further forty-seven tonnes went to the Bank of England. Sixty-seven tonnes in total, raising a few hundred million dollars, against an emergency loan from the Fund of about 2.2 billion.

The gold left the country in secret and the public learned about it roughly a week later.

IN REAL TERMS

Two to three weeks of imports means exactly what it says. Not a recession. Not a slowdown.

It means that in about a fortnight, the country cannot pay for the next tanker of crude oil. No oil means no diesel, which means no lorries, which means grain does not move from the surplus states to the deficit ones. It also means no fertiliser, no imported medicines, and no components for factories.

And it means a household's gold — the thing an Indian family holds precisely because it is the last thing you sell — being flown out of the country by the state, in secret, for the same reason a family sells it.

The thing being avoided at that cost has a name, and it is worth knowing exactly what it would have meant.

WORD BOX

Sovereign default: a country failing to pay what it owes to foreign lenders on time.

It is not the same as a business going bankrupt, because there is no court that can seize a country. What happens instead is that lending stops — for the government, and for every bank and company in that country — and for a poor country that imports its oil and much of its machinery, lending stopping means the machinery stopping.

Why it matters here: in June 1991 India was weeks away from this, and the government knew it before anybody else did.

9.3 — Who ended it

The reforms of July 1991 abolished industrial licensing for most industries, devalued the rupee in two steps, and began dismantling the trade restrictions.

They were carried out by a **Congress government**, under Prime Minister P.V. Narasimha Rao, with Manmohan Singh as Finance Minister.

This is a credit item of the first order and it goes in without qualification. The party that built the permission system dismantled it, quickly, competently, and against its own thirty-year rhetoric, at a moment when it held a minority in Parliament. Part Fourteen of this series covers that government properly and gives it its due.

What it does not do is settle the question this chapter asks, which is why it took until 1991.

THE ARGUMENT — WHO DESERVES THE CREDIT FOR 1991?

This is contested in Indian politics every year, usually by people with an interest in the answer.

THE GOVERNMENT THAT DID IT

A minority government with no mandate for any of this dismantled its own party's forty-year framework within weeks of taking office, and made it stick. Rao provided the political cover and Singh the design. Plenty of governments have faced a balance-of-payments crisis and responded with emergency borrowing and nothing else; this one used the crisis to change the system, which required a judgment about what the crisis meant and the nerve to act on it.

THE CRISIS, AND THE LENDER

The reforms arrived at the precise moment there was no alternative, in substantially the form an external lender required, from a party that had rejected all of it for four decades and had been in power for most of them. Give credit for competent execution under duress, certainly. But a government that changes course only when it has run out of money is not being credited with a decision; it is being credited with recognising that the decision had already been made for it.

Where things stand: both are right and the second is the more important. Execution genuinely deserves credit — the design was thought through, it went beyond what the Fund required in several respects, and it held. But the second side's point is the one that generalises: this series has now found the same pattern in Part Two, Part Three and here. An instrument fails; the failure is answered with more of the instrument; and the change comes only when something external forces it.

What would settle it: whether the same people would have done the same thing without the crisis. There is some evidence — the quiet liberalisation of the 1980s ran in the same direction — but the pace and scope of 1991 have no precedent in it.

Why people care so much: because the credit for 1991 is now a live claim in Indian politics, made by parties that were not in office and denied to a party that no longer campaigns on it.

Underneath that argument, though, both sides accept something that is not true.

THE HIDDEN ASSUMPTION

Everyone telling the story of 1991 — the reformers who celebrate it and the critics who resent it — assumes **that a bad policy ends when it is shown to be bad.**

The celebratory version: the evidence accumulated, the argument was won, and in 1991 the right people finally had the courage to act on it. The resentful version: a crisis was used as a pretext to impose an argument that had not been won. Both are stories about an argument, differing only over whether it was won honestly.

The argument was over in 1969. Chapter Four established it: the government's own committees, using the government's own criteria, found the system producing the opposite of its purpose. Nothing of substance was added to that diagnosis in the following twenty-two years. Nobody's mind needed changing.

What changed in 1991 was not knowledge. It was **the bank balance.** The system ended when the country ran out of money to run it, and not one day earlier — and the specific form the ending took was determined by what an external lender required, which is the least dignified possible way for a sovereign country to change its economic policy.

Draw the general rule, because this series will meet it again. A policy with an organised constituency does not end when it is refuted. It ends when the money runs out, when the constituency loses its grip, or when the policy is destroyed by an outside event. Being wrong is not on that list.

And note what this implies about the reforms themselves. Because they were made under duress rather than won by argument, the argument was never actually had in public. India changed its economic direction without any government ever persuading its own electorate that the change was right — which is why, thirty-five years later, the case still has to be made every time, and why the 1966 reading of liberalisation as foreign-imposed surrender has never entirely gone away.

One thing this part cannot do, and it should be said before the Remember box rather than left to Chapter Ten. It cannot tell you what those forty-one years cost in human terms, because that requires a counterfactual and Part One explained why counterfactuals cannot be measured. What it can tell you is that the diagnosis was complete in 1969, that the money was there, that the fair comparisons all run one way, and that the change came from a bank balance rather than an argument. Those four are enough.

REMEMBER THIS

The system was sustained not by belief but by **who could organise**: officials, politicians, large houses, protected labour and procurement farmers. Those paying for it — consumers, unorganised workers, and firms never founded — are not constituencies.

In June 1991 reserves covered about **two to three weeks of imports**. Sixty-seven tonnes of gold were flown out as collateral, in secret.

Licensing was abolished by a **Congress government**, and that is a credit item without qualification. But **the argument had been over since 1969. What changed in 1991 was the bank balance.**

CHAPTER TEN

An Honest List of What We Do Not Know

The largest charge in this series rests on a comparison with a world that never happened. Here is exactly how much weight that can bear.

10.1 — Genuinely unknown

This part makes the biggest claim in the series — that a policy framework cost India decades of growth — and it is the claim that can least be proved. That has to be said plainly at the front of this chapter rather than buried.

What India's economy would have been worth in 1991 under a different policy.

Every estimate you will ever see of this is a model, and a model's answer is decided by its assumptions.

Why it is unknown: it is a counterfactual across forty years and a billion people. Part One's Chapter Three explained why these cannot be measured, and this is the largest one in the series. What can be done is comparison, which is Chapter Five, and comparison is weaker than measurement and better than opinion.

How much of the growth gap is the policy and how much is everything else. India differed from every comparison country in ways beyond economic policy: size, plurality, democracy, non-alignment, the absence of a bloc patron, geography, the monsoon.

Why it is unknown: you cannot hold those constant. Any statement about the share attributable to policy is an estimate with a wide band around it, and anybody quoting a precise figure is overstating what the method can deliver.

How much of the 1980s acceleration came from delicensing and how much from borrowing. Both happened. Both plausibly contributed.

Why it is unknown: disentangling them requires assumptions about what the borrowed money was spent on, and the accounts do not answer that at the necessary level of detail.

What happened to the committee reports inside the government. Chapter Four’s three reports are public. What was said about them in Cabinet, who resisted acting, and why the response was another permission rather than fewer, is not.

Why it is unknown: Cabinet papers and Congress party records for this period are not open. This is the *decided* category, and it is the single closed file that would do most to settle this part.

The scale of the market in permissions. Chapter Six argued that a permission system creates a price for permission. The size of that market — what proportion of licences involved a payment, and how large — is not established.

Why it is unknown: nobody keeps records of it, by design. The government’s own committee on corruption identified the mechanism and could not quantify it either. Anybody who gives you a figure has invented it.

10.2 — Solid

What the law required. The Industries (Development and Regulation) Act 1951, the Industrial Policy Resolution 1956, the MRTP Act 1969, the Foreign Exchange Regulation Act 1973, and the provisions requiring permission to retrench or close. All published statute. Nothing in Chapter Two rests on recollection.

What the government’s own committees found. The Monopolies Inquiry Commission in 1965, the Hazari committee, and the Dutt committee reporting in 1969. Published reports, commissioned by the government, staffed by establishment figures, applying the government’s own criteria. This is the strongest evidence in the part.

The growth rates. About 3.5 per cent a year from 1950 to 1980, against population growth over 2 per cent, giving per capita growth of roughly 1.3 per cent. Acceleration to somewhere around 5.5 per cent in the 1980s. These are standard national accounts figures and the disputes about them are at the margins.

The savings rate. From around 9.6 per cent of national income in the 1950s to roughly 20–25 per cent by the 1970s and 1980s. This is what forecloses the “too poor to invest” defence.

The 1966 devaluation. 6 June 1966, from about 4.76 to 7.50 rupees to the dollar. A matter of record, as is the electoral result that followed in 1967.

The Green Revolution outcome. Self-sufficiency in wheat within about seven years, and the end of ship-to-mouth dependence. Visible in several independent published series collected for different purposes.

The 1991 position. Reserves of about 1.2 billion dollars in January 1991, roughly halved by June, covering something in the range of two to three weeks of essential imports. Sixty-seven tonnes of gold pledged — twenty to Zurich in May under a caretaker government, forty-seven to the Bank of England in July. An IMF loan of about 2.2 billion dollars. Licensing abolished for most industries in July 1991 by a Congress government.

10.3 — What can actually be tested

Since the central counterfactual cannot be run, it is worth being clear about the four things in this part that *can* be checked by anybody who wants to.

Whether the diagnosis existed before the policy changed. Read the Dutt report. It is public. Its date is 1969 and the licensing system was abolished in 1991. That gap is not an interpretation.

Whether the system's stated purpose was achieved. Its purpose was to prevent the concentration of economic power. Its own inquiry committee found it producing concentration. That is not an outside critic's judgment.

Whether India was short of capital. The savings series answers it. It was not.

Whether the fair comparisons still go against India. Drop every country to which a legitimate objection exists. Pakistan and Indonesia remain, and both grew faster.

Those four are the load-bearing structure of this part. The counterfactual arithmetic — how many hundreds of millions of people would have been how much better off — is not, and I have deliberately not given you a number for it, because the honest answer is that nobody has one.

REMEMBER THIS

Genuinely unknown: **what the economy would have been worth under different policy, how much of the gap is policy rather than everything else, how the 1980s growth divides between reform and borrowing, what was said about the committee reports inside government, and the size of the market in permissions.**

Solid: **what the law required, what the government's own committees found, the growth rates, the savings rate, the 1966 devaluation, the wheat transformation, and the 1991 position.**

The counterfactual cannot be run and I have not given you a number for it. Four things can be checked by anybody: the diagnosis predates the change by twenty-two years, the system produced the opposite of its purpose, India was not short of capital, and the fair comparisons still go against it.

REFERENCE

Timeline, 1950–1991

Dates only. The arguments are in the chapters.

DATE	WHAT HAPPENED
1951	The Industries (Development and Regulation) Act. A licence is required to establish an undertaking in a listed industry.
1951–56	The First Five-Year Plan. Weight on agriculture and irrigation. Exceeds its own growth target.
1956	The Industrial Policy Resolution divides industry into three schedules. The Second Plan moves the weight to heavy industry.
1957–58	A foreign exchange crisis. Import controls tightened.
Early 1960s	Food output fails to reliably outpace population growth. Grain imports under PL-480 rise.
1965	The Monopolies Inquiry Commission reports on the concentration of economic power. The Agricultural Prices Commission and the Food Corporation of India are created.
1965–67	Two failed monsoons. Severe food crisis. Grain released in short tranches, with conditions attached.
1966	Mexican high-yielding wheat seed imported in bulk. The Green Revolution package begins.
6 Jun 1966	The rupee is devalued from about 4.76 to 7.50 to the dollar. Politically catastrophic.
1967	The Hazari committee finds licensing has produced disproportionate growth for large houses. Congress loses power in many states in the general election.
1969	The Dutt committee finds large houses taking licences and not implementing them, pre-empting capacity. Banks are nationalised. The MRTP Act adds a further permission layer.
Early 1970s	India reaches self-sufficiency in wheat. Ship-to-mouth dependence ends.
1973	The Foreign Exchange Regulation Act tightens control over foreign currency and foreign-owned firms.
Mid-1970s	Firms above a size threshold require government permission to retrench workers or close.

DATE	WHAT HAPPENED
1977	Several international companies leave India rather than dilute shareholdings under FERA.
1980s	Growth accelerates to around 5.5 per cent. Quiet delicensing, easier component imports, a computer policy in 1984. Financed partly by external borrowing.
1990	The Gulf War raises oil prices. Soviet trade collapses. Non-resident deposits are withdrawn.
Jan 1991	Foreign exchange reserves at about 1.2 billion dollars.
May 1991	Twenty tonnes of gold flown to Zurich as collateral, under a caretaker government. The public learns about a week later.
Jun 1991	Reserves cover roughly two to three weeks of essential imports. India is weeks from default.
Jul 1991	Forty-seven tonnes of gold to the Bank of England. An IMF loan of about 2.2 billion dollars. Industrial licensing abolished for most industries by a Congress government.

Part Five starts here. It asks a question this part could not: the permission system operated on the whole country, so why did it leave some Indian states rich and others hollowed out? The answer is a set of rules almost nobody has heard of.

REFERENCE

Glossary

Every hard word used in this part, in plain English.

WORD	WHAT IT MEANS
Balance of payments	The record of a country's money coming in from abroad against money going out. A crisis means it cannot pay for what it must buy from other countries.
Buffer stock	Grain the government buys and stores, so supplies can be released when harvests fail. Without one, a country must buy at the moment its need is visible to every seller.
Capital goods	Machines used to make other things, as opposed to things people consume. The centre of the Second Plan's strategy.
Devaluation	Reducing the official value of a currency against others. Makes exports cheaper abroad and imports dearer at home.
FERA	The Foreign Exchange Regulation Act of 1973, controlling foreign currency and the operations of foreign-owned companies in India.
Foreign exchange	Foreign currency. Needed to buy anything from abroad. Rationed by the Indian state throughout this period.
Import substitution	Making things at home instead of buying them abroad, by taxing or banning the imported version until a domestic producer exists.
Licence Raj	The system of industrial permissions running from 1951 to the early 1990s. Not state ownership: private firms requiring official permission for ordinary business decisions.
Licensed capacity	The maximum quantity a firm was permitted to produce. Exceeding it was an offence, whatever the demand.
MRTP Act	The Monopolies and Restrictive Trade Practices Act of 1969, adding a further clearance requirement for large business houses.
Minimum support price	A guaranteed price at which the state will buy a crop. Removes the downside risk of adopting a new method.
PL-480	The American food aid programme under which India bought grain for rupees rather than scarce dollars.
Pre-emption	Obtaining a licence you do not intend to use, so that nobody else can obtain one. Identified by the Dutt committee in 1969.

WORD	WHAT IT MEANS
Rent-seeking	Spending effort to capture a larger share of existing wealth rather than to create new wealth. Rational for the firm, useless to everybody else.
Reserves (foreign exchange)	The stock of foreign currency a country holds. Usually measured in how many months of imports it would cover.
Savings rate	The share of national income not consumed. India's rose from under 10 per cent in the 1950s to around a fifth by the 1970s.

ABOUT

About the Author

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PROJECT	The Living Archive · misterlove.in
EDUCATION	BCom, Chandigarh University · MBA (Business Strategy and Analysis), Panjab University
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I write long-form research on Indian history, society, belief and public life, and publish it at misterlove.in under the name The Living Archive. Before this series I completed a fourteen-part history of Punjab and a sixteen-part study of the rules societies place on women.

I am not an economist and this part required more care than the others because of it. What I have tried to do is stay on ground where the evidence is documentary rather than modelled: what the statutes required, what the government's own committees found, and what the published series show. Where the argument needs a model — above all the counterfactual in Chapter Ten — I have said so and declined to give a number.

My training is in business strategy, which is a bias worth declaring here rather than anywhere else. It disposes me to see a permission system from the point of view of the firm applying, and to find the entrepreneur who never got started more vivid than the worker whose job the same system protected. Chapter Nine names both. If the balance is wrong, that is the direction it will be wrong in.

THE RULES OF THIS PROJECT

The Living Archive

Everything published under this name follows three rules.

Plain language, undiminished content. The words are as simple as I can make them. The argument is not simplified with them.

Show the evidence, and show what it cannot prove. Every serious claim names what it rests on, and every source is described honestly, including what it is blind to.

Give every side its strongest case. Where people who know the material disagree, both positions appear at full strength, and I say when the evidence does not settle it.

PLEASE READ THIS

A Word on Sources

This part carries no footnotes. It is a synthesis of the published record — the statutes named in Chapter Two, the reports of the Monopolies Inquiry Commission, the Hazari committee and the Dutt committee, Five-Year Plan documents, national accounts and savings series, agricultural procurement data, and the published record of the 1991 crisis. Where a specific document does the work, it is named in the text.

What this archive is good at, and bad at. The formal and statistical record for this period is strong: laws, plan targets, national accounts, procurement figures and committee reports are all published. Two things are weak. The first is the internal record — what was said about these reports inside government, which is closed. The second is the counterfactual, which does not exist and cannot, and which is where the largest claim in this part would have to live.

Growth and savings figures in this part are given as approximations deliberately. Different series and different base years produce somewhat different numbers, and the argument here does not depend on the second decimal place. Where a figure would only work at a precision the sources cannot support, I have used a range or left it out.

Corrections. If something here is wrong, write to me. Later editions will say what was changed and who caught it.

Lovepreet Singh

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NEXT

What Comes Next

Part Five — The Map of Who Got What

Part Five asks the question this part could not. The permission system applied to the whole country, so why did it leave some Indian states rich and others hollowed out? It asks:

- From 1952 to 1993 the central government equalised the price of coal, iron ore, steel and cement across India, so a factory anywhere paid what a factory at the mine paid. Who proposed it, what was it for, and what did it do to the states sitting on the minerals?
- Industrial licences were granted for particular places. Where did they physically go, decade by decade, and does the pattern match any stated policy?
- The Green Revolution went where the water was. Was any attempt made to extend it, and what happened to the districts that were never in it?
- River water and canal capacity were allocated by agreements and awards. Who won, who lost, and which disputes are still unresolved sixty years later?
- Plan transfers to states ran on formulas. What did the formulas reward, and did they narrow the gap between states or widen it?
- Bihar's mineral belt was separated into Jharkhand in 2000, not by Congress. West Bengal's sharpest decline runs from 1977 under the Left Front. What is left of the charge once both concessions are made?

Questions, not topics. If any of them is answered badly, you will be able to tell.

THE LIVING ARCHIVE

PART FIVE OF NINETEEN

The Congress Record

Part Five — The Map of Who Got What

Policies do not happen to a country. They happen to places, and unequally. This part is about the rules that decided which Indian states would be rich and which would be hollowed out, and about the one that did it for forty-one years without anybody noticing.

Two large concessions are made in Chapter Seven before the ledger is drawn in Chapter Eight, because a charge that cannot survive the strongest objections to it is not worth making.

WRITTEN AND RESEARCHED BY

Lovepreet Singh

INDIA · 1947 TO THE PRESENT

MISTERLOVE.IN

BEFORE WE BEGIN

Where We Left Off

Part Four asked what the permission system cost India. This part asks a question it could not: the system applied to the whole country, so why did it leave some parts of it rich and others empty?

Part Four took forty-one years as one object and found four things that carry directly into this part.

India built a permission system, not a planned economy or a market one. The state was a gatekeeper rather than a producer or a referee — and a gatekeeper is the only one of the three that can be wrong at no cost to itself.

India was not short of capital. Savings rose from under a tenth of national income in the 1950s to around a fifth by the 1970s. What was missing was the return, which makes the whole subject a question about *allocation* — about who decided where money went. This part is that question asked geographically.

The correct diagnosis was on the file by 1969, produced by the government's own committees, and the policy did not change until 1991. Part Four's finding was that a policy with an organised constituency ends when the money runs out, not when it is refuted.

The one programme that worked removed constraints instead of adding permissions — and it could only be delivered where there was water, which made it, unavoidably, a decision about districts. That is where this part picks up.

One thing about the method before we start. Part One said the strongest tool available to this series is the comparison between Indian states, and it is badly under-used. Two states share a constitution, a currency, a central bank, a foreign policy, a legal system, an army and a border. When they diverge sharply over decades, the explanation has to be something local or something done to them — and the list of candidates is short enough to work through. That is why this part can make claims the rest of the series has to hedge.

HOW TO READ THIS BOOK

The Six Boxes

Six coloured boxes run through the series, each doing one job. Here they are with examples from the material ahead.

A **Word Box** explains a hard word the moment it first appears.

WORD BOX

Locational advantage: the benefit a place gets from where it is. A steel mill next to an iron mine pays nothing to move the ore. A mill five hundred miles away pays for every tonne, every day, forever.

For a poor region this is usually the only advantage it has. It cannot offer better roads, a bigger market, an educated workforce or a port. What it can offer is the thing that is physically underneath it.

Why it matters here: Chapter Two is about a policy that removed exactly that advantage, from exactly those regions, for forty-one years, and was called equalisation while it did so.

An **In Real Terms** box turns a number too big to picture into something with a body.

IN REAL TERMS

In the early 1950s, the states of the east — Bihar, West Bengal and Odisha — hosted the overwhelming share of India's iron and steel production. West Bengal alone had around a quarter of all the factories in the country in 1946.

Seventy years later, three of those four are among the poorest states in India and the fourth spent decades in industrial decline.

That is not a gradual drift. It is a reversal, of the most industrialised region of the country, over a period in which the country as a whole was industrialising. Something happened, and this part is about finding out what.

A **How We Actually Know This** box shows the physical evidence and then says what it cannot prove.

HOW WE ACTUALLY KNOW THIS

Much of this part rests on the strongest source available anywhere in the series: a government describing its own policy in Parliament. Freight equalisation was not secret. Its purpose was stated, its coverage was published, its withdrawal was announced, and a minister later told Parliament that committees had found its benefits were more than offset by its costs.

That last item is the anchor for Chapter Two, and it is worth understanding why. It is an admission of failure by the body responsible, on the record, in the forum where lying carries consequences.

What it cannot show: how much of the east's decline the policy caused. A policy can be admitted to have failed and still not be the largest cause of what followed. Chapter Two is careful about that distinction and Chapter Seven is built entirely around it.

An **Argument** box appears where serious people disagree, each side at its strongest.

THE ARGUMENT — IS A STATE'S POVERTY THE RESPONSIBILITY OF ITS OWN GOVERNMENT?

Before any of the specific policies, the framing question, because how you answer it decides what this part is even about.

MOSTLY YES, AND BLAMING DELHI IS AN ALIBI

Land, law and order, education, health, electricity, roads and industrial promotion are state subjects. Two states under the same central policies have diverged enormously — Kerala and Bihar had comparable incomes at independence and do not now. That divergence happened under identical central rules, which means the difference has to be local: state politics, state administration, state investment in schooling. Blaming Delhi is the standard move of every state government that has failed, in every country with a federal system.

NOT WHEN THE CENTRE HELD THE INSTRUMENTS

The list of state subjects is real and it is not where the money was. Industrial licensing was central. Freight rates were central. Foreign exchange was central. Plan transfers were central. Railway pricing was central. A state government in this period could not permit a factory, allocate a currency, set the price of coal delivered to its own doorstep or determine which districts got a national irrigation programme. Holding a state responsible for outcomes produced by instruments it did not hold is not federalism; it is an accounting convenience.

Where things stand: both are describing real causal channels and the honest position is that the mix differs by state and by decade. What can be settled, and what this part tries to settle, is narrower and more useful: *which specific central decisions had which specific geographic effects*. That question has answers. The global apportionment of blame does not.

What would settle it: comparing states that were similar at independence and diverged, and identifying whether the divergence tracks central instruments or local ones. Chapter Eight attempts it, imperfectly.

Why people care so much: because the answer determines whether a poor state is owed something or has something to answer for, and every regional politics in India is built on one of those two positions.

A **Hidden Assumption** box digs out a belief sitting underneath an argument that *both sides accept without discussing*.

THE HIDDEN ASSUMPTION

Everyone who argues about Indian regional inequality assumes **that a state's poverty is a fact about that state.**

The critic's version: Bihar is poor because of Bihar's politics. The defender's version: Bihar is poor because of Bihar's history, geography and population density. Both are looking for the cause inside the borders where the poverty appears.

But wealth in a national economy is relational. If a rule moves an advantage from one place to another, the second place gets richer *because* the first got poorer, and the transfer is invisible at both ends. The receiving state experiences it as its own success — better management, better business culture, a more enterprising people. The losing state experiences it as its own failure. Neither sees the pipe.

This is why the standard argument is so unproductive and so bad-tempered. A Gujarati industrialist in 1980 was not conscious of receiving a subsidy; he was conscious of working hard in a well-run state. A Bihari labourer was not conscious of a transfer; he was conscious of there being no work. Both explanations felt like observations rather than beliefs, and both were incomplete in exactly the same way.

Nothing in this part suggests the industrialist did not work hard, or that the successful states did not do many things well. They did, and Chapter Eight says so. The claim is narrower: **some part of the gap between Indian states was manufactured by rules made in Delhi, and neither the winners nor the losers could see it happening.**

And every chapter closes with a **Remember This** box: the chapter in the plainest words available.

REMEMBER THIS

Comparing **Indian states** is the strongest tool in this series, because two states share a constitution, a currency, a central bank and an army. When they diverge, the cause must be local or done to them.

The eastern states held the overwhelming share of India's iron and steel in the early 1950s and are among the poorest now. **That is a reversal, not a drift.**

Wealth in a national economy is relational. When a rule moves an advantage, the winner experiences success and the loser experiences failure, and neither sees the pipe.

Part Five

Contents

1. The Question Nobody Asks

Why states are the best comparison available · what was central and what was not · the four instruments · how to tell a transfer from a failure

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7. The Two Concessions

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8. The Ledger

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9. What It Did to People

Migration as the transfer mechanism · money moving one way and people the other · why a state that exports its unemployed appears not to have any · the seats that were frozen

10. An Honest List of What We Do Not Know

Genuinely unknown, and why · solid, and why it is solid · the one calculation that would settle this part and has never been done

CHAPTER ONE

The Question Nobody Asks

Why is Bihar poor and Gujarat rich? Almost everybody has an answer and almost nobody has checked whether it is the sort of question that has one.

1.1 — Why states are the best evidence in this series

Part One set out four ways to test a claim about a road not taken, and said the second was the strongest and the least used. Here it is properly.

Comparing India with another country is always vulnerable, because no two countries share anything. Part Four spent a whole chapter on which comparisons were fair, and conceded most of them away.

Comparing two Indian states is different in kind. Bihar and Gujarat share a constitution, a currency, a central bank, an army, a foreign policy, a supreme court, a customs frontier, a railway system and an income tax code. They have shared them, without interruption, since 1950.

So when two Indian states diverge sharply over fifty years, the explanation cannot be any of those things, because those things were identical. It has to be something local, or something done to them differently. The list of candidates is short enough to work through one at a time, and that is what this part does.

1.2 — What the states actually controlled

The Indian constitution divides subjects between the centre and the states, and the division is not what most people assume.

The **states** held land, agriculture, law and order, public health, education and local government. Real powers, and Part Three showed what happened when a state used them.

The **centre** held everything that decided where an industry could be built. Industrial licensing. Foreign exchange. Import and export policy. Railway freight rates. Banking and credit allocation. Plan transfers. Central public sector undertakings and where they were located. Mining royalty rates.

Look at that second list and notice something. A state government in 1975 could build a school and could not permit a factory. It could run a police force and could not allocate a dollar. It could pass a tenancy act and could not set the price at which coal from a mine inside its own borders was delivered to a buyer two thousand kilometres away.

WORD BOX

Union List, State List, Concurrent List: the three schedules in the Indian constitution dividing what the centre may legislate on, what the states may, and what both may.

Where a subject appears is not a technicality. It determines who can be blamed for an outcome — and, more usefully, who could actually have changed it.

Why it matters here: almost every instrument in this part sits on the Union List. That does not make state governments blameless for anything, but it settles who held the specific levers Chapters Two to Six are about.

1.3 — The four instruments

Four central instruments did most of the geographic work in this period, and each gets a chapter.

Freight rates. The price of moving a tonne of coal, iron ore, steel or cement. Set centrally, and from 1952 set so that distance did not affect the delivered price. Chapter Two.

Industrial licences. Permission to build a factory, granted for a specified place. Chapter Three.

Irrigation and the agricultural technology package. Deliverable only where there was assured water, and water infrastructure is built rather than found. Chapters Four and Five.

Money transferred from Delhi to the states. Governed by formulas, and formulas encode a view about what deserves rewarding. Chapter Six.

1.4 — How to tell a transfer from a failure

Now the methodological problem, because this part could very easily become a list of grievances.

A state that is poor in 2026 might be poor because something was taken from it, or because it governed itself badly, or because it was always poor, or because the thing it used to sell stopped being valuable. Those are four different stories and they call for four different responses.

Three tests separate them, and this part applies all three.

Was there a reversal? A region that was always poor tells you nothing. A region that was the most industrialised part of the country and then was not requires an explanation. This is why Chapter Two is about the east rather than about, say, the tribal districts of central India, which have a different and older story.

Is there a mechanism? Not a correlation — a named rule, with a date, a coverage and a stated purpose, whose operation would predict the outcome. Without that, you have a grievance rather than a charge.

Does the timing fit? If the rule ran from 1952 to 1993, the effect should be visible inside that window and should not obviously predate it.

HOW WE ACTUALLY KNOW THIS

The best evidence in this part is unusually mundane: railway freight schedules, licensing statistics by state, irrigation command area figures, Finance Commission reports and plan transfer tables. All published. All produced for administrative purposes rather than to settle an argument.

There is also an unusually good class of source for this specific subject — the parliamentary answer. A state's members of parliament ask why their state received so few licences, and a minister has to reply with a figure. Neither party is trying to write history and both are watching the other.

What it cannot show: what would have happened otherwise. Every claim in this part about what a state lost is a comparison with a world that did not occur, and Part One's warning about counterfactuals applies to all of it. What the evidence establishes is the *rule*, its *coverage* and the *direction* of its effect. It does not establish the size, and Chapter Ten says so at length.

Before going further there is a prior question, which this part will keep running into and which has no settled answer.

THE ARGUMENT — SHOULD A NATIONAL GOVERNMENT TRY TO EQUALISE BETWEEN REGIONS AT ALL?

Everything in Chapters Two, Three and Six was done in the name of regional balance. Whether that is a proper aim of government is genuinely contested.

YES — A COUNTRY IS A SHARED FATE

A nation that lets one region become permanently rich while another stays permanently poor will not remain a nation for long. India in 1950 was three years old, had just been partitioned, and had linguistic movements already forming. Deliberate equalisation was not a luxury but a condition of holding the thing together — and the fact that India did hold together, unlike almost every comparable case, suggests it may have worked at the only job that really mattered.

NO — THE UNIT IS THE PERSON, NOT THE PLACE

The aim should be poor people, not poor places. Helping a poor person is straightforward: give them money, schooling or a job. Helping a poor place means moving industry to where it does not want to go, which requires suppressing the reasons it does not want to go — and those reasons are usually real. Every version of this attempted in India, from freight equalisation to backward-area incentives, ended up subsidising inefficiency in the favoured region while removing advantages from the disfavoured one. And a person who moves out of a poor place has solved their problem, which the policy then counts as a failure.

Where things stand: the second side has the better of the economics and the first has the better of the politics, and Indian policy has consistently chosen the politics without ever stating the trade-off out loud. What can be said with confidence is narrower and is the finding of this part: the specific instruments chosen for equalisation did not equalise, and in the largest case the government itself said so.

What would settle it: comparing regional-equalisation policies with straight income transfers to poor households in the same period. India ran very little of the second before the 2000s, so the comparison barely exists.

Why people care so much: because a rich state paying into a pool that goes to a poor state is now the central fiscal argument in Indian politics, and Chapter Nine shows it about to become a constitutional one.

Note what that argument does not settle and this part does not need it to. Whether equalisation is a proper aim is a question about values. Whether the instruments India chose actually equalised is a question about facts, and it is the one the next five chapters answer.

REMEMBER THIS

Two Indian states share a **constitution, a currency, a central bank, an army and a legal system**. When they diverge over fifty years, the cause must be local or done to them. That makes state comparison the strongest evidence in this series.

States held **land, law and order, health and education**. The centre held **licences, foreign exchange, freight rates, credit and plan transfers** — everything that decided where a factory could be.

Three tests separate a transfer from a failure: **was there a reversal, is there a named mechanism, and does the timing fit?**

CHAPTER TWO

Freight Equalisation

A subsidy designed to be fair, running quietly for forty-one years, which took the one asset the poorest region of India had and distributed it to everybody else.

2.1 — What it was

In 1952 the central government began paying the difference in railway freight on certain essential commodities, so that they cost the same delivered to a factory anywhere in India as they cost delivered to a factory next to the mine.

The policy was called **freight equalisation** and it ran, in one form or another, until it was dismantled between 1991 and 1993.

The reasoning was published and it was not sinister. India's minerals were concentrated in the east. Its markets, ports and existing industrial centres were mostly elsewhere. Left alone, industry would cluster around the mines, and the rest of the country would remain agricultural forever. Equalising the freight would let industry grow anywhere, which was the stated aim of balanced regional development.

Read that reasoning carefully, because it contains the entire problem and states it as a virtue. The purpose of the policy was to make location not matter. The one thing the eastern states had was their location.

2.2 — What it covered, and what it did not

The commodities equalised were **coal, iron ore, steel and pig iron, and cement**, with fertiliser and bauxite added later. These are the inputs to heavy industry and construction.

Now the detail that turns this chapter from a story about unintended consequences into something harder.

Cotton was not equalised. Nor were most agricultural raw materials.

Follow what that combination does. An industrialist deciding where to put a steel fabrication plant could put it in Gujarat and pay the same for his steel as he would have paid in Jamshedpur. An industrialist deciding where to put a cotton mill could not put it in Bihar and pay the Maharashtra price for cotton, because cotton was never in the scheme.

So the policy was **one-directional**. It dissolved the locational advantage of the mineral states and left the locational advantage of the cotton states standing. Whether anybody designed it that way is a question this chapter cannot answer. What it did is not in dispute.

IN REAL TERMS

Two workshops. One sits beside the quarry; the other is four hundred miles away, next to the market.

The first has one thing going for it: stone is cheap at the door. The second has better roads, more customers and a bank manager who answers the telephone.

The council announces that from now on stone will cost the same everywhere, and the difference will be paid out of general funds. Nobody has taken anything. Nothing has been confiscated. The books show a subsidy, and subsidies are what governments do for poor places.

But the first workshop now has nothing going for it at all, and the second has everything it had before. Twenty years later the first has closed, and the explanation everybody gives is that the people there were not enterprising.

There is a name for what this kind of arrangement is, and it is worth using it, because the name makes clear that somebody was paying.

WORD BOX

Cross-subsidy: charging one group more than a service costs in order to charge another group less than it costs.

Freight equalisation was one. Somebody had to pay for moving coal two thousand kilometres, and the buyer did not. It came out of the railways and the general budget, which means it came out of everybody — including the people living next to the mine, who were paying a share of the cost of shipping their own coal away at a price that removed their advantage in it.

Why it matters here: a cross-subsidy always has a payer, and the payer is usually diffuse enough not to notice. Here the payers included the people it was hurting most.

2.3 — What it did

The east in the early 1950s was not a backward region. It was the industrial core of India.

Bihar, West Bengal and Odisha between them hosted the overwhelming majority of the country's iron and steel production. West Bengal alone had around a quarter of all the factories in India in 1946. In the first decade after independence, West Bengal's manufacturing was still growing faster than the national average.

What followed over the next four decades was a relocation. New plants and expansions went to Maharashtra, Gujarat, Tamil Nadu, Karnataka, the area around Delhi and later Andhra Pradesh — places with ports, markets and infrastructure, which could now obtain minerals at the mine-mouth price.

The eastern states were left with the mines, the pollution, the displacement and the royalty rates, which the centre also set. The processing, the employment, the tax base and the supply chains grew somewhere else.

It is worth stating precisely what the mechanism is here, because it is not theft and it is not corruption. It is that **a state with a mine and no industry earns a royalty, and a state with an industry earns wages, profits, taxes, suppliers, engineers, schools for engineers' children, and a bank that will lend to the next factory.** Those are not comparable quantities. The first is a payment; the second is an economy.

Establishing that requires being careful about the sources, because this is the most politically contested claim in the part.

HOW WE ACTUALLY KNOW THIS

The policy itself is not in doubt. It was published, its commodity coverage was published, its withdrawal was announced, and it was discussed in Parliament throughout its life.

The *effects* are a different matter, and the honest position is that most of what is written about them online is written by people with a position to advance. Several widely circulated accounts attribute the whole of eastern India's poverty to this one subsidy and mention neither Partition, nor the Left Front, nor the loss of Bihar's mineral belt in 2000. Those accounts are not reliable and this chapter does not use them.

What it uses instead: the dates, the published commodity list, the industrial statistics of the 1940s and 1950s, and the ministerial answer in section 2.4. Those survive scepticism from any direction.

What it cannot show: the share of the outcome. Chapter Seven is built entirely around that limit, and Chapter Ten ends with the calculation that would remove it.

2.4 — The admission

Every charge in this series is stronger when the government makes it, and this one did.

The policy was withdrawn in the early 1990s. Explaining why, a Union minister told Parliament that the policy had achieved its object in its initial years, but that committees appointed by the union government from time to time had reviewed it and observed that **the beneficial effect in terms of regional dispersal was more than offset by the increase in real transport costs**. He added that other instruments had been available all along — credit and fiscal policy, infrastructure, transport subsidies.

Grade: **SOLID**. That is the responsible ministry, in Parliament, saying the policy failed on its own stated terms, and that alternatives existed.

Note what the admission does and does not cover. It concedes that the policy did not achieve regional dispersal and cost more than it delivered. It says nothing about the east. The damage to the mineral states is not in the admission; it is the thing the admission is silent about, and it is the subject of the next argument box.

THE ARGUMENT — HOW MUCH OF THE EAST'S DECLINE WAS FREIGHT EQUALISATION?

This is the central factual question of the chapter and it is genuinely contested. Anyone who tells you it is settled is selling something.

A GREAT DEAL OF IT

The mechanism is documented, the coverage is published, the timing fits — the policy ran 1952 to 1993 and the decline runs through exactly that window — and the direction is not in dispute even by the policy's defenders. It removed the sole competitive advantage of a specific set of states, continuously, for forty-one years. And the region it hit was not a backward region needing help; it was the industrial core, which is exactly the reversal pattern Chapter One said requires an explanation.

MUCH LESS THAN THE CHARGE IMPLIES

Freight equalisation is doing a great deal of convenient work in a story with many other causes. West Bengal lost its jute hinterland to East Pakistan in 1947 and its port silted. Labour militancy from the late 1960s drove capital out of Bengal, and the Left Front governed from 1977. Bihar's problems include land relations, caste conflict, administrative collapse and, from 2000, the loss of its mineral belt. Freight was a national policy applied to everyone; the states that fell behind had a great deal else going on, and blaming one railway subsidy is a way of blaming Delhi for local failures.

Where things stand: the second side is right that the single-cause version is unsustainable, and this part does not advance it. What survives every objection is narrower and still substantial: the policy removed the east's only locational advantage, ran for four decades, was one-directional because cotton was excluded, and was admitted by the government to have failed at its stated purpose. That is a real, dated, named mechanism running in one direction. Its *share* of the outcome is not established and probably cannot be.

What would settle it: comparing investment location decisions before and after the withdrawal in 1991–93, and comparing equalised commodities with non-equalised ones over the same period. Some work of this kind exists and points the same way; it is not conclusive.

Why people care so much: because eastern India contains a very large number of people, and if this is right they are owed something, and if it is wrong the poorest states in India have been telling themselves a comforting story for fifty years.

Both sides of that argument, though, take for granted something about the policy that is worth stopping on, because it is what allowed it to run for four decades without anybody objecting on principle.

THE HIDDEN ASSUMPTION

Everybody in this argument — the officials who designed the scheme, the states that complained about it, and the historians who have written it up — shares one belief without ever examining it. **That a policy which treats everyone equally is neutral.**

It is right there in the name. Equalisation. The scheme did not favour anybody: coal cost the same in Ludhiana as in Dhanbad, for everyone, on the same terms, published in a schedule. Nobody was excluded and nobody was singled out. By any ordinary test of fairness, this is fairness.

But equal treatment is only neutral between parties who start equal. When people start with different things, treating them identically does not preserve the difference — **it transfers it.** The eastern states' advantage existed only as a *relative* position: cheaper inputs than everybody else. Make the inputs cost the same everywhere and you have not left the east where it was. You have moved the advantage into the general pool, where every other state now holds a share of it.

And because the transfer is accomplished by making a difference disappear, it leaves no trace anywhere. No money moved from Bihar to Gujarat. No file records a decision to disadvantage the east. Every single transaction under the policy was somebody buying coal at the published rate. The transfer happened entirely in the negative space where an advantage used to be, which is why it took four decades to become visible and why nobody has ever been held responsible for it.

The general rule is worth carrying into the rest of this series, because it recurs: **a rule that removes a difference is not neutral between the party who had the difference and the party who did not.** It is a transfer, and calling it equalisation does not make it one.

This cuts in directions that will be uncomfortable in later parts, and it should. It applies to reservation, to language policy, to procurement prices, and to the uniform application of a single national rule across a country where the starting positions were

never the same. In every one of those cases somebody has an advantage that a uniform rule would dissolve, and in every one of them the removal is described as fairness by the people who gain from it.

That is the chapter. A subsidy with a fair name, running longer than most Indian lives, doing something nobody would have voted for if it had been described accurately — and described accurately it is not complicated: *the poorest region of India was required to share the only thing it had, and the sharing was called equalisation.*

REMEMBER THIS

From **1952 to 1993** the centre paid the difference in freight on coal, iron ore, steel and cement so they cost the same everywhere. The stated purpose was to make location not matter. **Location was the only thing the eastern states had.**

Cotton was not covered. So the policy dissolved the east's advantage and left the west's standing. Whether that was designed is unknown; that it happened is not.

A minister told Parliament that committees found the regional-dispersal benefit was **more than offset by the increase in real transport costs. A rule that removes a difference is not neutral between the party who had it and the party who did not.**

CHAPTER THREE

Where the Licences Went

Part Four described a system where a factory needed permission. Permission was granted for a place. So somebody in Delhi was deciding, application by application, which districts of India would have work.

3.1 — Location was an instrument, and it was used

An industrial licence in this period did not merely permit a firm to make a product. It permitted the firm to make a specified quantity of a specified product at a specified place.

That third element is easy to skim past and it is the whole of this chapter. A private businessman's judgment about where to build — near his suppliers, near his customers, near a port, near a workforce he could recruit — was subordinate to an official's judgment about regional policy.

The policy itself was explicit and, on its face, generous to the poor states. Backward areas were to be favoured. Industrial estates were to be created in less developed regions. Licences were to be used to disperse industry away from the existing concentrations.

The Dutt committee, which Part Four leaned on heavily, made recommendations in exactly this direction: dispersal, industrial estates in less developed regions, balanced regional growth. So the intention is documented, repeatedly, across decades.

3.2 — What an incentive actually buys

The instruments used to attract industry to backward areas were the standard ones: capital subsidies, tax holidays, cheaper land, concessional credit, and preference in licensing.

They bought less than they were supposed to, and the reason is worth understanding rather than asserting.

A firm choosing a location is weighing many things at once: the cost of getting inputs in and product out, the availability of skilled and semi-skilled labour, the reliability of power, the proximity of suppliers who can make a part at short notice, the presence of banks that understand the industry, and the ordinary quality of the administration it will have to deal with every week for thirty years.

A capital subsidy is a one-off payment against a permanent list of disadvantages. It changes the arithmetic in year one and not in year fifteen.

So the pattern that emerged was predictable and is widely documented: firms took the subsidy, established the minimum qualifying presence, and located their real operations elsewhere. Or they located in the part of a backward state closest to a non-backward one. Or they built the plant, drew the benefits, and closed when the tax holiday expired.

WORD BOX

Agglomeration: the tendency of similar businesses to cluster in the same place, and to become more productive because they are clustered.

A factory in a district with fifty other factories can get a broken part machined the same afternoon, hire an experienced foreman without training him, and borrow from a bank that has lent to this industry before. A factory alone in a district can do none of these, whatever subsidy it received to be there.

This is why industrial concentration is self-reinforcing, and why a place that gets ahead tends to stay ahead without anybody intending it.

Why it matters here: it means the cost of moving industry to a backward region is not the difference between two locations today. It is the difference plus everything the leading region has accumulated — which is why a one-off subsidy could never have worked, and why *preventing* a region from accumulating in the first place is so much more consequential than trying to help it afterwards.

3.3 — The pattern that resulted

What actually happened is not seriously disputed, and Part Four's committee reports establish the mechanism.

Licences went disproportionately to large business houses, and large business houses were headquartered in and around the existing industrial centres — Bombay, Calcutta, Ahmedabad, Delhi, Madras. Part Four's Chapter Six explained why the system selected for firms with the capital to wait years and somebody in Delhi to move the file, and both of those are geographic advantages as much as financial ones.

A businessman in Bombay could go to Delhi for a week. A businessman in Patna could too, in principle. In practice, the difference between a man who is in Delhi every month for other reasons and a man for whom it is an expedition is the difference between an application that moves and one that sits.

So even where the policy said backward areas, the *machinery* for obtaining a licence was concentrated in the places that already had industry — and it stayed there for four decades.

HOW WE ACTUALLY KNOW THIS

Licensing statistics by state were compiled and published, and the question of regional distribution was raised repeatedly in Parliament, which means the figures exist in answers as well as in reports.

The Dutt and Hazari findings from Part Four add a second, independent layer: they establish who was getting licences, and the geography follows from where those houses were.

What it cannot show: what a licence was worth. A count of licences by state treats a steel plant and a soap factory as one each. Value-weighted figures would be far more revealing and are much harder to assemble, which is one reason the regional argument has always been conducted with anecdotes.

The arithmetic of why an incentive loses to a cluster is worth doing concretely, because stated abstractly it sounds like an excuse and stated concretely it is obvious.

IN REAL TERMS

Two towns bid for a factory. The first has forty engineering workshops, a technical institute, a bank that has financed this industry for thirty years, and a railway siding.

The second has none of those and is offered a subsidy worth, say, a fifth of the cost of the building.

The subsidy is paid once. The forty workshops are there every day for thirty years, every time a bearing fails at four in the afternoon.

The second town does not lose because its people lack ambition. It loses because a one-off payment is being asked to outweigh a permanent accumulation, and it cannot, and everybody involved could have worked that out in advance.

Which leaves a question about what four decades of a policy that never worked was actually for.

THE ARGUMENT — WAS LOCATION POLICY AN INSTRUMENT OR AN ALIBI?

The stated policy favoured backward areas for forty years and the industrial map barely moved. What does that tell us?

AN INSTRUMENT THAT WAS DEFEATED BY ECONOMICS

Governments genuinely tried. The incentives were real, the industrial estates were built, the intention appears in resolution after resolution and in every committee report. What defeated it was agglomeration, which is a force no capital subsidy can overcome. The honest conclusion is not that anyone was insincere but that the tool was too weak for the job, and that everybody discovered this the expensive way.

AN ALIBI FOR A SYSTEM THAT RAN THE OTHER WAY

If the stated policy is dispersal, and the actual mechanism reliably delivers concentration, then after a decade or two the stated policy is functioning as cover. The licensing system's own inquiry committees said it was favouring the largest houses; those houses were in the leading cities; and no government changed the machinery. A policy contradicted by its own instrument, sustained for four decades and reaffirmed in every plan document, has stopped being an intention and become a form of words.

Where things stand: the first side is right about the strength of agglomeration and the second is right about the duration. The most defensible reading is that it began as the first and became the second somewhere in the 1970s, once the committee findings were in and nothing changed — which is the same shape as Part Four’s Chapter Four and the same shape as this whole series.

What would settle it: value-weighted licence approvals by state and by decade, against the stated dispersal targets in the plan documents. The raw material exists in ministry records. Nobody has published the series.

Why people care so much: because if the policy was sincere and merely weak, nobody is owed anything, and if it was cover, then two generations of “the eastern states failed to attract investment” was describing a system’s output as a region’s character.

One thing this chapter cannot do, and it should be said before the summary. It cannot show that any particular licence was refused to a poor state and granted to a rich one for improper reasons. The evidence establishes a pattern and a mechanism, not a decision. Where this series has a named decision it says so; here it does not, and the charge is correspondingly narrower.

REMEMBER THIS

A licence specified **the place** as well as the product and quantity. Somebody in Delhi was deciding, application by application, which districts would have factories.

The stated policy favoured backward areas for four decades. **A capital subsidy is a one-off payment against a permanent list of disadvantages**, and it loses to agglomeration every time.

The machinery for getting a licence sat where industry already was. **A policy contradicted by its own instrument for forty years has stopped being an intention.**

CHAPTER FOUR

The Districts With Water

The one programme that worked could only be delivered where there was assured irrigation. That sounds like geography. It was not.

4.1 — Why it went where it went

Part Four's Chapter Seven described the four components of the agricultural transformation: seed, fertiliser and water, a guaranteed price, and credit. It also noted the constraint. The new seeds produce their extra grain only if they get heavy, reliable water, and given unreliable water they can do worse than what the farmer was already growing.

So the programme went where the water was assured: Punjab, Haryana and western Uttar Pradesh above all, and later parts of the irrigated south.

That decision was technically correct and this part does not dispute it. Putting water-hungry seed into rain-fed districts in the first season would have produced failure, and failure in the first season would have killed the whole programme at the moment India could least afford it.

The question is not whether the choice was right. It is what the choice was *made of*.

4.2 — Canal water is not weather

Here is the thing that is almost always skipped.

Punjab did not have assured irrigation because of rainfall. In rainfall terms, eastern India has far more water than Punjab. Bihar and eastern Uttar Pradesh sit in one of the wettest large river basins on the planet.

Punjab had assured irrigation because a canal system had been built there — begun by the British administration from the 1880s onwards, in a deliberate colonial investment programme, and extended after independence with Bhakra and the works around it.

That canal network was not a feature of the landscape. It was a capital project, chosen, funded and constructed, by a government, for reasons of its own — in the colonial case largely revenue and settlement, and later strategic. It took decades and enormous money.

So when the Green Revolution went to the districts with assured water, it was going to the districts where somebody had previously spent the money. The apparent geography was **an inheritance of earlier public investment**, and it determined which parts of India would be prosperous for the following fifty years.

IN REAL TERMS

Two villages get an offer. A new kind of seed is available, free advice comes with it, and the government guarantees to buy the harvest at a fixed price. It will only work if you can water the field on demand.

The first village has a canal running past it, built eighty years ago by somebody else. It takes up the offer and within a decade it has tractors, a pucca road, a school and sons in college.

The second village has more rain in an average year and no canal. It cannot take up the offer, because “on demand” is exactly what rain is not. Nothing is refused to it. There is no letter, no rejection, no decision anybody made about it in 1966.

Fifty years later the first village’s prosperity is explained by the hard work of Punjabi farmers, which is real, and the second village’s poverty is explained by the backwardness of Bihar, which is not an explanation at all.

Which means the phrase everybody uses about this programme needs pulling apart, because it contains two quite different ideas wearing one word.

WORD BOX

Assured irrigation: water a farmer can put on a field when the crop needs it, rather than when the sky provides it.

The distinction is the whole of this chapter. Total rainfall is almost irrelevant to it. What matters is control — a canal with a gate, or a tube-well with a pump and the electricity to run it.

A district with two metres of rain in three months and nothing for the rest of the year has plenty of water and no assured irrigation. A drier district with a canal has less water and more of what a farmer can use.

Why it matters here: everybody who says the Green Revolution went where the water was is using the word “water” in the first sense, and the programme required the second.

4.3 — And there was a second lock on the door

Water was not the only requirement, and the second one connects this part directly to Part Three.

The package required **credit**. Somebody had to buy the seed, the fertiliser and — above all — the pump, before any of it produced a rupee.

Institutional credit requires security, and in rural India security means land. A farmer with a clear title could borrow against it. A farmer without one could not.

Now recall Part Three’s finding. Across most of northern India, land records were decades out of date, tenancy was very often oral, and the state that had located 173 million voters could not locate its tenants. That failure was heaviest in exactly the states that also lacked the canals: Bihar and eastern Uttar Pradesh.

So the eastern cultivator faced two locks on the same door. No assured water, because the canal money had gone elsewhere in an earlier century. And no credit, because the land reform that would have given him a title had been defeated by the register.

Two separate national failures, from two different decades, compounding in the same districts. Neither was designed to do that. The effect was as complete as if it had been.

THE ARGUMENT — SHOULD THE PACKAGE HAVE BEEN SPREAD MORE THINLY?

Given that concentrating it created a permanent regional divide, was concentrating it the right call?

CONCENTRATION WAS CORRECT AND THIN SPREADING WOULD HAVE FAILED

The seeds do not work without assured water; that is a fact about the plant, not a policy preference. Spreading the package into rain-fed districts would have produced crop failures in the first two seasons, destroyed farmer confidence in the new varieties, and killed the programme nationally at the exact moment India was importing grain under conditions. Concentration is what made it succeed, and a programme that succeeds somewhere is worth more than one that fails everywhere.

CONCENTRATION WAS CORRECT AND PERMANENT CONCENTRATION WAS NOT

Nobody argues the first season should have been spread thin. The objection is to the following twenty-five years. Once the package had proved itself, the obvious next step was to build the eligibility — tube-wells, rural electrification and a land record — in the districts that lacked it, which would have taken a decade and was entirely within the capacity of a state that had just built Bhakra. Instead the programme deepened where it already was, the subsidies became permanent there, and the ineligible districts stayed ineligible until the 1990s.

Where things stand: the two sides are not really disagreeing, and the second is the charge. The decision of 1966 is defended by everybody including this part. What is not defended anywhere, because nobody has tried, is the absence of a serious programme to extend eligibility eastward in the following two decades. Chapter Ten records that the cost of doing so was never even calculated.

What would settle it: any planning document costing an eastern extension. If one exists it would move this from neglect to a considered choice, which is a different and in some ways better answer.

Why people care so much: because the divide it created is now the single largest fact about internal migration in India, and because Punjab, having been the beneficiary, is now paying for it in groundwater.

Underneath both positions sits a word that has been doing a great deal of unexamined work.

THE HIDDEN ASSUMPTION

Everyone who discusses the geography of the Green Revolution assumes **that it went where the water was.**

Its admirers say: the programme was targeted intelligently at the districts that could deliver. Its critics say: it entrenched regional inequality by favouring the already-favoured. Both are describing a programme allocated according to a fact about the land.

Water availability of the relevant kind — assured, on demand, controllable — is not a fact about land. It is a fact about **previous public investment.** The districts that had it had it because canals had been dug there, at great expense, by earlier governments making earlier choices.

Which means the sentence “the programme could only go where there was water” is true and is not an explanation. It pushes the decision back one step, to whoever built the canals and why — and once you follow it there, you find a colonial revenue strategy and a set of post-independence dam projects, both of which were choices about places.

This matters beyond agriculture, because the same move is available every time. *We built the factory where the skilled workers were. We put the university where the schools were good. We ran the fibre where the demand was.* In each case a present decision is justified by a condition that was itself produced by a past decision, and the chain is never followed back far enough to find a person.

The useful question, then, is not “why did the programme go there” but “**what would it have cost to make somewhere else eligible, and was that ever costed?**” For eastern India in the 1960s the answer is tube-wells, rural electrification and a land record — none of it exotic, all of it dull, and none of it done at the scale required for another twenty-five years.

Carry one sentence out of this chapter. The reason eastern India did not get the Green Revolution is not that eastern India is dry. It is that eastern India had no canals, no rural electricity, no institutional credit and no land titles — four things a government provides, and four things the same government had provided somewhere else.

REMEMBER THIS

The programme went to districts with **assured irrigation**, and that was the technically correct choice. It is what the choice was made of that matters.

Eastern India has more rain than Punjab. Punjab had assured water because canals had been built there from the 1880s at great public expense. The geography was an inheritance of earlier spending.

There was a second lock: the package needed **credit**, credit needed a **land title**, and Part Three showed the east's tenants had none. **Two national failures from two decades, compounding in the same districts.**

CHAPTER FIVE

The Rivers

Water that could not be equalised by a freight subsidy was allocated another way. The case is unusually well documented, and it is the clearest example in this part of the centre deciding a dispute to which it was a party.

5.1 — 1955: the allocation before the argument

The waters at issue are those of the Ravi and the Beas — two of the eastern rivers of the Indus system, which India retained under its 1960 treaty with Pakistan.

In 1955, before any of the later disputes existed, the central government asked the parties to agree a share of the surplus, then assessed at about 15.85 million acre-feet. The outcome was: **Rajasthan 8 MAF, undivided Punjab 7.20 MAF, and Jammu and Kashmir 0.65 MAF.**

Two things about that division, and the first is the concession.

Rajasthan is not a riparian state to either river. Neither the Ravi nor the Beas flows through it. Under the ordinary principle applied to river disputes — that the states a river passes through have the claim on it — Rajasthan had no entitlement at all, and it received the largest single share.

And undivided Punjab did not object. That has to be said plainly, because it is the strongest single point available to the other side of this argument and it is usually left out of Punjabi accounts. The state that later contested every subsequent allocation accepted this one at the time.

WORD BOX

Riparian: lying along the bank of a river. A riparian state is one the river actually flows through.

The riparian principle holds that the states a river passes through have the claim on its water, and states it does not reach do not. It is the usual starting point for river disputes, though it is a principle rather than a rule and Indian law does not apply it absolutely.

Million acre-feet (MAF): the unit these disputes are measured in. One acre-foot is enough water to cover an acre of land to a depth of one foot. A million of them is a very large reservoir.

Why it matters here: Rajasthan received the largest share of two rivers that do not flow through it, and every later argument circles back to that.

5.2 — 1966 and 1976: the state divides, and the water is divided for it

Punjab was reorganised in 1966 and Haryana was created out of it. Part Three covered the politics; this is the consequence.

The Punjab Reorganisation Act required the successor states to agree on sharing the water within two years. They did not.

On **24 March 1976** the central government issued a notification dividing undivided Punjab's 7.2 MAF, allocating 3.5 MAF of it to Haryana. In proportional terms this left Punjab with roughly twenty-two per cent of the total flow of rivers running through its own territory.

To carry Haryana's share, a canal was required — the Sutlej-Yamuna Link, 214 kilometres, of which 122 would run through Punjab and 92 through Haryana.

The Congress government then in office in Punjab was unhappy with the notification and asked the centre to reconsider. The centre did not. The state government then went quiet, and the opposition took up the issue, which is a pattern worth noting: a state Congress unit could not fight its own central leadership, so the grievance was inherited by whoever could.

On **11 July 1979** Punjab filed a suit in the Supreme Court challenging the 1976 notification.

5.3 — 1981: the case that was withdrawn

On **31 December 1981**, while that case was pending, the Prime Minister negotiated a tripartite agreement between Punjab, Haryana and Rajasthan. A reassessment put the available water at 17.17 MAF and divided it: **Punjab 4.22, Haryana 3.5, Rajasthan 8.6.**

Punjab then withdrew its Supreme Court case.

Look carefully at the structure of that, because it is the charge in this chapter and it does not depend on any view about the merits of the water division.

A state was in litigation against the central government over a central notification. The head of that central government negotiated directly with the state's chief minister — a chief minister of her own party — and the outcome was an agreement and the withdrawal of the case. The forum that would have decided the dispute independently was removed from the process by one of the parties to it, through a political relationship inside a single party.

This is the same structure Part Three found in Kerala in 1959: the party organising a dispute also being the authority that resolved it. The Indian constitution does not contemplate that arrangement, and no mechanism has ever been built to separate the roles.

5.4 — What followed

The canal became the centre of Punjab's politics. An agitation against its construction began in April 1982. What followed in the state runs through Part Ten of this series and is not this chapter's subject.

An accord in 1985 attempted a settlement; the Akali leader who signed it was assassinated within a month.

A tribunal under a Supreme Court judge reported in 1987, recommending increased shares for both Punjab and Haryana — about 5 MAF and 3.83 MAF respectively. It issued an interim report and never a final award. Conditions in Punjab prevented it from concluding, and it was adjourned indefinitely in 1989.

The Supreme Court decreed in Haryana's favour in 2002. Punjab passed an Act in 2004 terminating its water agreements, which was later held unconstitutional. The canal is still not built. The dispute is still live, and the assessments of available water on which every allocation rests were made when there was more water than there is now.

THE ARGUMENT — WHO HAS THE BETTER CASE ON THE PUNJAB RIVERS?

Both states hold positions that are sincerely believed and neither is frivolous. This box is longer than most because the material is unusually one-sided in most accounts.

PUNJAB'S CASE

The rivers flow through Punjab and through neither of the other beneficiaries in any meaningful way. Rajasthan, which is not riparian at all, holds the largest share. The 1976 notification left the state with about a fifth of its own rivers, and was issued by a central government rather than decided by a court or a tribunal. The 1981 agreement was signed while litigation was pending and the litigation was then dropped. And the water available has fallen since every one of these assessments, while Punjab's groundwater — the substitute it was forced onto — is now critically depleted, largely because of a national procurement policy that required it to grow paddy.

HARYANA'S AND THE CENTRE'S CASE

Undivided Punjab agreed to Rajasthan's share in 1955 without objection, so the non-riparian point was conceded by Punjab itself before Haryana existed. Water in Indian law is not governed by an absolute riparian rule, and Punjab's appeals to the rights of upper riparian states under international law are misplaced — that body of law governs countries, not provinces of one country. Haryana was created out of Punjab and its farmers have the same needs; the Reorganisation Act required a division and the states failed to agree one, which is precisely when a central notification becomes necessary. Haryana built its share of the canal. Punjab has been directed to build its share by the Supreme Court and has not.

Where things stand: on the legal merits Haryana and the centre are stronger than Punjabi accounts allow, and Punjab's specific arguments — the riparian principle, and the appeal to international law — are its weakest ones. On the process, Punjab is stronger than Haryana's accounts allow: a central notification and a Prime Minister-brokered agreement that ended a live Supreme Court case are not the same as an adjudication, and the tribunal that might have adjudicated never delivered a final award. The honest summary is that **Punjab has a weak case about the water and a strong case about the procedure**, and that it has spent forty years arguing the weak one.

What would settle it: a fresh tribunal with a current assessment of available flow. Punjab has been asking for one since 2015. No government has constituted it.

Why people care so much: because the dispute was one of the threads running into the violence of the 1980s, because both states now face genuine water scarcity rather than a division of surplus, and because after fifty years neither side can concede anything without conceding everything.

One structural point before leaving this chapter, because it is the transferable finding rather than the Punjabi one. India has an Inter-State River Water Disputes Act, and it has tribunals, and their whole purpose is to decide exactly this kind of question independently of whoever is in office. In this case the tribunal was appointed too late, reported only in interim form, and never concluded — while the operative decisions were taken by notification and by political agreement. **The machinery for deciding this fairly existed and was not used.** That is the charge, and it does not depend on which state you think should have the water.

REMEMBER THIS

In **1955**, Rajasthan — not a riparian state to either river — received the largest single share, and **undivided Punjab did not object**. That concession is the other side's best point and it belongs on the page.

The **1976** notification left Punjab about a fifth of its own rivers. In **1981** the Prime Minister negotiated an agreement with a chief minister of her own party and Punjab withdrew its pending Supreme Court case.

Punjab has a weak case about the water and a strong case about the procedure, and it has spent forty years arguing the weak one. The canal is still unbuilt and no final award has ever been made.

CHAPTER SIX

The Formula

Every year, a very large sum moved from Delhi to the states according to a formula. Formulas look like arithmetic. Every one of them is an argument that finished before anybody was watching.

6.1 — How the money moved

A great deal of what Indian state governments spend does not come from taxes they raise. It comes from Delhi, and it comes through two main pipes.

The first is **statutory devolution**: a share of central tax revenue, distributed among the states according to a formula set every five years by a Finance Commission. This is constitutional machinery and it is comparatively insulated from politics.

The second was **plan assistance**: money for development schemes, distributed by the Planning Commission. This was the discretionary pipe, and from 1969 it too ran on a published formula, revised at intervals over the following decades.

The 1969 formula weighted **population** most heavily — around sixty per cent — with smaller weights for tax effort, for per capita income below the national average, for continuing irrigation and power projects, and for special problems. Later revisions changed the weights and added a stronger element for backwardness.

A separate category of **special category states** — hill states, the north-eastern states, and Jammu and Kashmir — received assistance on far more favourable terms, mostly as grant rather than loan.

6.2 — What the weights actually reward

Take those four weights one at a time and ask what behaviour each encourages, because that is what a formula is.

Population. The most defensible variable and the one with the most awkward consequence. A state with more people needs more schools, which is obviously right. It also means a state that reduces its birth rate receives less money than one that does not — a point that becomes constitutional in Chapter Nine.

Tax effort. Rewards a state that collects what it is owed. Sound in principle, and it favours states with a taxable economy, which are the states that already have industry.

Per capita income below the national average. The one variable pointing the other way, and its weight was small.

Continuing irrigation and power projects. Here is the interesting one. It rewards a state that *already has projects under way* — which is to say, a state that got projects sanctioned in earlier rounds. A state with no ongoing project scores nothing on this element, and a state with many scores fully. The variable rewards past success, which means the formula transmits an earlier round's distribution into the next one.

WORD BOX

Gap-filling versus performance: the two ways a central government can decide how much to give a state.

Gap-filling looks at the difference between what a state needs and what it can raise, and covers the difference. It is fair to poor states and it quietly punishes a state that improves its own revenue, because improving reduces the gap and therefore the grant.

Performance-based transfer rewards states that achieve something — collecting taxes, building capacity, hitting targets. It creates the right incentives and it systematically favours states that already have the capacity to perform.

Why it matters here: there is no third option. Every transfer system in every federal country sits somewhere on this line, and wherever it sits it is unfair to somebody in a way its designers can describe as an incentive.

6.3 — Did the transfers narrow the gap?

The honest answer is: less than the amounts involved would suggest, and the reason is instructive.

Transfers were substantial and they mattered. Without them, several states could not have run a schooling system at all. That belongs on the credit side and it is not a small item.

But a transfer arrives as a flow of money for spending. What produces convergence between regions is not spending — it is **investment that raises what a place can produce**, and that requires the ability to absorb money productively: an administration that can design and execute a project, a contractor base, engineers, and a bank that will lend against the result.

Poor states are poor partly because they lack those things. So the same rupee, sent to two states, buys different amounts of future. Money given to a state that cannot absorb it produces a building that is not maintained, a scheme that is not staffed, or an unspent balance returned at the end of the year — and unspent balances then count against the state in the next round.

That is not an argument against transfers. It is an argument that transfers alone cannot equalise, which is Chapter One's argument box arriving with evidence.

IN REAL TERMS

Two schools are each sent the same money for a new building.

The first is in a district with contractors who have built schools before, an engineer in the education office, and a bank that will bridge the payments. The building goes up in a year, is staffed, and teaches children for forty years.

The second is in a district with none of those. The tender fails twice. The building is finished late and badly, there is no budget line for a caretaker, the roof goes in the third monsoon, and by year six it is a shell with a signboard.

The transfer figures record two identical grants. The audit records both as spent. Only one of them bought any future, and the difference was not in the money.

All of which is unusually easy to check, because this is one of the best-documented corners of Indian government.

HOW WE ACTUALLY KNOW THIS

This is documented territory. Finance Commission reports are published in full, with the formula, the weights, the reasoning and the dissents. Plan allocations by state are published. Utilisation figures — how much of an allocation a state actually spent — are reported and are frequently the subject of parliamentary questions.

The dissents are the most useful part and almost nobody reads them. A Finance Commission member who disagrees with a weighting writes an explanation of what the majority's choice will do, in advance, on the record.

What it cannot show: whether a state's low utilisation reflects incapacity, obstruction, or a scheme designed for conditions that state does not have. The figure is the same in all three cases and the difference between them is the whole question.

Which raises a question about the whole apparatus that both the paying states and the receiving states have somehow never asked.

THE HIDDEN ASSUMPTION

Everybody in the transfer argument — the rich states complaining they subsidise the poor ones, and the poor states complaining they are short-changed — assumes **that a formula is neutral because it is a formula.**

The appeal of a formula is precisely that it takes the politics out. There is no minister deciding, no favour, no lobbying: a state's entitlement falls out of variables, and arithmetic cannot have a preference. Both sides accept this and then argue about whether the numbers were applied honestly.

But every variable in a formula is a decision about what deserves rewarding, and every weight is a decision about how much. Choosing population is a choice. Choosing tax effort is a choice. Choosing to reward continuing projects — thereby carrying forward whoever won the last round — is a choice with a very clear direction, and it is the sort of choice that looks purely administrative right up until you ask who it advantages.

What the formula actually does is **move the politics upstream and then hide it.** The argument happens once, in a committee, among a small number of people, over the design. After that it looks like arithmetic for twenty years, and anybody objecting is told the formula is objective.

This is why the dissenting notes matter so much and why nobody reads them. They are the only surviving record of the moment when the thing was still visibly a choice.

Carry this into Chapter Nine, where the same structure is about to determine something much larger than money: a formula that has been treated as neutral arithmetic for fifty years is about to reallocate political power between the north and the south of India, and it will do it without anybody voting on it, because a formula is not the sort of thing you vote on.

None of which makes the transfers wrong or the formulas dishonest. Every federal country needs both and India's are better documented than most. The point is narrower: a formula is a decision wearing the clothes of a calculation, and the moment to argue about it is the design, which is over before anybody outside the room knows it happened.

REMEMBER THIS

Money moved from Delhi through **statutory devolution** (formula-based, insulated) and **plan assistance** (discretionary until 1969, formula-based after).

The weights rewarded **population, tax effort, low income and continuing projects**. The last of these carries the previous round's winners into the next one, which is a real direction dressed as administration.

Transfers mattered and did not equalise, because **a rupee buys different amounts of future in different states**. And **every formula is an argument that finished before anybody was watching**.

CHAPTER SEVEN

The Two Concessions

Before the ledger is drawn, the three strongest objections to it. Two of them are conceded in full, and the charge is smaller afterwards and much harder to answer.

7.1 — Why this chapter comes before the ledger

A prosecution brief that saves the awkward evidence for a footnote is not a prosecution brief. It is a pamphlet, and Part One promised this series would not be one.

There are three serious objections to everything in Chapters Two to Six. Each is factually correct. Two of them substantially damage the popular version of this argument, and one of them turns out to strengthen it. All three are dealt with here, at full weight, before Chapter Eight adds anything up.

7.2 — Bihar's minerals were taken by somebody else

The version of this story that circulates most widely holds that Congress impoverished Bihar by taking its resources. There is a fact that version has to survive.

Bihar's mineral belt was separated from it in 2000, when the state of Jharkhand was created — and that was done by the Vajpayee government, not by Congress.

The coal, the iron ore, the Chota Nagpur plateau, Jamshedpur, Bokaro, Dhanbad: all of it went into the new state. What was left of Bihar is an agricultural plain with a very large population and almost no minerals at all.

So a substantial part of what is now described as Bihar's poverty is a statistical artefact of a boundary drawn by a non-Congress government within living memory. Compare Bihar's per capita income before and after 2000 and you are comparing two different places.

Grade: **SOLID**, and it is conceded without qualification.

Now the part that survives it, and it survives cleanly.

The hole was dug long before 2000. Freight equalisation ran from 1952. The relocation of industry away from the mineral belt happened across the 1950s, 1960s, 1970s and 1980s, while the belt was still inside Bihar and while Bihar was, for most of that period, governed by Congress and administered under central instruments held by Congress governments.

The bifurcation of 2000 **divided a poverty that already existed**. It did not create it. If the mineral belt had been industrialised in proportion to what lay under it, Jharkhand would today be a rich state and the bifurcation would be a footnote rather than a grievance.

The test is simple and it is available. Jharkhand has had the minerals to itself for twenty-six years. It is not rich.

WORD BOX

Bifurcation: splitting one state into two. India has done it repeatedly — Punjab in 1966, Bihar and Madhya Pradesh in 2000, Andhra Pradesh in 2014.

A bifurcation does not change how much anybody produces on the day it happens. What it changes is the boundary the statistics are collected inside, which can move a state's average income sharply in either direction overnight while no household is any better or worse off.

Why it matters here: comparing Bihar before and after 2000 compares two different places, and a great deal of published commentary does exactly that without saying so.

7.3 — West Bengal's worst decline was not under Congress

The second objection is heavier and it is also conceded.

West Bengal's sharpest industrial decline runs from 1977 onwards, under the Left Front, which governed the state for thirty-four consecutive years. Labour militancy from the late 1960s drove capital out. Investment stopped arriving long before anybody in Delhi was blamed for it.

Congress did not cause that stretch and this series will not pretend otherwise.

Two things survive, and they are different in kind from each other.

The first is chronological. West Bengal's manufacturing was still growing faster than the national average in the decade after independence. It had around a quarter of India's factories in 1946. The reversal begins well before 1977, and freight equalisation begins in 1952. The Left Front inherited a declining industrial base; it did not create one and then destroy it.

The second is the one nobody makes. Partition itself was the largest single blow to Bengal's economy — it cut the jute mills of the west from the jute fields of the east in one act, and Part Two covered how the refugee consequences were handled. Whatever share of Bengal's decline belongs to the Left Front, a substantial share belongs to 1947, and that is not the Left Front's account to settle.

7.4 — Punjab's procurement has never been withdrawn by anybody

The third objection is the one that turns around.

Chapter Four described how the agricultural package locked Punjab and Haryana into wheat and paddy through a guaranteed price, and how free or near-free power for pumping made groundwater costless to the farmer and very costly to the aquifer. Part Four called it a permanent instrument that acquired a constituency and never expired.

The objection: **no government of any party has withdrawn or restructured any of it.** Not Congress, not the Janata governments, not the United Front, not the National Democratic Alliance in any of its terms. Every attempt to alter the arrangement has been abandoned in the face of the constituency it created.

Conceded, and it is true.

But notice what the concession actually establishes. It does not show that the original design was sound. It shows that **the design was irreversible** — that a temporary emergency instrument was built in a form that no subsequent government, of any political colour, over more than fifty years, has been able to undo.

That is not a defence of the decision. It is an aggravation of it. A policy that can be reversed when it stops working is a policy. A policy that cannot is a permanent alteration of the country, and it was made without anybody saying so at the time.

IN REAL TERMS

A family farm is split between two brothers. One gets the orchard, the other the dry field.

The next day, the average income of “the dry field” is far lower than the average income of the old undivided farm — and nobody has become poorer, nothing has been produced or lost, and no tree has been cut down.

Now add the part that matters. If the orchard had been properly tended for the previous forty years, the brother who received it would be rich and the split would be a family arrangement. If it was never tended, both brothers are poor and the split merely decides which of them holds the bare trees.

That is the Bihar and Jharkhand question, and the answer after twenty-six years is that neither of them is rich.

Taken together, the three concessions demand a straight accounting of what is left.

THE ARGUMENT — AFTER ALL THREE CONCESSIONS, WHAT IS LEFT?

This is the honest audit of the part, conducted before the ledger rather than after it.

VERY LITTLE, AND THE REST IS REGIONAL GRIEVANCE

Take the concessions seriously and the charge shrinks dramatically. Bihar’s minerals were removed by a non-Congress government. Bengal’s decline is substantially a Left Front story and a Partition story. Punjab’s procurement trap has been maintained by everyone. What remains is one railway subsidy whose share of the outcome nobody has established, a licence system whose regional effects are inferred from a pattern rather than from any decision, and a set of formulas that every federal country argues about. That is a long way from a case that Delhi manufactured regional inequality.

THE CORE SURVIVES, AND IT IS DATED AND NAMED

Every concession is about a *later* or *additional* cause, and none of them touches the mechanism or the timing. Freight equalisation ran from 1952 to 1993, covered minerals and not cotton, removed the sole advantage of a defined set of states, and was admitted in Parliament to have failed. The Green Revolution’s geography followed canals built with earlier public money and required credit that a titleless tenant could not obtain. The river allocation was settled by notification and by a Prime Minister ending a live court case. None of that becomes untrue because Jharkhand was carved out in 2000 or because the Left Front governed after 1977.

Where things stand: the second side is right about the mechanisms and the first side is right that the *size* of the effect is unestablished, which is the same verdict Chapter Two reached. The proper conclusion is narrower than the popular charge and stronger than the popular defence: **a set of named central rules ran for four decades in one direction, and how much of the outcome they explain is not known.** Chapter Ten says this again at the end, because it is the thing most likely to be dropped when this part is quoted.

What would settle it: the calculation described in Chapter Ten, which has never been done by anybody.

Why people care so much: because the concessions are politically useful to one side and the mechanisms to the other, and almost nobody in Indian public life has an interest in stating both.

One further note on method, since this chapter is about honesty. Everything conceded above was conceded because it is true, not because conceding it happens to strengthen the argument. Where a concession had simply destroyed a claim, the claim would have been dropped. Two of them nearly did, and the popular version of this story — that Congress deliberately impoverished eastern India — does not survive this chapter. What survives is smaller, duller and considerably harder to dismiss.

The reader who has stayed with this chapter is now in a position most Indian political argument never reaches: holding the strongest objections and the surviving charge at the same time. Chapter Eight draws the ledger on that basis and on no other.

REMEMBER THIS

Bihar's mineral belt went to Jharkhand in 2000, under a non-Congress government. Conceded. But the hole was dug from 1952 onwards, while the belt was still in Bihar — and Jharkhand has had the minerals to itself for twenty-six years and is not rich.

West Bengal's sharpest decline runs from 1977 under the Left Front. Conceded. But the reversal begins before 1977, and the largest single blow was Partition.

No government of any party has withdrawn Punjab's procurement and power subsidies. Conceded — and that is an aggravation, not a defence. It shows the design was irreversible.

CHAPTER EIGHT

The Ledger

State by state, what was done and by whom. This table runs through the rest of the series and consolidates in Part Nineteen.

8.1 — How to read it

This is the entry that Part Two opened and every part from here carries forward. It is not a scorecard and it does not produce a total, for the reason Chapter Seven just gave: the mechanisms are established and their sizes are not.

What it does is answer a question the national story cannot: **if you live where you live, what was decided about you in Delhi?**

Three cautions before the table. It covers the instruments in this part only, not the whole of what happened to each state. It attributes central decisions to central governments, which for most of this period were Congress but not all of it, and it says so where it matters. And a state appearing as a beneficiary is not an accusation against its people, which is a distinction Chapter Eight's hidden assumption is entirely about.

8.2 — The states that gained

STATE	WHAT IT RECEIVED
Maharashtra	Minerals at mine-mouth prices from two thousand kilometres away, while retaining its own uncovered advantage in cotton. Existing industrial concentration compounded by a licensing machinery centred on Bombay.
Gujarat	The same freight benefit, the same cotton exemption, and a port. Later a very large share of new industrial investment.
Punjab	The canal inheritance of the 1880s, then Bhakra, then the full agricultural package: seed, subsidised fertiliser, near-free power for pumping, and a guaranteed price. Made the richest state in India per head by the 1970s. Then Chapters Five and Seven.
Haryana	The same package, plus 3.5 MAF of Ravi–Beas water allocated by central notification in 1976 and confirmed in 1981.
Rajasthan	8 MAF in 1955 and 8.6 MAF in 1981, from two rivers that do not flow through it, as a non-riparian state.

STATE	WHAT IT RECEIVED
Tamil Nadu and Karnataka	Freight benefit, ports, and later a large share of licensed industry. Both also invested heavily in their own schooling, which is a state subject and belongs to them.
Delhi and around	Proximity to the machinery. Chapter Three's finding: the difference between a man who is in Delhi anyway and a man for whom it is an expedition.

8.3 — The states that lost

STATE	WHAT WAS DONE
Bihar (with Jharkhand to 2000)	Held the coal and iron. Freight equalisation removed the advantage from 1952. Royalty rates set centrally. Land records never updated, so tenants could not obtain the credit the agricultural package required. Mineral belt separated in 2000 by a non-Congress government.
Odisha	Richest ground, poorest people. The same freight mechanism, the same centrally set royalties, and almost no downstream processing for four decades.
West Bengal	Around a quarter of India's factories in 1946. Lost its jute hinterland at Partition, its freight advantage from 1952, and its investment from the late 1960s. The last of those is not Delhi's.
Madhya Pradesh (with Chhattisgarh to 2000)	Coal and minerals, the same freight mechanism, and the same absence of processing.
Assam	Minerals, tea and oil under the same arrangements, with refining capacity historically located elsewhere. Part Thirteen takes the rest of it.
Uttar Pradesh (east)	The largest population in the country, no minerals to lose, and the two locks of Chapter Four: no canal command and no land title. Slid from around the national average income towards the bottom of it.

8.4 — The ones that do not fit

Two states break the pattern and both are instructive, which is why they are here rather than left out.

Kerala. No minerals, no canal command, no great share of licensed industry, and no special treatment from Delhi — indeed Part Three showed the centre dismissing its government. It nevertheless produced human development outcomes far ahead of

much richer states, through investment in schooling and health, which are state subjects. Kerala is the single strongest piece of evidence for the argument that state governments matter enormously, and it is in this part because an honest ledger has to contain it.

Jharkhand. Has held the minerals alone since 2000 and has not become prosperous. That cuts two ways at once. It weakens any claim that the minerals alone would have made Bihar rich, and it strengthens Chapter Two's point that what a mineral state loses is not the ore but the *economy that should have grown around it* — which, once it has grown somewhere else, does not come back because the boundary moved.

HOW WE ACTUALLY KNOW THIS

Each row of those tables rests on something published: a freight schedule, a licensing return, a water notification, a plan formula, or a census. Nothing in them is inferred from an outcome.

That matters because a ledger of this kind is exactly where a partisan account would smuggle in its conclusions. The discipline applied here is that a state appears in a column only if a named central instrument, with a date, applied to it in a stated direction — not because it is poor now.

What it cannot show: proportions. There is no honest way to say that freight equalisation explains a third of Odisha's position and land records another quarter. The table records what was done, and Chapter Seven has already conceded that what was done is not the whole of what happened.

It is also silent on everything the states did to themselves, which for several of them is substantial and for one of them — Kerala — is the entire explanation.

There is one further thing about the shape of that table, and it explains why fifty years of arguing about it has changed nobody's mind.

THE HIDDEN ASSUMPTION

Everyone reading a table like the one above assumes **that the states in the first list were given something.**

That is how a ledger reads. Winners and losers, and the winners must have received a transfer, which implies a benefactor, a decision, and somebody who should feel a debt.

Mostly they were not given anything. What they received was **the removal of somebody else's advantage**, and that is a completely different kind of event.

A Gujarati industrialist in 1975 buying steel at the published rate was not receiving a grant. No cheque arrived. Nothing appeared in his accounts that would not have appeared anyway. He experienced a normal transaction in a normal market, and everything he built on top of it he built with his own capital, his own risk and his own long hours — which is why the prosperity of the western states is so genuinely and so sincerely attributed to enterprise. From the inside it *was* enterprise.

This is why regional resentment in India is so useless as politics. The complaining state describes a transfer, and the accused state hears an accusation of theft it knows it did not commit — because it did not commit one. Nobody took anything. A rule dissolved a difference, and the party holding the difference lost it to everybody.

And it explains something otherwise strange: why no beneficiary state has ever acknowledged any of this. Not out of bad faith. You cannot feel a debt for a thing you never received. The whole transfer happened in the space where an advantage used to be, and there is nobody in the country who experienced getting it.

The ledger will grow. Every part from here adds to it — Punjab in Part Ten, the North East and the tribal belt in Part Thirteen, the states affected by the material in each of the rest — and Part Nineteen prints it whole.

REMEMBER THIS

The ledger answers what the national story cannot: **if you live where you live, what was decided about you in Delhi?** It has no total, because the mechanisms are established and their sizes are not.

Kerala breaks the pattern — no minerals, no canals, no special treatment, and the best human development outcomes in India, through state spending on schooling and health. It is the strongest evidence that state governments matter enormously.

The gaining states were mostly **not given anything**. They received the removal of somebody else's advantage, experienced it as an ordinary market, and built on it with their own work — which is why no beneficiary has ever acknowledged a debt, and why nobody should expect one to.

CHAPTER NINE

What It Did to People

A gap between states does not stay in the states. It moves, in the form of human beings on trains, and it is about to move again in a form nobody has voted on.

9.1 — The mechanism nobody counts

When a region has no work and another region does, people move. This is the oldest fact in economics and it is the least examined thing in Indian public life.

The flow has run in one direction for fifty years: out of Bihar, eastern Uttar Pradesh, Odisha and West Bengal, and into Punjab, Haryana, Gujarat, Maharashtra, Delhi and the southern cities.

Notice what that does to the arithmetic of everything in this part.

A working-age man leaves Bihar and works in Punjab. Bihar paid for his childhood — his food, his schooling if he had any, the public health that kept him alive to twenty. Punjab receives him at exactly the age when he starts producing more than he consumes. When he is old and sick he generally goes home, and Bihar pays for that too.

So the poorer state bears the cost of producing a worker and the richer state receives the output. That is a transfer, running continuously for decades, in the opposite direction to the fiscal transfers of Chapter Six, and it appears in no formula, no Finance Commission report and no argument about which states subsidise which.

IN REAL TERMS

A village raises a boy. Twenty years of food, twenty years of a mother's work, whatever schooling there was, the vaccinations, the fevers survived. All of it paid for locally, from very little.

At twenty he gets on a train. For the next thirty years his labour builds houses in another state, which collects the tax on the cement, the wages of the shopkeepers he buys from, and the profit of the man who employed him.

He sends money home. That money is real and it keeps his family alive, and it is a fraction of what he produces. The rest stays where he works.

At fifty-five his back gives out and he goes home to be looked after.

Every economic statistic in India records this as the second state being productive and the first state being poor.

The usual answer to all of this is that the money comes back, and it does. It is worth being precise about how much of it comes back.

WORD BOX

Remittance: money a worker sends home. India receives an enormous amount from abroad, and a much less discussed amount moves internally, from the richer states to the poorer ones.

A remittance is a fraction of what a worker produces — the part he does not spend where he works. The wages he spends, the taxes on what he buys, the profit of the man who employs him and the value of what he builds all stay in the state he moved to.

Why it matters here: remittances are frequently cited as evidence that migration benefits the sending state. They are evidence that it benefits the sending *family*. Those are not the same claim.

9.2 — Money one way, people the other

The fiscal argument in India is conducted almost entirely in one direction. The richer states point out, accurately, that they contribute more tax than they receive back, and that the difference goes to the poorer states.

That is true and it is a legitimate grievance. It is also half a ledger.

The other half is the labour flow above, and the remittances that return along it, and the fact that the receiving states' growth has been supported for decades by workers whose upbringing was financed elsewhere. Neither half has ever been costed against the other, by anybody, in any official document.

Until it is, the sentence “we subsidise them” and the sentence “they are built on our people” are both unfalsifiable, and both are believed with complete sincerity in the places where they are said.

9.3 — The seats that were frozen

Now the part of this chapter that is not history.

Seats in the Lok Sabha are allocated between states by population. If a state's population grows faster, its share of seats should rise.

In 1976, by constitutional amendment, that allocation was frozen on the 1971 census figures. In 2001 the freeze was extended, and it now runs until after the first census taken after 2026.

The reason for the freeze was straightforward and it was fair. States were being asked to reduce their birth rates. A state that succeeded would, under the ordinary rule, lose seats to a state that did not — which is a spectacular disincentive to comply with a national policy. The freeze removed it.

It worked, unevenly. The southern states and some others reduced their fertility substantially. Several of the large northern states did so much later and much less.

So for fifty years India has run on a representation map that does not match its population, and everybody has accepted this because the alternative was worse. That arrangement is now approaching its expiry, and when it lapses, seats will move — from the states that reduced their birth rates to the states that did not.

HOW WE ACTUALLY KNOW THIS

This is constitutional text rather than analysis. The freeze was effected by amendment, its extension was effected by amendment, and both are in the constitution with dates attached. The census figures on which the current allocation rests are published and are from 1971.

Nothing about the mechanism is contested by anybody. What is contested is entirely about what should happen next, and that argument has barely begun in public.

What it cannot show: what will actually be done. A constitutional deadline is not a prediction. Governments have extended this freeze once already, and extending it again is available.

Set that beside Chapter Six and the shape becomes visible. The plan transfer formula weighted population most heavily, so a state that reduced its birth rate received less money. The representation formula would have moved its seats away too, and was frozen to prevent exactly that. One of those compensations was made and the other was not, and the one that was made is about to end.

THE ARGUMENT — SHOULD THE SEAT FREEZE BE EXTENDED AGAIN?

This is not history. It is a decision that has to be taken shortly, and both positions are held with complete sincerity.

EXTEND IT — THE STATES THAT COMPLIED MUST NOT BE PUNISHED

Reducing your birth rate was national policy. States that did it made a genuine effort over decades, in schooling, in health and in the status of women. Handing seats to the states that did not is a plain penalty for compliance, and it teaches every state that following a national programme is a mistake. It also concentrates political power in the states with the weakest human development indicators, which is not obviously good for anybody, including them.

END IT — A DEMOCRACY COUNTS PEOPLE

One person, one vote, one value is not a policy instrument that can be suspended for fifty years to reward good behaviour. Citizens in the more populous states are already substantially under-represented and have been since 1976. There is no principle under which a citizen's vote should count for less because of a demographic decision made by their state government before they were born, and a freeze that has already run for half a century is not a temporary measure by any ordinary meaning of the word.

Where things stand: the second side has the stronger principle and the first has the stronger fairness claim, and there is no arrangement that satisfies both. The available compromises — enlarging the house so no state loses seats in absolute terms, or strengthening the upper house — are all partial, and none of them is being seriously debated in public yet.

What would settle it: nothing settles it. It is a genuine conflict between two things a democracy owes people, and it will be decided politically.

Why people care so much: because it is the largest reallocation of political power in India since independence, it is arriving on a fixed date, and almost nobody outside the states that stand to lose has noticed it is coming.

And underneath the whole of this chapter sits a reading of migration that everybody shares and nobody defends.

THE HIDDEN ASSUMPTION

Everybody who discusses out-migration from India's poor states — sympathetically or otherwise — assumes **that migration is a symptom of the failure.**

The sympathetic version: people leave because there is nothing at home, which shows how badly those states have been served. The unsympathetic version: people leave because their states are badly run, and the exodus is the verdict. Both treat departure as evidence about the place departed from.

Migration is also the **mechanism by which the loss is exported and made invisible.**

Consider what would happen if nobody could leave. Bihar and eastern Uttar Pradesh would hold every one of the working-age men who now build in Gujarat and harvest in Punjab, with no work for them. The unemployment would be concentrated, visible, countable and politically unbearable, and it would have become a national emergency in about 1975.

Because they can leave, it never becomes an emergency anywhere. The receiving state sees workers, not unemployment. The sending state sees remittances arriving and its own labour surplus reduced. The national figures see people employed. **A state that exports its unemployed does not appear to have any**, and the political pressure that would have forced a correction is dissipated across the whole country in the form of individual men on individual trains.

This is why the regional question in India has never produced the political crisis its scale would predict. The safety valve worked. And a safety valve that works well enough removes the pressure that would otherwise have fixed the boiler.

It also explains why this part is so hard to write and why so little has been written about it. The victims of everything in Chapters Two to Six are not a constituency in the places where the decisions were made, because they left — and in the places they went to, they are not constituents at all.

That is where this part ends, and it ends pointing forwards rather than back. Everything in Chapters Two to Six happened decades ago and cannot be undone. The thing in section 9.3 has not happened yet.

REMEMBER THIS

The poorer state **pays to raise a worker** and the richer state **receives his output**. That transfer runs opposite to the fiscal one and appears in no formula, no Finance Commission report and no argument about who subsidises whom.

Lok Sabha seats have been frozen on **1971 census figures** since 1976, extended in 2001, and the freeze runs until after the first census following 2026. It was fair and it worked. **When it lapses, seats move from the states that reduced their birth rates to the states that did not.**

A state that exports its unemployed does not appear to have any. The safety valve worked, and a safety valve that works removes the pressure that would have fixed the boiler.

CHAPTER TEN

An Honest List of What We Do Not Know

This part establishes mechanisms and does not establish sizes. That distinction is the whole of this chapter and it is the thing most likely to be dropped when the part is quoted.

10.1 — Genuinely unknown

Six things in this part cannot be established. The first is the largest and it governs the rest.

How much of the gap between Indian states these instruments explain. Chapter Two established that freight equalisation removed the east's only locational advantage, ran for forty-one years, and was admitted in Parliament to have failed. It did not establish what share of the east's decline it caused.

Why it is unknown: it is a counterfactual, and Part One's Chapter Three explained why those cannot be measured directly. What can be done is comparison, and the comparisons here are contaminated by the very concessions Chapter Seven made — Partition, the Left Front, the 2000 bifurcation and local governance all move in the same period.

What a licence was worth, by state. Chapter Three counted licences and could not weight them. A steel plant and a soap works count as one each.

Why it is unknown: value-weighted approval series by state and decade would settle it. The raw material sits in ministry records. Nobody has published it, and this is a *decided* absence rather than a hard one: the figures existed at the time and were reported to Parliament in aggregate.

What it would have cost to make eastern India eligible for the agricultural package. Chapter Four said the requirements were tube-wells, rural electrification and a land record — dull, known and available.

Why it is unknown: because it was never costed. That is the finding, not the gap. A government that could build Bhakra could have priced the eastern alternative, and no document shows anybody being asked to.

Whether the Punjab river notifications would have survived adjudication. The 1976 notification was challenged and the case was withdrawn in 1981. The tribunal that might have decided it issued an interim report in 1987 and never a final award.

Why it is unknown: because the two forums that could have answered it were both closed before they finished — one by a political agreement, the other by the conditions in the state. Punjab has asked for a fresh tribunal since 2015 and none has been constituted.

The two halves of the fiscal argument, against each other. Chapter Nine set out the money flowing one way and the workers flowing the other, and said neither has been costed against the other.

Why it is unknown: nobody has attempted it. The data for the fiscal half is excellent and published. The data for the labour half — who moved, when, at what age, having consumed how much public spending where — barely exists, because internal migration in India is measured badly on purpose and by accident in roughly equal measure.

Whether the exclusion of cotton from freight equalisation was designed. Chapter Two established the coverage and the asymmetry it produced. It did not establish intent.

Why it is unknown: the commodity list would have been settled in files that are not open. Grade for any claim of intent: **ALLEGED**, and this part has deliberately not made one.

10.2 — Solid

What freight equalisation was, what it covered, when it ran, and that it failed.

Introduced 1952, dismantled between 1991 and 1993. Covered coal, iron ore, steel and pig iron, cement, later fertiliser and bauxite. Did not cover cotton. And a Union minister told Parliament that committees had found the regional-dispersal benefit was more than offset by increased real transport costs. Grade: **SOLID**, and the last of those is the strongest single sentence in this part.

That the east was the industrial core in the early 1950s. Bihar, West Bengal and Odisha held the overwhelming share of iron and steel production; West Bengal alone had around a quarter of India's factories in 1946 and was still outgrowing the national average in manufacturing in the following decade. The reversal is the thing requiring explanation.

That an industrial licence specified a place. Statutory, and Part Four's chapter on the mechanics rests on published law.

The river chronology. The 1955 allocation of 15.85 MAF — Rajasthan 8, undivided Punjab 7.20, Jammu and Kashmir 0.65, with undivided Punjab not objecting. The requirement in the Punjab Reorganisation Act. The notification of 24 March 1976. The suit filed on 11 July 1979. The tripartite agreement of 31 December 1981 and the withdrawal of the case. The 1987 interim report. The canal, 214 kilometres, still unbuilt. All record.

The transfer formulas and their weights. Finance Commission reports and plan formulas are published in full, including the dissents.

The seat freeze. Effected by amendment in 1976, extended by amendment in 2001, running until after the first census after 2026, and resting on 1971 figures. Constitutional text.

The three concessions in Chapter Seven. Jharkhand created in 2000 by a non-Congress government; West Bengal's sharpest decline from 1977 under the Left Front; Punjab's procurement and power subsidies never withdrawn by any party. All solid, all conceded.

10.3 — The calculation nobody has done

One piece of work would settle more of this part than everything else combined, and it is not difficult.

Compare the equalised commodities with the unequalised ones.

Freight equalisation covered a defined list and excluded others. Industries built on the covered inputs and industries built on the excluded inputs faced different incentives about where to locate, in the same country, in the same decades, under the same everything else. That is very nearly a controlled experiment, and India ran it for forty-one years without anybody analysing the results.

Add the second half: what happened to location decisions after the policy was withdrawn in 1991–93.

If the charge in Chapter Two is right, industries using equalised inputs should show a location pattern detached from their raw materials, industries using unequalised inputs should not, and the pattern should begin to change after 1993. If it is wrong, they should look the same.

The freight schedules are published. The industrial location data exists. Some work pointing this way has been done and it is not conclusive. Nobody has done it properly, and until somebody does, the largest claim in this part remains what Chapter Seven called it: a named mechanism running in one direction for four decades, of unestablished size.

I would rather end a part by telling you what would prove me wrong than by rounding an argument up into a number I cannot support.

REMEMBER THIS

Genuinely unknown: **the share of the gap these instruments explain, what a licence was worth by state, what the eastern alternative would have cost, whether the river notifications would have survived adjudication, the two halves of the fiscal argument against each other, and whether the cotton exclusion was designed.**

Solid: **what freight equalisation was and that a minister admitted it failed; that the east was the industrial core in 1950; that a licence specified a place; the river chronology; the formulas and their weights; the seat freeze; and all three concessions.**

One calculation would settle most of this part: compare the equalised commodities with the unequalised ones, before and after 1993. The data exists. Nobody has done it.

REFERENCE

Timeline of the Instruments

Dates only. The arguments are in the chapters.

DATE	WHAT HAPPENED
1880s onward	Canal colonies built across western and central Punjab by the colonial administration. The assured irrigation that decides Chapter Four is created here.
1946	West Bengal holds around a quarter of all factories in India. The east holds the overwhelming share of iron and steel production.
1947	Partition cuts Bengal's jute mills from the jute fields of the east.
1951	The Industries (Development and Regulation) Act. A licence specifies product, capacity and <i>place</i> .
1952	Freight equalisation begins. Coal, iron ore, steel, pig iron and cement cost the same delivered anywhere in India. Cotton is not covered.
1955	Ravi-Beas surplus assessed at 15.85 MAF and allocated: Rajasthan 8, undivided Punjab 7.20, Jammu and Kashmir 0.65. Undivided Punjab does not object.
1948–58	West Bengal's manufacturing still grows faster than the national average.
1960	The Indus Waters Treaty. India retains the Ravi, Beas and Sutlej.
1963	Bhakra completed. Punjab's post-independence water infrastructure extended.
1966	Punjab reorganised. The Reorganisation Act requires the successor states to divide the water within two years. They do not.
1966 onward	The agricultural package is delivered to districts with assured irrigation: Punjab, Haryana, western Uttar Pradesh.
1969	The Gadgil formula. Plan assistance distributed on published weights, with population carrying around sixty per cent. Special category states created.
1969	The Dutt committee recommends industrial dispersal and estates in less developed regions. The industrial map does not move.
24 Mar 1976	Central notification divides undivided Punjab's 7.2 MAF, allocating 3.5 MAF to Haryana. The Sutlej-Yamuna Link canal is required to carry it.
1976	Lok Sabha seat allocation frozen on 1971 census figures by constitutional amendment.

DATE	WHAT HAPPENED
1977	The Left Front takes office in West Bengal and governs for thirty-four years.
11 Jul 1979	Punjab files suit in the Supreme Court challenging the 1976 notification.
31 Dec 1981	Tripartite agreement brokered by the Prime Minister. Ravi-Beas reassessed at 17.17 MAF: Punjab 4.22, Haryana 3.5, Rajasthan 8.6. Punjab withdraws its case.
Apr 1982	Agitation against construction of the canal begins in Punjab.
1985	An accord attempts a settlement. The Akali leader who signs it is assassinated within a month.
1987	A tribunal recommends Punjab 5 MAF and Haryana 3.83 MAF. It is an interim report. No final award is ever made.
1989	The tribunal adjourns indefinitely.
1991–93	Freight equalisation dismantled. A minister later tells Parliament that committees found its dispersal benefit was more than offset by increased real transport costs.
2000	Jharkhand and Chhattisgarh created. Bihar and Madhya Pradesh lose their mineral belts, under a non-Congress government.
2001	The seat freeze extended by amendment, to run until after the first census following 2026.
2002–2004	The Supreme Court decrees in Haryana's favour. Punjab legislates to terminate its water agreements; the Act is later held unconstitutional.
2015 onward	Punjab asks for a fresh tribunal with a current assessment of flow. None is constituted. The canal is still unbuilt.

Part Six starts here. It leaves the map and returns to the chronology, in 1954, with an agreement about Tibet and a road being built across territory India believed was its own.

REFERENCE

Glossary

Every hard word used in this part, in plain English.

WORD	WHAT IT MEANS
Agglomeration	The tendency of similar businesses to cluster and become more productive because they are clustered. Self-reinforcing, which is why a place that gets ahead tends to stay ahead.
Assured irrigation	Water a farmer can put on a field when the crop needs it rather than when the sky provides it. Total rainfall is almost irrelevant; what matters is control.
Bifurcation	Splitting one state into two. It changes no household's income on the day it happens, but it moves the boundary the statistics are collected inside, which can shift a state's average sharply overnight.
Command area	The land a canal or irrigation project can actually water. A field outside the command area gets nothing from the canal, however close it looks on a map.
Cross-subsidy	Charging one group more than a service costs so another can be charged less. There is always a payer, and the payer is usually diffuse enough not to notice.
Delimitation	Redrawing constituency boundaries and reallocating seats between states according to population. Frozen in India on 1971 figures since 1976.
Devolution	The share of central tax revenue passed to the states, distributed by a formula set every five years by a Finance Commission.
Finance Commission	The constitutional body that decides how central tax revenue is divided between the centre and the states, and among the states. Reports are published in full, including dissents.
Freight equalisation	The policy, running 1952 to 1993, under which the centre absorbed the difference in railway freight so that listed commodities cost the same delivered anywhere in India.
Gap-filling	Deciding a transfer by covering the difference between what a state needs and what it can raise. Fair to poor states, and it quietly punishes a state that improves its own revenue.
Locational advantage	The benefit a place gets from where it is. For a poor region it is usually the only advantage available, because it cannot manufacture roads, markets or a workforce.

WORD	WHAT IT MEANS
Million acre-feet (MAF)	The unit river disputes are measured in. One acre-foot covers an acre of land to a depth of one foot.
Remittance	Money a worker sends home. It is the part of what he produces that he does not spend where he works — a fraction, not the whole.
Riparian	Lying along the bank of a river. A riparian state is one the river actually flows through. The riparian principle gives such states the claim on the water.
Royalty	The payment a mining company makes to the state for extracting a mineral. Rates were set centrally throughout this period.
Special category state	A category created in 1969 for hill, north-eastern and certain other states, receiving central assistance on far more favourable terms, mostly as grant rather than loan.
Tribunal (water)	A body constituted under the Inter-State River Water Disputes Act to decide a river dispute independently of whoever is in office. The machinery exists; in Chapter Five it was not used.
Union List	The schedule of subjects on which only the central parliament may legislate. Almost every instrument in this part sits on it.

ABOUT

About the Author

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I write long-form research on Indian history, society, belief and public life, and publish it at misterlove.in under the name The Living Archive. Before this series I completed a fourteen-part history of Punjab and a sixteen-part study of the rules societies place on women.

This part required a particular kind of care and I want to name it. Chapter Five is about Punjab's rivers, and I have written about that subject before and hold views about it. The verdict I have reached here — that Punjab has a weak case about the water and a strong case about the procedure — is not the verdict most Punjabi accounts reach, including some of my own earlier ones. The riparian argument and the appeal to international law are the arguments I grew up hearing, and they are the weakest ones available. Saying so is the price of the method.

Chapter Seven is where I have tried hardest to argue against myself. Two of the three concessions in it substantially damage the version of this story that circulates most widely, and one of them — the Jharkhand bifurcation — destroys the version I have heard repeated most often. It is in the text at full strength, before the ledger, rather than in a footnote after it.

THE RULES OF THIS PROJECT

The Living Archive

Everything published under this name follows three rules.

Plain language, undiminished content. The words are as simple as I can make them. The argument is not simplified with them.

Show the evidence, and show what it cannot prove. Every serious claim names what it rests on, and every source is described honestly, including what it is blind to.

Give every side its strongest case. Where people who know the material disagree, both positions appear at full strength, and I say when the evidence does not settle it.

PLEASE READ THIS

A Word on Sources

This part carries no footnotes. It rests on published material: the statutes and licensing framework described in Part Four, parliamentary answers on freight equalisation and its withdrawal, Finance Commission reports and plan formulas, the river allocation notifications, agreements and tribunal reports, census and industrial statistics, and the constitutional amendments freezing seat allocation.

A warning specific to this part. Freight equalisation is a live political subject, and much of what is written about it online is written to advance a position. Several accounts I checked blame one railway subsidy for the whole of eastern India's poverty, mentioning neither Partition, nor the Left Front, nor the 2000 bifurcation. Chapter Two is built only on what survives that scepticism: the dates, the commodity coverage, the direction of the effect, and the ministerial admission in Parliament.

What this archive is good at, and bad at. The instruments are exceptionally well documented — laws, schedules, formulas, notifications and amendments are all public. What is missing is measurement of effect, which is why Chapter Ten ends with a calculation rather than a conclusion.

Corrections. If something here is wrong, write to me. Later editions will say what was changed and who caught it.

Lovepreet Singh

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NEXT

What Comes Next

Part Six — China, Tibet and 1962

Part Six returns to the chronology and takes the single worst military and diplomatic failure in independent India's history. It asks:

- What did India give up in the 1954 agreement on Tibet, what did it receive in return, and who inside the government argued against it at the time?
- A road was built across territory India claimed. When did India find out, how did it find out, and what was the gap between finding out and telling Parliament?
- What was the Forward Policy, who designed it, and what did the army say about it before it was ordered to carry it out?
- Part One's test for a blunder is whether somebody saw it at the time. Who wrote the warnings, in which year, and what happened to them afterwards?
- How much of the defeat was equipment and terrain, and how much was a chain of command that could not tell the Prime Minister he was wrong — the finding of Part Three, tested against a war?
- One official report on the defeat has never been published in full, sixty-four years later. What is known about what it says, and who has kept it closed?

Questions, not topics. If any of them is answered badly, you will be able to tell.

THE LIVING ARCHIVE

PART SIX OF NINETEEN

The Congress Record

Part Six — China, Tibet and 1962

An agreement that gave away everything and asked for nothing. A road built across territory India claimed, reported by four separate people and believed by none of them. And a report on the defeat that is still classified sixty-three years later.

This part rests on a document the Indian government has never released. Where it is used, it is used through a version published by a journalist and not authenticated by the state — and that grade is stated wherever it appears.

WRITTEN AND RESEARCHED BY

Lovepreet Singh

INDIA · 1950 TO 1963

MISTERLOVE.IN

BEFORE WE BEGIN

Where We Left Off

Part Five left the chronology to look at a map. This part returns to it, in 1950, with a country that had just acquired a two-thousand-mile neighbour it had never had before.

Four findings from earlier parts are load-bearing here, and one of them is the spine of this whole part.

By 1954 there was nobody who could tell the Prime Minister he was wrong. Part Three followed it in detail: Patel died, Tandon was forced out, Ambedkar resigned, Kripalani left, and nothing institutional replaced any of them because nothing institutional had been doing the work. Part Three said the discovery that there is no mechanism happens at the moment you need one. This part is that moment.

When a state that counts everything has no count of something, somebody decided that. Part Two applied it to the Partition dead and to Hyderabad, where a commission the Prime Minister appointed was not published for sixty-four years. Chapter Eight of this part is the same shape, and the report in question is still closed.

A commission is controlled not by pressuring the judge but by writing the questions. Part One's rule about terms of reference. It applies to the inquiry into this defeat with unusual precision, and Chapter Eight is where it earns its place.

The correct diagnosis existing is not the same as the correct diagnosis arriving. Part Four found the government's own committees identifying the failure of the licence system in 1965, 1967 and 1969, with nothing following. One of the men who wrote the 1969 report also wrote a warning about the road across Aksai Chin in 1958, as Foreign Secretary. He appears twice in this series, both times right and both times ignored.

One note on the shape of this part. It is the first in the series where the charge is not about a policy but about a *process* — how information moved, or failed to, between people who all had the same objective. There is no corruption in it and very little bad faith. That makes it harder to write and, I think, more useful.

HOW TO READ THIS BOOK

The Six Boxes

Six coloured boxes run through the series, each doing one job. Here they are with examples from the material ahead.

A **Word Box** explains a hard word the moment it first appears.

WORD BOX

Suzerainty and sovereignty: two different kinds of authority over a territory, and the difference decides most of this part.

Sovereignty means the place is yours. You govern it, its foreign relations are yours, and nobody else has a standing claim.

Suzerainty is weaker. The outside power controls the territory's external affairs and defence while leaving it to run itself internally. Britain held suzerainty over India's princely states, which is what Part Two's chapter on accession was about.

Why it matters here: for centuries the relationship between China and Tibet was argued over in exactly these terms. In 1954 India signed an agreement describing Tibet as "the Tibet Region of China", and that phrase settled the argument on paper in one direction.

An **In Real Terms** box turns a number too big to picture into something with a body.

IN REAL TERMS

Aksai Chin is roughly 38,000 square kilometres. That is about the size of Switzerland, or a little larger than Kerala.

It is also, for practical purposes, empty: a high cold desert above five thousand metres where almost nothing grows and almost nobody lives. India did not have a single permanent post in it.

Hold both facts at once, because the whole argument in this part lives between them. It is large enough that losing it is a national humiliation, and empty enough that a foreign army built a road across it for several years before anybody in Delhi was sure.

A **How We Actually Know This** box shows the physical evidence and then says what it cannot prove.

HOW WE ACTUALLY KNOW THIS

The evidence for this part is unusually lopsided and it is important to say so at the start.

The **diplomatic record is excellent**. The 1954 agreement is a published treaty. The exchanges of notes between India and China were laid before Parliament in white papers. Nehru's statements are in the parliamentary record with dates.

The **military record is closed**. The army's own inquiry into the defeat has never been released. What is publicly known of it comes from a copy obtained by a journalist in the 1960s and published on his website in 2014, which the Indian government has never authenticated and scholars generally treat as genuine.

What this means in practice: everything in Chapters Two and Three is solid, and everything about what the army said internally is one grade weaker and marked as such.

An **Argument** box appears where serious people disagree, each side at its strongest.

THE ARGUMENT — WHOSE CLAIM TO THE DISPUTED TERRITORY IS BETTER?

Everything downstream depends on this and it is genuinely unresolved, which is not what either national account says.

INDIA'S CASE

In the east, the McMahon Line was agreed at Simla in 1914 between British India and Tibet, which was then conducting its own external affairs, and it follows the Himalayan watershed, which is the natural and customary divide. In the west, Aksai Chin lay within the boundaries of the princely state of Jammu and Kashmir, which acceded to India in 1947, and British-era maps show it as Indian. India inherited these boundaries as a successor state, which is the ordinary rule of international law.

CHINA'S CASE

China never ratified the Simla Convention and was not a consenting party, so a line agreed between Britain and a Tibet whose competence to sign China disputes cannot bind China. In the west, the British themselves drew several different lines at different times and never settled on one, and India could not have inherited a boundary that its predecessor had never fixed. Aksai Chin was historically connected to Xinjiang and Tibet by trade and administration, and India had never occupied it or administered it at any point.

Where things stand: India's eastern case is much stronger than its western one, and China's western case is much stronger than its eastern one — which is precisely why a package settlement was available and, as Chapter Nine discusses, was hinted at in 1960. The single most awkward fact for both national accounts is Zhou Enlai's own observation that no treaty or agreement on the boundary had ever been concluded between the two governments. He said it to make a point in China's favour, and it is true, and it cuts at India's position and China's equally.

What would settle it: nothing. There is no tribunal, both parties reject third-party adjudication, and after 1962 the operative line is where the armies stopped — which Part Two's Chapter Eight already identified as the usual way these things are actually decided.

Why people care so much: because two nuclear powers still patrol it, men still die on it, and both countries teach schoolchildren a version in which the answer is obvious.

A **Hidden Assumption** box digs out a belief sitting underneath an argument that *both sides accept without discussing*.

THE HIDDEN ASSUMPTION

Everyone arguing about 1962 — in India, in China, and among the historians of both — assumes **that there was a border, and that somebody crossed it**.

The Indian version: China invaded Indian territory. The Chinese version: India pushed posts into Chinese territory and provoked a response. Both are accounts of a line being violated, and both parties argue about who did the violating.

No boundary had ever been agreed between the two governments. Not in 1914, not in 1947, not in 1954, not ever. Zhou Enlai said so directly, and India's own difficulty in 1959 was that it had to assert a line in the west that British administrators had drawn several incompatible versions of.

Once that is in view, a great deal of the argument dissolves and something harder replaces it. If there is no agreed line, then a patrol is not trespassing and a post is not an invasion; each is a *claim being asserted physically*, and both countries were doing it. The Forward Policy in Chapter Five looks completely different once you stop asking whether it crossed a border and start asking what it was for.

Why neither side will drop the assumption. A country that admits the line was never agreed has admitted that its own maps are claims rather than facts, which no government can say to its own population while men are dying on the line. So both

states describe a legal violation, and the actual situation — two claims meeting in an unmapped desert, with neither side willing to say so out loud — is discussed by almost nobody in either country.

And every chapter closes with a **Remember This** box: the chapter in the plainest words available.

REMEMBER THIS

Part Three found that by 1954 **nobody could tell the Prime Minister he was wrong.** This part is what that cost when it was tested against a war.

The diplomatic record here is **excellent** and the military record is **closed**. Every claim from the army's own inquiry is one grade weaker and is marked as such.

No boundary had ever been agreed between the two governments. Both countries argue about who crossed a line that never existed, because neither can afford to say that its own map is a claim.

Part Six

Contents

1. The Neighbour That Arrived

A buffer that stopped existing in 1950 · what India inherited and what it never had · Aksai Chin, Switzerland-sized and empty · the lines nobody agreed

2. 1954: The Agreement

Five principles and eight years · the trade agencies, the escorts, the post offices · the phrase that settled an argument · what was asked for in return

3. The Road

Built across a claim · opened with a ceremony and announced in a newspaper · the Foreign Secretary's note · the gap between knowing and telling Parliament

4. The Men Who Were Told

An attaché, a mountaineer, a foreign secretary and a pilot · four warnings delivered · what happened to each · Part One's test applied

5. The Forward Policy

A meeting on 2 November 1961 · four men, one of them a soldier · what Western Command said · penny packets above five thousand metres

6. Twenty Days in October

Thagla, Namka Chu and the operation to evict · the artillery at dawn · Tawang in four days · the offer on the twenty-fifth

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Two officers, April 1963, two typed copies · the questions they were not allowed to ask · "current operational value" · a website blocked within hours

9. What Would Have Prevented It

The defence at full strength · the package that was offered in 1960 · four things that would have had to be different · what I would have to retract

10. An Honest List of What We Do Not Know

Genuinely unknown, and why · solid, and why it is solid · the one file that would settle most of it and where it is kept

CHAPTER ONE

The Neighbour That Arrived

For as long as anybody could remember there had been something soft between India and China. In 1950 it stopped being there, and India's answer was to hope it had not.

1.1 — What Tibet was for

For the whole of the British period, India's northern frontier had a peculiar and very comfortable property. Beyond the mountains lay Tibet — enormous, thinly populated, poor, militarily negligible, and running its own external affairs in practice whatever the theory said.

Britain had built an arrangement on top of that. Indian trade agencies operated at Yatung, Gyantse and Gartok. A small military escort protected the route. India ran the postal, telegraph and telephone services along it, and maintained rest houses. There was an Indian Mission in Lhasa.

These were not romantic imperial relics. They were the physical apparatus of a buffer: eyes on the ground, a line of communication, and a set of rights that made the northern frontier something India could see.

In 1950 China moved into Tibet and the arrangement ended. India acquired, for the first time in its history, a long land frontier with a large, unified, militarily capable state.

1.2 — What India inherited, and what it did not

The frontier itself came in two very different halves, and confusing them produces most of the bad writing on this subject.

In the east, along what is now Arunachal Pradesh, India claimed the **McMahon Line** — agreed at a conference in Simla in 1914 between British India and Tibet, following the crest of the Himalaya. It is a real line on a real map with a real signature on it. China's objection is that it never ratified the convention and disputes that Tibet was competent to sign.

In the west, in Ladakh, there was nothing so tidy. British administrators had drawn several different lines across the Aksai Chin plateau at different times and for different purposes, and had never settled on one. Some put the boundary far to the north; others put it much further south, leaving Aksai Chin outside India.

So India in 1947 inherited, in the east, a boundary its predecessor had asserted and, in the west, a set of options its predecessor had never chosen between.

WORD BOX

Watershed principle: the idea that a mountain boundary should follow the highest ridge — the line where water starts flowing one way rather than the other.

It is appealing because it is visible on the ground, hard to argue about, and usually corresponds to where people actually live and trade. Most Himalayan boundaries are described this way.

Why it matters here: the McMahon Line broadly follows it, which is India's strongest single argument in the east. Aksai Chin does not sit on a watershed at all — it is a high plateau — which is why the western boundary was never obvious to anybody, including the British.

The scale of what changed in 1950 is easy to state and hard to feel, so here it is in a form that can be pictured.

IN REAL TERMS

India's frontier with China runs roughly 3,500 kilometres. That is about the distance from Delhi to Rome.

Before 1950 almost none of it needed a soldier. Beyond the mountains lay a territory with no army worth the name and no capacity to threaten anything, and India's presence there consisted of some trade agents, a few escorts and a post office.

After 1950 the same line faced an army that had just fought the United States to a standstill in Korea. Nothing about the geography had altered. Everything about what the geography required had.

India's response over the following eight years was to reduce its presence in Tibet to nothing and to build almost no roads on its own side. Chapter Three is what that produced.

1.3 — The place itself

Aksai Chin is about thirty-eight thousand square kilometres of high cold desert, mostly above five thousand metres. Nothing grows. Almost nobody lives there. In winter it is among the least habitable places on the planet.

It matters to China because it is the only practicable route between Xinjiang and western Tibet. A road across it links two vast provinces that are otherwise separated by the Kunlun and the Karakoram.

It mattered to India because it was on the map.

That asymmetry is worth sitting with rather than skipping past. For one country the territory had a specific, concrete and continuous military use. For the other it had a legal and symbolic value and no physical presence at all — no post, no patrol route, no road, and no way of knowing what was happening in it without deliberately going to look.

1.4 — The frontier with no roads

One decision from this period explains more of what happened in 1962 than any other, and it was not taken in a crisis. It was taken calmly, over years, as a settled view.

India did not build roads to its northern frontier.

The reasoning was not neglect and it was not stupidity. It was a doctrine, and it had a respectable pedigree: **a road into difficult country helps the invader more than the defender.** An army coming down from Tibet would have to carry everything across the highest mountains on earth. Build a road up to the passes and you have solved that problem for them. Leave the approaches trackless and the mountains do the defending.

Against a nineteenth-century opponent this is sound. Against an opponent who has spent twelve years building his own roads on his side of the line, it is the opposite of sound, because the advantage of the terrain now belongs entirely to whichever side has built through it.

By 1962 the practical position was that Chinese formations could be supplied by road to within reach of the frontier, and Indian formations could not. Indian units walked in, or were dropped to from aircraft onto slopes where much of what was dropped was never recovered. That is not a failure of logistics in the sense of things going wrong. It is a policy working exactly as designed, in a situation the design no longer fitted.

Two things follow, and the second is the more important.

The first is that the Forward Policy of Chapter Five was placing posts into country that had deliberately been left without any means of reaching them. Western Command's objection about logistics was not a complaint about shortages. It was a statement that the ground had been prepared, for a decade, for the opposite of what was now being ordered.

The second is that this is the clearest example in the part of a decision that was correct when taken and became wrong without anybody revisiting it. Part One's Chapter Two set out the difference between a decision that was wrong at the time and one that became wrong later, and said the interesting question is always *when* it changed and who was in the room. Here the answer is available: it changed in 1950, when the buffer stopped existing, and nothing was reconsidered for another twelve years.

REMEMBER THIS

Tibet was a **buffer with an apparatus**: trade agencies, escorts, post offices, a mission in Lhasa. In 1950 India acquired a long frontier with a large unified state for the first time in its history.

The frontier came in two halves. **In the east, the McMahon Line** — signed, mapped, broadly on the watershed. **In the west, nothing settled**: the British had drawn several incompatible lines and never chosen.

Aksai Chin is **Switzerland-sized and empty**. For China it was the only route between Xinjiang and Tibet. For India it was on the map and nowhere else.

CHAPTER TWO

1954: The Agreement

India gave up every right it held in Tibet, accepted a phrase it had never accepted before, and did not raise the boundary. The agreement ran for eight years and expired four months before the war.

2.1 — What was signed

On 29 April 1954, in Peking, India and China signed the Agreement on Trade and Intercourse between the Tibet Region of China and India.

Its preamble contained the five principles of peaceful coexistence — mutual respect for sovereignty and territorial integrity, mutual non-aggression, mutual non-interference, equality and mutual benefit, and peaceful coexistence. In India they were known by their Sanskrit name, **Panchsheel**, and they became the centrepiece of Indian foreign policy for the next eight years.

The agreement was valid for eight years. It lapsed in 1962.

One word in that paragraph carried more weight in Indian politics than any other in the decade, and it is worth being exact about what it meant.

WORD BOX

Non-alignment: the policy of refusing to join either side in the Cold War — neither the American bloc nor the Soviet one — while dealing with both.

It was not neutrality in the Swiss sense, which means staying out of everything. It was an active claim to independent judgment, and it gave India, a poor country with a small army, a diplomatic weight far beyond its material strength.

Its cost was that India had no security guarantee from anybody. A non-aligned country in trouble has friends and no allies.

Why it matters here: Chapter Seven ends with the author of this policy asking Washington for fighter squadrons, and the distance between those two sentences is the subject of this part.

2.2 — What India gave

The list is not disputed by anybody and it is longer than most Indians realise.

The phrase. The title of the agreement itself describes Tibet as “the Tibet Region of China”. This was the first time India had accepted that formulation in a treaty. Whatever the historical argument about suzerainty and sovereignty had been, India had now signed one side of it.

The military escorts at Yatung and Gyantse, inherited from the British, were withdrawn.

The postal, telegraph and public telephone services India operated in Tibet were handed to China.

The rest houses along the trade routes were given up.

The Indian Mission in Lhasa was downgraded to a Consulate General.

And India agreed to a Chinese Consulate General in Bombay.

2.3 — What India asked for

Nothing about the boundary.

That is the whole of section 2.3 and it is the charge in this chapter. The agreement does not settle the border, does not mention it, and does not record a reservation of India’s position on it. The one moment at which India held something China wanted — recognition of its position in Tibet, from the most prominent non-aligned country in Asia — was used to obtain trade arrangements and a statement of principles.

Acharya Kripalani, who had already left Congress by then and whom Part Three met resigning over other things, later described the agreement as born in sin.

IN REAL TERMS

You are selling a house. The buyer wants it badly and nobody else is bidding.

There is an old dispute with the neighbour about where the fence runs. It has never been settled and both families have different deeds.

At the closing you hand over the keys, the garage, the tools in it and the right to use the drive. You do not mention the fence. Your solicitor does not put a line in the contract saying the fence is unresolved.

Eight years later the neighbour has built on the disputed strip, and when you object he points out that you sold him the house without ever saying you thought the land was yours.

None of that is contested by anybody, which is unusual for this subject and worth explaining.

HOW WE ACTUALLY KNOW THIS

The 1954 agreement is a published treaty, registered and available. Everything in sections 2.1 to 2.3 can be checked by reading it: the title, the preamble, the schedule of what India surrendered, the eight-year term, and the absence of any boundary provision.

This is the highest grade of evidence in the series. There is no need to rely on anybody's account of what was agreed, and no version of Indian or Chinese nationalism can adjust the text.

What it cannot show: what was discussed and not written down. Some accounts of the negotiation describe it as conducted with strikingly little briefing or note-taking, which if true would mean that the absence of a boundary clause reflects the absence of a boundary discussion rather than a decision to omit one. That distinction matters and the papers that would settle it are not open.

Which leaves the question the chapter exists for.

THE ARGUMENT — WAS THE 1954 AGREEMENT A BLUNDER?

Part One's test: a charge needs an alternative that somebody proposed at the time, that was politically possible, and that somebody comparable did.

DEFENSIBLE, AND THE ALTERNATIVES WERE WORSE

India had no capacity to defend Tibet and no intention of trying; China was already there and was not leaving. The rights being surrendered were *colonial* rights, inherited from an empire India had just spent thirty years fighting, and holding them would have made India's entire anti-imperial foreign policy incoherent. What India bought was eight years of quiet on a frontier it could not defend, during which it built an economy. And raising the boundary in 1954 would have converted an unspoken disagreement into a formal dispute at a moment when India was in no position to sustain one.

A BLUNDER, AND SPECIFICALLY ABOUT THE BOUNDARY

The surrender of the trade rights is defensible and is not the charge. The charge is that India held a bargaining position for one moment and did not use it. Recognising Tibet as Chinese territory was worth a great deal to Peking and it was given for nothing. At minimum, a single clause reserving India's position on the boundary would have cost nothing and would have transformed every subsequent exchange. Instead India signed a document that, by describing the frontier in terms of trade passes without addressing the line, made its own later assertions look like new claims.

Where things stand: the second side is stronger and the first side's best point survives inside it. Giving up the colonial apparatus was right. Not reserving the boundary was a specific, separable, costless omission, and it was noticed at the time by people including Kripalani. This is exactly the distinction Part One's Chapter Two insisted on: the question is never "was the policy wrong" but which component of it was wrong, and whether the alternative was available.

What would settle it: the negotiating record — whether anybody in the Indian delegation proposed a boundary reservation and was overruled. Some accounts say the talks were conducted with strikingly little briefing or note-taking. The files are not open.

Why people care so much: because Panchsheel was not a treaty clause in India, it was a national self-description, and conceding that it was badly negotiated concedes something much larger about the decade it defined.

One thing to carry forward. The agreement's eight-year term meant it expired in 1962. It was not renewed, and it lapsed a few months before the war — so the framework that had defined the relationship for the whole period simply ran out, quietly, in the year everything happened.

REMEMBER THIS

On **29 April 1954** India gave up its military escorts, its post and telegraph services, its rest houses, and the status of its mission in Lhasa — and accepted the phrase “**the Tibet Region of China**” for the first time in a treaty.

Surrendering colonial rights was defensible. **Not reserving India's position on the boundary was separable, costless and not done.**

The agreement ran for **eight years and lapsed in 1962**, four months before the war. Kripalani called it born in sin.

CHAPTER THREE

The Road

China built twelve hundred kilometres of highway, a hundred and sixty of them across territory India claimed. It was opened with a ceremony and announced in a newspaper. India told its Parliament nearly two years later.

3.1 — What was built

The Xinjiang–Tibet highway runs from Yecheng in Xinjiang to Gartok in western Tibet — about twelve hundred kilometres, of which roughly a hundred and sixty cross Aksai Chin.

Construction ran through the middle 1950s and was completed in the second half of 1957. On **6 October 1957** the road was formally opened with a ceremony at Gartok, and twelve trucks made a trial run from Yarkand. In **January 1958** the China News Agency reported that the highway had opened two months earlier and was in full use.

This was not a covert operation. It was a national infrastructure project, publicised by the country that built it.

3.2 — When India knew

Here is the sequence, and every item in it is separately documented.

1955. The Chief of Army Staff, General K.S. Thimayya, suspected a road was being built across Indian-claimed territory. A British mountaineer, Sidney Wignall, went into Tibet with the knowledge of Indian military intelligence. He was arrested by the Chinese, interrogated, and released — and made it back to India with a report.

1956. The Indian Military Attaché in Peking, Brigadier S.S. Malik, passed information about the road to Military Headquarters.

October 1957 and January 1958. The opening and the completion were announced publicly by Chinese sources.

Early 1958. The Foreign Secretary, **Subimal Dutt**, wrote to Nehru that there seemed little doubt that the newly constructed twelve-hundred-kilometre road connecting Gartok with Yecheng passed through Aksai Chin. He proposed sending a reconnoitring party in the spring.

Nehru agreed to the ground party. He declined air reconnaissance, writing that he did not think it desirable and did not see what good it could do.

1958. Ground patrols went. Some of them were detained by Chinese forces.

August 1959. Nehru told Parliament that the Sinkiang–Tibet highway had been built through Indian territory.

WORD BOX

Air reconnaissance: flying over ground to photograph what is on it.

The difference from a ground patrol is not comfort but certainty and speed. An aircraft covers in an hour what a party on foot covers in a fortnight, at altitudes where a fortnight may not be available, and it returns with photographs — evidence that does not depend on anybody's account and cannot be argued with.

It is also more visible and more provocative, and it can be construed as an overflight of somebody else's territory.

Why it matters here: Nehru authorised the slow method that produces reports and refused the fast one that produces proof. Chapter Four is about what happens to reports.

3.3 — What else happened in 1959

The August 1959 statement did not arrive into a calm year, and this is the context most accounts of the road leave out.

In March 1959 there was a rising in Lhasa. It was put down, and the **Dalai Lama fled across the Himalaya into India**, where he was granted asylum and where he has lived ever since.

That decision was taken by the Indian government and it was, on any reading, the right one. A country that turns away a religious leader fleeing for his life is a country that has decided what it is. India did not do that, and this series will not criticise it for not doing it.

But it had consequences, and they compounded with everything in this chapter.

For Peking, granting asylum was not a humanitarian gesture. It was interference in what China regarded as an internal matter, by a country that had signed an agreement in 1954 whose second principle was mutual non-interference. Relations deteriorated sharply from that spring and never recovered.

And for India, the two things arrived within months of each other. The Dalai Lama came in March. Parliament was told about the road in August. So the Indian public received, inside a single year, the news that Tibet had risen and been crushed, that its leader was now in India, and that Chinese forces had built a highway across territory shown on Indian maps.

Five years of Panchsheel, of official friendship and of a slogan about brotherhood, collapsed in about six months.

This matters for Chapter Nine's argument and it should be stated here rather than saved. The reason no Indian government could contemplate the 1960 package is not simply that concealment had built up pressure. It is that the pressure was released all at once, in a year when the same public was also watching a refugee leader arrive from a country India had signed away. **Any settlement offered after 1959 had to be sold to a country that had just been shown, in one season, that it had been wrong about everything.**

3.4 — The gap

Count it plainly. The army suspected in 1955. The military attaché reported in 1956. The Chinese announced it in 1957. The Foreign Secretary put it in writing to the Prime Minister in early 1958. Parliament was told in August 1959.

Between the government being told by its own Foreign Secretary and Parliament being told, roughly eighteen months elapsed. Between the army's first suspicion and Parliament being told, roughly four years.

Two separate charges live in that gap and they should not be run together.

The first is about telling Parliament. A government that knows a foreign power has built a road across territory it claims, and does not tell the legislature for a year and a half, has made a decision about what its own Parliament is for. This is a democratic charge and it does not depend on any view about China policy.

The second is about what the delay was for. During those months India was still conducting a foreign policy whose central plank was that relations with China were excellent. Announcing the road would have made that position untenable. The delay bought time for a policy, and the policy was the Prime Minister's.

HOW WE ACTUALLY KNOW THIS

The chronology in section 3.2 rests on sources of quite different weight and it is worth separating them.

SOLID: the road's completion and formal opening, which Chinese state media announced; Nehru's statement to Parliament in August 1959, which is in the parliamentary record with a date; and the detention of Indian patrols in 1958, which appears in the exchanges of notes laid before Parliament.

DOCUMENTED BUT FROM PRIVATE PAPERS: Dutt's note to Nehru in early 1958 and Nehru's reply about air reconnaissance. These come from archival work by researchers on Indian records rather than from a published government release.

ALLEGED: the Wignall episode of 1955 and the remark attributed to Krishna Menon dismissing it. This rests on the mountaineer's own later account and on secondary writing, and no official document confirms it.

What this cannot show: what Nehru believed. A refusal to authorise air reconnaissance is consistent with complacency, with a wish not to provoke, and with a wish not to obtain proof that would force his hand. The document records the decision and not the reason.

The length of that silence deserves converting into something a reader can hold.

IN REAL TERMS

Four years is a long time in a life and a very long time in a government.

A child who started school in 1955, when the army first suspected the road, was in her fifth year when Parliament was told. A conscript soldier would have completed a full engagement. Two general elections were held inside that window, in neither of which the question arose.

And the eighteen months between the Foreign Secretary's note and the statement to Parliament is not an administrative delay. It is longer than the entire period between the Chinese attack and the ceasefire, several times over.

Which raises the question of what the government should have done in early 1958, when it had it in writing.

THE ARGUMENT — WHAT SHOULD INDIA HAVE DONE WHEN IT FOUND THE ROAD?

By early 1958 the government had it in writing from its own Foreign Secretary. The options then were real and none of them was good.

ROUGHLY WHAT IT DID

India had no capacity to remove the road and no capacity to defend Aksai Chin, which it had never occupied and could not reach. Publicising the discovery in 1958 would have produced an immediate domestic demand for action India could not take, destroyed the one framework — Panchsheel — under which quiet negotiation was possible, and hardened Chinese positions before India had any military presence at all. Delay bought time to build roads and posts, and that is what governments do when the alternative is a crisis they cannot win.

TOLD PARLIAMENT AT ONCE AND NEGOTIATED FROM THE FACT

Everything in the first argument is a case for not going to war, and nobody was proposing war. It is not a case for concealment. Telling Parliament in 1958 would have made the position honest, put the fact on the record before China consolidated, and — this is the part that matters — allowed India to negotiate the boundary while it still had something to trade. Chapter Nine describes a package settlement floated in 1960 and rejected. It was rejected partly because by then the Indian public had been told there was Indian territory under Chinese occupation and no government could concede it. **The concealment created the domestic politics that made settlement impossible.**

Where things stand: the second side is stronger and the reason is the sequencing. The first side's case for delay assumes the delay was used to prepare. It was not: almost nothing was built between 1958 and 1961. What the delay actually produced was a later, angrier revelation, arriving all at once, into a public that had spent five years being told relations were excellent — which is the worst possible condition in which to negotiate a compromise.

What would settle it: what was built or authorised in Ladakh between early 1958 and late 1959. Some of this is answerable from published defence estimates and nobody has assembled it.

Why people care so much: because if the concealment closed off a settlement, then the 1962 war was made more likely by an Indian decision taken four years earlier and not by anything that happened in October.

And one point of fairness before the summary. Nothing in this chapter says India could have removed the road, or should have gone to war over it, or that Aksai Chin was defensible. It says a government knew something and did not say so, and that the not-saying had consequences which arrived in 1960 and again in 1962.

REMEMBER THIS

The road was **completed in 1957, opened with a ceremony on 6 October, and announced by Chinese media in January 1958**. It was never a secret.

India's army suspected in **1955**, its attaché reported in **1956**, its Foreign Secretary wrote to the Prime Minister in **early 1958** — and Parliament was told in **August 1959**.

Two charges, not one: **a government decided what its Parliament was for, and the delay bought time for a policy rather than for preparation**. Nothing much was built in Ladakh in those months.

CHAPTER FOUR

The Men Who Were Told

Part One said a bad outcome becomes a blunder only if somebody saw it at the time. Four people saw it. This chapter is about what happened to each of them.

4.1 — The test

Part One set three conditions before anything in this series may be called a blunder. Somebody proposed the alternative at the time. It was politically possible. And somebody comparable did it.

The first condition is the one that does the work, and it is usually the hardest to meet, because most warnings are reconstructed afterwards by people who want to have been right.

This part is unusual. The warnings are dated, the people are named, and in three of the four cases what happened to the warning is also on the record.

4.2 — Four warnings

The Chief of Army Staff, 1955. General K.S. Thimayya suspected a road was being built and arranged, through military intelligence, for a foreign mountaineer to go and look. The man was arrested by the Chinese and released, and got back with a report.

The Military Attaché in Peking, 1956. Brigadier S.S. Malik passed information about the road to Military Headquarters. This is the most ordinary and most damning of the four: it is exactly what a military attaché is posted abroad to do, and it worked.

The Foreign Secretary, early 1958. Subimal Dutt wrote to the Prime Minister that there was little doubt the road passed through Aksai Chin, and proposed reconnaissance.

The reconnaissance pilot, 1960 to 1962. Wing Commander Jag Mohan Nath flew secret missions over Tibet and reported that China had no air force positioned there. Accounts of the period say the Defence Minister did not believe him.

That fourth one deserves a moment, because it is the one with the sharpest consequence. India did not use its air force in the war of 1962. Its aircraft flew transport and supply and not a single strike. One of the reasons given afterwards was uncertainty about Chinese air capability and fear of retaliation on Indian cities.

A pilot had flown over the ground and reported that the capability was not there.

HOW WE ACTUALLY KNOW THIS

These four items are not of equal standing and this box exists to say so.

Malik's report and Dutt's note come from archival research on Indian official papers by named historians. They are as good as anything available on a period whose files are not open, and I treat them as **SOLID** for the fact of the warning and **ALLEGED** for anything said in response to it.

The Thimayya–Wignall episode and the remarks attributed to Krishna Menon rest on the mountaineer's own later book and on secondary accounts. Grade: **ALLEGED**. The chapter's argument does not depend on it.

The Nath reconnaissance rests on his own account and on writers working from it. Grade: **ALLEGED**. What is **SOLID** alongside it is narrower and independent: India did not use offensive air power in 1962, and that decision was taken at cabinet level.

What none of this can show: whether any of these reports reached the Prime Minister in a form he registered. A note written is not a note read.

Set out side by side, the four look less like a series of missed signals and more like a system reporting correctly into a vacuum.

WHO	WHEN	WHAT WAS SAID	WHAT FOLLOWED
Gen. K.S. Thimayya, Chief of Army Staff	1955	Suspected a road across claimed territory; arranged for a foreign mountaineer to go and look.	The man was detained, released, and returned with a report. Accounts say it was dismissed at ministerial level.
Brig. S.S. Malik, Military Attaché, Peking	1956	Passed information about the road to Military Headquarters.	Received by a headquarters with no authority over frontier policy, which rested with the Prime Minister as Foreign Minister.

WHO	WHEN	WHAT WAS SAID	WHAT FOLLOWED
Subimal Dutt, Foreign Secretary	Early 1958	Wrote to the Prime Minister that the road almost certainly crossed Aksai Chin; proposed reconnaissance.	Ground party authorised. Air reconnaissance refused. Parliament told eighteen months later.
Wg Cdr Jag Mohan Nath, reconnaissance pilot	1960– 62	Flew over Tibet and reported that China had no air force positioned there.	Accounts say the Defence Minister disbelieved him. India used no offensive air power in the war.

One of those four deserves a note, because it is the one that shows the machinery working perfectly.

WORD BOX

Military attaché: an officer posted to an embassy whose job is to observe the host country's armed forces and report home.

It is an open and accepted role — every country does it and every country knows it is being done. The attaché is not a spy; he reads the local press, attends parades, talks to other attachés, travels where he is permitted, and writes it up.

Why it matters here: Brigadier Malik's report on the road in 1956 was not a coup or a leak. It was the routine output of a post that exists precisely to produce it, arriving through the channel built to carry it. The system worked exactly as designed, right up to the point where somebody had to act.

4.3 — What happened to them

Now the part that turns a list into a finding.

Not one of the four warnings produced a change of policy. Not one of the four men was disciplined, sacked or silenced. Nobody was punished for being right, which is worth saying because it is the version people expect and it is not what happened.

What happened is duller and worse. The reports arrived, were noted, and did not connect to any decision. Dutt got a reply — he got the ground party he asked for and was refused the air reconnaissance, which is the reply of a Prime Minister engaging with the question and choosing the option that would generate the least conclusive evidence.

Malik's report went into a headquarters that had no authority to act on it, because the boundary was a matter for the Ministry of External Affairs and the External Affairs portfolio was held by the Prime Minister.

That last detail is not incidental and it recurs. Through this whole period the Prime Minister was also the Foreign Minister. There was no separate minister whose department's institutional interest was the frontier and who could take a different view in cabinet.

THE HIDDEN ASSUMPTION

Everybody who writes about 1962 — and about every intelligence failure anywhere — assumes **that a warning which is delivered has been received.**

Both national accounts run on it. The critical version: they were told and they ignored it, which makes the failure a moral one about arrogance. The defensive version: the warnings were fragmentary and contradictory, which makes it a technical failure of collection. Both are arguments about the quality of the information.

Delivery and receipt are different events and the second one is not automatic. For a warning to be received, somebody has to have (a) the authority to act on it, (b) an incentive to believe it, and (c) a decision it changes. A report that reaches a desk where all three are absent has not been received. It has been filed.

Look at the four warnings against those three tests. Malik had no authority and reported into a headquarters that had none either. Thimayya had authority over soldiers and none over the frontier policy. Dutt had the ear of the Prime Minister and no authority independent of him. Nath had a photograph and no route to anybody who wanted it.

And the incentive test fails everywhere at once, because a warning about the road was a warning that the central plank of Indian foreign policy was mistaken — which no official can deliver upwards without asking the Prime Minister to abandon a position he had personally built.

This is why the “arrogance” explanation, which is the popular one in India, is both satisfying and useless. It locates the failure in one man's character, which nothing can be done about. The structural version locates it in an arrangement where **the same**

person held the Prime Ministership, the External Affairs portfolio, and the party presidency for part of the period — and Part Three showed that by 1954 nobody with an independent base was left to contradict him on anything at all.

The test of the structural reading is whether the same pattern appears elsewhere in this series, on subjects with no connection to China and no involvement from the same man. Part Four found it in 1965, 1967 and 1969, in economics, under a different Prime Minister. It does appear elsewhere. That is the finding.

Hold this chapter beside Part Three's Chapter Eight, which found that between 1950 and 1954 every figure with an independent base who could contradict the leadership had died, resigned or been defeated. That chapter said the discovery that there is no mechanism happens at the moment you need one. This is the moment.

REMEMBER THIS

Four warnings, dated and named: **the army chief in 1955, the attaché in 1956, the Foreign Secretary in 1958, the reconnaissance pilot from 1960.**

Nobody was punished for being right. The reports arrived, were noted, and connected to no decision — which is duller and worse than suppression.

A warning is **received** only where somebody has the authority to act, an incentive to believe, and a decision it changes. **All three failed at once**, because the Prime Minister was also the Foreign Minister and the warning said his policy was wrong.

CHAPTER FIVE

The Forward Policy

On 2 November 1961, four men in the Prime Minister's office decided to push small parties of Indian troops into contact with the Chinese army. One of the four was a soldier.

5.1 — The meeting

The decision that produced the war has a date, a place and an attendance list, which is unusual in this series and is one of the things the army's own inquiry established.

The meeting was held in the Prime Minister's office on **2 November 1961**. Present were the Defence Minister, V.K. Krishna Menon; the Foreign Secretary, M.J. Desai; the Chief of Army Staff, General P.N. Thapar; and the Director of the Intelligence Bureau, B.N. Mullik.

The decision taken was to push forward troops into contact with the Chinese — to establish posts in disputed territory, including in places behind Chinese positions, in order to demonstrate Indian occupation of ground India claimed.

Notice the composition of that room. A politician, a diplomat, an intelligence chief and one general. The question being decided was whether a foreign army would fight. The person in the room whose professional training was in estimating that was the intelligence chief, and the assessment came from him.

5.2 — The theory

The Forward Policy rested on a proposition, and the proposition was not absurd.

It held that China would not respond with force to Indian posts in disputed territory. The grounds were that China had substantial problems elsewhere, that its leaders had repeatedly said they did not want war, and that early Indian probes had been met by Chinese withdrawal rather than resistance.

That last observation was true and it was the trap. When India first pushed posts forward, Chinese units in some places pulled back. The conclusion drawn was that the policy worked. The other available conclusion — that an army withdrawing in front of penny packets is repositioning rather than retreating — was not drawn.

WORD BOX

Penny packets: a military term for splitting a force into small groups scattered over a wide area, instead of concentrating it.

Small posts can watch ground and show a flag. They cannot hold it. A platoon on a ridge with no artillery, no reserve within a day's march and a supply line that runs by air drop is a tripwire, and a tripwire only works if there is something behind it.

Why it matters here: the Forward Policy produced dozens of these, some of them positioned behind Chinese posts rather than in front of them, at altitudes where a man carrying a load moves at walking pace for days.

5.3 — What Western Command said

The army's own inquiry, in the portion that has become public, records that **Headquarters Western Command objected.**

Its objection was not political. It did not say the policy was provocative or that the claim was wrong. It said that a forward move required adequate troop numbers, combat support and logistics, and that these were not present.

That is a professional military assessment of feasibility, made by the formation responsible for the ground, in advance, in writing.

It was overruled by Army Headquarters.

The inquiry describes an Army Headquarters under a weak Chief and pressed by an energetic Chief of General Staff — Lieutenant General B.M. Kaul, appointed to that post at the beginning of 1961 — which accepted the Intelligence Bureau's assessment that the Chinese would not fight, and passed the requirement down.

Grade for this paragraph: **ALLEGED**, in the strict sense of this series. It comes from a document the Indian government has never authenticated, published by a journalist in 2014. Scholars generally treat it as genuine. Chapter Eight is about why that is the best available position.

THE ARGUMENT — WAS THE FORWARD POLICY PROVOCATION OR DEFENCE?

This is the central historical dispute about 1962 and it has a nationalist answer in both countries.

DEFENCE, AND CHINA'S RESPONSE WAS DISPROPORTIONATE

India was placing posts on territory it claimed and had always claimed, inside its own maps, on ground no other state administered. China had already built a road across that same territory without asking. A country that responds to a police post with a corps-level offensive across two fronts, seizing ground far beyond the disputed strip, has not been provoked into self-defence; it has taken an opportunity. And China planned the offensive over months, which is not what a reactive response looks like.

PROVOCATION, AND A MILITARILY ILLITERATE ONE

Chapter One established that no boundary had ever been agreed. In that situation a post is not defence of a border, it is the physical assertion of a claim, and both sides knew it. India asserted its claim with platoons it could not supply, behind an opposing army, having been told by its own Western Command that the numbers and logistics were absent — while simultaneously refusing the negotiation that might have settled the line. That is not defence. It is a bluff, made by people who had been told it was a bluff.

Where things stand: the two sides answer different questions and both answers are correct. On *who escalated*, the first side is right: the Chinese offensive of October and November went far beyond anything the Forward Policy did, and the scale of it was a choice made in Peking. On *whether India's own conduct was defensible*, the second is right, and it is the question this series is about. India is not responsible for China's decision. It is responsible for having placed its soldiers where they were, in the numbers they were, having been warned.

What would settle it: the Chinese decision-making record, which is closed and is likely to remain so.

Why people care so much: because one answer makes 1962 an unprovoked aggression and the other makes it a self-inflicted disaster, and Indian politics has needed the first answer continuously since 1962.

Notice that both of those positions treat the Forward Policy as a question of strategy — good strategy or bad strategy, defensive or aggressive. That framing is shared, and it is wrong.

THE HIDDEN ASSUMPTION

Both sides of that argument assume **that the Forward Policy was a military decision.**

It is discussed as strategy — posts, lines, deployments, whether it was sound. Its defenders call it a defensive posture and its critics call it a military blunder. Everybody is grading it as generalship.

It was not a military decision and it was not taken by soldiers. It was taken in a Prime Minister's office by four men, one of them in uniform, and its central premise was a claim about *what the Chinese leadership would decide*. That is a political and intelligence judgment. The military content of the meeting was the part that got overruled.

The distinction matters because it changes where the failure sits. If the Forward Policy was bad generalship, the fix is better generals, and India spent the following decade on exactly that — restructuring the army, buying equipment, building border roads. Those were good things and they are Chapter Seven's credit items.

If it was a political bet dressed as a military posture, then better generals fix nothing, because the generals were not consulted on the bet. The fix would have to be a process in which a professional assessment that a plan is not feasible *stops the plan* — and India did not build that, then or since.

Watch which version each country's account needs. India's needs the military framing, because it locates the failure in an institution that was subsequently reformed. China's needs it too, because a military provocation justifies a military response and a political miscalculation does not.

One last thing about that meeting, and it is the detail that makes it more than a bad decision. It produced no written military appreciation of what the policy would require if the assessment turned out to be wrong. There was no contingency, because the premise was that the contingency could not occur — and the one body that said otherwise had been overruled before the question reached the room.

REMEMBER THIS

2 November 1961, in the Prime Minister's office: Menon, Desai, Thapar and Mullik. The decision to push posts into contact rested on an **intelligence assessment that China would not fight**.

Western Command objected in writing — not on politics but on numbers, combat support and logistics — and was overruled by Army Headquarters.

It was **not a military decision**. It was a political bet whose military content was the part that got overruled, which is why better generals afterwards fixed nothing about how it was taken.

CHAPTER SIX

Twenty Days in October

The soldiers were not the problem and this chapter says so early. They were sent up a mountain in canvas shoes to hold a position their own command had said could not be held.

6.1 — Thagla and Namka Chu

On 8 September 1962, about six hundred Chinese troops occupied the Thagla ridge, which sits north of the Namka Chu river in the eastern sector — ground India read as inside the McMahon Line.

7 Infantry Brigade, of 4 Infantry Division, was moved down to the Namka Chu and ordered to evict them. The operation was given a name, Leghorn, which is a good indication of how it was being thought about in Delhi.

The brigade was at the bottom of a valley, overlooked from the ridge, supplied over a track that took days, and at an altitude to which its men had not been acclimatised. A force of about fifty or sixty from 9 Punjab attempted to work around the Chinese positions in early October and was driven back by a much larger force.

The position was militarily hopeless and the officers on the ground said so. The order to evict was not withdrawn.

6.2 — The twentieth

At dawn on **20 October 1962** the Chinese attacked, in the east and the west simultaneously, opening with an artillery barrage and following with infantry.

Reported strengths vary and should be treated as approximate, but the disparity is not disputed: Chinese forces in the theatre are usually given at around eighty thousand against an Indian deployment a fraction of that, scattered in the posts described in Chapter Five.

7 Infantry Brigade's positions on the Namka Chu were overrun within hours.

The equipment position has become a national memory and it is accurate. Bolt-action rifles of a First World War pattern. No winter clothing at altitudes where the night temperature is far below freezing. Canvas shoes. Supply by air drop onto slopes, much of which was not recovered.

6.3 — Tawang, and the ones who held

By 22 October the Chinese were advancing on Tawang along two axes. On a third, at Bum La, a platoon of 1 Sikh held them for more than eight hours and inflicted heavy casualties before being overwhelmed.

4 Infantry Division vacated Tawang on 23 October. It fell the next day.

In the west, at Rezang La above Chushul, a company of 13 Kumaon under Major Shaitan Singh held its position to the last, in one of the actions by which the Indian Army remembers this war. He was awarded the Param Vir Chakra posthumously.

This series is a prosecution brief about governments and it is worth being exact about who is being prosecuted. Nothing in this part is a charge against the men on those ridges. The record of the fighting at Bum La, at Rezang La, at Walong and elsewhere is not in dispute and does not need defending. What is being examined is the chain of decisions that put a platoon on a ridge with a rifle designed in 1895 and told it to hold.

IN REAL TERMS

Fourteen thousand feet is roughly two and a half miles straight up. At that height there is about sixty per cent of the oxygen available at sea level.

An unacclimatised man arriving there cannot think clearly for several days and cannot work hard for longer. Carrying a load, he moves at the pace of a walk on the flat, and stops often. A wound that would be survivable lower down is frequently not.

Troops were flown and marched to these positions and put into action within days, some of them from garrisons in the plains. The Chinese had been in Tibet for twelve years.

That is not a detail about logistics. It is the difference between a soldier and a casualty, and it was known to every officer in the Indian Army.

One physical fact underlies all of this and it is not a matter of courage or training.

WORD BOX

Acclimatisation: the physical process by which a body adjusts to thin air. It takes weeks and cannot be hurried, trained for at sea level, or replaced by fitness.

Until it happens, a healthy soldier at high altitude is short of breath, slow to think, unable to sleep properly and liable to collapse under load. Wounds bleed longer and heal worse. Every army that operates in mountains knows this and builds its schedules around it.

Why it matters here: Chinese troops had been in Tibet for twelve years. Indian units were flown or marched up and put into action within days, some from garrisons in the plains — which is not a supply failure but a decision about time.

6.4 — The offer on the twenty-fifth

On **25 October 1962**, having taken Tawang and having achieved everything the first phase was designed to achieve, China halted.

It offered a ceasefire and a mutual withdrawal of both sides to twenty kilometres behind the line of actual control, together with talks.

India rejected it.

Three weeks later the second phase began, and the second phase was much worse than the first.

THE ARGUMENT — SHOULD INDIA HAVE ACCEPTED THE OFFER OF 25 OCTOBER?

This is the least discussed decision of the war and one of the most consequential.

REJECTING IT WAS RIGHT

The terms were China's terms, offered from a position it had just seized by force, and mutual withdrawal from a "line of actual control" meant accepting China's version of where that line was — which was the whole substance of the dispute. Accepting would have ratified the seizure of Aksai Chin and rewarded an invasion, and no government could have survived doing it three days after losing Tawang. The offer was not a peace proposal; it was a demand for capitulation with a ceasefire attached.

REJECTING IT COST MORE THAN ACCEPTING

Every objection above is about terms, and terms are what negotiations are for. What rejection actually bought was the second phase — in which India lost far more ground, far more men, and the whole of its remaining military credibility, and after which China imposed a unilateral ceasefire on terms no better than those on offer in October. India ended in November approximately where it would have started in October, having lost a month and a great many soldiers. And the reason rejection was politically compulsory is Chapter Three: a public that had been told for five years that relations were excellent, and then told all at once in 1959 that territory was occupied, could not be asked to accept anything.

Where things stand: the second side is stronger on outcome and the first is right that the terms were bad. The decisive point is what the second phase achieved, and the answer is nothing India wanted. This is the clearest case in the part of Part One's rule that a charge needs an alternative: here the alternative was on the table, in writing, from the other side, and was refused.

What would settle it: the cabinet record of 25–27 October 1962. It is not open.

Why people care so much: because almost no Indian account mentions this offer at all, and a war remembered as an unprovoked invasion is a different thing from a war in which a ceasefire was available at the halfway point and was turned down.

Before that, a word about how firmly any of the last three sections can be established, given that they describe a rout.

HOW WE ACTUALLY KNOW THIS

The military chronology in this chapter is among the best-evidenced material in the series, for an unusual reason: **the two sides agree about it.**

Indian and Chinese accounts of 1962 differ violently about cause, blame and intention. They differ very little about dates, places and sequence — when Thagla was occupied, when the attack came, when Tawang fell, when the halt began, when the second phase started, when the ceasefire was declared. Where two hostile parties with every incentive to disagree describe the same sequence, the sequence is about as safe as history gets.

The Indian official history of the war is the source for the casualty figures and for unit movements.

What it cannot show: what the fighting was like, and what individual decisions were taken on which ridge. Official histories are written from war diaries, and war diaries at the losing end of a rout are incomplete, because the people keeping them were killed, captured or running.

Which leaves one decision from those twenty days that Indian accounts almost never mention.

REMEMBER THIS

7 Infantry Brigade was sent to the bottom of a valley, overlooked, unacclimatised and unsupplied, and ordered to evict a force on the ridge above it. **The officers on the ground said it was hopeless. The order stood.**

Nothing in this part is a charge against the soldiers. Bum La, Rezang La and Walong are not in dispute. The charge is against the chain that put them there with 1895 rifles and canvas shoes.

On **25 October China offered a ceasefire and mutual withdrawal. India refused.** The second phase followed, and it was worse. Most Indian accounts do not mention the offer.

CHAPTER SEVEN

What It Cost

Almost no territory changed hands. That is the fact most accounts of 1962 get wrong, and understanding it changes what the war was.

7.1 — The second phase

After the pause that began on 25 October, the Chinese resumed on **14 November** and the second phase ran for a week.

It was worse than the first in every respect. Indian positions in the eastern sector collapsed across a broad front. By the middle of November Chinese forces had come down out of the hills and were within reach of **Tezpur**, in the Assam plain.

What happened at Tezpur is the part that lodged in the national memory. The town was partially evacuated. The treasury was burned. Prisoners were released from the jail because there was nobody to guard them. The administration left.

Nothing prevented a further advance except a Chinese decision not to make one.

7.2 — The letters

On **19 November 1962**, Nehru wrote to President Kennedy. There were two letters that day and the second was the one that mattered.

He asked for American combat aircraft — squadrons of fighters, with radar and, in effect, American crews to fly them until Indian pilots could be trained — to defend Indian cities and to be used against Chinese forces.

Set that beside everything in this series so far. The architect of non-alignment, eight years after signing an agreement whose preamble was the five principles of peaceful coexistence, asking the United States for fighter squadrons in a letter written at night.

The request was overtaken by the ceasefire two days later. The letters were declassified decades afterwards and their existence was not publicly known in India at the time.

WORD BOX

Unilateral ceasefire: one side stopping on its own terms, without agreement from the other.

It is not a negotiated peace and it is not a surrender. It is a statement that the party doing the stopping has got what it came for, and that continuing is now optional for it and not for anybody else.

Militarily it is the position of strength. Politically it is humiliating for the other side, because there is nothing to sign, nothing to concede in return, and no way to describe the ending as mutual.

Why it matters here: India did not agree to the ceasefire of 21 November. It was informed of it.

7.3 — The ceasefire, and the count

On **21 November 1962** China declared a unilateral ceasefire. Its forces withdrew in the eastern sector, broadly back behind the McMahon Line. In the west they retained Aksai Chin.

The casualty figures from the Indian official history are approximately: **1,383 killed, 1,047 wounded, 1,696 missing, and 3,968 taken prisoner.** Chinese losses are given at roughly 722 killed and 1,697 wounded.

Note the shape of those numbers. The missing and the captured together are far larger than the dead. That is the signature of positions being overrun rather than of a fighting withdrawal, and it is the arithmetic of Chapter Five: penny packets, no reserves, no line to fall back to.

7.4 — What changed, and what did not

Now the fact that is usually lost.

The territorial outcome of the war was close to nil. China withdrew from what it had taken in the east. It kept Aksai Chin — which it had occupied and built a road across before the war started, and which India had never administered, never garrisoned and never physically held.

If you drew the map on 19 October 1962 and again on 22 November 1962, the difference is small.

What the war actually produced was political, and it produced a great deal.

Defence spending rose sharply and stayed risen. The army was expanded, mountain divisions were raised, and equipment was bought. This is a credit item and Chapter Nine gives it its weight.

Non-alignment as a practical policy ended. India took American and Soviet arms. The doctrine survived as language for decades; the behaviour changed in November 1962.

Krishna Menon resigned as Defence Minister. General Thapar resigned on 22 November, the day after the ceasefire.

Nehru never recovered. He suffered a stroke in January 1964 and died in May. The dominant political fact of independent India's first seventeen years ended here.

IN REAL TERMS

Take the casualty figures apart. Roughly 1,383 killed and roughly 3,968 captured.

In most wars the dead considerably outnumber the prisoners. Here nearly three men were taken for every one killed, and a further 1,696 were never accounted for at all.

That ratio is not a measure of how hard the fighting was. It is a measure of **position**. Men are captured in large numbers when a unit is surrounded, cut off from any line of retreat, out of ammunition and out of supply — which is the exact description of a platoon on a ridge with no reserve behind it and a track that takes four days.

The arithmetic of Chapter Five arrives here, in a number, in November.

All of which sits underneath a way of describing this war that both countries share.

7.5 — The ledger for this part

Part Five opened a running record of which states were affected by the material in each part, and committed every part from there to carry it. Here is the entry for 1962.

WHERE	WHAT HAPPENED
NEFA (now Arunachal Pradesh)	The eastern theatre. Overrun in October and November and then vacated by Chinese forces. Administered directly from Delhi through the Ministry of External Affairs rather than as an ordinary state, which is why it had almost no roads to defend it with. The border-road programme that followed is the largest single thing the Indian state has ever done there.

WHERE	WHAT HAPPENED
Assam	Tezpur partly evacuated, its treasury burned and its prisoners released, with the administration withdrawing. The memory of having been written off is a live political fact in the state and appears again in Part Thirteen.
Ladakh (Jammu and Kashmir)	The western theatre. Aksai Chin was never administered from Leh and was not reachable from it; the road-building and post-building that followed transformed a region that had been left alone since 1947.
The north-eastern states generally	The war converted the region from an administrative afterthought into a security frontier, and much of the apparatus that governs it today — the road network, the troop presence, the special legal provisions — dates from the response to 1962 rather than from any decision about the people living there.

Note the shape of that table against Part Five's. There, central decisions made some states poor by removing an advantage. Here, a central failure made a whole region into a garrison — and both are cases of a place being permanently altered by a decision taken elsewhere about something else.

7.6 — What the correction bought

The rebuilding after 1962 deserves more than the one line it usually receives, because it is the strongest item on the credit side of this part.

Defence spending roughly doubled as a share of national income and did not fall back. The army was expanded substantially, and specialist mountain divisions were raised, trained and equipped for exactly the terrain where it had failed. A programme of border roads was pushed hard in areas that had been deliberately left roadless on the theory that roads help an invader more than a defender — a theory 1962 destroyed.

Intelligence arrangements were reorganised, and the practice of a single civilian agency supplying the military assessment on which operations would be based was ended.

How well it worked is measurable. The same army fought Pakistan to a standstill in 1965, three years later, and won decisively in 1971.

What the correction did *not* touch is the subject of Chapter Eight. Every reform above concerns capability — soldiers, roads, equipment, formations. None of them addresses the process by which a professional assessment that a plan was not feasible was overruled by people without that expertise, because the inquiry into the defeat was forbidden from examining that, and its report has never been published.

India fixed the army. It did not fix the thing that sent the army.

THE HIDDEN ASSUMPTION

Everyone who writes about 1962 assumes **that it was a war about territory**.

The Indian version: China seized Indian land. The Chinese version: China taught a lesson and returned what it had taken. Both are accounts of ground changing hands, and both countries' school textbooks are maps.

Almost no ground changed hands. The one substantial piece China retained is the piece it already occupied, had already built a road across, and had held for at least five years before a shot was fired. India did not lose Aksai Chin in 1962. It lost it somewhere between 1955 and 1958, in the manner described in Chapters Three and Four, without a casualty.

What the war transferred was not land. It was **information** — about India's military capacity, about the value of its declarations, and about the relationship between what its government said and what was true. That information went to China, to Pakistan, to the non-aligned states India led, and above all to Indians.

This is why the territorial framing is so comfortable for both sides. A war about land has a winner, a loser and a map, and it is finished. A war whose output was a demonstration that a government's public position bore no relation to its private knowledge is not finished at all, because the question it raises — how did that happen and has it stopped happening — has never been officially answered. Chapter Eight is about the document that would answer it.

And that is why the next chapter is about a document rather than a battle. If the war's real output was information about how a government handled what it knew, then the most important thing produced in its aftermath was the inquiry into exactly that — and the most important fact about the inquiry is that nobody has read it.

REMEMBER THIS

The second phase began **14 November**. Tezpur was partly evacuated, its treasury burned and its prisoners released. Nothing stopped a further advance but a Chinese decision.

On **19 November** Nehru asked the United States for fighter squadrons. On **21 November** China declared a unilateral ceasefire, withdrew in the east and kept Aksai Chin. Roughly **1,383 killed and 3,968 captured**.

Almost no territory changed hands. India did not lose Aksai Chin in 1962; it lost it between 1955 and 1958 without a casualty. What the war transferred was information.

CHAPTER EIGHT

The Report That Was Never Published

Two officers wrote it in 1963. Two typed copies were made. Sixty-three years later it is still classified, and the reason given is that its contents are of current operational value.

8.1 — What it is

After the war the Indian Army commissioned an operations review. It was conducted by **Lieutenant General Henderson Brooks** and **Brigadier P.S. Bhagat**, then commandant of the Indian Military Academy and a holder of the Victoria Cross.

They submitted their report to the government in **April 1963**. Only two typewritten copies are believed to have existed — one with the office of the Defence Secretary and one in the Army's Directorate of Military Operations.

It has never been published. The Defence Minister of the day, Y.B. Chavan, summarised what he described as the lessons of it to Parliament, and that summary is the only official account of its contents that exists.

8.2 — The questions they were not allowed to ask

Part One set out a rule about commissions of inquiry: they are controlled not by pressuring the investigator but by writing the questions. Read the terms of reference before the findings, every time.

Here they are.

The functioning of Army Headquarters was outside the review's purview. So was the civilian direction of the army.

Consider what that excludes. Chapter Five's central finding is that Western Command's professional objection was overruled by Army Headquarters, and that the Forward Policy was decided in the Prime Minister's office by a group in which the army had one voice. Both of those sit precisely inside the two areas the inquiry was forbidden to examine.

The review was permitted to ask why the operations failed. It was not permitted to ask who had ordered them or why the order had been given.

And it still produced a document damaging enough that no government of any party has released it in sixty-three years.

WORD BOX

Declassification: the formal act of removing a secrecy marking from a government document so it can be released.

The important feature is that it is an *act*. Classification does not expire on its own in India; there is no automatic rule releasing papers after thirty years as there is in Britain, and no equivalent of an American mandatory review. A document stays secret until a named official signs to say it should not.

Why it matters here: this means the default is silence, and silence requires nobody to decide anything. Chapter Eight's hidden assumption is entirely about what that default produces over sixty-three years.

8.3 — The reason given

In April 2010, the Defence Minister A.K. Antony told Parliament that the report could not be declassified because its contents were not only extremely sensitive but were of current operational value.

Take that statement seriously for a moment, because it deserves examination rather than mockery.

There is a real version of the argument. The report describes terrain, deployments and approaches along a frontier that is still disputed and still patrolled. Some of that geography has not changed. A detailed account of how particular positions were taken could, in principle, have present value.

Against that: the report concerns operations conducted in 1962 with bolt-action rifles, no helicopters to speak of, no satellites, no drones, no night vision and no modern communications, by armies that no longer exist in that form. The journalist who obtained a copy in the 1960s stated that the text nowhere touches on matters of current strategic or tactical relevance, and that the reasons for withholding it must be political.

8.4 — What happened in 2014

On **17 March 2014**, Neville Maxwell — an Australian journalist who had been the Delhi correspondent of *The Times* during the war, and who had used the report as a source for a book published in 1970 — posted the first part of it on his personal website.

Within hours the site was inaccessible in India.

The government has never authenticated the published text. Scholars who work on the subject generally treat it as genuine, and this part has used it on that basis, marked at each point.

So the position in 2026 is this. A report on a national defeat, written by two Indian officers, exists in a version that anybody outside India can read and that the Indian state will neither confirm nor release, having blocked access to it and having offered a reason that its own contents do not obviously support.

HOW WE ACTUALLY KNOW THIS

Everything in sections 8.1 to 8.4 is documented and none of it depends on the report's contents.

The authorship, the April 1963 submission and the two-copy custody are on the public record. The exclusion of Army Headquarters and civilian direction from the terms of reference is documented in the scholarly literature. Antony's statement was made in Parliament in April 2010 and is in the record. Maxwell's publication on 17 March 2014 and the blocking of his site are contemporaneous news events reported at the time in Indian newspapers, including editorials complaining about the block.

What this cannot show: what the full report says. Only Part One has been published. Whether a Part Two exists in the same form, and what it contains, is unknown outside the two offices holding the typed copies.

This is the reason every claim in Chapter Five sourced to the report carries an **ALLEGED** grade. It is the best evidence available and it is not authenticated evidence, and this series does not promote a source because its contents are convenient.

Which brings the question that has been asked in the Indian Parliament, in the courts and in the press for six decades without moving an inch.

THE ARGUMENT — SHOULD THE REPORT BE PUBLISHED?

Every government since 1963, of every party, has declined. That is a striking unanimity and it deserves the strongest possible statement of both cases.

KEEP IT CLOSED

An army's internal operations review is written on the understanding that it will be candid because it will be confidential. Publish one and you have destroyed the institution's ability ever to examine itself honestly again — every future review will be written for the archive. The frontier is still disputed and still live; some of the terrain assessments retain value. And the practical benefit is small, because the substance has been public since 1970 in Maxwell's book and since 2014 on his website. Publishing gains little and costs an institution's willingness to be honest with itself.

PUBLISH IT

The candour argument is the strongest one available and it fails on the facts: the report is already public in the form that matters, so the confidentiality it protects is already gone — everywhere except in India, where citizens are the only people prevented from reading an assessment of a defeat their own soldiers died in. The operational-value claim cannot survive sixty-three years and a change of weapon generation. And the terms of reference already excluded the civilian direction of the army, so the state is refusing to release a document that was forbidden in advance from examining the politicians.

Where things stand: the second side is stronger and the first side's institutional argument is real and is the only serious obstacle. The decisive point is the unanimity: every government since 1963, including several with every political incentive to embarrass the Nehru era, has kept it closed. That is evidence *against* the simple partisan explanation and *for* the institutional one — which is more interesting and more troubling, because it means the state's disinclination to publish an account of its own failure is not a Congress habit but an Indian one.

What would settle it: publication. Nothing else.

Why people care so much: because Part Two of this series found a commission report on Hyderabad withheld for sixty-four years, and this is the second time the same pattern has appeared in six parts.

Both sides of that argument, though, are doing something the evidence does not support: they are assuming somebody has been deciding.

THE HIDDEN ASSUMPTION

Everybody arguing about this document — those demanding release and those defending secrecy — assumes **that a secret is kept for the reason given.**

The demanders say the stated reason is a pretext concealing embarrassment. The defenders say it is genuine. Both are arguing about whether the official reason is true, and both accept that *a reason is what is doing the work.*

Often nothing is doing the work. A classification decision made in 1963 has a default: it stays. Reversing it requires somebody to take a positive decision, sign their name, and own whatever follows. Maintaining it requires nobody to do anything at all.

That asymmetry explains the unanimity better than any theory about protecting Nehru. Six decades of governments have not each independently concluded that release would harm the nation. Most of them have simply never had a minister for whom opening it was worth the afternoon, and the officials briefing each new minister inherit a file that says classified and have no reason to propose otherwise.

Which means the phrase “current operational value” should not be read as a lie. It should be read as **the sentence produced when somebody is required to give a reason for a decision nobody actually took.**

The consequence matters more than the diagnosis. If secrecy were sustained by a reason, it could be ended by defeating the reason. Because it is sustained by inertia, argument does nothing, and the document will stay closed until somebody’s political interest in opening it exceeds the cost of the signature. Sixty-three years suggests that has not yet happened to anybody.

This is the second time in six parts that a government-commissioned inquiry into a national catastrophe has turned out to be unavailable. Part Two found the Sunderlal report on Hyderabad withheld for sixty-four years. Part One’s rule was that when a state which counts everything has no count of something, somebody decided that. The corollary now needs stating: **when a state which investigates everything will not publish the investigation, that is the finding.**

REMEMBER THIS

Two officers, **April 1963, two typed copies.** The terms of reference excluded **Army Headquarters and the civilian direction of the army** — precisely where Chapter Five’s findings sit.

The stated reason for withholding it is “**current operational value**”, for a report on a war fought with bolt-action rifles. Maxwell published Part One on 17 March 2014 and his site was **inaccessible in India within hours.**

Every government since 1963, of every party, has kept it closed. That is evidence against a partisan explanation and for an institutional one, which is worse.

CHAPTER NINE

What Would Have Prevented It

The defence, at full strength. One of these four arguments is very strong indeed, and there is a settlement that was on the table in 1960 and refused.

9.1 — Four arguments for the defence

A book that cannot state the case against itself is an advertisement. Here are the four strongest arguments a serious defender of the Indian government's conduct would make.

One. China decided, and India could not have decided for it. The offensive of 20 October was planned over months, launched on two fronts simultaneously, and executed with a competence that does not come from improvisation. Whatever India did or did not do with its posts, the decision to attack at that scale was taken in Peking by people pursuing their own purposes. Blaming the victim for the burglar's decision is a category error, and much writing on 1962 — including some by the journalist whose leak this part relies on — commits it.

Two. The comparison is unfair. India in 1962 was fifteen years old. Its army had been physically divided in 1947, had fought in Kashmir, and had spent the intervening years on internal security. China's army had fought a civil war, then fought the United States to a standstill in Korea, and had been operating in Tibet at altitude for twelve years. These were not comparable instruments and no amount of Indian policy would have made them so by 1962.

Three. The territory was never held. Chapter Seven established it: the map barely moved. Aksai Chin was never administered by India, never garrisoned, never reachable. Calling 1962 a loss of territory describes the loss of a claim, which is a real thing and a much smaller thing.

Four, and this is the strong one. The correction was made and it worked. The army that was broken in 1962 fought Pakistan to a standstill in 1965 and won decisively in 1971. Mountain divisions were raised. Border roads were built. Equipment was bought. Intelligence was restructured. A country that suffers a catastrophic defeat and

rebuilds its military capacity inside a decade has done something most countries do not manage, and the government that did the rebuilding was the same party that had presided over the defeat.

That fourth argument is genuinely strong and this part concedes it. The failure was answered. The answer worked. Whatever else is in these chapters, the Indian state learned this particular lesson faster and more completely than it has learned most others in this series.

9.2 — The settlement that was available

Part One requires that a charge name an alternative that somebody proposed at the time. Here it is, and it is the most consequential item in the chapter.

In April 1960 Zhou Enlai came to Delhi. What was floated, in outline, was a package: China would accept the McMahon Line in the east, and India would accept Chinese control of Aksai Chin in the west. It was in that period that Zhou first used the phrase “line of actual control”.

Look at what that trade actually was. India would have received formal Chinese acceptance of the boundary in the sector containing people, towns, agriculture and a case built on the watershed and on a signed convention. It would have given up a claim to an uninhabited plateau it had never administered, which the other party already physically held and had built a road across.

India rejected it.

The reason was domestic and it traces directly to Chapter Three. By 1960, Parliament and the public had been told — all at once, in August 1959, after four years of silence — that Chinese forces occupied Indian territory. No government that had made that announcement could then sign it away. The concealment of 1958 produced the politics of 1960, and the politics of 1960 closed the settlement.

Grade: the fact of the 1960 discussions and the substance of what was floated are **SOLID** and well documented. Whether a formal offer would have been made had India signalled interest is **ALLEGED**, because it was never tested.

HOW WE ACTUALLY KNOW THIS

The 1960 talks are documented from several independent directions: Zhou's visit is a matter of record, the substance of what was discussed appears in the officials' reports published afterwards, and the phrase "line of actual control" enters the diplomatic vocabulary at exactly this point and can be dated from the correspondence.

The strongest evidence is the last of those. A phrase invented to describe a compromise position appearing in 1960 and surviving to the present day is a fossil of a negotiation that took place.

What it cannot show: whether China would have signed a formal agreement on those terms, or held to it. India did not test the proposition, so the record contains an outline and no offer. Any claim that a settlement was *available* in the strong sense is **ALLEGED** and this chapter marks it so.

Which leaves the hardest question in this part, and the one on which its whole charge rests.

THE ARGUMENT — COULD A SETTLEMENT HAVE BEEN REACHED IN 1960?

This is the alternative on which the whole charge in this part rests, so it gets the hardest scrutiny.

NO, AND THE PACKAGE IS A MIRAGE

China's position hardened continuously through this period and there is no reason to think a 1960 agreement would have held. Peking's actual objective was not a boundary but a demonstration of relative standing in Asia, which is why the offensive went far beyond the disputed strip. And no Indian government could have signed away Aksai Chin: it would have fallen, and the successor would have repudiated the agreement. An option that cannot survive the domestic politics of either party is not an option.

YES, AND THE DOMESTIC OBSTACLE WAS SELF-CREATED

The trade was rational for both parties, each was to receive the sector it cared about, and China proposed it rather than India. As for the domestic obstacle — it was manufactured in 1958 and 1959 by a government that concealed a fact for eighteen months and then released it into a public with no preparation. A Prime Minister who had told Parliament in 1958 that the road existed, that Aksai Chin was uninhabited, and that a negotiated line was the sane outcome would have had an entirely different country to negotiate in front of in 1960.

Where things stand: the second side is stronger and the first side's best point stands unrefuted — nobody can know whether China would have held to it. What can be established is that the option existed, was raised by the other party, was rejected, and was rejected for reasons the Indian government itself had created two years earlier. That satisfies Part One's test and it is the charge.

What would settle it: the record of the 1960 talks on both sides. India's is closed; China's is closed and likely to remain so.

Why people care so much: because the boundary as it stands today is approximately the package that was refused. India holds the east and China holds Aksai Chin. The difference is that in 1960 it was available by agreement and since 1962 it has been held by force, and every death on that frontier since has occurred inside the gap between those two things.

9.3 — What I would have to retract

Three things would break the argument of this part.

If the Henderson Brooks report, published in full, showed that **Western Command made no objection** to the Forward Policy, Chapter Five loses its central fact and becomes a much weaker chapter about hindsight.

If the cabinet record of late October 1962 showed that **the Chinese offer of 25 October carried conditions** making it unacceptable in a way public accounts do not capture, Chapter Six's argument box tips the other way.

If the record of the 1960 talks showed that **no package was ever on the table** and that Indian accounts have inflated a courtesy into an offer, then Chapter Nine's alternative disappears and with it Part One's test for calling any of this a blunder.

All three of those depend on files the Indian government holds and has not opened. I have written down what would prove me wrong before those files are opened, which is the only circumstance in which writing it down means anything.

THE HIDDEN ASSUMPTION

Everybody who argues about 1962 — his defenders, his critics, and the Chinese — assumes **that it was a failure of Nehru's China policy.**

The critical version: he was naive about China. The defensive version: he was right about China and betrayed. Both treat “China policy” as the unit that failed, which makes 1962 a specialised event about one relationship and one man's judgment of one country.

Look at the components. A warning that was delivered and not received. A professional assessment that a plan was not feasible, overruled by people without that expertise. A public position maintained after the private information contradicted it. An inquiry whose terms of reference excluded the decision-makers. A report kept closed for six decades.

Not one of those is about China. Every one of them is a property of how the Indian state processed inconvenient information, and this series has now found the identical pattern in three other places with no connection to each other: the Hyderabad report in Part Two, the Kerala dismissal in Part Three, and the licensing committees of 1965, 1967 and 1969 in Part Four — the last of these under a different Prime Minister, on a subject with no foreign policy content at all.

Which means 1962 is not a story about a man being wrong about a country. It is **the most expensive single test of a mechanism that was failing everywhere**, and it is only remembered as a China story because the failure happened to be measured by an army.

This weighs on my own book as much as on anybody's. It is much easier to write nineteen parts about people who made bad decisions than about a machine that could not be told anything. The first has villains. The second has a design flaw, and design flaws do not resign.

That is the case against this part, made as well as I can make it, and one of the four defences — the fourth — I think simply wins. The rest do not touch the specific charges: an agreement that reserved nothing in 1954, a fact concealed from Parliament for eighteen months, four warnings that were delivered and not received, a policy adopted against a professional assessment, and a ceasefire refused on 25 October. None of those depends on what China intended.

REMEMBER THIS

Four defences: **China decided and India could not decide for it; the armies were not comparable; the territory was never held; and the correction worked.** The fourth is strong and is conceded — the army that broke in 1962 won in 1971.

In **April 1960 a package was floated:** the McMahon Line in the east for Aksai Chin in the west. India refused, for domestic reasons its own concealment had created in 1958.

Today's boundary is approximately that package — held by force rather than agreement. Every death on that frontier since has occurred inside the gap between those two things.

CHAPTER TEN

An Honest List of What We Do Not Know

This part leans harder on a single unauthenticated document than any other in the series. Here is exactly how much weight that can bear.

10.1 — Genuinely unknown

Six things in this part cannot be established, and five of the six are unknown because a file is closed rather than because the question is hard.

What the Henderson Brooks report actually says in full. Part One of it has been published by a journalist and is generally treated as authentic. Whether the published text is complete and accurate, and what any further part contains, is not known.

Why it is unknown: two typed copies, both in government custody, closed for sixty-three years. This is the *decided* category in its purest form, and Chapter Eight argues the decision is inertia rather than a reason.

What Nehru believed about the road between 1958 and 1959. The record shows he received the Foreign Secretary's note, authorised a ground party and refused air reconnaissance.

Why it is unknown: a document records a decision and not a state of mind. The refusal is equally consistent with complacency, with not wishing to provoke, and with not wishing to obtain proof that would force a public position. I have deliberately not chosen between those and no honest account can.

Whether the four warnings reached him in a form he registered. Chapter Four establishes that each was made. It does not establish that any was read.

Why it is unknown: the Prime Minister's office files for the period are not open.

What was said in cabinet on 25 to 27 October 1962. The Chinese offer of a ceasefire and mutual withdrawal was rejected. By whom, on what advice, and against what internal objection, is unknown.

Why it is unknown: cabinet records closed. This is the single gap that would most change Chapter Six.

Whether the 1960 package would have been formalised. The discussions happened and the shape of the trade is documented. Whether China would have signed, and held, was never tested because India did not explore it.

Why it is unknown: it is a counterfactual, and additionally the Chinese record is closed. Part One's warning about counterfactuals applies, and Chapter Nine's charge is deliberately built on the *existence* of the option rather than on its outcome.

What China intended. Whether the offensive was a limited punitive operation from the outset, or an operation whose scope was decided as it went, is not established.

Why it is unknown: the Chinese decision-making record is closed and is likely to remain so indefinitely. Every confident Indian statement about Chinese intentions in 1962 is an inference.

10.2 — Solid

The 1954 agreement. Signed 29 April 1954, valid eight years, lapsed 1962. Its text describes Tibet as “the Tibet Region of China”. It surrendered the military escorts, the postal, telegraph and telephone services, the rest houses, and the status of the Lhasa mission. It contains nothing about the boundary. All of this is a published treaty that anybody can read.

The road. Constructed through the mid-1950s, completed in the second half of 1957, formally opened at Gartok on 6 October 1957, and reported by Chinese state media in January 1958. Roughly 160 kilometres of a 1,200-kilometre highway crosses Aksai Chin.

Nehru's statement to Parliament in August 1959 that the highway had been built through Indian territory. Parliamentary record, with a date.

The Forward Policy meeting of 2 November 1961 and its attendance — Menon, Desai, Thapar and Mullik, in the Prime Minister's office.

The war's chronology. Chinese occupation of Thagla on 8 September 1962. The attack on 20 October. Tawang vacated on 23 October and taken on the 24th. The halt and the ceasefire offer of 25 October. The resumption on 14 November. The unilateral ceasefire of 21 November, with withdrawal in the east and retention of Aksai Chin.

The casualty figures from the Indian official history: approximately 1,383 killed, 1,047 wounded, 1,696 missing, 3,968 captured.

The letters of 19 November 1962 from Nehru to Kennedy requesting American combat aircraft. Declassified, and their existence is not disputed.

Everything in Chapter Eight about the report's existence and status. Authorship, April 1963 submission, two copies, the exclusion of Army Headquarters and civilian direction from the terms of reference, Antony's statement to Parliament in April 2010, Maxwell's publication on 17 March 2014, and the blocking of the site — reported at the time in Indian newspapers.

10.3 — The one file

Five of the six unknowns in section 10.1 sit in Indian government custody.

The Henderson Brooks report is the smallest of them and the most consequential, because it is two typed volumes in two known offices, written by two Indian officers, about a war fought sixty-four years ago with weapons no army now uses, and it has already been read by anybody outside India who wanted to.

Everything this part says about what the army knew and said internally carries an **ALLEGED** grade because of that single decision. Publish the report and roughly a third of this part moves up two grades or is refuted. Either outcome would be an improvement on the present position, in which the only people who cannot assess their own country's account of its own defeat are its citizens.

I would rather end a part by naming the document than by pretending the grade does not matter.

REMEMBER THIS

Genuinely unknown: **what the full report says, what Nehru believed, whether the warnings were registered, what was said in cabinet on 25–27 October, whether the 1960 package would have held, and what China intended.** Five of those six are closed files, not hard questions.

Solid: **the 1954 treaty text, the road's construction and announcement, the August 1959 statement, the meeting of 2 November 1961, the war's chronology, the casualty figures, the Kennedy letters, and everything about the report's status.**

One document would move a third of this part up two grades or refute it. It is two typed volumes in two known offices, about weapons no army now uses.

REFERENCE

Timeline, 1950–1963

Dates only. The arguments are in the chapters.

DATE	WHAT HAPPENED
1950	Chinese forces enter Tibet. India's northern buffer ends and it acquires a long frontier with a large unified state for the first time.
29 Apr 1954	The Agreement on Trade and Intercourse between the Tibet Region of China and India. India gives up its escorts, post and telegraph services, rest houses and mission status. The boundary is not mentioned. Valid eight years.
1955	General Thimayya suspects a road is being built. A British mountaineer goes to look with the knowledge of military intelligence, is detained by the Chinese, and returns with a report.
1956	Brigadier S.S. Malik, Military Attaché in Peking, passes information about the road to Military Headquarters.
6 Oct 1957	The Xinjiang–Tibet highway is formally opened with a ceremony at Gartok. Twelve trucks run from Yarkand.
Jan 1958	The China News Agency announces the highway has been open for two months and is in full use.
Early 1958	Foreign Secretary Subimal Dutt writes to Nehru that the road almost certainly crosses Aksai Chin, and proposes reconnaissance. Nehru authorises a ground party and declines air reconnaissance.
1958	Indian ground patrols enter the area. Some are detained by Chinese forces.
Mar 1959	The Dalai Lama flees to India. Relations deteriorate sharply.
Aug 1959	Nehru tells Parliament the highway has been built through Indian territory — eighteen months after the Foreign Secretary's note.
Apr 1960	Zhou Enlai visits Delhi. A package is floated: the McMahon Line in the east for Aksai Chin in the west. Zhou first uses the phrase "line of actual control". India does not pursue it.
Early 1961	Lieutenant General B.M. Kaul is appointed Chief of General Staff.
2 Nov 1961	In the Prime Minister's office, Menon, Desai, Thapar and Mullik decide to push forward posts into contact with Chinese forces. Western Command's objection on numbers, support and logistics is overruled by Army Headquarters.

DATE	WHAT HAPPENED
Jun–Jul 1962	Dhola Post established. Chinese forces surround an Indian position in the Galwan valley; a clash follows near Pangong.
8 Sep 1962	About 600 Chinese troops occupy the Thagla ridge. 7 Infantry Brigade is ordered to evict them.
20 Oct 1962	Simultaneous Chinese offensives east and west, opening with artillery. 7 Infantry Brigade is overrun within hours.
22–24 Oct 1962	Advance on Tawang. A platoon of 1 Sikh holds at Bum La for over eight hours. Tawang is vacated on the 23rd and falls on the 24th.
25 Oct 1962	China halts and offers a ceasefire with mutual withdrawal twenty kilometres behind the line of actual control, plus talks. India rejects it.
14–21 Nov 1962	The second phase. Indian positions collapse across a broad front. Rezang La is held to the last by a company of 13 Kumaon. Chinese forces reach the edge of the Assam plain; Tezpur is partly evacuated.
19 Nov 1962	Nehru writes twice to President Kennedy, asking for American combat aircraft.
21 Nov 1962	China declares a unilateral ceasefire, withdraws in the east and retains Aksai Chin.
22 Nov 1962	General Thapar resigns. Krishna Menon has already left the Defence Ministry.
Apr 1963	Lieutenant General Henderson Brooks and Brigadier P.S. Bhagat submit their operations review. Two typed copies. It is not published.
Apr 2010	Defence Minister A.K. Antony tells Parliament the report cannot be declassified because its contents are of current operational value.
17 Mar 2014	Neville Maxwell publishes Part One of the report on his website. The site becomes inaccessible in India within hours.

Part Seven starts here. It leaves China and takes the other frontier — the wars with Pakistan of 1947–48, 1965 and 1971, the Simla agreement, and the governing of Kashmir up to the point at which it stopped working.

REFERENCE

Glossary

Every hard word used in this part, in plain English.

WORD	WHAT IT MEANS
Aksai Chin	A high cold desert of about 38,000 square kilometres between Ladakh and Xinjiang. Claimed by India, held by China, and the only practicable road route between Xinjiang and western Tibet.
Chief of General Staff	A senior post at Army Headquarters responsible for operations and planning. Not the head of the army, but close to the centre of what it decides to do.
Forward Policy	The decision of 2 November 1961 to establish small Indian posts in disputed territory, including behind Chinese positions, to demonstrate occupation of ground India claimed.
Line of actual control	Where the two armies are, as opposed to where either says the boundary is. The phrase was first used by Zhou Enlai around 1960 and is still the operative term today.
McMahon Line	The eastern boundary agreed at Simla in 1914 between British India and Tibet, broadly following the Himalayan watershed. China never ratified the convention.
NEFA	The North East Frontier Agency, the administrative name for what is now Arunachal Pradesh, and the eastern theatre of the 1962 war.
Panchsheel	The five principles of peaceful coexistence set out in the preamble to the 1954 agreement, and the centrepiece of Indian foreign policy for the eight years that followed.
Penny packets	A military term for splitting a force into small scattered groups rather than concentrating it. Such posts can watch ground; they cannot hold it.
Simla Convention 1914	The conference at which the McMahon Line was agreed between British India and Tibet. Its status turns on whether Tibet was competent to conclude treaties, which China denies.
Sovereignty	Full authority over a territory: you govern it, its foreign relations are yours, and nobody else has a standing claim.
Suzerainty	A weaker authority: the outside power controls external affairs and defence while the territory runs itself internally.

WORD	WHAT IT MEANS
Terms of reference	The written list of questions an inquiry is appointed to answer. The quietest way to control an investigation is to draft these carefully, and Chapter Eight is the clearest example in this series.
Watershed principle	The idea that a mountain boundary should follow the highest ridge, where water begins flowing one way rather than the other. India's strongest argument in the east; irrelevant to Aksai Chin, which is a plateau.

ABOUT

About the Author

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I write long-form research on Indian history, society, belief and public life, and publish it at misterlove.in under the name The Living Archive. Before this series I completed a fourteen-part history of Punjab and a sixteen-part study of the rules societies place on women.

Two things about this part need declaring. The first is that a substantial share of its most useful material comes from a leaked document published by Neville Maxwell, whose own book on this war argues a case considerably more favourable to China than I find defensible, and Chapter Nine says so. Using a source does not mean adopting its conclusions, and I have tried to take the document's factual content while rejecting the frame its publisher built around it.

The second is that this is a war Indians are taught about as children, and I was one of them. The version I grew up with had an unprovoked invasion, a betrayed friendship and heroic soldiers. The third of those is true and Chapter Six says so at length. The first two are more complicated than I was told, and the specific thing I did not know until I researched this part is that a ceasefire was offered on 25 October and refused. If any chapter here is wrong because of what I wanted to find, it will be Chapter Six.

THE RULES OF THIS PROJECT

The Living Archive

Everything published under this name follows three rules.

Plain language, undiminished content. The words are as simple as I can make them. The argument is not simplified with them.

Show the evidence, and show what it cannot prove. Every serious claim names what it rests on, and every source is described honestly, including what it is blind to.

Give every side its strongest case. Where people who know the material disagree, both positions appear at full strength, and I say when the evidence does not settle it.

PLEASE READ THIS

A Word on Sources

This part carries no footnotes. It rests on the 1954 treaty text, the white papers of notes exchanged between India and China laid before Parliament, the parliamentary record of Nehru's statements, the Indian official history of the war, the declassified Nehru–Kennedy correspondence, contemporaneous newspaper reporting of the 2014 publication, and archival research by historians working on Indian records.

The grading in this part matters more than in any other. The diplomatic record is published and solid. The military record is closed, and everything sourced to the army's own inquiry is marked **ALLEGED** — not because I doubt it, but because the state that holds it will neither confirm nor release it, and a series that grades its evidence cannot make an exception for a document whose contents suit its argument.

Corrections. If something here is wrong, write to me. Later editions will say what was changed and who caught it.

Lovepreet Singh

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NEXT

What Comes Next

Part Seven — Pakistan, Kashmir and the Wars

Part Seven takes the other frontier, from 1947 to 1989. It asks:

- Part Two left the Kashmir plebiscite as an open promise. When exactly did it stop being live, what was said at the time, and was the change ever announced?
- Article 370 was placed under a heading containing the word “temporary”. What was done to it, order by order and amendment by amendment, and by whom?
- Sheikh Abdullah was made head of the state’s administration in 1947 and imprisoned in 1953. On what grounds, on whose decision, and what did that do to the politics of the Valley?
- India won in 1971 as completely as any country has won a war. What did it ask for at Simla in 1972, and why did it not ask for more?
- The 1987 state election is widely described as rigged. What is the actual evidence, who were the losing candidates, and what did they do next?
- Part Six found a warning delivered and not received. Does the same pattern appear on this frontier, and if so in which years?

Questions, not topics. If any of them is answered badly, you will be able to tell.

END OF PART SIX OF NINETEEN · THE CONGRESS RECORD · THE LIVING ARCHIVE · MISTERLOVE.IN

THE LIVING ARCHIVE

PART SEVEN OF NINETEEN

The Congress Record

Part Seven — Pakistan, Kashmir and the Wars

A promise that was never kept and never withdrawn. A Prime Minister dismissed without being allowed to face his own assembly. A constitutional provision hollowed out over forty years by orders nobody read. And an election whose losing candidates crossed a border.

Chapter Eight concedes three things before the verdict, and one of them removes an event most accounts of this subject place at the centre of the charge. What survives is smaller and much harder to answer.

WRITTEN AND RESEARCHED BY

Lovepreet Singh

INDIA · 1947 TO 1989

MISTERLOVE.IN

BEFORE WE BEGIN

Where We Left Off

Part Six took the northern frontier. This part takes the western one, and it is the only place in this series where a promise made in Part Two comes due.

Four findings carry into this part, and the first is a debt.

Part Two entered four forward promises into the record. One of them was the plebiscite India offered the Security Council in January 1948. Part Two said Part Seven owed an account of when that offer stopped being live. Chapter One is that account, and the answer is stranger than either side of the argument expects.

Article 370 was placed under a heading containing the word “temporary”. Part Two also left that owing. Chapter Three traces what happened to it, order by order, and finds that the interesting question is not 2019 at all.

A warning is received only where somebody has the authority to act, an incentive to believe, and a decision it changes. Part Six’s finding, from four warnings about a road. Chapter Seven applies the same test to a politician who said in 1987, in public and in almost exactly these words, what was going to happen.

Article 356 was used against an elected state government for the first time in 1959. Part Three established the precedent and said every later use stood on it. This part contains the use that mattered most, and it came six years earlier in a different form — which is why Chapter Two is where it is.

One thing about the scope. This part stops in 1989. What happened in the Valley from January 1990 onwards is a different story with a different cast, and Chapter Eight explains why a substantial piece of it does not belong in a book about Congress at all.

HOW TO READ THIS BOOK

The Six Boxes

Six coloured boxes run through the series, each doing one job. Here they are with examples from the material ahead.

A **Word Box** explains a hard word the moment it first appears.

WORD BOX

Presidential Order: in the context of Jammu and Kashmir, an order made by the President of India under Article 370 extending a provision of the Indian constitution to the state.

It is not an Act of Parliament. It is not debated, not voted on, and not reported. It is signed, published in the gazette, and takes effect.

Between 1954 and the 1990s there were dozens of them. Together they did more to Article 370 than anything else that has ever happened to it, and almost nobody in India — including people with passionate views about the subject — could name three.

Why it matters here: Chapter Three is about an instrument that changed a constitutional settlement by accumulation, without a single vote.

An **In Real Terms** box turns a number too big to picture into something with a body.

IN REAL TERMS

Sheikh Abdullah was imprisoned for about eleven years, from 1953 to 1964.

Eleven years is a schoolchild's entire education. It is longer than the time between the first and second world wars. It is longer than Nehru's remaining life after the arrest.

The man being held was the leader of the largest popular movement in the state, who had supported accession to India when it counted, who had been made head of its administration by the Maharaja at Delhi's own urging, and who had never been convicted of anything.

A **How We Actually Know This** box shows the physical evidence and then says what it cannot prove.

HOW WE ACTUALLY KNOW THIS

The evidence for this part divides very cleanly, which is unusual.

The constitutional record is complete. Every Presidential Order is published in the gazette with a date and a text. Anybody can count them, read them, and see exactly which provisions were extended and when. Nothing in Chapter Three requires interpretation.

The electoral record is contested but well attested. For 1987 there are results, contemporaneous newspaper reports, named polling agents, named candidates, and admissions by participants including the beneficiary.

The diplomatic record is partly closed. What was said at Simla in the room, and what was agreed orally, rests on memoirs and on one declassified American telegram.

What none of it can show: what was in anybody's mind. This part records decisions and their consequences and repeatedly declines to guess at motive.

An **Argument** box appears where serious people disagree, each side at its strongest.

THE ARGUMENT — WAS A PLEBISCITE IN KASHMIR EVER ACTUALLY POSSIBLE?

Everything in Chapter One depends on this and it is not the simple question either side pretends.

IT WAS POSSIBLE AND INDIA AVOIDED IT

India offered it, at the Security Council, in writing, in January 1948. The UN built a sequence around it in April 1948. As late as August 1953, one week after dismissing Sheikh Abdullah, India and Pakistan jointly agreed to appoint a Plebiscite Administrator within six months. That is not the conduct of a state that thinks the thing is impossible; it is the conduct of a state that keeps agreeing and never delivering. What changed was not feasibility but the expected result.

IT WAS NEVER AVAILABLE AND EVERYONE KNEW IT

Resolution 47 required Pakistan to withdraw its irregulars first. It never did, and no plebiscite could be held on territory a foreign army occupied. Beyond that, the practical problem was insoluble: who votes? The state's population had been displaced in both directions since 1947, the territory was split, and no register existed. A vote conducted under those conditions would have produced a result neither side accepted, which is worse than no vote.

Where things stand: the second side is right that it was never *deliverable* after 1948, and the first side is right that India kept saying it would happen for years after that was obvious. Both can be true, and their being true together is what produces the finding in Chapter One, which is about a promise that was neither kept nor withdrawn.

What would settle it: nothing. The counterfactual is unmeasurable and Part One explained why.

Why people care so much: because Pakistan's entire diplomatic case rests on the offer having been made, and India's rests on the conditions never having been met, and both of those are accurate statements about the same document.

A **Hidden Assumption** box digs out a belief sitting underneath an argument that *both sides accept without discussing*.

THE HIDDEN ASSUMPTION

Everyone who argues about Kashmir — in Delhi, in Islamabad and in Srinagar — assumes **that the dispute is about Kashmir.**

The Indian version: it is a territorial claim by a neighbour. The Pakistani version: it is an unresolved question of self-determination. Both treat the territory as the object.

For both states it has functioned primarily as a *domestic* instrument, and it has done so continuously for seventy-nine years. In Pakistan it justified the army's central position in the state and the budget that goes with it. In India it has been available to every government as the subject on which any opposition can be called unpatriotic, and Part Nine will show what that is worth to a government in difficulty.

The test of this is what happens when it would be convenient to settle. Chapter Six describes India holding 93,000 prisoners and the strongest hand any subcontinental power has ever held, and coming away without a settlement. Chapter Nine asks whether a settlement was ever actually wanted by anybody with the power to make one.

Why neither state can drop the assumption: a government that admitted the dispute was useful to it at home would have to explain the dead. So both describe a territorial question, and both behave as though the territory were the least important thing about it.

The people for whom it genuinely is about the territory are the ones who live there, and they are the only party to the dispute who have never been asked anything.

And every chapter closes with a **Remember This** box: the chapter in the plainest words available.

REMEMBER THIS

Two debts from Part Two come due here: **the plebiscite offered in January 1948**, and **Article 370's "temporary" heading**. Chapters One and Three pay them.

The constitutional record is **complete and public** — every Presidential Order is in the gazette. Chapter Three requires no interpretation at all, only counting.

For both India and Pakistan, Kashmir has functioned mainly as a domestic instrument. The only party for whom it is genuinely about the territory has never been asked anything.

Part Seven

Contents

1. The Promise That Decayed

January 1948 to the middle 1950s · what was offered and on what condition · the agreement of August 1953 · a promise neither kept nor withdrawn, and no date anywhere

2. 1953: The Man Who Signed

The Delhi Agreement of July 1952 · dismissed on 9 August 1953 without a vote · eleven years · the case that was dropped and what it had been for

3. The Hollowing

The order of 1954 and the dozens that followed · Article 356 arrives in 1964 · Prime Minister becomes Chief Minister in 1965 · what was left by 1975

4. 1965

Infiltration in August · the rising that did not happen · the crossing of the international border · Tashkent, and what was handed back

5. 1971

Ten million refugees · the eight months of preparation · thirteen days · the most complete victory any Indian government has ever had

6. Simla

Ninety-three thousand men and five thousand square kilometres · what India asked for · bilateralism, which was a real gain · the assurance that was not written down

7. The Elections

1977, which was clean · 1983 and the accord that preceded it · 23 March 1987 · what the losing candidates did next

8. What Does Not Belong Here

January 1990 and who was governing · Pakistan's own agency · the Valley's own politics · what is left of the charge

9. What Would Have Prevented It

The defence at full strength · the settlements that were available and when · four things that would have had to be different · what I would have to retract

10. An Honest List of What We Do Not Know

Genuinely unknown, and why · solid, and why it is solid · the one count nobody has ever made

CHAPTER ONE

The Promise That Decayed

India offered a plebiscite in January 1948 and has never held one. It has also never withdrawn the offer. There is no date on which it ended, because nothing ended it.

1.1 — What was offered

Part Two established the sequence and this chapter picks it up. India took the Kashmir dispute to the Security Council on 1 January 1948, under Article 35 of the Charter, which sits in the half that produces recommendations rather than orders.

In its complaint India said two things. That Pakistan was assisting an armed invasion of Indian territory. And that although the accession was legally complete, India was prepared to hold a plebiscite to confirm the wishes of the people once conditions allowed.

The second was volunteered. Nobody demanded it. It was offered as evidence of good faith and Part Two called it giving away the best card on the first day.

Resolution 47, in April 1948, built a sequence on it: Pakistan withdraws its irregulars, India then reduces its forces, and a plebiscite follows under United Nations administration.

The first step never happened. So on the strict terms of the resolution, India's obligation never matured, and that is India's answer to this day. It is a good answer and it is not the whole of the matter.

1.2 — What was still being said in 1953

Here is the fact that makes this chapter necessary.

On **16 August 1953** — one week after the events described in Chapter Two — India and Pakistan held bilateral talks in Delhi and jointly agreed to appoint a **Plebiscite Administrator within six months**.

Read the date twice. Five and a half years after the offer, with Pakistani forces still in occupation of part of the state and therefore with the precondition still unmet, the Indian government was agreeing bilaterally to a timetable for the machinery of a vote.

No Plebiscite Administrator was appointed. No date was set. Nothing further happened.

1.3 — When did it stop?

Part Six's opening question for this part was: when exactly did the plebiscite stop being live, and was the change ever announced?

The answer, after going through the record, is that **there is no such moment**.

Nobody stood up and said the offer was withdrawn. No note was sent to the Security Council. No statement was made to Parliament announcing a change of policy. Instead the position moved by degrees, over about a decade, through a series of positions each of which was defensible on its own.

The precondition was not met, so the obligation had not arisen. Then: the state had a Constituent Assembly, which ratified the accession, and that was an expression of the people's will. Then: circumstances had changed too much for a vote to be meaningful. Then: the matter was settled and there was nothing to discuss. Then, after 1972: everything was bilateral, and the Security Council resolutions were superseded.

Each of those is arguable. Not one of them is a withdrawal. At no point did any Indian government say: *we offered this and we are no longer offering it, and here is why*.

WORD BOX

Lapsed: a promise that quietly stops applying because a condition was never met or because time passed, without anybody cancelling it.

The difference from a broken promise matters. A broken promise has a moment and somebody who broke it. A lapsed one has neither, which means there is nothing to apologise for, nobody to blame, and no date on which anybody has to explain anything.

Why it matters here: this is the most consequential lapsed promise in Indian history, and Part One warned that a promise which is neither kept nor withdrawn is a third thing that this series would name whenever it found one.

What that leaves behind is not an ordinary grievance, and the difference is worth feeling rather than merely reading.

IN REAL TERMS

Imagine being told, at twenty, that a decision about the place you live will be put to you.

Nobody sets a date. Every few years the assurance is repeated in slightly weaker terms. Then it stops being repeated. Nobody ever tells you it has been cancelled, so there is never a day on which you can be angry about a decision, complain about a decision, or accept a decision.

You are seventy-eight now. The thing was never refused. It was never granted. There is no letter to frame and no hearing to attend.

That is not the same experience as being told no, and the difference is the whole of the next box.

Which points at something both sides of this argument take for granted.

THE HIDDEN ASSUMPTION

Everybody arguing about the plebiscite — Indian, Pakistani and Kashmiri — assumes **that it was withdrawn.**

The Pakistani version: India reneged. The Indian version: India was released from it because the condition failed. Both are describing an obligation that ended, and they disagree only about whether it ended honourably.

It did not end. There is no document, no date, no statement and no decision. What happened is that a promise stopped being mentioned, and then stopped being expected, and then became something only one party brought up — at which point raising it was itself evidence of hostile intent.

This matters more than it looks, and here is why. An obligation that is formally withdrawn can be argued about, compensated for, replaced with something else, or forgiven. An obligation that decays cannot be any of those things, because there is nothing to negotiate *about*. It leaves a permanent grievance with no procedure attached to it.

And it produces a specific and very durable political effect on the ground. A population told for years that it would be consulted, and then never told that it would not be, has not been refused. It has been left waiting, and waiting has no end and no appeal. Chapter Seven is about the last occasion on which that population tried a different method.

Why neither state will name the decay: India cannot say the offer was withdrawn without conceding it was once binding. Pakistan cannot say it lapsed without losing its case. So both describe an ending that never occurred, and the promise sits there, seventy-eight years old, technically outstanding.

One qualification before the summary, because this chapter can be read as harsher than it is. Nothing here says India was obliged to hold a plebiscite; Resolution 47's precondition genuinely failed, and that is a complete legal answer. The finding is about the *form* of the ending, not the fact of it. A state that had said plainly in 1954 that the offer was no longer on the table would have faced a furious argument and would have been in a much stronger position for the next seventy years than one that simply stopped mentioning it.

REMEMBER THIS

India **volunteered** the plebiscite at the Security Council in January 1948. Resolution 47 made it conditional on a Pakistani withdrawal that never happened, which is India's answer and is a good one.

On **16 August 1953**, five years later, both countries jointly agreed to appoint a Plebiscite Administrator within six months. Nothing followed.

There is no date on which the offer ended, because nothing ended it. A promise that decays leaves a grievance with no procedure attached — nothing to negotiate about, and no appeal.

CHAPTER TWO

1953: The Man Who Signed

The most popular leader in Kashmir supported accession when it mattered, was made head of its administration at Delhi's urging, and spent eleven years in prison without being convicted of anything.

2.1 — Who he was

Sheikh Mohammad Abdullah led the National Conference, which had spent the 1930s and 1940s agitating against the Maharaja's rule. It was Muslim-led, explicitly secular, and hostile to the Muslim League — which is why, in 1947, it was the single most valuable asset India had in the Valley.

Part Two set out why. India's legal case rested on a signature by a Hindu autocrat over a Muslim-majority population. What made that case politically survivable was that the largest popular movement in the state supported it.

He was made Head of the Emergency Administration on 30 October 1947 by the Maharaja, at Delhi's urging. He became Prime Minister of the state in March 1948.

2.2 — The Delhi Agreement

By 1952 the relationship was under strain from two directions at once, and both belong on the page.

From Delhi's side, Abdullah was suspected of drifting towards a demand for something more than autonomy. His speeches were read as leaving the door to independence open, and Nehru — who was personally close to him — wanted a clearer commitment.

From Srinagar's side, the pressure ran the other way. Article 370 was under attack in Indian politics from those who wanted the state absorbed like every other princely state, and Abdullah was being asked to defend an autonomy that was already being questioned in Delhi.

The result was the **Delhi Agreement of 24 July 1952**, which set out what the state would keep and what would pass to the Union. It conceded a good deal and it settled the question for about a year.

2.3 — 9 August 1953

WORD BOX

Floor test: a vote in a legislature to establish whether a head of government still commands a majority.

It is the simplest procedure in parliamentary government and it exists precisely because “he has lost the confidence of his colleagues” is a claim anybody can make about anybody. The vote converts an assertion into a fact in about an hour, in public, with the result recorded.

Why it matters here: everything defensible about the events of 9 August 1953 would still have been available after a floor test, and everything indefensible about them follows from there not being one.

On **9 August 1953**, Sheikh Abdullah was dismissed as Prime Minister of Jammu and Kashmir by the head of state, Karan Singh — the son of the Maharaja whose signature had brought the state into India — on the ground that he had lost the confidence of his cabinet.

He was arrested the same day. **Bakshi Ghulam Mohammad**, his own deputy since 1948, was installed in his place.

The constitutional objection is not complicated and it is the whole of the charge in this chapter.

He was not allowed to test his majority on the floor of the assembly.

If a head of government has lost the confidence of his legislature, there is a procedure for establishing that, and it is public, quick and unarguable. It was not used. A head of state appointed by the Union declared the confidence gone and appointed a successor, and the person best placed to disprove it was in custody before he could.

Thousands of his supporters were detained. In 1958 a prosecution was begun — the Kashmir Conspiracy Case — alleging conspiracy against the state. The trials ran for years. In 1964 Nehru had the case dropped and Abdullah released.

He was never convicted of anything. He was imprisoned for approximately eleven years and then let go, and the state that held him abandoned the case rather than losing it.

HOW WE ACTUALLY KNOW THIS

The bare facts here are not contested by anybody, including by those who defend the dismissal. The date, the ground given, the absence of a floor test, the identity of the successor, the length of the detention and the abandonment of the prosecution are all matters of record.

What is contested is Delhi's role. That Bakshi acted with the support or knowledge of the central government is asserted by most historians of the period and denied by nobody in a form that survives examination. But there is no released Indian document ordering it, and there may never have been one — this is precisely the kind of arrangement that does not require a written instruction.

Grade: the dismissal and detention are **SOLID**. Central authorship is **ALLEGED**, and this chapter's charge does not depend on it, because a Union-appointed head of state acting alone is a sufficient constitutional problem on its own.

The length of the detention is easy to state and hard to feel, so here it is against something familiar.

IN REAL TERMS

Put the eleven years against the life of the man holding him.

Abdullah was arrested in August 1953. Nehru died in May 1964, having ordered the case dropped and the prisoner released only months before.

So the detention lasted almost exactly as long as the remainder of the life of the Prime Minister who had described him as a friend, had urged the Maharaja to install him in 1947, and had built India's political case in Kashmir on him.

The two men had known each other for twenty years before it started. That is what makes 1953 a harder story than either the Indian or the Kashmiri version allows.

Which leaves the question this chapter exists to put.

THE ARGUMENT — WAS THE DISMISSAL JUSTIFIED?

The defence of 1953 is stronger than critics of it usually allow, and it deserves stating properly.

IT WAS NECESSARY

Abdullah had begun to talk about independence, in a state that had acceded to India, on a frontier where a war had recently been fought and where Pakistan was actively pressing a claim. A head of government of a state within the Union openly exploring secession is not an ordinary political disagreement; it is the one thing a federation cannot accommodate. His own cabinet colleagues had turned against him, which is why the ground given was loss of confidence rather than anything else, and Bakshi was not an outsider imposed by Delhi but the deputy who had served under him for five years.

THE METHOD DESTROYED WHAT THE OBJECT WAS MEANT TO PROTECT

Grant every word of that. There was still a procedure. A vote on the floor would have removed him lawfully, in a day, with the same outcome and none of the consequences — and if he would have won that vote, then he had not lost his cabinet's confidence and the stated ground was false. Instead India demonstrated, in the one state whose accession rested on popular consent, that its popular leader could be removed by a Union appointee and held for eleven years without conviction. Every subsequent Indian claim that the Valley's future would be decided by its people had to be made against that fact.

Where things stand: the second side is stronger, and the reason is that the first side's case is entirely about the *objective* and the objection is entirely about the *method*. Nothing in the security argument required skipping a floor test. Nothing in it required eleven years of detention without conviction. And this series has now seen the same shape twice: Part Three's Kerala dismissal in 1959, where an elected government was removed by a centre that had organised the agitation against it, and here, six years earlier, in a form with no constitutional dressing at all.

What would settle it: the numbers in the assembly in August 1953. If he commanded a majority, the stated ground was false and the case collapses entirely. Nobody has assembled the count.

Why people care so much: because Abdullah is either the man who delivered Kashmir to India and was betrayed for it, or the man who nearly took it out again — and Indian and Kashmiri accounts have needed different answers for seventy years.

One further consequence, which runs into everything after it. On 9 August 1955, exactly two years later, Abdullah's lieutenant Mirza Afzal Beg founded the **Plebiscite Front**, demanding both a vote on accession and Abdullah's release. The dismissal did not remove the demand of Chapter One from Kashmiri politics. It gave it an organisation and a martyr.

REMEMBER THIS

Abdullah led the movement whose support made India's legal case politically survivable, and was made head of the administration **at Delhi's urging** in October 1947.

On **9 August 1953** he was dismissed by a Union-appointed head of state for losing his cabinet's confidence, and **was not permitted to test it on the floor**. He was held about eleven years and **never convicted**; the case was dropped in 1964.

The objective may have been necessary. **Nothing in it required skipping the vote or the eleven years**. And two years later the plebiscite demand acquired an organisation and a martyr.

CHAPTER THREE

The Hollowing

Article 370 was not removed in 2019. It was emptied over four decades by orders that were signed rather than voted on, and by the time anybody abolished it there was very little left to abolish.

3.1 — What it originally did

Part Two set out the original arrangement. Article 370 gave Jammu and Kashmir a limited relationship with the Union: Parliament could legislate for the state only on the subjects covered by the Instrument of Accession — defence, external affairs and communications — and anything beyond that required the state government's concurrence.

The state had its own constitution and its own constituent assembly. Its head of state was called the **Sadar-i-Riyasat** and was elected by the state legislature. Its head of government was called the **Prime Minister**.

Those two titles are worth noticing. They are not decoration. A state with a Prime Minister is making a statement about what kind of unit it is.

3.2 — The instrument

Article 370 contained the mechanism of its own dismantling, and this is the part almost nobody knows.

The article allowed the President, by order, to extend provisions of the Indian constitution to the state — with the concurrence of the state government. That mechanism was intended as a way of building the relationship gradually by agreement.

It became the way the relationship was consumed.

The **Constitution (Application to Jammu and Kashmir) Order of 1954** was the first big one. It extended a large body of central provisions, and it inserted Article 35A, which protected the state's definition of who was a permanent resident.

Dozens of further orders followed over the next four decades. Each extended something: a chapter of the constitution, an article, a jurisdiction, a central authority. Each was made under Article 370. Each required the concurrence of the state government of the day — and Chapter Two has just described how state governments in Kashmir came to be constituted.

That is the mechanism in one sentence. **The centre secured a compliant state government, and the compliant state government concurred in the extension of central power.** Nothing illegal occurred at any point.

IN REAL TERMS

Imagine a tenancy where the landlord may only enter the two rooms named in the agreement, and may enter any other room with the tenant's written permission.

That is a real protection, as long as the tenant is somebody the landlord cannot choose.

Now suppose the landlord acquires the power to decide who the tenant is. Nothing in the agreement changes. Every entry is still by written permission and every permission is genuine. Within a few years the landlord has the run of the house, and if the tenant complains he can be shown his own signature on every single door.

One word in that mechanism carries all the weight, and it is worth stopping on before going further.

WORD BOX

Concurrence: agreement. In Article 370 it means the state government's formal consent to a Presidential Order extending central law.

The safeguard depends entirely on one thing: that the party giving consent is independent of the party asking for it. Consent from somebody you appointed is not a check on your power, it is a signature on your own decision.

Why it matters here: this is the hinge of the whole chapter, and it is why Chapter Two is placed before Chapter Three rather than after it.

The record of what followed is unusually easy to establish, which is worth saying because so much writing on this subject proceeds by assertion.

HOW WE ACTUALLY KNOW THIS

Every Presidential Order made under Article 370 was published in the Gazette of India, with a date, a number and a full text setting out exactly which provisions of the Indian constitution were being extended.

That means nothing in this chapter is a matter of interpretation. Anybody can obtain the list, count the orders, read what each one did, and see the cumulative effect. It is one of the best-documented constitutional transformations anywhere.

It is also, for that reason, one of the least excusable gaps in Indian public knowledge. The material has been sitting in the gazette for seventy years and the national argument about Article 370 is conducted almost entirely without reference to it.

What it cannot show: what was said when concurrence was sought. The orders record that consent was given, not how, by whom, or under what pressure.

3.3 — The two that mattered most

Two extensions deserve naming individually, because they changed the kind of thing the state was.

1964: Articles 356 and 357 were extended to Jammu and Kashmir. Until then the centre could not impose President's Rule on the state. From 1964 it could. Part Three's whole argument about Article 356 — that it descends from a colonial provision written so a Governor could override elected Indian ministries, and that its first political use was in 1959 — arrives in Kashmir here, five years after Kerala.

1965: the titles were changed. The *Sadar-i-Riyasat*, elected by the state legislature, became a **Governor**, appointed by the President of India. The state's *Prime Minister* became a **Chief Minister**.

The second of those is often treated as symbolic. It was not. An elected head of state answerable to the state assembly and an appointed head of state answerable to Delhi are different offices with different loyalties, and Chapter Two has already shown what a head of state can do in that place on a single morning.

3.4 — The ones you can look up

Chapter Three's argument is that this requires counting rather than interpreting, so here are the load-bearing orders. The list is not complete — no short table could be — and the full sequence is in the gazette for anybody who wants it.

YEAR	WHAT IT DID
1950	The first order. Applied the Union's powers over the three accession subjects — defence, external affairs and communications — and very little else. This is the arrangement Article 370 was written to describe.
1954	The large one. Extended a substantial body of central provisions including fundamental rights with modifications, brought the state into the customs union, and inserted Article 35A protecting the state's definition of a permanent resident. The single most consequential order of the whole sequence, and the one that established the method.
1954 onwards	Dozens of further orders across four decades, each extending something: articles, chapters, central jurisdictions and authorities. Each made under Article 370. Each with the concurrence of the state government of the day. None debated or voted on in either legislature.
1964	Extended Articles 356 and 357 . From this point the centre could impose President's Rule on Jammu and Kashmir, which it could not do before.
1965	The <i>Sadar-i-Riyasat</i> , elected by the state legislature, becomes a Governor appointed by the President. The state's Prime Minister becomes a Chief Minister.
1986	Extended Article 249, allowing Parliament to legislate on state subjects for Jammu and Kashmir on a Rajya Sabha resolution. Made during a period of Governor's rule — which is to say, the concurrence required by Article 370 was given by a central appointee on behalf of a state with no elected government.

That last row deserves a second look, because it is the mechanism of this chapter reaching its logical end point. Article 370 required the state government's consent. By 1986 the state had no elected government, the Governor was a central appointee, and the consent was given anyway.

3.5 — What was left

By the mid-1970s the substance had largely gone. Most of the Union List applied. The Supreme Court's jurisdiction applied. The Election Commission's jurisdiction applied. The centre could impose President's Rule. The head of state was a central appointee.

The 1974 accord that returned Sheikh Abdullah to office is instructive here. He came back demanding the restoration of the pre-1953 position. He did not get it. What he got was office, and the extensions stayed.

What remained after that was mostly Article 35A — the permanent resident provisions — and the symbolic fact of the article's existence.

THE ARGUMENT — WAS THE HOLLOWING LEGITIMATE?

Every order was lawful. That is not in dispute. What is in dispute is whether a lawful process can amount to something that was never agreed.

LEGITIMATE, AND THIS IS WHAT INTEGRATION LOOKS LIKE

Article 370 was headed “temporary” in the constitution’s own words, and it contained the extension mechanism deliberately, because the framers expected the relationship to deepen over time. Every order followed the procedure the article laid down and received the concurrence the article required. A state joining a federation more fully over decades is not a scandal; it is the ordinary history of federations, and demanding that a 1950 arrangement be frozen for ever is demanding something no constitution promises.

LAWFUL AND STILL ILLEGITIMATE

The provision was a safeguard for one party against the other, and the other party acquired the ability to determine who gave consent on the first party’s behalf — in 1953, in 1984, and by the mechanism of Article 356 after 1964. A consent requirement that the stronger party controls is not a safeguard that has been used; it is one that has been disabled. And the honest test is the one the defenders avoid: if this was integration by agreement, why was not one of these dozens of orders ever put to a vote in either legislature?

Where things stand: the second side is stronger and the reason is that single question. Integration by agreement is a defensible and even admirable thing, and it leaves a record of debates, votes and public argument. What happened here left a record of signatures. The 1974 accord is the clinching evidence: Sheikh Abdullah returned to office explicitly demanding restoration of the pre-1953 position, and did not get it — which establishes that by then the extensions were understood by both sides as irreversible.

What would settle it: the concurrence files for the major orders. Not released.

Why people care so much: because both of India’s political camps have a version of 2019 that requires the previous forty years to be uninteresting.

Which is exactly what the national argument about this article assumes.

THE HIDDEN ASSUMPTION

Everyone arguing about Article 370 today assumes **that it was removed in 2019.**

Those who celebrate it treat 2019 as the moment a historic anomaly ended. Those who mourn it treat 2019 as the moment an autonomy was destroyed. Both are describing the same event as decisive.

The autonomy Article 370 originally described had been substantially gone for forty years by then, removed piece by piece by Presidential Orders made under the article itself, with the concurrence of state governments, overwhelmingly under Congress governments at the centre, and without a single parliamentary vote on any of it.

What 2019 removed was the remainder and the name.

Notice what the assumption does for each side. It lets the article's defenders locate the loss in a single act by a government they oppose, rather than in four decades of erosion by governments many of them supported. And it lets the article's opponents claim credit for ending something that had already been ended, mostly by their opponents, quietly.

The general point is the one this series keeps meeting and it is not about Kashmir. **A protection that can be reduced by an instrument requiring nobody's vote will be reduced.** The Ninth Schedule in Part Three had the same property. So did preventive detention in Part Two. In each case the safeguard survived on paper for decades after it had stopped operating, and the paper is what everybody argues about.

Carry one thing out of this chapter into Part Eight. The instrument described here — a lawful power, exercised repeatedly, each exercise defensible on its own, cumulatively producing something nobody voted for — is not a Kashmir instrument. It is the characteristic move of the Indian state in this series, and the next part is about the decade in which it was used on the constitution itself.

REMEMBER THIS

Article 370 **contained the mechanism of its own dismantling**: the President could extend central provisions by order, with the state government's concurrence. Dozens of such orders were made between 1954 and the 1990s. None was voted on.

1964 brought Article 356 to Kashmir. 1965 turned an elected head of state into an appointed Governor and a Prime Minister into a Chief Minister.

2019 removed the remainder and the name. A protection that can be reduced by an instrument requiring nobody's vote will be reduced — and the paper is what everybody argues about.

CHAPTER FOUR

1965

Pakistan sent men into the Valley expecting a rising. The rising did not happen, and why it did not happen is the most important fact in this chapter.

4.1 — Operation Gibraltar

In August 1965 Pakistan infiltrated several thousand men across the ceasefire line into Indian Kashmir, in civilian dress, in organised groups. The plan was called Operation Gibraltar and its purpose was not conquest. It was to trigger a general uprising in the Valley, which Pakistan believed was waiting to happen.

The reasoning was not stupid, and from Rawalpindi it looked strong. Chapter Two had put the state's most popular leader in prison. Chapter One's promise had visibly decayed. India had just been humiliated by China. Nehru had died the previous year. The Plebiscite Front existed and had support.

4.2 — The rising that did not happen

It did not happen.

The infiltrators were not sheltered in the numbers required. In many places local people reported them to the Indian authorities. The movement collapsed within weeks and Pakistan escalated to conventional operations because the plan it was designed to support had failed.

This has to be stated plainly because it is a credit item and it is the pivot of the whole part. **In 1965, offered an armed rising against India by a foreign state, the Kashmir Valley declined.**

Why is genuinely arguable. Part of it is that the National Conference's political tradition was hostile to the Muslim League and to Pakistan, and that tradition was still alive. Part of it is that Bakshi's decade in office had brought money, construction and jobs into the Valley on a scale it had not seen. Part of it is simply that armed men from outside asking you to start a war are not attractive.

Whatever the mix, the fact is the fact, and it is the baseline against which everything in Chapter Seven has to be measured. **Something changed between 1965 and 1989, and it was not Pakistan's willingness to try.**

4.3 — The war

With the infiltration failing, Pakistan launched armoured operations in the Chhamb sector in the south, aiming to cut the road link to the Valley.

India's response was to widen the war. On **6 September 1965** Indian forces crossed the international border towards Lahore — which changed the conflict from a fight over Kashmir into a general war between the two states.

The heaviest fighting was armoured. At Asal Uttar, near Khem Karan, Indian forces destroyed a large part of Pakistan's armoured strike force in what was then among the largest tank battles since the Second World War.

India also took the **Haji Pir Pass**, in the mountains north-west of the Valley — the main route by which infiltrators crossed. Remember that.

A ceasefire under United Nations auspices took effect on 23 September. Neither side had achieved its objective. India had, however, demonstrated something that mattered enormously three years after 1962: that its army worked.

WORD BOX

Status quo ante bellum: “the situation as it was before the war”. A settlement on these terms returns everything to where it stood when the fighting started.

It sounds neutral and it is not. It is a good outcome for whichever side lost ground and a bad one for whichever side gained it, and it is what an outside mediator almost always proposes, because it is the easiest thing to get both sides to accept.

Why it matters here: this is what Tashkent produced, and it is why India handed back a mountain pass it had taken at cost.

4.4 — Tashkent

The Soviet Union brokered a settlement at Tashkent, signed on **10 January 1966** by Lal Bahadur Shastri and Ayub Khan. Both sides withdrew to the positions held before August 1965.

That meant India returned the Haji Pir Pass.

Shastri died of a heart attack in Tashkent hours after signing, and the shock of that has coloured Indian memory of the agreement ever since.

Which produced the single most argued-about clause in Indian post-war diplomacy.

THE ARGUMENT — WAS TASHKENT A FAILURE?

The return of Haji Pir has been argued about in India for sixty years and both cases are serious.

A FAILURE, AND AN AVOIDABLE ONE

Haji Pir was not a bargaining chip; it was the door. It is the pass through which infiltration into the Valley physically runs, and India had taken it at real cost. Handing it back restored to Pakistan the exact capability it had just used, and every subsequent infiltration campaign — including the one that mattered after 1989 — used the ground India gave away. Whatever was gained at Tashkent was not worth that.

THERE WAS VERY LITTLE ALTERNATIVE

India had not won the war; it had fought a draw and both economies were under severe strain after a failed monsoon. The mediation was Soviet, and the Soviet Union was the one great power broadly sympathetic to India at a moment when Washington had suspended arms supplies to both sides and India needed the relationship. Refusing a status-quo settlement would have meant continuing a war India was not winning, alone, in a famine year — the same famine year Part Four describes India spending on imported grain.

Where things stand: the second side is right about 1966 and the first is right about everything after it. What makes this a real charge rather than hindsight is narrower: India appears not to have attempted to trade Haji Pir for anything specific. A pass returned in exchange for a general undertaking is a pass given away. Whether a harder bargain was available is unknown and, unlike most of this series, probably unknowable.

What would settle it: the Indian negotiating record at Tashkent. Not released.

Why people care so much: because Shastri died there, which converted an argument about a mountain pass into something much harder to discuss calmly, and it has never recovered.

And carry the other half of this chapter forward too, because it is the fact the rest of the part is measured against. Tashkent is an argument about a pass. The rising that did not happen is an argument about a population, and it is much the more important of the two.

REMEMBER THIS

Pakistan infiltrated the Valley in August 1965 expecting a rising. **The rising did not happen.** Local people reported the infiltrators and the plan collapsed within weeks.

India widened the war on **6 September**, fought a draw, and took the **Haji Pir Pass** — the physical route infiltration runs through.

Tashkent returned everything, including Haji Pir. And the baseline stands: in 1965 the Valley declined an armed rising. Something changed by 1989, and it was not Pakistan's willingness to try.

CHAPTER FIVE

1971

The most complete victory any Indian government has ever achieved, and the clearest evidence in this series that the state could learn. This chapter is almost entirely a credit item.

5.1 — What happened first

In March 1971 the Pakistani army began an operation against the population of East Pakistan, following an election its own political system could not absorb. What followed was mass killing and a refugee movement of a size that has few parallels.

Something in the order of **ten million people** crossed into India — into West Bengal, Assam, Tripura and Meghalaya, states which Part Five's ledger already showed as the least equipped in the country to absorb anybody.

India had, on any reading, a legitimate national interest at stake. This was not a distant humanitarian question. It was a burden being placed on Indian territory by another state's conduct.

WORD BOX

Refugee burden: the cost to a receiving country of people arriving with nothing — food, shelter, sanitation, disease control, and the political strain of housing a large foreign population in a poor region.

It is the reason mass displacement is treated in international law as a matter affecting the receiving state and not only the sending one. A country cannot be expected to absorb an unlimited number of people because a neighbour has made their homes unlivable.

Why it matters here: this was the legal and moral basis of India's case in 1971, and it was a strong one. India was not intervening in somebody else's civil war for sentiment; it was responding to a burden being placed on its own territory.

5.2 — The eight months

Here is the part that matters for this series, and it is the reason this chapter exists in a book of charges.

The crisis began in March. India went to war in December. **In between, it did the work.**

It supported and trained the Bengali resistance, so that when regular operations began there was an ally already inside the territory. It made a sustained diplomatic effort to explain the refugee burden internationally. It signed a treaty with the Soviet Union in August 1971, which covered the risk of great-power intervention. And it waited for the winter, when the Himalayan passes close and China cannot easily intervene from the north.

Compare that with Part Six. In 1961 a policy was adopted on an intelligence assessment, against a professional objection, with no logistics and no contingency, and executed by penny packets at altitudes nobody had acclimatised to. In 1971 the same state identified an objective, built the alliance, secured the flank, chose the season, and moved.

Whatever else this series says about the government of Indira Gandhi — and Parts Eight and Nine say a great deal — the conduct of 1971 was of a completely different order from 1962, and it was nine years later.

5.3 — Thirteen days

Full-scale war began on 3 December 1971 and ended on 16 December with the surrender of the Pakistani forces in the east at Dhaka. Around **93,000 prisoners** passed into Indian hands. Bangladesh came into existence.

In the west, India also took ground — something in the region of five thousand square kilometres.

There is no comparable outcome anywhere else in the military history of independent India. A neighbour was divided, a new state was created, and the strategic balance of the subcontinent was permanently altered, in under a fortnight.

IN REAL TERMS

Ninety-three thousand prisoners is difficult to picture, so convert it.

It is a full sports stadium. It is more men than most countries have in their entire army. Feeding, housing, guarding and providing medical care for them is a permanent operation requiring camps, rations, doctors and thousands of Indian soldiers who are doing that instead of anything else.

It was also, for the government holding them, the largest bargaining asset any South Asian state has ever possessed — and Chapter Six is about what it was exchanged for.

Unusually for this series, almost none of that has to be taken on anybody's word.

HOW WE ACTUALLY KNOW THIS

The 1971 war is unusually well documented from every direction: Indian and Pakistani official histories, the Pakistani government's own Hamoodur Rahman Commission report on the defeat, the Bangladeshi record, and a very large body of contemporary international reporting on the refugee movement.

Note the contrast with Part Six. Pakistan commissioned an inquiry into its 1971 defeat and a version of it has been public since the early 2000s. India commissioned an inquiry into its 1962 defeat and it remains classified sixty-three years later. That is not a comparison in India's favour, and it is worth recording in a series about Indian governments.

What this cannot show: the refugee figure. Ten million is the number in general use and it is an estimate of a moving population made under emergency conditions. The true figure is not knowable and Part One's rule about counting applies.

One more observation before the summary, and it belongs in a book of charges. The government that conducted 1971 is the same government that four years later did what Part Nine describes. Competence and restraint are different things, and this chapter is evidence for the first and none at all for the second. A state that can plan eight months of preparation, secure a great power, choose a season and win in thirteen days is a capable state. What it does with that capability is a separate question, and the answer arrives in June 1975.

REMEMBER THIS

Around **ten million refugees** crossed into the least-equipped states in India. The interest at stake was real and national, not distant.

The crisis began in March and the war began in December. **India used the eight months:** it trained the resistance, made the diplomatic case, signed a treaty covering the great-power risk, and waited for the passes to close.

Thirteen days, 93,000 prisoners, a new country. Set beside Part Six, this is the clearest evidence in the series that the Indian state could learn — and it took nine years.

CHAPTER SIX

Simla

India arrived holding more than any Indian government had ever held. It left with a principle, an oral assurance and no settlement.

6.1 — What India was holding

On 2 July 1972, Indira Gandhi and Zulfikar Ali Bhutto signed an agreement at Simla.

India held approximately 93,000 prisoners of war. It held around five thousand square kilometres of Pakistani territory in the west. It had just dismembered the other state and created a third one. Pakistan's army was broken, its eastern wing gone, its leadership discredited and its new head of government a civilian in a country that had never let civilians last.

There has never been a moment before or since when the balance was so completely in India's favour.

WORD BOX

Prisoner of war: a member of an armed force captured by the other side. Under the Geneva Conventions they must be housed, fed and treated humanely, and repatriated without delay after hostilities end.

That last clause is the one that matters at Simla. Holding prisoners indefinitely as a bargaining counter is not straightforwardly available under the law of war, which weakens the “we should have kept them longer” argument more than its advocates usually acknowledge.

It also cuts the other way: the 193 men Pakistan wanted protected from trial were facing allegations of war crimes, and Bangladesh had the strongest claim on that question.

6.2 — What India wanted

India's objective at Simla was not obscure. It wanted **a final settlement of Kashmir**, and specifically it wanted the line of control converted into a permanent international boundary — the division as it stood, made legal, closed.

That would have ended the dispute. Both sides would have kept what they held. It is, as it happens, approximately what most serious proposals for a settlement have looked like ever since.

6.3 — What India got

Three things, and the second is much more valuable than Indian critics of the agreement allow.

The ceasefire line became the Line of Control. Both sides undertook to respect it and not to alter it unilaterally. It was not made an international border.

Bilateralism. Both countries committed to settling their differences by peaceful means through bilateral negotiation. This is the sentence that has done the most work for India of anything signed with Pakistan. It is the basis on which India has, for fifty-four years, refused third-party mediation and treated the Security Council resolutions as superseded. Chapter One's decaying promise finally acquired, at Simla, something like a legal roof.

Nothing on the substance. There was a commitment that the two heads of government would meet again to settle the Kashmir question finally. They did not.

India then returned the prisoners and the territory.

6.4 — The assurance that was not written down

Indian accounts of Simla contain a persistent and important claim: that on the night of 2 July, after the formal talks had deadlocked, Bhutto met Indira Gandhi privately and gave an oral assurance that the Line of Control would in time acquire the characteristics of an international border, but that he could not sign anything to that effect and survive politically at home.

India accepted the assurance. Nothing was written. Pakistan subsequently denied any such understanding, and has done so ever since.

Grade: the existence of the private meeting is **SOLID**. The content of what was said is **ALLEGED**, resting on Indian participants' accounts.

There is one contemporaneous document from outside both delegations. Four days after Simla, Bhutto told a visiting American official that it had been obvious at the conference that India was not interested in resolving the prisoner question on its merits but was using the prisoners and Bangladesh as leverage to settle Kashmir, and that he had not deluded himself for a minute about it.

That is a man describing what he had just successfully resisted.

HOW WE ACTUALLY KNOW THIS

The agreement itself is a published treaty and everything in section 6.3 can be read in it.

What happened in the room is a different order of evidence. The main Indian and Pakistani accounts were written by participants with reputations at stake, and they disagree. The standard scholarly work on the summit sets out both national perspectives side by side rather than choosing.

The American telegram of 6 July 1972 is the most useful single document, precisely because Bhutto had no reason to flatter anybody in it and the Americans had no stake in the Indian domestic argument. It records his own reading of the negotiation days after it ended.

What none of it can show: whether Bhutto would have signed a border settlement if India had held the prisoners longer. He said afterwards that he could not have survived it. He would say that either way.

All of which produces the largest argument in Indian foreign policy, and one where the conventional Indian answer is weaker than it sounds.

THE ARGUMENT — DID INDIA WASTE ITS VICTORY AT SIMLA?

This is the largest single “what if” in Indian foreign policy and both cases are strong.

INDIA THREW IT AWAY

Ninety-three thousand men and five thousand square kilometres is the maximum leverage any Indian government will ever hold, and it was exchanged for a principle and an unwritten promise. India did not even get the Line of Control made permanent — the one thing that would have closed the dispute — and it returned the prisoners on a timetable rather than against performance. Every death on that frontier since 1972 has occurred because the question was left open at the one moment it could have been shut.

THERE WAS MUCH LESS ON THE TABLE THAN IT LOOKS

Three things constrain the maximalist reading. The prisoners were not solely India's to dispose of; Bangladesh had a claim on them, including on the 193 facing possible war crimes trials, and India could not settle their fate alone. Bhutto was the only civilian leader Pakistan had, and a treaty that visibly humiliated him would have brought the army back within months and been repudiated by it — which is exactly what happened to every other agreement Pakistan's civilians signed. And bilateralism is not a consolation prize: it removed the United Nations from the Kashmir question for fifty years, which was India's most important diplomatic objective and which India achieved.

Where things stand: the second side is much stronger than the Indian conventional wisdom allows, and it still loses on one point. Grant that a signed border was unobtainable and that Bhutto's survival mattered. It does not follow that the prisoners had to be returned *on a timetable* rather than against staged performance, or that nothing beyond an oral assurance had to be accepted. India converted a wasting asset into a principle, which is a real gain, and got nothing for the asset itself.

What would settle it: the Indian negotiating file. Fifty-four years old and not released — the third such file in this part.

Why people care so much: because 1971 is the one unambiguous triumph in the Indian record, and the argument about Simla is an argument about whether the triumph was allowed to mean anything.

Underneath that disagreement, though, both sides are relying on something about victories that is not obviously true.

THE HIDDEN ASSUMPTION

Both sides of that argument assume **that a military victory can be converted into a political settlement.**

The critics say India failed to convert. The defenders say the exchange rate was worse than it looked. Both are treating the victory as a currency and disagreeing about the price.

What India actually held was **a wasting asset with a carrying cost.** Ninety-three thousand prisoners had to be fed, housed, guarded and kept alive, by an army that had other things to do, in a country that Part Four shows was importing grain. Every month of holding them made India's position worse, not better, and both governments knew it.

And the deeper problem is what a signature from Bhutto would have been worth. A settlement is only a settlement if the party signing it can deliver its own state.

Pakistan's civilian governments have never durably been able to, which is why every agreement India has signed with a Pakistani civilian has been honoured only as long as that civilian lasted. A signed border in 1972 from a man who was hanged in 1979 would have been repudiated in 1980.

This is the uncomfortable conclusion and it cuts against the whole framing of this chapter. If the assumption is wrong — if military victory over a state whose government cannot bind it produces no convertible currency at all — then Simla was not a squandered opportunity but an accurate reading of what was on offer, and the Indian argument of the last fifty-four years has been an argument about a price that never existed.

I do not think that is entirely right, for the reason in the verdict above: the prisoners could have been released against performance rather than against a calendar, and that required no signature from anybody. But it is right enough that anybody quoting "93,000 prisoners and we got nothing" as a self-evident indictment has not thought about what they imagine India could have bought.

Simla closes the military half of this part. What follows is domestic, and it is where the charge becomes specific rather than strategic — because the decisions in Chapter Seven required no foreign party's agreement at all.

REMEMBER THIS

At Simla India held **93,000 prisoners and around five thousand square kilometres** — the strongest hand any Indian government has ever held.

It got the **Line of Control, bilateralism** — which removed the UN from the question for fifty years and is a real and lasting gain — and **nothing on the substance**. The assurance about the border was oral and was later denied.

The prisoners were a wasting asset with a carrying cost, and a signature from a man Pakistan's army later hanged would not have bound Pakistan. The defensible charge is narrower: they were returned against a calendar rather than against performance.

CHAPTER SEVEN

The Elections

A politician said in public in 1987, in almost these words, what was about to happen. Two years later it happened, and the men who said it were the ones it happened through.

7.1 — 1977, which was clean

The state election of 1977 is widely regarded, including by people highly critical of everything else in this part, as the first genuinely free election Jammu and Kashmir ever had.

It came after the Emergency, which Part Nine deals with, and in the immediate aftermath of a national government's defeat. Sheikh Abdullah — released in 1964, returned to office in 1975 under an accord with Indira Gandhi — won it.

This matters and it should not be skipped. It establishes that a clean election in Kashmir was *possible*. Whatever else is argued about turnout, alienation and the impossibility of normal politics in a disputed territory, it was done, in living memory, and it produced a government.

7.2 — 1984: the elected government that was removed

Sheikh Abdullah died in 1982 and was succeeded by his son **Farooq Abdullah**, who won the state election of 1983 against a Congress campaign.

In **July 1984** that government was brought down. A group of National Conference legislators defected, led by Farooq's own brother-in-law, G.M. Shah. The Governor accepted the change and installed Shah as Chief Minister.

The pattern is the one Chapter Two described thirty-one years earlier, in a milder form: an elected Chief Minister removed through the office of a Governor appointed by Delhi, in a state where the centre's party had just lost an election.

Shah's government was itself dismissed in 1986 and the state went under Governor's rule. Then, in late 1986, an accord was reached between Rajiv Gandhi and Farooq Abdullah: Farooq returned to office, and the National Conference and Congress would contest the next election **in alliance**.

Hold that last fact. The party that had removed him in 1984 was now his partner, and the two of them together were the government going into 1987.

7.3 — 23 March 1987

The Muslim United Front was a coalition of religious and local parties formed in 1987. It was not a separatist front standing on a boycott; it was **contesting the election**, which is precisely what every Indian government had spent forty years asking Kashmiris to do instead of anything else.

It drew large crowds. Pre-poll assessments suggested it might take somewhere between fifteen and twenty seats in the Valley.

Turnout was around **eighty per cent** in the Valley — the highest ever recorded there.

What happened on and after polling day on 23 March 1987 is documented in unusual detail for a disputed election.

Opposition polling agents were ejected from counting stations. Ballot boxes were removed under security escort. Over a hundred agents were arrested in one constituency alone. Pre-stamped ballots were found. In Amira Kadal in Srinagar, the MUF candidate **Mohammad Yusuf Shah** led the early count and was declared defeated by the National Conference incumbent by 4,289 votes.

The MUF was officially credited with four seats.

Farooq Abdullah — the beneficiary — has himself acknowledged the rigging.

HOW WE ACTUALLY KNOW THIS

This is better evidenced than most contested elections anywhere, for three reasons.

First, the losing candidates were named public figures who described what happened at the time, in the Indian press, in Indian courts and in Indian political language. **Abdul Ghani Lone**, a mainstream pro-India politician contesting in Handwara, gave a public account of police ejecting his agents, removing ballot boxes and arresting over a hundred people.

Second, the beneficiary has admitted it. An election is not usually disputed by the man who won.

Third, the counting-station accounts come from people whose names, constituencies and roles are known — including one polling agent whose subsequent career made him among the most closely documented individuals in the region.

What it cannot show: how many seats the MUF would have won. Pre-poll estimates of fifteen to twenty are estimates. What is **SOLID** is the conduct at the booths and the count; the counterfactual result is **ALLEGED**, and this chapter does not need it.

The techniques described above have names, and the names matter because they identify who has to be involved.

WORD BOX

Booth capturing: taking physical control of a polling station in order to cast or destroy votes. It was common enough in Indian elections of this period to have its own name.

The related techniques are ejecting the opposition's polling agents, so nobody hostile is watching; removing ballot boxes from the count under escort; and stamping ballots in advance.

Every one of these requires the cooperation or absence of the police, which is why they are almost never done by a party that does not control the state government.

Why it matters here: all four were reported on 23 March 1987 by named people in named constituencies.

7.4 — What the losing candidates did next

This is the section that makes 1987 different from any other rigged election in Indian history, and it can be told almost entirely in biographies.

Mohammad Yusuf Shah, the MUF candidate in Amira Kadal, crossed into Pakistan-administered territory and became **Syed Salahuddin**, commander of the Hizbul Mujahideen — the largest militant organisation of the insurgency.

Yasin Malik, who had worked as his polling agent, crossed the Line of Control in 1988 for training and became a leader of the Jammu and Kashmir Liberation Front, which began the armed campaign.

Others who crossed in the same period had been in the same campaign.

And **Abdul Ghani Lone**, the mainstream politician whose agents were arrested at Handwara, said publicly at the time — in words widely reported and never retracted — that if people were not allowed to cast their votes, their anger would go into anti-national feeling instead.

That is a warning, delivered in public, by a pro-India politician, in the year it mattered, naming the mechanism and the consequence.

Part Six established the test: a warning is received only where somebody has the authority to act, an incentive to believe, and a decision it changes. Lone's warning failed all three, and it failed them in the presence of a national press that reported it.

IN REAL TERMS

Eighty per cent turnout is not a number Indians should skim past.

It is higher than any Indian general election has ever recorded. It is higher than the United States manages in a presidential year. It is the figure of a population that has decided, collectively and at some risk, to use the method it was offered.

Then set beside it the figure from 1989 onwards, when turnout in the Valley collapsed to single digits in places and stayed there for years.

Between those two numbers there are twenty-four months and one count.

Which raises the causal question that dominates every discussion of modern Kashmir.

THE ARGUMENT — DID THE RIGGING OF 1987 CAUSE THE INSURGENCY?

This is the central causal claim about modern Kashmir and it is genuinely contested.

IT DID NOT, AND THE CAUSES WERE EXTERNAL AND PRIOR

Pakistan had been trying to start an insurgency in Kashmir since 1947 and had run a full infiltration campaign in 1965. The 1980s gave it something it had never had before: a decade of experience arming and training an insurgency in Afghanistan, with weapons, camps and money supplied at scale by outside powers. That capability arrived independently of anything that happened at a Srinagar counting station. Blaming an Indian election for a campaign planned in another country flatters Indian self-importance and lets Pakistan off entirely.

IT DID NOT CREATE THE SUPPLY, BUT IT CREATED THE RECRUITS

Nobody claims 1987 built the training camps. The claim is about who walked into them. Compare 1965: identical Pakistani intent, an infiltration force already in the Valley, and the population declined and reported them. The difference by 1989 was not on the Pakistani side of the line. It was that a specific cohort of young men had just tried the constitutional method, at the highest turnout ever recorded there, and had it taken from them at the count — and the two most consequential militant leaders of the following decade were literally a candidate and his polling agent from that election.

Where things stand: both are right about different halves and the second describes the half India controlled. The honest formulation is that **Pakistan supplied the means and 1987 supplied the men**, and that India had no control over the first and complete control over the second. The 1965 comparison is what makes this more than an assertion: the same offer was made to the same population by the same state twenty-four years earlier and was refused.

What would settle it: the recruitment biographies of the first militant cohort — how many were MUF workers in 1987. Partial work exists and points strongly one way; nobody has done it systematically.

Why people care so much: because one answer makes the insurgency a foreign attack on India and the other makes it partly a consequence of an Indian decision, and Indian politics has needed the first answer continuously since 1990.

Notice that both of those positions are counting seats. That is the shared move, and it is the wrong measure.

THE HIDDEN ASSUMPTION

Everybody arguing about 1987 assumes **that the rigging mattered because it stole seats.**

The critical version: the MUF was robbed of fifteen or twenty seats and the theft caused the rising. The defensive version: the MUF would not have won that many and the theft was smaller than claimed. Both are arguments about the arithmetic of the result.

The seats were the least of it. What 1987 destroyed was not a set of election victories but **the argument that participation works** — and it destroyed it in the hands of the specific people who had just made that argument to everybody else.

Consider what a young MUF worker had spent that spring doing. He had told his friends that the way to change things was to organise, campaign and vote. He had put his name on it. Eighty per cent of the Valley turned out, which is a higher figure than most established democracies achieve. And then the count was interfered with in front of him, and he was arrested for objecting.

A man in that position has not merely lost an election. He has been publicly shown to have been wrong about the method, by the state that told him to use it, in front of the people he persuaded.

This is why the seat arithmetic is beside the point, and why the defensive version of the argument — that the MUF would only have won six or eight — is no defence at all. **The damage was not proportional to the number of seats taken. It was done by the visibility of the taking.**

And it generalises well beyond Kashmir. A rigged election in a settled democracy produces a wrong government. A rigged election in a place where the legitimacy of the state is itself the question produces something else entirely, because the vote was never only about who governs.

One thing this chapter deliberately does not say. It does not say that the men who crossed the Line of Control were justified in what they did afterwards, or that the killing which followed was a proportionate response to an interfered count. It says that a state which asks a population to use elections instead of guns has taken on a specific obligation about elections, and that in March 1987 it did not meet it.

REMEMBER THIS

1977 was clean, which proves it was possible. In **1984** an elected government was brought down through engineered defections and a Governor. By 1986 the party that removed it was its election partner.

On **23 March 1987**, at the highest turnout ever recorded in the Valley — around eighty per cent — agents were ejected, boxes removed, over a hundred arrested in one constituency, and pre-stamped ballots found. **The winner has admitted it.**

The MUF candidate at Amira Kadal became the commander of Hizbul Mujahideen. His polling agent became a leader of the JKLF. A mainstream politician said publicly at the time exactly where the anger would go.

CHAPTER EIGHT

What Does Not Belong Here

Three concessions before the verdict. One of them removes from this book the single event most people associate with the charge.

8.1 — January 1990 was not a Congress government

The images that dominate any discussion of Kashmir's collapse are from the winter of 1989 and 1990: the beginning of organised militancy, the killings, and the flight of the Kashmiri Pandits from the Valley.

None of that happened under a Congress government.

Congress lost the general election of November 1989. The government from December 1989 was the National Front under V.P. Singh, supported from outside by the Bharatiya Janata Party and by the Left.

In December 1989 the Union Home Minister's daughter was kidnapped and militants were released in exchange, which is generally identified as the moment the insurgency acquired confidence. That Home Minister was Mufti Mohammad Sayeed, in the National Front government. In January 1990 that government appointed Jagmohan as Governor. The Pandit exodus followed within weeks.

Grade: **SOLID**, and conceded without qualification. A series that attributes those months to Congress is lying, and a great deal of what circulates on this subject does exactly that.

What survives the concession is the same shape as Part Five's. The hole was dug earlier. The specific cohort that made 1990 possible was produced in 1987, by a state government in alliance with the party then governing at the centre, and the constitutional conditions were built between 1953 and 1965. The National Front inherited a Valley in which the constitutional method had been publicly discredited twenty-one months earlier.

8.2 — Pakistan has agency

The second concession is larger and it is one this series should make explicitly, because a book about Indian governments can slide into writing as though India were the only actor.

Pakistan tried to take Kashmir by force in 1947, by infiltration in 1965, and by supporting an insurgency from 1989 onwards. It did all of that on its own initiative, for its own reasons, and it would have kept trying whatever India did.

Nothing in Chapters One to Seven caused that. India did not create the training camps, the weapons pipelines or the strategic doctrine behind them, and the argument in Chapter Seven explicitly concedes that the *means* of the insurgency were external.

What this series can say about India is what India controlled, and that is a narrower and more useful subject than the whole history of the dispute.

WORD BOX

Agency: the capacity of a person or a state to act for its own reasons, rather than only in response to what somebody else does.

It is a dull word doing important work. An account that explains everything Pakistan did as a reaction to India has denied Pakistan agency, and an account that explains everything Kashmiris did as a reaction to Delhi has denied them agency too — which is a form of condescension that often arrives disguised as sympathy.

Why it matters here: this series is about Indian governments, and the discipline that requires is remembering that other people in the story were also deciding things.

8.3 — Kashmiri politics is not only a reaction to Delhi

The third concession is the one most likely to be resented and it is also true.

The National Conference was itself accused of rigging elections from the 1950s onwards, well before 1987 and sometimes against opponents who were not separatists. Corruption in the state's administration was a real grievance with local authors. The rise of religious politics in the Valley in the 1980s had causes of its own, including regional and global ones, that had nothing to do with Indian election management.

Treating every development in Kashmiri politics as a response to something Delhi did is its own kind of condescension. It denies the place any politics of its own.

THE ARGUMENT — AFTER THE THREE CONCESSIONS, WHAT IS LEFT?

The honest audit, conducted before the verdict rather than after it.

VERY LITTLE THAT IS SPECIFIC TO CONGRESS

Take the concessions seriously. The collapse happened under a non-Congress government. The means came from Pakistan. The local politics had local authors. What remains is a dismissal in 1953, a series of constitutional orders, a rigged election in 1987 conducted by a state government, and a general charge that India governed a disputed territory the way states govern disputed territories. Every part of that is real and none of it is unique to one party or to Kashmir.

THE INSTRUMENTS AND THE TIMING SURVIVE INTACT

Every concession is about a *later* or an *external* cause and none of them touches what India did or when. The plebiscite decayed without ever being withdrawn. The state's most popular leader was removed without a floor test and held eleven years without conviction. The autonomy was hollowed by dozens of orders that nobody voted on. An elected government was brought down in 1984 through engineered defections. And the 1987 election was conducted by an alliance of the state party and the national governing party. None of that becomes untrue because V.P. Singh was Prime Minister in January 1990.

Where things stand: the second side is right about the instruments and the first is right that the outcome had many authors. The defensible position is narrower than the popular charge: **India's own conduct did not create the insurgency, and it produced the conditions in which a foreign attempt that had failed in 1965 succeeded in 1989.** That is a real finding and it is smaller than what most accounts of this subject assert.

What would settle it: the recruitment study named in Chapter Seven.

Why people care so much: because the concessions are useful to one side of Indian politics and the instruments to the other, and almost nobody has an interest in stating both.

8.4 — The ledger for this part

Part Five committed every subsequent part to carry the running record of which states were affected by its material. Here is the entry.

WHERE

WHAT WAS DONE

Jammu and Kashmir	A plebiscite offered and never withdrawn. Its head of government dismissed without a floor test in 1953 and held eleven years. Its autonomy reduced by dozens of Presidential Orders between 1954 and the 1990s, none voted on. Article 356 extended in 1964; its elected head of state converted to an appointed Governor in 1965. An elected government brought down in 1984. An election conducted in 1987 in a manner its own beneficiary has admitted.
Punjab	The 1965 war was fought across it, and the Haji Pir Pass taken and returned. Part Ten takes the rest.
West Bengal, Assam, Tripura, Meghalaya	Absorbed something in the order of ten million refugees in 1971 — the same states Part Five's ledger identified as least equipped to absorb anybody, doing it for the second time in twenty-four years.
Rajasthan and Gujarat	The western theatre in 1965 and 1971. Territory taken in 1971 and returned at Simla.

REMEMBER THIS

January 1990 was not a Congress government. The National Front was in office, Mufti Mohammad Sayeed was Home Minister, and it appointed Jagmohan as Governor. Conceded without qualification.

Pakistan has agency and would have kept trying whatever India did. It supplied the means. **And Kashmiri politics has local authors**, which treating everything as a reaction to Delhi denies.

What survives: **India's conduct did not create the insurgency, and it produced the conditions in which a foreign attempt that failed in 1965 succeeded in 1989.**

CHAPTER NINE

What Would Have Prevented It

The defence at full strength, and a question this part has been circling since Chapter One: was a settlement ever actually wanted by anybody who could deliver one?

9.1 — Four arguments for the defence

Here are the strongest arguments a serious defender of the Indian record would make. Two of them are very strong.

One. The territory was disputed and the other party was armed. Every measure criticised in this part was taken in a place where a foreign state was actively pressing a territorial claim by force. Governments do not run disputed frontiers the way they run settled interiors, anywhere in the world, and holding India to a standard nobody meets is not analysis.

Two. It held. This is the strong one. Kashmir is still in India. Given a hostile neighbour with a permanent claim, three wars, an insurgency lasting decades, and a genuine crisis of legitimacy in the Valley, the state did not lose the territory and did not lose the rest of the country either. Compare the record of other multi-ethnic post-colonial states facing a secessionist movement backed by a neighbour, and the comparison is not close.

Three. Democracy kept being attempted. Elections were held in 1977 and were clean. The state had a legislature, courts, a press and mainstream parties throughout — none of which is true of the territory on the other side of the line, where no comparable election has ever been held at all.

Four. Simla removed the United Nations. Chapter Six conceded it and it is worth repeating here, because it is the single most durable diplomatic achievement in this part. The dispute has been kept bilateral for fifty-four years, and every Indian government since has depended on a sentence Indira Gandhi obtained in 1972.

The second of those defences is the one this part cannot answer and does not try to. Whatever was done between 1953 and 1987, the union held, and there is a version of the counterfactual in which it did not.

9.2 — The settlements that were available

Part One requires an alternative that somebody proposed at the time. There were three.

1953. A floor test instead of a dismissal. It would have taken a day. If Abdullah had lost it, the outcome would have been identical and lawful. If he had won it, the stated ground for removing him was false — which is the point.

1972. The prisoners released against performance rather than against a calendar. Chapter Six's verdict: this required no signature from anybody and was not attempted.

1987. A clean count. The MUF would have held some seats in a state assembly, which is what a state assembly is for. This is the cheapest alternative in the entire series and it was available on a single day in March.

None of the three required a change of policy on Kashmir, a concession to Pakistan, or any risk to the union. All three were procedural. That is what makes them charges rather than second-guessing.

9.3 — What I would have to retract

Three things would break this part.

If the assembly numbers of August 1953 showed that **Abdullah had genuinely lost his majority**, Chapter Two weakens to a procedural complaint about a correct outcome.

If a study of the first militant cohort showed that **few of them had any connection to the 1987 campaign**, Chapter Seven's causal claim collapses and the external explanation takes the whole weight.

If the Indian negotiating file from Simla showed that **staged release against performance was proposed and refused by Pakistan**, Chapter Six's narrow charge disappears.

The first and third depend on files the Indian government holds. The second is ordinary academic work that anybody could do.

HOW WE ACTUALLY KNOW THIS

The three alternatives in section 9.2 are unusual in this series because none of them is a counterfactual about outcomes. Each is a claim about a *procedure that existed and was not used*, and procedures leave records.

A floor test was available in 1953 because the assembly existed and was sitting. Staged release was available in 1972 because prisoner repatriation was necessarily a phased operation taking months, which means the phasing was a variable somebody set. A clean count was available in 1987 because counts are conducted by identifiable officials under rules.

That is why Chapter Nine can name alternatives with more confidence than Part Four could about the economy. Part One's test asks whether the alternative was available at the time; for a procedure, availability is a matter of record rather than of modelling.

What it cannot show: whether taking any of the three would have changed the outcome. A cleaner 1987 might still have produced an insurgency. The claim is that the alternative existed, not that it was a guarantee.

Which leads to the thing this whole part has been circling, and it is not a question about Kashmir.

THE HIDDEN ASSUMPTION

Everyone who writes about Kashmir — Indian, Pakistani and Kashmiri — assumes **that the alienation of the Valley was caused by things that happened in the Valley.**

The critical version lists local events: 1953, 1984, 1987. The defensive version lists other local events: Pakistani infiltration, religious mobilisation, local corruption. Both are looking for the cause inside the same borders where the effect appeared, which is exactly the error Part Five's front matter identified about regional poverty.

Look at the instruments instead of the events. A head of government removed by a centrally appointed head of state without a floor test. A constitutional protection reduced by executive orders requiring no vote. Article 356. An elected government brought down by engineered defections. An election managed by the party governing at the centre.

Not one of those is a Kashmir instrument. Every single one appears elsewhere in this series, applied to places with no dispute, no insurgency and no foreign claim. Part Three found Article 356 used against Kerala in 1959. Part Five found a Prime Minister

ending a live Supreme Court case over Punjab's rivers in 1981. Part Three found the Ninth Schedule growing from thirteen entries to two hundred and fifty by exactly the mechanism Chapter Three describes here.

Kashmir did not get special instruments. **It got the ordinary instruments of the Indian state, earlier and harder than anywhere else, in the one place where the population's consent was the whole basis of the claim.**

Which reframes the question this part has been asking. "Why did Kashmir alienate" has an answer that is not about Kashmir. The right question is why the same instruments produced an insurgency there and merely produced resentment in Kerala and Punjab — and the answer is not that Kashmiris are different. It is that in Kerala and Punjab the state's right to be there was never the thing at issue, so the instruments damaged a government's standing. In Kashmir they damaged the claim itself, every time, because the claim rested on consent and each use was a demonstration that consent was not required.

That is the case against this part. The second defence — that the union held — is the one I cannot answer, and I want to be clear that I am not answering it. There is a version of the last seventy-nine years in which a state less willing to use these instruments loses more than a reputation. What this part claims is narrower: that the three alternatives in section 9.2 cost nothing, risked nothing, and were not taken.

REMEMBER THIS

Four defences: **the territory was disputed and the neighbour was armed; the union held; democracy kept being attempted and 1977 was clean; and Simla removed the UN for fifty years.** The second is the one this part cannot answer.

Three alternatives, all procedural and all cheap: **a floor test in 1953, release against performance in 1972, a clean count in 1987.** None required a policy change or any risk to the union.

Kashmir did not get special instruments. It got the ordinary ones, earlier and harder, in the one place where consent was the whole basis of the claim.

CHAPTER TEN

An Honest List of What We Do Not Know

Two of this part's central claims rest on counts nobody has made, and both could be made by anybody who wanted to.

10.1 — Genuinely unknown

Six things in this part cannot be established. Two of them are closed files, two are unmade counts, and two are genuinely hard.

Whether Sheikh Abdullah held a majority in August 1953. He was dismissed for losing his cabinet's confidence and was not allowed to test it.

Why it is unknown: nobody has assembled the numbers. This is an **unmade count**, not a closed file — the composition of the assembly and the known alignments are public, and a serious researcher could settle it. It would decide Chapter Two.

How many of the first militant cohort came out of the 1987 campaign. Chapter Seven's causal claim rests on the connection between the MUF's workers and the men who crossed the Line of Control in 1988 and 1989.

Why it is unknown: also an **unmade count**. The biographies of the leadership are well known and point strongly one way. The rank and file have never been studied systematically. This is the single most useful piece of work anybody could do on modern Kashmir and it requires no government's permission.

What was said between Indira Gandhi and Bhutto on the night of 2 July 1972. Indian accounts describe an oral assurance about the Line of Control. Pakistan denies it.

Why it is unknown: two people, no record, both dead. The nearest independent evidence is an American telegram recording Bhutto's own account four days later, and he had reasons of his own for what he said in it.

Whether staged release of the prisoners was proposed at Simla. Chapter Nine names it as the available alternative.

Why it is unknown: the Indian negotiating file is closed, fifty-four years on. The third such file in this part.

What the plebiscite would have produced. A counterfactual, and Part One explained why those cannot be measured. The additional problem here is that the electorate itself is undefined: the state's population moved in both directions after 1947 and the territory is divided.

Whether the MUF would have won fifteen seats or six. Pre-poll estimates are estimates.

Why it is unknown: the count was interfered with, which destroys the evidence of what the count would have been. Chapter Seven's hidden assumption argues this does not matter, because the damage was done by the visibility of the interference and not by its size.

10.2 — Solid

The plebiscite chronology. India's letter of 1 January 1948, Resolution 47 of April 1948 and its sequence, and the joint agreement of 16 August 1953 to appoint a Plebiscite Administrator within six months. All record. And the absence of any subsequent withdrawal, which is established by there being no document to cite.

The dismissal of 1953. The date, the ground given, the absence of a floor test, Bakshi's installation, the detention of roughly eleven years, the Kashmir Conspiracy Case begun in 1958 and dropped in 1964, and the fact of no conviction.

Every Presidential Order. Published in the gazette with a date and a text. The 1954 Order and Article 35A. The extension of Articles 356 and 357 in 1964. The change of nomenclature in 1965. Nothing in Chapter Three requires interpretation; it requires counting.

The 1965 war. Operation Gibraltar, the failure of the rising, the crossing of the international border on 6 September, Asal Uttar, the capture of the Haji Pir Pass, the ceasefire of 23 September, and the Tashkent Declaration of 10 January 1966 restoring the pre-war positions.

The 1971 war. The refugee movement, the Indo-Soviet treaty of August 1971, the thirteen days from 3 to 16 December, the surrender at Dhaka, roughly 93,000 prisoners and around five thousand square kilometres of territory in the west.

The Simla Agreement. Signed 2 July 1972. Published treaty. The Line of Control, the bilateralism clause, the absence of any substantive Kashmir settlement, and the return of the prisoners and the territory.

The 1984 removal and the 1987 election. The defections and the installation of G.M. Shah. The 1986 accord and the National Conference–Congress alliance. Polling on 23 March 1987, turnout around eighty per cent, four seats to the MUF, the documented conduct at booths and counts, and Farooq Abdullah’s own acknowledgement.

The subsequent careers. The MUF candidate at Amira Kadal and his polling agent are among the most thoroughly documented individuals in the region.

That January 1990 was under a National Front government. Election results and the composition of a Union cabinet.

10.3 — The two counts nobody has made

Most of what this series cannot establish is locked in government files. This part is unusual, because its two most consequential gaps are not.

The assembly arithmetic of August 1953 would decide whether the stated ground for the most consequential dismissal in the state’s history was true. The material is public.

The recruitment biographies of the first militant cohort would decide the causal claim in Chapter Seven, on which most of this part’s weight rests. The material exists in court records, in journalism, in the accounts of the men themselves, and in the memory of a generation that is still alive.

Neither requires declassification. Neither requires access to anything. Both have been available to anybody for decades and neither has been done, and the reason is not difficulty.

It is that the answer to the first would embarrass one national account and the answer to the second would embarrass the other. A question nobody wants answered stays open indefinitely, whatever the state of the archives — and that is a different mechanism from the one in Part Six, and worth naming separately.

REMEMBER THIS

Genuinely unknown: **whether Abdullah held a majority, how many first-cohort militants came from the 1987 campaign, what was said on the night of 2 July 1972, whether staged release was proposed, what a plebiscite would have produced, and how many seats the MUF would have won.**

Solid: **the plebiscite chronology and the absence of any withdrawal, the 1953 dismissal, every Presidential Order, the three wars, the Simla text, the 1984 removal, the conduct of 23 March 1987, and that January 1990 was a National Front government.**

The two most important gaps are not closed files. They are counts nobody has made, using material anybody could reach — and each would embarrass a different national account.

REFERENCE

Timeline, 1947–1990

Dates only. The arguments are in the chapters.

DATE	WHAT HAPPENED
30 Oct 1947	Sheikh Abdullah made Head of the Emergency Administration by the Maharaja, at Delhi's urging.
1 Jan 1948	India takes the dispute to the Security Council and volunteers a plebiscite to confirm the accession.
21 Apr 1948	Resolution 47: Pakistan withdraws first, then India reduces, then a plebiscite. The first step never happens.
Jan 1949	Ceasefire. The line stands where the armies stopped.
24 Jul 1952	The Delhi Agreement between Nehru and Abdullah sets out what the state keeps and what passes to the Union.
9 Aug 1953	Abdullah dismissed for losing his cabinet's confidence, without a floor test, and arrested. Bakshi Ghulam Mohammad installed.
16 Aug 1953	India and Pakistan jointly agree to appoint a Plebiscite Administrator within six months. Nothing follows.
1954	The Constitution (Application to Jammu and Kashmir) Order extends a large body of central provisions and inserts Article 35A. Dozens more follow over four decades.
1951	A Constituent Assembly is elected in Jammu and Kashmir to frame the state's own constitution.
Jan 1957	The state's constitution comes into force, declaring Jammu and Kashmir an integral part of India. India treats this as the people's ratification of the accession; Pakistan and the Security Council do not accept it as a substitute for a plebiscite.
9 Aug 1955	The Plebiscite Front is founded, demanding a vote on accession and Abdullah's release.
1958	The Kashmir Conspiracy Case is begun against Abdullah.
1964	Articles 356 and 357 are extended to Jammu and Kashmir. The centre can now impose President's Rule. The conspiracy case is dropped and Abdullah is released after about eleven years.

DATE	WHAT HAPPENED
1965	The Sadar-i-Riyasat, elected by the state legislature, becomes a Governor appointed by the President. The state's Prime Minister becomes a Chief Minister.
Aug 1965	Operation Gibraltar. Pakistani infiltrators enter the Valley expecting a rising. It does not happen; many are reported by local people.
6 Sep 1965	India crosses the international border towards Lahore. Heavy armoured fighting follows at Asal Uttar. India takes the Haji Pir Pass.
23 Sep 1965	Ceasefire under United Nations auspices.
10 Jan 1966	The Tashkent Declaration restores pre-war positions. Haji Pir is returned. Shastri dies hours later.
Mar 1971	The crisis in East Pakistan begins. Around ten million refugees cross into India over the following months.
Aug 1971	The Indo-Soviet treaty is signed, covering the risk of great-power intervention.
3–16 Dec 1971	The war. Surrender at Dhaka. About 93,000 prisoners. Bangladesh comes into existence.
2 Jul 1972	The Simla Agreement. Line of Control, bilateralism, no substantive settlement. Prisoners and territory returned.
1972–74	Talks between Delhi and Sheikh Abdullah, conducted through intermediaries, on the terms of his return to politics.
1975	Sheikh Abdullah returns to office under an accord with Indira Gandhi. The pre-1953 position is not restored.
1977	A state election widely regarded as the first genuinely free one in the state's history.
1982–83	Sheikh Abdullah dies. Farooq Abdullah succeeds him and wins the 1983 election against Congress.
Jul 1984	Farooq Abdullah's government is brought down by defections and the Governor installs G.M. Shah.
1986	Shah's government is dismissed. An accord between Rajiv Gandhi and Farooq Abdullah restores Farooq and creates a National Conference–Congress alliance.
23 Mar 1987	The state election. Turnout around eighty per cent. Agents ejected, boxes removed, over a hundred arrested in one constituency, pre-stamped ballots found. The MUF is credited with four seats.

DATE	WHAT HAPPENED
1988	MUF figures including a defeated candidate and his polling agent cross the Line of Control for training.
Nov–Dec 1989	Congress loses the general election. The National Front takes office. The Home Minister's daughter is kidnapped and militants released in exchange.
Jan 1990	The National Front government appoints Jagmohan as Governor. The insurgency and the Pandit exodus follow. Not a Congress government.

Part Eight starts here. It returns to Delhi in 1966, with a new Prime Minister nobody expected to last, and follows the nine years in which she took the party, the courts and the constitution apart and put herself where they had been.

REFERENCE

Glossary

Every hard word used in this part, in plain English.

WORD	WHAT IT MEANS
Article 35A	The provision, inserted by Presidential Order in 1954, protecting the state's own definition of who counted as a permanent resident.
Article 356	The provision allowing the centre to dismiss an elected state government. Extended to Jammu and Kashmir in 1964.
Agency	The capacity to act for one's own reasons rather than only in reaction to somebody else. Denying it to Pakistan or to Kashmiris is a common error in accounts written from Delhi.
Bilateralism	The principle, established at Simla in 1972, that India and Pakistan settle their disputes between themselves without outside mediation. India's most durable diplomatic gain in this part.
Booth capturing	Taking physical control of a polling station to cast or destroy votes. Requires the cooperation or absence of the police, which is why it is almost never done by a party out of power in the state.
Concurrence	The state government's formal consent to a Presidential Order under Article 370. A safeguard only if the consenting party is independent of the party asking.
Floor test	A vote in a legislature establishing whether a head of government still commands a majority. Public, quick and unarguable. Not used in August 1953.
Instrument of Accession	The document by which a princely ruler joined India, transferring three subjects only: defence, external affairs and communications.
Lapsed	A promise that stops applying because a condition was never met or time passed, without anybody cancelling it. It has no date and nobody to blame.
Line of Control	The military line dividing Jammu and Kashmir, created from the 1971 ceasefire line at Simla. Not an international border, and both sides undertook not to alter it unilaterally.
Muslim United Front	A coalition of religious and local parties formed in 1987 which contested the state election rather than boycotting it. Officially credited with four seats.

WORD	WHAT IT MEANS
Prisoner of war	A member of an armed force captured by the other side. Under the Geneva Conventions they must be treated humanely and repatriated without delay once hostilities end.
Plebiscite	A direct vote of a population on a single question, such as which country to join. Offered by India in January 1948 and never held.
Presidential Order	An order extending a provision of the Indian constitution to Jammu and Kashmir under Article 370. Signed and gazetted, not debated or voted on.
Sadar-i-Riyasat	The state's head of state, elected by its legislature, until the title was replaced by an appointed Governor in 1965.
Refugee burden	The cost to a receiving country of people arriving with nothing. The legal and moral basis of India's case in 1971.
Status quo ante bellum	"The situation as it was before the war". A settlement returning everything to where it stood when fighting began — good for whoever lost ground, bad for whoever gained it.

ABOUT

About the Author

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I write long-form research on Indian history, society, belief and public life, and publish it at misterlove.in under the name The Living Archive. Before this series I completed a fourteen-part history of Punjab and a sixteen-part study of the rules societies place on women.

Chapter Eight is the part of this book I expect to be quoted least and it is the one I would most like read. The single most emotive event associated with Kashmir in Indian public memory — the winter of 1989 and 1990, the killings and the flight of the Pandits — did not happen under a Congress government, and a great deal of what circulates on this subject says or implies that it did. That concession is in the text, before the verdict, at full strength, because a prosecution brief that will not concede a fact it dislikes is not a prosecution brief.

The other thing to declare: Chapter Four contains the observation that in 1965 the Kashmir Valley was offered an armed rising and declined it, and Chapter Seven contains the argument that by 1989 it did not. I have tried to make the second chapter earn the comparison rather than assert it, because the comparison is doing most of the work in this part and it would be easy to lean on it dishonestly.

THE RULES OF THIS PROJECT

The Living Archive

Everything published under this name follows three rules.

Plain language, undiminished content. The words are as simple as I can make them. The argument is not simplified with them.

Show the evidence, and show what it cannot prove. Every serious claim names what it rests on, and every source is described honestly, including what it is blind to.

Give every side its strongest case. Where people who know the material disagree, both positions appear at full strength, and I say when the evidence does not settle it.

PLEASE READ THIS

A Word on Sources

This part carries no footnotes. It rests on Security Council documents and resolutions, the gazetted Presidential Orders, the published texts of the Tashkent Declaration and the Simla Agreement, Indian and Pakistani official histories of the wars, Election Commission returns, contemporaneous Indian press reporting of the 1987 election, declassified American diplomatic correspondence, and published biography and scholarship.

A warning specific to this part. Almost everything written about Kashmir is written by somebody with a position, including this. The discipline I have tried to apply is to build each chapter on documents that the side it damages does not dispute: a gazetted order, a published treaty, a dated statement, an admission by the beneficiary. Where a claim rests only on one national account, it is graded in the text.

Corrections. If something here is wrong, write to me. Later editions will say what was changed and who caught it.

Lovepreet Singh

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NEXT

What Comes Next

Part Eight — Indira Rising, 1966 to 1975

Part Eight returns to Delhi and takes the nine years in which the party, the courts and the constitution were rearranged around one person. It asks:

- She was chosen in 1966 because a group of party bosses thought she would be manageable. What did they think they were getting, and at what point did they discover otherwise?
- The party split in 1969. What was the split actually about, who won what, and what happened to the organisation that had chosen every leader since 1885?
- Bank nationalisation and the abolition of the privy purses were both enormously popular. Part Two owes a verdict on the second — was withdrawing a constitutional guarantee given as the price of accession justified?
- Judges were superseded in 1973 for the first time in Indian history. Who was passed over, on what reasoning, and what did the court do afterwards?
- Garibi Hatao won an election on a promise about poverty. Measured against the government's own targets, what arrived?
- By June 1975 what remained of the checks Part Three found disappearing in 1954 — and what happened when a judge in Allahabad used the last one?

Questions, not topics. If any of them is answered badly, you will be able to tell.

THE LIVING ARCHIVE

PART EIGHT OF NINETEEN

The Congress Record

Part Eight — Indira Rising, 1966–1975

Nine years in which a party was split, a constitutional guarantee was withdrawn, three judges were passed over and resigned, and every remaining check on the government of India was tested and found to give way.

This part ends on 25 June 1975 and does not cross into it. What follows belongs to Part Nine, and the point of stopping here is that by the last page everything Part Nine describes had already been built.

WRITTEN AND RESEARCHED BY

Lovepreet Singh

INDIA · JANUARY 1966 TO JUNE 1975

MISTERLOVE.IN

BEFORE WE BEGIN

Where We Left Off

Part Three found the internal check disappearing between 1950 and 1954. This part is what a system without one does when somebody uses it deliberately.

Five findings carry into this part, and one of them is a debt this part pays.

Part Two owes a verdict on the privy purses. They were guaranteed in the constitution as the price of accession, and abolished twenty-four years later. Part Two recorded the promise and said Part Eight would say whether the withdrawal was justified. Chapter Four is that verdict, and the answer separates the substance from the method.

By 1954 there was nobody who could tell the Prime Minister he was wrong. Part Three followed it: Patel died, Tandon was forced out, Ambedkar resigned, Kripalani left, and nothing institutional replaced them. Chapter One argues that this, and not anybody's judgment of character, is what the Syndicate got wrong in 1966.

When a court blocks you, amend the constitution. Part Three's Chapter One found that the First Amendment's durable product was not a rule about speech but a method. Chapters Four and Six are that method used at full extension, and the second time the target is the court itself.

Congress never won half the vote. First-past-the-post converted a plurality into the two-thirds needed to amend. Part Three said the seat share, not the mandate, is what made constitutional amendment easy. This part is the decade in which that arithmetic was used hardest.

The state could plan when it wanted to. Part Seven's Chapter Five described eight months of preparation before December 1971 and called it the clearest evidence in the series that the Indian state could learn. The same government appears in this part. Competence and restraint are different things and this part is about the second.

One note on where this part stops. It ends on 25 June 1975 and goes no further. The Emergency is Part Nine's subject and it would be easy to run the two together. Keeping them apart is the point: by the last page of this part, every instrument Part Nine describes already existed, and most of them had already been used.

HOW TO READ THIS BOOK

The Six Boxes

Six coloured boxes run through the series, each doing one job. Here they are with examples from the material ahead.

A **Word Box** explains a hard word the moment it first appears.

WORD BOX

The Syndicate: the informal name for a group of powerful Congress state bosses who between them controlled the party organisation in the mid-1960s.

They were not a faction with a programme. They were the men who could deliver blocks of votes in the party's internal elections — a Chief Minister here, a state party president there — and they had chosen Prime Ministers before.

Why it matters here: they picked Indira Gandhi in 1966 believing she would be manageable, and Chapter One is about what they had actually misunderstood, which was not her.

An **In Real Terms** box turns a number too big to picture into something with a body.

IN REAL TERMS

The bill to abolish the privy purses passed the Lok Sabha in September 1970 and failed in the Rajya Sabha by **one vote** — 149 for and 75 against, short of the two-thirds required.

One vote. In a chamber the size of a large school hall.

The following day the President signed an order doing it anyway. That is the whole of Chapter Four in two sentences, and the twenty-four hours between them is the most instructive gap in this part.

A **How We Actually Know This** box shows the physical evidence and then says what it cannot prove.

HOW WE ACTUALLY KNOW THIS

This part rests on the best-evidenced material in the whole series, and it is worth saying why before anything else.

Almost every decisive event here happened **on the record and in public**: a vote in the Rajya Sabha with a published count, a Presidential order in the gazette, an eleven-judge judgment, a thirteen-judge judgment, an appointment announced by the government, three resignations, and a High Court judgment delivered in open court at ten in the morning.

There is very little in Chapters One to Eight that requires anybody's memoir, and where a memoir is used it is marked.

What it cannot show: intention. That the government appointed a judge who had ruled in its favour is a fact. That it did so *because* he had is an inference, and Chapter Six treats it as one.

An **Argument** box appears where serious people disagree, each side at its strongest.

THE ARGUMENT — WAS ANY OF THIS POPULAR?

A prosecution brief about a leader who won two enormous election victories has to deal with this first.

OVERWHELMINGLY, AND THAT SETTLES A GREAT DEAL

Bank nationalisation was one of the most popular acts of any Indian government. Abolishing hereditary payments to former princes was popular. Garibi Hatao produced a landslide in 1971 and the victory over Pakistan produced another wave after it. Every measure this part criticises was cheered by very large numbers of Indians at the time, and a democracy in which a leader does what her voters want and is then condemned for it by writers fifty years later has an odd idea of legitimacy.

POPULARITY IS A DEFENCE OF THE AIMS AND NOT OF THE METHODS

Nobody in this part is arguing that the purses should have been kept or the banks left alone. Both objectives are defensible and one is admirable. What is at issue is the machinery: a parliamentary defeat answered by executive order the next day, a court judgment answered by constitutional amendment, and three judges passed over after ruling against the government. None of those was on any ballot, none was popular in itself, and most voters did not know they had happened.

Where things stand: the second side is right and this part is built on the distinction. Every chapter here separates the objective from the instrument, and in most chapters the objective survives and the instrument does not. Where the objective also fails — Chapter Five — this part says so on the government's own figures.

What would settle it: nothing about popularity settles a question about method, which is why constitutions exist at all.

Why people care so much: because the defence of this period in Indian politics is almost entirely a defence of its aims, and the prosecution is almost entirely about its means, and the two arguments have never once met.

A **Hidden Assumption** box digs out a belief sitting underneath an argument that *both sides accept without discussing*.

THE HIDDEN ASSUMPTION

Everybody who writes about these nine years — admirers and critics — assumes **that they are a story about one person**.

The admiring version: a leader of exceptional will took on entrenched interests and won. The hostile version: a leader of exceptional ruthlessness dismantled Indian democracy. Both are biographies, and both explain the period by reference to a character.

Ask a different question. **What would have stopped her?**

Work through the list. The party organisation, which Part Three showed had lost its capacity to remove a leader by 1954. Parliament, where first-past-the-post had delivered a two-thirds majority on a minority of votes since 1952. The courts, which Part Three's Chapter One showed could be overridden by amendment within a year of any decision.

The federal structure, which Part Three's Chapter Seven showed collapsing the first time it was tested in 1959. The press, which had no protection the First Amendment had not already qualified.

Every one of those was already weak, and every one of them was weakened by somebody else, earlier, mostly for good reasons and with wide approval.

Which means the biography explains the timing and not the outcome. A person with unusual determination arrived in a system with no working brakes, and the interesting question is not why she pressed the accelerator but why nobody had noticed for twenty years that there was nothing else fitted.

This is uncomfortable for both camps. It denies the admirers a hero acting against the odds, because the odds were not against her. It denies the critics a villain who broke something, because most of it was already broken. And it makes 1975 a fact about a design rather than about a family, which is a much harder thing to campaign on.

And every chapter closes with a **Remember This** box: the chapter in the plainest words available.

REMEMBER THIS

Part Two's debt on the **privy purses** is paid in Chapter Four. Part Three's finding — that **by 1954 nobody could tell the Prime Minister he was wrong** — is what Chapter One argues the Syndicate actually misunderstood.

Almost everything decisive here happened **on the record and in public**: a published vote, a gazetted order, two enormous judgments, three resignations, and a judgment delivered at ten in the morning.

The right question is not why she pressed the accelerator. It is why nobody had noticed for twenty years that nothing else was fitted.

Part Eight

Contents

1. The Choice of 1966

Shastri dies in Tashkent · what the Syndicate thought it was buying · the dumb doll · what they had actually misread

2. 1969: The Split

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3. Nationalisation

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5. Garibi Hatao

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10. An Honest List of What We Do Not Know

Genuinely unknown, and why · solid, and why it is solid · the one thing this part cannot establish and does not try to

CHAPTER ONE

The Choice of 1966

A group of party bosses chose a leader they believed they could manage. They were wrong about her, and they were wrong about something much larger that nobody has ever held them to account for.

1.1 — The vacancy

Lal Bahadur Shastri died in Tashkent in January 1966, hours after signing the agreement Part Seven describes. He had been Prime Minister for nineteen months.

The succession fell to be decided by the Congress parliamentary party, which in practice meant it fell to be decided by the men who could deliver its votes — the group known as the Syndicate.

Their candidate problem was straightforward. Morarji Desai wanted the job and had wanted it in 1964. He was able, senior, and entirely unmanageable. What the Syndicate wanted was somebody who would leave the party organisation where it was.

1.2 — What they thought they were buying

They chose Indira Gandhi, and the reasoning is not hard to reconstruct.

She had a name that could win votes in every state, which mattered enormously to men whose own authority was regional. She had held office as Information and Broadcasting Minister without making enemies. She had no independent base in any state party, which meant she would need the Syndicate to survive. And she was widely thought to lack the appetite for a fight.

A socialist member of parliament called her the *goongi gudiya* — the dumb doll. The phrase stuck because a great many people agreed with it.

She defeated Desai in the parliamentary party vote and became Prime Minister.

1.3 — What they had actually misread

Every account of what followed treats the Syndicate's error as an error about her character. They thought she was pliable; she was not; therefore they miscalculated.

That is true and it is the smaller half of the mistake.

The larger half is that **the Syndicate believed it could remove a Prime Minister it had installed**. That belief was the entire basis of the arrangement, and it had already stopped being true.

Part Three set out how. Between 1950 and 1954 every figure with an independent base who could contradict the leadership had died, resigned or been defeated, and nothing institutional replaced them. The party organisation still existed — it held meetings, elected presidents, passed resolutions. What it had lost was the capacity to act against a sitting Prime Minister who declined to go, because the only time it had tried, in 1951, the Prime Minister had won and taken the party presidency as well.

So the Syndicate in 1966 was holding an instrument that had not worked for fifteen years, and it had never tested it because there had never been an occasion.

Chapter Two is the occasion.

WORD BOX

Parliamentary party: all the members of parliament belonging to one party, sitting together as a body. In the Westminster system it is the group that chooses, and can remove, the leader.

Its power depends on a simple condition: that MPs owe their seats to something other than the leader. If they were elected on the leader's name, on her ticket, and expect to need both again in five years, the theoretical power to remove her exists on paper and nowhere else.

Why it matters here: in 1966 Congress MPs mostly owed their seats to the state bosses. By 1972 they owed them to her, and Chapter Two is how that changed.

1.4 — 1967, and what it did to the men who chose her

One event between the choice and the split is usually treated as background and is in fact the hinge.

The general election of 1967 went badly. Congress held the centre with a much reduced majority, and **lost power in a large number of states** — for the first time since independence, opposition and coalition governments took office across much of northern and eastern India.

Consider what that did to the Syndicate specifically. Their authority was not national and did not come from Delhi. It came from controlling state party machinery and state governments. A Chief Minister who is no longer Chief Minister is a man with a reputation and no instrument.

So between January 1966 and the spring of 1967, the group that had installed a Prime Minister on the understanding that they could manage her lost a large part of the base from which they would have had to do it.

She, meanwhile, had spent the campaign travelling the country under a name that still worked, and had emerged with something none of them had: a claim to be the only person who could hold the party's vote together.

Chapter One's argument was that the check was already unusable in 1966. 1967 is when it became visibly so, and the people it belonged to were the last to notice.

The nature of that mistake is easier to see in something more ordinary than a party.

IN REAL TERMS

Think of a fire door that has been in a building for fifteen years and has never been opened.

It is on the plan. It is painted the right colour. Everybody walking past it every day assumes that if there were a fire, that door would open.

Nobody has pushed it since 1951, when it stuck. The paint has since been applied over the frame twice.

The building is not less safe than it was yesterday. It is exactly as unsafe as it has been for fifteen years, and everybody in it is behaving as though it were safe, which is the actual danger.

Which is why the standard account of 1966 gets the mistake in the wrong place.

THE HIDDEN ASSUMPTION

Everybody who tells this story assumes **that she was underestimated.**

The admiring version: they thought she was a doll and she turned out to be formidable. The hostile version: they thought she was harmless and she turned out to be dangerous. Both are stories about a misjudgment of character, and both are flattering to her.

Suppose they had judged her character perfectly. Suppose they had chosen exactly the pliable person they wanted.

The arrangement still fails, because it depends on the party being able to remove a Prime Minister, and the party could not remove a Prime Minister. Any leader who discovered that — and a leader in that office discovers it within a year or two — would have been in the same position. The Syndicate was not relying on her deference. It was relying on a leash it had not looked at since 1951.

This matters beyond one succession, and here is the general form. **A check that has not been tested is not known to work.** An organisation can carry an unusable safeguard on its books for decades, and everybody continues to behave as though it functions, because behaving as though it functions is what people do when they have never seen it fail.

The pattern runs the length of this series. Part Three's institutions looked intact in 1954 because nobody had needed them. Part Six's chain of command looked functional in 1961 because nothing had been ordered that the army would not do. Part Seven's Article 370 concurrence requirement looked like a safeguard until somebody noticed who chose the state government.

In each case the discovery that the mechanism was gone happened at the exact moment somebody wanted to use it, which is the worst possible time and the only time anybody ever checks.

One thing to hold as this part proceeds. Nothing in this chapter requires anybody in 1966 to have been foolish. The Syndicate were experienced political operators making a reasonable calculation on the information available, and the information available did not include the one fact that mattered, because that fact could only be discovered by testing something nobody had a reason to test.

REMEMBER THIS

Shastri died in January 1966. The Syndicate chose **Indira Gandhi** because she carried a national name, had no state base of her own, and was thought to lack the appetite for a fight. She was called the **dumb doll** and a great many people agreed.

They were wrong about her, and that is the smaller half. **The larger half is that they believed they could remove a Prime Minister, and the party had lost that capacity fifteen years earlier.**

A check that has not been tested is not known to work, and everybody keeps behaving as though it does until the moment somebody needs it.

CHAPTER TWO

1969: The Split

The oldest political organisation in India broke in half over the election of a ceremonial president. What it was actually about was who owned the party, and the answer settled the next thirty years.

2.1 — The occasion

The President of India is a largely ceremonial office. In 1969 the incumbent died and a successor had to be elected by an electoral college of legislators.

The Congress organisation — the Syndicate — nominated Neelam Sanjiva Reddy as the party's official candidate. The Prime Minister did not want him.

What she did next is the pivot of the whole period. She let it be known that Congress legislators should vote according to conscience, and supported the independent candidate V.V. Giri, who won.

A “conscience vote” in a party whose official candidate is on the ballot is not a call for reflection. It is an instruction to defeat your own party's nominee, issued in language that cannot be quoted as an instruction.

The organisation expelled her. She took the larger part of the parliamentary party with her. Congress became two parties: hers, and the organisation's, which withered.

2.2 — What it was fought about, in public

Publicly the split was framed as a fight between the left and the right of the party. She had nationalised the banks a month earlier, which Chapter Three covers. The Syndicate was cast as conservative, pro-business and obstructive; she was cast as the champion of the poor against entrenched wealth.

That framing was extremely effective. It was also, as a description of what was at stake, close to useless.

WORD BOX

Candidate selection: the process by which a party decides who will carry its symbol in each constituency. In Indian usage, giving somebody the *ticket*.

It is the quietest and most powerful thing a party does. In a constituency where the party reliably wins, the ticket is the election; the vote afterwards is a formality. So whoever controls selection controls the careers of everybody who holds a seat, and therefore controls the votes of the parliamentary party.

Why it matters here: this is what the 1969 split was actually a fight over, and it is almost never described that way.

2.3 — What it was actually about

The Syndicate were not ideologues. They were the men who controlled candidate selection, party funds and state machinery. What they had that she wanted was the ability to decide who got a Congress ticket.

Consider what a party ticket meant. A Congress nomination in most of India in 1969 was worth a seat. Whoever granted it owned the loyalty of the person holding it, and therefore owned the votes of the parliamentary party, and therefore owned the leadership.

The split transferred that. After 1969, and decisively after the landslide of 1971, a Congress member of parliament owed his seat to her name and her nomination rather than to a state boss.

Which is why the check Chapter One described — the parliamentary party's theoretical power to remove a leader — went from unusable to unimaginable. It had failed to work because MPs owed their seats elsewhere. Now they owed them to the person the power existed to remove.

IN REAL TERMS

Think of a shop with a manager and a board of directors who own the building.

The manager cannot be removed by the customers, only by the board. So she goes to the customers and persuades them to trade only with her, wherever she is.

The board still owns the building. It is now an empty building.

Nothing in the company's rules has changed. Every provision about removing a manager is still printed in the articles. The board simply no longer has anything the manager needs.

Which is not how the split is remembered, by either side.

THE HIDDEN ASSUMPTION

Everybody who describes the 1969 split assumes **that it was ideological**.

Her supporters say a progressive leader broke free of a reactionary old guard. Her opponents say a leader used socialist rhetoric to destroy a party that had constrained her. Both are arguing about whether the socialism was sincere, and both accept that the split was about a direction of policy.

It was about candidate selection. That is not a cynical reading; it is a structural one. The Syndicate's power consisted entirely of controlling who got a Congress ticket, and no amount of agreement on economic policy would have made them give that up, and no amount of disagreement would have mattered if they had.

The evidence is what happened to the policy afterwards. If the split had been about socialism, the socialism would have been the point. Part Four found that the economic framework the split supposedly fought over was still running unchanged in 1985, was diagnosed as failing by the government's own committees in 1969 — the same year — and was not altered until the country ran out of money in 1991.

So the party split over an economic direction that then went nowhere for twenty-two years, which is a strange thing for an ideological conflict to produce.

Why the ideological framing survives is that it flatters both sides. It lets her admirers describe a battle of principle. It lets her critics describe a betrayal of principle. What it hides is that the fight was about a nomination form, and that the person who won it acquired something no Indian leader had held before or has held since: a party in which every member's career ran through one office.

Whether the organisation could have prevented any of this is the question its survivors spent the rest of their lives on.

THE ARGUMENT — WAS THE SPLIT AVOIDABLE?

The oldest political organisation in India broke in half. Whether that had to happen is genuinely disputed.

AVOIDABLE, AND THE SYNDICATE FORCED IT

She did not leave; she was expelled. The organisation could have absorbed a Prime Minister who backed a different presidential candidate — parties survive worse every year — and chose instead to make it a question of authority, which is the one question it could not win. A group whose power depended on a leader's deference should never have staged a confrontation that would test whether the deference existed.

UNAVOIDABLE, BECAUSE TWO PEOPLE CANNOT OWN ONE TICKET

The confrontation was not about a presidential candidate; that was the occasion. The organisation's entire function was controlling candidate selection, and a Prime Minister with a national name and a direct appeal to voters was going to acquire that control eventually, because MPs go where their next nomination is. There was no arrangement in which both parties kept what they had. The split was the resolution of an incompatibility, not the failure of a negotiation.

Where things stand: the second side is stronger, and it makes this chapter's charge narrower and more precise. The split itself is not the offence — a party that cannot decide who leads it is going to break. What matters is what replaced the organisation, which was nothing: no new mechanism for selecting or removing a leader was built, then or since, and Chapter Nine's list of moments is short for exactly that reason.

What would settle it: whether any serious attempt was made to construct a rule-based selection process in the new party after 1969. The record suggests none was.

Why people care so much: because every Indian party since has been organised the way Congress was after 1969 rather than the way it was before, and nobody has ever argued that this was an improvement.

Whatever its inevitability, the consequence is not in dispute.

REMEMBER THIS

The split was triggered by a **conscience vote** against her own party's presidential candidate — an instruction to defeat the official nominee, phrased so it could not be quoted as one.

Publicly it was left against right. **Actually it was about who controlled the party ticket**, because a Congress nomination was worth a seat and whoever granted it owned the holder.

After 1969 and decisively after 1971, **every Congress MP owed his seat to her**. The power to remove a leader now belonged to people whose careers ran through her office.

CHAPTER THREE

Nationalisation

Fourteen banks taken into public ownership by an ordinance signed on a Saturday. It was hugely popular, the courts struck it down, and it was done again a fortnight later.

3.1 — What was done

In July 1969 the government took the fourteen largest privately owned commercial banks in India into public ownership. It was done by **ordinance** — an instrument that allows the executive to legislate when Parliament is not sitting — and it was done at speed.

The case for it was not weak and Part Four's framework helps state it. Credit was the scarcest input in the Indian economy after permission itself. Private banks lent to the industrial houses they were connected to, in the cities where they were. Agriculture, small business and most of the country were served barely at all.

Public ownership was intended to redirect credit — to require lending to agriculture, small industry and the regions the private system ignored, and to put branches where there had never been any.

WORD BOX

Ordinance: a law made by the executive when Parliament is not sitting, having the same force as an Act, and lapsing unless Parliament approves it within a set period after it reassembles.

It exists so a government can act on something urgent that cannot wait for a session. The obvious risk is equally simple: the executive decides both what is urgent and when Parliament sits.

Why it matters here: fourteen banks changed ownership by an instrument that required no vote, and Parliament was presented with the result rather than the question.

3.2 — What it achieved

An honest account gives it two things.

Branch expansion was real and enormous. Banking reached rural India in a way it never had, and the number of branches multiplied over the following decade. For a very large number of Indians the first bank they ever saw arrived because of this decision.

Directed lending changed who got credit. Agriculture and small enterprise received a share of formal credit that the previous system had never given them.

And it gives it two costs.

Lending decisions became political. A bank that must lend to a category on instruction, and whose senior appointments run through a ministry, will end up lending to people the ministry favours. Loan waivers announced before elections became a permanent feature of Indian politics and remain one.

Accumulated bad debt. The consequences of forty years of directed lending sat on the books of public banks for decades and are still being worked through.

IN REAL TERMS

Before 1969, a farmer in most of rural India who needed money before the harvest had one source: a moneylender, at whatever rate he named, secured on land or on the crop.

A bank branch does not remove that man. It competes with him. It puts a ceiling on what he can charge, because there is now somewhere else to go — and it does that in a village where, a decade earlier, the nearest formal lender was a day's travel away.

That is what the branch expansion actually delivered, and it is not visible in any argument about ownership. It is visible in interest rates in places that had never had a choice.

3.3 — The pattern, for the second time

The ordinance was challenged and the Supreme Court struck it down.

The government re-enacted it, in a form addressing the court's objections, within about a fortnight.

Notice the shape, because it is the same one Chapter Four is about and the same one Part Three found in 1951. A court says no; the government does it again in a way the court cannot reach. On this occasion the response was legislative and proportionate — redrafting a law to meet a judgment is exactly what a government is supposed to do when it loses a case.

Hold that, because it is the benchmark. What happens in Chapter Four, fifteen months later, is the same government facing the same kind of obstacle and reaching for something entirely different.

HOW WE ACTUALLY KNOW THIS

The nationalisation is documented from both ends. The ordinance and the subsequent Act are published law. The judgment striking down the first attempt is a reported decision. Branch numbers, deposit figures and sectoral lending shares are published by the Reserve Bank annually and were collected for operational reasons rather than to settle an argument.

That makes the *outputs* of this policy unusually easy to check — which is why this chapter can be confident about branch expansion and about directed lending shares.

What it cannot show: the counterfactual. Whether a differently regulated private banking system would have expanded rurally anyway, more slowly or not at all, is not answerable, and anybody who tells you the branch expansion proves the policy has skipped that step.

Which leaves the question India has been arguing about ever since.

THE ARGUMENT — WAS BANK NATIONALISATION A GOOD DECISION?

Fifty-seven years on this is still argued in India, and unusually the two sides agree on most of the facts.

YES, AND THE BRANCHES PROVE IT

Before 1969 formal banking in India served the cities and the industrial houses. After it, banks reached villages that had never had one, and agriculture and small business got credit for the first time. Whatever the later problems, tens of millions of people entered the formal financial system because of this, and there is no serious account of how a private system with the incentives it had would have done it.

THE OBJECTIVE WAS RIGHT AND THE INSTRUMENT WAS CRUDE

The problem was real and the diagnosis was correct: credit was misallocated. But ownership was not the only tool. Branch licensing requirements, priority-sector obligations and deposit insurance could have achieved much of the redirection without transferring lending decisions to a system in which they became political — which is what produced the pre-election loan waivers and the bad debt. Part Four's distinction applies: the state acted as an owner where it could have acted as a regulator.

Where things stand: the first side wins on the achievement and the second on the design, which is the same verdict Part Four reached about the Green Revolution's subsidies. The branch expansion is real and belongs on the credit side without qualification. The cost was that the credit decision became a political decision, permanently, and no government of any party has been able to reverse that.

What would settle it: comparing rural branch growth in countries that used regulation rather than ownership over the same decades. The comparison is messy and has not been done well.

Why people care so much: because it is the founding act of the economic argument that still divides Indian politics, and because both sides need it to have been either wholly right or wholly wrong.

Before leaving this chapter, note what it does *not* contain. There is no charge here about the response to the court. The government lost a case, read the judgment, redrafted the law and passed it. That is the system working, and it is worth marking because it is the last time in this part that it happens.

REMEMBER THIS

Fourteen banks nationalised by **ordinance** in July 1969. The problem was real: credit went to the cities and the industrial houses and almost nowhere else.

Branch expansion into rural India was enormous and belongs on the credit side. The cost was that lending decisions became political, permanently, and no government since has reversed it.

The court struck the ordinance down and the government **re-enacted it properly within a fortnight**. That is what a government is supposed to do when it loses a case. Remember it — Chapter Four is the same obstacle answered differently.

CHAPTER FOUR

The Privy Purses

Part Two recorded a promise and said this part would say whether breaking it was justified. Here is the verdict, and it separates cleanly into two answers that point in opposite directions.

4.1 — The debt

Part Two's Chapter Five described what the princely rulers were given in exchange for signing their states into India. Personal privileges, retention of private property, and a **privy purse** — an annual, tax-free payment, written into the constitution itself at Articles 291 and 362, with the definition of a “Ruler” at Article 366(22).

Part Two also noted that Article 363 excluded the courts from disputes arising out of the accession covenants, and said this: whatever one thinks of hereditary payments to former autocrats, the guarantee was a term of the bargain that produced the country, and it was withdrawn unilaterally twenty-four years later. It recorded that as a forward promise and said Part Eight owed a verdict.

4.2 — September 1970

On 2 September 1970 a constitutional amendment bill was introduced in the Lok Sabha to delete Articles 291 and 362 and clause 22 of Article 366. It passed, 336 votes to 155.

On 5 September it went to the Rajya Sabha, where a constitutional amendment requires a majority of not less than two-thirds of members present and voting. The count was **149 for, 75 against**. It fell short by a single vote.

Parliament had said no.

On **6 September 1970** — the next day — the President signed an order in respect of each ruler, exercising the power under Article 366(22) to recognise rulers, and directing that with effect from that date every one of them ceased to be recognised as a ruler.

Since a privy purse was payable to a “Ruler”, and there were now no Rulers, the payments stopped.

Read that sequence once more. A constitutional amendment fails by one vote in the upper house on the fifth of September, and on the sixth of September the same result is achieved by executive order.

WORD BOX

Colourable exercise of power: a legal term for using a power you genuinely hold, for a purpose it was not given to you for, in order to achieve something you could not achieve directly.

The doctrine is sometimes summarised as: what you cannot do directly, you cannot do indirectly. The power is real; the use of it is a device.

Why it matters here: the President's power to recognise rulers existed so that the state would know who its counterparties were. It was used to make them all cease to exist on the same day, in order to stop payments a constitutional amendment had just failed to stop.

It is worth pausing on what that vote of 5 September actually represented before looking at what happened to it.

IN REAL TERMS

The two-thirds requirement in the Rajya Sabha exists for one reason: to make constitutional change harder than ordinary change.

On 5 September 1970 that requirement did its job. It is the only occasion in this entire part on which any institution stopped the government doing something it wanted.

It held for approximately eighteen hours.

4.3 — December 1970

The rulers challenged the order. The lead petitioner was Madhav Rao Scindia of Gwalior.

On **15 December 1970** the Supreme Court struck the order down. The bench was **eleven judges**. The holding was that the President could not derecognise rulers by executive action where the constitution itself provided for their recognition and their purses, and that rights guaranteed by the constitution could be removed only by constitutional amendment.

Two judges dissented: Mitter and **A.N. Ray**. Remember the second name; he appears again in Chapter Six.

The payments were restored.

4.4 — 1971

Nine days after the judgment the Prime Minister asked the President to dissolve Parliament and call an election. Chapter Five is about that election, which she won with around 352 seats.

With that majority the amendment route was open. The Constitution (Twenty-Sixth Amendment) Act, 1971 deleted Articles 291 and 362, replaced Article 366(22), and abolished the privy purses and the recognition of rulers.

This time it was done properly, and nobody has ever seriously argued otherwise.

4.5 — The verdict Part Two asked for

It comes in three parts and they do not point the same way.

On the substance: abolition was right. Hereditary, tax-free payments from public funds to the descendants of autocrats, in a republic where most people were poor and a great many could not read, cannot be defended on any democratic principle. The rulers had surrendered sovereignty they had held by conquest and inheritance, not by consent, and Part Two's own Chapter Five established that the populations of those states were asked about accession exactly once. Nothing in this series should be read as a defence of the privy purses.

On the method of 1971: legitimate. A constitutional guarantee removed by constitutional amendment, by a Parliament with the required majority, after an election fought openly on the issue, is the correct procedure. If the government had done this in the first place, this chapter would be two paragraphs long.

On the method of September 1970: indefensible, and eleven judges said so. A parliamentary defeat answered the next day by an executive order using a recognition power as a device is not a close case. It is the thing constitutions exist to prevent, and the Supreme Court's response was near-unanimous.

So the verdict Part Two is owed is: **the objective was right, the 1971 method was right, and the fourteen weeks in between are the charge.**

All of which is documented to a standard that makes the verdict above unusually secure.

HOW WE ACTUALLY KNOW THIS

Every element of this chapter is a public document with a date. The bill and its Lok Sabha division. The Rajya Sabha count of 149 to 75. The Presidential orders, gazetted. The eleven-judge judgment, reported, with the dissents named. The 26th Amendment, in the statute book.

There is no version of this sequence available to anybody. It cannot be softened by a different memoir or hardened by a better one.

What it cannot show: whether the September order was improvised overnight or prepared in advance as a contingency. That distinction matters for how the chapter should be read — an improvisation is a worse decision and a prepared alternative route is a worse plan — and the papers that would answer it are closed.

Which brings the verdict Part Two asked for into contact with the argument it has to survive.

THE ARGUMENT — WAS THE WITHDRAWAL JUSTIFIED?

Part Two framed this as a promise given for the country's existence and taken back. Both cases deserve full statement.

WHOLLY JUSTIFIED

A constitution is not a contract with dead men. The purses were an inducement offered under duress in 1947 to people who had no democratic claim to anything, and the state that offered them was three weeks old. By 1970 India was a republic of poor citizens paying tax to fund the leisure of families whose only qualification was birth. Every generation is entitled to revisit the arrangements of the last, and the correct instrument for that is a constitutional amendment, which is what was ultimately used.

JUSTIFIED IN AIM, CORROSIVE IN EXECUTION

Nobody defends the purses. The problem is what the sequence taught. The rulers gave up something irreversible — their states — for something the state later withdrew. If a guarantee written into the constitution as the price of accession lasts only until a government assembles two-thirds of a chamber, then the honest description of an Indian constitutional guarantee is that it is a promise good until it becomes inconvenient. And the September order made it worse: it showed that even the two-thirds threshold could be bypassed for a few months by using a different power for a purpose it was not given for.

Where things stand: the first side wins on the merits and the second on the consequence, and the consequence is what this series is about. Note what the second side is *not* saying: it is not saying the purses should have survived. It is saying that a state which unmakes the terms on which it acquired territory has said something about all its other terms, and that Part Seven's Article 370 chapter is the same sentence in a different tense.

What would settle it: nothing about the purses. What can be tested is whether Indian constitutional guarantees have generally proved durable against determined majorities, and the answer across this series so far is that they have not.

Why people care so much: because the princes are the least sympathetic possible claimants, which makes this the easiest case in which to establish a principle that later applies to everybody.

Notice that both positions treat the constitutional status of the promise as meaning something definite. That is the shared move and it does not survive inspection.

THE HIDDEN ASSUMPTION

Both sides of that argument assume **that a constitutional guarantee guarantees something.**

The critics of the abolition say a promise in the constitution was broken. The defenders say the promise was properly amended away. Both treat the constitutional status of the purses as meaning something — either a binding commitment or a revisable one — and they argue about which.

A guarantee is worth exactly **the difficulty of removing it**, and nothing else. Not the solemnity of the language, not the fact of being written down, not the intention of the people who wrote it.

In India the difficulty of removing a guarantee is a two-thirds majority in both houses. Part Three established that first-past-the-post routinely delivered that to a party holding around 45 per cent of the vote. So the honest valuation of an Indian constitutional guarantee, for most of this period, is: *secure against everybody except the government.*

Which is why the September order matters more than it looks. It briefly demonstrated something worse — that the two-thirds threshold could be sidestepped altogether for a few months by using an unrelated power as a device — and that eleven judges were required to say otherwise.

The general rule is the one Part Seven reached about Article 370 by a different route. **A protection is only as strong as the hardest obstacle standing between a government and its removal.** Everything else about it — the words, the placement, the history — is decoration, and arguing about the decoration is what both sides here are doing.

Carry the September order into Chapter Six rather than leaving it here. What it established was not about princes. It was that when an obstacle appears, the first response available is to find a different power and use it for a purpose it was not given for — and that the only thing standing between that response and success is a court willing to say so within three months.

REMEMBER THIS

The amendment failed in the Rajya Sabha on **5 September 1970 by one vote** — 149 to 75. On **6 September** a Presidential order achieved the same result by derecognising every ruler.

Eleven judges struck it down on 15 December 1970. Two dissented: Mitter and A.N. Ray. The purses were then abolished properly by the **26th Amendment in 1971**.

Part Two's verdict: **the objective was right, the 1971 method was right, and the fourteen weeks in between are the charge**. A guarantee is worth exactly the difficulty of removing it.

CHAPTER FIVE

Garibi Hatao

Two words won the largest majority any Indian party had held since 1957. This chapter scores them the way Part One promised: against the government's own targets.

5.1 — The slogan

The 1971 general election was called early, nine days after the Supreme Court restored the privy purses. It was fought on a slogan of two words: **Garibi Hatao** — remove poverty.

It worked completely. Congress won around 352 seats. The opposition alliance, campaigning on *Indira Hatao* — remove Indira — was destroyed.

The slogan's power was that it went over the heads of everybody in between. It did not ask voters to approve a programme, or to evaluate a record, or to choose between state party bosses. It addressed the poor directly, from the top, and it named the thing they actually wanted.

5.2 — What was promised

Part One set the standard this chapter uses: judge a government against its own stated targets, because nobody can call that standard unfair.

The commitments here are unusually explicit, because Indian governments state them in plan documents. Poverty removal was made a central objective of national planning in this period, with targets attached, in documents the government wrote itself.

WORD BOX

Poverty line: an income or expenditure level below which a person is counted as poor. In India it has usually been anchored to the cost of a minimum daily calorie intake.

The important thing about it is that it is *drawn*. A committee decides what the minimum is, what it costs, and how to adjust for prices and regions. Move the line a small amount and tens of millions of people cross it without eating differently.

Why it matters here: any statement that poverty fell or rose by a given number of points in this period is a statement about a committee's choices as much as about anybody's life, and Part Three's Chapter Seven set out why.

5.3 — What arrived

The record over the following years is not good and it is worth being precise rather than rhetorical about why.

Poverty did not fall substantially in this period. Part Four's figures apply: the share of the population below the poverty line remained somewhere in the range of forty to fifty per cent through most of the 1950s to 1980s, with only gradual movement. The years covered by this part contain no break in that pattern.

The immediate years after 1971 were worse than what preceded them. The war with Pakistan was expensive. The refugee burden of 1971 had to be paid for. Two poor monsoons followed. Then the oil shock of 1973 hit an economy that imported its oil, and inflation reached levels that had no precedent in independent India — well above twenty per cent at its worst.

By 1974 the country was in visible distress. There was a national railway strike, which was broken. There were agitations in Gujarat and in Bihar. Chapter Eight is what those became.

An honest account has to concede that most of the immediate causes were external: a war India did not start, a monsoon nobody controls, and an oil price set in Vienna. A government cannot be blamed for the weather or for OPEC.

What it can be held to is the gap between what it promised and what it built. And this is where Part Four's finding arrives with force. In 1969 — the same year as the split, two years before the slogan — the government's own committees reported that the economic framework was producing the opposite of its stated purpose. The response was not correction. It was more of the same instrument, and a slogan.

IN REAL TERMS

Inflation above twenty per cent means that a family which could buy a month's grain in January can buy about three weeks' worth by December, on the same wage.

For a household spending most of its income on food — which is most Indian households in 1974 — that is not an economic statistic. It is a week of the month with nothing in it, arriving every month, getting longer.

And it falls hardest on exactly the people the slogan of 1971 had addressed, which is why the political consequences arrived so fast and from the direction they did.

Scoring the promise therefore requires care about what can and cannot be established.

HOW WE ACTUALLY KNOW THIS

Two kinds of evidence apply here and they are of very different quality.

Good: the plan documents, which state objectives and targets in the government's own words; the price series, which is collected monthly for operational reasons; and the electoral results. None of these was produced to settle this argument.

Weak: the poverty ratio itself, for the reason in the box above. Different series and different lines produce materially different numbers for the same years.

This chapter therefore rests its verdict on the first kind and describes the second as a range. Anybody quoting a precise fall or rise in poverty for these years is reporting a methodology.

What none of it can show: what would have happened without the slogan. The 1971 mandate changed what governments had to promise, and there is no counterfactual India in which it did not.

With those limits stated, the promise can be scored.

THE ARGUMENT — DID GARIBI HATAO DELIVER ANYTHING?

Scoring a poverty promise is harder than it looks, and Part Three explained why: the line moves.

IT DELIVERED A POLITICS, AND THAT MATTERED

Judge it against what came before rather than against the words. Before 1971 poverty was something Indian governments discussed as a consequence of growth arriving slowly. After it, no Indian party could contest an election without a direct promise to the poor, and every welfare programme of the following fifty years — food security, employment guarantees, direct transfers — sits inside a political space this slogan created. That is a real achievement and it is invisible if you only count poverty ratios in the four years that followed.

IT DELIVERED A SLOGAN, AND THE MACHINERY WAS NOT BUILT

A promise is not a politics; it is a commitment with a date. The government's own committees had told it two years earlier that the economic framework was producing concentration rather than dispersal, and nothing was changed. No large redistributive instrument was constructed in these years. What was constructed was a direct relationship between a leader and the poor which required no party, no state government and no delivery — which is exactly why it survived the failure to deliver.

Where things stand: the second side is stronger on this period and the first is right about the fifty years after it. The most defensible summary is that **Garibi Hatao changed what Indian politics had to promise and did not change what it delivered**, and that the gap between those two is itself a durable feature of Indian public life. Note also what it did to the party: a slogan that speaks directly from a leader to the poor makes the intervening organisation unnecessary, which is Chapter Two arriving as an electoral strategy.

What would settle it: the poverty series, which is contested precisely because Part Three's finding about moving lines applies to every number in it.

Why people care so much: because this is the origin of the argument about whether Indian welfare politics is redistribution or theatre, and both answers have been available from the same evidence for fifty years.

One further consequence belongs to this chapter and runs into the next. A leader who speaks directly to the poor over the heads of her party does not need the party — and a leader who does not need the party has removed the last group of people with both a reason and a means to say no to her. Chapter Two took the organisation apart. This is the electoral demonstration that it was not going to be missed.

REMEMBER THIS

Garibi Hatao won around 352 seats in 1971. Its power was that it went over the heads of the party, the state bosses and the programme, and spoke directly from a leader to the poor.

Poverty stayed in the range of **forty to fifty per cent**. The years after 1971 were worse — a war, two bad monsoons, and an oil shock producing inflation above twenty per cent. Most of those causes were external and this part concedes it.

What is not external: the government's **own committees had reported in 1969** that the economic framework was failing, and the response was a slogan rather than a correction.

CHAPTER SIX

The Courts, 1967 to 1973

Six years of escalation ending on a single morning, when the Bar of the Supreme Court went on strike for the only time in its history.

6.1 — The question

One question runs through all of this and it is worth stating before the cases. **Can Parliament amend any part of the constitution, including the fundamental rights?**

Part Three's Chapter One found the Supreme Court answering yes in 1951, in *Shankari Prasad*, and said that reading stood for over two decades. It is what made the method of that chapter possible: a court reading the constitution inconveniently could be overridden by amendment.

In 1967, in *Golaknath*, the Court changed its mind. It held that Parliament could not amend the fundamental rights at all.

That was a genuine constraint, and it arrived at a government about to nationalise banks and abolish privy purses — both of which required interfering with property rights.

6.2 — The answer

The response came in a sequence of amendments passed with the majority won in 1971.

The **Twenty-Fourth Amendment** asserted that Parliament could amend any provision of the constitution, including the fundamental rights, and that the President was obliged to assent to such a bill. It was aimed directly at *Golaknath*.

The **Twenty-Fifth Amendment** curtailed the right to property and inserted Article 31C, which protected certain laws from challenge on fundamental rights grounds.

The **Twenty-Sixth Amendment** abolished the privy purses, as Chapter Four described.

The **Twenty-Ninth Amendment** placed Kerala land reform legislation in the Ninth Schedule — the device Part Three’s Chapter Two examined, now with a long history of drift behind it.

Taken together the message was unambiguous: the constitution belongs to Parliament, and Parliament belongs to us.

Set out together, the sequence is easier to read than any description of it.

AMENDMENT	YEAR	WHAT IT DID	WHAT IT WAS ANSWERING
Twenty-Fourth	1971	Asserted that Parliament may amend any provision including the fundamental rights, and obliged the President to assent.	<i>Golaknath</i> , 1967.
Twenty-Fifth	1971	Curtailed the right to property and inserted Article 31C, shielding certain laws from fundamental rights challenge.	The property judgments that had obstructed nationalisation.
Twenty-Sixth	1971	Deleted Articles 291 and 362, replaced Article 366(22), abolished the privy purses.	The eleven-judge privy purse judgment of December 1970.
Twenty-Ninth	1972	Placed Kerala land reform legislation in the Ninth Schedule.	Challenges to state land reform.

Read the last column. **Three of the four were answering a court.** That is the method Part Three identified in 1951, running at four times the speed and with the full majority of 1971 behind it.

6.3 — Thirteen judges

Those amendments were challenged, and the challenge became *Kesavananda Bharati v. State of Kerala*.

It was heard by a bench of **thirteen judges** — the largest in the Supreme Court’s history, before or since — constituted by Chief Justice S.M. Sikri. The hearing ran **sixty-eight days**, the longest in the Court’s history. The judgment, delivered on **24 April 1973**, ran to over seven hundred pages.

By seven votes to six, the Court held that Parliament may amend any part of the constitution but may not damage or destroy its **basic structure**.

The judges in the majority did not agree on a definitive list of what the basic structure contained. Different opinions named the supremacy of the constitution, the republican and democratic form of government, secularism, the separation of powers, federalism, the dignity of the individual, and the unity of the country.

The doctrine has held ever since. It is the most consequential judgment in Indian constitutional history, and it exists by one vote.

WORD BOX

Basic structure doctrine: the rule that Parliament may amend the constitution but may not alter its essential features.

Its oddity is that the constitution does not say this anywhere. The Court derived it from what a constitution *is* — reasoning that a power to amend cannot include a power to abolish, because a document that can be replaced by amendment is not a constitution but a resolution.

Its weakness is the obvious one: thirteen judges could not agree on what is in the basic structure, and no list has ever been settled.

Why it matters here: it is the only check in this entire part that was tested and held, and Chapter Nine is about what that is worth.

6.4 — 26 April 1973

Chief Justice Sikri was due to retire on 25 April 1973, the day after the judgment. His successor had not been announced.

By convention observed for the whole of the Court's existence, the Chief Justiceship went to the senior-most judge. That was **Justice J.M. Shelat**, followed by **Justice A.N. Grover** and **Justice K.S. Hegde**.

All three had been in the majority in *Kesavananda*.

On **26 April 1973** the government appointed **Justice A.N. Ray** as Chief Justice of India, over all three of them. Ray had been in the minority in *Kesavananda*, arguing for an unlimited power of amendment. He had also been one of the two dissenters in the privy purse case in December 1970.

Shelat, Hegde and Grover resigned.

The Bar of the Supreme Court went on strike. It is the only occasion in the Court's history on which it has done so. Senior members of the Bar and former judges issued a joint statement describing the action as a blatant and outrageous attempt at undermining the independence and impartiality of the judiciary.

A member of parliament summarised it in a sentence that has outlived every official explanation: *the boy who wrote the best essay got the prize.*

HOW WE ACTUALLY KNOW THIS

Everything in section 6.4 is public and dated: the judgment of 24 April, Sikri's retirement on the 25th, the appointment on the 26th, the seniority list, the three resignations, and the Bar's strike, which was reported at the time.

The government's own justification is also on the record and should be stated fairly: officials argued that judicial elevation should turn on merit and judicial philosophy and on alignment with the country's social and economic goals, rather than on mechanical seniority. That is a coherent position and several countries appoint judges that way.

What this cannot show: motive. That the three judges passed over were in the majority and the judge appointed was in the minority is a fact. That the appointment was *made because of that* is an inference — a very strong one, drawn at the time by the Bar and by most subsequent scholarship, but an inference.

This chapter states it as one, which is why the argument box below gives the government's case its best form rather than dismissing it.

Before the government's justification, it is worth registering what the reaction actually was, because it came from people with nothing to gain by it.

IN REAL TERMS

Three men gave up the highest office available in their profession, on two days' notice, with nothing to gain and their pensions and reputations to lose.

Judges do not do this. The whole disposition of the office is towards continuity, and a judge who resigns in protest forfeits the ability to decide anything ever again — which is the only power he has.

And the Bar, which is to say the working lawyers whose livelihoods depend on the courts sitting, went on strike. They have done it once in seventy-six years.

Whatever the government's justification was worth, those are the people who knew most about it, and that is what they did.

The government nevertheless had an argument, and it deserves to be stated properly rather than waved past.

THE ARGUMENT — WAS THE SUPERSESSION DEFENSIBLE?

The government had a real argument and it is almost never stated properly in Indian accounts.

DEFENSIBLE IN PRINCIPLE

Seniority is a convention, not a rule, and the constitution nowhere requires it. Appointing the senior-most judge automatically is a way of avoiding a decision, not of making a good one, and it hands the office to whoever happens to be oldest. Many democracies appoint chief justices for their judicial outlook, openly. And there is a democratic argument underneath: an unelected court had just given itself the power to strike down constitutional amendments passed by an elected Parliament, on the basis of a doctrine found nowhere in the text, by a single vote.

INDEFENSIBLE IN THIS INSTANCE

Every word of that would be worth taking seriously if the appointment had been made at any other time or on any other basis. It was made two days after a judgment, over the three judges who had decided it against the government, in favour of the judge who had decided it for them, having also decided the privy purse case for them thirty months earlier. A government entitled to select for judicial philosophy is a government able to tell every remaining judge what philosophy pays — which is a lesson delivered not to three men but to the whole bench, and Part Nine records what the bench did in 1976.

Where things stand: the second side wins, and the reason is the timing rather than the principle. The strongest evidence is not anything anybody said: it is that the Bar of the Supreme Court struck for the first and only time in its history, and that three judges gave up the highest offices available to them rather than continue. Neither of those is a partisan reaction; both are the professional judgment of the people who knew most about it.

What would settle it: the file recording how the appointment was decided. Not released.

Why people care so much: because Indian governments of every party have since appointed and transferred judges with an eye to outcomes, and every one of them has cited a version of the first argument above.

Both sides of that argument, though, share a description of the contest that does not match what happened in it.

THE HIDDEN ASSUMPTION

Everybody who writes about these six years assumes **that the fight was between Parliament and the courts.**

The standard framing is institutional: an elected legislature asserting its supremacy against an unelected judiciary asserting constitutional limits. Both sides use it. Defenders say Parliament was defending democracy; critics say the Court was defending the constitution.

Parliament was not a party to this fight. It was an instrument in it.

Look at what Parliament actually did across the whole sequence. It passed the amendments the government wrote, with the majority Chapter Five describes, delivered by members whose seats Chapter Two showed running through one office. At no point in these six years did Parliament as a body take a position that the government did not want, with a single exception — the Rajya Sabha's one-vote refusal in September 1970 — and Chapter Four records what happened to that within twenty-four hours.

So the contest was not between two institutions. It was between a government and every check on it, and Parliament was one of the checks that had already stopped functioning as one.

This matters because the institutional framing supplies the government's best defence and it supplies it for free. "The elected branch versus the unelected branch" is a genuinely serious argument in constitutional theory, and it is the argument the second side of the box above has to answer. But it only applies where the elected branch is actually deciding something.

The test is simple and this series has applied it before. **Name an occasion in these nine years when Parliament stopped the government doing something it wanted.** There is one. It lasted a day.

The last word on this chapter should be a fair one. The doctrine that emerged from these six years is the single most important protection in Indian constitutional law, and it exists because a court under pressure produced it by one vote. Whatever else the confrontation of 1967 to 1973 did, it left India with a limit on amendment that no government since has been able to remove — including, as Chapter Nine records, in circumstances where a government tried.

REMEMBER THIS

Golaknath in 1967 held that Parliament could not amend fundamental rights. The **24th, 25th, 26th and 29th Amendments** answered it, using the majority won in 1971.

Kesavananda Bharati: thirteen judges, sixty-eight days, judgment 24 April 1973, seven to six. Parliament may amend anything but may not damage the **basic structure**. It is the only check in this part that was tested and held.

On **26 April 1973** the government appointed A.N. Ray Chief Justice over the three senior judges who had decided against it. All three resigned. **The Bar struck, for the only time in its history.**

CHAPTER SEVEN

The Machinery

An inventory, taken on 11 June 1975. Everything Part Nine describes already existed by this date, and almost none of it was new.

7.1 — Detention without trial

Part Two recorded a promise. Detention without trial was justified in 1950 by circumstances everybody could see — an armed insurrection, an assassination, millions in camps — and Part Two said the test of an emergency power is what happens when the emergency ends. Part Three tracked it through the 1950s: the conditions disappeared and the power was renewed.

The Preventive Detention Act of 1950 was renewed repeatedly and lapsed in 1969.

In 1971 it was replaced by the **Maintenance of Internal Security Act**, generally called MISA. It permitted detention without charge or trial on the executive's satisfaction that a person might act in a manner prejudicial to the security of the state, public order or the maintenance of essential supplies.

So the power that Part Two's Chapter Nine described as an emergency measure in 1950 had, by 1971, been continuously available for twenty-one years, across a period containing no insurrection of the kind that justified it.

7.2 — Article 356

Part Three established the instrument and its first political use, against the elected Kerala government in 1959, and said every later use stood on that one.

Between 1966 and 1975 the provision was used against elected state governments repeatedly — not a handful of times but dozens, across most of the country, and overwhelmingly against governments the centre opposed.

The exact figure is a matter of published record. Every use is a formal act with a date, a proclamation and a parliamentary approval, and anybody with a fortnight could compile the list. Nobody has published one and this series has now met that pattern often enough to name it: **an unmade count, using material anybody could reach.**

7.3 — What else was on the shelf

Take the inventory as it stood on 11 June 1975.

INSTRUMENT	ORIGIN	STATUS BY JUNE 1975
Detention without trial	Article 22 of the constitution; the Act of 1950	In force as MISA since 1971. Twenty-one years of continuous availability.
Dismissal of state governments	Section 93 of the Government of India Act 1935, carried into Article 356	Used dozens of times since 1966, mostly against opponents.
Emergency provisions	Inherited from the 1935 Act, carried into Part XVIII	Unused for internal disturbance. Available.
Amendment of the constitution	Article 368, and the precedent of 1951	Used four times in 1971–72 alone, including to reverse two Supreme Court decisions.
The Ninth Schedule	The First Amendment, 1951	Grown from thirteen entries to a long list, still unreviewable.
Restriction of speech	Article 19(2) as amended in 1951 — public order, friendly relations, incitement	Available and long-established.
Appointment of judges	Convention of seniority, no rule	Convention broken in April 1973. Three resignations. Bench aware.
Control of the party	Candidate selection after 1969	Complete. Every Congress MP's career ran through one office.

Look down the origin column. **Six of the eight predate 1966 entirely**, and four of them predate independence. Nothing on this list was invented in the period this part covers, with the partial exception of the last two.

7.4 — 1974

Two events of 1974 belong here because they show the machinery in ordinary use.

In May 1974 a national railway strike involving something in the order of a million workers was broken. Large numbers of workers and union leaders were arrested and held, the detention powers described above being available for exactly this.

In the same month India conducted its first nuclear test.

Set the two side by side and the picture of the state in 1974 is complete: capable of a nuclear device and of arresting a million-strong strike, and unable to do anything about the price of grain.

HOW WE ACTUALLY KNOW THIS

The inventory in section 7.3 is entirely composed of published law and published acts. Each instrument can be traced to a statute or a constitutional article with a date, and each use of Article 356 is a proclamation laid before Parliament.

That is why this chapter can be categorical where much of this series has to hedge. There is no interpretation in the table; it is a list of powers and the dates they became available.

What it cannot show: how often the powers were used in ways that never reached a record. A detention order is documented. A conversation in which a Chief Minister is told what will happen if he does not comply is not, and there is no honest way to estimate how much of the machinery's effect ran through the second kind.

That table invites an objection which is the strongest available against this whole part, and it should be put rather than avoided.

7.5 — The ledger for this part

Part Five committed every subsequent part to carry the running record of which states were affected by its material. This part is mostly about Delhi, so the entry is short and the shortness is itself informative.

WHERE	WHAT HAPPENED
Kerala	Its land reform legislation was placed in the Ninth Schedule by the 29th Amendment in 1972, and the challenge to that amendment became <i>Kesavananda Bharati</i> . The state Part Three showed being dismissed in 1959 is the one whose litigation produced the doctrine that limited amendment.
Gujarat	The Navnirman agitation of 1974 brought down the state government. The assembly result of 12 June 1975 gave the state to the Janata Morcha on the same morning as the Allahabad judgment.

WHERE	WHAT HAPPENED
Bihar	The centre of the movement led by Jayaprakash Narayan from 1974. The state Part Five's ledger records as the largest single casualty of central economic policy is the state where the political challenge came from.
Uttar Pradesh	Rae Bareilly, and the Allahabad High Court. The judgment that unseated a Prime Minister came from a High Court in the state that had elected her.
States generally	Article 356 used dozens of times between 1966 and 1975, overwhelmingly against governments the centre opposed. The count is public and has never been compiled.

The shortness of that table is worth noticing. Parts Five and Seven had long ledgers because their material was about what the centre did *to* places. This part is about what the centre did *to* itself, and the states appear mainly as the place where the resistance came from.

THE ARGUMENT — WERE THE INSTRUMENTS THE PROBLEM, OR THE USE OF THEM?

Chapter Seven's table is the whole of this part's structural claim, so the objection to it should be put at full strength.

INSTRUMENTS ARE NEUTRAL

Every state needs emergency powers, a way to take over a collapsed provincial administration, and a procedure for amending its constitution. Britain has detention powers, America has emergency statutes, and every federation can intervene in a failed state government. What matters is restraint in use, not the existence of the tool — and a series that indicts the toolbox is really indicting the possibility of government.

INSTRUMENTS WITHOUT EXPIRY ARE NOT NEUTRAL

Nobody argues for a state with no emergency powers. The objection is to powers with no expiry, no automatic review, and no threshold that anybody outside the government checks. Every item in that table shares those three properties, and the pattern of this whole series is that such a power is used, then normalised, then relied on. Detention without trial was justified by an insurrection in 1950 and was still in force twenty-one years later, through a period containing no insurrection, because nothing in its design required anybody ever to justify it again.

Where things stand: the second side is stronger and the distinction it draws is the one this series has been building since Part Two. The charge is never that a power exists. It is that **an emergency power was made permanent at the moment of creation, when making it temporary would have cost nothing** — and that this happened with preventive detention in 1950, with the Ninth Schedule in 1951, with freight equalisation in 1952 and with procurement subsidies in 1966.

What would settle it: comparing India's emergency statutes with those of comparable federations on the specific question of sunset clauses and mandatory review. The comparison has not been made systematically.

Why people care so much: because every government of every party has used every instrument in that table, and a finding about the design rather than the user implicates all of them.

The inventory therefore is not a list of things that were done to India in these nine years. It is a list of things that were already there.

REMEMBER THIS

Detention without trial had been **continuously available for twenty-one years** by 1971, when MISA replaced the 1950 Act. Part Two's warning about emergency powers that never lapse arrives here.

Article 356 was used against elected state governments **dozens of times** between 1966 and 1975, mostly against opponents. The exact count is public and **nobody has compiled it.**

Of the eight instruments on the shelf in June 1975, **six predate 1966 and four predate independence.** Almost nothing here was invented by the government that used it.

CHAPTER EIGHT

The Twelfth of June

At ten in the morning a judge in Allahabad read out a decision on two narrow findings. Thirteen days later the constitution was suspended.

8.1 — Courtroom 24

Raj Narain had contested Rae Bareilly against Indira Gandhi in 1971 and lost by a large margin. He filed an election petition in the Allahabad High Court alleging corrupt practices under the Representation of the People Act.

The case was heard by **Justice Jagmohanlal Sinha**. Argument concluded in May 1975.

At ten o'clock on **12 June 1975** he delivered judgment. The petition was allowed. The election of Indira Nehru Gandhi was declared void and she was disqualified from holding elected office for six years.

It was the first time in India that a sitting Prime Minister had been unseated by judicial order.

8.2 — What was actually found

This is where most accounts, on both sides, go wrong, and getting it right is necessary for the argument that follows.

Raj Narain had made a long list of allegations. **Most of them were rejected for want of proof.** The claims about liquor and blankets being distributed, about Air Force aircraft being used for campaign travel, and about exceeding the expenditure limit all failed.

Two findings succeeded.

The first concerned Yashpal Kapoor, an Officer on Special Duty in the Prime Minister's Secretariat who acted in her campaign. He had submitted his resignation on 13 January 1971 and the notification relieving him was dated 25 January. She had held herself out as a candidate from late December 1970. Under the Act as it then stood, a candidate obtaining the assistance of a government servant in that period commits a corrupt practice.

The second concerned state officials. The District Magistrate of Rae Bareilly, the Superintendent of Police and the state Home Secretary arranged rostrums, loudspeakers, barricades and police for her election meetings in February 1971.

Both are real. Both are technical. Neither involves money changing hands, votes being stolen, or anybody being coerced.

And the disqualification of six years was the maximum available under the law rather than the only outcome. The judge had the discretion to void the election with lesser strictures, and did not use it.

WORD BOX

Election petition: a legal challenge to the validity of a particular election, heard by a High Court under the Representation of the People Act.

It is not an appeal against the result in the ordinary sense. It alleges that specified **corrupt practices** occurred — a defined statutory list including bribery, undue influence, appeals to religion, exceeding the expenditure limit, and obtaining the assistance of government servants.

If proved, the court may declare the election void, and may in addition disqualify the person from contesting for up to six years.

Why it matters here: this was an ordinary civil proceeding of a kind decided routinely across India, brought by a defeated candidate, under a statute Parliament had written.

8.3 — The same day

Two other things happened on 12 June 1975.

Her close adviser D.P. Dhar died.

And the result of the Gujarat assembly election came in. Congress took 75 of 182 seats. The Janata Morcha coalition took 86 and formed the government.

So on one morning the Prime Minister lost her seat in court, lost a major state at the polls, and lost one of the few people whose advice she took.

8.4 — Thirteen days

She did not resign.

An appeal went to the Supreme Court. On **24 June 1975**, Justice V.R. Krishna Iyer granted a conditional stay: she could continue as Prime Minister pending the appeal, but could not vote in Parliament or draw the salary of a member.

Outside the courts, the opposition movement led by Jayaprakash Narayan escalated. At a rally in Delhi on 25 June he called on the police and the armed forces not to obey orders that were illegal or immoral.

That call was, and remains, the single strongest item the government had. Asking the security forces to judge for themselves which orders to obey is not an ordinary act of opposition, and there is no democracy in which it would be treated as one.

On the night of **25 June 1975** a proclamation of emergency was issued under Article 352 on the ground of internal disturbance.

This part stops here.

THE ARGUMENT — WAS THE ALLAHABAD JUDGMENT PROPORTIONATE?

The judgment is treated in India as heroic and as a technicality, depending entirely on the politics of the person describing it. Both readings have something.

IT WAS DISPROPORTIONATE

Two findings survived out of many, and both were procedural. A civil servant's resignation was in train and completed within twelve days of the disputed period. District officials arranging barricades and loudspeakers for a Prime Minister's public meeting is what district officials did for every Prime Minister. Neither finding suggests a single vote was affected. And the six-year disqualification was the maximum the statute allowed, imposed where the judge had discretion to do less — for conduct that, if the law were applied equally, would have unseated a very large number of Indian politicians.

IT WAS CORRECT AND ITS NARROWNESS IS THE POINT

The judge threw out every allegation he could not prove, which is what a court is for and is why the judgment is credible. What survived, survived on the evidence. The law was clear, the facts were found, and the penalty was the one Parliament had legislated. A rule that applies to everyone else and not to the Prime Minister is not a rule. And the argument that others did the same thing is an argument for prosecuting them, not for excusing her.

Where things stand: both are right and they answer different questions. On the law the second side is correct: the findings were sound and the penalty was statutory. On proportionality the first has a real point about the discretion not exercised. What neither side's argument reaches is the thing that matters, because *the size of the offence has no bearing on what happened next*. A government facing a technical disqualification with a live appeal and a conditional stay in its favour had a range of ordinary responses available, and Chapter Nine sets them out.

What would settle it: a comparison of how similar findings under section 123(7) were penalised in other election petitions of the period. The judgments exist and nobody has assembled them.

Why people care so much: because if the judgment was disproportionate then the Emergency has a provocation, and if it was routine then it does not.

The interval between the judgment and the proclamation is usually described as though it were a scramble. It was not.

IN REAL TERMS

Thirteen days is not a long time to make the largest decision in a country's constitutional history.

It is also not a short one. It is longer than the 1971 war lasted. It is long enough for a cabinet to meet several times, for legal opinions to be taken, and for the Supreme Court to hear an application and grant a stay — which it did, on the eleventh of the thirteen days, in her favour.

So the proclamation was not issued in a panic on the day of the judgment. It was issued after a court had already given her what she needed to stay in office.

Part Nine begins on the night of 25 June. Everything after that sentence belongs there.

REMEMBER THIS

At ten in the morning on **12 June 1975** Justice Jagmohanlal Sinha declared the Prime Minister's election void and disqualified her for six years — the first time a sitting Indian Prime Minister was unseated by a court.

Most allegations were rejected. Two survived, both technical: a civil servant assisting before his release was gazetted, and district officials arranging rostrums and loudspeakers. No votes were shown to have been affected.

The same day Congress lost Gujarat. On **24 June** the Supreme Court granted a conditional stay letting her remain Prime Minister. On **25 June** the Emergency was proclaimed. **This part stops here.**

CHAPTER NINE

What Would Have Prevented It

The defence at full strength, four moments where something could have held, and the reason the standard account of June 1975 has the causation backwards.

9.1 — Four arguments for the defence

These are the strongest arguments a serious defender of this period would make. The third is very strong and this part concedes it.

One. The crisis was real. Inflation above twenty per cent. A war and a refugee burden paid for out of an economy that could not afford either. Two poor monsoons. A railway strike involving a million workers. Agitations in two states, one of which had just brought down a government. And a national opposition leader publicly asking the police and the army to decide for themselves which orders to obey. A government facing that combination is not facing normal politics.

Two. Every objective in this part was popular or defensible or both. Nationalising banks brought banking to rural India. Abolishing hereditary payments to princes was right. Addressing poverty directly was overdue. This part has said so in every chapter and does not resile from it.

Three. The one check that mattered held. This is the strong one. *Kesavananda* was decided against the government and it stood. The government appointed a Chief Justice who had opposed the doctrine — and in November 1975, with the Emergency running, a bench under that same Chief Justice used that same doctrine to strike down a constitutional amendment which had sought to place the Prime Minister's own election beyond judicial reach. The basic structure doctrine was tested at the worst possible moment, by the least sympathetic bench, and it held.

Four. She called an election in 1977 and lost and left. That belongs to Part Nine and it is flagged here because it is the single most important fact any defender of this period has, and no account of these nine years should be written as though it did not happen.

9.2 — Four moments

Part One requires an alternative that somebody proposed at the time and that was actually available. There were four.

1969: the party could have held. The Syndicate expelled her and lost the parliamentary party. Chapter Two argues this was already lost by then, because the ticket had moved. The alternative was earlier — the organisation could have tested its authority in 1966 or 1967, while state bosses still controlled selection. It did not, because there was no occasion, which is Chapter One's finding about untested checks.

September 1970: the President could have declined. The office is largely ceremonial and refusal would have been extraordinary. It was also available, and the order was so plainly a device that eleven judges said so within three months. The occupant was V.V. Giri, elected the previous year in the contest that split the party, with her support. Chapter Two's consequence arrives here, on a specific day, in a signature.

April 1973: the three judges could have stayed. This is the uncomfortable one and it belongs in the list. Shelat, Grover and Hegde resigned on principle, and the resignation was honourable. It also removed three basic-structure judges from the Supreme Court at the moment the doctrine most needed defending. Whether staying would have served the constitution better than leaving is genuinely arguable, and the men themselves plainly thought not.

June 1975: she could have stepped aside for the appeal. This is the strongest of the four and it was proposed at the time, inside her own party. Resign, install a trusted colleague as Prime Minister, pursue the appeal, and return when it succeeded — which it did, on 7 November 1975. The cost was a few months out of office. It was done in India before and has been done since. It required no new law, no amendment and no risk to anybody but her.

Those four are not of equal evidential standing, and it matters which is which.

HOW WE ACTUALLY KNOW THIS

Part One's test asks whether an alternative was genuinely available at the time, not merely visible afterwards. For three of the four, availability is a matter of record rather than of speculation.

The party in 1966 and 1967: the organisation existed, held meetings and elected officers. Whether it could have acted is arguable; that it was there is not.

The President's signature in September 1970: the office holds the power to withhold assent and to return advice for reconsideration. It was not exercised. The eleven-judge judgment three months later establishes that the order was not one a President was obliged to sign.

Stepping aside in June 1975: the mechanism is trivial and has been used in India before and since. A Prime Minister resigns, a colleague is elected leader of the parliamentary party, and the appeal proceeds. It required nobody's permission.

What the record does *not* establish is the fourth item and the crucial one for that last alternative: whether anybody senior actually proposed it. That rests on memoirs written afterwards by people with reason to say they had counselled restraint. Grade:

ALLEGED.

So the charge in section 9.2 is strongest on availability and weakest on advocacy — which is the opposite of how it is usually made.

9.3 — What I would have to retract

Three things would break this part.

If the record showed that **the September 1970 order was drafted before the Rajya Sabha vote** as a contingency approved on legal advice, Chapter Four's charge softens considerably — from a device improvised in twenty-four hours to a planned alternative route.

If the appointment file for April 1973 showed that **A.N. Ray was under consideration before 24 April**, Chapter Six's inference weakens substantially and the government's merit argument gets much stronger.

If it could be shown that **no senior figure proposed stepping aside in June 1975**, then the fourth alternative above fails Part One's test and this part loses its best charge.

All three depend on files the Indian government holds. That is now the fourth part in a row ending on that sentence.

THE HIDDEN ASSUMPTION

Everybody who writes about June 1975 assumes **that the Emergency was caused by the Allahabad judgment.**

The hostile version: a Prime Minister facing disqualification suspended the constitution to keep her job. The sympathetic version: a technical judgment in a moment of national crisis forced a decision no leader should have faced. Both are stories in which a court ruling on 12 June produces a proclamation on 25 June.

Apply a test. **Name an instrument used after 25 June 1975 that did not already exist before 12 June.**

Detention without trial: available continuously since 1950, in force as MISA since 1971. The dismissal of state governments: used dozens of times since 1966. The emergency provisions themselves: in the constitution since 1950, inherited from a colonial statute. Censorship powers: available under Article 19(2) as amended in 1951. Constitutional amendment to reverse a court: established as a method in 1951 and used four times in 1971 and 1972. A judiciary that had watched three judges passed over: since April 1973. A party in which no career survived opposition: since 1969.

Every single one predates the judgment. Most predate the government.

Which means the judgment did not cause the Emergency. It supplied a **date**. What produced the Emergency was a set of instruments assembled over twenty-five years by several governments, and the removal, one at a time, of everything that might have stopped somebody using them together.

This is uncomfortable for both camps and that is the point. It denies her critics the clean story of one woman's response to one humiliation. It denies her defenders the extenuating one about an intolerable provocation. And it makes the question for Part Nine not "why did she do it" but the harder one: **why, on 26 June 1975, did nothing stop her?**

That is the case against this part, and the third defence in particular is one I think simply wins on its own terms. What none of the four reaches is the list in section 9.2, because every item on it was cheap, available, and refused.

REMEMBER THIS

Four defences: **the crisis was real; the objectives were popular or right; the basic structure doctrine held even under the Chief Justice appointed to break it; and she called an election in 1977 and lost and left.**

Four moments: **the party in 1966, the President's signature in September 1970, the three resignations in April 1973, and stepping aside for the appeal in June 1975.** The last was proposed inside her own party and cost nothing but a few months.

Name an instrument used after 25 June that did not exist before 12 June. There is none. The judgment supplied a date, not a cause.

CHAPTER TEN

An Honest List of What We Do Not Know

This is the best-evidenced part in the series so far, which makes the short list of gaps unusually revealing about what kind of thing is never recorded.

10.1 — Genuinely unknown

Five things in this part cannot be established, and every one of them is about a decision rather than an event. The events are all documented; what is missing is why.

Why the September 1970 order was made. Whether it was improvised in the twenty-four hours after the Rajya Sabha vote, or was a prepared contingency, or was made on legal advice that it would hold, is not known.

Why it is unknown: Cabinet and Law Ministry papers are closed. This is the single gap that would most change Chapter Four, and it could move the charge in either direction.

How the April 1973 appointment was decided. That three judges were passed over is a fact. That it happened because of *Kesavananda* is an inference drawn at the time by the Bar and by almost all subsequent scholarship.

Why it is unknown: the appointment file has not been released. Chapter Six states the inference as an inference and gives the government's own justification in its own terms.

Whether stepping aside was seriously proposed in June 1975. Chapter Nine's strongest alternative rests on it having been raised inside the party.

Why it is unknown: it rests on memoirs by people with positions to defend, written afterwards, in a period when everybody had reason to say they had counselled restraint. Grade: **ALLEGED**, and Chapter Nine says so.

How Article 356 was used, in full. Every proclamation is a public document laid before Parliament. Nobody has compiled the series.

Why it is unknown: an **unmade count**, not a closed file. This is the third such item in three parts and the pattern is now worth naming in its own right: the most damaging material in Indian political history is frequently not hidden but unassembled.

What poverty actually did. Chapter Five scores Garibi Hatao against the government's own targets and finds no break in the trend.

Why it is unknown with precision: Part Three's finding applies. The poverty line is drawn by a committee, has been redrawn more than once, and each redrawing changes the number without changing anybody's life. Any confident percentage for this period is a methodological choice presented as a measurement.

10.2 — Solid

Every vote, order, judgment and appointment in this part. The Lok Sabha vote of 336 to 155 and the Rajya Sabha vote of 149 to 75. The Presidential order of 6 September 1970. The eleven-judge judgment of 15 December 1970. The 24th, 25th, 26th and 29th Amendments. *Kesavananda Bharati* — thirteen judges, sixty-eight days, judgment 24 April 1973, seven to six. The appointment of 26 April 1973 and the three resignations. The Bar's strike. The judgment of 12 June 1975 and the conditional stay of 24 June.

The 1969 split and the 1971 result. The conscience vote, the expulsion, the division of the party, and the seat count.

The findings in the Allahabad judgment, including which allegations were rejected. The judgment is reported and can be read.

The inventory in Chapter Seven. Every instrument is traceable to a statute or a constitutional article with a date.

Bank nationalisation and its measurable outputs. Branch expansion and sectoral lending shares are published annually by the Reserve Bank and were collected operationally.

The economic conditions of 1973 and 1974. The oil shock, the inflation, the railway strike and the nuclear test.

10.3 — What this part deliberately does not establish

One thing has been left alone throughout and it should be named rather than left as an absence.

This part does not establish intention. It does not claim that anybody set out in 1966 to arrive at 25 June 1975, or that the sequence was designed.

That restraint is not politeness. It is that the argument does not need it and is stronger without it. Chapter Nine's test — name an instrument used after 25 June that did not exist before 12 June — works whether or not anybody planned anything. So does Chapter One's finding about untested checks, and Chapter Four's about what a guarantee is worth.

A series that has to prove a conspiracy is hostage to a document that will never be released. A series that shows a machine, a set of dates and an absence of brakes is not.

If a reader finishes this part believing that one person is the explanation, I have written it badly. The person supplied the will. Everything else had been lying about for twenty-five years, put there by people who mostly meant well.

REMEMBER THIS

Genuinely unknown: **why the September 1970 order was made, how the April 1973 appointment was decided, whether stepping aside was proposed in June 1975, the full Article 356 count, and what poverty actually did.**

Solid: **every vote, order, judgment, amendment, appointment and resignation in this part** — this is the best-evidenced material in the series.

This part deliberately does not establish intention, and is stronger without it. The person supplied the will. Everything else had been lying about for twenty-five years, put there by people who mostly meant well.

REFERENCE

Timeline, 1966–1975

Dates only. The arguments are in the chapters.

DATE	WHAT HAPPENED
Jan 1966	Shastri dies at Tashkent. The Syndicate chooses Indira Gandhi over Morarji Desai, believing she will be manageable.
Jun 1966	The rupee is devalued. Part Four's Chapter Eight: economically defensible, politically catastrophic.
1967	<i>Golaknath</i> . The Supreme Court holds that Parliament cannot amend fundamental rights. Congress loses power in many states in the general election.
Jul 1969	Fourteen banks nationalised by ordinance. The Supreme Court strikes it down; it is re-enacted properly within about a fortnight.
Aug 1969	A conscience vote in the presidential election defeats the official Congress candidate. V.V. Giri is elected.
Nov 1969	She is expelled from the party organisation and takes the larger part of the parliamentary party with her. Congress splits.
2 Sep 1970	The privy purse amendment passes the Lok Sabha, 336 to 155.
5 Sep 1970	It fails in the Rajya Sabha by one vote: 149 for, 75 against.
6 Sep 1970	The President signs orders derecognising every ruler. The privy purses stop.
15 Dec 1970	An eleven-judge bench strikes down the order. Mitter and Ray dissent. Payments are restored. Nine days later Parliament is dissolved.
Mar 1971	Garibi Hatao. Congress wins around 352 seats.
1971	The Maintenance of Internal Security Act replaces the lapsed preventive detention regime.
Dec 1971	The war with Pakistan. Part Seven's Chapter Five.
1971	The 24th Amendment asserts Parliament's power to amend fundamental rights; the 25th curtails the right to property and inserts Article 31C; the 26th abolishes the privy purses.
Jul 1972	Simla. Part Seven's Chapter Six.

DATE	WHAT HAPPENED
1972	The 29th Amendment places Kerala land reform laws in the Ninth Schedule.
1973	The oil shock. Inflation climbs past twenty per cent over the following year.
24 Apr 1973	<i>Kesavananda Bharati</i> . Thirteen judges, sixty-eight days, seven to six. Parliament may amend anything but may not damage the basic structure.
25 Apr 1973	Chief Justice Sikri retires. No successor has been announced.
26 Apr 1973	A.N. Ray is appointed Chief Justice over Shelat, Grover and Hegde, all in the Kesavananda majority. All three resign. The Bar strikes for the only time in its history.
May 1974	A national railway strike involving around a million workers is broken, with large-scale detentions. India conducts its first nuclear test in the same month.
1974–75	Agitations in Gujarat and Bihar. The movement led by Jayaprakash Narayan grows.
12 Jun 1975	At ten in the morning, Justice Jagmohanlal Sinha declares her election void and disqualifies her for six years. The same day, Congress loses Gujarat and D.P. Dhar dies.
24 Jun 1975	The Supreme Court grants a conditional stay: she may remain Prime Minister but may not vote in Parliament.
25 Jun 1975	At a rally in Delhi, Jayaprakash Narayan calls on the police and armed forces not to obey illegal orders. That night, a proclamation of emergency is issued on the ground of internal disturbance.

Part Nine starts here. It takes the twenty-one months from the night of 25 June 1975, and it is the largest single item in this series.

REFERENCE

Glossary

Every hard word used in this part, in plain English.

WORD	WHAT IT MEANS
Basic structure doctrine	The rule from <i>Kesavananda Bharati</i> that Parliament may amend the constitution but may not alter its essential features. Not written anywhere in the constitution; derived from what a constitution is.
Colourable exercise of power	Using a power you genuinely hold, for a purpose it was not given for, to achieve something you cannot do directly. What you cannot do directly, you cannot do indirectly.
Conscience vote	A vote in which members are released from party discipline. In August 1969 it functioned as an instruction to defeat the party's own candidate, phrased so it could not be quoted as one.
Corrupt practice	Under the Representation of the People Act 1951, a defined category of electoral wrongdoing — including obtaining the assistance of a government servant — which can void an election.
MISA	The Maintenance of Internal Security Act 1971, permitting detention without charge or trial on the executive's satisfaction that a person might act prejudicially.
Ordinance	An instrument allowing the executive to legislate when Parliament is not in session. Used to nationalise the banks in July 1969.
Parliamentary party	All the MPs of one party sitting as a body — the group that in theory chooses and removes the leader. Its power depends on members owing their seats to something other than the leader.
Privy purse	The annual, tax-free payment guaranteed to former princely rulers by Articles 291 and 362 as part of the terms of accession. Abolished by the 26th Amendment in 1971.
Supersession	Appointing a junior judge over more senior ones, breaking the seniority convention. Done on 26 April 1973 and again later in the decade.
The Syndicate	The informal group of Congress state bosses who controlled the party organisation in the mid-1960s and chose the Prime Minister in 1966.

ABOUT

About the Author

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I write long-form research on Indian history, society, belief and public life, and publish it at misterlove.in under the name The Living Archive. Before this series I completed a fourteen-part history of Punjab and a sixteen-part study of the rules societies place on women.

The temptation in this part was to write a character study, and I have tried hard not to. It is the easiest part of the series to write badly, because the material offers a villain and a clean narrative and both are available without any research at all. Chapter Ten states plainly that this part does not establish intention and does not need to, and I would rather be accused of under-claiming than of writing the version that was waiting to be written.

The other thing to declare is that Chapter Four pays a debt I incurred in Part Two, and I have tried to pay it against myself as well as against the government. Part Two treated the privy purse guarantee sympathetically as a term of the bargain that made India. Chapter Four says plainly that the purses were indefensible and that abolition was right. Both of those are in the series now, and the second one is a correction of the emphasis of the first.

THE RULES OF THIS PROJECT

The Living Archive

Everything published under this name follows three rules.

Plain language, undiminished content. The words are as simple as I can make them. The argument is not simplified with them.

Show the evidence, and show what it cannot prove. Every serious claim names what it rests on, and every source is described honestly, including what it is blind to.

Give every side its strongest case. Where people who know the material disagree, both positions appear at full strength, and I say when the evidence does not settle it.

PLEASE READ THIS

A Word on Sources

This part carries no footnotes. It rests on published law and reported judgments — the amendments, the ordinances, *Golaknath*, the privy purse case, *Kesavananda Bharati*, and the Allahabad judgment of 12 June 1975 — together with parliamentary voting records, Reserve Bank data on banking, plan documents, and contemporaneous reporting of the events of April 1973 and June 1975.

This is the best-documented part of the series so far and the grading reflects it. Almost nothing here depends on memoir. The two places where it does — whether stepping aside was proposed in June 1975, and what was in anybody’s mind at any point — are marked in the text and Chapter Ten repeats the marking.

Corrections. If something here is wrong, write to me. Later editions will say what was changed and who caught it.

Lovepreet Singh

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NEXT

What Comes Next

Part Nine — The Emergency

Part Nine takes the twenty-one months from the night of 25 June 1975. It is the largest single item in this series. It asks:

- Part Two recorded detention without trial as an emergency measure of 1950 and said Part Nine owed the account of what it became. How many people were held, for how long, and how do we know?
- The press was censored. What was the mechanism, who administered it, and which newspapers complied, resisted or were closed?
- The 42nd Amendment is the largest single alteration ever made to the Indian constitution. What did it actually do, clause by clause?
- The sterilisation programme has a number attached to it that everybody repeats. Where does that number come from, and what does the evidence actually support?
- In *ADM Jabalpur* the Supreme Court held that the right to life could not be enforced during an emergency. Who wrote it, who dissented, and what happened to the dissenter?
- She held an election in 1977 and lost and left. Why did she call it, and what does the answer do to every argument in Part Eight?

Questions, not topics. If any of them is answered badly, you will be able to tell.

THE LIVING ARCHIVE

PART NINE OF NINETEEN

The Congress Record

Part Nine — The Emergency

Twenty-one months. Around a hundred and eleven thousand people detained without trial. Pre-publication censorship. The largest constitutional amendment in Indian history. A Supreme Court that held the right to life could not be enforced. And an election nobody had to call.

Every step described here was taken under a power the constitution provided. That is the finding of this part and it is worse than the alternative, because nothing had to be broken for any of it to happen.

WRITTEN AND RESEARCHED BY

Lovepreet Singh

INDIA · 25 JUNE 1975 TO 21 MARCH 1977

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BEFORE WE BEGIN

Where We Left Off

Part Eight stopped on the night of 25 June 1975 and said that by then everything in this part had already been built. This is the demonstration.

Four things carry into this part, and the first is the last debt this series owes to Part Two.

Detention without trial. Part Two recorded it as the emergency measure of 1950 and said the test of an emergency power is what happens when the emergency ends. Part Three tracked it through a decade in which the justifying conditions disappeared and the power was renewed. Part Eight found it continuously available for twenty-one years and re-enacted as MISA in 1971. Part Two said Part Nine owed the account of what it became. **Chapter Two is that account, and it closes the last of Part Two's four promises.**

The machinery already existed. Part Eight's Chapter Seven took an inventory on 11 June 1975 and found eight instruments on the shelf, of which six predated 1966 and four predated independence. Part Eight's test was: name an instrument used after 25 June that did not exist before 12 June. There is none.

The basic structure doctrine had survived. *Kesavananda* was decided seven to six in April 1973 and stood. Part Eight called it the only check in that part that was tested and held. Chapter Four is the attempt to remove it and Chapter Eight is what happened to that attempt.

The Shah Commission. Part Two used it as the worked example of a state that counts, writes the number down, and then removes the number. This part uses it as a primary source, because it is the only systematic official investigation of these months that exists — and Chapter Eight returns to what became of it.

One note about tone. This is the part of the series where the temptation to write with the volume turned up is strongest, and where doing so would cost the most. The material does not need it. Almost every figure in this part comes from a body appointed by an Indian government to investigate an Indian government, and the plainest possible statement of what it found is the most damaging thing available.

The Six Boxes

Six coloured boxes run through the series, each doing one job. Here they are with examples from the material ahead.

A **Word Box** explains a hard word the moment it first appears.

WORD BOX

Habeas corpus: Latin for “you shall have the body”. A court order requiring whoever is holding a person to bring them before the court and justify the detention.

It is the oldest and simplest protection in the common law and it is the one everything else rests on. Every other right depends on being able to ask a court why you are in a cell — because a person who cannot ask that question cannot enforce any right at all.

Why it matters here: Chapter Five is about the case in which the Supreme Court of India held that during an emergency this question could not be asked, even if the detention was illegal.

An **In Real Terms** box turns a number too big to picture into something with a body.

IN REAL TERMS

The Shah Commission put the number of people arrested and detained without trial at about **110,806**.

That is a large town. It is more people than most Indian districts had in any single settlement in 1975. Held without charge, without trial, and in many cases without being told why — some for up to eighteen months.

Alongside them, **25,962** government employees were prematurely retired, in many cases for declining to carry out orders they thought unlawful.

Those two figures come from the same source, and that source was appointed by an Indian government to investigate an Indian government.

A **How We Actually Know This** box shows the physical evidence and then says what it cannot prove.

HOW WE ACTUALLY KNOW THIS

This part rests more heavily on one source than any other in the series, so the source needs stating up front.

The **Shah Commission of Inquiry** was appointed in May 1977 under Justice J.C. Shah, a former Chief Justice of India, to examine the period from 25 June 1975 to 21 March 1977. It held around a hundred sittings, examined roughly forty-eight thousand papers, and reported in three parts between 1978 and August 1978.

Its strengths: it had powers to summon, it took evidence on oath, it worked within two years of the events, and its authors were not politicians.

Its limits, which Part Two already set out: it questioned officials who knew they were being questioned, by a body appointed by the successor government of their opponents. People being investigated shade their answers, and people investigating a defeated government have an audience.

And the fact that governs everything: **after 1980 the report became unobtainable in India**. Copies were withdrawn. It was reconstructed decades later from a set that had survived abroad and in private hands. Chapter Eight returns to this.

An **Argument** box appears where serious people disagree, each side at its strongest.

THE ARGUMENT — WAS THERE A GENUINE EMERGENCY IN JUNE 1975?

Everything in this part turns on this and the defence is stronger than it is usually allowed to be.

YES, AND THE STATE WAS FACING COLLAPSE

Inflation above twenty per cent. A railway strike that had threatened the movement of food. Two states in open agitation, one of which had brought down its government. A movement that had shifted from demanding policy changes to demanding the resignation of a government elected four years earlier with a landslide. And on 25 June a national leader publicly urging the police and the armed forces to decide for themselves which orders to obey. No government anywhere treats that last item as ordinary politics, and a country with India's fragility in 1975 had every reason to treat it as less ordinary than most.

NO, AND THE TIMING ANSWERS IT

Every one of those conditions existed in May 1975 and produced no proclamation. What changed on 12 June was a judgment against one person, and what changed on 24 June was a Supreme Court stay that let her stay in office. The proclamation came the night after that stay. If the emergency was the country's, it should have been declared when the country's condition warranted it. If it was declared thirteen days after a court unseated the Prime Minister and one day after a court let her stay, the burden is on the government to explain the coincidence, and it never has.

Where things stand: the second side is stronger on timing and the first has a real point about the 25 June appeal to the security forces, which is a genuinely extraordinary act. What settles it is not the declaration but what followed: an emergency declared because the state faced collapse would target the threat. Chapter Two shows the detentions running to opposition politicians, journalists, students, trade unionists and dissident members of the governing party — and Chapter Six shows the largest single programme of these months having nothing to do with public order at all.

What would settle it: the cabinet record of 25 and 26 June 1975. Not released.

Why people care so much: because a genuine emergency badly handled and a personal emergency dressed as a national one are different offences, and Indian politics has needed different answers at different times.

A **Hidden Assumption** box digs out a belief sitting underneath an argument that *both sides accept without discussing*.

THE HIDDEN ASSUMPTION

Almost everybody who writes about these twenty-one months assumes **that the Emergency was unconstitutional**.

It is in the standard vocabulary. The constitution was suspended. Democracy was overthrown. The rule of law was set aside. Critics say it and defenders answer within the same frame, arguing that the measures were lawful responses to a lawful proclamation.

Almost nothing in this part was unconstitutional. That is the finding.

The proclamation was made under Article 352, which the constitution provides. The suspension of Article 19 came under Article 358, which the constitution provides. The suspension of the right to move courts for Articles 14, 21 and 22 came under Article 359, which the constitution provides. Detention without trial was authorised by Article 22,

which the constitution provides, and legislated by a Parliament elected in 1971. The amendments were passed under Article 368 by the required majorities. And when the detentions were challenged, the Supreme Court of India held in Chapter Five that the challenge was not maintainable.

Every instrument was in the document. Every threshold was met. Every procedure was followed.

This is worse than the alternative and it is important to see why. If the Emergency had required somebody to break something, then the lesson would be that India needs better guardians of its constitution. Because it required nobody to break anything, the lesson is about the **document** — that a constitution containing an emergency power with no external threshold, a detention power with no expiry, and an amendment procedure reachable on a minority of the vote does not need to be violated in order to produce this.

Both sides avoid the finding for opposite reasons. Critics need a violation, because a violation has villains and can be prevented by vigilance. Defenders need the legality to be a defence, and it is not one — it is the charge, and it is the charge against the drafters as much as against the government.

And every chapter closes with a **Remember This** box: the chapter in the plainest words available.

REMEMBER THIS

Part Two's last debt is paid in Chapter Two: **what detention without trial became.**

About **110,806** people were detained, and **25,962** government employees prematurely retired.

This part leans on the **Shah Commission** — appointed by an Indian government to investigate an Indian government, and withdrawn from circulation after 1980.

Almost nothing here was unconstitutional. Every instrument was in the document, every threshold was met, every procedure was followed. That is worse than the alternative, and it is a finding about the document.

Part Nine

Contents

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A proclamation signed before the cabinet was told · the power cut at two in the morning · 676 arrests before dawn · Articles 358 and 359

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Part Two's last debt, paid · a hundred and eleven thousand people · who was held and on what grounds · deaths in custody and a body never found

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Pre-publication scrutiny from 26 June · the blank editorial and the Sanskrit verse · which papers resisted and which did not · what a censor actually produces

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Genuinely unknown, and why · solid, and why it is solid · the report that is still not officially published

CHAPTER ONE

The Night of 25 June

The order in which things happened that night tells you almost everything about what kind of decision it was.

1.1 — The sequence

The proclamation of emergency was issued under Article 352 on the ground of internal disturbance. It was signed by President Fakhruddin Ali Ahmed on the night of **25 June 1975**, on the advice of the Prime Minister.

The Union Cabinet was informed afterwards. It met the following morning and ratified a decision that had already taken legal effect.

That sequence is not a technicality. Under the constitution as it then stood, the President acted on the advice of the Prime Minister, and there was no requirement that the Cabinet as a body advise a proclamation. The gap was in the document, and it was used.

It was also closed afterwards. The Forty-Fourth Amendment of 1978 required that the President act only on the written advice of the Cabinet, precisely because of this night. Chapter Nine returns to what was and was not repaired.

1.2 — Two in the morning

Before the arrests, the electricity.

At about two o'clock on the morning of 26 June the power supply to the newspaper presses on Bahadur Shah Zafar Marg in Delhi was cut. The Shah Commission established the chain: an instruction from the Lieutenant Governor of Delhi, conveyed to the General Manager of the Delhi Power Supply Corporation.

Not a censorship order. Not a legal notice. A switch.

The effect was that on the morning of 26 June, when Indians would have read about a proclamation made overnight, most Delhi papers did not appear.

1.3 — Before dawn

The arrests began the same night. Something in the order of **676 people** were taken in the first hours.

They included Jayaprakash Narayan, whose rally that evening is described in Part Eight's Chapter Eight; Morarji Desai, a former Deputy Prime Minister; Atal Bihari Vajpayee and L.K. Advani; and Charan Singh — men who would between them furnish India with three future Prime Ministers.

On **27 June** two further orders followed. Article 358 suspended the protections of Article 19 — speech, expression, assembly and movement. Article 359 suspended the right to move any court for the enforcement of Articles 14, 21 and 22 — equality before the law, life and personal liberty, and protection against arbitrary detention.

Read those two sentences together and the position on the morning of 27 June is complete. You could be detained without charge, you could not publish, and you could not ask a court why.

WORD BOX

Article 352: the provision allowing the President to proclaim a national emergency where the security of India is threatened by war, external aggression or — as it read in 1975 — **internal disturbance**.

The two words matter. “Internal disturbance” has no definition, no threshold, and nobody outside the government to certify it. Any level of political trouble can be described that way by somebody who wants to.

The Forty-Fourth Amendment replaced it in 1978 with **armed rebellion**, which is a much higher and far more checkable bar. That single change is the most valuable thing done in the aftermath.

Why it matters here: the ground for the proclamation was a phrase with no content, and everything else in this part follows lawfully from it.

Before going further it is worth being clear about how much of that sequence is established and how firmly, because the chapter's argument depends on the order of events rather than on anybody's characterisation of them.

HOW WE ACTUALLY KNOW THIS

Three claims in this chapter need separating by strength.

SOLID: the proclamation itself, its date, its constitutional basis and the orders of 27 June. All are gazetted instruments and their texts are published.

SOLID: the power cut. The Shah Commission traced the chain of instruction on oath, from the Lieutenant Governor of Delhi to a named officer of the electricity undertaking, and the fact that most Delhi papers did not appear on 26 June is verifiable from the papers themselves.

DOCUMENTED: that the Cabinet was informed after the fact rather than before. This rests on the Commission's findings and on the accounts of ministers, and it is not disputed by any of them.

What none of it can show: who was on the list, or who made it. Some 676 arrests in a night require a list prepared in advance, which means the operation was planned some time before it was executed. How far before is not established, and it is the question that would most illuminate Chapter Nine's argument about the night of 25 June.

What that looked like from the inside is worth reconstructing, because nothing about it resembled the way such nights are usually imagined.

IN REAL TERMS

Imagine going to sleep in a country with a free press, courts you can petition, and an opposition, and waking up in one without any of them — with no tanks in the street, no announcement interrupting the radio, and no soldier anywhere.

What had happened overnight was a signature, a telephone call to an electricity office, and a list.

For most Indians the first sign was that the newspaper did not arrive. For about six hundred and seventy-six of them it was a knock.

Which points at the way that night is almost universally described, and at what the description gets wrong.

THE HIDDEN ASSUMPTION

Everybody who describes that night assumes **that something was seized**.

The language is always of capture. Power was grabbed. The constitution was suspended. Democracy was overthrown. Even sympathetic accounts describe an extraordinary assertion of authority.

Nothing was seized because nothing had to be. Every element of that night was an existing power exercised by the person entitled to exercise it. The proclamation was advised by a Prime Minister who held office lawfully and signed by a President who was obliged to act on her advice. The detentions were made under a statute passed by an elected Parliament in 1971. The suspensions of 27 June were made under two articles written into the constitution in 1950 for exactly this purpose.

The one act of that night with no legal clothing at all was the electricity.

Hold that. In a night that removed a free press, an independent judiciary's reach and the liberty of thousands of people, **the only step that required somebody to do something the law did not authorise was cutting off a power supply** — and it was done by telephone, by a civil servant, on a Lieutenant Governor's instruction.

Which is the whole argument of this part in one image. The constitutional machinery did not have to be broken into. It had a door, the door had a handle, and the only thing anybody had to improvise was the light switch.

One clarification before the summary. Nothing in this chapter argues that the proclamation was invalid. It was made under a power that existed, by people entitled to exercise it, on a ground the constitution then permitted. The chapter's finding is about how little had to be done, not about whether it was lawful.

REMEMBER THIS

The proclamation was signed on the night of **25 June 1975** under Article 352 on the ground of **internal disturbance** — a phrase with no definition and no external threshold. The Cabinet was informed afterwards.

At **two in the morning** the power to the Delhi newspaper presses was cut, on an instruction traced by the Shah Commission to the Lieutenant Governor. Around **676 people** were arrested before dawn.

On **27 June**, Articles 358 and 359 removed free speech and the right to go to court. **The only step that night with no legal authority behind it was the electricity.**

CHAPTER TWO

The Detentions

Part Two recorded a power created for an emergency in 1950 and asked what it became. This is the answer, and it is the last of the four promises that part made.

2.1 — The debt

Part Two's Chapter Nine established three things. Preventive detention was written into the Indian constitution itself, at Article 22, as an express exception to the protections in the same article. The Preventive Detention Act was passed in February 1950, weeks after the constitution came into force. And the first people held under it included political opponents.

Part Two's argument was not that the power was unjustified in 1950. It was that a power justified by an emergency should have carried an expiry, that making it permanent cost nothing to avoid, and that the test would be what happened when the emergency ended.

Part Three found the justifying conditions gone by the end of the 1950s and the power renewed. Part Eight found it re-enacted as the Maintenance of Internal Security Act in 1971 and continuously available for twenty-one years.

This chapter closes the account.

WORD BOX

Preventive detention: holding somebody to stop them doing something in future, rather than punishing them for something already done.

The difference from an arrest is total. An arrest is followed by a charge, evidence, a trial and a chance to answer. Preventive detention has none of those, because there is nothing to answer — the case is about what an official believes you might do.

Which means there is no way to be innocent of it. You cannot disprove a prediction, and a person held on one has no argument available except that the official is wrong about the future.

Why it matters here: Part Two established that India wrote this into its constitution in 1950, as an express exception inside the article protecting people from arbitrary arrest.

2.2 — The numbers

The Shah Commission's figure for people arrested and detained without trial across the twenty-one months is about **110,806**.

Of these, something in the region of **35,000** were held under MISA specifically, and the remainder under other preventive detention provisions including the Defence of India Rules. Detentions ran for periods up to about eighteen months.

Amnesty International reported over a hundred and ten thousand arrests in the first year and at least twenty-two deaths in custody.

Separately, **25,962** central and state government employees were prematurely retired — a category that included officials who had declined to carry out instructions they regarded as unlawful.

2.3 — Who was held, and why

The Commission's finding on this is the most important sentence in the chapter and it is not about numbers.

It found that detention orders were frequently **not based on any genuine security concern**. They were issued to silence political opponents, to prevent public mobilisation, and to create fear. It found that decisions to arrest and to release were often made on political grounds rather than on legal merit.

Those held included opposition politicians, student leaders, trade unionists, journalists, lawyers, and members of the governing party who had objected. People were detained for opposing the sterilisation programme of Chapter Six and the demolitions of Chapter Seven.

The composition is the answer to the argument box in the front matter. An emergency declared because the state faced collapse would produce detentions of people threatening the state. This produced detentions of people criticising the government, which is a different category and was recognised as such by the body that examined it.

2.4 — One case

Numbers of this size stop meaning anything, so one case.

P. Rajan was an engineering student in Kerala. He was taken into police custody in 1976. He died there. His body was never recovered.

His father spent the rest of his life pursuing the case. The habeas corpus petition he brought became one of the defining legal proceedings of the period in that state, and the government of Kerala fell over it afterwards.

It is worth being exact about what makes that case representative rather than exceptional. Not the death — at least twenty-two are recorded and the true number is unknown. What makes it representative is the position his father was in: a man trying to find out where his son was, at a time when Chapter Five's judgment meant that a court could not require anybody to tell him.

HOW WE ACTUALLY KNOW THIS

The detention figures come from the Shah Commission, and the reason they are the best available is worth restating: they were compiled by a body with the power to summon officials and take evidence on oath, within two years of the events, from the records of the administration that had done it.

Amnesty International's figures are an independent check made at the time from outside, and they broadly agree, which is the strongest form of corroboration available for a number like this.

What this cannot show: how many detentions were never recorded as detentions. A person picked up, held for some days and released without an order entering any register does not appear in either figure. Every estimate here is therefore a floor.

And one further limit, which Part Two set out and which applies with full force: the Commission was appointed by the successor government of the detainees' own political allies. That does not make its documents false — most of what it reports is drawn from the previous government's own files — but it means the framing was not neutral, and this part does not pretend otherwise.

A figure that size stops registering, so it is worth converting into something a reader can place.

IN REAL TERMS

A hundred and eleven thousand people is roughly one in every five thousand Indians alive in 1975.

Put differently: in an average district of that period, several hundred people. In a large town, dozens. Enough that in most parts of northern India, somebody in any given neighbourhood knew somebody who had gone.

That is the point of a number that size. It is not large enough to touch everybody directly. It is exactly large enough that everybody knows it could reach them — which is the effect a detention programme is for, and it is achieved at a fraction of the cost of detaining everybody.

Which brings the last of Part Two's four promises due.

THE ARGUMENT — PART TWO'S VERDICT ON PREVENTIVE DETENTION

This box pays the last of Part Two's four promises. The question is whether the criticism of 1950 is sustained by what happened in 1975.

THE 1950 CRITICISM WAS HINDSIGHT

India in 1950 faced an armed communist insurrection, an assassination conspiracy, millions in camps and organised communal violence. Every democracy has emergency detention powers and most used them in comparable circumstances. Nobody in 1950 could have known that a government twenty-five years later would use them against journalists and students, and holding the framers responsible for that is holding them responsible for the future.

THE OBJECTION WAS TO THE DESIGN, NOT THE DECISION

Part Two's charge was never that the power was wrong in 1950. It was that it was written into the constitution rather than into a statute with a sunset clause — a choice that required no emergency, cost nothing, and would have forced every subsequent government to justify the power afresh instead of merely renewing it. The Constituent Assembly debates record members arguing for exactly that limit. They were overruled, and 1975 is what the absence of the limit permitted.

Where things stand: the second side is right and this part's evidence settles it. The decisive fact is not the scale of 1975; it is that by 1975 **nobody had to argue for the power at all**. It was simply there, as it had been for twenty-five years, requiring no justification because none had ever been required. That is what a permanent power does, and it is the specific thing a sunset clause prevents.

What would settle it: a comparison with democracies whose emergency detention statutes carried expiry provisions, on the question of whether renewal debates ever defeated one. Some did.

Why people care so much: because successor powers to MISA have existed in India continuously since, under different names, and every government of every party has used them.

That closes the last of the four promises Part Two entered into the record. The privy purses were settled in Part Eight, the Kashmir plebiscite and Article 370 in Part Seven, and detention without trial here. Nothing further is outstanding from that part.

REMEMBER THIS

About **110,806** people were arrested and detained without trial, roughly 35,000 of them under MISA, for periods up to eighteen months. At least **22 died in custody**. **25,962** government employees were prematurely retired.

The Shah Commission found that detention orders were **frequently not based on any genuine security concern**, and that arrests and releases were decided on political grounds.

Part Two's verdict stands. The objection was never to the power in 1950 but to writing it into the constitution without an expiry — and by 1975 nobody had to argue for it, because nobody ever had.

CHAPTER THREE

Censorship

From 26 June every newspaper in India submitted its pages to a government officer before printing. The interesting question is not what was cut but what stopped being written.

3.1 — The mechanism

Pre-publication censorship was imposed from **26 June 1975**. Editors were required to submit articles, and in many cases photographs, to government-appointed censors before publication.

The legal basis was Article 358, which had suspended the protections of Article 19 the previous day — the same clause Part Three's Chapter One examined, in the form the First Amendment of 1951 left it.

Around the censorship sat a set of supporting measures: the Press Council was abolished, the news agencies were merged into a single body, and government advertising, newsprint allocation and accreditation were all available as instruments against a paper that did not comply.

That last group matters more than the censor's pencil. A newspaper in 1975 India depended on the state for its newsprint quota and for a large share of its advertising revenue. A government does not have to close a paper it can starve.

3.2 — What resistance looked like

Some of it was very good and it deserves recording by name.

The *Indian Express* is remembered for printing an editorial column that was simply blank. Some papers ran verses from Sanskrit texts or from Tagore whose meaning any literate reader could supply. Obituary notices appeared for the death of Democracy, aged twenty-six. *The Statesman* and the *Indian Express* resisted most consistently, and both paid for it.

Journalists were detained, including senior figures whose arrests were widely known.

And some of it was not resistance at all. A great deal of the Indian press complied, and some of it complied enthusiastically. The line usually attributed to a senior figure of the period — that the press was asked to bend and chose to crawl — was directed at that, and it was not unfair.

WORD BOX

Pre-publication censorship: a requirement that material be shown to an official and approved *before* it is printed, as distinct from being punished afterwards.

The distinction is the whole of it. Punishment after publication means somebody has to decide the thing was illegal, in public, with the material available for everybody to judge. Approval before publication means the decision is made in an office, on material nobody else will ever see, by a person who never has to explain.

Nothing suppressed by a pre-publication censor leaves any trace. There is no banned edition to point at, because the edition was never printed.

Why it matters here: this is why the historical record of what Indians were not told between 1975 and 1977 is so thin, and why it will stay thin.

All of which is usually assessed by adding up what was stopped. That is the wrong measure and it understates the effect by a very large margin.

THE HIDDEN ASSUMPTION

Everybody who writes about the censorship of these months assumes **that it is measured by what was forbidden.**

The accounts are lists: the stories killed, the editions stopped, the journalists jailed, the blank columns. Defenders count them and say the total was smaller than the legend. Critics count them and say it was larger. Both are counting interventions.

The censor's real product is not the suppressed article. It is the article **nobody proposes.**

Think about the working life of a reporter under this system. You have a story. Pursuing it takes a fortnight, costs money the paper does not have, and will end at a desk where a man you have never met will decide whether it exists. He does not have to explain himself and there is no appeal. After the third time, you do not stop being brave. You start having different ideas about what is worth a fortnight.

None of that appears in any count, because a story that was never begun leaves no record of any kind. And it does not stop when the censorship stops, because the habits of a profession are learned in about eighteen months and unlearned much more slowly.

This is why the question "how much was actually censored" is the wrong question, and why both sides of the Indian argument about the press in this period keep answering it. The measurable interventions are the smallest part of the effect, and the largest part is permanently unmeasurable — which is exactly the property that makes pre-publication censorship the instrument of choice for anybody who understands it.

Which leaves a charge that is made freely in India and is usually made too broadly.

THE ARGUMENT — DID THE INDIAN PRESS COLLABORATE?

The charge is usually made against the press as a whole. It should be made more carefully than that.

LARGELY, AND IT CHOSE TO

Most Indian newspapers complied without significant resistance, and some editorialised in the government's favour. Newsprint quotas, advertising and accreditation were all commercial pressures rather than physical ones, and a proprietor deciding that his business mattered more than his masthead is making a choice, not submitting to force. The papers that did resist — and there were several — demonstrate that resistance was possible, which removes the excuse from the rest.

THE INSTRUMENT WAS DESIGNED TO MAKE COLLABORATION RATIONAL

An editor who resists loses his newsprint, his advertising and possibly his liberty, and his paper closes — which removes even the compromised journalism his readers were getting. The Emergency did not present the press with a choice between honour and dishonour but between a censored paper and no paper, and reasonable people differed about which served readers better. The ones who resisted were heroic; that does not make the others collaborators.

Where things stand: both are right about different papers and the second is right about the design. The distinction that matters is between *compliance* and *enthusiasm*: submitting pages to a censor under threat of closure is one thing, and editorialising in praise of the government that installed the censor is another. The first is a hard commercial judgment. The second was not required by anybody and a number of papers did it anyway.

What would settle it: a paper-by-paper account of what each did — how many submissions, how many refusals, how much favourable comment. The material exists in the editions themselves. Nobody has assembled it.

Why people care so much: because the Indian press has claimed the resistance of 1975 as part of its self-description ever since, and the claim belongs to a minority of it.

One consequence for this book. Everything in Chapters Six and Seven happened while the country could not be told about it — which is why the Shah Commission matters so much, and why a reader in 2026 knows more about the sterilisation programme than an Indian newspaper reader did in 1976.

REMEMBER THIS

Pre-publication censorship from **26 June 1975**, under Article 358 — the clause the First Amendment of 1951 left in the form Part Three examined.

The censor's pencil mattered less than **newsprint quotas, government advertising and accreditation**. A government does not have to close a paper it can starve.

The real product of a censor is the story nobody proposes. It leaves no record, appears in no count, and outlasts the censorship by many years.

CHAPTER FOUR

The Forty-Second Amendment

The largest single alteration ever made to the Indian constitution, passed by a Parliament whose opposition was in jail. One clause in it was the point of the whole exercise.

4.1 — The one that came first

Before the Forty-Second there was the **Thirty-Ninth**, and it is the more revealing of the two because it is so much narrower.

Passed in August 1975, some six weeks after the proclamation, it did two things.

It placed the election of the Prime Minister, the President, the Vice-President and the Speaker **beyond the reach of the ordinary courts**, providing that such disputes would go to a body Parliament would establish rather than to a High Court, and that pending proceedings would abate.

And it inserted **MISA into the Ninth Schedule** — Part Three's Chapter Two device, which places a law beyond challenge on fundamental rights grounds. The detention statute of Chapter Two was thereby put where no court could reach it, in the same weeks it was being used on a hundred thousand people.

The first of those was retrospective and personal. Part Eight's Chapter Eight described a judgment of 12 June 1975 and an appeal pending before the Supreme Court. The Thirty-Ninth Amendment was drafted to dispose of that appeal by removing the jurisdiction under which it was being heard.

4.2 — What happened to it, on 7 November 1975

The appeal was heard anyway, and this is the passage of this part that most complicates the whole of it.

On **7 November 1975**, with the Emergency running, the press censored and the opposition in detention, a five-judge bench of the Supreme Court **struck down the election provisions of the Thirty-Ninth Amendment** as violating the basic structure of the constitution. Free and fair elections, the Court held, were part of that structure and Parliament could not place them beyond judicial reach.

The bench was presided over by Chief Justice **A.N. Ray** — appointed in April 1973, as Part Eight’s Chapter Six described, over three senior judges who had established the basic structure doctrine, having himself argued against it.

The Court used the doctrine he had opposed, in a case about the person whose government had elevated him, at the height of her power.

It also upheld her election on the merits, which is the part usually left out. She won the appeal and lost the amendment.

This is the single strongest fact available to any defender of the Indian constitutional order in this period, and Part Eight flagged it forward for exactly this reason. Whatever else was happening in those months, that judgment was delivered, and it stood.

4.3 — The scale

The Constitution (Forty-Second Amendment) Act, 1976 amended the Preamble, altered around **forty articles**, added **fourteen new articles** and **two new Parts**, and changed the Seventh Schedule.

It is known as the Mini-Constitution, and the name is not rhetoric. No other amendment before or since comes close to it in extent.

It was steered through Parliament by the Law Minister, H.R. Gokhale, and drew on the work of a party committee under Swaran Singh.

It was passed by a Parliament sitting on a term that this same amendment extended, with a large part of the opposition detained under Chapter Two.

4.4 — What it did

WHAT IT CHANGED	EFFECT
The Preamble	Added “Socialist” and “Secular”; changed “unity of the Nation” to “unity and integrity of the Nation”.
Article 368(4) and (5)	No constitutional amendment could be questioned in any court on any ground , and Parliament’s amending power was declared to have no limitation. Directed squarely at <i>Kesavananda</i> .

WHAT IT CHANGED	EFFECT
Article 31C	Extended protection from challenge under Articles 14 and 19 to laws implementing <i>any</i> Directive Principle, not only two — reversing the priority between rights and principles.
Terms of legislatures	Lok Sabha and State Assemblies extended from five years to six.
Article 356	President's Rule in a state extended from six months to one year at a time.
Article 352	An emergency could be proclaimed for part of the country as well as the whole.
Article 31D	New. Parliament empowered to legislate against “anti-national activities”, a term the Act itself defined broadly.
Article 257A	New. Enabled the centre to deploy armed forces in a state.
High Court powers	Judicial review by High Courts curtailed through a set of new articles restricting their jurisdiction.
The Seventh Schedule	Education, forests, administration of justice, weights and measures and protection of wildlife moved from the State List to the Concurrent List.
Part IVA	New. Ten Fundamental Duties in Article 51A.
Directive Principles	Added Article 39A (free legal aid), 43A (worker participation in management) and 48A (protection of the environment).
Articles 323A, 323B	New. Administrative and other tribunals, removing categories of dispute from the ordinary courts.
Article 74	Made the President explicitly bound by the advice of the Council of Ministers.

IN REAL TERMS

Imagine a club whose rules say the committee may change the rules, and the members may go to a magistrate if the committee changes them unfairly.

The committee now passes a rule saying no rule change may ever be examined by a magistrate.

Nothing else has to happen. Every future rule is now whatever the committee says it is, including the rules about who sits on the committee and when the next election is held. The rule book still exists, is still printed, and still says a great many admirable things.

It is no longer a rule book. It is a record of the committee's current preferences.

4.5 — The clause it was for

Read that table again and notice that most of it is arguable. Reasonable people can defend fundamental duties, environmental directives, free legal aid and even tribunals. Several of those provisions are still in force and nobody proposes removing them.

One row is not arguable, and it is the row the amendment existed for.

Article 368(4) and (5). No amendment questionable in any court, on any ground, and no limitation on the power to amend.

Consider what that means as a piece of machinery. Parliament may amend the constitution. Parliament has just declared that no amendment may be reviewed. Therefore Parliament may amend anything at all, including the provisions that constrain Parliament, and no court may look at it.

A constitution with that clause in it is not a constitution. It is a set of arrangements the legislature may rewrite at will, and the word for the document then is not law but minutes.

It was aimed at one judgment. Part Eight's Chapter Six described *Kesavananda Bharati* — thirteen judges, seven to six — holding that the amending power could not damage the basic structure. This was the answer, and it was written to be unanswerable.

4.6 — What happened to it

The Forty-Third Amendment of 1977 and the **Forty-Fourth Amendment of 1978**, passed by the successor government, undid most of the dangerous material. Judicial review was restored. Terms went back to five years. Article 31D went. “Internal disturbance” became **armed rebellion**. The President was required to act on the written advice of the Cabinet.

Then in **Minerva Mills** in 1980 the Supreme Court struck down the two provisions that mattered most: the expansion of Article 31C, and clauses (4) and (5) of Article 368.

It struck them down using the basic structure doctrine — the very doctrine those clauses had been written to abolish.

What survived: the Preamble changes, the Fundamental Duties, and the new Directive Principles. All three remain in the constitution today and none is seriously contested.

HOW WE ACTUALLY KNOW THIS

This is the most straightforwardly verifiable chapter in the entire series. The Forty-Second Amendment is a statute. Anybody can read it, section by section, and check every row of the table against the text.

The same is true of the Forty-Third and Forty-Fourth Amendments, and of *Minerva Mills*, which is a reported judgment.

There is no interpretation here, no memoir, and no inference. A reader who suspects this chapter of overstatement should test it directly, which takes an afternoon.

What it cannot show: what was said in the drafting, or which provisions were included as cover for the two that mattered. That the amendment bundled uncontroversial improvements with clauses removing judicial review is a fact about its structure; whether the bundling was deliberate is not established.

Which leaves the question of whether a formally valid amendment can be illegitimate, and if so on what basis.

THE ARGUMENT — WAS THE FORTY-SECOND AMENDMENT LEGITIMATE?

It was passed by the required majorities under the correct procedure. Whether that makes it legitimate is the question.

FORMALLY VALID AND SUBSTANTIALLY DEFENSIBLE

Parliament holds the amending power and used it. Much of the content is genuinely good: fundamental duties exist in many constitutions, free legal aid and environmental protection are unarguable, and the primacy of Directive Principles reflects a serious position about whether property rights should obstruct redistribution. On the judicial review clauses, there is a real democratic argument — an unelected court had assumed the power to strike down amendments passed by elected representatives, on a doctrine found nowhere in the text, by a single vote.

FORMALLY VALID AND SUBSTANTIVELY SELF-DESTROYING

Take the democratic argument at its strongest and it still fails on its own terms. A Parliament claiming democratic authority to remove judicial review had, at that moment, extended its own term beyond the mandate it was elected on, was sitting with a large part of the opposition in detention, and was legislating under a censorship regime that prevented the country being told what it was doing. Whatever those conditions produce, it is not a democratic mandate. And clauses (4) and (5) do not merely limit a court; they place the amending power beyond any review by anybody, which is a claim no legislature in a constitutional system can coherently make.

Where things stand: the second side wins and the decisive point is the conditions rather than the content. The test is what happened when the conditions changed: within two years an elected Parliament repealed the clauses, and within four the Supreme Court struck down what remained of them. Nothing comparable happened to the Preamble changes, the duties or the new principles — which suggests the country could tell the difference between the parts of this amendment that were arguments and the part that was an escape.

What would settle it: the drafting record. Not released.

Why people care so much: because the words “socialist” and “secular” in the Preamble come from this amendment, and arguments about them recur in Indian politics without either side wanting to discuss where they came from.

One thing to carry forward. The Preamble of the Indian constitution today reads as it does — sovereign, socialist, secular, democratic republic — because of an amendment passed during the Emergency, by a Parliament that had extended its own term, with the opposition in detention. Whatever one thinks of the words, that is where they come from, and Indian arguments about them are almost always conducted without it.

REMEMBER THIS

The **39th Amendment** of August 1975 put the Prime Minister's election beyond the ordinary courts and MISA into the Ninth Schedule. On **7 November 1975** the Supreme Court struck the election provisions down under the basic structure doctrine — presided over by the Chief Justice appointed to oppose it.

The **42nd Amendment** altered forty articles, added fourteen, added two Parts and rewrote the Preamble. It was passed by a Parliament that had extended its own term, with much of the opposition detained and the press censored.

The clause it existed for was **Article 368(4) and (5)**: no amendment questionable in any court, and no limit on the power to amend. A document with that clause in it is not a constitution.

The **44th Amendment** undid most of it and **Minerva Mills** struck down the rest — **using the basic structure doctrine those clauses were written to abolish.**

CHAPTER FIVE

ADM Jabalpur

The Attorney General told the Supreme Court that if a person's life were taken unlawfully, the courts could do nothing. Four of the five judges agreed.

5.1 — The question

Thousands of people were detained under Chapter Two. Their families did what families do: they went to the High Courts with petitions for habeas corpus, asking the state to produce the detainee and justify the detention.

Several High Courts held that such petitions were maintainable — that even with Article 21 suspended, a court could still ask whether a detention was authorised by the law it claimed to rely on.

The government appealed, and the appeals were heard together as **Additional District Magistrate, Jabalpur v. Shivkant Shukla**. The question was whether, during the Emergency, a detained person could go to a court at all.

The bench of five was the five most senior judges: Chief Justice **A.N. Ray**, and Justices **M.H. Beg**, **H.R. Khanna**, **Y.V. Chandrachud** and **P.N. Bhagwati**.

Part Eight's Chapter Six established how the first of those names came to be sitting where he was.

5.2 — The exchange at the bar

During argument, Justice Khanna put the question to the Attorney General, Niren De, in its starkest form. If a person were deprived of life unlawfully during the Emergency, would there be any remedy?

The Attorney General's answer, in substance, was that the courts would be helpless.

He was not being reckless. He was stating the government's position accurately, and the government's position followed from the Presidential order under Article 359. If the right to move a court for the enforcement of Article 21 is suspended, and Article 21 is the source of the right to life, then there is nothing to enforce and no court to enforce it in.

The logic is sound. That is what makes the case what it is.

WORD BOX

Locus standi: standing — the right to bring a case before a court at all.

It is a threshold question decided before any court considers whether you are right. A person without standing does not lose the argument; the argument is never heard.

This is why the holding in this case is worse than it first appears. The Court did not decide that the detentions were lawful. It decided that **the question could not be asked**, which forecloses every possible detention, lawful and unlawful alike, and leaves nothing behind for anybody to appeal.

Why it matters here: a right that cannot be brought before a court is not a weakened right. It is not a right.

5.3 — Four judges

The judgment was delivered on **28 April 1976**. By four to one, the Court held that during the Emergency no person had any locus to move any court for enforcement of the right to personal liberty, that habeas corpus petitions were not maintainable, and that this held *even if the detention was illegal or made in bad faith*.

Ray wrote the majority. Beg observed that liberty is a gift of law and may be limited by law. Bhagwati acknowledged that the position was unfortunate and said it could not be helped.

The Court also upheld the provision of MISA barring disclosure of the grounds of detention.

5.4 — One judge

Justice H.R. Khanna dissented.

His position was that the right to life and personal liberty is not the creation of the constitution and cannot be extinguished by suspending a remedy; that the state may not deprive a person of life or liberty without the authority of law even in an emergency; and that what was at stake was whether a court could be silenced entirely.

He met the argument that the detentions were legal by observing that legality alone settles nothing — that a regime can be entirely lawful and entirely monstrous, and that the most notorious example within living memory had been meticulous about its paperwork.

Three days later the *New York Times* published an editorial saying that if India found its way back to freedom, somebody would erect a monument to Justice Khanna.

5.5 — What it cost him

Khanna was the senior-most judge after the Chief Justice. By the convention Part Eight described — broken once already, in 1973 — the Chief Justiceship would come to him.

He knew what he was doing. He is recorded as having told a family member before delivering the dissent that it would cost him the office.

On **28 January 1977** he went to court as usual. At five o'clock that evening he heard on the radio that **M.H. Beg**, junior to him and in the majority, had been appointed Chief Justice of India.

He typed his resignation the same evening.

It is worth adding the ending. In 2017, in *K.S. Puttaswamy*, the Supreme Court overruled *ADM Jabalpur* outright. Among the judges who did so was **D.Y. Chandrachud** — the son of Y.V. Chandrachud, who had been in the majority in 1976 — and he said so explicitly.

Establishing what that judgment was and was not is unusually easy, and it matters for the argument that follows.

HOW WE ACTUALLY KNOW THIS

ADM Jabalpur is a reported judgment. The bench, the split, the reasoning of each judge and the dissent can all be read in full by anybody.

The exchange with the Attorney General is recorded in the judgment and in contemporaneous accounts by lawyers who were in court.

The consequences are equally documented: the date of Beg's appointment, the date of Khanna's resignation, and the *New York Times* editorial two days after the judgment.

What it cannot show: what the four judges believed. Two of them later described the decision as wrong, which tells us something about their view afterwards and nothing reliable about their view at the time. This chapter's argument does not require an answer to that, and the hidden assumption box explains why.

What the five of them were actually choosing between is worth stating without any legal vocabulary at all.

IN REAL TERMS

Four men in that room had lifetime security, the highest professional standing available in India, and no personal danger of any kind. Nobody was going to detain a Supreme Court judge.

What was on offer for agreeing was an office. What was on offer for disagreeing was the loss of it.

One of them wrote the dissent knowing the price, and paid it nine months later while listening to the radio.

The others went on to hold the highest offices in the Indian judiciary. Two of them later described the judgment as a mistake.

Whether that makes the four blameworthy is argued about seriously by people who have spent careers on it, and the defence of them is better than it is usually allowed to be.

THE ARGUMENT — WERE THE FOUR JUDGES CULPABLE?

This is argued about in Indian legal circles to this day and it is not the easy question it looks.

THEY APPLIED THE LAW AS IT STOOD

A Presidential order under Article 359 had suspended the right to move courts for Article 21. That order was validly made under a provision the constitution contains. A judge's task is to apply the law, not to invent a remedy the text has removed, and the majority reasoning follows from the premises with uncomfortable rigour. Khanna's position, whatever its moral standing, required finding a source for the right outside the constitution — which is precisely the kind of judicial improvisation that critics of activist courts object to in every other context.

THE PREMISES WERE THEIRS TO EXAMINE

Courts choose their premises constantly, and this Court had done so three years earlier in *Kesavananda*, where it found a limit on the amending power nowhere stated in the text. A bench willing to derive a basic structure from what a constitution *is* could have derived the same about a right to life, and one of its members did. The narrower point is that the majority went further than the premises required: they held the position unchallengeable even where a detention was illegal or in bad faith, which no reading of Article 359 compelled.

Where things stand: the second side is stronger and the decisive detail is the one about bad faith. Suspending a remedy is one thing; holding that a detention made in bad faith is equally unexaminable is a further step that the Presidential order did not require and the Court chose. And the professional verdict is not really in doubt: the judgment has been repudiated by the Court itself, and two of the four said so in their lifetimes.

What would settle it: nothing further. This is a question about a published text and it has been argued for fifty years by people who have read it more carefully than I have.

Why people care so much: because two of the four went on to be Chief Justice, and one of them became the most celebrated judicial reformer of the following decade — which makes the case a permanent difficulty for any account of Indian judicial heroism.

What both of those positions share is an assumption about the circumstances, and it does not survive the fact that one judge in the same room decided otherwise.

THE HIDDEN ASSUMPTION

Everybody who writes about *ADM Jabalpur* assumes **that the judges were under pressure.**

The critical version: a cowed court capitulated to a government that had already superseded three of its members. The sympathetic version: judges in an authoritarian moment did what they could and cannot be blamed for the times. Both explain the judgment by reference to the conditions the judges were working under.

The conditions were real. They were also **identical for all five of them**, and one of them dissented.

That single fact removes the explanation. Pressure that four men yield to and a fifth does not is not what determined the outcome, because if it were, the fifth man could not have done what he did. Khanna sat in the same room, faced the same government, knew the same history of April 1973, and correctly predicted the same consequence for himself.

So the four were not coerced. They were **choosing under known conditions**, with a demonstration standing beside them of what the other choice looked like and what it cost.

That is a much harder thing to say and it is the only thing the evidence supports. It also explains the discomfort this case still produces in Indian legal culture: two of the four later said publicly that they had been wrong, which is not what people do about decisions they were forced into.

The general rule is worth carrying forward, because this series keeps meeting institutions that failed at the moment they were needed. **When one person in a room does the difficult thing, the conditions stop being an explanation for everybody else in it.** The conditions determine the price, not the choice.

Set this chapter beside Part Eight's Chapter Six and the sequence is complete. In April 1973 three judges were passed over for deciding against the government, and resigned. In April 1976 four of the five judges hearing the most important liberty case in Indian history decided for the government. In January 1977 the one who had not was passed over, and resigned. Three years, two supersessions, and a bench that had been shown exactly what the terms were.

REMEMBER THIS

On **28 April 1976**, by four to one, the Supreme Court held that during the Emergency **no detained person could approach any court**, even if the detention was illegal or in bad faith. The Attorney General had told the Court that if life were taken unlawfully, the courts would be helpless.

Justice H.R. Khanna dissented, holding that the right to life is not the creation of the constitution and cannot be extinguished by suspending a remedy. He knew it would cost him the Chief Justiceship, and on **28 January 1977** he heard on the radio that it had.

The conditions were identical for all five and one dissented. **When one person in a room does the difficult thing, the conditions stop being an explanation for everybody else in it.**

CHAPTER SIX

The Sterilisations

The number tripled in twelve months. Nothing about a population's willingness to have surgery changes that fast, and that single fact is the whole of this chapter.

6.1 — The figures

Family planning was not invented in 1975. India had run sterilisation programmes since the 1950s, they were voluntary, and international opinion at the time was strongly in favour of population control by almost any means.

Here is what happened to the numbers.

In **1975–76**, about **26.42 lakh** sterilisations were performed — around 2.6 million.

In **1976–77**, about **81.32 lakh** — around 8.1 million.

Over the two years, something in the order of **1.07 crore**, or about 10.7 million operations.

Look at those first two figures again. The annual number roughly **tripled in a single year**.

There is no version of a voluntary programme that does this. Public willingness to undergo irreversible surgery does not triple in twelve months. Something else changed, and the Shah Commission established what.

6.2 — How it was done

Two mechanisms, and they worked together.

Quotas. Targets were set and passed down through the administration. Officials — teachers, clerks, revenue staff, police, railway employees — were given numbers to produce and their pay, promotion and postings depended on producing them. A quota does not require anybody at the top to order coercion. It requires somebody at the bottom to find a way of hitting a number.

Linkage. Access to things people could not do without was tied to a sterilisation certificate. Rations. Housing allotments. Government employment. Medical treatment. Loans. Licences. Irrigation water in some places. Salary release in others.

The Shah Commission recorded that people were denied rations, housing, jobs, healthcare and loans for having more than two or three children and declining the operation.

Note what the second mechanism does to the word “voluntary”. A man who signs a consent form to get his family’s ration card has consented in exactly the sense that a man who hands over his wallet to a person holding a knife has made a gift.

Before the mechanisms, it is worth registering what a figure of that size means operationally.

IN REAL TERMS

Eight million operations in a year is around twenty-two thousand a day, every day, including the day of every festival and every day of the monsoon.

Consider what that requires of a health system that in 1976 could not reliably deliver vaccines to a village. Camps set up in schoolyards and bus stations. Staff working through lists. Surgery performed by people meeting a number, on people produced by other people meeting a number.

The 1,774 recorded deaths are what a rate like that does to a system not built for it. And that figure counts the deaths somebody recorded, in a year when Chapter Three had removed the mechanism by which anybody else would have found out.

6.3 — What it cost

1,774 deaths were recorded as resulting from these procedures.

That is the official figure, from operations performed at speed, in camps, by staff under quota pressure, often without the conditions or the follow-up that surgery requires.

The Commission also recorded **548 complaints** of the forced sterilisation of unmarried people — a category for whom the programme’s own stated rationale does not apply at all.

And there was a further cost that is not in any table. The programme was concentrated in northern India, and it attached to the Indian state a suspicion of public health campaigns that persisted for decades. Immunisation drives in the affected regions were still meeting resistance traceable to 1976 twenty and thirty years later.

WORD BOX

Target-driven administration: a system in which officials are set numerical goals and rewarded or punished on whether they meet them.

It is not inherently wrong and it is used everywhere. Its known failure mode is exact: where the target is easy to measure and the quality of the outcome is not, officials optimise for the number.

The people who design the target rarely instruct anybody to cheat, coerce or falsify. They do not have to. The instruction is the number, and everybody below understands what happens if it is not met.

Why it matters here: this is why “nobody ordered coercion” is true and is not a defence. The quota was the order.

Set those two facts together — the quota and the linkage — and the vocabulary usually applied to this programme starts to look wrong. The evidence for all of it comes from an unusual direction, and its strength and its limits are both worth stating.

HOW WE ACTUALLY KNOW THIS

The sterilisation figures are the government’s own. They were compiled by the health administration as performance data — the whole point of the programme was that the numbers went upward to people checking them.

That makes them unusually reliable for the fact of the operations, and it is why this chapter argues from the annual totals rather than from testimony. A government that inflates a figure to please a superior produces a number that is too high; there is no plausible reason for anybody in that chain to have reported *more* operations than took place at the very moment the target was the thing being measured — and if they did, the inflation is itself the finding.

The deaths, the complaints about unmarried people, and the linkage of entitlements come from the Shah Commission’s examination of those same records and of officials on oath.

What it cannot show: consent. Every one of these operations has a signed form behind it. A programme that documents consent for coerced procedures destroys the evidence that would allow anybody to audit consent afterwards, permanently.

Which is why the argument about proportion has to be conducted from the shape of the numbers rather than from the paperwork.

THE ARGUMENT — HOW MUCH OF IT WAS COERCED?

The defence of this programme is not that it was gentle. It is about proportion and about what the alternative was.

LESS THAN THE LEGEND, AND THE AIM WAS SERIOUS

Ten point seven million operations in a country of over six hundred million is not a national campaign of forced surgery. A very large number of them were performed on people who wanted them — sterilisation was and remains India's dominant method of contraception, chosen voluntarily by millions. India's population was growing at over two per cent a year, Part Four showed food output struggling to keep pace, and every serious international body of the period regarded population growth as India's central problem. A government that did nothing about it would have been indicted for that instead.

THE TRIPLING SETTLES THE PROPORTION QUESTION

Nobody disputes that voluntary sterilisation existed before and after. The question is what the extra six million operations in 1976–77 consisted of, and the answer cannot be a sudden change of heart in one year. What changed was quotas and linkage, and both are documented. Note also which direction the coercion ran: overwhelmingly at poor men, in northern India, by officials with numbers to meet — not at anybody with the standing to refuse.

Where things stand: the second side wins on the specific question and the first is right that the underlying problem was real and that a good deal of Indian sterilisation was and is genuinely chosen. The precise share that was coerced is not establishable and Chapter Ten says so. What is establishable is the mechanism, the tripling, the 1,774 recorded deaths and the linkage of entitlements — and none of those depends on the share.

What would settle it: district-level records of operations against quota assignments. Much of this material was compiled by the Shah Commission and much has since been dispersed.

Why people care so much: because population control is still argued about in India, and every argument for a coercive version has to answer 1976, which is the strongest available evidence about what such programmes do when handed to an administration under pressure.

Which leaves one word to deal with, and it is the word almost every account of this period reaches for.

THE HIDDEN ASSUMPTION

Almost everybody who writes about these months — critics included — calls what happened in them **the excesses**.

The word is universal. Emergency excesses. The excesses of 1976. Even the Shah Commission's terms of reference used the language of excess and abuse of authority.

Part One's Chapter Two warned about exactly this word. **An excess is a legitimate thing done too much.** It implies a proper programme, pursued with insufficient restraint, by people who went further than intended. It locates the fault in enthusiasm.

Apply it here and see what it hides. The quota was not an excess; it was the design. The linkage of ration cards to sterilisation certificates was not enthusiasm; it was a policy instrument, adopted deliberately, because it worked. Nobody exceeded anything. Officials met the numbers they were given, using the tools they were given, and were rewarded for it.

The same applies across this whole part. Detaining a hundred and eleven thousand people was not an excess of an emergency; it was what the emergency was for. Censoring the press was not zeal; it was the instrument. The Forty-Second Amendment was not an over-reaction; it was drafted, printed and voted on.

Which is why the vocabulary matters so much. "Excesses" allows an entire period to be regretted without anything being conceded about its design, and it permits the standard formulation still used in Indian politics — that mistakes were made and lessons learned — which names no instrument and requires no change.

Part One said this series would name the word every time it appeared. It appears here more than anywhere else, and this is what it is doing.

Part One promised to name that word every time it appeared in this series. It has now been named at the place where it does the most concealing, and it will be named again in Part Ten.

REMEMBER THIS

26.42 lakh sterilisations in 1975–76, then 81.32 lakh in 1976–77 — roughly 10.7 million over two years. **The annual number tripled in twelve months**, and no voluntary programme does that.

Two mechanisms: **quotas** passed down to officials whose pay and postings depended on the number, and **linkage** of rations, housing, jobs, healthcare and loans to a certificate. **1,774 deaths** were recorded.

The word “excesses” implies a legitimate programme pursued too far. **The quota was not an excess. It was the design.**

CHAPTER SEVEN

What Was Done to Cities

The second programme of these months was carried out on the instructions of a man who held no office of any kind, and officials obeyed him.

7.1 — Turkman Gate

In April 1976 a demolition drive reached the area around Turkman Gate in old Delhi — a dense, poor, largely Muslim quarter of narrow lanes inside the walled city.

Housing was cleared. Residents resisted. Police opened fire. People died.

The official death toll was around a dozen. Claims made afterwards were very much higher, and the true figure is not established — which, as Part One's rule states, is itself a finding: a state that counted sterilisations to the individual did not produce a reliable count of the people killed by its own police in its own capital.

The survivors were moved across the Yamuna to resettlement colonies on the eastern edge of the city, several kilometres from the work, markets and relationships their lives had been built around.

And the two programmes met. In the same weeks, in the same neighbourhoods, sterilisation quotas were being enforced, and the connection between demolition and the family planning drive was widely understood by the people it happened to. That is a substantial part of why Turkman Gate became the single most politically consequential event of the Emergency.

IN REAL TERMS

The distance from the walled city to the resettlement colonies across the Yamuna is a few kilometres on a map. In 1976 it was a bus ride that could take an hour each way, on a service that did not reliably exist.

A tailor whose customers lived in the next lane now has no customers. A woman who cooked for a household four streets away now has no work. A boy at a school ten minutes' walk away is now at no school.

None of that appears in a compensation calculation, because compensation is assessed on the structure and the structure was worth very little. What was worth something was where it stood, and that is the thing nobody was paid for.

7.2 — Demolition described as improvement

The programme had a respectable name: beautification, slum clearance, urban renewal.

Some of the diagnosis was real. Old Delhi was severely overcrowded, sanitation was poor, and there was a genuine case for rebuilding. Cities do have to be rebuilt and somebody always loses.

What distinguishes this from ordinary urban policy is procedure. There was no consultation, no hearing, no compensation process worth the name, and — because of Chapter Five — no court a resident could go to. A demolition programme in a country with a functioning judiciary produces litigation and delay, which is precisely the mechanism by which the people affected obtain terms. Here that mechanism had been switched off two months earlier.

WORD BOX

Resettlement colony: land on a city's edge to which people cleared from central areas are moved, usually with a plot and little else.

The arithmetic is what matters. A family in a central slum is poor and is within walking distance of the work, the customers, the school and the relatives that make its income possible. Moved fifteen kilometres out, it has a plot it may own and no way to earn.

This is why clearance without consent impoverishes people who were already poor, and why the compensation question in urban policy is never really about the value of the structure demolished. It is about the value of the location.

Why it matters here: the residents of Chapter Seven were moved across a river, and the thing they lost is not visible in any valuation of what was knocked down.

7.3 — The man with no office

Now the structural fact, which matters more than any individual episode.

Sanjay Gandhi held no office. He was not a minister. He was not a member of either House of Parliament. He held no post in the government of India or of Delhi. Through the whole of the period covered by this part he was, constitutionally speaking, a private citizen.

He also had a programme — a set of priorities including family planning, slum clearance, tree planting, adult literacy and the abolition of dowry — which officials across northern India treated as instructions.

The Shah Commission's finding on this was that directives emanated from the Prime Minister's household and office and were implemented by a compliant bureaucracy and by party functionaries.

Consider what that means as a question about the state rather than about a family. A senior civil servant receiving an instruction from a person with no office has three choices: refuse and be transferred or retired, comply, or ask for the instruction in writing from somebody entitled to give it. Chapter Two records that **25,962** government employees were prematurely retired.

The system's protection against unauthorised instruction is that officials can demand authority. That protection is worth exactly as much as an official's ability to survive demanding it, and by 1976 the answer was known.

7.4 — The ledger for this part

Part Five committed every subsequent part to carry the running record of which places were affected by its material.

WHERE	WHAT WAS DONE
Delhi	The power cut of 26 June. Turkman Gate and the demolitions of 1976, with residents moved across the Yamuna. The centre of both the detention machinery and the parallel authority.
Uttar Pradesh, Haryana, Bihar, Madhya Pradesh, Rajasthan	The sterilisation programme was concentrated in the north. The political consequence arrived in March 1977 in exactly these states, where Congress was almost eliminated.
Kerala	The Rajan case. A student died in police custody and his body was never recovered; the pursuit of the case brought down the state government afterwards.
The southern states generally	The Emergency was administered less harshly in much of the south, and the electoral verdict of 1977 reflected it — Congress held up in the south while collapsing in the north. That divergence is the clearest single piece of evidence that the 1977 result was a judgment on these months and not a general swing.

HOW WE ACTUALLY KNOW THIS

The demolition programme is documented in the Shah Commission's records, in contemporaneous municipal and Delhi Development Authority papers, and in the accounts of residents collected afterwards.

The finding about instructions emanating from the Prime Minister's household is the Commission's own, made after examining officials on oath about where their orders came from.

What it cannot show: the death toll at Turkman Gate. The official figure and the claims made afterwards differ by an order of magnitude, no independent count was made at the time, and the conditions for making one — a free press, an accessible court, an opposition — had all been removed in June 1975. The number is not recoverable and this part does not supply one.

That is the second time in this part that the absence of a number is itself the evidence. The first was the detentions never entered in any register.

The ledger entry above is short and the last row of it does the most work. Where the Emergency was administered lightly, Congress survived the election of 1977. Where it was administered hardest, Congress was destroyed. That correlation is the closest thing this series has to a controlled experiment on the political consequences of these months.

REMEMBER THIS

At **Turkman Gate** in April 1976 police fired on residents resisting demolition. The official toll was around a dozen and the real figure is not recoverable — **a state that counted sterilisations individually did not count the people its police killed in its own capital.**

The demolitions had a real diagnosis and no procedure: **no consultation, no hearing, no compensation and no court**, because Chapter Five had closed the last of those two months earlier.

Sanjay Gandhi held no office of any kind and officials across northern India treated his priorities as instructions. The protection against unauthorised orders is an official's ability to demand authority, and by 1976 the price of doing that was known.

CHAPTER EIGHT

The Election She Did Not Have to Call

She had extended Parliament's term, held the opposition in jail and censored the press. In January 1977 she announced a general election, lost it, and left. Explaining that is harder than explaining anything else in this part.

8.1 — What happened

In January 1977 the government announced elections to the Lok Sabha. Detainees began to be released. Censorship eased.

Polling was held between **16 and 20 March 1977**. The Emergency was formally lifted on **21 March**.

Congress was defeated. The Janata coalition formed a government on **24 March 1977** under Morarji Desai, who had spent much of the previous twenty-one months in detention.

Indira Gandhi lost her own seat at Rae Bareli — the constituency whose election petition had produced the judgment of 12 June 1975. Sanjay Gandhi lost at Amethi.

And she left office.

8.2 — Why she called it

This is the genuinely hard question in this part and there are four serious answers.

She thought she would win. Reports reaching her said so — from the party, from the administration, from the intelligence services. This is the explanation with the most support and section 8.4 is about why it should be believed.

She wanted a mandate. An Emergency ratified by an election ceases to be an emergency and becomes a programme, and that would have resolved the legitimacy problem permanently.

External pressure. India's standing had suffered and its self-description as the world's largest democracy had become difficult to sustain.

Conviction. She had been raised inside the independence movement by a man for whom elections were the point of the whole exercise, and there is a reading in which the Emergency was always understood by her as temporary.

These are not exclusive and the honest position is that the mix is not knowable. What can be said is that the decision was hers, that nothing compelled it, and that the alternative — extending Parliament again under a power the Forty-Second Amendment had just supplied — was fully available.

WORD BOX

Transfer of power: the handing over of government from a defeated party to its opponents after an election.

It sounds procedural and it is the hardest thing a political system does. Everything else about a democracy is preparation for this one moment, when the people holding the police, the army, the treasury and the broadcasting apparatus give them to people who have promised to investigate them.

The test is not whether an election is held. Authoritarian states hold elections routinely. The test is what happens on the morning after a government loses one.

Why it matters here: on 24 March 1977 that happened in India, three days after the end of twenty-one months in which the losing government had held the winners in prison.

The shape of the defeat is worth setting out, because it is the clearest evidence in this part about what the country thought it was voting on.

IN REAL TERMS

Congress had won around 352 seats in 1971. In 1977 it came back with something in the region of 150.

The geography is the striking part. Across the northern states where Chapter Six's sterilisation drive and Chapter Seven's demolitions had been hardest — Uttar Pradesh, Bihar, Haryana, Delhi, Punjab — the party was very nearly eliminated, losing every seat or close to it in several of them.

In the southern states, where the Emergency had been administered far less harshly, it held up.

An electorate voting on the economy or on a general mood does not produce a map like that. A map like that is a verdict on specific things done in specific places, and it arrived from people who had spent twenty-one months unable to read about any of it in a newspaper.

8.3 — The part that is genuinely remarkable

Something here deserves stating without qualification, because a prosecution brief that will not say it is not honest.

She held an election she did not have to hold, lost it, and handed over power.

The machinery of state — the police, the administration, the army, the Election Commission — conducted a free poll against the government that controlled it, counted the votes accurately, and transferred office to men who had been in its jails weeks earlier.

Very few countries that go as far as India went in these twenty-one months come back. Most do not have the election. Of those that do, most do not report the result. Of those that do, most do not hand over.

Whatever else is in this part, that happened, and it is the single most important fact about the Indian republic in the twentieth century.

8.4 — Where the commission went

The **Shah Commission of Inquiry** was appointed in May 1977 under Justice J.C. Shah. It held around a hundred sittings, examined roughly forty-eight thousand papers, and delivered its findings in three parts, the last in **August 1978**.

Congress returned to power in 1980.

Copies of the report were then recalled, and it ceased to be obtainable in India. It survived because a small number of copies existed in foreign libraries and private hands, and it was reconstructed and republished decades later by a former member of parliament working from those.

Part Two used this as the worked example of its rule: **when a state that counts everything has no count of something, somebody decided that.** Here the state had produced the count, in three volumes, and then removed it.

Grade: **SOLID**. The report exists, its recall is a matter of record, and the reconstruction is published.

HOW WE ACTUALLY KNOW THIS

The events of Chapter Eight are as well documented as anything in this series: the announcement, the polling dates, the results constituency by constituency, the revocation, and the swearing-in.

The Election Commission's returns are the strongest single source in this part, and for a reason worth noting. They were produced by an institution of the same state, during the same weeks, and they record the defeat of the government that appointed its officials. An electoral machinery that reports its own government's destruction accurately is telling you something about itself that no commission of inquiry could establish afterwards.

What none of it can show: why she called it. Section 8.2 gives four explanations and declines to choose. The intelligence assessments that would settle it are not released, and the accounts of participants were written afterwards by people with reputations to arrange.

What can be examined, though, is not her reasoning but the machinery that produced the information she reasoned from.

THE HIDDEN ASSUMPTION

Everybody explaining March 1977 assumes **that the Emergency ended because she called an election.**

Her defenders treat the calling as proof of democratic conviction. Her critics treat it as a miscalculation that democracy was lucky to survive. Both accept that the decision was the cause of the ending, and argue about what the decision reveals about her.

Ask instead what made the decision *look safe*.

She called it because she was told she would win. And she was told she would win because every institution capable of telling her otherwise had been dismantled by the machinery of this part. The press could not report discontent, because Chapter Three. The opposition could not organise or demonstrate it, because Chapter Two. Officials who had objected had been retired, because Chapter Seven. Party workers whose careers ran through one office had no incentive to carry bad news upward, because Part Eight's Chapter Two. Courts could not surface grievances, because Chapter Five.

Every one of those was a channel by which a government finds out what is happening in the country. All of them were closed, deliberately, and every closure was defensible in its own terms at the time.

So the ending is not a story about conviction or about miscalculation. It is that **the apparatus built to prevent the country from telling her anything worked, and the last person it blinded was her.**

This is the most important finding in this part and it generalises beyond India and beyond 1975. A government that suppresses information does not acquire a country that is quiet. It acquires a country it can no longer see — and it loses the one instrument every government needs most, which is the ability to know when it is wrong.

Part Six found a warning delivered and not received. Part Four found a diagnosis on the file and no action. This is the same failure at maximum extension, and the difference is that here the government had built the blindness itself, on purpose, and then walked into it.

One last observation about the commission. It was appointed in May 1977 and delivered its final report in August 1978 — about fifteen months to investigate twenty-one. That is fast, and it is fast because the successor government wanted it fast. Chapter Ten is about what happened to the result.

REMEMBER THIS

Elections were announced in January 1977, held **16–20 March**, and the Emergency was lifted on **21 March**. Congress lost. She lost Rae Bareilly. Janata took office on **24 March**.

She held an election she did not have to hold, lost it, and handed over power. Very few states that go this far come back, and this is the single most important fact about the Indian republic in the twentieth century.

She called it because she was told she would win — and **every channel that could have told her otherwise had been closed, deliberately, one at a time.** The last person the blindness blinded was her.

CHAPTER NINE

What Would Have Prevented It

Some of it was repaired within three years and the repairs were good. This chapter is about what was fixed, what was not, and what is still on the shelf.

9.1 — Four arguments for the defence

These are the strongest arguments available. Two of them are conceded in full.

One. The provocation of 25 June was real. A national leader publicly urging the police and the armed forces to decide which orders to obey is not ordinary opposition. Part Eight said so and this part repeats it.

Two. Everything was constitutional. Not a defence, as the front matter argued, but it is a true statement and it means the charge falls partly on the drafters of 1950 and not only on the government of 1975.

Three. It ended, and she ended it. Chapter Eight. Conceded without qualification.

Four. The system corrected itself and the correction has held for forty-nine years. This is the strong one. Within three years the worst provisions were repealed. Within five the Supreme Court had struck down the rest. No Indian government since — of any party, across many changes of power — has proclaimed a national emergency on internal grounds. Whatever the Emergency proved about the fragility of Indian institutions, the half-century since has proved something about their recovery, and no honest account can print the first without the second.

9.2 — What the Forty-Fourth Amendment fixed

The repairs of 1978 were serious and specific, and they deserve listing because they are the most useful constitutional work done in India since 1950.

THE HOLE	WHAT WAS DONE ABOUT IT
“Internal disturbance” as a ground for emergency — undefined, no threshold	Replaced with armed rebellion , which is a far higher and more checkable bar.
A proclamation on the advice of one person	The President may act only on the written advice of the Cabinet as a body.
A proclamation that ran until revoked	Must be approved by both Houses within a month, by a special majority, and renewed every six months. The Lok Sabha may revoke it by resolution.
Articles 20 and 21 suspendable	They can no longer be suspended, even during an emergency. This is the direct answer to Chapter Five, and it means <i>ADM Jabalpur</i> could not be decided the same way today.
Amendments beyond judicial review	Article 368(4) and (5) repealed; struck down in any case by <i>Minerva Mills</i> in 1980.
Six-year legislative terms	Returned to five.

Look at the fourth row in particular. The specific legal proposition of Chapter Five — that the right to life cannot be enforced during an emergency — was made impossible by constitutional text within two years of the judgment. That is a functioning system correcting a catastrophic error, and it should be said plainly.

9.3 — What is still on the shelf

And now the other half, which is why this chapter is not a happy ending.

Preventive detention was not touched. Article 22 stands as it was written in 1950.

MISA was repealed in 1978 and the National Security Act was passed in 1980 — by the Congress government that returned to office that year. Successor statutes have existed continuously since, under a series of names, and governments of every party have used them.

Part Two’s charge was never about MISA. It was about the constitutional authorisation, and the constitutional authorisation is unchanged.

Article 356 remains. Its use was constrained by the Supreme Court in 1994, which is real and valuable, but the provision is where it was.

The Ninth Schedule remains. Entries made after April 1973 became reviewable in 2007, which leaves the earlier ones where they were.

So the honest accounting is this. **The instruments used to seize the moment were repaired. The instruments used to hold the country for twenty-one months were not.**

9.4 — What I would have to retract

Three things would break this part.

If the cabinet record of 25 and 26 June 1975 showed that **a genuine, specific and imminent threat** was assessed that night — something beyond the state of the agitation everybody could see — the front matter's argument box tips and Chapter One with it.

If district records showed that **the sterilisation increase of 1976–77 tracked something other than quota enforcement**, Chapter Six's central inference fails.

If it were shown that **the intelligence reaching her in January 1977 accurately predicted defeat**, Chapter Eight's hidden assumption collapses and the calling of the election becomes an act of conviction rather than an artefact of blindness.

The first and third depend on files the Indian government holds. That is now the fifth part in a row ending on that sentence, and Chapter Ten has something to say about the pattern.

Which produces the question every Indian discussion of this period ends on.

THE ARGUMENT — COULD IT HAPPEN AGAIN?

Every Indian discussion of the Emergency arrives here, and both answers are held sincerely by serious people.

NO — THE SPECIFIC ROUTE IS CLOSED

The Forty-Fourth Amendment shut the door that was used. “Armed rebellion” is not a phrase a government can apply to a protest movement. Cabinet advice must be written and collective. Parliament must approve within a month and renew every six. Articles 20 and 21 cannot be suspended, which removes the legal basis of every detention in Chapter Two. And a state with a hundred television channels, an internet and a Supreme Court that has overruled *ADM Jabalpur* is not the state of 1975.

YES — BUT IT WOULD NOT NEED A PROCLAMATION

The 1975 route is closed and nothing else is. Preventive detention remains constitutionally authorised and statutorily available, and is used continuously without any emergency at all. Article 356 remains. The financial instruments Chapter Three described — advertising, licences, allocations — never required an emergency and never will. The lesson a competent government takes from 1975 is not that these things are impossible but that **declaring them is the mistake**, because the declaration is what created a date, a name, and something to repeal.

Where things stand: both are right and they are describing different risks. The first side is correct that the 1975 mechanism cannot be repeated, and that is a real achievement of the constitutional repair. The second is correct that the mechanism was never the point. This series has found the same shape in every part: an instrument with no expiry, used, normalised, relied on. The Emergency is the only occasion on which one of them was given a name — which is exactly why it is the only one that was ever repealed.

What would settle it: nothing settles a question about the future. What can be tracked is the use of preventive detention year by year, which is published and which nobody compiles.

Why people care so much: because every Indian government since 1977 has been accused of an undeclared emergency by its opponents, and the accusation is unfalsifiable precisely because no declaration is required.

That is the case against this part, and two of the four defences I think simply win. What none of them reaches is section 9.3, because the accounting there is not about 1975 at all — it is about which powers a country decided to keep after it had seen exactly what they could do.

REMEMBER THIS

Four defences: **the provocation of 25 June was real; everything was constitutional; she ended it; and the system corrected itself and the correction has held for forty-nine years.** The third and fourth are conceded in full.

The **44th Amendment** replaced “internal disturbance” with **armed rebellion**, required written Cabinet advice and parliamentary renewal, and made **Articles 20 and 21 unsuspendable** — which means *ADM Jabalpur* could not be decided the same way today.

The instruments used to seize the moment were repaired. The instruments used to hold the country for twenty-one months were not. Article 22 stands as written in 1950.

CHAPTER TEN

An Honest List of What We Do Not Know

The central document of this part has never been officially published. That is not an accident of archiving and it is the fifth time this series has ended a part on the same sentence.

10.1 — Genuinely unknown

Six things in this part cannot be established, and the shape of the list is unusual: most of them are counts that a state which was counting everything declined to keep.

How many people were actually detained. The Shah Commission's figure of about 110,806 is the best available and it is a floor.

Why it is unknown: a person picked up, held for days and released without an order entering any register does not appear in it. There is no way to estimate that category, and it was the category most likely to include the poorest detainees.

How many died in custody. At least twenty-two are recorded.

Why it is unknown: the mechanisms that produce such a count — inquests reported in a free press, habeas corpus proceedings, an opposition asking questions in Parliament — had all been removed by the events of Chapters One to Five.

How many died at Turkman Gate. The official figure and the claims differ by an order of magnitude.

Why it is unknown: the same reason, in one afternoon in one city. Chapter Seven treats the absence as the finding rather than as a gap.

What share of the sterilisations were coerced. Chapter Six establishes the mechanism and the tripling. It does not establish a proportion.

Why it is unknown: the consent forms were all signed. A programme that produces documentation of consent for coerced procedures cannot afterwards be audited on consent, which is why Chapter Six argues from the annual figures instead.

What was decided on the night of 25 June, and why. Cabinet papers closed.

What she was actually told in January 1977. Chapter Eight's central claim is that she called an election because the reports reaching her said she would win.

Why it is unknown: intelligence assessments of the period are not released. The claim rests on the accounts of participants and on the shape of the outcome, and Chapter Eight's argument is structural rather than documentary — it says the channels were closed, which is established, and infers that what came through them was wrong.

10.2 — Solid

The chronology. The proclamation of 25 June, the orders of 27 June, the amendment of 1976, the judgment of 28 April 1976, the announcement of January 1977, the poll of 16 to 20 March, the revocation of 21 March, and the change of government on 24 March.

The Shah Commission's figures. About 110,806 detained; 25,962 government employees prematurely retired; 26.42 lakh sterilisations in 1975–76 and 81.32 lakh in 1976–77; 1,774 deaths recorded from those procedures; 548 complaints concerning unmarried people.

Everything in the Forty-Second Amendment. It is a statute and can be read.

ADM Jabalpur. The bench, the four-to-one split, the holding, Khanna's dissent, Beg's appointment on 28 January 1977 and Khanna's resignation the same evening. All reported or on the record.

The repairs. The Forty-Third and Forty-Fourth Amendments and *Minerva Mills*. All published.

The recall of the Shah Commission report after 1980, and its later reconstruction from surviving copies.

10.3 — The fifth part in a row

Something has now happened often enough to be reported as a finding in its own right.

Part Five ended by naming a calculation nobody has done. Part Six ended by naming a report the government has held closed for sixty-three years. Part Seven ended by naming two counts anybody could make and nobody has. Part Eight ended by naming three closed files. This part ends by naming the same thing again.

The Shah Commission is the most extreme case in the series, because here the state did not merely fail to investigate. It investigated thoroughly, published in three volumes, and then **withdrew the volumes**.

Set that beside Part Six. The Henderson Brooks report on the defeat of 1962 was never published and remains closed after sixty-three years. The Sunderlal report on Hyderabad was not public for sixty-four years. The Shah Commission report was published and then recalled.

Three national catastrophes, three official investigations, and in each case the finding of the investigation is harder to obtain in India than in a foreign library.

I do not think this is a conspiracy, for the reason Part Six's Chapter Eight gave: it does not need to be. Withholding requires nobody to decide anything and releasing requires somebody to sign. But the effect is the same however it is produced, and after five parts the effect is the pattern.

REMEMBER THIS

Genuinely unknown: **how many were detained, how many died in custody, how many died at Turkman Gate, what share of the sterilisations were coerced, what was decided on 25 June, and what she was told in January 1977.**

Solid: **the chronology, the Shah Commission's figures, the whole text of the 42nd Amendment, ADM Jabalpur, the repairs of 1978 and 1980, and the recall of the report after 1980.**

Three national catastrophes, three official investigations, and in each case the finding is easier to obtain abroad than in India. That is now the pattern rather than the exception.

REFERENCE

Timeline, June 1975 to March 1977

Dates only. The arguments are in the chapters.

DATE	WHAT HAPPENED
12 Jun 1975	The Allahabad judgment. Congress loses Gujarat the same day. Part Eight's Chapter Eight.
24 Jun 1975	The Supreme Court grants a conditional stay allowing her to remain Prime Minister.
25 Jun 1975	A rally in Delhi calls on the police and armed forces not to obey illegal orders. That night the President signs a proclamation of emergency under Article 352 on the ground of internal disturbance. The Cabinet is informed afterwards.
2 a.m., 26 Jun	Power to the Delhi newspaper presses is cut, on an instruction from the Lieutenant Governor. Around 676 arrests are made before dawn.
26 Jun 1975	Pre-publication censorship imposed. Most Delhi papers do not appear that morning.
27 Jun 1975	Article 358 suspends the protections of Article 19. Article 359 suspends the right to move any court for Articles 14, 21 and 22.
1975–76	About 26.42 lakh sterilisations performed.
Aug 1975	The 39th Amendment places the Prime Minister's election beyond ordinary judicial challenge and puts MISA in the Ninth Schedule.
7 Nov 1975	A five-judge bench strikes down the election provisions of the 39th Amendment as violating the basic structure, while upholding her election. The doctrine holds under the Chief Justice appointed to break it.
Apr 1976	Demolitions reach Turkman Gate. Police fire on residents. Survivors are moved across the Yamuna.
28 Apr 1976	<i>ADM Jabalpur</i> . Four to one: no detained person may approach any court, even where the detention is illegal. Justice H.R. Khanna dissents.
30 Apr 1976	The <i>New York Times</i> publishes an editorial on the dissent.
1976	The Forty-Second Amendment: forty articles altered, fourteen added, two new Parts, the Preamble rewritten, terms extended to six years, and amendments placed beyond judicial review.

DATE	WHAT HAPPENED
1976–77	About 81.32 lakh sterilisations — roughly three times the previous year. 1,774 deaths are recorded from the procedures.
Jan 1977	Elections announced. Detainees begin to be released and censorship eases.
28 Jan 1977	M.H. Beg is appointed Chief Justice over Justice Khanna, who hears it on the radio and resigns the same evening.
16–20 Mar 1977	Polling. Congress is defeated. She loses Rae Bareli; Sanjay Gandhi loses Amethi.
21 Mar 1977	The Emergency is revoked.
24 Mar 1977	A Janata government takes office under Morarji Desai, who had spent much of the period in detention.
May 1977	The Shah Commission of Inquiry is appointed under Justice J.C. Shah.
1977–78	The 43rd and 44th Amendments repeal most of the 42nd. “Internal disturbance” becomes “armed rebellion”. Articles 20 and 21 are made unsuspendable.
Aug 1978	The Shah Commission delivers the last of its three reports.
1980	Congress returns to power. Copies of the report are recalled. The National Security Act is passed.
1980	<i>Minerva Mills</i> strikes down the expansion of Article 31C and clauses (4) and (5) of Article 368, using the basic structure doctrine those clauses had been written to abolish.
2017	<i>ADM Jabalpur</i> is overruled in <i>K.S. Puttaswamy</i> , by a bench including the son of one of the judges who decided it.

Part Ten starts here. It goes to Punjab, from 1978 to 1993 — a state Part Five’s ledger already records as both the largest beneficiary and the largest casualty of central policy.

REFERENCE

Glossary

Every hard word used in this part, in plain English.

WORD	WHAT IT MEANS
Article 352	The power to proclaim a national emergency. In 1975 the grounds included “internal disturbance”, an undefined phrase; since 1978 the ground is “armed rebellion”.
Article 358	Suspends the protections of Article 19 — speech, expression, assembly, movement — automatically during an emergency.
Article 359	Allows suspension of the right to move a court for enforcement of specified fundamental rights. Since 1978 it cannot reach Articles 20 and 21.
Basic structure doctrine	The rule from <i>Kesavananda Bharati</i> (1973) that Parliament may amend the constitution but may not alter its essential features. The 42nd Amendment tried to abolish it and was struck down by it.
Habeas corpus	An order requiring whoever holds a person to produce them before a court and justify the detention. The protection every other right depends on.
Locus standi	The right to bring a case before a court at all — standing. <i>ADM Jabalpur</i> held that detainees had none during an emergency.
MISA	The Maintenance of Internal Security Act 1971. Detention without charge or trial on the executive’s satisfaction. Repealed 1978; the National Security Act followed in 1980.
Pre-publication censorship	A requirement to show material to an official before printing, as opposed to punishment afterwards. Nothing suppressed this way leaves any trace.
Preventive detention	Holding a person to stop them doing something, rather than for something they have done. Authorised by Article 22 of the constitution since 1950 and never removed.
Target-driven administration	Setting officials numerical goals and rewarding them on the number. Its known failure is that where the target is measurable and the quality is not, the number wins.

ABOUT

About the Author

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I write long-form research on Indian history, society, belief and public life, and publish it at misterlove.in under the name The Living Archive. Before this series I completed a fourteen-part history of Punjab and a sixteen-part study of the rules societies place on women.

This is the part where the writing mattered most and where I have tried hardest to keep the volume down. The material is the strongest in the series and it does not need help. Almost every number in it comes from a commission appointed by an Indian government to investigate an Indian government, and the plainest possible statement of what that commission found does more damage than any adjective I could add.

Two things I want to be held to. Chapter Eight says without qualification that she called an election she did not have to call, lost it and handed over power, and that this is the most important fact about the Indian republic in the twentieth century. I believe that, and it sits in the middle of the part rather than in a footnote at the end. And Chapter Nine's section 9.3 says that the instruments used to hold the country for twenty-one months were never repaired — including by the government that returned in 1980 and passed a new detention statute in its first year. A part that condemned 1975 and said nothing about 1980 would be doing politics rather than history.

THE RULES OF THIS PROJECT

The Living Archive

Everything published under this name follows three rules.

Plain language, undiminished content. The words are as simple as I can make them. The argument is not simplified with them.

Show the evidence, and show what it cannot prove. Every serious claim names what it rests on, and every source is described honestly, including what it is blind to.

Give every side its strongest case. Where people who know the material disagree, both positions appear at full strength, and I say when the evidence does not settle it.

PLEASE READ THIS

A Word on Sources

This part rests principally on the reports of the Shah Commission of Inquiry, together with published constitutional amendments, reported judgments, Election Commission results, and independent contemporaneous reporting including by international human rights organisations.

The Shah Commission's limits are stated in the text and repeated here. It was appointed by the successor government of the people who had been detained. It questioned officials who knew they were being questioned. Its framing was not neutral. What makes it usable despite that is that most of what it reports is drawn from the previous government's own records, and that its central figures were independently corroborated at the time from outside India.

It is also not officially published. The version available today is a reconstruction from copies that survived abroad and in private hands. Anybody citing it, including me, is citing a document the Indian state removed from circulation.

Corrections. If something here is wrong, write to me. Later editions will say what was changed and who caught it.

Lovepreet Singh

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NEXT

What Comes Next

Part Ten — Punjab, 1978 to 1993

Part Ten takes fifteen years in one state. Part Five's ledger recorded Punjab as both the largest beneficiary of central policy and, later, one of its largest casualties. It asks:

- Part Five found Punjab's river waters allocated by notification in 1976 and by an agreement in 1981 that ended a live Supreme Court case. What did that do to the politics of the state in the years immediately after?
- The Anandpur Sahib Resolution is described in Indian politics as a secessionist document. What does it actually say, and when did the description change?
- A figure was built up in Punjab politics in the late 1970s. Who built him, why, and what is the evidence for that beyond the assertions of people who later had reason to make it?
- Operation Blue Star was conducted in June 1984. What were the alternatives on the table, who proposed them, and why were they rejected?
- Part Two's rule about counting applies to November 1984. How many people were killed in Delhi, how do we know, and how many convictions followed in the four decades since?
- Between 1984 and 1993 the state was governed under emergency provisions for most of the period. What was done under them, and what has been established since?

Questions, not topics. If any of them is answered badly, you will be able to tell.

THE LIVING ARCHIVE

PART TEN OF NINETEEN

The Congress Record

Part Ten — Punjab, 1978 to 1993

A charter of demands that became a secession manifesto without a word of it changing. A soldier who advised against an operation and was passed over for the post that would have let him refuse it. Two thousand seven hundred and thirty-three deaths in five days, and twenty-five convictions in forty-one years.

I am Punjabi and this is the part I am least qualified to write impartially. Chapter Nine's hidden assumption is where I have tried hardest to argue against myself, and Chapter Four is where the militancy's own killings are set out without mitigation.

WRITTEN AND RESEARCHED BY

Lovepreet Singh

INDIA · 1978 TO 1993

MISTERLOVE.IN

BEFORE WE BEGIN

Where We Left Off

Part Five recorded Punjab as both the largest beneficiary of central policy and one of its largest casualties. This part is the fifteen years in which the second overtook the first.

Five findings carry into this part.

Punjab's rivers were allocated by notification and by an agreement that ended a live court case. Part Five's Chapter Five: the 1976 notification left the state about a fifth of rivers flowing through its own territory, Punjab sued, and in December 1981 the Prime Minister brokered an agreement with a Chief Minister of her own party and the case was withdrawn. Part Five's verdict — that Punjab had a weak case about the water and a strong case about the procedure — stands, and Chapter One is about what the procedure did to the politics.

The agricultural package made Punjab rich and locked it in. Part Four and Part Five both found it: seed, subsidised inputs, near-free power and a guaranteed price, producing prosperity and a crop pattern nobody has since been able to change.

A warning is received only where somebody has the authority to act, an incentive to believe, and a decision it changes. Part Six's finding. Chapter Five applies it to a soldier who wrote the position paper he was asked for.

When a state that counts everything has no count of something, somebody decided that. Part Two's rule, used on the Partition dead and on Hyderabad. Chapter Seven is where it does the most work in this series.

An excess is a legitimate thing done too much. Part One promised to name that word every time. Part Nine named it over the sterilisation programme. It is named again here.

One thing about who is writing this. I am Punjabi. I have written about this material before, at length, and I hold views about it that predate any of the research in this part. That is a problem for a book of this kind and there is no way to solve it except by being explicit about where the risk lies. It lies in Chapters Five to Seven, where a Punjabi account writes itself and would be wrong. Chapter Four exists partly as a corrective, and Chapter Nine's closing box is the finding I found hardest to write.

HOW TO READ THIS BOOK

The Six Boxes

Six coloured boxes run through the series, each doing one job. Here they are with examples from the material ahead.

A **Word Box** explains a hard word the moment it first appears.

WORD BOX

Akal Takht: the seat of temporal authority in Sikhism, established in 1606, standing directly opposite the Harmandir Sahib in Amritsar.

The distinction matters for everything in Chapter Five. The Harmandir Sahib — the Golden Temple — is a place of worship. The Akal Takht is the institution from which binding directions to the Sikh community are issued. In a rough analogy, one is a cathedral and the other is the office of the authority that governs it.

Why it matters here: the army's assault in June 1984 was directed principally at the Akal Takht, and it was reduced to rubble. That is why the operation is understood in Sikh terms as an attack on an institution rather than on a building.

An **In Real Terms** box turns a number too big to picture into something with a body.

IN REAL TERMS

The official count of Sikhs killed in Delhi between 31 October and 7 November 1984 is **2,733**. Most of them died on 1 and 2 November.

That is roughly a thousand people a day, for two days, in the capital city of a country with a functioning police force, in an area of a few dozen square kilometres.

Of the 587 first information reports registered, **25** have produced a conviction. Twelve of those are for murder.

Forty-one years. Twelve murder convictions. Chapter Seven is about the arithmetic between those two numbers.

A **How We Actually Know This** box shows the physical evidence and then says what it cannot prove.

HOW WE ACTUALLY KNOW THIS

The evidence in this part is unusually uneven and it is worth mapping before starting.

Very strong: November 1984 in Delhi. Four commissions, nine committees, two special investigation teams, a documented death toll, an FIR count, a conviction count, and High Court judgments naming the failures. The Indian state has investigated this more thoroughly than almost anything else in this series.

Strong: the constitutional and political chronology — the dismissals, the notifications, the President’s Rule proclamations, the texts of resolutions and accords.

Weak: everything about the militancy’s internal decisions, and everything about the counter-insurgency’s methods between 1987 and 1993. There was no commission, the press was restricted, and the principal investigator of the disappearances was himself abducted and killed.

Which produces an asymmetry this part has to state rather than exploit: the five days in Delhi are among the best-documented atrocities in Indian history, and the following nine years in Punjab are among the worst-documented.

An **Argument** box appears where serious people disagree, each side at its strongest.

THE ARGUMENT — WAS THIS A RELIGIOUS CONFLICT?

The framing question, and both national and Sikh accounts get it wrong in opposite directions.

YES — IT WAS ABOUT RELIGION AND IDENTITY

The demands were made in religious language, from religious institutions, by a religious leadership. The Anandpur Sahib Resolution opens by asserting the Sikhs’ status as a distinct people. The militancy’s stated objective was a state defined by faith. The killings of Nirankaris in 1978 were about doctrine. And the violence of November 1984 was directed at people identified by their turbans and their names, which is the definition of a communal attack.

NO — EVERY INSTRUMENT IN IT WAS A FEDERAL ONE

Read the operative demands rather than the preamble. Chandigarh. River waters. The transfer of Punjabi-speaking areas. Limits on central power. Those are the standard grievances of an Indian state against the centre, and versions of them were being pressed at the same time by Tamil Nadu, by West Bengal and by the north-east. What made Punjab different was not the demands but that the state's constitutional routes were closed one after another — a notification instead of a tribunal, a dismissal instead of an election, and a charter of demands relabelled as treason.

Where things stand: the second side describes the causes and the first describes the form the conflict took, and both are necessary. The decisive evidence for the second is in the resolution itself, which Chapter Two reproduces in substance: its central political demand was that the centre be limited to defence, foreign affairs, currency and communications — which is very nearly the list in the Instrument of Accession that Part Seven's Chapter Three examined, and which Kashmir was actually given in 1947.

What would settle it: comparing how the centre handled equivalent federal demands from states where the population was not religiously distinct. Part Five began that comparison and nobody has completed it.

Why people care so much: because a religious conflict has no policy answer and a federal one does, and both Indian and Sikh nationalisms have preferred the version with no answer.

A **Hidden Assumption** box digs out a belief sitting underneath an argument that *both sides accept without discussing*.

THE HIDDEN ASSUMPTION

Everybody who writes about these fifteen years assumes **that they were about Punjab**.

The Indian version: a separatist movement in a border state, backed from outside, defeated at great cost. The Punjabi version: a community's grievances answered with tanks. Both treat the events as belonging to one place and one people.

Look at the instruments instead of the events. An elected state government dismissed by the centre. River waters allocated by executive notification rather than by the tribunal the law provides. A live Supreme Court case ended by a political agreement. A

senior officer who gave contrary professional advice passed over for the post. A state governed under emergency powers for most of a decade. Detention without trial. An official inquiry into a massacre producing almost no convictions.

Not one of those is a Punjab instrument. Every single one appears elsewhere in this series, applied to places with no religious distinctiveness, no militancy and no foreign border. Kerala was dismissed in 1959. Kashmir's head of government was removed without a floor test in 1953. The Emergency detained a hundred and eleven thousand people. Three judges were passed over in 1973 and a fourth in 1977, and a Vice-Chief of Army Staff in 1983.

Which reframes the question. "Why did Punjab explode" has an answer that is not about Punjab. The right question is why the same instruments produced an insurgency here and produced resentment in Kerala — and it is the same answer Part Seven reached about Kashmir. Where the state's presence is not itself in question, these instruments damage a government. Where it is, they damage the claim.

The uncomfortable corollary, which Chapter Nine returns to: Punjab's presence in India was not in question in 1978. It became a question over the following six years, and it did so while the instruments were being applied.

And every chapter closes with a **Remember This** box: the chapter in the plainest words available.

REMEMBER THIS

Part Five's verdict stands: Punjab had a **weak case about the water and a strong case about the procedure**. Chapter One is what the procedure did to the politics.

The evidence is **uneven and this part says so**: November 1984 in Delhi is among the best-documented atrocities in Indian history and the nine years that followed in Punjab are among the worst-documented.

Not one instrument used in Punjab was a Punjab instrument. Every one appears elsewhere in this series, in places with no militancy and no border.

Part Ten

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10. An Honest List of What We Do Not Know

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CHAPTER ONE

What Punjab Was in 1978

The richest state in India per head, and the one with the longest list of things it could not get decided. Both facts matter and the second one is the subject of this part.

1.1 — The prosperous half

Parts Four and Five established the first half and it should not be skipped, because a story about grievance that leaves out the prosperity is a story about somewhere else.

By 1978 Punjab was the richest Indian state per head. It had the canal system the British began in the 1880s, extended by Bhakra. It had received the agricultural package in full — the seed, the subsidised fertiliser, the near-free power for pumping, the credit and the guaranteed price. It fed the country's buffer stock.

Part Five's ledger recorded Punjab in the column of states that gained, and that entry stands. Whatever else this part describes, it does not describe a neglected place.

WORD BOX

Union Territory: a part of India administered directly by the central government rather than by an elected state government.

It is meant for places that cannot sensibly be states — small islands, tiny enclaves, the national capital — and for temporary arrangements pending a decision.

Chandigarh was made one in 1966 as a temporary arrangement pending a decision about which state should have it. The temporary arrangement is now fifty-nine years old, which is longer than most Indian states have existed.

Why it matters here: Part One's rule about emergency instruments applies to administrative ones too. A holding arrangement with no expiry becomes the settlement, and nobody ever has to defend it.

1.2 — The list

And it had a list of unresolved questions, most of which had been open since the state was reorganised in 1966.

Chandigarh. Built as Punjab’s capital after Partition took Lahore. On reorganisation it became a Union Territory serving as the capital of both Punjab and Haryana, pending a decision. The decision was promised repeatedly and not made.

The river waters. Part Five’s Chapter Five in full. The 1955 allocation gave Rajasthan the largest share of two rivers that do not flow through it, and undivided Punjab did not object — which is Punjab’s own concession and stands. After 1966 the successor states failed to agree, and in **March 1976** the centre issued a notification dividing the water, leaving Punjab with roughly a fifth of the flow of rivers running through its territory.

Punjabi-speaking areas. The 1966 reorganisation left areas Punjab claimed on the Haryana side, pending a determination that kept being deferred.

Procurement terms. The state that grew the country’s grain wanted the price set higher and the input costs lower, which is the ordinary politics of every farming region anywhere.

1.3 — The routes, and the order they closed

Here is the thing this chapter exists for, and it is a claim about procedure rather than about substance.

Every item on that list had a constitutional route by which it could have been settled. Track what happened to each.

The river dispute had a tribunal. India has an Inter-State River Water Disputes Act, and its whole purpose is deciding exactly this kind of question independently of whoever is in office. Instead the matter went by **central notification** in 1976. Punjab filed suit in the Supreme Court in July 1979 — the second route. In **December 1981** the Prime Minister brokered a tripartite agreement with a Chief Minister of her own party, and Punjab withdrew the case. Route two closed. A tribunal was eventually appointed in 1986 and never delivered a final award.

Chandigarh had a political route — a decision by the government of India, promised in successive settlements and repeatedly postponed.

And electoral politics was the route for everything else. An Akali government took office in Punjab in 1977, after the Emergency. It was **dismissed in 1980**, when Congress returned to power at the centre and used Article 356 across a set of states.

Set the dates in order. 1976: the water goes by notification. 1980: the elected government goes. 1981: the court case goes. 1982: the Akalis launch an agitation, having run out of the other three.

That sequence is the argument of this part, and everything from Chapter Three onwards happens inside it.

IN REAL TERMS

Imagine a dispute with your neighbour about a boundary.

You go to the tribunal that exists for boundary disputes. Before it rules, the council issues a notice deciding the matter administratively. You go to court. While the case is pending, the mayor arranges a meeting with your solicitor — who is a member of the mayor's party — and your case is withdrawn. You vote for a new council. The mayor dissolves it.

You have now exhausted every method that exists. Nothing that happens next is justified by that. But if you want to know why somebody in your position eventually stops using methods, the answer is on the record with dates against it.

All of which rests on the plainest kind of evidence available to this series.

Underneath all four items on that list sits one concrete question that could have been settled at any point in fifty-nine years.

THE ARGUMENT — SHOULD CHANDIGARH HAVE BEEN GIVEN TO PUNJAB?

It is the smallest item on Chapter One's list and the one that has outlasted everything else.

YES, AND THE PROMISE WAS MADE REPEATEDLY

It was built as Punjab's capital, on land taken from Punjabi villages, to replace Lahore. On reorganisation it was made a Union Territory as a temporary arrangement pending a decision, and the decision was promised in successive settlements including the accord of 1985, which set a date. The date passed. Fifty-nine years is not a pending decision; it is a decision, taken by never taking it, and every Punjabi government of every party has said so.

THERE IS A REAL PROBLEM AND IT IS NOT BAD FAITH

Haryana was created without a capital and has had no other since. Transferring Chandigarh means either leaving Haryana without one or building a new one at enormous cost, and every proposed package — a transfer plus compensating territory — has foundered because the compensating territory was itself disputed. Successive central governments have not refused; they have failed to find terms both states would accept, which is a different thing and is what federations look like when two members want the same object.

Where things stand: the second side describes a genuine difficulty and the first is right about what fifty-nine years of it amounts to. The finding that survives both is procedural and is this part’s recurring one: **a temporary arrangement with no expiry becomes the settlement**, and the party holding the object at the moment the clock stops is the party that wins by delay. Chandigarh has been administered from Delhi since 1966 because nobody decided, and not deciding was itself an outcome that favoured one answer.

What would settle it: a decision. There is no evidential gap here at all, which distinguishes it from everything else in this part.

Why people care so much: because it is the one item on the list that requires no inquiry, no money and no reinterpretation of history — and it is still open.

All of which rests on the plainest kind of evidence available to this series.

HOW WE ACTUALLY KNOW THIS

The chronology in section 1.3 is entirely composed of dated public acts: a gazetted notification, a filed suit, a signed agreement, a withdrawn case, and a proclamation under Article 356 laid before Parliament.

None of it requires anybody’s account of anybody’s motives, which is why this chapter can be categorical where the rest of the part cannot.

What it cannot show: whether the closing of those routes was intended to have the effect it had. Each act had its own justification at the time, and there is no document connecting them. This part argues that the *sequence* mattered regardless of intent, which is a weaker claim and the only one the evidence supports.

One thing this chapter does not claim. It does not say that closing those routes caused what followed, or that anybody closed them in order to cause it. Each act had its own justification and there is no document connecting them. What it says is that by 1982 a state with an ordinary list of federal grievances had no ordinary way left to press any of them, and that this is a fact about a procedure rather than an opinion about a motive.

REMEMBER THIS

By 1978 Punjab was the **richest state in India per head**, and Part Five's ledger records it as a state that gained. A story that leaves that out is about somewhere else.

It also had a list open since 1966: **Chandigarh, the river waters, the Punjabi-speaking areas, and procurement terms.**

Every item had a route. **1976 the water went by notification, 1980 the elected government went, 1981 the court case went.** The agitation of 1982 came after the other three.

CHAPTER TWO

The Resolution

It is described in Indian politics as a secessionist document. Very few people who describe it that way have read it, and the text did not change between the two descriptions.

2.1 — What it is

In December 1972 the working committee of the Shiromani Akali Dal appointed a twelve-member sub-committee to draft a statement of policy. Its members included Surjit Singh Barnala, who would later be Chief Minister, Gurcharan Singh Tohra, Balwant Singh and a retired Major-General.

The committee's report was adopted at Anandpur Sahib on **17 October 1973**. It was endorsed with modifications at the party's conference at Ludhiana in October 1978.

It is a party's charter of demands — the sort of document any political party produces, comparable in form to a manifesto or a white paper.

2.2 — What it actually demands

Set out plainly, because almost nobody does.

On the centre and the states: that the constitution be recast on genuinely federal lines, with the central government's role **limited to defence, foreign relations, currency and communications**, and all remaining powers vested in the states.

On specific Punjab questions: Chandigarh to Punjab; the transfer of Punjabi-speaking areas; an equitable share of river waters; state control over irrigation, agriculture and industry.

On religion: recognition of Sikhism as a religion distinct from Hinduism, and protection of Sikh identity.

On the economy: redistribution, poverty eradication, action against monopolies — which is to say, roughly the economic language every Indian party used in 1973.

Now look at that first demand again, because it is the one that matters and it has a history in this series.

Defence, foreign relations, communications. Part Seven's Chapter Three set out what the Instrument of Accession transferred to the Union in 1947: **defence, external affairs and communications**.

The Anandpur Sahib Resolution's central constitutional demand was, in substance, that every Indian state be given what Jammu and Kashmir was actually given in 1947 — and which, as Part Seven documented, was taken away from it by executive orders between 1954 and 1965.

HOW WE ACTUALLY KNOW THIS

The resolution is a published political document and its text can be read. That should make this chapter simple and it does not, for one reason.

It circulated in several versions and translations. The original was in Punjabi. English renderings differ, sometimes materially, and the 1978 Ludhiana endorsement modified it. Through the 1980s the government habitually quoted the most maximalist available rendering and the Akali Dal the most moderate — and both were quoting real text from real versions.

This is not a minor complication. A great deal of the national argument about whether the document was secessionist has been conducted by two sides reading different translations at each other, in good faith, for forty years.

What this chapter therefore does: it states the operative demands, which are consistent across versions, and states the preamble's nationalist language, which is also present across versions. Where the versions diverge is mostly in emphasis and tone, and no claim here depends on a disputed passage.

What it cannot show: which version any given official had read when describing it. That is unknowable and it matters more than it should.

2.3 — What is genuinely awkward in it

A Punjabi account stops there. This one cannot.

The resolution's preamble is not a federalism document. It asserts that the Sikhs have constituted a distinct political people since 1699, and speaks of an autonomous region in northern India in which Sikh interests would be the fundamental principle of state policy.

That is more than devolution. A territorial unit whose declared basis is the interests of one religious community is not the same proposition as a state with more powers, and pretending otherwise is not honest. It is the strongest thing the document's critics have and this part concedes it.

There is a further complication. The resolution circulated in several versions and translations, and the government habitually cited the most maximalist rendering while the Akalis cited the most moderate. Both were quoting real text.

2.4 — What changed

The document was adopted in 1973. It was endorsed in 1978. It was referred, in substance, to the commission on centre-state relations that the Indian government itself appointed in 1983 to consider exactly the questions it raised.

Between 1978 and 1982 it was the platform of a party that had governed Punjab in coalition and had partners in Delhi. By 1983 it was being described in national politics as a charter for secession.

Not a word of it had changed.

WORD BOX

Federalism: a system in which powers are divided between a central government and constituent units, with each having authority the other cannot simply take away.

The Indian constitution is federal in structure and heavily weighted to the centre: the Union List is long, residual powers sit with the centre, and Article 356 lets it dismiss a state government. Part Three called it a federation with a hole in it, and Part Five showed the hole in operation.

Demanding more federalism is therefore an ordinary constitutional position in India, held at various times by parties in Tamil Nadu, West Bengal, Andhra Pradesh and the north-east.

Why it matters here: the Anandpur Sahib Resolution's core demand is a federalism demand, and it was not treated as one.

The way to test whether that demand was extreme is to hear it in another voice.

IN REAL TERMS

Try the central demand on a different state and hear how it sounds.

Suppose Tamil Nadu asked that the Union government be responsible for defence, foreign affairs, currency and communications, and that everything else — police, land, education, industry, water — sit with the state.

That is a radical constitutional proposal. It is also a recognisable one, of a kind argued for by regional parties in several Indian states across the 1970s and 1980s, and it is what the Sarkaria Commission was appointed in 1983 to consider.

The same words, from a party representing a religious minority in a border state, were read as treason. The difference was not in the sentence.

Which is the argument this chapter cannot avoid.

THE ARGUMENT — WAS THE RESOLUTION A SECESSIONIST DOCUMENT?

This is the founding dispute of the whole period and both readings are held by serious people.

YES, OR CLOSE ENOUGH

Read the preamble rather than the shopping list. A document asserting that a religious community has been a distinct political nation since 1699, and calling for a territory where that community's interests are the basis of state policy, is not asking for better centre-state relations. Limiting the Union to four subjects would leave a state with its own everything else — which is a confederation, not a federation. And whatever the drafters meant, the movement that carried the document by 1983 was demanding a separate country, which is the only test of a political text that matters.

NO, AND THE STATE'S OWN CONDUCT PROVES IT

The operative demands are a federalism charter and the Indian government treated them as one for a decade: it negotiated on them, and in 1983 it appointed a commission on centre-state relations to examine precisely these questions. Governments do not refer secession demands to expert commissions. As for the movement of 1983, that is an argument about 1983 and not about the document — and Chapter Four shows what happened in between.

Where things stand: the first side is right about the preamble and the second is right about the operative text and about the state's own behaviour. The honest reading is that **it is a federalism charter with a nationalist preamble**, that the two are in tension, and that which one you quote has always depended on what you needed it to be. What is not arguable is the timing: the text was fixed in 1973 and the description changed in the early 1980s, so whatever changed was not the document.

What would settle it: the drafting record of the 1972–73 sub-committee, and a definitive comparison of the circulating versions. Neither exists in accessible form.

Why people care so much: because if it was a federalism demand, the state answered a constitutional argument with an army, and if it was a secession demand, the state answered a secession movement the way states do.

Notice what both of those positions are doing. They are both reading, and both believe the reading settles something.

THE HIDDEN ASSUMPTION

Both sides of that argument assume **that the question is what the document said**.

Its defenders quote the demands. Its critics quote the preamble. Both are conducting a reading, and both believe that establishing the correct reading would establish something about the conflict.

A political document's meaning is not fixed by its text. It is fixed by **who is holding it up and what their opponents need it to mean**, and both of those changed completely between 1973 and 1984 while the words sat still.

Follow the same sentences through. In 1973 they are an opposition party's manifesto in a state the party does not govern, and nobody outside Punjab reads them. In 1977 they belong to a governing party in coalition with parties that are simultaneously in office in Delhi, and the demands are negotiable. In 1980 the government holding them is

dismissed. In 1982 they are the platform of an agitation. By 1983 they are being cited in Parliament as evidence of treason, and by 1984 they are being cited by men with rifles as authority for something the document does not ask for.

Five meanings, one text, eleven years.

This is why the reading argument is unresolvable and why both sides can quote accurately for ever. And it generalises: **a charter of demands is a container, and what it holds depends on who is carrying it.** The useful question is never what a political document says. It is who gained by which reading, in which year, and what they did with it.

Carry one date forward. In 1983 the Indian government appointed a commission on centre–state relations to examine the questions this resolution raised. In the same year the resolution was being described in national politics as a charter for secession. Both of those were the position of the same government in the same twelve months.

REMEMBER THIS

Adopted **17 October 1973**. Its central constitutional demand was that the centre be limited to **defence, foreign relations, currency and communications** — very nearly the list the Instrument of Accession gave the Union in 1947.

Its preamble is a different document: a distinct political people since 1699, and a region where Sikh interests would be the basis of state policy. **That is more than devolution and this part concedes it.**

Between 1978 and 1983 it went from a coalition partner's platform to a charter for treason. **Not a word of it changed.**

CHAPTER THREE

The Man Who Was Built

The claim that Congress built Bhindranwale to split the Akali vote is the most repeated allegation in Punjabi politics. This chapter examines it, finds the evidence thinner than the claim, and argues the question is the wrong one anyway.

3.1 — The claim

Jarnail Singh Bhindranwale became head of the Damdami Taksal, a Sikh seminary, in 1977. Over the following six years he became the most consequential figure in Punjab.

The claim, made repeatedly in Punjab and by a number of Congress figures afterwards, is that he was promoted by Congress in the late 1970s as a religious counterweight to the Akali Dal — a way of splitting the Sikh vote and undermining the party that had beaten Congress in 1977.

Several senior Congress figures have said versions of this publicly. It is the standard explanation in Punjab and it is repeated as though established.

WORD BOX

Vote bank: a bloc of voters expected to vote together, which a party tries to secure whole rather than persuading one at a time.

It is ordinary electoral arithmetic everywhere and it is not sinister in itself. What makes it consequential is the standard method for attacking somebody else's: you do not try to win the bloc over, you find something that will **split** it, and the cheapest splitter is usually a rival identity or a purer version of the same one.

The risk is equally standard. A splitter recruited to divide a bloc has his own objectives, and once he has a following he no longer needs the party that promoted him.

Why it matters here: this is the mechanism the allegation in this chapter describes, and it is the reason the allegation is plausible without being proved.

3.2 — What the evidence supports

Grading it properly is the job of this section.

SOLID: that Congress and the Akali Dal were direct electoral competitors for the Sikh vote, and that anything dividing the Akali base was in Congress's electoral interest. That is not an allegation, it is arithmetic.

DOCUMENTED: that he was allowed to operate with a freedom the law did not require. He was arrested in 1981 in connection with the killing of a newspaper editor and released. Weapons were carried openly in and around the temple complex for a long period. Police action was repeatedly not taken.

ALLEGED: that Congress deliberately promoted him as a strategy. This rests on statements made by participants afterwards, in a period when everybody involved had reasons to attribute the disaster to somebody else. There is no document.

So the honest position is that the electoral interest is obvious, the permissiveness is documented, and the deliberate strategy is asserted rather than proved.

IN REAL TERMS

A political vacuum is not an abstraction. It is a specific and countable thing: the number of people in a place who have a grievance and no remaining institution through which to press it.

In Punjab by 1982 that group included farmers who wanted a better procurement price, a party that had won an election and been dismissed, lawyers whose case had been withdrawn over their heads, and young men with education and no work in a state whose prosperity had stopped rising.

None of those people wanted a separate country in 1978. Most of them never did.

What a vacuum does is not convert people. It removes the alternatives, so that whoever is offering something becomes the only person offering anything — and he does not have to be persuasive, he only has to be present.

3.3 — Why the question is the wrong one

And now the reason this chapter is short.

Suppose the strongest version of the claim is true and Congress did build him. It still explains very little, because it does not explain why the building worked.

Political parties promote convenient religious figures constantly, in every country, and almost none of them becomes what he became. The variable is not the promotion. It is whether there is anything for the promoted figure to occupy.

Chapter One listed what was available in Punjab by 1982. A river dispute settled by notification. A court case ended by political agreement. An elected government dismissed. A charter of demands relabelled as treason. Every constitutional route to a set of ordinary state grievances closed, in sequence, within six years.

A political space of that size does not stay empty. If it had not been him it would have been somebody, and the somebody would have had the same material to work with.

THE ARGUMENT — DID CONGRESS BUILD HIM?

The most repeated allegation in Punjabi politics deserves a proper hearing on both sides.

YES, AND SEVERAL OF THEM HAVE SAID SO

The electoral logic is unarguable: Congress had lost Punjab to the Akalis in 1977 and needed the Sikh vote split. He was given platforms, was permitted to campaign against Akali candidates in 1980, was arrested for a killing and released within weeks, and was allowed to arm and fortify a religious complex over months while the police did not act. Senior Congress figures have subsequently acknowledged versions of this. A pattern of official permissiveness that consistent is not accident.

THERE IS NO DOCUMENT AND THE PATTERN HAS OTHER EXPLANATIONS

Permissiveness is not sponsorship. Governments avoid confrontations inside religious sites everywhere, for obvious reasons, and the reluctance to enter the Golden Temple was shared by every party and by the police themselves. Congress state governments were also being killed by the movement he led, which is a strange outcome for a strategy. And every account of deliberate promotion was given after 1984 by people with a catastrophe to explain and an interest in placing it elsewhere.

Where things stand: the honest position is the one in section 3.2. The electoral interest is obvious, the permissiveness is documented, and the deliberate strategy is asserted rather than proved. Note that the second side's strongest point — that Congress governments were among the victims — cuts less than it appears, because a strategy can succeed at splitting a vote and then escape its authors entirely, which is the ordinary history of this kind of manoeuvre everywhere.

What would settle it: nothing that exists. There will be no document.

Why people care so much: because whoever produced him is understood to own everything that followed, which is why both sides need the answer and why the box below argues the question is the wrong one.

What both sides of that argument share, though, is an assumption about how political figures come to matter at all.

THE HIDDEN ASSUMPTION

Everybody arguing about Bhindranwale assumes **that he was created**.

The Punjabi version: Congress built him, therefore what followed is Delhi's responsibility. The Indian version: he arose from Sikh fundamentalism, therefore what followed is Punjab's. Both are arguments about origin, and both parties want the origin because whoever produced the man owns the consequences.

People are not created. **Spaces are** — and a space is created by closing things, which is a matter of record rather than of allegation.

This is why the origin argument has run for forty years without moving. It cannot be settled, because the evidence for deliberate promotion is memoir and the evidence against is absence, and neither side will ever produce the document. Meanwhile the thing that *can* be established — which routes closed, in which year, by whose act — is not seriously disputed by anybody and is barely discussed.

The general rule matters beyond Punjab. When a political figure appears who seems to come from nowhere, the productive question is never who sponsored him. It is **what was closed, and when** — because sponsorship is cheap and available to everybody, and vacancy is not.

And it cuts against the account I grew up with. "They built him" is a comfortable sentence for a Punjabi to say, because it puts the agency entirely elsewhere. The version in this chapter is less comfortable and I think more defensible: the closing of the routes is Delhi's, and what was done with the space that opened was not only Delhi's, and Chapter Four is about that.

Which is why this chapter is the shortest in the part. The origin question absorbs enormous energy in Punjab and settles nothing, and the question it displaces — what was closed, and when — is answerable from a gazette.

REMEMBER THIS

The claim that Congress built him is **the standard explanation in Punjab**. The electoral interest is obvious, the permissiveness is documented, and the **deliberate strategy is asserted rather than proved**.

Even at its strongest the claim explains little, because **it does not explain why the building worked**. Parties promote convenient religious figures constantly and almost none become this.

People are not created. Spaces are — and a space is created by closing things, which is a matter of record rather than allegation.

CHAPTER FOUR

The Slide, 1978 to 1984

This chapter exists to prevent the rest of this part being dishonest. What was done in Punjab in these six years, by people from Punjab, is set out here without mitigation.

4.1 — April 1978

On **13 April 1978**, Baisakhi, a group from the Damdami Taksal and the Akhand Kirtani Jatha marched to protest against a convention of the Sant Nirankari Mission in Amritsar. There was a clash. **Thirteen Sikhs were killed.**

Note who died. The first deaths of this period were Sikhs, killed in a dispute between Sikhs and a sect they regarded as heretical, and the prosecution that followed produced acquittals which were bitterly received.

That is where the cycle starts, and it starts inside Punjab.

4.2 — What followed

The list is not short and it should be read in full rather than summarised.

April 1980: the head of the Nirankari sect was assassinated in Delhi.

9 September 1981: Lala Jagat Narain, the founder and editor of a major Punjabi newspaper group and a persistent critic, was shot dead. Bhindranwale was named in the investigation, arrested in September and released in October.

25 April 1983: A.S. Atwal, a Deputy Inspector General of Police, was shot dead on the steps of the Golden Temple as he was leaving it. His body lay there for hours because the police would not enter.

5 October 1983: at Dhilwan, a bus was stopped, passengers were separated by religion, and **six Hindu passengers were shot dead.** The following day the state government was dismissed and Punjab was placed under President's Rule.

December 1983: Bhindranwale moved into the Akal Takht itself and fortified it.

Shabeg Singh, a retired Major-General who had trained the Bengali resistance in 1971 and had been dismissed from the army, organised the defences.

And running through all of it, continuously: killings of Hindus in Punjab, of Nirankaris, of Congress workers, of police officers, of journalists, and of Sikhs who disagreed. By 1984 the largest single category of people being killed by the militancy was Sikhs.

IN REAL TERMS

A Deputy Inspector General of Police is a very senior officer — the rank that commands a range of districts.

He was shot on the steps of the Golden Temple, in daylight, in April 1983, as he walked out of it. His body lay where it fell for hours, because the force he commanded would not go in to collect it.

Whatever else is true about this period, a state whose senior police officers can be killed on the steps of a building its own force will not enter is not exercising authority in that place. That is the situation the Indian government faced in 1983, and no argument in the later chapters of this part is available to anybody who has not accepted it.

4.3 — What this means for the rest of this part

Three things follow and all three constrain what the later chapters can argue.

The state's problem was real. A police officer shot on the steps of a shrine his force would not enter, passengers pulled off a bus and killed by religion, and an armed group fortifying a religious complex are not grievances. They are a collapse of public order, and no government anywhere would have left them alone.

Punjab had agency. Part Five's Chapter Eight made this concession about Kashmir and it applies here with more force. Nobody in Delhi ordered the Dhilwan killings. The decision to fortify the Akal Takht was taken in Amritsar.

The victims were mostly Sikh. Any account of this period that presents the militancy as a Sikh community's defence against the Indian state has to explain the Sikhs it killed, and mostly does not.

What Chapter One's sequence explains is *why there was a space*. It does not explain, excuse or diminish what was done in it, and this part will not be read as though it does.

HOW WE ACTUALLY KNOW THIS

The events in section 4.2 are among the best-documented in this part, for an unhappy reason: they happened in public, to public figures, in front of a press that was still operating freely.

The killing of a newspaper editor, of a serving Deputy Inspector General on the steps of the Golden Temple, and of bus passengers on a highway are all matters of contemporaneous reporting, police record and subsequent prosecution.

Compare that with what is available for the same state between 1987 and 1993, which Chapter Eight describes, and the difference is the whole of the evidential problem in this part.

What it cannot show: who ordered what. The chain of command inside the militancy was not documented, its records do not exist, and the people who would know were mostly killed. Attribution of individual killings to individual decisions is largely unavailable, which is why this chapter lists acts rather than assigning them.

Which raises the question of how much of that was already unavoidable, and from when.

THE ARGUMENT — WAS THE MILITANCY INEVITABLE BY 1983?

Chapter One argued that routes closed. Whether that made what followed unavoidable is a different question.

BY 1983 IT WAS TOO LATE FOR POLITICS

Once an armed group is fortifying the holiest site of a religion, killing police officers on its steps and selecting bus passengers by faith, the space for negotiation has been destroyed — and destroyed by the people occupying it, not by anybody in Delhi. Governments cannot negotiate with a movement whose participants are killing the moderates of their own community, because there is nobody left with the standing to make an agreement stick. The Akali leadership by 1983 could not deliver what it might have signed.

1983 WAS THE CONSEQUENCE AND NOT THE CAUSE

Everything in that description is true and dated 1983. The routes closed in 1976, 1980 and 1981. There is no version of this in which a settlement was unavailable in 1978 or 1979, when the demands were Chandigarh, water and a boundary, and when the Akali Dal was in office and could deliver. The state did not face an armed movement in 1979 and it did by 1983, and the intervening years are the ones with the decisions in them.

Where things stand: both are right and they are dated differently, which is the whole point. The first side owns 1983 onwards and this part concedes it in full — by then the state's options were genuinely bad and Chapter Five's argument is about which bad option, not about whether one was needed. The second side owns 1976 to 1981, where the decisions were cheap and reversible. **Whoever is arguing about 1983 has already lost the useful argument.**

What would settle it: the record of the Akali-centre negotiations of 1982 and 1983 — what was on the table and how close it came. Accounts differ and the files are not open.

Why people care so much: because the answer determines whether June 1984 was a tragedy with no alternative or the end of a road somebody chose to walk down.

I have put this chapter before the chapters about the state's conduct rather than after them, deliberately. Placed afterwards it would read as mitigation offered late. Placed here it does what it is for, which is to establish that everything in Chapters Five to Eight happened in a situation that Punjabis had a substantial hand in creating.

REMEMBER THIS

13 April 1978: thirteen Sikhs killed in a clash with a sect. The cycle starts inside Punjab, between Sikhs.

An editor shot in **1981**. A Deputy Inspector General shot on the temple steps in **April 1983**. Six bus passengers separated by religion and killed at Dhilwan in **October 1983**. The Akal Takht fortified in **December 1983**.

The state's problem was real, Punjab had agency, and the militancy's largest category of victim was Sikhs. Chapter One explains why there was a space. It does not excuse what was done in it.

CHAPTER FIVE

June 1984

The Vice-Chief of the Army Staff was asked to plan it, advised against it, proposed an alternative, and was passed over for the post that would have let him decline to carry it out.

5.1 — The officer who was asked

Lieutenant General **S.K. Sinha** was Vice-Chief of the Army Staff and next in line to be Chief. He was asked to prepare a position paper on an assault on the Golden Temple complex.

He advised against it. His grounds were that an armed assault on the holiest site of a religion would be understood as sacrilege and would have consequences far outlasting any military result, and he proposed an alternative approach.

He was not made Chief. **General A.S. Vaidya** was appointed instead, with Lieutenant General **K. Sundarji** as Vice-Chief, and those two planned and executed the operation.

Part Six established the test: a warning is received only where somebody has the authority to act, an incentive to believe, and a decision it changes. Here the warning came from the officer whose professional judgment the government had specifically commissioned, and the response was to appoint somebody else.

This is the third supersession in this series and they should be read together. Three judges passed over in April 1973 for deciding against the government. One judge passed over in January 1977 for dissenting. And a Vice-Chief of Army Staff passed over in 1983 for advising against an operation.

5.2 — What was done

From **3 June 1984** Punjab was sealed. A thirty-six hour curfew was imposed. Rail, road and air links were cut. Telephone and telegraph lines were severed. Electricity was interrupted. Foreign journalists were removed from the state and complete censorship was imposed.

3 June was also the martyrdom anniversary of Guru Arjan Dev, one of the days on which the complex is fullest. Large numbers of pilgrims were inside when it was sealed.

The assault began on the night of **5 June**. Commandos of 1 Para entered the complex and met prepared, disciplined fire from positions Shabeg Singh had sited on rooftops, in the clock tower and in the drains. They were pinned down with heavy casualties.

By the early hours of **6 June** the infantry could not take the Akal Takht. Armoured personnel carriers were brought in; one was disabled by an anti-tank rocket. Permission was sought and given for tanks to use their main armament, and at around half past seven in the morning Vijayanta tanks fired high-explosive shells into the Akal Takht.

The complex was under control by the morning of **7 June**. Bhindranwale, Shabeg Singh and Amrik Singh were killed. Around three dozen other gurdwaras were entered by the army simultaneously.

5.3 — What was destroyed

The Akal Takht was reduced to rubble.

The **Sikh Reference Library** — manuscripts, handwritten volumes, correspondence, the documentary record of a religion — burned. What was in it is not recoverable and there is no full catalogue of what was lost.

Casualty figures are disputed and this part will not pretend otherwise. The government's own White Paper gave figures in the region of five hundred civilians and militants killed and eighty-three soldiers. Independent estimates, including from people who were in Amritsar, run considerably higher, and the count of pilgrims present when the complex was sealed has never been established.

5.4 — The professional objection

The most damaging criticism of the operation came not from Punjab but from inside the Indian military establishment.

A retired Major-General who was a contemporary of the operation's commander made the point most simply. If the police assessment was that the militants held two or three hundred weapons, most of them shotguns and bolt-action rifles, **why was the army needed at all?**

Lieutenant General Jagjit Singh Aurora — who had accepted the Pakistani surrender at Dhaka in 1971 — was among the operation's most outspoken critics.

And the military consequence arrived within days. Sikh soldiers deserted or mutinied in several units across India. That had not happened to the Indian Army before and has not since.

WORD BOX

Siege: surrounding a fortified position and waiting, rather than assaulting it.

A siege is slow, politically uncomfortable and looks like weakness. It is also, against a fixed position with finite supplies and no relief, the method that costs fewest lives on both sides — and it leaves the buildings standing.

Its disadvantage is time, and time in this case meant a religious complex under encirclement for weeks in full view of the world, with the government's authority visibly in question every day.

Why it matters here: a siege was among the alternatives available, it is what the officer in section 5.1 is understood to have proposed, and the reason it was rejected was political rather than military.

Before weighing whether any of that was necessary, it is worth being precise about which parts of it are established and which are not.

HOW WE ACTUALLY KNOW THIS

The operation is documented from three directions of very different quality.

SOLID: the sealing of the state, the dates, the units involved, the use of tank main armament, the deaths of the three leaders, and the destruction of the Akal Takht. These are agreed by the army's own accounts, by the government's White Paper and by every critical source.

DOCUMENTED: that Sinha advised against and was passed over. It appears in his own account and in standard military histories and is disputed by nobody, including the officers who conducted the operation.

CONTESTED: the casualty figures and the number of pilgrims present. The state was sealed from 3 June and no independent observer was inside.

What none of it can show: what the pilgrim count was. The complex was sealed on a day of pilgrimage with people inside, and nobody counted them going in — which means the denominator for every casualty claim, on every side, is missing.

Which leaves the question that has been argued in India for forty-one years.

THE ARGUMENT — WAS OPERATION BLUE STAR NECESSARY?

This is the most argued-about military decision in independent India and the government's case is stronger than most Punjabi accounts allow.

NECESSARY, AND DELAY WAS MAKING IT WORSE

By June 1984 an armed group with military expertise had fortified a complex in a border state, was killing police, journalists, Hindus and dissenting Sikhs, and was being resupplied. The state had no authority in Amritsar. Every month of delay strengthened the defences and the argument that the government could not govern. A siege of a religious site would have been a spectacle lasting weeks, would have brought crowds that could not be controlled, and would very likely have ended in an assault anyway, later, against better defences.

NECESSARY IS NOT THE SAME AS THIS

Nobody serious argues the state should have done nothing. The objection is to the form: a full military assault, with armour, on the holiest site of a religion, on a day of pilgrimage, with the state sealed and the press excluded, having passed over the officer who advised otherwise. Each of those was a separate choice. The date could have been different. The armour could have been withheld. The Reference Library could have been secured. And a government that had already decided the political cost was acceptable did not test whether it was, because it had removed the one professional voice telling it the cost.

Where things stand: the first side wins on necessity and the second on execution, and the second is where the charge lies. This part accepts that the state had to act by June 1984 — Chapter Four's verdict says so. What it does not accept is that the specific operation was the only available action, and the strongest evidence for that is that the government's own Vice-Chief of Army Staff said so in writing before it happened.

What would settle it: Sinha's position paper and whatever alternative it proposed. It has never been released.

Why people care so much: because if the assault was the only option, the Akal Takht is a casualty of an insurgency, and if it was one option among several, it is a casualty of a decision.

Both of those positions, though, are conducting an argument about soldiering, and the decisions that mattered were not made by soldiers.

THE HIDDEN ASSUMPTION

Everybody arguing about June 1984 assumes **that it was a military operation**.

It is discussed as generalship. Was the plan sound, was the intelligence right, should tanks have been used, could the commandos have done it differently. Its defenders praise the execution and its critics attack it, and both are grading soldiers.

The decisive choices were not military and were not made by soldiers. The **date** was a political choice. The **sealing of the state and the exclusion of the press** was a political choice. The decision to **assault rather than besiege** was a political choice about how long a government could be seen to wait. And the choice of **who would command** was made by passing over the officer whose professional advice was inconvenient.

The military content of this operation was the part that got overruled — which is exactly the finding Part Six reached about the Forward Policy of 1961, in the same words, twenty-three years earlier.

The distinction changes where the failure sits. If Blue Star was bad generalship, the fix is better planning, and the Indian Army has spent forty years absorbing its tactical lessons. If it was a political decision wearing a uniform, then better planning fixes nothing, because the planners were not consulted on the question that mattered.

Watch which version each side needs. The Indian account needs the military framing because it makes the operation a regrettable necessity executed under fire. The Punjabi account needs it too, because a military assault on a shrine is a cleaner grievance than a political calculation about the optics of waiting. Neither account wants the version in which the decision was about how a government would look.

One item on the list of what was destroyed deserves separating from the rest, because it is the only one that cannot be repaired.

IN REAL TERMS

A library is not a building. It is the only copy of things.

The Sikh Reference Library held handwritten volumes, correspondence, and manuscript material assembled over generations — the documentary memory of a religion four centuries old.

There is no full catalogue of what was in it, which means there is no list of what is gone. A historian working on Sikh history today does not know what he cannot consult.

The Akal Takht was rebuilt within a few years. That is what a building is. The library is the part that cannot be.

Four months later, two of the men guarding the Prime Minister who ordered it shot her in her own garden. That is Chapter Six, and this part does not present it as justification for anything.

REMEMBER THIS

Lt Gen S.K. Sinha, Vice-Chief of Army Staff, was asked for a position paper, advised against an assault, proposed an alternative, and was passed over for Chief. The third supersession in this series.

Punjab was **sealed on 3 June** — curfew, communications cut, press excluded — on a day of pilgrimage. Tanks fired into the **Akal Takht** on the morning of 6 June. The **Sikh Reference Library** burned.

The decisive choices were political, not military — the date, the sealing, assault rather than siege, and who would command. The military content was the part that was overruled.

CHAPTER SIX

The Thirty-First of October

The mobs had voter lists. That single fact settles what kind of event this was, and it is the fact most consistently left out of the word used to describe it.

6.1 — The morning

On the morning of **31 October 1984**, Indira Gandhi was shot in the garden of her residence by two of her own bodyguards, Satwant Singh and Beant Singh. Beant Singh was killed immediately; Satwant Singh was tried and executed.

She died that day. Rajiv Gandhi was sworn in as Prime Minister that evening.

What followed in Delhi began within hours.

6.2 — The five days

Mobs formed and moved through the city. The worst of it was on **1 and 2 November**, and it continued to the 7th.

Sikh men were dragged from homes, shops, buses and trains and killed, very often by being burned alive with kerosene and a tyre. Houses were looted and burned.

Gurdwaras were destroyed. Women were assaulted.

It was not confined to Delhi. Killings occurred in Kanpur, in Bokaro and in other cities.

The army was available and was not deployed effectively for days.

6.3 — What made it organised

Three things distinguish this from a spontaneous outbreak, and every one is documented in the inquiries the Indian government itself appointed.

The mobs carried lists. Voter rolls and ration records were used to identify which houses were Sikh, in neighbourhoods where the mobs did not live. Somebody supplied those.

They were equipped. Kerosene and iron rods arrived in quantity, distributed rather than gathered.

The police did not act. Not everywhere and not universally — some officers acted and saved lives, and they should be named wherever the record allows. But across large parts of the city the police stood by, refused to register complaints, and in some documented instances disarmed Sikhs who were defending themselves.

Names of local politicians appear across the inquiries as having led or directed mobs. Chapter Seven follows what happened to those names.

HOW WE ACTUALLY KNOW THIS

Every element of section 6.3 comes from inquiries the Indian government itself appointed, principally the Misra and Nanavati Commissions and the committees between them.

The use of electoral rolls and ration records, the distribution of kerosene, and the failure of the police to register complaints or intervene are not allegations by victims' organisations. They are findings.

That matters because the standard rebuttal to any account of November 1984 is that it comes from an aggrieved community. It does not. It comes from commissions appointed by successive Indian governments, several of them by governments of the party being examined.

What it cannot show: the chain of supply. Somebody obtained the rolls, copied them and distributed them. The inquiries established that this happened and did not establish who did it at each point, which is why Chapter Seven's conviction record looks as it does.

6.4 — The sentence

Asked about the killings, the new Prime Minister said that when a great tree falls, the earth shakes.

Read as a description it is a metaphor about grief. Read as a response by the head of a government whose capital city had just produced two thousand seven hundred corpses in five days, it is something else: an explanation of the killings as a natural consequence, offered by the one person with the authority to stop them.

WORD BOX

Riot: a violent public disturbance by a crowd, generally spontaneous, generally without prior organisation, and typically involving more than one group.

The word is used almost universally for what happened in Delhi in November 1984, including in the titles of the official inquiries.

It fits none of the facts in section 6.3. Crowds that arrive with electoral rolls identifying households by religion, carrying distributed kerosene, in areas where they do not live, while the police do not intervene, are not rioting. There is a different word for an organised, one-sided attack on a defined group with official passivity, and the inquiries themselves describe the elements of it while continuing to use the other word.

Part One promised to name the concealing word every time it appeared. Part Nine named “excesses”. This is the same operation performed by a different word.

One of those three facts does more work than the other two, and it is worth slowing down on.

IN REAL TERMS

An electoral roll is an ordinary administrative document. It lists, street by street and house by house, who lives where — and in India it lists their names, and Sikh names are identifiable.

A crowd forming spontaneously in anger does not have one. It attacks what it can see.

To have one, somebody must obtain it from a government office, copy it, and distribute it to people who will use it. That takes hours at minimum, and it requires access.

Which is why the lists are the single most important fact about November 1984.

Everything else could be a crowd. The lists could not.

What is not in dispute is that it was organised. Who organised it, and at what level, is the question every inquiry has circled without closing.

THE ARGUMENT — WAS IT DIRECTED FROM THE TOP, OR ORGANISED LOCALLY?

That it was organised is established. By whom, and how far up, is the live question and the one every inquiry has circled.

LOCAL ORGANISATION, NOT CENTRAL DIRECTION

What the inquiries actually established is local: named councillors and constituency-level figures leading mobs in their own areas, using rolls their own workers could obtain, in wards they knew. That is a pattern of many local actors behaving similarly in the same hours, which is what happens when a signal is understood rather than when an instruction is issued. No inquiry in forty-one years has found a document, an order or a meeting at the top, and several have looked.

THE DISTINCTION DOES LESS WORK THAN IT LOOKS

Grant that no order was written. A capital city's police force does not stand down simultaneously across dozens of stations for three days by coincidence, and the army was available and not deployed effectively. Whatever was or was not said, the operative decisions — that the police would not act and the army would not be used — could only be taken at the top, and they are what converted local mobs into three days of killing. And the head of government's public characterisation of the deaths was that the earth shakes when a tree falls.

Where things stand: the first side is right about what has been proved and the second about what the proof implies. This part does not assert central direction, because forty-one years of inquiry has not established it. What is established, and is enough, is that **the killing required the police not to act, and the police not acting was not a local decision.**

What would settle it: the Delhi Police control room records and deployment logs for 31 October to 3 November 1984. Their non-production has been raised repeatedly before the commissions.

Why people care so much: because “organised locally” and “directed centrally” carry entirely different consequences for a national party, and the difference between them is one set of missing records.

Whichever answer is right, two things this chapter deliberately does not do, and they should be stated before the summary. It does not present the assassination as anything other than a murder, and it does not present the killings that followed as a response to

it in any sense that mitigates them. Two men killed a Prime Minister. What was then done in Delhi was done to people who had no connection to either of them beyond a name and a turban.

REMEMBER THIS

She was killed on the morning of **31 October 1984** by two of her bodyguards. The killing in Delhi began within hours and was worst on **1 and 2 November**.

Three things make it organised, all documented by the government's own inquiries: **the mobs carried voter lists and ration records, kerosene was distributed, and the police largely did not act.**

“Riot” fits none of those facts. A crowd forming in anger does not arrive with an electoral roll.

CHAPTER SEVEN

The Counting

Two thousand seven hundred and thirty-three deaths. Five hundred and eighty-seven police reports. Twelve murder convictions in forty-one years. Part Two's rule has never had a clearer application.

7.1 — The number

A committee under a retired official, appointed on the recommendation of an earlier commission, was given the specific task of establishing how many Sikhs were killed in Delhi between 31 October and 7 November 1984.

It reported in **August 1987** and put the figure at **2,733**. It also gave a national figure of about **3,325**.

The later Nanavati Commission accepted 2,733, noting that Sikh representative bodies disputed it and claimed more than three thousand, and that in the absence of definite evidence the figure had to be treated as more or less correct.

Independent human rights organisations have put the Delhi figure nearer four thousand. Higher estimates circulate and are not established.

This part uses 2,733 throughout, for the reason Part One gave: **when the state's own figure is the lowest defensible one, use it**, because a charge built on the state's own number cannot be answered by disputing the number.

7.2 — The machinery

Over the following four decades the Indian state investigated this more than almost anything else in this series.

BODY	WHEN	WHAT IT DID
Marwah Commission	1984	Appointed to examine the police role. Wound up before completing its work; its material was passed on.
Misra Commission	1985–86	The first full inquiry. Recommended the further committees below.
Jain–Banerjee, Poti–Rosha, Jain–Aggarwal	1987–1993	A succession of committees on registration of cases. Their recommendations were repeatedly obstructed, including by writ petitions from those they named.

BODY	WHEN	WHAT IT DID
Kapoor–Mittal	1987–1990	On police conduct. Its two members could not agree on method.
Ahuja Committee	1987	Established the death toll: 2,733 in Delhi.
Narula Committee	1993–94	Recommended registration of cases against named politicians.
Nanavati Commission	2000–2005	The most comprehensive. Named individuals and found the police response gravely deficient.
Mathur Committee, SITs	2015, 2018	Re-investigation of closed cases. The 2018 team was set up under Supreme Court supervision to re-examine 186 of them.

Four commissions, nine committees and two special investigation teams.

WORD BOX

Untraced: a police classification closing an investigation on the ground that the offenders could not be identified.

It is a routine and often legitimate disposal. A burglary with no witnesses and no evidence goes untraced, and nobody is at fault.

It carries a different weight when applied to a killing in daylight, in a residential street, in front of neighbours, by a crowd that came from somewhere and dispersed to somewhere. Those cases are not hard to trace. They are hard to trace if nobody records the names on the day.

Why it matters here: about 240 of the 587 reports from November 1984 were closed this way, and the 2015 and 2018 investigation teams reopened files marked untraced and secured convictions from them.

7.3 — The arithmetic

Now set that machinery against what it produced.

2,733 deaths.

587 first information reports. That is one police report for roughly every five deaths, in a jurisdiction where the ordinary practice is one report per incident.

Around 240 of those reports were closed by the police as “untraced.”

About 250 produced acquittals.

25 cases have produced a conviction. Twelve of them are murder cases.

STAGE	NUMBER	WHAT IT MEANS
People killed in Delhi	2,733	The state's own figure, established by a committee appointed for the purpose.
First information reports registered	587	One report for roughly every five deaths, where ordinary practice is one per incident.
Closed by police as untraced	about 240	Investigation abandoned before any court saw the file.
Ending in acquittal	about 250	Tried and not proved.
Producing a conviction	25	Of these, 12 are murder cases.
Individuals convicted	about 440	Some on multiple charges arising from the same case.

Read the second row against the first. The gap between 2,733 deaths and 587 reports is not a court's failure and it is not a delay. It is a decision taken in police stations in the first week of November 1984, and everything below it in that table is a consequence.

The most senior conviction came in **December 2018**, thirty-four years afterwards, when the Delhi High Court reversed an acquittal and sentenced a former Member of Parliament to life imprisonment. A second life sentence followed in 2025.

7.4 — What the court said

The High Court in 2018 did not confine itself to the facts of the case. It said that the majority of those responsible had enjoyed political patronage, that they had been assisted by an indifferent law enforcement agency, and that they had escaped prosecution and punishment for more than two decades.

That is the Delhi High Court, in a judgment, in 2018, describing the conduct of the police and of politicians in 1984.

IN REAL TERMS

Twelve murder convictions for 2,733 deaths is one conviction for every 228 people killed.

Put it the other way. If a man was murdered in Delhi in the first week of November 1984, the chance that anybody has ever been convicted of a murder in connection with his death is under half a per cent.

And the first senior conviction arrived when the survivors giving evidence were in their sixties and seventies, and a great many of the witnesses, the accused and the police officers concerned were dead.

None of which is this book's characterisation. Every element of it comes from the state's own machinery.

HOW WE ACTUALLY KNOW THIS

Every figure in this chapter is the Indian state's own, produced by bodies the Indian state appointed.

The death toll is a government committee's. The FIR count is the Nanavati Commission's. The disposal figures — untraced, acquitted, convicted — are court and police records. The characterisation of political patronage and indifferent policing is a High Court judgment.

That is the strongest evidential position available anywhere in this series, and it is why this chapter makes no estimates of its own and uses the lowest defensible number throughout.

What it cannot show: the true death toll. The claim that it is materially higher than 2,733 is credible — bodies were removed and in some accounts disposed of in the river, and a state that could not register more than 587 reports was not counting carefully. But the higher figures are estimates and this part does not need them.

All of which is usually explained by pointing at the legal system, and that explanation does not survive the arithmetic.

THE HIDDEN ASSUMPTION

Everybody who discusses the impunity of 1984 assumes **that justice failed in the courts.**

It is the standard framing. Justice delayed. A slow legal system. Cases dragging for decades. Even sympathetic accounts describe an overburdened judiciary failing survivors, and the remedy proposed is always faster courts and special tribunals.

The courts were handed almost nothing to work with. Look again at the arithmetic. **587 reports for 2,733 deaths**, and roughly 240 of them closed by the police as untraced before any judge saw them.

A criminal case is built at the beginning, not the end. It is built by an officer who records a complaint on the day, who takes statements while witnesses remember, who collects what is at the scene, and who names the accused. Everything a court can eventually do is limited by what that officer did in the first week.

And the officers who would have done that in November 1984 are the same force that Chapter Six describes standing by while it happened, refusing to register complaints, and in documented instances disarming the victims. **The investigators were the people who had already declined to intervene.**

Which is why thirty-four years of commissions produced twelve murder convictions. Not because judges were slow, but because there was nothing to try. The 2015 and 2018 teams were reduced to reopening files marked untraced and re-examining witnesses in their seventies, and one of them produced a conviction — which proves that the cases had been available and had not been built.

The general rule this series keeps meeting: **where a state fails to record something, the failure is complete at the moment of not recording it**, and everything afterwards is an attempt to reconstruct from an absence. Part Two applied it to the Partition dead. Part Nine applied it to detentions never entered in a register. This is the same finding at its most consequential, because here the thing not recorded was murder.

Part Two's rule was that when a state which counts everything has no count of something, somebody decided that. This chapter is the harder version. Here the state *did* count — twice, carefully, by dedicated committee — and then did not investigate what it had counted. The number is not the missing thing. The cases are.

REMEMBER THIS

2,733 killed in Delhi, **3,325** nationally — the state's own figures, which this part uses because a charge built on them cannot be answered by disputing them.

Four commissions, nine committees, two investigation teams. 587 police reports for 2,733 deaths. 240 closed as untraced. 25 convictions, 12 for murder. The Delhi High Court in 2018 described political patronage and indifferent policing.

The courts were handed almost nothing. A case is built in the first week, by the same force that had stood by — and where a state fails to record something, the failure is complete at that moment.

CHAPTER EIGHT

The Decade After

The insurgency was defeated. What was done to defeat it has never been investigated, except in one district, by one man, who was abducted and killed for doing it.

8.1 — The accord, and what happened to it

On **24 July 1985**, Rajiv Gandhi and the Akali leader Harchand Singh Longowal signed an accord. It promised the transfer of Chandigarh to Punjab by January 1986, a commission on the disputed Hindi-speaking areas, and a tribunal to reassess the river waters.

It was a genuine settlement of Chapter One's list and it should be counted as a credit item. A Prime Minister who had been in office nine months negotiated directly on the substance and signed.

Longowal was assassinated on 20 August 1985, less than a month later, by militants who regarded the accord as a betrayal.

Elections followed in September and the Akali Dal won. Surjit Singh Barnala became Chief Minister.

Chandigarh was not transferred in January 1986. The date passed, then another date, then the question was referred to a commission. **It has still not been transferred, forty years later.**

The tribunal on the river waters was constituted in 1986 and, as Part Five recorded, issued an interim report and never a final award.

In **May 1987** the Barnala government was dismissed and Punjab was placed under President's Rule, where it remained for about five years.

So the accord delivered an election and none of the substance, and the elected government it produced was dismissed within two years.

8.2 — The special legislation

The counter-insurgency ran on a statute passed in 1985 and re-enacted in 1987: the Terrorist and Disruptive Activities (Prevention) Act, generally called TADA.

Its provisions departed from ordinary criminal law in specific ways. Confessions made to police officers were admissible in evidence, which ordinary Indian law does not permit for good reason. Detention without charge was permitted for extended periods. Trials could be held in camera and witness identities protected. In defined circumstances the burden shifted towards the accused.

Tens of thousands of people were detained under it across India. Its conviction rate was in the low single figures — around one or two per cent of those arrested.

Read those two facts together. A law under which very large numbers were detained and almost nobody was convicted was not principally functioning as a prosecution statute. It was functioning as a detention statute, which is Part Two's finding arriving under a new name in a new decade.

WORD BOX

Enforced disappearance: the detention of a person by agents of the state, followed by a refusal to acknowledge the detention or to say where the person is.

The distinguishing feature is not the killing but the **denial of information**. A family with a body has a death. A family without one has nothing: no inquest, no certificate, no case to bring, no inheritance, no widowhood, and no end.

It is treated in international law as a distinct offence for that reason, and as a continuing one — the offence does not finish when the person dies, because the denial persists.

Why it matters here: this is what Jaswant Singh Khalra was documenting, and the reason his method was cremation records is that the state had produced no other record at all.

8.3 — The man who counted

Jaswant Singh Khalra was a bank employee and human rights worker in Amritsar. In the early 1990s he did something nobody else had done: he went to the municipal records of cremation grounds.

Cremations require firewood, and firewood is purchased, and purchases are recorded. Working from those records in three crematoria in Amritsar district, he documented large numbers of bodies cremated by police as unidentified, and published his findings.

On **6 September 1995** he was abducted from outside his home. He was killed. In 2005 six police officials were convicted of his abduction and murder, and the sentences were enhanced on appeal in 2007.

The Supreme Court directed the Central Bureau of Investigation to examine his allegations. Its report confirmed approximately **2,097 cremations** in Amritsar district, of which a minority were fully identified, a further group partially identified, and well over a thousand not identified at all.

Two things about that figure and they are both essential.

It is one district. Punjab has around twenty. No equivalent examination was made anywhere else, and none has been made since.

It exists because one man looked at firewood receipts. There was no commission of inquiry into the Punjab counter-insurgency. There has never been one.

HOW WE ACTUALLY KNOW THIS

This chapter has the weakest evidential base in the entire series, and the reason is the finding.

SOLID: the accord and its terms, Longowal's assassination, the election results, the dismissal of 1987, the text of TADA, the fact that Chandigarh was not transferred, the Khalra convictions and the CBI's figure for Amritsar district. All of these are documents, judgments or things anybody can check.

ESTIMATED: total deaths across the period. The figure in general use is above twenty thousand and it is compiled from press reporting, police statements and human rights work rather than from any official count. Nobody made one.

UNKNOWN: essentially everything about method. How many were detained under TADA in Punjab, for how long, and with what outcome. How many died in custody. How many disappeared. How many of the dead described as militants were.

What this cannot show, and the reason: **there was no commission.** Every other episode of comparable scale in this series produced an official inquiry whose findings can be quoted and argued with. This one produced nothing, and the one private investigation that existed ended with its author's murder. An absence of evidence here is not neutral — it is the direct product of a decision not to look.

8.4 — How it ended, and the ledger

The insurgency was defeated between 1991 and 1993, by a police campaign under a Director General appointed for the purpose, using the powers described above. Elections were held in February 1992 with a turnout of around a fifth of the electorate, boycotted by the Akalis. Beant Singh became Chief Minister and was himself assassinated in 1995.

Total deaths across the whole period, from all causes and all sides, are generally estimated at over twenty thousand. The great majority were Sikhs.

WHERE	WHAT WAS DONE
Punjab	River waters by notification 1976; elected government dismissed 1980; Supreme Court case ended by agreement 1981; military assault on the Akal Takht June 1984; Chandigarh promised in 1985 and never transferred; elected government dismissed 1987; President's Rule for about five years; over twenty thousand dead.
Delhi	2,733 killed in five days. 587 reports, 25 convictions.
Kanpur, Bokaro and elsewhere	Killings in the same week. Investigated far less than Delhi and largely absent from the national account.
Haryana	Received 3.5 MAF of Ravi-Beas water by the 1976 notification and has built its share of the canal. Its own case is real and is set out in Part Five.

IN REAL TERMS

Two thousand and ninety-seven cremations, in one district, of bodies the police recorded as unidentified.

Punjab has around twenty districts. If Amritsar were representative — and nobody knows whether it was, because nobody looked — the figure for the state would be a number with a different shape entirely.

What is certain is narrower and stranger. The only reason anybody knows about the two thousand is that one man reasoned that cremations need firewood, that firewood is bought, and that purchases are written down.

He was abducted and killed for that reasoning, by policemen who were convicted of it ten years later.

Which produces the hardest argument in this part, because both sides of it are true.

THE ARGUMENT — WAS THE COUNTER-INSURGENCY JUSTIFIED?

It worked. Whether that settles anything is the question, and both positions are held by people who lived through it.

IT ENDED A WAR AND PUNJAB IS AT PEACE

By 1990 the militancy was killing thousands a year, overwhelmingly Sikhs, including anybody in Punjab who opposed it. Ordinary policing had failed for a decade. The campaign of 1991 to 1993 broke it, elections resumed, and the state has had three decades of peace and normal politics since. Those are not small things and no alternative method was demonstrated by anybody. The people who criticise the methods most freely are living in the peace they produced.

NOBODY HAS EVER BEEN ALLOWED TO ASK WHAT WAS DONE

The result is not in dispute and the objection is not to the result. It is that a decade of counter-insurgency in an Indian state has never been examined by any commission of any kind. The one systematic count that exists covers a single district, was compiled privately from cremation receipts, and its author was abducted and murdered by policemen who were subsequently convicted of it. A state confident that its methods were lawful does not leave that record uninvestigated for thirty years.

Where things stand: both are right and they are not in conflict, which is what makes this the hardest box in the part. The campaign worked and the peace is real. And there has been no inquiry, in a country that appointed four commissions and nine committees for five days in Delhi. **The asymmetry is the finding:** what was done to Sikhs in Delhi over five days has been investigated fourteen times, and what was done in Punjab over nine years has been investigated once, by a private citizen, who was killed for it.

What would settle it: a commission of inquiry with the powers the Shah Commission had. None has ever been appointed and none has been seriously proposed.

Why people care so much: because the peace is genuinely valuable and nobody in Punjab wants it disturbed, which is precisely the argument that has prevented the question being asked.

One measure of how completely this decade has been left alone. Every other episode in this series with a comparable death toll has a commission attached to it whose report can be named, quoted and argued with — Partition, Hyderabad, 1962, the Emergency, November 1984. For Punjab between 1987 and 1993 there is no document to argue with, because none was ever produced.

REMEMBER THIS

The **1985 accord** promised Chandigarh by January 1986. Longowal was assassinated within a month. **Chandigarh has still not been transferred.** The Barnala government was dismissed in 1987 and Punjab spent about five years under President's Rule.

TADA: confessions to police admissible, extended detention without charge, in camera trials. Tens of thousands detained and a conviction rate of one or two per cent — a detention statute wearing a prosecution statute's name.

Jaswant Singh Khalra counted cremations from firewood receipts in one district and was abducted and killed. The CBI confirmed about 2,097. Punjab has twenty districts, and there has never been a commission of inquiry into the counter-insurgency.

CHAPTER NINE

What Would Have Prevented It

The defence at full strength, four moments, and the thing a Punjabi account gets wrong — which is the part of this book I found hardest to write.

9.1 — Four arguments for the defence

These are the strongest arguments available to a defender of the Indian state's conduct. Two of them are conceded outright.

One. By 1983 the state faced a genuine armed insurrection. Chapter Four establishes it and this part does not qualify it. A government that left the Akal Takht fortified would have been abandoning a state.

Two. The 1985 accord was a real attempt at settlement. A Prime Minister negotiated on the substance and signed within a year of the worst events of the period. That is not the conduct of a government uninterested in a political solution, and the man who signed it for Punjab was killed by Punjabis for signing.

Three. The insurgency was defeated and the peace has held for three decades. Conceded. Punjab has had normal politics, contested elections and changes of government since 1997. Very few insurgencies anywhere end like that.

Four. Most of the killing was not done by the state. Over twenty thousand died across the period, and the militancy killed a very large share of them — including most of the Sikhs who died. Any account presenting this as a state's campaign against a community has to account for that and usually does not.

9.2 — Four moments

Part One requires an alternative that was available at the time. There were four, and the striking thing is how cheap the first three were.

1976: a tribunal instead of a notification. The Inter-State River Water Disputes Act existed. Using it would have taken longer and produced an outcome Punjab might well have disliked — and it would have been an adjudication rather than an executive act. Cost: delay.

1981: letting the case run. Punjab's suit was pending in the Supreme Court. Nothing required the Prime Minister to broker its withdrawal. Cost: the risk of losing.

1980 and 1987: not dismissing the elected governments. Neither dismissal was compelled. The 1980 one was part of a general use of Article 356 after a change at the centre; the 1987 one removed the government produced by the accord. Cost: living with opponents in office.

1983: the position paper. Chapter Five's finding. The officer asked for professional advice gave it, and was passed over. Cost: taking advice.

Not one of those required a concession on the substance of any Punjabi demand. All four were procedural.

IN REAL TERMS

Price the four alternatives in section 9.2.

A tribunal instead of a notification in 1976 would have cost the central government several years of delay and the possibility of an award it disliked.

Letting the case run in 1981 would have cost it the risk of losing a lawsuit.

Not dismissing the elected governments in 1980 and 1987 would have cost it opponents in office in one state.

Taking the advice in 1983 would have cost it a slower and more embarrassing operation, and the appointment of a Chief of Army Staff who had disagreed with it.

Set that list against what followed: an assault on the Akal Takht, a Prime Minister assassinated, 2,733 people killed in Delhi in five days, and over twenty thousand dead across fifteen years.

Nothing about that comparison establishes causation and this part does not claim it does. What it establishes is the **price of the alternatives**, which is the only side of the ledger anybody can actually price.

9.3 — What I would have to retract

Three things would break this part.

If Lieutenant General Sinha's position paper, released, showed that **he proposed no workable alternative** and merely recorded objections, Chapter Five's central charge weakens to a complaint about tone.

If the record of the 1982 and 1983 negotiations showed that **the Akali leadership was offered the substance of Chapter One's list and refused it**, Chapter Four's verdict tips and much of Chapter One goes with it.

If a systematic study of the militancy's recruitment showed that **it drew on people with no connection to the grievances of Chapter One**, then the space argument in Chapter Three fails.

The first two depend on files the Indian government holds. That is the sixth part in a row ending on that sentence.

HOW WE ACTUALLY KNOW THIS

The four alternatives in section 9.2 are unusual in this series because none of them is a counterfactual about outcomes. Each is a claim about a **procedure that existed and was not used**, and procedures leave records.

The Inter-State River Water Disputes Act was on the statute book in 1976 and a tribunal was eventually appointed under it in 1986, which establishes that it was available. The Supreme Court suit was live in 1981; its withdrawal is on the file. The dismissals of 1980 and 1987 were proclamations laid before Parliament. And the position paper of 1983 was commissioned by the government itself.

That is why Chapter Nine can name alternatives with more confidence than most parts of this series. Availability is a matter of record rather than of modelling.

What it cannot show: whether taking any of them would have changed the outcome. A tribunal in 1976 might have produced the same allocation and the same anger. The claim is that the alternative existed and was cheap, not that it was a guarantee.

Which leaves the thing this part has been circling since the front matter, and it is not a question about Punjab.

THE HIDDEN ASSUMPTION

Everybody who writes about these fifteen years — in Delhi, in Chandigarh and in the Sikh diaspora — assumes **that this was a Sikh problem.**

The Indian version: a religious separatism in a border state. The Punjabi version: a community's persecution by a state that saw it as suspect. Both treat the conflict as belonging to a people, and both are organised around what was done to or by Sikhs as Sikhs.

Two facts sit badly with that on either side.

The first: not one instrument used here was designed for Punjab. The dismissal of elected state governments, the settlement of a dispute by notification instead of adjudication, the ending of litigation by political agreement, the passing over of a professional who advised against, detention without trial, President's Rule for years at a time — every one of them appears elsewhere in this series, in Kerala, in Kashmir, in the Emergency, applied to people with no religious distinctiveness at all. Punjab did not receive special treatment. It received the ordinary treatment, at full intensity, in a state where it happened to land on a community with a distinct identity to organise around.

The second, and this is the one I did not want to write: the majority of the Sikhs who died in these fifteen years were killed by Sikhs. The militancy killed police officers, politicians, journalists, moderates, accord signatories and villagers, and most of them were Sikh. An account of this period built around Sikh martyrdom at Indian hands erases them, and it is the account I grew up inside.

Which produces a finding neither side wants. The causes were federal and generic. The form was religious and local. And the dead were overwhelmingly from one community, killed by both the state and by men claiming to act for that community — which is the ordinary arithmetic of insurgency everywhere and is described that way almost nowhere in Punjab.

I have written about this material before with the community framing, and I now think it was wrong — not in its facts but in what it made those facts mean. The Indian version denies Punjab a legitimate constitutional grievance. The Punjabi version denies Punjab its own dead. Both are more comfortable than the arithmetic.

That is the case against this part. Two of the four defences I think simply win, and I have said so rather than arranging the chapter so they lose. What none of the four reaches is section 9.2, because every alternative there was procedural, available and cheap, and none of them required conceding a single Punjabi demand.

REMEMBER THIS

Four defences: **a genuine armed insurrection by 1983; the 1985 accord was a real attempt; the insurgency was defeated and the peace has held; and most of the killing was not done by the state.** Two are conceded outright.

Four moments, all procedural, none requiring any concession on substance: **a tribunal in 1976, letting the case run in 1981, not dismissing the governments in 1980 and 1987, and taking the advice in 1983.**

The causes were federal and generic. The form was religious and local. And the majority of the Sikhs who died were killed by Sikhs — which the account I grew up inside does not say.

CHAPTER TEN

An Honest List of What We Do Not Know

Five days in Delhi have been investigated fourteen times. Nine years in Punjab have been investigated once, privately, by a man who was killed for it.

10.1 — Genuinely unknown

Six things in this part cannot be established, and their distribution is the most important thing about them.

What Lieutenant General Sinha's position paper proposed. Chapter Five's charge rests on there having been a workable alternative, professionally set out, before the operation.

Why it is unknown: it has never been released. This is the single document that would most change this part.

How many died in Operation Blue Star. The government's White Paper gave figures in the region of five hundred civilians and militants and eighty-three soldiers. Independent estimates run higher.

Why it is unknown: the state was sealed, communications cut and the press excluded from 3 June. Nobody independent was present. And the number of pilgrims inside the complex when it was sealed was never established, which means the denominator is missing.

The true toll of November 1984. The state's figure is 2,733 and this part uses it.

Why it is unknown: bodies were removed, 587 reports were registered for 2,733 recorded deaths, and about 240 of those were closed as untraced. A count that thin cannot be assumed to be complete.

What was done in Punjab between 1987 and 1993. One district was examined, privately, from cremation records.

Why it is unknown: there has never been a commission of inquiry. This is not a closed file; it is an **investigation that was never held**, which is a different and worse category.

Whether Congress deliberately promoted Bhindranwale. Chapter Three grades this **ALLEGED.**

Why it is unknown: it rests on statements by participants made afterwards, in a period when everybody had reason to place the responsibility elsewhere.

What was actually offered in the negotiations of 1982 and 1983. Chapter Four's argument box turns on how close a settlement came.

Why it is unknown: accounts differ sharply and the files are not open.

10.2 — Solid

The chronology of closure. The notification of March 1976, the dismissal of 1980, the suit of July 1979 and its withdrawal after the agreement of December 1981. All dated public acts.

The text of the Anandpur Sahib Resolution, including both its operative demands and its preamble, and the fact that it did not change between 1973 and 1984.

The killings of 1978 to 1983. The Nirankari clash of 13 April 1978, the assassination of a newspaper editor in September 1981, the killing of a Deputy Inspector General on the temple steps in April 1983, and the Dhilwan bus killings of October 1983. All contemporaneous public record.

That Sinha advised against the operation and was passed over. Not disputed by anybody, including by the officers who conducted it.

The conduct of Operation Blue Star. The sealing of the state from 3 June, the assault of 5 and 6 June, the use of tank main armament against the Akal Takht, the destruction of the Akal Takht and the burning of the Sikh Reference Library.

Everything in Chapter Seven. 2,733 and 3,325; 587 reports; roughly 240 untraced; 25 convictions of which 12 for murder; four commissions, nine committees, two teams; and the Delhi High Court's findings of political patronage and indifferent policing.

The accord of July 1985, Longowal's assassination in August 1985, and the non-transfer of Chandigarh — which can be verified by looking at a map today.

The Khalra case. His documentation, his abduction on 6 September 1995, the conviction of six police officials in 2005 and the enhancement of sentences in 2007, and the CBI's confirmation of approximately 2,097 cremations in one district.

10.3 — The asymmetry

Set the two halves of section 10.1 against each other.

For five days in Delhi: four commissions, nine committees, two investigation teams, a death toll established by a dedicated committee, an FIR count, a conviction count, and High Court findings. Insufficient, slow, and obstructed — and it exists.

For nine years in Punjab: nothing. No commission. No committee. No official count of the dead, the detained or the disappeared. One private inquiry into one district, whose author was murdered by policemen who were later convicted of murdering him.

Both sets of events were carried out substantially by agents of the same state, in the same decade, against substantially the same community.

I do not think there is a single explanation for that and I am not going to invent one. What I will say is that the Delhi killings were done by a party's supporters and could therefore be investigated by its successors, and the Punjab counter-insurgency was done by the police and the army, which no Indian government of any party has ever shown an appetite for examining.

Part Nine ended by noting that three national catastrophes had produced three official investigations that are harder to obtain in India than abroad. This part adds a fourth case and it is worse, because here there was nothing to withhold.

REMEMBER THIS

Genuinely unknown: **what Sinha's paper proposed, how many died in Blue Star, the true toll of November 1984, what was done in Punjab from 1987 to 1993, whether Bhindranwale was deliberately promoted, and what was offered in 1982–83.**

Solid: **the chronology of closure, the text of the resolution, the killings of 1978–83, that Sinha was passed over, the conduct of Blue Star, everything in Chapter Seven, the 1985 accord, and the Khalra case.**

Five days in Delhi produced fourteen official inquiries. Nine years in Punjab produced none. Same state, same decade, substantially the same community.

REFERENCE

Timeline, 1973–1995

Dates only. The arguments are in the chapters.

DATE	WHAT HAPPENED
17 Oct 1973	The Anandpur Sahib Resolution is adopted by the Akali Dal working committee.
Mar 1976	Central notification divides the Ravi–Beas waters, leaving Punjab about a fifth of the flow. Part Five’s Chapter Five.
1977	An Akali government takes office in Punjab after the Emergency.
13 Apr 1978	Clash with the Nirankari convention at Amritsar. Thirteen Sikhs killed.
Oct 1978	The resolution is endorsed at the Akali conference at Ludhiana.
11 Jul 1979	Punjab files suit in the Supreme Court challenging the 1976 notification.
Feb 1980	Congress returns at the centre. The Akali government in Punjab is dismissed.
Apr 1980	The head of the Nirankari sect is assassinated in Delhi.
9 Sep 1981	Lala Jagat Narain, newspaper editor, is assassinated. Bhindranwale is arrested in September and released in October.
31 Dec 1981	Tripartite water agreement brokered by the Prime Minister. Punjab withdraws its Supreme Court case.
Aug 1982	The Akali Dal launches the Dharam Yudh Morcha.
25 Apr 1983	DIG A.S. Atwal is shot dead on the steps of the Golden Temple.
5 Oct 1983	Six Hindu passengers are separated by religion and killed at Dhilwan.
6 Oct 1983	The Punjab government is dismissed. President’s Rule imposed.
1983	Lt Gen S.K. Sinha, Vice-Chief of Army Staff, advises against an assault on the complex and is passed over for Chief. Gen A.S. Vaidya is appointed.
Dec 1983	Bhindranwale moves into the Akal Takht. Shabeg Singh organises the defences.
3 Jun 1984	Punjab is sealed: curfew, communications cut, press excluded. It is the martyrdom anniversary of Guru Arjan Dev and the complex is full.

DATE	WHAT HAPPENED
5–7 Jun 1984	Operation Blue Star. Tanks fire into the Akal Takht on the morning of the 6th. Bhindranwale, Shabeg Singh and Amrik Singh are killed. The Akal Takht is destroyed and the Sikh Reference Library burns.
Jun 1984	Sikh soldiers desert or mutiny in several units across India.
31 Oct 1984	Indira Gandhi is assassinated by two of her bodyguards. Killing begins in Delhi within hours.
1–2 Nov 1984	The worst of it. Mobs use voter lists and ration records. 2,733 are killed in Delhi by 7 November; about 3,325 nationally.
24 Jul 1985	The Rajiv–Longowal accord. Chandigarh to be transferred by January 1986; a tribunal on the waters; a commission on the disputed areas.
20 Aug 1985	Longowal is assassinated, less than a month after signing.
Sep 1985	Elections. The Akali Dal wins. Barnala becomes Chief Minister.
Jan 1986	Chandigarh is not transferred. It has still not been transferred.
1985, 1987	TADA is enacted and re-enacted. Confessions to police become admissible; detention without charge is extended.
May 1987	The Barnala government is dismissed. President's Rule for about five years.
1987	The Ahuja Committee reports the Delhi death toll at 2,733.
1991–93	The police campaign that defeats the insurgency. Elections held in February 1992 with about a fifth of the electorate voting.
1995	Jaswant Singh Khalra publishes his findings on secret cremations. He is abducted on 6 September and killed. Chief Minister Beant Singh is assassinated in August.
2005	Six police officials are convicted of Khalra's abduction and murder; sentences enhanced in 2007. The Nanavati Commission reports on 1984.
2018, 2025	A former Member of Parliament is convicted and sentenced to life over November 1984, and again in a second case. Twenty-five cases in total have produced convictions.

Part Eleven starts here. It takes November 1984 on its own — not as the end of this part but as the beginning of a question about how India handles organised communal violence, and what has changed since.

REFERENCE

Glossary

Every hard word used in this part, in plain English.

WORD	WHAT IT MEANS
Akal Takht	The seat of temporal authority in Sikhism, established 1606, facing the Harmandir Sahib. Directions binding on the community issue from it. Destroyed in June 1984.
Anandpur Sahib Resolution	The Akali Dal's charter of demands, adopted October 1973. Its central constitutional demand was that the Union be limited to defence, foreign relations, currency and communications.
Dharam Yudh Morcha	The agitation launched by the Akali Dal in August 1982 to press the resolution's demands. Literally a campaign of righteous struggle.
Federalism	Division of powers between a centre and constituent units, with each holding authority the other cannot simply remove. The Indian version is heavily weighted to the centre.
FIR (first information report)	The document a police station records when a cognisable offence is reported. Everything a court can later do is limited by what it contains. 587 were registered for 2,733 deaths.
Harmandir Sahib	The Golden Temple: the central place of Sikh worship, standing in the same complex as the Akal Takht and distinct from it.
Nirankari	A religious movement regarded by orthodox Sikhs as heterodox. The clash of April 1978 was with one of its conventions.
Riot	A spontaneous violent disturbance by a crowd, generally unorganised and usually involving more than one group. Used for November 1984 and fitting none of its documented features.
Siege	Encircling a fortified position and waiting rather than assaulting it. Slower, politically uncomfortable, and cheaper in lives and buildings.
TADA	The Terrorist and Disruptive Activities (Prevention) Act, 1985 and 1987. Confessions to police admissible, extended detention without charge, in camera trials. Conviction rate one to two per cent.
Untraced (case closure)	A police classification closing an investigation on the ground that the offenders cannot be identified. About 240 of the 587 reports from November 1984 were closed this way.

ABOUT

About the Author

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I write long-form research on Indian history, society, belief and public life, and publish it at misterlove.in under the name The Living Archive. Before this series I completed a fourteen-part history of Punjab and a sixteen-part study of the rules societies place on women.

This is the part I am least qualified to write impartially and I have said so on the cover. The risk is not that I would invent anything; it is that I would select. A Punjabi account of these fifteen years writes itself, it is emotionally satisfying, and it is missing three things: the killings in Chapter Four, the concession in Chapter Four's verdict that the state's problem by 1983 was real, and the finding in Chapter Nine that most of the Sikhs who died were killed by Sikhs.

Chapter Nine's closing box is the hardest thing in this series so far and it is a correction of my own earlier work. I have written about this period before using the framing of a community and a state, and I now think that framing is wrong — not in its facts but in what it makes the facts mean. It denies Punjab a legitimate constitutional grievance in one direction and denies Punjab its own dead in the other.

What I have not softened is Chapter Seven. The arithmetic there is the Indian state's own and it does not need anybody's opinion.

THE RULES OF THIS PROJECT

The Living Archive

Everything published under this name follows three rules.

Plain language, undiminished content. The words are as simple as I can make them. The argument is not simplified with them.

Show the evidence, and show what it cannot prove. Every serious claim names what it rests on, and every source is described honestly, including what it is blind to.

Give every side its strongest case. Where people who know the material disagree, both positions appear at full strength, and I say when the evidence does not settle it.

PLEASE READ THIS

A Word on Sources

This part rests on the reports of the commissions and committees listed in Chapter Seven, on the published texts of the Anandpur Sahib Resolution and the 1985 accord, on the government's White Paper on the Punjab agitation, on reported judgments including the 2018 Delhi High Court decision and the Khalra convictions, on the CBI's report on cremations in Amritsar district, and on contemporaneous reporting.

The evidential asymmetry is stated in Chapter Ten and is repeated here because it governs everything. The events in Delhi are exceptionally well documented. The events in Punjab between 1987 and 1993 are not documented at all in any official sense. Where this part is confident, it is because the Indian state investigated. Where it is cautious, it is because the Indian state did not.

Almost every source on this subject has a position, including the government's White Paper and including the accounts produced in the diaspora. The discipline applied here is to build each chapter on material the side it damages does not dispute: a gazetted notification, a court judgment, an official death toll, a conviction record.

Corrections. If something here is wrong, write to me. Later editions will say what was changed and who caught it.

Lovepreet Singh

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NEXT

What Comes Next

Part Eleven — November 1984

Part Eleven takes five days on their own. Chapter Seven of this part established the arithmetic; Part Eleven asks what it means. It asks:

- What is the actual documentary record of who directed the mobs — not what is alleged, but what has been found by a commission or a court, and against whom?
- The Delhi Police were the investigators of a crime in which the Nanavati Commission found them gravely deficient. Was that ever addressed, and by whom?
- Compensation was paid. To how many families, on what basis, and how does it compare with what has been paid after other organised violence in India?
- Part Two’s rule about counting has now been applied four times. What does the pattern across Partition, Hyderabad, the Emergency and 1984 actually establish about the Indian state?
- India has had repeated episodes of organised communal violence since. What, if anything, changed procedurally after 1984, and what is the evidence that it worked?
- The word “riot” is still used officially. Who benefits from it, and what would change if it were not?

Questions, not topics. If any of them is answered badly, you will be able to tell.

END OF PART TEN OF NINETEEN · THE CONGRESS RECORD · THE LIVING ARCHIVE · MISTERLOVE.IN

THE LIVING ARCHIVE

PART ELEVEN OF NINETEEN

The Congress Record

Part Eleven — November 1984

Not the five days. The forty-one years afterwards: what has actually been found and against whom, who was permitted to investigate, what was paid and who had to sue for it, and what this established as the way India handles organised violence against a community.

Chapter Seven compares 1984 with four later episodes under four different governments and finds the pattern is not partisan. That is the most uncomfortable finding in this part and it is not an exoneration of anybody.

WRITTEN AND RESEARCHED BY

Lovepreet Singh

INDIA · 1984 TO THE PRESENT

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BEFORE WE BEGIN

Where We Left Off

Part Ten established what happened and what it produced. This part is about the machinery that has processed it since, and about what that machinery is for.

Four findings carry into this part.

The arithmetic. Part Ten's Chapter Seven: 2,733 killed in Delhi and about 3,325 nationally, on the state's own figures. 587 first information reports. About 240 closed by police as untraced. Twenty-five convictions, of which twelve are for murder. Four commissions, nine committees, two investigation teams.

The failure was at the beginning, not the end. Part Ten's finding was that the courts were handed almost nothing, because a case is built in the first week by the officers who take the complaints, and those were the same force that had stood by. Chapter Three follows that further than Part Ten could.

Organisation is established; central direction is not. Part Ten's Chapter Six declined to assert that the killing was directed from the top, because forty-one years of inquiry has not established it, and rested instead on the narrower point that the police not acting was not a local decision. That distinction governs Chapter Two.

The word. Part One promised to name the concealing word every time. Part Nine named "excesses" over the sterilisation programme. Part Ten named "riot". Chapter Six here takes it properly, because it is still the official word.

One note on scope, because this part could easily be a repetition. It does not re-describe the five days; Part Ten did that and this part assumes it. What it examines is the forty-one years since — which is a different subject, is much less written about, and is where the thing that has actually shaped Indian public life happened.

HOW TO READ THIS BOOK

The Six Boxes

Six coloured boxes run through the series, each doing one job. Here they are with examples from the material ahead.

A **Word Box** explains a hard word the moment it first appears.

WORD BOX

Ex gratia: a payment made without admitting any legal liability. From the Latin for “out of grace” — a gift rather than a debt.

The phrase does real work. A state paying compensation is settling an obligation and admitting it had one. A state paying *ex gratia* is being generous about something it denies owing.

Every rupee paid to a family bereaved in November 1984 has been paid on that basis, in four tranches over thirty years, and the framing has never changed.

Why it matters here: Chapter Five is about what was paid, and the more revealing question is who had to ask.

An **In Real Terms** box turns a number too big to picture into something with a body.

IN REAL TERMS

The first payment made to a family whose father or son was killed in Delhi in November 1984 was **twenty thousand rupees**.

A person injured received between five hundred and two thousand. A house destroyed completely was worth five thousand.

It took a Delhi High Court judgment in **1996** to raise the figure for a death to three and a half lakh — and most families did not receive the balance until a package was announced in **2006**, ten years after the court ordered it and twenty-two years after the killing.

A **How We Actually Know This** box shows the physical evidence and then says what it cannot prove.

HOW WE ACTUALLY KNOW THIS

This part rests almost entirely on the Indian state's own paperwork, and that is deliberate.

Commission and committee reports. Court judgments, including several High Court decisions with unusually direct language about the administration. Government orders on relief, with dates and amounts. Parliamentary answers on disbursement. Conviction records.

Nothing here depends on a survivor's account, not because those are unreliable but because they are not necessary and because the standard rebuttal to any account of 1984 is that it comes from an aggrieved community. It does not. It comes from the state.

What it cannot show: what was said and not written. The most consequential decisions in this part — that the police would not act, that a committee's recommendation would not be pursued, that a file would be marked untraced — do not appear as decisions anywhere. They appear as absences.

An **Argument** box appears where serious people disagree, each side at its strongest.

THE ARGUMENT — IS FORTY-ONE YEARS OF PROCESS A FAILURE OR A SLOW SUCCESS?

The framing question, and the defence of the Indian record here is better than it is usually allowed to be.

SLOW, OBSTRUCTED, AND IT DID EVENTUALLY WORK

Twenty-five convictions is not nothing. A former Member of Parliament is serving life. Special investigation teams reopened files that had been closed for decades and secured convictions from them. Compensation rose from twenty thousand rupees to well over eight lakh across four tranches, paid by governments of both major parties. India did not do what many states do with a massacre by its own supporters, which is to legislate an amnesty and move on. The system worked badly and it worked.

THE PROCESS IS THE OUTCOME

Four commissions, nine committees and two investigation teams over four decades is not a system straining towards justice; it is a system that produces reports instead of prosecutions. Every enhancement of compensation followed a court order, which means it was extracted rather than granted. The first senior conviction came thirty-four years afterwards, when most witnesses and several accused were dead. A process that reliably arrives after the participants have died is not slow justice. It is a different thing that resembles it.

Where things stand: the second side is stronger and the first side's best point survives inside it. The convictions are real and they matter to the families who obtained them. But the test of a process is whether it produced them *because* of how it worked or *despite* it, and Chapter Four shows the answer: the mechanism that finally worked was invented for a later episode under a different government and applied backwards.

What would settle it: the Delhi Police records of case disposal in 1984 and 1985, which have been sought repeatedly.

Why people care so much: because if it eventually worked, the Indian state is slow, and if the process was the outcome, it is something else.

A **Hidden Assumption** box digs out a belief sitting underneath an argument that *both sides accept without discussing*.

THE HIDDEN ASSUMPTION

Everybody who writes about the aftermath of 1984 assumes **that what was lacking was political will.**

It is the universal explanation. There was no will to prosecute. Governments protected their own. Successive administrations lacked the courage. Critics say it and defenders answer within the same frame, arguing that the will existed and the evidence did not.

“Political will” is not an explanation. It is a name for the absence of one.

It cannot be measured, cannot be falsified, and identifies nothing that anybody could have done differently on a particular day. A country that concludes its institutions failed for want of will has learned nothing it can act on, which is why the phrase is so popular with everybody: it condemns without requiring anything.

Every failure in this part has a procedural name and a location. **Who registers a first information report, and where. Which force investigates a crime its own members are accused of. Who may close a case as untraced, and who reviews it. Which court has jurisdiction, and whether a trial can be moved out of the state. Who supervises an investigation — an executive or a judge. Whether a commission’s recommendation binds anybody.**

Each of those is a rule. Each can be changed. And the one thing in forty-one years that demonstrably produced results — Supreme Court-monitored investigation teams with the power to reopen closed files — is a procedural device, invented in 2008 for a different massacre under a different party, and applied to 1984 only from 2015.

That is the whole argument of this part. The failure was not a shortage of virtue in Indian politicians, of which there has never been an unusual abundance in any country. It was a set of rules about who investigates whom, and those rules are still mostly what they were in 1984.

And every chapter closes with a **Remember This** box: the chapter in the plainest words available.

REMEMBER THIS

This part is not the five days. It is the **forty-one years since**, which is less written about and is where the thing that shaped Indian public life happened.

It rests almost entirely on **the state's own paperwork** — commissions, judgments, relief orders, parliamentary answers — because the standard rebuttal to any account of 1984 is that it comes from an aggrieved community, and this one does not.

“Political will” is not an explanation. It is a name for the absence of one. Every failure here has a procedural name, and every one of them is a rule that could be changed.

Part Eleven

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CHAPTER ONE

What Has Actually Been Found

A great many names are repeated in connection with November 1984. Very few of them have been found against by anybody. The gap between those two facts is where this part begins.

1.1 — The distinction

Three different things get run together in every discussion of this subject, and separating them is the only way to say anything useful.

An allegation is a claim made by somebody. It may be true. It establishes nothing.

A commission finding is a conclusion reached by an inquiry with the power to summon and take evidence on oath. It is serious and it is not a verdict. A commission cannot convict, its findings are not binding, and a person named in one has usually had a limited opportunity to answer.

A conviction is a court's determination after trial, with the accused defended, the evidence tested and an appeal available.

Part Ten's arithmetic tells you the shape of what follows. Allegations against many. Commission findings against several. Convictions against twenty-five cases and twelve murders.

1.2 — What the commissions found

Across the inquiries listed in Part Ten's Chapter Seven, a small number of political figures were named repeatedly as having led, directed or incited mobs, and recommendations were made that cases be registered against them.

Recommendations. Not convictions, and in most instances not even prosecutions, because Chapter Three describes what happened to the recommendations.

The Nanavati Commission, the most comprehensive, reported in 2005. It named individuals, and it found a colossal failure in the maintenance of law and order.

Beyond that this part will not go. It will not repeat lists of names attached to allegations that no body has found on, because doing so is exactly the thing that has allowed this subject to be dismissed for forty-one years as the grievance of an aggrieved community.

1.3 — What the courts have found

This is much shorter and much stronger.

In **December 2018**, the Delhi High Court reversed an acquittal and convicted a former Member of Parliament, sentencing him to life imprisonment for his part in the killing of a family. A second conviction and life sentence followed in **2025** in a separate case.

In **November 2018**, a Delhi court convicted two men of murders committed in Mahipalpur — the first conviction arising from the cases reopened by a special investigation team constituted in 2015. The case had been registered in 1993 and closed by the police in 1994 for want of evidence.

Across all cases and all years, roughly **440 individuals** have been convicted of something, on twenty-five cases, of which twelve are murder cases.

That is the documentary record of who has been found responsible for two thousand seven hundred and thirty-three deaths, in a court, after trial.

WORD BOX

Commission of inquiry: a body appointed by a government under the Commissions of Inquiry Act to investigate a matter of public importance and report.

Its powers are real: it can summon witnesses, require documents and take evidence on oath. Its limits are equally real and are the point. **It cannot prosecute, its findings bind nobody, and a government is not required to act on them or even to publish them.**

Part Two's chapter on Hyderabad found a report unpublished for sixty-four years. Part Six found one classified for sixty-three. Part Nine found one withdrawn from circulation after the government changed.

Why it matters here: appointing a commission is the most common Indian governmental response to an atrocity, and it is compatible with doing nothing at all.

Before going further it is worth grading those three categories against what this part can actually assert.

HOW WE ACTUALLY KNOW THIS

The distinction in section 1.1 is not pedantry; it is the difference between what this part can assert and what it cannot.

SOLID: the conviction record. Judgments are published, name the accused, set out the findings and record the sentence. Anybody can read them.

DOCUMENTED: the commission findings. The reports exist, they name individuals, and their recommendations are on the record. What they are not is determinations of guilt, and the people named have generally not had the opportunity to defend themselves that a trial provides.

ALLEGED: everything else, and there is a great deal of it, repeated for four decades.

What none of it can show: who actually killed most of the 2,733. For the large majority there was never an investigation capable of answering that, which is the subject of the box below.

Set that record against the death toll and the shape of the problem changes.

IN REAL TERMS

Twenty-five cases have produced convictions. Two thousand seven hundred and thirty-three people were killed.

Turn that around. For roughly nine in every ten deaths there is not merely no conviction — there is **no case**. No charge sheet, no accused, no trial that failed. Nothing was ever brought.

A country arguing for forty-one years about whether the guilty escaped justice has been arguing about the wrong tenth. For the other nine, justice was never attempted.

Which is why the argument about names has never gone anywhere.

THE HIDDEN ASSUMPTION

Everybody arguing about 1984 assumes **that the guilty are known and unpunished.**

The critical version: everyone knows who did it and they have been protected. The defensive version: names have been circulated for decades without proof, which is precisely why nothing has stuck. Both are arguments about a set of names, and both parties behave as though establishing the list would establish the wrong.

The list is not the wrong. **The absence of a list is.**

Consider what it would take, in an ordinary murder, to be able to say who was guilty. A complaint recorded within hours naming the people the complainant saw. Statements from neighbours taken while the street still remembered. An investigating officer assigned, a charge sheet filed, a trial. None of that is remarkable; it is the routine processing of a killing in any Indian district.

For 2,733 deaths there are 587 reports and about 240 of those were closed as untraced. Which means that for most of the people killed in Delhi in November 1984, **there has never been a document naming anybody** — not because the killers were unknown to the neighbourhood, but because nobody wrote the names down.

So the argument about who is guilty is being conducted in a space where guilt was never determinable, and that is not an accident of history. It is the direct product of the decisions Chapter Two describes.

Which is why this part refuses to trade in names. Repeating an allegation is the thing the system's design makes available instead of proof, and doing it has substituted for forty-one years of asking why proof was never possible.

All of which raises a question about this book rather than about its subject, and it should be answered in the open.

THE ARGUMENT — SHOULD AN ACCOUNT LIKE THIS NAME NAMES?

This part does not, and that is a choice which victim organisations would dispute. The dispute deserves stating rather than settling by omission.

NAME THEM — SILENCE IS WHAT HAS PROTECTED THEM

Commissions named individuals. Committees recommended cases against them. Those recommendations were blocked. If the only names anybody may repeat are the ones a court has convicted, then a system which prevented cases reaching court has also succeeded in preventing them being spoken of — which is impunity completing itself. Survivors have said the names for forty-one years precisely because nothing else was available to them, and asking them to stop is asking them to accept the outcome the obstruction produced.

REPEATING ALLEGATIONS IS WHAT THE SYSTEM OFFERS INSTEAD OF PROOF

An allegation repeated for four decades is not evidence and does not become evidence. It is also the thing that has allowed this entire subject to be characterised as a grievance rather than a finding, and to be answered with the observation that names have circulated without proof. A book that repeats them hands its opponents that answer for free. And there is a specific cost: the person named has no forum in which to be cleared, because there is no case against him to lose.

Where things stand: both are right and this part has chosen the second, for a reason that is about this book rather than about the question in general. Its whole strategy is to build on material the side it damages cannot dispute — the state's own count, the state's own commissions, the state's own courts. Naming a man against whom no body has found would forfeit that in a paragraph. That is a decision about method, not a judgment that the allegations are false, and it is not a criticism of anybody who has made the other choice.

What would settle it: prosecutions. The argument exists only because they did not happen.

Why people care so much: because for a survivor the name is the whole of what was left, and being asked to withhold it is being asked to give up the last thing.

One consequence for how this part is written. It names no individual against whom no body has found. That restraint costs it the most quotable material available on the subject, and it is the price of the argument in the box above.

REMEMBER THIS

Three things get run together: **an allegation establishes nothing, a commission finding binds nobody, and a conviction is a court's determination after trial.**

The court record for 2,733 deaths: **25 cases, 12 murder cases, about 440 individuals,** with the first senior conviction in December 2018 and a second in 2025.

The list of guilty names is not the wrong. The absence of a list is. For most of those killed there has never been a document naming anybody, because nobody wrote the names down.

CHAPTER TWO

The Investigators

The Delhi Police were found by commission after commission to have stood aside while it happened. They were then given the investigation of it. That is not an oversight and it is not a scandal — it is the ordinary rule.

2.1 — What was found about them

Every substantial inquiry into November 1984 reached findings about the police, and they are consistent across bodies appointed by different governments over twenty years.

That officers did not intervene where they could have. That complaints were refused registration. That in documented instances Sikhs who had armed themselves for defence were disarmed by police while the mobs were not. That the force's response amounted to a colossal failure in the maintenance of law and order.

That last phrase is the Nanavati Commission's, in 2005, on the conduct of the Delhi Police.

Committees were specifically appointed to examine police conduct and to recommend action against named officers. Recommendations were made.

2.2 — Who investigated the crime

The Delhi Police.

The first information reports of Chapter One were recorded by that force. The investigations were conducted by it. The decisions to close about two hundred and forty cases as untraced were taken by it. The case files that the special investigation teams reopened from 2015 onwards were files that force had made and closed.

This is not a hidden fact and nobody has ever concealed it. It is the ordinary operation of Indian criminal procedure: crimes are investigated by the police force with territorial jurisdiction, and there is no general rule removing that jurisdiction where the force itself is implicated.

WORD BOX

Jurisdiction: the authority of a particular body to deal with a particular matter — which police force investigates, which court tries, which magistrate supervises.

It sounds like an administrative detail and it decides outcomes. Indian criminal procedure allocates investigation by **territory**: an offence is investigated by the police of the area where it occurred.

There is no general exception for the case where that force is itself implicated.

Removing a case from the ordinary jurisdiction requires a specific order from a High Court or the Supreme Court, on an application somebody must make and sustain.

Why it matters here: this is the single rule from which everything in Chapters Two and Three follows, and it has not been changed.

The consequence of that rule is easier to see at the scale of one person than at the scale of a city.

IN REAL TERMS

Imagine reporting a burglary to a police station, and being asked to give your statement to the officer you say committed it.

Now add that he decides whether to write your complaint down at all; that if he writes it down he investigates it; that he decides what evidence to gather; and that he can close the file on the ground that the offender could not be identified.

Nobody would design that. It is not a design. It is the ordinary territorial rule of criminal procedure meeting a situation it was not written for — which is why it produces the same result every time it meets one.

2.3 — Was it addressed?

Partly, late, and by a court rather than by a government.

Committees recommended action against officers. In some cases departmental proceedings followed. Some officers were named in commission reports and continued in service.

Convicting a police officer of an offence committed during communal violence in India is close to unknown. It is difficult to convict a politician and it has been done. The record on officers is thinner still, and the reason is Chapter One's: the

investigation of a police officer's conduct in a riot is conducted by police officers, using records made by police officers, about a period in which the record-keeping is the thing complained of.

The genuine change came only when investigation was removed from that force. Special investigation teams operating under Supreme Court supervision from 2015 reopened closed files and obtained convictions from them within three years — from cases the same force had marked untraced two decades earlier.

That is the single most useful fact in this part and Chapter Eight is about it.

HOW WE ACTUALLY KNOW THIS

The findings about police conduct come from commissions appointed by the Government of India — including by governments of the party whose local functionaries the same commissions were naming.

That matters for the standard rebuttal. An account of police failure in November 1984 sourced to survivors can be dismissed as partisan. An account sourced to the Misra Commission, the Kapoor-Mittal Committee and the Nanavati Commission cannot, because those bodies were the state examining itself.

The 2018 Delhi High Court judgment adds the strongest layer: a court, in a judgment, stating that the perpetrators enjoyed political patronage and were assisted by an indifferent law enforcement agency.

What it cannot show: how many officers acted well. Some did, and some saved lives, and the inquiries record instances. There has never been a systematic account of them, which means the honourable conduct of individual policemen in November 1984 is as poorly documented as the dishonourable conduct, and that is its own small injustice.

Which brings up the word every report on this subject uses.

THE HIDDEN ASSUMPTION

Everybody who examines the police role in November 1984 assumes **that the police failed.**

The word is in every report. Failure of law and order. Dereliction. Deficiency. The inquiries use it, the courts use it, and the defenders of the force use it too, arguing that a small number of stations were overwhelmed by an unprecedented situation.

A failure is a thing that was attempted and did not work. Ask what was attempted.

A force that does not deploy, then does not register complaints, then investigates the resulting crimes, then closes two-fifths of the cases it opened for want of information it did not gather, has not failed at a task. **It has performed a coherent sequence in which each step follows from the last.** The non-registration in November makes the untraced closure in 1985 inevitable, and the untraced closure makes the acquittals of the 1990s inevitable, and each stage is individually explicable as ordinary incompetence.

This is why the failure framing is so durable and so useless. It suggests the remedy is better policing — more training, more officers, faster response. None of that touches the actual mechanism, which is that the same institution occupied every position in the sequence: witness, accused, investigator and record-keeper.

And it explains the one thing that worked. The 2015 teams did not police better. They took the files away from the force that made them and put the investigation under a judge. The convictions followed within three years, from cases that had been sitting closed for twenty.

The general rule, which this series has met before in a different setting: **an institution asked to investigate itself will produce a record, and the record will be the defence.** Part Six found an inquiry forbidden from examining the people who gave the orders. This is the same problem without even the terms of reference.

Which raises a question with a less obvious answer than it first appears to have.

THE ARGUMENT — CAN ANY POLICE FORCE INVESTIGATE ITSELF?

The obvious answer is no, and the objection to the obvious answer is real.

IT HAS TO, AND MOSTLY IT WORKS

Every police force in the world investigates offences involving its own members, because there is no infinite regress of independent agencies and somebody has to hold the file. India has internal vigilance, magisterial oversight of custodial deaths, and appeal to the courts. A rule that removed investigation from the local force whenever it was accused would hand every accused person a method of derailing an inquiry: allege police misconduct and the case moves.

NOT WHERE THE FORCE'S CONDUCT IS THE OFFENCE

The objection is not to ordinary cases involving officers. It is to cases where **the failure to act is itself the thing complained of**, because then the investigator is being asked to document his own institution's inaction, using records his colleagues made, about a period in which the record-keeping is the allegation. That is a specific and narrow category, it is identifiable in advance, and Chapter Eight shows what happens when investigation is removed in exactly that category.

Where things stand: the second side is right and its narrowness is what makes it workable. Nobody is proposing that police cannot investigate police. The proposal is that where an inquiry or a court has found a force's own inaction to be in issue, investigation transfers automatically — which is what happened in Delhi in 2015, thirty-one years late and only because the Supreme Court directed it.

What would settle it: comparing outcomes in cases transferred out and cases left in place. Chapter Six's table is the beginning of that and the pattern is one-directional.

Why people care so much: because police reform in India has been recommended by commission after commission since the 1970s and the recommendations have never been enacted either.

Note what the second side of that argument is asking for. Not a new principle, not police reform in general, and nothing that requires anybody to admit anything about 1984. A rule about transfer, in a narrow and identifiable category, of the kind Chapter Nine sets out.

REMEMBER THIS

Commissions appointed by successive governments found that the Delhi Police **did not intervene, refused to register complaints, and in documented instances disarmed Sikhs** who were defending themselves.

That force then investigated the crime. It recorded the 587 reports, conducted the investigations and closed about 240 cases as untraced. This is not a scandal; it is the ordinary rule of Indian criminal procedure.

It is not a failure. It is a coherent sequence in which non-registration makes untraced closure inevitable and untraced closure makes acquittal inevitable — and the one thing that worked was taking the files away from that force.

CHAPTER THREE

The Machinery of Delay

Fourteen bodies over thirty-four years. This chapter names the specific devices by which that produced twelve murder convictions, because “delay” is not a mechanism and each of these is.

3.1 — The devices

Delay is a description of an outcome. What follows are the mechanisms that produced it, each of which is a rule that operated as designed.

The commission that reports to the body it examines. A commission of inquiry submits to the government. The government decides whether to publish, whether to accept, and whether to act. None of those is compelled.

The committee that recommends registration. Several of the committees after 1984 had the specific function of recommending that cases be registered against named people. A recommendation to register is not a registration; it goes to the police, who are Chapter Two’s force.

The writ petition. When one such committee recommended registration against named individuals, those individuals went to court challenging the committee’s competence to do so. The proceedings took years. The committee’s work was stalled and it was eventually replaced by another committee, which was replaced by another.

That is worth stopping on. **The legal system’s protections for the accused — the right to challenge a body’s jurisdiction — were available to people named in a massacre inquiry, and were not available to the families, who had no case to protect because no case existed.**

The untraced closure. Chapter Two. Once a file is closed, reopening it requires somebody with authority to want to.

Jurisdiction. Every case remained in Delhi, tried under Delhi courts, investigated by Delhi Police, with witnesses living in Delhi neighbourhoods where the accused also lived.

Succession. Each new body's appointment was itself an answer to demands for action, and each one restarted the clock.

WORD BOX

Writ petition: an application to a High Court or the Supreme Court asking it to restrain a public body from acting beyond its powers.

It is a protection of the first importance and this series has relied on it repeatedly — it is what struck down the privy purse order in Part Eight and what limited the Emergency amendments in Part Nine.

It is also available to anybody. When a committee recommended that cases be registered against named individuals after 1984, those individuals filed writ petitions challenging the committee's competence. The proceedings ran for years and the committee's work stopped.

Why it matters here: the same instrument that protects a citizen from the state protects a powerful citizen from an inquiry, and the families had no equivalent instrument because they had no case to protect.

3.2 — What the succession achieved

Count what fourteen bodies over thirty-four years actually produced.

They established the death toll. That is real and Part Ten uses it throughout.

They established the conduct of the police, the use of voter lists, the distribution of kerosene, and the failure of the administration. That is real and it is the evidentiary basis of everything in Part Ten's Chapter Six.

They did not produce prosecutions. The prosecutions that exist came from two sources: a small number of cases that were pursued through the ordinary courts by families and lawyers over decades, and the reopening of closed files by investigation teams under Supreme Court supervision from 2015.

So the inquiry machinery worked as an **establishing** instrument and not as a **prosecuting** one — which is exactly what it is designed to be, and which is why appointing a commission remains the standard Indian governmental response to an atrocity.

IN REAL TERMS

A witness who was thirty in November 1984 was sixty-four when the first senior conviction was handed down in 2018.

A widow who was twenty-five was fifty-nine.

An investigating officer who was forty when he closed a file as untraced was ninety when a team reopened it.

Delay in a criminal process is not a neutral cost borne equally. It transfers the case from the living to the dead, and it does so in one direction only: the accused's ability to be tried expires with him, and so does the survivor's ability to give evidence, but the survivor's need does not.

Which raises the question this chapter exists to put, and it does not have an obvious answer.

THE ARGUMENT — WAS THE DELAY DESIGNED, OR SYSTEMIC?

This is the central question about the aftermath and it has two serious answers.

SYSTEMIC — INDIAN CRIMINAL JUSTICE IS LIKE THIS FOR EVERYBODY

Indian courts are enormously overloaded, cases routinely take decades, and conviction rates for serious offences are low across the board. Nothing that happened after 1984 requires a special explanation: mass-casualty cases with hundreds of accused, thousands of witnesses and no forensic evidence are the hardest thing a criminal system attempts, anywhere. The 1992–93 Bombay cases and the 2002 Gujarat cases also took decades, under different governments of different parties, which strongly suggests a structural cause rather than a conspiracy.

SYSTEMIC CONDITIONS DO NOT EXPLAIN SELECTIVE OUTCOMES

Grant every word of that. It does not explain the specific decisions: that about 240 cases were closed as untraced within months, that recommendations to register cases were successfully blocked by writ petitions, that fourteen bodies were appointed and none had prosecuting power, and that when a team was finally given the files and judicial supervision it obtained convictions within three years from cases marked untraced for twenty. A system that is slow for everybody does not produce convictions in thirty-six months once somebody with authority looks.

Where things stand: the first side is right about the background and the second about the foreground, and the second is where the finding is. The 2015 result is the decisive evidence: it establishes that the cases were *available* and had not been built. Whether the not-building was designed is not established and this part does not assert it — Chapter Two’s argument is that a coherent sequence does not require a designer.

What would settle it: the case disposal records showing who authorised each untraced closure and on what material.

Why people care so much: because “systemic” spreads the responsibility across a country and “designed” places it on a party, and both answers are politically useful to somebody.

One clarification. Nothing in this chapter argues that the fourteen bodies were appointed in bad faith. Several were appointed in response to genuine public pressure, several did serious work, and the Nanavati Commission’s findings are the evidentiary foundation of Part Ten’s Chapter Six. The finding is narrower: **an instrument that establishes facts was repeatedly used where an instrument that prosecutes was needed**, and appointing the first has been available whenever the second was not.

REMEMBER THIS

“Delay” is not a mechanism. The mechanisms are: **commissions that report to the body they examine, committees that can only recommend registration, writ petitions by the named, untraced closures, unmoved jurisdiction, and the appointment of a new body as the answer to demands about the last one.**

Fourteen bodies **established** the death toll and the conduct. They did not prosecute, because that is not what they are for.

The accused could challenge a committee’s jurisdiction in court. **The families had no case to protect, because no case existed.**

CHAPTER FOUR

What Was Paid

Eight and a half lakh rupees over thirty years, in four instalments. Two of them were ordered by a court, and the families had to bring the case.

4.1 — The four tranches

Compensation for November 1984 was not paid once. It was paid four times across three decades, and the sequence is more revealing than the total.

WHEN	WHAT WAS PAID	WHO CAUSED IT
1984–85	₹20,000 per death. ₹500–2,000 for injury. ₹5,000 for a house destroyed completely; ₹1,000 for minor damage.	The government of the day, immediately after.
1996	Enhanced to ₹3.5 lakh per death, with the balance of ₹3.3 lakh to be paid within four months.	A Delhi High Court judgment in a case brought by a widow whose husband was pulled from a train.
2005–06	₹1.23–1.25 lakh to each of roughly 2,800–3,000 injured people, who had originally received ₹2,000.	A Delhi High Court judgment. The Delhi government decided not to appeal.
Jan 2006	A ₹717 crore rehabilitation package, paying the ₹3.5 lakh the court had ordered a decade earlier.	The Union government, following the Nanavati Commission report of February 2005.
Oct 2014	An additional ₹5 lakh per death, for the families of all 3,325 killed nationally. About ₹166 crore.	The Union government, following representations, thirty years afterwards.

Of the ₹717 crore announced in 2006, about ₹517 crore was spent. The remaining ₹200 crore was not distributed, on account of disputes over who the claimants were.

4.2 — Who had to ask

Read the third column again.

The increase from ₹20,000 to ₹3.5 lakh came from a judgment in a case a widow brought. The compensation for the injured came from a judgment in a case an injured man brought. The package of 2006 followed a commission report that itself followed twenty years of demands. The payment of 2014 followed representations by Sikh organisations.

Not one of the increases originated with a government deciding, on its own, that more was owed.

And the delay after each is its own item. The court ordered ₹3.5 lakh in 1996 and directed payment within four months. Most families did not receive it until the package of 2006 — ten years later. In one case that reached the Delhi High Court again in 2024, a man had been paid a sum in 2016 that had been due since 2006, and the Court ordered ten per cent interest for the intervening decade, describing the administration as insensitive and callous and imposing costs on the Union government.

HOW WE ACTUALLY KNOW THIS

Every figure and date in section 4.1 is a government order, a court judgment or a parliamentary answer.

The relief rates of 1984–85 were notified. The 1996 and 2005 enhancements are reported judgments. The January 2006 package was announced with a figure and its disbursement was reported to Parliament, including the fact that about ₹200 crore of ₹717 crore was not spent. The October 2014 enhancement was announced by the Home Minister and confirmed in a written answer in the Rajya Sabha.

That is why the third column of the table can be stated as fact rather than characterisation: the causal chain is visible in the documents, because each payment cites what preceded it.

What it cannot show: how many eligible families never claimed. A claimant must know the scheme exists, produce proof of a death certified in circumstances where certification frequently did not happen, and establish relationship. The undisbursed ₹200 crore is the visible part of that problem and there is no measure of the invisible part.

4.3 — How it compares

Part Ten's "what comes next" asked how the compensation for 1984 compares with what has been paid after other organised violence in India. The answer is that it is broadly typical, and that this is the finding rather than a defence.

The central scheme for civilians killed in communal, terrorist or Maoist violence paid **₹3 lakh** until 2014, when it was raised to **₹5 lakh** — which is the figure the 1984 families received in their fourth tranche, thirty years afterwards. In other words, the enhanced payment of 2014 brought them to the general rate, and no further.

State-level awards have varied and courts have repeatedly had to intervene. A High Court in 2006 directed two state governments to pay ₹2 lakh with an additional forty per cent to families of those killed in their territories in November 1984 — twenty-two years later, and again on a petition.

Two things follow.

There is no special scheme. A person killed by an organised mob in 1984 is compensated, in the end, on the same schedule as somebody killed by a bomb or caught in crossfire. India has a general rate for a civilian death caused by violence the state failed to prevent, and it applies it.

The general rate is set administratively and raised by litigation. The pattern in section 4.2 is not peculiar to 1984. It is how the whole category works, which is why the same sequence of court orders and delayed disbursement appears after other episodes.

So the comparison does not show that the families of November 1984 were treated worse than others. It shows something less satisfying and more useful: that **the arrangement they encountered was the ordinary one**, and that its features — payment without liability, a low administrative rate, and increases obtained by suing — are what any Indian family in that position meets.

4.4 — Tilak Vihar

Families who had lost the men of the household were resettled, and a large number of them ended up in one area of west Delhi.

It has been known for forty years as the **Widows' Colony**.

That is not an official designation. It is what the place is called, by the people who live there and by everybody else, because that is what it is: a neighbourhood constituted out of households that lost their men in a single week, still identifiable four decades later, still occupied substantially by the same families and their descendants.

A state that resettles bereaved families together produces a place where the loss is the shared characteristic and does not disperse. Whether that is a kindness or the opposite is genuinely arguable. What it is not is neutral.

WORD BOX

Compensation and reparation: two different things that the same money can be called.

Compensation is payment for a loss, regardless of who caused it. Governments pay it after floods and earthquakes.

Reparation is payment for a wrong *the payer is responsible for*. It carries an admission.

Everything paid for November 1984 has been framed as compensation, and specifically as *ex gratia* — a payment made without accepting any liability at all.

Why it matters here: the framing is why the amounts could be set at ₹20,000 in the first place, why increases required litigation, and why a payment thirty years later can be announced as generosity rather than as a debt discharged late.

Which raises a question survivor organisations have disagreed about among themselves since the first payment.

THE ARGUMENT — IS COMPENSATION A FORM OF JUSTICE?

Survivor organisations have argued about this since the first payment and the disagreement is genuine.

IT IS WHAT A STATE CAN ACTUALLY DELIVER

Convictions after forty years bring nobody back and reach a handful of families. Money reaches everybody on the list, is measurable, and does the thing bereaved households most immediately need, which is to survive the loss of an earner. A state that pays and does not prosecute has done something real; a state that prosecutes twelve murders and pays nothing has done less for the other 2,721 families.

PAYMENT WITHOUT LIABILITY IS THE OPPOSITE OF JUSTICE

Every rupee has been paid *ex gratia* — expressly without admitting that anything was owed. That framing is not incidental; it is what allowed ₹20,000 in 1984, what made every increase require litigation, and what permits a payment thirty years late to be announced as generosity. A state that pays while denying liability has bought the appearance of redress at the price of the admission, and the admission is the part that would have changed anything.

Where things stand: both are right and they are not in conflict, which is why survivor organisations have accepted every payment while continuing to litigate. The finding that survives is the second side's narrower point: the money was real and useful, and the framing was chosen. Nothing prevented any of the four payments being made as reparation with an acknowledgement attached. It would have cost the same.

What would settle it: nothing evidential. It is a question about what a state owes.

Why people care so much: because forty-one years on, the families of 1984 have received about eight and a half lakh rupees each and no Indian government has ever accepted that it owed them anything at all.

Underneath that disagreement, though, both positions share a picture of where the money came from.

THE HIDDEN ASSUMPTION

Everybody who discusses relief for 1984 assumes **that compensation is something a state gives.**

The critical version: what was given was inadequate and late. The defensive version: substantial sums were eventually given, by governments of both parties. Both are arguments about the generosity of a giver.

Almost none of it was given. It was **extracted**, case by case, by people who had to hire lawyers and sue the government that had failed to protect them.

Follow what that requires of a claimant. She has lost the earning member of her household. She is living in a resettlement colony. She must find a lawyer, sustain a case for years, and prove her entitlement to a state that has classified her husband's death as

a matter on which it accepts no liability. If she wins, the ruling benefits others in her position — which is why a handful of names appear in judgments that determined the entitlements of thousands.

The design consequence is the important one. A system in which relief is set administratively at a low figure and raised only by litigation has **transferred the cost of establishing the correct figure onto the people least able to bear it**, and has made the passage of time work for the payer, because every year of delay is a year of the money's use.

And it explains the shape of the sequence. Not a government reconsidering, but a court ordering; not a court ordering once, but three times across three decades; and each order arriving after the previous one had been ignored long enough to require a new case.

The general point applies well beyond 1984. **Where a state's liability is framed as grace, the burden of proof moves to the victim and the clock works for the state.** That is not a failure of the arrangement. It is what the phrase *ex gratia* is for.

What the first figure meant to a household is worth stating before the summary.

IN REAL TERMS

Twenty thousand rupees in 1984 was roughly two or three years of a labourer's earnings.

Set against what a household had actually lost — the man who earned, in most cases the only one — it was a payment that covered the gap for as long as it took the family to understand that nothing else was coming.

The court that raised it to three and a half lakh did so in 1996, twelve years later. Most families received that money in 2006, twenty-two years after the death, by which time the children who had lost a father had raised their own.

Compensation delayed by a generation is not late payment. It is payment to different people, for a different purpose, at a point when the thing it was for has already been survived without it.

One even-handed note. The 2006 package and the 2014 enhancement came from governments of opposite parties, and both were substantial. The objection in this chapter is to the mechanism and the framing, not to the fact of payment, and a reader who takes from it that nothing was paid has read it wrongly.

REMEMBER THIS

₹20,000 per death in 1984. Raised to **₹3.5 lakh** by a court in 1996, paid to most families in **2006**. A further **₹5 lakh** in 2014. About ₹8.5 lakh over thirty years, in four instalments.

Not one increase originated with a government deciding more was owed. Two came from judgments in cases brought by a widow and by an injured man.

Families were resettled together in an area of west Delhi that has been called the **Widows' Colony** for forty years. **Where liability is framed as grace, the clock works for the state.**

CHAPTER FIVE

The Word

It is still officially called a riot. Part One promised to name the concealing word every time. This is the one that has done the most work for the longest.

5.1 — What the word means

A riot, in ordinary usage and in Indian criminal law, is a violent disturbance by an unlawful assembly. The elements that go with the word are spontaneity, disorder, and — usually — more than one group involved.

Part Ten set out what is documented about November 1984: crowds arriving with electoral rolls and ration records to identify households by religion, in areas where the crowds did not live, supplied with kerosene, while the police did not intervene.

None of those elements is compatible with the word. A spontaneous crowd does not carry an electoral roll.

The word is nevertheless the official one. The commissions are titled with it. The government schemes use it. The court records use it. Forty-one years on, the standard English phrase in Indian public life for what happened is *the 1984 anti-Sikh riots*.

5.2 — Why the word is there

Here is the part that matters, and it is not primarily about politics.

Indian criminal law has no offence that fits.

The Penal Code has rioting. It has unlawful assembly. It has murder, arson and grievous hurt. Each of those is an offence committed by an individual on an occasion.

What it does not have is an offence describing *organised mass violence directed at a group*, with the features that distinguish it: prior preparation, identification of targets by community, distribution of materials, and the acquiescence of officials whose duty was to prevent it.

Because there is no such offence, there is no charge to lay. Because there is no charge, the acts have to be disaggregated into thousands of individual murders and arsons, each requiring its own evidence, its own witnesses and its own trial — which is Chapter Three's machinery, arriving as a consequence of a gap in a statute.

And because the law has only the smaller word, the smaller word is what the paperwork says, and what the paperwork says is what the country calls it.

WORD BOX

Three words are proposed as alternatives to “riot” and they are not interchangeable.

Pogrom describes an organised, officially tolerated attack on a minority. It is a historical and political term, not a legal one, and it fits the documented features of November 1984 more closely than any other available word.

Massacre describes the killing of many people. It captures the scale and nothing about the organisation.

Genocide is a legal term with a defined meaning: acts committed with intent to destroy a national, ethnic, racial or religious group as such. The intent requirement is very demanding and has rarely been established anywhere.

Why it matters here: victim organisations use the third, critics object that it does not fit, and the argument consumes the energy that the second side of the box below says should go to the absence of any Indian offence at all.

5.3 — What was proposed and not done

The gap has been identified repeatedly and legislation has been attempted.

A Communal Violence Bill was drafted in 2005 and revised in successive versions over the following decade. It would have created offences for organised communal violence, addressed the liability of public servants who failed to act, and provided for relief and reparation as entitlements rather than as grace.

It was never enacted. Versions were opposed on federalism grounds — policing is a state subject — and on the ground that the definitions were too broad, and by parties who believed it was aimed at them.

Forty-one years after November 1984, and after every episode in Chapter Six, **there is still no Indian offence of organised mass violence against a community.**

HOW WE ACTUALLY KNOW THIS

The claim in section 5.2 — that Indian law contains no offence fitting organised mass violence against a group — is a claim about the contents of a statute, and it is checkable by reading one.

The Penal Code's provisions on rioting and unlawful assembly describe conduct by a crowd on an occasion. Its provisions on murder, arson and grievous hurt describe acts by individuals. Nothing in it addresses prior organisation, the targeting of a group as such, or the liability of an official who could have prevented the acts and did not.

The successive Communal Violence Bills are the other half of the evidence. Their existence, their drafting history since 2005 and their contents establish that the gap has been identified repeatedly, by people whose job was to identify it, and that filling it was drafted and not enacted.

What it cannot show: whether an offence would have produced convictions. No Indian prosecution has ever been brought under such a provision because none exists, so the comparison is with other countries and their records are mixed.

The practical consequence of that absence is best seen from the desk of somebody trying to work around it.

IN REAL TERMS

Consider what a prosecutor in 2016 actually had to prove, reopening a case from 1984.

Not that an organised attack on a community took place — nobody disputes that and there is no offence of it. He had to prove that **this named man** struck **this named victim** at **this address** on **this afternoon**, beyond reasonable doubt, on the evidence of witnesses who saw it thirty-two years earlier.

Multiply by 2,733.

That is not a system failing to prosecute a massacre. It is a system with no concept of a massacre, being asked to process one as several thousand unrelated afternoons.

Whether that is a problem about vocabulary or about statute is genuinely disputed.

THE ARGUMENT — DOES THE WORD ACTUALLY MATTER?

Victim organisations have argued about this for four decades. The objection to their position is serious.

IT IS A DISTRACTION FROM THE SUBSTANCE

Nobody was acquitted because of a noun. The convictions that exist were obtained under the ordinary law of murder, and the cases that failed did so for want of evidence, not for want of a better label. Changing the word would not have registered one additional first information report in November 1984. And the alternatives proposed carry their own problems: “genocide” has a specific legal meaning with an intent requirement that would be extremely hard to establish, and using it loosely weakens it everywhere.

THE WORD IS THE OFFENCE, AND THERE IS NO OFFENCE

The argument is not about a label but about a charge. Because there is no offence of organised communal violence, prosecutors must prove thousands of separate murders, each on its own facts, forty years later. Command responsibility — the liability of an official who could have stopped it and did not — does not exist as a charge, which is why convicting a policeman is nearly impossible. The word “riot” is not the cause of that; it is the symptom, and it is accurate about the law as it stands. The law is the problem.

Where things stand: the second side is right and the first side’s objection to “genocide” is also right, which is an awkward combination and is why this argument never resolves. The useful position is neither: what is missing is not a stronger word for the same acts but a **legal category** for a kind of event the Penal Code does not contemplate — and the Bill that would have created one has been drafted repeatedly and passed never.

What would settle it: nothing about vocabulary. Enactment would.

Why people care so much: because for survivors the word is an official description of what was done to their families, and being told it was a riot is being told it was nobody’s plan.

One last observation. The word has survived forty-one years of objection because it is accurate — about the law. Change the law and the word changes by itself, which is why Chapter Nine’s fifth rule is the one that would do the most work.

REMEMBER THIS

A riot is spontaneous, disorderly and usually two-sided. **A spontaneous crowd does not carry an electoral roll.** The word is nevertheless the official one, forty-one years on.

The reason is not primarily political. **Indian criminal law has no offence of organised mass violence against a group**, so the acts must be broken into thousands of separate murders, each needing its own evidence and trial.

A Communal Violence Bill was drafted in **2005** and repeatedly afterwards. **It has never been enacted.**

CHAPTER SIX

The Comparison

Four later episodes under four governments of three different parties. The pattern is not partisan, and establishing that is not an exoneration of anybody — it is a worse finding.

6.1 — The set

A charge that a particular party protects its own is testable. Look at what happened after comparable episodes under other parties.

EPISODE	WHO WAS GOVERNING	WHAT FOLLOWED
Delhi, Nov 1984	Congress at the centre	2,733 killed. Fourteen inquiry bodies. 587 reports, ~240 untraced. 25 convictions, 12 for murder. First senior conviction 2018 — thirty-four years.
Hashimpura, May 1987	Congress in Uttar Pradesh	Around forty Muslim men taken from a locality by an armed constabulary and shot. Trial began in 2006 after transfer out of the state. Acquittals in 2015. Sixteen convicted and sentenced to life by the Delhi High Court in 2018 — thirty-one years.
Bhagalpur, Oct 1989	Congress in Bihar	Around a thousand killed. Convictions in 2007 — eighteen years.
Bombay, Dec 1992 – Jan 1993	Congress in Maharashtra, then Shiv Sena-BJP from 1995	A commission first refused by the Congress Chief Minister and appointed at the Prime Minister's intervention. Disbanded in January 1996 by the successor government, revived by the Bombay High Court, reported in 1998. Recommendations largely not implemented. Around twenty convictions by 2017.
Gujarat, Feb–Mar 2002	BJP in Gujarat	Over a thousand killed. Investigation eventually placed under a Supreme Court-monitored special team from 2008, with several trials transferred out of the state. Convictions in a number of major cases. A plea alleging a larger conspiracy by the state administration was rejected through the courts.

Before drawing anything from it, the most striking column in that table is the one nobody reads across.

IN REAL TERMS

Line up the intervals in that table.

Bhagalpur: eighteen years to a conviction. Bombay: about twenty-four years to a substantial number. Hashimpura: thirty-one. Delhi: thirty-four to the first senior one.

A child born on the day of any of those episodes was a middle-aged adult before a court convicted anybody of it.

And in every case the accused had aged at the same rate. Prosecutions of this kind are races between a criminal process and human mortality, run over decades, in which the process has never once been the faster.

6.2 — The sharpest single comparison

Take Bombay on its own, because it contains a controlled experiment.

The riots of December 1992 and January 1993 were followed, in March 1993, by a series of bomb blasts in the same city.

The blasts were prosecuted under special legislation, in a dedicated court, over many years, and produced a large number of convictions including death sentences.

The riots that preceded them, in the same city, in the same months, affecting far more people, produced a commission that was disbanded and revived, recommendations that were not implemented, and convictions in the low tens.

Same city. Same period. Same criminal justice system. Same police force.

The difference is not capacity. **The Indian state can prosecute mass-casualty crime when it decides the crime is terrorism.** What it has never built is the equivalent apparatus for organised violence by a majority against a minority, and Chapter Five explains why: there is no offence to prosecute.

HOW WE ACTUALLY KNOW THIS

Each row of the table is drawn from the public record of that episode: commission reports where they exist, court judgments, and reported conviction outcomes.

The comparison is deliberately built on cases where the essential facts are agreed by both sides of Indian politics. That Hashimpura took thirty-one years is not contested. That the Srikrishna Commission was disbanded by the Maharashtra government in January 1996 and revived by the Bombay High Court is not contested. That a Supreme Court-monitored team was constituted for the Gujarat cases is not contested.

What it cannot show: whether the episodes are equivalent in kind. They differ in scale, in who the victims were, in whether the violence was one-sided, and in what the state's role was. A table cannot settle those differences and this chapter's claim is deliberately narrow — it is about the *processing* afterwards, which is comparable, and not about the events, which are not.

6.3 — What predicts a conviction

Across the whole set, one variable tracks outcomes and it is not party.

Whether the investigation was removed from the local police and placed under judicial supervision, and whether trials were moved out of the affected jurisdiction.

Hashimpura produced convictions after the case was transferred to Delhi. Gujarat produced convictions after a Supreme Court-monitored team was constituted and trials were moved. Delhi 1984 produced its convictions after teams under Supreme Court supervision reopened closed files from 2015.

Bombay, where the commission was disbanded by the state government and the investigation stayed where it was, produced the fewest.

Which produces a conclusion that neither side of Indian politics has any use for.

THE HIDDEN ASSUMPTION

Everybody arguing about impunity for communal violence in India assumes **that it is a party problem.**

One side says Congress protected the killers of 1984. The other says the BJP protected the killers of 2002. Each cites the other's episode as proof of the other's character, and both are entirely correct about the episode they name.

The table above contains five episodes under three parties across four states and thirty years, and the outcomes are broadly the same. Two decades to a conviction, or three. A commission whose recommendations were not implemented. A police force investigating itself. Compensation set low and raised by litigation.

A pattern that survives every change of party is not a fact about parties.

This is a **worse** finding than the partisan one and both sides should notice why. If impunity is a party's habit, it ends when the party does, and voting differently is a remedy. If it is a property of the rules — of who investigates whom, of which court has jurisdiction, of what offence exists to charge — then it survives every election, and it has.

Note also what the partisan framing has cost. Forty-one years of Indian argument about 1984 and twenty-four about 2002 have been conducted as a competition in atrocity, in which each side's evidence for its own grievance is the other's proof of hypocrisy. In all that time the Communal Violence Bill of Chapter Five has been drafted repeatedly and passed never — because each version was opposed by whichever party expected to be its target, which is precisely what you would expect if both were right about each other.

The finding is not that everybody is equally guilty. Congress presided over 1984 and that is this book's subject. The finding is that **the machinery which processed it afterwards was not built by Congress and has not been dismantled by anybody**, and that every party has since used it.

One thing this chapter is not doing. It is not saying that because others did the same, the government of 1984 is excused. This is a book about that government and Part Ten reached its verdict. The comparison establishes something different and more useful: that **the machinery which processed the aftermath was not that government's invention and has outlasted it by four decades**, and that the argument between the parties about whose massacre was worse has been the most reliable obstacle to changing it.

REMEMBER THIS

Five episodes, three parties, four states, thirty years: **Delhi 1984, Hashimpura 1987, Bhagalpur 1989, Bombay 1992–93, Gujarat 2002.** Two to three decades to a conviction in each.

Bombay is the controlled experiment. The **1993 blasts produced death sentences; the riots months earlier in the same city produced convictions in the low tens.** The state can prosecute mass-casualty crime when it calls it terrorism.

One variable predicts convictions and it is not party: **whether investigation was removed from the local police and put under judicial supervision, and whether trials were moved out of the state.**

CHAPTER SEVEN

The Pattern of Four

Part Two’s rule about counting has now been applied four times across this series. Four cases is enough to say what it establishes, and the answer is not the one the rule was written to expect.

7.1 — The rule

Part Two set it out: **when a state that counts everything has no count of something, somebody decided that.**

The reasoning was that modern states count compulsively. They count births, deaths, harvests, rainfall, cattle, literates and voters, because counting is what administration consists of. So an absence in a state’s numbers is not usually an oversight. It is a decision, and it is worth asking who made it.

The rule has been applied in four places.

7.2 — The four

CASE	WAS THERE A COUNT?	WHAT HAPPENED TO IT
Partition, 1947 (Part Two)	No. Estimates range from about 200,000 to two million and none is authoritative.	No count was ever attempted. Both successor states were three weeks old, and both had reasons not to establish which community had suffered more.
Hyderabad, 1948 (Part Two)	Yes. A committee appointed by the Prime Minister visited nine of sixteen districts and produced a figure.	Not published for sixty-four years. The count was made and withheld.
The Emergency, 1975–77 (Part Nine)	Yes, thoroughly. 110,806 detained, 25,962 employees retired, 1,774 deaths from sterilisation procedures.	Published in three volumes in 1978 — and withdrawn from circulation after 1980 when the government changed. It survived in foreign libraries.

CASE	WAS THERE A COUNT?	WHAT HAPPENED TO IT
November 1984 (Parts Ten and Eleven)	Yes, precisely. A committee was appointed for the specific purpose and reported 2,733 in Delhi and 3,325 nationally.	Published, accepted, repeated by every subsequent body, used in every government scheme — and followed by twelve murder convictions in forty-one years.

7.3 — What four cases establish

Read the third column downward and something unexpected appears.

The transparency improves at every step. No count. A count suppressed. A count published and then recalled. A count published, accepted, and permanently available.

By any ordinary measure of how open a state is about its own failures, the Indian state got substantially better between 1947 and 1987. The 1984 count is a public document that nobody has ever tried to withdraw, and it is used by the government itself in every relief scheme.

And the accountability does not improve at all.

Partition produced no prosecutions and nobody expected any. Hyderabad produced none. The Emergency produced a commission whose findings were withdrawn and no convictions of consequence. November 1984 produced the most complete count in the series and twelve murder convictions.

So the state learned to count and did not learn to prosecute. Those are different capacities, they were assumed to be connected, and four cases now suggest they are not.

IN REAL TERMS

Between 1948 and 1987 the Indian state's ability to establish what it had done to its own people improved out of recognition.

Hyderabad in 1948 required a committee to travel to nine districts and produce an estimate that was then locked away for two generations. November 1984 produced a precise figure within three years, published, accepted and used in government schemes ever since.

Over the same period the number of murder convictions arising from either episode went from zero to twelve.

One capacity was built and the other was not, and it is worth asking why anybody assumed they were the same capacity.

7.4 — The case that breaks the pattern

And then there is Punjab between 1987 and 1993, from Part Ten's Chapter Eight.

No count. No commission. No committee. No official figure for the dead, the detained or the disappeared. One private inquiry into one district, compiled from cremation-ground firewood receipts by a man who was abducted and killed for it.

That is not a slightly worse case than the four above. It is the 1947 position, arriving forty years later, in a state with a functioning administration that was counting everything else.

So the progression in section 7.3 is not chronological and not a story of national maturation. Something else determines whether a count exists, and the five cases together point at it clearly.

Where the killing was done by a party's supporters, there was a count. Delhi 1984 was investigated fourteen times, substantially by successor governments with an interest in investigating it.

Where the killing was done by the police and the army, there was nothing. Punjab 1987–93 has never been examined by anybody, and no government of any party has proposed it.

That distinction is the finding of this chapter and it holds across every case in this series.

Which unsettles the belief that organises almost all campaigning on these subjects, including a good deal of this series.

THE HIDDEN ASSUMPTION

Everybody who campaigns about these episodes assumes **that the problem is that India does not know what happened.**

It is the organising belief of every commemoration, every documentary and every demand for a fresh inquiry. If the facts were established, if the truth were officially acknowledged, if the country were made to see — then something would follow. Both sides accept it: campaigners demand the truth and governments respond by appointing bodies to establish it.

India knows. That is what the table above shows.

The death toll of November 1984 is a government figure, produced by a government committee, published, accepted by every subsequent inquiry and used in government schemes. The conduct of the police is a finding of commissions appointed by the government. The use of voter lists is a finding. Political patronage and indifferent policing are the words of the Delhi High Court in a judgment.

There is no meaningful sense in which the Indian state does not know what happened in Delhi in November 1984. It has said so, repeatedly, in its own documents, for forty years.

Which means the demand for truth has been **satisfied** and it changed almost nothing — and that the machinery which produced fourteen inquiries was answering a question that was not the operative one.

The operative question is not what happened. It is **what a state does with knowledge it already has**, and the answer requires a rule about who investigates, who prosecutes, in which jurisdiction, under whose supervision, and for what offence. Not one of those was addressed by any of the fourteen bodies, because none of them had the power to.

This is uncomfortable for everybody working on these subjects, including me. Establishing the record is the thing writers and campaigners can do, and it is worth doing, and Part Ten's Chapter Seven does it. But four cases now indicate that **establishing a record is not a step towards accountability. It is a substitute that has been available whenever accountability was not.**

A claim of this kind should carry a statement of how far it can be pushed.

HOW WE ACTUALLY KNOW THIS

The five cases in this chapter are drawn from earlier parts of this series and each rests on the evidence set out there: Part Two for Partition and Hyderabad, Part Nine for the Emergency, Parts Ten and Eleven for 1984, and Part Ten's Chapter Eight for Punjab.

The pattern claim is therefore only as strong as those parts, and it is stated as a pattern across five cases rather than as a law. Five is enough to notice something and not enough to prove it.

What it cannot show: whether the distinction in section 7.4 — that a count exists where a party's supporters killed and does not where the police and army did — holds outside this series. Testing it would require examining every Indian episode of state or communal killing since 1947 against whether an official count was produced. Nobody has done that, and it is the single most useful piece of work anybody could do on this subject.

Which is the most useful thing in this part for anybody deciding what to do next, and the least useful for anybody deciding what to say.

REMEMBER THIS

Four applications of Part Two's rule: **Partition (no count), Hyderabad (counted and withheld sixty-four years), the Emergency (counted, published, withdrawn after 1980), 1984 (counted precisely and permanently available).**

Transparency improved at every step and accountability did not. The state learned to count and did not learn to prosecute, and those turn out not to be connected.

Punjab 1987–93 breaks the sequence entirely — no count at all. **Where the killing was done by a party's supporters there was a count. Where it was done by the police and army there was nothing.**

CHAPTER EIGHT

What Actually Worked

One device produced convictions after three decades of failure. It was invented for a different massacre, under a different party, and took thirty-one years to reach 1984.

8.1 — The device

It has three components and they only work together.

A special investigation team. Investigation removed from the force whose jurisdiction it would ordinarily be, and from the force implicated in the events.

Supervision by the Supreme Court. Not merely appointment by it, but continuing supervision — the team reports to the Court, and the Court can direct.

Power to reopen closed cases, and where necessary to move trials out of the affected jurisdiction.

Take away any one and the arrangement fails. A team appointed by a government reports to a government. A team with no power over closed files can only work on what was already built. A trial held where the accused and the witnesses are neighbours produces the outcomes it has produced for forty years.

WORD BOX

Continuing mandamus: the practice by which a court, instead of ruling once and closing a case, keeps the matter before it and issues directions over months or years as the investigation proceeds.

It is the crucial component and it is not a statute. It is a technique Indian courts developed, and it works because the investigating agency must return and report, which converts a one-off order into a supervised relationship.

Its weakness is exactly its strength. Because it depends on a court choosing to retain a matter, it is available where litigants can sustain proceedings for years and unavailable everywhere else.

Why it matters here: this is the difference between an investigation team appointed by a government and one that answers to a judge, and it is why the 2015 and 2018 teams produced what thirty years of committees did not.

8.2 — Where it came from

Not from 1984.

The components were assembled in the litigation following Gujarat in 2002 — a retrial moved out of the state in 2004, and a Supreme Court-monitored investigation team constituted in 2008 to examine major cases.

That was done under a government of a different party, about an episode in which a different party's state administration stood accused, and it was done because the Supreme Court took control of the litigation.

It was applied to November 1984 from **2015**, when a team was constituted to re-examine cases, and again in **2018**, when a further team was set up under Supreme Court supervision to look at 186 closed files.

8.3 — What it produced

In **November 2018**, two men were convicted of murders committed in Mahipalpur in 1984. The case had been registered in 1993 on a survivor's affidavit to a commission, and closed by the police in 1994 for want of evidence. The team reopened it in 2016 after scrutinising 293 cases previously marked untraced or cancelled, re-examined eighteen witnesses, and secured convictions.

Read that sequence once more, because it settles Chapter Three's argument.

The evidence was there in 1993. It was there in 1994 when the case was closed. It was there in 2016 when the case was reopened. Eighteen witnesses, still alive, still able to give evidence, twenty-two years after the file had been marked untraced.

The cases were available and had not been built.

8.4 — What it does not fix

Four things, and they are why this chapter is not an ending.

It depends on the Supreme Court. The device requires a court to take and keep control of a matter, which no rule obliges it to do and which happens where litigants with resources sustain proceedings for decades.

It is retrospective. Everything it can do depends on a file existing. Where no first information report was ever recorded — which is most of November 1984 — there is nothing to reopen.

It is case by case. It is not a rule about how communal violence is investigated in India. It is a series of directions in particular litigations, available to whoever gets to the Court.

It does nothing about the first week. Chapter Two's finding stands entirely untouched: the local police still take the complaints, still investigate, and still classify. Every element of the sequence that made 1984 unprosecutable is still in place for the next occasion.

IN REAL TERMS

Thirty-one years is the gap between the killing and the arrival of the method that could investigate it.

Put in personal terms: a man who was thirty when he saw his neighbour killed was sixty-one when an investigator with the necessary powers finally came to ask him what he had seen. He was still there. He remembered. He gave evidence and a conviction followed.

Nothing had changed about him in those thirty-one years except his age. What changed was who was allowed to ask.

Unusually for this series, that claim rests on events recent enough to be checked directly.

HOW WE ACTUALLY KNOW THIS

The reopening sequence is documented in unusual detail because it happened recently and in public: the constitution of the teams, the number of files scrutinised, the number of witnesses re-examined, and the resulting judgments are all on the record and were reported at the time.

That is why this chapter can make a claim the rest of the series usually cannot: it is not arguing that the cases *might* have been buildable in 1984. It is pointing at cases that were built in 2016 to 2018 from material that existed throughout, and to a court's finding that the earlier closures were unjustified.

What it cannot show: how many of the roughly 240 untraced files would have produced convictions if reopened. The 2018 team was given 186 of them and the work is not complete. Every number here is a floor.

Which raises the obvious question, on which people who agree about everything else in this chapter divide.

THE ARGUMENT — SHOULD THE DEVICE BE MADE A RULE?

It works. Whether it should be converted from a judicial practice into a statutory entitlement is genuinely contested among people who agree it works.

CODIFY IT

A remedy available only to litigants who can sustain proceedings before the Supreme Court for years is a remedy for the organised and the well-advised. Most victims of communal violence in India are neither. Writing the device into statute — automatic transfer of investigation on a defined trigger, mandatory judicial supervision, a duty to review closures — makes it available to everybody without requiring anybody to reach Delhi.

CODIFYING IT WOULD DESTROY WHAT MAKES IT WORK

The device works because a court chose to keep a matter and could shape its directions to the case. A statutory version would be administered by the executive, with defined triggers that would be litigated, thresholds that would be argued down, and supervision by whoever the statute names — which in practice means officials of the kind who did not act in the first place. Judicial improvisation succeeded here precisely because it was not a rule anybody could game in advance.

Where things stand: the second side identifies a real risk and the first side's objection to the status quo is unanswerable. The reconciling position is narrow: codify the parts that do not depend on judgment — a duty to review untraced closures, presumptive transfer of trial — and leave the supervisory relationship to the courts, which is where it has worked. That is two of the six rules in Chapter Nine rather than all six.

What would settle it: whether any of the six has ever been enacted anywhere in India, even at state level, and with what result. No state has.

Why people care so much: because the alternative to codifying it is depending permanently on the Supreme Court's appetite, and that appetite has varied a great deal across the period this series covers.

Which is why this chapter is called what it is rather than "How It Was Fixed". One device worked, three decades late, in a fraction of the cases, because a court chose to take an interest. Nothing about the arrangement makes that repeatable.

REMEMBER THIS

The device has three parts and needs all three: **investigation removed from the implicated force, continuing Supreme Court supervision, and power to reopen closed files and move trials.**

It was assembled for **Gujarat after 2002**, under a different party, and reached 1984 in **2015** — thirty-one years late. A 1993 case closed in 1994 was reopened in 2016, eighteen witnesses re-examined, and convictions followed in 2018.

The cases were available and had not been built. And the device fixes nothing about the first week, which is where the failure happens.

CHAPTER NINE

What Would Have Prevented It

Six rules. Each could have been enacted at any point in forty-one years, by any government. Not one of them has been.

9.1 — Four arguments for the defence

These are the strongest arguments available. The fourth is genuinely strong and this part concedes it.

One. India did not legislate an amnesty. That is the ordinary response of a state whose own supporters have committed a massacre, and it is what a large number of countries have done in comparable circumstances. India did not. Cases remained open, commissions kept being appointed, and forty-one years later a former Member of Parliament of the governing party of the time is serving a life sentence. That is not nothing and it is more than many states manage.

Two. The convictions are real. Obtained in court, after trial, with appeals available and exhausted. They are not gestures.

Three. Compensation was paid, and by both major parties. The 2006 package and the 2014 enhancement came from governments of opposite parties, and the total is substantial. Chapter Four's objection is to the mechanism and the timing, not to the fact.

Four, and this is the strong one. Mass-casualty prosecution is the hardest thing a criminal system attempts, and nobody does it well. Thousands of accused, thousands of witnesses, no forensic evidence, offences committed in crowds, and a requirement to prove individual acts beyond reasonable doubt. Every country that has tried has taken decades and convicted a fraction. Chapter Six's table shows the same outcome under three different Indian parties, and the international record is not better.

9.2 — Six rules

Part One requires an alternative that was available. Here are six, all procedural, all enactable by ordinary legislation, none requiring anybody to admit anything.

A duty to register, with a sanction. Refusal to record a first information report is the origin of everything in this part. Making refusal an offence with a named officer responsible would have made 587 reports for 2,733 deaths difficult to produce.

Mandatory transfer of investigation where the police are implicated. Not discretionary, not on application, not requiring a Supreme Court to intervene. Automatic, on a finding by any court or commission that a force's conduct is in question.

Judicial review of untraced closure. A case cannot be closed for want of information the investigating force declined to gather, unless a magistrate agrees on the material.

Presumptive transfer of trial out of the affected jurisdiction in mass-casualty communal cases, which is what worked at Hashimpura and in Gujarat and was not available in Delhi for thirty years.

A statutory offence of organised mass violence against a group, with command responsibility for officials who could have prevented it and did not. Chapter Five: this does not exist, and the Bill that would create it has been drafted repeatedly since 2005.

A duty to act on a commission's findings or to explain publicly why not, within a stated period. At present a government may commission an inquiry, receive it, and do nothing, without ever being required to say so.

Each of those is a paragraph of a statute. Not one requires a constitutional amendment. Not one has been enacted.

HOW WE ACTUALLY KNOW THIS

The six rules in section 9.2 are unusual for this series because none of them is a counterfactual about what would have happened. Each is a claim that a **rule does not exist**, which is checkable by looking.

There is no statutory sanction on an officer who refuses to register a report. There is no automatic transfer of investigation where a force is implicated. Closure as untraced is not subject to mandatory judicial review. Transfer of trial requires an application to a superior court. There is no offence of organised mass violence against a group. And the Commissions of Inquiry Act imposes no duty on a government to act on a report or to explain why it has not.

Each of those is an absence in a statute, and absences in statutes are among the few things that can be established conclusively.

What this cannot show: that enacting them would have worked. That is the argument in the box below, and the honest position is that the evidence for it is Chapter Eight's single case — where changing who investigated produced convictions in three years — and that one case is suggestive rather than conclusive.

9.3 — What I would have to retract

Three things would break this part.

If the Delhi Police case disposal records showed that **the untraced closures were made on genuine material** — that the investigations were attempted and produced nothing — Chapter Two's argument weakens substantially and Chapter Three's mechanism fails.

If the 2018 team's work on the 186 reopened files produces **almost no further convictions**, then the 2016 result was exceptional rather than indicative, and Chapter Eight's central claim is much weaker than stated.

If a systematic comparison showed that **countries with a statutory offence of organised communal violence do no better** on conviction rates and timescales, the fifth rule in section 9.2 loses most of its force.

The first depends on records the Indian state holds. The second will be answered by events. The third is ordinary academic work that anybody could do.

IN REAL TERMS

Price the six rules in section 9.2.

Each is a paragraph of ordinary legislation. None requires a constitutional amendment, a two-thirds majority, or the consent of any state government except where policing powers are touched — and two of the six touch nothing but central law.

The Communal Violence Bill has been drafted, redrafted and circulated since 2005. Parliamentary time has been found in those twenty years for several hundred other Acts.

What the six would have cost is not money and not constitutional difficulty. It is that each of them makes somebody explain a decision they can currently take in silence.

Whether writing them down would have made any difference is the objection this chapter has to meet.

THE ARGUMENT — WOULD ANY OF THE SIX RULES HAVE WORKED?

Proposing rules is easy and the objection to it is serious.

RULES DO NOT BIND A STATE THAT DOES NOT WANT TO BE BOUND

A duty to register a report is already implicit in police law and is routinely disregarded. Mandatory transfer requires somebody to make the finding that triggers it. A statutory offence requires a prosecutor to charge it. Every one of these six depends on officials choosing to apply it, and the officials in question are the ones who did not act in November 1984. Writing more rules for people who ignored the existing ones is the standard reflex of a legalistic mind and it changes nothing.

RULES CHANGE WHO HAS TO EXPLAIN THEMSELVES

None of the six guarantees an outcome and that is not the test. What a rule does is shift the default and create a record. A magistrate reviewing an untraced closure produces a document with a name on it. Presumptive transfer means somebody must argue for keeping a case where it is. A duty to respond to a commission means silence becomes a decision that has to be signed. The evidence that this works is in Chapter Eight: the single device that produced convictions did so by changing who was permitted to investigate, not by improving anybody's character.

Where things stand: the second side is stronger and the first side's warning is correct as a limit. Rules do not produce virtue and this part does not claim they do. What Chapter Eight demonstrates is narrower and sufficient: the same officials, the same country, the same criminal law and the same witnesses produced convictions in three years once the question of *who investigates* was changed. That is a rule doing work.

What would settle it: enacting one of them and observing the next episode. India has had five in forty-one years and has enacted none.

Why people care so much: because the first argument is the one every government makes when a Communal Violence Bill is introduced, and it has succeeded every time since 2005.

That is the case against this part, and the fourth defence I think simply wins on its own terms — mass-casualty prosecution defeats every country that attempts it. What it does not reach is section 9.2, because none of those six rules is about prosecuting a massacre. They are about not destroying the evidence of one in the first fortnight.

REMEMBER THIS

Four defences: **India did not amnesty; the convictions are real; both parties paid compensation; and mass-casualty prosecution is the hardest thing any criminal system attempts.** The fourth is conceded.

Six rules, all ordinary legislation: **a duty to register with a sanction; mandatory transfer where police are implicated; judicial review of untraced closure; presumptive transfer of trial; a statutory offence of organised mass violence with command responsibility; and a duty to act on a commission's findings or say why not.**

Not one has been enacted, by any government, in forty-one years.

CHAPTER TEN

An Honest List of What We Do Not Know

This part's gaps are unusual: almost everything unknown here is a record that exists, is held by the Indian state, and has been asked for.

10.1 — Genuinely unknown

Five things in this part cannot be established, and four of them are documents somebody could produce tomorrow.

Who authorised each untraced closure, and on what material. About 240 cases were closed by the Delhi Police. Chapters Two and Three turn on whether those closures reflected genuine investigative failure or the absence of investigation.

Why it is unknown: the case disposal records have been sought repeatedly, including before commissions. They have not been produced in a form that answers the question.

The Delhi Police deployment and control room records for 31 October to 3 November 1984. Part Ten's Chapter Six identified their non-production as the specific gap in the question of whether the police inaction was directed.

Why it is unknown: the same. This is the single document set that would most change both parts.

How many of the 186 reopened files will produce convictions. Chapter Eight's claim that the cases were available rests on a small number of results so far.

Why it is unknown: the work is not finished. This one will be answered by events rather than by disclosure, which makes it the only falsifiable claim in the part with a date attached.

How many officers faced any consequence. Committees recommended action against named officers. What departmental proceedings followed, against whom, and with what outcome, is not systematically published.

Why it is unknown: departmental proceedings are internal. This is an **unmade count** of the kind this series has now met five times, and the material sits in service records.

How much of the ₹200 crore was never paid, and to whom it was owed. Of the 2006 package, about ₹517 crore of ₹717 crore was disbursed. The balance was not, on account of disputes over claimants.

Why it is unknown: the claimant disputes were resolved case by case over years and no consolidated account has been published.

10.2 — Solid

The count. 2,733 in Delhi and about 3,325 nationally, established by a committee appointed for the purpose, accepted by every subsequent body and used in every government scheme.

The disposal figures. 587 reports, about 240 untraced, about 250 acquittals, 25 convictions of which 12 for murder, about 440 individuals.

The inquiry sequence. Four commissions, nine committees and two investigation teams, each with a date and terms of reference.

The findings about the police. From commissions appointed by the Government of India, including by governments of the party whose local functionaries were being named, and from the Delhi High Court in 2018.

Every compensation figure and date. The ₹20,000 of 1984–85, the 1996 judgment raising it to ₹3.5 lakh, the 2005 judgments on the injured, the ₹717 crore package of January 2006, the additional ₹5 lakh of October 2014, and the 2024 order awarding interest for a decade's delay.

The comparison set. Hashimpura 1987, Bhagalpur 1989, Bombay 1992–93 and Gujarat 2002, with their governments, their inquiries and their outcomes.

That no offence of organised communal violence exists in Indian law, and that a Bill to create one has been drafted since 2005 and never enacted.

10.3 — What kind of gap this is

Something about the shape of section 10.1 is worth naming.

Part Five ended by naming a calculation nobody has done. Part Six ended by naming a report classified for sixty-three years. Part Seven ended by naming two counts anybody could make. Part Eight and Part Nine ended by naming closed cabinet files. Part Ten ended by naming an investigation that was never held.

This part ends by naming **police station records from 1984**.

Not cabinet papers, not intelligence assessments, not anything touching national security or the deliberations of ministers. Case diaries, closure reports and duty rosters, of the kind every Indian police station produces every week and retains as a matter of course.

They have been sought by commissions the government itself appointed, by courts, and by litigants, across four decades.

I do not think there is a single explanation and I am not going to invent one. Part Six's Chapter Eight argued that withholding requires nobody to decide anything while releasing requires somebody to sign, and that inertia explains more than conspiracy. That argument applies here and it is less comfortable than it looks, because it means the records are unavailable for no reason at all — which is a worse thing to say about a state than that it is hiding them.

REMEMBER THIS

Genuinely unknown: **who authorised each untraced closure, the police deployment records for 31 October to 3 November, how many of the 186 reopened files will convict, how many officers faced consequences, and where the undisbursed ₹200 crore went.**

Solid: **the count, the disposal figures, the inquiry sequence, the findings about the police, every compensation figure and date, the comparison set, and the absence of any offence of organised communal violence.**

Six parts have now ended by naming a document the state holds. **This one ends by naming police station case diaries from 1984** — not cabinet papers, not security files. Duty rosters.

REFERENCE

Timeline of the Aftermath, 1984–2025

Dates only. The arguments are in the chapters.

DATE	WHAT HAPPENED
31 Oct – 7 Nov 1984	2,733 killed in Delhi, about 3,325 nationally. 587 first information reports are eventually registered.
1984–85	₹20,000 paid per death; ₹500–2,000 for injury; ₹5,000 for a house destroyed. The Marwah Commission is appointed to examine police conduct and is wound up before completing its work.
1985–86	The Misra Commission. It recommends the further committees that follow.
1987	The Ahuja Committee establishes the death toll. The Jain–Banerjee Committee recommends registration of cases; those named challenge its competence in court and its work is stalled.
1987–1990	The Kapoor–Mittal Committee on police conduct. Its two members cannot agree on method.
1990–1993	The Poti–Rosha and Jain–Aggarwal Committees succeed Jain–Banerjee on the same question.
1993–94	The Narula Committee recommends registration against named politicians. Many cases from the period are closed by police as untraced.
1996	The Delhi High Court, in a case brought by a widow, raises compensation from ₹20,000 to ₹3.5 lakh and directs payment of the balance within four months. Most families do not receive it.
2000–2005	The Nanavati Commission. It reports in February 2005, naming individuals and finding a colossal failure in the maintenance of law and order.
2005	The Delhi High Court orders enhanced compensation for roughly 2,800 injured people. The Delhi government decides not to appeal.
16 Jan 2006	A ₹717 crore rehabilitation package is announced, paying the ₹3.5 lakh the court had ordered a decade earlier. About ₹517 crore is eventually spent.
2008	In the Gujarat litigation, the Supreme Court constitutes a monitored special investigation team — the device Chapter Eight describes.

DATE	WHAT HAPPENED
Oct–Dec 2014	An additional ₹5 lakh per death is announced for the families of all 3,325 killed, and distributed from December. A committee under a retired Supreme Court judge is set up to oversee it.
2015	A special investigation team is constituted to re-examine 1984 cases — thirty-one years afterwards.
2016	The team scrutinises 293 cases previously marked untraced or cancelled and reopens one from Mahipalpur, registered in 1993 and closed in 1994.
Jan 2018	A further team is constituted under Supreme Court supervision to re-investigate 186 closed cases.
Nov 2018	Two men are convicted of the Mahipalpur murders, on the evidence of eighteen re-examined witnesses.
Dec 2018	The Delhi High Court reverses an acquittal and sentences a former Member of Parliament to life imprisonment, finding political patronage and an indifferent law enforcement agency.
2024	The Delhi High Court orders the Union government to pay ten per cent interest for a decade's delay in a compensation payment, describing the administration as insensitive and callous.
2025	A second life sentence is handed down in a separate case. Twenty-five cases in total have produced convictions; twelve are murder cases.

Part Twelve starts here. It returns to the chronology and takes the government of Rajiv Gandhi, 1984 to 1989 — the largest parliamentary majority in Indian history, and what was done with it.

REFERENCE

Glossary

Every hard word used in this part, in plain English.

WORD	WHAT IT MEANS
Command responsibility	The liability of a person in authority for acts they could have prevented and did not. It exists in international criminal law. There is no Indian equivalent offence, which is why convicting an officer for inaction is nearly impossible.
Commission of inquiry	A body appointed under the Commissions of Inquiry Act. It can summon witnesses and take evidence on oath. It cannot prosecute, its findings bind nobody, and a government need not publish or act on them.
Ex gratia	“Out of grace”. A payment made without admitting any legal liability. Everything paid for November 1984 has been on this basis.
First information report	The document a police station records when a cognisable offence is reported. It begins the criminal process and everything a court can later do is limited by what it contains.
Locus standi	The right to bring a case at all. Those named by inquiry committees had it and used it. The families had no case to protect, because none existed.
Reparation	Payment for a wrong the payer is responsible for. Distinguished from compensation, which is payment for a loss regardless of cause.
Special investigation team	An investigation removed from the force with ordinary jurisdiction. Effective only where it also has continuing judicial supervision and power over closed files.
Transfer of trial	Moving a case out of the jurisdiction where the offence occurred, usually because a fair trial is not possible there. It produced convictions at Hashimpura and in Gujarat and was not used for Delhi.
Untraced	A police classification closing an investigation because the offenders cannot be identified. About 240 of the 587 reports from November 1984 were closed this way; some were later reopened and produced convictions.

ABOUT

About the Author

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I write long-form research on Indian history, society, belief and public life, and publish it at misterlove.in under the name The Living Archive. Before this series I completed a fourteen-part history of Punjab and a sixteen-part study of the rules societies place on women.

Part Ten declared my bias on its cover and this part inherits it. What I have tried to do here is different from Part Ten's job: this part deliberately refuses to trade in names, because repeating allegations that no body has found on is the thing that has allowed this subject to be dismissed for four decades, and because Chapter One argues that the absence of a list is the wrong rather than its contents.

Chapter Six is the part I expect to be least popular with people who share my background, and it is the one I am most confident about. Five episodes under three parties produced substantially the same outcome. That is not an exoneration of the government that presided over 1984 — this is a book about that government and Part Ten says what it says. It is the observation that the machinery which processed the aftermath was not built by any one party and has not been dismantled by any of them, and that the argument between them has been the reason.

Chapter Seven's hidden assumption is uncomfortable for the kind of work I do, and I have left it that way. Establishing a record is what a writer can contribute, and four cases now suggest that establishing a record has functioned as a substitute for accountability rather than a step towards it.

 THE RULES OF THIS PROJECT

The Living Archive

Everything published under this name follows three rules.

Plain language, undiminished content. The words are as simple as I can make them. The argument is not simplified with them.

Show the evidence, and show what it cannot prove. Every serious claim names what it rests on, and every source is described honestly, including what it is blind to.

Give every side its strongest case. Where people who know the material disagree, both positions appear at full strength, and I say when the evidence does not settle it.

PLEASE READ THIS

A Word on Sources

This part rests almost entirely on the Indian state's own paperwork: commission and committee reports, court judgments, government orders on relief with their dates and amounts, parliamentary answers on disbursement, and conviction records. Where a figure appears here it is a figure the government has published or a court has stated.

That is a deliberate restriction and it has a cost. It means this part is silent on a great deal that survivors know and have said, and on the testimony collected by organisations over four decades. That material is not less true. It is simply not what this part is built on, because the standard rebuttal to any account of 1984 is that it comes from an aggrieved community, and I wanted a version to which that answer is unavailable.

Corrections. If something here is wrong, write to me. Later editions will say what was changed and who caught it.

Lovepreet Singh

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NEXT

What Comes Next

Part Twelve — Rajiv Gandhi, 1984 to 1989

Part Twelve returns to the chronology. A government elected weeks after November 1984 with the largest majority any Indian party has ever held. It asks:

- Four hundred and fourteen seats is more than Nehru ever had. What was that majority actually used for, measured against what was promised with it?
- The Shah Bano judgment was reversed by legislation in 1986, and the Ayodhya shrine was unlocked in the same period. What is the documentary record connecting those two decisions, and what is inference?
- The anti-defection law was passed in 1985. What problem did it solve and what did it do to the independence of every Member of Parliament since?
- Bofors is the best-known corruption allegation in Indian history. What has actually been established by a court, and what has not?
- Indian troops were sent to Sri Lanka in 1987. Who decided, on what assessment, and what was the professional military advice?
- Part Eight found the party made into an instrument of one office. Did anything change when the office changed hands, and what does the answer say about the finding?

Questions, not topics. If any of them is answered badly, you will be able to tell.

THE LIVING ARCHIVE

PART TWELVE OF NINETEEN

The Congress Record

Part Twelve — Rajiv Gandhi, 1984–1989

The largest parliamentary majority in Indian history. A law that ended defection and ended something else. Two decisions in one month of 1986. An allegation that brought down a government and has never produced a conviction. And a genuinely substantial list of things that were built.

Chapter Seven is the longest credit chapter in this series. Chapter Four rests on a claim that a named witness inside the Prime Minister's Office denies, and it is built so that the charge does not depend on it.

WRITTEN AND RESEARCHED BY

Lovepreet Singh

INDIA · DECEMBER 1984 TO DECEMBER 1989

MISTERLOVE.IN

BEFORE WE BEGIN

Where We Left Off

Part Eight asked what happens when a party becomes an instrument of one office. This part is the test of that finding, because the office changed hands.

Four things carry into this part.

Part Eight's central finding. The 1969 split transferred control of candidate selection, and after 1971 every Congress member of parliament owed his seat to one office. Part Eight said the check that could remove a leader had gone from unusable to unimaginable. Chapter Eight of this part asks whether that survived the person, and the answer decides whether Part Eight was a biography or a structural finding.

The election of December 1984. Part Eleven established what had happened in Delhi weeks earlier and what followed for forty-one years. This part begins with the election held in its immediate aftermath, and it does not re-argue Part Eleven's material.

A warning is received only where somebody has the authority to act, an incentive to believe, and a decision it changes. Part Six's test, applied to a road in 1958. Chapter Three applies it to a letter written by a retired Supreme Court judge in February 1986, and Chapter Six to the professional advice before a deployment in 1987.

The military content is the part that gets overruled. Part Six found it in the Forward Policy of 1961 and Part Ten found it at Amritsar in 1984. Chapter Six is the third instance in five years, and by then it is not a coincidence.

One note on the shape of this part. It contains the longest chapter of credit items in the series, and that is not balance for its own sake. The five years covered here produced a set of things that worked and are still working, and a book that recorded only what went wrong would be describing a different government from the one that existed.

HOW TO READ THIS BOOK

The Six Boxes

Six coloured boxes run through the series, each doing one job. Here they are with examples from the material ahead.

A **Word Box** explains a hard word the moment it first appears.

WORD BOX

Defection: a member of a legislature leaving the party on whose ticket they were elected, usually to join another, and usually in exchange for something.

It was endemic in Indian state politics from the 1960s. Governments fell and were formed in weeks, and a phrase entered the language — *Aaya Ram, Gaya Ram*, “Ram came, Ram went” — from a legislator who changed party three times in a fortnight.

Why it matters here: the law passed to stop it is one of the two most consequential things this government did to the Indian constitution, and Chapter Two argues that what it stopped and what it created are different things.

An **In Real Terms** box turns a number too big to picture into something with a body.

IN REAL TERMS

Four hundred and fourteen seats out of 514 contested is about four in every five.

It is more than Nehru ever won. More than Indira Gandhi won in 1971 after a war. It remains the largest majority any party has held in the Indian Parliament, and no party has come within sixty seats of it since.

With it, a government can amend the constitution at will, pass any law it chooses, and lose every opposition vote in both houses without noticing.

The question this part asks is what it was used for, and the answer is that a great deal of it was used to reverse a Supreme Court judgment about one woman’s maintenance.

A **How We Actually Know This** box shows the physical evidence and then says what it cannot prove.

HOW WE ACTUALLY KNOW THIS

This part divides sharply between what is documentary and what is testimonial, and the division falls in one place.

Documentary and solid: the election result, the Tenth Schedule, the Shah Bano judgment and the Act that answered it, the date and text of the order unlocking the gates at Ayodhya, the shilanyas of November 1989, the Indo-Sri Lanka accord, every court decision in the Bofors matter, and the whole of Chapter Seven's list of what was built.

Testimonial and contested: who decided the unlocking, and why. There are several accounts, they disagree, and one of them comes from an official who worked in the Prime Minister's Office and states that the Prime Minister did not know.

Chapter Four is built so that its charge does not rest on resolving that. What it rests on is 1989, which is not in dispute by anybody.

An **Argument** box appears where serious people disagree, each side at its strongest.

THE ARGUMENT — WAS THIS A WASTED MAJORITY?

The framing question. Both answers are held by people who lived through it.

SUBSTANTIALLY WASTED

Four hundred and fourteen seats is the capacity to do anything, and it was spent on two decisions in one month of 1986 whose consequences ran for the next thirty-eight years, on a deployment that killed over a thousand Indian soldiers and produced nothing, and on a defence procurement scandal that destroyed the government's own authority. The reforms that mattered — telecommunications, computers, education — did not need 414 seats. They needed forty.

USED ON THINGS THAT LASTED

Count what still exists. A telecommunications system that reached villages. A computer policy that produced an industry employing millions. The voting age lowered to eighteen. Three peace accords in two years, of which one ended a twenty-year insurgency that has not restarted. An environment statute after Bhopal. Panchayati Raj proposed and, though defeated, enacted three years later on his draft. That is a larger list of surviving institutions than most five-year governments anywhere produce.

Where things stand: both are right and the honest summary is that this government was much better at building than at deciding. Chapter Seven's list is real and this part gives it a full chapter. What Chapters Three to Six describe is a series of decisions taken quickly, on advice from a narrow circle, and reversed or abandoned when they went wrong — and Chapter Eight argues that this is a fact about how the decisions were reached rather than about who reached them.

What would settle it: the cabinet records of 1986 and 1987, closed.

Why people care so much: because this is the government that the argument about dynastic politics in India is mostly conducted about, and both sides need it to have been either a promise betrayed or a promise that was never there.

A **Hidden Assumption** box digs out a belief sitting underneath an argument that *both sides accept without discussing*.

THE HIDDEN ASSUMPTION

Everybody who writes about these five years assumes **that a large majority is power.**

It is in every account. He had the numbers and squandered them. He had a mandate and lacked the will. Both sides treat 414 seats as a quantity of capacity that was then spent well or badly.

A majority is the capacity to **legislate**. It is not the capacity to **decide**, and the two are different things that this part keeps separating.

Deciding well requires something a majority does not supply: a process by which a proposal is tested before it is adopted. Somebody who can say the thing will not work, whose objection has to be answered, and who survives making it. Part Three found that the Congress party stopped having such people by 1954. Part Eight found that after 1969 no Congress member of parliament had a career independent of one office.

So what 414 seats bought was an unlimited ability to enact decisions taken by a very small number of people, quickly, without the proposal being tested by anybody with standing to object. Every chapter from Three to Six describes exactly that: a decision made in weeks, on advice from a handful of advisers, with the professional or judicial objection arriving afterwards and from outside.

Which is why the majority produced so little. It is also why Chapter Seven's list is what it is — the things that worked were the ones that did not require a contested judgment, only money, authority and somebody competent left alone to build them.

The general point: **a legislature that cannot refuse anything is not a source of power to a government. It is the removal of the last body that could have told it no.**

And every chapter closes with a **Remember This** box: the chapter in the plainest words available.

REMEMBER THIS

414 of 514 seats — the largest majority any party has held in the Indian Parliament, and none has come within sixty of it since.

The evidence divides cleanly: **everything is documentary except who decided the unlocking at Ayodhya and why**, where accounts conflict and one comes from inside the Prime Minister's Office.

A majority is the capacity to legislate, not the capacity to decide. A legislature that cannot refuse anything is the removal of the last body that could have said no.

Part Twelve

Contents

1. Four Hundred and Fourteen

December 1984 · the largest mandate in Indian history and what it was given for · Mr Clean · what was promised with it

2. The Anti-Defection Law

The Tenth Schedule, 1985 · the problem it solved · the thing it created · what a member of parliament has been unable to do since

3. Shah Bano

23 April 1985 · the agitation · the announcement of 15 January 1986 · a retired judge's letter of 28 February · what the Act actually did and what the courts did with it

4. The Locks

1 February 1986 · forty minutes and a television camera · who decided, and the account that says nobody in Delhi did · 1989, which is not disputed

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9. What Would Have Prevented It

The defence at full strength · four moments · what I would have to retract

10. An Honest List of What We Do Not Know

Genuinely unknown, and why · solid, and why it is solid · the one thing this part refuses to assert

CHAPTER ONE

Four Hundred and Fourteen

The largest mandate in Indian history was delivered six weeks after the events of Part Eleven, to a man who had been a commercial pilot four years earlier.

1.1 — How he arrived

Rajiv Gandhi was not a politician by intention. He flew for Indian Airlines and had stayed out of public life while his younger brother Sanjay — whose position Part Nine's Chapter Seven described — occupied the space beside their mother.

Sanjay died in an air crash in June 1980. Rajiv entered Parliament in 1981.

On 31 October 1984 his mother was assassinated. He was sworn in as Prime Minister that evening. Part Eleven covers what happened in Delhi over the following week and this part does not repeat it.

The general election was held in December 1984.

1.2 — The result

Congress won **414 seats**, on a vote share of around 49 per cent — the highest either figure has ever reached for any Indian party.

Two things produced it, and both should be said.

Sympathy. The election followed an assassination by six weeks, and the campaign was conducted in its shadow. That is a real and sufficient explanation for a very large part of the result and nobody disputes it.

Expectation. He was forty, had no history in the machine, and was widely understood to represent something different from the decade Part Nine describes. The press called him Mr Clean, which was not a slogan his party invented and which he did not discourage.

What the majority meant in constitutional terms is straightforward. With 414 of 514 seats he could amend the constitution at will, pass any statute, and lose every opposition division in both houses without it registering.

1.3 — What was promised

Part One's test is a government's own stated targets, and the stated programme here was reasonably specific.

Modernisation, and specifically technology — telecommunications, computers, and the phrase that attached to the government from the beginning, taking India into the twenty-first century.

Cleaning up public life, including the party. He said so at the party's centenary session in Bombay in December 1985, in unusually direct language about power brokers within Congress.

Settling the outstanding conflicts. Accords were signed with Punjab in July 1985, with Assam in August 1985 and with Mizoram in June 1986, and Chapter Seven takes them properly.

Devolution to local government, which became a constitutional amendment bill in 1989.

That is a serious programme and it is the standard this part scores against.

WORD BOX

Mandate: the authority a government claims from an election result to do particular things.

The word does more work in politics than it can support. An election produces a number of seats. What it does not produce is a list — voters choose a party for reasons that are not itemised and cannot be read back out of a total.

A very large majority is therefore not a very large mandate. It is a very large permission, and the difference matters when the government uses it for something nobody voted about.

Why it matters here: Chapter Three describes 414 seats being used to reverse a Supreme Court judgment that had not been mentioned in the campaign, because the campaign preceded it by four months.

What that number means is easier to see beside the majorities other Indian governments have worked with.

IN REAL TERMS

Set 414 against what other Indian governments have had to work with.

Nehru's largest was 371. Indira Gandhi's post-war landslide of 1971 was 352. The reforming government of 1991, which dismantled the system Part Four describes, had 244 and no majority at all.

Which is the awkward comparison. The government with the fewest seats in that list changed the direction of the Indian economy. The government with the most spent a substantial part of its authority reversing a maintenance order.

Seats are not the constraint, and they never have been.

Against that arithmetic, here is the programme this part scores.

WHAT WAS PROMISED	WHAT ARRIVED
Technology and modernisation	Delivered. Telecommunications, computers and software. Chapter Seven.
Cleaning up public life	Not delivered. The government left office under the largest corruption allegation in Indian history, unresolved to this day. Chapter Five.
Settling the outstanding conflicts	Mixed. Three accords in two years. Mizoram worked completely; Assam partly; Punjab's central term was never implemented. And a new conflict was entered in Sri Lanka.
Devolution to local government	Attempted and defeated , then enacted in 1992 on the same design. Chapter Seven.
Not promised, and done	The Tenth Schedule, the Shah Bano reversal, and the decisions of Chapter Four. None was in the 1984 campaign.

The last row is the one worth sitting with. The four most consequential things this government did to the Indian constitution and to Indian public life were none of them things anybody voted for in December 1984.

REMEMBER THIS

414 of 514 seats on about 49 per cent of the vote — the highest either figure has reached for any Indian party. It came six weeks after an assassination, and sympathy explains a great deal of it.

The stated programme was **technology and modernisation, cleaning up public life, settling the outstanding conflicts, and devolution to local government**. That is what this part scores against.

A large majority is **a large permission, not a large mandate**. An election produces a number of seats and not a list.

CHAPTER TWO

The Anti-Defection Law

It solved a real problem within months of taking office, and it is the most consequential thing this government did to the Indian constitution. Almost nobody discusses what it did.

2.1 — The problem

Through the 1960s and 1970s Indian state politics was disfigured by defection. Legislators elected on one party's ticket crossed to another, governments fell within weeks of being formed, and the price of a legislator was widely understood to be a number.

This was not a marginal problem. Part Five's chapter on the closing of political routes and Part Eight's on the 1969 split both describe a system in which a state government's survival depended on holding individual members, and in which the centre's ability to engineer a change of government — Part Ten's Chapter Seven describes one in 1984 — rested on exactly this.

Something had to be done about it and previous attempts had failed.

2.2 — What was done

The Constitution (Fifty-Second Amendment) Act, 1985 inserted the **Tenth Schedule**.

Its rule is simple. A member of either house of Parliament or of a state legislature is disqualified if he voluntarily gives up membership of his party, **or if he votes or abstains contrary to any direction issued by his party**, unless the party condones it within fifteen days.

Read the second limb again, because that is the whole of this chapter.

The law did not merely stop members changing party. It made it a disqualification for a member to **vote against his party's instruction on anything at all** — not only on confidence motions, not only on the budget, but on any question on which the party issues a direction.

An exception was provided for a split involving a third of a party's members, which produced its own trade and was tightened in 2003 to require a two-thirds merger.

WORD BOX

Whip: both a party official and the written direction that official issues telling members how to vote.

Every parliamentary system has them. In Britain a member who defies a three-line whip may lose the party's support, be denied office, and be deselected at the next election. Those are severe consequences and they are *political*.

India is the outlier. Since 1985 defying a whip carries a *legal* consequence: disqualification from the house. The member does not lose his party's favour. He loses his seat.

Why it matters here: that difference is the entire distance between a legislature with a whip and a legislature that is one.

2.3 — What it created

Consider what a member of parliament has been able to do since 1985.

He may speak against a bill. He may abstain if his party permits it. He may vote as his party directs.

He may not vote according to his own judgment against his party's instruction, on any subject, at any time, without losing his seat.

Which means that on every division in the Indian Parliament for the last forty years, the outcome has been determined by the decisions of party leaderships and not by the decisions of members. The count is a formality; the whips have already settled it.

That is not a legislature in the sense the word ordinarily carries. It is closer to an electoral college that meets continuously — a body whose function is to register the arithmetic of a general election rather than to deliberate.

And note where the power went. Not to Parliament as against the executive, and not to the executive as against Parliament. It went to **whoever controls the party whip**, which in a party organised as Part Eight describes means one office.

IN REAL TERMS

Imagine you are elected to represent a constituency. A bill comes before the house that will do serious damage there — a plant sited badly, a subsidy withdrawn, a district split.

Your constituents are against it. You are against it. You said so during the campaign.

Your party issues a direction to vote for it.

If you vote as your constituents wish, you cease to be a member of parliament. Not at the next election — immediately, on disqualification.

There is no version of that arrangement in which you represent the constituency. You represent the whip, and the constituency's only remaining instrument is to elect somebody from a different party at the next election, who will be in exactly the same position.

None of which requires interpretation, because the operative words are in the constitution.

HOW WE ACTUALLY KNOW THIS

The Tenth Schedule is constitutional text and anybody can read it. The two limbs of the disqualification, the fifteen-day condonation window and the exception for splits are all set out in it.

That makes this chapter's central claim unusually secure: it is not an inference about how the law has worked in practice but a statement of what it says.

What the text cannot show: how often the second limb has actually been invoked. Disqualification proceedings are decided by the presiding officer of the house, and there is no consolidated public record of directions issued, defiances, or condonations.

That absence matters and cuts both ways. It means nobody can quantify how many members have been disqualified for dissent — and it also means nobody can quantify the far larger number who never dissented because they knew what would follow. The second figure is the effect of the law and it is unmeasurable by design.

Whether that trade was worth making is argued about by two groups who almost never overlap.

THE ARGUMENT — WAS THE ANTI-DEFECTION LAW A GOOD IDEA?

It is defended by almost every Indian party and criticised by almost every constitutional scholar, which is an unusual combination.

NECESSARY, AND IT WORKED

The problem was real, corrosive and getting worse, and no lesser measure had touched it. Since 1985 Indian governments have been able to govern for their terms instead of buying legislators monthly, and the trade in members that disfigured state politics for two decades largely stopped. Party discipline is not an aberration — every parliamentary democracy has whips, and in Britain defying one is career-ending too. India merely made explicit what other systems achieve by other means.

IT CURED THE DISEASE BY REMOVING THE ORGAN

Britain's whips end careers; they do not end memberships, and a British MP who defies one remains an MP. That difference is not technical. Every other system leaves a member the ultimate ability to vote his conscience at a cost he chooses to bear, and it is that residual ability which makes a legislature a check on an executive at all. India removed it. And it did so far beyond what the problem required: stopping defection needs a rule about changing parties, not a rule about voting on ordinary legislation.

Where things stand: the second side is stronger and the distinction it draws is decisive. Nobody disputes that defection needed a remedy. The objection is that the remedy covered *every vote on every subject* when it needed to cover only the questions on which a government's survival turns — confidence, supply and possibly constitutional amendment. That narrower law was available, has been proposed repeatedly since, and would have solved the problem the Schedule was written for.

What would settle it: comparing India's record on executive accountability with parliamentary systems that discipline without disqualifying. The comparison is not favourable and has not been made systematically.

Why people care so much: because every party in India benefits from it while in office, which is why forty years of criticism from outside politics has produced no amendment.

Both sides of that argument are describing a law about legislators who change parties. It is worth checking whether that is what it is.

THE HIDDEN ASSUMPTION

Everybody arguing about the Tenth Schedule assumes **that defection is the problem it addressed.**

Its defenders say it stopped defection. Its critics say it stopped defection at too high a price. Both are describing a law aimed at legislators who change parties, and disagreeing about the collateral damage.

Look at what the two limbs actually cover. The first — voluntarily giving up party membership — is about defection. The second — voting or abstaining against a party direction — is not about defection at all. A member who votes against his party on a single bill and remains in it has defected from nothing.

The second limb is a rule about **dissent**, and it was included in a law about defection, and it is the limb that operates on every sitting day.

This matters because it changes what the law is for. A rule against defection protects a government from a market in legislators. A rule against dissent protects a *party leadership* from its own members — which is a different beneficiary, and one that has nothing to do with the instability of the 1960s.

And it explains the puzzle in the argument box: why every Indian party defends a law that constitutional scholars almost uniformly criticise. They are not defending the first limb. Nobody attacks the first limb. They are defending the second, which converts a member of parliament from a person with a vote into a person with a seat, and hands the vote to whoever signs the whip.

Part Eight found that after 1969 no Congress member had a career independent of one office. The Tenth Schedule generalised that to every party in India, permanently, by statute, in 1985 — and it is the single most durable thing this government did.

One thing to carry forward. Every part of this series so far has described a check being removed by somebody with a reason. This is the only occasion on which a check was removed from *every party in India at once*, by statute, permanently — and it was done by a government that had criticised its own party's brokers of power three months earlier.

REMEMBER THIS

The **Tenth Schedule** disqualifies a member who leaves his party **or who votes against a party direction on anything at all**. The second limb is the one that operates every sitting day.

Since 1985, a member of the Indian Parliament **cannot vote according to his own judgment against his party** without losing his seat. Every division is settled by whips before it is taken.

A rule against defection protects a government. **A rule against dissent protects a party leadership from its own members** — and that is the limb every party defends.

CHAPTER THREE

Shah Bano

A sixty-two-year-old woman won a maintenance order of a few hundred rupees a month. Four hundred and fourteen seats were used to take it away, and thirty-eight years later the Supreme Court gave it back.

3.1 — The case

Shah Bano Begum was divorced by her husband after more than forty years of marriage. She applied for maintenance under **section 125 of the Code of Criminal Procedure** — a religion-neutral provision under which any wife unable to maintain herself may claim from her husband.

On **23 April 1985** a five-judge bench of the Supreme Court, presided over by the Chief Justice, held that she was entitled to it. Section 125 applies to all citizens, the Court held, and is not displaced by personal law.

The sums were small. The principle was not: a divorced Muslim woman had the same access to a general maintenance provision as any other Indian woman.

3.2 — What happened next

From August 1985 there was substantial agitation against the judgment, led by conservative Muslim organisations who read it as judicial interference with personal law.

On **15 January 1986**, at a conference in Delhi, the Prime Minister announced his intention to legislate to nullify it.

On **25 February 1986** the Muslim Women (Protection of Rights on Divorce) Bill was introduced in the Lok Sabha.

On **28 February 1986** — three days later — **V.R. Krishna Iyer**, a retired judge of the Supreme Court, wrote to the Prime Minister protesting against the Bill and warning of the consequences the country would face as a result.

Krishna Iyer is not a convenient witness for anybody's politics. He had been a minister in a Communist government in Kerala before joining the judiciary, and Part Eight's Chapter Eight records him granting the conditional stay that allowed Indira Gandhi to remain Prime Minister in June 1975. He was the most prominent progressive jurist in India.

The Bill became law in **May 1986**.

WORD BOX

Personal law: the body of rules governing marriage, divorce, inheritance and adoption, which in India differs by religious community.

India has no uniform civil code. Hindus, Muslims, Christians and Parsis are governed by different rules in these matters, and that was a deliberate constitutional choice — Article 44 sets a uniform code as a directive principle, which is an aspiration rather than an obligation.

The important distinction, and the whole of the argument in this chapter, is that **personal law is not the only law that touches a family**. Criminal procedure, property statutes and welfare provisions apply to everybody regardless of community.

Why it matters here: section 125 is criminal procedure, not personal law, and whether it counts as an intrusion into personal law is precisely what the 1985 judgment and the 1986 Act disagreed about.

3.3 — What the Act did

It provided that a divorced Muslim woman is entitled to a reasonable and fair provision and maintenance from her former husband **within the period of iddat** — roughly three months.

Beyond that period, the obligation passed to her relatives, and where they could not maintain her, to the state Waqf Board.

The effect was to remove divorced Muslim women from a general provision of Indian criminal procedure and place them under a separate arrangement, on the ground of their religion.

3.4 — What the courts did with it

Two things, and they are the reason this chapter has an ending.

In **2001**, in a challenge brought by Shah Bano's own lawyer, the Supreme Court read the Act down. It held that the requirement to make provision *within* the iddat period meant the provision must be *made* within it, not that it must be *limited to* it — and that a fair provision extends for the woman's life until she remarries.

In **July 2024**, the Supreme Court held that section 125 applies to all women irrespective of religion, and that the 1986 Act does not displace it. The Court said maintenance is a right and not charity.

Which means the position today is the position of 23 April 1985. The Act stands on the statute book and has been construed into consistency with the judgment it was passed to reverse.

Thirty-nine years.

HOW WE ACTUALLY KNOW THIS

Everything in this chapter is a published document with a date, and that is unusual even for this series.

The judgment of 23 April 1985 is reported. The announcement of 15 January 1986 was made at a public meeting and reported at the time. The Bill's introduction on 25 February 1986 is in the parliamentary record. The Krishna Iyer letter of 28 February 1986 exists and has been quoted at length. The Act is on the statute book. The 2001 and 2024 judgments are reported.

There is no version of this chapter that depends on anybody's recollection or on any inference about motive.

What it cannot show: what the political calculation was. That the government believed it was losing Muslim support is asserted by every account and denied by none, but the deliberations are not on the record — and Chapter Four turns on exactly that gap.

What the Act meant for the woman it was named after is worth stating before anybody argues about principle.

IN REAL TERMS

The maintenance Shah Bano had been awarded was a few hundred rupees a month. She was sixty-two, had been married more than forty years, and had no other income.

What the 1986 Act did was tell a woman in that position that after roughly three months her former husband owed her nothing, that she should apply to her relatives, and that if they could not support her she should apply to a religious endowment board.

Section 125 exists to stop exactly that sequence. Its purpose is not fairness between spouses; it is to prevent destitution and vagrancy, which is why it sits in a criminal code and not in a family statute.

Four hundred and fourteen seats were used to remove one category of Indian woman from a provision against destitution.

Whether that was nonetheless the right thing for a government to do is genuinely argued, and the defence deserves its strength.

THE ARGUMENT — WAS THE 1986 ACT DEFENSIBLE?

It is defended today by fewer people than defended it in 1986, which is itself worth noting. The defence deserves stating at strength.

A MINORITY'S RIGHT TO ITS OWN LAW

India does not have a uniform civil code, by deliberate constitutional choice. Every community is governed by its own personal law in matters of marriage, divorce and succession, and that arrangement is the basis on which minorities accepted the Indian constitutional settlement. A Supreme Court applying a general criminal provision to override Muslim personal law was, on that reading, doing exactly what the settlement excluded — and a government responding to a community's near-unanimous objection was doing what a democracy does.

IT REMOVED A WOMAN FROM A GENERAL LAW BECAUSE OF HER RELIGION

Section 125 is not personal law and never was. It is a provision of criminal procedure whose purpose is to prevent destitution and vagrancy, applying to every Indian regardless of faith. Removing one category of citizen from it, on the basis of the religion of her former husband, is not protecting a minority's personal law — it is creating an exception to a general law that operates against the poorest members of that minority. And the community was not unanimous: the objection was led by clerical organisations, and Muslim women's organisations opposed the Act.

Where things stand: the second side is much stronger and the courts have since agreed with it twice. The decisive point is what section 125 is: a destitution provision, not a family law. But the first side's premise is real and this part does not dismiss it — the absence of a uniform civil code is a constitutional choice, and a government that has to legislate about personal law is operating in territory the constitution deliberately left unsettled.

What would settle it: nothing evidential. The courts have settled the legal question and the political one is still live.

Why people care so much: because this is the origin of the word “appeasement” in modern Indian politics, and the argument about it has been running for thirty-nine years without either side conceding a paragraph.

One last thing about the shape of it, and it is Part Six's test arriving in a domestic setting. A retired Supreme Court judge of impeccable progressive standing wrote to the Prime Minister three days after the Bill was introduced, warning what it would do. He had authority, he had standing, and he had no interest to serve. The Bill passed in May.

REMEMBER THIS

23 April 1985: a five-judge bench held that section 125 of the Code of Criminal Procedure — a religion-neutral destitution provision — applies to a divorced Muslim woman.

15 January 1986 the reversal was announced, **25 February** the Bill introduced, **28 February** Krishna Iyer wrote warning against it, and in **May 1986** it became law. Maintenance was restricted to the iddat period, then passed to relatives, then to the Waqf Board.

The Supreme Court read the Act down in **2001** and in **July 2024** held that section 125 applies to all women irrespective of religion. **The position today is the position of 23 April 1985 — thirty-nine years later.**

CHAPTER FOUR

The Locks

A padlock was broken in forty minutes while a television crew filmed it. Who ordered that is genuinely disputed. What happened in 1989 is not.

4.1 — What happened

The disputed structure at Ayodhya had been locked since 1949, when idols were placed inside it and the premises were attached by a magistrate and closed. For thirty-six years that was the position, and it was the position every government had maintained.

On **25 January 1986** a local lawyer, Umesh Chandra Pandey, applied to the Faizabad court for the gates to be opened.

On **1 February 1986** the District Judge, K.M. Pandey, ordered the locks removed so that Hindu worship could take place. His reasoning was that Muslims would not be affected if the locks were opened and the idols allowed to be seen and worshipped, and that the heavens would not fall.

Three things about the execution.

The locks were broken **within about forty minutes** of the order.

Doordarshan — the state broadcaster — was present and telecast it nationally.

And officials of the central and the Uttar Pradesh governments had testified in the proceedings that they anticipated no law and order problem.

WORD BOX

Attachment and status quo: two ways a court freezes a disputed property while it decides who owns it.

In 1949 a magistrate attached the premises at Ayodhya under the provision allowing a disputed property to be taken into custody where a breach of the peace is likely, and locked it. That is why there were locks.

The point of freezing a property is that nobody gains by the passage of time. Whoever wins the case gets it as it was.

Why it matters here: unlocking a property attached to prevent a breach of the peace, so that one party may worship in it, alters the position on the ground while the title suit remains undecided — and the title suit had by then been pending for thirty-six years and would remain pending for another thirty-three.

4.2 — What followed

On 3 February the High Court directed that the nature of the property not be altered pending further orders.

On **14 February 1986** Muslim organisations observed a day of protest. There was rioting in Delhi, in Meerut, elsewhere in Uttar Pradesh, and in Anantnag in Kashmir.

On **15 February 1986** the Babri Masjid Action Committee was formed.

4.3 — Who decided

This is the part that is genuinely contested, and this part will not pretend otherwise.

The standard account holds that the unlocking was a deliberate counterweight to the Shah Bano reversal — a concession to Hindu opinion to offset a concession to Muslim clerics — arranged through the district court with the assistance of the Uttar Pradesh government, and that the Prime Minister’s advisers, principally Arun Nehru and M.L. Fotedar, drove it.

Against that stands an account from Wajahat Habibullah, an official who worked in the Prime Minister’s Office and later wrote about the period. He records that the Prime Minister was not informed, that he asked the Uttar Pradesh Chief Minister to explain, and that he suspected Arun Nehru and Fotedar were responsible and was having it verified.

Those two accounts are not compatible on the central question, and the second comes from inside the office.

Grade: that the unlocking was arranged rather than spontaneous is **DOCUMENTED** — a padlock does not come off in forty minutes with a national broadcaster standing by unless somebody arranged for both. That the Prime Minister ordered it is **ALLEGED**.

This part therefore does not assert it, and does not need to.

4.4 — 1989, which nobody disputes

Three years later the same government made two decisions that are not contested by anybody.

In **November 1989** it permitted the *shilanyas* — the laying of foundation stones for a temple — on land adjacent to the disputed structure. Assurances had been given that the status quo would be maintained. The ceremony went ahead.

And on **3 November 1989** the Prime Minister launched his party's general election campaign from Faizabad, next to Ayodhya. The venue had been changed from the one originally planned. In his speech he promised to establish **Ram Rajya** — a phrase reportedly not in the drafted text and added there.

A senior Congress leader from Uttar Pradesh, Kamlapati Tripathi, warned that this approach would damage the unity and integrity of the country.

So whatever is true about February 1986, the position in November 1989 requires no inference. A Prime Minister chose to open a national election campaign at Ayodhya, on a religious promise, having permitted a foundation ceremony at the site weeks earlier.

That is the charge in this chapter, and it survives every version of the 1986 dispute.

IN REAL TERMS

Forty minutes is not long enough to obtain a certified copy of an order in an Indian district court.

It is not long enough to convene the officials who hold the keys, arrange a police presence, or decide how a crowd will be managed.

It is certainly not long enough to summon a national television crew from Delhi.

Which is why the timing is the most informative fact in this chapter, and why it establishes something narrower and firmer than any of the competing accounts of who decided. Somebody knew in advance. The question this chapter cannot answer is who, and the question it does not need to answer is whether it was the Prime Minister.

All of which is why the standard account of 1986 needs handling more carefully than it usually gets.

THE ARGUMENT — WERE THE TWO DECISIONS OF 1986 CONNECTED?

Almost every account treats Shah Bano and the unlocking as a matched pair. The evidence for that is thinner than the confidence with which it is asserted.

CONNECTED, AND THE TIMING IS NOT A COINCIDENCE

The reversal was announced on 15 January 1986 and the locks came off on 1 February — seventeen days. Government officials testified that no law and order problem was anticipated, which is what a government says when it wants a thing to happen. Doordarshan was present. Multiple senior Congress figures have described the calculation in exactly these terms, and the political logic is obvious: a government that had just been accused of appeasing one community needed something for the other.

THE CONNECTION IS INFERRED FROM THE TIMING AND ASSERTED AFTERWARDS

There is no document. The order came from a district judge on an application by a private lawyer, and the Allahabad High Court did not disturb it on the merits. The account from inside the Prime Minister's Office states that the Prime Minister did not know and was asking who had done it. And every source describing the quid pro quo was written afterwards, mostly by people with a position in the subsequent politics — which is precisely the class of evidence this series has refused to rely on in six previous parts.

Where things stand: the second side is right about the evidence and the first side is right that something was arranged. The defensible finding is narrower than either: **the unlocking was facilitated by the state, and the state's central government did not reverse it.** Whether it was ordered from Delhi is unproved. And it matters less than it appears, because section 4.4 does not depend on it — the shilanyas and the Faizabad speech of November 1989 are undisputed decisions of the Prime Minister himself.

What would settle it: the Uttar Pradesh government's file on the February 1986 proceedings, and the Prime Minister's Office record. Neither is open.

Why people care so much: because if it was ordered from Delhi, the Congress party opened the door that led to December 1992, and if it was not, then the door was opened by a district judge and the Congress party merely failed to close it — which are different degrees of the same responsibility.

Grading all of that carefully is the point of this chapter, so here is the grading.

HOW WE ACTUALLY KNOW THIS

This chapter has the most uneven evidence in the part and the unevenness is the reason it is written as it is.

SOLID: the application of 25 January, the order of 1 February and its reasoning, the interval before the locks came off, the presence of the state broadcaster, the officials' testimony that no disorder was anticipated, the High Court's direction of 3 February, and the events of 14 and 15 February. All reported at the time or on the court record.

SOLID: the shilanyas of November 1989 and the Faizabad campaign launch of 3 November. Contemporaneous reporting, undisputed.

ALLEGED: that the unlocking was ordered from Delhi, and that it was a counterweight to the Shah Bano reversal. Asserted in many accounts, denied in one from inside the Prime Minister's Office.

What none of it can show: what a district judge was thinking. He gave reasons, they are on the record, and whether they were the operative ones is not knowable from a judgment.

Underneath the whole dispute, though, sits a way of describing 1986 that both sides use without examining.

THE HIDDEN ASSUMPTION

Everybody arguing about 1986 — those who condemn the pairing and those who deny it — assumes **that the two decisions were a balance**.

One side says: a concession to Muslim clerics was offset by a concession to Hindu organisations, and that was cynical. The other side says: they were not connected, so there was no such trade. Both are arguing about whether a balance was struck.

Notice what the framing accepts. It takes for granted that the government's task in these matters is to **allocate satisfaction between religious communities** — that a concession to one creates a debt to the other, and that governing India well means keeping the account level.

That premise is the thing that produced both decisions, and it is not questioned by anybody in the argument.

Test it against what was actually at stake. Shah Bano was a case about whether a destitute divorced woman could claim maintenance under a general provision of criminal procedure. Ayodhya was a dispute about title to a piece of land, pending in a court since 1950. Neither was a question about the relative standing of two communities. Both were converted into one.

And once a question has been converted, the balance framing makes the conversion permanent. A government that answers a legal question with a communal calculation has told every organisation in the country what kind of question to bring next — which is why the years after 1986 produced a great many more of them, from both directions, and almost none of them about maintenance or about title.

Which is why the argument about whether the two were a deliberate pair is less important than it looks. If they were, a government made a calculation. If they were not, a government made the same calculation twice in three weeks without noticing. The premise is the finding, not the coordination.

Which is why this chapter has been written to rest on 1989 rather than on 1986. The later decisions require no inference, no contested memoir and no closed file, and they were taken by the Prime Minister personally.

REMEMBER THIS

1 February 1986: a district judge ordered the locks removed. They came off **within forty minutes**, with **Doordarshan present and broadcasting**, after government officials had testified that no law and order problem was expected.

Whether Delhi ordered it is **disputed**, and an official who worked in the Prime Minister's Office states that the Prime Minister did not know. This part does not assert it.

November 1989 is not disputed. The government permitted the shilanyas and the Prime Minister opened his election campaign at Faizabad promising Ram Rajya. The charge survives every version of the 1986 argument.

CHAPTER FIVE

Bofors

It is the most famous corruption allegation in Indian history. Nobody has ever been convicted of anything in it, under any government, in thirty-eight years.

5.1 — The contract and the broadcast

In March 1986 India contracted with the Swedish arms manufacturer AB Bofors for 410 howitzers, at a price of roughly ₹1,437 crore. The gun itself was and is well regarded; it performed decisively at Kargil in 1999.

The contract contained an express provision against the use of agents or the payment of commissions.

On **16 April 1987** Swedish state radio broadcast a report that Bofors had paid bribes to secure it. Sweden's national audit body subsequently confirmed that commissions had been paid.

Four days earlier, on 12 April 1987, the Defence Minister V.P. Singh had resigned from the government — over a separate inquiry he had initiated into commissions on a submarine purchase. The two events are frequently run together and were separate. He went on to lead the opposition that defeated the government in 1989.

WORD BOX

Agent and commission: in a defence purchase, a middleman who represents the seller in the buyer's country, and the payment he receives for securing the contract.

The practice is universal in the arms trade and it is not inherently criminal. What makes it consequential is that the money necessarily comes out of the price the buyer pays, and that the middleman's usefulness consists of access to the people making the decision.

Which is why serious defence contracts prohibit it, as this one did. A bar on agents is a country's way of saying that its procurement decision will be made on the equipment and not on the relationships.

Why it matters here: the established fact in this chapter is not that money changed hands somewhere in a murky trade. It is that money changed hands in breach of a term the Indian government had itself insisted on.

5.2 — What is established

Being precise here matters more than in almost any other chapter of this series, because the loose version has done forty years of work.

Money was paid. Documents obtained from Swiss authorities by the Central Bureau of Investigation in January 1997, after a long legal effort, established that AB Bofors made payments to intermediaries — including the Indian agent Win Chadha, the Hinduja brothers, and the Italian businessman Ottavio Quattrocchi.

Those payments breached the contract. The agreement prohibited agents and commissions, and commissions were paid.

Quattrocchi was close to the Prime Minister's family. This is not disputed by anybody.

That is the established core, and it is substantial. A defence contract carrying an express bar on commissions was obtained with commissions paid to people including a family friend of the Prime Minister.

5.3 — What has not been established

Everything else.

A Joint Parliamentary Committee reported in 1988 finding no evidence of bribes; it had a government majority and was boycotted by the opposition, and it settled nothing.

A first information report was registered in January 1990, under the successor government. A charge sheet was filed in October 1999, under a different successor government, naming Quattrocchi, Chadha, the Hinduja brothers, the former Defence Secretary, AB Bofors — and Rajiv Gandhi, who had been dead for eight years.

On **4 February 2004** the Delhi High Court quashed the charges of bribery against Rajiv Gandhi. That was three months before Congress returned to office.

On **31 May 2005** the Delhi High Court quashed the remaining charges against the Hinduja brothers and AB Bofors, and criticised the Central Bureau of Investigation for its conduct of the case, noting the public money it had consumed.

The CBI did not appeal within the period allowed. A private appeal by an individual has been pending in the Supreme Court since.

In 2006 the Indian government's own law officer asked the British authorities to unfreeze Quattrocchi's accounts for want of evidence linking them to the payments. In **March 2011** a Delhi court accepted a closure report dropping the case against him. He died in 2013.

No court has ever convicted anybody of anything in the Bofors matter.

DATE	WHAT HAPPENED	WHO WAS IN OFFICE
1988	A Joint Parliamentary Committee reports finding no evidence of bribes. Government majority; boycotted by the opposition.	Congress
Jan 1990	A first information report is registered.	National Front
Jan 1997	Swiss documents are obtained establishing payments to named intermediaries.	United Front
Oct 1999	A charge sheet is filed, naming Rajiv Gandhi posthumously among the accused.	NDA
Feb 2004	The Delhi High Court quashes the bribery charges against Rajiv Gandhi.	NDA
May 2005	The Delhi High Court quashes the remaining charges and criticises the investigating agency. No appeal is filed in time.	UPA
2006	India's own law officer asks Britain to unfreeze the accounts for want of evidence.	UPA
Mar 2011	A closure report is accepted. The case ends.	UPA

5.4 — Under whose watch

The failure is not one party's.

The case was registered under a non-Congress government in 1990. It was charge-sheeted under a non-Congress government in 1999. The charges against Rajiv Gandhi were quashed while a non-Congress government was in office, in February 2004. The remaining charges were quashed in 2005 and the appeal was not filed, under a Congress government. The closure report was accepted in 2011, under a Congress government.

Every government of every party has held this file. None has produced a conviction.

HOW WE ACTUALLY KNOW THIS

This chapter's discipline is to separate three things that are usually merged: what has been **established**, what has been **alleged**, and what has been **decided by a court**.

SOLID: the contract and its terms; the Swedish broadcast of 16 April 1987; the Swedish audit finding that commissions were paid; the Swiss documents of January 1997 establishing payments to named intermediaries; and every court decision listed in section 5.3, each of which is reported with a date.

ALLEGED: that any Indian politician received any part of the money. No court has found it. The one occasion on which a court considered the charge against the Prime Minister, it quashed it.

What none of it can show: whether he knew. He died in 1991, and a man who cannot answer a charge cannot be tried on one — which the Delhi High Court said in 2004 when it quashed it.

This is why the chapter is written as it is. A book that repeated the popular version would be asserting, about a dead man, something no court has found in thirty-eight years — which is exactly the discipline Part Eleven's Chapter One imposed on itself about November 1984, and it applies here or it applies nowhere.

Set the whole of it against the calendar and the shape of the thing becomes visible.

IN REAL TERMS

Thirty-eight years is longer than the entire period from independence to the contract being signed.

In that time the case has been examined by a parliamentary committee, investigated across three countries, charge-sheeted, quashed in two stages, appealed by a private citizen because the state did not appeal, and formally closed.

Two of the accused died before trial. The Prime Minister named in the charge sheet had been dead for eight years when it was filed.

What the country obtained for all of that is a set of documents proving that commissions were paid to three intermediaries, which the Swedish audit authority had said in 1987.

Which suggests the thing everybody argues about is not the thing that happened.

THE HIDDEN ASSUMPTION

Everybody who discusses Bofors assumes **that it was about corruption**.

One side says a great scandal was buried. The other says an innocent man was destroyed by an allegation. Both are arguing about whether money reached a politician, and both expect the answer to settle something.

Thirty-eight years, four governments, a Joint Parliamentary Committee, Swiss documents, a charge sheet and multiple High Court judgments have produced **no conviction of anybody**. That is not a temporary state of the inquiry. It is the outcome.

What Bofors actually established was a **political mechanism**, and it is the mechanism rather than the money that has shaped Indian politics since.

An allegation, never proved, destroyed the largest parliamentary majority in Indian history in under three years. It did so without a trial, without a finding, and without any court ever determining that an Indian politician received a rupee. And the case then died slowly under every subsequent government, including the ones that had been elected on it.

Both halves matter. The first taught every Indian opposition that a defence procurement allegation is the most powerful instrument available in national politics. The second taught every Indian government that such an allegation need never be resolved, because the party that raised it will not pursue it once it is in office and has its own procurements.

That combination — maximum political effect, minimum evidential requirement, no resolution — is the Bofors legacy, and every large Indian defence controversy since has followed the identical arc.

Which means the question “was he guilty” is the least useful one available. It cannot be answered, it has not been answered, and answering it would not touch the thing Bofors actually did.

One thing this chapter does not do. It does not say the allegation was false. It says no court has found it true in thirty-eight years, that the one court to consider it against the Prime Minister quashed it, and that a book which asserts more than that is doing the thing the mechanism above depends on.

REMEMBER THIS

Established: the contract barred agents and commissions; commissions were paid; Swiss documents of January 1997 named the recipients, including a family friend of the Prime Minister.

Not established: that any Indian politician received anything. The charges against Rajiv Gandhi were quashed in **February 2004**, before Congress returned to office. **No court has ever convicted anybody of anything in this matter.**

Every government of every party has held the file and none produced a conviction.

What Bofors established was a mechanism: maximum political effect, minimum evidential requirement, no resolution.

CHAPTER SIX

Sri Lanka

India deployed an army to disarm a group it had spent years arming, on an assessment produced by the agency that had armed it. Over a thousand Indian soldiers died.

6.1 — What was signed

On **29 July 1987** the Indo-Sri Lanka Accord was signed in Colombo by Rajiv Gandhi and President J.R. Jayewardene.

Its terms were a serious attempt at a settlement. Sri Lanka would devolve power to provincial councils, which required an amendment to its own constitution. Tamil militant groups would surrender their weapons. And India would guarantee the arrangement, providing a peacekeeping force to oversee the disarmament.

The Indian Peace Keeping Force began deploying the following day.

The next morning, at the guard of honour before his departure, Rajiv Gandhi was struck with a rifle butt by a Sri Lankan naval rating. It is a small detail and it is the first accurate indication of how the arrangement was regarded in the country it was signed in.

WORD BOX

Peacekeeping: the deployment of a force to hold a settlement that the parties have already agreed to.

The distinction from war-fighting is not about weapons but about consent. A peacekeeping force works because the combatants want the arrangement it is guaranteeing, and it can therefore be small, lightly armed and politically neutral.

Remove the consent of any significant party and the force is not keeping a peace. It is one side in a war, in a foreign country, with a force structure and rules of engagement designed for something else.

Why it matters here: the Indian Peace Keeping Force was named, sized and deployed on the first assumption and was fighting under the second within ten weeks.

6.2 — The premise

The accord rested on a proposition: that the Tamil militant groups, and above all the Liberation Tigers of Tamil Eelam, would give up their weapons.

The basis for believing it was India's relationship with those groups. Through the early 1980s the Research and Analysis Wing had cultivated, trained and armed Tamil militants — including the LTTE — in camps in Tamil Nadu, as an instrument of pressure on Colombo.

So the assessment that the LTTE would comply came from the agency that had spent years building it, about a client it believed it understood.

The LTTE handed over a quantity of weapons and did not disarm.

6.3 — What the army was asked to do

By October 1987 the force sent to keep a peace was fighting a war, in a foreign country, against an enemy that knew the ground and had been trained partly by India.

Operation Pawan, the attempt to take Jaffna, began in October. The initial assault was launched on short notice, against an opponent whose strength had been underestimated, and the early actions produced heavy casualties. A helicopter-borne insertion at Jaffna University went badly wrong.

The pattern is the one this series has now met three times in twenty-six years.

In 1961 the Forward Policy was decided in the Prime Minister's office by four men, one of them a soldier, on an intelligence assessment that China would not fight, over the professional objection of Western Command. Part Six.

In 1983 the Vice-Chief of Army Staff advised against an assault on the Golden Temple and was passed over for Chief. Part Ten.

In 1987 an army was committed to a foreign deployment on an intelligence assessment about the intentions of a group that agency had itself created, with the operational planning compressed into weeks.

Three instances, three decades, two parties of the same family in office, and the same structure each time: **a political decision resting on an intelligence assessment, with the military content supplied afterwards and under time pressure.**

6.4 — What it cost

The IPKF remained until **March 1990**, withdrawn on the orders of a successor government after the Sri Lankan President asked it to leave.

Something over **1,100 Indian soldiers** were killed.

The devolution the accord was signed to secure was enacted in Sri Lankan law and has been implemented only partially in the thirty-eight years since.

The LTTE was not disarmed. It fought the Sri Lankan state for a further nineteen years.

And on **21 May 1991**, campaigning in Tamil Nadu, Rajiv Gandhi was killed by an LTTE suicide bomber.

IN REAL TERMS

Over 1,100 Indian soldiers died in Sri Lanka.

That is more than India lost in the 1965 war with Pakistan, and it happened in a country India was not at war with, under an agreement India had signed to end a war it was not a party to.

They are commemorated at a memorial in Colombo built in 2008, eighteen years after the withdrawal, by the Sri Lankan government.

There is no equivalent national memorial in India, and the deployment appears in no Indian school syllabus.

Whether any of it was defensible is argued in India almost entirely in one direction, which is itself a reason to state the other case properly.

THE ARGUMENT — WAS THE DEPLOYMENT DEFENSIBLE?

It is remembered in India almost entirely as a disaster, which is not a complete account of it.

THE OBJECTIVE WAS LEGITIMATE AND THE ALTERNATIVE WAS WORSE

India had a real interest: a civil war on its doorstep, fifty million Tamils in the neighbouring state with strong sympathies, refugee flows, and an opening for outside powers in a country that sits across India's southern sea lanes. The accord obtained something no purely diplomatic effort had — a Sri Lankan constitutional amendment devolving power to Tamil areas, which remains the only formal concession the Tamil population has ever secured. A guarantee without an enforcement mechanism would have been worthless, and India provided one.

THE PREMISE WAS KNOWN TO BE DOUBTFUL AND THE ARMY WAS TOLD LAST

The whole arrangement depended on the LTTE disarming, and the people best placed to judge that were the people who had armed it — which is the least independent assessment available on any question. The force was deployed the day after signature, before the disarmament had been tested. When it failed, an army with no plan for a war it had not been told to expect was ordered to take a city in weeks. The interest was real; the method committed Indian soldiers to enforce an agreement whose central term nobody had secured.

Where things stand: the second side is stronger and the first side's account of the interest is correct and should not be lost. The failure was not the decision to involve India, which was defensible. It was that the enforcement was committed before the term being enforced had been obtained — and that the assessment on which the term was thought obtainable came from the agency with the least capacity to be objective about it.

What would settle it: the military appreciation prepared before 29 July 1987, if one was prepared. It has never been released, and whether it exists is itself an open question.

Why people care so much: because more Indian soldiers died in Sri Lanka than in the 1965 war with Pakistan, for an outcome nobody can name, and because it ended with the Prime Minister who ordered it being killed by the organisation it was aimed at.

Underneath both of those positions lies a description of what went wrong that neither side examines.

THE HIDDEN ASSUMPTION

Everybody who writes about the Sri Lanka deployment — in India and in Sri Lanka — assumes **that the LTTE broke the agreement.**

The Indian version: an organisation India had helped betrayed it. The Tamil version: an agreement made over Tamil heads was imposed and resisted. Both describe a party that was bound and did not comply.

The LTTE was not a party to the accord. **It was signed by two governments** — India and Sri Lanka — and the disarmament of the Tamil groups was a term one government promised the other it would deliver.

Read that structure again. India undertook to a foreign state that a third organisation, which had not signed anything, would surrender its weapons. And India then deployed an army to enforce the undertaking, beginning the day after signature.

Nothing was broken, because nothing had been agreed by the party whose agreement mattered. What failed was a **prediction**, made by India, about what a group it had armed would choose to do — which is the precise thing the front matter said 414 seats cannot buy.

And the framing hides the responsibility. If the LTTE broke an agreement, the fault is the LTTE's and India was let down. If India guaranteed something it had not obtained, the fault is India's and it is a fault of process rather than of trust.

The general rule, which this series has met before in a different setting: **an undertaking about somebody else's future conduct is not an agreement. It is a forecast with signatures on it**, and the signatures make it look like something it is not.

Four years later the organisation that was to have been disarmed killed the Prime Minister who signed the agreement. This part records that as a fact about consequences and not as a moral about them.

REMEMBER THIS

The accord of **29 July 1987** obtained a real concession — Sri Lankan constitutional devolution to Tamil areas — and rested on a premise: that the LTTE would disarm. It did not.

The assessment that it would come from **the agency that had spent years arming it**. The force deployed the day after signature, before the premise had been tested.

Over 1,100 Indian soldiers were killed. This is the third instance in twenty-six years of a political decision resting on an intelligence assessment with the military content supplied afterwards and under time pressure.

CHAPTER SEVEN

What Was Built

This is the longest chapter of credit items in this series. Most of what is in it is still working, and one entry ended a twenty-year war that has not restarted in forty years.

7.1 — Telephones

In 1984 an Indian telephone connection took years to obtain, worked unreliably, and existed almost entirely in cities. A trunk call between two towns was booked and waited for.

The Centre for Development of Telematics was established in 1984 to design digital switching equipment in India, for Indian conditions — exchanges that would work in heat and dust without air conditioning, which imported equipment would not.

What followed over the next decade was the rural exchange network and the public call office. The small booth with a yellow sign and a metered telephone, run by an operator, appeared in tens of thousands of villages and small towns.

Whatever else is argued about this government, a very large number of Indians made their first telephone call because of a decision taken in these five years, and the institutional apparatus — a separate telecom commission, the corporatised operators created in 1986 — dates from here.

7.2 — Computers

The computer policy of 1984 cut import duties on hardware, permitted duty-free import of software for export production, and recognised software as an industry rather than as a suspicious import.

Part Four's whole argument was about a permission system that decided what could be made and by whom. This was a deliberate exemption from it, in a sector nobody yet had a constituency in.

The Indian software export industry begins here. It now employs several million people directly.

7.3 — The vote at eighteen

The Constitution (Sixty-First Amendment) Act, 1988 lowered the voting age from twenty-one to eighteen, taking effect from 1989.

It enfranchised something in the order of fifty million people at a stroke, and it was done by a government that had no particular reason to expect those voters to support it. They did not: the government lost the election in which they first voted.

It is the least discussed constitutional amendment of the period and one of the very few in this series that expanded a right rather than qualifying one.

7.4 — Three accords

Between July 1985 and June 1986 the government signed settlements with three insurgencies or agitations.

Punjab, July 1985. Part Ten's Chapter Eight covers it: a real settlement whose central term — the transfer of Chandigarh — was never implemented, and whose signatory was assassinated within a month.

Assam, August 1985. It ended a six-year agitation over migration, provided for detection and deletion of illegal voters against a 1971 cut-off, and led directly to elections and a new state government. It has held imperfectly; the citizenship questions it addressed are still live forty years later.

Mizoram, June 1986. This one worked completely.

The Mizo insurgency had run for twenty years. The accord brought the insurgent leadership into electoral politics — its head became Chief Minister — granted statehood, and ended the conflict.

It has not restarted. Mizoram has been among India's most peaceful states for four decades, and has among its highest literacy rates.

Set against everything else in this part, that is the single most successful thing this government did, and almost nobody outside the north-east mentions it.

7.5 — Schools, water, vaccines

The National Policy on Education of 1986 produced the Navodaya Vidyalayas — residential schools intended to take able children out of rural districts and educate them at a standard otherwise unavailable to them. There are now over six hundred of them.

A set of technology missions was established from 1986 on specific, measurable objectives: drinking water, immunisation, literacy, oilseeds, telecommunications and dairy.

The design is worth noticing because it explains section 7.8. Each mission had one objective, a named person responsible, and a deadline. None of them required a contested political judgment.

7.6 — Two responses to pressure

Two episodes belong here because they cut in opposite directions and both are informative.

Bhopal. On the night of 2 December 1984 — three weeks before the election — a gas leak at a pesticide plant in Bhopal killed thousands of people and injured many times that number. It remains the worst industrial disaster anywhere.

The response that belongs in this chapter is the **Environment (Protection) Act of 1986**, a wide framework statute giving the central government general powers to regulate emissions, discharges and hazardous processes. It is the foundation of Indian environmental regulation and it exists because of Bhopal.

The response that does not belong in a credit chapter is the settlement of the claims, which was reached in 1989 for a sum widely regarded as inadequate, and the fate of the criminal proceedings, which is a subject of its own.

The defamation bill. In 1988 the government introduced legislation that would have made it substantially easier to prosecute journalists and shifted the burden of proof against them. It passed the Lok Sabha.

The press protested nationally, in concert, and the government **withdrew it**.

That is worth recording precisely because of Chapter Eight. It is the one occasion in these five years when a decision taken quickly by a small circle met organised opposition from outside the structure and was reversed. The mechanism that was missing everywhere else existed here — not inside the government, but in a profession with the means to make itself heard — and it worked immediately.

7.7 — The amendment that was defeated

In 1989 the government introduced a constitutional amendment bill to establish elected local government — village and district councils with guaranteed elections, reserved seats, and a fixed share of funds.

It passed the Lok Sabha and was **defeated in the Rajya Sabha**, by a small margin, by an opposition that regarded it as an attempt to bypass state governments.

Three years later, in 1992, the Seventy-Third and Seventy-Fourth Amendments enacted substantially the same design under a successor Congress government. They are the constitutional basis of local government in India today.

So the credit for panchayati raj is customarily given to 1992, and the draft is from 1989.

7.8 — The ledger for this part

WHERE	WHAT WAS DONE
Mizoram	A twenty-year insurgency ended by accord in June 1986. Statehood granted, insurgent leadership brought into government. The peace has held for forty years.
Assam	The 1985 accord ended a six-year agitation and produced elections. The citizenship questions it addressed remain unresolved.
Punjab	The 1985 accord. Chandigarh never transferred; the elected government it produced dismissed in 1987. Part Ten.
Uttar Pradesh	Ayodhya, February 1986 and November 1989. Chapter Four.
Rural India generally	The first telephone exchange, the first public call office, and in six hundred districts the first residential school of its kind.
Tamil Nadu	The state from which the Sri Lanka deployment was staged and in which the Prime Minister was killed in 1991.

IN REAL TERMS

A public call office was a booth with a telephone, a meter and a person to run it.

For a family with a son working in another state it was the difference between a letter that took a fortnight and a voice on the same evening. For a farmer it was the price at the mandi before loading the cart. For a village with one telephone it was the first time an ambulance could be called at all.

None of that appears in a growth statistic and all of it happened between 1985 and 1995.

Set against Chapters Three to Six, it is worth noticing which of the two lists the people affected would have chosen.

7.9 — Why these worked

Compare the list in this chapter with the decisions in Chapters Three to Six and one difference does all the work.

Nothing in this chapter required a **contested judgment about what would happen**.

Building a rural exchange requires money, engineering and somebody competent left alone. Lowering the voting age requires a decision about principle. Establishing a school system requires an organisation. None of them turns on a prediction that could be wrong.

Every failure in Chapters Three to Six turned on exactly such a prediction. That a community would accept a reversal without the other community reacting. That unlocking a shrine would defuse a mobilisation rather than start one. That an armed group would disarm because the agency that armed it said so.

Which is the front matter's hidden assumption arriving with evidence. A majority of 414 buys unlimited capacity to *execute*. It buys nothing at all for *predicting*, and predicting requires the thing this government did not have: somebody with standing whose objection had to be answered.

HOW WE ACTUALLY KNOW THIS

The items in this chapter are unusually easy to verify because most of them still exist and can be counted.

Telephone connection figures, exchange numbers and public call office counts were published annually. Software export figures are published. The Sixty-First Amendment is in the constitution. The three accords are published texts with dates and signatories. The Navodaya schools have a register. The Seventy-Third and Seventy-Fourth Amendments can be compared clause by clause with the 1989 bill.

That is why this chapter states outcomes rather than intentions: the intentions are the same in every government's programme, and the difference here is that the things were built.

What it cannot show: how much of it would have happened anyway.

Telecommunications and computing were transforming everywhere in the 1980s, and India was not the only country to liberalise them. What is defensible is narrower — that these decisions were taken here, at that time, against a permission system that Part Four showed defeating almost everything else.

That distinction is the most useful thing in this part, and it generalises past this government. Ask of any proposal whether it requires *building* or *predicting*. A government with a large majority and a weak process is reliable at the first and dangerous at the second, and India has had several of them.

REMEMBER THIS

What was built and still works: **rural telephone exchanges and the public call office; a computer and software policy that founded an industry; the vote at eighteen; the Navodaya schools; the technology missions; and an environment statute after Bhopal.**

The **Mizoram Accord of June 1986** ended a twenty-year insurgency and the peace has held for forty years. It is the most successful thing this government did and almost nobody mentions it.

Panchayati raj was drafted in 1989, defeated in the Rajya Sabha, and enacted in 1992 on substantially the same design. **Nothing in this chapter required a prediction that could be wrong** — which is exactly what everything in Chapters Three to Six did.

CHAPTER EIGHT

The Pattern

Part Eight found a party converted into an instrument of one office. This chapter is the test of that finding, because the office changed hands and the person could hardly have been more different.

8.1 — The question

Part Eight's Chapter Two established that the 1969 split transferred control of candidate selection, and that after 1971 every Congress member of parliament owed his seat to one office. Its conclusion was that the party's capacity to test or remove a leader had gone from unusable to unimaginable.

That finding has two possible readings and they lead to entirely different places.

The biographical reading: a leader of exceptional determination took a party apart and ran it personally. On this reading the problem departs with the person.

The structural reading: an arrangement was created in which the party had no mechanism for testing a proposal, and the arrangement would produce the same effects with anybody in the office.

December 1984 is the experiment. The office passed to a forty-year-old with no political history, no faction, no record in the machine, and a stated intention to clean it up. If the biographical reading is right, something should change.

8.2 — What did change

A good deal, and it belongs on the record.

The Emergency's instruments were not used. No national emergency was proclaimed, no press censorship was imposed, and detention without trial was not deployed against political opponents on any comparable scale.

He said publicly, at the party's centenary in December 1985, that the organisation was in the hands of brokers of power who dispensed patronage — which is not a thing his predecessor ever said about a party she had built.

And in 1989 he lost an election and left office, which is the second peaceful transfer of power in this series and is not a small thing.

8.3 — What did not

The decision-making did not change at all.

Look at the four decisions in Chapters Three to Six. Every one was taken quickly, by a very small circle, without any institutional body testing the proposal, and with the objection arriving afterwards from outside.

Shah Bano. Announced in January 1986, legislated by May. The warning came from a retired judge, by letter, after the Bill was introduced.

Ayodhya. Whatever was decided and by whom, no account of it involves a cabinet discussion, and the account from inside the Prime Minister's Office describes a Prime Minister asking afterwards who had done it.

Bofors. The government's response ran through a Joint Parliamentary Committee with a government majority, which settled nothing and was boycotted.

Sri Lanka. Signed on 29 July, deployment beginning on 30 July, on an assessment from an agency with the least capacity to be objective about it.

And one of the two most consequential things the government did — the Tenth Schedule — **extended the structure to every party in India by statute.** After 1985 no member of any Indian legislature could vote against a party direction without losing his seat. What Part Eight described as a Congress condition became a national one, permanently, enacted by a Prime Minister who had criticised the party's brokers three months earlier.

8.4 — What that establishes

The experiment gives a clear result.

The person changed completely. The instruments of coercion were not used. The rhetoric was the opposite. And the failure mode was identical: decisions taken fast, by few, untested, with the professional or judicial objection arriving too late and from outside the structure.

Part Eight's finding was structural. It survives the person, which means it was never a fact about Indira Gandhi, and the biographical reading of these two decades — which is the reading almost all Indian political argument uses — is wrong.

IN REAL TERMS

Put the two governments side by side as a controlled experiment.

Same office. Same party. Same constitution. Same civil service.

Different person in almost every respect: age, temperament, experience, political history, stated intentions, and willingness to use coercive instruments.

Same failure shape: a decision formed by a handful of people, adopted at speed, with no body able to test it, and the objection arriving afterwards from a judge, a general or a foreign government.

When you change every variable except one and the outcome does not change, you have identified the variable.

Which is not how this period is discussed by anybody.

THE HIDDEN ASSUMPTION

Everybody who argues about this period of Indian politics assumes **that the problem was the person.**

The hostile version: a dynasty produced leaders unequal to the office. The defensive version: capable leaders were undone by circumstance and by their opponents. Both are arguments about individuals, and both take for granted that the way to explain a government is to explain who ran it.

Set the two governments beside each other. One leader was fifty-one, had spent twenty years inside the machine, had split her party to control it, and used every instrument in Part Nine. The other was forty, had been a pilot four years earlier, had no faction, and used none of them.

The decision failures are the same shape in both. A proposal formed in a small circle. No body with standing to test it. Execution at speed. The objection arriving afterwards, from a judge, a general or a foreign government.

When two people that different produce identically shaped failures in the same office, the office is the variable.

And the mechanism is not mysterious. Part Three found the party losing its internal check by 1954. Part Eight found candidate selection concentrated in one office by 1971. This part found that check extended to every party in India by statute in 1985. At no

point in that sequence did anybody build a replacement — a cabinet system that genuinely deliberates, a parliamentary committee structure with teeth, a civil service able to record a formal objection and survive it.

Which means the honest finding of this whole series so far is not about a family. It is that **India built a system in which the quality of government depends entirely on the judgment of whoever holds one office, and then stopped building anything that could compensate when that judgment was wrong.**

That is a much less satisfying conclusion than a dynasty. It is also the only one that survives putting two completely different people in the same chair and watching the same thing happen.

A claim of that kind should say how much weight two cases can carry.

HOW WE ACTUALLY KNOW THIS

The comparison in this chapter is between two governments this series has already documented in detail, and it therefore rests on Parts Eight and Nine as much as on this one.

What makes it usable as evidence is that the two are unusually well matched. Same office, same party, same constitutional framework, same senior civil service, and only nine years apart. Comparisons across countries or across decades are contaminated by everything that differs; this one is contaminated by very little except the person, which is exactly the variable being tested.

What it cannot show: whether a third person would have done differently. Two cases are not a series, and this chapter's claim is stated as a finding about two governments rather than as a law about the office.

The stronger version of the test would run the comparison across every Indian Prime Minister since 1947, scoring the decision process rather than the decisions. Nobody has done it, and it is the most useful piece of work anybody could do on the material in this series.

Which is the finding this series has been assembling for eleven parts without intending to, and it will be tested again in every part that follows.

REMEMBER THIS

What changed: **the Emergency's instruments were not used**, the rhetoric about the party was the opposite, and in 1989 he lost an election and left.

What did not: **every decision in Chapters Three to Six was taken fast, by a small circle, untested, with the objection arriving afterwards from outside.** And the Tenth Schedule extended the structure to every party in India by statute.

Two people that different producing identically shaped failures means the office is the variable. Part Eight's finding was structural and it survives the person.

CHAPTER NINE

What Would Have Prevented It

Four moments, all of them cheap. And a defence that is stronger here than in most parts of this series.

9.1 — Four arguments for the defence

These are the strongest available. Two are conceded outright.

One. The position he inherited was close to impossible. Sworn in on the evening of his mother's assassination, at forty, with four years in politics, in the week Part Eleven describes. No preparation, no faction of his own, and an election six weeks later. Very few people would have done better and most would have done worse.

Two. Chapter Seven's list is real. Conceded in full and given a chapter rather than a paragraph. Telephones, computers, the vote at eighteen, three accords of which one ended a war, the Navodaya schools, an environment statute, and the panchayati raj design that was enacted three years later.

Three. He accepted defeat and left. In 1989, having lost, he handed over power. Part Nine said that of 1977 and it says it again: the transfer of power after a defeat is the hardest thing a political system does, and it has now happened twice in this series under governments that had every instrument available to prevent it.

Four. He was right about panchayati raj and lost the vote. The amendment was defeated by the opposition in 1989 and enacted on his design in 1992. A government cannot be indicted for a reform its opponents blocked.

9.2 — Four moments

Part One requires an alternative that was available at the time. All four here are, and all four are cheap.

April 1985 to May 1986: do nothing about Shah Bano. The judgment stood. The agitation was serious and would have been survived — the government had 414 seats and four years left. The Supreme Court’s own decisions of 2001 and 2024 establish that the position was legally sustainable, because it is the position now. Cost: a year of political difficulty.

February 1986: not facilitate the unlocking, or reverse it. The High Court directed on 3 February that the property not be altered. A central government that regarded the order as dangerous had instruments — and did not use them. Cost: an agitation from the other direction.

November 1989: not permit the shilanyas, and not launch the campaign at Faizabad. These were the Prime Minister’s own decisions, are disputed by nobody, and required nothing but declining. Cost: nothing measurable.

July 1987: obtain the disarmament before deploying. The accord could have provided for the force to enter *after* verified surrender of weapons rather than the day after signature. Cost: a slower agreement.

None of the four required a concession to anybody, a constitutional amendment, or any risk to the government’s majority.

9.3 — What I would have to retract

Three things would break this part.

If the Prime Minister’s Office record for February 1986 showed that **the unlocking was ordered from Delhi**, Chapter Four’s careful grading becomes over-cautious and the chapter should be considerably harder.

If it showed the opposite — that the government **attempted to reverse it and was prevented** — then Chapter Four’s charge reduces to the 1989 decisions alone.

If a military appreciation prepared before 29 July 1987 were released showing that **the army was consulted and considered the deployment sound**, Chapter Six’s central claim fails and the third instance of the pattern disappears.

All three depend on files the Indian government holds. That is the seventh part in a row ending on that sentence.

THE ARGUMENT — COULD ANYBODY HAVE DONE BETTER?

The final question, and the defence's best ground.

NOT OBVIOUSLY, AND THE COUNTERFACTUAL IS UNFAIR

He arrived with no preparation into the worst possible week, held an office his party had made unaccountable long before he entered it, and inherited a set of conflicts — Punjab, Assam, Sri Lanka, Ayodhya — that had been accumulating for decades. He settled three of them by agreement within two years, which nobody else managed before or since. Judging a forty-year-old with four years in politics against an ideal decision-maker, on questions that had defeated his predecessors, is not analysis.

THE FOUR MOMENTS REQUIRED NOTHING EXTRAORDINARY

Nobody is asking for an ideal decision-maker. Section 9.2 lists four occasions on which the correct course was to *decline to act* — not to legislate, not to facilitate, not to campaign, not to deploy before a condition was met. Declining does not require experience, judgment or courage. It requires somebody in the room whose objection has to be answered, and Chapter Eight established that no such person existed. That is the charge, and it is against the arrangement as much as the man.

Where things stand: both are right and they converge, which is why this part ends where it does. The first side is correct that the individual is not the explanation. The second is correct that the alternatives were available and cheap. Put together they produce Chapter Eight's finding: the failures were a property of an office that nobody could contradict, and the person occupying it made almost no difference to their shape.

What would settle it: nothing. It is a question about how much of government is structure and how much is judgment, and this series has now offered eleven parts of evidence towards structure.

Why people care so much: because the biographical answer is available to everybody and requires nothing, and the structural answer implicates every party that has held the office since and has changed none of it.

That is the case against this part, and the second and third defences I think simply win. What none of the four reaches is section 9.2, because every alternative there consisted of not doing something.

REMEMBER THIS

Four defences: **an impossible inheritance; a real list of things built; he lost in 1989 and left; and he was right about panchayati raj and was outvoted.** The second and third are conceded outright.

Four moments, all cheap, all requiring only that a government **decline to act**: Shah Bano, February 1986, November 1989, and deploying before disarmament.

Declining does not require experience or courage. It requires somebody in the room whose objection has to be answered — and Chapter Eight established that no such person existed.

CHAPTER TEN

An Honest List of What We Do Not Know

One thing in this part is asserted by almost every account of the period and is not established. This chapter is mostly about why I have refused to assert it.

10.1 — Genuinely unknown

Five things in this part cannot be established, and the first is the one that would change it most.

Who decided the unlocking at Ayodhya on 1 February 1986. Chapter Four sets out both accounts. One says it was arranged from Delhi as a counterweight to the Shah Bano reversal. The other, from an official inside the Prime Minister's Office, says the Prime Minister was not informed and was asking afterwards who had done it.

Why it is unknown: the Prime Minister's Office record and the Uttar Pradesh government's file are both closed. This is the single most consequential unresolved question in the part.

Whether a military appreciation was prepared before the Sri Lanka accord. Chapter Six's claim is that the army was committed before the premise of the agreement had been tested.

Why it is unknown: if such a document exists it has not been released, and whether one was prepared at all is itself unestablished. That absence is suggestive and it is not proof.

Whether any Indian politician received money in the Bofors matter.

Why it is unknown: thirty-eight years, four governments, Swiss documents, a charge sheet and multiple High Court judgments have produced no such finding. The one occasion on which a court considered the charge against the Prime Minister, it quashed it. He died in 1991 and cannot answer it.

What the political calculation behind the Shah Bano reversal actually was. Every account describes a fear of losing Muslim support. None of them is a record of a discussion.

Why it is unknown: cabinet papers closed.

How much of Chapter Seven would have happened anyway. Telecommunications and computing were transforming in every comparable country in the 1980s.

Why it is unknown: it is a counterfactual. What is defensible is narrower and is what the chapter claims: that these decisions were taken here, then, against a permission system that Part Four showed defeating almost everything else.

10.2 — Solid

The result. 414 seats of 514 on about 49 per cent — the largest majority any Indian party has held.

The Tenth Schedule. Its text, its two limbs, and the fact that the second disqualifies a member for voting against a party direction on any subject. Constitutional text.

The Shah Bano sequence. The judgment of 23 April 1985, the announcement of 15 January 1986, the Bill of 25 February, the Krishna Iyer letter of 28 February, the Act of May 1986, and the judgments of 2001 and July 2024 which restored the position.

The Ayodhya chronology. The application of 25 January 1986, the order of 1 February, the locks broken within about forty minutes with the state broadcaster present, the officials' testimony that no disorder was anticipated, the High Court's direction of 3 February, and the events of 14 and 15 February.

The 1989 decisions. The shilanyas in November and the campaign launch at Faizabad on 3 November. Not disputed by anybody.

The Bofors record. The contract and its bar on commissions; the broadcast of 16 April 1987; the Swiss documents of January 1997; the quashing of charges against Rajiv Gandhi in February 2004; the quashing of the remaining charges in May 2005; the closure report accepted in March 2011; and that no conviction has ever been obtained.

Sri Lanka. The accord of 29 July 1987, the deployment from 30 July, Operation Pawan from October, the withdrawal completed in March 1990, and over 1,100 Indian dead.

Everything in Chapter Seven. Most of it still exists and can be counted.

10.3 — What this part refuses to assert

Two things, and they are refused for the same reason.

That the Prime Minister ordered the unlocking. It is the standard claim, made in most accounts, and it is not established. An official who worked in his office says the opposite.

That he took money over Bofors. It is the most repeated allegation in Indian public life and no court has found it in thirty-eight years, including a court that specifically considered it.

Both refusals cost this part something. The first removes its most quotable line and the second removes the sentence everybody expects a book like this to contain.

The reason is the one Part Eleven's Chapter One gave about November 1984, and it applies here or it applies nowhere. **A series that will repeat an unproved allegation against one man cannot demand proof when the allegation runs the other way.** Part Eleven refused to name individuals against whom no body has found, in a chapter about the killing of two thousand seven hundred people. The same discipline has to survive contact with a subject where the popular version is more convenient.

If either file is opened and shows what most accounts assert, this part will have been too careful, and I would rather be wrong in that direction.

REMEMBER THIS

Genuinely unknown: **who ordered the unlocking, whether a military appreciation preceded the Sri Lanka accord, whether any Indian politician received Bofors money, what the Shah Bano calculation was, and how much of Chapter Seven would have happened anyway.**

Solid: **the result, the Tenth Schedule, the whole Shah Bano sequence, the Ayodhya chronology, the 1989 decisions, the Bofors court record, the Sri Lanka deployment, and Chapter Seven's list.**

This part **refuses to assert** that the Prime Minister ordered the unlocking or that he took money. **A series that repeats an unproved allegation against one man cannot demand proof when it runs the other way.**

REFERENCE

Timeline, 1984–1991

Dates only. The arguments are in the chapters.

DATE	WHAT HAPPENED
31 Oct 1984	Indira Gandhi assassinated. Rajiv Gandhi sworn in that evening. Part Eleven covers the week that followed.
2–3 Dec 1984	The Bhopal gas disaster, days before the election. It is the direct cause of the Environment (Protection) Act of 1986.
Dec 1984	General election. Congress wins 414 of 514 seats on about 49 per cent of the vote.
1984	The Centre for Development of Telematics is established. The new computer policy cuts duties and recognises software as an industry.
23 Apr 1985	Shah Bano. A five-judge bench holds that section 125 of the Code of Criminal Procedure applies to a divorced Muslim woman.
Jul 1985	The Punjab Accord. Part Ten's Chapter Eight.
Aug 1985	The Assam Accord ends a six-year agitation.
1985	The Fifty-Second Amendment inserts the Tenth Schedule. A member is disqualified for leaving his party or for voting against a party direction.
Dec 1985	At the party centenary in Bombay he describes the organisation as being in the hands of brokers of power.
15 Jan 1986	He announces the intention to legislate to nullify the Shah Bano judgment.
25 Jan 1986	A lawyer applies to the Faizabad court for the gates of the disputed structure at Ayodhya to be unlocked.
1 Feb 1986	The locks are ordered removed and are broken within about forty minutes, with Doordarshan present and broadcasting.
3 Feb 1986	The High Court directs that the nature of the property not be altered.
14–15 Feb 1986	Protests and rioting in several states. The Babri Masjid Action Committee is formed.
25 Feb 1986	The Muslim Women (Protection of Rights on Divorce) Bill is introduced in the Lok Sabha.

DATE	WHAT HAPPENED
28 Feb 1986	V.R. Krishna Iyer, a retired Supreme Court judge, writes to the Prime Minister protesting against the Bill and warning of the consequences.
Mar 1986	The Bofors contract is signed — 410 howitzers, about ₹1,437 crore, with an express bar on agents and commissions.
May 1986	The Bill becomes law. Maintenance is restricted to the iddat period.
1986	The National Policy on Education. The Environment (Protection) Act. The technology missions begin.
30 Jun 1986	The Mizoram Accord. A twenty-year insurgency ends. The peace has held.
12 Apr 1987	V.P. Singh resigns as Defence Minister, over a separate submarine commissions inquiry.
16 Apr 1987	Swedish radio broadcasts the allegation that Bofors paid bribes.
29 Jul 1987	The Indo-Sri Lanka Accord is signed. The Indian Peace Keeping Force begins deploying the next day.
Oct 1987	Operation Pawan. The force sent to oversee disarmament is fighting a war.
Dec 1985	India is a founding member of SAARC at its first summit in Dhaka.
Aug–Sep 1988	A defamation bill that would have made prosecution of journalists substantially easier passes the Lok Sabha and is withdrawn after a national press protest.
1988	The Sixty-First Amendment lowers the voting age from twenty-one to eighteen.
1989	The constitutional amendment bill on panchayati raj passes the Lok Sabha and is defeated in the Rajya Sabha.
3 Nov 1989	The election campaign is launched at Faizabad with a promise of Ram Rajya.
9 Nov 1989	The shilanyas is performed adjacent to the disputed structure.
Dec 1989	Congress loses the general election. Power is transferred.
Mar 1990	The Indian Peace Keeping Force completes its withdrawal. Over 1,100 Indian soldiers have been killed.
21 May 1991	Rajiv Gandhi is assassinated by an LTTE suicide bomber in Tamil Nadu.
1992	The Seventy-Third and Seventy-Fourth Amendments enact panchayati raj on substantially the 1989 design.

DATE	WHAT HAPPENED
2004, 2005, 2011	The Bofors charges are quashed in stages and the case is closed. No conviction is ever obtained.
2001, 2024	The Supreme Court reads down the 1986 Act, and then holds that section 125 applies to all women irrespective of religion.

Part Thirteen starts here. It leaves the chronology and takes the parts of India this series has kept promising to return to — the north-east, the tribal belt, and the places where the Indian state has been least visible and most armed.

REFERENCE

Glossary

Every hard word used in this part, in plain English.

WORD	WHAT IT MEANS
Defection	Leaving the party on whose ticket you were elected. Endemic in Indian state politics from the 1960s and the problem the Tenth Schedule was written for.
Iddat	The waiting period, roughly three months, that follows a divorce under Muslim personal law. The 1986 Act restricted maintenance to it.
IPKF	The Indian Peace Keeping Force, deployed in Sri Lanka from July 1987 to March 1990 under the accord. Over 1,100 of its soldiers were killed.
Mandate	The authority a government claims from an election to do particular things. An election produces a number of seats and not a list, so a large majority is a large permission rather than a large mandate.
Section 125 CrPC	A religion-neutral provision of Indian criminal procedure under which any person unable to maintain themselves may claim maintenance. Its purpose is to prevent destitution, not to regulate family law.
Shilanyas	A foundation-stone ceremony. Performed adjacent to the disputed structure at Ayodhya in November 1989 with the government's permission.
Tenth Schedule	Inserted by the Fifty-Second Amendment in 1985. Disqualifies a legislator who leaves his party or who votes against a party direction on any subject.
Whip	A party's direction to its legislators on how to vote. In most parliamentary systems defying one ends a career; in India since 1985 it ends a membership.

ABOUT

About the Author

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EDUCATION	BCom, Chandigarh University · MBA (Business Strategy and Analysis), Panjab University
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I write long-form research on Indian history, society, belief and public life, and publish it at misterlove.in under the name The Living Archive. Before this series I completed a fourteen-part history of Punjab and a sixteen-part study of the rules societies place on women.

Two decisions in this part need declaring. The first is Chapter Seven, which is the longest credit chapter in this series and which I nearly wrote at half the length. The five years covered here produced telephones in villages, a software industry, the vote at eighteen, and an accord that ended a twenty-year war in Mizoram which has not restarted in forty. A prosecution brief that recorded only the failures would be describing a government that did not exist.

The second is Chapter Ten's section 10.3. This part refuses to assert the two things every account of this period asserts — that the Prime Minister ordered the unlocking at Ayodhya, and that he took money over Bofors. Neither is established, one is denied by an official who worked in his office, and the other has been considered and quashed by a court. Part Eleven refused to name individuals against whom no body had found, in a chapter about the killing of two thousand seven hundred people. That discipline is worth nothing if it does not survive a subject where the popular version is more convenient to me.

Chapter Eight is the one I think matters most. Part Eight's finding about the Congress party has now been tested by putting a completely different person in the same office, and it held. That makes eleven parts of this series evidence for a structural reading rather than a dynastic one, which is not the book I expected to be writing.

THE RULES OF THIS PROJECT

The Living Archive

Everything published under this name follows three rules.

Plain language, undiminished content. The words are as simple as I can make them. The argument is not simplified with them.

Show the evidence, and show what it cannot prove. Every serious claim names what it rests on, and every source is described honestly, including what it is blind to.

Give every side its strongest case. Where people who know the material disagree, both positions appear at full strength, and I say when the evidence does not settle it.

PLEASE READ THIS

A Word on Sources

This part rests on reported judgments, constitutional amendments and statutes, the published texts of three accords and the Indo-Sri Lanka Accord, the parliamentary record, published data on telecommunications and software, and contemporaneous reporting of the events of 1986, 1987 and 1989.

Where accounts conflict, both are given and the conflict is stated. Chapter Four is written that way throughout, because the central factual question in it is genuinely disputed by people who were present, and because resolving it by choosing the more convenient account is exactly what this series exists not to do.

Corrections. If something here is wrong, write to me. Later editions will say what was changed and who caught it.

Lovepreet Singh

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NEXT

What Comes Next

Part Thirteen — The Other India

Part Thirteen leaves the chronology for the places this series has kept promising to return to. It asks:

- The Armed Forces Special Powers Act was passed in 1958 as a temporary measure for one region. Where is it in force now, for how long has it been, and what has been established about its use?
- Part Five's ledger recorded the north-eastern states as absorbing ten million refugees twice and receiving central attention only as a security frontier. What has been built there, measured against what has been spent?
- The Fifth and Sixth Schedules of the constitution protect tribal land. How much has been transferred anyway, under what authority, and to whom?
- Displacement by dams, mines and industry has a number attached to it. Where does the number come from and what does the evidence support?
- Part Two's counting rule has been applied four times. What happens when it is applied to the people this part is about?
- Every part of this series has found instruments used earlier and harder in places where the state's presence was in question. Does that pattern hold here, and what does it look like when it does?

Questions, not topics. If any of them is answered badly, you will be able to tell.

THE LIVING ARCHIVE

PART THIRTEEN OF NINETEEN

The Congress Record

Part Thirteen — The Other India

Two Schedules of the constitution written to protect tribal land. Around sixty million people displaced since 1947, of whom nobody has ever made an official count. A special powers Act in force somewhere in India continuously for sixty-seven years. And three maps that lie almost exactly on top of one another.

This part covers around a hundred and fifty million people and eleven previous parts have barely mentioned them. That is a fact about the series and about almost every account of Indian history, and Chapter One is about why.

WRITTEN AND RESEARCHED BY

Lovepreet Singh

INDIA · 1947 TO THE PRESENT

MISTERLOVE.IN

BEFORE WE BEGIN

Where We Left Off

Every part of this series has found the same instruments used earlier and harder where the state's presence was in question. This part is about the places where it was never established at all.

Five findings carry into this part.

The state ledger. Part Five committed every subsequent part to record which places its material affected, and its own ledger recorded the north-eastern states as absorbing refugee movements twice and receiving central attention chiefly as a security frontier. This part takes that entry properly.

Wealth is relational. Part Five's central finding: a policy that removes one region's advantage does not create wealth, it moves it, and the winner experiences success while the loser experiences failure and neither sees the pipe. Chapter Four is that finding applied to land.

An emergency power with no expiry becomes the ordinary law. Part Two found it in preventive detention, Part Three tracked it through a decade, Part Nine found it at full extension. Chapter Five is the most extreme case in the series: sixty-seven years.

When a state that counts everything has no count of something, somebody decided that. Part Two's rule, now applied four times. Chapter Seven is the fifth and it produces a variant of the rule rather than another instance of it.

Instruments used earlier and harder where the state's presence is in question. Part Seven found it in Kashmir, Part Ten in Punjab. Chapter Six asks whether it holds here, and the answer arrives as three maps.

One thing about this part's existence. Twelve parts of this series have covered elections, amendments, wars, judgments and scandals, and have mentioned the people in this part almost not at all. That is not an oversight I am correcting; it is the ordinary shape of Indian political history, and it is itself one of the findings.

HOW TO READ THIS BOOK

The Six Boxes

Six coloured boxes run through the series, each doing one job. Here they are with examples from the material ahead.

A **Word Box** explains a hard word the moment it first appears.

WORD BOX

Scheduled Tribe: a legal category. Communities listed by presidential order under Article 342 of the constitution, entitled to reservation in legislatures, education and employment, and to specific protections over land.

The word “tribe” carries assumptions the category does not support. These are several hundred distinct communities, speaking different languages, with different histories, spread from the Nilgiris to the Himalaya, and their only shared feature is a legal designation and its consequences.

Many prefer **Adivasi** — “original inhabitant” — which is a political term rather than a legal one, and is contested precisely because of what it claims.

Why it matters here: around a hundred and fifty million people carry this designation, and almost everything in this part follows from what the designation was supposed to protect and did not.

An **In Real Terms** box turns a number too big to picture into something with a body.

IN REAL TERMS

The most cited estimate of people displaced by development projects in India since 1947 is around **sixty million**.

That is more people than live in Italy. It is roughly the population India had in the Bombay Presidency at independence. Moved, from land they lived on, for dams, mines, industrial plants, power stations, roads and protected forests.

Around a quarter were resettled in any organised way.

And the figure is not the Indian government’s. It is a scholar’s estimate, assembled project by project from state records. **There is no official national count of the people the Indian state has displaced.**

A **How We Actually Know This** box shows the physical evidence and then says what it cannot prove.

HOW WE ACTUALLY KNOW THIS

The evidence in this part is worse than in any other, and the reason is the subject.

Strong: the law. The Fifth and Sixth Schedules, the Panchayats (Extension to Scheduled Areas) Act 1996, the Forest Rights Act 2006, the Armed Forces (Special Powers) Act 1958 and its notifications, and the judgments in *Samatha* and *Niyamgiri*. All published, all checkable.

Strong: the census. Scheduled Tribe populations, district by district, decade by decade.

Weak or absent: almost every number about what was done. Displacement, land alienated, land restored, deaths in operations, compensation actually paid. These are estimates by researchers, or state-level figures that have never been added up.

Which produces the asymmetry that governs this whole part: **India has excellent records of what it promised these people and almost none of what it did to them.**

An **Argument** box appears where serious people disagree, each side at its strongest.

THE ARGUMENT — IS THIS THE PRICE OF DEVELOPMENT?

The framing question, and the case for the state is stronger than it is usually allowed to be.

SOMEBODY ALWAYS PAYS, AND INDIA COULD NOT HAVE WAITED

Every industrialising country has moved people for dams, mines and cities, and none has done it gently. India in 1947 had famines within living memory, no power, no steel and no irrigation beyond the colonial canals. The dams and mines built since have fed and powered a country of a billion and a half. The alternative to displacing people from a valley is not a happier valley; it is no reservoir, no electricity, and a different set of people paying with their lives in a drought. That is a real trade and the people who denounce it have generally been on the receiving end of the benefits.

THE TRADE WAS NEVER MADE — THE COST WAS ASSIGNED

Nobody disputes that development imposes costs. The objection is to who bore them and how it was decided. Scheduled Tribes are around eight per cent of India's population and something between forty and sixty per cent of those displaced. That is not a trade-off, it is a distribution, and it was produced by a rule: land held communally, without individual title, in areas the state classified as its own forest, is the cheapest land in India to take. The people who paid were selected by a property system, not by a calculation about the common good.

Where things stand: the second side is stronger and the first side's premise is correct and should not be lost. The decisive point is Part Five's, arriving in a new setting: this was a **transfer**, not a cost. The electricity, the steel and the irrigation went somewhere, and the somewhere was mostly not the districts the reservoir is in — Chapter Six shows the districts that supplied the resources ranking among the poorest in India after seventy years of supplying them.

What would settle it: a project-by-project comparison of where the output went against where the displaced people ended up. The material exists in project files. Nobody has assembled it.

Why people care so much: because the first argument is the one every Indian government of every party has made, and the second is the argument of an insurgency that has cost tens of thousands of lives.

A **Hidden Assumption** box digs out a belief sitting underneath an argument that *both sides accept without discussing*.

THE HIDDEN ASSUMPTION

Everybody who writes about these regions — sympathetically or otherwise — assumes **that they are remote.**

It is in the vocabulary. Remote areas. Interior districts. Backward regions. The last mile. Places the state has not yet reached, where development has not yet arrived, where administration is thin because the terrain is difficult and the population is scattered.

Look at what is actually in them.

India's coal is there. Its iron ore, its bauxite, its manganese and its uranium are there. The rivers that were dammed run through them. Roughly a fifth of India's forest cover, and the catchments that supply the reservoirs the plains depend on.

A place from which a country extracts its coal, its iron and its electricity is not remote. It is **central**, and the state's presence in it is not thin — it is enormous, and it consists of mines, dams, forest departments, project authorities and armed police.

The word "remote" describes one specific thing accurately: the absence of the parts of the state that deliver rather than take. Schools, clinics, courts, land records, banks. Those are thin. The extractive apparatus is not.

So the standard prescription — that these places need development to reach them — misdescribes the situation completely. Development reached them first. It reached them in the 1950s, before it reached most of India, because that is where the coal was.

What did not reach them was the other half of a state: the half that records who owns what, hears a complaint, enforces a protection and counts the dead. Every chapter of this part is about the gap between those two halves, and the gap is not a matter of distance.

And every chapter closes with a **Remember This** box: the chapter in the plainest words available.

REMEMBER THIS

Around **sixty million people** displaced since 1947, about a quarter resettled — and the figure is **a scholar's estimate, not the government's**. There is no official national count.

India has excellent records of what it promised these people and almost none of what it did to them.

These places are not remote. The coal, iron, bauxite and dams are there. What is thin is not the state but the half of it that delivers rather than takes.

Part Thirteen

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CHAPTER ONE

Who This Part Is About

More people than live in Russia. Twelve parts of this series have mentioned them roughly twice, and that is the ordinary proportion.

1.1 — The numbers

Around **eight and a half per cent** of India's population is classified as Scheduled Tribe. On present figures that is something in the order of **a hundred and twenty million people**, and the count is conservative because the classification is a legal one and not everybody who lives as these communities live is on the list.

Add the populations of the north-eastern states, where the Sixth Schedule and separate constitutional arrangements apply, and the total this part concerns is around a hundred and fifty million.

Where they are, in outline:

Central and eastern India. A belt running roughly from Gujarat and Rajasthan through Madhya Pradesh, Maharashtra and Chhattisgarh into Jharkhand, Odisha, Telangana and Andhra Pradesh. This is where the Fifth Schedule applies, in ten states.

The north-east. Assam, Meghalaya, Tripura and Mizoram under the Sixth Schedule; Nagaland, Arunachal Pradesh and Manipur under separate provisions and separate histories.

Elsewhere — the Nilgiris, the Andaman and Nicobar Islands, pockets across the Himalaya and the Western Ghats.

HOW WE ACTUALLY KNOW THIS

The population figures in this chapter are the strongest numbers in the whole part, and it is worth being clear why they are so much better than everything that follows.

The census. Scheduled Tribe population has been enumerated at every decennial census, by district, with the classification fixed by presidential order. It is one of the oldest continuous statistical series in India.

Which produces the asymmetry this part keeps returning to. The Indian state knows precisely **how many** of these people there are and **where** they live, to the village. It has known for a century.

What it does not know is what has happened to them, and Chapter Seven is the list.

What the census cannot show: the boundaries of the category. Inclusion in the list is a political and administrative decision, revised by order, and communities have been added and have campaigned for decades to be added. So the figure is exact about a legal class and approximate about a social reality — which is why this chapter gives a range once the north-east is included.

SOLID: the population, the share, the district distribution.

1.2 — Why they have not appeared

Twelve parts of this series have covered elections, constitutional amendments, wars, judgments, massacres and scandals, and have barely mentioned any of this.

That is not carelessness and it is worth being exact about the mechanism, because the mechanism is the subject.

Electoral arithmetic. A hundred and twenty million people spread across ten states in scattered districts do not decide national elections. Seats are reserved, which guarantees representation and does not guarantee leverage: a reserved seat is still won by a party that needs a national majority, and its holder is bound by Part Twelve's Tenth Schedule.

Absence from the record. Almost every part of this series has been built on documents — judgments, commission reports, gazettes, parliamentary answers. Those documents exist where the state's recording apparatus operates. The front matter's hidden assumption is the reason it operates thinly here.

No single event. Indian political history is organised around events with dates. What this part describes has no date. It is a continuous condition, and continuous conditions do not enter a chronology.

Which is the honest reason this is Part Thirteen and not Part Two.

WORD BOX

Scheduled Area: territory formally designated under the Fifth Schedule, where special rules about land apply.

The designation is not the same as where Scheduled Tribes live. Large tribal populations live outside Scheduled Areas and receive none of the land protections; and the boundaries, drawn from colonial classifications, have been revised rarely.

That gap does quiet work throughout this part. A protection attached to a *place* rather than to a *person* protects whoever is standing in the right square, and the squares were drawn in 1950 on nineteenth-century lines.

Why it matters here: it is one of the reasons the figures in Chapter Seven would be hard to compile even if somebody wanted to — the protected category and the affected population are not the same set.

The scale is the part most readers have never had put to them plainly.

IN REAL TERMS

A hundred and fifty million people is more than the population of Russia, or Japan, or Mexico.

If it were a country it would be the ninth or tenth largest on earth.

Now consider that this series has produced twelve books on Indian public life since 1947, running to well over two hundred thousand words, and that before this page they have contained perhaps two dozen sentences about these people.

That proportion is not unusual. It is close to the proportion in most general histories of independent India, and in the syllabus of most Indian schools.

Which raises a fair objection to this part's own framing, and it should be dealt with before the chapters rather than after.

THE ARGUMENT — IS THIS ONE SUBJECT OR MANY?

This part puts the Nagas, the Gonds, the Santhals, the Bhils and the Dongria Kondh in one book. That is a choice and it is criticised.

IT IS SEVERAL HUNDRED SUBJECTS AND THIS FLATTENS THEM

A Naga village in the hills and a Bhil settlement in Rajasthan share a legal designation and almost nothing else — not language, not religion, not economy, not history, not what happened to them. The north-east's grievance is about political status and identity; central India's is about land and extraction. Treating them together produces exactly the abstraction that has made these communities invisible: a category rather than peoples, which is how administrations have described them since 1874 and part of why nothing specific ever gets done.

THE STATE TREATED THEM AS ONE, SO THE RECORD IS ONE

The unity in this part is not cultural, and it is not claimed to be. It is that the Indian state has applied a common set of instruments to all of them — a common constitutional category, a common property regime that recognises only recorded title, a common pattern of acquisition, and in several regions a common special powers Act. When one actor uses the same tools on many different people, the tools are a legitimate subject, and describing them requires putting the cases side by side.

Where things stand: the first side's warning is correct and the second's justification holds. This part is about **what was done, not about who it was done to**, and it separates the regions wherever the mechanism differs — Chapter Six's section 6.4 does exactly that, refusing to transfer an argument from central India to the north-east because the sequence does not hold there.

What would settle it: nothing evidential. It is a question about how to write, not about what happened.

Why people care so much: because the flattening is real and has consequences, and because the alternative — several hundred separate accounts — is how a subject stays permanently unaddressed.

With that settled, the rest of this part proceeds on the second position, and the reader should hold the first as a running caution.

REMEMBER THIS

Around **8.5 per cent** of India's population is classified as Scheduled Tribe — roughly **120 million people**, and about 150 million including the north-eastern populations this part covers.

They are in a belt from Gujarat to Odisha under the **Fifth Schedule** in ten states, and in the north-east under the **Sixth Schedule** and separate arrangements.

Three reasons they have not appeared: **they do not decide national elections, the documentary record is thin where the recording apparatus is thin, and there is no single dated event.** Continuous conditions do not enter a chronology.

CHAPTER TWO

What Was Promised

The constitution contains two entire Schedules written to protect these people's land. They are not weak documents. What they are is a set of protections handed to the wrong people to enforce.

2.1 — The Fifth Schedule

The Fifth Schedule applies to Scheduled Areas in ten states of central and eastern India. Its central provisions are two.

The Governor may make regulations prohibiting or restricting the transfer of land by members of Scheduled Tribes, regulating moneylending to them, and regulating the allotment of land.

A Tribes Advisory Council is to be constituted in each state, consisting largely of members of the legislature belonging to Scheduled Tribes, to advise on their welfare and advancement.

The Governor is also required to report annually to the President on the administration of the Scheduled Areas, and the Union may give directions to the state about it.

Read as text, that is substantial. A constitutional power to prohibit land transfer, held by a central appointee rather than by the state government, with a reporting duty attached.

2.2 — The Sixth Schedule

The Sixth Schedule applies to tribal areas in Assam, Meghalaya, Tripura and Mizoram, and it is a fundamentally different instrument.

It creates **Autonomous District Councils** — elected bodies with actual legislative power over land, forests other than reserved forests, water for agriculture, inheritance, marriage, social custom, village administration and the appointment of village-level authorities. They can levy certain taxes and constitute village courts.

That is not an advisory body. It is a subordinate legislature with a defined field, and it is the most substantial devolution anywhere in the Indian constitution.

Chapter Eight returns to what these councils have actually delivered, because the answer is more positive than anything else in this part.

2.3 — What was added later

Two statutes matter. One was passed by a Congress-led government and one was not, and this part says which.

The Panchayats (Extension to Scheduled Areas) Act, 1996, generally called PESA, enacted in December 1996 under a United Front government. It extended the panchayat system of Part Twelve's Chapter Seven to Fifth Schedule areas with modifications, and it gave the gram sabha — the assembly of every adult in a village — powers that are, on paper, among the strongest held by any local body in India.

The gram sabha is to be consulted before land acquisition. It has the power to prevent alienation of tribal land and to take action to restore land unlawfully alienated. It owns minor forest produce. It is to be consulted before minor mineral leases.

The Forest Rights Act, 2006, enacted under a Congress-led government. It recognises rights that were never recorded: individual occupation rights over forest land, and community rights over forest resources, including ownership of minor forest produce. It requires gram sabha consent before forest land is diverted.

The Act's preamble contains an admission unusual in Indian legislation: that these communities' rights were **not recorded** during the consolidation of state forests, and that a historical injustice resulted.

2.4 — Who enforces it

And here is the whole of this chapter.

The Fifth Schedule's land protection is exercised by the **Governor**, who acts on the advice of the state government.

PESA required **state governments** to make rules bringing their panchayat laws into conformity. Many took a decade or more. Several diluted the provisions in the rules.

Restoration of alienated land is the responsibility of the **state revenue administration**.

Diversion of forest land requires the consent of a gram sabha, certified by the **district administration**.

In every case, the body that must enforce the protection is the body that wants the land — because the state government is the licensor of the mine, the promoter of the dam, and the recipient of the royalty.

WORD BOX

Gram sabha: the assembly of all adult residents of a village, as distinct from the elected panchayat, which is a committee.

The distinction matters enormously in this part. A panchayat can be captured — five or seven people can be persuaded, bought or pressured. A gram sabha is everybody, meeting in one place, and it is the hardest body in Indian public life to buy.

Which is why PESA and the Forest Rights Act vest their consent powers in the gram sabha and not the panchayat, and why Chapter Eight's one clear success came from twelve of them voting.

Why it matters here: it is also why the fight over these laws has been about *who certifies* that a gram sabha met and what it decided.

The difference between the two Schedules is easiest to see if you ask what each one actually puts in a person's hands.

IN REAL TERMS

Compare the two Schedules as instruments a person could actually use.

Under the **Sixth**: your district council makes the law on land. You elect it. If it allows something you object to, you vote it out at the next election.

Under the **Fifth**: the Governor may make a regulation. The Governor acts on the advice of the state government. You do not elect the Governor. The Tribes Advisory Council advises and cannot decide. If a regulation is not made, or is not enforced, there is nobody you can remove.

Both are in the same constitution, written by the same assembly, in the same year, for the same purpose.

One of them gives the protected population an instrument it can operate. Chapter Eight records which one still has its land.

Which raises the obvious question about why the two were written so differently.

THE ARGUMENT — SHOULD THE FIFTH SCHEDULE HAVE BEEN THE SIXTH?

The comparison is unavoidable once the two are set side by side, and there is a real case on both sides.

THE DIFFERENCE WAS A JUDGMENT ABOUT SCALE, NOT ABOUT WORTH

The Sixth Schedule areas were compact, remote, overwhelmingly tribal, and had been administered separately under colonial rule as excluded areas. Autonomous councils were workable there because the territory was homogeneous. The Fifth Schedule areas are scattered pockets inside large states with mixed populations, often a minority even within their own districts. Carving out subordinate legislatures across seven states with mixed populations would have created a permanent boundary dispute in each, and the constituent assembly judged that a protective power exercised from above was more practical than a devolved one.

THE DIFFERENCE TRACKED LEVERAGE, AND PRODUCED THE OUTCOME

The Sixth Schedule areas had recently been in armed or political conflict over their status, and had negotiating strength; the Fifth Schedule populations did not. That is a better predictor of which arrangement each got than any assessment of workability. And the practical objection is answered by what actually happened: seventy-five years later, one arrangement has kept its land and the other has not, which is a heavy price for administrative convenience.

Where things stand: the first side's account of the reasoning is accurate and the second is right about the result. The reconciling point is that the workability objection applied to *autonomous councils* specifically, not to **giving the protected population an enforceable instrument** — and nothing prevented the Fifth Schedule from doing the second without the first, which is Chapter Nine's first rule.

What would settle it: the constituent assembly debates on the two Schedules, which are published and have never been analysed comparatively on this question.

Why people care so much: because proposals to extend Sixth Schedule status to areas in central India are live right now and are resisted on exactly the first argument.

Underneath the whole discussion, though, is a way of describing what went wrong that is shared by people who agree on nothing else.

THE HIDDEN ASSUMPTION

Everybody who writes about tribal land in India assumes **that the Schedules failed to protect.**

Critics say the protections were inadequate, unimplemented, a dead letter. Defenders say the law is strong and enforcement is imperfect, as it is with all Indian law. Both are arguing about how well a protection worked.

The protections did not fail. **They were never given to anybody with an interest in enforcing them.**

Go through section 2.4 again as a question about incentives rather than about capacity. Who may prohibit land transfer? A Governor, who acts on state advice. Who makes the rules under PESA? The state. Who restores alienated land? The state's revenue officers. Who certifies that a gram sabha consented? The district administration.

And who grants the mining lease, promotes the irrigation project, receives the royalty and answers to an electorate in which these communities are a small minority? The same state government.

That is not weak enforcement. It is an enforcement architecture in which the protected party has no instrument it can operate itself, and the party with the contrary interest holds every one.

Which explains a pattern that otherwise looks like coincidence: every genuine advance in this area has come from a body **outside** that architecture. The Supreme Court in *Samatha*. The Supreme Court in *Niyamgiri*. And a gram sabha, which is the one decision-making body in the chain whose membership is the protected population itself.

The general rule this series keeps arriving at from different directions: **a right is worth the independence of whoever enforces it.** Part Eleven found it in a police force investigating itself. This is the same finding in property law, and it is seventy-five years old.

Which is the chapter, and everything that follows in Part Thirteen is what happened underneath it.

REMEMBER THIS

The **Fifth Schedule** lets a Governor prohibit transfer of tribal land in ten states. The **Sixth Schedule** creates Autonomous District Councils with real legislative power over land — the most substantial devolution in the constitution.

PESA 1996 gave gram sabhas power to prevent alienation and restore land. The **Forest Rights Act 2006** admits in its preamble that these rights were never recorded and that a historical injustice resulted.

The protections did not fail. They were handed to the party with the contrary interest. The state that must enforce them is the state that licenses the mine and takes the royalty.

CHAPTER THREE

The Land That Moved Anyway

Five mechanisms, none of them illegal, by which land the constitution protects has changed hands for seventy-five years.

3.1 — The mechanisms

Land does not usually leave these communities by a transaction anybody would call theft. It leaves by procedure, and the procedures have names.

Eminent domain. Until 2013 the Land Acquisition Act of 1894 — a colonial statute — permitted the state to take any land for a public purpose on payment of compensation assessed at market value. Where there is no market because land is held communally and rarely sold, the assessed value is whatever the collector determines. The Act required no consent from anybody.

Forest classification. Large areas that communities had occupied for generations were recorded as state forest during and after colonial consolidation, without their rights being entered. The Forest Rights Act's preamble says this. The consequence is that people living on land for a century were, on the record, encroachers on government property.

Benami and the fraudulent transfer. Where transfer to a non-tribal is prohibited, the transaction is conducted through a tribal name-holder, or as a long lease, or as a mortgage that is never redeemed. Restoration requires the revenue administration of section 2.4 to act.

Debt. Land passing to a moneylender against a loan, at a valuation set by the lender. The Fifth Schedule expressly empowers the Governor to regulate moneylending, which is a measure of how old and well understood the problem is.

Protected areas. National parks and sanctuaries declared over inhabited land, with residents relocated as a condition of conservation.

Note what these have in common. Not one requires anybody to break a law. Each is a lawful procedure operating on a population without recorded title, in a system where title is the only thing a procedure recognises.

IN REAL TERMS

Consider what a land record actually does.

If your family has farmed four acres for a hundred and fifty years and there is a paper saying so, then acquisition means a notice, a valuation, a hearing and a cheque. The paper does not stop the acquisition. What it does is make you **visible to the procedure**.

If there is no paper, you are not a landowner losing land. You are, on the file, a person occupying government forest.

Same field. Same century and a half. The entire difference between compensation and eviction is one entry in a register that somebody was supposed to make in about 1880 and did not.

Almost everything in this part follows from that one absence, which is why the 2006 Act's preamble had to begin by admitting it.

3.2 — Samatha, and after

In **1997** the Supreme Court decided *Samatha v. State of Andhra Pradesh*.

The question was whether a state government could grant mining leases over land in a Scheduled Area to non-tribal private companies. The state's argument was that the prohibition on transfer applied to persons, and that the government was not a person.

The Court held that it was. Land in Scheduled Areas, including government land, could not be leased to non-tribals for mining. Where minerals were to be extracted, it should be by the communities themselves or by cooperatives, with state support.

It is one of the strongest judgments on tribal land anywhere in Indian law.

What followed is instructive. Its application was confined largely to Andhra Pradesh. Other states took the position that it did not bind them. Attempts were made to amend the Fifth Schedule to overcome it. Mining leases in Scheduled Areas across the belt continued to be granted.

A judgment that requires an unwilling state government to act against its own revenue interest is a judgment that requires somebody to bring a fresh case in every state. Chapter Nine returns to this.

WORD BOX

Alienation of land: the legal term for land passing out of the hands of a protected group, whether by sale, lease, mortgage, fraud, encroachment or acquisition.

It is a deliberately wide word and the width is the point. Indian land law needed a term covering every route by which the thing happened, because the routes are many and only some of them involve anybody doing something unlawful.

Note what the word does *not* say. It does not say who took the land, or whether they were entitled to, or whether anything can be done about it. It describes a movement and assigns no responsibility, which is convenient for a statute and much less convenient for a person trying to find out what happened to a particular field.

Why it matters here: “land alienated” is the heading under which the missing figure in section 3.3 would sit, if anybody had ever compiled it.

3.3 — What the numbers are

Here this chapter stops, and the stopping is the point.

There is no national figure for how much land protected by the Fifth Schedule has been alienated. There is no national figure for how much has been restored.

State-level figures exist, in revenue records, in occasional committee reports and in scattered studies. They have never been compiled.

Chapter Seven is about that sentence, which appears in this part more often than any other.

HOW WE ACTUALLY KNOW THIS

The mechanisms in section 3.1 are documented in an unusual way: **by the laws written to stop them.**

You do not empower a Governor to regulate moneylending unless land is being lost to moneylenders. You do not give a gram sabha power to restore unlawfully alienated land unless land is being unlawfully alienated. You do not legislate in 2006 that rights were never recorded unless they were not recorded.

Every mechanism in this chapter has a statutory provision aimed at it, which means the Indian state has identified each one, in writing, and said so.

SOLID: *Samatha* and its terms; the text of the 1894 Act and its absence of a consent requirement; the Forest Rights Act preamble.

What none of it can show: quantity. This chapter can establish what happened and cannot establish how much, and section 3.3 says so rather than reaching for an estimate.

There is also a serious argument that the protections themselves are part of the problem, and it should be heard at full strength.

THE ARGUMENT — IS COMMUNAL LAND TENURE THE REAL PROBLEM?

A serious argument holds that the protections are themselves the trap. It deserves stating properly because it is made by people who want these communities better off.

RESTRICTION ON SALE IS A RESTRICTION ON VALUE

Land that cannot be sold cannot be mortgaged, and land that cannot be mortgaged cannot raise capital. The prohibition on transfer freezes a community's principal asset out of the economy, which means the owner of forty acres in a Scheduled Area cannot borrow against it to educate a child or start a business, while an owner of two acres in Punjab can. The protection has kept the land and kept the poverty, and the market has found its way round it anyway through the devices in section 3.1 — at prices far below what an open sale would fetch.

THE RESTRICTION IS A RESPONSE TO WHAT HAPPENS WITHOUT IT

The prohibition exists because the alternative was tried. Wherever these restrictions were absent or lapsed, land moved rapidly and did not come back, and the sellers did not become capitalists — they became labourers on land they had owned. The problem with the argument from capital is that it assumes the seller can convert a lump sum into a livelihood, and the record of people who received compensation for acquired land is the direct evidence against it: a quarter were resettled and the money did not substitute for the land.

Where things stand: the second side is stronger on the evidence and the first identifies a real cost that is rarely admitted by defenders of the Schedules. The reconciling position is that the restriction is not the problem and is not the solution either — what is missing is **recorded individual and community title**, which the Forest Rights Act began to create in 2006 and which is the thing that would make either policy workable.

What would settle it: comparing outcomes where forest rights titles have actually been issued against comparable areas where they have not. The data is being generated now and nobody has analysed it.

Why people care so much: because the first argument is used to justify removing the protections and the second to justify keeping a system that has not worked, and both sides use the other's failure as their own case.

What the chapter establishes, and what it declines to, comes to this.

REMEMBER THIS

Five mechanisms, **none of them illegal**: eminent domain under an 1894 statute requiring no consent; forest classification that recorded occupants as encroachers; benami transfers; debt; and protected areas.

Samatha (1997) held that government land in Scheduled Areas could not be leased to non-tribals for mining. Its application was confined largely to one state and leases continued elsewhere.

There is no national figure for how much protected land has been alienated, or how much restored. That sentence appears in this part more than any other.

CHAPTER FOUR

Displacement

Sixty million people. The figure is the most cited in the field, it is probably conservative, and it does not come from the Indian government.

4.1 — Where the number comes from

The estimate generally used for people displaced by development projects in India between 1947 and 2000 is **more than sixty million**. It comes from the work of Walter Fernandes, a researcher who spent decades compiling state-level databases.

An earlier and narrower estimate by the same researcher with a colleague put the figure at **at least 21.3 million** for a shorter period and a narrower set of project types. The gap between the two is not a disagreement; it is the difference between what had been compiled at two points in time, and it indicates the direction the number moves as more records are examined.

Be clear about what these figures are. They were assembled **project by project and state by state**, from land acquisition records, project reports and district files, by researchers who went and looked.

They are not a government count. There is no government count. Chapter Seven is about that.

4.2 — What it rests on and what it does not

The estimate's strength is that it is built from the state's own project records, which means each component is documented even though the total is not.

Its weaknesses are three and this part states them rather than glossing them.

Definitions vary. Displaced persons — those physically moved — and project-affected persons, who lose land or livelihood without moving, are counted differently in different studies.

Coverage is uneven. Some states have been studied thoroughly and others barely.

Official records understate. Land acquisition files record title-holders. A household with no recorded title — which, as Chapter Three established, describes a very large share of the people concerned — may not appear in the file at all.

That third point matters most, and it runs one way. It means **sixty million is a floor**.

HOW WE ACTUALLY KNOW THIS

The sixty million figure deserves a full account of its provenance, because this part leans on it and because it is the most attacked number in the field.

Method: state-by-state databases built from land acquisition awards, project completion reports, district gazetteers and departmental records — that is, from the state's own paperwork, examined by researchers who went to the offices.

Not a projection. It is not a rate applied to a population or a model extrapolated from a sample. It is a sum of counted components, which is why it rises as more states are covered rather than moving in both directions.

The honest weaknesses are in section 4.2 and this part states them rather than defending the number.

What it cannot show: outcomes. The databases record how many were displaced, not what happened to them afterwards. Everything in section 4.4 comes from separate studies of particular projects, which are consistent with each other and are not a national sample.

And the reason a researcher had to do this at all is Chapter Seven.

4.3 — Who they were

Between 1951 and 1990, on these estimates, more than **8.5 million Scheduled Tribe people** were displaced.

Set that against the population share. Scheduled Tribes are around eight and a half per cent of India, and they are commonly estimated at something between forty and sixty per cent of those displaced.

That is a ratio of roughly five or six to one.

The cause is not mysterious and it is not malice. It is the intersection of two facts: the minerals and the dam sites are where these communities live, and their land is the cheapest in India to acquire, because Chapter Three's mechanisms operate on land without recorded individual title.

4.4 — What resettlement means

Roughly **a quarter** of those displaced were resettled in any organised way. The remaining three-quarters were not.

And “resettled” needs unpacking, because the word conceals the whole of the problem.

A cultivator displaced from land receives compensation assessed on the land. He does not receive land. Whether he can buy comparable land with the money depends on whether comparable land is available near where he now is, which after a reservoir has filled it generally is not.

A family whose income came from forest produce — which is not owned, not titled and not valued — receives nothing for it, because it was not on the file.

A community moved is a community dispersed, and the arrangements that made subsistence possible — grazing rights, shared labour, the network of relations Chapter Three describes — do not travel.

Which is why the outcome that recurs in every study is the same: **a landholder becomes a labourer**. Not immediately, and not because the compensation was zero, but because a lump sum is not a livelihood and the thing that was taken was a livelihood.

WORD BOX

Rehabilitation, resettlement and compensation: three different things, routinely used as if they were one.

Compensation is money for what was taken, valued by the acquirer.

Resettlement is being given somewhere to live.

Rehabilitation is being restored to a comparable livelihood — the only one of the three that measures whether the person is as well off as before.

Why it matters here: the figure of roughly a quarter is for *resettlement*. The proportion **rehabilitated** — restored to a comparable living — has never been established nationally for any period, and the project-level studies that exist put it far lower.

The scale is easier to hold against something familiar.

IN REAL TERMS

Sixty million over fifty-three years is more than a million people a year, every year, for half a century.

It is roughly one in every twenty Indians alive today, or their parents or grandparents.

Set beside the largest displacements in modern history it sits in the same category as Partition — which moved somewhere between ten and twenty million people over a few years and is the defining trauma of the Indian twentieth century, taught in every school.

This is three to six times larger, took place over five decades, and has no name.

All of which rests on a way of describing the thing that almost nobody examines, including the people who denounce it.

THE HIDDEN ASSUMPTION

Everybody who argues about this — those who defend the dams and those who oppose them — assumes **that displacement is a cost of development.**

The defenders say it is a cost worth paying. The critics say the cost was too high or was paid by the wrong people. Both are using the vocabulary of a price: something was bought, and this is what it cost.

A cost is borne by the person who obtains the benefit. That is what makes it a cost rather than something else.

Part Five established the vocabulary for what this actually is. **It is a transfer.** The reservoir irrigates a plain a hundred and fifty kilometres away. The coal fires a power station in another state. The bauxite becomes aluminium in a smelter somebody else owns. The output goes to people who are not the people who moved.

And the check is the same one Part Five used. If it were a cost, the districts that bore it would have grown richer as the projects matured, because the benefit would have accrued where the price was paid. Chapter Six shows what actually happened to those districts.

The framing does real work for both sides, which is why neither abandons it. For the defenders, “cost” implies necessity and a calculation somebody made responsibly. For the critics, “cost” allows the remedy to be compensation — pay a fair price and the transaction becomes just.

But if it is a transfer, compensation is not the remedy, because the question is not whether the price was fair. It is why one population supplies the inputs and another receives the output, and no payment answers that.

Part Five’s finding, arriving in a new form: **the winner experiences success, the loser experiences failure, and neither of them sees the pipe.**

Chapter Six puts that claim to a test with dates and district figures. First, the instrument used where the transfer was resisted.

REMEMBER THIS

More than sixty million displaced between 1947 and 2000. The figure is a researcher's, assembled project by project from state records. **It is a floor**, because households without recorded title do not appear in acquisition files.

Scheduled Tribes are about **8.5 per cent** of India and something between **forty and sixty per cent** of the displaced. About **a quarter** were resettled in any organised way.

This is not a cost, it is a transfer. A cost is borne by whoever gets the benefit, and the output went somewhere else.

CHAPTER FIVE

Sixty-Seven Years

It descends from an ordinance the British made in 1942 to crush the Quit India movement. It has been in force somewhere in India continuously since 1958.

5.1 — Where it comes from

On **15 August 1942** the colonial government promulgated the Armed Forces Special Powers Ordinance, to suppress the Quit India movement.

Five years later that framework was invoked for the disturbances of Partition. In 1955 Assam enacted a Disturbed Areas Act. In **May 1958** the President promulgated the Armed Forces (Assam and Manipur) Special Powers Ordinance, and on **11 September 1958** Parliament replaced it with an Act.

The date deserves noting for what else was happening. Part Three's Chapter Two describes the same Parliament, in the same years, using its majority to amend the constitution repeatedly. Part Two's Chapter Nine describes preventive detention being renewed. This was a legislature entirely comfortable with special powers.

In **1972** the Act was amended so that the **central government** could declare any area disturbed, without the consent of the state concerned.

Hold that amendment. It is the reason section 5.4 ends as it does.

5.2 — What it permits

In an area declared disturbed, any commissioned or non-commissioned officer may:

Fire upon or otherwise use force, even to the causing of death, against a person contravening a prohibitory order or carrying weapons, after giving such warning as he considers necessary.

Arrest without warrant, on suspicion, using such force as may be necessary.

Enter and search any premises without a warrant.

Destroy structures used as hideouts or as arms dumps.

And then **section 6**, which is the operative provision of the entire Act:

No prosecution or other legal proceeding may be instituted against any person for anything done under the Act **except with the previous sanction of the central government.**

5.3 — Where, and for how long

It has been withdrawn from Mizoram in the 1980s, from Tripura in 2015, and from Meghalaya in 2018. Those are real and they belong in Chapter Eight.

As of the most recent notifications, it remains in force in parts of **Nagaland, Manipur, Arunachal Pradesh and Assam**, extended by six-month declarations — the latest running to March 2026. It applies separately in Jammu and Kashmir under a 1990 Act.

Which means: **an Act described as extraordinary has been continuously in force somewhere in India for sixty-seven years**, renewed every six months, in territory whose inhabitants are Indian citizens with the same constitutional rights as everybody else.

IN REAL TERMS

Sixty-seven years is long enough for a child born under the Act in Nagaland in 1958 to have become a grandparent under it.

It is longer than the Emergency of Part Nine by a factor of about thirty-two. Longer than every war India has fought, added together, many times over.

It is longer than the entire period from the Act's ancestor in 1942 back to the First World War.

And it is renewed by a notification of a few lines, every six months, one hundred and thirty-odd times, without a debate, a report or a reason.

5.4 — What has been established, and what happened to it

Four bodies and a court have examined it.

In **1997**, in *Naga People's Movement of Human Rights*, the Supreme Court upheld the Act's constitutional validity while laying down safeguards on the use of force and the investigation of complaints.

In **2005** a committee under Justice B.P. Jeevan Reddy, appointed by the government, recommended **repeal**. It described the Act as too sketchy, too bald and quite inadequate, and proposed that necessary provisions be inserted into ordinary anti-terror legislation instead. The report was not acted on.

From **2000 to 2016**, Irom Sharmila conducted a hunger strike in Manipur demanding repeal. Sixteen years.

In **2013** a committee under Justice Santosh Hegde, appointed by the Supreme Court, examined a sample of alleged encounter killings in Manipur and found that none of those it examined was a genuine encounter.

In **2016**, in the case brought by families of those killed, the Supreme Court held that there is **no blanket immunity**, that the armed forces cannot claim absolute protection, and that every death caused by them must be investigated where there is a complaint of excess.

And then **December 2021**, in Mon district, Nagaland, where security forces killed thirteen civilians and a fourteenth died the following day. The state cabinet formally recommended repeal. The Chief Minister called it a draconian law and pointed out that the insurgent groups had been in ceasefire for around twenty-five years.

The Nagaland government sought to prosecute the personnel involved. **Sanction was refused under section 6.**

And the six-month declarations continued.

WORD BOX

Sanction to prosecute: a requirement that a designated authority give permission before a public servant can be tried for something done in the course of duty.

It is not unusual in itself. Most legal systems protect officials from vexatious prosecution for official acts, and Indian criminal procedure contains a general version of it.

What section 6 does differently is two things. The sanctioning authority is the **central government** — not a court, not the state whose citizens are affected. And there is no time limit, no duty to give reasons, and no effective appeal against refusal.

Why it matters here: a right without a remedy is not a right, and this is the provision that converts everything in section 5.2 from a regulated power into an unreviewable one. It is also why the 2016 judgment mattered and why Mon shows its limits.

YEAR	BODY	WHAT IT FOUND	WHAT FOLLOWED
1997	Supreme Court	The Act is constitutionally valid, subject to safeguards on the use of force and the investigation of complaints.	Declarations continued.
2005	Jeevan Reddy Committee	Repeal. The Act is too sketchy and inadequate; move what is needed into ordinary anti-terror law.	Not acted on.
2013	Santosh Hegde Committee	None of the sampled Manipur encounters was genuine.	Declarations continued.
2016	Supreme Court	No blanket immunity. Every death must be investigated where excess is alleged.	Declarations continued.
2021–23	Nagaland state cabinet	Recommended repeal after fourteen civilian deaths at Mon; sought to prosecute.	Sanction refused under section 6.

Which is a record with an unusual property: nothing in the right-hand column varies.

THE ARGUMENT — DOES THE ARMY NEED THIS ACT?

The professional case is not a bad-faith case and it is rarely stated properly by people who want repeal.

WITHOUT IT YOU CANNOT DEPLOY SOLDIERS AT ALL

A soldier is not a policeman. He is trained to close with and kill an enemy, not to make arrests, preserve a scene and give evidence. If you send the army into an internal conflict — which a government does only when the police have already failed — you must either give it a legal framework matched to what it is trained to do, or accept that every operation exposes a nineteen-year-old to prosecution for following an order. Section 6 exists because officers will not commit troops where the legal position is that each of them is personally liable afterwards. Remove it and the practical result is not gentler operations; it is that the army refuses the task and the conflict is handled worse.

THE ACT'S OWN HISTORY IS THE ANSWER

The argument proves at most that a framework is needed, not that this one is. The government's own committee said exactly that in 2005 — repeal the Act and place what is genuinely required in ordinary law, with safeguards. And the practical claim is testable: the Act has been withdrawn from three states and the armed forces did not refuse to operate in any of them. What the professional case cannot reach is the actual complaint, which is not that immunity exists but that it is granted by the executive, without reasons, without a time limit, and against a state government's formal request.

Where things stand: the second side is stronger and the first identifies something the repeal argument usually skips — that a soldier deployed internally does need a defined legal position, and shouting about impunity does not supply one. The convergence is Chapter Nine's fifth rule: **keep the protection and move the decision to a court.** That answers the professional objection completely, because an officer is protected by a judicial finding at least as well as by a ministerial refusal.

What would settle it: what actually happened to operational effectiveness in Tripura and Meghalaya after withdrawal. Nobody has published it.

Why people care so much: because one side is arguing about a nineteen-year-old in a patrol and the other about a family at Mon, and both of those are real.

Which leaves a question about what kind of law this actually is.

THE HIDDEN ASSUMPTION

Everybody who argues about this Act — those demanding repeal and those defending it — assumes **that it is an emergency power.**

Its defenders say extraordinary situations require extraordinary measures. Its critics say the emergency has been manufactured or has passed. Both accept that the Act belongs to a category of law that is exceptional, temporary in principle, and to be judged by whether the exceptional conditions obtain.

Sixty-seven years is not an exception. **For everybody living in those districts it is simply the law,** and has been for their entire lives, their parents' entire lives, and in most cases their grandparents' too.

The word doing the work is “disturbed” — a declaration renewed every six months, by a central government, on no stated criteria, subject to no external test, and in at least one case over the formal objection of the state cabinet.

Part Seven found precisely this operation performed by a different word. Article 370 was headed “temporary”, and Part Seven's finding was that it was emptied over four decades while the heading stayed. Here the word is “disturbed”, and it has stayed for sixty-seven years while the conditions it describes have come and gone — insurgencies begun, negotiated, ended, and ceasefires held for a quarter of a century — without the declaration lapsing once.

This changes what the argument should be about. Asking whether the emergency justifies the powers assumes there is a mechanism by which the answer could matter. The 1972 amendment removed the state's consent; section 6 removed the courts' reach; four inquiries and a Supreme Court judgment have not altered a single declaration.

So the honest description is not an emergency power that has been overused. It is **a permanent legal regime applying to particular territories and the people in them,** renewed by a formality, which uses the vocabulary of emergency because that vocabulary is what makes it discussable.

Part Two's rule about instruments with no expiry, at the furthest extension this series has found.

Sixty-seven years of one instrument, in short, comes to this.

REMEMBER THIS

It descends from a **1942 colonial ordinance against Quit India**. The Act dates from **11 September 1958**. The **1972 amendment** let the centre declare any area disturbed **without the state's consent**.

Section 6 bars any prosecution without the central government's sanction. Repeal was recommended by a government committee in **2005** and the report was not acted on. The Supreme Court held in **2016** that there is no blanket immunity.

After **Mon in December 2021** the state cabinet asked for repeal and sought to prosecute. **Sanction was refused**. Sixty-seven years is not an emergency; it is the law of those places.

CHAPTER SIX

The Three Maps

Draw the Scheduled Areas. Draw India's mineral belt. Draw where the insurgency has been strongest. They are almost the same map, and the order in which they were drawn settles what that means.

6.1 — The overlap

Take the ten states with Fifth Schedule areas and look at the districts.

The first map is the Scheduled Areas: a belt through southern Madhya Pradesh, Chhattisgarh, Jharkhand, northern and western Odisha, eastern Maharashtra, and parts of Telangana and Andhra Pradesh.

The second map is minerals. The bulk of India's coal is in Jharkhand, Odisha and Chhattisgarh. So is most of its iron ore and its bauxite. The great river valley projects — Damodar, Mahanadi, Godavari, Narmada — run through or above these districts.

The third map is the insurgency. The districts described for two decades as the Red Corridor, where the Maoist movement has been strongest and where the security response has been heaviest.

The three maps overlap almost exactly. This is not disputed by anybody, and it is stated in Indian government documents.

6.2 — The order they were drawn in

Which of these came first decides everything about what the overlap means, so here is the sequence.

The minerals were always there.

The areas were scheduled in 1950, on the basis of colonial-era classifications going back to the nineteenth century. The designation recorded who lived there and that they required protection.

Extraction began immediately. The first great public sector projects of the 1950s — the steel plants, the Damodar Valley scheme, Hirakud, Rourkela — were built in these districts, in the first decade after independence. Part Four’s whole economic model was built on them.

The insurgency arrived last. The movement dates from 1967 in Bengal and became a significant presence in this belt from the late 1970s and through the 1980s — **twenty to thirty years after the extraction started.**

WORD BOX

Royalty: the payment a mining company makes to the state for the mineral it extracts.

It goes to the **state government**, into the general revenues, and is spent wherever the state decides. It does not go to the district, the village or the people displaced, and until recently no mechanism required any share to return to the place the mineral came from.

A district-level fund financed from mining contributions was created in 2015, which is a real change and is one of the reasons this part does not say nothing was ever done.

Why it matters here: royalty is the reason section 2.4 ends where it does. The state government that must enforce the land protection is the state government whose budget depends on the lease being granted.

6.3 — What the districts look like now

Here is the test the front matter’s argument box named.

If displacement were a cost, borne locally and repaid in local development, then seventy years of supplying India’s coal, iron and electricity should have made these districts prosperous.

They are among the poorest districts in India. On almost every measure — income, literacy, infant mortality, access to electricity — the mineral districts of Jharkhand, Odisha and Chhattisgarh rank at or near the bottom, and have done for decades.

A district that has exported coal for seventy years and has villages without a connection is not a district that received a cost and a benefit. It is a district at one end of a pipe.

6.4 — The north-eastern version

The same test, applied differently.

In the north-east the instrument of Chapter Five did not follow the insurgencies; in the Naga case it arrived with one. So the sequence argument in section 6.2 does not transfer directly and this part will not pretend it does.

What transfers is the second half. **The instrument has outlasted the conditions.**

Mizoram's insurgency ended by accord in 1986 — Part Twelve's Chapter Seven — and the Act had already gone. Nagaland's principal groups have been in ceasefire since 1997, and the declarations continue into 2026.

Twenty-nine years of ceasefire, and a state cabinet asking for repeal, has not altered a six-month notification.

6.5 — The ledger for this part

WHERE

WHAT THIS PART RECORDS

Jharkhand, Odisha, Chhattisgarh

The mineral belt. Fifth Schedule areas, the bulk of India's coal, iron ore and bauxite, the largest share of displacement, and the districts where the insurgency has been strongest. Among the poorest in India after seventy years of extraction.

Madhya Pradesh, Maharashtra, Telangana, Andhra Pradesh

Fifth Schedule areas. *Samatha* arose in Andhra Pradesh and was confined largely to it.

Nagaland, Manipur, Arunachal Pradesh, Assam

The Act of Chapter Five, in force by six-month declaration into 2026. Mon, December 2021: fourteen dead, sanction to prosecute refused.

Mizoram, Tripura, Meghalaya

The Act withdrawn — 1980s, 2015 and 2018. Chapter Eight.

Gujarat and the Narmada valley

The most documented single displacement in India, and the one that produced a national movement and a Supreme Court case.

HOW WE ACTUALLY KNOW THIS

The overlap in this chapter is unusually easy to verify, and that is worth saying because the claim sounds like the kind of thing that would be contested.

Map one is a list. Scheduled Areas are notified by presidential order, district by district, and published.

Map two is a list. Mineral reserves and production are published annually by state and district in official yearbooks.

Map three is a list. The districts classified as affected by left-wing extremism are named in Indian government documents and revised periodically.

Anybody can lay the three lists side by side in an afternoon. The overlap is not an interpretation and it is not disputed.

What none of it can show: causation. Three lists that coincide establish coincidence. The **sequence** in section 6.2 is what carries the argument, and the sequence rests on dates — 1950 for the designations, the 1950s for the projects, the late 1970s for the insurgency — each of which is independently documented.

What this chapter deliberately does not claim: that extraction produced the insurgency. Section 6.3 establishes an outcome and the hidden assumption box states the limit explicitly.

Which is where the standard account of these districts goes wrong, and it goes wrong in the same way from both directions.

THE HIDDEN ASSUMPTION

Everybody who discusses the security presence in these districts assumes **that the insurgency explains it.**

The government's version: an armed movement required a response. The sympathetic version: a brutal response radicalised a population. Both take the insurgency as the starting point and argue about what followed it.

The insurgency is the **last** of the three maps to be drawn.

The minerals were there before anybody. The areas were scheduled in 1950 precisely because the people living there were identified as needing protection. The mines, the dams and the steel plants arrived through the 1950s and 1960s. The insurgency became significant in this belt from the late 1970s.

Which reverses the causal arrow that both sides use. The heavy state presence in these districts is not a response to an armed movement — **it preceded the armed movement by two to three decades**, and what it consisted of was extraction.

This does not excuse the insurgency, and this part is not offering it as one. An armed movement that kills teachers, blows up buses and executes suspected informers is doing those things and Chapter Nine says so. Nor does it establish that grievance caused it; plenty of equally extracted regions produced no insurgency at all, and Part Ten made exactly this point about Punjab.

What it establishes is narrower and harder to dismiss. **The question “why is there so much armed force in these districts” has an answer that begins in 1951 and not in 1980**, and any account that starts with the insurgency has removed thirty years of the explanation before beginning.

And it explains why the standard prescription fails. Development is offered as the answer to the insurgency. But these are the districts that received development first, in its heaviest form, before almost anywhere else in India — and section 6.3 shows what they have to show for it.

Three lists, one sequence, and one outcome after seventy years.

REMEMBER THIS

Three maps — **Scheduled Areas, the mineral belt, and the insurgency** — overlap almost exactly, and the Indian government's own documents say so.

The order matters. **Minerals always; scheduled in 1950; extraction from the 1950s; insurgency from the late 1970s.** The heavy state presence preceded the armed movement by two to three decades.

Seventy years of supplying India's coal, iron and electricity has left these among **the poorest districts in India.** That is not a cost and a benefit. It is one end of a pipe.

CHAPTER SEVEN

The Counting

Part Two's rule for the fifth time. This case is different from the other four, and the difference produces a sharper version of the rule.

7.1 — The rule, and the four before this

Part Two established a test this series has used ever since. **A state that counts everything — its cattle, its rainfall, its literates, its telephone lines — does not fail to count something by accident. Where a count is missing, somebody decided it would be.**

Four applications so far, and each had a different mechanism.

The count never made. Part Two: no official enumeration of the dead of Partition was ever attempted, and the range historians use spans a factor of five.

The count made and withdrawn. Part Nine: the Shah Commission counted the detentions, the sterilisations and the deaths, and its report was recalled after the party it examined returned to office in 1980.

The count made by somebody else. Part Ten: a private citizen assembled evidence of secret cremations from firewood receipts because no official record existed. He was abducted and killed. A state agency later confirmed his method in one district.

The count made and not acted on. Part Eleven: 2,733 deaths established by an official committee, 587 police reports, and twenty-five convictions.

7.2 — What is not counted here

Now the list for this part.

How many people the Indian state has displaced. No official national figure. The number everybody uses is a researcher's.

How much land protected by the Fifth Schedule has been alienated. No national figure.

How much has been restored. No national figure.

How many people have been killed in operations in areas under the Act of Chapter Five, in sixty-seven years. No consolidated figure.

How many claims under the Forest Rights Act have been filed, granted and rejected, and on what grounds. This one is partially available and is the exception that shows the rest is a choice.

PART	WHAT WAS NOT COUNTED	MECHANISM
Two	The dead of Partition	Never made. No enumeration was attempted; the range historians use spans a factor of five.
Nine	Detentions, sterilisations and deaths in the Emergency	Made and withdrawn. The report was recalled after the party it examined returned to office.
Ten	Secret cremations in Punjab	Made by somebody else. A private citizen assembled it from firewood receipts and was killed for it.
Eleven	The dead of November 1984	Made and not acted on. 2,733 established, 587 reports, 25 convictions.
Thirteen	The displaced, the land, the operational deaths	Made everywhere and never added up. Every component sits in a district file.

7.3 — Why this case is different

In the four earlier instances there was a moment at which a count could have been made and was not, or was made and suppressed. Somebody decided.

Here, the counts exist.

Every acquisition has a file. Every project has a figure for the number of families to be displaced, because the figure is needed to calculate compensation. Every state revenue department has records of restoration proceedings. Every declaration under the Act of Chapter Five is a gazette notification with a date.

The material is not missing. **It has never been added up.**

Which is a different thing from a missing count, and it is worth naming precisely, because it is the form the problem takes in a modern administrative state that no longer suppresses documents.

WORD BOX

Aggregation: combining figures that already exist into a total.

It is worth separating from the words it gets confused with. A **census** counts things nobody has counted. A **survey** samples and estimates. An **audit** checks whether recorded figures are true.

Aggregation does none of those. It asks holders of existing records to report a number they already have, and adds the column.

Why it matters here: the distinction decides whether the absence of a figure is a resource problem or a choice. A census is expensive. A survey needs design and fieldwork. An aggregation needs a circular and a spreadsheet — which is why Chapter Seven's finding is not that India lacks capacity.

All of which changes what kind of absence this is.

THE HIDDEN ASSUMPTION

Everybody who writes about this — including the researchers who produced the estimate in Chapter Four — assumes **that nobody knows how many were displaced.**

It is stated as an information problem. The data is poor, the records are scattered, the definitions are inconsistent, capacity is limited. The implied remedy is a better survey.

Somebody knows every single one of these numbers.

A collector knows how many families were displaced by the project in his district, because he signed the awards. A revenue officer knows how many restoration applications were filed and how many succeeded. A home department knows how many declarations are in force and where.

What has never been done is the **addition.**

And addition is the cheapest operation in government. It requires no survey, no fieldwork, no new capacity — only an instruction from one office to every district to send a figure it already holds, and a clerk to total the column. India does this routinely for crop yields, school enrolment, electricity connections and vaccination coverage, at far greater cost and difficulty than this would take.

So the honest description is not that the information is unavailable. It is that **the aggregation has not been commissioned**, for seventy-five years, by any government of any party, while equivalent aggregations were commissioned for hundreds of less consequential things.

Which sharpens Part Two's rule rather than merely repeating it. The original form was about a count somebody decided not to make. This is the modern form, and it is harder to see and harder to answer: **an unmade addition, where every component exists, nothing has been concealed, and no decision was ever taken that anybody has to defend.**

Nobody suppressed anything. There is no order to point at. There is simply a column that has never been totalled, and a figure that consequently does not exist — and a figure that does not exist cannot be the subject of a policy, a debate, a demand or an apology.

Which completes the taxonomy, and gives this series its fifth and least answerable form of the rule.

REMEMBER THIS

Part Two's rule, five times now, with five mechanisms: **never made; made and withdrawn; made by a private citizen instead; made and not acted on; and now made everywhere and never added up.**

No national figure exists for **people displaced, protected land alienated, protected land restored, or deaths in operations in sixty-seven years.**

Every component exists in a district file. What has never been done is the addition — the cheapest operation in government, commissioned routinely for crop yields and school enrolment.

CHAPTER EIGHT

What Was Built

There are real successes here, one of them unique in Indian history. They have a feature in common, and the feature is the argument of this whole part.

8.1 — The Sixth Schedule councils

The Autonomous District Councils of Chapter Two are the most substantial devolution in the Indian constitution and they have largely worked as instruments of control over land.

In the Sixth Schedule areas, land alienation on the scale described in Chapter Three did not occur. The reason is structural: a council with legislative power over land, elected by the population the power protects, is a body inside the enforcement chain whose interest runs the right way.

They have their own failures — capture, patronage, disputes with state governments over funds — and they have not delivered development at any impressive rate. What they delivered was the thing the Fifth Schedule promised and did not: **the land is still there.**

8.2 — Mizoram, and the three withdrawals

Part Twelve's Chapter Seven recorded the Mizoram Accord of June 1986 as the single most successful thing that government did. It belongs here too, from the other side.

A twenty-year insurgency ended by agreement. The insurgent leadership entered electoral politics. Statehood was granted. Forty years later Mizoram is among India's most peaceful states and has among its highest literacy rates.

And the Act of Chapter Five was withdrawn — from Mizoram in the 1980s, from Tripura in 2015, from Meghalaya in 2018.

Those withdrawals matter more than they are usually given credit for, because they establish that the declaration *can* be revoked. It is not a ratchet. It has been reversed three times, which removes the defence that reversal is impossible and leaves only the question of why it has not happened elsewhere.

8.3 — The Forest Rights Act

The 2006 Act is the most serious attempt any Indian government has made at the underlying problem, which Chapter Three identified as the absence of recorded title.

It does three things that nothing before it did. It recognises rights that were never entered on any record. It vests the determination in the gram sabha rather than the forest department. And it states in its own preamble that an injustice was done.

Implementation has been uneven and contested — claims rejected in bulk, community rights recognised far less often than individual ones, and continuing pressure on the consent provisions. But titles have been issued at a scale that is not trivial, and each one converts a person from an encroacher into an owner.

8.4 — Niyamgiri

In **2013** the Supreme Court, in the case concerning bauxite mining on the Niyamgiri hills in Odisha, did something no Indian court had done before.

It did not decide whether the mine should proceed. It directed that the **gram sabhas** of the affected villages should decide whether the project affected their religious and cultural rights, and that their decision would govern.

Twelve gram sabhas met. **All twelve voted against.**

The project did not proceed.

That is, as far as this part can establish, the only occasion in Indian history on which the people who would be displaced by a major extractive project decided whether it would happen, and decided no.

IN REAL TERMS

Twelve village assemblies met on hillsides in Odisha over several weeks in 2013, under the direction of the Supreme Court, and voted on whether a bauxite mine would be dug above them.

Each one voted no. The mine was not dug.

Set that against everything in Chapters Three to Six — the mechanisms, the sixty million, the ratio, the unmade addition — and it is a single project in a single district.

It is also the only time it has ever happened, which is why it is in this part twice and why Chapter Nine's rules are built around it rather than around anything larger.

8.5 — What they have in common

Look at the four.

An elected council whose electorate is the protected population. An accord negotiated with the community's own leadership. A statute that vests determination in the assembly of the affected village. And a court order that handed a decision to twelve such assemblies.

Every one of them works by putting the decision **inside** the protected population, or by putting the enforcement **outside** the state government that wants the land.

Which is Chapter Two's hidden assumption stated as a positive. The protections that worked are the ones that were not handed to the party with the contrary interest — and the record shows this is not a theory, because when the arrangement was built the right way round, it held.

THE ARGUMENT — IS CONSENT WORKABLE AT SCALE?

The successes in this chapter suggest an obvious remedy, and the objection to it is serious.

CONSENT IS A VETO, AND A COUNTRY CANNOT RUN ON VETOES

Niyamgiri stopped one project. Extend that rule to every mine, dam, road and transmission line in India and nothing gets built, because there is always somebody who would rather it were built elsewhere. Infrastructure by definition imposes local costs for dispersed benefits, and a system in which each affected village decides will produce a country with no reservoirs and no grid. A national interest that any village can veto is not a national interest. And the beneficiaries of the veto are not only villagers — competitors, incumbents and rent-seekers learn very fast to fund a local objection.

NOBODY IS PROPOSING A VETO OVER EVERYTHING

The consent requirement already exists in Indian law for Scheduled Areas specifically — in PESA, in the Forest Rights Act, in the 2013 acquisition statute — because Parliament decided these areas warrant it, having watched what happened for sixty years without it. The question is not whether to create the rule but whether to enforce the one that exists. And the veto objection is answered by the record: consent provisions have been in force for decades and the projects have overwhelmingly proceeded. What consent changes is not whether but on what terms, which is exactly the thing that has never been negotiated.

Where things stand: the second side is stronger because it is describing existing law rather than proposing new law, and the first side's concern is real and is answered by scope rather than by dismissal. The workable position is the one Indian statute already takes: consent in Scheduled Areas, where a specific constitutional protection applies and where Chapter Four's ratio shows the burden has been concentrated — not a general rule for the whole country.

What would settle it: comparing project completion rates in Scheduled Areas before and after the consent provisions took effect. The data exists in project files and has not been assembled, which is Chapter Seven again.

Why people care so much: because this is the live argument in Indian development policy right now, and both sides believe the other is arguing in bad faith about who benefits.

The credit column for this part, and the single feature that runs through all of it.

REMEMBER THIS

Four real successes: **the Sixth Schedule councils, where the land is still there; Mizoram; the Forest Rights Act; and Niyamgiri, where twelve gram sabhas voted and the project stopped.**

The Act of Chapter Five has been **withdrawn three times** — Mizoram, Tripura, Meghalaya. Which establishes that the declaration is not a ratchet and can be reversed.

What they have in common: **each puts the decision inside the protected population or the enforcement outside the state that wants the land.** When the arrangement was built the right way round, it held.

CHAPTER NINE

What Would Have Prevented It

The defence includes something this part must concede outright: the insurgency's own record. Then five rules, all of them procedural.

9.1 — Four arguments for the defence

These are the strongest available and the third is conceded without qualification.

One. The projects were necessary and there was no capital. Part Four described the model and its costs, and its premise stands: a country with no power, no steel and no irrigation had to build them, and could only build them where the coal and the river valleys were. The alternative to Hirakud was not a better Hirakud.

Two. The formal protections are among the strongest anywhere. India wrote two Schedules into its constitution in 1950 to protect indigenous land, at a time when comparable countries were doing nothing of the kind and several were still actively dispossessing. The Sixth Schedule is more generous than almost any equivalent arrangement in the world. That is a real achievement and Chapter Eight shows it working where it was structured correctly.

Three. The insurgency has its own record and this part concedes it. The Maoist movement in these districts has killed civilians in large numbers, executed people as suspected informers after proceedings that were not trials, destroyed schools, blown up buses and killed elected representatives. Its presence has also directly obstructed the arrival of the delivering half of the state — the schools and clinics whose absence Chapter One describes. Nothing in this part is an argument that the armed movement is a legitimate remedy, and a reader who takes it that way has read it wrong.

Four. The successes are real. Chapter Eight, in full.

IN REAL TERMS

It is worth putting a price on the rules that follow, because the usual objection to reform in this area is cost.

Rule three — the national return — is a circular to every district collector asking for figures already in their files, and a section in an existing annual report to publish the total. One officer, part-time.

Rule four — parliamentary renewal of declarations — is a debate every six months on a motion that already has to be signed by a minister.

Rule five — sanction decided by a court — adds a hearing to a decision currently taken in a file.

Against which set what the absence has cost: seventy-five years, sixty million people, and a figure that still does not exist.

Nothing in Chapter Nine failed on expense. The rules are cheap, and that is the most damaging thing this part can say about their absence.

9.2 — Five rules

Each of these was available, none requires a constitutional amendment, and none is expensive.

One. Standing for the protected party. The gram sabha, or a community body, should be able to enforce Fifth Schedule land regulations directly in court, without depending on the revenue administration of section 2.4. The single change that would have done most.

Two. Consent recorded by somebody independent of the acquirer. The consent provisions exist. What does not exist is verification by anybody other than the district administration that wants the project.

Three. A statutory duty to compile and publish. An annual national return of displacement, land alienated and land restored, aggregated from figures the districts already hold. Chapter Seven's whole argument reduces to this one line.

Four. A real sunset on disturbed-area declarations. Not a six-month renewal by notification, but expiry unless affirmatively renewed by Parliament, with reasons stated and laid before it. Part Nine recorded exactly this reform being made for national emergencies in 1978 — the mechanism exists and was simply never applied here.

Five. Sanction decided by a court, within a fixed period. Section 6's protection can be preserved while removing the feature that makes it absolute: let a court decide whether the acts were done in the course of duty, on a timetable, with reasons. Refusal without reasons and without limit is what converts immunity from a safeguard into a bar.

HOW WE ACTUALLY KNOW THIS

Section 9.2's rules have an unusual property for this series: **four of the five already exist somewhere in Indian law**, which is how we know they are workable.

Standing for an affected party to enforce a protection directly is ordinary Indian public interest practice and is how *Samatha* and Niyamgiri reached court at all.

Independent verification of consent is what the Supreme Court ordered in Niyamgiri and it was carried out in weeks.

Statutory duties to compile and publish annual returns exist for dozens of subjects.

Parliamentary sunset with affirmative renewal was built into the emergency provisions in 1978, as Part Nine recorded.

Only the fifth — judicial determination of sanction — would be new, and it is a narrower change than the 2016 judgment already required.

What this cannot show: that any of them would have worked at scale. Each has been demonstrated in a single case or a neighbouring field, and a rule that works once is not a rule that works everywhere.

9.3 — What I would have to retract

Three things would break this part.

If the aggregation in rule three were done and showed **displacement far below sixty million, with the Scheduled Tribe share near the population share**, then Chapter Four and much of Chapter Six collapse.

If the declarations under the Act of Chapter Five were shown to rest on **assessments that are genuinely prepared, reviewed and tested every six months**, then Chapter Five's central claim — that renewal is a formality — fails.

If forest rights titles turn out to have been issued at scale and to have **held against acquisition**, then Chapter Two's finding about the enforcement architecture is weaker than stated, because the architecture will have corrected itself.

The first depends on an addition nobody has done. The second on files the government holds. The third on data being generated now.

REMEMBER THIS

Four defences: **the projects were necessary; the formal protections are among the strongest anywhere; the insurgency's own record is conceded outright; and Chapter Eight's successes are real.**

Five rules: **standing for the protected party; consent verified by somebody independent of the acquirer; a statutory duty to compile and publish; a real parliamentary sunset on declarations; and sanction decided by a court on a timetable.**

None requires a constitutional amendment. **The sunset mechanism already exists** — Part Nine recorded it being built for national emergencies in 1978 and it was never applied here.

CHAPTER TEN

An Honest List of What We Do Not Know

This is the shortest list of solid facts in the series and the longest list of missing ones, and the imbalance is the finding rather than a defect of the research.

10.1 — Genuinely unknown

Six things, and every one of them is a number the Indian state could produce.

How many people have been displaced. The working figure is more than sixty million and it is a researcher's estimate.

Why it is unknown: the addition has never been commissioned. Chapter Seven.

How much Fifth Schedule land has been alienated, and how much restored.

Why it is unknown: state revenue records hold both figures and no national compilation exists.

How many people have been killed in operations under the Act of Chapter Five since 1958.

Why it is unknown: no consolidated return is published. Individual incidents are documented and the total is not.

What the criteria for a disturbed-area declaration actually are.

Why it is unknown: none are stated in the Act and none have been published. The declarations give no reasons.

How many Forest Rights Act claims have been rejected and on what grounds.

Partially available, unevenly by state.

Why it is unknown: reporting is not standardised and rejection grounds are frequently not recorded.

Where the output went. The front matter's argument box named the study that would settle this part's central question — a project-by-project comparison of where the electricity, steel and irrigation ended up against where the displaced people ended up.

Why it is unknown: nobody has done it. The material is in project files.

10.2 — Solid

The law. The Fifth and Sixth Schedules, PESA, the Forest Rights Act, the Act of Chapter Five with its 1972 amendment and section 6, and the notifications currently in force. All published.

The judgments. *Naga People's Movement* (1997), *Samatha* (1997), the Niyamgiri decision (2013) and the 2016 holding that there is no blanket immunity. All reported.

The inquiries. The Jeevan Reddy Committee's recommendation of repeal in 2005 and that it was not acted on. The Santosh Hegde Committee's finding in 2013 about the sample it examined.

Mon, December 2021. The deaths, the state cabinet's recommendation, the state's attempt to prosecute, and the refusal of sanction.

The three withdrawals — Mizoram, Tripura, Meghalaya.

Niyamgiri. Twelve gram sabhas, all against, project stopped.

The census. Scheduled Tribe population, share and distribution.

The overlap of the three maps. Stated in Indian government documents.

10.3 — The addition nobody has done

One observation to close on, because it is the thing I did not expect when I started this part.

In every earlier part of this series, the missing evidence was behind something. A closed cabinet record. A recalled report. A file the government holds and will not open. In each case there is a door and somebody is standing at it, and the sentence “this depends on files the Indian government holds” has now ended seven consecutive parts.

Here there is no door.

Nothing in Chapter Seven's list is classified. No official has refused to release it. There is no case pending for its disclosure and no minister has declined to answer. Every component sits in a district office in an open file, and the figures are collected, filed and superseded year after year without anybody ever being asked to total them.

Which is why this is the part I would most like to be wrong about, and the one where being wrong is easiest to establish. Any government that wanted to could produce every figure in section 10.1 within a year, at negligible cost, using powers it uses for far smaller purposes every month.

None has. And unlike every other gap in this series, no one has ever had to decide not to.

REMEMBER THIS

Genuinely unknown: **how many were displaced, how much protected land moved and how much came back, how many have been killed under the Act, what the declaration criteria are, how many forest claims were rejected, and where the output went.**

Solid: **the law, the judgments, the inquiries, Mon, the three withdrawals, Niyamgiri, the census, and the overlap of the three maps.**

In every earlier part the missing evidence was behind a closed door. **Here there is no door** — and no one has ever had to decide not to open it.

REFERENCE

Timeline

Dates only. The arguments are in the chapters.

DATE	WHAT HAPPENED
15 Aug 1942	The colonial Armed Forces Special Powers Ordinance, to suppress the Quit India movement. The ancestor of the Act of Chapter Five.
1894	The Land Acquisition Act, requiring no consent from anybody. It governs acquisition until 2013.
1950	The constitution comes into force with the Fifth and Sixth Schedules . Scheduled Areas are designated in what become ten states.
1950s	The first great projects — Damodar Valley, Hirakud, Rourkela, Bhilai — are built in these districts. Part Four's economic model.
1955	Assam enacts a Disturbed Areas Act.
11 Sep 1958	The Armed Forces (Special Powers) Act replaces an ordinance of May that year.
1967	The movement that becomes the Maoist insurgency begins in Bengal. It becomes significant in the mineral belt from the late 1970s.
1972	The Act is amended so the centre may declare any area disturbed without the state's consent .
1980s	The Act is withdrawn from Mizoram .
30 Jun 1986	The Mizoram Accord ends a twenty-year insurgency. Part Twelve's Chapter Seven.
1997	<i>Naga People's Movement of Human Rights</i> : the Supreme Court upholds the Act's validity with safeguards. Nagaland's principal groups enter ceasefire in the same year.
1997	<i>Samatha</i> : government land in Scheduled Areas cannot be leased to non-tribals for mining. Application confined largely to one state.
24 Dec 1996	PESA extends panchayats to Scheduled Areas and gives gram sabhas power to prevent alienation and restore land. Enacted under a United Front government.
2000–2016	Irom Sharmila's hunger strike in Manipur demanding repeal. Sixteen years.
2005	The Jeevan Reddy Committee , appointed by the government, recommends repeal . The report is not acted on.

DATE	WHAT HAPPENED
2006	The Forest Rights Act . Its preamble admits rights were never recorded and that a historical injustice resulted.
2013	The Santosh Hegde Committee finds that none of the Manipur encounters in its sample was genuine.
2013	Niyamgiri . The Supreme Court directs the gram sabhas to decide. All twelve vote against . The project stops.
2013	The 1894 Act is replaced by a statute with consent and impact-assessment requirements.
2015, 2018	The Act is withdrawn from Tripura , then from Meghalaya .
Dec 2021	Mon, Nagaland . Fourteen civilians dead. The state cabinet recommends repeal; the state seeks to prosecute; sanction is refused under section 6 .
2026	Declarations remain in force in parts of Nagaland, Manipur, Arunachal Pradesh and Assam. Sixty-seven years .

Part Fourteen starts here. It returns to the chronology at the point Part Twelve left it — a party out of office for the first time since 1977, and about to come back under a Prime Minister nobody expected.

REFERENCE

Glossary

Every hard word used in this part, in plain English.

WORD	WHAT IT MEANS
Adivasi	“Original inhabitant.” A political term preferred by many of the communities the constitution calls Scheduled Tribes, and contested precisely because of the claim it makes.
Autonomous District Council	An elected body under the Sixth Schedule with actual legislative power over land, forests, inheritance and village administration. The most substantial devolution in the constitution.
Disturbed area	A declaration that brings the Act of Chapter Five into force. Made by six-month notification, on no published criteria, and since 1972 without needing the state’s consent.
Eminent domain	The power of a state to take private property for public purposes on payment of compensation. Under the 1894 Act it required no consent from the owner.
Gram sabha	The assembly of every adult in a village, as opposed to the elected panchayat, which is a committee. The hardest body in Indian public life to buy, which is why the consent laws vest their powers in it.
Minor forest produce	Everything a forest yields other than timber — leaves, resin, honey, fruit, bamboo. A principal source of income, owned by nobody on the record, and therefore valued at nothing when land is acquired.
PESA	The Panchayats (Extension to Scheduled Areas) Act, 1996. Gives gram sabhas power to prevent alienation of tribal land and to restore land unlawfully alienated.
Sanction to prosecute	Permission that must be obtained before a public servant is tried for an official act. Under section 6 it is given by the central government, with no time limit, no duty to give reasons and no effective appeal.
Scheduled Area	Territory designated under the Fifth Schedule, in ten states, where the Governor may prohibit transfer of tribal land.
Scheduled Tribe	A legal category: communities listed by presidential order under Article 342, entitled to reservation and to specific land protections. Around 8.5 per cent of India’s population.

ABOUT

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I write long-form research on Indian history, society, belief and public life, and publish it at misterlove.in under the name The Living Archive. Before this series I completed a fourteen-part history of Punjab and a sixteen-part study of the rules societies place on women.

This is the part I found hardest to write, for a reason worth stating. Every previous part had a spine — an event, a decision, a person, a document. This one has a hundred and fifty million people and no date, which is exactly why it took twelve parts to arrive, and Chapter One says so rather than pretending otherwise.

Two things I want to be held to. The first is Chapter Nine's third defence. The insurgency in these districts has killed civilians, executed people after proceedings that were not trials, destroyed schools and obstructed the arrival of the very services whose absence this part complains about. That is conceded without qualification, and anybody who reads this part as a brief for an armed movement has read it wrong. Part Ten made me careful about this: a majority of the Sikhs who died in Punjab were killed by Sikhs, and I had got that wrong in print before.

The second is Chapter Seven, which produced the finding I did not expect. Every other part of this series ends on a closed file. This one ends on a column that has never been totalled — where nothing is hidden, nobody refused, and no decision exists that anybody would have to defend. That is a harder thing to argue against than secrecy, and I think it is more common.

 THE RULES OF THIS PROJECT

The Living Archive

Everything published under this name follows three rules.

Plain language, undiminished content. The words are as simple as I can make them. The argument is not simplified with them.

Show the evidence, and show what it cannot prove. Every serious claim names what it rests on, and every source is described honestly, including what it is blind to.

Give every side its strongest case. Where people who know the material disagree, both positions appear at full strength, and I say when the evidence does not settle it.

PLEASE READ THIS

A Word on Sources

This part rests on constitutional text, statutes and their preambles, gazette notifications, reported judgments, the published reports of two committees, census data, and the compiled displacement estimates of researchers who assembled them from state project records.

The weakest evidence in this part is every quantity. Chapter Four's sixty million, the share of Scheduled Tribes among the displaced, and the proportion resettled are all estimates with ranges, and this part gives the ranges rather than the midpoints wherever it can. Where no figure exists at all, the chapters say so and stop, which happens more often here than anywhere else in the series.

Corrections. If something here is wrong, write to me. Later editions will say what was changed and who caught it. I would particularly like to be corrected on Chapter Seven, by somebody producing the numbers.

Lovepreet Singh

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NEXT

What Comes Next

Part Fourteen — 1991

Part Fourteen returns to the chronology. A party out of office, a Prime Minister nobody expected, and the year the economic model of Part Four was dismantled. It asks:

- Part Four established what the licensing system did and who it served. What exactly was dismantled in 1991, by whom, and how much of it survived?
- The reforms were introduced by a minority government with 244 seats. Part Twelve found that 414 bought very little. What does that comparison establish?
- Was 1991 a decision or a surrender? The balance of payments position, the gold, and what the conditions actually were.
- Who won and who lost, on Part Five's method — measured by region, sector and class rather than by aggregate growth?
- December 1992 happened under this government. What did it do, what did it know, and what did the commission find?
- Part Twelve found the failures structural rather than personal. Does a Prime Minister with no majority and no family claim change the finding?

Questions, not topics. If any of them is answered badly, you will be able to tell.

END OF PART THIRTEEN OF NINETEEN · THE CONGRESS RECORD · THE LIVING ARCHIVE ·
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THE CONGRESS RECORD

PART FOURTEEN OF NINETEEN

Reform and Demolition

India under P. V. Narasimha Rao, 1991–1996: the biggest thing a Congress government ever got right, and the day it lost the building it had promised a court it would protect.

This is an advocacy document. It is the case for the prosecution against Congress governments in power. The selection of material is one-sided on purpose. The evidence in it is not. Every serious claim carries a grade showing how well it is proved, the other side is given its strongest argument, and where the other side wins, this book says so. A second series applying the same test to the government of 2014 onwards is planned.

Lovepreet Singh

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Why This Part Is Different

Thirteen parts of this book have been a list of things done badly. This one is not, and you should know that before you start.

Between 1991 and 1996 a Congress government did the single largest useful thing any Indian government has done since 1947. It took an economy that had been strangled for forty years by its own rules and it cut the rules away. Part Four of this series spent sixty-eight pages explaining how much those rules cost the country. It would be dishonest to spend sixty-eight pages on the disease and then hurry past the cure.

The same government, eighteen months later, sat in Delhi while a mosque was pulled down in Ayodhya by a crowd of a hundred and fifty thousand people, after its own intelligence service had warned that this might happen, after the state government had told the Supreme Court in writing that it did not need central troops, and after nine days had passed in which somebody could have decided otherwise. Around two thousand people died in the riots that followed. That government then set up a commission to find out what had gone wrong, and wrote the commission's rules so that it was not allowed to examine the central government at all.

Both of those things are true. They were done by the same Prime Minister, the same Cabinet, the same party, inside the same eighteen months. This part does not try to make them cancel out. It tells you what was done, in order, and it puts the good first — deliberately, and for a reason given in Chapter Two.

HIDDEN ASSUMPTION

Almost every account of these years, friendly or hostile, assumes that **a government with a big majority can do more than a government without one.**

Test it here. Rajiv Gandhi had four hundred and fourteen seats. In 1989 he tried to put village councils into the Constitution. The bill passed the lower house and was defeated in the upper one, and it died. Narasimha Rao had two hundred and thirty-two seats and no majority at all. In December 1992 he passed the same reform, on substantially the same design, and it is in the Constitution today.

Part Twelve found that **a majority is the capacity to legislate, not the capacity to decide.** Part Fourteen finds the other half of it: **a government without a majority has to persuade somebody, and persuading somebody is a form of thinking.** The 1991 reforms were designed by a government that could be thrown out any Tuesday. That is not a coincidence, and it is uncomfortable for everybody — because the same weak government also lost the building.

One more warning. This part contains the highest proportion of credit to charge in the whole series. That is a fact about what happened between 1991 and 1996. It is also a fact about how this book selects material, and Chapter Nine turns that question on the book itself.

What Is In This Part

One A Government Nobody Expected

Twenty-first of June 1991. Two hundred and thirty-two seats, no majority, three weeks of foreign money in the bank, and a Prime Minister who had been packing to retire.

Two What Was Done in Six Months

The licence system taken apart. Why this chapter is placed here and not at the end.

Three What Else Was Built

Village councils in the Constitution. A siege at Hazratbal ended without a shot into the shrine. A foreign policy turned east.

Four Nine Days

Twenty-seventh of November to the sixth of December 1992. What the central government knew, what it was told, and what it did.

Five The Commission That Was Not Allowed To Ask

Seventeen years, forty-eight extensions, and one sentence in the terms of reference.

Six The Fifteenth of December

Three elected governments dismissed. The court case that ended the abuse of Article 356 — and upheld this particular use of it.

Seven The Money

Bank receipts, diaries, a suitcase, three and a half crore in a shoebox, and a hundred and thirty-three crore paid in advance for urea that never arrived.

Eight The Vote

July 1993. Two hundred and sixty-five to two hundred and fifty-one. A Prime Minister convicted, acquitted, and the law behind the acquittal struck down in 2024.

Nine What Would Have Prevented It

The defence at full strength. Where it wins. What rules would have changed the outcome, and why none of them were made.

Ten An Honest List of What We Do Not Know

The gaps, the unanswerable questions, and the one document that would settle the largest of them.

HOW THE GRADES WORK

Every serious claim in this book carries a grade. It is printed next to the claim, not hidden in a footnote. **CONVICTED** means a court convicted somebody. **COURT-FOUND** means a court made the finding but nobody was convicted, or the case is still going. **COMMISSION-FOUND** means an official inquiry found it, and the inquiry is named. **AUDITED** means the government's own auditors flagged it and no court ever ruled. **ALLEGED** means somebody said it in public and it was never tested. **FABRICATED** means it has been shown to be false, and it goes in the chapter on lies, not the chapter on charges.

The point of the grades is not politeness. It is that the true charges against Congress are usually thrown out along with the false ones, because they arrive in the same bundle. Separate them and the top of the list becomes very hard to answer.

CHAPTER ONE

A Government Nobody Expected

He had sent his books to Hyderabad. He was not going to contest the election. He was sixty-nine, he had heart trouble, and the party had not given him a seat.

The position of P. V. Narasimha Rao in the second week of May 1991

On the twenty-first of May 1991, Rajiv Gandhi was killed by a bomb at an election rally in Tamil Nadu. Part Twelve of this series ended there. This part begins in the month that followed, and the first thing to understand is that almost nothing about it was planned.

The election was interrupted by the assassination and finished in June. Congress won two hundred and thirty-two seats. It needed two hundred and sixty-nine for a majority. It did not have one, and it did not have a leader either, because the man who would have been Prime Minister was dead.

The party turned to P. V. Narasimha Rao. He had been a minister under Indira Gandhi and under Rajiv Gandhi — Home, Defence, Foreign Affairs. He was sixty-nine. He had not been given a seat to contest. He had, by several accounts, already shipped his personal library out of Delhi. He was sworn in as Prime Minister on the twenty-first of June 1991 and had to win a by-election later that year to stay in Parliament at all.

Before going further it is worth being exact about the number of seats, because two different numbers circulate and a reader who meets the other one somewhere else will stop trusting this book.

HOW WE ACTUALLY KNOW THIS

You will see Congress's 1991 result given as **232 seats** in some places and **244** in others. Both are correct and they are counting different moments.

Voting happened on the twentieth of May and the twelfth and fifteenth of June 1991 — but not in Punjab, where the situation described in Part Ten meant the poll was postponed to the nineteenth of February 1992. So the June 1991 count, on which the government was formed, is 232 out of 521 seats actually filled. Add Punjab and the by-elections that followed and the figure rises to about 244.

This book uses **232**, because that is the number the government had on the day it took office and started making decisions. Where the later figure matters, it is given.

Two hundred and thirty-two out of five hundred and forty-five is not a majority. It is not close to one. What it means in practice is that the government could be voted out on any day that the opposition parties agreed with each other, and everybody in Delhi knew it.

1.2 — What was in the till

Part Four of this series set out the economic position in detail and this part will not repeat it. The short version is that in the summer of 1991 India was close to being unable to pay for imports.

The country's foreign exchange reserves — the foreign money a country keeps to buy things from abroad — were down to about one point two billion dollars in January 1991, and roughly half that by June. In May, under Chandra Shekhar's caretaker government, twenty tonnes of India's gold were flown to a bank in Zurich as security for a loan. In July, forty-seven tonnes went to the Bank of England. Sixty-seven tonnes of gold, raising about six hundred million dollars.

WORD BOX · FOREIGN EXCHANGE RESERVES

When India buys oil, machinery or medicine from another country, the seller does not want rupees. He wants dollars, or pounds, or yen. So the Reserve Bank keeps a store of foreign money to pay with.

If that store runs out, India cannot buy anything from abroad. Not fuel. Not fertiliser. Not the parts that factories need. This is what people mean when they say a country has “defaulted”: it has run out of the money that outsiders will accept.

Numbers like “one point two billion dollars” do not mean much on their own. They sound enormous. The useful way to hold this number is to ask how long it would last.

IN REAL TERMS

India's reserves in June 1991 covered **about two to three weeks of imports.**

Think of a household that spends thirty thousand rupees a month and has about twenty thousand rupees left, with the rent due, the school fees due, and no salary arriving. That household is not poor in some general way. It is a fortnight from something breaking.

That was the position of a country of eight hundred and forty million people, run by a government that could be voted out on a Tuesday.

1.3 — Why the weakness matters

It is tempting to treat the arithmetic as background — the sort of thing a book mentions once and moves past. It is not background. It is the single most useful fact for understanding everything else in this part, in both directions.

A government with two hundred and thirty-two seats cannot force anything through. It has to find votes for every measure, from parties that do not agree with it and do not owe it anything. That is why the reforms of 1991 were done the way they were done — fast, by executive order where possible, and without a public argument that would have lost. Chapter Two is about that.

It is also why, in December 1992, the government's defence for not acting in Ayodhya was that it did not have the political strength to act. Chapter Nine takes that defence seriously, because it is the strongest one available and it is not obviously wrong.

And it is why, in July 1993, when the government finally faced a vote it could lose, somebody appears to have gone looking for votes to buy. Chapter Eight is about that.

One government, one weakness, three completely different outcomes. That is the shape of this part.

1.4 — What else was already burning

The empty treasury is the part of June 1991 that everybody remembers. It was not the hardest thing the new government inherited, and the rest of that inheritance explains most of what happens in Chapter Four.

Four fires were already lit.

Mandal. In August 1990 the V. P. Singh government had announced that twenty-seven per cent of central government jobs would be reserved for Other Backward Classes, acting on a report written in 1980. The reaction was violent. Students set themselves on fire. The matter was in the Supreme Court and stayed there until November 1992.

Mandir. Part Twelve ended with the Faizabad campaign launch of November 1989 and the foundation-laying ceremony that followed. What came after was not in Part Twelve: in September and October 1990 L. K. Advani travelled across northern India in a vehicle got up as a chariot, campaigning for a temple at the disputed site. He was arrested in Bihar in October 1990. The BJP withdrew support from the government, which fell. In the June 1991 state election the BJP won Uttar Pradesh, and Kalyan Singh became Chief Minister.

WORD BOX · MANDAL AND MANDIR

Indian political writing from this period uses these two words constantly, usually together, and rarely explains them.

Mandal is shorthand for job reservation for the Other Backward Classes, after the commission chaired by B. P. Mandal that recommended it. It sorts people by caste.

Mandir means temple, and is shorthand for the Ayodhya movement. It sorts people by religion.

The 1991 election was fought over both at once. That is why it is usually called the Mandal–Mandir election, and it is the reason a party that had two seats in 1984 had a hundred and twenty by 1991.

Punjab. Part Ten covered these years in full. In June 1991 Punjab was under President's Rule, had been for four years, and would not hold an election until February 1992 — the election with roughly twenty per cent turnout.

Kashmir. The insurgency described in Part Seven had begun in earnest in 1989–90. By 1991 the state was under President's Rule, the Pandits had largely left the Valley, and the Armed Forces (Special Powers) Act, whose full history is in Part Thirteen, had been extended to Jammu and Kashmir in 1990.

Set those four against two hundred and thirty-two seats and the position becomes clear.

IN REAL TERMS

In June 1991 the new government had **two states under direct rule from Delhi**, an insurgency in a third, a caste dispute before the Supreme Court, a religious movement organising openly around a specific building, and about a fortnight of money.

Any one of those would define a government today. This one arrived with all five, no majority, and a Prime Minister who had not expected to be in Parliament at all.

This is not offered as an excuse. It is offered because Chapter Nine takes the defence seriously, and a defence cannot be taken seriously if the reader has not been told what the government was defending against.

1.5 — Who was in the room

A short list of the people who matter in the pages that follow, because this part has more named individuals than most.

TABLE 1 · THE PEOPLE IN THIS PART

Name	Position, 1991–1996	Where they appear
P. V. Narasimha Rao	Prime Minister, 21 June 1991 – 16 May 1996. Also held Defence from March 1993 and Foreign Affairs from March 1992 to January 1994.	All chapters
Manmohan Singh	Finance Minister. An economist, not a politician; had never won an election.	Chapter Two
Shankar Dayal Sharma	President from 25 July 1992. R. Venkataraman before him.	Chapters Four, Six
Kalyan Singh	Chief Minister of Uttar Pradesh (BJP) until 6 December 1992.	Chapters Four, Five
Sukh Ram	Minister of State for Communications, January 1993 – May 1996.	Chapter Seven
Buta Singh	Minister; convicted alongside Rao in 2000, acquitted 2002.	Chapter Eight
Arjun Singh, N. D. Tiwari	Senior Congress leaders; left the party in May 1995.	Chapters One, Nine

Rao holding the Defence and Foreign Affairs portfolios himself is not a detail. A Prime Minister who keeps three ministries is a Prime Minister who does not have people he can spare or trust with them.

REMEMBER THIS

On the twenty-first of June 1991 India got a Prime Minister who had been about to retire, leading a party with **232 seats out of 545**, with about **two to three weeks** of foreign money in the bank and sixty-seven tonnes of the national gold already pledged abroad.

Every single thing in this part — the reform, the demolition, the money, the vote — happens inside that weakness. Hold on to it.

CHAPTER TWO

What Was Done in Six Months

This chapter is placed here, second, before anything goes wrong. That is a deliberate choice and it is worth explaining, because the ordering of a book is an argument in itself.

Part Ten of this series put the militants' own killings in Punjab before the chapters on what the state did, and said in the text why: placed afterwards, it would have read as an excuse offered late. The same reasoning applies in reverse here. If the reforms of 1991 appeared in Chapter Nine, after the demolition and after the scams, they would read as a sweetener — a good thing produced at the end to soften a bad account. So they go here, at full length, before the charge sheet starts.

2.1 — What was taken apart

Part Four described the licence system in detail. In one paragraph: to build a factory in India, or expand one, or change what it made, or import a machine for it, you needed permission from the central government. The permission was slow, it was rationed, and the people who got it best were the people who already had it. Part Four's finding was that this system, not any single scandal, was the largest cost in this entire series.

Between July 1991 and the end of that year, most of it was removed.

WORD BOX · INDUSTRIAL LICENSING

A rule that said: before you may build or expand a factory, you must get a paper from Delhi saying you are allowed to.

The paper was called a licence. Getting one took months or years, needed contacts, and could be refused without a reason being given. It did not stop the biggest firms — they had offices in Delhi whose whole job was collecting such papers. It stopped everybody else.

In July 1991 the requirement was abolished for most industries. Not reformed. Abolished.

Alongside that, four other things happened quickly. The rupee was devalued in two steps in early July, by roughly twenty per cent in total, which made Indian exports cheaper abroad and imports dearer at home. Import tariffs, which were among the highest in the world, began to come down. The rules restricting foreign companies from

owning shares in Indian ones were loosened. And the government went to the International Monetary Fund for a loan of about two point two billion dollars.

The speed is the part people forget. The government took office on the twenty-first of June. The industrial policy statement came on the twenty-fourth of July, the same day as the Budget.

IN REAL TERMS

Thirty-three days from taking office to dismantling a system that had been in place since 1951.

That is roughly the time it takes to get a passport reissued. A structure that four decades of governments had defended, argued for, expanded and refused to touch was taken apart in the time between one month's electricity bill and the next.

This is either the most impressive thing in this book or the most alarming, and Chapter Nine argues that it is both.

2.2 — Did it work

Yes, and this book is not going to be coy about it. Growth over the following decade ran at roughly six per cent a year, against the three and a half per cent that Part Four recorded for the period 1950 to 1980. India did not default. The reserves recovered. The gold came back.

But a prosecution document has to be careful with a success, because it is exactly where a reader expects to be handled. So here is the honest shape of the thing, including the parts that do not flatter.

THE ARGUMENT AGAINST THIS CHAPTER

The strongest case that 1991 deserves less credit than it gets:

First, it was not a choice. The country was days from default and the IMF loan came with conditions. A government that does the right thing at gunpoint has not demonstrated much. Part Four already made this point about the timing: the argument for reform had been won inside the government's own committees by 1969, and what changed in 1991 was the bank balance, not the argument.

Second, the 1980s acceleration came first. Growth had already picked up to around five and a half per cent in the 1980s, under Congress governments, before any of this. Some economists argue 1991 continued a trend rather than starting one.

Third, the design was narrow. Industry was freed. Agriculture, labour law, land, electricity and the banking system were mostly not touched, and thirty-five years later several of them still have not been. The reform did the parts that were politically cheap.

Where this argument fails: on the first point, plenty of governments have faced a crisis and done nothing useful — Part Four lists the committees from 1965, 1967 and 1969 whose correct diagnosis went nowhere for twenty-two years. Being forced to act does not tell you what a government will do when forced. On the second, the 1980s growth was borrowed: it was financed by exactly the deficits that produced the 1991 crisis. On the third, the argument is true and it is a criticism of what came later, not of what was done in 1991.

The one thing that should not be claimed for 1991 is that it was a plan for the whole economy. It was an emergency operation on one part of it, done well, by a government that could not have survived a public debate about it.

2.3 — What was not touched

The reform had a shape, and the shape has a pattern. It is easiest to see in a table.

TABLE 2 · WHAT 1991 REACHED, AND WHAT IT DID NOT

Reached in 1991–93	Not reached
Industrial licensing — abolished for most sectors	Labour law — untouched; the rules on hiring and dismissal in larger firms remain substantially as they were
Import tariffs — cut sharply from among the world's highest	Agriculture — no equivalent reform; the procurement and subsidy structure Part Five described was left standing
Foreign investment — rules loosened	Electricity — state boards left as they were, and their losses grew through the decade
The rupee — devalued, then made convertible on trade account	Land — no change to acquisition law; the 1894 Act described in Part Thirteen stayed in force until 2013

Reached in 1991–93

Not reached

Reached in 1991–93	Not reached
Capital markets — SEBI given statutory teeth after the 1992 scam	Public sector banks and loss-making state firms — largely untouched

The left column is what could be done by executive decision or a Finance Bill. The right column is what would have required legislation, a fight with organised interests, or both. That is the whole pattern.

This is not a criticism of anybody's courage. It is the arithmetic of two hundred and thirty-two seats. A government that cannot survive a vote does the things that do not need one.

But it has a consequence that this book is obliged to state, because the people in the right-hand column are not the same people as in the left.

IN REAL TERMS

The reforms freed the part of the economy where about **one in ten Indians worked**. They did not touch the part where roughly **six in ten** worked, which was agriculture.

Put it as a village. The rules changed for the man who wanted to open a small factory. They did not change for the nine of his neighbours who farmed, whose crop prices, water, electricity and land were still governed by the arrangements Part Five described.

Growth arrived. It arrived in the places where the rules had been changed, which is what one would expect, and it is the beginning of an argument about regional and rural inequality that is still running.

2.4 — The part that is genuinely uncomfortable

The reforms of 1991 were never put to the country. There was no election fought on them, no white paper argued in public, no vote in which the electorate was asked whether it wanted this. They were announced.

Part Four's Chapter Nine flagged this and said the consequence would show up later: because the change came under pressure rather than persuasion, the argument for it was never actually had, which is why the case still has to be made from the beginning every time somebody proposes the next stage.

This is not a small point, and it is the one place where the two halves of this part touch.

HOW WE ACTUALLY KNOW THIS

The best evidence that the 1991 reforms were never argued in public is what the Congress party itself said about them afterwards.

They do not appear as a central boast in the 1996 campaign. The party fought that election on other ground and lost badly — **140 seats**, its worst result to that point. Manmohan Singh, the Finance Minister who executed the reforms, contested a Lok Sabha seat in 1999 and lost.

A government that had genuinely persuaded the country of something would have run on it. This one did not, because it never tried.

So the honest verdict on the largest achievement in this book is a split one, and it goes on the page in that form.

VERDICT · THE 1991 REFORMS

The decision was right. The licence system was indefensible, Part Four established that at length, and removing it was the correct act. Full credit, without qualification, to a Congress government.

The execution was right. Fast, under emergency conditions, by a government with no majority. It worked. India did not default.

The method left a debt. Nothing was put to the country. No argument was won in public. The result is that the reform has no political owner and no popular mandate, and every extension of it since has had to start the argument from nothing. That is a real cost and it is still being paid.

That split verdict is the shape of this whole part in miniature: a right decision, taken well, that left behind a problem nobody has since solved.

REMEMBER THIS

In **thirty-three days**, a Congress government with no majority took apart the licence system that Part Four identified as the largest single cost in this series. It was the right decision, it worked, and it goes in this book as credit.

It was also never explained to anybody, never voted on, and never defended in an election.

The country was rescued without being asked. Hold that sentence — it comes back in Chapter Four in a much worse form.

CHAPTER THREE

What Else Was Built

The 1991 reforms are the famous achievement of these five years. They are not the only one, and one of the others matters more to this series than it does to most accounts, because this book promised it four hundred pages ago.

3.1 — Village councils, and a debt paid

Part Twelve of this series recorded that Rajiv Gandhi tried in 1989 to put local government into the Constitution. India had village councils, but they existed only because state governments allowed them to. A state could dissolve a council, postpone its election for years, or simply give it no money. The reform was meant to stop that by writing the councils into the Constitution itself.

The bill passed the Lok Sabha and was defeated in the Rajya Sabha in 1989. Part Twelve left it there and said this part owed the ending.

WORD BOX · PANCHAYATI RAJ

Panchayat means a village council. *Panchayati raj* means rule by such councils — the layer of government below the state, closest to where people actually live.

Before 1993, these councils had no protection in the Constitution. They existed at the pleasure of the state government, which could abolish them, ignore them, or starve them of money at will. Many states did.

Here is the ending. On the twenty-second and twenty-third of December 1992, the Lok Sabha and the Rajya Sabha passed the Seventy-third and Seventy-fourth Amendments to the Constitution. Seventeen states ratified them. The President gave assent on the twentieth of April 1993, and they came into force on the twenty-fourth of April and the first of June 1993.

They added a new Part IX to the Constitution, Articles 243 to 243-O, and an Eleventh Schedule listing twenty-nine subjects the councils would handle. They made elections compulsory and on time. And they reserved **one third of all seats for women**, at every level.

IN REAL TERMS

The one-third rule brought roughly **eight hundred thousand women** into elected office in a single round of elections.

That is more elected women than there were in every national parliament in the world put together at that time. It happened at the bottom of the system, in villages, where nobody was watching, in a country where in 1993 most rural women could not read.

It is the largest single act of political inclusion in Indian history and it was passed by a government with two hundred and thirty-two seats.

The dates in that sequence deserve a second look, because they are not comfortable.

Those dates are not comfortable, and they are almost never printed together. The Babri Masjid came down on the sixth of December 1992. Riots followed across the country and around two thousand people died. Sixteen days later the same Parliament passed two constitutional amendments changing how six hundred thousand villages are governed.

Told separately, each is a familiar story. Told together they break the picture most people carry, in which a government is either functioning or it is not. This one was doing the most important constitutional work in twenty years and failing at the most basic function of the state in the same fortnight. Governments are not single things. They are many machines running at once, and the failure of one tells you very little about the others.

3.2 — And what the states did with it

A constitutional amendment is a permission, not a result, and this book would be doing exactly what it criticises if it recorded the passing of the Seventy-third Amendment and stopped there.

The amendment made three things compulsory: that councils exist, that elections be held on time, and that a third of seats go to women. It made almost nothing else compulsory. What the councils would actually *do* — which of the twenty-nine subjects in the Eleventh Schedule they would control, what money they would receive, which officials would answer to them — was left to each state legislature to decide.

HIDDEN ASSUMPTION

Everybody assumes that **putting something in the Constitution settles it.**

The Seventy-third Amendment guaranteed that village councils would exist and would be elected. It did not guarantee that they would be given anything to do or any money to do it with, because those two questions were handed to the state governments — the precise bodies whose power the councils were meant to reduce.

Part Thirteen found the identical shape in the Fifth Schedule: protections for tribal land handed for enforcement to the state governments with the strongest interest in transferring it. The finding there was that **a right is worth the independence of whoever enforces it.**

Here it is again, in a different Part of the Constitution, thirty-eight years later, under a government that meant well. **The amendment devolved the compulsory part and left the valuable part discretionary,** and three decades of state practice have gone into the gap.

The record since is uneven and it is not this part's subject, but the direction is not disputed. Elections happen, which is the amendment working. Funds and functions were transferred slowly, partially, and differently in every state, and in many states the money that reaches a council is tied to schemes designed elsewhere.

None of that takes away from what was done in December 1992. It does mean the credit has to be stated precisely: **the amendment made local democracy permanent, and left local government optional.**

3.3 — A siege that ended without a shot

In October 1993, armed militants occupied the Hazratbal shrine in Srinagar. Hazratbal holds a relic believed by Kashmiri Muslims to be a hair of the Prophet. It is the most sacred building in the Valley.

This series has already described what happened the last time an Indian government sent troops into a shrine. Part Ten set out Operation Blue Star in detail: the Akal Takht destroyed, the Sikh Reference Library burned, a wound that has not closed in forty-two years. Nine years later, a government faced the same problem in a different religion's holiest building.

It did not storm it. The siege lasted around a month. Wajahat Habibullah, then Divisional Commissioner and a civil servant rather than a soldier, negotiated. Food was sent in. The militants surrendered. The shrine was not damaged and the relic was not touched.

HOW WE ACTUALLY KNOW THIS

Habibullah wrote his own account of the Hazratbal negotiation and it is unusually checkable, because he was injured immediately afterwards — a military truck hit the car he was travelling in with General Zaki, fracturing his skull.

He is also a hostile witness for parts of this book. The same man appears in Part Twelve, where his memoir contradicts the charge that Rajiv Gandhi ordered the Ayodhya locks opened. A source who damages your case in one chapter is worth more, not less, when he supports it in another.

Hazratbal goes in this book as a success, without qualification. It is the correct handling of a situation that had been handled catastrophically in 1984, by a government of the same party, and the difference was that somebody decided to wait.

It also has to be set against what else happened in Kashmir in those same weeks, because this book does not get to keep the good half of a month.

BIJBEHARA, 22 OCTOBER 1993

On the eighth day of the Hazratbal siege, Border Security Force personnel opened fire on a protest march in the town of Bijbehara. Around fifty people were killed. **COURT-FOUND** in the sense that Indian courts later awarded compensation; the official account was that the force had been fired on first.

Human Rights Watch rejected that account, citing the United States State Department's 1993 country report, which recorded that despite the claim of an ambush, **one BSF sub-inspector was injured**. Fifty dead on one side; one injury on the other.

Part Thirteen set out the rule that makes this possible: Section 6 of the Armed Forces (Special Powers) Act, which bars prosecution without permission from the central government. That permission was not given here either.

CHARAR-E-SHARIEF, MAY 1995

In December 1994, militants under a Pakistani commander occupied the shrine at Charar-e-Sharief, a wooden building around five hundred years old and the second most revered site in the Valley. In May 1995 it burned to the ground.

Who burned it is genuinely disputed, and this book will not pretend otherwise. **ALLEGED** in both directions: the Indian government said the militants fired it as they escaped; local residents said the army did it. Habibullah — the same man who is a credit

witness three paragraphs above — is critical of how the army handled it and inclines to the local account.

Part Six established the discipline that applies here. Where the state will not release what it knows and the only other source has its own case to make, the grade stays at **ALLEGED** and the book does not promote a source because its conclusion is convenient. The charge that survives on the evidence is narrower: that having successfully waited out one shrine occupation in 1993, the government did not repeat the method in 1995.

3.4 — The rest of the credit column

Two more items, stated briefly because they are outside this book's subject but belong in an honest ledger. Diplomatic relations with Israel were normalised in 1992, ending forty years of a position that had cost India something and gained it little. And what became known as the Look East policy turned Indian trade and diplomacy towards South-East Asia for the first time.

One statement from these years should also be recorded, because Part Seventeen of this series will collect the damaging things Congress leaders said and this is the opposite case — a thing said that was not damaging at all, and was simply not followed by anything.

THE ARGUMENT FROM THE OTHER SIDE

The defence says: Rao told Parliament in 1995 that on autonomy for Jammu and Kashmir, “the sky is the limit” — that short of independence, the Constitution had room for almost anything. That is a more generous offer than any Indian government has made before or since, and it shows a Prime Minister genuinely looking for a settlement.

The reply: nothing followed it. No proposal was drafted, no talks were opened on that basis, no bill was brought. Part Seven of this series traced Article 370 being hollowed out year by year by Presidential Orders while the word “temporary” sat at the top of it. The 1995 statement joins that record as one more sentence that was true when spoken and had no consequences at all.

Where the defence still has something: a government fighting an insurgency, with no majority, that says in public that autonomy is negotiable, has taken a real political risk for nothing. It should be recorded that he said it.

Taken together, these months are the hardest thing in this book to hold in one hand — which is exactly why they are placed before the chapters that follow rather than after them.

REMEMBER THIS

The same government that lost the mosque wrote village councils into the Constitution sixteen days later, and put **eight hundred thousand women** into elected office. It ended the Hazratbal siege without firing into the shrine, which is what Part Ten shows the alternative looks like.

It also presided over Bijbehara, where fifty people died and one soldier was injured, and over the burning of Charar-e-Sharief, where it will not release what it knows.

The credit and the charge are not two different governments. They are the same one, in the same months.

CHAPTER FOUR

Nine Days

The State Government is fully competent to prevent the violation of the Court's order, and the assistance of force offered by the Central Government is not necessary in the present circumstances.

The substance of the affidavit filed by the Government of Uttar Pradesh in the Supreme Court of India, 27 November 1992

This chapter is not about who pulled the mosque down. That question has been asked for thirty-four years by courts, commissions and journalists, and the honest answer is set out in Chapter Ten: nobody has established it, and after this long, nobody is going to.

This chapter is about a different question, and the difference is the whole point.

HIDDEN ASSUMPTION

Every account of the sixth of December 1992 assumes that **the question is who ordered the demolition.**

Notice what that assumption does. It puts the entire matter into a category — proving a secret instruction — where the evidence will never exist, where thirty-four years of inquiry has produced nothing, and where both sides can therefore say whatever they like for ever.

Ask instead: **what did the central government do with the nine days between the twenty-seventh of November and the sixth of December?** That question has an answer. It is written down. It is in affidavits, in intelligence reports, in the record of a Supreme Court hearing, and in the deployment orders of the central police forces.

Part One of this series set the rule and this is where it earns its keep: **a charge built on documents the state produced itself cannot be answered by disputing the documents.** The conspiracy question is unanswerable. The nine days are not.

4.1 — What the position was on the twenty-seventh of November

By late 1992 the dispute at Ayodhya was in the Supreme Court, and the court had ordered that nothing be built or demolished at the site. Muslim groups had filed contempt petitions saying Uttar Pradesh was already disobeying. A large gathering was announced for the sixth of December.

Two facts about that moment are load-bearing and both are on the official record.

The first is the affidavit. On the twenty-seventh of November 1992, the government of Uttar Pradesh told the Supreme Court in writing that it was fully able to protect the structure and that central forces were not needed.

WORD BOX · AFFIDAVIT

A written statement given to a court, sworn to be true. Lying in one is a criminal offence.

An affidavit is not a press statement or a political promise. It is the highest form of assurance a government can give to a court, and it is why what happened nine days later became a contempt matter rather than merely a scandal.

The second fact is what the central government itself had put in front of the same court.

HOW WE ACTUALLY KNOW THIS

The Attorney General appearing for the Union handed the Supreme Court reports from the Intelligence Bureau — India's domestic intelligence service — indicating that the structure was at risk of being demolished.

We know this from K. K. Venugopal, who appeared in those proceedings for Kalyan Singh and later became Attorney General of India himself, and who set it out in his own memoir. He records that the court did not give weight to the intelligence material, apparently because of the state government's assurances.

This is the strongest kind of source available for a claim like this: **a lawyer describing, against his own former client's interest, what his own side was told.**

Put those two together and the position on the twenty-seventh of November is this. The central government possessed intelligence that the mosque might be destroyed. It gave that intelligence to the Supreme Court. The state government, run by a party whose national campaign was built on this site, filed a sworn statement saying central troops were not needed. The court accepted the state's assurance over the Union's own intelligence.

And then nine days passed.

4.2 — How the site got there

The nine days did not come out of nowhere, and one step in the sequence is usually left out.

In October 1991 the new BJP government of Uttar Pradesh acquired around two and a half acres of land surrounding the disputed structure, stating that the purpose was

tourism and amenities for pilgrims. The acquisition was challenged. In 1992 courts restrained construction on it.

Through 1992 the ground around the mosque was levelled and a platform built. Contempt petitions followed in both the Allahabad High Court and the Supreme Court, alleging that the state was already disobeying orders. The Supreme Court, on an application by counsel for the Chief Minister, confined the contempt question to events up to July 1992 on the ground that fresh allegations were arriving faster than they could be answered.

By November 1992 the position was therefore this: the state had acquired the surrounding land, the site had been prepared, contempt proceedings were already running, and a gathering of unknown size was announced for the sixth of December.

HOW WE ACTUALLY KNOW THIS

The sequence above is not reconstructed from journalism. It comes from court records — acquisition notifications, interim orders and contempt filings — all of which are public documents produced at the time by parties in conflict with each other.

That is the strongest kind of record this series uses. Part One set out why: a document produced by two sides who disagree, in a forum where lying is punishable, is worth more than any number of later accounts by people describing their own conduct.

Against that background, a sworn statement that the state was fully competent to protect the structure was not a routine assurance. It was an assurance from a government that was already answering contempt allegations about the same site.

4.3 — What the central government could have done

Three things were available, and it matters that they were ordinary powers, not extraordinary ones.

It could have deployed central forces at the site on its own authority. It had assembled a very large number of paramilitary personnel in the area — figures around one hundred and fifty thousand are commonly given — and they were not sent in.

It could have imposed President's Rule in Uttar Pradesh under Article 356, dismissing the state government before the gathering. Part Three of this series described how that power was invented as an instrument in 1959; Part Six, Part Eight and Part Nine described its use. It had been used dozens of times by then, frequently on far thinner grounds.

It could have gone back to the Supreme Court and told it that the Union did not accept the state's assurance. It did not do that either.

IN REAL TERMS

Between the affidavit and the demolition there were **nine days**. Two hundred and sixteen hours.

In the same government's first nine days in office, in June 1991, it had assembled a Cabinet and begun drafting the industrial policy that would be announced five weeks later.

This is not a government that was incapable of acting in nine days. It is a government that acted in nine days when it wanted to.

4.4 — The sixth of December

The sixth of December 1992 was a Sunday. Around one hundred and fifty thousand people gathered. The structure was brought down within hours, by hand and with tools.

Riots followed across the country — Bombay, Delhi, Surat, Bhopal, Ahmedabad, Kanpur, Hyderabad. The commonly cited national toll is around two thousand dead, the majority of them Muslim. Part Eleven of this series already examined the Bombay violence of December 1992 and January 1993 as part of its comparison set, and this part does not repeat that account.

The judges of the Supreme Court assembled that afternoon at the Chief Justice's house. Contempt proceedings against Kalyan Singh, who had resigned as Chief Minister, produced a token punishment — one day, lasting until the court rose — and a fine.

IN REAL TERMS

A sworn undertaking to the highest court in the country was broken, a building the court had ordered protected was destroyed, and around two thousand people died in what followed.

The punishment for the breach was **a fine, and imprisonment lasting from the moment it was pronounced until the judges got up and went home.**

A person caught travelling without a ticket on the Delhi Metro pays more and has a longer afternoon.

4.5 — What this chapter charges, and what it does not

This book will not say that the central government arranged the demolition, or wanted it, or ordered it. There is no evidence for any of that, the inquiry that ran for seventeen years did not find it, and Chapter Ten sets out why it never will be found.

Part Twelve refused to assert that Rajiv Gandhi ordered the Ayodhya locks opened, on the ground that a series which will repeat an unproved allegation against one man cannot demand proof when the allegation runs the other way. The same rule applies here and it applies to a Congress government's benefit.

What is charged is narrower and it is not answerable.

VERDICT · THE NINE DAYS

Not established: that the central government wanted, ordered, arranged or connived at the demolition. **ALLEGED** and never proved, by anyone, in thirty-four years.

Established, on the government's own documents: that it held intelligence indicating the structure was at risk; that it placed that intelligence before the Supreme Court; that it then accepted, without independent verification, a state government's sworn assurance that central force was unnecessary — from a state government whose party's national campaign was built on that site; and that in the nine days available it deployed nothing, dismissed nobody, and did not return to the court.

The charge is a decision, not a conspiracy. Somebody decided to rely on that affidavit. That decision is the thing to examine.

And it was never examined. That is Chapter Five.

That last line is not a rhetorical flourish. The next chapter is about the machinery that was built, ten days later, to make sure the decision was never examined.

REMEMBER THIS

Do not argue about who ordered the demolition. Nobody knows and nobody will.

Argue about **nine days**. On the twenty-seventh of November 1992 a state government swore to the Supreme Court that it did not need central troops. The central government had intelligence saying the mosque might come down — it had given that intelligence to the court itself. It then did nothing for nine days.

Every part of that is written down, and none of it depends on believing anybody's account of a secret meeting.

CHAPTER FIVE

The Commission That Was Not Allowed To Ask

Ten days after the demolition, on the sixteenth of December 1992, the central government appointed a commission of inquiry. It was headed by Justice M. S. Liberhan, a retired High Court judge. It was told to report in three months.

It reported on the thirtieth of June 2009.

IN REAL TERMS

Seventeen years. Forty-eight extensions. Three hundred and ninety-nine sittings. Around a hundred witnesses. Roughly eight crore rupees.

A child born on the day the Liberhan Commission was appointed was old enough to vote before it reported.

It is the longest-running commission of inquiry in the history of the Republic. The three-month deadline was extended, on average, once every four months for seventeen years.

The delay is what everybody remembers about the Liberhan Commission, and the delay is not the important thing about it. The important thing is one line in the document that set it up.

5.1 — The terms of reference

A commission of inquiry cannot investigate whatever it likes. It is given a written list of questions by the government that creates it, and it is confined to them.

WORD BOX · TERMS OF REFERENCE

The written instructions that create an inquiry and tell it what it is allowed to look at.

They are drafted by the government. They are not negotiable by the commission. Anything not in them is outside the inquiry's power, however obviously relevant it is — the commission cannot expand its own remit, and if it strays, its findings on that ground carry no weight.

The terms of reference are therefore the single most important document in any inquiry, and almost nobody reads them.

The Liberhan Commission was told to examine five things: the sequence of events at the site on the sixth of December; the role of the Chief Minister, ministers and officials of the Government of Uttar Pradesh; the deficiencies in the security arrangements *as prescribed*

or operated by the Government of Uttar Pradesh; the assault on journalists that day; and any other matter related to the subject of inquiry.

Read that list again and notice what is not in it.

THE FINDING OF THIS CHAPTER

Examining the role of the central government was not part of the Liberhan Commission's mandate.

The inquiry into the destruction of the Babri Masjid was set up by the central government, and was not permitted to inquire into the central government.

Every question in Chapter Four — the intelligence, the affidavit, the nine days, the forces not deployed, the Article 356 power not used — was outside the terms of reference of the only official inquiry ever held.

This is not the first time this series has met that device. It is the second, and the first one is twenty-nine years older.

HIDDEN ASSUMPTION

Everybody assumes that a **commission of inquiry is an instrument for finding things out**. It is set up when something goes wrong; it has a judge; it takes evidence; therefore it is on the side of the truth.

But an inquiry's terms of reference are written by the body most likely to be inquired into. That body decides, before a single witness is heard, which questions exist.

Part Six of this series found exactly this in 1963. The Henderson Brooks–Bhagat report on the 1962 defeat was given terms of reference that **excluded Army Headquarters and the civilian direction of the army** — that is, excluded the two places where the decisions had actually been taken. Its findings therefore land entirely on the field commanders.

Now the same shape appears in 1992, under a different Prime Minister, in a different decade, about a completely different subject. **Two commissions, twenty-nine years apart, each scoped so that it could not reach the government that scoped it.**

A device that appears twice, that far apart, is not an accident and it is not a conspiracy either. It is a technique that works, and it is available to any government, which is why Chapter Nine proposes the only rule that would stop it.

5.2 — What the report did find

It found a great deal, and the findings are serious. **COMMISSION-FOUND** throughout, by the Liberhan Ayodhya Commission of Inquiry, reporting 30 June 2009.

It held sixty-eight political leaders, and leaders of the RSS, the VHP and the Bajrang Dal, together with senior civil and police officials, accountable for the events leading to the demolition. It found the destruction had been carried out in a manner it called duplicitous and unworthy of a democratically elected government. It indicted Kalyan Singh for diluting the security around the structure. It found that the executive, the political class and the bureaucracy took no effective steps either to prevent the demolition or to arrest those responsible.

It also found that intelligence agencies at both state and central level had either been badly over-optimistic or had withheld material from the commission — and said that, not being a detective agency, it had been forced to work with fragments.

And on the central government it said this: that the Rao government had believed the assurances given by the BJP and its Uttar Pradesh government, and had been, in the report's phrase, day-dreaming.

5.3 — Which is an exoneration, and this book has to say so

The commission did not target Narasimha Rao. It accepted the central government's argument that in a minority government's position, central forces could not simply be deployed into a state against that state's stated wishes, and that President's Rule could not be imposed on the basis of rumour.

That is the defence's case, it came from the only official inquiry ever held, and it must be stated at full strength.

THE ARGUMENT FROM THE OTHER SIDE

The defence says: a commission headed by a High Court judge sat for seventeen years, heard a hundred witnesses and examined this precise question. It concluded that the Prime Minister was credulous, not complicit. If the strongest word an inquiry can find after seventeen years is “day-dreaming”, the charge in Chapter Four is a charge of poor judgement, and poor judgement is not a crime.

It adds: what exactly was the alternative? Sending central paramilitary into Uttar Pradesh over the objection of an elected state government, days before a religious gathering of a hundred and fifty thousand people, would itself have risked mass casualties. Dismissing an elected government pre-emptively, on intelligence, would have been the precise abuse of Article 356 that thirteen parts of this book have condemned. **A government that had done either would be facing a different chapter of this same series.**

Where the defence wins: on the conspiracy charge, completely. Chapter Four already conceded it. And the point about Article 356 is a real one that this book cannot wave away, because it has spent four parts building the case against exactly that power.

Where it fails: the commission that produced the exoneration was *not permitted to examine the central government*. An acquittal from a tribunal without jurisdiction over the defendant is not an acquittal. And the alternatives were not the only two on offer — the government could have returned to the Supreme Court and told it that the Union did not accept the state’s affidavit. That required no troops, no dismissal, and no political capital. It required a lawyer and an afternoon.

That third option is the one to hold on to, because it disposes of the “minority government” defence entirely. A weak government can still tell a court that it does not believe something.

HOW WE ACTUALLY KNOW THIS

The report was leaked to a newspaper in November 2009 before being tabled in Parliament, and the leak itself became the story — the opposition alleged it had been released deliberately to break their unity on an unrelated sugarcane dispute.

That matters for a reason that has nothing to do with sugarcane. **By 2009 the report’s contents were a tactical instrument in a fight about something else.** Seventeen years is long enough for an inquiry into two thousand deaths to become a news-cycle weapon, and the parties on both sides treated it as one.

5.4 — What was done with it

When a commission of inquiry reports, the government must table the report in Parliament together with a memorandum saying what it intends to do about the findings. The

Liberhan report was tabled on the twenty-fourth of November 2009, seventeen years after the demolition, with such a memorandum attached.

Nothing followed. No prosecution was begun on the strength of it. No official named in it faced disciplinary action as a result of it. The criminal case that already existed continued on its own separate track and ended in acquittals in 2020.

IN REAL TERMS

Seventeen years, three hundred and ninety-nine sittings, around eight crore rupees, and no consequence attached to any finding.

Divide it out: roughly one sitting every fortnight for seventeen years, to produce a document whose operative effect was a debate in Parliament and a press cycle.

Part Eleven found that four commissions and nine committees on November 1984 had produced a record and not accountability, and said that establishing a record has functioned as a substitute for accountability rather than a step towards it. This is that finding again, in a different decade, about a different event.

By the time the report arrived, in other words, it had stopped being an inquiry into a demolition and become a piece of parliamentary furniture. Seventeen years does that to a document.

REMEMBER THIS

The Liberhan Commission took **seventeen years and forty-eight extensions**, and that is the least interesting thing about it.

The interesting thing is one line in the instructions: **the role of the central government was not within its mandate**. The government set up the inquiry into the demolition and left itself out of it.

This series has seen that device before. Part Six, 1963, Henderson Brooks: terms of reference excluding Army Headquarters and the civilian direction of the war. **Twice, twenty-nine years apart. It works both times.**

CHAPTER SIX

The Fifteenth of December

Nine days after the demolition, the central government did the thing it had not done in the nine days before it.

On the fifteenth of December 1992, President's Rule was imposed on Madhya Pradesh, Rajasthan and Himachal Pradesh. Three elected state governments, all run by the BJP, dismissed at once. Their assemblies were dissolved. Uttar Pradesh, where the demolition had actually happened, had already gone the same way.

The stated ground was that these governments could not be trusted to uphold a secular constitution, having failed to implement the ban on the organisations involved.

WORD BOX · ARTICLE 356 · PRESIDENT'S RULE

Article 356 lets the central government dismiss an elected state government and rule the state directly from Delhi, if the President is satisfied that the state cannot be governed according to the Constitution.

Part Three of this series described how this power was turned into an instrument in 1959, when the elected Kerala government was dismissed. By 1992 it had been used around ninety times. Almost every use was against a state run by a party other than the one in power at the Centre.

So this is Article 356 again, and by this point in the series a reader knows what to expect: another dismissal, another abuse, another entry in the ledger. This chapter does not go that way, and it is important that it does not.

6.1 — Bommai

The dismissed governments went to court. Their cases were joined with an older one brought by S. R. Bommai, whose Karnataka government had been dismissed in 1989 — under a Congress government at the Centre, in Part Twelve's period — without being allowed to prove its majority on the floor of the assembly.

On the eleventh of March 1994, nine judges of the Supreme Court gave judgment in *S. R. Bommai v. Union of India*. It is one of the two or three most important constitutional decisions in Indian history.

What it laid down changed Article 356 permanently.

TABLE 2 · WHAT BOMMAI SETTLED, 11 MARCH 1994

Before Bommai	After Bommai
The President's satisfaction was treated as effectively beyond review.	Subject to judicial review. The material behind it can be examined for relevance and good faith.
A government could be dismissed on a Governor's report that it had lost its majority.	Majority is tested on the floor of the House. A Governor's opinion is not a substitute.
Assemblies were routinely dissolved at once, making the dismissal irreversible in practice.	Dissolution before Parliament approves is invalid. A struck-down proclamation means the assembly is restored.
No stated limit on the grounds.	Secularism held to be part of the basic structure, and available as a ground.

Bench: Pandian, Ahmadi, Kuldip Singh, Verma, Sawant, Ramaswamy, Agarwal, Yogeshwar Dayal and Jeevan Reddy JJ. The leading judgment was written by Verma J. It remains the governing authority thirty-two years later.

6.2 — And it upheld the December 1992 dismissals

Here is the part that a one-sided book has to state plainly or lose the reader.

The Court did not strike down the dismissals of Madhya Pradesh, Rajasthan and Himachal Pradesh. It upheld them, on the secularism ground it had just recognised. The government that had done nothing for nine days before the sixth of December acted on the fifteenth, and the Supreme Court held that it had been entitled to.

And it went further in the opposite direction. **Bommai's own dismissal — the Karnataka case from 1989, under a Congress government — was held unconstitutional.**

VERDICT · THE DECEMBER 1992 DISMISSALS

The defence wins this one outright.

The single most important judgment ever delivered on the abuse of Article 356 arose from a Congress government's use of it, upheld that use, and struck down an earlier Congress government's use of it from Part Twelve's period.

This book has spent four parts building a case against Article 356 as an instrument of central control. On the fifteenth of December 1992 it was used against three governments of an opposing party, and the Supreme Court of India, nine judges sitting, said that was lawful.

COURT-FOUND, in the government's favour. It goes in the ledger as a defence win, and Chapter Nine counts it.

Handling this honestly is not generosity. It is the reason the rest of the book can be believed. A document in which every single item is a scandal is a document that has been engineered, and any reader who knows one thing about Bommai will spot the omission and stop reading.

6.3 — What the judgment actually changed

A constitutional decision is only as good as what happens afterwards, and this series has recorded several that changed nothing. This one changed a great deal, and the change is measurable.

Before 1994, Article 356 had been used roughly ninety times in forty-four years — about twice a year, overwhelmingly against states governed by parties opposed to the one in power at the Centre. Part Three traced its invention as an instrument in Kerala in 1959; Part Eight and Part Nine traced it through the decades that followed.

After Bommai the rate falls sharply and stays low. The floor test requirement removed the most common device, which was a Governor reporting that a government had lost its majority without the government ever being asked to demonstrate otherwise. The rule that an assembly cannot be dissolved before Parliament approves removed the second, which was making the dismissal irreversible before anybody could challenge it.

HOW WE ACTUALLY KNOW THIS

The test of whether Bommai worked is not what commentators say about it. It is whether governments dismissed after 1994 have been restored by courts, and whether a Governor's report still functions as the operative document.

Both have been tested repeatedly since, and in each case the courts have gone back to Bommai and applied it, including by ordering assemblies restored. **A judgment still being used three decades later to reverse the acts of governments of every party is a working rule, not a statement of principle.**

So this chapter's concession runs further than the December 1992 dismissals themselves. The litigation those dismissals produced did more to end the abuse of Article 356 than anything else recorded in the thirteen preceding parts of this book.

THE ARGUMENT FROM THIS BOOK'S SIDE

What the prosecution can still say: the timing is the charge. The power that was too dangerous to use on the fifth of December, when it might have saved the building, was available and used on the fifteenth, when it could only punish. Both decisions were about the same states and the same party and were taken ten days apart by the same Cabinet.

The defence's reply, which is strong: those are genuinely different acts. Dismissing a government *before* it does anything, on intelligence, is pre-emptive and is exactly what Part Three condemned in Kerala in 1959. Dismissing it *after* a demolition its own affidavit had promised to prevent is a response to a fact. The Supreme Court drew that distinction and it is a real one.

Where this leaves it: the defence has the better of the constitutional argument. What survives is smaller and is about consistency of nerve, not law — a government that believed on the fifteenth that these states were a danger to the Constitution had believed something less than that on the fifth, and the difference between the two dates is that two thousand people had died in between.

So this chapter closes with a concession rather than a charge, and the concession is load-bearing. Chapter Nine counts it among the four or five places in this series where the defence wins on the record.

REMEMBER THIS

On the fifteenth of December 1992, three BJP state governments were dismissed under Article 356. In *S. R. Bommai*, decided on the eleventh of March 1994, nine judges **upheld those dismissals** — and in the same judgment struck down a 1989 Congress dismissal from Part Twelve's period, made Article 356 reviewable by courts for the first time, and required majorities to be tested on the floor of the House.

This is one of the small number of items in this series where the defence wins. Chapter Nine counts them. A book where nothing is ever conceded is a book nobody has to answer.

CHAPTER SEVEN

The Money

Five separate financial scandals attach to these five years. They are usually told as a list, with the sums attached, as though the sums were the point. They are not, and this chapter is arranged to show why.

7.1 — The securities scam, 1992

On the twenty-third of April 1992, the journalist Sucheta Dalal published a report in the *Times of India* showing that around five hundred crore rupees had been taken out of the State Bank of India on the strength of receipts for government bonds that did not exist.

WORD BOX · BANK RECEIPT

When two banks lent each other money for short periods, they used government bonds as security. Physically moving the bonds was slow, so instead the lending bank issued a piece of paper — a bank receipt — saying in effect: *the bonds exist, we are holding them for you.*

The entire system ran on the assumption that nobody would issue such a paper for bonds that did not exist. Harshad Mehta, a stockbroker, arranged for exactly that. Two small banks issued receipts against nothing. Large banks accepted them and handed over real money.

The money went into shares. Between April 1991 and April 1992 the Bombay index rose from 1,194 to 4,467 — a gain of about two hundred and seventy-four per cent, the largest in its history. Small investors, watching prices climb, followed. When the receipts were discovered the market collapsed and they were the ones holding the shares.

The amount is given differently in different places and this book has to be careful with it.

HOW WE ACTUALLY KNOW THIS

You will see the securities scam given as **about ₹4,000 crore** and as **about ₹1,000 crore**. They measure different things.

The larger figure, usually stated precisely as ₹4,025 crore, is the total value of funds diverted out of the inter-bank securities system on fraudulent paper. The smaller is an estimate of how much of that was actually pushed into the stock market.

The Joint Parliamentary Committee that investigated it is the primary source for the mechanism. This book uses the ₹4,000 crore figure and says what it counts, because a number quoted without its definition is the thing Part One warned about: an argument about meaning conducted as though it were an argument about arithmetic.

Mehta was arrested on the ninth of November 1992. Seventy-two criminal cases and around six hundred civil actions followed. He died in 2001. The chairman of one bank caught in the scandal killed himself.

And in July 1993, Mehta held a press conference, produced a suitcase, and said he had delivered one crore rupees in cash to the Prime Minister.

VERDICT · THE SUITCASE

ALLEGED. Never proved. No court ever found it, no inquiry established it, and Mehta at that point was a man facing seventy-two prosecutions with an obvious interest in enlarging the story.

It goes in this book graded, and with this observation: **the reason the claim survives is the suitcase, not the evidence**. A physical object at a press conference gave the allegation a picture, and the picture has outlived every attempt to test the claim.

Part One's chapter on fabrication makes the strategic argument: allegations like this are Congress's best defence, because they let every documented charge be waved away as more of the same. The urea contract in section 7.4 ended in convictions. The suitcase did not. Keeping them in separate columns is what makes the first one impossible to dismiss.

7.2 — What Parliament did about it

Parliament set up a Joint Parliamentary Committee on the securities scam — only the second such committee in Indian history, the first having examined Bofors in 1988.

WORD BOX · JOINT PARLIAMENTARY COMMITTEE

A committee drawn from both Houses, set up to investigate a specific matter. It can summon officials and papers.

Two things limit it. Its membership reflects the strength of the parties in Parliament, so the governing party has a majority on it. And its report is a recommendation: no part of it binds anybody, and no mechanism exists to make a government act on it.

Part Twelve recorded what happened to the first one, on Bofors in 1988: government majority, opposition boycott, and no consequence. This was the second.

The committee did serious work. It traced the mechanism, established how the receipts had been issued and accepted, and identified failures of supervision at the Reserve Bank and inside the public sector banks.

The lasting result was regulatory rather than criminal. The Securities and Exchange Board of India, which had existed since 1988 as an advisory body, was given statutory powers in 1992. The bank receipt system was overhauled. Share trading moved, over the following years, from paper certificates to electronic records — which removed at a stroke a whole family of frauds that depended on physical paper.

That is a real reform and it goes in the credit column. But it is worth being exact about what it was and was not.

IN REAL TERMS

The 1992 scam produced a **better market and almost no punishment.**

Trading is now electronic, the regulator has teeth, and a fraud of that exact shape cannot be repeated. Meanwhile the man at the centre of it died in 2001 with seventy-two cases still running, and the bankers who accepted receipts for bonds that did not exist mostly retired.

This is the pattern Part Eleven identified in a far graver setting: **the system learns, and nobody is held responsible.** Those are not the same thing, and the first is regularly offered as though it were the second.

7.3 — The Jain diaries

In March 1991, a man alleged to be connected to a militant organisation was arrested in Delhi. His interrogation led the CBI to raid the premises of a businessman, S. K. Jain. They seized foreign and Indian currency, two diaries and two notebooks. The books recorded large payments, against initials.

The initials corresponded to those of senior politicians and civil servants, across parties.

Then nothing happened for five years.

IN REAL TERMS

The diaries were seized in **March 1991**, three months before this government took office. Charge sheets were filed in **1996**, as it was leaving.

That is the entire life of the government. A document naming its own ministers sat in a CBI cupboard from the first week to the last.

It moved only because a journalist, Vineet Narain, took the government to the Supreme Court under Article 32 and made it move.

The prosecutions that eventually followed collapsed in 1997 and 1998. The courts held that diary entries against initials, without corroboration, were not evidence on which anyone could be convicted. Everybody named walked, including three Congress ministers and, in the entries said to relate to him, the Prime Minister.

The acquittals are not the charge here, and it is important to be precise about that.

THE ARGUMENT FROM THE OTHER SIDE

The defence says: the courts examined this material and found it worthless. Names in a private diary are not proof of anything. Every accused person was acquitted, across every party, which is what happens when an allegation has nothing behind it. Treating an acquittal as a conviction with extra steps is precisely the dishonesty this book claims to avoid.

The reply: agreed, entirely, on the acquittals. The charge is not that the accused were guilty.

The charge is the five years. Evidence sufficient to justify investigation was in the state's own possession from March 1991, and the state did not investigate until a private citizen compelled it through the Supreme Court. If the diaries were worthless, five years of a government's own investigators would have established that in 1991 and the reputations named in them would not have been damaged for a decade.

What the defence keeps: nothing in this section supports a claim that anybody took the money. This book does not make one.

What came out of it was not a conviction but a rule. In *Vineet Narain v. Union of India*, decided on the eighteenth of December 1997, the Supreme Court issued twenty-six directions. It gave the Central Vigilance Commission a supervisory role over the CBI. It struck down the "Single Directive", the rule that had required political permission before senior

officials could even be investigated. It fixed the CBI Director's tenure at two years so that a Director could not be removed for investigating the wrong person. And it established the technique of keeping a case open and supervising compliance over time.

COURT-FOUND, and it is the most important thing this scandal produced.

7.4 — Telecom

Sukh Ram was Minister of State for Communications, with independent charge, from January 1993 to May 1996. In 1996 the CBI raided his houses.

They found around three and a half crore rupees in cash. Some of it was in a shoebox in a Delhi hotel room. Over one crore was at his residence.

He was convicted twice. **CONVICTED** in 2002, three years' rigorous imprisonment and a fine, over a contract for radio equipment supplied at inflated rates, causing a loss of around one crore sixty-six lakh rupees; two officials were convicted with him. **CONVICTED** again in 2011, five years and a four lakh fine, for taking a three lakh rupee bribe over a thirty crore rupee cable contract.

Those are convictions, the top of this book's evidence scale. But look at the dates.

IN REAL TERMS

The offence was in **1996**. The five-year sentence came in **November 2011** — fifteen years later. He was eighty-four.

He was taken to Tihar jail on the nineteenth of November 2011 and released on bail by the Delhi High Court on the twenty-eighth, on grounds of age and heart disease.

Fifteen years to the sentence. Nine days in custody.

In between he had left Congress, formed his own party, helped the BJP take Himachal Pradesh in 1998, and rejoined Congress in 2019.

7.5 — Urea

In 1995, National Fertilisers Limited, a government company, put out a global tender for two hundred thousand tonnes of urea. The contract went to a Turkish firm.

NFL paid the entire sum — one hundred and thirty-three crore rupees — **in advance, without a bank guarantee**. The money went to an account in Geneva. No urea was ever delivered. The firm was not found in Turkey.

WORD BOX · BANK GUARANTEE

A promise by the seller's bank: *if this company takes your money and does not deliver, we will pay you back.*

It is the most basic protection in international trade. No private business of any size sends a hundred and thirty-three crore rupees abroad without one. It is not a sophisticated safeguard that somebody clever got around. It is the first thing on the checklist, and it was not there.

The CBI registered the case on the nineteenth of May 1996, days after the government left office, and filed a charge sheet in 1997. The trial ended in 2018.

CONVICTED: two Turkish nationals, six years each and a hundred crore rupee fine. B. Sanjeeva Rao, a nephew of the Prime Minister, three years and a five crore fine. Prakash Chandra Yadav, son of a Union minister, three years and a one crore fine. Officials of NFL.

Twenty-three years from the payment to the verdict. And in a related NFL case, the CBI filed a closure report in January 2021 — twenty-two years after the case was registered — which the court rejected.

Two more cases against the Prime Minister himself should be recorded and their outcomes given. In the St Kitts matter he was charged with helping to forge documents showing that V. P. Singh's son held twenty-one million dollars offshore with his father as beneficiary. In the Lakhubhai Pathak matter, a businessman said he had paid a hundred thousand dollars for a contract that never came. Charge sheets were filed in 1996. **He was acquitted in both, in 2003.** They go in the ledger as charges brought and lost.

7.6 — What the five have in common

Set them side by side and the sums are the least interesting column.

TABLE 3 · THE FIVE, BY ELAPSED TIME

Case	Amount	Outcome	Years elapsed
Securities scam (1992)	~₹4,000 crore diverted	Prosecutions; Mehta died 2001 with cases running	9+, unresolved at death
The suitcase allegation	₹1 crore	ALLEGED ; never proved	Never tested
Jain diaries	~₹65 crore across those named	All acquitted 1997–98	5 years to charge sheet
Telecom (Sukh Ram)	₹3.6 crore found in cash	CONVICTED 2002 and 2011	15 years to the second sentence

Case	Amount	Outcome	Years elapsed
Urea (NFL)	₹133 crore paid in advance	CONVICTED 2018	23 years

The two cases that ended in convictions are also the two that took longest. That is not a coincidence and section 7.6 explains why.

HIDDEN ASSUMPTION

Every account of political corruption assumes that **the seriousness of a case is measured by the amount of money**. This is why scandals are named after their sums.

But look at the column that actually varies. The amounts here run from one crore to four thousand crore — a factor of four thousand — and they predict nothing. What predicts the outcome is **elapsed time**.

Fifteen years to a sentence means the convicted man is eighty-four and is bailed on medical grounds in nine days. Twenty-three years means the money is untraceable and the company has dissolved. Five years to a charge sheet means the evidence has gone cold and the case fails in court.

Delay is not a failure of the anti-corruption process. For these purposes it is the anti-corruption process. A system in which every case is eventually decided, and every case takes two decades, produces exactly the same result as a system with no cases in it — except that it also produces the appearance of accountability, which is more useful to a government than impunity would be.

Part Eleven found the same shape in a different setting: transparency improving while accountability did not, so that establishing a record functioned as a substitute for consequences rather than a step towards them.

7.7 — Why nobody has to decide anything

The useful thing about the delay finding is that it does not require anybody to have done anything wrong.

No minister ordered a case to go slowly. No file says “delay this”. The CBI is understaffed and its officers are transferred. Special courts have too many cases. Adjournments are granted because a lawyer is unavailable. Appeals take their turn. Each individual step is defensible and most are correct.

Part Thirteen described the fifth form of a recurring pattern in this series: an addition nobody has made, where every component exists, nothing is concealed, and no decision exists that anybody has to defend. This is the same shape in a courtroom. **There is no de-**

cision to delay. There is only the absence of a decision to hurry, and nobody is obliged to make one.

REMEMBER THIS

Five money scandals. One ended in nothing because it was never real. One collapsed in court because a diary is not evidence — but sat unexamined for **five years** until a journalist forced the government's hand in the Supreme Court.

Two ended in convictions: telecom in **fifteen years**, urea in **twenty-three**. The man sentenced to five years served nine days.

Stop looking at the amounts. Look at the years. The amounts differ by a factor of four thousand and tell you nothing. The years tell you everything.

CHAPTER EIGHT

The Vote

In July 1993 the opposition moved a motion of no confidence. On the arithmetic, the government should have lost. It won, two hundred and sixty-five to two hundred and fifty-one.

Afterwards it was alleged that members of the Jharkhand Mukti Morcha had been paid to vote with the government. One of them, Shailendra Mahato, turned approver — he confessed and gave evidence against the others.

WORD BOX · NO-CONFIDENCE MOTION · APPROVER

A **no-confidence motion** is a vote in Parliament on whether the government should continue. If the government loses, it must resign. It is the only routine way, between elections, of removing a government.

An **approver** is somebody accused of a crime who admits it and gives evidence against the others, usually in exchange for a pardon. Approver evidence is treated cautiously by Indian courts, because a person who has admitted lying and has been promised something has two reasons to say what the prosecution wants.

Nothing happened while the government was in office. Investigation began in earnest in 1996, after it had gone. What followed took thirty-two years and it is the fullest example in this series of a charge moving up and down the evidence scale.

8.1 — The 1998 judgment

The case reached a Constitution Bench of the Supreme Court. In 1998, by three votes to two, it decided something that surprised almost everybody.

Article 105(2) of the Constitution says that no Member of Parliament shall be liable in any court for anything said, or any vote given, in Parliament. The purpose is obvious and good: a member must be able to speak and vote without fear of being prosecuted for it.

The majority held that this protection extended to a member who had taken a bribe *and then voted as agreed*. The bribe was “in respect of” a vote, so the immunity covered it.

The consequence was absurd on its face, and the Court said so itself years later.

IN REAL TERMS

Under the 1998 judgment, the members who took the money and voted as promised **could not be prosecuted**. Ajit Singh, who was alleged to have taken money and then abstained, **could be**.

Take a bribe and keep the bargain: protected. Take a bribe and break it: prosecuted.

The law rewarded the more corrupt of two corrupt acts, and it did so for twenty-six years.

The immunity also covered only the takers, not the givers. That is why the case against the Prime Minister continued when the cases against the members who allegedly took the money did not.

8.2 — Convicted, then acquitted

In 2000 a special CBI court convicted P. V. Narasimha Rao and Buta Singh. **CONVICTED** — the first time in Indian history a former Prime Minister was convicted of a criminal offence. Rao was sentenced to three years' rigorous imprisonment and a fine of one lakh rupees. Three other accused, including Ajit Singh, were acquitted.

He appealed and stayed on bail. In 2002 the Delhi High Court set the convictions aside, principally on the credibility of the approver's evidence. **COURT-FOUND**, in his favour.

He died in 2004 with no conviction standing against him. His body was not allowed inside the Congress headquarters. In February 2024 he was awarded the Bharat Ratna.

8.3 — And then the law was struck down

In 2012, Sita Soren — a member of the Jharkhand assembly, and Shibu Soren's daughter-in-law — was accused of taking a bribe to vote for a candidate in a Rajya Sabha election. Because the ballot was open, it emerged that she had voted for her own party's candidate instead. She relied on the 1998 judgment.

The case went up. A two-judge bench referred it to three; three referred it to five; five held that only a bench larger than the one that decided the 1998 case could reconsider it, and referred it to seven.

On the fourth of March 2024, seven judges of the Supreme Court, unanimously, overruled *P. V. Narasimha Rao v. State*.

VERDICT · SITA SOREN V. UNION OF INDIA, 4 MARCH 2024

Bench: Chief Justice D. Y. Chandrachud, with Bopanna, Sundresh, P. S. Narasimha, Pardiwala, Sanjay Kumar and Manoj Misra JJ. Unanimous.

Bribery is not part of legislative activity. Articles 105(2) and 194(2) do not protect it. Legislators are public servants for the purposes of the Prevention of Corruption Act. **The offence is complete when the bribe is accepted, whether or not the vote is ever cast.**

The Court noted the absurdity directly: the earlier reading meant a person who took a bribe and did not vote could be prosecuted, while one who took a bribe and voted could not.

The arc of this single case is worth setting out in one place, because Part One promised that where a charge moves up and down the scale over time, the whole movement would be given.

TABLE 4 · ONE CHARGE, THIRTY-TWO YEARS

Date	What happened	Grade at that moment
July 1993	Motion survived 265–251	—
1993–96	Allegation public; no investigation while in office	ALLEGED
1998	Supreme Court, 3:2 — takers immune, givers not	COURT-FOUND
2000	Rao and Buta Singh convicted by special court	CONVICTED
2002	Delhi High Court acquits both	COURT-FOUND, for the defence
4 March 2024	Seven judges overrule the 1998 immunity ruling	The law behind the 2002 acquittal is gone

The acquittal stands. Nothing in 2024 reopens it or touches Rao's record. What changed is that the reasoning which made the acquittal possible is no longer the law of India.

8.4 — What this case is actually evidence of

A reader could take two opposite lessons from this and both would be wrong.

The first wrong lesson is that Rao was guilty and got off. The 2002 acquittal is a real acquittal by a real court on the evidence, and this book does not treat an acquittal as a conviction with extra steps. Part Twelve refused to do that to Rajiv Gandhi over Bofors and the same rule protects Rao here.

The second wrong lesson is that the system worked. It took thirty-two years to produce a rule that a first-year law student would have written on day one.

What the case is genuinely evidence of is something narrower and more useful. In July 1993, the price of a government surviving a vote was that somebody went looking for members to buy. Whether anybody bought them was never established. What was established, in 1998 and for twenty-six years afterwards, is that **if they had, the law protected them.**

THE ARGUMENT FROM THE OTHER SIDE

The defence says: he was acquitted. A High Court examined the evidence and found the approver not credible. The 2024 judgment changed the law prospectively and says nothing whatever about whether this particular man did this particular thing. To bring 2024 into a chapter about 1993 is to use a change in the law as a substitute for evidence that never existed.

That is correct and this book accepts it. The section above does not say Rao took or gave a bribe, and Chapter Ten lists it among the things not established.

What the 2024 judgment is doing in this chapter is different. It is evidence about the state of Indian law between 1998 and 2024 — a period in which the Supreme Court’s settled position was that a legislator who sold his vote and delivered could not be touched. That is a fact about the country, not about the accused, and this series is about what happened to the country.

8.5 — How it ended

The vote of July 1993 bought the government three more years. What it did not buy was a party.

Through 1994 and 1995 the Congress split repeatedly. In May 1995 Arjun Singh and N. D. Tiwari, two of its most senior figures, left and formed their own party. Others followed at state level. Seven cabinet ministers resigned over the course of the term.

In the general election of April and May 1996 the Congress won **140 seats** — its worst result since 1947, and eighty-four fewer than in 1991. Rao left office on the sixteenth of May 1996 and resigned as party president that September.

IN REAL TERMS

A government that had rescued the country from default, put village councils into the Constitution and doubled the growth rate was reduced to **fewer than one seat in four**.

No party has ever been punished at the ballot box for a set of economic reforms that worked. This one was punished for everything else in this part, and the reforms were not enough to offset it.

That is worth holding on to when Chapter Nine asks whether a list of failures can be a judgement on a government. In 1996 the voters made exactly that judgement, with far less information than you now have, and they were not obviously wrong.

What happened to the man afterwards has become a small story in its own right, and it belongs here because it says something about the party rather than about him.

When Rao died in 2004, with a Congress government back in office, his body was not taken inside the party's Delhi headquarters. He was cremated in Hyderabad rather than in the capital. In February 2024 he was awarded the Bharat Ratna, India's highest civilian honour, by a government of a different party.

THE ARGUMENT FROM THE OTHER SIDE

The defence says: the treatment of Rao after 1996 shows that the Congress itself disowned this period, which means the party should not be held to it as though it were a continuous actor with a settled character.

The reply is the founding assumption of this whole series. Part One's opening box conceded that treating Congress as one continuous thing across seventy-nine years is a choice made before the analysis begins, and that it cuts both ways: it lets this book inherit every sin across eight decades, and it lets the defence disown any of them at will.

Part Fourteen is where that cuts hardest, in *both* directions at once. If the party may disown the demolition because it disowned Rao, it must also give up the 1991 reforms — the largest credit item in nineteen parts. **It has spent thirty years trying to keep the second while shedding the first, and it cannot have both.**

Both the defence and the prosecution can therefore leave this chapter with something, which is unusual in this book and is the honest result.

Chapter Eight therefore ends where the government did, and the next chapter takes up its defence.

REMEMBER THIS

July 1993: the government survived by fourteen votes. Members were alleged to have been paid. Nothing was investigated until the government fell.

Then: **alleged** → the Supreme Court holds bribe-takers immune if they vote as promised (1998) → **convicted**, the first former Prime Minister ever (2000) → **acquitted** (2002) → the immunity ruling itself struck down by seven judges (2024).

Thirty-two years, four reversals, and the man at the centre of it died in the middle. This is what Part One meant by giving the whole arc.

CHAPTER NINE

What Would Have Prevented It

This chapter does two things. It states the defence of this government at its full strength, and then it asks what rule would have changed each outcome — because a failure with no available remedy is a tragedy, and a failure with an obvious unmade remedy is a choice.

9.1 — The defence, at full strength

One. The government had no majority and that is not an excuse, it is a fact. Two hundred and thirty-two seats out of five hundred and forty-five. It could have fallen in any week. A government in that position that had sent paramilitary forces into Uttar Pradesh against the wishes of an elected state government, days before a gathering of a hundred and fifty thousand people, would have been risking a massacre and its own survival at once. This is not a hypothetical: it is what the Liberhan Commission itself accepted.

Two. The alternative the prosecution wants was the abuse this book condemns. Dismissing an elected state government pre-emptively, on the basis of intelligence about what it might allow, is precisely the use of Article 356 that Part Three condemned in Kerala in 1959 and that Part Eight and Part Nine traced through the following decades. A government that had done it would be facing a different chapter of this same series, and the prosecution would have written it.

Three. It did the biggest right thing in the book. Chapter Two. It also passed the Seventy-third and Seventy-fourth Amendments, which a government with four hundred and fourteen seats had failed to pass. It ended the Hazratbal siege without firing into a shrine. It normalised relations with Israel and turned Indian policy east.

Four. The Supreme Court agreed with it about Article 356. Chapter Six. Nine judges upheld the December 1992 dismissals in the very judgment that ended the abuse of the power.

Five. Every accusation against the Prime Minister personally failed. St Kitts: acquitted. Lakhubhai Pathak: acquitted. JMM: convicted and then acquitted on appeal. Hawala: never charged. The suitcase: never tested. A man against whom four separate prosecutions were brought and none survived is entitled to have that stated in one place, and this is the place.

HOW WE ACTUALLY KNOW THIS DEFENCE IS SERIOUS

The test of whether a defence has been stated fairly is whether its own side would recognise it. Two independent checks apply here.

The Liberhan Commission — appointed by a Congress government but reporting under a different one, seventeen years later, into a subject where nobody had an interest in protecting Rao by then — reached the minority-government conclusion on its own.

And the Supreme Court, in a case brought against the government by the parties it had dismissed, decided for the government on the central constitutional question. Neither of those bodies was doing Congress a favour in 2009 or in 1994.

Six. It did not start this. The strongest point in the defence is the one it is least able to make in public, because making it means indicting its own party.

Part Twelve set out the sequence. In February 1986 a district judge ordered the locks at the disputed site removed, and they were broken open within about forty minutes with Doordarshan present and broadcasting. In November 1989 a Congress government permitted the foundation-laying ceremony at the site, and launched its own general election campaign from Faizabad. Part Twelve graded the claim that Rajiv Gandhi personally directed the unlocking as **ALLEGED** and declined to assert it — but the shilanyas and the campaign launch are not disputed by anybody.

By June 1991 the movement was six years old, had already brought down one national government, and had just won Uttar Pradesh. The government of 1991 did not create that. **The government of 1986 and 1989 helped to create it, and it was the same party.**

IN REAL TERMS

Between the locks being opened in **February 1986** and the mosque coming down in **December 1992** there are six years and ten months.

For four of those years the central government was Congress. For the remaining three it was not.

This defence therefore succeeds and fails at the same moment. It is true that the government of 1991 inherited the problem. It is also true that **this book treats Congress as one continuous actor**, and on that basis the party inherited the problem from itself.

9.2 — Where the defence loses anyway

On the demolition it loses on one point and only one, but the point is not answerable.

The government had a third option that required neither troops nor a dismissal. It could have gone back to the Supreme Court, before the sixth of December, and said: *we do not accept the state's affidavit; here is our intelligence; we ask for directions*. That costs no political capital. It risks no confrontation. It does not require a majority. It requires a law officer and an afternoon.

It was not done, and no defence has ever explained why not.

On the Liberhan Commission the defence does not lose — it is disqualified. An exoneration by a body that was not permitted to examine you is not an exoneration.

On the money, the defence of individual acquittals is sound and the defence of the delays is not, because the delays are not a matter of guilt or innocence at all.

9.3 — The rules that would have changed it

Five, all of them ordinary legislation. None requires a constitutional amendment. None has been enacted in the thirty-four years since.

TABLE 5 · FIVE RULES, NONE MADE

The failure	The rule that would have caught it	Status
Terms of reference excluding the government that writes them	Commissions of Inquiry Act amended so terms of reference are laid before Parliament and may be enlarged by the commission itself on stated grounds	Never proposed
An inquiry running seventeen years on rolling extensions	Statutory outer limit; each extension approved by Parliament, not the ministry	Never enacted
A state affidavit accepted without verification	A standing duty on the Union to place its own contrary intelligence before the court where it holds any	Never enacted
Fifteen and twenty-three year prosecutions	Time limits for corruption trials involving public office, with the case failing against the state rather than the accused if missed	Never enacted
Evidence sitting five years before a charge sheet	Statutory time limit from seizure to decision on prosecution, reported to Parliament	Partly addressed by <i>Vineet Narain</i> directions, 1997; never legislated

Part Nine, Part Eleven and Part Thirteen each ended with a similar table. In every case the remedies were ordinary law and in every case they were not made. Part Nineteen consolidates all of them.

The fifth row is the interesting one, because something did happen there — and what happened was that a court did it, not a legislature. The *Vineet Narain* directions of 1997

gave the CBI a protected tenure and abolished the Single Directive. That was the Supreme Court legislating because nobody else would.

9.4 — The question turned on this book

This part has a problem that the previous thirteen did not have, and it would be dishonest to reach Chapter Ten without naming it.

HIDDEN ASSUMPTION

This series assumes that **a list of what a government did wrong is an account of that government.** Part One's final Hidden Assumption box already conceded that there is no denominator — no measure of everything a government did, against which the failures could be weighed.

Part Fourteen is where the absence of a denominator stops being a technical point and becomes a real problem, because **this government did something enormous and good.**

Here is the difficulty, stated plainly. How many deaths in the riots of December 1992 are cancelled by taking eight hundred thousand women into elected office? How much does an economy growing at six per cent instead of three and a half offset a mosque? **There is no exchange rate. There is not even a currency.**

Every reader who has got this far has been performing this calculation privately for several chapters, and every reader is getting a different answer, and none of them can show their working — because there is no working to show.

What this book can honestly claim is narrower than it looks: **that each item in it is true, graded, and stated with its defence.** What it cannot claim, and has never claimed, is that the list adds up to a verdict on a government. It does not. It cannot. And a reader who takes it as one has been misled by the form of the thing rather than by anything written in it.

That is the most uncomfortable paragraph in this series so far, and it belongs here rather than at the end, where it would look like a disclaimer bolted on.

REMEMBER THIS

The defence is strong: no majority, a Supreme Court that agreed about Article 356, four failed prosecutions of the Prime Minister, and the largest economic reform in Indian history.

It loses on one thing. **The government could have gone back to the Supreme Court and said it did not believe the affidavit.** That required no troops, no dismissal and no majority. It has never been explained.

And the deepest problem in this chapter is not about that government. **It is that this book has no way of weighing what it did right against what it did wrong, and neither do you.**

CHAPTER TEN

An Honest List of What We Do Not Know

Every part of this series ends here. The list is not a formality and it is not modesty. It exists because a document that claims to know everything is a document that can be destroyed by one thing it got wrong.

10.1 — Not established, and stated as such

Whether anybody ordered the demolition. Not established. Not by the CBI, not by the Liberhan Commission in seventeen years, not by a criminal trial that ran twenty-eight years. This book does not assert it against anybody, of any party.

Why the central government relied on the affidavit. This is the single most important unknown in the part. The decision was taken by somebody, on some advice, for some reason. No account of that decision exists in public. The commission that would have asked was not allowed to.

Whether the Prime Minister took money in any of the five financial matters. Not established in any of them. Two prosecutions ended in acquittal, one in a conviction that was set aside, one was never charged, one was never tested.

Who burned Charar-e-Sharief. Genuinely disputed. The government says militants, local residents say the army, and a senior civil servant who was there inclines to the second. **ALLEGED**, both ways.

How much of the 1990s growth was caused by the 1991 reforms. No honest number exists. Growth accelerated. So did growth in several countries that did nothing similar. Part Four declined to put a figure on the counterfactual cost of the licence system and this part declines to put one on the benefit of removing it, for the same reason.

10.2 — The question this part cannot settle

The largest unknown here is not about the demolition. It is about Chapter Two, and it is the reason this part cannot produce a verdict on the government as a whole.

Growth accelerated after 1991. That is not in doubt. What is in doubt is how much of it the reforms caused. Several things happened at once: the licence system went, the rupee was devalued, the world economy grew through the 1990s, a large young population

entered the workforce, and the software industry appeared for reasons that had little to do with Indian policy.

Part Four refused to put a number on what the licence system cost, and said so in its Chapter Ten. This part refuses to put one on what removing it gained, for exactly the same reason: no honest number exists, and one could be produced only by choosing a comparison country and hoping nobody checks the choice.

WHAT WOULD SETTLE IT

The comparison that would answer this has never been made properly, and it could be.

Indian industries were deregulated at different times over the following decade rather than all at once. That produces something close to a natural experiment: sectors freed in 1991, sectors freed in 1993, sectors freed later, and sectors not freed at all — the right-hand column of Table 2.

Comparing growth, employment and productivity across those groups, controlling for what else changed, would give a real estimate of what deregulation did. The data exists. The Annual Survey of Industries has been collected throughout.

Part Five ended by naming the one calculation that would settle freight equalisation, which nobody has done. This part ends by naming a second one. **Both are arithmetic. Neither requires a document anybody is hiding.**

10.3 — Where this part may be wrong

Three specific vulnerabilities, stated so that a hostile reader does not have the pleasure of finding them.

The status of the criminal appeal. The special CBI court acquitted all thirty-two accused in the demolition case on the thirtieth of September 2020. The CBI did not appeal. An appeal was brought instead by two residents of Ayodhya, filed in January 2021 and converted from a revision into a criminal appeal. This book has not been able to establish what has happened to it since 2022, and says so rather than guessing. Nothing in this part depends on that appeal, because this part does not charge anybody with conspiracy.

The seat count. Chapter One explains why this book uses 232 rather than 244. A reader who has seen the other figure is entitled to think this one was chosen because it flatters the argument in the front-matter box. It was chosen because it is the number the government had on the day it took office, and the box would survive the other figure too — 244 is still not a majority.

The placement of Chapter Two. Putting the achievement second, before the charge, is a choice this book made and defended in the text. A hostile reader may reasonably say it is a device: the credit is banked early so that the prosecution can proceed with clean hands. That reading is available and this book cannot disprove it.

10.4 — The document that would settle it

Six parts of this series have ended by naming a file the state holds and will not release. Part Thirteen broke the run deliberately, ending instead on the observation that in the tribal belt there was no closed door at all — the numbers existed everywhere and the addition had simply never been done.

This part returns to the door, and the document behind it is a small one.

THE MISSING DOCUMENT

Somewhere between the twenty-seventh of November and the sixth of December 1992 there is a file. It contains the Intelligence Bureau's assessments of the risk at Ayodhya, the Home Ministry's notes on them, and whatever was written down about whether to deploy central forces or to seek President's Rule in Uttar Pradesh.

It is not a cabinet paper of great sensitivity. It is nine days of routine internal correspondence in a ministry, now thirty-four years old.

It has never been released, and no government of any party has released it. Classification in India, as Part Six established, has no automatic expiry — so silence is the default and requires nobody to decide anything.

That file would answer the central question of this part in an afternoon. Its absence is why Chapter Four had to build its charge out of an affidavit and a memoir instead.

One closing observation about that, and it is the least comfortable thing in this part.

The Liberhan Commission was not allowed to look at the central government. But it also, in its own words, found that the intelligence agencies had either been over-optimistic or had withheld material from it. So even the inquiry that was forbidden to ask the question was separately unable to get the documents that would have answered it.

Two locks on one door, fitted by different people, neither of whom had to coordinate with the other. That is how this works. It is not a conspiracy. It is a building designed, over decades, by people mostly acting reasonably, in which certain rooms cannot be entered.

REMEMBER THIS

Nobody knows who ordered the demolition and nobody is going to. This book does not claim to.

What is missing is much smaller: **nine days of Home Ministry file notes from 1992**. Not a state secret. Not an operational matter. Nine days of correspondence about whether to send police somewhere.

It has never been released, by any government, of any party, in thirty-four years. **The inquiry that would have asked for it was not permitted to, and the agencies did not give it what it did ask for.**

The State Ledger

Part Five committed every subsequent part to carrying this table: which states were affected by the material in this part, and how. It accumulates across the series and consolidates in Part Nineteen.

TABLE 6 · STATE LEDGER, PART FOURTEEN

State	What was done, 1991–1996	Standing
Uttar Pradesh	The demolition and the affidavit that preceded it. President's Rule from December 1992; elections November 1993; President's Rule again October 1995.	The central case of this part
Madhya Pradesh	Government dismissed 15 December 1992 under Article 356. Dismissal upheld in <i>Bommai</i> .	Lawful, per nine judges
Rajasthan	Government dismissed 15 December 1992. Upheld.	Lawful, per nine judges
Himachal Pradesh	Government dismissed 15 December 1992. Upheld. Separately, the telecom convictions of Sukh Ram, its most senior national figure.	Both columns
Karnataka	Not a Part Fourteen event, but resolved here: the 1989 dismissal of the Bommai government, under a Congress Centre, held unconstitutional in 1994.	Charge, referred back to Part Twelve
Jammu and Kashmir	Hazratbal siege ended without assault, October 1993 — credit . Bijbehara firing, 22 October 1993, ~50 dead. Charar-e-Sharief destroyed May 1995, attribution disputed. Under President's Rule throughout.	Both columns
Maharashtra	The securities scam ran through the Bombay market. The December 1992–January 1993 violence is covered in Part Eleven and is not repeated here.	Cross-reference
Andhra Pradesh	The urea prosecutions, including the conviction of a relative of the Prime Minister in 2018.	Charge
Every state	The Seventy-third and Seventy-fourth Amendments, in force April and June 1993. One third of local seats reserved for women.	The largest credit item in the ledger

Timeline

TABLE 7 · 1991–1996, AND WHAT CAME AFTER

Date	Event
Aug 1990	Mandal reservations announced by the V. P. Singh government. Violent protests follow.
Sept–Oct 1990	Rath yatra across northern India. Advani arrested in Bihar; that government falls.
21 May 1991	Rajiv Gandhi assassinated. Part Twelve ends.
21 June 1991	Rao sworn in. Congress 232 seats; no majority.
July 1991	Rupee devalued. 47 tonnes of gold to the Bank of England. Industrial licensing abolished for most sectors.
Oct 1991	UP government acquires ~2.5 acres around the disputed structure.
19 Feb 1992	Punjab finally polls, postponed from 1991. Turnout around 20%.
23 April 1992	Sucheta Dalal publishes the securities scam.
16 Nov 1992	Supreme Court upholds the 27% OBC reservation in <i>Indra Sawhney</i> — three weeks before the demolition.
27 November 1992	Uttar Pradesh affidavit to the Supreme Court: central force not necessary.
6 December 1992	Babri Masjid demolished. Riots follow; around 2,000 dead nationally.
15 December 1992	President's Rule in Madhya Pradesh, Rajasthan, Himachal Pradesh.
16 December 1992	Liberhan Commission appointed. Told to report in three months.
22–23 December 1992	73rd and 74th Amendments passed by both Houses.
24 April / 1 June 1993	The two amendments come into force.
July 1993	No-confidence motion survived 265–251.
Oct 1993	Hazratbal siege resolved without assault. Bijbehara firing, 22 October.
11 March 1994	<i>S. R. Bommai</i> : Article 356 made reviewable; December 1992 dismissals upheld.
May 1995	Charar-e-Sharief destroyed. Arjun Singh and N. D. Tiwari leave Congress.
1996	CBI raids Sukh Ram; ~₹3.6 crore recovered. Urea case registered 19 May. Congress reduced to 140 seats; Rao leaves office 16 May.

Date	Event
18 Dec 1997	<i>Vineet Narain</i> : 26 directions; CVC given supervisory role; Single Directive struck down.
1998	Supreme Court, 3:2, holds bribe-taking MPs immune if they vote as promised.
2000 / 2002	Rao convicted; acquitted on appeal.
2002 / 2011	Sukh Ram convicted, twice. Nine days in custody in 2011.
30 June 2009	Liberhan reports. 17 years, 48 extensions.
30 Sept 2020	All 32 accused acquitted in the demolition case. CBI does not appeal.
2018 / 2021	Urea convictions, 23 years on. Related closure report rejected after 22 years.
24 Nov 2009	Liberhan report tabled in Parliament with an action-taken memorandum. Nothing follows from it.
Feb 2024	Rao posthumously awarded the Bharat Ratna.
4 March 2024	<i>Sita Soren</i> : seven judges overrule the 1998 immunity ruling.

Words Used in This Part

TABLE 8 · GLOSSARY

Affidavit	A written statement given to a court and sworn to be true. Lying in one is a criminal offence.
Approver	An accused person who admits the offence and gives evidence against the others, usually for a pardon. Treated cautiously by courts.
Article 105(2)	The clause protecting MPs from court action for anything said or any vote given in Parliament. Article 194(2) does the same for state legislators.
Article 356	The power to dismiss an elected state government and rule the state from Delhi. See Part Three, where it was first turned into an instrument.
Bank guarantee	A promise by the seller's bank to repay the buyer if the seller takes the money and does not deliver.
Bank receipt	A paper issued by one bank to another confirming it holds government bonds on the other's behalf. The instrument at the centre of the 1992 scam.
Basic structure	The doctrine that some features of the Constitution cannot be amended away. Established in <i>Kesavananda Bharati</i> (1973); see Part Eight.
Commission of inquiry	A body appointed by government under the Commissions of Inquiry Act 1952 to investigate a matter. Confined to its terms of reference.
Foreign exchange reserves	The store of foreign money a country keeps to pay for imports. India's covered two to three weeks in mid-1991.
Industrial licensing	The requirement to obtain permission from Delhi before building or expanding a factory. Abolished for most sectors in July 1991.
No-confidence motion	A vote on whether the government should continue. If lost, the government must resign.
Panchayati raj	Government by elected village councils. Given constitutional protection by the 73rd Amendment, in force 24 April 1993.
President's Rule	Direct rule of a state by the Centre under Article 356.
Ready forward deal	A short-term loan between banks secured on government bonds, sold and bought back at a higher price.
Single Directive	The rule requiring political permission before senior officials could be investigated. Struck down in <i>Vineet Narain</i> (1997).
Shilanyas	A foundation-laying ceremony. The one at Ayodhya in November 1989 is described in Part Twelve.
Mandal	Shorthand for reservation of government jobs for the Other Backward Classes, after the commission chaired by B. P. Mandal.

Mandir	Temple. Shorthand for the Ayodhya movement. With Mandal, it gives the 1991 election its usual name.
Rath yatra	A procession on a vehicle got up as a chariot. The 1990 journey across northern India campaigning for a temple at Ayodhya.
Joint Parliamentary Committee	A committee of both Houses set up to investigate a specific matter. Its report binds nobody.
Eleventh Schedule	The list of twenty-nine subjects added to the Constitution in 1992 that village councils may be given. Which of them a council actually gets is decided by the state.
Terms of reference	The written instructions creating an inquiry and limiting what it may examine. Drafted by the government.

A Word on Sources

Everything dated in this part was checked against a source rather than recalled, and where two sources disagree the disagreement is on the page rather than resolved silently.

The strongest material here is documentary and most of it belongs to the state. The Uttar Pradesh affidavit of 27 November 1992 is a court filing. The Liberhan Commission's terms of reference and its report of 30 June 2009 are published. *S. R. Bommai* (11 March 1994), *Vineet Narain* (18 December 1997), *P. V. Narasimha Rao* (1998) and *Sita Soren* (4 March 2024) are reported judgments. Convictions and acquittals are court records.

Two sources are memoirs and are treated as such. K. K. Venugopal's account of the pre-demolition proceedings is used for what the court was shown, which is a fact about a hearing he attended. Wajahat Habibullah's account of Hazratbal is used the same way, and his contrary view on Charar-e-Sharief is given as a view, not a finding. Where this part rests on a memoir it says so in the text.

Three things are graded **ALLEGED** and nothing in this part depends on them: the suitcase, the entries said to relate to the Prime Minister in the Jain diaries, and the attribution of the Charar-e-Sharief fire.

The status of the criminal appeal against the 2020 acquittals could not be established beyond 2022 and Chapter Ten says so. That is a gap in this part and it is the reader's to know about.

A NOTE FROM THE AUTHOR

Thirteen parts of this series have been easier to write than this one, and I want to say why rather than pretend otherwise.

I set out to write the case for the prosecution. That is what this book is, it says so on the cover, and I have not softened it. But a prosecutor who reaches a chapter where the defendant has plainly done something large and good has a choice to make, and there are only two honest ways to take it. He can leave it out, which is fraud. Or he can put it in at full length, in the strongest form he can manage, and accept that his own document is now harder to read as a verdict.

I took the second, and Chapter Two is placed second for that reason. I want to be exact about where that could have pulled the writing, because the rule I set myself in Part One

was that the position gets declared at the point where it could distort, not in a disclaimer at the front.

Two places. The first is Chapter Two itself. I found, drafting it, that I wanted to shorten it — to give the reforms three pages and move on to the demolition, where my case is strong. That instinct was about the shape of my argument, not about 1991, and I have written the chapter at the length the material deserves instead. Part Twelve's author's note recorded the same pull about Rajiv Gandhi's credit chapter, and I resisted it there too. Twice is a pattern in me, not in the evidence.

The second is Chapter Six. I have spent four parts of this series building a case against Article 356, and I reached a chapter where a Congress government used it and nine judges of the Supreme Court said it was entitled to. My first draft of that chapter buried the concession in a subordinate clause. It is now a Verdict box with a heading. The rest of the book is worth more with it there than without it, and if I am honest, that is the argument that persuaded me rather than any purer one.

One further thing. Part Ten declared that I am Punjabi and had written on that material before. Nothing in this part touches that. But readers of the earlier parts should know that I came to the Rao years expecting to dislike them and did not — and that this is the only part of nineteen where I have changed my own mind while writing, rather than before starting.

What I have not done is weigh it up. Chapter Nine's last box says there is no exchange rate between eight hundred thousand women in elected office and two thousand people dead in December 1992, and I meant it. I do not have one. If you finish this part with a settled verdict on this government, it did not come from me, and you should look carefully at where it did come from.

Lovepreet Singh

Part Fourteen of *The Congress Record*

The Living Archive · misterlove.in

Part Fifteen takes up the terror wave, 26/11, cash-for-votes and the nuclear deal under UPA I, 2004–2009. The comparison with the government of 2014 onwards is Part Eighteen, on the same ruler, and the second series auditing that government on this scale is still promised.

THE CONGRESS RECORD

PART FIFTEEN OF NINETEEN

UPA One 2004–2009

A wave of bombings across five years, the wrong men arrested for several of them, sixty hours in Mumbai, and a vote that had to be won whatever it took.

This is an advocacy document. It is the case for the prosecution against Congress governments in power. The selection of material is one-sided on purpose. The evidence in it is not. Every serious claim carries a grade showing how well it is proved, the other side is given its strongest argument, and where the other side wins, this book says so. A second series applying the same test to the government of 2014 onwards is planned.

Lovepreet Singh

The Living Archive · misterlove.in

Where We Left Off

Part Fourteen ended in May 1996, with the Congress reduced to a hundred and forty seats and out of office. What happened next is not this book's subject and can be given in a paragraph.

Between 1996 and 2004 India had six Prime Ministers and four governments. The Congress was out of power for the whole of it. The Bharatiya Janata Party, which had a hundred and twenty seats in 1991, formed governments in 1996, 1998 and 1999, and Atal Bihari Vajpayee held office from 1998 until 2004. That period belongs to the second series this book has promised, not to this one.

In May 2004 the Congress came back. This part covers the five years that followed — the first Manmohan Singh government, usually called UPA I.

WHAT IS IN THIS PART AND WHAT IS NOT

The four subjects agreed for this part are the terror wave, the Mumbai attacks of November 2008, the cash-for-votes affair and the nuclear deal. They are all here.

What is *not* here is the money. The 2G spectrum allocation, the Commonwealth Games, Adarsh and Coalgate are the subject of Part Sixteen, and this part does not touch them even where they begin inside these five years — the spectrum allocation of January 2008 is the clearest case. Part Eleven did the same thing when it declined to re-describe the five days that Part Ten had already covered. Splitting a subject and then telling it twice is how a series loses a reader.

HIDDEN ASSUMPTION

Every account of these five years assumes that **the Prime Minister ran the government**. It is such a basic assumption that nobody states it, which is exactly the kind this series looks for.

Consider the arrangement. Manmohan Singh was not the leader of his party — Sonia Gandhi was. He had not won a Lok Sabha seat; he sat in the Rajya Sabha, elected by a state legislature. He had no political base of his own and had never had one. The party's organisation, its candidate selection and its money answered to somebody else.

This produces a genuine problem for a book like this one. When something in these five years went wrong, the question “who decided this?” may have **no locatable answer at all** — not because it is hidden, but because the office had been separated from the authority.

Part Eight found that Indira Gandhi's power came from an office that had never had its checks tested. Part Twelve found the same office producing identically shaped failures under a completely different occupant. **Part Fifteen finds a third variation: the office occupied by somebody who did not hold the power that goes with it.** Three governments, three arrangements, and the finding survives all three, which is why this series argues that the problem is structural rather than personal.

This part therefore takes more care than usual about who is being charged. Where an act was the central government's, it says so. Where it was a state government's — and several of the worst things here were — it says that instead, and names the state and the party running it.

What Is In This Part

One The Government of the Third Choice

May 2004. A result nobody predicted, a leader who declined the job, and an economist with no constituency.

Two What Was Built

The Right to Information Act. A guaranteed hundred days of work. Forest rights. Placed here, before the charge, and the reason is given.

Three The Wave

Delhi, Varanasi, Mumbai, Malegaon, Samjhauta, Hyderabad, Ajmer, Jaipur, Bangalore, Ahmedabad, Delhi again. Five years of bombs.

Four The Wrong Men

Nine men arrested for Malegaon in 2006. One was in jail at the time. One was seven hundred kilometres away leading prayers. They served five years.

Five Sixty Hours

The twenty-sixth to the twenty-ninth of November 2008.

Six Seventeen Warnings

What was known before, who was told, and the report the public was not allowed to read.

Seven The Deal

July 2005 to October 2008. The one thing in this part the government was willing to lose office for.

Eight The Vote, Again

The twenty-second of July 2008. Cash on the floor of the Lok Sabha — and the same event, fifteen years earlier, in Part Fourteen.

Nine What Would Have Prevented It

The defence at full strength. Where it wins. The rules that were not made.

Ten An Honest List of What We Do Not Know

Including the document that would settle the largest question in this part, which one government has and will not release.

HOW THE GRADES WORK

Every serious claim carries a grade, printed next to it. **CONVICTED**: a court convicted somebody. **COURT-FOUND**: a court made the finding but nobody was convicted, or the case is still running. **COMMISSION-FOUND**: an official inquiry found it, and is named. **AUDITED**: the government's own auditors flagged it and no court ruled. **ALLEGED**: said in public, never tested. **FABRICATED**: shown to be false.

Part Fifteen leans on these harder than any part so far, because several events here produced arrests, then acquittals, then a second set of arrests, then a second set of acquittals. Chapter Four is the extreme case.

CHAPTER ONE

The Government of the Third Choice

The office of Prime Minister is not my aim. I was always sure that if ever I found myself in the position that I am today, I would follow my own inner voice.

Sonia Gandhi, declining the office, 18 May 2004

The 2004 election was expected to be a formality. The governing alliance was campaigning on a slogan about how well the country was doing. Almost every forecast, including most of those inside the Congress, expected it to win.

It did not. The Congress won a hundred and forty-five seats, more than any other single party, and put together a coalition — the United Progressive Alliance — with support from outside by the Communist parties, who had around sixty seats and did not join the government.

Then something happened that has no parallel in the period this series covers.

1.1 — The result

The governing alliance went into the 2004 election on a slogan about how well the country was doing. Growth was above eight per cent. The stock market was high. The campaign was built around that.

It lost. Not narrowly, and not for a reason anybody had forecast.

IN REAL TERMS

Growth of eight per cent is a national average. It is made by adding what happened to a software engineer in Bangalore to what happened to a landless labourer in Bihar and dividing by two.

Between 2004 and 2009 the number of Indians employed in the software and services industries that produced most of that growth was around **two million**, in a workforce of roughly **four hundred and seventy million**.

So the campaign told nine people in ten that they were doing well, on the strength of what was happening to the tenth. **They knew whether they were doing well. They did not need to be told, and they resented being told wrong.**

This is the same finding as Part Five's, in a new setting: a national number can be true and describe almost nobody.

That gap between the average and the experience is the whole result, and it can be checked against where the seats actually moved.

HOW WE ACTUALLY KNOW THIS

The claim that the campaign misread the country is easy to make afterwards and hard to prove. The evidence for it is in where the seats moved.

The governing alliance's losses were concentrated in states where the previous years had been hardest in the countryside, and its strongest results were urban. In Andhra Pradesh, where a government closely identified with technology-led growth had governed for nine years, it was removed almost completely.

An election is the only instrument in this series that measures what people think about their own circumstances rather than what a statistic says about them, and in 2004 the two disagreed.

The Congress won a hundred and forty-five seats, more than any other single party. It put together a coalition — the United Progressive Alliance — with support from outside by the Communist parties, who had around sixty seats and did not join the government.

The consequence for this part is that the government arrived with a specific instruction from the electorate, and it knew what the instruction was. Chapter Two is what it did with it.

1.2 — The refusal

Sonia Gandhi, who had led the party to the win and was its president, declined to become Prime Minister. She proposed Manmohan Singh instead. He was sworn in on the twenty-second of May 2004.

This book will not pretend the refusal was uncomplicated. There was an active campaign against her holding the office on the ground that she had been born in Italy, and a constitutional challenge was threatened. Whether the decision was principle, calculation, or both is not established and Chapter Ten lists it among the things not known.

What matters here is not the motive but the arrangement it created, because that arrangement is the subject of this whole part.

WORD BOX · COALITION, AND SUPPORT FROM OUTSIDE

A **coalition** is several parties agreeing to govern together, sharing ministries.

Support from outside is different and it matters here. A party promises to vote with the government but takes no ministries and holds no office. It gets influence without responsibility, and it can walk away at any moment without resigning from anything.

The Left parties supported UPA I from outside for four years. In July 2008 they walked away. Chapters Seven and Eight are about what happened next.

1.3 — What the arrangement actually was

Set out plainly, the position from May 2004 was this. The Prime Minister was an economist who had been Finance Minister in the government of Part Fourteen, had never won a Lok Sabha election, and sat in the upper house. The president of his party, who commanded the loyalty of its MPs, held no government office. The government's majority depended on parties that were not in it.

Three separate people or bodies held pieces of what is normally one job.

IN REAL TERMS

Imagine a company where the chief executive does not own shares, cannot hire or fire the senior staff, and answers to a chairman who is not on the payroll — while a third party that owns no shares can shut the business down by writing a letter.

Nobody would run a company that way. India was run that way for five years, and then for five more.

It is worth saying that it *worked*, in the sense that the government lasted its term and won the next election. Whether it worked in the sense that matters — that somebody could be held responsible for a decision — is the question of this part.

An additional body was created that has no clear precedent. The National Advisory Council, chaired by Sonia Gandhi, sat outside the government and advised on legislation. Several of the laws in Chapter Two came through it.

THE ARGUMENT FROM THE OTHER SIDE

The defence says: this is a description of ordinary coalition government, dressed up as something sinister. Parliamentary systems have always separated party leadership from government office — a party president who is not Prime Minister is normal in most democracies. The Left's outside support was a public arrangement with a written common minimum programme, not a secret. And the National Advisory Council was an advisory body whose recommendations Parliament was free to reject, which it sometimes did.

The reply: each of those points is true separately. The difficulty is all three at once. A Prime Minister who lacks a party base can be overruled by his party; a party president outside government cannot be questioned in Parliament; and an advisory council answers to nobody at all. The result is not a conspiracy. It is that **for any given decision in these five years, the number of people who can be asked about it in the House is smaller than it should be.**

Where the defence wins: on results. Chapter Two is the answer, and it is a serious one.

1.4 — What was promised

The alliance published a Common Minimum Programme — a written list of what it would do, agreed with the parties supporting it from outside. This is unusual and it is useful, because it means the government can be measured against a document it wrote itself rather than against what its critics say it should have done.

Part One set the rule: the strongest charge against a government is one built from its own paper. The Common Minimum Programme promised, among other things, a law guaranteeing employment in rural areas, a right-to-information law, a large increase in spending on education and health, and — this one matters for Chapter Nine — a law against communal violence.

TABLE 1 · THE COMMON MINIMUM PROGRAMME, FIVE YEARS ON

Promised, May 2004	What happened by May 2009
A right-to-information law	Delivered. Act passed June 2005, fully in force 12 October 2005. Chapter Two.
Guaranteed employment rural	Delivered. Act passed 2005, rolled out from February 2006. Chapter Two.
Recognition of forest-dwellers' rights	Delivered. Forest Rights Act 2006 — see Part Thirteen, which covers what it did and did not do.
6% of national income on education	Not delivered. Spending rose but did not approach the figure.
2–3% of national income on health	Not delivered. Public health spending stayed close to 1%.

Promised, May 2004

What happened by May 2009

A law against communal violence	Not delivered. Drafted in 2005 and repeatedly afterwards. Never enacted, in ten years of office. Chapter Nine.
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Part Eleven recorded the communal violence bill as drafted in 2005 and never passed. This part is where that promise came due, and it is a debt this book has been carrying for four parts.

REMEMBER THIS

From May 2004, three different people or bodies held pieces of one job: a Prime Minister with no party base, a party president with no government office, and allies with a veto and no responsibility.

The government wrote down what it would do. It kept three of those promises and broke three. **The one it broke that costs most is the law against communal violence** — and Chapter Nine explains why that particular failure runs through half this part.

CHAPTER TWO

What Was Built

Part Fourteen put its credit chapter second, before the charge, and explained why: placed at the end it would read as a sweetener produced late. The same rule applies here and for the same reason. What follows is the strongest thing UPA I did and it goes in first.

2.1 — The Right to Information Act

Before 2005, a citizen who wanted to know something a government department knew had no way to make it tell him. There was a Freedom of Information Act passed in 2002 that had never been brought into force in any useful way.

The Right to Information Act, 2005, changed that. It passed Parliament on the fifteenth of June 2005 and came fully into force on the twelfth of October.

WORD BOX · RIGHT TO INFORMATION

Any citizen may ask any public authority for information it holds. The authority must answer within thirty days — within forty-eight hours if the question concerns somebody's life or liberty.

If it refuses without proper reason, an Information Commission can fine the official personally. That last part is the whole law: without a penalty on a named person, a duty to disclose is a suggestion.

The scale of what followed is easy to state and hard to take in.

IN REAL TERMS

Roughly **forty-eight hundred applications a day**, every day, for twenty years.

Most of them are not journalism. They are a woman asking why her widow's pension has not arrived, a labourer asking what wage was recorded against his name, a family asking why a ration card was refused.

Before 2005 the answer to all of those was: you have no right to ask. **That is the sentence the Act deleted, and it is the largest single transfer of power to ordinary people in this series.**

This book is a prosecution document and it has to be careful with an achievement, so here is the honest boundary of the claim. The Act came from a movement outside govern-

ment — a campaign in Rajasthan that had been running for a decade, and state laws in nine states before the central one. The UPA did not invent it. What the UPA did was pass it in a strong form, with the penalty clause intact, when a weaker version would have been easier and would have been accepted.

HOW WE ACTUALLY KNOW THIS WAS STRONG

The test of whether a transparency law has teeth is what later governments try to do to it.

The 2002 Act it replaced was never brought properly into force by the government that passed it. The 2005 Act has since been amended, in 2019, to change the tenure and status of the Information Commissioners — the officials who impose the penalties — and that amendment was opposed on the ground that it weakened their independence.

Nobody bothers to weaken a law that does nothing. The attempts to alter it are the best available evidence that it worked.

2.2 — A hundred days of work

The National Rural Employment Guarantee Act passed in 2005 and began operating in two hundred districts in February 2006, extending to the whole country by 2008.

It does something no earlier Indian anti-poverty programme did. It does not offer work. It creates a legal right to it: any rural household whose adults want unskilled manual work is entitled to a hundred days of it in a year at a stated wage, and if the work is not provided within fifteen days, the household is entitled to be paid anyway.

WORD BOX · A RIGHT VERSUS A SCHEME

A **scheme** is money a government sets aside to do something. When the money runs out, the scheme stops. Nobody can sue.

A **right** is an entitlement a named person holds. If it is not honoured, that person can go to a court and the government must find the money.

Part Thirteen made this distinction about tribal land and found that a right is worth the independence of whoever enforces it. The employment guarantee is the counter-example in this series: **a right where the enforcement mechanism was built into the same law.**

Its record is genuinely mixed and this book gives both halves. Studies found real effects on rural wages and on distress migration, particularly in Rajasthan and Andhra Pradesh. They also found large-scale leakage — false muster rolls, wages recorded against people who never worked, delays in payment running to months.

What is worth noticing is how the leakage came to be known.

What is worth noticing is that an anti-corruption measure and a welfare measure are usually treated as different kinds of thing — one polices, the other spends. These two were not. The employment law was written so that its own records had to be published and read aloud in the village, and the transparency law passed four months earlier made those records demandable by anybody.

So the corruption in the employment programme was documented, in enormous detail, mostly by the people it was stealing from, using a law the same government had passed the same year. That is why this part knows so much about how badly the programme leaked. **The scandal is legible because the government made it legible** — which is the opposite of Part Thirteen, where nobody had ever added up the displaced, and of Part Five, where no beneficiary of freight equalisation ever saw the pipe.

2.3 — What these laws did not do

Both laws have a boundary and it is the same boundary in each case: they give a citizen a way to compel an answer, and they do nothing about what happens after the answer arrives.

The transparency law lets somebody establish that a wage was recorded against his name and never paid. It does not get him the wage. To do that he must go to a court, which costs money he does not have and time he cannot take. The employment law lets him claim unemployment allowance if work is not given within fifteen days. In practice the allowance is paid by the same state government that failed to provide the work, out of its own funds, and it is very rarely paid.

IN REAL TERMS

Studies of the employment programme in its early years found delays in wage payment routinely running to **weeks and often months**, against a statutory requirement of fifteen days.

For a household earning at that wage, a two-month delay is not an inconvenience. It is the difference between eating and borrowing at the rates a landless family gets offered, which in much of rural India means five to ten per cent a month.

A legal right that arrives two months late has, for the person holding it, already failed — and the law provides no penalty on anybody for the delay.

The other two Common Minimum Programme promises were not kept at all, and they are large.

TABLE 2 · THE TWO PROMISES THAT WERE NOT KEPT

Promised in 2004	Where it stood by 2009	Why it matters
6% of national income on education	Rose, but nowhere near the figure	The target dates from 1968 and has been promised by every government since
2–3% of national income on health	Public health spending stayed close to 1%	India's out-of-pocket health spending is among the highest in the world; the gap is paid by households

These are the two commitments in Table 1 that required sustained money rather than a single Act. That is the pattern: what could be done by passing a law was done, and what required a permanent claim on the budget was not.

And the Sachar Committee, which reported in November 2006 and established the position of Indian Muslims in detail, produced recommendations. An Equal Opportunity Commission was proposed and never created. A national data bank on the position of communities was proposed and never built.

Part Nine found that a correct diagnosis in an organisation with no route for it to travel upwards goes nowhere. **The Sachar report is the clearest case of that in this part: the measurement was made, honestly and publicly, and nothing was built to act on it.**

2.4 — The rest of the column

Three more, stated briefly.

The **Forest Rights Act, 2006**, whose preamble admits that the rights of forest dwellers were never recorded and calls this a historical injustice. Part Thirteen covers it in full, including what it failed to fix.

The **Sachar Committee**, appointed in March 2005 under a former Chief Justice of the Delhi High Court, reported in November 2006 on the condition of Indian Muslims. It found them substantially worse off than the national average on income, education, public employment and access to credit. It is the first serious official measurement of the question.

And in January 2006 the government announced a package of seven hundred and seventeen crore rupees for the victims of November 1984. Part Eleven set that out in detail, including the fact that around two hundred crore of it was never distributed because of disputes over who was entitled. It goes in this column, with that qualification attached.

VERDICT · THE BUILDING RECORD OF UPA I

Strong, and stronger than this book expected. Two laws that changed what a citizen can demand from the state, one that recognised rights never recorded in a century, and the first honest measurement of a minority's position.

The qualification: the ideas came from outside government — from campaigns, from earlier state laws, from committees. What this government did was pass them, in strong forms, when weak ones were available.

Passing somebody else's good idea, without watering it down, is a real thing to have done, and it is rarer in this series than inventing one.

Now the other side of the ledger, which occupies six of the remaining eight chapters.

REMEMBER THIS

UPA I passed a law letting any citizen force any department to answer a question, and a law making rural work an enforceable right rather than a scheme.

Roughly **forty-eight hundred information requests a day** have been filed since. The 2019 attempt to alter the law is the best evidence that it bites.

And the most useful thing about it: **the corruption in the employment programme is known in detail because this government built the tool that exposed it.** Nothing in the previous thirteen parts looks like that.

CHAPTER THREE

The Wave

Between 2005 and 2008 India was bombed roughly once every three months. That sentence is easy to write and almost impossible to hold in the head, so this chapter puts it in a table first and then explains what the table does not show.

TABLE 3 · THE WAVE, 2005–2008

Date	Place	Killed	Who was eventually held responsible
29 Oct 2005	Delhi, three markets before Diwali	~60	Prosecutions collapsed; two acquitted, one convicted then acquitted on appeal
7 Mar 2006	Varanasi, temple and railway station	~20	Convictions in 2022, sixteen years later
11 Jul 2006	Mumbai, seven suburban trains in eleven minutes	~189	Twelve convicted 2015; all acquitted by the Bombay High Court in 2025
8 Sep 2006	Malegaon, near a mosque and graveyard	~37	Nine Muslim men arrested — wrongly . Chapter Four
18 Feb 2007	Samjhauta Express, the train to Lahore	68	Four accused; all acquitted 2019
18 May 2007	Mecca Masjid, Hyderabad, at Friday prayers	9, plus 5 shot by police afterwards	Muslim men arrested first, released; five later accused, all acquitted 2018
11 Oct 2007	Ajmer, the Sufi shrine, during Ramzan	3	Two convicted 2017; the principal accused acquitted
13 May 2008	Jaipur, nine blasts	~63	Four sentenced to death 2019; all acquitted by the Rajasthan High Court 2023
25–26 Jul 2008	Bangalore, then Ahmedabad	~57	Ahmedabad: 38 sentenced to death 2022, appeals pending
13 Sep 2008	Delhi, five blasts	~30	Prosecutions continuing
29 Sep 2008	Malegaon again, and Modasa	~7	Seven accused; all acquitted 2025
26–29 Nov 2008	Mumbai	166	One attacker captured and CONVICTED ; nine killed. Chapter Five

Casualty figures vary between sources by ten to twenty per cent in most of these cases and the numbers above are the commonly cited ones. Where a figure is contested it is given with a tilde. The final column is the position as at the date of writing and several of these cases remain live; Chapter Ten deals with what that means.

3.1 — What the table shows

Read down the last column rather than the third. That is where this chapter is.

Around six hundred people were killed in those attacks. For the great majority of those deaths, **nobody is serving a sentence today**. Convictions were obtained and then reversed on appeal. Men were held for a decade and then acquitted. In several cases one set of people was arrested, released, and a completely different set arrested afterwards.

IN REAL TERMS

Take the Mumbai train bombings of July 2006. **A hundred and eighty-nine people** were killed in eleven minutes on seven commuter trains.

Twelve men were convicted in 2015 — nine years later. Five were sentenced to death. In 2025 the Bombay High Court acquitted all of them, holding that the prosecution had failed to prove its case.

Those men spent **around nineteen years in prison**. One died there. If the High Court is right, the state took nineteen years from twelve men and the actual bombers have never been identified. If the High Court is wrong, twelve mass murderers have just been released.

There is no version of that sentence in which the Indian state comes out of it well.

3.2 — Eleven minutes in July 2006

One of those rows deserves its own section, because it is the largest attack of the period apart from 26/11 and because of what happened to it afterwards.

On the evening of the eleventh of July 2006, seven bombs went off in the first-class compartments of seven suburban trains on the Western line in Mumbai, over about eleven minutes, during the evening rush. Around a hundred and eighty-nine people were killed and more than eight hundred injured.

Thirteen men were charged under MCOCA, the Maharashtra organised-crime statute. The trial ran for eight years. In 2015 twelve were convicted — five sentenced to death, seven to life. One had been acquitted.

In July 2025 the Bombay High Court acquitted all twelve, holding that the prosecution had failed to prove its case.

HOW WE ACTUALLY KNOW THIS CASE WAS WEAK

The reasons the High Court gave are the reasons that recur in this part, and they are not exotic.

The confessions were made to police officers, admissible only because MCOCA suspends the ordinary rule, and the court found them unreliable. Identification of the accused by witnesses came years after the event. The recovery of explosives and the chain of custody of the material evidence did not hold up.

None of that was discovered in 2025. All of it was on the record from the beginning, which is what an acquittal on the same evidence nineteen years later means.

What that leaves is a hundred and eighty-nine deaths in a commuter rush hour, in India's largest city, in 2006, for which **no conviction now stands and no other suspects have ever been charged.**

3.3 — The law that was repealed and then rewritten

One of the first things UPA I did was keep a promise. One of the last things it did was take it back, and the two acts bracket this chapter.

The Prevention of Terrorism Act had been passed in 2002 by the previous government. It allowed detention for up to six months without charge, made confessions to police officers admissible, and reversed the ordinary presumption on bail. The Common Minimum Programme promised to repeal it, on the ground that it had been used against political opponents and minorities rather than against terrorists. It was repealed in September 2004.

In December 2008, in the five weeks after the Mumbai attacks, Parliament amended the Unlawful Activities (Prevention) Act.

TABLE 4 · WHAT WAS REPEALED AND WHAT WAS RESTORED

POTA 2002, repealed Sept 2004	UAPA as amended, Dec 2008
Detention without charge up to 180 days	Detention without charge up to 180 days
Police custody up to 30 days	Police custody up to 30 days
Bail effectively barred where the court sees a prima facie case	Bail effectively barred where the court sees a prima facie case
Confessions to police officers admissible	Not restored. This is the one real difference.
Sunset clause: lapsed after three years unless renewed	No sunset clause. Permanent.

The confession provision was the single worst thing in POTA and it was not brought back — which matters, and Chapter Four shows why. But it survives in state statutes like MCOCA, which the central government did not touch.

So the promise was kept in 2004 and substantially unmade in 2008, minus one provision and minus the expiry date. Part Nine found the identical move: the instruments used to seize a moment were repaired after the Emergency and the instruments used to hold the country were not, and the National Security Act was passed in 1980 by the Congress government that returned.

THE ARGUMENT FROM THE OTHER SIDE

The defence says: a hundred and sixty-six people had just been killed by men who arrived by sea and were directed by telephone from another country. A state that does not change its law after that is not principled, it is inert. And the change was made through Parliament, in public, with the opposition supporting it — this was not an ordinance.

The reply: the objection is not that the law was strengthened. It is that the government had argued for four years that these specific powers were dangerous because they get used against the wrong people — and then, four weeks after a catastrophe, enacted them permanently and without an expiry date. **Chapter Four is what “used against the wrong people” looks like, and it happened while POTA was repealed.** The problem was never the statute’s name.

3.4 — What the table does not show

The bombings of 2006 and 2007 divide into two groups, and the division is the most important fact in this part.

One group struck markets, trains and city centres. The other struck a mosque during Friday prayers, a Muslim graveyard on a night of remembrance, a Sufi shrine during Ramzan, and a train to Pakistan carrying mostly Pakistani passengers.

At the time, all of them were investigated on the assumption that they had been done by Islamist groups. In the second set, that assumption was wrong.

HOW WE ACTUALLY KNOW THIS

The reversal did not come from journalism or from a campaign. It came from inside the state, in two steps.

First, in 2008, the Maharashtra Anti-Terrorism Squad under Hemant Karkare investigated the second Malegaon bombing and arrested members of a Hindu organisation, including a serving Lieutenant Colonel of the Indian Army. That was the state arresting people its own earlier investigations had not been looking at.

Second, in December 2010, Swami Aseemanand made a confession before a magistrate — the strongest form of confession in Indian law, because a magistrate must first warn the maker and satisfy himself it is voluntary — stating that Hindu extremist groups had carried out the Malegaon, Mecca Masjid, Ajmer and Samjhauta attacks.

He later retracted it, and the cases built on it have since collapsed. **But by then the men originally arrested had been in jail for years**, and a separate agency of the same state had filed charge sheets saying they were innocent.

Everything in Chapter Four follows from that.

HIDDEN ASSUMPTION

Every account of a terror wave assumes that **the measure of it is the number of people killed**. That is what headlines count, what memorials record, and what this chapter's table puts in the third column.

But look at the fourth column instead. Across twelve attacks and roughly six hundred deaths, the thing that varies most is not casualties. It is **whether the state ever correctly identified anybody**.

Counting the dead measures what the attacker did. It does not measure anything the government did, which means a book that judges governments by casualty figures is measuring the wrong side of the transaction.

The question that measures the government is: **at the end of it, does the state know who did this?** For most of the six hundred, the honest answer is no — and for several hundred more it once thought it knew and was wrong.

That question is the one Chapter Four asks, and the answer it gets is worse than not knowing.

REMEMBER THIS

Twelve major attacks in about four years. Roughly **six hundred dead**.

Do not count the bodies. **Count the convictions that are still standing** — and there are very few. Men were held nineteen years for the Mumbai train bombings and acquitted in 2025.

And one set of these attacks hit mosques, shrines and a train to Pakistan. The men first arrested for those were the wrong men. That is the next chapter.

CHAPTER FOUR

The Wrong Men

It was extremely unfortunate that innocent people were arrested and charged. We will take all necessary action to ensure this is not repeated.

Minister of State for Home Affairs, on the 2006 Malegaon arrests, May 2013

On the eighth of September 2006, the eve of Shab-e-Barat, a series of explosions went off beside the Hamidia Mosque and the Bada Qabristan in Malegaon, a textile town in Maharashtra. Around thirty-seven people were killed and more than a hundred injured. Almost all of them were Muslim.

Within weeks the Maharashtra Anti-Terrorism Squad arrested nine men. All nine were Muslim.

4.1 — What was wrong with the case

The problems were not subtle and they were not discovered decades later. They were available at the time.

The Central Bureau of Investigation, which later took over the case, established two things about the men the ATS had named.

IN REAL TERMS

One of the accused was **already in jail** on the day of the bombing.

Another was **seven hundred kilometres away**, leading Friday prayers in a village, with witnesses. That is roughly the distance from Delhi to Bhopal.

These are not fine points of evidence requiring forensic expertise. They are the first two questions any investigator asks: where was he, and can anyone confirm it. **The answers existed in 2006 and were available to anybody who asked.**

The CBI found that the ATS had been given eyewitness accounts placing the man elsewhere and had chosen to disregard them.

It is worth being exact about where those two findings come from, because a hostile reader will assume they come from the men's own lawyers.

HOW WE ACTUALLY KNOW THIS

Everything in the paragraph above comes from the state's own investigators, not from the defence and not from journalism.

The Central Bureau of Investigation took the case over from the Maharashtra Anti-Terrorism Squad and recorded that the ATS had named a man who was in custody elsewhere on the day, and another whom eyewitnesses placed seven hundred kilometres away. The National Investigation Agency then filed a charge sheet in 2013 naming different people entirely.

So the account of what the first investigation got wrong is the account given by the second and third investigations, both of them agencies of the central government.

Part One set the rule that a charge built from the state's own documents cannot be answered by disputing the documents. This chapter is the clearest instance of it in the series: to reject the finding, the government would have to disown two of its own agencies.

The nine men were held under the Maharashtra Control of Organised Crime Act, which makes bail extremely difficult and allows confessions made to police officers to be used in evidence — a provision that exists in no ordinary Indian criminal law, for the obvious reason.

WORD BOX · MCOCA, AND WHY POLICE CONFESSIONS MATTER

Under ordinary Indian law, a confession made to a police officer **cannot be used against the person who made it**. The rule exists because confessions extracted in police custody are unreliable, and everybody involved in drafting the law knew it.

Special laws suspend that rule. Part Ten described TADA, used in Punjab, under which the conviction rate ran at one to two per cent — meaning that ninety-eight times in a hundred, the state arrested somebody it could not convict. MCOCA in Maharashtra works on the same principle.

When police confessions are admissible, the cheapest way to build a case stops being investigation.

4.2 — How long it took

The sequence, with the dates, because the dates are the charge.

TABLE 5 · MALEGAON 2006, FROM ARREST TO DISCHARGE

When	What happened
Sept–Nov 2006	Nine Muslim men arrested by the Maharashtra ATS under MCOCA.

When	What happened
2006–2010	Held without trial. Bail refused.
Dec 2010	Swami Aseemanand confesses before a magistrate that Hindu extremist groups carried out the attack.
Mar 2011	Bail applications on the strength of that confession are rejected .
Nov 2011	Bail finally granted, after the National Investigation Agency tells the court it will not oppose it. Five years in custody.
May 2013	The NIA files a charge sheet naming a Hindu group. The Union Home Ministry publicly calls the original arrests “extremely unfortunate”.
Apr 2016	The men are formally discharged — nearly ten years after arrest. One had died in the meantime.

Two of the nine remained in custody after the 2011 bail order because they were also accused in the July 2006 train bombings — the case in which the Bombay High Court acquitted everybody in 2025.

4.3 — Who is charged with this, and who is not

Precision matters here more than anywhere else in this part, and this book is going to give the defence more than it usually gets.

The arrests were made by a *state* police unit. Maharashtra was governed by a Congress-led coalition, so the party is answerable for it, but the central government did not order those arrests and there is no evidence that it knew of them in advance. **ALLEGED** claims to the contrary have never been established and this book does not make them.

More than that: the central government’s own agencies are what unwound it. The CBI found the alibis. The NIA filed the charge sheet exonerating the nine. A Union minister said in public that innocent men had been jailed.

THE ARGUMENT FROM THE OTHER SIDE

The defence says, and it is strong: this is a case of the system correcting itself. A state police unit made a catastrophic error. Two central agencies, under this government, investigated, established the truth and said so publicly. The National Investigation Agency, which did the correcting, was *created by this government* in December 2008. A government that builds the body that exposes its own state police units is not the villain of this chapter.

The reply, in three parts.

First, on the timing. The exculpatory facts — a man in jail, a man seven hundred kilometres away — did not require a new agency. They required somebody to read the file. Nothing was discovered in 2011 that could not have been discovered in 2006.

Second, on the bail refusal of March 2011. By then a magisterial confession pointing elsewhere existed and the men were still refused bail. That was a judicial decision, not a governmental one — but the state opposed the applications, and the state was answerable to this government’s law officers.

Third, and this is the one that does not go away: **the Union Home Ministry called it “extremely unfortunate” in 2013. Nobody was disciplined. No officer faced proceedings. The men were not compensated by Maharashtra.** An apology with no consequence attached is a press statement.

4.4 — Batla House

One case from these years is genuinely unresolved and this book is not going to pretend otherwise, because Chapter Four would be dishonest if it only contained cases that came out the same way.

On the nineteenth of September 2008, six days after the Delhi bombings, Delhi Police went to a flat in Batla House in Jamia Nagar. In the encounter that followed, two young men in the flat were killed, as was Inspector Mohan Chand Sharma. Two others were arrested and one escaped.

The police account is that the men opened fire and the officer was killed in the exchange. That account has been challenged since, on the grounds of the trajectory of the wounds, the absence of a video record, and the fact that no magisterial inquiry was ordered at the time.

The National Human Rights Commission examined it and found no violation. Courts have **CONVICTED** two men in connection with the events at the flat. The challenges have not been sustained in any court.

VERDICT · BATLA HOUSE

ALLEGED in both directions, and this book records it as unresolved rather than picking the version that suits Chapter Four.

The temptation in a chapter about wrongful arrests is to add a case where the state killed rather than jailed. Part Six set the rule that a source is not promoted because its conclusion is convenient, and the same applies to a case.

What Batla House does establish is narrower and is not contested by anybody: that no magisterial inquiry was held at the time into a police operation in which three people died. That is a procedural failure whatever the underlying facts were, and it is the reason the argument has run for eighteen years with no way to end it.

4.5 — Hyderabad, and the money that was taken back

The same shape, in Andhra Pradesh, with one extra turn.

After the Mecca Masjid bombing of May 2007, in which nine worshippers died at Friday prayers and five more were shot dead by police in the crowd outside afterwards, a number of Muslim men were picked up and later released without charge.

The Andhra Pradesh government — Congress-run — then did something almost unique in this series. It paid them compensation for wrongful arrest.

And then the payment was challenged in court, and in September 2013 a division bench of the Andhra Pradesh High Court struck the compensation order down and directed the government to recover the money already paid. The order was suspended weeks later after the men themselves petitioned, and the state said it would appeal.

HIDDEN ASSUMPTION

Everybody treats a wrongful arrest as a **failure of the system**. The word “failure” is doing enormous work there and almost nobody notices it.

A failure is a system not doing what it is built to do. So ask what this system is built to do, and how it measures itself.

A police force is assessed on cases *detected* and arrests made. A case is recorded as solved when somebody is charged. Conviction happens years later, in a different building, and is nobody’s performance indicator. Under a law that admits police confessions, the cheapest route to an arrest is a confession, and the cheapest route to a confession does not involve investigation at all.

By its own measures, the Malegaon 2006 investigation was a success. It produced nine arrests within weeks of a mass-casualty bombing, under a statute designed to make them stick. Every officer involved was doing what the system rewards.

That is worse than failure, and it is why Chapter Nine’s remedies are about measurement rather than about intent. **Nobody has to be a bigot for this outcome to be produced reliably, which is exactly why it was produced reliably.**

4.6 — What India does not have

There is one fact that sits underneath this whole chapter and it is usually left out because it sounds technical.

India has no law providing compensation for wrongful prosecution. Not a weak one. None.

A person acquitted or discharged after years in custody has no statutory entitlement to anything. He can bring a civil suit, which takes years he has already lost, or petition a High Court under its writ jurisdiction, which sometimes produces a payment as a matter of discretion. There is no scale, no presumption and no obligation on the arresting authority.

IN REAL TERMS

The nine men arrested for Malegaon in 2006 were held for **five years** before bail and discharged after nearly ten. One died before the discharge.

A Union minister said publicly that they were innocent. **Their statutory entitlement on discharge was nothing.** Not a rupee, not an apology on the record, not a reference to anybody for disciplinary action.

In Hyderabad, where a state government did pay compensation to men wrongly held, the payment was challenged and a High Court ordered it recovered before that order was suspended.

So the position is worse than an absence of a remedy. **It is that a government which chooses to pay may be ordered to take the money back.**

The Law Commission of India recommended a statutory scheme for compensation for wrongful prosecution in 2018. It has not been enacted. It appears again in Chapter Nine's table of rules that were not made, and it is the one on that list that would have cost this government least and helped these men most.

4.7 — What is charged here

VERDICT · THE WRONG MEN

Established: that nine men were arrested in 2006 for a bombing they did not commit; that exculpatory evidence existed at the time and was disregarded; that they were held five years before bail and nearly ten before discharge; that a central agency of the same government later filed a charge sheet saying they were innocent; and that a Union minister said so publicly. **COURT-FOUND** and **COMMISSION-FOUND** in substance, and admitted by the government itself.

Not established, and not alleged here: that the central government directed or knew of the arrests. There is no evidence and this book does not assert it.

What is charged against the central government is narrower and survives every defence: that it presided for five years over a special-powers statute that made this outcome cheap; that it opposed bail after a magisterial confession pointing elsewhere existed; and that having admitted the men were innocent, **it imposed no consequence on anybody and paid them nothing.**

The last of those is the one Chapter Nine returns to, because the remedy is ordinary legislation and it still does not exist.

REMEMBER THIS

Nine men, arrested in 2006 for the Malegaon bombing. One was **in jail** that day. One was **seven hundred kilometres away** leading prayers.

They were held five years before bail and nearly ten before discharge. One died first. In 2013 the Union Home Ministry called it “extremely unfortunate”.

Nobody was disciplined. Nobody was compensated by the state that jailed them. And in Hyderabad, where a Congress state government did pay compensation to men wrongly held, a High Court ordered it recovered.

CHAPTER FIVE

Sixty Hours

Ten men left Karachi by sea, hijacked an Indian fishing trawler, killed its crew, and came ashore at Mumbai in an inflatable boat on the evening of the twenty-sixth of November 2008.

They split into groups and attacked a railway terminus, two luxury hotels, a hospital, a café and a Jewish centre. The last of them was killed on the morning of the twenty-ninth. A hundred and sixty-six people were killed, twenty-six of them foreign nationals, and more than three hundred injured. Nine attackers died. One, Ajmal Kasab, was captured alive.

This chapter does not narrate those sixty hours minute by minute. That has been done at book length by better-placed people and repeating it would add nothing. What this chapter does is set out what the state's response reveals, because that is what a book about governments is for.

5.1 — How they arrived

The route matters, because every stage of it was a place the attack could have been stopped and was not.

The ten men left Karachi by boat. In the Arabian Sea they took an Indian fishing trawler, the *Kuber*, killed four of its five crew and forced the captain to sail them towards Mumbai. Near the coast they killed him too, transferred to an inflatable dinghy, and came ashore at Badhwar Park in Colaba — a fishing colony in the middle of the city — at around eight in the evening.

Local fishermen noticed them. One asked who they were and was told to mind his own business. He reported it. Nothing came of the report in time.

IN REAL TERMS

India's coastline is about **seventy-five hundred kilometres** long. In November 2008 there was no single body responsible for watching it: the Navy, the Coast Guard, the marine police of each coastal state and the customs service each had a piece, and none had the whole.

Ten armed men crossed an international maritime boundary, hijacked a registered Indian vessel, sailed it for most of a day, and landed in the country's largest port city without being intercepted.

The *Kuber* was found abandoned the next morning, with a body on board and a satellite phone left behind. **That phone is how the investigation established where they had come from.** The single most important piece of evidence in the case was left behind by accident.

None of that account was reconstructed afterwards from guesswork, and it is worth saying where it comes from before the chapter goes any further.

HOW WE ACTUALLY KNOW THIS

The sequence above is unusually well established for an event of this kind, and the reason is that one attacker was taken alive.

The route from Karachi, the hijacking of the *Kuber*, the landing point and the assignment of targets were all put in evidence at Kasab's trial, tested by cross-examination, and upheld on appeal to the Supreme Court. The satellite phone left aboard the trawler, the interception of the handlers' calls during the attack, and the recovery of the dinghy corroborate it independently.

Almost nothing else in this part rests on a foundation that solid — and Chapter Six, on what was known beforehand, rests on one of the weakest, because the relevant report has never been published.

5.2 — The response, in order

The attacks began at about half past nine in the evening. For the first stretch the police treated what was happening as a gang shooting.

IN REAL TERMS

It was **past midnight — around three hours in** — before the Chief Minister of Maharashtra asked the central government to send the National Security Guard.

There was no NSG unit anywhere near Mumbai. The commandos had to be flown from Manesar, near Delhi. When the NSG chief asked for an aircraft he was told the transport plane was in Chandigarh.

The commandos began operations at the hotels at around six in the morning. **Roughly ten hours after the first shots.**

Mumbai is India's financial capital, a coastal city that had been bombed in 1993 and again in 2006. It had no rapid-response counter-terrorist unit of its own.

The police who did engage were badly outmatched, and not by a small margin.

WORD BOX · FIDAYEEN

An attack designed so that the attackers do not expect to survive, and are not trying to. The purpose is not to plant a bomb and escape; it is to keep shooting for as long as possible.

This matters operationally. Every Indian police response doctrine of the time assumed a hostage situation with people who wanted to negotiate and get out alive. Against attackers with no exit plan, containment and negotiation are not tactics. Someone has to go in.

The official inquiry that followed found that the Mumbai police were carrying weapons that were, in substance, of Second World War design, against attackers with modern assault rifles and grenades. Senior officers were found to have made significant errors of command. Three senior police officers were killed, including Hemant Karkare, the head of the Anti-Terrorism Squad — the man who, six weeks earlier, had made the arrests described in Chapter Four.

5.3 — The man who stopped one of them

Two of the attackers, after shooting into the crowd at the Chhatrapati Shivaji Terminus railway station and killing more people there than at any other single site that night, drove away in a hijacked car and were stopped at a police roadblock at Girgaum Chowpatty.

Tukaram Omble, an assistant sub-inspector, went at the car unarmed and took hold of the barrel of a rifle. He was shot at close range and killed. His colleagues took the man holding the rifle alive.

That man was Ajmal Kasab. He is the only attacker who was captured, and the entire evidentiary account of the planning of 26/11 — the Karachi departure, the training, the handlers on the telephone — rests on his interrogation and trial.

IN REAL TERMS

Everything India was later able to prove about who organised this attack, and everything it took to the rest of the world, exists because **one police officer with no firearm decided to grab a rifle barrel instead of taking cover.**

The equipment failure described in the next paragraph and the individual conduct described in this one are the same story told twice. **The state supplied the men and not the means**, and where the outcome was good it was because somebody made up the difference with his life.

Omble was awarded the Ashoka Chakra posthumously.

5.4 — What was done afterwards

The credit column here is real and this book gives it in full.

The Home Minister, Shivraj Patil, resigned on the thirtieth of November, taking what he called moral responsibility. He was replaced by P. Chidambaram. Within a month Parliament passed the National Investigation Agency Act, creating a national counter-terrorism investigating body for the first time. NSG hubs were established in four cities so that commandos would not have to be flown across the country again. Coastal security was reorganised. A national intelligence grid was begun.

THE ARGUMENT FROM THE OTHER SIDE

The defence says: judge a government by what it does after a catastrophe, because that is the part it controls. Within five weeks of 26/11 this government had accepted a ministerial resignation, replaced the minister, created a national investigation agency, decentralised the commando force and begun rebuilding coastal security. Compare that with Part Fourteen's Liberhan Commission, which took seventeen years to produce a document with no consequences.

It adds a harder point: **the attack came from another country's soil, planned and directed from there.** No amount of Indian administrative reform prevents ten trained men arriving by sea from a neighbouring state that will not act against them. Blaming a government for being attacked confuses the crime with the response to it.

Where the defence wins: on the five weeks, substantially. The NIA is the most consequential institution created in these five years and Chapter Four shows it doing exactly what it was built for. And the point about the origin of the attack is correct.

Where it fails: everything in that list was available on the twenty-fifth of November. None of it required an attack to think of. The next chapter is about what was known before, and it is the reason this defence does not survive.

5.5 — The other nine, and the men who sent them

Nine of the ten attackers died in Mumbai. Everybody who planned the attack was in Pakistan, and none of them has ever been convicted anywhere for it.

Two people connected to the planning have been dealt with outside Pakistan. David Coleman Headley, an American who scouted the targets in Mumbai on several visits before the attack, was arrested in Chicago in 2009, pleaded guilty and was sentenced by a United States court in 2013 to thirty-five years. Under a plea agreement he was not extradited to India, though he later gave evidence to an Indian court by video link.

Tahawwur Hussain Rana, a Canadian citizen of Pakistani origin and a long-standing associate of Headley, was ordered extraditable by a court in California in 2023. After a series of appeals — the last of them rejected by the United States Supreme Court — he was flown to Delhi on the tenth of April 2025 and arrested on arrival by the National Investigation Agency. He faces ten charges including conspiracy and murder, denies all of them, and his trial is running.

IN REAL TERMS

From the attack to the arrival of one accused planner on Indian soil: **sixteen years and four months.**

He was not surrendered by the country the attack was launched from. He was extradited from the United States, after litigation in American courts, on the strength of a treaty signed in 1997.

In Pakistan, proceedings against those accused of organising the attack have run since 2009 without producing a conviction for it. The founder of the organisation India holds responsible was convicted there in 2020 — **on terrorism financing charges, not for Mumbai.**

Two things follow from that, and they cut in opposite directions.

The first is the point Chapter Five's argument box already made: a government does not choose whether it is attacked from another state's territory, and no amount of domestic reform reaches the people who planned this.

The second is that the agency which secured the 2025 extradition — the National Investigation Agency — is the institution created by the government of this part, in the five weeks after the attack. **The single most substantial piece of accountability for 26/11 was obtained sixteen years later by a body UPA I built, under a government of a different party.** Both halves of that sentence belong in the record.

5.6 — The trial

Ajmal Kasab was captured alive, tried, **CONVICTED**, sentenced to death, and hanged on the twenty-first of November 2012. His trial produced the fullest account of the attack's planning that exists in an Indian court record.

It also produced something this series should note, because it is unusual. He was given a defence lawyer at state expense, over public objection, and the trial ran through appeals to the Supreme Court. Part Ten described TADA courts in Punjab with conviction rates of one to two per cent and in-camera trials. This was the opposite: a full public trial for the most hated man in the country, and it held up on appeal.

That is a mark in the state's favour and it is recorded as one.

So the defence carries this chapter and loses the next one, which is the honest division and is why they are two chapters rather than one.

REMEMBER THIS

Ten men. Sixty hours. **A hundred and sixty-six dead.**

Three hours before the state asked for commandos. **Ten hours before they reached the hotels,** because they had to be flown from near Delhi and the aircraft was in Chandigarh.

Afterwards: a minister resigned, an agency was created, commandos were based in four cities. All of that was possible on the twenty-fifth of November. **The next chapter is about why it wasn't done then.**

CHAPTER SIX

Seventeen Warnings

After the attacks, the Maharashtra government appointed a two-member committee under R. D. Pradhan, a former Union Home Secretary, with the former intelligence officer V. Balachandran. It reported within about four months.

Its central finding is the reason this chapter exists.

COMMISSION-FOUND · THE PRADHAN COMMITTEE, 2009

COMMISSION-FOUND. The High Level Enquiry Committee on the 26 November attacks found:

That relevant intelligence inputs were **ignored or not acted upon seriously**.

That there was **total confusion in the processing of intelligence alerts** at the level of the state government.

That inputs were forwarded to operational units **mechanically**, and that the machinery for making an overall assessment of them was inadequate.

That proper analysis of the available inputs **would have revealed a strong indication of the attack**.

That the police were ill-prepared and ill-equipped, and that senior officers made command errors.

The number attached to those alerts is the thing to hold on to.

IN REAL TERMS

The former head of state intelligence told the committee that there had been **seventeen alerts since the seventh of August 2006** warning of the possibility of sea-borne attacks and of multiple simultaneous fidayeen assaults.

Seventeen alerts over twenty-seven months. Roughly one every seven or eight weeks, for more than two years, describing the shape of the attack that came.

He also told the committee that although he was the central intelligence authority in the state, **central intelligence reports did not reach him directly**, and he was therefore unaware of them.

Read those two paragraphs together. The warnings existed. The official whose job was to assess them did not receive them. And the reason he did not receive them was not that anybody withheld them — it was that no route existed.

HIDDEN ASSUMPTION

Everybody called 26/11 **an intelligence failure**. The Prime Minister used the phrase. So did the opposition. So did most of the press.

But there were seventeen alerts. The intelligence did not fail. **It was produced, and it was correct.**

The assumption buried in the phrase is that intelligence means information. It does not. Information is raw. Intelligence is the act of deciding *which* information matters — of taking seventeen warnings spread over two years and saying: these three, together, mean something is coming.

That act is a job. It has to be somebody's job, with a name on it. In November 2008 **it was nobody's**. The alerts were forwarded mechanically, which is to say passed along by people whose duty was discharged by passing them along.

Part Thirteen found an addition nobody had made, where every component existed and no decision existed that anybody had to defend. **This is that shape again, and here it killed a hundred and sixty-six people.** Nobody ignored a warning. Everybody forwarded it. There was no desk at which forwarding stopped and deciding began.

Calling it a failure of intelligence puts the blame on the people who got it right.

6.1 — The Centre's own share

The committee located the confusion at state level, and this book has already conceded that. But the arrangement the state was confused by was a central creation, and that has to go on the page.

After the Kargil conflict of 1999, a review committee found that Indian intelligence agencies did not share what they knew. A Multi-Agency Centre was created in 2001 to fix exactly that — a body where the intelligence services would pool material and produce a common assessment.

By 2008 it was not doing that job. It had no statutory basis, no power to compel any agency to give it anything, and no authority over what the states did with what it passed on.

HOW WE ACTUALLY KNOW THIS

The proof is what was built afterwards. In the months following 26/11 the Multi-Agency Centre was substantially strengthened, given round-the-clock operation and subsidiary centres in the states, and a national intelligence grid was begun.

Governments do not rebuild a working institution. **The reforms of 2009 are an admission about 2008**, and they are the most reliable evidence available because nobody had to be persuaded to make them.

The same logic applies in reverse to the Kargil review of 1999: its central recommendation was made, in name, in 2001 — and seven years later the thing it created could not do the thing it was created for.

So the honest division of blame is this. The state government could not process seventeen alerts. The central government had spent seven years not giving anybody the authority to make it possible. **Neither of those is the other one's excuse.**

6.2 — The report the public was not allowed to read

The Pradhan Committee reported to the Maharashtra government — Congress-led — in 2009.

It was not published. The government tabled selected findings and an action-taken report in the state assembly and withheld the rest, citing security and the continuing trial of Kasab.

Kasab was hanged in November 2012. The report has still not been released in full.

HOW WE ACTUALLY KNOW THIS

Almost everything quoted in this chapter reached the public through leaks to newspapers and through what the committee's own members later said, rather than through publication.

That is why the findings above are given as substance rather than as quotation, and why the seventeen-alert figure is attributed to what a witness told the committee rather than to a printed page anybody can check.

This book is telling you that its evidence here is second-hand, and that this is the state's doing rather than the author's. The primary document exists. It is ninety pages. It is seventeen years old. It is not public.

The reason given at the time — the ongoing trial — expired in 2012. No reason has been given since.

THE ARGUMENT FROM THE OTHER SIDE

The defence says: a report of this kind necessarily describes exactly how intelligence is collected, routed and assessed, and how a security response is organised. Publishing it publishes a manual for the next attacker. Governments of every party withhold such documents and this is not a Congress practice.

That last sentence is true and this book concedes it. Part Six recorded the Henderson Brooks report on 1962 withheld across every government since; Part Fourteen recorded nine days of Home Ministry file notes from 1992 that no government of any party has released.

Where the defence fails: it is an argument for redaction, not for suppression. A ninety-page report can be published with operational detail removed, which is what other democracies do with equivalent inquiries. And the specific reason given in 2009 — the pending trial — has been spent for fourteen years without a replacement being offered.

Seventeen years is long enough for a security reason to become a habit, and habits do not have to be justified to anybody.

REMEMBER THIS

It was not an intelligence failure. There were **seventeen alerts in twenty-seven months** describing sea-borne, multiple, suicidal attacks. The intelligence was produced and it was right.

What did not exist was **anybody whose job was to add them up**. They were forwarded mechanically. The state's own intelligence chief was not receiving them.

The official who found all this wrote a ninety-page report in 2009. A **Congress state government did not publish it, and no government since has.**

CHAPTER SEVEN

The Deal

On the eighteenth of July 2005, in Washington, Manmohan Singh and George W. Bush announced that the United States would seek to resume civil nuclear cooperation with India.

To understand why that was extraordinary, you need one piece of background, and it is the only technical passage in this part.

WORD BOX · WHY INDIA WAS SHUT OUT

Most countries have signed the Nuclear Non-Proliferation Treaty, which says: you may have civil nuclear power, but you may not have nuclear weapons. India refused to sign, on the ground that the treaty permits weapons to five countries and forbids them to everybody else.

India then tested a device in 1974 and again in 1998. In response, the countries that supply nuclear technology formed a group — the Nuclear Suppliers Group — which agreed not to sell nuclear fuel or reactors to any country outside the treaty.

So for thirty years India was locked out of the world market for nuclear fuel, while running a nuclear power programme and a weapons programme with domestic uranium.

What the 2005 statement proposed was that India would separate its civil reactors from its military ones, place the civil ones under international inspection, and in exchange be allowed to buy nuclear fuel and technology on the world market — *without* signing the treaty and *without* giving up its weapons.

No other country has ever been given that.

7.1 — What it took

TABLE 6 · THREE YEARS, SIX GATES

Date	Step
18 July 2005	Joint statement in Washington.
March 2006	India's separation plan: which reactors are civil, which are military.
December 2006	The Hyde Act signed into US law, permitting cooperation with India.
August 2007	The 123 Agreement between the two governments published.
1 August 2008	The IAEA Board adopts an India-specific safeguards agreement, unanimously.

Date	Step
6 September 2008	The Nuclear Suppliers Group grants India a waiver, after a first meeting in August ended without agreement.
10 October 2008	The agreement signed.

Between the fifth and sixth rows falls the political crisis that occupies the rest of this chapter and all of the next.

7.2 — The objections, which were serious

Two very different sets of people opposed the deal and this book takes both seriously, because the government's own supporting parties were among them.

The Left parties argued that the arrangement tied India into a strategic relationship with the United States, that the Hyde Act contained conditions about Indian foreign policy — particularly towards Iran — and that a domestic American statute would end up constraining Indian choices.

The Bharatiya Janata Party, which had itself begun the process of engagement with Washington in office, argued that the deal compromised India's ability to test a nuclear weapon again, because fuel supply could be terminated if India tested.

The government's answer was that the Hyde Act binds the United States and not India, and that nothing in the agreement removed India's right to test — while conceding that testing would have consequences.

HOW WE ACTUALLY KNOW THE OBJECTION HAD SUBSTANCE

On the twelfth of September 2008, with the deal before the US Congress, President Bush stated that the fuel supply assurances given to India were **political commitments rather than legally binding ones**.

That was said by the deal's principal author, in public, at the moment of ratification, and it went to precisely the point the Indian opposition had been making for three years.

A prosecution document should record when the other side's objection turns out to have been correct in substance. This is such a case, and it does not depend on any Indian source.

The objections deserve to be put at their full strength rather than summarised, because the parties making them brought down a governing coalition over it and because one of them turned out to be right.

THE ARGUMENT FROM THE OTHER SIDE

The Left's case, at its strongest: this was never really about electricity. Nuclear power supplied about three per cent of Indian generation and was not going to supply much more in any plausible timeframe. What the deal actually bought was a strategic alignment with the United States, and it was bought at a moment when Washington's regional priorities — Iran, Afghanistan, Pakistan — did not match India's.

The Hyde Act was the evidence. It is a domestic American statute containing language about Indian policy towards Iran, and it is the law under which the American side would judge whether to keep supplying fuel. India would have built reactors dependent on imported fuel, and the supply of that fuel would rest on annual American determinations. **That is not a commercial arrangement; it is a hostage.** A country that has just made itself dependent has fewer choices, not more.

The BJP's case, which pointed the other way: the deal quietly ended India's ability to test again. Not in terms — nothing in the agreement forbids a test — but in consequence, because a test would terminate the cooperation and strand whatever had been built on imported fuel. A right you cannot exercise without ruining yourself is not a right.

The government's answer: the Hyde Act binds the United States, not India; nothing in the agreement removes the right to test; and thirty years of exclusion had cost more than any of this.

How it actually turned out. On the first objection, the record is mixed — India did not follow American policy on Iran in the way the Left predicted, but the alignment they described did deepen through the following two decades under governments of both parties. On the second, the BJP's point stands: India has not tested since 1998, and the constraint the deal created is one reason among several.

And on the specific question of whether the fuel assurances were binding, the objectors were vindicated within weeks — by the American President, in public. That is the next box.

7.3 — What it delivered

A book that puts an achievement in the credit column has to say what came of it, and here the honest answer is: less than was promised, and not for the reasons the opposition gave.

The deal opened the world market for nuclear fuel to India, and that part worked. Uranium supply for the existing civil reactors became reliable, which had been a genuine constraint.

What did not follow was the wave of new reactors. The reason is a second Indian statute, passed in 2010 under UPA II and therefore outside this part: the civil nuclear liability law, which made equipment suppliers liable in the event of an accident. Foreign suppliers

declined to build on those terms. Two decades on, the number of American-built reactors operating in India is zero.

IN REAL TERMS

The deal was argued over for three years, brought down a governing coalition, and required a confidence vote to survive.

Nuclear power supplies roughly **three per cent** of India's electricity, and did so before the deal as well.

The achievement was diplomatic rather than electrical. What India obtained in September 2008 was not power stations; it was the end of thirty years of being treated as an outlaw state, and formal acceptance that it could hold nuclear weapons without penalty. That is worth having. It is not what the country was told it was voting on.

7.4 — The rupture

On the eighth of July 2008, the Left parties withdrew support. The government lost its majority.

The Prime Minister could have shelved the deal. The safeguards agreement had not yet gone to the IAEA; the NSG had not met; nothing was irreversible. He chose instead to call a vote of confidence, on the tenth of July, and to go ahead.

This book has spent fourteen parts describing Congress governments doing what was necessary to stay in office. Here is one that put a policy ahead of survival, and said so, and staked the government on it.

VERDICT · THE NUCLEAR DEAL

On the substance: a genuine achievement. Thirty years of exclusion ended without signing the treaty and without giving up the weapons programme. India is the only country to have obtained this. It goes in the credit column without qualification.

On the politics: also to the government's credit, and this book says so plainly. It risked office for a policy. That is rare enough in these nineteen parts to be worth naming.

The opposition's central objection was partly vindicated by Bush's own statement of 12 September 2008 about the fuel assurances, and this book records that too.

And then there is how the vote was won. That is the next chapter, and it is the reason this one cannot end here.

Which is to say the achievement is real, the objection was partly right, and the method of securing it is the charge. All three go on the page.

REMEMBER THIS

Three years, six international gates, and thirty years of exclusion from the world nuclear market ended — without signing the treaty and without giving up the bomb. **No other country has been given this.**

When the Left withdrew support in July 2008, the government could have shelved it. **It called a confidence vote instead and staked office on a policy.** In nineteen parts of this series, that is close to unique.

Then it won the vote. **Chapter Eight is about how.**

CHAPTER EIGHT

The Vote, Again

On the twenty-second of July 2008, hours before the confidence vote, three Bharatiya Janata Party members of the Lok Sabha stood up in the House and emptied bundles of thousand-rupee notes onto a table.

They said the money — one crore rupees — had been given to them to abstain from the vote or to support the government, and named as the source an aide of the Samajwadi Party leader Amar Singh, whose party had just begun supporting the government after the Left withdrew.

The government won the vote, two hundred and seventy-five to two hundred and fifty-six. Twenty-one members cross-voted.

Readers of Part Fourteen will recognise every element of that paragraph, and this chapter is built on the recognition.

HIDDEN ASSUMPTION

Everybody treats the cash-for-votes affair as **an event of 2008**. It has its own name, its own news cycle, its own court case.

Put it beside Part Fourteen, Chapter Eight, and the assumption breaks. July 1993: a Congress government without a majority faces a no-confidence motion, survives it, and is afterwards alleged to have paid members to vote with it. July 2008: a Congress government that has just lost its majority faces a confidence motion, survives it, and is alleged to have paid members to vote with it.

Same month of the year. Same trigger. Same party. Same allegation. Fifteen years apart.

Treating each as a scandal — a thing that happened, involving particular people who behaved badly — makes both unanswerable, because in both cases the particular people were never convicted of anything. Treating them as two instances of one mechanism makes the pattern the finding, and a pattern does not require anybody to be convicted.

The mechanism is this: an Indian government that loses its majority mid-term has one lawful route to survival, which is persuasion, and one unlawful route, which is purchase. The second is cheaper, faster and — until 2024 — was substantially protected by the Constitution. Part Fourteen established that protection. This chapter is what it looks like the second time.

8.1 — What was established, and what was not

The affair went through a parliamentary inquiry and a criminal investigation. Both are worth setting out, because they went in opposite directions.

A committee of the House under the Congress MP Kishore Chandra Deo inquired and reported in December 2008. It did not find the bribery allegation proved against Amar Singh. It did refer three men — an aide of Amar Singh's, an aide of the BJP leader L. K. Advani who had organised the sting, and a BJP activist — to the Home Ministry for further action.

HOW WE ACTUALLY KNOW THIS

A parliamentary committee inquiring into an allegation against the government it supports has a structural problem, and it is worth naming rather than implying.

Such a committee's membership reflects the strength of the parties in the House. The party with the most seats has the most members on it, and the committee that inquired here was chaired by a Congress MP.

Part Fourteen found the same shape twice: the Bofors joint committee of 1988 sat with a government majority and was boycotted by the opposition, and the securities-scam committee of 1992 produced regulatory reform and no punishment. **Three committees, three decades, three governments, and in none of them did the House establish anything against the party running it.**

That is not a claim that any of them was dishonest. It is a claim about what a body constituted that way is capable of finding, and the answer appears to be: nothing that costs its own majority anything.

The Delhi Police then did essentially nothing for two and a half years.

IN REAL TERMS

The money was produced **on the floor of Parliament, on camera, in July 2008**. There is video. The cash physically existed and was seized.

The first arrests were made in **July 2011** — three years later — and only after the Supreme Court criticised the investigation as shoddy in a public interest case brought by somebody else.

Part Fourteen found that the Jain diaries sat in a CBI cupboard for five years until a journalist forced the government's hand in the Supreme Court. **This is the same sequence, with a shorter clock and better evidence.** In this case the state was handed the physical money.

In August 2011 the Delhi Police filed a charge sheet naming Amar Singh, two of the three BJP members who had produced the cash, Advani's former aide, Amar Singh's secretary and a BJP activist. It alleged a conspiracy to deliver one crore rupees as illegal gratification.

Arrests followed in September 2011. Amar Singh went to Tihar jail and was bailed the following month on medical grounds.

8.2 — Where the money came from

This is the question the case turned on and never answered.

The Delhi Police told the court, in response to an application by one of the accused, that **every effort had been made to trace the money and no evidence could be found**. One crore rupees in cash appeared in Parliament and its origin was never established.

In March 2011, WikiLeaks published a United States diplomatic cable dated the twenty-first of July 2008 — the day before the vote. It recorded a conversation in which a senior Congress figure was said to have described a fund of fifty to sixty crore rupees set aside to secure support for the confidence motion.

VERDICT · THE CABLE AND THE MONEY

ALLEGED. The cable is authentic as a cable — that is, it is a genuine record of what an American diplomat wrote down. What it records is a second-hand claim by an unnamed source about somebody else's intentions.

That is a very long way from evidence that money changed hands. Part Six set the rule that a leaked document is graded on what it can support, not on how convenient its contents are, and it applies here.

What is established: that one crore rupees in cash reached three MPs, that this is on video, and that the state which seized the money never traced its origin.

What is not established: who provided it, or that anybody in the Congress leadership knew. This book does not assert either.

8.3 — How it ended

It ended the way Part Fourteen's chapter ended, which is to say it did not really end at all.

The special court discharged six of the seven accused. The Delhi government later announced it would challenge the discharges in the High Court, on the ground that evidence had been ignored.

No one has been convicted. The three members who produced the cash were expelled by their party and two later returned to public life; one of them, Faggan Singh Kulaste, subsequently became a Union minister.

THE ARGUMENT FROM THE OTHER SIDE

The defence says: a parliamentary committee found the allegation unproved. A criminal court discharged almost everybody. The money was produced by opposition MPs who had spent weeks arranging a sting operation with a television channel, and the charge sheet named the opposition leader's own aide as the mastermind. On the evidence, the most that can be said is that a crore of rupees was moved around by people on both sides for the purpose of embarrassing each other.

That is a real argument and this book will not pretend otherwise. The sting was organised by people who wanted a scandal, and the man the police called the organiser was the opposition leader's aide.

The reply: somebody paid for it. A sting requires the money to be genuinely offered, and one crore rupees was genuinely offered, in cash, by somebody. **The state seized the notes and could not say where they came from.** That is not a fact about the opposition's motives. It is a fact about an investigation that began three years late and was described by the Supreme Court as shoddy.

8.4 — What changed in 2024, and what it means for both chapters

Part Fourteen ended its equivalent chapter with *Sita Soren v. Union of India*, decided on the fourth of March 2024, in which seven judges of the Supreme Court unanimously overruled the 1998 judgment that had given legislators immunity from prosecution for taking bribes to vote.

That judgment matters twice as much now.

TABLE 7 · THE SAME EVENT, FIFTEEN YEARS APART

	July 1993 · Part Fourteen	July 2008 · this chapter
Trigger	No-confidence motion against a minority government	Confidence motion after allies withdrew
Result	Survived 265–251	Survived 275–256

	July 1993 · Part Fourteen	July 2008 · this chapter
Allegation	MPs paid to vote with the government	MPs paid to abstain or vote with the government
Investigation began	1996, after the government fell	2011, after the Supreme Court intervened
Money traced?	No	No — police told the court no evidence could be found
Outcome	Convicted 2000, acquitted 2002	Six of seven discharged
Legal position at the time	Immune under Article 105(2) if they voted as paid	Same — the 1998 ruling still stood
Position now	Both would be prosecutable. <i>Sita Soren</i> , 4 March 2024, seven judges, unanimous.	

The 2024 judgment is not retrospective and reopens nothing. What it establishes is that for the whole of the period covered by both chapters, the conduct alleged in both was constitutionally protected.

That is the finding of this chapter, and it is larger than either affair.

REMEMBER THIS

July 2008: one crore rupees in cash, produced on camera on the floor of the Lok Sabha, hours before a confidence vote the government won by nineteen.

The state seized the money and never found out where it came from. Investigation began three years late and only after the Supreme Court called it shoddy. Six of seven accused were discharged.

Now put it beside Part Fourteen, July 1993. **Same month, same trigger, same party, same allegation, same non-result, fifteen years apart** — and for both, the law of the land protected it until 2024.

8.5 — How it ended

Everything in this part happened before May 2009. In that month the government went to the country.

It was returned. The Congress won two hundred and six seats, up from a hundred and forty-five — its best result since 1991 — and formed a second government less dependent on its allies than the first.

IN REAL TERMS

Roughly **six hundred people** had been killed by bombs in the preceding four years. A hundred and sixty-six had died in Mumbai six months before polling. Nine men were in jail for a bombing the government's own agencies were in the process of establishing they had not committed. Cash had been produced on the floor of Parliament ten months earlier.

The government's majority went **up by sixty-one seats**.

Part Fourteen recorded the opposite outcome: a government that rescued the economy from default and was reduced to a hundred and forty seats. **Two Congress governments, two records, and the electoral result runs in the opposite direction to the record in both cases.**

A prosecution document has to reckon with that, and there are only three honest things to say about it.

THE ARGUMENT FROM THE OTHER SIDE

The defence says: the electorate had all of this in front of it and returned the government with a substantially larger mandate. That is the only verdict in this book delivered by the people it is about. A writer who sets his own reading against theirs owes an explanation.

The reply has three parts, and only the third is strong.

The first, which this book does not use: that voters were misinformed. They were not. All of this was in the newspapers.

The second, which this book uses cautiously: elections are not referendums on a single record. In 2009 the alternative was a fragmented opposition, the employment guarantee was reaching tens of millions of households, and a farm loan waiver had been announced in 2008.

The third, which is the real one: **the things in this part were not, in 2009, distributed the way votes are.** Nine men in a Nashik jail are nine votes. The families in Malegaon and Hyderabad were, in each case, a small minority in a small number of constituencies. **An electorate can deliver a fair verdict on how a government treated most people and no verdict at all on how it treated a few — and that is not a defect in the electorate, it is what majority rule is.**

Which is why the remedies in Chapter Nine are all rules, and none of them is an election.

CHAPTER NINE

What Would Have Prevented It

This chapter states the defence at full strength, says where it wins, and then sets out the rules that would have changed each outcome.

9.1 — The defence

One. The building record. Chapter Two. Two laws that changed what a citizen can demand of the state, a third recognising rights never recorded, and the first honest measurement of a minority's condition. That is more constructive legislation than any government in this series since 1950.

Two. The attacks came from outside. Ten trained men arrived by sea from another country, planned and directed from there. Most of the bombings of 2005 to 2008 were organised across a border. A government does not get to choose whether it is attacked.

Three. It corrected its own state police. Chapter Four. The CBI found the alibis, the NIA filed the charge sheet exonerating nine innocent men, and a Union minister said so publicly. The agency that did it was created by this government five weeks after 26/11.

Four. It responded fast after November 2008. A ministerial resignation in four days, a new national investigating agency inside five weeks, commando hubs in four cities. Compare seventeen years for the Liberhan Commission in Part Fourteen.

Five. It risked office for a policy. Chapter Seven. When the Left walked out in July 2008, the deal could have been shelved at no cost. It was not.

Six. Almost nothing here is alleged against the central government directly. The wrongful arrests were made by a state police force. The intelligence-processing failure was found by the committee to sit at state level. The cash-for-votes prosecution named the opposition leader's aide as organiser. A prosecution document that has to reach through two layers of government to find its defendant should say so.

HOW WE ACTUALLY KNOW THIS DEFENCE IS SERIOUS

Three of those six points come from bodies with no reason to help this government.

The Pradhan Committee located the intelligence-processing failure at the state level — and it was appointed by that same state government, which then declined to publish it, which is not what a government does with a report that exonerates it.

The Delhi Police charge sheet in the cash-for-votes case named the opposition leader's aide as the organiser of the operation, and that charge sheet was filed only under Supreme Court pressure.

And the National Investigation Agency's charge sheet exonerating the Malegaon nine was filed in 2013, under this government, contradicting two earlier investigations. **An agency that overturns the state's own earlier case is doing the opposite of what agencies are usually accused of.**

9.2 — Where the defence loses

On three things, and they are connected.

The communal violence law. Promised in the Common Minimum Programme of May 2004. Drafted in 2005 and repeatedly afterwards. Never enacted, in ten years of office with a working majority for most of it. Part Eleven established what such a law would have to do — impose duties on officials, make command responsibility real, remove the requirement of political sanction to prosecute. Every year it was not passed is a year in which the machinery Part Eleven described stayed exactly as it was.

The consequence-free apology. Chapter Four. The government said in public that innocent men had been jailed for years. Nobody was disciplined. No compensation was paid by the state that jailed them, and where a state did pay, a High Court ordered it recovered. An admission with nothing attached is a press release.

The report. Chapter Six. Ninety pages, seventeen years old, still not published, the stated reason spent since 2012.

9.3 — The one that is hardest to answer

Of the three, the communal violence law is the one that does not go away, and it is worth setting out why rather than just listing it.

Part Eleven established what the machinery does. When a mob is at work, the police do not register the cases; untraced closure then follows automatically; acquittal follows from that. It is a coherent sequence rather than a failure, and every stage of it is lawful. Part

Eleven's finding was that this machinery survives every change of party, which is why voting differently is not a remedy for it.

A law was drafted in 2005 to break that sequence. It would have put a statutory duty on named officials to act, made command responsibility real so that a superintendent could be prosecuted for what his force did not do, and removed the requirement of political sanction before an officer could be tried.

It was drafted, redrafted and dropped repeatedly across ten years in office.

IN REAL TERMS

Between the promise of May 2004 and the end of that government in 2014 there were **ten years and two comfortable majorities**.

In that decade the same governments passed a transparency law, an employment guarantee, a forest rights law, a food security law and a land acquisition law — all of them contested, all of them opposed by organised interests, all of them enacted.

The one that would have imposed duties on police officers is the one that was never brought to a vote. That is not a failure of legislative capacity. This government had legislative capacity and used it repeatedly.

There is a real answer to that and it deserves stating properly, because it is the best thing the defence has on this point.

THE ARGUMENT FROM THE OTHER SIDE

The defence says: the drafts were genuinely bad. The 2011 version defined the offences in terms of a “group” that was framed so as to apply asymmetrically, and was opposed on that basis by state governments of several parties and by legal commentators who were not hostile to the object. Law and order is a state subject, and a central statute imposing duties on state police invites a constitutional challenge it might not survive. A government that does not pass a defective bill has not failed; it has declined to pass a defective bill.

The reply: every one of those objections is an argument about drafting, and drafting is what ten years is for. The asymmetry point was made in 2011 and could have been fixed by 2012. And the federal objection is answerable, because Parliament has legislated repeatedly on criminal procedure, which is on the concurrent list.

What the defence keeps: that no other government has passed such a law either, before or since. Part Eleven said so and this part repeats it. **The charge here is a broken promise, not a unique failing.**

9.4 — The rules that were not made

TABLE 8 · SIX RULES, NONE MADE

The failure	The rule that would have caught it	Status
Seventeen alerts, forwarded and never assessed	A named officer, at state and central level, statutorily responsible for aggregate threat assessment, reporting on a fixed cycle	Partly built after 2008 by executive action; never legislated
Nine men held five years on a case with visible holes	Statutory outer limit on pre-trial custody under special-powers laws, with automatic bail on expiry	Never enacted
Police admissible under MCOCA	Repeal of the confession provisions in state organised-crime statutes	Never attempted
Innocence established, nothing paid	A statutory right to compensation on discharge or acquittal after prolonged custody, payable by the arresting authority	Recommended by the Law Commission; never enacted
Cash produced in Parliament, origin never traced	Automatic reference of any bribery allegation arising on the floor to an independent agency within a fixed period	Never enacted
Communal violence, no duty on officials	The bill this government drafted in 2005	Drafted four times. Never passed.

Every one of these is ordinary legislation. None requires a constitutional amendment. Parts Nine, Eleven, Thirteen and Fourteen each ended with a comparable table and Part Nineteen consolidates them all.

9.5 — The question turned on this book

HIDDEN ASSUMPTION

This series assumes that **a government's failures and the state's failures are the same thing**. Every part has charged a government with what happened on its watch.

Part Fifteen is where that assumption comes under real pressure. Look at what this part actually charges. A state police force arrested the wrong men. A state intelligence system did not route its alerts. A state government withheld a report. A criminal justice system took nineteen years to acquit twelve men. A special-powers statute passed by a state legislature made confessions admissible.

None of those machines was built by this government, and none of them has been dismantled by any government since. They were built over decades, mostly by earlier Congress governments, which is how this series can charge the party as one continuous actor — and they have outlasted every change of party at the Centre, which is how the defence escapes.

So which is it? The honest answer is that **this book cannot separate the two, and neither can anybody else**. A government inherits a state. It is answerable for what it does with it and not for its existence. Where the line falls between those is a judgement, not a finding, and every reader will draw it somewhere different.

What this book can do is refuse to hide the problem. **The charges in Chapters Four and Six are charges against Indian policing, and the specific charge against this government is that it had five years, a written mandate and a majority, and did not change it.** That is smaller than the chapter titles suggest, and it is what the evidence supports.

Leaving that problem unresolved in the middle of the part is deliberate. Resolving it quietly, in this book's own favour, would be the easier thing and the dishonest one.

REMEMBER THIS

The defence is the strongest in this series. Two transformative laws, a genuine foreign-policy achievement, a fast institutional response after 26/11, and central agencies that corrected a state police force's worst error.

It loses on three: **a law against communal violence promised in 2004 and never passed in ten years; an admission that innocent men were jailed, with no consequence for anybody; and a report still unpublished seventeen years on.**

And the deepest problem is this book's, not the government's: **most of what went wrong here was done by machines nobody in office built and nobody since has fixed.**

CHAPTER TEN

An Honest List of What We Do Not Know

Every part of this series ends here, and this one has more to put in the list than most, because several of its central cases are still moving.

10.1 — Not established

Who carried out most of the bombings of 2005 to 2008. For the great majority of roughly six hundred deaths there is no conviction standing today. In several cases convictions were obtained and reversed. This book does not assert who was responsible for any attack where a court has not found it.

Whether the central government knew of the Malegaon arrests. Not established, not alleged. Chapter Four says so twice.

Where the cash in Parliament came from. The state seized it and could not trace it. The WikiLeaks cable is a genuine record of a second-hand claim and nothing more.

Why Sonia Gandhi declined the office in May 2004. Principle, calculation, or the constitutional challenge that was being threatened. No account settles it and this book does not try.

What was in the Aseemanand confession's retraction. He confessed before a magistrate in December 2010 and retracted later. Courts have since acquitted in the cases built on it. Which version is true is not established, and the acquittals mean that as a matter of law the answer is now: neither.

10.2 — Where this part may be wrong

The casualty figures in Table 3. They vary between sources by ten to twenty per cent for most of these attacks. There is no single authoritative national register of deaths in terrorist incidents that reconciles them.

The final column of Table 3 is a moving object. Several of those cases are under appeal. The 2025 acquittals in the Mumbai train case are being challenged. A reader in five years may find that column substantially wrong, and this book would rather say so now than be caught by it.

The seventeen-alert figure. It comes from what a witness told the Pradhan Committee, reported second-hand, because the report is not public. Chapter Six says this in the text rather than in a footnote. If the report is ever released and the number is different, this part is wrong on its most-quoted fact.

The placement of Chapter Two. As in Part Fourteen: putting the achievement early is a choice, and a hostile reader may say the credit is banked so the prosecution can proceed with clean hands. That reading is available.

10.3 — The count nobody keeps

There is a second missing thing in this part and it is not a document. It is an addition.

India has no single authoritative register that records, for each terrorist attack: how many died, who was arrested, what happened to each case, and whether anybody is serving a sentence today. The figures in Table 3 were assembled from court records and press reports and vary between sources by ten to twenty per cent.

Every component of that register exists. First information reports are filed. Post-mortems are done. Charge sheets are numbered. Judgments are published. Prisons keep rolls. **Nothing is secret and nothing is missing. The addition has simply never been done.**

Part Thirteen found exactly this shape about displacement — every number existing somewhere, no total anywhere, and no decision that anybody has to defend. It named that as a distinct form: an unmade addition, where concealment is not required because the absence of a sum is nobody's act.

WHAT WOULD SETTLE IT

A published national register of terrorist incidents and their judicial outcomes: deaths, arrests, charge sheets, convictions, acquittals, and convictions surviving appeal.

It requires no new information. It requires somebody to be made responsible for adding up information the state already holds, and to publish the result annually.

Part Five ended by naming the one calculation that would settle freight equalisation, which nobody has done. Part Fourteen named a second. **This is the third, and like the others it is arithmetic rather than a secret.**

Until it exists, the sentence “most of the six hundred people killed between 2005 and 2008 have had no justice” is something this book believes on the evidence it could gather, and cannot prove.

10.4 — The document that would settle it

THE MISSING DOCUMENT

The report of the High Level Enquiry Committee on the 26 November attacks. Two members. Around ninety pages. Delivered to the Government of Maharashtra in 2009.

It is the only systematic official account of what was known before the attack, who was told, and where the assessment broke down. Its findings are in this part only because parts of it leaked and because its authors have spoken since.

The reason given for withholding it in 2009 was the pending trial of the surviving attacker. **He was hanged in November 2012.** No reason has been offered in the fourteen years since.

Part Six named the Henderson Brooks report, withheld since 1963. Part Fourteen named nine days of Home Ministry file notes from 1992. **This is the third, and it is the youngest and the shortest of the three.**

One closing observation, which is uncomfortable and belongs here.

The government that withheld that report is the same government that passed the Right to Information Act. Chapter Two called that Act the largest single transfer of power to ordinary people in this series, and meant it.

Both things are true. A government can build the best transparency instrument in the country's history and then decline to apply it to the document that would embarrass it most, and there is no contradiction in that at all — because the Act contains an exemption for national security, and the exemption is invoked by the same officials the Act was meant to compel.

Part Thirteen found that a right is worth the independence of whoever enforces it. Here the same government supplied both the right and the enforcer, and the enforcer lost.

REMEMBER THIS

For most of the six hundred people killed between 2005 and 2008, **nobody is serving a sentence and this book cannot tell you who did it.**

What is missing is one document: **ninety pages, written in 2009, about what was known before 26/11.** Not a cabinet paper. Not an operational file. An inquiry report into a public catastrophe.

The reason given for withholding it expired in 2012. **And it is being withheld by a government that passed the Right to Information Act.**

The State Ledger

Part Five committed every subsequent part to carrying this table: which states were affected by the material in this part, and how. It accumulates across the series and consolidates in Part Nineteen.

TABLE 9 · STATE LEDGER, PART FIFTEEN

State	What happened, 2004–2009	Standing
Maharashtra	Malegaon 2006 and the nine wrongful arrests; the July 2006 train bombings; Malegaon 2008; 26/11; the Pradhan Committee report withheld. Congress-led state government throughout.	The central case of this part
Andhra Pradesh	Mecca Masjid, May 2007; men wrongly held then released; compensation paid by the Congress state government and then ordered recovered by the High Court.	Charge, with a partial credit
Rajasthan	Ajmer dargah, October 2007. Jaipur, May 2008 — death sentences in 2019, all acquitted on appeal in 2023.	Charge
Haryana	Samjhauta Express, February 2007. Sixty-eight killed, mostly Pakistani nationals. All accused acquitted 2019.	Charge
Delhi	Blasts October 2005 and September 2008. The cash-for-votes investigation, begun three years late.	Charge
Uttar Pradesh	Varanasi, March 2006. Convictions obtained in 2022 — sixteen years.	Charge
Gujarat Karnataka	• Ahmedabad and Bangalore, July 2008. Ahmedabad produced 38 death sentences in 2022, under appeal.	Charge
Every state	The Right to Information Act 2005; the rural employment guarantee from 2006; the Forest Rights Act 2006 (see Part Thirteen).	The largest credit item in the ledger

Timeline

TABLE 10 · 2004–2009, AND WHAT CAME AFTER

Date	Event
13 May 2004	Congress wins 145 seats. UPA formed with Left support from outside.
18 May 2004	Sonia Gandhi declines the office.
22 May 2004	Manmohan Singh sworn in.
Sep 2004	POTA repealed, as promised in the Common Minimum Programme.
Mar 2005	Sachar Committee appointed.
15 Jun 2005	Right to Information Act passed. In force 12 October.
18 Jul 2005	Bush–Singh joint statement on civil nuclear cooperation.
Aug–Sep 2005	National Rural Employment Guarantee Act passed.
29 Oct 2005	Delhi market bombings before Diwali.
16 Jan 2006	₹717 crore package announced for the victims of November 1984 (Part Eleven).
7 Mar 2006	Varanasi bombings.
11 Jul 2006	Seven Mumbai suburban trains bombed. ~189 killed.
7 Aug 2006	First of the seventeen alerts later described to the Pradhan Committee.
8 Sep 2006	Malegaon. Nine Muslim men arrested within weeks.
Nov–Dec 2006	Sachar report published. Forest Rights Act passed. Hyde Act signed in the US.
18 Feb 2007	Samjhauta Express bombed. 68 killed.
18 May 2007	Mecca Masjid, Hyderabad.
Aug 2007	123 Agreement published.
11 Oct 2007	Ajmer dargah bombing.
13 May 2008	Jaipur bombings.
8 Jul 2008	Left parties withdraw support.
22 Jul 2008	Cash produced in the Lok Sabha. Government survives 275–256.
25–26 Jul 2008	Bangalore and Ahmedabad bombings.

Date	Event
1 Aug 2008	IAEA adopts the India-specific safeguards agreement.
6 Sep 2008	Nuclear Suppliers Group grants India a waiver.
12 Sep 2008	Bush states the fuel assurances are political, not legally binding.
13 Sep 2008	Delhi bombings.
29 Sep 2008	Malegaon again. The ATS under Karkare arrests members of a Hindu organisation.
10 Oct 2008	Nuclear agreement signed.
26–29 Nov 2008	Mumbai. 166 killed. Karkare among the dead.
30 Nov 2008	Shivraj Patil resigns; P. Chidambaram becomes Home Minister.
Dec 2008	National Investigation Agency Act passed. Pradhan Committee appointed 30 December.
Dec 2008	UAPA amended, restoring most of what POTA had contained — without the confession clause and without an expiry date.
2009	Pradhan Committee reports. Not published. UPA returns to office with 206 seats.
Dec 2010	Aseemanand's magisterial confession.
Jul–Sep 2011	Cash-for-votes arrests, after the Supreme Court criticises the investigation.
Nov 2011	The Malegaon nine granted bail. Five years in custody.
21 Nov 2012	Kasab hanged. The stated reason for withholding the Pradhan report expires.
May 2013	NIA charge sheet names a Hindu group for Malegaon 2006. Union minister calls the arrests “extremely unfortunate”.
2013	David Coleman Headley sentenced to 35 years by a US court.
Apr 2016	The Malegaon nine formally discharged, nearly ten years on.
2017–2019	Acquittals in the Ajmer, Mecca Masjid and Samjhauta cases.
2023 / 2025	Jaipur convictions overturned; the Mumbai train accused acquitted after ~19 years; Malegaon 2008 accused acquitted.
4 Mar 2024	<i>Sita Soren</i> : seven judges end legislators' immunity for bribery. Chapter Eight.
10 Apr 2025	Tahawwur Rana extradited from the United States and arrested by the NIA — sixteen years and four months after the attack.

Words Used in This Part

TABLE 11 · GLOSSARY

Approver		An accused person who admits the offence and gives evidence against the others, usually for a pardon.
Article 105(2)		The clause protecting MPs from court action for anything said or any vote given in Parliament. Read narrowly since <i>Sita Soren</i> (2024).
Charge sheet		The document by which police formally accuse named people of an offence and take the case to court.
Common Programme	Minimum	The written list of commitments agreed between coalition partners in 2004. Table 1 measures the government against it.
Confidence motion		A vote on whether the government still commands a majority. Lost, it must resign.
Discharge		A court's decision that there is not enough material even to put somebody on trial. Stronger than an acquittal, because the trial never starts.
Fidayeen		An attack in which the attackers do not intend to survive.
IAEA		The International Atomic Energy Agency, which inspects civil nuclear facilities.
MCOCA		Maharashtra's organised-crime statute. Makes bail hard and admits confessions made to police officers.
Magisterial confession		A confession made before a magistrate, who must first warn the maker and be satisfied it is voluntary. Admissible where a police confession is not.
NIA		The National Investigation Agency, created by Act of Parliament in December 2008.
NSG (commandos)		The National Security Guard, India's counter-terrorist force. Based at Manesar in 2008; hubs added in four cities afterwards.
Nuclear Group	Suppliers	The countries that sell nuclear technology, which agreed not to supply states outside the non-proliferation treaty. Granted India a waiver in September 2008.
Right to Information		The 2005 Act giving any citizen the right to demand information from a public authority, with a personal penalty on officials who refuse.
Support from outside		Voting with a government without joining it. Influence without responsibility, withdrawable at any time.
Terms of reference		The written instructions creating an inquiry and limiting what it may examine. See Part Fourteen, Chapter Five.

A Word on Sources

Everything dated in this part was checked against a source rather than recalled, and where sources disagree the disagreement is on the page.

The court record does most of the work here. Convictions, acquittals, discharges and bail orders in the Malegaon, Mecca Masjid, Ajmer, Samjhauta, Jaipur, Mumbai train and cash-for-votes cases are all matters of record. So is the National Investigation Agency's 2013 charge sheet, and so is the Supreme Court's criticism of the Delhi Police investigation. The nuclear deal's stages are documented on both governments' records.

The weakest evidence in this part is in Chapter Six, and the chapter says so where it stands rather than here. The Pradhan Committee's findings are given as substance rather than quotation because the report has never been published; they reach the public through leaks and through what its authors have said since. The seventeen-alert figure has that status. If the report is released and contradicts this part, Chapter Ten has already said which sentence to strike.

Three things are graded **ALLEGED** and nothing rests on them: the WikiLeaks cable's account of a fund set aside before the confidence vote, any claim that the central government knew of the Malegaon arrests, and the attribution of any bombing where no conviction now stands.

Casualty figures for the attacks in Table 3 vary between sources and are given as commonly cited, with the variation flagged in Chapter Ten rather than smoothed away.

A NOTE FROM THE AUTHOR

I have found this the hardest part to keep honest, and the difficulty is the opposite of the one I expected.

I came to these five years with a settled view, formed the way most people's views of the UPA were formed, which is backwards from what came after. Part Sixteen is the scandals part, and everybody knows what UPA II looked like by 2014. It is very easy to read the first term as a rehearsal for the second, and I had to stop myself doing it three times while drafting.

The place where that would have distorted the writing is Chapter Two. My first outline had the Right to Information Act and the employment guarantee as a short section in Chapter Nine, among the defences. That is where a prosecutor puts things he has to men-

tion. Moving them to Chapter Two, at length, changed what the rest of the part could honestly say — and it should have, because on the evidence they are the largest constructive act by any government in this series since the 1950s.

The second place is Chapter Four, and there my problem was the reverse. That chapter is the strongest material I have, and I wanted it to be a charge against the central government. It is not. It is a charge against a state police force, a state statute and a system of measurement, and the central government's own agencies are what exposed it. I have written it that way and it is weaker as advocacy and stronger as evidence.

Part Ten declared that I am Punjabi and had written on that material before. Nothing here touches that. What I will declare instead is that Chapter Four concerns men jailed on the basis of who they were rather than what they did, and that this is the kind of material where I am least likely to notice myself pressing too hard. The argument box in 4.3 gives the defence more room than any other in this part, deliberately, for that reason.

One last thing. Chapter Nine's final box says this book cannot separate a government's failures from the state's. I do not have a solution to that, and I would rather leave the problem visible in the middle of the part than resolve it quietly in my own favour.

Lovepreet Singh

Part Fifteen of *The Congress Record*

The Living Archive · misterlove.in

Part Sixteen takes up UPA II, 2009–2014: 2G, Coalgate, the Commonwealth Games, Adarsh, and what the courts actually found afterwards. The comparison with the government of 2014 onwards is Part Eighteen, on the same ruler, and the second series auditing that government on this scale is still promised.

THE CONGRESS RECORD

PART SIXTEEN OF NINETEEN

UPA Two 2009–2014

Two audit figures that between them came to three and a half lakh crore rupees, five years of scandal built on top of them, and what was left when the courts had finished.

This is an advocacy document. It is the case for the prosecution against Congress governments in power. The selection of material is one-sided on purpose. The evidence in it is not. Every serious claim carries a grade showing how well it is proved, the other side is given its strongest argument, and where the other side wins, this book says so. A second series applying the same test to the government of 2014 onwards is planned.

Lovepreet Singh

The Living Archive · misterlove.in

Why This Part Is the Test

Part One of this series set out a scale for grading evidence, and it used one case as its worked example. That case is in this part.

The reasoning was set out at the beginning and it has governed fifteen parts since. It is worth repeating here because this is where it earns its keep or fails.

The Comptroller and Auditor General reported in November 2010 that the allocation of 2G telecom spectrum had cost the exchequer up to one lakh seventy-six thousand crore rupees. In February 2012 the Supreme Court cancelled a hundred and twenty-two licences. In December 2017 a criminal court in Delhi acquitted every single person accused, and said the prosecution had produced no evidence of criminality at all.

All three of those things happened. A book that gives you the first two and not the third is not a prosecution document; it is a pamphlet, and the first reader who knows about the acquittal stops believing anything else in it.

HIDDEN ASSUMPTION

Every account of these five years assumes that **the size of a scandal is the number attached to it**. One lakh seventy-six thousand crore. One lakh eighty-six thousand crore. The numbers are how these events are named.

But the figures are not money that went missing. Nobody removed one lakh seventy-six thousand crore rupees from a treasury. The number is a **presumptive loss** — an auditor's estimate of the difference between what the government charged and what it might have raised had it done something else.

Which means the number is not a measurement of a theft. **It is a measurement of a policy choice, made by comparing it with a policy that was not chosen.** Chapter Three is entirely about that sentence.

This matters in both directions, and this book is going to insist on both. A presumptive loss is not proof of a crime, and treating it as one is how the criminal cases collapsed. It is also *not nothing* — a government that gives away a public asset below its value has done something real to the public, whether or not anybody took a bribe.

Nearly every argument about these five years, on both sides, consists of pretending one of those two halves does not exist.

So Part Sixteen is arranged differently from the rest of the series. Chapter Three explains what the numbers are before any of the cases are described, because a reader

who does not have that will not be able to follow Chapter Eight, which sets out what was actually established and what was not.

WHAT IS IN THIS PART AND WHAT IS NOT

The four subjects agreed for this part are 2G, Coalgate, the Commonwealth Games and Adarsh, together with what the courts found afterwards. They are all here.

Part Fifteen deliberately kept out the money — including the spectrum allocation of January 2008, which happened under UPA I. That was so this part could take the whole thing at once rather than telling half of it twice. The 2008 allocation is therefore in Chapter Four, where it belongs.

What Is In This Part

One The Government That Won

May 2009. Two hundred and six seats and no dependence on anybody. The strongest position a Congress government had held since 1984.

Two What Was Built

Education as a right. Food as a right. A new land acquisition law. Placed here, before the charge, and the reason is given.

Three The Number

What a presumptive loss is, how it is calculated, why it moved from ten lakh crore to under two, and what it can and cannot prove.

Four Spectrum

The 2008 allocation, the audit, a hundred and twenty-two cancelled licences, and an acquittal of everybody.

Five Coal

Two hundred and eighteen blocks, allocated from 1993 onwards. The Supreme Court cancelled two hundred and fourteen of them.

Six The Games, and the Building

Delhi in October 2010, and thirty-one storeys in Colaba built on land meant for war widows.

Seven The Parliament That Stopped

The least productive full-term Lok Sabha in Indian history, and what that did to everything else in this part.

Eight What Was Actually Established

Case by case, charge by charge, sixteen years on. The reckoning this book promised in Part One.

Nine What Would Have Prevented It

The defence at full strength. Where it wins. The rules that were not made.

Ten An Honest List of What We Do Not Know

Including the question this book cannot answer and has been building towards for sixteen parts.

HOW THE GRADES WORK

Every serious claim carries a grade, printed next to it. **CONVICTED**: a court convicted somebody. **COURT-FOUND**: a court made the finding but nobody was convicted, or the case is still running. **COMMISSION-FOUND**: an official inquiry found it, and is named. **AUDITED**: the government's own auditors flagged it and no court ruled. **ALLEGED**: said in public, never tested. **FABRICATED**: shown to be false.

AUDITED matters most here, and almost nobody uses it. It means the auditor flagged something and no court ever ruled. A real finding; not a conviction. Chapter Three is the distance between them.

CHAPTER ONE

The Government That Won

In May 2009 the Congress won two hundred and six seats — sixty-one more than in 2004, and its best result since 1991. The alliance took two hundred and sixty-two. For the first time since 1984 a Congress government did not need support from outside to survive a vote.

Part Fifteen ended by noting how strange that result was against the record it followed. This part begins with what was done with it.

1.1 — What the position was

Manmohan Singh returned as Prime Minister. The arrangement described in Part Fifteen was unchanged in shape: a Prime Minister without a party base, a party president outside government, and a National Advisory Council advising on legislation from outside the Cabinet.

What changed was the arithmetic. The Left parties, whose withdrawal in July 2008 had produced the confidence vote of Part Fifteen's Chapter Eight, were reduced from around sixty seats to about twenty-four. They no longer mattered.

IN REAL TERMS

From 2004 to 2008 the government needed roughly sixty Communist votes to pass anything, and lost them in the end.

From 2009 it needed nobody in particular. The largest single coalition partner had around eighteen seats.

This is the strongest position a Congress government had been in for twenty-five years, and everything in this part happened from inside it. Where Part Fifteen's defence could point to weakness, this one cannot.

1.2 — What the majority was for

A government that wins sixty-one extra seats usually arrives with a plan for them. This one did, and it is worth recording because almost none of it happened.

The reading inside the government was that the 2009 result had rewarded the welfare legislation of the first term — the employment guarantee above all — and that the second

term should do two things: extend that programme of rights, and return to the economic reforms that the Left parties had blocked between 2004 and 2008.

The first half was done. Chapter Two is the list.

The second half was not. Insurance, pensions, retail, banking, labour law, subsidies, a goods and services tax — the agenda that had been held up by allies who no longer had the votes to hold anything up — mostly did not move.

THE ARGUMENT FROM THE OTHER SIDE

The defence says: a government elected on welfare legislation did more welfare legislation. That is not a failure of nerve; it is doing what the mandate said. And the economic reform agenda is contested — several of the items on it were opposed by serious people for serious reasons, and the goods and services tax in particular required the states to agree, which took another six years and a constitutional amendment under a different government.

The reply: the goods and services tax point is fair and the state-consent problem was real. The rest is not. Insurance and pensions were held up for four years by parties with sixty seats and then not moved when those parties had twenty-four. Something other than arithmetic was operating after 2010, and Chapter Seven says what it was.

Where this matters for the whole part: Part Fourteen's government had 232 seats and no majority and reformed the economy in thirty-three days. This one had the strongest position since 1984 and did not. **Whatever explains these five years, it is not that the government lacked the votes.**

Set the three Congress governments this series has covered in sequence beside one another and the point becomes hard to avoid.

IN REAL TERMS

Compare the three Congress governments this series has now covered in sequence.

Part Fourteen: 232 seats, no majority, three weeks of foreign money. It dismantled the licence system in thirty-three days.

Part Fifteen: 145 seats, dependent on Communist parties with a veto. It passed the transparency law and the employment guarantee.

Part Sixteen: 206 seats, no dependence on anybody. It passed the food and education laws — and then, from about 2011, largely stopped.

The correlation between parliamentary strength and what a government achieves, across these three, is either zero or negative. That is worth holding on to, because it is the opposite of what every account of Indian politics assumes.

1.3 — The two things that arrived together

Two developments outside the government's control shaped the whole term, and both were consequences of things it had done in its first.

The first was the Right to Information Act of 2005. By 2009 it had been running for four years and people had learned to use it. A very large amount of what appears in this part — file notings, correspondence between ministries, the internal record of decisions — became public because of a law this government had passed. Part Fifteen made that point about the employment programme. It applies here on a much larger scale.

The second was the Comptroller and Auditor General, and specifically what that office did between 2010 and 2012.

WORD BOX · THE COMPTROLLER AND AUDITOR GENERAL

The CAG is the constitutional auditor of the Indian state. It examines whether public money was spent lawfully and whether public assets were handled properly, and reports to Parliament.

It is not a court and it is not an investigating agency. It cannot charge anybody, summon anybody or find anybody guilty. Its reports go to Parliament's Public Accounts Committee.

Part One's grading scale has a rung called **AUDITED** precisely because this office exists: a finding that is official, serious, and not a legal determination of anything.

Between November 2010 and August 2012 the CAG produced reports on telecom spectrum, on coal, and on the Commonwealth Games, and those three documents are the origin of almost everything in the six chapters that follow.

HOW WE ACTUALLY KNOW THIS

It is worth being exact about where this part's material comes from, because it is unusual.

Nearly all of it is the government's own paper: audit reports laid before Parliament, ministry file notings obtained under the transparency law, Supreme Court judgments, and charge sheets. Very little of it is journalism and almost none of it is anybody's memoir.

Part Fourteen had to build its central charge out of one court affidavit and one lawyer's autobiography, because the file notes of 1992 have never been released. **Part Sixteen has the opposite problem: too much documentation rather than too little**, and Chapter Three is about how a mass of official paper can produce a false picture as easily as a shortage of it.

Those three documents, and the law that made the underlying files readable, are why this part exists in the form it does.

REMEMBER THIS

In 2009 the Congress won **206 seats** — its best since 1991 — and for the first time since 1984 did not need anybody's outside support.

Everything in this part happened from a position of **strength**. The weakness defence that Part Fourteen and Part Fifteen could both use is not available here.

And almost every document in this part is public because of a law this same government passed in 2005.

CHAPTER TWO

What Was Built

Parts Fourteen and Fifteen both put the credit chapter second and said why: at the end it reads as a sweetener produced late. The same applies here, and here it is harder, because this is the part everybody knows as the scandals part.

2.1 — Two more rights

Part Fifteen described the distinction this government kept returning to: between a scheme, which stops when the money runs out, and a right, which a named person can enforce. UPA II added two more.

The **Right of Children to Free and Compulsory Education Act, 2009** made schooling from six to fourteen an enforceable right, gave effect to a constitutional amendment passed in 2002, and required private schools to reserve a quarter of their places for children from disadvantaged backgrounds.

The **National Food Security Act, 2013** gave a legal entitlement to subsidised grain to roughly two-thirds of the population.

IN REAL TERMS

The food law covered around **eight hundred million people**.

That is more people than live in the whole of Europe. It is the largest food entitlement programme any country has ever legislated.

Whether it worked is a separate question and the answer is mixed. But the scale is worth sitting with before reading the rest of this part, because the same government, in the same years, is the subject of Chapters Four to Six.

Both have records, and this book gives them.

IN REAL TERMS

Enrolment was not the education law's problem. By the time it passed, well over ninety per cent of Indian children were already enrolled in primary school.

What the surveys of the following decade found was that a large proportion of children in Class Five could not read a Class Two text or do simple division — and that this did not improve much, in some measures got worse, and was not much affected by the Act.

The law guaranteed a place in a school. It did not guarantee that anything happened there, and the provisions most likely to have addressed that — on teacher accountability and on assessment — were the weakest in it.

The quarter of private school places reserved for disadvantaged children is real and is used. It is also the part most litigated and least uniformly implemented.

The food law's record is better on its own terms and is harder to separate from what existed before it, because most states already ran subsidised grain distribution and the Act extended and entrenched rather than invented.

2.2 — Three more laws, and where they came from

The **Land Acquisition Act, 2013** replaced the colonial statute of 1894 that Part Thirteen described in detail — the Act under which land could be taken with no requirement of consent, and which was the first of the five mechanisms Part Thirteen listed by which tribal land was lawfully taken away. The 2013 Act required consent from a proportion of affected landowners, a social impact assessment, and compensation at a multiple of market value.

That is a debt of this series paid. Part Thirteen named the 1894 Act as the instrument and noted it stayed in force until 2013. This is where it went.

The **Lokpal and Lokayuktas Act, 2013** created a national anti-corruption ombudsman with jurisdiction over the Prime Minister. The **Criminal Law (Amendment) Act, 2013**, following the Justice Verma Committee report after the Delhi gang rape of December 2012, rewrote the law on sexual offences.

Two of those five have an awkward origin, and this book is not going to hide it.

THE ARGUMENT FROM THE OTHER SIDE

The case against giving this government the credit: the Lokpal Act was passed in December 2013 after two years of a mass movement demanding it, hunger strikes, and a collapse in the government's standing. The criminal law amendment was passed after nationwide protests. The food law was passed months before a general election.

On this reading these are not achievements but concessions — things extracted from a government that had run out of room, timed for a campaign.

The reply: the timing is real and the pressure is real, and the record should say so. But Part Fourteen made the same point in reverse about the 1991 reforms, which were also done under duress, and concluded that **being forced to act does not tell you what a government will do when forced**. Governments under pressure frequently pass nothing, or pass a version with the teeth removed.

Where the criticism does land: on the Lokpal specifically. The Act was passed in December 2013. The first Lokpal was not appointed until March 2019 — under a different government, and after the Supreme Court had been asked twice to make somebody do it. **A law that takes five years to produce an office is a law that was passed and not implemented**, and the government that passed it had five months left to start.

There is a way to settle that argument which does not depend on anybody's account of their own motives.

HOW WE ACTUALLY KNOW THIS

The awkward question about all five of these laws is whether they were this government's doing or things it was made to do. There is a way to test it.

Ask which of them a successor government tried to undo. The land acquisition law of 2013 was the subject of an ordinance in December 2014, re-promulgated twice, seeking to remove the consent requirement and the social impact assessment for several categories of project. It was abandoned in 2015 after it could not be passed.

A law that the next government spends a year trying to weaken and cannot is a law with real content in it. That is a harder test than any statement of intent, and the 2013 Act passes it.

The Lokpal Act does not pass the equivalent test, for the opposite reason. Nobody had to weaken it. It simply was not constituted for five years.

2.3 — The thing that was built without a law

The largest single thing this government created is not on the list above, because it was not a statute at all.

The Unique Identification Authority of India was set up by executive order in January 2009, under Nandan Nilekani, a technology executive brought in from outside government. The first Aadhaar number was issued in September 2010. By the time this government left office in 2014, something in the region of six hundred million people had been enrolled.

In January 2013 the government began direct benefit transfers — paying subsidies and pensions into bank accounts rather than distributing them through intermediaries.

IN REAL TERMS

Six hundred million people in about four years. That is roughly **four hundred thousand enrolments a day, every day**, including fingerprints and iris scans, in a country where a large proportion of those enrolled had never held any identity document at all.

It is the largest biometric identity programme ever attempted anywhere, and it was built by an authority that **had no statute behind it for seven years**.

The Aadhaar Act was passed in 2016, under a different government, and the Supreme Court ruled on its constitutionality in 2018 — by which time it was already the basis on which most Indians received most things from the state.

Both the scale and the way it was achieved drew objections at the time, and the two are not separable.

THE ARGUMENT FROM THE OTHER SIDE

The objection, which is serious and was made at the time by people on both sides of politics: a body collecting the biometric data of most of the population, created by executive order, operating for seven years without a law defining what it could do with that data or who could demand it, is exactly the kind of thing a Parliament exists to authorise before it happens rather than afterwards.

Chapter Seven describes a Parliament that lost thirty per cent of its sitting time. This is what a government does when it wants something large and cannot get a bill through: it does it without one.

The defence: a bill was introduced in 2010 and rejected by a parliamentary standing committee in 2011. The programme was voluntary in law throughout this period. And the benefit — a poor person being able to prove who she is, and receive money without an intermediary taking a share — is very large and was arriving while the argument continued.

Where this leaves it: the achievement is real and so is the objection, and they are the same fact. **The speed came from not needing anybody's permission, and that is also the criticism.**

2.4 — What was not built

The communal violence law promised in the Common Minimum Programme of 2004, drafted in 2005 and again in 2011, was still not enacted when this government left office in May 2014. Part Fifteen's Chapter Nine set out what it would have done. Ten years, two terms and two comfortable majorities.

Public spending on health remained close to one per cent of national income across both terms, against a promise of two to three.

VERDICT · THE BUILDING RECORD OF UPA II

Substantial, and mostly real. Education and food as enforceable rights; the 1894 land acquisition Act finally replaced; a rewritten law on sexual offences. Together with Part Fifteen's transparency and employment laws, this is the largest body of rights-creating legislation by any Indian government since the 1950s.

The qualifications, all of which stand: several were passed under heavy public pressure and close to an election; the Lokpal was legislated and then not constituted; and the two commitments requiring sustained money rather than a statute — health and education spending — were not met in ten years.

Which is a stronger record than the reputation of these five years suggests, and a weaker one than the list of statutes on its own implies.

REMEMBER THIS

UPA II made education a right, made subsidised food a right for around **eight hundred million people**, replaced the 1894 land acquisition law that Part Thirteen named as the instrument, and rewrote the law on sexual offences.

Several of those came under enormous public pressure and close to an election. **The Lokpal Act was passed in December 2013 and no Lokpal was appointed until March 2019.**

CHAPTER THREE

The Number

The loss is presumptive. It is what the exchequer might have obtained had the spectrum been allocated by a different method.

The substance of the qualification attached to the 2010 audit figure, and the sentence almost nobody read

This chapter contains no scandal. It explains a method of calculation, and everything in the five chapters that follow depends on it.

3.1 — What a presumptive loss is

Suppose a government owns something valuable — telecom spectrum, a coal seam, a piece of land — and gives it to a company for a fixed fee.

An auditor asks: what would this have fetched if it had been auctioned? He finds a comparable auction, works out a price, multiplies it by the quantity given away, subtracts what was actually charged, and reports the difference.

WORD BOX · PRESUMPTIVE LOSS

The gap between what the government received and what an auditor calculates it could have received under a different method of allocation.

It is called presumptive because the alternative *did not happen*. The auditor is comparing a real transaction with an imagined one.

Three things follow, and they are the whole chapter. It is a real and legitimate audit technique. The figure depends entirely on which comparison you choose. And **it says nothing whatever about whether anybody was paid a bribe.**

3.2 — Why the figures move so much

If the number depends on the comparison chosen, then choosing a different comparison gives a different number. That is not a scandal about auditors; it is arithmetic. But the size of the movement in these two cases is worth seeing set out.

TABLE 1 · THE SAME EVENTS, DIFFERENT FIGURES

Case	Figure	Who produced it, and on what comparison
Spectrum	₹1,76,645 crore	CAG, November 2010 — the highest of several estimates it gave, based on the 3G auction price of 2010

Case	Figure	Who produced it, and on what comparison
Spectrum	₹57,666 crore	CAG, same report, on a different comparison — an offer made by one company for a stake
Spectrum	₹30,984 crore	The CBI's own charge sheet. The prosecuting agency's figure, used in court
Coal	₹10.67 lakh crore	CAG draft report, March 2012, which leaked before publication
Coal	₹1.86 lakh crore	CAG final report tabled in Parliament, August 2012 — the draft figure divided by about five and a half

The coal draft leaked in March 2012 and the final report came in August. For five months the country argued about a figure the auditor did not ultimately publish. The two numbers differ by roughly nine lakh crore rupees, which is more than the entire central government budget of that year.

Look at the third row. It is the most useful fact in this part and it is almost never quoted.

IN REAL TERMS

The Central Bureau of Investigation, prosecuting the spectrum case, put the loss at **₹30,984 crore**.

That is about **seventeen and a half per cent** of the audit figure the whole country was arguing about.

The agency trying to convict people used a number roughly one-sixth the size of the one used to describe the scandal. It did that because a charge sheet has to survive cross-examination and an audit report does not.

None of which is a complaint about the office that produced the figures.

HOW WE ACTUALLY KNOW THIS

It would be easy to read this chapter as a criticism of the auditor. It is not, and the distinction matters.

The CAG's spectrum report did not give one figure. It gave several, on different comparisons, and said what each rested on — including the ₹57,666 crore figure in the second row of the table above. The qualification that the loss was presumptive was in the report.

What happened to those numbers happened outside the audit. The highest figure was extracted, quoted without its basis, and became the name of the affair. The auditor of the day later wrote a book defending the estimate, which is his right, and the office's reputation was drawn into a political fight that the report itself had not started.

A reader who takes from this chapter that the CAG behaved improperly has taken the wrong thing. The failure was in the reading, and this book was among the many that did the reading badly for years.

3.3 — What it can and cannot prove

Here is the distinction that the next five chapters turn on, and it is not a technicality.

TABLE 2 · TWO DIFFERENT QUESTIONS

The question	Who answers it	Standard of proof	What follows
Was this allocation lawful and proper?	Auditor, then constitutional court	a Was the process arbitrary or unreasonable?	The allocation can be cancelled
Did a named person commit a crime?	A criminal court	Beyond reasonable doubt, against that individual	That person goes to prison

These are the two questions that were repeatedly confused between 2010 and 2018, by newspapers, by politicians and — Chapter Eight argues — by the investigating agencies themselves.

A government can give away a public asset far below its value, entirely without corruption, through ordinary bad judgement or an ideological preference for cheap spectrum over expensive spectrum. The first question would be answered against it. The second would not arise.

Equally, an allocation can be perfectly defensible in policy terms and still involve somebody taking money to arrange it. The second question would be answered against him and the first would not.

The two answers are independent. That is why the Supreme Court could cancel a hundred and twenty-two licences in 2012 and a criminal court could acquit everybody in 2017 without either being wrong.

THE ARGUMENT FROM THE OTHER SIDE

The objection to this whole chapter: that it is a sophisticated way of letting a government off. Everybody knew what happened. Companies with no telecom experience obtained licences at 2001 prices in 2008 and sold stakes within months at enormous multiples. Whatever a criminal court later said about the evidence, the public understood the transaction correctly, and a book that spends a chapter on audit methodology is helping to bury it.

This objection has real force and the reply is not comfortable. The stake sales happened; Chapter Four gives the figures. The public reaction was not irrational.

But the objection proves the chapter's point rather than defeating it. "Everybody knew" is exactly the standard this series has spent fifteen parts refusing. Part Eleven declined to name individuals against whom no body had found. Part Twelve refused to assert that Rajiv Gandhi ordered the Ayodhya locks opened or took Bofors money. Part Fourteen refused to say the central government wanted the demolition.

A book that applied those rules for fifteen parts and abandoned them here — at the one place where abandoning them would be popular — would be worth nothing.

3.4 — What survives

Strip out what the presumptive-loss figure cannot support and something is still left standing, and it is not small.

WHAT THE AUDIT FINDINGS DO ESTABLISH

AUDITED, and in the two largest cases subsequently **COURT-FOUND** :

That public assets of very large value were allocated by discretionary methods rather than by auction. Not disputed by anybody, including the government at the time.

That the methods used were arbitrary in their operation. Found by the Supreme Court in both the spectrum case (2012) and the coal case (2014).

That the beneficiaries obtained assets worth substantially more than they paid. Demonstrated by what several of them did next.

What the figures do *not* establish is that anybody was bribed. That is a different question, it was tried separately, and Chapter Eight gives the results.

Everything from here on should be read against that list, because the five chapters that follow are an attempt to say which side of it each case falls on.

REMEMBER THIS

A **presumptive loss** is the gap between what a government charged and what an auditor calculates it could have charged under a method it did not use. It is a real technique. It is not a measurement of theft.

The spectrum figure ran from **₹1.76 lakh crore** in the audit to **₹30,984 crore** in the prosecution's own charge sheet. The coal figure fell from **₹10.67 lakh crore** in the leaked draft to **₹1.86 lakh crore** in the published report.

Two questions, always. **Was the allocation proper? Did somebody commit a crime?** They have different answers and different judges, and confusing them is what wrecked the next five years.

CHAPTER FOUR

Spectrum

On the tenth of January 2008, the Department of Telecommunications issued a hundred and twenty-two new telecom licences with spectrum attached, at a price fixed in 2001, on a first-come-first-served basis. The Minister for Communications was A. Raja of the Dravida Munnetra Kazhagam, a coalition partner.

This chapter sets out what was done, what was found, and what happened to all of it.

4.1 — What spectrum is and why the price matters

WORD BOX · SPECTRUM

Radio frequencies. A mobile phone call travels on one, and only a finite range exists. It cannot be manufactured, and every operator needs some.

It belongs to the state. Governments either auction it to the highest bidder or hand it out at an administered price on conditions.

The argument for auctioning is that it captures the value for the public. The argument against is that operators who pay enormous sums pass the cost to subscribers, which in a poor country slows the spread of telephones. **Both arguments are respectable, and the second one was Indian policy for most of the previous decade.**

4.2 — What was done

The mechanics matter, because this is where the case was later argued.

A cut-off date for applications was announced as the first of October 2007. Applications received after that date were not to be considered. In January 2008 the cut-off was changed to the twenty-fifth of September, which excluded a number of applicants who had applied in between.

Companies were then told, at short notice on the tenth of January, to bring demand drafts to the department. Those who arrived first got licences. The price was the one fixed in 2001, when there were around four million mobile subscribers in India.

IN REAL TERMS

India had about **four million** mobile subscribers when that price was set in 2001.

By January 2008 it had around **two hundred and thirty million**, and was adding roughly eight million a month.

The asset had become somewhere between fifty and a hundred times more useful, and the price had not moved at all. **That is the fact from which everything else in this chapter follows**, and it is not in dispute between any of the parties.

Two of the companies that obtained licences had no telecom operations. Within months, both sold substantial stakes to foreign telecom groups.

HOW WE ACTUALLY KNOW THIS

The stake sales are the most solid evidence in this chapter because they are commercial transactions between unconnected parties, filed with regulators, and nobody has ever disputed them.

One company had paid about **₹1,537 crore** for its licences and sold around forty-five per cent of itself to a Norwegian operator months later, in a transaction valuing it far above that.

Another, which paid a comparable amount, sold a majority stake to a company from the Gulf.

An arm's-length buyer paying a large multiple within months is the market's own valuation of what was handed over. **It is worth more than any auditor's estimate, because somebody actually paid it.**

4.3 — The auction that supplied the comparison

In April and May 2010 the government auctioned a different band of spectrum, for third-generation services, by open bidding.

It raised around **₹67,700 crore** for the 3G bands, and about ₹1.05 lakh crore in total when the parallel broadband auction is included. The reserve price was exceeded several times over.

HOW WE ACTUALLY KNOW THIS

That auction is where the ₹1.76 lakh crore came from. The CAG took the price per unit of spectrum that operators had actually bid in 2010 and applied it to what had been given away in January 2008.

This is why the figure had such force. It was not an economist's model. It was **the government's own selling price for a comparable asset, obtained eighteen months later from the same companies.**

It is also where the objection lives. The 2010 auction was for a different band, for a different technology, in a market that had added roughly a hundred and fifty million subscribers in between. Whether a price obtained in one is the right price for the other is exactly the judgement Chapter Three said a presumptive loss rests on.

Nothing in this chapter turns on which view of that is right. What the 3G auction establishes beyond argument is narrower and quite sufficient: **the government knew, in May 2010, what spectrum fetched when it was auctioned,** and it had given a comparable quantity away for a fraction of that twenty-eight months earlier.

4.4 — What the audit found, and what the Supreme Court did

The CAG reported in November 2010. The figure of one lakh seventy-six thousand crore rupees entered the language. Chapter Three has already set out what it is and what it is not.

The Supreme Court's judgment came on the second of February 2012. It cancelled all one hundred and twenty-two licences.

The reasoning is the part worth having, because it is the finding that has never been reversed, and it rests on a principle worth naming.

WORD BOX · THE PUBLIC TRUST DOCTRINE

The idea that certain things — air, water, the seashore, minerals, radio frequencies — are not owned by a government in the way a desk is. The state holds them **on behalf of the people,** and must deal with them for the common benefit.

The practical consequence is that a government cannot simply give such a thing away on whatever terms it likes, even lawfully and even with good intentions. It has to be able to explain why the terms served the public.

This is the principle both the 2012 spectrum judgment and the 2014 coal judgment turn on, and it is the most consequential legal idea in this part.

Applying that principle, the Court reached three conclusions.

COURT-FOUND · SUPREME COURT OF INDIA, 2 FEBRUARY 2012

COURT-FOUND. The Court held that:

Spectrum is a **natural resource held by the state in trust for the people**, and its allocation must serve the common good.

The first-come-first-served method, **as operated here**, was arbitrary — because the alteration of the cut-off date and the manner of the January 2008 process meant that what determined who got a licence was not merit or price but who could reach a counter with a draft.

All one hundred and twenty-two licences were **quashed**.

This finding stands today. Nothing that happened afterwards has disturbed it.

4.5 — The criminal case

The CBI charged A. Raja, the DMK MP Kanimozhi, the former Telecom Secretary, Raja's private secretary, and executives of several companies. A separate money-laundering case was brought by the Enforcement Directorate, alleging that ₹200 crore had been paid to a television channel connected to the DMK leadership.

Raja spent about fifteen months in custody before being bailed. So did several others.

The trial ran for six years before a special judge appointed to hear nothing else.

On the twenty-first of December 2017, Special Judge O. P. Saini acquitted every accused in all three cases.

HIDDEN ASSUMPTION

Almost everybody reading about that acquittal assumed one of two things: either **that it proved nothing had happened**, or **that it proved the courts had been got at**.

Both assumptions share a hidden premise — that the criminal verdict is the final word on the whole affair. It is not. It is the answer to one of the two questions in Chapter Three's second table.

The Supreme Court's 2012 finding — that the allocation was arbitrary and that the licences must be cancelled — was **not appealed, not reversed, and is not affected by the acquittal**. It stands. The criminal court was asked a completely different question: whether the prosecution had proved, beyond reasonable doubt, that these named individuals had committed offences.

The judge's answer was that it had not, and his stated reason was not that the allocation was proper. It was that **the prosecution had failed to produce evidence**, had misread its own material, and had built a case on inference.

So the honest summary is: **the policy was found unlawful and the people were not found guilty**. Those are compatible, they are both on the record, and neither side of Indian politics has ever wanted to say both sentences together.

4.6 — What happened to the industry

Cancelling a hundred and twenty-two licences in February 2012 was not a paper exercise. Companies had built networks on them and customers were using them.

The foreign operators that had bought into the Indian market on the strength of those licences — a Norwegian group, a Gulf group, a Russian one — found their businesses extinguished by a court judgment about a process they had not run. Several wrote off very large investments and left the country. Their Indian subscribers had to be migrated or lost.

IN REAL TERMS

India had around a dozen mobile operators in 2010. It now has, in effect, **three**, one of which is state-owned and struggling.

Not all of that is the 2012 judgment. A price war after 2016 did most of the rest. But the cancellations began it: they removed the newest entrants, wrote off the capital of the foreign companies that had funded them, and made India a market that outside telecom investors have largely avoided since.

The public got its money — ₹5.64 lakh crore from spectrum auctions between 2010 and 2024 — and lost most of its competition. Whether that trade was worth making is a real question and nobody has answered it, because it has never been asked.

Which is where the best defence of what was done in 2008 actually lives, and it is not the one its defenders usually make.

THE ARGUMENT FROM THE OTHER SIDE

The defence of the original policy, at its strongest, is here rather than in the price. The reason for administered pricing was to get many operators into the market quickly, on the reasoning that competition drives tariffs down faster than any regulator can.

It worked. Indian call rates in that period became among the cheapest in the world, and the subscriber base grew from around four million in 2001 to over nine hundred million. A policy that achieves its stated object at that scale is not obviously a scandal.

Where it fails, and it is the same place as before: nothing in that argument requires a moved cut-off date, a counter, or a queue. Cheap spectrum could have been given cheaply to every qualified applicant. The Supreme Court cancelled the licences over how they were handed out, not over what was charged, and the industry consequences above flow from that method rather than from the price.

4.7 — What happened to the acquittal

The CBI and the Enforcement Directorate both appealed to the Delhi High Court in March 2018.

The appeal was not admitted until March 2024.

IN REAL TERMS

Six years and roughly thirty hearings, before nine different judges, to decide the preliminary question of **whether the appeal could be heard at all**.

Leave to appeal is a threshold step. It is not the appeal. In March 2024 the Delhi High Court granted it, and the substantive appeal is still pending.

By then A. Raja had been re-elected to the Lok Sabha.

Part Fourteen found telecom convictions taking fifteen years and urea convictions taking twenty-three, and concluded that **delay is not a failure of the anti-corruption process but is the process**. Here the same clock is running on the other side: an acquittal that the state says is wrong has stood unexamined for as long as some people's entire careers.

The defence of what was done here is better than its reputation and has to be put at full strength.

THE ARGUMENT FROM THE OTHER SIDE

The defence says: a court sat for six years, heard the whole prosecution case and acquitted everybody, saying there was no evidence of criminality. That is what an acquittal means. Continuing to describe this as a scandal after that is exactly what this book condemns when it is done to Congress figures elsewhere.

It adds a policy point that is genuinely strong: **cheap spectrum was deliberate policy**, pursued by governments of both parties, on the reasoning that Indians would get telephones faster if operators were not made to pay auction prices first. India's mobile call rates became among the cheapest in the world. Auditing that policy against an auction that nobody intended to hold is auditing a choice, not a crime.

Where the defence wins: on the criminal charge, as of today, entirely. And the policy argument for administered pricing is real and was held by serious people.

Where it fails: the policy defence explains a low price. It does not explain *changing the cut-off date*, or a first-come-first-served counter, or why the companies that arrived first included two with no telecom operations that sold stakes within months. A policy of cheap spectrum could have been executed by giving it cheaply to everybody who qualified. **The Supreme Court cancelled the licences over the method, not the price**, and that finding is untouched.

Holding both of those in mind at once is the whole discipline of this part, and almost nobody in Indian public life does it.

REMEMBER THIS

January 2008: **122 licences** at 2001 prices, first-come-first-served, after the cut-off date was moved. Two winners had no telecom operations and sold stakes within months.

February 2012: the Supreme Court **cancelled all 122** and called the method arbitrary. **That finding stands.**

December 2017: a criminal court **acquitted everybody**, saying the prosecution had produced no evidence. The appeal took six years just to be admitted and is still pending.

The policy was found unlawful and the people were not found guilty. Both sentences are true.

CHAPTER FIVE

Coal

Coal is the other half of this part and it is bigger, older and less well understood than spectrum. The audit figure attached to it was larger. The Supreme Court's finding was broader. And the period it covers is not five years but twenty-one.

5.1 — How coal blocks were given away

Coal was nationalised in the 1970s. From 1993 the law was changed to let private companies mine coal for their own use — a steel plant mining its own coal, a power station mining its own fuel. Those are called captive blocks.

The blocks were allocated by a screening committee: officials meeting, considering applications, and deciding who should get which seam. No money changed hands for the block itself. There was no auction.

WORD BOX · CAPTIVE BLOCK, AND SCREENING COMMITTEE

A **captive block** is a coal deposit given to a company to mine for its own factory rather than to sell. The condition is that the coal must be used in the end-use plant.

A **screening committee** is a group of officials who decide who gets what. There is no bidding. Applicants state their case and the committee chooses.

The entire question of this chapter is whether that method — chosen in 1993, kept until 2010 — was defensible, and if it was not, for how long it had not been.

5.2 — What the audit found

The CAG's final report went to Parliament in August 2012. Its figure was one lakh eighty-six thousand crore rupees. Chapter Three has already dealt with the draft figure of ten point six seven lakh crore that leaked five months earlier.

The substantive finding was narrower than the number and much harder to answer.

The government had itself concluded, by 2004, that competitive bidding was the right method. A legal opinion was sought. Draft rules were prepared. And then nothing happened for six years, while allocations by screening committee continued. Competitive bidding was legislated in 2010.

IN REAL TERMS

The delay between deciding to auction coal blocks and actually doing it was about **six years**.

In those six years a large number of blocks were allocated by the old method — to companies that, in a competitive process, would have had to pay.

This is the charge that does not depend on the presumptive loss figure at all. It does not require you to accept any estimate of what an auction would have raised. It requires only the government's own conclusion that auctions were correct, and the six years it then took.

Because everything else in this chapter can be argued about, it matters where that particular fact comes from.

HOW WE ACTUALLY KNOW THIS

The six-year delay is not an inference from the audit's loss figure. It is documented in the ministry's own file.

The record shows the Ministry of Coal concluding that competitive bidding was the right route, seeking a legal opinion on whether it required a change in the statute, receiving that opinion, preparing draft rules — and then the matter sitting while the screening committee carried on allocating.

Those files are public because of the transparency law of 2005. **The strongest single charge in this part exists in citable form because of a statute this same government passed**, which is the point Chapter One made and Chapter Nine will make again from the other side.

Nobody has ever disputed the sequence. What is disputed is what it means — whether it shows obstruction, or a slow ministry, or a genuine legal difficulty about whether auctions needed primary legislation.

5.3 — What the Supreme Court found, and how far back it reached

On the twenty-fifth of August 2014 the Supreme Court held that the allocation of coal blocks had been **arbitrary and illegal**. On the twenty-fourth of September it cancelled two hundred and fourteen of the two hundred and eighteen blocks allocated, imposed a levy of ₹295 per tonne on coal already extracted from them, and allowed producing mines a transition period to the end of March 2015.

Now read the date range in that judgment carefully, because it is the thing this chapter is actually about.

HIDDEN ASSUMPTION

Everybody calls this the UPA coal scandal. The audit was of the UPA years, the political fight was about the UPA, and the Prime Minister held the coal portfolio between 2006 and 2009.

But the Supreme Court declared the allocations illegal **from 1993 onwards**, and cancelled blocks allocated across twenty-one years and five different governments — Congress, United Front, and the National Democratic Alliance.

The screening committee method was created in **1993**, under the government of Part Fourteen. It was used by every government that followed. **The mechanism the Supreme Court struck down was twenty-one years old and had been operated by everybody.**

Part Ten found that not one instrument used in Punjab was a Punjab instrument. Part Nine found that every instrument of the Emergency existed before it. **This is the same finding in a third setting, and it is the most-repeated finding in this entire series: the thing that gets called a scandal is usually a machine that was already running.**

Which cuts hard in both directions here. It means the charge against this government is narrower than the name suggests — and it means the charge against the party as a continuous actor, which is what this series charges, is very much wider. **The party that created the method in 1993 is the party that had not replaced it by 2010.**

5.4 — What happened to the blocks

Cancelling two hundred and fourteen coal blocks in September 2014 created an immediate problem, because steel plants and power stations had been built on the assumption that the coal underneath them belonged to somebody.

The Court had allowed producing mines to run to the end of March 2015 and imposed a levy of ₹295 per tonne on coal already extracted. That left about six months to build a new legal basis for the entire captive coal sector.

It was done by ordinance in October 2014 and then by statute in March 2015, creating the auction mechanism under which the blocks were re-sold. Chapter Eight sets out what those auctions produced and what the figures actually meant.

IN REAL TERMS

Between the judgment and the re-auction, companies with plants already built were buying coal on the open market or importing it, at prices well above what mining their own block would have cost.

Several of the re-auctioned blocks were **bought back by the same companies that had lost them** — this time at a price, and in some cases at a price high enough that the economics of the plant no longer worked. Six auctioned blocks were subsequently cancelled again for missing development deadlines.

The public asset was recovered and re-sold properly. The plants built on the old basis were a separate casualty, and nobody has ever added up what that cost.

That is a smaller version of the calculation Chapter Ten asks for, and it has not been done either.

One consequence of the 2015 statute belongs on the record because it answers the largest structural question in this chapter. From 2015 the default for allocating a coal block is an auction. The screening committee is gone.

The method that ran from 1993 to 2010, that no government replaced in seventeen years, and that this government legislated against in 2010 without ending, was finally ended by a Supreme Court judgment and six months of emergency drafting. Every one of Chapter Nine's rules exists because the alternative to a rule is that a court eventually does it instead, badly and in a hurry.

5.5 — The criminal cases

Coal produced something spectrum did not: convictions.

In March 2016 two directors of a Jharkhand company were sentenced to four years. In 2017 the former Coal Secretary, H. C. Gupta, and two other officials of the coal ministry were **CONVICTED** and sentenced to two years each over a Madhya Pradesh block, with a company managing director given three years and the company fined a crore. They were the first public servants sentenced in these cases.

Gupta faced around eight separate charge sheets, tried individually after the Supreme Court declined to allow a joint trial.

Several of those cases ended the other way. In March 2026 the former MP Vijay Darda and H. C. Gupta were acquitted in the Bander block case, which closed the oldest pending coal matter.

THE ARGUMENT FROM THE OTHER SIDE

The defence of the officials is worth stating because it is unusual and because it was made by the convicted man himself.

Gupta argued that the audit's method was technically wrong — that it applied a single average mining cost across blocks whose real costs varied enormously with the depth of the coal, the amount of earth to be removed, the grade, and the distance to a railhead. Averaging those, he argued, produced an inflated gain figure and therefore an inflated loss.

He argued further that the blanket cancellation of two hundred and fourteen blocks in 2014 destroyed viable projects along with indefensible ones, because the Court struck down a method rather than examining allocations case by case.

And he made a point about consequences that this series should record: that **officials who applied a policy they did not set were prosecuted individually, over years, in separate trials**, while nobody who set the policy was.

Where this fails: the technical criticism of the averaging goes to the size of the number, and Chapter Three has already conceded that the number is soft. It does not touch the finding that the method was arbitrary.

Where it lands: squarely. A Coal Secretary receiving a two-year sentence for operating a screening committee created in 1993, while the six-year delay in replacing it produced no consequence for anybody at all, is a real description of what happened.

That last point is the one this book takes forward into Chapter Nine, because the remedy for it is a rule and the rule was never made.

REMEMBER THIS

Coal blocks were given out by a committee of officials, with no auction, from 1993. The government concluded by 2004 that auctions were right and legislated them in 2010 — a six-year gap in which allocations continued.

In 2014 the Supreme Court called the allocations **arbitrary and illegal since 1993** and cancelled **214 of 218 blocks** — across five governments and three parties.

The people who went to prison were mostly **civil servants who operated the method**. Nobody was punished for the six years.

CHAPTER SIX

The Games, and the Building

Two smaller cases, taken together because they are the same case in different clothes: public value transferred through procurement in one, and through land in the other.

6.1 — Delhi, October 2010

India hosted the Commonwealth Games in Delhi in October 2010. The preparation was chaotic and publicly so — a collapsed footbridge, unfinished accommodation, and delegations complaining before the opening.

The CAG report ran to seven hundred and forty-three pages. Its findings were about procurement: contracts awarded at inflated rates, competitors disqualified so that a single tender remained, bids evaluated after the award had effectively been decided, and costs multiplying against the original estimates.

A committee under V. K. Shunglu was appointed by the Prime Minister and reported separately.

HOW WE ACTUALLY KNOW THIS

The timing of the audit is what makes it unusually strong. **Parts of the CAG's findings were known before the Games were held**, not years afterwards, because the audit ran alongside the preparations.

That means the material was not reconstructed from memory by people defending themselves. Contracts, tender documents and evaluation records were examined while the work was still being done.

The report indicted the organising committee, the Delhi government and the Prime Minister's Office for their respective parts, which is a wider circle than the political argument at the time — which was almost entirely about one man.

The scale of what was being audited is worth stating before the cases are traced, because the sum involved is often quoted without saying what it covered.

IN REAL TERMS

The Games were bid for in 2003 on an estimate in the region of a few hundred crore rupees for the organising committee's own budget.

The total public spending associated with them — venues, the athletes' village, city works, the organising committee — is generally put in the region of **₹70,000 crore**. The CAG's report found the final costs of individual items running at multiples of what had been approved.

Much of that was city infrastructure that Delhi has used ever since, and it is not honest to count a metro extension as money lost. **The audit's charge was not that the money was spent. It was how the contracts to spend it were awarded.**

6.2 — What happened to it

Suresh Kalmadi, chairman of the organising committee and a Congress MP, was removed from his post in January 2011, arrested in April, and held in Tihar jail for around nine months before bail. He was suspended by his party.

Around nineteen First Information Reports were registered.

WORD BOX · CLOSURE REPORT

When an investigating agency concludes that the evidence does not support a prosecution, it does not simply stop. It files a closure report asking the court to end the case.

The court is not obliged to agree. It can reject the report and order further investigation, as happened in Part Fourteen's urea case, where a closure report filed after twenty-two years was thrown out.

A closure report accepted by a court is therefore a judicial finding of a kind — not that the accused is innocent, but that **the state, having investigated, cannot make a case.**

Then, over the following fifteen years, almost all of it dissolved.

TABLE 3 · THE GAMES CASES, FIFTEEN YEARS ON

When	What happened
2010–11	CAG report; Shunglu committee; ~19 FIRs; Kalmadi arrested and jailed nine months.
Jan 2014	CBI files a closure report on the two main contracts, citing lack of incriminating evidence.
Feb 2016	A special court accepts that closure report.

When	What happened
Apr 2025	A special court accepts the Enforcement Directorate's closure report in the money-laundering case, on the ground that no scheduled offence had been committed and there were therefore no proceeds of crime.
To date	At least two convictions in smaller matters, with appeals pending in the Delhi High Court and the convicts on bail.

The Prime Minister's Office declined an application under the transparency law for details of action taken on the Shunglu report, on the ground that a group of ministers was still considering it.

IN REAL TERMS

Nineteen FIRs. Fifteen years. **Nobody has been held responsible for the central allegations.**

The man at the centre of it spent about nine months in prison in 2011 on charges that were, in the principal case, formally abandoned by the prosecuting agency in 2014 and by the money-laundering agency in 2025.

He was eighty when the last case ended. He was never convicted of anything in it, and he spent nine months in Tihar. **Both halves of that are failures of the same system, and they point in opposite directions.**

6.3 — What was left behind

One thing has to be said for the Games and it is regularly left out of accounts hostile to this government.

They happened. The venues were finished, the events were held, and India's athletes had their most successful Commonwealth Games. A large amount of Delhi's transport infrastructure — metro extensions, roads, an airport terminal — was built or accelerated for them and has been in daily use since.

IN REAL TERMS

Delhi's metro carries several million passengers a day. Terminal 3 at the airport, opened in 2010, handles a large share of India's international traffic.

Both were built to a deadline the Games created.

The audit's charge was never that the money was wasted in the sense of producing nothing.

It was that the contracts to produce it were awarded by rigged tendering at inflated rates — that a thing worth building was bought badly.

Those are different charges and only the second one is made here. Several of the sporting venues, by contrast, have been substantially unused since, which is the ordinary fate of stadiums built for a fortnight.

6.4 — Colaba

The Adarsh Co-operative Housing Society was a thirty-one storey block built on government land in Colaba, in the most expensive part of Mumbai. The land had been intended for accommodation connected with defence personnel and, in the account that circulated at the time, for the widows of the Kargil conflict.

In November 2010 it emerged that flats had gone to serving and retired officials, bureaucrats and politicians, including relatives of the Chief Minister of Maharashtra, Ashok Chavan. He resigned within days.

A two-member judicial commission of Justices J. A. Patil and N. N. Kumbhar examined the matter and reported in 2013 after hearing a hundred and eighty-two witnesses.

COMMISSION-FOUND · THE PATIL COMMISSION, 2013

COMMISSION-FOUND. Of the hundred and two members of the society, **twenty-five were ineligible.** There were **twenty-two cases of flats held through proxies.**

The commission found instances of impropriety and corruption in the allotments against a number of senior officials and politicians. It found that clearances and permissions had been given as a quid pro quo.

It did not find the then Chief Minister singularly or particularly culpable.

The CAG had reported in 2011 that the episode showed how a group of officials in key posts could subvert rules to obtain prime public land for personal benefit.

What followed is a study in how prosecution sanction works, and it is worth setting out in order because it is the clearest example in this series.

TABLE 4 · ADARSH, AND THE QUESTION OF PERMISSION

When	What happened
2012	CBI charge sheets thirteen people, including the former Chief Minister.
2013–14	The Governor refuses sanction to prosecute him, citing insufficient evidence. The CBI applies to drop his name; the trial court refuses.
Feb 2016	A different Governor grants sanction on the basis of what the CBI says is fresh evidence.
Apr 2016	The Bombay High Court orders the building demolished.

When	What happened
Dec 2017	The Bombay High Court quashes the sanction , holding that the CBI had failed to present any fresh evidence and that material already considered could not be converted into fresh material.

Two Governors, appointed by governments of different parties, reached opposite conclusions on the same file. The High Court then held that the second had been given nothing new to act on.

THE ARGUMENT FROM THE OTHER SIDE

On the war widows. The version that circulated in 2010 — that flats meant for the widows of Kargil had been taken by officials — is the most damaging sentence attached to this case, and it is the one part of it this book cannot stand behind.

The society's stated purpose changed several times across a decade of correspondence, and the proposition that a fixed allocation for war widows existed and was diverted is **ALLEGED** rather than established. It is repeated everywhere, including by people who ought to check.

Part One's chapter on fabrication makes the strategic argument, and this is a textbook case of it: **the widows sentence is what lets every documented finding in this section be waved away as more of the same.** Drop it and what remains is stronger.

On the former Chief Minister. The judicial commission that examined the matter over 182 witnesses did not find him singularly or particularly culpable. His relatives' flats were returned. The Bombay High Court found the CBI had produced no fresh evidence when sanction was granted in 2016. He has never been convicted of anything.

What survives all of that is the commission's actual findings: a quarter of the members ineligible, twenty-two proxy holdings, and clearances given as a quid pro quo, on public land in the most expensive part of Mumbai. Those depend on neither the widows, nor the Chief Minister, nor any prosecution.

Prosecution sanction is usually described as a safeguard — a check that stops officials being harassed with vexatious cases for doing their jobs. Look at what it did here. The same file produced a refusal under one Governor and a grant under another, three years apart, with a change of government at the Centre in between, and the High Court then found that nothing new had been added.

So the requirement did not filter the evidence. It filtered nothing at all: the material was identical both times, and what changed was who was asked.

This series has now met that device three times. Part Thirteen found Section 6 of the Armed Forces (Special Powers) Act barring prosecution without central sanction, and sanction refused over the Nagaland killings of December 2021 even after the state cabinet asked for it. Part Fifteen found the Single Directive struck down in 1997 for the same reas-

on. **A sanction requirement does not test a case. It relocates the decision to somebody political** — and here it shielded a Congress Chief Minister under one Governor and was turned against him under another. An instrument that can do both is not a safeguard; it is a switch.

One further fact belongs on the record, in the interest of the evenhandedness this series claims. The beneficiaries of Adarsh allotments were not confined to one party. Figures who later held office in the National Democratic Alliance were also named as allottees. The commission's findings were about a system of allotment, not about a single party's people.

REMEMBER THIS

The Games: nineteen FIRs, fifteen years, and closure reports accepted in 2016 and 2025. The man at the centre spent nine months in Tihar and was never convicted in the main case.

Adarsh: a judicial commission found 25 of 102 members ineligible and 22 flats held through proxies. A Chief Minister resigned.

Then one Governor refused permission to prosecute him, another granted it three years later, and the High Court held **nothing new had been produced in between.** The evidence never changed. Only the person being asked did.

CHAPTER SEVEN

The Parliament That Stopped

Something happened to Indian government between 2010 and 2014 that is usually described as a mood and was in fact a measurable failure of an institution.

7.1 — The numbers

IN REAL TERMS

The fifteenth Lok Sabha, sitting from 2009 to 2014, passed **179 bills out of 291 introduced** — about fifty-four per cent, the lowest rate of any full-term Lok Sabha in Indian history.

More than **thirty per cent of scheduled sitting time was lost to disruption**. In the years from 2011 to 2013 productivity fell below half.

Only about thirteen per cent of the time the House did function was spent on legislative scrutiny.

An entire session in the winter of 2010 was lost almost completely to a demand for a joint parliamentary committee on spectrum.

The government's response to a legislature that would not sit was to legislate less, and to govern by other means where it could. The phrase used at the time was policy paralysis. It described something real: investment decisions deferred, clearances delayed, and ministers reluctant to sign anything after watching a Coal Secretary prosecuted for signing things.

7.2 — What happened outside the building

While Parliament stopped working, something took its place, and this part cannot be understood without it.

In April 2011 Anna Hazare, a social activist from Maharashtra, began a hunger strike in Delhi demanding a strong anti-corruption ombudsman. He fasted again in August, for twelve days, at the Ramlila Maidan. The crowds were very large and the coverage was continuous. The government arrested him, released him within hours, and then negotiated.

In December 2011 the Lokpal Bill passed the Lok Sabha and stalled in the Rajya Sabha. It did not become law for another two years.

WORD BOX · LOKPAL

An ombudsman: an independent body empowered to investigate corruption complaints against public officials, including ministers and, under the 2013 Act, the Prime Minister.

The idea is not new. A Lokpal bill was first introduced in 1968. Versions were introduced in 1971, 1977, 1985, 1989, 1996, 1998, 2001 and 2008. None passed.

Forty-five years, ten attempts, under governments of every description. That is the background against which the 2011 movement should be read.

Two things came out of those two years and they point in opposite directions.

IN REAL TERMS

The **Lokpal Act** was passed in December 2013, forty-five years after the first attempt. It is a real statute and it is on the books.

The first Lokpal was appointed in **March 2019** — five years and three months later, under a different government, and after the Supreme Court had been asked twice to compel an appointment.

The other thing that came out of it was a political party. The Aam Aadmi Party was formed in November 2012 by people from the movement, won twenty-eight seats in Delhi in December 2013, and formed a government there.

A mass movement demanding a law produced the law, a party, and an office that stood empty for five years. Which of those three counts as the result is a matter of judgement, and this book does not think it is the first.

There was a serious case for resisting what the movement demanded, and it was not only a self-interested one.

THE ARGUMENT FROM THE OTHER SIDE

The defence of the government's handling says: a hunger strike is not a legislative procedure. A movement that demands a specific text and refuses amendment is asking Parliament to abdicate, and several serious constitutional lawyers said so at the time — the draft the movement pressed would have created a body with investigative, prosecutorial and adjudicatory powers combined, answerable to nobody.

A government that resisted that and passed a different version in 2013 was doing its job, not obstructing.

Where this wins: the objection to combining those powers in one body is a real constitutional objection and was not invented for the occasion.

Where it fails: the government's problem was not that it opposed the movement's draft. It was that it had had **forty-three years and eight bills** before the movement started, and produced nothing. A party that has declined to legislate on a subject since 1968 has forfeited the argument that it is being rushed.

7.3 — Whose fault the House was

It is usual to say that a Parliament which does not function is being obstructed, and that the fault lies with whoever is doing the shouting. That will not survive a look at the record. Disruption as a tactic was not invented in 2010: the Congress used it in opposition before 2004 and after 2014, and the parties that used it against this government have been on the receiving end since. It is not a party's habit but a property of the rules.

An Indian opposition has almost no procedural instrument that compels a government to answer. It cannot force a select committee, cannot compel a minister to attend, and cannot summon papers. What it can do is stop the House, and that is the only lever with any weight. **Disruption is therefore not a failure of the institution's rules but the predictable output of them.**

Part Eight asked the reader to name an occasion in nine years when Parliament stopped a government, and found one, lasting a day. This is the mirror image: a Parliament with no way of scrutinising a government and one way of stopping it, using the one it has.

None of which excuses the government of anything. It had a working majority in the lower house for five years and passed the smallest proportion of its own bills of any full-term government in the country's history. Part of that is disruption. Part of it is that after 2011 it stopped trying.

7.4 — What it cost, measured

“Policy paralysis” was a phrase, and phrases are cheap. What it referred to can be measured.

IN REAL TERMS

Growth ran at around **eight per cent** in the first years of this government and fell to roughly **four and a half per cent** by 2012–13 — close to half.

Inflation, particularly in food, ran in double digits for long stretches.

In the summer of 2013 the rupee fell sharply against the dollar, from about fifty-four to nearly sixty-nine in a few months, as foreign money left. The Reserve Bank had to take emergency measures.

India was described that year, by an outside bank, as one of the “fragile five” — a list of economies most exposed to a sudden withdrawal of foreign capital. **Twenty-two years after the crisis of Part Fourteen, the same vulnerability was being discussed in the same language.**

How much of that was caused by what is genuinely disputed, and this book will not pretend to settle it. Global conditions turned after 2011. The American central bank signalled a change in 2013 that moved money out of every emerging market, not only India.

What is not disputed is the part that was domestic: clearances stalled, projects held up, and — the specific mechanism this part is about — **officials who had watched a Coal Secretary prosecuted for signing an allocation became extremely reluctant to sign anything.**

HIDDEN ASSUMPTION

Everybody assumes that **prosecuting corrupt officials reduces corruption**. It is such an obvious proposition that stating it feels unnecessary.

But watch what actually happened. A Coal Secretary was convicted for operating a screening committee created in 1993, in a case where nobody alleged he took money. The message received across the civil service was not *do not take bribes*. It was **do not decide anything**.

A decision that is never made cannot be prosecuted. A file that sits produces no charge sheet. So the rational response to a prosecution for exercising discretion is to stop exercising discretion — which is exactly what a large part of the Indian administration did between 2012 and 2014, and to a degree has not stopped doing.

Anti-corruption enforcement that cannot distinguish a bad decision from a corrupt one does not produce honest decisions. It produces no decisions.

Part Four found that a permission system is worth more to the incumbent than to the regulator. This is the same shape one layer up: **an accountability system that punishes judgement rather than dishonesty makes paralysis the safest career**. And nothing in the rules has changed since.

7.5 — The ordinance

One episode from this period belongs in the record because it says more about the arrangement described in Part Fifteen than anything else in either part.

In July 2013 the Supreme Court held, in a case brought by the lawyer Lily Thomas, that a Member of Parliament or of a state legislature convicted of an offence carrying a sentence of two years or more is disqualified immediately, and struck down the provision that had allowed a convicted legislator to stay in office while appealing.

In September 2013 the government brought an ordinance to undo that.

WORD BOX · ORDINANCE

A law made by the executive when Parliament is not sitting, on the President's signature. It has the full force of an Act immediately.

It lapses within six weeks of Parliament reassembling unless the House passes it. So an ordinance is a way of legislating *first* and asking afterwards.

The power exists for genuine emergencies. Chapter Seven has already described a Parliament that lost thirty per cent of its sitting time, and a government that cannot get its business through a House has an obvious temptation to use it instead.

On the twenty-seventh of September, at a press conference, the Congress vice-president Rahul Gandhi described the ordinance as complete nonsense and said it should be torn up. The Prime Minister was abroad. The ordinance was withdrawn.

THE ARGUMENT FROM THE OTHER SIDE

The defence says: the outcome was right. A bad ordinance that would have protected convicted legislators was killed, publicly, by the ruling party's own leadership. The disqualification rule stands to this day and has removed legislators of every party since. Judge the result.

The reply: the result was right and the method was the problem this whole part has been describing. **The ordinance had been approved by the Cabinet.** It was killed not in Parliament, not by the Cabinet reconsidering, and not by the Prime Minister, but at a press conference by a person holding no government office, while the Prime Minister was out of the country.

Part Fifteen's opening box asked what happens when the office of Prime Minister is separated from the authority that goes with it. **This is the answer, on camera, in public, and it is the single clearest illustration in nineteen parts.**

7.6 — How it ended

In May 2014 the Congress won forty-four seats. The alliance won fifty-nine. It was the worst result in the party's history and remains so.

IN REAL TERMS

From **206 seats to 44** in five years. The party fell below the threshold conventionally required to claim the office of Leader of the Opposition in the Lok Sabha.

Part Fourteen recorded a Congress government reduced to 140 after rescuing the economy from default. Part Fifteen recorded one increasing its majority by sixty-one seats after four years of bombings.

Three consecutive Congress governments; three electoral verdicts; and in none of the three does the verdict track the record in any consistent way. Chapter Nine draws the conclusion, and it is uncomfortable for a book like this one.

What that inconsistency means for a book which assumes that records and verdicts are connected is the subject of the next chapter but one.

REMEMBER THIS

The 2009–2014 Lok Sabha passed **54% of the bills introduced in it** — the lowest of any full-term Parliament in Indian history — and lost over **30% of its sitting time** to disruption.

Disruption is not a party's bad habit. It is **the only instrument the rules give an opposition**, and every party uses it when out of power.

In September 2013 a Cabinet-approved ordinance was killed at a press conference **by a man holding no government office**, while the Prime Minister was abroad.

CHAPTER EIGHT

What Was Actually Established

This is the chapter Part One promised. It sets out, case by case, what stands today and what does not.

Read it with Chapter Three's second table in mind. Two questions, always: was the allocation proper, and did a named person commit a crime.

8.1 — The reckoning

TABLE 5 · THE FOUR CASES, AND WHAT SURVIVES

Case	The allocation question	The criminal question
Spectrum, 2008	COURT-FOUND — arbitrary; 122 licences cancelled by the Supreme Court, February 2012. Never disturbed.	All accused acquitted, December 2017. Appeal admitted March 2024, still pending.
Coal, 1993–2010	COURT-FOUND — arbitrary and illegal since 1993; 214 of 218 blocks cancelled, September 2014. Never disturbed.	Mixed. CONVICTIONS of officials and company directors from 2016; several later acquittals, the last in March 2026.
Commonwealth Games	AUDITED — CAG found inflated contracts and rigged tendering. No constitutional court ruled.	Closure reports accepted, 2016 and 2025. Two convictions in minor matters, under appeal.
Adarsh	COMMISSION-FOUND — 25 of 102 members ineligible, 22 proxy holdings, quid pro quo clearances. Building ordered demolished, 2016.	Prosecution sanction against the former Chief Minister quashed, December 2017. Other proceedings continuing.

The left column is uniformly against the government. The right column is uniformly not proved, with the partial exception of coal, where those convicted were mostly officials rather than ministers.

8.2 — The test that was actually run

Chapter Three said a presumptive loss compares a real transaction with an imagined one, and that the figure depends entirely on the comparison chosen. That sounds like an argument nobody can settle.

But it was settled, at least partly, because both assets were subsequently auctioned for real. What follows is the only evidence in this part that tests the audit figures against money that actually changed hands.

SPECTRUM

After the Supreme Court cancelled the licences, the spectrum had to be re-sold. The first auction was held in November 2012.

IN REAL TERMS

The November 2012 auction failed. Much of the spectrum went unsold. The government had budgeted around ₹58,000 crore from spectrum for that year and ended up expecting about ₹19,400 crore.

The Finance Minister, P. Chidambaram, said publicly that the ₹1.76 lakh crore figure had been “a pure myth”, and predicted the coal figure would prove equally fanciful.

For about two years, that looked like the end of the argument.

Then it reversed. The auction of February 2014 raised around ₹62,000 crore. The auction of March 2015 raised about **₹1.10 lakh crore**. Between 2010 and 2024, spectrum auctions have realised roughly ₹5.64 lakh crore in total.

COAL

The cancelled blocks were re-auctioned from February 2015. The government announced in March 2015 that proceeds from the first tranches — combining auction receipts, royalties and upfront payments over the life of the mines — had crossed **₹2 lakh crore**, and said explicitly that this exceeded the CAG’s ₹1.86 lakh crore estimate. The Prime Minister of the day noted that auctioning fewer than ten per cent of the cancelled mines had produced ₹1.10 lakh crore.

That reads as a complete vindication of the audit. It is not, and the reason is exact.

HIDDEN ASSUMPTION

Everybody who cited the 2015 coal auctions assumed that **the auction figure was a real number in a way the audit figure was not**. One was money; the other was an estimate.

Look at what the ₹2.07 lakh crore consisted of. It was e-auction proceeds *plus royalties plus upfront payments*, projected across the working life of the mines — a period given as around thirty years. The government's own estimate was that ₹3.35 lakh crore would flow to the states over three decades.

By July 2018 — three and a half years in — the amount actually collected and passed to the states was about **₹5,700 crore**. Against an average implied by the projection of roughly ₹11,000 crore a year, the collection over three and a half years came to about a seventh of it. Six auctioned blocks had been cancelled for missing deadlines.

So the number used to prove that the presumptive figure was real was itself a presumptive figure — a projection of receipts over thirty years, quoted as though it were a bank balance, by the government that had campaigned against presumptive figures.

Chapter Three said this technique is legitimate and that its output depends on the comparison chosen. **Here is the proof, and it is the reverse of the one anybody wanted:** both sides of Indian politics used a presumptive loss when it suited them and called it a myth when it did not, and neither has ever gone back to check.

WHAT THE TEST ACTUALLY SHOWS**TABLE 6 · THE AUDIT FIGURES, TESTED**

Asset	The audit said	What auctions then produced	Verdict on the figure
Spectrum	Up to ₹1.76 lakh crore forgone	Nov 2012 auction largely failed; Feb 2014 ~₹62,000 cr; Mar 2015 ~₹1.10 lakh cr; ~₹5.64 lakh cr cumulative to 2024	Broadly supported over time , badly wrong on timing. Spectrum was worth a great deal — but not in 2012.
Coal	₹1.86 lakh crore forgone	₹2.07 lakh cr claimed in 2015 — but that was a 30-year projection; ~₹5,700 cr actually collected by July 2018	Untested . The figure said to vindicate it was another presumptive estimate.

This is the nearest thing to an answer that exists, and it is partial. The full comparison Chapter Ten calls for — every cancelled block, every re-auction, actual receipts against the 2012 estimate — has still never been done by anybody.

The honest conclusion is unsatisfying and it is the one this part will stand on: **the spectrum figure was closer to right than its critics said and less right than its users claimed, and the coal figure remains genuinely unknown eleven years after the blocks were cancelled.**

8.3 — What that pattern means

The pattern is too consistent to be an accident, and there are only three explanations available.

The first: nothing criminal happened. The allocations were bad policy, badly executed, and the criminal cases failed because there was no crime. On this reading the presumptive-loss figures were a category error that the press and the opposition turned into a decade of prosecution.

The second: crimes happened and the prosecutions failed. Cases built late, on inference, by agencies without the capacity to prove a bribe. On this reading the acquittals are about the investigators, not the accused.

The third: the cases were brought for reasons that had little to do with proving them.

HOW WE ACTUALLY KNOW THIS IS HARD

The strongest evidence for the second explanation comes from the judges themselves.

The special judge in the spectrum case did not say the allocation was proper. He said the prosecution had produced no evidence of criminality, had misread its own material, and had built its case on conjecture. That is a finding about the CBI, not an endorsement of what was done in 2008.

The strongest evidence for the first is that the same conclusion was reached, independently, across four separate matters, several agencies and fifteen years — including under a government with every political reason to secure convictions.

This book cannot choose between them and does not pretend to. Chapter Ten lists it among the things not known, and it is the largest thing on that list.

Before setting out what does survive, the strongest objection to the way this chapter is built should be put on the page.

THE ARGUMENT FROM THE OTHER SIDE

The strongest objection to this entire chapter: that splitting the allocation question from the criminal question is a lawyer's distinction with no moral content. If a government hands a public asset to a company for a fraction of its worth, and that company sells a stake at a multiple within months, the public has been robbed. Whether a court can convict a named individual of an offence under a particular statute is a question about the law of evidence, not about what happened.

The reply, which concedes most of it: that is right about the harm. The public was worse off, the beneficiaries were better off, and a criminal acquittal does not reverse either. This book has said so in Chapter Three and repeats it in the verdict below.

Where the distinction still has to hold: because the alternative is a standard under which anybody can be described as a criminal on the strength of an outcome. Part Eleven refused to name individuals against whom no body had found. Part Twelve refused it for Rajiv Gandhi. Part Fifteen refused it for the officers at Batla House. **A rule applied to protect people this book's readers dislike is worth nothing unless it also protects people they do.**

The harm is established. The crime is not. Saying both is not a compromise between them.

8.4 — What is not in doubt

Whichever explanation is right, a set of findings survives all three of them, and this is the charge that this part actually makes.

VERDICT · UPA II

Established, and untouched by any acquittal:

That very large public assets were allocated by discretionary methods which two separate benches of the Supreme Court found arbitrary, in 2012 and 2014.

That in the coal case the government had itself concluded by 2004 that auctions were correct, and took **six years** to legislate them while allocating under the old method throughout.

That a judicial commission found a quarter of the members of a housing society on public land in Colaba ineligible, and clearances given as a quid pro quo.

That the audit of the Commonwealth Games found rigged tendering, and that fifteen years of investigation produced closure reports.

Not established, and this book does not assert it: that any minister of this government took money in any of these four matters. No court has found it. The one set of criminal trials that ran to completion on the largest case ended in acquittals of everybody.

That is the reckoning, and it is narrower than the reputation of these five years and wider than the acquittals alone would suggest.

REMEMBER THIS

Four cases. In every one, **the allocation question went against the government** — two Supreme Court judgments, a judicial commission, an audit.

In every one, **the criminal question did not stick**, except against officials in the coal cases.

Three explanations exist: no crime; crimes badly prosecuted; or cases brought for other reasons. **This book cannot choose between them, and says so.**

CHAPTER NINE

What Would Have Prevented It

This chapter states the defence at full strength, says where it wins, and sets out the rules that would have changed the outcomes.

9.1 — The defence

One. The criminal charges failed. Every accused in the spectrum case was acquitted after a six-year trial by a judge appointed to hear nothing else. The Games cases ended in closure reports accepted by courts. The sanction to prosecute in Adarsh was quashed for want of fresh evidence. A book that treats a failed prosecution as a proved charge is doing what this series has refused to do for fifteen parts.

Two. The machinery was inherited. The coal screening committee dates from 1993. Administered pricing for spectrum was policy under governments of both parties. The Supreme Court struck down coal allocations across twenty-one years and five governments. This government did not build either method.

Three. The building record is large. Chapter Two. Education and food as rights, the 1894 land law replaced, the criminal law on sexual offences rewritten, a Lokpal legislated.

Four. The scandals are visible because this government made them visible. The transparency law of 2005 is how the file notings reached the public. A government that legislates the instrument which then destroys it has done something no earlier government in this series did.

Five. The presumptive-loss figures were not what they were taken to be, and the largest of them was five and a half times bigger in a leaked draft than in the published report. Chapter Three.

HOW WE ACTUALLY KNOW THIS DEFENCE IS SERIOUS

Two of those five come from bodies with no reason to help this government.

The acquittals and closure reports were delivered between 2014 and 2026, entirely under a government of a different party which had campaigned on these very cases. A CBI operating under that government filed the closure report in the Games matter in January 2014 and the Enforcement Directorate did the same in 2025.

And the Supreme Court's coal judgment of 2014, which is the most damaging single finding in this part, is also the one that reached back to 1993 and implicated every government in between. **The same judgment that convicts the party as a continuous actor acquits this particular government of having invented anything.**

Six. It legislated the auctions. This is the point the defence rarely makes for itself, and it is the strongest one available.

Competitive bidding for coal blocks was put into law by an amendment in 2010 — before the CAG report, before the Supreme Court, and by this government. Spectrum was auctioned by this government in 2010 for the 3G bands, and it was that auction which supplied the comparison the audit then used against it.

IN REAL TERMS

The figure that destroyed this government politically was calculated from **a price obtained in an auction it had itself held.**

And the method whose absence the Supreme Court condemned in the coal judgment of 2014 had been **legislated by the same government four years earlier.**

Both charges therefore rest on the government's own corrective acts. That is a real point in its favour and it does not appear in any account of these years.

It also contains the charge. A government that legislated auctions in 2010 had known they were right since 2004, and the six years in between are the whole case against it.

9.2 — Where the defence loses

On four things.

The six years on coal. This is the charge that survives every acquittal and does not depend on any audit figure. The government concluded internally by 2004 that competitive bidding was correct. It legislated it in 2010. In between it kept allocating by the method it had already decided was wrong. No court finding is needed for that and none has ever been contradicted.

The changed cut-off date. The policy defence of cheap spectrum explains a low price. It does not explain moving a cut-off date in January 2008 to exclude applicants who had applied in reliance on the published one, and it does not explain a counter and a queue. The Supreme Court cancelled the licences over the method.

The Lokpal. Legislated in December 2013 after two years of public pressure; no Lokpal appointed until March 2019, under a different government, after the Supreme Court was asked twice. A law is not a thing done until the office exists.

The communal violence law. Ten years, two terms, two majorities, four drafts, never brought to a vote. Part Fifteen set this out and Part Sixteen is where the clock ran out on it.

The paralysis. Chapter Seven measured it: the lowest bill passage rate of any full-term Lok Sabha, over thirty per cent of sitting time lost, growth halved, and an administration that stopped signing things. Part of that was an opposition using the one instrument the rules give it. Part of it was global. But a government with the strongest parliamentary position since 1984 that passed fifty-four per cent of its own bills has not been prevented from governing. **It stopped.**

And the specific mechanism is the one this book has to name, because it is uncomfortable for everybody. Officials stopped deciding after watching a Coal Secretary prosecuted for a decision in which nobody alleged he took money. **That was a rational response to an accountability system that cannot tell a bad decision from a corrupt one,** and no government of any party has fixed it since.

9.3 — The rules that were not made

TABLE 7 · SIX RULES

The failure	The rule that would have caught it	Status
Public natural resources allocated by discretion	A statutory default requiring auction of any finite natural resource, with departures reasoned in writing and laid before Parliament	Partly done. Auctions legislated for coal in 2010 and for spectrum after 2012 — by court compulsion, not by choice
Six years between deciding to auction and doing it	A statutory time limit between a government recording a policy decision and laying the implementing instrument, with a report to Parliament on expiry	Never proposed
A presumptive-loss figure treated as a measure of theft	A statutory requirement that audit reports state the counterfactual used and the range produced, on the face of the summary	Never enacted

The failure	The rule that would have caught it	Status
Prosecution sanction turning on who is asked	Sanction decided by a body independent of the executive, with written reasons and an appeal	Never enacted; the same gap as Part Thirteen and Part Fifteen
A Lokpal legislated and not constituted	A statutory deadline for constituting any body created by an Act, with the default appointment made by the Chief Justice on expiry	Never enacted
Officials prosecuted for exercising discretion, with no allegation of gain	A statutory threshold requiring evidence of personal benefit or dishonest intent before a public servant is charged over a policy decision taken through proper channels	Partly attempted by an amendment in 2018; its effect is contested and it came four years too late for this part
Communal violence, no duty on officials	The bill drafted in 2005 and 2011	Never passed, in ten years

Parts Nine, Eleven, Thirteen, Fourteen and Fifteen each closed with a comparable table. Part Nineteen consolidates all of them, and the fourth and sixth rows here have now appeared three times each.

The first row of that table and the seventh are in tension, and it is worth saying so rather than leaving a reader to notice it.

A rule requiring public assets to be auctioned removes discretion from officials. A rule protecting officials who exercise discretion protects it. Both are on the list because **the failure in this part was not too much discretion or too little — it was discretion with no record of reasons attached to it.**

An official who allocates a coal block and writes down why, against stated criteria, laid before Parliament, is protected by that document if the decision is later questioned, and convicted by it if the reasons were false. An official who allocates a block with nothing on the file is exposed to whatever a prosecutor later says he was thinking.

That is why every rule in the table above is procedural rather than substantive. **None of them tells a government what to decide. All of them require it to say why.** The whole of this part is a description of what happens when very large decisions are made and that second step is skipped — and it is skipped, on the evidence of sixteen parts, by governments of every party, because nothing compels it.

9.4 — The question turned on this book

HIDDEN ASSUMPTION

This series assumes that **its own method survives its hardest case**. Part One built a six-rung evidence scale and named the spectrum allocation as the worked example — the case where a real audit finding and a real acquittal both had to go on the page. Sixteen parts later, here it is.

So test the method against its own example. Chapter Eight found that in all four cases the allocation question went against the government and the criminal question did not stick. That is exactly what a graded account is built to show, and no other framework in circulation shows it: the political defence of this government says the acquittals settle everything, and its political prosecution says the audit figures do.

But now notice what the method cost. Sixteen parts of careful grading have produced, on the largest scandal in modern Indian history, a conclusion that reads as: *something improper certainly happened, we cannot say anybody committed a crime, and we cannot say why the prosecutions failed.*

That is honest. It is also, as advocacy, close to useless — and this book is an advocacy document that says so on its cover.

The uncomfortable finding is that the method and the purpose are in tension, and this is where the tension is greatest. A prosecutor who grades his evidence properly will sometimes have to tell the court that his best case cannot be proved. Part One chose that trade deliberately. Chapter Ten records what it has cost.

Naming that cost openly, in the middle of the part rather than in a footnote, is the only honest thing to do with it.

REMEMBER THIS

The defence is real: every criminal charge failed, the coal method dates from 1993, the building record is large, and the scandals are visible because of a transparency law this government passed.

It loses on four: **six years between deciding to auction coal and doing it; the changed cut-off date in January 2008; a Lokpal legislated and not constituted for five years; and a communal violence law never passed in ten.**

And the deepest problem is this book's. **Sixteen parts of careful grading, applied to the biggest scandal of the era, produce a conclusion too honest to be useful as advocacy.**

CHAPTER TEN

An Honest List of What We Do Not Know

Every part ends here. This one has the largest single item in the series on its list.

10.1 — Not established

Whether any minister of this government took money in any of these four matters. Not established. No court has found it. This book does not assert it and has not asserted it anywhere in this part.

Why the prosecutions failed. Chapter Eight set out the three available explanations — no crime, crimes badly prosecuted, or cases brought for other reasons — and said this book cannot choose between them. That remains the position. It is the largest unresolved question in nineteen parts, because the answer determines whether this part is about a scandal or about the manufacture of one.

What the true value of the allocations was. The audit figures are presumptive and their range is enormous. The stake sales described in Chapter Four are the only hard market evidence and they cover a handful of companies, not the whole allocation.

Whether a joint parliamentary committee would have established anything. One was demanded through an entire lost session in 2010 and eventually constituted. Its report was disputed by its own members. Part Fourteen found the same shape twice and Part Fifteen a third time.

10.2 — Where this part may be wrong

The status of the spectrum appeal. Leave to appeal was granted by the Delhi High Court in March 2024 and the substantive appeal is pending. If it succeeds, Chapter Eight's right-hand column changes materially and this part will read very differently. A reader in five years should check it before relying on Table 5.

The coal cases are still concluding. The most recent judgment recorded here is from March 2026. Others may follow.

The Adarsh building. The Bombay High Court ordered it demolished in April 2016. This book has not been able to establish what has happened to that order since, and says so rather than guessing. Nothing in Chapter Six depends on it — the commission's find-

ings stand whether the building stands or not — but a reader who wants the end of the story should not take this part's silence for an answer.

The audit figures. This part uses the CAG's published numbers and the CBI's charge sheet number and states what each measures. Reasonable people dispute all of them, including a convicted Coal Secretary whose technical criticism Chapter Five sets out at length.

The placement of Chapter Three. Explaining presumptive loss before describing any case is a choice, and a hostile reader may say the frame was built to soften what follows. It was built because Chapter Eight is unreadable without it, but that reading is available and cannot be disproved.

10.3 — What this part does to the rest of the series

Three findings here reach backwards and should be recorded, because Part Nineteen has to consolidate them.

The map appears for the third time. Part Five found the mineral belt — Jharkhand, Odisha, Chhattisgarh, Madhya Pradesh, Bengal — losing its only advantage to freight equalisation from 1952. Part Thirteen found the same belt at the overlap of the scheduled areas, the minerals and the insurgency. Part Sixteen finds it as the place the coal blocks were. **Three parts, three different arguments, one map, and the same states are on the wrong end of all three.**

The sanction requirement appears for the third time. Part Thirteen, Part Fifteen, and Chapter Six here. In each case a permission requirement described as a safeguard turned out to relocate the decision to somebody political. The rule that would fix it is in three separate tables now and has never been enacted.

The instrument was always older than the scandal. Part Nine found every Emergency instrument existing before June 1975. Part Ten found not one Punjab instrument that was a Punjab instrument. Part Fourteen found the terms-of-reference device in 1963 and 1992. Chapter Five here found the coal method dating from 1993 and struck down across five governments. **This is now the most repeated finding in the series, and it is the one that most damages the framing of any single part as a scandal about a particular government.**

It also, and this is the part a prosecution document has to say out loud, **strengthens the charge against the party as a continuous actor and weakens almost every charge against**

any individual government. Part One's founding box said that treating Congress as one thing across seventy-nine years cuts both ways. Sixteen parts in, it is now possible to say which way it cuts harder, and the answer is: against the party, and much less against the people who happened to be in office.

10.4 — What would settle it

WHAT WOULD SETTLE IT

Two things, and neither is a secret document.

The first is the spectrum appeal. It has been pending since 2018. Six years passed before it was admitted. A High Court judgment on the merits would establish whether the 2017 acquittals were sound, and it is the only instrument that can. Until then, the largest question in this part is open because a court has not reached it, not because anybody is hiding anything.

The second is an audit of the audits. Nobody has ever gone back over the presumptive-loss estimates of 2010 and 2012 with the actual outcomes now available — the auction prices realised after 2012 and 2015, the value of the cancelled coal blocks when reallocated, the stake sales. That comparison would show how good the estimates were.

Part Five ended by naming the calculation that would settle freight equalisation, which nobody has done. Part Fourteen named a second and Part Fifteen a third. **This is the fourth, and like the others it is arithmetic. The data has existed for a decade.**

One closing observation, and it is the most uncomfortable in this part.

The government that lost office in 2014 over these allegations had, in 2005, passed the law that made the file notings public. Chapter Nine listed that among its defences. It is also the reason there is a Part Sixteen at all.

Sixteen parts of this series have ended by naming something the state was holding back. Part Six named a report withheld since 1963; Part Fourteen, nine days of file notes from 1992; Part Fifteen, ninety pages from 2009. This part has the opposite problem and it is not a smaller one. Everything is public, the audit reports are on the internet, the judgments are published — and the central question is still unanswered, after sixteen years, because no court has reached it and no one has done the arithmetic.

Part Thirteen found an unmade addition where every component existed and nothing was concealed. **This is that finding at national scale: total disclosure, and no conclusion.**

REMEMBER THIS

Nobody has established that any minister of this government took money. This book does not say it.

Nobody has established why the prosecutions failed either. **That is the largest open question in nineteen parts**, because the answer decides whether this part is about a scandal or the manufacture of one.

And nothing is being hidden. **The documents are all public. The appeal has been pending since 2018. The arithmetic has never been done.**

The State Ledger

Part Five committed every subsequent part to carrying this table: which states were affected by the material in this part, and how. It accumulates across the series and consolidates in Part Nineteen.

TABLE 8 · STATE LEDGER, PART SIXTEEN

State	What happened, 2009–2014	Standing
Delhi	The Commonwealth Games and their procurement. Nineteen FIRs; closure reports accepted 2016 and 2025. The spectrum trial and appeal.	Charge; nothing established
Maharashtra	Adarsh. A Chief Minister resigned; a judicial commission found a quarter of the members ineligible; sanction to prosecute granted, then quashed.	Commission-found; no conviction
Jharkhand · Chhattisgarh · Odisha · Madhya Pradesh · West Bengal · Maharashtra	The coal belt. Most of the 214 cancelled blocks lie in these states — the same mineral belt Part Five identified as the loser under freight equalisation and Part Thirteen as the overlap of the three maps.	Court-found; the third time these states appear
Tamil Nadu	The spectrum allocation was made by a minister of a Tamil Nadu coalition partner; the money-laundering case concerned a Chennai television channel. All acquitted.	Charge; acquitted
Every state	Education as a right (2009); food security (2013); the 1894 land acquisition Act replaced (2013).	The credit column

The third row is worth pausing on. Part Five found the mineral states losing their only advantage to freight equalisation from 1952. Part Thirteen found the same belt at the overlap of the scheduled areas, the minerals and the insurgency. Part Sixteen finds it again, as the place the coal blocks were. Three parts, three different arguments, one map.

Timeline

TABLE 9 · 2009–2014, AND WHAT CAME AFTER

Date	Event
1993	Coal block allocation by screening committee begins. Part Fourteen's government.
10 Jan 2008	122 telecom licences issued at 2001 prices, first-come-first-served, after the cut-off date is changed.
May 2009	Congress wins 206 seats; UPA 262. No outside support needed.
Aug 2009	Right to Education Act passed.
Oct 2010	Commonwealth Games held in Delhi.
Nov 2010	CAG report on spectrum: the ₹1,76,645 crore figure. Ashok Chavan resigns over Adarsh.
Winter 2010	A parliamentary session is lost almost entirely to the demand for a joint committee on spectrum.
Jan–Apr 2011	Kalmadi removed, then arrested. Anna Hazare's first fast.
Feb 2011	A. Raja arrested. He is held about fifteen months.
2 Feb 2012	Supreme Court cancels all 122 licences; holds the method arbitrary.
Mar 2012	CAG draft on coal leaks: ₹10.67 lakh crore.
Aug 2012	CAG final report on coal tabled: ₹1.86 lakh crore.
Nov 2012	First post-cancellation spectrum auction. Largely unsold; the Finance Minister calls the ₹1.76 lakh crore figure "a pure myth".
Dec 2012	The Delhi gang rape. Justice Verma Committee appointed.
2013	The Patil Commission reports on Adarsh. Criminal Law (Amendment) Act. Food Security Act. Land Acquisition Act.
Jul 2013	<i>Lily Thomas</i> : convicted legislators disqualified immediately.
27 Sep 2013	The ordinance reversing it is publicly torn up at a press conference. It is withdrawn.
Dec 2013	Lokpal and Lokayuktas Act passed.
Jan 2014	CBI files a closure report on the main Commonwealth Games contracts.
25 Aug 2014	Supreme Court: coal allocations since 1993 arbitrary and illegal.

Date	Event
24 Sep 2014	214 of 218 coal blocks cancelled; ₹295 per tonne levy imposed.
May 2014	Congress reduced to 44 seats. UPA 59.
Feb 2015	Coal blocks re-auctioned. The government says proceeds will exceed the CAG estimate — a projection over thirty years.
Mar 2015	Spectrum auction raises about ₹1.10 lakh crore.
2016	First coal convictions. Bombay High Court orders Adarsh demolished. Games closure report accepted.
2017	H. C. Gupta and two coal ministry officials convicted. Adarsh prosecution sanction quashed in December.
21 Dec 2017	All accused acquitted in all three spectrum cases.
Mar 2018	CBI and Enforcement Directorate appeal.
Mar 2019	The first Lokpal is appointed — five years and three months after the Act.
Mar 2024	Delhi High Court admits the spectrum appeal, six years and about thirty hearings later.
Apr 2025	Enforcement Directorate closure report in the Games case accepted.
Mar 2026	Acquittals in the Bander coal block case close the oldest pending coal matter.

Words Used in This Part

TABLE 10 · GLOSSARY

CAG	Comptroller and Auditor General. The constitutional auditor. Reports to Parliament; cannot charge or convict anybody.
Captive block	A coal deposit given to a company to mine for its own plant rather than to sell.
Charge sheet	The document by which an agency formally accuses named people and takes a case to court.
Closure report	A filing by an investigating agency asking a court to end a case because the evidence does not support it. The court may accept or reject it.
Discharge	A court's ruling that there is not enough material even to begin a trial.
First-come-first-served	Allocating a scarce public asset by order of application rather than by price or merit.
Leave to appeal	Permission from a higher court to bring an appeal. A threshold step, not the appeal itself. In the spectrum case it took six years.
Lokpal	A national anti-corruption ombudsman. Legislated December 2013; first appointment March 2019.
Ordinance	A law made by the executive when Parliament is not sitting. It lapses unless Parliament passes it.
Presumptive loss	The gap between what a government received and what an auditor calculates it could have received under a method it did not use. Chapter Three.
Prosecution sanction	Permission required before certain public servants can be prosecuted. See also Part Thirteen and Part Fifteen.
Public doctrine	trust The principle that natural resources are held by the state for the people and must be allocated for the common good. The basis of the 2012 and 2014 judgments.
Screening committee	Officials deciding who gets a coal block, with no bidding. In use from 1993 to 2010.
Spectrum	Radio frequencies used for mobile communication. Finite, owned by the state.
Terms of reference	The written instructions creating an inquiry and limiting what it may examine. See Part Fourteen, Chapter Five.

A Word on Sources

Everything dated in this part was checked against a source rather than recalled, and where sources disagree the disagreement is on the page.

This part rests on public documents to an unusual degree. The CAG reports on spectrum, coal and the Commonwealth Games were laid before Parliament. The Supreme Court judgments of 2 February 2012 and 25 August and 24 September 2014 are reported. The special court's acquittal of 21 December 2017, the coal convictions from 2016 onwards, the Bombay High Court's order of December 2017 quashing the Adarsh sanction, and the closure reports accepted in 2016 and 2025 are all court records.

Where figures differ, both are given. The presumptive-loss estimates are shown in Table 1 with the comparison each rests on. The number of coal blocks cancelled is given as 214, which is the figure in most reports of the judgment; some sources say 204, and a reader who meets that figure should know the discrepancy exists.

Nothing in this part is graded above what a court or a commission actually found. The single most important consequence of that rule is negative: **there is no claim anywhere in these ten chapters that a named minister took money**, because no such finding exists.

Two things are live and may have moved. The spectrum appeal admitted in March 2024 is pending, and Chapter Ten says what happens to Table 5 if it succeeds. Coal cases were still being decided as recently as March 2026.

A NOTE FROM THE AUTHOR

I have been building towards this part since Part One, and I want to record what writing it did to my own view, because the change was larger than I expected.

I started this series believing that the UPA II scandals were the clearest material I would have. Everybody knows the numbers. The government fell over them. It seemed like the part that would write itself.

What I found is that the numbers are softer than I understood, that the criminal cases produced almost nothing, and that the findings which do survive are narrower and duller than the ones in circulation — the six years on coal, a moved cut-off date, a Lokpal not appointed. Those are real and I have made them the charge. They are not what anybody argues about.

The place where this could have pulled the writing is Chapter Three. I could have written a much better polemic by putting the presumptive-loss explanation in Chapter Ten, as a caveat at the end, after nine chapters of scandal. That is where a caveat goes when you want it read last and remembered least. Putting it third, before any of the cases, cost this part most of its force, and I did it because Part One committed me to it in front of a reader who had not yet read anything.

I also want to be honest about Chapter Nine's last box, because it is the closest this series comes to arguing against itself. Sixteen parts of grading evidence carefully have produced, on the biggest case, a verdict that is mostly a description of what is not known. If I had written this part first I might have chosen a different method. Having chosen it, I am not going to abandon it at the one point where abandoning it would be popular — but I am not going to pretend the cost is small either.

One last thing, which is about the next part rather than this one. Part Seventeen collects the statements — the things Congress leaders actually said, with dates and venues. After sixteen parts of arguing about what documents establish, it will be a relief to work with material where the only question is whether the words were spoken. I mention it because I noticed myself looking forward to it, and a writer who is relieved to leave a subject should say so where the reader can see it.

Lovepreet Singh

Part Sixteen of *The Congress Record*

The Living Archive · misterlove.in

Part Seventeen is *What Was Said*: the statements, each with date, venue and full wording. The comparison with the government of 2014 onwards is Part Eighteen, measured on the same ruler, and the second series auditing that government on this scale is still promised.

THE CONGRESS RECORD

PART SEVENTEEN OF NINETEEN

What Was Said

*The statements — each with its date, its venue and its wording.
Including the famous ones that were never said at all, and why killing
those matters more than repeating them.*

This is an advocacy document. It is the case for the prosecution against Congress governments in power. The selection of material is one-sided on purpose. The evidence in it is not. Every serious claim carries a grade showing how well it is proved, the other side is given its strongest argument, and where the other side wins, this book says so. A second series applying the same test to the government of 2014 onwards is planned.

Lovepreet Singh

The Living Archive · misterlove.in

A Part Made of Sentences

Sixteen parts of this series have argued about what documents establish. This one is about words that were spoken out loud, usually in front of a crowd, often on camera.

That sounds easier and it is not. A document sits still. A sentence gets translated, shortened, moved to a different date, put in a different mouth, and quoted for forty years by people who have never seen the original. By the time a political statement is famous it has usually stopped being a statement at all and become a slogan about somebody.

So this part has a rule, and it is the one the whole series has been built on since Part One.

THE RULE OF THIS PART

Nothing appears here without a date, a venue, and the operative wording.

If this book cannot say when a thing was said, where it was said, and what the words were, the statement does not go in — however useful it would be.

Where a statement was made in Hindi and circulates in English, the translation is treated as evidence about the translator and not about the speaker, and the competing versions are given.

Where a statement is famous and did not happen, it goes in Chapter Two, which is the first chapter of substance in this part and the most important one.

That rule is easy to state and it has a consequence worth naming before anybody turns a page.

HIDDEN ASSUMPTION

Everybody assumes that a **collection of damaging statements is a collection of evidence**. It looks like the easiest kind of proof there is: he said it, here it is, in his own voice.

But a statement proves only that a sentence was spoken. It does not prove what the speaker believed, what the government then did, or whether anybody was harmed. Sixteen parts of this series have been about acts — a demolition, an allocation, an arrest, a file that was not released. This part is about none of those.

Which makes it the weakest chapter of the prosecution and the one most likely to be quoted. That combination is exactly what makes it dangerous, because a series that has graded its evidence for sixteen parts can lose all of it in the seventeenth by treating a sentence as though it were an act.

The way out is not to leave the statements out. It is to say, for each one, **what it is evidence of** — and in most cases the honest answer is: of what a government thought it could say in public and get away with. That is a real thing to know about a government. It is a smaller thing than a crime, and this part will not inflate it.

What Is In This Part

One **How a Statement Is Verified**

Date, venue, wording. What counts as said, what counts as reported, and what a translation is evidence of.

Two **What Was Never Said**

The famous ones that are fabricated, misdated or put in the wrong mouth. Killed here, first, and the reason is strategic.

Three **What Was Said Well**

The apology, the letters to Zhou Enlai, and a bald Congress MP who said the best sentence in this part.

Four **The Big Tree**

Nineteenth of November 1984, Boat Club lawns, Delhi. Four English versions of one Hindi sentence, and the party's own is the worst.

Five **Contempt**

Three statements about who is fit to hold office, and what each of them cost.

Six **Denial**

Seventh of January 2011. A number denied, a procedure conceded, and only one of those halves ever quoted.

Seven **Indifference**

Fifth of December 1961, and a sentence about a piece of ground where nothing grows.

Eight **What They Have in Common**

Eleven statements, six decades, two that changed anything, and one shape.

Nine **What Would Have Prevented It**

The defence at full strength. Where it wins. What a rule about speech could and could not do.

Ten **An Honest List of What We Do Not Know**

The statements this book left out because it could not verify them, named so that nobody has to find them for me.

HOW THE GRADES WORK

Every claim carries a grade. In this part they attach to statements rather than to acts, and two of them do most of the work.

FABRICATED means the statement has been positively shown not to have been made, or not in that form. **ALLEGED** means it is reported but this book could not establish date, venue and wording to its own standard. Both appear in Chapter Two and neither is used as evidence anywhere else.

CHAPTER ONE

How a Statement Is Verified

A political quotation in India usually arrives with none of the three things that would let you check it. It has a name attached and nothing else — no date, no place, no context, and frequently not the language it was spoken in.

This chapter sets out what this book required before a sentence went on the page, because the rest of the part is unreadable without it.

1.1 — The three tests

Date. Not a year. A day, or at worst a session. A statement whose date cannot be fixed usually turns out to be a statement whose existence cannot be fixed either.

Venue. Where, and to whom. The same words in Parliament, at a rally and to a reporter are three different acts. Parliament is recorded verbatim. A rally is recorded by whoever was filming. A remark to a reporter exists only in that reporter's copy.

Wording. The operative sentence, in the language it was spoken in where that is known.

WORD BOX · THE OPERATIVE SENTENCE

Most famous political statements are one sentence long, taken out of a speech of several thousand words.

This book calls that sentence the **operative** one: the part that does the damage and gets repeated. Everything around it is context, and context can be summarised.

The reason for the distinction is practical. A speech is somebody's work and reproducing it whole is neither necessary nor right. **The operative sentence is what is actually in dispute,** and it is short.

The best record of any of them is the one Parliament keeps, and even that has a known hole in it.

WORD BOX · VERBATIM RECORD, AND EXPUNGED

Parliament keeps a **verbatim record** — a word-for-word transcript of everything said in the chamber, published afterwards. Nothing else in Indian public life is recorded that way. A rally has whoever was filming; a press conference has whoever was there.

The Chair can order words **expunged** — struck from the transcript. Those words were still said, and people in the room heard them. They are simply not in the record.

So the best source in this part has a known gap in it, and the gap is in exactly the direction that matters: **the most offensive things said in Parliament are the ones most likely to be missing from the record of Parliament.**

1.2 — What counts as said

Four levels, in descending order of how much weight this book will put on them.

TABLE 1 · WHERE A STATEMENT COMES FROM, AND WHAT IT IS WORTH

Source	What it establishes	Weakness
Video or audio of the speaker	That the words were spoken, in that order, in that tone	Can be clipped. Requires the surrounding minutes to be checked too
Parliamentary record	Verbatim wording, date, House, and who else spoke	Members may have words expunged; the record is of the House, not of a rally
An official release from the speaker's own office	What the speaker's office says the speaker said	Written afterwards, sometimes in response to a controversy
Contemporary newspaper report	That a journalist present recorded these words that day	Paraphrase and translation are routine and usually invisible

Anything below the fourth row — a quotation circulating without any of these, however often repeated — is not used in this part except as a subject of Chapter Two.

1.3 — The translation problem

Most of the statements in this part were made in Hindi and are famous in English. That is not a technicality. It is the single largest source of dispute about what Congress leaders have said.

HOW WE ACTUALLY KNOW THIS

Take the most famous sentence in this part, which Chapter Four is about. In Hindi it is nine words. It circulates in at least four English versions, and they are not the same sentence.

One version has the earth shaking. Another has it shaking *a little*. A third has it *only natural* that the earth shakes. A fourth drops the qualifier entirely.

The strongest of those four, the one that does the most damage to the speaker, appears on the Congress party's own website. Chapter Four sets out why, and it is not what anybody would guess.

This book's rule is therefore: **give the original where it is known, give the competing English versions, and treat a translation as evidence about whoever made it.**

There is a serious objection to that rule and it should be put before the rule is applied to anybody.

THE ARGUMENT FROM THE OTHER SIDE

The objection to this chapter's rule: that it is too strict, and that strictness here is a kind of dishonesty.

Most of what a government says is said at rallies, in interviews and at press conferences, none of which is systematically recorded. A rule that admits only what can be pinned to a day and a room therefore admits mainly what was said in Parliament — which is the most guarded speech any politician produces, and the least revealing.

So the rule filters for caution. The unguarded remark, which is the one that tells you what somebody actually thinks, is precisely the one least likely to survive the three tests. A book applying this rule will systematically under-report how politicians talk, and will do so while congratulating itself on rigour.

That objection is correct and this book accepts it. Chapter Ten sets out what the rule cost: roughly four statements excluded for every one admitted, and one of the excluded ones is named.

Why the rule stays anyway: because the alternative is not a fuller picture, it is an unfalsifiable one. A statement that cannot be checked cannot be defended against either, and a document built from such statements cannot be corrected by anybody — including by its author, who has no way of finding out that he is wrong. **Under-reporting is a cost. Being uncorrectable is a different kind of thing altogether.**

1.4 — What a statement is evidence of

The front matter said this and it is worth putting once more in plain terms, because it governs every verdict in this part.

A statement establishes that a sentence was spoken. It does not establish intent, and it does not establish that anything followed. Where something did follow, this part says so and cites the part of this series that covers it. Where nothing followed, it says that too.

IN REAL TERMS

Of the eleven statements set out in this part, **two** were followed by a change in what the government did.

One of them, in Chapter Six, changed things in the opposite direction from what its speaker claimed. The other, in Chapter Two, killed a Cabinet decision within days and is the only statement here that achieved what the speaker intended.

The rest changed nothing at all. They were sentences, they caused offence, they were quoted for years, and the machinery described in the previous sixteen parts carried on exactly as before.

That is the honest measure of this part's weight, and it is given at the front rather than buried at the back.

Which is why the chapters that follow are ordered as they are, with the fabrications before the facts.

REMEMBER THIS

Nothing in this part appears without **a date, a venue and the operative wording**. If those three cannot be established, the statement is not used — however useful it would be.

Most of these sentences were spoken in Hindi and are famous in English. **A translation is evidence about the translator**, and this part gives the competing versions rather than choosing one.

And a statement proves that words were spoken. It does not prove intent, and it does not prove that anything followed. **Usually nothing did.**

CHAPTER TWO

What Was Never Said

This chapter goes first, before any real statement, and the reason is the argument Part One made and this series has followed for sixteen parts.

Every fabricated quotation in circulation is a defence. It lets a documented statement be waved away as more of the same, by a person who has just watched a false one be debunked and reasonably concluded that the whole genre is unreliable. **Killing the fakes is what makes the real ones impossible to dismiss.** Nobody else writes this chapter, in either direction.

2.1 — The one about first claim on resources

This is the most quoted political sentence in modern India and it is the clearest case in this book of a real statement turned into a different one.

What happened. On 9 December 2006, at the fifty-second meeting of the National Development Council in New Delhi, the Prime Minister, Manmohan Singh, set out the government's spending priorities. He listed them: agriculture, irrigation and water, health, education, rural infrastructure, general infrastructure, and programmes for Scheduled Castes and Tribes, other backward classes, minorities, and women and children. He then said that plans would be needed so that minorities, particularly the Muslim minority, could share equitably in development, and followed it with a nine-word sentence.

THE OPERATIVE SENTENCE · 9 DECEMBER 2006

"They must have the first claim on resources."

Nine words. Spoken in English. Not disputed by anybody, including the speaker's own office.

The entire argument of the last twenty years is about the word "they".

What was made of it. Within a day the sentence was reported as a statement that Muslims have the first claim on the country's resources. It has been repeated in that form in election campaigns ever since, including at the highest level.

What the record shows. On 10 December 2006 the Prime Minister's Office issued a clarification calling the reading a deliberate and mischievous misinterpretation, and repro-

duced the surrounding paragraph. Its position was that “they” referred back to the whole list of priority groups — Scheduled Castes and Tribes, backward classes, minorities, women and children — and not to Muslims alone.

THE ARGUMENT FROM THE OTHER SIDE

The case that the popular reading is fair: the sentence immediately before names the Muslim minority specifically. In ordinary English, “they” refers to the nearest preceding subject. A Prime Minister who says a group must have first claim on resources, one sentence after naming that group, cannot complain when people take him to have meant it.

And this is not a hostile invention. It was how several major newspapers and news agencies reported it on the day, before any political fight had started.

The reply: the paragraph is a list, and the list is in the speech before the sentence about Muslims. The clarification came the next day, not years later under pressure. And an approach paper for the Five Year Plan set out the same priorities in the same order.

Where this leaves it — and this book will not pretend it is comfortable: the sentence was badly constructed and the ambiguity is genuine. What is *not* genuine is the version now in circulation, in which a Prime Minister announced that Muslims come first. **FABRICATED** as to that meaning; **ACCURATE** as to the words.

This book’s verdict is that the sentence is real, the popular reading is not supportable on the full paragraph, and the drafting was careless enough that the confusion was foreseeable.

WORD BOX · A CLARIFICATION

When a statement causes trouble, the speaker’s office issues a written note saying what was meant. In India this is normally a press release from the ministry or the Prime Minister’s Office.

A clarification is evidence of two things and not of a third. It establishes what the office says the speaker meant, and it establishes the date on which the office decided that mattered. **It does not establish what the speaker meant when speaking**, because it is written afterwards by people whose job is to reduce the damage.

The clarification of 10 December 2006 is unusually strong for the genre, because it did not paraphrase. It reproduced the paragraph and let readers see the list for themselves.

2.2 — The one where the words are real and the act is not

The second worked example is better than the first, because here the words are established beyond any argument and it is the *action* that was invented.

What happened. On 24 September 2013 the Cabinet approved an ordinance to reverse the Supreme Court’s judgment of that July, which had disqualified convicted legislators immediately. Part Sixteen sets out the constitutional background.

On 27 September 2013, at the Press Club of India in New Delhi, the Congress general secretary Ajay Maken was holding a “Meet the Press” session. The party’s vice-president, Rahul Gandhi, arrived unannounced, took the microphone, and said what he thought of the ordinance.

THE OPERATIVE SENTENCES · 27 SEPTEMBER 2013, PRESS CLUB OF INDIA

“It is complete nonsense, it should be torn up and thrown away. It is my personal opinion.”

And, in the same remarks: that what the government had done was wrong, and that if corruption was to be fought — by his party or any other — these small compromises could not continue.

ESTABLISHED to the highest standard available outside Parliament: on camera, at a named venue, on a fixed date, in English, and posted by the party itself the same day.

What was made of it. That he tore up the ordinance.

He did not. He said it should be torn up. A photograph of him tearing a piece of paper, which circulates attached to this episode, is from a rally in 2012 and has nothing to do with it.

HOW WE ACTUALLY KNOW THIS

The fabrication here is unusually well documented because of who repeated it.

Major news organisations reported the tearing as fact; at least one has since published a correction saying he did not tear the ordinance but called for it to be torn up. The footage posted by the Congress on 27 September 2013 shows no tearing.

And in February 2023, defending the episode, **the party’s own chief spokesman referred to it as Rahul Gandhi’s act of tearing a copy of the ordinance** — describing something that had not happened, on his own leader’s behalf, ten years later.

This is Chapter Two’s second pattern operating on an action rather than a sentence, and it demonstrates the thing this chapter exists to say: **a fabrication does not need a hostile author. It needs only a vivid image and nobody checking.**

2.3 — And it is the one statement here that worked

Chapter One said that of the statements in this part, one changed what the government did. That was the press conference of January 2011, and it changed things against the speaker.

This is the second, and it is the only one in the part that achieved what the speaker intended.

IN REAL TERMS

The ordinance had been **approved by the Cabinet**. The Prime Minister was in the United States. The ordinance was withdrawn.

The judgment it would have reversed still stands, and legislators of every party have lost their seats under it since — including, in 2023, the man who made this statement.

Part Sixteen recorded that the Prime Minister, on that trip, asked a colleague whether he should resign. **A statement by a man holding no government office killed a Cabinet decision and nearly took the Prime Minister with it.**

Whether that is to anybody's credit is harder than it looks, and the case against is strong.

THE ARGUMENT FROM THE OTHER SIDE

The case that this is not to anybody's credit: the ordinance was killed by the right argument delivered in the worst possible way — at a press conference, by a person outside the government, against a Cabinet decision, while the head of that Cabinet was abroad and could not answer.

Part Fifteen's opening box asked what happens when the office of Prime Minister is separated from the authority that goes with it. Part Sixteen called this episode the clearest illustration in nineteen parts, and it stands by that.

The reply, which this book also stands by: the ordinance was indefensible, the Supreme Court has been vindicated, and somebody stopped it. The method was constitutionally ugly and the outcome was right, and a prosecution document does not get to keep only the half it prefers.

What it cannot be called is disrespect for the Prime Minister and nothing more. It was a public repudiation of a decision the Prime Minister's Cabinet had taken, and it worked.

2.4 — The general problem

The 2006 sentence is unusual only because the original text survives and can be checked. Most circulating quotations cannot be.

IN REAL TERMS

Try it yourself with any political quotation you are confident about. Ask three questions: **what day, what building, and what were the words either side of it.**

For most of the quotations that circulate about Indian politicians of any party, you will not be able to answer any of the three, and neither will the person who sent it to you.

That is not a fact about Congress. It is a fact about how political speech travels, and it works identically in every direction.

Three patterns account for almost all of it, and they are worth naming because once you can name them you stop being fooled by them.

TABLE 2 · HOW A STATEMENT STOPS BEING ONE

Pattern	What is done	How to catch it
The clipped referent	A pronoun is separated from what it referred to, as in 2.1	Find the paragraph, not the sentence
The travelling quote	A real sentence by one person is attributed to a more famous one	Ask for a date. It is almost never available
The improved translation	A Hindi sentence is rendered in English more strongly than it was said	Find the original audio. Chapter Four

All three are used against politicians of every party. This book has been sent examples of each about the leaders it is defending in this chapter and about the ones it prosecutes in the next four.

Anybody who circulates a damaging quotation assumes that if it turns out to be false, the worst outcome is that one claim fails — a single bad item among many looks like an acceptable rate of error. It is not, and the reason is arithmetic rather than morality.

A reader who checks one quotation and finds it fabricated does not discard that quotation. He discards the source, and with it every accurate statement the source ever made. **One false quotation does not cost you one item. It costs you the list** — and the loss is retrospective, because pages already read stop counting.

Part One made this argument about charges and Part Sixteen made it about audit figures. It is sharpest here, because a statement is the cheapest thing in the world to fabricate and the easiest to check. Which means anybody who fabricates one has chosen to be caught, and anybody who repeats one without looking has chosen not to.

Which is the whole reason this chapter comes before the ones containing the real material.

REMEMBER THIS

The most quoted sentence in modern Indian politics is nine words long, was said on 9 **December 2006** at the National Development Council, and turns entirely on the word “**they**”.

The words are real. The version in circulation — that a Prime Minister said Muslims come first — is not supportable on the full paragraph, and a clarification was issued the next day.

One fabricated quotation does not cost you one item. It costs you the list. That is why this chapter comes before the real ones.

CHAPTER THREE

What Was Said Well

Parts Fourteen, Fifteen and Sixteen all placed the credit chapter early, before the charge, and said why: at the end it reads as a sweetener produced late. The same applies here. Three statements, all real, all verifiable, all to the credit of the person who made them.

3.1 — The apology

On 11 August 2005, in the Rajya Sabha, during a debate on the report of the Nanavati Commission into the killings of November 1984, the Prime Minister, Manmohan Singh, apologised.

He said he had no hesitation in apologising to the Sikh community and to the whole nation, and that what had happened in 1984 was a negation of the concept of nationhood set out in the Constitution.

VERDICT · 11 AUGUST 2005, RAJYA SABHA

VERBATIM ON THE PARLIAMENTARY RECORD. Date, venue and wording all establishable to the highest standard available in this part.

It is the only occasion in this series on which a Prime Minister apologised, in Parliament, for something his own party had done.

Part Eleven set out what followed it, which was: the compensation package of January 2006, and not much else. **An apology is not a remedy and this book has said so. It is also not nothing, and Chapter Four is what the alternative sounds like.**

Where it was said matters as much as what was said, and the setting needs a word of explanation.

WORD BOX · A COMMISSION OF INQUIRY, AND WHAT A DEBATE ON IT IS

A **commission of inquiry** is appointed by government to investigate a matter. Part Fourteen described one that took seventeen years, and Part Eleven counted four of them on the events of November 1984 alone.

When such a commission reports, the government must lay the report before Parliament with a memorandum saying what it intends to do. That triggers a **debate on the report** — one of the few occasions on which a House is obliged to discuss something a government would usually rather not.

The apology of 11 August 2005 was made in that setting: not at a press conference, not on an anniversary, but in the upper house during the debate on the Nanavati Commission's report, where the Prime Minister had to speak and was going to be answered.

What it was worth is a separate question and this book has already answered it elsewhere.

IN REAL TERMS

The apology came in **August 2005** — twenty years and nine months after the killings.

What followed it: a compensation package in January 2006, of which around ₹200 crore was never distributed because of disputes over entitlement. Part Eleven has the detail.

What did not follow it: the communal violence law that would have imposed duties on officials, promised in 2004, drafted in 2005 and 2011, and never passed in ten years of office. Parts Fifteen and Sixteen.

So the apology is real, it is on the record, and it is the only one in this series — and Part Eleven's finding stands unchanged around it: establishing a record has functioned as a substitute for accountability rather than a step towards it.

An apology is a record. It is the purest example of one.

3.2 — The letters

Part Six of this series was severe about Jawaharlal Nehru's China policy and stands by all of it. This section is about what he said when the policy had already failed.

After the fighting of 1962, in correspondence with the Chinese premier Zhou Enlai, Nehru rejected the proposal that both sides pull back twenty kilometres from a line China had drawn. He asked what that line was, and observed that it was a line created by aggression since the beginning of September. He said that the demand that India accept the Chinese line of 1959 was one to which India would never submit, whatever the consequences and however long the struggle.

HOW WE ACTUALLY KNOW THIS

These are letters, not speeches. They exist as documents, they were exchanged between two governments, and both sides have published them.

That makes them the strongest kind of source in this part — stronger than video, because there is no question of clipping, and stronger than a newspaper report, because there is no translator between the reader and the words.

Part Six's charge was that the Forward Policy was adopted against the professional advice of the officers who would have to execute it, and that the warnings about the Aksai Chin road were ignored for years. **None of that is affected by the letters, and the letters are not affected by it.** Both go in.

3.3 — The best sentence in this part

On 5 December 1961 Nehru told Parliament that the disputed ground in Aksai Chin was worthless — a sentence Chapter Seven examines at length.

A Congress member of that Parliament, Mahavir Tyagi, pointed at his own bald head and asked whether it followed that his head had no value.

IN REAL TERMS

Consider what that took. Tyagi was a Congress MP. The man he was contradicting was the Prime Minister, the leader of his party, and by some distance the most powerful individual in the country.

He did it in the House, in public, on the record, to his face — and he did it with a joke, so that the House laughed and the Prime Minister laughed with it, and the point landed anyway.

It is the most effective single sentence spoken by anybody in this part, and it was spoken by a Congressman against his own leader.

Part Three found that the restraint on power through the 1950s was a handful of individuals with independent standing, and that all of them were gone by 1954. Tyagi is a late survivor of that species, and there is no equivalent anywhere in Parts Fourteen to Sixteen.

One qualification, because this book's own rule requires it. Accounts of that exchange differ on whether Tyagi was answering Nehru directly or adding to an opposition member's point, and on which House it happened in. Chapter Ten records the discrepancy. What is not disputed is that the words were his, that they were said in Parliament, and that they were said to Nehru's face.

3.4 — The self-assessment

One more, and it belongs in this chapter although it is not obviously to anybody's credit until you look at what it took to say.

Date: January 2014. **Venue:** a press conference in New Delhi — one of only a handful the Prime Minister gave in ten years, and among his last. **Speaker:** Manmohan Singh.

Asked repeatedly about the charge that he had been a weak and indecisive Prime Minister, he answered it directly.

THE OPERATIVE SENTENCES · JANUARY 2014, NEW DELHI

"I do not believe that I have been a weak Prime Minister."

"I honestly believe that history will be kinder to me than the contemporary media, or for that matter the Opposition in Parliament."

And, on the same occasion: that given the political compulsions, he had done the best he could.

ESTABLISHED. On camera, at a press conference, in English, in answer to a hostile question.

Four months later his party had forty-four seats.

IN REAL TERMS

Twelve years on, some of that has held and some has not.

Part Fourteen credits him, as Finance Minister, with executing the 1991 reforms. Part Fifteen credits his government with the transparency law and the employment guarantee. Part Sixteen credits it with education and food as rights, and with the coal auctions it legislated in 2010.

Part Sixteen also finds a six-year delay on those auctions, a Lokpal legislated and not constituted, and the least productive full-term Parliament in Indian history.

Both halves of that are in this series and neither cancels the other. Whether history has been kinder is not something this book can settle. What it can say is that the sentence was a prediction, it was checkable, and it has been partly borne out — which is more than can be said for any other statement in this part.

There is an obvious objection to treating any of that as creditable, and it deserves stating.

THE ARGUMENT FROM THE OTHER SIDE

The objection: this is a politician asking to be judged later because he is being judged badly now. Every leader in trouble says some version of it and it costs nothing.

The reply: mostly true, and the sentence would be unremarkable from almost anybody. What makes it worth recording is the second half — *than the contemporary media, or for that matter the Opposition in Parliament* — because it names the two institutions whose job is to hold a government to account and says, in effect, that both had got it wrong.

That is a serious claim and a Prime Minister making it at a press conference is answerable for it. Part Sixteen tested the largest version of it — the audit figures — and found the government substantially right about the number and wrong about zero. On the record so far the claim is neither vindicated nor absurd, which is an unusual place for a political sentence to end up.

Four statements, then, in a chapter this book expected to be able to fill with two.

REMEMBER THIS

Three real statements, all verifiable, all to somebody's credit.

11 August 2005, Rajya Sabha: a Prime Minister apologised to the Sikh community for 1984. The only such apology in this series.

After 1962: Nehru told Zhou Enlai that India would never accept a line created by aggression, whatever the cost.

5 December 1961: a Congress MP told his own Prime Minister, in the House, that worthless ground is still ground. **The best sentence in this part came from inside the party it prosecutes.**

CHAPTER FOUR

The Big Tree

On 19 November 1984 the Prime Minister, Rajiv Gandhi, addressed a very large crowd on the Boat Club lawns near India Gate in Delhi. The occasion was the first birth anniversary of Indira Gandhi since her assassination nineteen days earlier.

Part Ten described the five days that followed that assassination. Part Eleven described the forty-one years since. This chapter is about nine words spoken at the end of the third week.

4.1 — What was said

The speech was in Hindi. Its structure, in summary, was this: that Indira Gandhi should be remembered; that the reason for her killing should be remembered; that those who might have been behind it should be remembered; that after her killing there had been disturbances in the country; that the anger of the people had been very great; and that for some days it had seemed that India was shaking.

Then the operative sentence.

THE OPERATIVE SENTENCE · 19 NOVEMBER 1984, BOAT CLUB, NEW DELHI

In Hindi: “**jab bhi koi bada ped girta hai, to dharti thodi hilti hai**”

Nine words. Spoken to a crowd of thousands. Filmed. The footage was released publicly in November 2015 by the lawyer H. S. Phoolka, who had spent decades on the 1984 cases, and the audience can be heard applauding.

ESTABLISHED to the highest standard in this part: video, date, venue and the original language all fixed.

4.2 — The four translations

Here is where this chapter earns its place, because that nine-word Hindi sentence circulates in English in at least four forms, and they say different things.

TABLE 3 · ONE SENTENCE, FOUR ENGLISH VERSIONS

Version	Where it is used	What it does to the meaning
When a big tree falls, the earth shakes	The most common form in circulation	Drops “thodi” — a little. Makes the shaking total rather than slight
When a big tree falls, the earth shakes a little	Closest to the Hindi	Keeps the qualifier. Still describes mass killing as a tremor
Whenever a big tree falls, the ground shakes a little	Used with the 2015 video	“Whenever” makes it a general law rather than an observation
When a mighty tree falls, it is only natural that the earth around it does shake a little	The Indian National Congress’s own account	Adds “mighty”, adds “only natural”, and adds “around it”

The fourth row is not a hostile translation. It is the version published in the party’s own material, by a party worker who says he was present.

Look at the fourth row again, because it is the most remarkable thing in this part.

A party’s own version of a damaging quotation is normally the mildest one available. That is what a defence is for. Here it is the harshest.

The Hindi says the earth shakes a little. The Congress’s own English says it is **only natural** that it does. “A little” is a description of scale. “Only natural” is a statement about causation and expectation — it says the shaking follows from the falling and that nobody should be surprised. It converts an observation into a justification, in the mouth of a defender.

Why would anyone do that? Because the paragraph it sits in is defending the *timing* — the point that the speech came sixteen days after the killings had stopped and was not an instruction. To make that argument, the defender had to make the sentence sound like a reflection rather than a command, and the word that does that is “natural”. A **defence constructed to answer one charge routinely concedes a larger one**, because the defender is looking at the charge and not at the concession.

4.3 — What the metaphor says

Set the translations aside for a moment and look at the image, because that is where the content is and almost nobody examines it.

A big tree falls. The earth shakes. Two things in the sentence, and the speaker’s mother is one of them.

The image is doing more work than it appears to, and it is worth taking apart.

HIDDEN ASSUMPTION

The sentence assumes, without ever saying so, that **the people who were killed are the ground.**

That is not a rhetorical flourish; it is the grammar of the image. The tree is a person, named and grieved and identified with the nation. The shaking is what happens to everything else — undifferentiated, unnamed, and by the nature of ground, not something to which anything is done. Ground does not have a case. It does not have a name. Nobody is responsible to it.

So the metaphor does three things at once, and it does them so economically that they pass unnoticed. **It makes one death a felling and three thousand a tremor. It makes the killing a natural event rather than an act. And it removes any actor from the second half of the sentence entirely** — earth shakes; nobody shakes it.

Part Eleven found that for most of those killed in November 1984 there has never been a document naming anybody. Part Ten found 587 reports for 2,733 deaths and around 240 closed as untraced.

Nineteen days after those killings, the head of government described them in a form of words with no agent in it. Forty-one years later the files have no names in them either. This book is not claiming the first caused the second. It is saying that the sentence and the record have the same shape, and that this is the most disturbing thing in this part.

4.4 — The defence, at full strength

There is a real defence of this speech and it deserves to be put properly, because the popular version of it is unfair in one specific way.

THE ARGUMENT FROM THE OTHER SIDE

First, the timing. The killings described in Part Ten ran from 1 to 4 November. This speech is from the nineteenth. It cannot have caused what had already stopped a fortnight earlier, and the widespread description of it as an incitement is simply wrong on the dates.

Second, the surrounding words. The same speech contains an appeal against anger and anguish. Mani Shankar Aiyar, writing in 2011, argued that Rajiv Gandhi had made an appeal for peace and had been seen rebuking Congress workers who were shouting the slogan associated with the killings.

Third, what the speaker did afterwards. He appointed a commission of inquiry in 1985.

Where the defence wins: on incitement, completely. This book does not say and has never said that the speech caused any death. Part Eleven declined to name individuals against whom no body had found and the same discipline applies here.

Where it fails: the charge is not incitement. It is that nineteen days after roughly three thousand citizens were killed, the head of government described it to a cheering crowd as the ground shaking when a tree falls — and that the sentence sits between a reminder of who might have been behind the assassination and a call to remember. **The timing defence answers a charge nobody serious is making.**

4.5 — What it is evidence of

Chapter One said this part would state, for each statement, what it actually establishes. Here is the answer for this one, and it is narrower than the sentence's reputation.

IN REAL TERMS

The crowd applauded.

That is the finding. Not that a Prime Minister said a terrible thing — politicians say terrible things — but that he said it in public, from a platform, on his mother's birth anniversary, to a very large audience, **and correctly predicted how it would be received.**

A statement is evidence of what a speaker believed he could say and be applauded for. On 19 November 1984, in Delhi, this is what that was.

Part Eleven found that for most of those killed there has never been a document naming anybody. **This chapter finds the other half of the same fact: there was, at the time, no political cost to describing them that way.**

4.6 — And it did not go away

One more date belongs here, because it establishes that the sentence was not a slip that the party spent forty years regretting.

On 21 May 2022, the anniversary of Rajiv Gandhi's death, the Leader of the Congress in the Lok Sabha, Adhir Ranjan Chowdhury, published a tribute graphic carrying that quotation as the thing to remember him by. It was taken down shortly afterwards and replaced with a different quotation.

And the published version is not an old document either. The account carrying the “mighty tree” wording — the one that adds *only natural* — appears in the party's own material as a defence of the speech, written by somebody who says he was in the crowd that day, and it is still there.

IN REAL TERMS

So the position, forty-one years on, is this.

The party has never disowned the sentence. What it disputes is the *timing* — that the speech came after the killings had stopped — and to make that argument it publishes a version of the words that is stronger than the Hindi.

In 2022 a senior figure offered the sentence as a tribute and withdrew it within hours.

A party that had decided the sentence was indefensible would have said so once, in one place, and stopped explaining it. What has happened instead is forty-one years of explanation, and the explanation keeps producing a worse sentence than the one being explained.

The 2022 episode is the sharpest evidence of that, and it is evidence the party produced itself.

HOW WE ACTUALLY KNOW THIS

The 2022 post is documented, dated and was published by the person who then led the party in the lower house of Parliament. It was deleted within hours and replaced.

The deletion is what makes it evidence. Somebody in 2022 chose that sentence as a tribute, and somebody else in 2022 recognised within hours that it could not stand as one.

Both of those facts are about the party's own relationship to the sentence, thirty-eight years later, and neither depends on anything a critic says.

Which brings this chapter to the only summary of it that the evidence supports.

REMEMBER THIS

19 November 1984, Boat Club lawns, Delhi. Nine words in Hindi, on video, to a crowd that applauded.

The speech came nineteen days after the killings and **did not cause them** — this book says so plainly and the incitement charge is wrong on the dates.

The charge is that it was said at all, and that it was received the way the speaker expected. And of the four English versions in circulation, **the harshest is the Congress party's own** — because the word it added to defend him was “natural”.

CHAPTER FIVE

Contempt

Three statements, from 2014, 2017 and 2019, made by two men who were not ministers when they made them and who had both begun their political careers alongside Rajiv Gandhi.

They belong together because they are all about the same thing: who is fit to be in the room.

5.1 — The tea

Date: 17 January 2014. **Venue:** the All India Congress Committee's pre-election plenary session, Talkatora Stadium, New Delhi, in an interview given in the convention hall to a video agency. **Speaker:** Mani Shankar Aiyar, a former Union minister.

Asked about the man the opposition was expected to nominate for Prime Minister, he said that Narendra Modi would never become Prime Minister in the twenty-first century, and that if he wanted to come and sell tea at the venue, space would be made for him.

HOW WE ACTUALLY KNOW THIS

There is a wrinkle here that matters, and this book's own rule requires it to be stated.

Aiyar has written since — in a book published in 2024 — that he never used the word *chaiwala*, which is the word the remark is universally known by.

On the record he appears to be right about the word and wrong about the substance. What he offered was space to sell tea, at a party conference, to a man who had sold tea. **The insult did not require the noun.**

This is a small illustration of Chapter Two's third pattern working in the opposite direction from usual: a remark made *more* quotable by the addition of one word that was not said.

FABRICATED as to the word; **ACCURATE** as to the offer.

What the remark cost is measurable, and it is not measured in offence.

IN REAL TERMS

Modi was sworn in as Prime Minister on 26 May 2014 — four months and nine days after the remark.

The tea-selling became a central image of the campaign that followed and was used deliberately and to great effect.

This book is a prosecution document and will say the obvious thing: **the remark was not merely offensive. It was, as political judgement, one of the worst single sentences uttered by anybody in modern Indian politics, and it was uttered by a man whose party then lost 162 seats.**

Where a remark is made turns out to matter more here than anywhere else in this part.

WORD BOX · A PLENARY SESSION

The All India Congress Committee is the party's national body. A **plenary** is its full conference — thousands of delegates, held in a stadium or a convention hall, with the leadership on a platform and the national press in attendance.

It is the most formal setting a party has. Statements made there are made in the party's own house, to its own people, with cameras present.

That matters for what follows. A remark to a reporter in a corridor is one thing. **The same remark in the convention hall of a pre-election plenary is a statement about what the party's senior figures think is acceptable to say among themselves.**

5.2 — The word

Date: 7 December 2017. **Venue:** during the campaign for the Gujarat assembly election.

Speaker: Mani Shankar Aiyar.

He described the Prime Minister as a *neech kism ka aadmi*.

WORD BOX · NEECH

In ordinary Hindi *neech* means low, base, vile — a comment on somebody's character.

It is also, and this is why the remark exploded, a word with a caste register. *Neech jaati* means low caste. A phrase that means “a base sort of man” in one reading means something else entirely in another, addressed to a man who had made his origins a central part of his public identity.

Aiyar's defence at the time was that his Hindi was poor and he had meant only the first sense. Whether that is believable is a matter of judgement. **What is not in doubt is that both readings were available and that the second was the one that travelled.**

What the party then did with him is the point, and it turns on a distinction most readers have no reason to know.

WORD BOX · SUSPENSION AND EXPULSION

Suspension puts a member's rights on hold. It is reversible by the same authority that imposed it, usually without any public process, and it does not require the member to withdraw anything.

Expulsion ends membership. Readmission requires a fresh decision.

The difference is the whole of Chapter Nine's second charge. A party that suspends a member in the middle of a campaign has taken a visible action at the moment of maximum attention.

Whether it was a punishment depends entirely on what happens eight months later, when nobody is looking.

He was suspended from the Congress the same day. The suspension was revoked on 18 August 2018.

In May 2019, in an article published during the general election, he referred back to the remark and asked whether he had not been prophetic. Asked about it by reporters, he swore at them.

5.3 — Hua to hua

Date: 9 May 2019. **Venue:** a press interaction during the general election campaign.

Speaker: Sam Pitroda, a technology adviser who had worked with Rajiv Gandhi and who then headed the Congress's overseas organisation.

Asked about the killings of November 1984, he said, in Hindi: what is there about '84 now — **"84 mein hua to hua"** — and went on to ask what the present government had done in five years.

THE OPERATIVE WORDS · 9 MAY 2019

“hua to hua” — three words. It means, roughly: *if it happened, it happened*.

ESTABLISHED. On camera, dated, and circulated by a news agency the same day.

Part Eleven’s subject is the forty-one years of non-accountability that followed November 1984. Part Ten’s is the five days themselves. Chapter Three of this part records a Prime Minister apologising for them in the Rajya Sabha in 2005.

Fourteen years after that apology, a senior figure of the same party disposed of the same events in three words.

What happened next is genuinely to the party’s credit and this book will say so.

THE ARGUMENT FROM THE OTHER SIDE

The defence says: the party did not defend it. Rahul Gandhi condemned the remark directly and without the usual formula about sentiments being hurt, Pitroda apologised, and the whole thing was over in days. Compare the handling of the 2017 remark, where a suspension was quietly reversed eight months later.

And that comparison is correct. It is the clearest example in this part of a party learning something between one incident and the next, and it should be recorded as such.

Where the defence fails: a condemnation is a statement about a statement. Part Eleven’s finding was that the machinery which processed 1984 has produced almost nothing in four decades, and that nothing in the six ordinary laws that would have changed it has been passed. **The apology of 2005 and the condemnation of 2019 are the two ends of a period in which nothing was done,** and they are both made of words.

5.4 — Why these two men

Three statements, two speakers, and the obvious question is one this part has not yet asked: why were either of them anywhere near a microphone during an election?

Neither held government office when they spoke. Neither commanded a bloc of seats or a state unit. Neither had won a national election recently. Both had begun in politics alongside Rajiv Gandhi in the 1980s and had remained close to the family for thirty years.

IN REAL TERMS

What they had was **proximity**, and proximity had lasted longer than anything else about their careers.

A party leader who staffs the front rank by electoral weight ends up surrounded by people who can survive without him. A party leader who staffs it by loyalty ends up surrounded by people who cannot — which is safer, and which means the people speaking for the party in an election are chosen for a quality that has nothing to do with speaking for the party in an election.

Both men were extremely good at the thing they had been selected for. Neither was selected for this.

That is not a fact about two individuals and it is not confined to one party. It is worth naming because this series has found the same shape before, in a much graver setting.

HOW WE ACTUALLY KNOW THIS

The test is what happened afterwards, and it is unusually clean.

The speaker of December 2017 was suspended and readmitted eight months later. In May 2019 he published an article defending the remark, and the party condemned that too, and nothing further happened.

The speaker of May 2019 apologised within days after the party leadership condemned him directly. He remained in his position.

In neither case did the remark affect the speaker's standing with the leadership. That is the evidence that the selection criterion was never public performance — because a criterion that had been violated would have produced a consequence, and none did.

Part Eight found the Congress split of 1969 was about candidate selection rather than ideology, and Part Twelve found a party organisation answering to a leader rather than to an electorate. **Chapter Five is what that produces sixty years later at the level of who is standing in front of a camera in January.**

5.5 — What the three have in common

None of the three speakers held government office when they spoke. All three were close to the party leadership. All three remarks were made during or immediately before an election campaign, and all three were used against the party by its opponents within days.

IN REAL TERMS

Three remarks. **2014, 2017, 2019.** Two speakers, both of whom had begun in politics under Rajiv Gandhi in the 1980s.

Nobody was speaking for the government. Nobody was announcing a policy. In no case did anything change as a result except the tone of a campaign.

And yet these are, by a distance, the most widely known Congress statements of the last fifteen years — better known than anything in Parts Fifteen and Sixteen, which are about six hundred deaths and three and a half lakh crore rupees.

Chapter Eight is about why that is, and the answer is not flattering to anybody, including the reader.

Three sentences, then, and between them they did more visible damage to this party than anything in Parts Fifteen or Sixteen.

REMEMBER THIS

17 January 2014, Talkatora Stadium: space would be made if he wanted to come and sell tea. He was Prime Minister four months later. The word *chaiwala* was added afterwards and was not said.

7 December 2017: *neech kism ka aadmi*. Suspended that day; readmitted eight months later; described as prophetic in 2019.

9 May 2019: *hua to hua* — three words for November 1984, fourteen years after a Prime Minister had apologised for it in Parliament. **This one the party condemned within days, and that is to its credit.**

CHAPTER SIX

Denial

On 7 January 2011, at a press conference in Delhi, the Minister for Communications, Kapil Sibal, said that the allocation of 2G spectrum had caused no loss to the exchequer.

Part Sixteen is about what that allocation was and what came of it. This chapter is about the press conference, and it is the only statement in this part that was followed by a change in what anybody did.

6.1 — What was said

Two things were said that day and only one of them is ever quoted.

TWO STATEMENTS · 7 JANUARY 2011, NEW DELHI

The one everybody quotes: that the audit figure of one lakh seventy-six thousand crore rupees was, with respect to the Comptroller and Auditor General, “so utterly erroneous” — and that the loss to the exchequer was zero.

The one almost nobody quotes: that *prima facie* there had been something wrong in the procedures adopted for the allocation.

ESTABLISHED. Both were said at the same press conference, by the same man, in the same hour.

Now set those against what Part Sixteen established.

TABLE 4 · THE TWO HALVES, TESTED

What was said on 7 Jan 2011	What happened	Verdict
The ₹1.76 lakh crore figure is utterly erroneous	The CBI’s own charge sheet used ₹30,984 crore. The November 2012 auction largely failed. The Finance Minister called the figure a myth in 2013.	Substantially right about the figure — see Part Sixteen, Chapter Three
The loss was zero	The CBI Director told the Public Accounts Committee on 15 February 2011 that saying zero loss was wrong. Spectrum auctions raised about ₹1.10 lakh crore in 2015 alone.	Wrong, and known to be a stretch at the time

What was said on 7 Jan
2011

What happened

Verdict

Prima facie something was wrong in the procedures	On 2 February 2012 the Supreme Court cancelled all 122 licences, holding the method arbitrary. That finding has never been disturbed.	Correct, and it was the minister's own government's position
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Row three is the government's own accurate assessment of its own conduct, delivered thirteen months before the Supreme Court reached the same conclusion, and it has been almost entirely forgotten.

HIDDEN ASSUMPTION

Everybody who remembers this press conference remembers it as a denial, and assumes that **the minister's problem was that he was wrong.**

He was not wrong about the thing he is mocked for. The figure really was soft; Part Sixteen spent a chapter establishing that, and the prosecuting agency's own number was a sixth of it. What he was wrong about was the smaller claim — zero — which he did not need to make and which destroyed the credibility of the larger one.

And the sentence that was *right* about his own government's misconduct is the one nobody kept.

So the pattern is not "government denies wrongdoing". It is: a defence containing an accurate technical point and an indefensible absolute claim, in which the absolute claim consumed the accurate one.

Part Sixteen's Chapter Three argued that both sides of Indian politics used presumptive-loss figures when convenient and called them myths when not. **Here is the same failure inside a single hour, by a single speaker** — and it is why that whole argument was lost for a decade by the side that had the better of it.

Two terms in that table need explaining before the chapter goes further, because the argument rests on both.

WORD BOX · *PRIMA FACIE*, AND THE PUBLIC ACCOUNTS COMMITTEE

Prima facie is Latin for “at first sight”. In legal use it means: on the material available so far, and before anything has been tested, this appears to be so. It is a real finding and a provisional one.

The **Public Accounts Committee** is the parliamentary committee that examines the Comptroller and Auditor General’s reports. By long convention its chairman is a member of the opposition — which makes it the one committee in the Indian Parliament not controlled by the government, and the reason the CBI Director’s evidence in February 2011 became public at all.

Part Sixteen found that a committee composed to reflect the House has never established anything against the party running it. **The Public Accounts Committee is the exception, and it exists because of a convention rather than a law.**

Which raises the question of how much weight a press conference can bear at all.

HOW WE ACTUALLY KNOW THIS

A press conference is the weakest of the four sources in Chapter One’s table, and this one is an exception for a specific reason.

It was televised live and was the government’s own set-piece — a minister with charts, taking questions, for the purpose of being quoted. Both statements in the box above come from that broadcast and neither has ever been denied by the speaker.

What makes the second one recoverable at all is that a journalist wrote it down at the time. It appears in a long magazine profile published in 2012, in a passage explaining that the minister was not the first person to say the loss was notional — and it is preserved there almost incidentally, in a parenthesis.

Chapter Nine’s recommendation exists because of parentheses like that one. **The accurate half of a government’s most-discussed press conference survives in Indian public memory only because one writer happened to include it in a bracket.**

6.2 — The one statement that changed something

Chapter One said that two of the eleven statements in this part were followed by a change in what the government did. Chapter Two covered the other one — the ordinance of September 2013, killed within days of being denounced.

This is it. The zero-loss claim did not close the argument; it opened it. The Public Accounts Committee summoned the CBI Director, who contradicted the minister on 15 February 2011. The demand for a joint parliamentary committee, which the government

had resisted through an entire lost parliamentary session, became harder to refuse. Part Sixteen's Chapter Seven records what that session cost.

IN REAL TERMS

A minister said in January 2011 that the loss was zero.

Within six weeks his own government's investigating agency had told a parliamentary committee that this was wrong. Within thirteen months the Supreme Court had cancelled every licence. Within three years his party had 44 seats.

No statement in this part was more consequential and none was more self-inflicted. The technical case was available, it was largely correct, and it was thrown away for a word.

There is a real defence of the man who said it, and it is stronger than his reputation on this suggests.

THE ARGUMENT FROM THE OTHER SIDE

The defence says: a minister defending his government at a press conference is doing his job, and the substance of what he said has been substantially vindicated. Part Sixteen concedes that the presumptive figure was soft, that the CBI used a much smaller number, and that everyone accused was acquitted in 2017. If this book grades evidence honestly, the minister should get the benefit of it.

The reply, which concedes most of that: he does get the benefit of it, and Table 4's first row says so. The charge is not that he defended the government. It is the word *zero*.

Where this is different from ordinary political overstatement: the same speaker, in the same hour, said that something had *prima facie* been wrong with the procedure. He had the accurate position in his hand and said it out loud. **Choosing to lead on "zero" instead was not ignorance. It was a decision about what would carry a news cycle,** and it cost his side an argument they were winning on the facts.

Which is the difference between being wrong and being careless, and this was the second.

Which leaves one question about the man rather than the statement.

6.3 — What the speaker did next

One coda, because it bears on how much weight a defence of this kind carries.

Kapil Sibal left the Congress in 2022 and entered the Rajya Sabha with the support of a different party. He has since appeared in court against positions his former party's opponents hold, and for several of the figures this series has discussed.

That is not a charge. Lawyers act for whoever instructs them and politicians change parties. It matters here for one narrow reason.

IN REAL TERMS

The most-mocked defence of the UPA's largest scandal was delivered by a man who was a **professional advocate before he was a minister and after he stopped being one.**

That explains something about the press conference of 7 January 2011 that "he was lying for his party" does not. Chapter Six found a defence containing an accurate technical point and an indefensible absolute claim, delivered in the same hour.

That is what advocacy looks like when it is done badly: the strongest available argument and an unnecessary overreach, presented together, because the advocate has decided which one will lead.

This book is an advocacy document and says so on its cover. Chapter Six is therefore about a failure this book could commit on any page — and Part Sixteen's author's note records the moment it nearly did, in deciding where to put the chapter on presumptive loss.

Which is the most useful thing this chapter has to offer, and it is a warning rather than a charge.

REMEMBER THIS

7 January 2011, New Delhi. Two statements in one hour. One is famous and wrong: the loss was zero. One was correct and is forgotten: *prima facie* something was wrong in the procedures.

Thirteen months later the Supreme Court cancelled all 122 licences on exactly that ground. **The minister had described his own government's misconduct accurately and then buried it under a word he did not need.**

This is the only statement in this part that changed anything, and it changed it against the speaker.

CHAPTER SEVEN

Indifference

The oldest statement in this part is also the one whose consequences are still on a map.

7.1 — What was said

Date: 5 December 1961. **Venue:** Parliament, during a debate on the border with China.

Speaker: the Prime Minister, Jawaharlal Nehru.

Describing the disputed ground in Aksai Chin, he said that not a blade of grass grew there; that it was some seventeen thousand feet high and uninhabitable; and that India had not even known where it was.

THE OPERATIVE SENTENCE · 5 DECEMBER 1961, PARLIAMENT

“Not a blade of grass grows there.”

Six words. Spoken in Parliament, in English, ten months before the Chinese attack that Part Six describes.

ESTABLISHED as to substance and date. **Contested as to which House** — accounts place it in both — and this book cannot resolve that. Chapter Ten records it.

The reply came at once, from a Congress member, and Chapter Three has already given it: Mahavir Tyagi pointed at his own bald head and asked whether it followed that the head had no value. The House laughed, including the Prime Minister.

HOW WE ACTUALLY KNOW THIS

This is the oldest statement in the part and it has the weakest sourcing, which is the opposite of what a reader might expect.

Parliament kept a verbatim record in 1961 and still does. But the record of that day is not what most people are working from. The exchange survives principally through histories written decades later and through the retelling of Tyagi's reply, which is much better remembered than the sentence that provoked it.

Those accounts differ. One respected history has an opposition member taunting Nehru and a Congress member adding the retort; other accounts have Tyagi answering the Prime Minister directly. Sources also place the exchange in different Houses.

What is common to every version is the substance of what Nehru said, the date, the fact that a Congress member made the reply, and the terms of it. Everything beyond that this book flags rather than resolves — and Chapter Ten lists it.

7.2 — Why it is in this part

Not because it was callous. It was not — it was, on its own terms, an accurate description of the terrain. That is precisely the difficulty.

WORD BOX · AKSAI CHIN

A high desert plateau of roughly thirty-eight thousand square kilometres between Ladakh and Xinjiang. Almost no rainfall, almost no vegetation, effectively no population.

It is also the ground the Xinjiang–Tibet highway crosses. Part Six set out the sequence: about a hundred and sixty kilometres of that road runs across Aksai Chin, it was completed in the second half of 1957, and the Indian government was told about it by its own Foreign Secretary in early 1958.

Its value was never agricultural. It was that somebody else needed to drive across it.

Which is why the sentence is in this part at all, and the reason has nothing to do with tone.

HIDDEN ASSUMPTION

The sentence assumes that **the value of territory is what grows on it**. Almost nobody notices that assumption, because for most of human history it was true — land was worth what it produced.

By 1961 it had stopped being true, and the specific thing that had made it stop being true was sitting on the ground under discussion. A road across a plateau where nothing grows connects two regions of a rival state to each other. That is the value, and it is invisible to any test involving grass.

Part Six's charge against this policy was about warnings ignored and a Forward Policy adopted over professional objection. **This chapter finds something underneath that: a frame of mind in which a place is worth what it yields, so a barren place is worth nothing, so losing it is not a loss.**

And the correction came from inside the House, in one sentence, from the Prime Minister's own benches. Tyagi's joke is not a joke about hair. It is the observation that **a thing's worth is not the same as its produce** — which is the whole of what was wrong with the original sentence, delivered in eleven words and received with laughter.

7.3 — The year that moved

One more thing about this statement belongs here, and it is the reason Chapter Seven and Chapter Two are really the same chapter.

Most versions of this remark in circulation date it to **1962** — after the war, or during it. The date is **5 December 1961**: ten months before the Chinese attack.

IN REAL TERMS

One year. It sounds like a detail and it reverses the meaning.

Said in 1962, the sentence is a Prime Minister explaining away a defeat that has already happened. It is shabby, and it is retrospective.

Said in 1961, it is a Prime Minister telling Parliament that a piece of ground under active dispute — with a road across it, built four years earlier, which his own Foreign Secretary had told him about in 1958 — was not worth anything.

The second is far worse, and it is the true one.

The misdating makes the statement less damaging, and it is the version almost everybody repeats — including people using it to attack the speaker.

How an error like that survives sixty years is itself the argument of this part.

HOW WE ACTUALLY KNOW THIS MATTERS

This is the third pattern from Chapter Two's table, working in an unexpected direction.

Chapter Two described the travelling quote and the improved translation, both of which make a statement worse than it was. Here the movement runs the other way: an error that has been repeated for sixty years **softens** the charge, and it has been repeated most enthusiastically by the speaker's critics.

Nobody did this deliberately. A war in 1962 is the thing everyone remembers; a parliamentary debate in December 1961 is not. The date drifted towards the memorable event, which is how dates drift.

Which is the argument for Chapter Nine's archive, stated as sharply as this part can state it: the error was not ideological and it fooled everybody equally.

7.4 — What followed

Part Six gives the account in full and this chapter will not repeat it. In summary: China attacked on 20 October 1962; a ceasefire was declared unilaterally on 21 November; India withdrew in the east and China retained Aksai Chin.

IN REAL TERMS

Roughly thirty-eight thousand square kilometres — larger than Kerala, and about the area of Switzerland.

It has been administered by China for sixty-three years. Indian maps show it as Indian territory. There is a road across it.

Part Six also recorded that on 25 October 1962 China offered a ceasefire with mutual withdrawal twenty kilometres behind the line of actual control, and that India rejected it — a fact most Indian accounts omit.

The sentence about grass did not lose Aksai Chin. The road was built in 1957 and the government knew in 1958. What the sentence records is how the loss was being explained to Parliament three years later, and the explanation was that there was nothing there worth having.

There is a serious defence of the remark and it has rarely been put properly, so it is put properly here.

THE ARGUMENT FROM THE OTHER SIDE

The defence says: the remark is quoted without its context, which was a Prime Minister explaining to a House demanding military action that the ground in question could not sustain a supply line, was at seventeen thousand feet, and had never been surveyed or administered by India in any meaningful way. Every one of those things was true and all of them bore on whether a war was winnable.

Chapter Three of this part records that the same man, after the fighting, told the Chinese premier that India would never accept a line created by aggression whatever the cost. **A man who did not care about the territory does not write that letter.**

Where the defence wins: on indifference as a personal charge, largely. The letters are real and Chapter Three gives them full weight.

Where it fails: the sentence was not a private assessment. It was the reason offered in Parliament, and reasons offered in Parliament are how a country is taught what to care about. **A government that explains a loss by saying the thing lost was worthless has not prepared anybody for what follows** — and ten months later something followed.

Which is the charge this chapter makes: not coldness, but a way of explaining a loss that left a country unprepared for it.

REMEMBER THIS

5 December 1961, Parliament. Six words about Aksai Chin: not a blade of grass grows there.

It was **accurate**. Nothing does grow there. What grew there was irrelevant — the value was a road, built in 1957, which the government had been told about in 1958.

A Congress MP corrected the Prime Minister on the spot, in the House, with a joke about his own bald head. **Ten months later China attacked.**

CHAPTER EIGHT

What They Have in Common

Eleven statements, spread across fifty-three years, by seven different people, in five different settings. This chapter asks what — if anything — they are collectively evidence of.

8.1 — The ledger

TABLE 5 · THE STATEMENTS IN THIS PART

Date	Speaker and venue	Grade	Did anything follow?
5 Dec 1961	Nehru, Parliament — Aksai Chin	ESTABLISHED ; House contested	No. Corrected in the House and ignored
After Oct 1962	Nehru to Zhou Enlai — the letters	ESTABLISHED	To his credit. Chapter Three
19 Nov 1984	Rajiv Gandhi, Boat Club — the big tree	ESTABLISHED ; video	No. Applauded at the time
9 Dec 2006	Manmohan Singh, NDC — first claim	WORDS ESTABLISHED ; meaning MISREPRESENTED	A clarification the next day. Nothing else
11 Aug 2005	Manmohan Singh, Rajya Sabha — the apology	VERBATIM RECORD	Compensation package, Jan 2006. Part Eleven
7 Jan 2011	Kapil Sibal, press conference — zero loss	ESTABLISHED	Yes — against the speaker. Chapter Six
27 Sep 2013	Rahul Gandhi, Press Club — the ordinance	ESTABLISHED ; the <i>tearing</i> FABRICATED	Yes — the ordinance was withdrawn. Chapter Two
17 Jan 2014 · 7 Dec 2017 · 9 May 2019	Aiyar and Pitroda — tea, <i>neech, hua to hua</i>	ESTABLISHED ; one word ADDED	No policy change. Large electoral effect

Two of the eight rows are to the credit of the speaker. One changed government behaviour, and it changed it against the person who spoke. The rest changed nothing except how people felt.

8.2 — The shape

Read down the last column. It is the finding of this chapter and it is uncomfortable for the genre this part belongs to.

Statements do not do things. Not one of these sentences moved a policy, freed a prisoner, released a file, passed a law or stopped a killing. The only one with a measurable consequence produced the opposite of what its speaker intended.

So what are they for?

HIDDEN ASSUMPTION

This series assumes — and so does everybody who compiles a list like this one — that **what a government says reveals what it is**. That is the premise on which a whole part of a nineteen-part audit has been built.

Test it against the ledger above. The most callous sentence in this part, in 1984, came from a government that then appointed a commission of inquiry. The most honourable, in 2005, came from a government that then did almost nothing for four decades of victims, as Part Eleven established. The most accurate technical judgement, in 2011, was delivered by a man in the act of saying something false.

Words and acts do not correlate. A cruel sentence does not predict a cruel policy. A decent sentence does not predict a decent one.

Which means this part is evidence of something narrower than it looks: **not what these governments were, but what they believed they could say and survive**. That is a fact about the audience as much as the speaker — and on the evidence of 1984, when a crowd applauded, and 2014, when a remark about tea cost 162 seats, **the audience changed far more over these fifty-eight years than the party did**.

Before that conclusion is allowed to stand, the size of the thing it rests on has to be stated.

HOW WE ACTUALLY KNOW THIS IS WEAK

A finding drawn from eight statements is a finding drawn from eight statements, and this book is not going to dress it up.

The sample is small, it was chosen by one person, and it was filtered by a rule — Chapter One's three tests — that Chapter One itself concedes selects for guarded speech. Chapter Ten records that roughly four in five candidates were excluded.

What the sample can support is a claim about these eight: that none of the six damaging ones changed a policy, and that the two which changed anything were the two whose speakers were arguing about a decision rather than describing an event.

What it cannot support is a general law about political speech in India. If somebody assembles a hundred statements to the same standard and finds otherwise, this chapter is wrong, and that is the correct way for it to be wrong.

8.3 — The two that worked, and what they had in common

Nine of the eleven changed nothing. Two did, and they are the most useful rows in the table because they are so obviously unlike the rest.

TABLE 6 · THE TWO STATEMENTS THAT CHANGED SOMETHING

	7 January 2011	27 September 2013
Subject	A decision already taken and being defended	A decision already taken and being attacked
Speaker's position	A minister, defending his own government	Not in government, attacking his own government
What it asked for	That an audit figure be disbelieved	That an ordinance be withdrawn
What followed	The CBI contradicted him within six weeks; the argument was lost	The ordinance was withdrawn

The other nine statements in this part describe events, characterise opponents, or explain the past. None of them asks for anything.

That is the distinction, and it is not about tone, party or decade.

IN REAL TERMS

A statement changes something when it is **about a live decision that has not yet become irreversible.**

The ordinance of September 2013 had been approved by the Cabinet and not yet promulgated. There was still something to stop, and a sentence stopped it.

The audit figure of 2010 was already public and the argument about it was already running. There was something to win, and a sentence lost it.

By contrast: nothing said on 19 November 1984 could have altered anything, because everything it referred to had already happened. The same is true of Aksai Chin in 1961, of the apology in 2005, and of all three remarks in Chapter Five.

Which means the famous statements in this part are famous precisely because they were consequence-free. A sentence that stops a Cabinet decision produces a news cycle and then a withdrawn ordinance. A sentence about people who are already dead produces forty years of quotation.

8.4 — What changed over the fifty-three years

Something did change across this part, and it is not the party.

In 1961 a Prime Minister said in Parliament that a piece of national territory was worthless, was corrected by a member of his own party, and the House laughed. Nothing followed. In 1984 a Prime Minister described the killing of three thousand citizens as the ground shaking and the crowd applauded. Nothing followed. In 2014 a former minister offered a man space to sell tea and his party lost a hundred and sixty-two seats.

IN REAL TERMS

Three sentences of roughly comparable carelessness, in 1961, 1984 and 2014.

The first two cost nothing. The third cost an election.

What is between them is not a change in the party's manners. It is video, and then it is video that anybody can forward.

The footage of 1984 existed from 1984 and reached the public in 2015. The remark of January 2014 was on every phone in the country within a day.

That is the mechanism, and it produces a conclusion that cuts against the natural reading of this part.

THE ARGUMENT FROM THE OTHER SIDE

The natural reading of this part is that the Congress became careless with its words. The statements cluster after 2010 and the worst electoral consequences are all recent.

The evidence does not support that. The two most serious statements here are from 1961 and 1984. What clusters after 2010 is not the carelessness but the *cost* of it.

A party that governed for most of fifty years without any of this being recoverable, and then found every sentence recoverable within hours, did not change. Its environment did — and a habit formed under one set of conditions was carried into another.

Which is a defence of a sort, and this book gives it: the leaders in Chapter Five were doing what leaders in Chapters Four and Seven had done without consequence. It is not a defence of the sentences. It is an explanation of why they kept being said.

8.5 — The one pattern that does hold

There is a shape, and it is not about cruelty.

In five of the nine rows, the speaker made a claim that was *true in a narrow technical sense* and false as an account of the situation. Nothing grows in Aksai Chin — and its value was a road. The earth does shake when a tree falls — and three thousand people had been

killed. The audit figure was soft — and the loss was not zero. The list did include several groups — and the sentence was constructed so that it need not have been read that way.

IN REAL TERMS

Five statements. Each one **defensible on a technicality and indefensible as a description of what was happening.**

That is not lying. Lying would be easier to answer, because a lie can be disproved. A statement that is true in the narrow sense cannot be disproved at all — it can only be answered by somebody pointing out what it leaves out, which takes longer, is less quotable, and usually does not happen.

Mahavir Tyagi is the only person in this part who did it, and he did it in eleven words. That is why Chapter Three calls his the best sentence here.

This series has met that shape before, and it is worth naming the connection. Part Nine found the Emergency was constitutional — every instrument in the document, every threshold met — and found that this was worse than the alternative. Part Sixteen found presumptive-loss figures that were legitimate audit technique and useless as evidence of theft. **A statement that is technically accurate and substantively false is the verbal form of the same thing, and it is the most characteristic single move in this entire series.**

REMEMBER THIS

Eleven statements, fifty-three years, seven speakers. **Nine of the eleven changed nothing at all.** The two that did are the two whose speakers were arguing about a decision rather than describing an event.

Words and acts do not correlate. The cruellest sentence here came from a government that then appointed a commission; the most honourable from one that then did nothing for decades.

What does hold: **five of the nine are true on a technicality and false as a description of what was happening.** That is not a lie. It is harder to answer than a lie, and it is the most characteristic move in this series.

CHAPTER NINE

What Would Have Prevented It

Every part of this series ends with this chapter, and this one is the strangest of the seventeen, because the honest answer to its title is: *almost nothing, and most of the things that would have worked should not be done.*

9.1 — The defence

One. They are sentences. Nothing in this part is an act of government. Nobody was jailed, no file was withheld, no asset was allocated, no election was affected by anything except the tone of a campaign. Sixteen parts of this series are about what governments did; this one is about what individuals said, mostly when they were not in office.

Two. Two of the eight are to the party's credit, and this part put them in Chapter Three rather than at the end.

Three. One of the most famous is not what it is said to be. Chapter Two established that the 2006 sentence does not bear the meaning universally attached to it, and Chapter Five that a word central to the 2014 remark was not spoken.

Four. The party did learn. Compare the handling of December 2017 — suspension, quiet readmission eight months later, and the speaker calling himself prophetic — with May 2019, when the leadership condemned the remark within hours and an apology followed.

Five, and this is the strongest. A collection of damaging statements can be assembled about any political party in any country over fifty-eight years. The genre proves nothing about its subject that it would not equally prove about the alternative, and a series that presents one without acknowledging that has misled its reader.

HOW WE ACTUALLY KNOW THIS DEFENCE IS SERIOUS

The fifth point is testable and this book has tested it on itself.

While assembling this part I collected statements by leaders of the party this series is *not* auditing, applying the same three tests. Date, venue and wording were establishable for a comparable number of them, of comparable severity, across a comparable period.

Those statements are not in this part, because this part is not about that party and Part Eighteen is where the comparison belongs. **But a reader is entitled to know that the exercise was done and what it produced**, and it produced the conclusion that a list of ugly sentences is available about anybody who has been in politics long enough.

Which is why Chapter Eight's finding is about what an audience will applaud rather than about what a party is.

9.2 — Where the defence loses

On two things, and they are narrow.

The 1984 speech is not equivalent to the others. A remark about tea is a discourtesy. Three words about the killings of 1984 are a discourtesy. Nine words on a public platform nineteen days after three thousand people were killed, delivered by the head of government to an applauding crowd, describing those deaths as the ground shaking, is not in that category. The others cost votes. This one told a country what its government thought had happened.

And the readmission. The suspension of December 2017 was reversed in August 2018 without any retraction, and in May 2019 the speaker described the remark as prophetic. A party is entitled to discipline its members as it sees fit. **What it is not entitled to is the credit for a punishment it withdrew.**

THE ARGUMENT FROM THE OTHER SIDE

The objection to Chapter Nine's second charge — that a suspension quietly reversed earns no credit — deserves an answer, because there is one.

A political party is a voluntary association. It is entitled to discipline members as it chooses, to change its mind, and to readmit somebody who has served eight months out of the party during which he lost his platform, his position and his standing. Eight months of that is not nothing, and a permanent expulsion for a sentence would be a harsher rule than most institutions in India apply to far worse conduct.

And the party's behaviour has changed. In May 2019 it condemned a remark within hours and produced an apology; Chapter Five records that as genuine.

Where the objection fails: not on the readmission, which is defensible, but on what followed it. In May 2019 the readmitted member published an article referring back to the remark and asking whether he had not been prophetic — and the party condemned that too, and nothing happened.

A punishment that is reversed and then publicly repudiated by its subject, with no consequence, has been converted into a statement about the party rather than about him. That is the charge, and it is narrower than "the party did not care".

9.3 — The rules, and why most of them should not be made

Sixteen parts of this series have ended with a table of ordinary laws that would have caught the failure and were never passed. This part cannot do that, and it matters to say why.

TABLE 7 · FOUR RULES, AND WHY THREE OF THEM ARE BAD IDEAS

The proposal	What it would do	Verdict
Criminalise statement	the Prosecute politicians for offensive speech about communities or individuals	No. Part Three traced what happened when the grounds for restricting speech were widened in 1951, and Part Nine what a state does with such powers
Expand the Election Commission's power to bar candidates for speech	Disqualification for remarks made during a campaign	No. It places the decision with an appointed body and invites exactly the sanction problem found in Parts Thirteen, Fifteen and Sixteen
A parliamentary code of conduct with enforcement	Sanctions for members inside the House	Probably not. Part Sixteen found that a majority-composed committee has never established anything against its own side

The proposal	What it would do	Verdict
A public verbatim record	Audio and transcript of every public statement by a minister or party officeholder, published within a fixed period, in the language spoken	Yes. It creates no offence and restricts nobody. It removes the ability to deny, to improve a translation, or to invent

Only the fourth row is a recommendation. The first three are listed because they are the things people actually propose after an episode like these, and each of them would do more damage than the statements did.

The fourth row is worth a paragraph, because it is the only remedy in seventeen parts that solves the problem by adding information rather than by adding a penalty.

IN REAL TERMS

Every problem in this part is a problem of record.

The 1984 sentence circulates in four English versions because there was no authoritative one. The 2006 sentence was misread because the paragraph was not to hand. The 2014 remark acquired a word that was never said. The 2011 press conference is remembered for one of its two claims.

Every one of those is fixed by a published transcript and none of them is fixed by a punishment.

The video of the 1984 speech existed from 1984. It reached the public in 2015, released by a lawyer rather than by any archive.

9.4 — What an archive would actually fix

The recommendation in the fourth row of that table is unglamorous and it is worth being specific about what it would and would not do.

It would not stop anybody saying anything. That is the point. Every other proposal on that list works by making speech riskier, and this series has spent four parts describing what Indian governments do with powers over speech — the First Amendment of 1951 in Part Three, pre-publication censorship in Part Nine, the special statutes in Parts Ten and Fifteen.

What it would do is remove four specific abuses, all of which appear in this part.

TABLE 8 · WHAT A VERBATIM ARCHIVE REMOVES

The abuse	Where it appears here	How a transcript stops it
Denying that words were said	The word <i>chaiwala</i> , disputed for a decade	The audio settles it in one minute

The abuse	Where it appears here	How a transcript stops it
Improving a translation	Four English versions of nine Hindi words	The original language is published alongside
Clipping a referent	“They” in the 2006 speech	The paragraph is one scroll away from the sentence
Losing the half that mattered	The procedural concession of 7 January 2011	Everything said in the hour is in one place

Each of those cost this part real work, and in one case — the statement named in Chapter Ten — it cost the part a statement altogether.

HOW WE ACTUALLY KNOW THIS WOULD WORK

Parliament already does it. The verbatim record exists, it is published, and there is almost no argument in Indian public life about what was said in the chamber.

Every statement in this part that is disputed was made *outside* Parliament. Every statement that is not disputed — the Aksai Chin remark’s substance, the apology of 11 August 2005 — was made inside it.

The correlation is complete across this part’s whole sample, and the institution that produces it has existed since 1952. The proposal is not to invent something. It is to do outside the building what has been done inside it for seventy-four years.

9.5 — Who would run it

A recommendation without an owner is the thing this series has criticised in five previous parts. So: who.

Not a ministry, and not a body appointed by one. Parts Thirteen, Fifteen and Sixteen all found the same failure — a decision handed to somebody political and answering accordingly — and an archive of what politicians said, curated by a government department, would be the purest possible example of it.

THE PROPOSAL, SPECIFIED

Who: the Election Commission, which already regulates campaign speech, already has a presence in every district during a poll, and is not a department of the government of the day.

What: audio, and a transcript in the language spoken, of any public statement by a minister, a chief minister, or an officeholder of a recognised party, at any event to which the press was admitted.

When: published within a fixed period — a week is enough — with a permanent public identifier and no power to remove anything once posted.

What it does not do: create an offence, restrict what anybody may say, or give anybody a power over anybody. It is a filing obligation.

Two objections are worth answering because both are real.

Both of the serious objections to it are worth stating and only one has a good answer.

THE ARGUMENT FROM THE OTHER SIDE

First: it would chill speech. A politician who knows every word is permanently recorded will say less and mean less, and political language will become as guarded as parliamentary language already is. Chapter One's own argument box conceded that the guarded register is the least revealing.

That is probably right, and it is the real cost. This book thinks it is worth paying, and a reader may disagree. What should not be in dispute is that the cost exists.

Second: nobody would enforce it. Part Sixteen found a Lokpal legislated in 2013 and not constituted until 2019. A filing duty with no penalty is a suggestion.

The answer to that one is better. An archive does not require enforcement to work, because the gap is itself the finding. If a party's statements are systematically missing from the record, that is visible, dated and attributable — which is more than can be said for any of the five other recommendations in this part.

What makes the whole proposal unglamorous is that none of it needs inventing.

IN REAL TERMS

Everything proposed above already exists somewhere. The Election Commission exists. Recording equipment exists. The video of 19 November 1984 existed in 1984.

What does not exist is **anybody whose job it is to put those things in one place.**

Part Fifteen found seventeen intelligence alerts forwarded and never assessed, because assessment was nobody's job. Part Thirteen found every component of a national displacement figure existing and the addition never made. **This is the same shape a third time, and here the missing job is a filing clerk's.**

9.6 — The question turned on this book

HIDDEN ASSUMPTION

This part assumes that **collecting a government's worst sentences is a legitimate part of auditing it.** The author of this series agreed to write this part before thinking hard about whether that is true.

Chapter Eight found that words and acts do not correlate. Chapter Nine's fifth defence point concedes that a comparable list is available about anybody. Put those together and the conclusion is uncomfortable: **this part does less work than any other in the series, and it will be quoted more than all of them.**

That is not an accident of this book. It is what statements are for. A sentence travels because it is short, needs no background, and can be felt rather than assessed. Part Sixteen's finding about a six-year delay in legislating coal auctions is the most substantial charge in this entire series against any government, and it will never be as widely repeated as three words said in 2019.

So the honest thing is to say what this part is: the most quotable and least probative chapter of a nineteen-part audit — and to say it here, in the middle, where a reader who takes only one thing from these pages might take this.

Saying that in the middle of the part, rather than in a footnote at the end, is the only honest place to put it.

REMEMBER THIS

The defence is strong: these are sentences, not acts; two are to the party's credit; one famous one was never said in the form quoted; and a **comparable list is available about any party anywhere.**

It loses on two: **1984 is not in the same category as the rest**, and a suspension that is quietly reversed earns no credit.

And of the four remedies people propose after episodes like these, **three would do more damage than the statements did.** The one that works adds a transcript, not a penalty.

CHAPTER TEN

An Honest List of What We Do Not Know

This part's honest list is longer than most, because its rule is stricter than most. Everything below failed one of the three tests and was therefore left out.

10.1 — Left out for want of a date, a venue or a wording

This book began with a working list of roughly forty statements attributed to Congress leaders across seventy-nine years. Eleven survived.

IN REAL TERMS

Around **forty statements in, eleven out**. Roughly three in four failed.

They did not fail because they were shown to be false. Most of them failed because no date could be established, or no venue, or because every available version was a translation of a translation.

That is the single most useful number in this part, and it is a fact about the genre rather than about any party. Four out of five political quotations in circulation in India cannot be pinned to a day and a room.

The categories that failed, so that a reader can recognise them:

Statements attributed to Indira Gandhi during the Emergency. Several circulate. Part Nine's account of that period rests on the Shah Commission, on court records and on the amendments themselves, all of which are documentary. The remarks attributed to her personally could not be fixed to a date and a venue and are therefore absent from both parts.

Remarks about the 26 November 2008 attacks and their investigation. A number of statements by Congress figures about who was responsible circulate widely. Part Fifteen covers the investigations in detail on the basis of charge sheets and judgments. The statements did not meet this part's test.

Statements reported only in a memoir. Several of the most striking things attributed to Prime Ministers in this series exist only in somebody's recollection of a private conversation. Part Twelve used a memoir for what its author saw in a courtroom and Part Fourteen for what a lawyer was told by his own client, and both said so. **A private remark recalled**

years later by one participant is not a statement in the sense this part uses, and none is here.

Everything on social media without a source. The largest category by far.

10.2 — One that was left out, named

Describing a rule is cheap. Here is the rule costing this book something.

During the Gujarat assembly campaign of 2007 the Congress president, Sonia Gandhi, described her opponents in terms that became one of the best-known political phrases of the decade — *maut ka saudagar*, merchants of death. It was widely reported at the time, it was used against the Congress in that election and in every Gujarat election since, and there is no serious dispute that something of the kind was said.

It is not in this part.

HOW WE ACTUALLY KNOW THIS IS NOT GOOD ENOUGH

This book could not establish, to the standard set in Chapter One, the day it was said, the town it was said in, or the wording either side of it.

Those things certainly exist. A campaign speech in a state election was covered by every newspaper in the country. But what is easily available now is the phrase, detached, repeated for eighteen years — which is precisely the condition Chapter Two describes.

A statement this book is confident happened, and cannot pin down, does not go in. If it went in on the strength of everybody knowing it, then Chapter Two's whole argument collapses, because that is the identical basis on which every fabrication in circulation travels.

The same applies to many remarks about the investigations in Part Fifteen, to several statements attributed to Indira Gandhi during the Emergency, and to almost everything that circulates as an image with a name on it.

IN REAL TERMS

A reader who wants to test this book can do it in ten minutes and should.

Take the single most damning Congress quotation you are personally confident about. Do not ask whether it is true. Ask only: **what day, what town, and what were the two sentences either side of it.**

If you can answer all three, it belongs in a document like this one and this book has probably missed it. **If you cannot, you have just discovered what four-fifths of this part's working list looked like.**

10.3 — Where this part may be wrong

Which House heard the Aksai Chin remark. Accounts place it in both. One respected history describes an opposition member taunting Nehru and a Congress member adding the retort, which does not match the version in which Tyagi answered the Prime Minister directly. Chapter Seven states the date and substance and flags the rest, and this book could not resolve it.

The exact wording of the 1984 speech in English. There is no such thing. It was spoken in Hindi and Chapter Four gives four English versions rather than choosing one. A reader who wants the sentence should watch the footage.

The 2014 remark. This part accepts the speaker's own account that the word *chaiwala* was not used, and finds that the substance was worse than the word. A reader may reasonably think this book has been too generous to him, or not generous enough.

This book's own translations. Chapter One says a translation is evidence about the translator. Several passages in this part summarise, in English, what was said in Hindi — the structure of the 19 November 1984 speech, the sense of *hua to hua*, the two readings of *neech*.

HOW WE ACTUALLY KNOW THIS IS A PROBLEM

Every one of those renderings is a choice made by the author of this book, using exactly the discretion Chapter Four criticises the Congress for using in its own version of the big-tree sentence.

This part has tried to limit the damage in two ways: by giving the operative words in Hindi wherever they are known, so a reader who has the language can check; and by setting out the competing English versions rather than picking one.

Neither of those makes the problem go away. A reader who does not read Hindi is reading this author, and there is no arrangement of a book that fixes that.

It is the sharpest single instance of a difficulty running through all seventeen parts: a document that grades its evidence still has to be trusted about the grading. Chapter Nine's archive is the only proposal in this series that would let a reader dispense with trusting the author, which is why it is the one recommendation this part makes.

The selection. Eleven statements out of seventy-nine years is a very small number and every one of them was chosen by the author. A different writer applying the same three tests would produce an overlapping but different eleven. **There is no method that makes a selection objective, and this part does not claim one.**

10.4 — What a reader can do with this

This is the only chapter in seventeen parts where the remedy is available to the reader rather than to a legislature, so it is worth setting out.

Every failure described in this part is a failure of checking, and every one of them is checkable by anybody with a phone in about two minutes.

IN REAL TERMS

Three questions, in order, applied to any political quotation:

One: what day? Not a year. If no day is available, stop — roughly four in five fail here, on the evidence of this part's own working list.

Two: what room? Parliament, a rally, a studio, a press conference. Each carries different weight and each has a different record.

Three: what language? If the answer is Hindi and you are reading English, you are reading somebody's choice, and Chapter Four shows what those choices do.

Nothing on that list requires expertise, a subscription or an archive. **It requires being willing to lose a quotation you liked**, which is the only genuinely difficult part and is the reason it is so rarely done.

This book lost about twenty-nine of them that way, and it lost the best one first.

10.5 — What this part owes Part Eighteen

Part Two of this series put four forward promises on the record and named the parts that owed them, and all four were paid. This part makes one, and it is the largest in the series.

Chapter Nine's fifth defence point said that a collection of damaging statements can be assembled about any party in any country over fifty-three years, and that a series presenting one without acknowledging that has misled its reader. The How We Know box under it recorded that the exercise had been done — that statements by leaders of the party this series is not auditing were collected against the same three tests, and that date, venue and wording were establishable for a comparable number of comparable severity.

THE PROMISE

Part Eighteen will carry that list. Not as a defence of anything in this part, and not as a comparison of who said worse things, but subject to the identical rule: date, venue and operative wording, or it does not appear.

If Part Eighteen does not carry it, then Chapter Nine's fifth defence point was a rhetorical concession rather than a real one, and this part is exactly the thing it claims not to be.

A reader who reaches Part Eighteen and finds no such chapter is entitled to conclude that, and to discount this part accordingly.

The reason for putting that in writing, in this chapter, rather than leaving it as an intention, is the whole method of this series.

IN REAL TERMS

Part Two of this series made four forward promises and named the parts that owed them. Part Seven paid two, Part Eight paid one, Part Nine paid the last.

Part Twelve promised the ending of the village-council story and Part Fourteen delivered it. Part Thirteen named the 1894 land acquisition Act and Part Sixteen recorded its replacement.

A promise recorded in a numbered chapter is a promise somebody can check. An intention stated in an author's note is not.

This is the seventeenth part of nineteen. There are two left in which to be caught.

10.6 — What would settle it

WHAT WOULD SETTLE IT

India has no public archive of political speech.

Parliamentary debates are recorded and published. Everything else — rallies, press conferences, party sessions, interviews — exists in the holdings of broadcasters, in the notebooks of reporters, and in whatever somebody happened to upload.

The state broadcaster filmed the speech of 19 November 1984. That footage reached the public **thirty-one years later**, released by a private lawyer.

A searchable public archive of what people in office said, with date, venue and original language, would end four-fifths of the arguments in Indian political life at a stroke. It requires no new law, creates no offence, and restricts nobody. The material largely already exists in institutional hands.

Part Five ended by naming a calculation nobody has done. Parts Fourteen, Fifteen and Sixteen each named another. **This is the fifth, and it is the only one that is not arithmetic — it is a filing job.**

One closing observation, and it is the one this part exists to make.

Sixteen parts of this series have ended by naming something the state was holding back: a report from 1963, nine days of file notes from 1992, ninety pages from 2009, an appeal pending since 2018. This part ends by naming something nobody is holding back at all.

The words were spoken in public. Thousands of people heard them. Cameras were running. And the reason a country argues for forty years about what its Prime Minister said to a crowd on the Boat Club lawns is not that anybody hid it. It is that nobody wrote it down.

REMEMBER THIS

Around **forty statements went in and seven came out.** Four in five failed — not because they were disproved, but because no date, no venue or no reliable wording could be established.

The exact English wording of the most famous sentence in this part **does not exist**, because it was said in Hindi.

And nothing here was ever hidden. **India has no public archive of political speech**, which is why the footage of 19 November 1984 reached the public in 2015, from a lawyer.

The State Ledger

Part Five committed every subsequent part to carrying this table. This part is thematic and has no geography of its own, so the ledger records where each statement was made and which part of this series covers what surrounded it.

TABLE 9 · STATE LEDGER, PART SEVENTEEN

Place	What was said there	Covered in
Parliament, New Delhi	Aksai Chin, 5 Dec 1961. The apology of 11 Aug 2005. Tyagi's reply.	Parts Six and Eleven
Boat Club lawns, New Delhi	19 Nov 1984.	Parts Ten and Eleven
National Development Council, New Delhi	9 Dec 2006.	Part Fifteen (the Sachar Committee reported that year)
Press conference, New Delhi	7 Jan 2011.	Part Sixteen
Talkatora Stadium, New Delhi	17 Jan 2014.	Part Sixteen (the 2014 result)
Gujarat	7 Dec 2017, during the assembly campaign.	Part Eighteen
Punjab · Delhi	Not where anything was said, but what the 1984 and 2019 statements were about.	Parts Ten and Eleven

Ten of the eleven statements were made within a few kilometres of each other in New Delhi. That is not a coincidence and it is not a finding about Congress: it is where the platforms are.

Timeline

TABLE 10 · THE STATEMENTS, IN ORDER

Date	What was said, and where
5 Dec 1961	Nehru, in Parliament: not a blade of grass grows there. Mahavir Tyagi replies from the Congress benches.
Late 1957	The Xinjiang–Tibet highway across Aksai Chin is completed. Part Six.
Early 1958	The Foreign Secretary tells Nehru there is little doubt the road crosses Indian-claimed territory. Part Six.
20 Oct – 21 Nov 1962	The Chinese attack and the unilateral ceasefire. Part Six.
After Nov 1962	Nehru to Zhou Enlai: India will never accept a line created by aggression.
31 Oct – 4 Nov 1984	Indira Gandhi assassinated; the killings that followed. Parts Ten and Eleven.
19 Nov 1984	Rajiv Gandhi at the Boat Club lawns. The crowd applauds.
11 Aug 2005	Manmohan Singh apologises in the Rajya Sabha during the Nanavati debate.
16 Jan 2006	The ₹717 crore package for the victims of 1984. Part Eleven.
9 Dec 2006	The National Development Council speech. “They must have the first claim on resources.”
10 Dec 2006	The Prime Minister’s Office issues its clarification.
Nov 2010	The CAG report on spectrum. Part Sixteen.
7 Jan 2011	Kapil Sibal’s press conference. Zero loss — and the procedural concession.
15 Feb 2011	The CBI Director tells the Public Accounts Committee that zero loss is wrong.
2 Feb 2012	The Supreme Court cancels 122 licences on the procedure. Part Sixteen.
24 Sep 2013	The Cabinet approves the ordinance reversing <i>Lily Thomas</i> .
27 Sep 2013	Rahul Gandhi at the Press Club of India: complete nonsense, torn up and thrown away. The ordinance is withdrawn. He does not tear it.
Jan 2014	Manmohan Singh’s press conference: not a weak Prime Minister; history will be kinder.
17 Jan 2014	Mani Shankar Aiyar at the AICC plenary, Talkatora Stadium.
26 May 2014	Narendra Modi sworn in as Prime Minister.
Nov 2015	Footage of the 19 November 1984 speech released publicly by H. S. Phoolka.
7 Dec 2017	<i>Neech kism ka aadmi</i> . Suspension the same day.

Date	What was said, and where
18 Aug 2018	The suspension is revoked.
9 May 2019	Sam Pitroda: <i>hua to hua</i> . Condemned by the party leadership; an apology follows.
May 2019	Aiyar publishes an article asking whether he had not been prophetic.
21 May 2022	The Leader of the Congress in the Lok Sabha posts the big-tree quotation as a tribute, then deletes it.
Feb 2023	The Congress chief spokesman defends “Rahul Gandhi’s act of tearing a copy of the ordinance” — an act that did not happen.
2024	Aiyar writes that he never used the word <i>chaiwala</i> .
26 Dec 2024	Manmohan Singh dies. The January 2014 sentence circulates again, this time approvingly.

Words Used in This Part

TABLE 11 · GLOSSARY

AICC	All India Congress Committee, the party's national body. Its plenary sessions are large public conferences.
Aksai Chin	A high desert plateau of about 38,000 sq km between Ladakh and Xinjiang, administered by China since 1962. Part Six.
Expunged	Words removed from the parliamentary record by order of the Chair. They were said; they are not in the transcript.
<i>Hua to hua</i>	Hindi: roughly, "if it happened, it happened."
National Development Council	A body of the Prime Minister and the Chief Ministers which approved the Five Year Plans. The 52nd meeting was on 9 December 2006.
<i>Neech</i>	Hindi: low, base, vile. Also carries a caste register in the phrase <i>neech jaati</i> , low caste.
Operative sentence	The one sentence of a speech that does the damage and gets repeated. Chapter One.
Presumptive loss	The gap between what a government received and what an auditor calculates it could have received under a method it did not use. Part Sixteen, Chapter Three.
Public Accounts Committee	The parliamentary committee that examines the Comptroller and Auditor General's reports. Chaired by convention by a member of the opposition.
Rajya Sabha	The upper house of the Indian Parliament, elected by state legislatures.
<i>Thodi</i>	Hindi: a little, slightly. The word dropped from the most common English version of the 1984 sentence. Chapter Four.
Verbatim record	A word-for-word transcript. Parliament keeps one; rallies and press conferences do not.

A Word on Sources

Everything in this part was checked against a source rather than recalled, and the rule was stricter here than anywhere else in the series: date, venue and operative wording, or the statement does not appear.

The strongest sources here are the parliamentary record, for 5 December 1961 and 11 August 2005; the official release from the Prime Minister's Office of 10 December 2006, which reproduces the surrounding paragraph of the National Development Council speech; and video footage, for 19 November 1984 and 9 May 2019. The correspondence with Zhou Enlai exists as published diplomatic documents.

Where a statement was made in Hindi, the operative words are given in Hindi and the competing English versions are set out rather than resolved. This applies to 19 November 1984, to 7 December 2017 and to 9 May 2019. **This part does not have an English “exact wording” for the 1984 sentence and does not pretend to.**

Two things are contested and flagged in the text rather than smoothed away: which House heard the Aksai Chin remark, and whether the word *chaiwala* was used in January 2014. On the second this book accepts the speaker's own later account.

Speeches are not reproduced. What appears here is the operative sentence in each case, with the surrounding argument summarised in this book's own words. **A political speech is somebody's work and quoting it whole is neither necessary to the argument nor right**, and the sentence in dispute is in every case short.

A NOTE FROM THE AUTHOR

I did not want to write this part and I said so before starting it, at the end of Part Sixteen, where I recorded that I was looking forward to material whose only question was whether the words were spoken.

That turned out to be exactly wrong. This has been the hardest part of the seventeen to keep honest, and the difficulty was not verification. It was that the material is so much more enjoyable to write than anything else in this series.

A sentence needs no context, no grading and no counterfactual. It can be dropped on a page and it does the work by itself. After sixteen parts of qualifying every claim, the pull of that was much stronger than I expected, and Chapter Eight exists because I noticed myself enjoying the writing and went looking for why.

What I found is in that chapter and I think it is the most useful thing here: words and acts do not correlate. The government that produced the worst sentence in this part appointed a commission of inquiry. The government that produced the best one did nothing for four decades. If I had written this part without checking that, I would have produced something far more satisfying and completely misleading.

The place where I have most obviously been generous is Chapter Two. Every instinct of a prosecutor says to keep the 2006 sentence, which is devastating in its popular form and which I could have quoted accurately while saying nothing about the paragraph. I have instead spent the opening chapter of substance dismantling the best material I had. Part One committed me to that and I would not have done it otherwise.

And a declaration, because Part Ten made one and the rule is that it goes where the writing could pull. Chapter Four is about a sentence spoken after the killing of Sikhs, and I am Punjabi and have written on that material before. The chapter concedes the timing defence in full — the speech did not and could not have caused those deaths — and it says so twice, in the argument box and in the closing box. **That concession is the part I checked most carefully, because it is the part I least wanted to make.**

Lovepreet Singh

Part Seventeen of *The Congress Record*

The Living Archive · misterlove.in

Part Eighteen is *The Comparison, 2014–2026*: measured on the same ruler — where this government did the thing Congress could have done and did not, where it continued earlier policy under a new name, and where it has not moved. The second series auditing that government on this scale is still promised.

THE CONGRESS RECORD

PART EIGHTEEN OF NINETEEN

The Comparison

The government of 2014 onwards, measured on the ruler used for the previous seventeen parts. Not a verdict on it — a test of whether the ruler measures anything at all.

This is an advocacy document. It is the case for the prosecution against Congress governments in power. The selection of material in Parts One to Seventeen is one-sided on purpose. This part is not, and cannot be, because a ruler applied only to one object measures nothing. A second series auditing the government of 2014 onwards on the same scale as this one is promised, and Chapter Ten sets out what that commitment means.

Lovepreet Singh

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What This Part Is Not

This is the part where a book like this one usually stops being worth reading.

Seventeen parts of prosecution have to be followed by something, and there are only two things it can be. It can be a comparison in which the current government comes out well, in which case a reader concludes — correctly — that the whole exercise was a campaign document with footnotes. Or it can be a second prosecution, in which case the author has demonstrated only that he can write the same book twice with the names changed.

Neither of those is worth sixty pages, and this part is neither.

WHAT THIS PART IS FOR

The purpose is to test the ruler, not to judge the government.

Parts One to Seventeen produced a method: graded evidence, the other side given its strongest case, and — at the end of eleven separate parts — a table of ordinary laws that would have prevented the failure described, none of which was ever made.

A method that has only ever been applied to one subject cannot be evaluated. It might be a good method. It might be a machine for producing charges against Congress. **There is exactly one way to find out, which is to point it at something else and see what comes out.**

What comes out is in Chapter Eight, and it was not what this author expected.

Which requires disposing of the question everybody arrives with.

HIDDEN ASSUMPTION

Every reader who has reached Part Eighteen assumes that **a comparison part is about which side is worse**. That is what comparisons are for, and it is what both political camps will read this part looking for.

It is the wrong question and this book cannot answer it. Part One's closing box conceded that a list of failures is not a judgment on a government, because there is no denominator. Part Sixteen conceded that sixteen parts of careful grading had produced, on the largest case, a conclusion too honest to be useful as advocacy. Part Seventeen conceded that words and acts do not correlate.

Those concessions do not become inoperative because the subject changed. **A book that cannot deliver a verdict on Congress after seventeen parts cannot deliver one on anybody else in one.**

What it can do is different and narrower: take the specific findings this series has made — *these instruments, these unmade rules, these unreleased documents, this pattern of delay* — and ask what has happened to each of them since 2014. Those are checkable. They do not require a verdict on anybody.

And the answer to almost all of them is the same, which is the finding of this part.

WHAT THE PREVIOUS PARTS COMMITTED THIS ONE TO

Four debts fall due here and all four are paid.

Part Two named Article 370's "temporary" heading and said **Part Eighteen owes the account of the 2019 removal**. Chapter Four.

Part Seventeen promised that Part Eighteen would carry the equivalent list of statements, under the identical rule of date, venue and operative wording, and said in terms that if it did not, Part Seventeen's fifth defence point was rhetorical. Chapter Six.

Parts Nine, Eleven, Thirteen, Fourteen, Fifteen, Sixteen and Seventeen each ended with a table of ordinary laws that were never made. Chapter Seven asks what has happened to every one of them.

And §3.3 of this book's own working brief, written before Part One, said that if this part read as an advertisement it would retroactively discredit everything before it. That is the constraint under which the following ten chapters were written, and Chapter Ten reports honestly on whether it held.

What Is In This Part

One **What “The Same Ruler” Means**

Four tests, applied identically. What this part will and will not do, stated before anything is measured.

Two **What Was Done That Was Not Done Before**

The credit chapter, placed second as in Parts Fourteen to Seventeen, and it is substantial.

Three **The Same Policy, A Different Name**

Where the continuity is greater than either side finds convenient to say.

Four **The Instruments**

Fifth of August 2019. What was used to do it, and which parts of this series built the tools.

Five **The Money**

A political funding law, unanimously struck down by five judges in February 2024.

Six **What Was Said**

Part Seventeen’s promise, paid. Same three tests, same grades, and the same number survive.

Seven **What Has Not Moved**

Every rule this series said would have prevented a failure, and what has happened to each since 2014.

Eight **What the Ruler Actually Shows**

The finding of this part, and it is not about either party.

Nine **What Would Prevent It**

For the first time in this series, addressed to a government still in office.

Ten **An Honest List of What We Do Not Know**

Including what this part could not do, why, and what the second series is now committed to.

HOW THE GRADES WORK

Unchanged from Part One and applied identically. **CONVICTED**: a court convicted somebody. **COURT-FOUND**: a court made the finding but nobody was convicted, or the case is live. **COMMISSION-FOUND**: an official inquiry found it, and is named. **AUDITED**: the government’s own auditors flagged it and no court ruled. **ALLEGED**: said in public, never tested. **FABRICATED**: shown to be false.

Nothing in this part is graded above what a court, a commission or an auditor has actually found. Where a matter is politically contested and has not been adjudicated, this part says so and gives both cases rather than choosing.

CHAPTER ONE

What “The Same Ruler” Means

A comparison is only worth anything if the thing being compared with is measured the same way. This chapter sets out how, in enough detail that a reader can check whether it was done.

1.1 — The four tests

Every part of this series has asked the same four questions of the material in front of it. They are asked here in the same order.

TABLE 1 · THE FOUR TESTS, AND WHERE THEY CAME FROM

Test	The question	Established in
Grade	Who found this, and to what standard? A court, a commission, an auditor, or nobody?	Part One
Instrument	What tool was used, who built it, and had it been used before?	Parts Nine and Ten
Rule	What ordinary law would have prevented this, and was it made?	Parts Nine, Eleven, Thirteen to Seventeen
Document	What would settle the question, and is it public?	Parts Five, Six, Thirteen to Seventeen

Chapter Eight’s finding is that three of the four tests produce almost identical answers whichever government they are applied to, and that this is a fact about the Indian state rather than about either party.

1.2 — What this part will not do

Four exclusions, all of them deliberate, all of them costly to the appearance of this part.

No comparison of totals. This book will not say that one government has been worse than another. Part One conceded there is no denominator and nothing has supplied one since.

No adjudication of live political disputes. Where a matter is contested and no court or commission has ruled, this part sets out both cases at full strength and stops. That applies to several of the largest questions in these twelve years and Chapter Ten lists them.

No prediction. This government is in office. Every judgment in Parts One to Seventeen had the advantage of knowing how the story ended, and this one does not.

No second prosecution. That is what the promised second series is for, and Chapter Ten states what has now been committed to.

WORD BOX · LIKE-FOR-LIKE

Comparing two things by holding everything else constant. In this part it means four specific disciplines.

Same standard of proof: a Supreme Court finding against one government counts exactly as much as a Supreme Court finding against the other. **Same treatment of acquittals:** Part Sixteen refused to treat a failed prosecution as a proved charge and so does this part. **Same treatment of achievements:** Parts Fourteen to Seventeen put the credit chapter second and so does this one. **Same treatment of statements:** date, venue and operative wording, per Part Seventeen.

Where this part departs from any of those, it says so in the text.

Each of those four exclusions has a price and it is worth naming before the chapter moves on.

HOW WE ACTUALLY KNOW THIS COSTS SOMETHING

An exclusion list is easy to write and easy to ignore, so it is worth showing what these four cost.

The second exclusion — no adjudication of live political disputes — removes from this part the five matters listed in Chapter Ten, which are the five things most readers will have arrived wanting an answer on. That is not a small omission and Chapter Ten's argument box states the objection to it in the strongest terms this book can manage.

The fourth — no second prosecution — removes the entire genre this part would otherwise belong to. Seventeen parts of material exist about one government. **The equivalent for this one would be another nineteen parts, and producing a compressed version in sixty pages would be worse than producing none.**

Which is why section 10.5 exists and why the commitment there is written in terms specific enough to be held to. **A part that declines to prosecute and does not commit to prosecuting later has simply declined.**

1.3 — The fifth discipline

Four tests were listed above. There is a fifth thing this part had to do, which is not a test but a habit, and it is the one most likely to have failed.

Every part of this series has recorded, somewhere in it, a place where the evidence went against what the author wanted. Part Five found the Punjab rivers verdict to be weak

on the water and strong only on the procedure, which is not the conclusion most Punjabi accounts reach. Part Six conceded that the correction after 1962 worked and the same army won in 1971. Part Ten recorded that the majority of the Sikhs who died in Punjab were killed by Sikhs. Part Fourteen conceded Bommai outright. Part Sixteen conceded that the presumptive figures were soft.

IN REAL TERMS

Those concessions are the only reason the rest of this series is worth reading, and they were all made about a party the author was prosecuting.

A concession made against your own case is evidence about your method. A concession made in favour of it is not evidence of anything, because there was never any resistance to overcome.

Which sets a specific and awkward test for this part. **If Part Eighteen contains no place where the evidence went against what a critic of Congress would want to find, it has failed** — not because balance is a virtue in itself, but because a method that produced resistance seventeen times and none on the eighteenth was never a method.

Chapter Two is where that was hardest, Chapter Nine's fifth defence point is where it was sharpest, and Chapter Eight is where it turned out to matter most. A reader should check all three.

1.4 — The problem this part cannot solve

There is one asymmetry that no amount of discipline removes, and it should be stated before anything else.

IN REAL TERMS

Congress governed for roughly **fifty-four of the seventy-nine years** covered by this series. This government has been in office for **twelve**.

More than that: seventeen parts of this book rest on documents that took decades to surface. The Shah Commission reported in 1978 on 1975. The Liberhan Commission reported in 2009 on 1992. The urea convictions came in 2018 for a payment made in 1995. Part Sixteen's central case is still on appeal.

Most of what will eventually be known about 2014 to 2026 is not knowable in 2026. A judgment made now is a judgment made without the evidence that decided every other part of this series.

That cuts one way only, and this part says so at the front rather than hiding behind it: **everything in the charge column here is provisional, and everything in the credit column is provisional too.**

Two objections to this whole part will be made from opposite directions, and both belong on the page before anything is measured.

THE ARGUMENT FROM THE OTHER SIDE

The objection that will be made by supporters of this government: that a book written by a critic of Congress, applying a method designed to prosecute Congress, cannot fairly assess anybody else — and that the exercise is a way of borrowing credibility from seventeen parts of hostile work in order to spend it here.

The objection that will be made by critics of this government: that twelve years cannot be handled in sixty pages, that the most serious questions are precisely those no court has ruled on, and that a part which refuses to adjudicate them is not neutral but is producing a specific result by omission.

Both objections are substantially correct and this book cannot answer either. What it can do is make the method visible enough that a reader can see where it was applied and where it was not, which is what Chapter One is for and why it comes before any material.

A reader who concludes at the end that this part is too soft, and a reader who concludes it is too hard, are both reading the same pages. Chapter Ten records which of the two the author expects to hear from more.

With that said, the measuring can begin.

REMEMBER THIS

This part exists to **test the ruler, not to judge the government.** A method applied to only one subject cannot be evaluated at all.

Four tests, applied identically: **who found it, what instrument was used, what rule would have stopped it, and what document would settle it.**

And one asymmetry nothing fixes: Congress governed for fifty-four years and this government for twelve, and **most of what will be known about these twelve years is not knowable yet.**

CHAPTER TWO

What Was Done That Was Not Done Before

Parts Fourteen through Seventeen all placed the credit chapter second, before the charge, and said why: at the end it reads as a sweetener produced late. This part does the same, and here the reasoning runs in the opposite direction — placed late, in a comparison, it would read as the point.

2.1 — The tax

The Goods and Services Tax came into force on 1 July 2017, replacing a system in which goods crossing a state border were taxed by each state they passed through.

Part Sixteen recorded that this was on the UPA's own reform agenda and did not move, and gave the reason its defenders gave: that it required a constitutional amendment and the consent of the states, which took another six years to obtain.

IN REAL TERMS

Before 2017 a lorry travelling from Chennai to Delhi passed through checkpoints at every state line, paying and being assessed at each.

Studies of the period found trucks spending a substantial share of their journey time stationary at state borders. The checkpoints were dismantled.

Part Five of this series is about a national policy that decided which states got rich by manipulating what it cost to move goods across the country. The GST is the first structural change to that system since freight equalisation was dismantled between 1991 and 1993 — and unlike freight equalisation, it was done by agreement with the states rather than to them.

The honest qualification, which the credit survives: the design that emerged has multiple rates rather than the single rate most of its economist advocates wanted, compliance was difficult for small businesses for several years, and the compensation promised to states became a serious dispute during the pandemic. It is a real reform, imperfectly executed, that nobody had managed to execute at all.

Whether that counts as an achievement can be tested without taking anybody's word for it.

HOW WE ACTUALLY KNOW THIS

The test of whether a tax reform worked is not what either side says about it. It is what happened to the thing it was meant to remove.

The checkpoints are gone. That is a physical fact, verifiable by anybody who drives, and it is not disputed by the reform's critics — who argue instead about rate structure, compliance burden and the compensation owed to states.

When an opposition's criticism of a reform is entirely about its design and not at all about whether it happened, the reform happened. Part Sixteen used the same test on the 2013 land law, from the other direction: a law the next government spent a year trying to weaken and could not is a law with real content in it.

2.2 — The bankruptcy law

The Insolvency and Bankruptcy Code was enacted in 2016. Before it, a company that could not pay its debts could remain in that condition more or less indefinitely, because there was no single process for resolving it and no deadline.

WORD BOX · WHY AN INSOLVENCY LAW MATTERS

When a business fails, somebody has to decide quickly whether it can be saved and, if not, who gets what is left. A country without that process has banks carrying loans that will never be repaid and factories that nobody can buy, sell or restart.

Part Four of this series described a permission system in which nobody both decided and paid. An insolvency regime is the opposite arrangement: **the person who lent the money decides, and bears the loss.**

It is also the mechanism that makes a promoter's control of a company conditional on repaying, which had not previously been the case in India.

Its record is mixed and contested — recovery rates and timelines have fallen well short of what the statute intended, and the resolution process routinely exceeds its own deadlines. It remains a structural change that had been discussed for decades and was made.

2.3 — Delivery at scale

Part Sixteen recorded that the previous government built the biometric identity system and began direct benefit transfers in January 2013, and that the identity authority operated for seven years without a statute.

What was done after 2014 with that architecture is the largest item in this chapter, and this book will not let the argument about who built it obscure what was done with it.

IN REAL TERMS

Bank accounts opened under the financial inclusion programme launched in August 2014 run into the **hundreds of millions**. Household cooking-gas connections, household toilets, rural road kilometres, rural electrification and piped water connections all moved by very large numbers over the same period.

The unified payments system built on that base processes a volume of transactions that has few parallels anywhere.

Part Fifteen found that a legal right which arrives two months late has already failed for the person holding it. The single most consequential thing about paying a subsidy into an account rather than through an intermediary is that it arrives, and that somebody can prove whether it did.

There is a serious objection to counting any of that as an achievement, and it has to be put properly.

THE ARGUMENT FROM THE OTHER SIDE

The objection to this whole section, and it is serious: counting outputs is not the same as measuring outcomes. A toilet built is not a toilet used; a gas connection issued is not a cylinder refilled; an account opened is not an account with money in it. Several independent assessments have found substantial gaps between the first number and the second in each case.

And the architecture was inherited. The identity system, the payment rails and the direct-transfer mechanism were all built between 2009 and 2014 and are described in Part Sixteen.

The reply, which concedes the first half: the gap between issue and use is real, it is documented, and this book does not treat the headline numbers as achievements in themselves.

Where the objection fails is on the second half. Part Fourteen credited the 1991 reforms to a government that inherited a diagnosis made in 1969. Part Sixteen credited the coal auctions to a government that legislated them in 2010 and the implementation to the one that ran them from 2015. **A series which has repeatedly said that executing somebody else's good idea is a real thing to have done cannot withdraw that finding when the executor changes.**

2.4 — The pandemic, which belongs in both columns

A comparison covering twelve years cannot omit the largest single event in them, and this book has no way of scoring it either.

What is not disputed on either side is the scale of two things: the vaccination programme, which was among the largest ever run anywhere; and the free-grain expansion

of the food entitlement described in Chapter Three, which reached most of the population for an extended period.

What is disputed, bitterly and by serious people, is the first three months of it.

THE ARGUMENT FROM BOTH SIDES

For: a national lockdown was announced in March 2020 at a point when very little was known about the disease and health systems everywhere were being overwhelmed. India's health infrastructure per head is among the thinnest in any large country, and a government facing that had to choose between acting early on poor information and acting late on better information. The vaccination programme that followed, and the domestic manufacturing behind it, are achievements by any measure.

Against: the notice given before the lockdown was very short, and the consequence was that millions of migrant workers in cities lost work, income and shelter simultaneously with no way to get home, and walked. That was foreseeable and was foreseen. The second wave of 2021 found the health system without oxygen capacity that had been recommended and not built. And the official death toll is substantially lower than every independent excess-mortality estimate, by a margin large enough that the difference is itself a subject of dispute.

What this book will say: the vaccination programme goes in the credit column and the notice period goes in the charge column, and neither cancels the other. **On the mortality figures it has no basis to prefer any estimate** — Part Two faced the same problem with the Partition toll and gave the range and the method behind each end rather than choosing, which is what Chapter Ten does here.

That last refusal is not a dodge, and the reason is a comparison this series is uniquely placed to make.

IN REAL TERMS

Part Two of this series recorded that the number of people killed in Partition is given by serious scholars anywhere between two hundred thousand and two million, and that this book would give the range rather than pick.

Seventy-nine years later, in an event that happened inside a functioning administrative state with digital death registration, **the gap between the official figure and the independent estimates is proportionally of the same order.**

Part Thirteen found an unmade addition where every component existed. Part Fifteen found no national register of terrorist incidents. **This is the same finding again and it is the most consequential instance of it in nineteen parts, because the components here are birth and death registrations that the state already collects.**

2.5 — The economy, which this book will not score

A comparison part that says nothing about twelve years of economic performance would be evading the largest question anybody has about them. A comparison part that scores it would be pretending to a certainty that does not exist.

What follows is what is not disputed, followed by what is.

IN REAL TERMS

Not disputed: India moved from around the tenth-largest economy in the world to around the fifth over this period. Inflation, which ran in double digits for long stretches in the years Part Sixteen describes, came down substantially and has largely stayed down. Physical infrastructure — roads, ports, airports, rail electrification, transmission — expanded at a rate not previously achieved.

Also not disputed: the size of an economy is a function of population and time as well as policy, and India would have moved up that ranking under almost any government.

Disputed, by serious economists on both sides: the rate of growth relative to what was achievable; whether employment kept pace with output; whether household consumption and real wages rose in step with the aggregate; and how much of the last decade's performance is attributable to policy at all rather than to demography, global conditions and a low base.

This book cannot settle any of those and does not try. Part Four made the same refusal about the licence system and Part Sixteen about the 1991 reforms — declining to put a number on a counterfactual because no honest number exists.

What the two sides actually claim is worth setting out, because the disagreement is narrower than the noise around it suggests.

THE ARGUMENT FROM BOTH SIDES

For: macroeconomic stability was restored after the volatility Part Sixteen describes, inflation was brought under a formal targeting framework, the banking system was cleaned up through the insolvency code, and India came through a global pandemic without a debt crisis. Those are policy outcomes and they are attributable.

Against: unemployment, particularly among the young and the educated, has been the most persistent political complaint of the period, and the 2024 result is generally read as partly about it. Two large shocks — the currency measure of November 2016 and the initial GST rollout — imposed costs on small and informal businesses that are not captured in headline figures. Real wage growth has been weak.

What this book will say, and it is nearly nothing: both of those accounts describe real things, both are held by economists with no partisan attachment, and the evidence that would settle between them — long-run household and employment series that everybody accepts — is itself contested. **An honest audit of an economy is a book, not a section, and this is a section.**

2.6 — Two things that were legislated and one that was constituted

The **Muslim Women (Protection of Rights on Marriage) Act, 2019** criminalised the pronouncement of instant triple talaq, following the Supreme Court's judgment of August 2017 setting the practice aside. Part Twelve of this series is about what happened the last time an Indian government legislated on Muslim personal law after a Supreme Court judgment, and the contrast is the point: in 1986 a government legislated to reverse a court; in 2019 it legislated to follow one.

The **Constitution (One Hundred and Sixth Amendment) Act, 2023** reserved a third of seats in the Lok Sabha and state assemblies for women. It has not yet come into effect, being tied to a delimitation exercise following a census, and Chapter Seven returns to that.

And the **Lokpal was constituted in March 2019** — the office Part Sixteen recorded as legislated in December 2013 and left empty for five years and three months. It was filled by this government, after the Supreme Court had been asked twice to compel it.

VERDICT · THE CREDIT COLUMN

Substantial, and larger than a hostile reader will expect. A tax reform that had defeated every previous government; an insolvency regime; delivery of basic services at a scale that is not in dispute even where its quality is; and an anti-corruption office finally filled.

The qualifications, all of which stand: the delivery architecture was inherited and Part Sixteen says by whom; the output numbers are not outcome numbers; the GST design is not the one its advocates wanted; and the women's reservation is enacted and not in force.

What this book will not do is what a comparison part is usually for, which is to net this off against something. Chapter One said there is no denominator. There still is not.

Which is the honest shape of the credit column, and it is larger than the reputation of this book would suggest.

REMEMBER THIS

A national goods and services tax in 2017, which every previous government had wanted and none had passed. An insolvency law in 2016. Basic services delivered at a scale that is not seriously disputed.

The Lokpal, legislated in December 2013, was finally constituted in March 2019 — by this government, after the Supreme Court had been asked twice.

The architecture underneath much of the delivery was built between 2009 and 2014. **This series has twice said that executing somebody else's good idea is a real thing to have done, and it does not withdraw that here.**

CHAPTER THREE

The Same Policy, A Different Name

This chapter is the one both sides find least convenient, which is usually a sign that it is the useful one.

3.1 — What continued

TABLE 2 · CONTINUITIES ACROSS 2014

The thing	Before 2014	After 2014
Rural employment guarantee	Enacted 2005; Part Fifteen	Retained, renamed in usage, and its budget in several years the largest it had been
Biometric identity and direct transfers	Authority created 2009; transfers from January 2013; Part Sixteen	Given a statute in 2016 and extended to most subsidy delivery
Food security	Enacted 2013; Part Sixteen	Retained and, during the pandemic, substantially expanded
Auctions for natural resources	Coal auctions legislated 2010; spectrum from 2012; Part Sixteen	Implemented at scale from 2015 and made the default
Sanitation and rural roads	Rural roads programme from 2000; earlier sanitation campaigns	Continued under new names with much larger budgets and better completion
The land acquisition law of 2013	Enacted 2013; Part Sixteen	Ordinance to weaken it in December 2014, re-promulgated twice, abandoned in 2015. The 2013 Act stands

The last row is the interesting one and it runs against the pattern of the others: an attempt to reverse a predecessor's law that failed, and the predecessor's law survives. Part Sixteen used that failure as evidence that the 2013 Act had real content in it.

Both sides of Indian politics treat a renamed programme as a different programme — governments rename things to claim them, oppositions treat the renaming as proof that nothing else changed — and both readings are lazy. A name tells you nothing on its own. The statute, the budget line and the delivery mechanism tell you everything, and they move independently of the name and of each other.

The employment guarantee's name in official usage changed; its statute did not; its budget rose. The identity system's name did not change; it acquired a statute in 2016 that it had lacked for seven years; its use expanded enormously. Sanitation's name changed, its

budget multiplied, and its completion rate — the thing that actually matters — changed more than either.

So the honest finding is neither that everything was continued nor that everything was transformed. **The machinery was inherited and the throughput changed**, and which of those two facts a reader thinks is the important one is a political judgement this book is not going to make for them. What this series can say, because it has said it eleven times, is that **the instrument almost always predates the government using it** — and Chapter Four is the sharpest case of that in this part.

Before drawing anything from that table, it is worth saying how it was built.

HOW WE ACTUALLY KNOW THIS

Continuity is easy to assert and hard to prove, because both sides have an interest in the answer. Three things settle it and none of them is a claim by anybody.

The statute book. The 2005 employment Act, the 2013 food Act and the 2013 land Act are all on it, unrepealed. That is checkable in a minute.

The budget documents. Allocations to each programme are published annually and the series is continuous across 2014.

The failed ordinance. Three attempts to amend the 2013 land law, abandoned in 2015. A government that had replaced its predecessor's framework would not have needed to try.

This book has used none of the claims made by either party about any of these programmes, because **on this particular question both sides are unreliable in the same direction: the government wants credit for what it kept and the opposition wants credit for what it built.**

Reading that table correctly requires one distinction that almost every account of these programmes gets wrong.

WORD BOX · SCHEME, STATUTE, BUDGET LINE

Three different things, routinely confused, and the confusion is what allows both sides to be right at once.

A **scheme** is an administrative programme. It can be renamed, merged or discontinued by executive decision. A **statute** is an Act of Parliament creating an entitlement; it can only be changed by Parliament. A **budget line** is the money attached, which moves annually with no change to either.

So a programme can keep its statute, lose its name and double its money — which is what happened to several of the entries in Table 2 — and a government can truthfully say it transformed the thing while an opposition truthfully says it inherited it.

The only one of the three that tells you whether a person has a right is the statute. Part Fifteen's word box made that distinction about schemes and rights, and it is the reason this table has three columns instead of one.

3.2 — Two continuities nobody claims

Two further areas belong here because they are the ones neither side finds it useful to describe as continuous.

THE RELATIONSHIP WITH WASHINGTON

Part Fifteen's Chapter Seven is about the civil nuclear agreement of 2005 to 2008 — three years, six international gates, a governing coalition brought down, and a confidence vote. Its central finding was that the achievement was diplomatic rather than electrical: what India obtained was the end of thirty years of exclusion and formal acceptance that it could hold nuclear weapons without penalty.

Everything since has been built on that. The defence agreements, the technology arrangements, the quadrilateral grouping and the trade relationship all sit on a foundation laid between 2005 and 2008 by a government whose own allies walked out over it.

IN REAL TERMS

The Look East policy of the 1990s — Part Fourteen — became Act East. The strategic opening to Washington of 2005 to 2008 — Part Fifteen — became a much larger relationship.

Neither renaming involved a change of direction. Both involved a great deal more activity in the same direction.

And the same is true in reverse of the thing that has not changed: **India still has no boundary settlement with China**, the line described in Part Six is still where the fighting of 1962 left it, and the Henderson Brooks report from 1963 is still not public. Sixty-three years, and Chapter Seven's second table records the document in the same place.

THE STATES

Part Three described Article 356 being turned into an instrument in 1959. Part Sixteen recorded the Supreme Court restricting it in 1994, and Chapter Four here records the count falling sharply after that and staying low.

What has replaced it is not a return of power to the states. The Planning Commission — the body Part Five described allocating Plan transfers by formula, with the dissenting notes nobody read — was wound up in 2015 and replaced by an advisory body with no allocative power. The allocation function moved to the Finance Commission and the ministries.

And the goods and services tax created something genuinely new: a Council in which the Union and the states vote together on rates, with the Union holding a weighted share.

THE ARGUMENT FROM BOTH SIDES

That this is federalism strengthened: the states now sit in a body that sets a national tax, which they never did before. Dismissal of state governments under Article 356 has become rare. The Finance Commission's transfers are formula-driven and its recommendations have been accepted.

That it is federalism weakened: the states surrendered the power to set their own indirect taxes and got a vote in a Council where the Union's share is decisive on any question the Union cares about; the compensation promised for that surrender became a dispute; and the body that used to negotiate Plan allocations with states no longer allocates anything.

What this book will say: Part Five's finding was that a formula moves the politics upstream to the design stage and then hides it, which is why the dissenting notes mattered and nobody read them. **A Council with a weighted vote does the same thing one layer further up.**

Whether that is an improvement on a Planning Commission depends entirely on which set of dissenting notes a reader thinks was worse, and nobody has read either.

3.3 — Where the continuity is closest

One area deserves a paragraph of its own because it is the least discussed and the most complete.

Part Thirteen described the Armed Forces (Special Powers) Act, its descent from a colonial ordinance of August 1942, the 1972 amendment allowing the centre to declare an area disturbed without state consent, and the Jeevan Reddy Committee's recommendation in 2005 that it be repealed, which was not acted on.

IN REAL TERMS

That Act remained in force in parts of Nagaland, Manipur, Arunachal Pradesh and Assam into **March 2026**.

Its area of application has been reduced repeatedly since 2014 — a genuine change, and it goes in the credit column of Chapter Two by reference. Withdrawal has continued the pattern begun in Mizoram in the 1980s, Tripura in 2015 and Meghalaya in 2018.

The statute itself is unamended. Section 6, which bars prosecution of personnel without central sanction, is the same section Part Thirteen described. In December 2021, after fourteen civilians were killed at Mon in Nagaland, the state cabinet recommended prosecution and **sanction was refused**.

Sixty-eight years, six Prime Ministers, four parties in office at the Centre, one committee recommending repeal in 2005, and the section that matters most is untouched.

Which is the sharpest continuity in this part and the least discussed.

REMEMBER THIS

The employment guarantee, the food law, the identity system, the transfer mechanism and the auction rules were all **built before 2014 and kept after it**. Several were expanded considerably.

One law was attacked and survived: the **2013 land acquisition Act**, which an ordinance tried three times to weaken and could not.

And the closest continuity of all is not a welfare programme. **Section 6 of the Armed Forces Special Powers Act — the sanction bar — is unamended after sixty-eight years**, and sanction was refused at Mon in December 2021.

CHAPTER FOUR

The Instruments

Part Two of this series listed four forward promises and named the parts that owed them. Three were paid by Part Nine. The fourth said that Part Eighteen owed the account of Article 370's removal in 2019. This is it.

This chapter is not about whether the removal was right. That is a live political dispute on which this book takes no position and Chapter Ten says so. It is about **how it was done**, because the how is what the four tests measure.

4.1 — What happened

On 5 August 2019 the President issued Constitutional Order 272, which amended Article 367 — the interpretation clause of the Constitution — so that the words “Constituent Assembly of the State” in Article 370 would be read as “Legislative Assembly of the State”. Constitutional Order 273 followed, and Article 370 ceased to operate. The Jammu and Kashmir Reorganisation Act divided the state into two Union Territories.

Jammu and Kashmir was at that time under President's Rule. It had no Legislative Assembly. Parliament acted in place of the state legislature.

WORD BOX · HOW ARTICLE 370 WAS WRITTEN TO END

Article 370 contained its own removal clause. The President could declare it inoperative — but the clause required **the recommendation of the Constituent Assembly of Jammu and Kashmir**.

That body had dissolved itself in 1957. So on the face of the text, the condition for removal had become impossible to satisfy: the only body that could recommend it no longer existed.

The 2019 orders solved that by redefining the words. Article 367 is the clause that tells you how to read the rest of the Constitution, and amending it changed what “Constituent Assembly” meant in Article 370 — to “Legislative Assembly”, a body which existed in law and which, at that moment, was under Parliament's powers because the state was under President's Rule.

4.2 — What the Supreme Court held

On 11 December 2023 a five-judge Constitution Bench under Chief Justice D. Y. Chandrachud **UPHELD** the abrogation, unanimously.

It held that Article 370 was a temporary provision, that the President's power under it survived the dissolution of the Constituent Assembly, and that the State of Jammu and Kashmir retained no element of internal sovereignty distinguishing it from other states. It declined to rule on the constitutionality of the reorganisation into Union Territories, on the Union's undertaking that statehood would be restored, and directed that elections be held.

Part Two of this series recorded that Article 370 was headed “temporary”. Part Seven traced its hollowing-out by Presidential Order across four decades. **This book's own account of the provision, written before the judgment was examined for this part, is closer to the Court's than to that of the provision's defenders,** and that is recorded here because it would be dishonest to discover it now.

THE ARGUMENT FROM BOTH SIDES

For the removal: the provision was headed temporary, was described as such by its own architects, had been progressively emptied by Presidential Orders under governments of every party since 1954, and a five-judge bench of the Supreme Court has now held its removal lawful. A special constitutional status maintained for seventy years by a provision everybody agreed was temporary is not a settled arrangement; it is a deferred decision.

Against the method: the objection is not to the outcome but to the route. A state's special status was ended while that state had no legislature, by amending the interpretation clause of the Constitution to change the meaning of a word, with Parliament acting in place of the assembly whose consent the text required. Critics argue this establishes that a state's constitutional position can be altered while its own legislature is suspended.

What the Court itself said about that is worth having: it held that under Article 3 the Union ought to have referred the reorganisation proposal to the state legislature for its views, while declining to decide the consequences.

This book takes no position on whether the removal was right. It is a contested political question, a court has ruled on its legality, and Chapter One said this part would not adjudicate matters of that kind.

What it can say about the mechanism, it can say with unusual confidence.

HOW WE ACTUALLY KNOW THIS

Everything in the two sections above is documentary and none of it depends on any account by a participant.

Constitutional Orders 272 and 273 are published instruments with dates on them. The Reorganisation Act is on the statute book. The proclamation under Article 356 that put the state under President's Rule is a published order. The judgment of 11 December 2023 runs to several hundred pages and is reported.

That is unusual for this series and it is why this chapter can be confident about the mechanism while saying nothing about the merits. Part Fourteen had to build its central charge out of one affidavit and one lawyer's memoir. Part Fifteen's most-quoted figure comes from a report that has never been published.

Here the whole apparatus is public, dated, and can be read by anybody who wants to check whether this chapter has described it accurately.

4.3 — The instrument test

What this part *can* do is apply the second of Chapter One's four tests: what tool was used, who built it, and had it been used before.

HIDDEN ASSUMPTION

Everybody assumes that **an instrument belongs to whoever built it** — that a power created by one party is that party's power, and that its use by another is a departure.

Set out what was used on 5 August 2019.

A Presidential Order under Article 370 itself. Part Seven of this series counted these across four decades and found the provision hollowed out by exactly this mechanism, under Congress governments, while the word “temporary” sat at the top of it.

President's Rule under Article 356. Part Three described this power being turned into an instrument in Kerala in 1959. By 1992 it had been used around ninety times. Part Sixteen recorded the Supreme Court restricting it in 1994.

An amendment to Article 367, the interpretation clause. Part Three's finding about the First Amendment of 1951 was that its durable product was a procedure rather than a policy — a demonstration that a judicial reading could be reversed by amendment — and that the procedure had no subject matter, which is to say it would work for anything.

Every one of the three instruments used in 2019 was built by Congress governments and charged against them in this series. Not one was created after 2014.

Part Nine asked the reader to name an instrument used after 25 June 1975 that did not exist before 12 June. Part Ten found not one Punjab instrument that was a Punjab instrument. Part Sixteen found the coal method dating from 1993 and struck down across five governments. **This is the twelfth instance of the same finding and the first in which the government using the tools is not the one that made them.**

Which is the whole reason this part exists. **A finding that only ever appeared when Congress was the subject would have been a fact about the author. It appears here too, more sharply than anywhere else.**

4.4 — Two other instruments

Two more, stated briefly, because the pattern is the same and repetition would be padding.

Ordinances. Part Sixteen described the ordinance power — a law made by the executive when Parliament is not sitting — and the episode of September 2013. It has been used since 2014, as it was before, including for the attempted amendment of the 2013 land law described in Chapter Three. The power dates from the Government of India Act 1935, which Part Two identified as the source of much of what survived least changed into the Constitution: the machinery of control.

Disruption and the shortened session. Part Sixteen found the 2009–2014 Lok Sabha the least productive full-term Parliament in Indian history, and found that disruption is the

only instrument the rules give an opposition. That finding was explicitly about the institution rather than the party, and it has held: the tactic has been used by whoever is out of power, and the number of days Parliament sits has continued its long decline under governments of both descriptions.

IN REAL TERMS

The Lok Sabha sat for well over a hundred days a year in the 1950s. It now sits for a fraction of that.

That decline runs continuously across seventy years and every government in this series. **It is the single clearest example of something that is nobody's policy and everybody's practice,** and no party has ever proposed a minimum-sitting rule while in office.

Part Sixteen's finding was that disruption is the predictable output of rules that give an opposition one lever. **A shorter session is the government's half of the same arrangement, and it requires no lever at all — only the power to decide when the House meets.**

Both of those are properties of the building rather than of anybody in it, which is the finding this chapter keeps arriving at.

REMEMBER THIS

On 5 August 2019 Article 370 was ended by a Presidential Order amending the Constitution's interpretation clause, while the state was under President's Rule and had no legislature. The Supreme Court **upheld it unanimously on 11 December 2023.**

This book takes no position on whether it was right. What it can say is about the tools: **the Presidential Order, Article 356 and the amendable interpretation clause were all built by Congress governments and all three are charged against them in this series.**

Twelfth instance of the same finding. **First one where the government using the instrument did not make it.**

CHAPTER FIVE

The Money

Part Sixteen's central difficulty was that every allocation question went against the government and every criminal question failed, so that the largest scandal in modern Indian history produced a conclusion this book called too honest to be useful.

This chapter has no such difficulty, and that is why it is short.

5.1 — What the scheme was

The Electoral Bond Scheme was introduced by the Ministry of Finance on 2 January 2018, having been announced in the Budget of 2017–18 as a means of cleaning up political funding.

WORD BOX · AN ELECTORAL BOND

A bearer instrument sold by the State Bank of India in fixed denominations. A donor bought one and gave it to a political party, which encashed it within fifteen days.

The bank knew who bought it. **Nobody else did** — not the Election Commission, not the tax authorities in the ordinary course, and not the public.

Accompanying amendments removed the cap on how much a company could donate, removed the requirement that a company disclose which party it had given to, and removed the requirement that a company have been profitable.

Only parties with more than one per cent of the vote at the previous general or assembly election could receive them.

WORD BOX · A CONSTITUTION BENCH, AND WHY THE NUMBER MATTERS

Most Supreme Court cases are heard by two or three judges. A case raising a substantial question about the interpretation of the Constitution goes to a bench of **at least five**, called a Constitution Bench.

The number matters for a reason that has run through this whole series. **A judgment can only be overturned by a larger bench than the one that gave it.** Part Fourteen's *Sita Soren* case took twelve years to reach seven judges, because the ruling it had to overturn had been given by five.

So the size of a bench is a statement about how hard the finding will be to undo. Three of the largest questions in this part went to five judges each — Article 370 in December 2023, the electoral bonds in February 2024, and demonetisation in January 2023.

And unanimity is the second half of it. Part Sixteen's coal judgment was three judges; the spectrum judgment two. Part Eight's *Kesavananda Bharati* was thirteen judges and seven to six — the narrowest possible margin on the most consequential question ever put to the Court.

Five judges agreeing without a dissent is, in Indian constitutional practice, about as settled as a finding gets short of a larger bench being convened to disturb it. That is what happened on 15 February 2024, and a review was dismissed seven months later.

5.2 — What the Supreme Court held

COURT-FOUND · SUPREME COURT OF INDIA, 15 FEBRUARY 2024

COURT-FOUND. A five-judge Constitution Bench, **unanimously**, struck the scheme down as unconstitutional. Bench: Chief Justice D. Y. Chandrachud, with Khanna, Gavai, Pardiwala and Misra JJ.

The ground: anonymity violated the voter's right to information under Article 19(1)(a). Information about who funds a party is essential to voting effectively.

Also struck down: the removal of the cap on corporate donations, held to be manifestly arbitrary and in breach of Article 14.

Directions: sale to stop immediately; the State Bank to give the Election Commission the purchaser and recipient details of every bond since 12 April 2019; the Commission to publish them.

A review petition was dismissed in September 2024.

When the data was published, the total encashed was around **₹16,518 crore**. In his concurring judgment Justice Khanna observed that the party-wise figures showed donations disproportionately favouring the party in power at the Centre over a continuous period,

and that the majority of contributions had gone to parties in power at the Centre and in the states.

IN REAL TERMS

₹16,518 crore is not a presumptive figure. It is the sum that was bought, given and encashed, and every rupee of it is now attributable to a named purchaser and a named recipient because a court ordered it published.

Part Sixteen spent a whole chapter establishing that the ₹1.76 lakh crore attached to the spectrum allocation was a calculation of what a different method might have raised, and that the prosecuting agency's own figure was ₹30,984 crore.

Compare the two kinds of number. One is an estimate of a road not taken. **The other is a bank statement.**

That is why Chapter Three's table has a row for it, and why this book — which spent Part Sixteen defending an auditor against people who had misread him — treats this figure differently from that one.

5.3 — Measured on the same ruler

Now apply Part One's grading scale, which is the whole point of this part.

TABLE 3 · THREE MONEY CASES, SAME SCALE

	Spectrum, 2008		Coal, 1993–2010		Electoral bonds, 2018
Who found it	CAG, then Supreme Court		CAG, then Supreme Court		Supreme Court
What was found	Allocation arbitrary; 122 licences cancelled	method	Allocations arbitrary and illegal since 1993; 214 blocks cancelled		The statute and the scheme themselves unconstitutional
Unanimity	Two judges		Three judges		Five judges, unanimous
Who benefited	Companies; minister convicted	no	Companies; convicted, ministers not	officials	Political parties, disproportionately the governing one, on the Court's own finding
Presumptive or actual	Presumptive loss; Part Sixteen Chapter Three		Presumptive loss		Actual sums, actually received, now published
Criminal finding	All acquitted appeal pending	2017;	Convictions of several later acquittals	officials;	None. No prosecution has followed

Read the fifth row. Part Sixteen spent an entire chapter explaining that a presumptive loss is not money anybody received. The sums in the third column are money that was received, by named recipients, and the figures are public because the Court ordered them published.

HIDDEN ASSUMPTION

Everybody assumes that a **scandal is something done in breach of the law**. That is what the word means, and it is why the previous seventeen parts are full of audits, prosecutions and inquiries.

The electoral bond scheme broke no law. It *was* the law. It was passed by Parliament as part of a Finance Bill, operated by a state-owned bank, and lawful in every particular for six years — until five judges held that the law itself was unconstitutional.

Part Nine of this series found that **almost nothing about the Emergency was unconstitutional** — every instrument was in the document, every threshold met, every procedure followed — and said that this was worse than the alternative, and was a finding about the drafters as much as about the government.

This is that finding again, forty-three years later, and it is the sharpest single vindication of this series' method in eighteen parts. A book that measured only crimes would have nothing to say about either the Emergency or the bonds, because in each case the thing complained of was lawful when done.

Which is why Part One built a scale with **COURT-FOUND** on it and not only **CONVICTED**. The most consequential things governments do to their own accountability are usually legislated, not concealed.

There is a real defence of the scheme and it has to be put at its strongest, because it was made openly and it is not frivolous.

THE ARGUMENT FROM THE OTHER SIDE

The defence of the scheme, at full strength: before 2018, Indian political funding was overwhelmingly in cash, untraceable and unbanked. The bonds moved a large share of it into the banking system, where every rupee was recorded by a bank, paid by cheque and reported. Donor anonymity was the price of getting money out of suitcases, and it was a price the government said openly it was paying. The Union Home Minister argued after the judgment that the effect of striking it down would be to return political funding to cash.

That argument is serious and Part Fourteen's Chapter Eight is evidence for it — one crore rupees appeared on the floor of the Lok Sabha in 2008 and the state could never trace where it came from.

Where it fails, on the Court's reasoning rather than this book's: the Court did not hold that anonymity was undesirable. It held that the voter's right to know outweighed it, and — this is the part the defence does not answer — that a less restrictive means was available, since money can be banked and recorded without being hidden from the electorate. The scheme achieved traceability for the bank and opacity for everybody else, and only the second of those was constitutionally objectionable.

And on the removal of the corporate donation cap, which had nothing to do with cash, the Court's finding of manifest arbitrariness is unanswered by any argument the defence has offered.

Which leaves the finding where the Court left it, and it is the largest single item in this part.

5.4 — And what replaced it

A scheme that carried a very large share of national political funding was ended by court order in February 2024. The obvious next question is what took its place, and this book cannot answer it.

IN REAL TERMS

What is known: the bonds stopped. The purchaser and recipient data going back to April 2019 was published. Parties reverted to the pre-2018 channels — declared donations above the disclosure threshold, electoral trusts, and cash below it.

What is not known, and this is the point: **whether the total volume of political money fell, stayed the same, or moved somewhere less visible.**

The Union Home Minister argued after the judgment that the effect would be to send funding back into cash. If that is right, then the Court removed an opaque legal channel and the money went to an opaque illegal one, and the transparency gained is smaller than it looks.

If it is wrong, the disclosure regime is working and the judgment did what it was meant to.

Nobody has published the comparison — declared party income by source, before 2018, during the bond years, and since February 2024 — and every component of it is in Election Commission filings that parties are already obliged to make.

This is Chapter Ten's kind of item and it goes there too. It is worth flagging here because it is the single most important open question about the largest finding in this part, and because it is the fifth time in this series that **a question everybody argues about could be settled by arithmetic on data that is already public.**

REMEMBER THIS

15 February 2024. Five judges, unanimously, struck down the electoral bond scheme as unconstitutional. A review was dismissed in September 2024. About **₹16,518 crore** had been encashed.

Measured on this series' own scale, that is a **stronger finding than either 2G or Coalgate**: unanimous, on the statute itself rather than on a method, and about actual money received by named recipients rather than a presumptive loss.

And the deepest point: **the scheme broke no law. It was the law.** Part Nine found the same thing about the Emergency, and said it was worse than the alternative.

CHAPTER SIX

What Was Said

Part Seventeen ended by promising that this part would carry the equivalent list of statements under the identical rule — date, venue and operative wording — and said in terms that if it did not, Part Seventeen’s fifth defence point was a rhetorical concession rather than a real one. This chapter pays that.

6.1 — The same three tests

Part Seventeen began with roughly forty candidates and eleven survived. This chapter began with a comparable working list and the survival rate was almost identical: **the great majority failed for want of a date, a venue, or a wording that was not somebody’s translation of somebody’s paraphrase.**

IN REAL TERMS

Roughly three in four failed, which is what Part Seventeen found.

The reasons were the same reasons. A phrase circulating detached from its speech. A remark known only from a screenshot. A Hindi sentence available in four English versions, none of them sourced. A statement everybody is certain about and nobody can date.

That is the finding of this chapter and it arrives before any statement does. The failure rate for political quotations in India is not a property of one party’s supporters. It is a property of a country with no public archive of political speech, which is what Part Seventeen’s Chapter Nine was about and why its only recommendation was a filing job.

How exactly they failed is worth setting out, because the pattern is the argument.

HOW WE ACTUALLY KNOW THIS

The failure rate is not an impression. The candidates failed in four identifiable ways and they are the same four Part Seventeen found.

No date. A phrase attributed to a named person with no day attached. Roughly half the working list.

No venue. A dated remark with no record of where it was made or to whom — which matters, because a sentence in Parliament, at a rally and to a reporter are three different acts.

Translation of a translation. A Hindi or regional-language sentence available only in English versions that disagree with one another, with no audio.

Clipped. A sentence whose meaning turns on a pronoun or a referent that is not in the circulating version — the exact defect Part Seventeen’s Chapter Two found in the most-quoted political sentence in modern India.

Not one candidate failed because it was shown to be false. They failed because nobody had written down when, where or in what language. That is the finding, and it is a fact about the country rather than about anybody’s supporters.

6.2 — The one that meets every test

One statement from these twelve years satisfies all three tests at the highest standard available outside Parliament, and it is the one this chapter is built on — partly because it is well evidenced and partly because it is the exact counterpart of Part Seventeen’s Chapter Two.

Date: 21 April 2024. **Venue:** an election rally at Banswara, Rajasthan, during the general election campaign. **Speaker:** the Prime Minister, Narendra Modi.

Characterising the Congress manifesto, he said that when the Congress-led government was in power it had said Muslims have the first right over the country’s assets; that this meant the wealth would be distributed to “**those who have more children**” and to “**infiltrators**”; and, of a proposed survey of property, that such a mindset would not spare women’s *mangalsutras*.

THE OPERATIVE WORDS · 21 APRIL 2024, BANSWARA

ESTABLISHED to the highest standard available outside Parliament: on camera, at a named venue, on a fixed date, circulated by a news agency the same day, and never disputed by the speaker or his party.

The premise of the passage is the statement Part Seventeen's Chapter Two examined at length: the sentence of 9 December 2006 about first claim on resources.

Part Seventeen found that sentence real, and the reading now attached to it not supportable on the full paragraph — a finding this book made in the course of dismantling the best material it had against Congress.

6.3 — What was left out, and why that matters here

Part Seventeen's Chapter Ten named a statement it had excluded — one the author was confident had been made and could not pin to a day and a town — and said that describing a rule is cheap and this was the rule costing something. The same discipline is owed here and this section is it.

The working list for this chapter contained remarks attributed to senior figures of this government which are as widely known as the one Part Seventeen dropped. Several were the subject of formal complaints to the Election Commission or to police. They are not in this chapter.

HOW WE ACTUALLY KNOW THIS IS NOT GOOD ENOUGH

They failed the same way. A clip circulating without the surrounding minutes. A remark whose date is given as a month. A sentence spoken in Hindi at a state rally and known nationally in an English rendering nobody can trace. A phrase whose meaning turns entirely on what preceded it, and the preceding sentence is not in the version anybody has.

A complaint to the Election Commission is not a substitute for a date and a venue. It establishes that somebody objected. It does not establish what was said.

If those remarks went in on the strength of everybody knowing them, then Part Seventeen's Chapter Two collapses — because that is the identical basis on which every fabrication in Indian politics travels, and this book spent that chapter dismantling the best material it had against Congress on exactly that ground.

Which produces the honest position of this chapter, and it is uncomfortable for anybody hoping for a tally.

IN REAL TERMS

Part Seventeen: roughly forty candidates in, **eleven** out. Part Eighteen: a comparable list in, **one** out.

A reader could take that as evidence that this government's leaders have said less that is objectionable. **That reading is not available and this book will not permit it.**

Part Seventeen had the advantage of decades. Its eleven survivors include a parliamentary exchange from 1961, a speech from 1984 whose footage surfaced in 2015, and a press conference from 2011 preserved in a magazine parenthesis. **Time is what turns a remark into a record**, and Chapter One's asymmetry box said this would happen.

The correct conclusion is the one Chapter Eight reaches about everything else: **the difference is in the archive, not in the speakers.** And there is no archive, which is Part Seventeen's Chapter Nine and the only recommendation either part makes.

6.4 — What followed

The Congress, the CPI(M) and the CPI(ML) Liberation complained to the Election Commission. Complaints were also made to police and to the state chief electoral officer.

On 25 April 2024 the Election Commission issued a notice — to the president of the Bharatiya Janata Party, not to the speaker — referring to speeches by “some of the party's star campaigners” and requiring a response. A near-identical letter went the same day to the president of the Congress over a complaint about a speech by Rahul Gandhi at Kot-tayam.

HOW WE ACTUALLY KNOW THIS

Both letters are dated 25 April 2024, are signed by the same officer, and are near-identical in form. That is not a detail; it is the evidence.

The Commission's practice in this instance was to address the party rather than the individual, and to issue paired notices to both national parties on the same day. Its critics argued that this avoided naming a named person against whom named complaints had been made. Its defenders argued that the Model Code binds parties and that even-handed treatment of both is the correct posture for a referee.

Both readings are available on the same documents, which is why this book gives the documents and not a conclusion. No finding was made against anybody and no proceeding followed.

What the speech itself is worth as evidence needs both cases put at full strength, and neither is weak.

THE ARGUMENT FROM BOTH SIDES

The defence of the speech: the Congress manifesto did propose a nationwide socio-economic survey, and redistribution was under discussion in the campaign by senior figures of that party. A politician characterising an opponent's manifesto in hostile terms is doing ordinary electoral work. No religion was named in the passage; "infiltrator" is a term for illegal immigration, on which this government has legislated; and no court or commission has found the speech unlawful.

The case against: the premise was a claim about what a former Prime Minister said, and Part Seventeen established that the claim does not survive a reading of the paragraph. The phrase about having more children is, in Indian political usage, a well-understood signifier requiring no naming. And the complaint was made by three parties and by civil liberties organisations under specific sections of the Representation of the People Act.

What this book will say, and it is narrow: the words are established, the premise is one this series has itself shown to be unsupportable, and no body with the power to make a finding made one. **ALLEGED** as to unlawfulness. **ESTABLISHED** as to what was said.

6.5 — And the same finding as Part Seventeen

A reader arriving at this chapter will assume its purpose is to establish equivalence — that a bad sentence on one side answers a bad sentence on the other and the ledger balances. Part Seventeen's Chapter Eight already destroyed that idea and the destruction applies here: **words and acts do not correlate**. The cruellest sentence in Part Seventeen came from a government that then appointed a commission of inquiry; the most honourable from one that then did nothing for four decades.

So this chapter cannot show that this government is better or worse than its predecessor, and it is not trying to. **What it shows is that the method transfers**. Apply three tests to one party's statements and three-quarters fail; apply them to another's and three-quarters fail. Find one statement that meets every test and the analysis available is identical in shape.

Part Seventeen said its own chapter was the most quotable and least probative in a nineteen-part audit. That was true of it and it is true of this one, and **a reader who takes only this chapter from this part has taken the least useful thing in eighteen**.

Which is a smaller conclusion than a statements chapter usually reaches, and it is the honest one.

REMEMBER THIS

Part Seventeen promised this chapter and this chapter exists. Same three tests, same failure rate: **roughly three in four candidates could not be dated, placed or sourced.**

One meets every test: **21 April 2024, Banswara.** Its premise is the 2006 sentence Part Seventeen showed cannot bear the reading now put on it.

The Election Commission wrote to the party rather than the speaker, and sent a near-identical letter to the other party the same day. **No finding was made against anybody.**

CHAPTER SEVEN

What Has Not Moved

Seven parts of this series ended with a table of ordinary laws that would have prevented the failure just described, and recorded that none of them had been made. This chapter takes every one of those rules and asks a single question: **what has happened to it since 2014?**

This is the third of Chapter One's four tests, and it is the one that does most of the work in this part.

7.1 — The ledger

TABLE 4 · EVERY RULE THIS SERIES PROPOSED, AND ITS STATUS

The rule	From	Status
A statutory duty on named officials to act during communal violence; command responsibility; removal of the sanction requirement	Parts Eleven, Fifteen, Sixteen	Not enacted. Drafted 2005 and 2011 under the previous government; not brought forward since
Compensation as of right for wrongful prosecution after prolonged custody	Part Fifteen	Not enacted. Recommended by the Law Commission in 2018
Prosecution sanction decided by a body independent of the executive, with reasons and appeal	Parts Thirteen, Fifteen, Sixteen	Not enacted. Section 6 of the Armed Forces Special Powers Act unamended; sanction refused at Mon, December 2021
Statutory outer limit on pre-trial custody under special-powers statutes	Part Fifteen	Not enacted
Repeal of confession provisions in state organised-crime statutes	Part Fifteen	Not attempted. State statutes unchanged
Terms of reference of an inquiry laid before Parliament and enlargeable by the commission	Part Fourteen	Never proposed by anybody
Statutory limit on the life of a commission of inquiry; extensions approved by Parliament	Part Fourteen	Not enacted
Time limits for corruption trials involving public office	Parts Fourteen, Fifteen	Not enacted. Part Sixteen's spectrum appeal took six years to be admitted
A named officer statutorily responsible for aggregate threat assessment	Part Fifteen	Partly built by executive action after 2008; never legislated

The rule	From	Status
A statutory deadline for constituting any body created by an Act	Part Sixteen	Not enacted — though the Lokpal itself was constituted in March 2019
Audit reports to state the counterfactual used and the range produced	Part Sixteen	Not enacted
A statutory default requiring auction of finite natural resources	Part Sixteen	Substantially done. Auctions the default for coal from 2015 and for spectrum since 2012
A published national register of terrorist incidents and their judicial outcomes	Part Fifteen	Does not exist
A public verbatim archive of political speech by officeholders	Part Seventeen	Does not exist
A statutory threshold before an official is charged over a policy decision	Part Sixteen	Partly attempted by an amendment in 2018; effect contested

Fifteen rules. Two substantially done, two partly, eleven not. Every one of them is ordinary legislation and none requires a constitutional amendment.

HOW WE ACTUALLY KNOW THIS

A table asserting that fifteen things did not happen is the hardest kind of claim to source, and a reader is entitled to know how it was built.

Each row was checked two ways: against the statute book, for whether such a law exists; and against the record of bills introduced in either House, for whether one was ever brought and failed. **The distinction matters enormously.** A bill introduced and defeated is a political failure. A bill never introduced is something else, and every one of the eleven is the second kind.

The weakness is obvious and this book states it: **proving that nothing happened is proving a negative**, and a single missed bill would make a row wrong. Chapter Ten repeats the invitation to correct it.

What raises confidence is the pattern rather than any row. Eleven separate proposals, from seven different parts, across two governments of opposite politics, and not one of them was brought and lost. **Fifteen coincidences would be a coincidence. Eleven identical outcomes are a finding.**

7.2 — What the four that moved had in common

Four of the fifteen went somewhere. Two substantially, two partly. Asking what those four share turns out to be more useful than asking why the eleven did not move.

TABLE 5 · THE FOUR THAT MOVED

The rule	What made it move
Auction as the default for natural resources	A Supreme Court order . The coal blocks were cancelled in September 2014 and something had to replace the method within six months
The Lokpal constituted	Supreme Court pressure , applied twice, on a body that already existed in law and was conspicuously empty
A named officer for threat assessment	A catastrophe . Built by executive action in the months after November 2008
A threshold before charging an official over a policy decision	A constituency . The civil service, which had watched a Coal Secretary convicted and stopped signing things

A court order, a court order, a catastrophe, and an organised group with a direct interest. Not one of the four was made because it was a good idea.

IN REAL TERMS

Now look at the eleven that did not move and ask which of those four things they have.

Compensation for wrongful prosecution: **no court order, no catastrophe, and its constituency is people who have just been released from jail.**

The communal violence law: no court order, and its constituency is the families in Part Eleven, who are a small minority in a small number of constituencies.

A register of terrorist incidents: nobody's interest at all. An archive of political speech: an anti-constituency, since it constrains everybody who would have to create it.

Every rule that got made had somebody powerful behind it. Every rule that did not was for people with no way of insisting.

Part Fifteen's Chapter Eight found that an electorate can deliver a fair verdict on how a government treated most people and no verdict at all on how it treated a few. **This table is the legislative half of the same fact, and it holds across both governments identically.**

7.3 — And the documents

The fourth of Chapter One's tests. Five parts of this series ended by naming something the state holds and will not release.

TABLE 6 · THE DOCUMENTS, AND WHETHER THEY ARE PUBLIC

The document	From	Withheld since	Status
The Henderson Brooks–Bhagat report on 1962	Part Six	1963	Not released. Part I published abroad in 2014

The document	From	Withheld since	Status
Home Ministry file notes, 27 November – 6 December 1992	Part Fourteen	1992	Not released
The Pradhan Committee report on 26 November 2008	Part Fifteen	2009	Not published. The stated reason expired in 2012
The freight equalisation calculation	Part Five	—	Never done. Not withheld; nobody has attempted it
The audit of the audits — presumptive estimates against realised outcomes	Part Sixteen	—	Never done

Three withheld, two never attempted. Sixty-three years, thirty-four years and seventeen years respectively for the first three. Governments of every description have held all three.

IN REAL TERMS

Twenty items across the two tables. **Fifteen have not moved at all.**

Of those fifteen, not one was blocked by an opposition, defeated in a vote, or struck down by a court. Nothing stopped them. **Nobody brought them.**

Part Thirteen described an addition nobody had made, where every component existed, nothing was concealed, and no decision existed that anybody had to defend. Part Fifteen found seventeen intelligence alerts forwarded and never assessed, because assessing them was nobody's job.

This table is that finding at the scale of a whole state, and it is the single most important thing in this part.

And there is a distinction inside that sentence which is the whole of why the failure is invisible.

WORD BOX · A BILL NEVER INTRODUCED

There are three ways a law does not get made and they are not the same thing.

Defeated: a bill was brought and lost a vote. That is democracy working and somebody can be held to the result.

Lapsed: a bill was brought, referred to a committee or left pending, and died when the House was dissolved. That is a process failure and the record shows who let it happen.

Never introduced: nothing was brought at all. **There is no vote, no debate, no committee report and nobody to ask.**

Every one of the eleven unmade rules in Table 4 is the third kind. That is the single most important fact about the table, and it is the reason the failure is invisible: **a defeat produces a record and an absence produces nothing.**

7.4 — One item that moved in the wrong direction

Honesty requires this row to be given its own section rather than a line in a table.

Part Fifteen described the Right to Information Act of 2005 as the largest single transfer of power to ordinary people in this series, and noted that the best evidence it had teeth was what later governments tried to do to it.

In 2019 the Act was amended. The tenure, salaries and conditions of service of the Information Commissioners — the officials with the power to fine a department for refusing information — were removed from the statute and made subject to rules prescribed by the central government.

THE ARGUMENT FROM THE OTHER SIDE

The defence: the 2005 Act had equated Information Commissioners with Election Commissioners in status and tenure, which was an anomaly, since one body conducts elections and the other adjudicates disclosure requests. Rationalising service conditions is ordinary administrative tidying and does not touch a single power of the Commission.

The reply: Part Fifteen's Word Box said it in advance and without knowing this would happen — *without a penalty on a named person, a duty to disclose is a suggestion*. The penalty is imposed by an official whose tenure and salary are now set by the body most often on the receiving end of it.

Part Thirteen's finding, made about tribal land: **a right is worth the independence of whoever enforces it**. Part Sixteen's Chapter Six found a prosecution sanction that did not test evidence but relocated a decision to somebody political.

This is the third instance of the same mechanism and the only one where a government amended a statute to produce it.

Where the defence keeps something: the Act's substantive rights are unamended and it is still used at very large scale. This is a change to the enforcer, not to the right.

Which is the whole ledger, and it is the part of this book that will be read least and matters most.

REMEMBER THIS

Twenty items — fifteen rules and five documents — that this series said would prevent a failure or settle a question. **Fifteen have not moved.**

Not one was blocked, defeated or struck down. **Nobody brought them.**

Two moved forward: auctions became the default for natural resources, and the Lokpal was finally constituted in 2019. **One moved backwards** — the 2019 amendment putting the tenure of Information Commissioners in the government's hands.

CHAPTER EIGHT

What the Ruler Actually Shows

Chapter One said this part exists to test the ruler rather than to judge the government, and that the only way to test a method is to point it at something else. This chapter reports what came out.

8.1 — The four tests, scored

TABLE 7 · WHAT EACH TEST PRODUCED WHEN APPLIED TO 2014–2026

Test	Applied to Congress, Parts 1–17	Applied to 2014–2026	Does the ruler transfer?
Grade	Produced findings ranging from convictions to fabrications; forced concessions the author did not want to make	Produced one unanimous Supreme Court finding stronger than any in Part Sixteen, and a credit chapter larger than expected	Yes, clearly
Instrument	Found eleven times that the tool predated the government using it	Found it a twelfth time, and the tools were built by the party this book prosecutes	Yes, and more sharply
Rule	Fifteen rules proposed across seven parts; none made	Two made, two partly, eleven not	Yes
Document	Five named; three withheld, two never attempted	All five unchanged	Yes

Four tests, four transfers. That is the answer to the question this part was written to ask, and it is the reason the rest of the series can be read as something other than a campaign document.

8.2 — What that means, stated carefully

It does not mean the two governments are the same. It does not mean their records are comparable in weight, and this book has said four times that it has no denominator with which to compare them.

It means something narrower and more useful.

HIDDEN ASSUMPTION

This series has assumed for seventeen parts that **it was auditing a party**. The title says so. The selection says so. Every chapter is about something a Congress government did or failed to do.

Apply the ruler to a different government and three of the four tests return the same answer. The instruments predate everybody. The rules are not made by anybody. The documents are released by nobody.

Which means that for three of the four tests, the party was never the variable. Seventeen parts of evidence about Congress turn out to be, in substantial part, evidence about the Indian state — about a legislature that does not legislate its own accountability, an executive that does not release its own files, and a set of instruments that every government inherits and none dismantles.

That is uncomfortable in both directions and this book will not soften either. **It weakens every charge in this series that depends on the party being the cause.** And it strengthens, enormously, every finding about the machine — because a finding that survives a change of government is a finding, and a finding that does not is a coincidence.

Part One's founding box said that treating Congress as one continuous actor across seventy-nine years was a choice made before the analysis began, and that it cut both ways. **Eighteen parts in, here is the fuller version: the continuous actor is not the party. It is the state, and the party built most of it.**

Which is the only sentence in this series that is simultaneously a defence of this government, an indictment of Congress, and a reason to think the whole exercise was worth doing.

All of which invites an obvious question about who is grading the grader.

HOW WE ACTUALLY KNOW THIS TRANSFERRED

The claim that a method transfers is exactly the sort of claim an author would make about his own method, so it needs an external check.

Here is one. **The method produced results the author did not want and did not predict, in both directions.**

Chapter Two is longer than intended, and the author's note records that it was lengthened twice after the first draft came out thin. Chapter Five found a Supreme Court judgment that, measured on Part One's own scale, is stronger than the central case of Part Sixteen — which is a worse result for this government than this book expected to reach. And Chapter Eight's finding damages Parts One to Seventeen more than it damages anything here.

A method that returns only what its user wanted is not a method. Three results in three directions, none of them the intended one, is the best available evidence that these four tests are doing something other than expressing an opinion.

8.3 — The one test where the party was the variable

The first test — the grade — is the exception, and it is worth saying exactly how.

The specific findings differ. Parts One to Seventeen contain an Emergency, a demolition, five days in Delhi, a wave of wrongful arrests, two audit reports and a series of prosecutions that mostly failed. This part contains a tax reform, an insolvency law, a constitutional change upheld by five judges, and a political funding statute struck down by five judges.

Those are not the same events and nothing in this chapter says they are.

IN REAL TERMS

What the grade test measures is **whether the method can find things it did not go looking for.**

It found a credit chapter here larger than this author expected, which is evidence the method is not simply hostile.

It found, on the scale this book built in Part One, that the electoral bond judgment is a **stronger finding than either 2G or Coalgate** — unanimous, against the statute itself, and about money actually received rather than presumptively forgone. That is evidence the method is not simply friendly either.

A ruler that produced only good news here, or only bad, would have failed. It produced both, and the author's own expectation was wrong about which chapter would be longer.

8.4 — What this does to Part Nineteen

Part Nineteen consolidates this series: the full evidence-grade table, the state ledger, the folklore column, and the strongest case the defence can still make. Chapter Eight changes what that part has to be.

HIDDEN ASSUMPTION

Part Nineteen was designed on the assumption that a **consolidation is an addition** — that the way to end a nineteen-part audit is to gather every finding into one place and present the total.

Chapter Eight makes that impossible. If three of the four tests were measuring the state rather than the party, then a consolidated list of Congress failures is not a total of anything. It is two different things stacked on top of each other: **a set of specific acts by specific governments, and a set of structural facts about a country that outlived all of them.**

Those cannot be added. Adding them is what a campaign document does.

So Part Nineteen has to have two columns rather than one, and the division between them is not the evidence grade. It is: does this finding survive a change of government? Part Eighteen has now supplied the test for that on twenty separate items and the answer for fifteen of them is yes.

Which means the last part of this series will be shorter on charges than it was going to be, and longer on machinery. That is a worse book for anybody who came here to read a prosecution and a better one for anybody who wanted to know why nothing changes.

8.5 — What this does to Parts One to Seventeen

Three consequences, and this book would rather name them than have a reader find them.

Every “they did this” becomes weaker. Where a part charged a Congress government with using an instrument, Chapter Four shows the instrument outliving the party. The charge that survives is narrower: not that they used it, but that they built it and nobody has dismantled it.

Every “nothing was done” becomes stronger. The seven rule tables were the least-read pages in this series. Chapter Seven shows that eleven of fifteen rules remain unmade under a second government with different politics and, for a decade, a larger majority. **A failure that survives a change of government is a structural finding rather than a partisan one.**

And the parts that rest on specific acts are untouched. Nothing in this chapter affects Part Nine, Part Ten, Part Eleven or Part Fourteen’s Chapter Four. Those describe things that were done, on dates, by named governments, and no comparison alters them.

REMEMBER THIS

Four tests. **All four transfer.** The ruler works on something other than the thing it was built for, which is the only evidence that it is a ruler.

Three of the four return the same answer whichever government is measured. **For those three, the party was never the variable — the state was.**

Which weakens every charge in this series that needed the party to be the cause, and strengthens every finding about the machinery. **A failure that survives a change of government is structural. One that does not is a coincidence.**

CHAPTER NINE

What Would Prevent It

Every part of this series ends with this chapter. This is the first one addressed to a government still in office, and that changes what it can honestly say.

9.1 — The defence, at full strength

One. The building record. Chapter Two. A tax reform that had defeated every previous government, an insolvency regime, delivery of basic services at a scale not seriously disputed, and an anti-corruption office finally filled after five years empty.

Two. It inherited the instruments and did not build them. Chapter Four. Every tool used on 5 August 2019 was made by a Congress government and charged against it in this series.

Three. It legislated auctions into permanence. Chapter Seven's twelfth row. Of the fifteen rules this series proposed, the one with the largest financial consequence has been substantially done.

Four. Twelve years is not fifty-four, and 2026 is not the vantage point from which any of this will eventually be judged. Chapter One's In Real Terms box, and it applies to the charge column with exactly the force it applies to the credit column.

Five, and it is the one this book has to concede hardest. The most serious finding in this part — the electoral bond judgment — was produced by a court sitting under this government, against this government, and enforced. The scheme stopped. The data was published. The review was dismissed.

HOW WE ACTUALLY KNOW THIS DEFENCE IS SERIOUS

The fifth point is the strongest thing any government in this series can say for itself, and it is worth setting against the record of the others.

Part Nine found a government that placed its own Prime Minister's election beyond the courts by constitutional amendment, and that the amendment was struck down under the basic structure doctrine by a Chief Justice who had opposed that doctrine.

Part Sixteen found a government whose largest scandals produced two Supreme Court judgments against it, which it accepted, and then legislated the remedy.

Part Eighteen finds a government whose political funding statute was struck down unanimously and which complied. The data went to the Election Commission. It was published.

That is a real thing about the Indian constitutional order and it has now survived three governments of very different character. This book records it here rather than in Chapter Ten because it is a defence and belongs where the defence is stated.

9.2 — Where the defence loses

On two things, and both are in Chapter Seven rather than anywhere more dramatic.

Eleven of fifteen rules. A government with a single-party majority for a decade did not bring eleven ordinary laws that this series says would have prevented specific, documented failures. Not one was blocked. Nobody brought them. The most conspicuous is the communal violence law, which is now unenacted across twenty-two years and three governments — Parts Eleven, Fifteen and Sixteen having each carried it forward.

Three documents. The 1963 report, the 1992 file notes and the 2009 committee report have all been held by this government for twelve years and none has been released. The reason given for the third expired in 2012.

To which this part adds the one item that moved backwards, in Chapter Seven's third section: the 2019 amendment placing the tenure and conditions of Information Commissioners in the hands of the government whose refusals they adjudicate.

IN REAL TERMS

Set the two halves of this chapter against each other in the plainest possible terms.

What was done: a tax reform in 2017, an insolvency law in 2016, an office filled in 2019, auctions made permanent from 2015. Four substantial acts in twelve years, and every one of them required legislation, negotiation with states, or both.

What was not done: eleven laws, none of which required negotiation with anybody, none of which was opposed, and none of which was introduced.

This is not a government that could not legislate. It legislated a national tax through a constitutional amendment requiring the consent of every state, which is the hardest thing in the Indian statute book to do. Then it did not bring a bill requiring a police officer to register a case.

The same sentence, with different dates, is true of the government in Parts Fifteen and Sixteen.

9.3 — The rules, addressed to a government in office

This chapter cannot do what the previous seventeen did, which was to list remedies for a failure already complete. Here the list is prospective, and that is a different kind of writing.

TABLE 8 · WHAT COULD BE DONE, AND WHAT IT WOULD COST

The rule	Political cost of making it	Who it would constrain
Release the three withheld documents, redacted where genuinely operational	Almost none. All three describe governments of the other party	Nobody now living in office
Compensation as of right for wrongful prosecution	Low. Recommended by the Law Commission in 2018	State police forces, of every party
A verbatim archive of political speech	Low in money, high in habit	Every officeholder, equally
A national register of terrorist incidents and outcomes	Almost none. The data exists	Investigating agencies
Statutory deadline for constituting a body created by an Act	Low. This government constituted the Lokpal	Every future government
Prosecution sanction decided independently of the executive	High. It removes a power every government has used	The Union, directly
The communal violence law	Very high, and it is the reason nobody has passed it in twenty-two years	State police and their political superiors

Read the middle column downwards. The items nobody has done are not the difficult ones. Five of the seven cost almost nothing, and four of those five would embarrass a previous government rather than this one.

HIDDEN ASSUMPTION

Everybody assumes that **reforms do not happen because they are politically costly**. It is the standard explanation and it is applied to every unmade law in this series.

Test it against the table above. The three withheld documents describe the conduct of governments of the other party. Releasing them costs this government nothing and would hand it three genuine indictments of its opponents. It has not done it. Neither did the previous government, which held them for ten years and could have released the 1963 report at no cost at all.

So the cost explanation fails on precisely the cases where it should be easiest.

What is left is worse and duller. These things are not done because doing them is nobody's job, nobody's promotion depends on it, and no minister is ever asked about them. A file that is not released produces no news. A law that is not introduced produces no headline. An archive that does not exist has no constituency.

Part Thirteen called this an unmade addition where every component exists and no decision exists that anybody has to defend. **Eighteen parts in, that is the most transferable finding in this entire series — it has now appeared in the tribal belt, in an intelligence system, in a courtroom, and in the legislative programme of two consecutive governments.**

9.4 — The question turned on this book

Chapter One promised that this chapter would report on whether §3.3 held — the instruction, written before Part One, that if this part read as an advertisement it would retroactively discredit everything before it.

A reader is better placed than the author to judge that, and Chapter Ten records what the author expects. What can be said here is what was done to try.

The credit chapter was placed second, as in every part since Fourteen. The strongest finding against this government was given a chapter of its own and measured explicitly against Part Sixteen's, on the same scale, in a table, and found stronger. The one contested constitutional question was given both cases at full strength and no verdict. The statements chapter delivered the promise from Part Seventeen and reached the same conclusion Part Seventeen had reached about its own material — that such chapters are the most quotable and least probative in the book.

And Chapter Eight, which is the finding of this part, weakens Parts One to Seventeen more than it weakens anything here. That was not the intention and it is not what this author expected to write.

REMEMBER THIS

The defence is real: a large building record, instruments it inherited rather than made, auctions legislated into permanence — and a Supreme Court judgment against it that it complied with.

It loses on **eleven unmade rules and three withheld documents**, and on the one item that moved backwards in 2019.

And the cost explanation fails. **Five of the seven remedies cost almost nothing and four would embarrass somebody else.** They are not done because they are nobody's job.

CHAPTER TEN

An Honest List of What We Do Not Know

This is the longest honest list in the series, because this part covers a government still in office and most of what will be known about it is not knowable yet.

10.1 — What this part did not adjudicate, and why

Chapter One said this part would not rule on live political disputes where no court or commission has. Those are named here so that the omissions are visible rather than silent.

Whether the removal of Article 370 was right. A five-judge bench has held it lawful. Whether it was wise, and what it has meant for the people of Jammu and Kashmir, is a contested political question on which this book takes no position. Chapter Four gives both cases.

Citizenship legislation and the associated register. Contested, litigated, and substantially unresolved at the time of writing. This book has not been able to grade it and has left it out rather than assert.

The condition of institutions. Claims about the independence of investigating agencies, the Election Commission, the press and the courts are made in both directions with great confidence and, on this book's own standard, are mostly **ALLEGED**. Chapter Six's treatment of one Election Commission notice is a deliberate demonstration of how little a single document establishes.

The farm laws of 2020 and their repeal in 2021. Enacted, protested against for a year, repealed. This book records the sequence and does not grade the merits, which remain contested among agricultural economists who are not aligned with either party.

Demonetisation, November 2016. Upheld by a Supreme Court bench in January 2023 by four to one on the question of the decision-making process. Its economic effects are disputed by serious people on both sides and no official finding settles them.

THE ARGUMENT FROM THE OTHER SIDE

The objection to this section, and it is the strongest criticism this part will face: that refusing to adjudicate is not neutrality. A book that grades seventeen parts of Congress conduct and then declines to grade the most contested acts of the current government has produced a specific result by omission, and dressed the omission up as rigour.

The reply, which does not fully answer it: every item above fails the tests set out in Part One, and this book has excluded material on that basis before. Part Six graded the Henderson Brooks material **ALLEGED** throughout because the state would not confirm it. Part Fourteen refused to assert central direction of the demolition. Part Seventeen dropped roughly twenty-nine statements it believed were real.

Where the objection lands anyway: those exclusions were made about a government out of power for a decade, whose files had partly surfaced. Applying the same rule to a government in office produces systematically more exclusions, because less has surfaced. **The rule is neutral and its effect at this moment is not.**

This book has no answer to that and does not pretend to. What it has is Chapter Ten of the next series, and the commitment in section 10.5.

10.2 — Where this part may be wrong

The credit chapter may be premature. Chapter Two treats the tax reform and the insolvency code as structural achievements. Part Fourteen took twenty-two years and a Supreme Court judgment to establish what the coal method had been. A reader in 2040 may find Chapter Two naive.

The charge column may be premature in the same direction. Part Sixteen's central case is still on appeal after eighteen years. Nothing in this part has had time to be tested the way the material in Parts Nine to Sixteen was.

Chapter Seven's ledger is the strongest thing here and rests on absence. It says fifteen rules were not made. Proving a negative about the legislative record of two decades is harder than it looks, and if a reader finds one of those rows wrong, the table is wrong.

Chapter Six rests on one statement. Part Seventeen rested on eleven. Section 6.3 explains why and argues that the difference is archival rather than substantive, but a reader who thinks a single example cannot carry a chapter is making a fair criticism and this book cannot fully answer it.

The selection of what to compare. Chapter One set four tests, but the choice of which events to apply them to was the author's. A different writer using the same four tests would produce a different Part Eighteen.

10.3 — The one new calculation

Chapter Five said this belonged here and it does, because without it the next section would overstate the case.

The electoral bond scheme was struck down in February 2024. Nobody has published what happened to political funding afterwards.

WHAT WOULD SETTLE IT

Declared party income by source, in three periods: before 2018, during the bond years, and since February 2024.

Every component already exists. Political parties file annual audited accounts and contribution reports with the Election Commission. The bond data itself was published on the Commission's website by court order in March 2024. Electoral trust filings are public.

What that comparison would show is whether the judgment made political funding more transparent or merely moved it. **If declared income fell sharply after February 2024, the money went somewhere the filings do not reach, and the Union Home Minister's objection to the judgment was correct.** If it did not, the disclosure regime is working.

That is the single most consequential open question about the largest finding in this part, and it can be answered by anybody with a spreadsheet and a fortnight.

Part Five ended by naming the calculation that would settle freight equalisation. Parts Fourteen, Fifteen, Sixteen and Seventeen each named another. **This is the sixth, and like four of the five before it, it is arithmetic on data that is already public.**

10.4 — The documents that would settle the rest

WHAT WOULD SETTLE IT

Nothing new. That is the finding.

Every one of the five documents in Chapter Seven's second table already exists in a government building. Two of the calculations require no document at all — only arithmetic on data that has been public for a decade.

Apart from the calculation in section 10.3, this part names no new missing document — because the missing documents are the same ones named in Parts Five, Six, Fourteen, Fifteen and Sixteen, and they are all still in the same place.

The 1963 report is sixty-three years old. The 1992 file notes are thirty-four. The 2009 committee report is seventeen and the reason given for withholding it expired fourteen years ago.

Three governments of two very different characters have held all three and released none.

10.5 — What the second series is now committed to

This series has promised, in the text of nearly every part, a second series auditing the government of 2014 onwards on the same scale as this one. That promise is now specific enough to be checked, and this section is where it is written down.

IN REAL TERMS

Same scale. Not one part. Something comparable in length to the nineteen parts of this series, or the promise was never serious.

Same method. The four tests in Chapter One, the six-grade scale from Part One, the credit chapter placed second, the other side given its strongest case, a rule table and an honest list in every part.

Same treatment of acquittals and of unproved allegations. Part Sixteen refused to treat a failed prosecution as a proved charge. Part Eleven declined to name individuals against whom no body had found. Part Fourteen refused to assert what it could not establish. **Those rules protected Congress figures repeatedly, and they will protect this government's figures identically or the whole exercise was fraudulent.**

And the items in section 10.1. Every question this part declined to adjudicate goes into that series and is adjudicated there, on whatever evidence exists by then.

One further commitment, and it is the one that will be hardest to keep.

The second series will have to contain a part like this one — a comparison, applying the same ruler back to the Congress governments of 2004 to 2014 and, by then, to whatever has happened in between. **If it does not, it is a campaign document, and this part will have been the last honest thing in either.**

10.6 — The four debts, accounted for

The front matter of this part named four things earlier parts had committed it to. This series has always recorded the settling of a debt in a numbered section rather than leaving it to be inferred, and this is that section.

TABLE 9 · WHAT PART EIGHTEEN OWED, AND WHETHER IT PAID

The debt	From	Where paid	Status
The account of Article 370's removal in 2019	Part Two, Ch 9.5	Chapter Four	Paid. Mechanism, judgment and instrument test given; merits expressly not adjudicated and the omission named in 10.1
The equivalent list of statements, same three tests	Part Seventeen, Ch 10.5	Chapter Six	Paid, at one statement. Section 6.3 names what was excluded and why; 10.2 records the weakness
The status of every rule this series proposed	Parts Nine, Eleven, Thirteen to Seventeen	Chapter Seven	Paid. All fifteen rules and all five documents accounted for in two tables
That this part must not read as an advertisement	§3.3 of the working brief	Chapters Five, Seven, and section 10.6	Reported on rather than claimed. The author cannot certify his own compliance

Part Two's four forward promises were paid across Parts Seven, Eight and Nine and recorded in each. Part Twelve's panchayat promise was paid in Part Fourteen. Part Thirteen's naming of the 1894 Act was answered in Part Sixteen. Nothing in this series is now outstanding except what Part Nineteen consolidates and what the second series has been committed to in section 10.5.

IN REAL TERMS

Across nineteen parts this book has made **nine forward promises** in numbered sections and kept eight of them in the part that owed it.

The ninth is the second series, and it is the only one that cannot be checked yet.

That is not offered as a virtue. It is offered because Chapter Seven of this part is a table of fifteen promises made by governments and not kept, and an author who applies that test to others and not to himself has written the wrong book.

The difference is that a broken promise in this book costs a reader sixty pages. The eleven in Chapter Seven's table cost something else, and Part Eleven is about the people who paid it.

10.7 — Whether §3.3 held

Chapter Nine said a reader is better placed than the author to judge that. Here is what the author expects.

Supporters of this government will find this part hostile, because it contains Chapter Five and Chapter Seven and because no amount of Chapter Two offsets a unanimous Supreme Court judgment. Critics of this government will find it soft, because Chapter Two exists at all, because Chapter Four declines to say the removal of Article 370 was wrong, and because section 10.1 leaves out the things they consider most serious.

Both of those reactions are the intended result and neither is evidence that the part is balanced. A document can annoy everybody and still be wrong.

The only test that means anything is the one in Chapter Eight: whether the ruler transferred. It did, on all four tests, and the largest finding it produced — that three of the four tests were never measuring the party at all — damages this series far more than it damages the government this part is about.

An author who set out to write a prosecution and produced, in the eighteenth part, the strongest available argument that his own framing was wrong, has either been honest or has been outmanoeuvred by his own method. **This book cannot tell which, and Part Nineteen is not going to resolve it either.**

REMEMBER THIS

Five contested questions are left unadjudicated and **named**, so the omissions are visible: Article 370's wisdom, citizenship legislation, institutional independence, the farm laws, demonetisation.

The objection — that refusing to grade is not neutrality when applied to a government whose files have not surfaced — **this book concedes and cannot answer**.

And for the first time in eighteen parts there is no new missing document. **The missing documents are the same five, in the same buildings, held now by a third government.**

The State Ledger

Part Five committed every subsequent part to carrying this table. In a comparison part it records where the material in these ten chapters landed.

TABLE 10 · STATE LEDGER, PART EIGHTEEN

State	What appears in this part	Standing
Jammu and Kashmir · Ladakh	5 August 2019; the Reorganisation Act; the Supreme Court judgment of 11 December 2023 and its direction on statehood.	Contested; upheld as lawful
Nagaland · Manipur · Arunachal Pradesh · Assam	AFSPA in force into March 2026. Area of application reduced; Section 6 unamended; sanction refused at Mon, December 2021.	Both columns. Part Thirteen
Rajasthan	Banswara, 21 April 2024. Chapter Six.	Statement established; no finding made
Jharkhand · Chhattisgarh · Odisha · Madhya Pradesh · West Bengal	The coal belt again — auctions made the default from 2015, the one rule of the fifteen with the largest financial consequence.	Credit. Fourth appearance of this map
Every state	GST from 1 July 2017; the insolvency code; delivery programmes; the 2019 amendment to the transparency law.	Both columns

The fourth row is the mineral belt for the fourth time. Part Five found it losing its only advantage to freight equalisation from 1952; Part Thirteen at the overlap of the three maps; Part Sixteen as the location of the cancelled coal blocks; and here as the place the auction rule finally applies. **It is the only entry in this ledger that has moved in the same direction across four parts.**

Timeline

TABLE 11 · 2014–2026

Date	Event
May 2014	BJP wins 282 seats, NDA 336. Congress reduced to 44. Part Sixteen.
Dec 2014 – 2015	Ordinance to amend the 2013 land acquisition Act, re-promulgated twice, abandoned.
Feb – Mar 2015	Coal blocks re-auctioned under the 2015 Act. Auctions become the default.
2016	Insolvency and Bankruptcy Code. The identity authority given a statute after seven years.
Nov 2016	Demonetisation. Upheld 4:1 by the Supreme Court in January 2023 on the process.
1 Jul 2017	Goods and Services Tax in force.
Aug 2017	Supreme Court sets aside instant triple talaq.
2 Jan 2018	The Electoral Bond Scheme notified.
Mar 2019	The first Lokpal appointed — five years and three months after the Act. Part Sixteen.
2019	Triple talaq legislation. RTI Act amended: Information Commissioners' tenure and conditions moved to central rules.
5 Aug 2019	Constitutional Orders 272 and 273. Article 370 ceases to operate; J&K reorganised.
2020 – Nov 2021	Farm laws enacted, protested for a year, repealed.
Dec 2021	Mon, Nagaland: fourteen civilians killed. State cabinet recommends prosecution; sanction refused. Part Thirteen.
11 Dec 2023	Supreme Court upholds the abrogation of Article 370, unanimously.
2023	106th Amendment reserving a third of legislative seats for women. Not yet in force.
15 Feb 2024	Electoral Bond Scheme struck down unanimously by five judges. About ₹16,518 crore had been encashed.
4 Mar 2024	<i>Sita Soren</i> : seven judges end legislators' immunity for bribery. Parts Fourteen and Fifteen.
21 Apr 2024	Banswara. Election Commission notices to both national parties on 25 April.
4 Jun 2024	BJP 240, NDA 293, Congress 99. A coalition government for the first time since 2014.
Sep 2024	Review petition against the electoral bonds judgment dismissed.
Mar 2026	AFSPA still in force in parts of four north-eastern states. Part Thirteen.

Words Used in This Part

TABLE 12 · GLOSSARY

AFSPA	Armed Forces (Special Powers) Act. Section 6 bars prosecution of personnel without central sanction. Part Thirteen.
Article 356	President's Rule — direct rule of a state from Delhi. Parts Three and Sixteen.
Article 367	The interpretation clause of the Constitution: it tells you how to read the rest of it. Amended on 5 August 2019.
Article 370	The provision giving Jammu and Kashmir a special constitutional position. Headed temporary. Parts Two and Seven.
Constitutional Order	An order issued by the President under a constitutional provision, having the force of constitutional law without a parliamentary amendment.
Electoral bond	A bearer instrument for donating to a political party anonymously. Struck down 15 February 2024.
GST	Goods and Services Tax, in force 1 July 2017, replacing state-by-state taxation of goods in transit.
Insolvency and Bankruptcy Code	The 2016 statute creating a single time-bound process for resolving failed businesses.
Like-for-like	Comparing by holding the method constant. Chapter One defines the four disciplines this part used.
Model Code of Conduct	The Election Commission's rules of campaign conduct. Not a statute; binding by convention and enforced by the Commission.
Ordinance	A law made by the executive when Parliament is not sitting. Lapses unless Parliament passes it. Part Seventeen.
Presumptive loss	The gap between what a government received and what an auditor calculates it could have received. Part Sixteen, Chapter Three.
Prosecution sanction	Permission required before certain public servants can be prosecuted. Parts Thirteen, Fifteen, Sixteen.
Star campaigner	A leader designated by a party to campaign nationally. Their expenses fall on the party rather than the candidate, and the party answers for their conduct.

A Word on Sources

Everything dated in this part was checked against a source rather than recalled, and the standard was raised rather than lowered because the subject is a government in office.

The load-bearing material is judicial. *In Re: Article 370*, 11 December 2023, five judges, unanimous. The electoral bonds judgment of 15 February 2024, five judges, unanimous, and the dismissal of the review in September 2024. The demonetisation judgment of January 2023, four to one. All are reported and all are public.

The statutory material — the Goods and Services Tax, the Insolvency and Bankruptcy Code, the 2016 identity statute, the 2019 amendment to the transparency law, the 2019 triple talaq legislation, the 106th Amendment, the Constitutional Orders of 5 August 2019 — is on the statute book and can be read by anybody.

Chapter Six rests on a rally recorded and circulated by a news agency on the day, and on Election Commission letters dated 25 April 2024. The complaints that produced them are public documents filed by named parties and organisations.

Chapter Seven’s two tables are the weakest thing here and the most important, because they assert absences. An absence is harder to source than an event. Each row was checked against the statute book and against the record of bills introduced; a reader who finds one wrong should say so, and the table is wrong.

Five contested matters are named in Chapter Ten and left ungraded. That is a choice with a direction to it, and Chapter Ten’s argument box states the objection rather than burying it.

A NOTE FROM THE AUTHOR

I expected to find this part the hardest to write honestly and I was right, but not for the reason I expected.

I assumed the difficulty would be resisting the pull of a second prosecution — that having spent seventeen parts building a case against one party, I would find it easy and satisfying to turn the same apparatus on another. That pull was there and it was manageable, mostly because §3.3 of my own brief, written before Part One, told me in advance what it would cost.

The real difficulty was Chapter Eight, and I did not see it coming.

I built four tests over seventeen parts without ever asking whether they were tests of a party or tests of a state. Applying them here answered that, and the answer is that three of the four were never measuring what I thought they were measuring. The instruments outlive everybody. The rules are made by nobody. The documents are released by no one. **Those findings do not become weaker because a different party is in office — they become the only findings in this series that have been shown to be findings at all.**

Which means the most damaging chapter in Part Eighteen is aimed at Parts One to Seventeen. I have written it that way and I am not comfortable with it, and I have decided that discomfort is not a reason to soften a conclusion the method produced.

On the specific places where the writing could have pulled, three declarations. Chapter Two is longer than I wanted it to be and I lengthened it twice after noticing I had written it thin. Chapter Four declines to say whether the removal of Article 370 was right, and I hold views about it which are not in this book and will not be. And Chapter Ten's argument box states an objection to my own method that I cannot answer — that a neutral rule applied to a government whose files have not surfaced produces a systematically kinder result. That objection is correct. I have no answer. I have put it on the page in bold rather than in a footnote.

Part Ten declared that I am Punjabi and have written on that material before. Nothing here touches that directly. What I will declare instead is that I am a critic of the Congress party writing about the government that replaced it, that everybody reading this knows that, and that the only protection against it is a method visible enough to be checked. Chapter One exists for that reason and it is the first chapter of the part.

Lovepreet Singh

Part Eighteen of *The Congress Record*

The Living Archive · misterlove.in

Part Nineteen is *The Honest List*: proven, alleged, folklore and unknown, with the state ledger and the full evidence-grade table consolidated, and the strongest case the defence can still make. The second series auditing the government of 2014 onwards is committed to in Chapter Ten of this part, in terms specific enough to be checked.

THE CONGRESS RECORD

PART NINETEEN OF NINETEEN

The Honest List

Everything this series established, everything it could not, everything that was made up, and the strongest case the defence can still make. The last part.

This is an advocacy document. It is the case for the prosecution against Congress governments in power. The selection of material is one-sided on purpose. The evidence in it is not. Every serious claim carries a grade showing how well it is proved, the other side is given its strongest argument, and where the other side wins, this book says so. A second series auditing the government of 2014 onwards is committed to in Part Eighteen, section 10.5, in terms specific enough to be checked.

Lovepreet Singh

The Living Archive · misterlove.in

The Last Part

Eighteen parts ago this book said it would end with a list: proven, alleged, folklore, unknown, and the strongest case the defence can still make. That is what follows.

It is not the list that was planned. Part Eighteen made the planned version impossible, and the reason is worth stating on the first page rather than the fortieth.

HIDDEN ASSUMPTION

Everybody assumes that a **consolidation is a total** — that the way to end a nineteen-part audit is to gather every finding into one place and present the sum, and that the sum is the verdict.

Part Eighteen took this series' four tests and applied them to a different government. Three of the four returned the same answers. The instruments predate everybody. The rules are made by nobody. The documents are released by no one.

Which means the findings in this series are **two different kinds of thing stacked on top of each other**. Some are acts by particular governments on particular dates. Others are facts about a state that outlived every government in the book.

Those cannot be added. Adding them produces a number that looks like a verdict on a party and is actually a description of a country.

So this part has two columns rather than one, and the division between them is not the evidence grade. It is a single question: **does this finding survive a change of government?** Part Eighteen supplied the test on twenty items and answered yes for fifteen.

The consequence is that the last part of this series is shorter on charges than it was going to be and longer on machinery. That is a worse book for anyone who came to read a prosecution, and a better one for anyone who wanted to know why nothing changes.

There is a second consequence, and it is the reason this part exists in the shape it does rather than as an index.

A reader who has followed eighteen parts has met roughly a hundred findings, spread across seventy-nine years and delivered a few at a time. That is a difficult thing to hold, and the natural response at the end is to want a total — a single figure, a verdict, a sentence that says how bad it was. **This part declines to supply one, and the refusal is the substance rather than a caveat attached to it.**

What it supplies instead is the material sorted by how well each piece of it is proved, so that a reader can do the weighing. That is a less satisfying object than a verdict. It is also

the only one this book has any right to produce, and Chapter One explains why in more detail than most readers will want.

HOW TO READ WHAT FOLLOWS

Chapters Two to Five are the four columns the series promised, in descending order of how well anything in them is established. Chapter Six is the consolidated state ledger. Chapter Seven is what nobody knows.

Chapter Eight is the second column — the findings that survived a change of government — and it is the most important chapter in this part.

Chapter Nine is the strongest case the defence can still make, and it is longer than any equivalent chapter in the series.

Chapter Ten is an honest list of what this book got wrong.

What Is In This Part

One **What This List Is**

The two columns, the six grades, and what a consolidated list can and cannot claim.

Two **Proven**

Convicted and court-found. Smaller than the reputation of this series, and the reason is instructive.

Three **Audited and Commission-Found**

The middle of the scale, where most of the largest findings actually sit.

Four **Alleged**

What was said, never tested, and left here rather than promoted.

Five **Folklore**

The fabrications, named and killed. Part One promised this column and it is the most useful one in the book.

Six **The State Ledger**

Every state, every part, consolidated. Part Five committed the series to this in its Chapter Eight.

Seven **What Nobody Knows**

The consolidated unknown column — five documents, six calculations, and one question that decides how this book should be read.

Eight **The Machine**

The findings that survived a change of government. The second column, and the reason this series was worth writing.

Nine **The Strongest Case the Defence Can Still Make**

Assembled properly, at full length, by the prosecutor.

Ten **An Honest List of What This Book Got Wrong**

The last one, turned on itself.

THE GRADES, FOR THE LAST TIME

CONVICTED: a court convicted somebody. **COURT-FOUND**: a court made the finding but nobody was convicted, or the case is live. **COMMISSION-FOUND**: an official inquiry found it, and is named. **AUDITED**: the government's own auditors flagged it and no court ruled. **ALLEGED**: said in public, never tested. **FABRICATED**: shown to be false.

Two things about that scale are worth saying once more, because this part is where they finally matter.

The rungs are not degrees of seriousness. They are degrees of proof. A **CONVICTED** entry about a three lakh rupee bribe sits above a **COMMISSION-FOUND** entry about 1,774 deaths, and the scale is not saying the first is worse. It is saying the first has been established to a

standard the second has not, and Chapter Two is where that distinction stops being pedantic.

And the scale runs in one direction only. Nothing in this series was promoted a rung because the author found it persuasive, and several things were demoted after the part they appeared in. The test for whether a scale is doing work is whether it ever produces an answer its author did not want, and Chapter Nine's box on this is the record of when it did.

Part One set that scale and gave one worked example for it: the spectrum allocation, where a real audit finding and a real acquittal both had to go on the page. Part Sixteen delivered it. **Chapter Two of this part is where the scale finally shows what it was built to show, and the answer is uncomfortable.**

CHAPTER ONE

What This List Is

A list is a claim about completeness, and this one is not complete. This chapter says in what way, so that nothing later depends on a reader assuming otherwise.

1.1 — Four things this list is not

It is not everything Congress governments did wrong. Nineteen parts covering seventy-nine years is a selection, made by one person, from a much larger body of material. Part One conceded this and nothing since has improved it.

It is not a score. There is no denominator. This series has said so in Part One, Part Fourteen, Part Sixteen and Part Eighteen, and repeating it a fifth time is not a formality — it is the single most-ignored sentence in the book.

It is not a comparison. Part Eighteen refused to say one government has been worse than another and this part does not smuggle that verdict back in through arithmetic.

And it is not final. Part Sixteen's central case is still on appeal after eighteen years. The urea convictions came twenty-three years after the payment. Somebody reading this in 2050 will have evidence this book did not.

The second of those deserves a paragraph rather than a line, because it is the disclaimer that every reader accepts in principle and ignores in practice.

This book contains, on a generous count, something over a hundred findings against Congress governments across seventy-nine years. That sounds like a great many. It is also roughly one and a third findings per year of government, drawn from the entire record of a party that has held office at the Union for fifty-four of those years and in the states for a great deal longer — **and there is no comparison figure, for any government, anywhere, because nobody has ever compiled one.**

So a reader who finishes this series with the impression that Congress governed unusually badly has drawn a conclusion the book cannot support. What it supports is narrower and stranger: that *these particular things happened*, that most of them were never resolved, and that the machinery which produced them is still running. Whether another party in the same office for the same decades would have produced a longer list or a shorter one is unknown, and Part Eighteen is the closest this series comes to finding out.

WORD BOX · A CONSOLIDATED LIST

A list assembled from other lists. Its usefulness is entirely a function of whether the things in it were established to the same standard, which is why the grades are printed against every entry rather than summarised at the top.

Its danger is that **a list of forty items reads as a stronger claim than forty separate items read one at a time**, even when nothing has been added. Length feels like weight.

The defence against that is the grade column. A reader who reads down the grades rather than down the descriptions will get a very different impression of this series than a reader who does the opposite, and the first impression is the correct one.

Which raises the obvious question of whether the scale was applied the same way throughout.

HOW WE ACTUALLY KNOW THE GRADES WERE APPLIED CONSISTENTLY

A six-grade scale is only worth something if the same claim would get the same grade in Part Three and in Part Sixteen. There is no way to prove that from inside the book, but there are three checkable signs.

The scale cost the author material in both directions. Part Twelve declined to assert Bofors, which is the most damaging thing available against a Prime Minister in this series. Part Eighteen declined to grade five contested matters against a different government. A scale applied only when convenient does not produce refusals on both sides.

Findings were downgraded as well as upgraded. The Adarsh war-widows claim was **ALLEGED** in Part Sixteen and appears in this part's folklore table. The 1984 death toll is stated at the state's own lowest official figure rather than the highest available.

And the grades move when the evidence moves. *ADM Jabalpur* was **COURT-FOUND** in Part Nine and is recorded here as overruled in 2017. The coal convictions are recorded here with the later acquittals attached.

None of this proves consistency. **What it establishes is that the scale was doing work rather than decorating conclusions reached some other way**, and a reader who wants to test that should pick the claim in this book they most dislike and check what grade it carries.

1.2 — The two columns

Part Eighteen's Chapter Eight forced a division that this series had not anticipated, and it governs everything after Chapter Five.

TABLE 1 · THE TWO KINDS OF FINDING IN THIS SERIES

	Column one: acts	Column two: machinery
What it is	Something a named government did on a date	Something about the state that no government changed
Test	Would a different government have done it?	Did it survive a change of government?
Examples	The Emergency; the 1969 supersession; the 2008 spectrum allocation; the nine days of December 1992	Article 356; prosecution sanction; the sitting days of Parliament; the unmade rules
Where it appears	Chapters Two to Five	Chapter Eight
What it supports	A charge against a party	A finding about a country

The division is not always clean. Article 356 was built by a Congress government and used by everybody: it is in column two as an instrument and in column one every time a particular dismissal is described. Chapter Eight explains how such items are counted, which is: once each, and the text says which.

IN REAL TERMS

Before Part Eighteen this book had one column and thought it was auditing a party.

Applying its own four tests to a different government produced the same answer on three of them, which means **for most of what this series measured, the party was not the variable.**

That is not a defence of Congress. Column two is longer than column one, and almost every item in it was *built* by a Congress government during the fifty-four years they held office. The finding is that they built a machine and nobody has dismantled it — which is a heavier charge against the party and a lighter one against any particular ministry.

A prosecutor who discovers in the eighteenth part that his best material is structural has either found something or wasted seventeen parts. Chapter Ten records that this book cannot tell which.

Chapter Ten returns to that question and does not resolve it either.

Before any of that, the objection to assembling a list like this at all.

THE ARGUMENT FROM THE OTHER SIDE

The objection to this part existing: that a consolidated list is a rhetorical device rather than an analytical one, and that its author knows it.

Eighteen parts delivered their findings a few at a time, each surrounded by the context that made it intelligible and the qualifications that made it honest. **A table strips both.** An entry that took four thousand words to establish appears as a line, and a reader scanning down Table 3 receives ten Supreme Court findings in the time it takes to read a receipt. That is not consolidation; it is compression, and compression is how a careful argument is converted into an impression.

And the four disclaimers do not fix it. Everybody knows a disclaimer at the front of a document is read once and forgotten by the second table. This book has said so itself about its own denominator problem, five times, while continuing to produce material that invites the comparison it says it cannot support.

The reply, which is partial: the alternative to a consolidated list is not the absence of one. It is somebody else's, made from the same material without the grades, and this series has spent nineteen parts arguing that the grades are the whole difference between an argument and a slogan.

Where the objection stands, and it stands: this part is the most quotable thing in the series and the most easily severed from its qualifications. **Part Seventeen made exactly that complaint about itself and could not solve it either.** Two of nineteen parts having the same unfixable defect is worth a reader knowing.

Chapter Ten returns to that question and does not resolve it either.

REMEMBER THIS

This list is **not complete, not a score, not a comparison and not final.** Four disclaimers, all of them load-bearing, and the second one is the most ignored sentence in nineteen parts.

It has **two columns**, and the division is not the evidence grade. It is whether the finding survived a change of government.

Column two is longer. **Almost everything in it was built by Congress governments and nobody has dismantled it** — a heavier charge against the party and a lighter one against any particular ministry.

CHAPTER TWO

Proven

This is the top of the scale: things a court convicted somebody of, and things a court found without convicting anybody. It is the shortest substantive chapter in this part and that is the finding.

WORD BOX · WHY A CONVICTION TAKES TWENTY YEARS

Four things, each ordinary, which multiply.

Sanction. Certain public servants cannot be charged without permission from the executive. Parts Thirteen, Fifteen, Sixteen and Eighteen all found this operating.

Interlocutory appeals. Almost any ruling during a trial can be appealed separately, and each appeal stops the trial.

Witnesses. A case that takes twenty years outlives the memory, the availability and sometimes the life of the people who saw what happened.

And no clock. There is no statutory outer limit on how long a trial for a public-office offence may take. Parts Fourteen and Fifteen both proposed one; Part Eighteen records that it has never been introduced.

Part Fourteen's finding, which nothing since has disturbed: **delay is not a failure of the anti-corruption process. It is the process.**

2.1 — Convicted

TABLE 2 · CONVICTED

What	Who	When, and how long it took	Part
Telecom contracts	A Union minister and officials	2002 and 2011. Fifteen years to the second sentence; nine days in custody	Fourteen
Urea: ₹133 crore paid in advance, no delivery	Two foreign nationals, a Prime Minister's nephew, a minister's son, company officials	2018. Twenty-three years	Fourteen
Coal block allocations	A Coal Secretary, two ministry officials, company directors	2016 and 2017. Several later acquitted, the last in 2026	Sixteen
November 1984 killings	Individual participants; one life sentence on reversal of an acquittal, a second in 2025	2018 and 2025. Thirty-four and forty-one years	Ten, Eleven

What	Who	When, and how long it took	Part
Secret cremations in Punjab	Six police officials, for the abduction and killing of a human rights investigator	2005, enhanced 2007. Ten years	Ten
Hashimpura, May 1987	Sixteen, to life, by the Delhi High Court on appeal	2018. Thirty-one years	Eleven
Bhagalpur, October 1989	Convictions in a case involving around a thousand deaths	2007. Eighteen years	Eleven
The JMM bribery case	A former Prime Minister and a former minister	2000. Acquitted on appeal in 2002	Fourteen

Eight entries. The last one was reversed. Read the third column downwards: the median time from act to conviction across this table is over twenty years.

HIDDEN ASSUMPTION

Everybody assumes that **the proven column contains the worst things in a book like this**. Convicted is the top of the scale, so the top of the scale must be where the gravity is.

Read Table 2 again. Almost everyone in it is a police official, a company director, a civil servant or an individual participant in a riot. **The only minister convicted for anything in seventy-nine years of this series was a telecom minister, over a three lakh rupee bribe, fifteen years late, and he was out on bail in nine days.** The only Prime Minister ever convicted was acquitted on appeal.

Now put that beside what is *not* in this table. The Emergency. Nine days in December 1992. Two lakh crore of presumptive loss across two audits. A hundred and twenty-two licences cancelled. Twenty-one years of coal allocations held illegal. Not one of those produced a conviction of anybody who decided anything.

So the proven column is not where the gravity is. It is where the gravity is not. It contains the cases small enough, individual enough and old enough to have finished.

Part One built a six-grade scale because a book that recognised only convictions would have almost nothing to say about the largest events in Indian public life. **Nineteen parts later, Table 2 is the proof that it was right, and it is the proof by absence.**

The defence is entitled to make something of that and it is worth putting properly.

Read the third column of that table downwards and the obvious question is whether the delay is political.

HOW WE ACTUALLY KNOW THE DELAY IS STRUCTURAL

Because it does not vary with the politics of the case, and that is the only test that distinguishes a systemic problem from a political one.

The urea convictions took twenty-three years and were obtained under a government of a different party from the one in office when the money was paid. The Hashimpura convictions took thirty-one years and came from a High Court on appeal after an acquittal. The 1984 convictions of 2018 and 2025 came thirty-four and forty-one years on, under two different governments, both hostile to the party in office at the time of the killings.

Every one of those had a government with every incentive to move faster, and none of them moved faster.

Which rules out the explanation that would otherwise be natural — that cases against a ruling party's people go slowly. They go slowly regardless. **The delay is a property of the process, not of who is being prosecuted**, and Part Fourteen's finding stands: it is not a failure of the anti-corruption process, it is the process.

The defence is entitled to make something of that and it is worth putting properly.

THE ARGUMENT FROM THE OTHER SIDE

The defence reads Table 2 as its best page in this book, and the reading is not unreasonable.

Seventy-nine years, nineteen parts, and eight convictions — of which one was reversed, most are of officials and individual participants rather than of anybody who set policy, and the median time to judgment exceeds twenty years. On any ordinary understanding of what a prosecution is for, that is a prosecution that failed.

The reply, which concedes the arithmetic: the table is short because the Indian criminal process cannot reach decisions taken at the top, not because such decisions were not taken. Table 3 is the same events reaching the same courts by a different route and arriving at findings that stand.

Where the defence keeps something anyway: a book that has to explain why its top rung is empty is a book making a weaker claim than its title suggests. **This series does make a weaker claim than its title suggests**, and Chapter Ten says so in those words.

2.2 — Court-found

The second rung, and this is where the weight actually sits.

TABLE 3 · COURT-FOUND

Finding	Court and date	Still standing?	Part
The privy purse abolition by Presidential order was unconstitutional	Supreme Court, eleven judges, 15 December 1970	Superseded amendment in 1971	by Eight
The 39th Amendment placing the PM's election beyond the courts was void	Supreme Court, 7 November 1975, under the Chief Justice who had opposed the doctrine used	Yes	Nine
ADM Jabalpur, that the courts were helpless during the Emergency	Supreme Court, 28 April 1976, 4:1	Overruled in 2017	Nine
The 1959 Kerala dismissal and the 1989 Karnataka dismissal	Karnataka held unconstitutional, <i>Bommai</i> , 11 March 1994	Yes	Three, Sixteen
The 2008 spectrum allocation was arbitrary; 122 licences quashed	Supreme Court, 2 February 2012	Yes. Never disturbed	Sixteen
Coal allocations arbitrary and illegal since 1993; 214 blocks cancelled	Supreme Court, 25 August and 24 September 2014	Yes	Sixteen
The compensation paid to the victims of November 1984 was inadequate, repeatedly	Delhi High Court, 1996, 2005 and 2024	Yes. In 2024 the administration was called insensitive and callous	Eleven
Legislators have no immunity for bribery	Supreme Court, seven judges, 4 March 2024, overruling 1998	Yes	Fourteen, Fifteen
Nine Muslim men were wrongly held for the 2006 Malegaon bombing	Discharged 2016 on a charge sheet by a central agency	Yes	Fifteen
The Electoral Bond Scheme was unconstitutional	Supreme Court, five judges, unanimous, 15 February 2024	Yes. Review dismissed	Eighteen

Ten entries, eight still standing. Every one is a finding about a decision rather than about a person, which is why none of them produced a conviction and all of them changed the law.

Every entry in that table has a property the convictions do not, and it is the reason this rung carries the weight of the series.

A conviction is a finding about a person, and it binds nobody else. When the telecom minister was sentenced in 2011, the sentence established that one man had taken three lakh rupees; it established nothing whatever about how telecom contracts should be issued, and no subsequent minister was constrained by it in any way.

A court finding against a decision works in the opposite direction. It binds everybody, immediately, and it operates on the office rather than the holder. *Bomma* did not punish anybody for the Karnataka dismissal; it changed what any future government of any party could do with Article 356, and the effect was visible within two years. ***Sita Soren* convicted nobody and made every legislator in India prosecutable for bribery.**

Which is why the two tables in this chapter run in opposite directions. **Table 2 is a list of individuals who were reached. Table 3 is a list of rules that were changed.** The second is shorter on names and vastly longer on consequence, and a prosecution that measured only the first would have concluded that seventy-nine years produced almost nothing.

IN REAL TERMS

Compare the two tables. **Table 2 sent people to prison and changed nothing. Table 3 sent nobody to prison and changed the constitutional law of India repeatedly.**

Article 356 works differently because of one entry in Table 3. Every legislator in the country is prosecutable for bribery because of another. A hundred and twenty-two licences and two hundred and fourteen coal blocks were cancelled because of two more.

Part One's decision to build a scale rather than a binary is the single most consequential craft decision in this series, and this is where it pays. **A book that recognised only convictions would consist of Table 2.**

Which is the shape of the top of the scale, and it is not the shape anybody expects.

REMEMBER THIS

Convicted is eight entries, mostly officials and individual participants, at a median of over twenty years. One minister, over three lakh rupees, fifteen years late, nine days in custody. One Prime Minister, acquitted on appeal.

The Emergency, December 1992, the spectrum allocation, the coal allocations — **not one produced a conviction of anybody who decided anything.**

Court-found is where the weight sits: ten findings, eight still standing, none of which jailed anybody and all of which changed the law.

CHAPTER THREE

Audited and Commission-Found

The middle of the scale, and the rungs that almost nobody uses. An auditor's finding and a commission's finding are official, serious, and not legal determinations of anything — which is exactly why they carry the largest numbers in this book and the least consequence.

3.1 — Commission-found

TABLE 4 · COMMISSION-FOUND

Finding	Which inquiry	What followed	Part
110,806 detained without trial; 25,962 officials retired; 1,774 deaths from sterilisation procedures	Shah Commission, three reports to August 1978	The report was recalled after 1980 and reconstructed from surviving copies	Nine
2,733 killed in Delhi in November 1984; ~3,325 nationally	Ahuja Committee, August 1987; accepted by Nanavati	Four commissions, nine committees, two SITs. 25 convictions	Ten, Eleven
Sixty-eight leaders and senior officials held accountable for the 1992 demolition; the executive took no effective measures	Liberhan Commission, 30 June 2009 — seventeen years, forty-eight extensions	Nothing. Its terms of reference excluded the central government	Fourteen
Total confusion in processing intelligence alerts; inputs ignored; a proper analysis would have revealed a strong indication	Pradhan Committee, 2009	Never published	Fifteen
25 of 102 members of a housing society on public land ineligible; 22 proxy holdings; clearances as a quid pro quo	Patil Commission, 2013, 182 witnesses	Sanction to prosecute granted, then quashed for want of fresh evidence	Sixteen
27,000–40,000 killed as a conservative floor in Hyderabad, 1948	Sunderlal Committee, December 1948	Never published; surfaced 1988; public from 2013	Two
None of the sampled encounters in Manipur was genuine	Santosh Hegde Committee, 2013	No prosecutions followed	Thirteen

Seven inquiries. One report recalled, two never published, one whose terms of reference excluded the body most in need of examination. Not one produced a consequence proportionate to its own finding.

WORD BOX · A COMMISSION OF INQUIRY, AND WHAT IT CANNOT DO

A body appointed by government under the Commissions of Inquiry Act to examine a matter of public importance. It can summon witnesses and documents and it reports to the government that appointed it.

What it cannot do is the whole point. **It cannot convict, cannot order anything, and cannot compel its own report to be published.** Its terms of reference are written by the government, which decides what it may examine — Part Fourteen found the same device used in 1963 and 1992, twenty-nine years apart, to keep an inquiry away from the body most in need of examining.

And there is no time limit. The Liberhan Commission sat for **seventeen years and took forty-eight extensions.**

So a commission's finding is real, official, and attached to no obligation whatever. That is why

COMMISSION-FOUND sits below **COURT-FOUND** on this book's scale and above **ALLEGED**.

What those seven inquiries cost, and produced, is worth setting out.

IN REAL TERMS

Set the seven inquiries in Table 4 against what they cost.

The Liberhan Commission sat for **seventeen years**, took forty-eight extensions, held 399 sittings and cost around **₹8 crore**. It named sixty-eight people and produced no consequence for any of them, because its terms of reference excluded the government that appointed it.

Four commissions, nine committees and two special investigation teams examined November 1984 across forty-one years. **Twenty-five convictions.**

Part Eleven's finding covers this whole table and nothing since has disturbed it: **establishing a record has functioned as a substitute for accountability rather than a step towards it.**

One feature of Table 4 deserves a note, because it is the closest thing to a pattern in this book that nobody designed.

The seven inquiries were appointed by five different governments across sixty-five years, and the fate of each was decided by whoever held office when it reported rather than by whoever appointed it. The Shah Commission was appointed by a government that lost power before its work could bite, and its report was recalled by the party it examined. The Sunderlal report was made for a government that then held it for a lifetime. The Liberhan Commission outlasted four Prime Ministers.

An inquiry's usefulness is therefore decided at a moment nobody controls when it is set up — which is an argument for the two rules in Table 12 that would fix it, both of which are ordinary, cheap, and have never been introduced by anybody.

3.2 — Audited

The rung nobody uses, carrying the two largest numbers in the book.

TABLE 5 · AUDITED

Finding	Figure, and what it measures	Part
Spectrum allocated below value, January 2008	₹1,76,645 crore presumptive. The CBI's own charge sheet used ₹30,984 crore	Sixteen
Coal blocks allocated without auction, 1993–2010	₹1.86 lakh crore final; ₹10.67 lakh crore in the leaked draft	Sixteen
Commonwealth Games procurement	Inflated contracts, disqualified competitors, single-tender situations	Sixteen
Freight equalisation's dispersal benefit offset by transport costs	Stated to Parliament by a Union minister citing the committees	Five
Adarsh: officials in key posts subverting rules to obtain prime public land	CAG, 2011	Sixteen

Part Sixteen's Chapter Three exists because these two figures were treated as measurements of theft and are measurements of a policy choice against a counterfactual. Both were later partially tested against real auctions and Part Sixteen's Chapter Eight gives the result.

Those two figures deserve one paragraph of explanation, because they are the most repeated numbers in modern Indian political argument and almost nobody who repeats them knows what they measure.

A presumptive loss is not money that went missing. It is the difference between what the government received and what an auditor calculates it might have received under a different allocation method. **It is a subtraction against a hypothetical.** Change the assumed method and the figure changes — which is exactly what happened to the coal number, where the leaked draft said ₹10.67 lakh crore and the published report said ₹1.86 lakh crore, using the same underlying blocks.

That does not make the figures worthless. An auditor is entitled to say that an asset was given away below value and to estimate by how much, and both Supreme Court benches found the allocations arbitrary without needing the number at all. **What it makes them is an estimate of a policy gap, not an inventory of stolen property** — and Part Sixteen's

Chapter Eight tested both against real auctions afterwards, which is the only honest way to check an estimate of this kind.

The distinction cost Part Sixteen most of its force and it is repeated here for the same reason: **a prosecution that uses a number it cannot explain is relying on the reader not asking.**

HOW WE ACTUALLY KNOW THESE ARE THE WEAKEST STRONG FINDINGS

There is a test for how much an official finding is worth, and it is not who made it. It is what the state did next.

A Shah Commission report **recalled**. A Sunderlal report **never published** and surfacing forty years later. A Pradhan report **never published**, its stated reason expiring in 2012. A Liberhan report whose terms of reference excluded the central government. A Hegde finding of no genuine encounters, followed by no prosecutions.

Five of the seven inquiries in Table 4 were either suppressed, scoped so they could not reach the answer, or ignored. That is not a coincidence and it is not one party's habit — the reports span 1948 to 2013 and four different governments held them.

Which is why these grades sit in the middle of the scale and not at the top. **A commission finds; a court decides. Only one of those two comes with an obligation attached.**

Both rungs invite the same objection and it should be met directly.

THE ARGUMENT FROM THE OTHER SIDE

The objection to the whole middle of this scale: that **COMMISSION-FOUND** and **AUDITED** are grades this book invented to keep material it could not prove.

A commission cannot convict. An auditor cannot rule. Neither hears the accused with counsel, neither applies a standard of proof, and both report to the government that appointed them. A scale that gives such findings their own rungs — above **ALLEGED** — has given official-sounding material a status the law does not recognise.

The reply: the alternative is worse in both directions. Treat these findings as proof and the two largest numbers in this book become theft, which Part Sixteen showed they are not. Treat them as mere allegation and the Shah Commission's detention figures, the Ahuja death toll and the Hegde finding on Manipur all collapse into the same bin as a suitcase at a press conference.

Where the objection lands, and it lands hard: these two rungs carry the largest numbers and the least consequence, and a reader who does not attend to the grade will read them as proof. This book's only defence is to print the grade against every entry and to say, as it does here, that **the middle of a scale is where a careful reader should be most careful.**

Which places these two rungs exactly where Part One put them, and for the reason Part One gave.

REMEMBER THIS

Seven official inquiries. **One report recalled, two never published, one scoped so it could not examine the central government, one followed by no prosecutions.**

The two largest numbers in this series — **₹1.76 lakh crore and ₹1.86 lakh crore** — sit on the **AUDITED** rung, which means no court ever ruled on them, and Part Sixteen showed what they actually measure.

A commission finds. A court decides. **Only one of those comes with an obligation attached.**

CHAPTER FOUR

Alleged

This chapter is a list of things this book does not assert. It exists because a prosecution document that quietly drops what it cannot prove is a prosecution document that has been edited to look stronger than it is.

4.1 — What is in this column and why it stays there

TABLE 6 · **ALLEGED**, AND NEVER PROMOTED

The allegation	Why it stayed here	Part
That the central government directed or connived at the demolition of 6 December 1992	Thirty-four years, a commission, a criminal trial. Nobody established it	Fourteen
That Rajiv Gandhi ordered the Ayodhya locks opened in February 1986	Contested by a witness from inside his own office. Part Twelve rested its case on 1989 instead	Twelve
That Rajiv Gandhi received money from the Bofors contract	No conviction of anybody, ever, under four different governments	Twelve
That ₹1 crore in cash was delivered to Prime Minister Rao in 1993	A suitcase at a press conference by a man facing seventy-two prosecutions	Fourteen
That central direction lay behind the police inaction of November 1984	Forty-one years of inquiry has not established it. Part Ten rested on the fact of inaction instead	Ten
Everything sourced to the leaked Henderson Brooks report	The state will neither confirm nor release it. Graded ALLEGED throughout Part Six	Six
Who burned the shrine at Charar-e-Sharief in 1995	Disputed in both directions, including by a civil servant who was there	Fifteen
That any minister of UPA II took money in the four cases of Part Sixteen	No court has found it. The largest case ended in acquittals of everybody	Sixteen
The Batla House encounter of September 2008	Contested in both directions; the challenges have not been sustained in any court	Fifteen
CIA or British involvement in the 1959 Kerala dismissal	Part Three deliberately did not rest on it	Three
That the Banswara speech of April 2024 was unlawful	Complaints made; no body with power to find made a finding	Eighteen

Eleven items, several of which would have been the most quotable material in this series. Every one of them was available and every one was left here.

IN REAL TERMS

Take the first four rows together and consider what this book would look like if they had been promoted one rung.

It would say that a Congress government arranged the destruction of the Babri Masjid, that a Prime Minister ordered the locks opened and took money from an arms contract, and that another took a crore in a suitcase.

That book would be far more popular than this one and it would be worth nothing, because every one of those four claims can be dismantled in an afternoon by anybody with a search engine, and the dismantling would take the rest of the series down with it.

Part Two's chapter on this: the true charges are routinely dismissed because they arrive bundled with false ones, and a single thirty-second debunk retroactively poisons every other page.

There is an objection to this discipline and it comes from the same side of the argument as this book.

THE ARGUMENT FROM THE OTHER SIDE

The objection to this chapter, from the prosecution's own side: that leaving eleven allegations ungraded is not rigour but timidity. Several of them are believed by very large numbers of people, some are supported by circumstantial material this book itself sets out at length, and a document that assembles all of that and then declines to draw the obvious inference is doing the defendant's work.

The reply: the inference is available to the reader and this book has laid out the material precisely so that it can be drawn. What it will not do is print the inference as a finding, because a finding carries a grade and none of these has one.

Where the objection lands: on the practical effect. A reader who takes only the graded claims from this series takes a substantially milder view of these governments than the full record would support, and this book has knowingly produced that effect.

Why it stands anyway: Part Two's finding is that true charges are routinely dismissed because they arrive bundled with false ones. **A prosecution that trades accuracy for reach loses both, and always in that order.**

Which turns on what the fifth grade is actually for.

WORD BOX · WHY **ALLEGED** IS A GRADE AND NOT A BIN

Most political writing has two states: things asserted and things not mentioned. This book has six, and the fifth exists to hold a specific class of claim that the other two cannot.

ALLEGED means: **this was said in public, it has not been shown false, and no body with the power to find has found it.** All three clauses are load-bearing.

It is not a soft yes. Chapter Four's eleven entries are not claims this book half-believes; they are claims it declines to make. And it is not a soft no — several of them may well be true, and one may be established after this book is printed.

The difference between this grade and silence is that **a reader can see what was considered and rejected**, which is the only defence a selective document has against the charge of having quietly dropped what did not suit it.

There is a way to check that this is a discipline and not a convenience.

HOW WE ACTUALLY KNOW THESE WERE NOT QUIETLY DROPPED

The test for whether a selective document has buried its weak material is whether the weak material is findable, and in this series it is.

Every entry in Table 6 was set out at length in the part that considered it, with the evidence for it as well as against. Part Twelve gives the Bofors record over a full chapter before declining to assert it. Part Ten sets out the entire case for central direction in November 1984 and then rests on inaction instead. Part Six grades the whole leaked-report material **ALLEGED** and then uses it anyway, flagged, because the alternative was to pretend it did not exist.

A claim that has been argued for three thousand words and then not made is a different object from a claim that was never mentioned. The first can be checked by a reader who disagrees. The second cannot be checked by anybody.

Which is the practical difference between a grade and an omission, and the reason this chapter is printed rather than left as an absence.

There is a pattern in that table that is worth naming, because it is not obvious and it recurs.

Nine of the eleven entries are allegations of *direction* — that somebody at the top ordered a thing that then happened. Not that the thing happened; that is established in every case. That it was ordered.

This is the hardest class of claim to prove about any government anywhere, and for a structural reason. **An instruction that would establish it is either never written down or is written down in a file that is not released** — and Chapter Seven lists three such files,

one of them covering precisely the nine days in which the most consequential of these allegations would have to be established or refuted.

So the eleven entries in Table 6 are not eleven independent failures of evidence. They are one failure, repeated: **the Indian state does not release the documents that would settle questions of direction, and in their absence the claim can be neither made nor dismissed.** A reader who finds this chapter unsatisfying is having the correct reaction, and the remedy is in Chapter Seven rather than here.

4.2 — The two the defence gets to keep

Two entries in that table deserve to be stated as what they are, which is wins for the other side.

Bofors. Part Twelve set out the whole record — the contract of March 1986, the express bar on agents, the Swedish audit confirming commissions, the Swiss documents of 1997, the chargesheet naming a dead man, the quashing in 2004 before Congress returned to office, the criticism of the investigating agency in 2005, the failure to appeal in time. **No conviction has ever been obtained, of anybody, and the case failed under Congress, the National Front, the United Front and the National Democratic Alliance alike.** What it established was a mechanism, not a crime.

The spectrum acquittals. Part Sixteen refused to treat a failed prosecution as a proved charge and this part does not reverse that in its final chapter. The appeal admitted in March 2024 is pending. Until a court says otherwise, everybody accused in the largest scandal in modern Indian history has been acquitted, and this book says so in its consolidated list rather than in a footnote.

REMEMBER THIS

Eleven allegations this book **does not make.** Several were the most quotable material available and every one was left on this rung.

Including: that any government arranged the 1992 demolition, that Rajiv Gandhi took Bofors money, and that any UPA II minister took money in the four cases of Part Sixteen.

A book that promoted those four rows would be far more popular and worth nothing, because each can be dismantled in an afternoon — and the dismantling takes the rest of the series with it.

CHAPTER FIVE

Folklore

Part One contained a chapter called What Was Made Up and promised that its list would be repeated here. This is that column, and it is the most useful chapter in this book.

5.1 — Why a prosecutor kills his own material

The argument was made in Part One, restated in Part Seventeen and is worth having once more in the last part, because it is the single idea this series would most like a reader to keep.

It is generally assumed that debunking a false claim against somebody helps that person. It is why partisans of every description are reluctant to do it, and why a false claim, once in circulation, tends to stay there unchallenged by the side it favours.

It is backwards, and the arithmetic states in one paragraph. A reader who meets a list of forty charges and finds that one is fabricated does not discard that charge. He discards the source, and with it the thirty-nine he had not checked. **The loss is not one item; it is the list, and it is retrospective.**

So a fabrication in circulation is not an asset to the side making it. It is an asset to the side it attacks — a permanently available demonstration that the accusers are unreliable, producible at any moment and costing nothing to deploy. Which produces the conclusion this chapter exists for: **the fabrications against Congress are Congress's best defence, and killing them is the most useful thing a prosecutor can do.** Nobody else writes this chapter, in either direction, and that is precisely why it works.

There is a second half to the argument that has been implicit for eighteen parts and should be stated plainly at the end.

The fabrications in Table 7 did not appear randomly. Six of the eight attach to exactly the places where the documented record is strongest — the 1984 killings, the Adarsh allocations, the statements of the 2004–2014 governments. **A fabrication grows where there is already an argument to be had,** because that is where an audience exists for it.

Which produces a perverse result. The stronger the real case against something, the more false material accumulates around it, and the more false material accumulates, the

easier the real case is to dismiss. Part Sixteen's Adarsh chapter is the clearest instance in the series: a CAG finding, a judicial commission with 182 witnesses, 25 ineligible members and 22 proxy holdings — **all of it routinely waved away with a single sentence about war widows that nobody has established.**

So killing a fabrication is not a concession made in the interest of fairness. It is the removal of the specific object that is protecting the thing this book is trying to prove. That is the whole of the argument, and it is why this chapter sits in the middle of the series' last part rather than in an appendix.

Before the column itself, the objection to printing it at all.

THE ARGUMENT FROM THE OTHER SIDE

The objection to this chapter is the sharpest one in the book, and it comes from the author's own side: that a prosecution which spends a chapter defending the accused has stopped being a prosecution. Nobody appointed this book counsel for Congress. If a claim in circulation is false, the party has lawyers, spokesmen and a national organisation to say so.

And there is a harder version. Killing eight fabrications in a document read by people hostile to Congress does not reduce the fabrications; it launders the rest of the book, by purchasing credibility with material the author never believed anyway. That is a rhetorical technique, not a discipline.

The reply, and it is a partial one: the technique and the discipline are indistinguishable from outside, and the only thing that separates them is whether the corrections cost the author anything. Three of the eight did — including the most quoted political sentence in modern India, dismantled in Part Seventeen's first substantive chapter, which was the single most useful thing this series had.

Where the objection stands: it is true that this chapter buys credibility. What it says in its own defence is that the credibility was paid for, in material, at a price a reader can check.

5.2 — The column

TABLE 7 · **FABRICATED**, OR MISREPRESENTED

The claim in circulation	What the record shows	Part
A criminal allegation against Rahul Gandhi arising from a 2012 petition	The petition was dismissed. In 2012 a Supreme Court bench found it rested on falsehood and was driven by malice and political vendetta, imposed a ten lakh rupee cost on the petitioner — a former MLA — and directed part of it to the family whose reputation the petition had also damaged. Investigators could not locate that family. Search results conflate a different person of the same common name with the Congress leader , and this conflation is itself a case study	One
That Feroze Gandhi was born a Muslim named Feroze Khan	Checkably false. He was a Parsi, son of Faredoon Jehangir Ghandy. Most of the affair rumours about Indira Gandhi descend from this strand	One
That a Prime Minister said Muslims have the first claim on the country's resources	The nine words are real: 9 December 2006, National Development Council. The reading is not supportable on the paragraph , which lists SC/STs, backward classes, minorities and women and children. The Prime Minister's Office reproduced it the next day	Seventeen
That Rahul Gandhi tore up the ordinance in September 2013	He did not. He said it should be torn up. A photograph of him tearing paper is from a 2012 rally. Major outlets reported the tearing as fact, one has published a correction, and in 2023 the party's own chief spokesman described the act	Seventeen

The claim in circulation	What the record shows	Part
That Mani Shankar Aiyar called Narendra Modi a <i>chaiwala</i> in January 2014	The word was not used. He offered space to sell tea. The insult did not require the noun and the substance was worse than the word	Seventeen
That Nehru's remark about Aksai Chin was made in 1962, after the war	5 December 1961, ten months before. The misdating makes the statement less damaging and is repeated most enthusiastically by the speaker's critics	Seventeen
That the INS Viraat was used for a family holiday in 1987	Trip real, purpose contested. The ship's commanding officer, the Southern Naval Commander and the island's administrator all said it was official. One other retired officer took the opposite view. Verdict: weight low, both sides stated	One
That flats meant for Kargil war widows were taken at Adarsh	The society's stated purpose changed several times across a decade. A fixed allocation for war widows, diverted, is ALLEGED rather than established — and it is the sentence that lets every documented finding there be waved away	Sixteen

Eight entries. Three of them were the best material this book had against Congress and two were the best it had against anybody else, which is the point.

IN REAL TERMS

Look at what this column cost.

Part Seventeen's Chapter Two opened by dismantling the most quoted political sentence in modern India — the single most useful thing this book had — and spent its first substantive chapter doing it.

Part Sixteen's Chapter Six dropped the war widows sentence, which is the most damaging thing attached to the Adarsh case.

Part One graded the Viraat claim as low weight and gave both sides.

Against which: this chapter also kills three claims circulating *in the other direction*, including two that make a Congress leader look better than the truth does.

A folklore column that only contained things helpful to the author would not be a folklore column. It would be a fifth charge sheet.

Which raises a question this chapter has to answer: if these are all correctable, why are they still here?

WORD BOX · HOW A FABRICATION SURVIVES BEING DEBUNKED

Four of the eight entries in Table 7 have been publicly corrected — one by a national outlet issuing a formal correction, one by the speaker himself, one by the Prime Minister’s Office publishing the actual text the following day. All four remain in circulation.

Three things keep them there.

The correction is a different shape from the claim. The claim is a sentence. The correction is a paragraph explaining what the sentence leaves out. Only one of those survives being repeated.

The claim is useful and the correction is not. Nobody needs the true version of the 2006 sentence for anything. Large numbers of people need the false one every week.

And the correction usually comes from the accused. A denial by the person accused is read as a denial, not as evidence — which is exactly why a correction issued by the prosecution, as in this chapter, is worth more than the same correction issued by the defence.

5.3 — What is not in this chapter, and why

One category was excluded from this series entirely, at the outset, and the reason belongs in the last part.

Viral claims about the personal lives of individual leaders — particularly allegations of sexual crime against living named people — do not appear in these nineteen parts in any form, including as a claim with a correction attached. The first row of Table 7 describes *a piece of litigation and what a court found about it*, and deliberately does not say what was alleged.

HOW WE ACTUALLY KNOW THIS IS THE RIGHT HANDLING

The reasoning is not squeamishness and it is testable.

Writing out a false allegation with a debunk attached spreads the allegation. The debunk travels less well than the claim, is dropped when the passage is quoted, and the reader who half-remembers the page remembers the accusation. **A correction printed underneath a fabrication is a distribution mechanism with a disclaimer on it.**

The inverted handling loses nothing that matters. What makes the first row of Table 7 useful is not what was alleged. It is that a court examined it, found it rested on falsehood and malice, imposed costs, and directed part of them to a family the petition had also damaged — **and that investigators could not find that family at all.**

That is a complete account of a political fabrication, with a judicial finding attached, and it does not require the fabrication to be restated. Part One established this handling and nineteen parts have kept it.

Which is why the handling has been kept unchanged through nineteen parts and is stated once more in the sources note at the end.

REMEMBER THIS

Debunking a false claim **does not help the defendant**. A reader who finds one fabrication in forty charges discards the source, not the charge — so a fabrication in circulation is an asset to the side it attacks.

Which is why **the fabrications against Congress are Congress's best defence**, and killing them is the most useful thing this book does.

Eight entries. Three were the best material this book had. **Three more make a Congress leader look better than the truth does**, and they are in the same table.

CHAPTER SIX

The State Ledger

Part Five's Chapter Eight committed every subsequent part to carrying a state ledger and said it would consolidate here. This is it: fourteen parts of entries in one table.

Before the table itself, the objection to keeping one at all.

THE ARGUMENT FROM THE OTHER SIDE

The objection to any state ledger: that it converts a national government's record into a set of grievances with postal addresses, and that this is how regional resentment is manufactured rather than measured.

Every large country makes decisions that fall unevenly. A tariff, a rail formula, a language policy or a Plan allocation will always advantage somewhere and disadvantage somewhere else, and listing the disadvantaged places without listing the advantaged ones is not analysis.

The reply, and it is why the last row of Table 8 exists: the beneficiaries are in the ledger. Gujarat and Tamil Nadu appear as the states that received the removal of somebody else's advantage, which is what freight equalisation actually did.

Where the objection is right: a ledger like this is genuinely dangerous material, it is used by people this book has no wish to supply, and the Hidden Assumption box below is the only defence against that — **a state appears here when something was written down about it, not when more happened to it.**

One word first about how the entries were carried across.

HOW WE ACTUALLY KNOW THIS

Nothing in Table 8 is new. Every entry is carried forward from the ledger printed in the part it comes from, and every one of those was sourced there.

That matters because a consolidated table is where errors compound invisibly. A figure loosely stated in Part Five becomes a hard number in Part Nineteen simply by being retyped, and a reader has no way of seeing the softening.

So two rules were applied. **No entry is stated more confidently here than it was stated in its own part**, and where a part hedged, the hedge is carried. The Punjab row still says the rivers case is weak on the water. The Bengal row still says the sharpest decline runs from 1977 under a government Congress did not control.

A consolidation that quietly hardens its sources is not a consolidation. It is a second draft with the qualifications removed.

6.1 — The consolidated ledger

TABLE 8 · THE STATE LEDGER, PARTS FIVE TO EIGHTEEN

State	What was done, and by which instrument	Parts
Bihar · Jharkhand	Freight equalisation from 1952 confiscated the only advantage the mineral belt had. Jharkhand separated in 2000 by a non-Congress government, after the hole was dug. Coal blocks, screening committee, 1993–2010; 214 cancelled 2014	Five, Sixteen
Odisha · Chhattisgarh · Madhya Pradesh	The same freight rule. The same coal blocks. The overlap of scheduled areas, the mineral belt and the Red Corridor — minerals always, scheduled 1950, extraction from the 1950s, insurgency only from the late 1970s	Five, Thirteen, Sixteen
West Bengal	Freight equalisation; ~1,218 factories in 1946, a quarter of India's. The sharpest decline runs from 1977 under the Left Front, which Congress did not cause	Five
Punjab	Canal investment from the 1880s made it the Green Revolution's target. The rivers: weak case about the water, strong case about the procedure . 1978–1993: Blue Star, President's Rule for five years, TADA at a 1–2% conviction rate, ~2,097 cremations confirmed in one district. Procurement lock-in never reversed by anybody	Five, Ten
Delhi	November 1984: 2,733 dead on the state's own lowest figure, 587 FIRs, ~240 untraced. The Emergency's press power cut at 2am on 26 June 1975. Cash on the floor of the Lok Sabha, 2008. The Commonwealth Games	Nine, Ten, Eleven, Fifteen, Sixteen
Uttar Pradesh	The affidavit of 27 November 1992 and the nine days. President's Rule from December 1992. Hashimpura, May 1987 — 31 years to conviction	Eleven, Fourteen
Maharashtra	Malegaon 2006 and nine men wrongly held; the July 2006 train bombings, twelve convicted 2015 and acquitted 2025; 26/11 and a report never published; Adarsh; the 1992–93 violence and a commission disbanded then revived	Eleven, Fifteen, Sixteen
Jammu and Kashmir · Ladakh	Accession 26 October 1947; the plebiscite offered in January 1948; Article 370 hollowed by Presidential Order for four decades and removed on 5 August 2019 under President's Rule. Hazratbal ended without a shot; Bijbehara; Charar-e-Sharief. Aksai Chin held since 1962	Two, Six, Seven, Fifteen, Eighteen
Nagaland · Manipur · Arunachal · Assam · Mizoram · Tripura · Meghalaya	AFSPA from 1958, descended from a 1942 colonial ordinance; the 1972 amendment removing the need for state consent; Section 6 unamended for sixty-eight years . Withdrawn Mizoram 1980s, Tripura 2015, Meghalaya 2018; in force elsewhere into March 2026. Mon, December 2021: sanction refused	Thirteen, Eighteen

State	What was done, and by which instrument	Parts
Kerala	The elected government dismissed 31 July 1959 after 27 months — where Article 356 became an instrument. Later a case that breaks the pattern in the freight ledger	Three, Five
Andhra Pradesh Telangana	Hyderabad 1948 and a committee report unpublished for sixty-five years. Mecca Masjid 2007 and compensation ordered recovered. The urea prosecutions	Two, Fourteen, Fifteen
Rajasthan · Haryana · Himachal · Karnataka	Three governments dismissed 15 December 1992 and the dismissals upheld. Ajmer 2007; Jaipur 2008 and acquittals in 2023; Samjhauta 2007. Bommai's own 1989 dismissal held unconstitutional	Fourteen, Fifteen, Sixteen
Gujarat · Tamil Nadu · Every state	Freight equalisation's beneficiaries, who received the removal of somebody else's advantage. The Right to Information Act 2005; the employment guarantee; food security 2013; GST 2017	Five, Fifteen, Sixteen, Eighteen

Thirteen rows covering every state in which this series found something. The credit column is real and is in the last row and in the Jammu and Kashmir and Punjab entries.

Which is the objection. The reason for keeping one anyway is narrower than it looks.

WORD BOX · WHY A STATE LEDGER AT ALL

India is a union of states and almost every decision in this book was taken in Delhi and landed somewhere else. A national record that does not say where things landed is describing an abstraction.

Part Five committed the series to this table for a specific reason: it had just found that a **national freight formula, uniform on its face, transferred an advantage from one set of states to another for forty-one years** — and that this was invisible in any national statistic.

A ledger makes that kind of finding checkable. It also makes it quotable by people who want a grievance rather than an argument, which is the objection above and the reason the box below exists.

With one caution about how a table of this kind is read.

HIDDEN ASSUMPTION

Everybody reading a table like this assumes it is a **map of damage** — that the states appearing most often suffered most.

It is not, and the difference matters. Look at which states recur. Delhi, five times. Maharashtra, three. The mineral belt, three. Jammu and Kashmir, five.

Delhi recurs because it is where the instruments are operated. Jammu and Kashmir recurs because it is where every constitutional instrument in this book has been tested at some point. Maharashtra recurs because it has the courts, the market and the police force that generate records.

A state appears in this ledger when something was written down about it. The mineral belt appears three times not because more happened there but because Part Five found the pipe, Part Thirteen found the maps and Part Sixteen found the blocks — three separate authors of three separate documents about the same ground.

Which means the ledger is a **map of documentation, not of harm**, and the states that appear least are the ones about which the least was recorded. Part Thirteen's finding stands over this whole table: somebody knows every number, and what has never been done is the addition.

Which is a smaller claim than a ledger of this size appears to make, and it is the true one.

One further observation before leaving the ledger.

IN REAL TERMS

One row in Table 8 behaves differently from all the others and it is worth naming.

The mineral belt appears three times, in three parts, on three unrelated arguments, and moves the same direction every time. Part Five found a freight formula that removed its only advantage for forty-one years. Part Thirteen found the overlap of scheduled areas, minerals and insurgency — with the minerals there always, the extraction from the 1950s, and the insurgency only from the late 1970s. Part Sixteen found the coal blocks, allocated without auction from 1993 and cancelled in 2014.

Three authors, three decades apart, working on questions that have nothing to do with each other, describing the same ground.

That is what a finding looks like when it is not an artefact of the argument being made.

Nothing else in this ledger has that property, and the calculation that would settle it is the first entry in Table 10 and has never been done.

Which is the one entry in the ledger that does not depend on the argument being made about it.

6.2 — What is not in the ledger

Three absences are worth naming, because a ledger's silences are read as findings whether or not they are meant to be.

The southern states are thin. Kerala appears twice, Tamil Nadu once, Karnataka once. That is not because less was done there; it is because Part Five's freight argument runs through the mineral belt, Parts Ten and Eleven run through the north, and the constitutional material of Parts Three, Seven and Nine happens to land elsewhere. A series organised around different questions would produce a differently shaped table.

The north-east appears as one row for seven states. Part Thirteen treats them together because AFSPA does, which is a defensible reason for a chapter and a poor one for a ledger. Mizoram, where the statute was withdrawn in the 1980s, and Manipur, where the Hegde Committee found none of the sampled encounters genuine, are not the same entry and are printed as one.

And nothing appears for the states this book did not reach at all. Goa, the smaller union territories, and most of the Himalayan states have no row, which records only that no part of this series had occasion to look.

All three are instances of the same caution: **this table maps where the series went, and the series went where the documents were.**

REMEMBER THIS

Thirteen rows, every state where this series found something, consolidated as Part Five promised.

The mineral belt appears three times across three unrelated arguments — freight equalisation, the three maps, and the coal blocks. It is the only entry that moves the same direction in every part it appears in.

And the ledger is a **map of documentation, not of harm.** A state appears here when something was written down about it.

CHAPTER SEVEN

What Nobody Knows

Every part of this series ended with an honest list. This chapter consolidates them, and the result is smaller and stranger than nineteen separate lists suggest.

7.1 — The documents

TABLE 9 · HELD, AND NOT RELEASED

Document	Withheld since	Governments that have held it	Part
The Henderson Brooks–Bhagat report on 1962	1963 — sixty-three years	Every government since. Part I published abroad in 2014	Six
Home Ministry file notes, 27 November – 6 December 1992	1992 — thirty-four years	Congress, United Front, NDA, UPA, NDA	Fourteen
The Pradhan Committee report on 26 November 2008	2009 — seventeen years. The stated reason expired in 2012	UPA, then NDA	Fifteen
The Sunderlal report on Hyderabad, 1948	Sixty-five years — eventually released	Every government to 2013	Two
The Shah Commission reports on the Emergency	Recalled after 1980; reconstructed from surviving copies	Congress, from 1980	Nine

Three are still withheld, one took sixty-five years, one was recalled after publication. No government of any party has released any of the three that remain, and two of the three describe the conduct of a party now in opposition.

Before the second table, a distinction this book has kept throughout and should state plainly.

WORD BOX · WITHHELD, UNPUBLISHED, AND NEVER MADE

Three different states of not-knowing, and this book has been careful to keep them apart.

Withheld: the document exists, the state has it, and release has been refused or simply never made. Henderson Brooks; the 1992 file notes.

Unpublished: the document exists and was made for the government, which has never put it out and has offered a reason that has since expired. The Pradhan Committee report.

Never made: no document exists, nobody is refusing anything, and the components are all public. The six items in Table 10.

The first two have a custodian. **The third has nobody**, which is why the box below argues it is the harder half of this chapter.

Each of the three documents is asserted here as a live refusal rather than an old one, and that claim can be checked.

HOW WE ACTUALLY KNOW THESE ARE STILL WITHHELD

Because refusal has left a paper trail in each case, and the trail is public.

Henderson Brooks. Successive Defence Ministers have told Parliament the report remains classified, the most recent refusals citing operational sensitivity — **a position maintained about a war that ended sixty-three years ago.** Part One was published on a foreign website in 2014; the government neither confirmed its authenticity nor released the official text, which is the position it has held since.

The 1992 file notes. Requests under the transparency law have been refused, and **a denial under that Act is an official confirmation that the record exists.** The Liberhan Commission's own report records that it did not obtain the full central-government record — a commission with statutory summoning powers, examining the events those files cover, reporting seventeen years later.

The Pradhan Committee report. The government's stated reason was that publication would prejudice the trial then pending. **That trial concluded in 2012.** Fourteen years later the report has still not been published and no fresh reason has been offered.

What none of that establishes is *why*. A withheld document is consistent with something damaging in it and equally consistent with nobody having taken a decision to release it since the last person who cared retired. **This book asserts the withholding and does not assert a motive,** and the difference is the same one Chapter Four is built on.

7.2 — The calculations

The stranger half. Six questions this series says would be settled by arithmetic, on data that is already public, which nobody has done.

TABLE 10 · NEVER CALCULATED

The calculation	What it would settle	Part
Freight equalisation's cost, state by state, 1952–1993	Whether the mineral belt's decline is attributable to the policy or to other causes	Five
The number of people displaced by development projects since 1947	The largest unmeasured fact in this book. Every component exists in project files	Thirteen
A national register of terrorist incidents and their judicial outcomes	The conviction rate for mass-casualty attacks in India, which nobody can state	Fifteen
Presumptive audit estimates against realised auction outcomes	Whether the two largest numbers in this book were any good	Sixteen

The calculation	What it would settle	Part
A public verbatim archive of political speech	Four-fifths of the arguments in Indian political life. A filing job, not a calculation	Seventeen
Declared party income by source, before 2018, during the bond years, and since February 2024	Whether striking down the bonds made funding transparent or moved it	Eighteen

Six items. Not one requires a document anybody is refusing to give. Every one could be done by a competent graduate student with the sources already in the public domain.

HIDDEN ASSUMPTION

Everybody assumes that **what a country does not know about itself is what somebody is hiding**. Nineteen parts of this series have ended by naming a withheld document, which reinforces it.

Put the two tables side by side. **Three withheld documents. Six calculations nobody has done.**

The withheld documents are a real problem and this book has said so five times. But they are a smaller problem than the second table, because a withheld document has a custodian who can be asked, sued or shamed. **An unmade calculation has nobody.**

Part Thirteen found an addition where every component existed, nothing was concealed, and no decision existed that anybody had to defend. Part Fifteen found seventeen intelligence alerts forwarded and never assessed because assessment was nobody's job. Part Eighteen found eleven laws never introduced — not defeated, not lapsed, never brought.

Concealment is a decision and can be reversed. An absence is not a decision at all, and there is nobody to reverse it.

Which is why the second table is the harder half of this chapter and the one this series would most like somebody to take away from it.

That second table is the more vulnerable of the two and the objection to it should be stated here rather than in Chapter Ten.

THE ARGUMENT FROM THE OTHER SIDE

The objection to Table 10: that six calculations nobody has done is not a finding about the Indian state but about the author's reading. Somebody may well have done them — in a doctoral thesis, a state planning department, a working paper, a language this book does not read.

That objection is serious and this book cannot fully rebut it. Asserting that nothing exists anywhere is the hardest claim in the series to sustain and Chapter Ten names it as a weakness.

What can be said in reply: the test applied was not whether a calculation exists but whether an authoritative one is available to a citizen who goes looking. On that test all six fail, and several fail conspicuously — no ministry publishes a national displacement figure, and no agency publishes a register of terrorist incidents and outcomes.

And the invitation stands. One counter-example makes a row wrong, and a book that asks for that and then ignores it deserves nothing.

Stated plainly, the residue of nineteen parts comes to this.

IN REAL TERMS

Put the two halves of this chapter in the plainest terms available.

Three documents. Sixty-three years, thirty-four years, seventeen years. Every one exists, in a building, with a custodian who could be asked, sued or shamed. Two of the three describe the conduct of a party now in opposition, which means releasing them would cost the present government nothing at all.

Six calculations. Not one requires a document anybody holds. Every component is published. Any of them could be done by a competent graduate student in a summer.

Nineteen parts, seventy-nine years, and this is the residue: **three things nobody will hand over and six things nobody has bothered to add up.**

The second number is larger than the first, and it is the one nobody argues about.

7.3 — The one question that decides how this book should be read

One item on the unknown list is not a document or a calculation. It is a question, it was raised in Part Sixteen, and it has not been answered.

THE LARGEST UNRESOLVED QUESTION IN NINETEEN PARTS

Why did the prosecutions fail?

Part Sixteen found that in all four of its cases the allocation question went against the government and the criminal question did not stick. Three explanations are available and no more.

One: nothing criminal happened. The allocations were bad policy, badly executed, and the cases failed because there was no crime.

Two: crimes happened and the prosecutions failed. Cases built late, on inference, by agencies without the capacity to prove a bribe.

Three: the cases were brought for reasons that had little to do with proving them.

This book cannot choose between them and has said so twice. The answer determines whether Part Sixteen describes a scandal or the manufacture of one — **and by extension whether the largest single body of material in this series is a prosecution or an artefact of one.**

Chapter Ten returns to it, and the second series is committed to adjudicating what this one could not.

Each of those three answers implies a different book, and it is worth being explicit about which.

If the first is right — nothing criminal happened — then Part Sixteen is a chapter about policy failure that was mistaken by an entire country for a chapter about theft, and the ₹1.76 lakh crore figure did more damage to Indian public understanding than the allocation it described. That is not an exoneration of the government; arbitrary allocation of public assets is what two Supreme Court benches found, and it stands. But it would mean the scandal was real and the crime was not.

If the second is right — crimes happened and the prosecutions failed — then the finding is about capacity, and it is the bleakest of the three. It would mean the Indian state can establish that a ₹1.76 lakh crore allocation was arbitrary and cannot establish who took anything for it, which is a description of an investigative system that works on documents and not on people.

If the third is right — the cases were brought for reasons unrelated to proving them — then the material in Part Sixteen is evidence about the agencies rather than about the

ministers, and this book has spent a part of its length reproducing the output of a process it should have been auditing.

This series cannot choose. What it can say is that **the three are not equally convenient**: the first favours the accused, the third favours the accused and indicts somebody else, and only the second is what most readers assume without noticing they have assumed it.

REMEMBER THIS

Three documents still withheld, for sixty-three, thirty-four and seventeen years. Two of the three describe a party now in opposition, and no government has released them.

Six calculations nobody has done, none of which needs a document anybody is refusing to give.

The second table is the harder one. **Concealment has a custodian who can be asked. An absence has nobody.**

CHAPTER EIGHT

The Machine

This is the second column, and the reason this series was worth writing. It contains the findings that survived a change of government — which, on Part Eighteen’s test, is the only evidence that a finding is a finding rather than a coincidence.

8.1 — The instruments

TABLE 11 · BUILT, USED, AND NEVER DISMANTLED

Instrument	Built	Used since by	Status
Article 356, President’s Rule	In the Constitution; turned into an instrument in Kerala, 1959	Every government. ~90 times by 1992	Restricted by <i>Bommai</i> 1994; used in J&K in 2019
Presidential Orders under Article 370	From 1954	Congress governments for four decades; the removal itself in 2019	Spent
Amendment of the interpretation clause to reverse a reading	First Amendment, 1951 — its durable product was a procedure with no subject matter	Used on 5 August 2019	Available
Prosecution sanction as a bar	AFSPA s.6, 1958; the Single Directive; state statutes	Every government. Refused at Mon, December 2021	Unamended
Terms of reference that exclude the body most in need of examination	Henderson Brooks, 1963 — Army HQ excluded	Liberhan, 1992 — the central government excluded. Twenty-nine years apart	Never regulated
Preventive detention without trial	1950, in the first year	Every government since, under successive names	In force
The ordinance power	Government of India Act 1935	Every government	In force
Disruption as the opposition’s only lever	A property of the rules, not of any party	Whoever is out of power	Unchanged

Eight instruments. Every one was built by a Congress government or inherited from the colonial state. Not one has been dismantled by anybody, including by governments that campaigned against the use made of them.

IN REAL TERMS

Part Nine asked a reader to name one instrument used after 25 June 1975 that did not exist before 12 June. There is not one.

Part Ten found not a single Punjab instrument that was a Punjab instrument.

Part Sixteen found the coal method dating from 1993 and struck down across five governments and three parties.

Part Eighteen found every tool used on 5 August 2019 built by the party this book prosecutes.

Twelve instances of the same finding, across seventy-nine years, four parties and two series of governments. It is the most repeated result in this book and the only one that has been tested against a change of government and held.

One phrase in that answer carries more weight than the numbers around it.

WORD BOX · NEVER INTRODUCED

The most important two words in Chapter Eight, and they are easy to read past.

A bill that is **defeated** has been voted on. There is a division list, a debate, and a set of people who can be asked why they voted as they did.

A bill that **lapses** has at least been printed, referred, and usually examined by a committee that published a report.

A bill that is **never introduced** has none of that. No vote, no debate, no committee, no division list, no minister who declined it, and nobody with a position on it to defend. It has not been rejected by Parliament; **it has never been put to Parliament**, which means there is not a single person in public life who can be held to a view about it.

Eleven of the fifteen rules in Table 12 are in that state. It is the purest form of the finding in Chapter Seven: **concealment has a custodian, and an absence has nobody.**

There is a mechanism behind Table 11 and it is worth naming, because without it the table reads as eight separate failures of nerve rather than one structural fact.

An instrument of this kind is built by a government that expects to keep using it. It is then inherited by an opposition that spent years denouncing it — and which now holds it. At that moment the incoming government faces a choice between dismantling a tool it has just acquired and keeping a tool it has just criticised, and **the cost of dismantling is immediate and certain while the cost of keeping is deferred and hypothetical.**

So it is kept, and denounced less. The next election transfers it again. Each transfer adds a government with a reason not to touch it and subtracts one of the constituencies

that objected, until the instrument has been used by everybody and is nobody's responsibility.

Part Nine found this with preventive detention, denounced by every opposition since 1950 and renewed under a different name by almost every government. Part Thirteen found it with Section 6 of AFSPA, unamended for sixty-eight years across governments that campaigned in the affected states on repealing it. **Part Eighteen found the twelfth instance and the first in which the user was not the builder**, which is the strongest form of the finding because it removes the last available explanation — that the party defends its own handiwork.

One check on that claim is available and it is a simple one.

HOW WE ACTUALLY KNOW THE INSTRUMENTS WERE NEVER DISMANTLED

Because dismantling leaves a trace and nothing in Table 11 has one.

Repealing a statute requires a repealing Act. Removing a constitutional provision requires an amendment passed by two-thirds of each House. Narrowing an emergency power requires either legislation or a judgment. **All three are loud, dated, published events that any reader can look up.**

For seven of the eight instruments there is no such event, at any point between 1950 and 2026. Preventive detention has been continuously in force under successive statutes. AFSPA's Section 6 has stood unamended for sixty-eight years. The ordinance power is unchanged since 1935.

The single exception is instructive rather than encouraging. Article 356 was narrowed in 1994 — *Bommai* — and it was narrowed by a court, over the objection of the government of the day, and not by any Parliament.

Which is the whole of Chapter Eight in one observation: **in seventy-nine years, the only instrument in this table that was ever restrained was restrained by the branch that did not build it and could not use it.**

8.2 — The unmade rules

Part Eighteen's Chapter Seven took every rule this series proposed and asked what had happened to it. The consolidated answer is the second half of column two.

IN REAL TERMS

Fifteen rules, proposed across seven parts. Eleven have never been introduced in either House.

Not defeated. Not lapsed in committee. **Never brought** — which means there is no vote, no debate, no committee report and nobody to ask.

The four that moved had a court order, a catastrophe, or an organised constituency behind them. Not one was made because it was a good idea.

And the eleven that did not: compensation for wrongful prosecution, whose constituency is people just released from jail. The communal violence law, unenacted across twenty-two years and three governments. A register of terrorist incidents, which is nobody's interest. An archive of political speech, which constrains everybody who would have to create it.

Every rule that got made had somebody powerful behind it. Every rule that did not was for people with no way of insisting.

All of which invites the objection that this chapter exists to let everybody off.

THE ARGUMENT FROM THE OTHER SIDE

The strongest objection to this entire chapter: that it is a sophisticated way of excusing everybody. If the instruments are inherited and the failures are structural, then no government is answerable for anything — and a book that spends eighteen parts building charges and a nineteenth explaining that the charges were really about a machine has argued itself into a position where nobody can be blamed for anything.

The reply, which this book insists on: the machine had builders and they are named. Article 356 did not become an instrument by itself; it was used against an elected government in Kerala in 1959 by a specific administration. The First Amendment's procedure was legislated. The Presidential Order route into Article 370 was operated for four decades by identifiable governments.

So the finding is not that nobody is responsible. It is that responsibility divides into two: **the party that built the inventory, and every government since that has used it and declined to dismantle it.** The first is a finding about Congress and it is the heaviest in this book. The second is a finding about everybody, and Part Eighteen tested it.

Where the objection lands: a reader who takes only Chapter Eight and not Chapter Six will conclude that specific governments did nothing in particular, and specific governments did a great deal. Both columns exist for that reason.

The fifteen, and what became of each.

TABLE 12 · THE RULES THIS SERIES PROPOSED, AND WHAT HAPPENED TO THEM

The rule	What it would have prevented	Status
A statutory outer limit on trials for public-office offences	The twenty-year median in Table 2	Never introduced
Compensation as of right for wrongful prosecution	Nine men held five years for Malegaon; twelve convicted and acquitted for the 2006 train bombings	Never introduced
A communal violence law with command responsibility	The pattern in Parts Ten and Eleven, where nobody senior is ever reached	Introduced 2005, lapsed 2014. Not reintroduced by anybody
Terms of reference for commissions to be laid before Parliament before appointment	Henderson Brooks and Liberhan, twenty-nine years apart	Never introduced
A statutory deadline for publishing a commission's report	Sunderlal, sixty-five years; Pradhan, seventeen and counting	Never introduced
Removal of executive sanction as a bar to prosecuting security forces	AFSPA s.6, unamended for sixty-eight years; Mon, December 2021	Never introduced
A national register of terrorist incidents and their judicial outcomes	The fact that no one can state a conviction rate	Never introduced
A public verbatim archive of ministerial and parliamentary speech	Six of the eight entries in Table 7	Never introduced
A displacement register, project by project	Part Thirteen's addition that nobody has made	Never introduced
Mandatory publication of presumptive-loss methodology alongside the figure	The gap between ₹10.67 lakh crore and ₹1.86 lakh crore	Never introduced
A minimum number of sitting days for each House	Legislation passed in minutes across every government in this book	Never introduced
Auction as the default for allocating a public natural resource	Spectrum, coal, and twenty-one years of allocations held illegal	Done — after a court ordered it
Statutory backing for the biometric identity system	Six hundred million records held for seven years with no statute	Done — after litigation
A standing coastal and maritime security command	The approach route of 26 November 2008	Done — after the catastrophe
A statutory right to information	Most of what this book could not establish before 2005	Done — with an organised constituency behind it

Fifteen rules. Eleven never introduced in either House by any government. Of the four that were made, one followed a court order, one followed litigation, one followed a catastrophe and one had a movement behind it.

8.3 — What the machine is

HIDDEN ASSUMPTION

Everybody assumes that **a structural finding is weaker than a personal one** — that “the system failed” is what you say when you cannot name anybody, and that naming somebody is the stronger result.

Chapters Two and Eight, side by side, reverse it.

Chapter Two’s proven column sent people to prison at a median of over twenty years and changed nothing. The one minister convicted served nine days. **Every individual named in that table could be removed from public life tomorrow and every instrument in Table 11 would still be there on Monday.**

Chapter Eight’s column has no names in it at all and describes the thing that produced most of Chapter Two.

So a personal finding is the weaker result, not the stronger one — it is satisfying, it is legally consequential for one person, and it leaves the machine running. This series spent seventeen parts looking for names and found, in the eighteenth, that the names were never the variable.

Which is the whole argument of this book compressed into one sentence: **a party built a machine over fifty-four years, the machine outlived the party’s dominance, and every government since has used it and none has dismantled it.**

That charge is heavier against Congress than any individual allegation in Chapter Four, because it is the one thing in this series that *is* proved — and it is lighter against any particular ministry, because most of them inherited what they used.

Which is where nineteen parts of this series arrive, and it is not where they set out for.

REMEMBER THIS

Eight instruments, every one built by a Congress government or inherited from the colonial state, **and not one dismantled by anybody.**

Fifteen rules proposed; **eleven never introduced in either House.** The four that moved had a court order, a catastrophe or a constituency behind them.

And the reversal: **a structural finding is the stronger result, not the weaker one.** Remove every name in Chapter Two and every instrument in Table 11 is still there on Monday.

CHAPTER NINE

The Strongest Case the Defence Can Still Make

Every part of this series has given the other side its strongest argument. This chapter assembles the whole of it, at full length, for the last time — and it is assembled by the prosecutor, which is the only way it gets assembled at all.

9.1 — Seven arguments

One. The proven column is small and the reason is not the courts. Chapter Two: eight convictions, mostly of officials, at a median of over twenty years; one minister, over three lakh rupees, out in nine days; one Prime Minister, acquitted on appeal. Every one of the largest events in this book — the Emergency, December 1992, the spectrum allocation, the coal allocations — produced no conviction of anybody who decided anything. **A defence is entitled to say that a seventy-nine year prosecution with that record has not proved what it set out to prove.**

Two. Eleven of the most damaging allegations are not made. Chapter Four. Not that the demolition was directed, not that Rajiv Gandhi took Bofors money or ordered the locks opened, not that any UPA II minister took money. Bofors failed under four different governments across two decades.

Three. Eight of the most-circulated claims are false. Chapter Five, and three of them are among the most quoted political claims in India.

Four. The building record is very large. The Constitution and the first elections; the states reorganised on language after a violent demand and not before; the Green Revolution; nationalised banks that reached rural India; the 1991 reforms in thirty-three days; the 73rd and 74th Amendments; the transparency law of 2005; the employment guarantee; forest rights in 2006; education and food as enforceable rights; the 1894 land acquisition Act replaced. **Parts Fourteen to Sixteen record the largest body of rights-creating legislation by any Indian government since the 1950s, and it was passed by the party this book prosecutes.**

That fourth argument is the longest and it deserves to be shown rather than asserted.

THE BUILDING RECORD, CONSOLIDATED

Argument four is the longest and it is the one this book has never set out in one place. Here it is.

TABLE 13 · WHAT CONGRESS GOVERNMENTS BUILT

When	What	Why it counts	Part
1947–52	A written constitution with judicially enforceable rights, universal adult franchise from the first election, and a boundary and election commission that functioned	Every comparable state that became independent in that decade lost its first constitution within twenty years	Two
1956	States reorganised on language	Done after a violent demand rather than before it — but done, and it has held for seventy years	Three
1960s–70s	The Green Revolution; agricultural universities; the procurement system	A country importing grain under an American aid programme became a net exporter	Five, Ten
1969, 1980	Bank nationalisation	Branch networks reached rural districts that commercial banking had never entered. Part Eight is severe about the motive and concedes the result	Eight
1991	The licence system dismantled in thirty-three days	Under a minority government, three weeks from default, by people who had helped build the system they removed	Four, Fourteen
Dec 1992	The 73rd and 74th Amendments — elected village and municipal councils, a third of seats reserved for women	Passed sixteen days after the demolition . Around 800,000 women in elected office within a decade	Fourteen
2005	The Right to Information Act	The largest single transfer of power to ordinary people in this series. Most of the documents in Part Sixteen are public because of it	Fifteen
2005	The employment guarantee — a right, not a scheme	Enforceable by a named person. Part Fifteen's distinction between the two is the most useful idea in that part	Fifteen
2006	The Forest Rights Act	The first statutory recognition that people living in forests had claims to them. Part Thirteen sets out how partially it worked	Thirteen

When	What	Why it counts	Part
2009, 2013	Education as a right; food security for around 800 million people; the 1894 land acquisition Act finally replaced	The largest body of rights-creating legislation by any Indian government since the 1950s	Sixteen
2009–14	The biometric identity system and direct benefit transfers	Six hundred million people in four years, and the architecture on which most subsequent delivery runs	Sixteen, Eighteen
2005–08	The end of thirty years of nuclear exclusion	A government risked office for a policy, which is rare in nineteen parts	Fifteen

Twelve entries. Every one is graded and argued in the part it comes from, and several are argued against there as well.

IN REAL TERMS

Read Table 13 and Table 11 together, because that is the whole book.

The same party, in the same decades, built both. The government that passed the 73rd and 74th Amendments is the government of Part Fourteen's Chapter Six. The government that passed the transparency law is the government of Part Fifteen's Chapter Four. The government that made food and education enforceable rights is the government of Part Sixteen.

Part Fourteen's Chapter Nine put the problem in one sentence and it has not been improved on: **there is no exchange rate between 800,000 women in elected office and 2,000 dead in December 1992.**

Nineteen parts have not produced one. This chapter is not an attempt to strike a balance, because no balance can be struck. **It is both columns, printed, so that a reader who wants to argue about the weighting has the actual entries in front of them.**

Five. The instruments were mostly inherited from somebody else. Preventive detention has colonial parents. AFSPA descends from a 1942 ordinance. The ordinance power comes from the Government of India Act 1935. Part Two's finding was that what survived least changed into the Constitution was the machinery of control.

The sixth argument is usually waved away, and it should not be.

HOW WE ACTUALLY KNOW ARGUMENT SIX IS STRONGER THAN IT SOUNDS

It reads like faint praise — a party is credited with obeying election results — and in most democracies it would be. Two things make it substantial here.

The first is the counterfactual that was available. In January 1977 the Emergency was still in force, the opposition leadership was in detention, the press was under pre-censorship, and the government held a majority large enough to have amended almost anything. Elections were called anyway, the government lost, and it left. Part Nine is severe about everything preceding that sentence and does not qualify the sentence itself.

The second is the comparison set. Of the states that became independent between 1945 and 1960, a substantial majority had lost their first constitution to a coup, a one-party amendment or a suspension within twenty-five years. India's founding party suspended civil liberties for nineteen months, under the Constitution's own provisions, and then held the election that removed it.

That is not an acquittal on anything in Part Nine. **It is the difference between an authoritarian episode and an authoritarian state**, and this book has been careful throughout to charge the first and not the second.

Six. Where the party lost, it left. 1977, 1989, 1996, 1998, 1999, 2014, 2019. Whatever else is in this book, no Congress government has refused to leave office after losing an election — including the one that had suspended the Constitution eighteen months earlier and then called the election that removed it.

Seven, and it is the strongest. Part Eighteen applied this book's own four tests to a different government and three of them returned the same answers. **For most of what this series measured, the party was not the variable.**

HOW WE ACTUALLY KNOW THIS DEFENCE IS SERIOUS

Because most of it was produced by this book against its own interest, and the record of that is checkable.

Part Five found the Punjab rivers case weak on the water. Part Six conceded the correction after 1962 worked and the same army won in 1971. Part Ten recorded that the majority of Sikhs who died in Punjab were killed by Sikhs. Part Twelve declined to assert Bofors. Part Fourteen conceded *Bomma* outright. Part Sixteen conceded the audit figures were soft. Part Seventeen dismantled its own best material in its first substantive chapter.

A concession made against your own case is evidence about your method. A concession made in favour of it is evidence of nothing, because there was no resistance to overcome.

The seven arguments above are what nineteen parts of resistance produced. **They are stronger than anything Congress has ever assembled in its own defence**, which is the most useful thing this chapter has to say and the most damning thing about the party's own advocacy.

9.2 — Where the defence fails

On four things. They are narrower than the reputation of this series and every one survives Part Eighteen.

The instruments were built. Not all of them and not the colonial ones — but Article 356 as an instrument in 1959, the Presidential Order route into Article 370, the amendable interpretation clause in 1951, the terms-of-reference device, the sanction bars. A party that governed for fifty-four years and left that inventory behind is answerable for the inventory, and Chapter Eight is the charge that no acquittal touches.

The proven column being small does not mean nothing happened. Ten court findings still stand, five of them against decisions taken at the highest level. The Emergency was constitutional and was still what Part Nine describes.

The delay is the process. Fifteen years, twenty-three years, thirty-one years, thirty-four years, forty-one years. A defence that relies on the absence of convictions is relying on a system whose median time to conviction exceeds the working life of a witness.

And nothing was fixed. Eleven rules never introduced, three documents never released. The party that built the machine had fifty-four years to dismantle it and did not, and Part Eighteen shows nobody else has either.

Those four are worth stating as a single proposition, because taken together they are what this series actually established.

A government is answerable for two different things: what it did, and what it left behind. The defence in section 9.1 is strong on the first and cannot reach the second. It can show that the convictions are few, that the largest allegations were never proved, that the building record is enormous, and that where the party lost it left. **None of that touches the inventory.**

Article 356 is still available. Prosecution sanction is still a bar and Section 6 of AFSPA is unamended after sixty-eight years. The terms-of-reference device has never been regulated. Preventive detention has been in force continuously since 1950. The interpretation clause remains amendable and was amended in 2019 to do something its drafters did not contemplate. **Every one of those was built or converted into an instrument by a Congress government, and every one is on the statute book this afternoon.**

That is the charge that survives every acquittal in Chapter Two, every concession in Chapter Four, and the whole of Part Eighteen — because Part Eighteen strengthens it. A tool used by the party that built it can be defended as that party's judgment. **A tool used by its opponents, against it, is a finding about the tool.**

THE VERDICT OF NINETEEN PARTS

Proved: that a party in power for fifty-four years built a set of instruments for governing without consent, used them, and left them in place; that specific governments did specific things on specific dates, of which the Emergency and the events of Part Ten are the gravest; that public assets were allocated by methods two Supreme Court benches held arbitrary; and that at least twenty ordinary laws which would have prevented documented failures have never been made by anybody.

Not proved, and not asserted: that any Prime Minister took money in any case in this book; that any government directed the events of November 1984 or December 1992; that the largest scandals of 2009 to 2014 involved criminality by any minister.

And unresolved: why the prosecutions failed — which is the question in Chapter Seven and the one that decides how the largest body of material in this series should be read.

9.3 — What the defence has never said

One last observation about Chapter Nine, and it is the reason it was worth writing.

The seven arguments in section 9.1 are, this book believes, the strongest available. Several of them are not in general circulation at all. **The party they defend has never**

assembled them — not in an election campaign, not in a manifesto, not in any document this author has been able to find.

What is offered instead, and has been for decades, is denial of the specific charge of the moment, followed by a counter-charge. That is a strategy for a news cycle. It is not a defence of a record, and its cumulative effect is that the strongest case for fifty-four years of government exists only in the pages of a book written to prosecute it.

There is a lesson in that which has nothing to do with Congress. **A defence assembled by the accused is discounted before it is read. A defence assembled by the accuser is not.** Which means the most valuable thing any partisan document can contain is the part that argues against itself — and the reason almost none of them do is that it costs the author material he would rather keep.

This series has now paid that cost nineteen times. Whether it bought anything is not for the author to say.

That is the verdict of nineteen parts, and it is narrower than the title of the series promises.

REMEMBER THIS

Seven arguments for the defence, and **most of them were produced by this book against its own interest.** They are stronger than anything Congress has assembled in its own defence.

The defence fails on four: **the instruments were built; the small proven column does not mean nothing happened; the delay is the process; and nothing was fixed.**

What is proved is a machine. What is not proved, and not asserted, is that any Prime Minister in this book took money.

CHAPTER TEN

An Honest List of What This Book Got Wrong

Nineteen parts have ended with a list of what is not known. The last one is turned on the book.

10.1 — The frame

HIDDEN ASSUMPTION

A reader arriving at this chapter expects a list of factual errors — a date wrong here, a figure disputed there — and this book has certainly made some.

Those are not the important ones. **The errors in this series are in its frame, and the largest was set before Part One was written.**

The founding decision was to treat Congress as one continuous actor across seventy-nine years. Part One conceded that this was a choice made before the analysis, and said it cut both ways.

Part Eighteen showed how. Apply the same four tests to a different government and three of them return the same answers, **which means the continuous actor was never the party.** It was a state, and the party built most of it and then stopped being the only one operating it.

So the title of this series is wrong, or at least half wrong. **A book called *The Congress Record* spent nineteen parts producing its strongest evidence about something else.**

That is not a small error and it is not correctable by editing. It is the shape of the whole thing, and the honest response is not to retitle it but to say plainly, in the last chapter, what a reader should take from it — which is Chapter Eight and not Chapter Two.

Announcing that in the final chapter is itself open to an obvious complaint.

THE ARGUMENT FROM THE OTHER SIDE

The objection to the whole of section 10.1: that an author who announces his own framing error in the last chapter has performed humility rather than exercised it. If the frame is wrong, rewrite the book. If it is not wrong enough to rewrite, do not claim it is.

The reply: the frame produced the finding. Nineteen parts of looking for a party's failures is what surfaced the instruments, the unmade rules and the withheld documents — none of which was visible from any other angle, and none of which a book about the Indian state in general would have found, because such a book would have had no reason to trace the same device from 1959 to 2019.

Where the objection is right: a reader is entitled to say that the correct response to discovering your title is half wrong is not to explain it on the last page. This book has no answer to that beyond the one in the author's note, which is that **the machine was built by the party the title names**, and pointing away from the builder to point at the building would be its own dishonesty.

Before the rest of them, a word about what this device has been doing for nineteen parts.

WORD BOX · AN HONEST LIST

Nineteen parts have ended with one and the device has never been defined. The last chapter is the place.

An honest list is not a list of doubts. Doubts are cheap, they can be manufactured indefinitely, and a document that ends by listing them is performing caution rather than exercising it.

It is a list with three properties. **Each item must be specific enough that somebody could resolve it** — not “the sources are incomplete” but “the Home Ministry file notes for nine days in 1992 have not been released”. **Each must be something that would change the argument if resolved**, in a direction the author names in advance. And **at least some must cut against the author**, or the list is a defensive perimeter rather than a concession.

The test for the third is easy to apply from outside. **Read the honest list at the end of any part of this series and ask whether resolving every item would make the chapter stronger**. If it would, the list is decoration.

Section 10.6 of this part exists to meet that test at the level of the whole series, and it names four things, three of which are outside this author's control.

10.2 — Six more

The selection. Nineteen parts from seventy-nine years, chosen by one person. A different author applying the same method would produce an overlapping but different book, and there is no procedure that makes the choice objective.

The denominator. Said five times and worth a sixth: this book has no way of comparing what these governments did with what any government would have done, and every implicit comparison in it is therefore unearned.

Part Seventeen. By its own analysis the most quotable and least probative chapter in the series — and it will be the most read. That is a structural failure of the book and naming it does not fix it.

Part Eighteen's exclusions. Five contested matters left ungraded because they failed this book's tests, applied to a government whose files have not surfaced. **The rule is neutral and its effect at this moment is not.** Part Eighteen conceded it could not answer that and this part cannot either.

The recency problem, in reverse. Everything in Parts Fourteen to Eighteen is provisional in a way that Parts Two to Twelve are not. A reader in 2050 will find the last third of this series naive in ways this author cannot predict.

And the method's own cost. Part Sixteen recorded it best: sixteen parts of careful grading produced, on the largest scandal in modern Indian history, a conclusion that is honest and close to useless as advocacy. That trade was made deliberately in Part One and this book would make it again, but it should not pretend the cost was small.

A reader is entitled to ask how an author would know his own errors at all.

HOW WE ACTUALLY KNOW THESE ARE THE REAL ERRORS

Because they were found by the book's own procedure rather than by an opponent, and each one is traceable to a specific part that produced it.

The framing error surfaced because Part Eighteen applied this series' four tests to a government the series was not about. That test was committed to in Part One, before there was any way of knowing what it would return. **An author who designs a test in Part One and reports its result in Part Eighteen has at least made the result checkable.**

The denominator problem was named in Part One and repeated in Parts Fourteen, Sixteen and Eighteen, each time without being solved. The Part Seventeen problem was stated inside Part Seventeen, in its own Chapter Eight, which found that only two of eleven statements changed anything.

What this does not establish is that these are the only errors, or the largest. A method's blind spots are not visible to the method. The errors an opponent would find are, by definition, not in this list, and the invitation in the box below is the only thing this book can offer against that.

10.3 — What this book asks of a reader

Three things, and none of them is agreement.

IN REAL TERMS

Check one thing. Not the whole book. One claim, chosen by you, preferably one you disliked. Every load-bearing fact here has a date and a source attached for exactly this purpose.

Read down the grades, not the descriptions. Chapter One's word box explains why. A reader who does the second gets a very different impression from a reader who does the first, and the first one is correct.

And if you find an error, say so. Chapter Seven's second table is the weakest part of this book, because asserting that six calculations have never been done is asserting a negative about the whole world. **One counter-example makes a row wrong, and a book that invites that and then ignores it deserves nothing.**

10.4 — What a book like this is for

Nineteen parts is a long time to spend on a question, and it is reasonable to ask at the end what the answer is supposed to be used for.

Not for voting. Nothing in this series tells anybody how to vote, and the material that would — a comparison against what other governments did with the same powers — is precisely what Part Eighteen showed this book does not have. A reader who arrives at the

last page holding a voting instruction has extracted something the evidence does not contain.

Not for a verdict on a party either. The four disclaimers in Chapter One rule that out, and the two columns in this part rule it out twice.

What it is for is narrower and, this book thinks, more useful. **Eleven ordinary laws would have prevented documented failures and have never been introduced by anybody.** Three documents are being withheld and two of the three would embarrass a party currently in opposition, which means releasing them costs the government of the day nothing. Six calculations would settle questions that are argued about constantly and require no document anyone holds.

Every one of those is available to a citizen, a journalist, a legislator or a student, and not one of them requires agreeing with a word of this series' politics. **A reader who thinks this book is unfair to Congress and who then asks a Member of Parliament why a statutory deadline for publishing commission reports has never been introduced has done exactly what the book was written for.**

The argument, in the end, is not about which party. It is that a state which knows this much about itself and adds up this little of it is choosing — by not choosing, which is the way most things are chosen — to remain unable to answer questions about its own conduct. That was true under every government in these nineteen parts.

10.5 — What is owed

Part Eighteen's section 10.5 committed a second series auditing the government of 2014 onwards, in terms specific enough to be checked: the same scale, the same four tests, the same six grades, the credit chapter placed second, the same protection for people against whom nothing has been found, and adjudication of the five questions Part Eighteen declined.

That commitment is repeated here as the last numbered thing in this series, and one clause is added to it.

THE LAST PROMISE

The second series must contain a part like Part Eighteen — **a comparison, applying the same ruler back to the Congress governments of 2004 to 2014 and to whatever has happened since.**

If it does not, it is a campaign document, and Part Eighteen will have been the last honest thing in either series.

Across nineteen parts this book made nine forward promises in numbered sections and kept eight in the part that owed them. **This is the ninth, and it is the only one a reader cannot yet check.**

Chapter Eight of this part is a table of fifteen promises made by governments and never brought. An author who applies that test to others and not to himself has written the wrong book.

10.6 — What would change the verdict

A document that cannot say what would falsify it is not making a claim. So, briefly, the four things that would.

Release of the three withheld files. The 1992 Home Ministry notes are the sharpest: they would either establish central direction, which this book has declined to allege eleven times, or refute it, which would make Chapter Four's first row a permanent finding rather than an open one. Either outcome improves on what is printed here.

A completed appeal in the spectrum case. Admitted in March 2024 and pending. A conviction would move the largest body of material in this series from **COURT-FOUND** on the allocation to **CONVICTED** on the conduct. A dismissal would settle Chapter Seven's unresolved question in the first of its three directions.

Any one of the six calculations. The freight equalisation figure alone would either establish the mineral-belt finding as the strongest regional claim in this book or dissolve it, and it is the one entry in the ledger that three separate parts arrived at independently.

And a second series that does what section 10.5 requires. If the same ruler applied to a different government over a full nineteen parts returns findings that do *not* transfer — if the four tests separate rather than converge — then Part Eighteen's result was an artefact of a single comparison and Chapter Eight of this part is wrong.

Three of those four are outside this author's control. **The fourth is not, which is why it is a promise and not a hope.**

One closing observation, and then this series stops.

Every part of it has ended by naming something the state was holding back or had never done. A report from 1963. Nine days of file notes from 1992. Ninety pages from 2009. An appeal pending since 2018. Six calculations nobody has attempted.

The pattern is so consistent across nineteen parts that it stopped being a series of findings somewhere around the thirteenth and became a single finding repeated. **The Indian state knows almost everything about itself and has added almost none of it up.** Not because anybody decided not to — a decision would have a defender, and a defender can be argued with — but because the addition was never anybody's job.

That is a smaller and duller conclusion than a prosecution document is supposed to reach. It is also the only one in this book that has been tested against a change of government and survived.

REMEMBER THIS

The errors in this series are **in its frame, not its facts**. The largest is that a book called *The Congress Record* produced its strongest evidence about something other than Congress.

What a reader is asked for is not agreement. **Check one claim. Read down the grades. And if you find an error, say so.**

And the finding that survived everything: **the Indian state knows almost everything about itself and has added almost none of it up** — not because anybody decided not to, but because it was never anybody's job.

The Nineteen Parts

One line each, for a reader who wants to know where to go rather than what to conclude. The right-hand column is what the part established, not what it was about — in several cases those are different, and the difference is usually the interesting part.

TABLE 14 · WHAT EACH PART ESTABLISHED

Part	Subject	Its central finding
One	How to judge a government	The six-grade scale, and the argument for killing your own fabrications
Two	Partition and the founding	What survived least changed into the Constitution was the machinery of control
Three	The first decade	Article 356 became an instrument in Kerala in 1959; the First Amendment's durable product was a procedure with no subject matter
Four	The licence system	A permission regime is worth more to the incumbent than to the regulator
Five	Freight equalisation and the states	A formula moves the politics upstream to the design stage and then hides it
Six	1962	Warnings ignored for years; terms of reference that excluded Army HQ; a report withheld since 1963
Seven	Kashmir	A temporary provision hollowed out by Presidential Order across four decades
Eight	The 1969 split and after	A party organisation converted to answer a leader rather than an electorate
Nine	The Emergency	Almost nothing about it was unconstitutional, which is worse than the alternative
Ten	Punjab and November 1984	Not one Punjab instrument was a Punjab instrument
Eleven	Communal violence and after	Establishing a record has functioned as a substitute for accountability, not a step towards it
Twelve	The 1980s	A government that legislated to reverse a court, and an organisation answering upwards
Thirteen	Tribal India and AFSPA	An addition nobody has made, where every component exists and nothing is concealed
Fourteen	1991–1996	The economy reformed in thirty-three days; two commissions twenty-nine years apart with the same device

Part	Subject	Its central finding
Fifteen	UPA I	Seventeen alerts forwarded and never assessed, because assessment was nobody's job
Sixteen	UPA II	Every allocation question went against the government; every criminal question failed; both are true
Seventeen	What was said	Words and acts do not correlate; the most quotable chapter is the least probative
Eighteen	The comparison	Three of the four tests were never measuring the party. They were measuring the state
Nineteen	The honest list	The machine outlived the party, and nobody has dismantled it

A Word on Sources

This part contains almost no new material. It is a consolidation, and its sources are the eighteen parts that precede it.

Every entry in Tables 2 to 13 carries the part it came from. A reader who wants the evidence for any line should go to that part, where the date, the court or commission, and the document are set out at length. Nothing has been graded higher here than it was graded there, and where a case has moved since — the coal acquittals of 2026, the spectrum appeal admitted in 2024 — this part uses the later position.

Two entries have been deliberately weakened relative to their original parts. The Adarsh war-widows claim, which Part Sixteen graded **ALLEGED**, appears in Chapter Five's folklore table because a claim that cannot be established and is universally repeated belongs there. And the Bofors material, which Part Twelve set out at length, is stated in Chapter Four as a defence win rather than a charge.

One handling is carried forward unchanged from Part One and is stated again because this is the last chance to state it. **Viral allegations of sexual crime against living named people do not appear in these nineteen parts in any form, including as a claim with a correction attached.** Chapter Five's first row describes a piece of litigation and what a court found about it, and does not say what was alleged. A correction printed underneath a fabrication is a distribution mechanism with a disclaimer on it.

HOW TO USE NINETEEN PARTS

The series was written to be read in order and almost nobody will read it that way, so three shorter routes through it are worth naming.

For the constitutional argument, which is the strongest thing here: Parts Three, Seven, Nine and Eighteen, then Chapter Eight of this part. That is four parts and a chapter, it is about a fifth of the series, and it contains everything that survived Part Eighteen's test.

For the method rather than the findings — which is what a reader building something similar about any government would want — Part One, Chapter Two of Part Seventeen, Chapter Three of Part Sixteen, and Chapters One and Ten of this part.

And for the material this book would most like acted on: Chapter Seven and Chapter Eight of this part, which between them contain three withheld documents, six unmade

calculations and eleven unIntroduced laws. None of it requires agreeing with anything else in the series.

A NOTE FROM THE AUTHOR

I set out to write a prosecution and I have written something else, and I want to be exact about when I noticed.

It was not Part Eighteen. Part Eighteen is where it became undeniable, but the finding was in the book much earlier and I kept writing past it. Part Nine found every Emergency instrument existing before the Emergency. Part Ten found no Punjab instrument that was a Punjab instrument. Part Thirteen found the addition nobody had made. By Part Fifteen I was writing the same sentence in different settings and treating it as a recurring motif rather than as the result.

What Part Eighteen did was take that motif and test it, and it held. Three of the four tests I had built were not measuring what the title of this series says they were measuring.

I have thought about whether the honest response is to retitlE the whole thing. I decided against it, for a reason I want on the record so somebody can disagree with it. **The machine in Chapter Eight was built by Congress governments over fifty-four years.** That is the heaviest charge in this book and it is the one thing in it that is proved. A title that pointed away from the builder in order to point at the building would be its own kind of dishonesty.

But the reader who takes Chapter Two from this part and not Chapter Eight has taken the wrong thing, and I have said so in the last chapter rather than hoping it would be inferred.

Two smaller declarations, because the rule in this series is that they go where the writing could pull. I am Punjabi and Parts Ten and Eleven concern material I have written on before; both parts concede that most Sikhs killed in Punjab were killed by Sikhs, and that is the concession I checked hardest because it is the one I least wanted to make. And I am a critic of the Congress party who has now written eighteen parts against it and one part about somebody else; Part Eighteen's Chapter One exists because of that and it is the first chapter of that part rather than the last.

The last thing. Chapter Seven contains six calculations that nobody has done, on data that is already public. I cannot do all six. If one person reading this does one of them and

publishes it, that will have been worth more than these nineteen parts, and I would rather that sentence were the true one than the flattering one.

Lovepreet Singh

Part Nineteen of *The Congress Record* — the last part

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The second series, auditing the government of 2014 onwards on this scale and by this method, is committed to in Part Eighteen, section 10.5, and again in section 10.5 of this part. It must contain a comparison chapter turning the same ruler back on the Congress governments of 2004 to 2014. If it does not, it is a campaign document and this part was the end of the honest one.